GS PAPER II · PRELIMS AND MAINS

POLITY

The Constitution, Institutions and Governance of India



A complete study companion built from the Sarrthi IAS Polity (Merged) handouts, Parts 1 to 3

UPSC CIVIL SERVICES EXAMINATION 2027 · PERSONAL STUDY EDITION

POLITY

The Constitution, Institutions and Governance of India

Personal Study Edition, 2026

Prepared for the UPSC Civil Services Examination 2027, General Studies Paper II.

Source material: Sarrthi IAS GS Foundation Polity (Merged), Parts 1 to 3. The notes are the handouts' own. Where a peach box is headed From Lakshmikanth, the points come from M. Laxmikanth, Indian Polity, 8th edition, and are added only to complement the handout. No other outside facts have been added. Copyright in the source material belongs to Sarrthi IAS, its teacher, and the author and publisher of Indian Polity.

The wide margin on every page is left blank on purpose: use it for current affairs, related data and value-addition points.

How to use this book

Block	What it gives you
Exam lens	Priority (High, Medium, Low), the PYQs quoted for the chapter, and the Prelims and Mains hooks.
In simple words	The chapter in a few plain lines, with the key terms explained.
Memory visuals	A mnemonic, mind map, decision fork or flow chain that fixes the chapter in your head.
Chapter notes	The complete content in source order: bullets, tables, figures. Blocks headed *Also in the handout* hold handout passages that the notebook version had shortened.
From Lakshmikanth	A peach box near the end of the notes adds points from M. Laxmikanth, Indian Polity (8th ed.) that complement the handout. It never replaces it.
Recall and drill	Cover-and-answer questions, exam traps and a short quiz to close each chapter.
My notes column	The ruled panel on the right of every page is yours: current affairs, data, value additions.

HIGH two or more PYQs map to the chapter MEDIUM one PYQ or a partial fit
LOW none quoted

MY NOTES

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MY NOTES

PART I

Constitution and Rights

Preamble, features, Schedules, Fundamental Rights, DPSP, Duties, Basic Structure and Amendment

01 Preamble

CHAPTER 1 · HANDOUT PAGES 2-10

MEDIUM PRIORITY Mains PYQs quoted: **2016**

Prelims PYQs: **2011, 2013, 2017, 2020**

EXAM LENS

Prelims hooks

- legal status (part or not, justiciable or not)
- which objectives are in the Preamble (Prelims 2017)
- where economic justice sits (Preamble + DPSP, Prelims 2013)
- the three cases in order
- the three words added in 1976.
- Handout stresses: Preamble is not justiciable; neither a source of power nor a prohibition on the legislature (Status in law)
- Handout stresses: Berubari (1960): not a part; Kesavananda (1973): part; LIC (1995): integral part (Status in law)
- Handout stresses: Amended only once, by the 42nd Amendment (1976): Socialist, Secular, Integrity (Amendability)
- Handout stresses: Handout's "Key Facts for Prelims": the American Constitution was the first in the world to begin with a Preamble (Introduction)
- Handout stresses: Value addition for Mains: Palkhivala, Munshi, Hidayatullah quotes (Introduction)

Mains hooks

- the five adjectives of the State (2016 asks for each adjective attached to Republic)
- the Socialist-Secular removal debate with the basic-structure answer
- the way forward.

The Preamble is the soul and compass of the Constitution: it guides interpretation and cannot override an explicit article.

MY NOTES

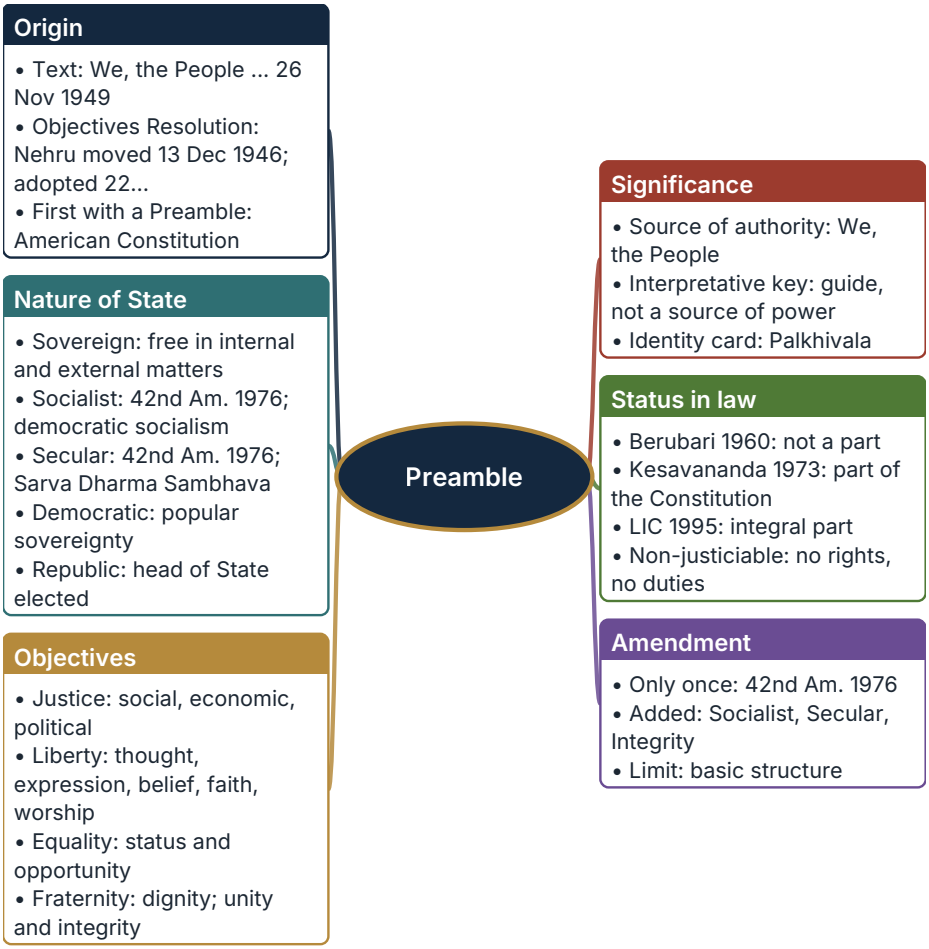
IN SIMPLE WORDS

- The **Preamble** is the short introduction to the Constitution. It begins 'We, the People of India' and ends with the adoption date, **26 November 1949**.
- It comes from Nehru's **Objectives Resolution** (moved **13 Dec 1946**, adopted **22 Jan 1947**).
- It tells you two things. The **nature** of India: Sovereign, Socialist, Secular, Democratic, Republic. The **goals**: Justice, Liberty, Equality, Fraternity.
- Courts changed their view in three steps: **Berubari (1960)** said not a part, **Kesavananda (1973)** said part, **LIC (1995)** said integral part.
- It is **non-justiciable**: it gives no power and puts no limit on the legislature. It was amended **only once**, in **1976** (42nd Amendment), and the basic structure cannot be touched.

Key term	In plain words
Preamble	The introduction to the Constitution; the American Constitution was the first in the world to begin with one.
Objectives Resolution	Moved by Nehru on 13 Dec 1946 and adopted unanimously on 22 Jan 1947; a modified version became the Preamble.
Sovereign	Fully independent in internal and external matters; UN or Commonwealth membership does not limit it.
Democratic socialism	India's socialism: reduce inequality with a mixed economy; inspired by the Avadi Resolution (1955).
Sarva Dharma Sambhava	Equal respect for all religions; the Indian (positive) form of secularism.
Popular sovereignty	Power rests with the people, shown through universal adult suffrage and periodic elections.
Non-justiciable	Cannot be enforced in a court of law; the Preamble gives no rights and no duties.
Basic structure	Features of the Constitution that Parliament cannot amend away, even when it amends the Preamble.

MY NOTES

MEMORY MAP: PREAMBLE



MNEMONIC · THE FIVE-WORD NATURE

Sovereign Sons Stand Defending Republic

S Sovereign | **S** Socialist | **S** Secular | **D** Democratic | **R** Republic

Sons standing guard over the Republic: the nature of the State in handout order; Socialist and Secular came in 1976. (Memory aid, not from the handout.)

MNEMONIC · THE FOUR OBJECTIVES

S E L F

S Social, economic and political Justice

E Equality of status and of opportunity

L Liberty of thought, expression, belief, faith and worship

F Fraternity: dignity of the individual, unity and integrity

The Preamble secures the dignity of every citizen, the SELF: Justice, Equality, Liberty, Fraternity. Order is rearranged so the initials spell SELF. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · STATUS IN LAW: THREE CASES

Barred, Kept, Locked

- **B** Berubari (1960): not a part
- **K** Kesavananda Bharati (1973): is a part
- **L** LIC of India (1995): integral part

Barred at first, then kept in, then locked in as an integral part. (Memory aid, not from the handout.)

MNEMONIC · WORDS ADDED IN 1976

Seventy-six Stamped In

- **S** Socialist
- **S** Secular
- **I** Integrity

The Preamble was amended once, in 1976, by the 42nd Amendment: these three words were stamped in. Order is free here: no single word fits, so a sentence is used. (Memory aid, not from the handout.)

MNEMONIC · LIMITS OF THE PREAMBLE

A D O R N

- **A** Ambiguity in scope: broad terms like justice and liberty lack precise legal definitions
- **D** Dependent on operative provisions: not self-executory
- **O** Override: cannot override explicit provisions
- **R** Rights and duties: cannot confer rights or impose duties
- **N** Not enforceable in courts of law

In Berubari (1960) the Preamble was seen as having only ornamental value: it ADORNS the Constitution but cannot be enforced. Five limitations, order rearranged so the initials spell ADORN. (Memory aid, not from the handout.)

THE TEXT AND WHERE IT CAME FROM

- The Preamble opens with **"WE, THE PEOPLE OF INDIA"** and resolves to constitute India into a **Sovereign Socialist Secular Democratic Republic**, securing to all citizens **Justice, Liberty, Equality** and promoting **Fraternity** "assuring the dignity of the individual and the unity and integrity of the Nation". It ends: "In our Constituent Assembly this twenty-sixth day of November, 1949, do HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION."
- **Prelims fact:** The American Constitution was the first in the world to begin with a Preamble. "Preamble" comes from the Latin *praeambulum*, "to walk before".

THREE VOICES ON THE PREAMBLE (MAINS VALUE ADDITION)

- **N.A. Palkhivala:** "Identity card of the Constitution"

MY NOTES

- **K.M. Munshi:** "Horoscope of our sovereign democratic republic"
- **M. Hidayatullah:** The "soul of our Constitution", a solemn resolve "which nothing but a revolution can alter"
- **Memory aid (Quote memory):**
  - Palkhivala = Passport (identity card)
  - Munshi = Moon-chart (horoscope)
  - Hidayatullah = Heart (soul)

THE OBJECTIVES RESOLUTION

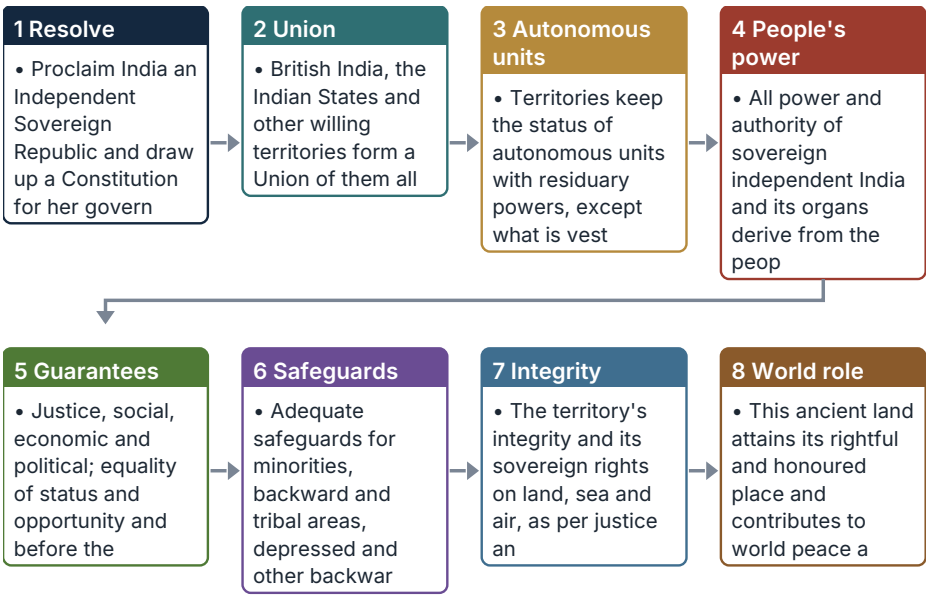
- The Preamble is based on the **Objectives Resolution**, drafted and moved by **Jawaharlal Nehru** on **13 December 1946**. The Assembly adopted it unanimously on **22 January 1947**, and a modified version became the Preamble.

WHAT THE OBJECTIVES RESOLUTION DECLARED (EIGHT POINTS)

- **1 Resolve**: Proclaim India an Independent Sovereign Republic and draw up a Constitution for her governance
- **2 Union**: British India, the Indian States and other willing territories form a Union of them all
- **3 Autonomous units**: Territories keep the status of autonomous units with residuary powers, except what is vested in or implied for the Union
- **4 People's power**: All power and authority of sovereign independent India and its organs derive from the people
- **5 Guarantees**:
  - Justice, social, economic and political
  - Equality of status and opportunity and before the law
  - Freedom of thought, expression, belief, faith, worship, vocation, association and action, subject to law and public morality
- **6 Safeguards**: Adequate safeguards for minorities, backward and tribal areas, depressed and other backward classes
- **7 Integrity**: The territory's integrity and its sovereign rights on land, sea and air, as per justice and the law of civilized nations
- **8 World role**: This ancient land attains its rightful and honoured place and contributes to world peace and the welfare of mankind

MY NOTES

WHAT THE OBJECTIVES RESOLUTION DECLARED (EIGHT POINTS)



ALSO IN THE HANDOUT

- Palkhivala, eminent jurist and constitutional expert, described the Preamble as the “identity card of the Constitution.” - According to K.M.
- Hidayatullah, a former Chief Justice of India, observed, ‘Preamble resembles the Declaration of Independence of the United States of America, but is more than a declaration. It is the soul of our Constitution, which lays down the pattern of our political society.
- This ensures political equality where any eligible citizen can hold the highest office, unlike monarchies (i.e.
- This characterisation reflects the identity of the Indian State and guides its functioning in domestic and international spheres.
- This principle remains central to constitutional interpretation in India.
- Removing “socialist” and “secular” is thus viewed by proponents as enabling a more neutral constitutional identity where government policies are not biased by particular ideologies.

THE FIVE KEYWORDS THAT GIVE INDIA ITS NATURE

- The Preamble's keywords describe both **what the State is** (nature) and **what it must achieve** (objectives). Start with the nature.
- **Memory aid (The five-word nature): S**overeign, **S**ocialist, **S**ecular, **D**emocratic, **R**epublic. Say it as "Three S, then D, then R". Only the middle two S's (Socialist, Secular) came in 1976.

MY NOTES

THE FIVE KEYWORDS AT A GLANCE

Keyword	Meaning in the handout	Key hook
Sovereign	Fully independent in internal and external matters; no external power dictates India's policies	UN or Commonwealth membership does not limit it; India can acquire or cede territory; strategic autonomy and leadership in NAM
Socialist	Commitment to reduce inequality and ensure social and economic justice; **democratic socialism** with a mixed economy	Added by 42nd Am. (1976); inspired by the **Congress Avadi Resolution (1955)**; blends Marxist ideals with Gandhian thought, leaning to **Gandhian socialism**; MGNREGA and food security reflect it despite post-1991 reforms
Secular	No official religion; equal respect for all faiths (**Sarva Dharma Sambhava**)	Inserted by 42nd Am. (1976) though implicit already; State may regulate and reform religion (untouchability, temple entry); Arts. 25-28 guarantee religious freedom: **positive secularism**
Democratic	Power rests with the people (popular sovereignty), via universal adult suffrage and periodic elections	Goes beyond politics to **social and economic democracy**: substantive equality, not only formal rights
Republic	Head of State (the President) is elected, not hereditary	Unlike monarchies such as the UK; the President is elected indirectly by an electoral college

- **Shortcut: Shortcut.** Nature = **who rules and how** (S-S-S-D-R). Objectives = **what the State promises** (J-L-E-F). Keep the two lists apart in the exam hall.

ALSO IN THE HANDOUT

- India has also exercised this by acquiring or ceding territory and by maintaining an independent stand in global affairs, such as strategic autonomy in foreign policy and leadership in NAM.
- The President of India, elected indirectly by an electoral college, embodies this republican character, reflecting equality and people's participation at the highest level of governance.
- It helps readers and interpreters understand the essence of the document and the goals India strives to achieve through constitutional governance.
- Removing them would signal a shift in foundational values and erode constitutional commitment to equity and religious neutrality.

MY NOTES

THE FOUR OBJECTIVES AND THE ARTICLES BEHIND THEM

- **Memory aid (Objectives):** **J**ustice, **L**iberty, **E**quality, **F**raternity. Sentence: "**J**udges **L**et **E**veryone **F**lourish."

OBJECTIVE, SCOPE AND THE ARTICLE THAT DELIVERS IT

Objective	What the handout says	Articles named
Justice	Social (equality irrespective of caste, religion, gender; uplift through reservations), economic (reduce inequality of wealth, income, property), political (equal access through universal adult suffrage)	Article 39 for economic justice
Liberty	Not only absence of restraint but opportunities for human potential; thought, expression, belief, faith, worship; **not absolute** (public order, morality, national security); RTI Act extends transparency	Articles 19-22
Equality	Absence of special privileges; equality of status and opportunity in three forms: civic, political, economic	Civic: Arts. 14-18 (equality before law; abolishes untouchability and titles). Political: Arts. 325-326. Economic: Art. 39 (equal pay for equal work, fair distribution) and Art. 43 (living wage)
Fraternity	Brotherhood, dignity of the individual, unity and integrity of the nation; **'integrity' added by 42nd Am. (1976)**	Art. 21 (right to live with dignity, by judicial interpretation); Art. 51A (renounce practices derogatory to women's dignity); Art. 1 (Union of States)

POLITICAL EQUALITY, STEP BY STEP

- **Article 325**: No person excluded from the electoral rolls on grounds of religion, race, caste or sex
- **Article 326**: Lok Sabha and State Assembly elections rest on universal adult suffrage

> **HANDOUT ALERT**
> Handout alert: Economic justice appears in **both the Preamble and the DPSP** (Prelims 2013 answer: Preamble and Directive Principles). Fundamental Rights alone do not carry it.

ALSO IN THE HANDOUT

- It influenced the eventual shaping of the constitution through all its subsequent stages.

MY NOTES

- Liberty In essence, liberty means not only the absence of unreasonable restraints on individual actions but also the presence of opportunities that enable the development of human potential.
- Provisions like the Right to Information Act further expand transparency and individual empowerment, while restrictions on hate speech or disorder balance liberty with responsibility.
- Article 43 (DPSP) ensures a living wage, fair conditions of work, and decent standard of life for workers.
- Article 51A mandates renouncing practices derogatory to women's dignity Fraternity, through unity and integrity of the nation, also ensures cohesion across India's vast diversities by fostering a collective identity as Indians.

WHY THE PREAMBLE MATTERS

SEVEN ROLES (THE HANDOUT'S LIST)

Role	One line
Source of authority	"We, the People": popular sovereignty; the Constitution draws legitimacy from citizens, not a monarch or outside power
Reflection of ideals	Justice, liberty, equality, fraternity: the philosophy of the framers; a guide to read other provisions in harmony
Introduction	A concise preface of aims and objectives
Interpretative role	Not enforceable as a source of power, but used by courts to read ambiguous provisions; in Kesavananda (1973) it helped identify the basic structure
Declaration of the nature of the State	Sovereign, socialist, secular, democratic, republic
Reflection of objectives	Guides policy, lawmaking and governance; links freedom struggle ideals to the Republic
National integration	Fraternity, dignity and unity push citizens beyond caste, religion, language and region

- **Memory aid (Seven roles):**
  - **S**ource, **R**eflection of ideals, **I**ntroduction, **I**nterpretation, **D**eclaration of nature, **R**eflection of objectives, **N**ational integration. Hook: "Some Rivers Irrigate
  - Instead Deserts Remain Naked."

ALSO IN THE HANDOUT

- It laid down the fundamentals and philosophy of the constitutional structure.

MY NOTES

- It encourages transcending barriers of caste, religion, language, or region, thereby serving as a unifying force in a diverse country like India.
- This recognition elevated the Preamble from a symbolic introduction to an interpretative tool that anchors India's constitutional philosophy and ensures that the actions of the State remain consistent with its foundational ideals.

IS THE PREAMBLE PART OF THE CONSTITUTION?

- It does not confer powers or impose limits. Its role is **interpretative**: it shows the framers' intent when a provision is unclear. Courts moved in three steps.

THREE CASES, THREE POSITIONS

- **Berubari Union Case (1960)**:
  - **Not a part** of the Constitution. A guiding light for the framers' intent only
  - No independent legal force
  - Cannot be a source of power or rights
- **Kesavananda Bharati (1973)**: **Is a part**. The Constitution must be read in the light of its ideals. Also gave the **basic structure** doctrine: sovereignty, democracy, liberty, equality and justice guide what Parliament cannot amend away
- **LIC of India Case (1995)**:
  - **Reaffirmed**: an integral part
  - Creates no independent rights but guides interpretation and protects the spirit of the Constitution
- **Memory aid (Case order): B**erubari = No → **K**esavananda = Yes → **L**IC = Yes again. Hook: "**B**ad **K**ind **L**aw" (bad first, kind later, law settled).
- **Constituent Assembly's view:** The Preamble was adopted **after** the rest of the Constitution, to ensure full conformity. Dr Rajendra Prasad put the question "that the Preamble stands part of the Constitution" to a vote and it was adopted, showing the framers' intent.
- **Important takeaway:** The Preamble is **neither a source of power to the legislature nor a prohibition upon its powers**. It is **non-justiciable**: its provisions are not enforceable in courts.

FIVE LIMITATIONS

- **Cannot override explicit provisions.** A clear article prevails over the Preamble's broad ideals.
- **Not enforceable in court.** Its objectives are aspirational
- Fundamental Rights are enforceable

MY NOTES

- **Cannot confer rights or duties.** It is a statement of vision to be turned into reality by articles, laws and policies.
- **Ambiguous scope.** Justice, liberty, equality and fraternity lack precise definitions, so courts must interpret them.
- **Depends on operative provisions.** It is not self-executory: Fundamental Rights, DPSP and welfare policy deliver its ideals.
- **Memory aid (Limitations): O**verride (cannot), **E**nforce (cannot), **R**ights (cannot confer), **A**mbiguous, **D**epends on others. Hook: "Only Even Rich Aunts Donate."

ALSO IN THE HANDOUT

- Its role has largely been seen as interpretative in nature, helping to illuminate the intent of the framers whenever ambiguities arise in constitutional or statutory provisions. Judicial pronouncements have played a decisive role in clarifying its status over time:
- Thus, the Preamble was considered by the Court as having only limited, ornamental value at that stage. - Kesavananda Bharati Case (1973) This landmark case reversed the earlier position by affirming that the Preamble is indeed a part of the Constitution. The Supreme Court emphasized that the Constitution must be read and interpreted in the light of the lofty ideals expressed in the Preamble, making it a substantive component of the constitutional framework.
- For example, judicial interpretation has consistently clarified that the Preamble cannot be treated as a substitute for operative clauses of the Constitution.
- This ambiguity often necessitates judicial interpretation, leaving scope for differing opinions on the exact contours of these ideals. 5.Dependent on Operative Provisions: The Preamble is not self-executory
- Its ideals require substantive constitutional provisions, legislative measures, and institutional mechanisms for realization

CAN IT BE AMENDED?

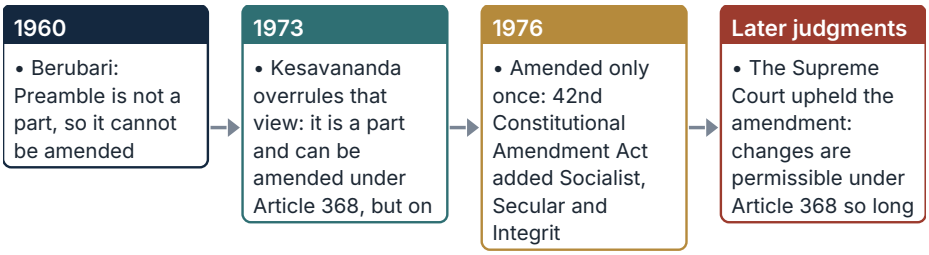
HOW THE AMENDMENT QUESTION WAS SETTLED

- **1960**: Berubari: Preamble is not a part, so it cannot be amended
- **1973**: Kesavananda overrules that view: it is a part and **can be amended under Article 368**, but **only if the basic structure is respected**
- **1976**: **Amended only once**: 42nd Constitutional Amendment Act added **Socialist, Secular and Integrity**

MY NOTES

- **Later judgments**: The Supreme Court upheld the amendment: changes are permissible under Article 368 so long as the basic structure is not damaged

HOW THE AMENDMENT QUESTION WAS SETTLED



- **Remember:** Opponents of amendability argued that even an amendable Preamble could not have its basic features destroyed. That safeguard is the basic structure.
- **Memory aid (Words added): S**ocialist, **S**ecular, **I**ntegrity: "two S and an I, once, in 1976".

ALSO IN THE HANDOUT

- This safeguard ensures that the Preamble retains its guiding role without being undermined by arbitrary changes.

RECENT ISSUE: SHOULD "SOCIALIST" AND "SECULAR" GO?

THE REMOVAL DEBATE

- **For removal:**
  - Emergency-era insertion in 1976, not in the 1950 Preamble, so politically motivated
  - Changed times: after liberalisation and 1991, rigid socialism may constrain economic reform
  - Ideological neutrality: the State should not be tied to a doctrine
- **Against removal:**
  - They affirm India's identity as welfare, plural and inclusive
  - Basic structure: Minerva Mills (1980) and SR Bommai (1994) protect features like secularism
  - Secularism protects minorities and prevents majoritarian dominance
  - Preamble is the "identity card" (Palkhivala), removing words risks its coherence

WAY FORWARD (HANDOUT'S FIVE POINTS)

- **Balance:**
  - Retain inclusive principles while allowing economic liberalisation

MY NOTES

- Dialogue: Parliament, states, civil society and judiciary together
- Judicial safeguards: keep "secular" and "socialist" as essential features

- **Practice over semantics:**
  - Enforce secularism and welfare in practice
  - PM's "5S": Samman, Samvad, Sahyog, Shanti, Samriddhi

ALSO IN THE HANDOUT

- Together, these establish India's pursuit of inclusive development.
- Changing times: Supporters of removal say that India's socio-economic conditions have substantially evolved since 1976. After liberalisation and global integration post-1991, they argue that "socialism" as a rigid concept may constrain economic flexibility and inhibit reforms aligned with market dynamics.
- Its retention is seen as essential to prevent majoritarian dominance and ensure that all faiths receive equal treatment under the law. 4.Symbolic importance: The Preamble functions as the "constitutional compass" or "identity card" of the Constitution (as famously described by N.A.
- Removing these words risks undermining the symbolic coherence of India's foundational document and its guiding ethos.
- Strengthen Practice, Not Semantics: Instead of debating terminology, focus on practical enforcement of secularism and welfare.

CONCLUSION

- The Preamble is the **soul and guiding light** of the Constitution: a solemn declaration of India as a Sovereign, Socialist, Secular, Democratic and Republic nation committed to justice, liberty, equality and fraternity.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 5, PREAMBLE OF THE CONSTITUTION

- The Preamble has four ingredients: source of authority (the people), nature of the State, objectives, and the date of adoption (26 Nov 1949).
- India was a British dominion from 15 Aug 1947 to 26 Jan 1950
- It ceased to be one by declaring itself a sovereign republic
- Commonwealth membership (declared 1949) and UN membership (since 1945) do not limit India's sovereignty.
- Indian socialism is democratic socialism with a mixed economy, not communistic (state) socialism, which nationalises all means of production and abolishes private property.
- The Supreme Court said in 1974 that the framers wanted a secular State even before the word was added

MY NOTES

- Arts. 25-28 show this. States can be atheistic, theocratic or secular
- Democracy is direct (Switzerland:
  - Referendum, initiative, recall, plebiscite) or indirect
  - India has representative parliamentary democracy, where the executive answers to the legislature
- Social plus economic justice together make distributive justice. The justice ideal comes from the Russian Revolution (1917)
- Liberty, equality and fraternity from the French Revolution (1789-1799)
- Dr Ambedkar (25 Nov 1949): political democracy cannot last without social democracy, and liberty, equality and fraternity must not be divorced from each other.
- Berubari was a Presidential reference under Art. 143. Even there the Court called the Preamble a key to the minds of the makers, useful when an article is ambiguous.
- Hidayatullah:
  - The Preamble resembles the US Declaration of Independence but is more than a declaration
  - Sir Ernest Barker called it the 'key-note' of the Constitution

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Nature of the State in the Preamble?	Sovereign, Socialist, Secular, Democratic, Republic (S-S-S-D-R).
Objectives of the State?	Justice, Liberty, Equality, Fraternity (J-L-E-F).
Which Amendment changed the Preamble and how?	42nd Amendment, 1976: added Socialist, Secular and Integrity. The only amendment to date.
Who called the Preamble the "identity card" of the Constitution?	N.A. Palkhivala.
Who called it the "horoscope of our sovereign democratic republic"?	K.M. Munshi.
Preamble and justiciability?	Non-justiciable; neither a source of power nor a prohibition upon the legislature.
Which case made the Preamble part of the Constitution, and what else did it give?	Kesavananda Bharati (1973); also the basic structure doctrine.

Which Articles back each objective?	Justice: Art. 39; Liberty: Arts. 19-22; Equality: Arts. 14-18, 325-326, 39, 43; Fraternity: Art. 21, 51A, Art. 1.
Which cases protect secularism from amendment, per the handout?	Minerva Mills (1980) and SR Bommai (1994).
What is the PM's "5S" approach in the handout?	Samman, Samvad, Sahyog, Shanti, Samriddhi.
Mains 2016: Discuss each adjective attached to the word 'Republic'	Intro: Introduce the Preamble as the "identity card" (Palkhivala) that declares India a Sovereign, Socialist, Secular, Democratic Republic Body: Sovereign: fully independent, strategic autonomy, NAM; Socialist: democratic socialism, mixed economy, Avadi 1955, MGNREGA; Secular: Sarva Dharma Sambhava, positive secularism, Arts. 25-28; Democratic: popular sovereignty, universal adult suffrage, social and economic democracy; Republic: head of State elected, not hereditary; Defend today: removal debate, basic structure (Minerva Mills, Bommai). Close: the words are safeguards of identity, and the way forward is to strengthen practice rather than debate semantics

Trap 1 · Case order

Berubari (1960) said the Preamble is NOT a part; Kesavananda (1973) said it IS a part; LIC (1995) said it is an integral part. *Rule: the first case says No, the next two say Yes.*

Trap 2 · Amended only once

The only amendment is the 42nd (1976); it added Socialist, Secular and Integrity. Democratic, Republic and Fraternity were already there. *Rule: two S and an I, once, in 1976.*

Trap 3 · Power and enforceability

The Preamble is non-justiciable and is neither a source of power to the legislature nor a prohibition on it (Prelims 2020). *Rule: it guides interpretation; a clear article prevails over it.*

Trap 4 · Nature versus objectives

Sovereign, Socialist, Secular, Democratic, Republic describe what the State is. Justice, Liberty, Equality, Fraternity are what it promises. Economic justice sits in the Preamble and the DPSP (Prelims 2013). *Rule: keep the two lists apart; Republic is not an objective and Fraternity is not an adjective.*

MY NOTES

QUICK QUIZ

Q1. Which list gives the three words added to the Preamble by the 42nd Amendment?

1. Sovereign, Secular, Republic
2. Socialist, Secular, Integrity
3. Democratic, Socialist, Integrity
4. Socialist, Secular, Fraternity

Q2. In which case did the Supreme Court first hold that the Preamble is a part of the Constitution?

1. Berubari Union (1960)
2. LIC of India (1995)
3. Kesavananda Bharati (1973)
4. Minerva Mills (1980)

Q3. Which statement about the Preamble is correct, according to the handout?

1. It is a source of power to the legislature
2. It is non-justiciable
3. It prohibits the legislature from certain laws
4. It can never be amended

Q4. The Objectives Resolution was moved on and adopted on which dates?

1. Moved 22 Jan 1947, adopted 13 Dec 1946
2. Moved 13 Dec 1946, adopted 22 Jan 1947
3. Moved 26 Nov 1949, adopted 26 Jan 1950
4. Moved 15 Aug 1947, adopted 22 Jan 1947

Q5. Which Articles does the handout link to civic equality in the Preamble?

1. Articles 19-22
2. Articles 25-28
3. Articles 14-18
4. Articles 325-326

Q6. PYQ 2020: The Preamble to the Constitution of India is [UPSC CSE – 2020 Prelims]

1. a part of the Constitution but has no legal effect
2. not a part of the Constitution and has no legal effect either
3. a part of the Constitution and has the same legal effect as any other part
4. a part of the Constitution but has no legal effect independently of other parts

Q7. PYQ 2017: Which one of the following objectives is not embodied in the Preamble to the Constitution of India? [UPSC CSE – 2017 Prelims]

1. Liberty of thought
2. Economic liberty
3. Liberty of expression
4. Liberty of belief

Q8. PYQ 2017: The mind of the makers of the Constitution of India is reflected in which of the following? [UPSC CSE – 2017 Prelims]

1. The Preamble
2. The Fundamental Rights
3. The Directive Principles of State Policy
4. The Fundamental Duties

Q9. PYQ 2013: 'Economic Justice' as one of the objectives of the Indian Constitution has been provided in [UPSC CSE – 2013 Prelims]

1. The Preamble and the Fundamental Rights
2. The Preamble and the Directive Principles of State Policy
3. The Fundamental Rights and the Directive Principles of State Policy
4. None of the above

MY NOTES

Q10. PYQ 2011: Other than the Fundamental Rights, which of the following parts of the Constitution of India reflect/reflects the principles and provisions of the Universal Declaration of Human Rights (1948)?
1. Preamble
2. Directive Principles of State Policy
3. Fundamental Duties Select the correct answer using the code given below: [UPSC CSE – 2011 Prelims]

1. 1 and 2 only
2. 2 only
3. 1 and 3 only
4. 1, 2 and 3

Answers: Q1 b, Q2 c, Q3 b, Q4 b, Q5 c, Q6 d, Q7 b, Q8 a, Q9 b, Q10 d

MY NOTES

CHAPTER 2 · HANDOUT PAGES 11-17

02 Salient Features and Critique of the Constitution

HIGH PRIORITY Mains PYQs quoted: **2016**

Prelims PYQs: **1993, 1996, 2009, 2020, 2021, 2023**

EXAM LENS

Prelims hooks

- the 12 features with their Article numbers
- the six types of majority
- 395 to 470 Articles, 22 to 25 Parts, 8 to 12 Schedules
- voting age 21 to 18 (61st Amendment, 1988)
- which duty was added in 2002.
- Handout stresses: Handout lists 12 salient features, each with its own short note (Salient features)
- Handout stresses: Types of majority (simple, effective, absolute, special I, II, III) with Article numbers (Feature 3 (Additional information))
- Handout stresses: The 42nd Amendment (1976) placed Fundamental Duties in Part IVA, Art. 51A; the 86th (2002) added the 11th duty (Feature 6)
- Handout stresses: K.C. Wheare called India quasi-federal (Feature 7)
- Handout stresses: Critique section: each charge is paired with a defender (Ambedkar, Granville Austin) (Critique)

Mains hooks

- whether the Constitution is borrowed or adapted
- federal or unitary (quasi-federal)
- the Government of India Act, 1935 as source (2016 asks if it laid down a federal constitution)
- rigid and flexible
- separation of powers as functional.

The Constitution borrowed widely but adapted carefully; its flexibility and its blend of ideals are strengths, and Ambedkar's warning is that political democracy needs social and economic democracy.

IN SIMPLE WORDS

- The Constitution was adopted on **26 Nov 1949** and enforced on **26 Jan 1950**. It is the **lengthiest written** Constitution: **395**

MY NOTES

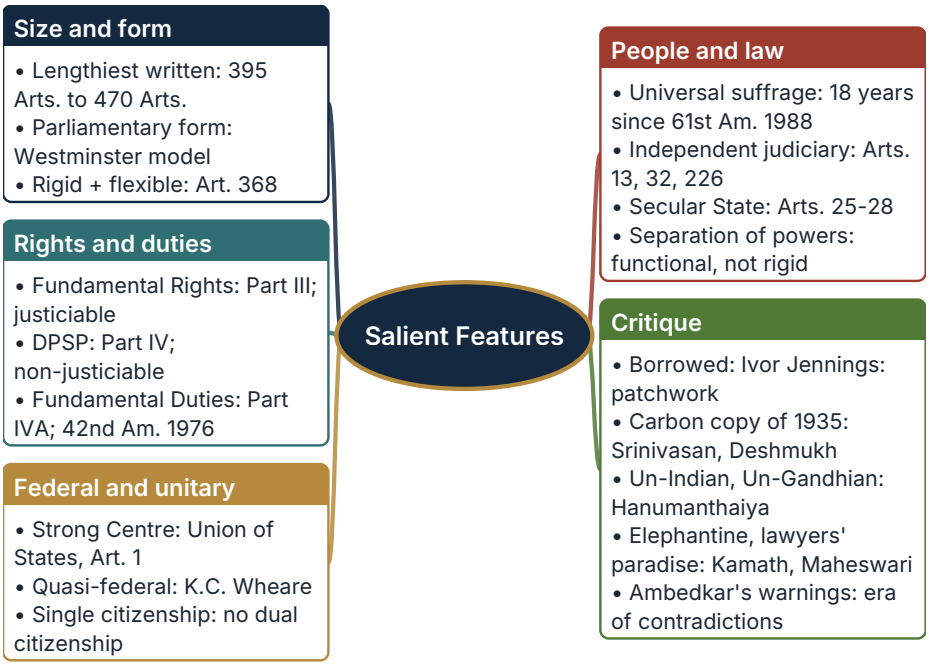
Articles, 22 Parts, 8 Schedules at the start, **470, 25 and 12** today.

- The handout lists **12 salient features**: Westminster-style **parliamentary** government, a blend of **rigid and flexible**, Fundamental Rights, DPSP, Fundamental Duties, a **federation with a strong Centre**, adult suffrage, an independent judiciary, a secular State, single citizenship and a flexible separation of powers.
- Amendment rules depend on the **type of majority**: simple, effective, absolute and three special majorities. Learn which motion needs which.
- Critics made **eight charges** (borrowed, carbon copy of 1935, un-Indian, un-Gandhian, elephantine, lawyers' paradise, inconsistent, Ambedkar's warnings), and each has a reply.
- The big answer: the framers **adapted, not copied**, and Ambedkar warned that political democracy needs **social and economic democracy**.

Key term	In plain words
Westminster model	The parliamentary system India chose: real power with the PM and Council of Ministers, responsible to the Lok Sabha.
Effective strength	Total membership minus vacant seats; the base for an effective majority.
Special majority, Type I	Majority of total membership of each House and two-thirds of those present and voting; used for amendment (Art. 368).
Judicial review	The courts' power under Arts. 13, 32 and 226 to check laws and executive acts; makes the judiciary guardian of the Constitution.
Quasi-federal	K.C. Wheare's label: structure federal but tilted to the Centre for unity.
Separation of powers	Montesquieu's idea; in India it is functional and flexible, with deliberate overlaps and checks.
Sarva Dharma Sambhava	Equal respect for all religions; India's model of secularism, with State reform where needed.
Constitutional morality	Ambedkar's reply to his critics: respect for constitutional methods, not mass protests or blind hero-worship.

MY NOTES

MEMORY MAP: SALIENT FEATURES AND CRITIQUE OF THE CONSTITUTION



MNEMONIC · SIX TYPES OF MAJORITY

M A S T E R

- **M** Majority of total membership plus two-thirds present and voting: Special Type I (Art. 368)
- **A** Absolute majority: more than 50% of the total strength of the House
- **S** Simple majority: more than 50% of members present and voting
- **T** Two-thirds of Total membership of each House: Special Type II (impeachment)
- **E** Effective majority: more than 50% of strength minus vacant seats
- **R** Rajya Sabha only, two-thirds present and voting: Special Type III (Arts. 312, 249)

A majority is the MASTER of the House. Order is rearranged for memory so the six types spell MASTER. (Memory aid, not from the handout.)

MNEMONIC · SIX FUNDAMENTAL RIGHTS

Equal Freedom Ends Rulers' Cruel Control

- **E** Equality (14-18)
- **F** Freedom (19-22)
- **E** Exploitation, Right against (23-24)
- **R** Religion, Freedom of (25-28)
- **C** Cultural and Educational (29-30)
- **C** Constitutional Remedies (32)

Fundamental Rights are limits on the ruler's tyranny; initials follow the handout order. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · RIGHTS SIDE OF THE CONSTITUTION

Freedom Demands Duty

- **F** Fundamental Rights (Part III)
- **D** Directive Principles (Part IV)
- **D** Duties: Fundamental Duties (Part IVA)

Rights, then directives, then duties: Part III, IV, IVA in order. (Memory aid, not from the handout.)

MNEMONIC · THE EIGHT CHARGES

Beggar's Copy Upsets Us; Elephant's Paradise Looks Awful

- **B** Borrowed Constitution
- **C** Carbon copy of the 1935 Act
- **U** Un-Indian or anti-Indian
- **U** Un-Gandhian
- **E** Elephantine size
- **P** Paradise of the lawyers
- **L** Lacks theoretical consistency
- **A** Ambedkar's warnings

Beggar = borrowed, Copy = carbon copy, Upsets Us = the two Un charges; the last word hints Ambedkar's warnings. Order is free here: no single word fits, so a sentence is used. (Memory aid, not from the handout.)

THE TWELVE FEATURES AT A GLANCE

- The Constitution was adopted on **26 November 1949** and enforced on **26 January 1950**. The framers studied many countries' Constitutions and the working of the Government of India Act, 1935, then took what suited India.
- **Memory aid (All twelve in one sentence):**
  - "**L**ong **P**arliaments **B**lend **F**ine **D**ebates, **D**uties
  - **F**ederal **U**nions **J**udge **S**ecular **S**ingle **S**eparations." Order: Lengthiest, Parliamentary, Blend of rigid/flexible, Fundamental Rights, DPSP, Duties, Federation, Universal suffrage, Judiciary, Secular, Single citizenship, Separation of powers
- **Shortcut: Four clusters. Size and form** (1-3), **Rights side** (4-6), **Federal side** (7, 11), **People and law** (8-10, 12). Sort each feature into its cluster and the list stops feeling long.

1. THE LENGTHIEST WRITTEN CONSTITUTION

- It is the most detailed written Constitution in the world (written, like the American; unlike the unwritten British).

SIZE THEN AND NOW

	At adoption	Today (handout)
Articles	395	470

MY NOTES

	At adoption	Today (handout)
Parts	22	25
Schedules	8	12

- Amendments deleted about **20 Articles and one Part (Part VII)** and added nearly **95 new Articles, four Parts (IVA, IXA, IXB, XIVA) and four Schedules (9, 10, 11, 12)**.
- **Memory aid (Four new Parts):** IVA, IXA, IXB, XIVA. Chant it as "**IV-A, IX-A, IX-B, XIV-A**": the A, A, B, A pattern is all you need.

WHY SO LONG (FOUR REASONS)

- Vast geography and diversity needing special provisions.
- Influence of the lengthy Government of India Act, 1935.
- One Constitution for both Union and States, unlike federations such as the USA.
- A lawyer-dominated Constituent Assembly that preferred detailed drafting.
- Subjects that other democracies leave to convention or ordinary law (electoral system, administrative machinery) are written into this Constitution.

> **HANDOUT ALERT**
> Handout alert: The handout says **470 Articles** here, but in the Critique section says "**now over 450**". Use 470 as the current figure given under Feature 1, and note the mismatch.

ALSO IN THE HANDOUT

- Reasons for its bulk include: 4.Vast geography and diversity requiring special provisions.

2. PARLIAMENTARY FORM OF GOVERNMENT

- India took the **Westminster model**, not the American presidential system, as better suited to its social diversity and democratic traditions. It runs on cooperation between legislature and executive, not strict separation.

WHO HOLDS POWER

- **President**: Nominal head of State
- **Prime Minister and Council of Ministers**:
  - Real authority
  - Collectively responsible to the Lok Sabha
- **No-confidence motion**: Can remove the government

MY NOTES

WHO HOLDS POWER



INDIA VERSUS BRITAIN

- **Differences from the British model:**
  - Parliament is not sovereign: bound by a written Constitution and judicial review
  - Head of State is an elected republican, not a hereditary monarch
- **Criticisms:**
  - Instability in coalition politics
  - Executive dominance under majority rule
  - Growth of Prime Ministerial Government
- The framers chose it deliberately for its balance of **stability with accountability**.

ALSO IN THE HANDOUT

- The framers of the Constitution thoughtfully opted for this model to promote unity in a society marked by deep linguistic, regional, and cultural diversity.
- They claimed it was too Western in inspiration and unsuited to Indian traditions.

3. BLEND OF RIGIDITY AND FLEXIBILITY

- Neither wholly rigid nor wholly flexible.

TWO KINDS OF PROVISION

- **Rigid:**
  - Federal structure, judiciary, fundamental rights
  - Special majority of Parliament plus ratification by half the states (Art. 368)
- **Flexible:**
  - Formation of new states, change of names or boundaries
  - Simple majority like ordinary laws

MY NOTES

TYPES OF MAJORITY (ADDITIONAL INFORMATION, REDRAWN)

SIX MAJORITIES AND WHERE EACH IS USED

Type	Meaning	Used for
1 Simple (ordinary or functional)	More than 50% of members **present and voting**; default rule (Art. 100)	Ordinary, Money and Financial Bills; motions (confidence, no-confidence, censure, adjournment, thanks); President's Rule (Art. 356); Financial Emergency (Art. 360); Speaker/Deputy Speaker election (Art. 93); Deputy Chairman of Rajya Sabha (Art. 89); disapproval of National Emergency (Art. 352)
2 Effective	More than 50% of the **effective strength** = total membership minus vacant seats ("majority of all the then members")	Removal of Vice-President (Art. 67, Rajya Sabha); Deputy Chairman of Rajya Sabha (Art. 90); Speaker and Deputy Speaker of Lok Sabha (Art. 94)
3 Absolute	More than 50% of the **total strength** of the House, regardless of vacancies or absentees	Not stand-alone; a component of Special Majority I. A party needs an absolute majority (≥ 272 in Lok Sabha) to form government
4 Special, Type I	(a) Majority of the total membership of each House **and** (b) two-thirds of members present and voting	Amendment (Art. 368); removal of SC judges (Art. 124) and HC judges (Art. 217); CAG (Art. 148); CEC (Art. 324); State Election Commissioner (Art. 243K); approval of National Emergency (Art. 352)
5 Special, Type II	Two-thirds of the **total membership** of each House (no "present and voting")	Impeachment of the President (Art. 61)
6 Special, Type III	Two-thirds present and voting in the **Rajya Sabha only**	Art. 312 (new All-India Services); Art. 249 (laws on State List subjects in the national interest)

- **Memory aid (Six majorities):** **S**imple, **E**ffective, **A**bsolute, then three **S**pecials. Hook: "**S**ome **E**lephants **A**lways **S**ing **S**weet **S**ongs."
- **Shortcut: Shortcut.** Simple = "present and voting". Effective = "minus vacancies". Absolute = "of the whole House". Special I = "majority of all **and** two-thirds present". Special II = "two-thirds of **all**" (only the President's impeachment). Special III = "Rajya Sabha only".

MY NOTES

HANDOUT ALERT

Handout alert: Article 352 appears in **two** places: disapproval of a National Emergency (Simple) and approval of a National Emergency (Special I). Likewise the Deputy Chairman of Rajya Sabha appears under Art. 89 (Simple, election) and Art. 90 (Effective, removal).

4. FUNDAMENTAL RIGHTS

- Part III, the cornerstone of democracy, guarantee civil and political liberties and check arbitrary State power. They are **justiciable**.

THE SIX CATEGORIES

Right	Art-icles	Core idea
Equality	14-18	Equality before law, no discrimination, abolition of untouchability and titles
Freedom	19-22	Speech, association, movement, residence, pro-fession; protection on conviction and personal liberty
Against exploitation	23-24	Bans trafficking, forced labour, child labour
Freedom of religion	25-28	Conscience; profess, practise, propagate
Cultural and educational	29-30	Language, culture, minorities' right to run educa-tional institutions
Constitutional remedies	32	Move the Supreme Court; Ambedkar: "heart and soul"

- **Memory aid (Six rights):** **E**quality, **F**reedom, **E**xploitation, **R**eligion, **C**ultural-educational, **C**onstitutional remedies: "**E**very **F**ine **E**ngine **R**uns **C**ool **C**ompletely." Originally **seven** rights. The **Right to Prop-erty (Art. 31)** was removed by the **44th Amendment, 1978** and made a legal right under **Art. 300-A (Part XII)**.

ALSO IN THE HANDOUT

- They ensure equality, freedom, and dignity, while safeguarding minority and cultural rights, thus laying the foundation of political democracy.

5. DIRECTIVE PRINCIPLES OF STATE POLICY

- Part IV: non-justiciable guidelines for a welfare State and socio-economic democracy. Ambedkar: a "**novel feature**".

THREE CATEGORIES

Category	Examples in the handout
Socialist	Right to work, education, livelihood

MY NOTES

Category	Examples in the handout
Gandhian	Panchayati Raj, village industries, prohibition of intoxicants
Liberal-intellectual	Uniform civil code, protection of environment, promotion of international peace

- They are not enforceable but fundamental in governance, and influenced **land reforms, MGNREGA and the Right to Education Act**.
- **Memory aid (Three types): S**ocialist, **G**andhian, **L**iberal-intellectual: "**S**ee **G**andhi **L**ead".

ALSO IN THE HANDOUT

- Though courts cannot enforce them, DPSPs are considered fundamental in the governance of the country and have significantly influenced progressive policies like land reforms, MGNREGA, and the Right to Education Act, thereby complementing Fundamental Rights in building a just social order.

6. FUNDAMENTAL DUTIES

- Inspired by the **Constitution of the USSR**. They instil civic responsibility and balance rights with obligations.

HOW THE DUTIES CAME

- **1976**: 42nd Amendment places them in **Part IVA, Art. 51A**: **10 duties**
- **2002**: 86th Amendment adds the **11th**: parents or guardians to provide educational opportunities to children aged **6 to 14** (Art. 51A(k))

HOW THE DUTIES CAME

1976
• 42nd Amendment places them in Part IVA, Art. 51A: 10 duties

→

2002
• 86th Amendment adds the 11th: parents or guardians to provide educational opportunities to

- They are non-justiciable: a moral code guiding national unity, integrity and constitutional values.

7. FEDERATION WITH A STRONG CENTRALISING TENDENCY

- Art. 1 calls India a "**Union of States**". States cannot secede: the Union is indestructible.

FEDERAL AGAINST UNITARY

- **Federal features:**
  - Dual polity
  - Division of powers
  - Written Constitution

MY NOTES

- Independent judiciary
- Bicameralism at the Centre

- **Tilt to the Centre:**
  - Most important subjects with the Union
  - Emergency takeover
  - One Constitution
  - One citizenship
- K.C. Wheare called it "**quasi-federal**": structurally tilted to the Centre for unity and stability.

ALSO IN THE HANDOUT

- Still, there is a clear tilt towards central power: most important subjects are controlled by the Union government, during emergencies it can take over wide powers, and the whole country shares one Constitution and one citizenship. Owing to this unique balance, constitutional scholar K.C.

8. UNIVERSAL ADULT SUFFRAGE

- **Art. 326**: every citizen aged **18+** votes in Parliament and State Legislature elections. Voting age was **21**, reduced to **18** by the **61st Amendment (1988)**. Equal votes regardless of caste, religion, gender, education or economic status. Over **900 million** eligible voters make India the world's largest democracy.

9. INDEPENDENT JUDICIARY

- An **integrated** judiciary:
  - Supreme Court at the apex, High Courts, subordinate courts
  - One system enforces both Central and State laws. **Judicial review** under **Arts. 13, 32 and 226** makes it the guardian of the Constitution and Fundamental Rights, and it decides Union-State disputes. Independence rests on **security of tenure, fixed service conditions and a rigorous impeachment process**

10. SECULAR STATE

- No State religion
- Arts. 25-28 guarantee the right to profess, practise and propagate any faith, **or none**. The **42nd Amendment (1976)** inserted "Secular" in the Preamble. Unlike Western absolute separation, India follows **Sarva Dharma Sambhava**: equal respect for all religions, with State intervention for reform (banning untouchability, gender equality in places of worship) while staying neutral

MY NOTES

ALSO IN THE HANDOUT

- This framework allows the State to intervene in religious matters to uphold social reform and constitutional values, such as banning untouchability or ensuring gender equality in places of worship, while maintaining neutrality among different faiths.

11. SINGLE CITIZENSHIP

- Unlike the US (dual citizenship), India has **one citizenship**. Every Indian enjoys the same political and civil rights (vote, movement, equality before law) irrespective of state or union territory. It prevents parochial loyalties and promotes national integration and fraternity.

ALSO IN THE HANDOUT

- This prevents parochial or sectional loyalties, reduces the scope for discrimination on regional lines, and strengthens the feeling of belonging to one nation. Thus, single citizenship serves as a vital instrument for fostering national integration and fraternity.

12. SEPARATION OF POWERS

- **Montesquieu's** doctrine: legislature makes laws, executive implements, judiciary interprets. In India it is **functional and flexible, not rigid**.

WHERE THE POWERS DELIBERATELY OVERLAP

Overlap	Example in the handout
Executive in legislature	Ministers are drawn from the legislature; accountable through Question Hour, no-confidence motions, committee scrutiny
Judiciary over others	Judicial review of legislative enactments and executive decisions
Legislature in judiciary	Role in impeachment of judges
Executive in judiciary	Participation in judicial appointments

- Result: a dynamic system of **checks and balances**, not watertight compartments.

ALSO IN THE HANDOUT

- This framework establishes not watertight compartments but a dynamic system of checks and balances, aimed at preventing concentration of power and preserving democratic accountability in line with the spirit of the Constitution.

MY NOTES

CRITIQUE: THE EIGHT CHARGES AND THE REPLIES

- Critics inside and outside the Assembly called it borrowed, bulky and over-legalistic. The framers defended each choice by India's diversity, history and governance needs.
- **Memory aid (Eight charges): B**orrowed, **C**arbon copy, **U**n-Indian, **U**n-Gandhian, **E**lephantine, **P**aradise of lawyers, **L**acks consistency, **A**mbedkar's warnings: "**B**ad **C**opies **U**sually **U**pset **E**very **P**roud **L**awyer, **A**mbedkar warned."

CHARGE, CRITIC AND DEFENCE

Charge	The critics said	The defence
1 A borrowed Constitution	"Bag of borrowings"; **Ivor Jennings**: "patchwork", "lawyer's paradise"	**Ambedkar**: none framed so late in history could avoid resemblance. **Granville Austin**: borrowing was adaptation, not imitation
2 Carbon copy of the 1935 Act	**N. Srinivasan**: "close copy of the 1935 Act"; **P.R. Deshmukh**: "1935 Act with only adult franchise added"	**Ambedkar**: India already ran under the 1935 Act, so retaining its administrative machinery was practical; democracy's soul, adult franchise and fundamental rights were new
3 Un-Indian or anti-Indian	**K. Hanumanthaiya**: "music of an English band" not Veena or Sitar; **Lokanath Misra**: "slavish imitation of the West"	**Granville Austin**: "absurd"; Indianness is not fixed; liberty, equality, fraternity are universal and India needed them for a secular democratic plural state
4 Un-Gandhian	Gandhi wanted village-based decentralised self-reliance; **Hanumanthaiya**: "the kind of Constitution Mahatma Gandhi did not want"; **T. Prakasam** blamed Ambedkar's distance from Gandhian politics	**Art. 40** (village panchayats) and later the **73rd and 74th Amendments**; Ambedkar: villages were "dens of darkness", empowering them without social reform would empower local elites
5 Elephantine size	**Jennings**: "too long and complicated"; **H.V. Kamath**: the Assembly's emblem was an elephant, so an "elephantine constitution"	Diversity needed detailed provisions on minorities, states and Centre-State relations; one Constitution for Union and States; detail reduced ambiguity and litigation
6 Paradise of the lawyers	**Jennings**: "lawyer's paradise"; **H.K. Maheswari**: Indians would become more litigious	A Constitution is a legal document, so precision was unavoidable; needed to protect rights and federalism

MY NOTES

Charge	The critics said	The defence
7 Lacks theoretical consistency	Mixes liberal ideals (liberty, equality) with traditional concerns (cow protection, prohibition)	**Hanna Lerner**: deferral, ambiguity and non-justiciability managed divisive issues (UCC, prohibition); inconsistency reflected plurality and let the Constitution evolve
8 Ambedkar's warnings	His own: political democracy cannot last without **social and economic democracy**; "era of contradictions" (political equality with socio-economic inequality); beware **hero-worship**	He stressed **constitutional morality and methods**, not mass protests or blind faith in leaders

ALSO IN THE HANDOUT

- It is a very comprehensive, elaborate and detailed document.
- These rights are justiciable, empowering citizens to seek judicial redress, and remain vital in upholding liberty, equality, and the rule of law.
- These mechanisms insulate the judiciary from political pressures, enabling it to act as a neutral arbiter and upholder of constitutional supremacy.
- Yet, critics both within and outside the Assembly argued that it was a borrowed, bulky, and excessively legalistic document, lacking originality or indigenous character. While such criticisms hold some ground, the framers justified their choices in light of India's diversity, historical context, and governance needs.
- A Borrowed Constitution A major criticism has been that the Indian Constitution is a "bag of borrowings", as it drew heavily from other constitutions and global experiences. Critics argued that this made it unoriginal and derivative rather than rooted in India's traditions. Constitutional experts like Sir Ivor Jennings described it as a "patchwork" and even went as far as to call it a "lawyer's paradise." Similarly, many members of the Constituent Assembly themselves worried that it lacked novelty.
- A Carbon Copy of the 1935 Act Another frequent criticism is that the Constitution is simply a continuation of the Government of India Act, 1935. Large portions dealing with administration, federal structure, and bureaucracy were retained, giving the impression of colonial continuity.
- Ambedkar, however, justified this borrowing. He argued that since India was already functioning under the 1935 Act, and the machinery was familiar, it was practical to retain its administrative provisions.

MY NOTES

- Gandhi envisioned a polity rooted in villages, decentralisation, and self-reliance, but the Constitution gave primacy to a centralised parliamentary democracy.
- Elephantine Size The Indian Constitution is often criticised for being excessively bulky.
- Detailed drafting reduced ambiguities, prevented litigation, and ensured clarity in governance.
- Paradise of the Lawyers Because of the dominance of legal experts in the Constituent Assembly, the Constitution is sometimes described as overly legalistic and complex, filled with technical jargon.
- Maheswari worried it would make Indians “more litigious” and less inclined towards truth and non-violence.
- Complex provisions were necessary to safeguard rights, balance federalism, and ensure clarity in judicial interpretation.
- Lacks Theoretical Consistency The Constitution has also been criticised for lacking coherence.
- It reflected India’s plural society and allowed space for consensus. By leaving some questions open-ended, the framers ensured the Constitution could evolve with changing times.
- Ambedkar himself expressed concerns about the Constitution’s future.
- His warnings remain relevant in assessing whether India has lived up to the constitutional spirit.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 4, SALIENT FEATURES OF THE CONSTITUTION

- The 42nd Amendment (1976) is called the 'Mini-Constitution'
- The 7th, 42nd, 44th, 73rd, 74th, 97th and 101st Amendments changed many original features
- No other Constitution has so many Articles and Schedules. The American Constitution originally had 7 Articles, Australian 128, Chinese 138 and Canadian 147.
- Part VII was deleted by the 7th Amendment (1956). Parts IVA and XIVA came by the 42nd, IXA by the 74th and IXB by the 97th
- Part IX by the 73rd
- Art. 370 special status of Jammu and Kashmir ended in 2019
- The Reorganisation Act 2019 made two Union territories, Jammu and Kashmir, and Ladakh
- Ambedkar said the Constitution was framed after 'ransacking all the known Constitutions'. Its structural part is from the 1935 Act, the philosophical part (FR, DPSP) from the US and Ireland, the political part from Britain.

MY NOTES

- Art. 1 'Union of States' means the federation is not the result of an agreement among States and no State can secede. Other labels: Morris Jones 'bargaining federalism', Granville Austin 'co-operative federalism', Jennings 'centralising tendency'.
- Indian judicial review is narrower than the US because Art. 21 says 'procedure established by law', not 'due process'. So the framers blended parliamentary sovereignty with judicial supremacy.
- Judges' independence: expenses charged on the Consolidated Fund, no discussion of their conduct in legislatures, ban on practice after retirement, and power to punish contempt.
- Fundamental Rights can be suspended in a National Emergency except Arts. 20 and 21. Emergency types: Art. 352 (war, external aggression or armed rebellion), Art. 356 and 365, and Art. 360.
- Other features LK adds: independent bodies (Election Commission, CAG, UPSC, State PSCs), three-tier government (73rd and 74th, 1992), and co-operative societies (97th, 2011: Art. 19 right, Art. 43B, Part IXB).
- Lakshmikanth differs:
  - He lists 17 salient features, the handout 12
  - Use the handout's 12 for the class. LK says the voting age fell in 1989 by the 61st Act of 1988
  - The handout says 1988. Quote the 61st Amendment, 1988

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

How many Articles, Parts and Schedules at adoption and today (handout)?	395, 22, 8 at adoption; 470, 25, 12 today.
Which Parts and Schedules were added by amendment?	Parts IVA, IXA, IXB, XIVA; Schedules 9, 10, 11, 12. Part VII was deleted.
Define effective majority.	More than 50% of total membership minus vacancies.
Define absolute majority.	More than 50% of the total strength of the House (≥ 272 in Lok Sabha for government).
Special Majority Type I?	Majority of total membership of each House plus two-thirds present and voting (amendment, judges, CAG, CEC, SEC, Emergency approval).

Special Majority Type III?	Two-thirds present and voting in Rajya Sabha only: Art. 312 and Art. 249.
What happened to the Right to Property?	Art. 31 removed by the 44th Amendment (1978); now a legal right under Art. 300-A (Part XII).
What did Hanumanthaiya say about the Constitution?	"We wanted the music of Veena or Sitar, but here we have the music of an English band."
What was Ambedkar's reply to the "carbon copy" charge?	India already ran under the 1935 Act, so its machinery was practical to retain; democracy's soul, adult franchise and fundamental rights were new.
Ambedkar's warning about democracy?	Political democracy cannot last without social and economic democracy; an "era of contradictions"; avoid hero-worship.
Mains 2016: Did the Government of India Act, 1935 lay down a federal constitution?	Intro: Note that the handout names the 1935 Act as a major influence and a source of the federal scheme, and that critics called the Constitution a "carbon copy" of it Body: Sources chapter lists "Federal scheme" from the 1935 Act; Indian federal features: dual polity, division of powers, written Constitution, independent judiciary, bicameralism; the Constitution tilts to the Centre (quasi-federal, Wheare); critics Srinivasan and Deshmukh vs Ambedkar's defence that retaining the 1935 machinery was practical. Close: the 1935 Act supplied the federal scheme but the Constitution added adult franchise, fundamental rights and its own Centre-tilted balance. (Built only from the notes; the handout does not discuss the 1935 Act's federal design in detail.)

Trap 1 · Article count mismatch

The handout says 470 Articles under Feature 1 but 'now over 450' in the Critique. *Rule: quote 470 and 25 Parts and 12 Schedules; note the mismatch.*

MY NOTES

Trap 2 · Majority look-alikes

Art. 352 appears twice (disapproval is Simple, approval is Special I). The Deputy Chairman of Rajya Sabha is Art. 89 (Simple, election) and Art. 90 (Effective, removal). Impeachment of the President (Art. 61) is Special Type II. *Rule: Simple = present and voting; Effective = minus vacancies; Special II = two-thirds of all, only for the President.*

Trap 3 · Amendment and date pairs

Fundamental Duties came in 1976 (42nd, 10 duties, Part IVA) and the 11th in 2002 (86th, ages 6 to 14). Right to Property left Part III in 1978 (44th) for Art. 300-A. Voting age fell to 18 by the 61st (1988). *Rule: pair each change with its Amendment number and year.*

Trap 4 · Federal and separation labels

The handout calls India 'quasi-federal' (Wheare), a Union of States whose States cannot secede; separation of powers is functional, not rigid. Single citizenship is the contrast with the US. *Rule: federal with a strong Centre, never purely federal or purely unitary.*

QUICK QUIZ

Q1. Which Amendment lowered the voting age from 21 to 18?

1. 42nd
2. 44th
3. 61st
4. 86th

Q2. Impeachment of the President (Art. 61) needs which majority, per the handout?

1. Simple majority
2. Special Majority Type II: two-thirds of the total membership of each House
3. Two-thirds of Rajya Sabha present and voting
4. Effective majority

Q3. Who described India's system as "quasi-federal"?

1. Granville Austin
2. Ivor Jennings
3. K.C. Wheare
4. Montesquieu

Q4. Which Article creates new All-India Services and needs Special Majority Type III?

1. Article 249
2. Article 312
3. Article 352
4. Article 368

Q5. Fundamental Duties are inspired by the Constitution of which country?

1. USA
2. Ireland
3. USSR
4. Canada

Q6. PYQ 2023: Which one of the following statements best reflects the Chief purpose of the 'Constitution' of a country? [UPSC CSE Pre 2023]

1. It determines the objective for the making of necessary laws.
2. It enables the creation of political offices and a government.
3. It defines and limits the powers of government.
4. It secures social justice, social equality and social security.

MY NOTES

Q7. PYQ 2023: Consider the following statements in respect of the Constitution Day: Statement-I: The Constitution Day is celebrated on 26th November every year to promote constitutional values among citizens. Statement-II: On 26th November, 1949, the Constituent Assembly of India set up a Drafting Committee under the Chairmanship of Dr. B. R. Ambedkar to prepare a Draft Constitution of India. Which one of the following is correct in respect of the above statements? [UPSC CSE Pre 2023]

1. Both Statement-I and Statement-II are correct and Statement-I is the correct explanation for Statement-I
2. Both Statement-I and Statement-II are correct and Statement-II is not the correct explanation for Statement-I
3. Statement-I is correct but Statement-II is incorrect
4. Statement-I is incorrect but Statement-II is correct

Q8. PYQ 2021: Which one of the following factors constitutes the best safeguard of liberty in a liberal democracy? [UPSC CSE Pre 2021]

1. A committed judiciary
2. Centralization of powers
3. Elected government
4. Separation of powers

Q9. PYQ 2021: With reference to India, consider the following statements:
1. There is only one citizenship and one domicile.
2. A Citizen by birth only can become the Head of State.
3. A foreigner once granted the citizenship cannot be deprived of it under any circumstance. Which of the statements given above is/are correct? [UPSC CSE Pre 2021]

1. 1 only
2. 2 only
3. 1 and 3
4. 2 and 3

Q10. PYQ 2021: Constitutional government means [UPSC CSE Pre 2021]

1. A representative government of a nation with federal structure
2. A government whose head enjoys nominal powers
3. A government whose Head enjoys real powers
4. A government limited by the terms of the constitution

Q11. PYQ 2020: A constitutional government by definition is a [UPSC CSE Pre 2020]

1. government by legislature
2. popular government
3. multi-party government
4. limited government

Q12. PYQ 1996: Who gave the idea of a Constituent Assembly firstly for the formation of Constitution for India? [UPSC CSE Pre 1996]

1. Swaraj Party in 1934
2. Congress Party in 1936
3. Muslim League in 1942
4. All Parties Conference in 1946

MY NOTES

Q13. PYQ 1993: Which of the following statement(s) is/are true in relation to Constituent Assembly? [UPSC CSE Pre 1993]
1. Assembly was based on adult suffrage.
2. The assembly was a result of direct election.
3. Assembly was a multi-party body.
4. Assembly worked through various committees. Choose the correct answer by using the code given below:

1. 1 and 2 only
2. 2 and 3 only
3. 3 and 4 only
4. 1, 2, 3 and 4

Q14. PYQ 1993: Which of the following characteristics is common between the Federal system of India and America? [UPSC CSE Pre 1993]

1. A Single Citizenship
2. Three lists in the Constitution
3. Dual Judicial System
4. A Federal Supreme Court for Interpretation of the Constitution

Q15. PYQ 2009: Consider the following statements: [UPSC CSE Pre 2009]
1. The discussions in the Third Round Table Conference eventually led to the passing of the Government of India Act, 1935.
2. The Government of India Act, 1935 provided for the establishment of an All-India Federation to be based on a Union of the Provinces of British India and the Princely States. Which of the statement(s) given above is/are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Answers: Q1 c, Q2 b, Q3 c, Q4 b, Q5 c, Q6 c, Q7 c, Q8 d, Q9 a, Q10 d, Q11 d, Q12 a, Q13 c, Q14 d, Q15 c

MY NOTES

03 Sources of the Constitution

CHAPTER 3 · HANDOUT PAGES 24-25

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

EXAM LENS

Prelims hooks

- match each feature with its source: DPSP (Ireland), Fundamental Duties (USSR), Concurrent List (Australia), procedure established by law (Japan), amendment procedure (South Africa), emergency suspension of rights (Weimar), residuary powers (Canada).
- Handout stresses: Handout gives the table Source / Country, Features Adapted for 11 sources (Whole chapter)
- Handout stresses: The Government of India Act, 1935 is listed as a source (federal scheme, Governor, PSCs, judiciary, emergency, administrative details, SC advisory jurisdiction) (GoI Act 1935 row)

Mains hooks

- borrowed versus adapted (see Ch 2)
- which borrowed features fit India's federal and parliamentary design.

Ten countries and one Act gave the parts; the framers fitted them to India rather than copying them whole.

IN SIMPLE WORDS

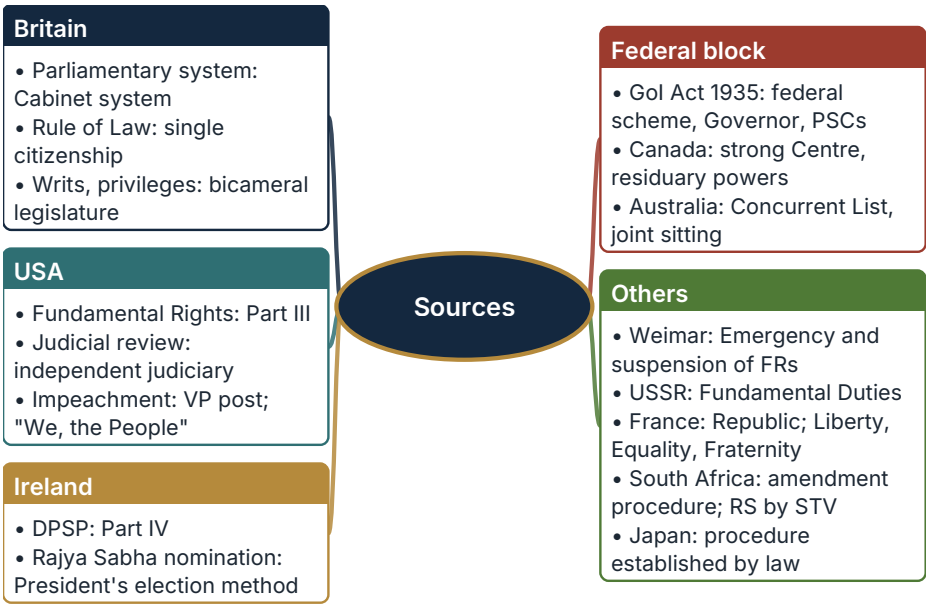
- The Constitution is **borrowed but adapted**. The handout lists **11 sources**: the Government of India Act 1935 and ten countries.
- Easy groups:
  - **rights and courts = USA**
  - **government machinery = Britain**
  - **DPSP = Ireland** and **Duties = USSR**
  - **federal mix = Canada + Australia + the 1935 Act**
- Single-feature countries: **Weimar** (Emergency and suspension of rights), **South Africa** (amendment procedure, Rajya Sabha by STV), **Japan** (procedure established by law), **France** (Republic; Liberty, Equality, Fraternity).

MY NOTES

- Ask 'who gave this?' first, then check the trap list: some features look alike but come from different places.

Key term	In plain words
Government of India Act, 1935	Gave the federal scheme, Governor, Public Service Commissions, judiciary, emergency provisions, administrative details and the SC's advisory jurisdiction (Sec. 213).
Prerogative Writs	From Britain, along with parliamentary privileges and the bicameral legislature.
Residuary powers	Powers not listed anywhere; vested in the Centre, as in Canada.
Concurrent List	The shared list, taken from the Australian Constitution.
Joint sitting	Meeting of both Houses of Parliament together; from Australia.
Weimar Constitution	Germany's constitution; source for suspension of Fundamental Rights during Emergency.
Single Transferable Vote	The method for electing Rajya Sabha members, from South Africa.
Procedure established by law	The concept India took from the Japanese Constitution.

MEMORY MAP: SOURCES OF THE CONSTITUTION



MY NOTES

MNEMONIC · SOURCES OF THE CONSTITUTION (1 OF 2)

F A B R I C

- **F** French: Republic; Liberty, Equality, Fraternity
- **A** Act of 1935: Government of India Act, 1935
- **B** British: parliamentary system, rule of law, cabinet
- **R** Rajya Sabha election by STV and amendment procedure: South African
- **I** Irish: DPSP, Rajya Sabha nominations, election of President
- **C** Concurrent List, trade freedom, joint sitting: Australian

The Constitution is a FABRIC stitched from borrowed threads; six of the eleven sources here. Order is rearranged so the initials spell FABRIC. (Memory aid, not from the handout.)

MNEMONIC · SOURCES OF THE CONSTITUTION (2 OF 2)

D R A P E

- **D** Duties, Fundamental: Soviet (USSR) Constitution
- **R** Residuary powers, strong Centre, Governors: Canadian
- **A** American: Fundamental Rights, judicial review
- **P** Procedure established by law: Japanese
- **E** Emergency suspension of FRs: German (Weimar)

The borrowed FABRIC was DRAPED over India: the other five sources, so all eleven are covered between the two words. Order is rearranged so the initials spell DRAPE. (Memory aid, not from the handout.)

MNEMONIC · WHAT CANADA GAVE

C A P

- **C** Centre: a federation with a strong Centre
- **A** Appointed Governors: State Governors appointed by the Centre
- **P** Powers, residuary: vested in the Centre

Canada put a CAP on the States: all three Canadian features strengthen the Centre. Order is rearranged so the initials spell CAP. (Memory aid, not from the handout.)

MNEMONIC · WHAT AUSTRALIA GAVE

Commerce Flows Jointly

- **C** Concurrent List
- **F** Freedom of trade, commerce and intercourse
- **J** Joint sitting of the two Houses

Commerce flows freely, and the Houses sit jointly: Concurrent List first. Order is free here: no single word fits, so a sentence is used. (Memory aid, not from the handout.)

MY NOTES

SOURCE AND FEATURES ADAPTED

WHO GAVE WHAT (THE HANDOUT'S TABLE, REBUILT)

Source	Features adapted
Government of India Act, 1935	Federal scheme; Office of Governor; Public Service Commissions; Judiciary; Emergency provisions; Administrative details; Advisory jurisdiction of the Supreme Court (Section 213 of the 1935 Act)
British Constitution	Parliamentary system of government; Rule of Law; Single citizenship; Cabinet system; Prerogative Writs; Parliamentary privileges; Bicameral legislature
US Constitution	Fundamental Rights (Part III); Independence of Judiciary; Judicial Review; Impeachment of the President; Removal of judges of Supreme and High Courts; Post of Vice-President; Preamble beginning with "We, the People"
Irish Constitution	Directive Principles of State Policy (Part IV); Nomination of members to Rajya Sabha; Method of election of President
Canadian Constitution	Federation with a strong Centre; Residuary powers vested in the Centre; Appointment of State Governors by Centre
Australian Constitution	Concurrent List; Freedom of trade, commerce and intercourse; Joint sitting of the two Houses of Parliament
Weimar Constitution (Germany)	Emergency provisions relating to suspension of Fundamental Rights
Soviet (USSR) Constitution	Fundamental Duties (Part IVA); Ideals of social, economic and political justice in Preamble
French Constitution	Republican form of government; Ideals of Liberty, Equality and Fraternity in Preamble
South African Constitution	Procedure for constitutional amendment; Election of Rajya Sabha members by Proportional Representation through Single Transferable Vote
Japanese Constitution	Concept of "Procedure established by law"

- The stray list numbers from the PDF (6, 7, 8...) are dropped
- The wording is unchanged

ALSO IN THE HANDOUT

- Public Service Commissions / 9. Judiciary / 10.Emergency provisions / 11. Administrative details 12.Advisory jurisdiction of the Supreme Court (Section 213 of the Government of India Act, 1935)
- Prerogative Writs 10.Parliamentary privileges 11.
- Ideals of Liberty, Equality and Fraternity in Preamble South African Constitution 11. Procedure for constitutional amendment 12.Elec-

MY NOTES

tion of Rajya Sabha members by Proportional Representation through Single Transferable Vote Japanese Constitution 8.

MEMORY TRICKS FOR THE TABLE

- **Memory aid (Countries in order):**
  - **G**oI Act 1935, **B**ritain, **U**SA, **I**reland, **C**anada, **A**ustralia, **W**eimar, **S**oviet, **F**rance, **S**outh Africa, **J**apan: "**G**ood **B**oys **U**sually **I**gnore **C**areless **A**unts' **W**arnings
  - **S**ome **F**riends **S**till **J**oke."
- **Shortcut: Feature-to-country shortcut. Rights and courts = USA** (FR, judicial review, impeachment, VP). **Government machinery = Britain** (parliament, cabinet, Rule of Law, writs). **Ideals of the State = Ireland** (DPSP) **and USSR** (duties). **Federal mix = Canada + Australia + GoI Act 1935.**

FEDERAL BLOCK (WHO GAVE WHAT)

- **Canada:**
  - Strong Centre
  - Residuary powers with the Centre
  - Governors appointed by the Centre
- **Australia:**
  - Concurrent List
  - Freedom of trade, commerce and intercourse
  - Joint sitting of both Houses
- **GoI Act 1935:**
  - Federal scheme
  - Governor's office
  - Public Service Commissions
  - Judiciary
  - Emergency provisions
- **Memory aid (Ireland's three): D**PSP, **N**omination of Rajya Sabha members, **E**lection method of the President: "**D**ublin **N**ever **E**nds".
- **Memory aid (Single-feature countries):**
  - **W**eimar = suspension of FRs in Emergency
  - **S**outh Africa = amendment procedure and RS election by STV
  - **J**apan = procedure established by law

> **HANDOUT ALERT**
> Handout alert: **Single citizenship** is credited to Britain here, while the Salient Features chapter describes it as a contrast with US dual citizenship. Do not mix them: for "source", answer Britain; for "model contrast", answer US.

MY NOTES

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 4, SALIENT FEATURES OF THE CONSTITUTION (TABLE 4.4)

- Ambedkar proudly said the Constitution was framed after 'ransacking all the known Constitutions of the World'.
- LK splits the sources by function: structure from the 1935 Act, philosophy (FR from the US, DPSP from Ireland) and politics (cabinet government, executive-legislature relations) from Britain.
- The 1935 Act is the most profound influence
- More than half the provisions are identical or close to it, and about 250 provisions were included
- The 1935 Act gave the Federal Scheme, Judiciary, Governors, Emergency Powers, Public Service Commissions and most administrative details.
- Ambedkar's reply to the carbon-copy charge:
  - Nothing to be ashamed of in borrowing, no plagiarism, nobody holds patent rights in the fundamental ideas of a Constitution
  - He regretted only that the borrowed 1935 provisions mostly concern administrative detail
- The justice ideal in the Preamble came from the Russian Revolution (1917) and liberty, equality and fraternity from the French Revolution (1789-1799).
- India's judicial review is narrower than that of the US because 'procedure established by law' (Japan) is used instead of American 'due process of law'.
- Lakshmikanth differs slightly:
  - His Britain row also lists legislative procedure, which the handout row does not. Use the handout's list for the class
  - Add this only if your teacher mentions it

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Who gave India the parliamentary system and the cabinet system?	Britain.
Who gave Fundamental Rights and judicial review?	The USA.
Who gave DPSP, RS nomination and the President's election method?	Ireland.
What did Canada give?	Federation with a strong Centre; residuary powers with the Centre; Governors appointed by the Centre.

What did Australia give?	Concurrent List; freedom of trade, commerce and inter-course; joint sitting.
What did Weimar give?	Emergency provisions on sus-pension of Fundamental Rights.
What did South Africa give?	Amendment procedure; election of Rajya Sabha members by pro-portional representation through the single transferable vote.
What did Japan give?	The concept of "procedure established by law".
What did France give?	Republican form of government; ideals of Liberty, Equality and Fraternity.
Which Section of the 1935 Act gave the SC's advisory jurisdiction?	Section 213.

Trap 1 · Single citizenship
The table credits single citizenship to Britain; Chapter 2 contrasts it with US dual citizenship. *Rule: for 'source' answer Britain; for 'model contrast' answer the US.*

Trap 2 · DPSP and Duties
DPSP (Part IV) is Irish, Fundamental Duties (Part IVA) are Soviet; Funda-mental Rights are American. *Rule: Ireland = Part IV, USSR = Part IVA, USA = Part III.*

Trap 3 · South Africa, Japan and Ireland
South Africa gave the amendment procedure and Rajya Sabha election by STV; Japan gave procedure established by law; Ireland gave Rajya Sabha nomination and the President's election method. *Rule: Rajya Sabha nomination is Ireland, Rajya Sabha election by STV is South Africa.*

Trap 4 · Canada versus Australia
Canada gave the strong Centre, residuary powers and Governors appointed by the Centre; Australia gave the Concurrent List, freedom of trade and the joint sitting. *Rule: residuary = Canada, concurrent = Australia; the 1935 Act is an Act, not a country.*

QUICK QUIZ

Q1. Which country gave India the Directive Principles of State Policy?

1. USA
2. Ireland
3. USSR
4. France

Q2. The Concurrent List was adapted from which Constitution?

1. Canadian
2. British
3. Australian
4. Weimar

Q3. "Procedure established by law" comes from which Constitution?

1. Japanese
2. American
3. South African
4. French

MY NOTES

Q4. Fundamental Duties (Part IVA) were adapted from?

1. Ireland
2. USSR
3. Weimar
4. Canada

Q5. Residuary powers with the Centre came from?

1. Australian
2. Canadian
3. Irish
4. British

Answers: Q1 b, Q2 c, Q3 a, Q4 b, Q5 b

MY NOTES

CHAPTER 4 · HANDOUT PAGES 22-37

04 The Schedules of the Constitution

HIGH PRIORITY Mains PYQs quoted: **2013**

Prelims PYQs: **2014, 2015, 2018, 2019, 2022, 2023**

EXAM LENS

Prelims hooks

- which Schedule deals with what (anti-defection, Scheduled Areas, languages, panchayats)
- Fifth versus Sixth
- Ninth Schedule validity
- 22 languages
- 29 and 18 subjects
- first-amendment era of the Ninth Schedule.
- Handout stresses: Each Schedule is presented as "Deals with" plus "Articles associated" (All Schedules)
- Handout stresses: Ninth Schedule: Waman Rao (1981) and I.R. Coelho (2007) settle that post-1973 insertions face basic-structure review (Ninth Schedule)
- Handout stresses: Fifth Schedule applies to 10 States; Tribes Advisory Council up to 20 members (Fifth Schedule)
- Handout stresses: Tenth Schedule rules and 91st Amendment (2003): 15% cap on ministers, merger only by two-thirds (Tenth Schedule)
- Handout stresses: Seven Prelims PYQs quoted (2014, 2015, 2018, 2019 x2, 2022, 2023) (PYQ section)

Mains hooks

- Fifth Schedule and Left Wing extremism (2013 asks the impact of non-implementation)
- anti-defection merits and flaws
- Ninth Schedule and judicial review.

Schedules keep the Articles lean: detailed lists, oaths and arrangements live here and can change without rewriting the main text.

MY NOTES

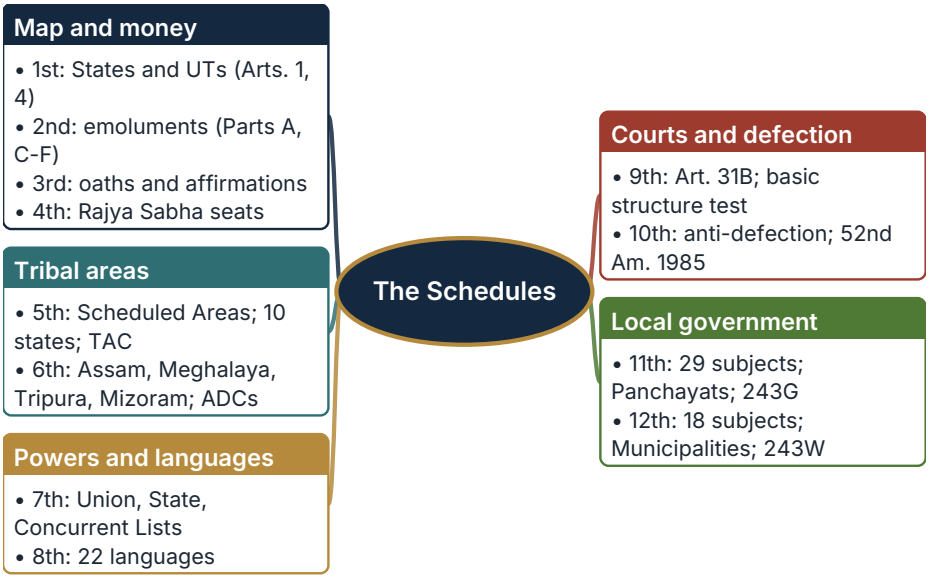
IN SIMPLE WORDS

- The **Schedules** are lists and tables attached to the Constitution, so the Articles stay short. The long lists (oaths, languages, who legislates on what) live here.
- There were **8** in 1950. Four were added later (**9th, 10th, 11th, 12th**), so there are **12** today.
- Four carry most exam questions: the **Fifth and Sixth** (tribal areas), the **Ninth** (protected laws, Art. 31B) and the **Tenth** (anti-defection).
- The **Ninth Schedule** is not absolute. Laws placed there after **24 April 1973** can be struck down if they damage the basic structure (Waman Rao 1981, Coelho 2007).
- The **Eleventh** and **Twelfth** list the subjects of Panchayats (**29**) and Municipalities (**18**)
- The **Eighth** recognises **22** languages but declares no national language

Key term	In plain words
Schedule	An annexed list or table that supports an Article; it adds detail without lengthening the main text.
Scheduled Area	An area declared under the Fifth Schedule for the administration and control of Scheduled Tribes.
Tribes Advisory Council (TAC)	A body of up to 20 members in each State with Scheduled Areas; it advises on tribal welfare (Fifth Schedule).
Autonomous District Council	An elected council with legislative, executive, limited judicial and fiscal powers in Assam, Meghalaya, Tripura and Mizoram (Sixth Schedule).
Art. 31B	The Article that places laws in the Ninth Schedule so they are not deemed void for violating Fundamental Rights.
Defection	Giving up party membership or defying the whip; the ground for disqualification under the Tenth Schedule.
Merger	The only exception left in the Tenth Schedule: two-thirds of a party agree to merge. The one-third 'split' was deleted in 2003.
Concurrent List	The list in the Seventh Schedule on which both the Union and the States can legislate (52 entries).

MY NOTES

MEMORY MAP: THE SCHEDULES OF THE CONSTITUTION



MNEMONIC · FIFTH SCHEDULE STATES (1 OF 2)

Ancient Clans Guard Hills, Jungles

A Andhra Pradesh | C Chhattisgarh | G Gujarat | H Himachal Pradesh | J Jharkhand

Ancient tribal clans guarding hills and jungles: the first five of the ten Fifth Schedule States. Order is free here: no single word fits, so a sentence is used. (Memory aid, not from the handout.)

MNEMONIC · FIFTH SCHEDULE STATES (2 OF 2)

Many Mountain Outposts Remain Tribal

M Madhya Pradesh | M Maharashtra | O Odisha | R Rajasthan | T Telangana

The remaining five of the ten States, in handout order. Order is free here: no single word fits, so a sentence is used. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · LANGUAGES ADDED TO THE EIGHTH SCHEDULE

Sweet Kind Mothers Nurture Baby Daughters, Making Smiles

- **S** Sindhi (1967)
- **K** Konkani (1992)
- **M** Manipuri (1992)
- **N** Nepali (1992)
- **B** Bodo (2003)
- **D** Dogri (2003)
- **M** Maithili (2003)
- **S** Santhali (2003)

Mothers nurture mother tongues: 1967 Sindhi, 1992 Konkani Manipuri Nepali, 2003 Bodo Dogri Maithili Santhali. (Memory aid, not from the handout.)

MNEMONIC · NINTH SCHEDULE COURT JOURNEY

Shield Stands, Gradually Kicked, Weakened, Cracked

- **S** Shankari Prasad (1951)
- **S** Sajjan Singh (1965)
- **G** Golaknath (1967)
- **K** Kesavananda Bharati (1973)
- **W** Waman Rao (1981)
- **C** Coelho, I.R. (2007)

The Ninth Schedule is a shield: it stands in the early cases, then Kesavananda, Waman Rao and Coelho crack it. (Memory aid, not from the handout.)

MNEMONIC · TENTH SCHEDULE: GROUNDS FOR DISQUALIFICATION

G A I N

- **G** Gives up party membership voluntarily
- **A** Acts against the party whip: votes or abstains without permission and is not condoned within 15 days
- **I** Independent member who joins a party after the election
- **N** Nominated member who joins a party after six months of taking the seat

Defectors chase personal GAIN, so the law disqualifies them on these four grounds. Order is rearranged so the initials spell GAIN. (Memory aid, not from the handout.)

WHAT A SCHEDULE IS

- Schedules are **annexed lists and tables** that support the Articles. They carry operational detail (lists of subjects, forms of oaths, languages, administrative arrangements) so that the Articles stay lean, the detail can be updated by amendment, and Parliament and governments have ready references (who legislates on what, how many Rajya Sabha seats per State, which areas are Scheduled Areas).

SCHEDULES OVER TIME

- **1950**: 8 Schedules

MY NOTES

- **Later**:
  - Four added: the **9th, 10th, 11th, 12th**
  - Several existing ones expanded or modified
- **Today**:
  - **12 Schedules**
  - Each links explicitly to the Articles it supports
- Together they support federalism, decentralisation, social justice, linguistic policy and political integrity.
- **Memory aid (Twelve in a chain):** **M**ap, **M**oney, **O**ath, **S**eats, **T**ribes, **T**ribes (north-east), **L**ists, **L**anguages, **S**hield, **D**efection, **P**anchayats, **M**unicipalities. Say: "**M**y **M**oney **O**ath **S**eats **T**ribes **T**ake **L**ists, **L**anguages **S**hield **D**efectors, **P**anchayats **M**unicipalities."

ALL TWELVE AT A GLANCE

Schedule	Deals with	Articles
1st	Names and territory of States and Union Territories	1, 4
2nd	Emoluments, allowances, privileges of high offices	59, 65, 75, 97, 125, 148, 158, 164, 186, 221
3rd	Forms of oaths or affirmations	75, 84, 99, 124, 146, 173, 188, 219
4th	Allocation of Rajya Sabha seats to States and UTs	4, 80
5th	Administration and control of Scheduled Areas and Scheduled Tribes	244
6th	Administration of tribal areas in Assam, Meghalaya, Tripura, Mizoram	244, 275
7th	Division of powers: Union, State, Concurrent Lists	246
8th	Languages recognised by the Constitution	343, 351
9th	Protects listed laws from judicial scrutiny on the ground of violating Fundamental Rights	31B
10th	Disqualification of legislators on the ground of defection	102, 191
11th	Powers, authority and responsibilities of Panchayats	243G
12th	Powers, authority and responsibilities of Municipalities	243W

MY NOTES

ALSO IN THE HANDOUT

- Therefore, a Schedule is an explanatory note or addendum—an attachment placed at the end of the Constitution where extended detail is needed. Each Schedule explicitly links to the Articles it supports, so readers know exactly which constitutional provisions it elaborates.
- It lists the names of all States and Union Territories and records their territorial extent, thereby giving constitutional recognition to each unit of the Union. It does not confer powers
- Instead, it answers two foundational questions: who the constituent units are and what territory they constitutionally occupy at a given time. Its design is deliberately dynamic
- This mechanism lets India's political geography evolve without reopening the Constitution's core text each time a boundary shifts or a name changes.
- This flexibility allows the map of protected tribal areas to evolve with administrative changes.
- These changes may add new provisions, modify existing ones, or remove them.

FIRST TO FOURTH SCHEDULES

FIRST SCHEDULE: HOW THE MAP CHANGES

- **Parliament**:
  - Admits or establishes new States
  - Alters areas, boundaries or names (Arts. 2-4)
- **On the President's recommendation**: After seeking the concerned State legislature's views
- **Article 4**: Done by **ordinary law**, not treated as an amendment under Art. 368
- The First Schedule is the "ledger of India's political map". It confers no powers: it says who the constituent units are and what territory they hold.

SECOND SCHEDULE: WHO IS COVERED

Part	Covers
A	President of India and Governors (emoluments, allowances, residences)
B	**Omitted** by the 26th Amendment (1971); earlier privy purses of former rulers
C	Presiding Officers: Speaker/Deputy Speaker of Lok Sabha, Chairman/ Deputy Chairman of Rajya Sabha, and State counterparts
D	Judges of the Supreme Court and High Courts (salaries, leave, pension)

MY NOTES

Part	Covers
E	Comptroller and Auditor-General of India
F	Union and State Public Service Commissions (members' pay and service conditions)

- It guarantees financial security and dignity of office (a pillar of independence), and Parliament can revise it by **ordinary law**.
- **Memory aid (Second Schedule parts): A** President and Governors, (**B** omitted), **C** Presiding officers, **D** Judges, **E** CAG, **F** PSCs: "**A**ny **C**ourt **D**eserves **E**ven **F**ees".

HANDOUT ALERT

Third Schedule: Oaths of **Union and State Ministers, candidates, MPs, MLAs/MLCs, SC and HC judges and the CAG** are here: an oath of office and, where needed, an **oath of secrecy** (ministers). The **President's and Governors' oaths are NOT here**: they are in **Art. 60** and **Art. 159**. The **Fourth Schedule** fixes the **elective** Rajya Sabha seats for each State and UT; the **12 nominated seats** (appointed by the President) are outside its scope. Reorganisation laws under Arts. 2 or 3 may revise the First and Fourth Schedules by ordinary law (Art. 4), not as amendments under Art. 368.

ALSO IN THE HANDOUT

- Instead of scattering salary, allowance, leave, pension and service-condition details across Articles, the Constitution groups them here and then cross-references the relevant Articles. Functionally, it serves two purposes: it guarantees financial security and dignity of office (a key pillar of independence and neutrality), and it provides a stable, update-friendly container that Parliament can revise by ordinary law when pay structures are modernized.
- Instead of scattering the full wording across multiple articles, these forms are placed in one schedule to promote uniformity, solemnity, and legal certainty. Broadly, the Schedule provides (i) an oath or affirmation of office — in which the person promises to faithfully discharge their duties under the Constitution and laws — and, where applicable, (ii) an oath or affirmation of secrecy, which binds certain office-holders (like ministers) not to disclose official matters except as required for duty.
- A key distinguishing feature from the 5th Schedule is financial autonomy.

MY NOTES

FIFTH AND SIXTH SCHEDULES (TRIBAL AREAS)

FIFTH AGAINST SIXTH

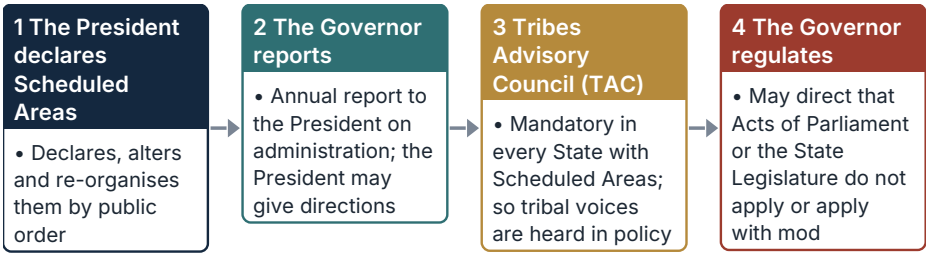
- **Fifth Schedule (Art. 244):**
  - Scheduled Areas and Scheduled Tribes in most states **outside Assam, Meghalaya, Tripura, Mizoram**
  - Works through the **Governor's regulations and the Tribes Advisory Council**
  - Applies to **10 states**
- **Sixth Schedule (Arts. 244(2), 275):**
  - Tribal areas of **Assam, Meghalaya, Tripura, Mizoram**
  - Elected **Autonomous District Councils** (and Regional Councils) with legislative, executive, limited judicial and **fiscal** powers
  - **grants-in-aid under Art. 275(1)**
- **Memory aid (Fifth Schedule's 10 states): A**ndhra Pradesh, **C**hhattisgarh, **G**ujarat, **H**imachal Pradesh, **J**harkhand, **M**adhya Pradesh, **M**aharashtra, **O**disha, **R**ajasthan, **T**elangana: "**A C**ool **G**uy **H**elps **J**ust **M**y **M**other **O**ften **R**un **T**ea".
- **Memory aid (Sixth Schedule's 4 states): A**ssam, **M**eghalaya, **T**ripura, **M**izoram: "**A**ll **M**y **T**ribal **M**ates".

FIFTH SCHEDULE: FOUR THINGS IT DOES

FOUR POWERS OF THE FIFTH SCHEDULE

- **1 The President declares Scheduled Areas**: Declares, alters and re-organises them by public order
- **2 The Governor reports**:
  - Annual report to the President on administration
  - The President may give directions
- **3 Tribes Advisory Council (TAC)**:
  - Mandatory in every State with Scheduled Areas
  - So tribal voices are heard in policy
- **4 The Governor regulates**: May direct that Acts of Parliament or the State Legislature do not apply or apply with modification, and make regulations for peace and good government

FOUR POWERS OF THE FIFTH SCHEDULE



MY NOTES

TRIBES ADVISORY COUNCIL AND GOVERNOR'S REGULATIONS

Point	Detail
TAC size	Up to **20 members**; about **three-fourths** from ST members of the State Legislative Assembly; if STs have little or no representation, the Governor nominates; **not less than half** must be ST persons
TAC role	Advises on welfare and advancement of STs, especially matters the Governor refers
Governor's regulations may	(i) prohibit or restrict land transfer by or among STs, (ii) regulate allotment of land to STs, (iii) regulate money-lending to STs
Process	Governor must consult the TAC (where it exists); **every regulation needs the President's assent**

- Parliament can change this Schedule by law at any time, and such a law is **not an amendment under Art. 368**.
- **Shortcut: Prelims shortcut.** Fifth = **Governor + TAC + land protection** (prevents transfer of tribal land to non-tribals; PYQ 2022 and 2019). Sixth = **Councils + taxes + courts** (self-government).
- **Sixth Schedule extras:** Councils can set up village courts and District Council courts for certain civil and criminal matters involving tribal parties, apply customary law, and frame rules of procedure and appellate structures, under the supervision of the **State High Court**. They can levy taxes and fees on land and buildings, entry of goods into markets, animals, vehicles, professions, trade and callings, general services, roads and ferries, and use of water or resources, prepare budgets and keep funds.

ALSO IN THE HANDOUT

- It is the core instrument that lets the Union and the States adopt special safeguards for land, livelihoods, custom, and governance where tribal communities are concentrated.
- [[Additional information]] The Tribes Advisory Council (TAC) is a consultative body meant to keep policy grounded in tribal realities.
- This fiscal space, though limited, underwrites real decision-making power at the local level.
- This asymmetry appears illogical in principle.

SEVENTH SCHEDULE: WHO LEGISLATES ON WHAT

- The Seventh Schedule (Art. 246) distributes subjects between the Union, States and both through three lists: **Union, State and Concurrent**. National matters needing uniformity sit with Parliament
- Local matters with States
- Shared matters in the Concurrent List

MY NOTES

HOW THE LISTS EVOLVED

- **42nd Amendment (1976)**: Education, forests, wildlife, weights and measures moved from the State to the Concurrent List
- **101st Amendment (2016)**: GST: taxation entries reworked for a unified indirect tax
- **Entry counts (this handout)**: Union **97**, State **61**, Concurrent **52** (counts change when entries are deleted, merged or modified)

> **HANDOUT ALERT**
> Handout alert: In **Part 2 (Centre-State Relations)** the handout gives Union **98**, State **59** (earlier 66), Concurrent **52** (up from 47). The Union and State figures differ from the 97 and 61 above. Check your class notes before quoting either.

ALSO IN THE HANDOUT

- The Schedule keeps the federal balance workable:
  - National matters that demand uniformity sit with Parliament
  - Local matters rest with States
  - And shared matters appear in the Concurrent List so both tiers can legislate

EIGHTH SCHEDULE: 22 LANGUAGES

- It recognises languages
- It does **not** declare a national language (India has none). It is read with Arts. 343-351 (official language), especially **Art. 351** (develop Hindi) and Arts. **350A-350B** (linguistic minorities). Inclusion helps visibility: central recruitment exams, translation facilities in Parliament, schemes through the CIIL and Sahitya Akademi

HOW WE REACHED 22

- **1950**: **14** languages: Assamese, Bengali, Gujarati, Hindi, Kannada, Kashmiri, Malayalam, Marathi, Odia, Punjabi, Sanskrit, Tamil, Telugu, Urdu
- **21st Amendment (1967)**: + **Sindhi** → 15
- **71st Amendment (1992)**: + **Konkani, Manipuri (Meitei), Nepali** → 18
- **92nd Amendment (2003)**: + **Bodo, Dogri, Maithili, Santhali** → **22**
- **Memory aid (Additions):**
  - 1967 **S**indhi
  - 1992 **K**onkani, **M**anipuri, **N**epali ("KMN")
  - 2003 **B**odo, **D**ogri, **M**aithili, **S**anthali ("BDMS": "**B**ad **D**ogs **M**aul **S**heep")

MY NOTES

HANDOUT ALERT

What inclusion does not mean: It does **not** make a language the "official language of the Union" (Hindi in Devanagari with English as associate/ working language under the Official Languages Act) and does **not** automatically make it a State's official language (States choose under Art. 345).

NINTH SCHEDULE: THE PROTECTIVE LIST

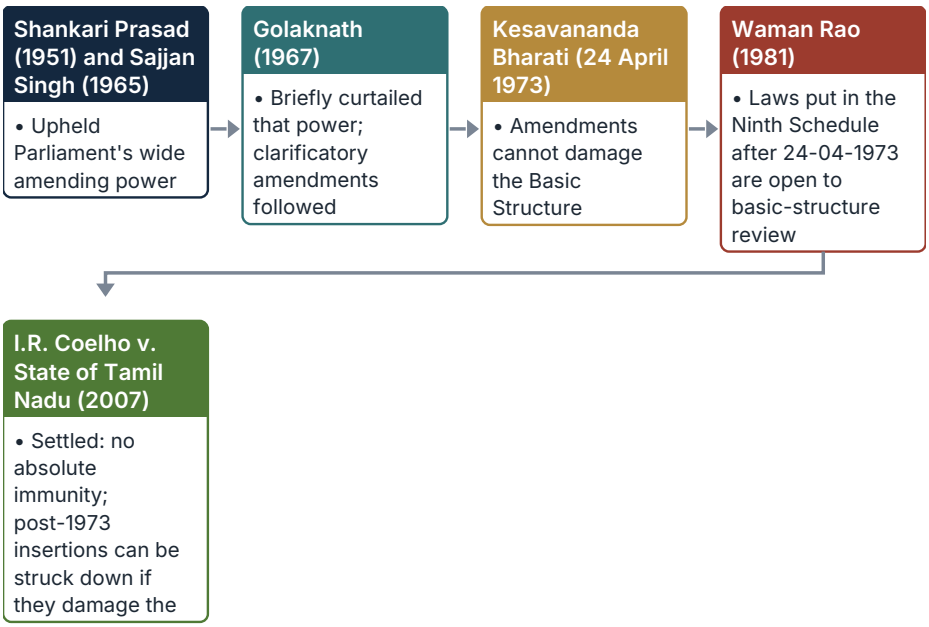
- Art. **31B** puts laws in this Schedule beyond challenge: they are **"not deemed to be void"** for violating Fundamental Rights, retrospectively too. Laws were placed through the **1st Amendment**. Original purpose: protect **agrarian reform** (zamindari abolition, land ceilings). Later additions included tenancy, regulation of industries, reservations and other socio-economic laws. **Only a constitutional amendment under Art. 368** can insert or delete items, unlike ordinary Schedules.

THE COURT'S JOURNEY ON THE NINTH SCHEDULE

- **Shankari Prasad (1951) and Sajjan Singh (1965)**: Upheld Parliament's wide amending power
- **Golaknath (1967)**:
  - Briefly curtailed that power
  - Clarificatory amendments followed
- **Kesavananda Bharati (24 April 1973)**: Amendments cannot damage the **Basic Structure**
- **Waman Rao (1981)**: Laws put in the Ninth Schedule **after 24-04-1973** are open to basic-structure review
- **I.R. Coelho v. State of Tamil Nadu (2007)**:
  - Settled: no absolute immunity
  - Post-1973 insertions can be struck down if they damage the basic structure

MY NOTES

THE COURT'S JOURNEY ON THE NINTH SCHEDULE



- **Memory aid (Case order):** **S**hankari, **S**ajjan, **G**olaknath, **K**esavananda, **W**aman Rao, **C**oelho: "**S**ome **S**ingers **G**et **K**ind **W**ords **C**heaply".
- **Shortcut: Prelims trap.** "A law in the Ninth Schedule cannot be examined by any court" is **wrong**. Parliament can place a law there (PYQ 2018: statement 1 true, statement 2 false). The Schedule was introduced under **Nehru** (1st Amendment; PYQ 2019).

ALSO IN THE HANDOUT

- Article 31B operates with a strong validating clause: any law specified in the Ninth Schedule "shall not be deemed to be void" on the ground that it is inconsistent with any of the Fundamental Rights, and this validation applies retrospectively to past actions under those laws.
- If the court finds that the law, in its effect, damages or destroys the Basic Structure, it can be struck down notwithstanding its presence in the Ninth Schedule.

TENTH SCHEDULE: ANTI-DEFECTION

- Inserted by the **52nd Amendment (1985)**, strengthened by the **91st (2003)**. Applies to Parliament and State legislatures
- It aims to curb instability from opportunistic floor-crossing while keeping party systems intact

MY NOTES

WHO IS DISQUALIFIED, AND WHEN

Member	Disqualified if
Party member	(i) **Voluntarily gives up party membership** (courts: can be inferred from conduct, not only formal resignation) or (ii) **votes or abstains against the party whip** without prior permission and the party does not **condone within 15 days**
Independent member	Joins any political party after the election
Nominated member	Joins a party **after six months** from taking the seat (within six months is allowed)

- **Memory aid (Four triggers):** **G**ives up membership, **W**hip defied, **I**ndependent joins a party, **N**ominated joins after six months. "**G**oing **W**ith **I**ndia's **N**ation".

WHO DECIDES AND HOW COURTS CHECK

- **Complaint**: To the Speaker or Chairman, who decides (once final)
- **Kihoto Hollohan v. Zachillhu (1992)**:
  - Law upheld
  - The Speaker acts as a **tribunal**, so decisions are subject to **judicial review** under Arts. 136, 226, 227, typically after the Speaker decides
- **Time limit**:
  - None in the Schedule
  - The Court insists on a **reasonable period**

ADVANTAGES AND CRITICISMS

Advantages	Criticisms
Stability: fewer opportunistic toppling of governments	**Dissent versus defection**: no clear line; curbs conscience and debate; elevates party boss-ism
Orderly realignment through the merger route	**Retail versus wholesale**: individual defections banned but group moves legitimised (the "split" route is now deleted)
Lower corruption and cost: fewer transaction-driven politics and frequent elections	**Outside the House**: no remedy for expulsion over extra-parliamentary acts; House conduct only
Constitutional status for political parties, for the first time	**Independent versus nominated**: unequal treatment (nominated can join within six months)

MY NOTES

Advantages	Criticisms
	Presiding officer as adjudicator: bias risk (party figure) and lack of judicial training; Speakers Rabi Ray (1991) and Shivraj Patil (1993) questioned it

- **Memory aid (Four advantages): S**tability, **O**rderly merger, **L**ower corruption, **C**onstitutional status for parties.

THE 91ST AMENDMENT ACT, 2003

WHAT IT DID

Provision	Rule
Union ministry cap	Ministers (including PM) not more than **15%** of Lok Sabha strength
State ministry cap	Ministers (including CM) not more than **15%** of the Assembly strength, **but not less than 12**
Ministers barred	A member of either House (Parliament or State) disqualified for defection is **also disqualified from being a minister**
Remunerative posts barred	A defector cannot hold any remunerative political post: office under the Union or a State paid from public revenue, or under a body wholly or partly owned by them paid by that body, **except purely compensatory pay**
Split deleted	The one-third "split" exemption is gone; only the **merger route (two-thirds)** remains

- **Shortcut: Numbers. 15% and 12**: ministers cap and the State floor. **One-third split gone, two-thirds merger stays.**

ALSO IN THE HANDOUT

- Although the Schedule does not prescribe a time limit, the Court has repeatedly stressed that disqualification questions must be decided within a reasonable period, given their bearing on the composition and functioning of the House.
- Orderly Realignment via Merger: It permits democratic reconfiguration of parties through the merger route, providing a legitimate, rule-bound channel for collective shifts rather than clandestine defections. 14.Lower Political Corruption & Costs: Curbing defections reduces transaction-driven politics and non-developmental expenditure on frequent, irregular elections caused by engineered instability.
- Wholesale Defections: The distinction drawn historically between individual and group defections proved irrational—banning retail while legitimising wholesale moves through group mechanisms (the ‘split’ route has since been deleted, but the critique highlights

MY NOTES

the original design flaw and continuing risks via other collective devices).

- Presiding Officer as Adjudicator (Impartiality & Capacity Concerns): a.
- Its core thrust was twofold: (i) close loopholes in the Tenth Schedule that enabled mass defections under the guise of "splits," and (ii) remove office-based inducements (ministerships and other remunerative political posts) that often lay behind defections. It also introduced a numeric cap on the Council of Ministers to discourage oversized ministries used for political accommodation.

ELEVENTH SCHEDULE: 29 SUBJECTS FOR PANCHAYATS

- Inserted by the **73rd Amendment, 1992**
- Read with Part IX (Arts. 243-243O), especially **Art. 243G**, which lets State Legislatures give Panchayats powers for plans and schemes on these subjects. It is **enabling, not self-executing**: real devolution depends on State laws

THE 29 SUBJECTS, GROUPED

Theme	Subjects (handout numbers)
Farm and land	1 Agriculture, including extension; 2 Land improvement, land reforms, land consolidation, soil conservation; 3 Minor irrigation, water management, watershed development; 4 Animal husbandry, dairying, poultry; 5 Fisheries; 6 Social forestry and farm forestry; 7 Minor forest produce
Industry	8 Small scale industries, including food processing; 9 Khadi, village and cottage industries
Infrastructure and living	10 Rural housing; 11 Drinking water; 12 Fuel and fodder; 13 Roads, culverts, bridges, ferries, waterways, other communication; 14 Rural electrification, including distribution; 15 Non-conventional energy sources
Poverty and education	16 Poverty alleviation programme; 17 Education, including primary and secondary schools; 18 Technical training and vocational education; 19 Adult and non-formal education; 20 Libraries; 21 Cultural activities
Market, health and welfare	22 Markets and fairs; 23 Health and sanitation, including hospitals, PHCs, dispensaries; 24 Family welfare; 25 Women and child development; 26 Social welfare, including welfare of the handicapped and mentally retarded; 27 Welfare of weaker sections, especially SCs and STs; 28 Public distribution system; 29 Maintenance of community assets

- **Memory aid (Five groups):** **F**arm (1-7), **I**ndustry (8-9), **I**nfrastructure (10-15), **P**overty and education (16-21), **M**arkets, health and welfare (22-29). Counts **7 + 2 + 6 + 6 + 8 = 29**.

MY NOTES

TWELFTH SCHEDULE: 18 SUBJECTS FOR MUNICIPALITIES

- Inserted by the **74th Amendment, 1992**
- Read with Part IX-A (Arts. 243P-243ZG), especially **Art. 243W**, which lets State Legislatures give Nagar Panchayats, Municipal Councils and Municipal Corporations functions for plans and schemes on urban affairs. Like the Eleventh, it is **enabling**

THE 18 SUBJECTS (HANDOUT NUMBERS 9 TO 26, RENUMBERED 1 TO 18)

Theme	Subjects
Planning and land	1 Urban planning, including town planning; 2 Regulation of land-use and construction of buildings; 3 Planning for economic and social development
Services	4 Roads and bridges; 5 Water supply for domestic, industrial and commercial purposes; 6 Public health, sanitation, conservancy and solid waste management; 7 Fire services
Environment and welfare	8 Urban forestry, protection of the environment, ecological aspects; 9 Safeguarding the interests of weaker sections, including the handicapped and mentally retarded; 10 Slum improvement and upgradation; 11 Urban poverty alleviation
Amenities and culture	12 Provision of urban amenities such as parks, gardens, playgrounds; 13 Promotion of cultural, educational and aesthetic aspects; 14 Burials and burial grounds; cremations, cremation grounds, electric crematoria; 15 Cattle ponds; prevention of cruelty to animals; 16 Vital statistics, including births and deaths; 17 Public amenities: street lighting, parking lots, bus stops, public conveniences; 18 Regulation of slaughterhouses and tanneries

HANDOUT ALERT

Handout alert: The handout numbers the Twelfth Schedule list 9 to 26 (a numbering carried over from the PDF); there are **18 subjects** as stated in the text. The list above is renumbered 1 to 18 with the wording unchanged.

- **Memory aid (11 and 12 together):**
  - Panchayats **29** (73rd Am., Art. 243G, Part IX)
  - Municipalities **18** (74th Am., Art. 243W, Part IX-A). "**29 villages**, **18 towns**": rural is the bigger list

ALSO IN THE HANDOUT

- This institutionalises feedback from tribal representatives on issues like land use, customary practices, economic development, and service delivery.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 4 (TABLE 4.3), CH 86 ANTI-DEFECTION LAW, AND THE ART. 31B PASSAGES OF THE FUNDAMENTAL RIGHTS CHAPTER

- The 52nd Amendment (1985) changed four Articles (101, 102, 190, 191) and added the Tenth Schedule

MY NOTES

- The 91st (2003) deleted the split exemption
- Tenth Schedule exceptions: merger (two-thirds of the party agree), and a presiding officer who gives up party membership after election or rejoins after leaving office.
- Originally the Speaker's decision was final and beyond courts
- Kihoto Hollohan (1992) struck that part down. Review lies on grounds like mala fides and perversity, but the Court rejected the plea that giving the power to the Speaker is itself biased
- The presiding officer can act only on a member's complaint, must hear the accused member and may refer the case to the privileges committee, so defection has no automatic effect. Rules he makes are laid before the House for 30 days.
- Reasons for the 91st Amendment:
  - The Dinesh Goswami Committee (1990), Law Commission 170th Report (1999) and NCRWC (2002) wanted the split exemption removed. NCRWC suggested a ministers' ceiling of 10%
  - The law fixed 15%
- Ninth Schedule:
  - 13 Acts in 1951, 282 now (the last entry is numbered 284, but three entries, 87, 92 and 130, were deleted and one is 257-A). State laws deal with land reforms and zamindari
  - Parliament's deal with other matters
- Art. 31B is wider than Art. 31A: it shields a Ninth Schedule law from all Fundamental Rights, whatever its subject. In Coelho, such laws after 24 April 1973 can be tested against Arts. 14, 15, 19, 21 and the basic structure.
- Eighth Schedule: Oriya was renamed Odia by the 96th Amendment (2011).
- Eleventh Schedule: Panchayats at village, intermediate and district levels (73rd Am., Part IX). Twelfth: nagar panchayat, municipal council, municipal corporation (74th Am., Part IX-A).
- Lakshmikanth differs:
  - Seventh Schedule is Union 98 (originally 97), State 59 (originally 66), Concurrent 52 (originally 47), matching handout Part 2
  - The handout's Schedules chapter says 97 and 61. Eighth Schedule: LK cites Arts. 344 and 351, the handout 343 and 351. Third Schedule: LK lists Art. 148 and 164, the handout 146. Waman Rao: LK says 1980, the handout 1981. Follow the handout for class
  - Check with your teacher for the exam

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Which Schedule deals with languages, and how many?	Eighth Schedule: 22 languages.
Who decides anti-defection and can courts review?	The Speaker or Chairman; reviewable as a tribunal (Kihoto Hollohan, 1992).
After how many months can a nominated member join a party?	After six months from taking the seat (within six months is allowed).
How long to condone a whip violation?	15 days.
What did the 91st Amendment do?	Capped ministers at 15% (State minimum 12), barred defectors from ministries and remunerative posts, deleted the split exception; merger (two-thirds) remains.
Name the Fifth Schedule's four powers.	President declares areas; Governor reports annually; Tribes Advisory Council; Governor's regulations on land, allotment, money-lending.
Which cases settle the Ninth Schedule?	Waman Rao (1981) and I.R. Coelho (2007): post-24-04-1973 laws can be tested on the basic structure.
Eleventh Schedule: how many subjects, which Article?	29 subjects; Art. 243G; 73rd Amendment 1992.
Twelfth Schedule: how many subjects, which Article?	18 subjects; Art. 243W; 74th Amendment 1992.
What does the Second Schedule's Part B hold?	Omitted by the 26th Amendment (1971); it dealt with privy purses.

MY NOTES

Mains 2013: Article 244 of the Indian Constitution relates to administration of scheduled areas and tribal areas.	Intro: Art. 244 is the base of the Fifth Schedule (Scheduled Areas) and Sixth Schedule (tribal areas of Assam, Meghalaya, Tripura, Mizoram) Body: The Fifth Schedule's four powers: the President declares areas, the Governor reports annually, the Tribes Advisory Council, and Governor's regulations on land transfer, allotment and money-lending; the handout names land, livelihoods, customs and governance as the safeguards; where these are not implemented tribal protection weakens (the handout itself does not discuss Left Wing extremism). Close: the Fifth Schedule is an enabling safeguard whose value depends on the Governor and State acting on it. (Built from the notes only; the link to extremism is not in the handout.)

Trap 1 · Third Schedule oaths

The President's and Governors' oaths are not in the Third Schedule. *Rule: President is in Art. 60, Governors in Art. 159.*

Trap 2 · Ninth Schedule immunity

'A law in the Ninth Schedule cannot be examined by any court' is wrong (PYQ 2018). Parliament can place laws there, but post-24 April 1973 insertions face basic-structure review. *Rule: protected, but not absolutely; remember Waman Rao and Coelho.*

Trap 3 · Fifth versus Sixth

Fifth covers Scheduled Areas in 10 States, run through the Governor's regulations and the TAC. Sixth covers tribal areas of only Assam, Meghalaya, Tripura and Mizoram, run by elected Autonomous District Councils. *Rule: Fifth = Governor + TAC + land protection; Sixth = Councils + taxes + courts.*

Trap 4 · Tenth Schedule details

An independent member is disqualified if he joins a party; a nominated member only if he joins after six months. The one-third split exemption was deleted in 2003; only the two-thirds merger remains. *Rule: independent = never, nominated = after six months; split gone, merger stays.*

QUICK QUIZ

Q1. Which Schedule contains the anti-defection provisions?

1. Second
2. Fifth
3. Eighth
4. Tenth

MY NOTES

Q2. Which Schedule can protect a law from being struck down for violating Fundamental Rights, subject to the basic-structure test after 1973?

1. Fifth
2. Seventh
3. Ninth
4. Eleventh

Q3. Oaths of the President and Governors are found in:

1. Third Schedule
2. Articles 60 and 159
3. Second Schedule
4. Fourth Schedule

Q4. How many languages are in the Eighth Schedule after the 92nd Amendment (2003)?

1. 18
2. 20
3. 22
4. 24

Q5. Which statement about the Sixth Schedule is correct?

1. It uses Governor's regulations and Tribes Advisory Councils
2. It creates elected Autonomous District Councils
3. It applies to ten states
4. It has no taxation powers

Q6. Under the 91st Amendment, a State's Council of Ministers (including the CM) cannot exceed:

1. 10% of the Assembly, minimum 12
2. 15% of the Assembly, minimum 12
3. 15% of the Assembly, no minimum
4. 20% of the Assembly

Q7. PYQ 2014: Which one of the following Schedules of the Constitution of India contains provisions regarding anti-defection? (UPSC 2014)

1. Second Schedule
2. Fifth Schedule
3. Eighth Schedule
4. Tenth Schedule

Q8. PYQ 2015: The provisions in the Fifth Schedule and Sixth Schedule in the Constitution of India are made in order to (UPSC 2015)

1. protect the interests of Scheduled Tribes
2. determine the boundaries between States
3. determine the powers, authority, and responsibilities of Panchayats
4. protect the interests of all the border States

Q9. PYQ 2018: Consider the following statements: (UPSC 2018)
1. The Parliament of India can place a particular law in the Ninth Schedule of the Constitution of India.
2. The validity of a law placed in the Ninth Schedule cannot be examined by any court and no judgement can be made on it. Which of the statements given above is/are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q10. PYQ 2019: Under which Schedule of the Constitution of India can the transfer of tribal land to private parties for mining be declared null and void (UPSC 2019)

1. Third Schedule
2. Fifth Schedule
3. Ninth Schedule
4. Twelfth Schedule

Q11. PYQ 2019: The Ninth Schedule was introduced in the Constitution of India during the prime ministership of (UPSC 2019)

1. Jawaharlal Nehru
2. Lal Bahadur Shastri
3. Indira Gandhi
4. Morarji Desai

MY NOTES

Q12. PYQ 2022: If a particular area is brought under the Fifth Schedule of the Constitution of India, which one of the following statements best reflects the consequence of it? (UPSC 2022)

1. This would prevent the transfer of land of tribal people to non-tribal people.
2. This would create a local self-governing body in that area.
3. This would convert that area into a Union Territory.
4. The State having such areas would be declared a Special Category State.

Q13. PYQ 2023: With reference to Scheduled Areas in India, consider the following statements: (UPSC 2023)

1. Within a State, the notification of an area as Scheduled Area takes place through an Order of the President.
2. The largest administrative unit forming the Scheduled Area is the District and the lowest is the cluster of villages in the Block.
3. The Chief Ministers of the concerned States are required to submit annual reports to the Union Home Ministry on the administration of Scheduled Areas in the States. How many of the above statements are correct?

1. Only one
2. Only two
3. All three
4. None

Answers: Q1 d, Q2 c, Q3 b, Q4 c, Q5 b, Q6 b, Q7 d, Q8 a, Q9 a, Q10 b, Q11 a, Q12 a, Q13 b

MY NOTES

CHAPTER 5 · HANDOUT PAGES ON PART III (ARTICLES 12-35)

05 Fundamental Rights

HIGH PRIORITY Mains PYQs quoted: **2013, 2014, 2015, 2017, 2022, 2023, 2024**

Prelims PYQs: **2015, 2017, 2018, 2019, 2020, 2021, 2022, 2024**

MY NOTES

EXAM LENS

Prelims hooks

- Know the six FRs and their Article spans (14-18, 19-22, 23-24, 25-28, 29-30, 32)
- the five writs
- Art. 13(4) and Kesavananda
- Art. 20 versus Art. 21 versus Art. 22
- the right to property (Art. 300A)
- Art. 18 titles and the 1954 awards.
- Handout stresses: Writs of Prohibition, Mandamus and Quo Warranto are tested in PYQs (2024, 2022) (Art. 32 section)
- Handout stresses: Right to Privacy under Art. 21 appears in PYQs of 2021 and 2018 and in the Mains of 2017 and 2024 (Art. 21 section (Puttaswamy 2017))
- Handout stresses: Right to property position and Right to vote nature appear in PYQs (2021, 2017) (Property and Rights outside Part III sections)
- Handout stresses: Right against Exploitation (2017), Art. 18 awards (2022), untouchability (2020), right to marry under Art. 21 (2019) (Arts. 17, 18, 21, 23, 24 sections)
- Handout stresses: Art. 19 (speech, movement, residence) drives the Mains PYQs of 2013, 2014 and 2022; Art. 21 (environment, privacy) those of 2015, 2017 and 2024 (Art. 19 and Art. 21 sections)

Mains hooks

- Art. 19 and its limits (hate speech, films, Section 66A, movement and residence)
- Art. 21 (privacy, environment, DNA test)
- gender justice with cases
- public morality
- Skeletons use only the points in the handout, and where the handout is silent they say so.

Part III shields the individual from the State: rights with reasonable limits, courts as guardians, and Art. 32 as the heart and soul of the Constitution.

MY NOTES

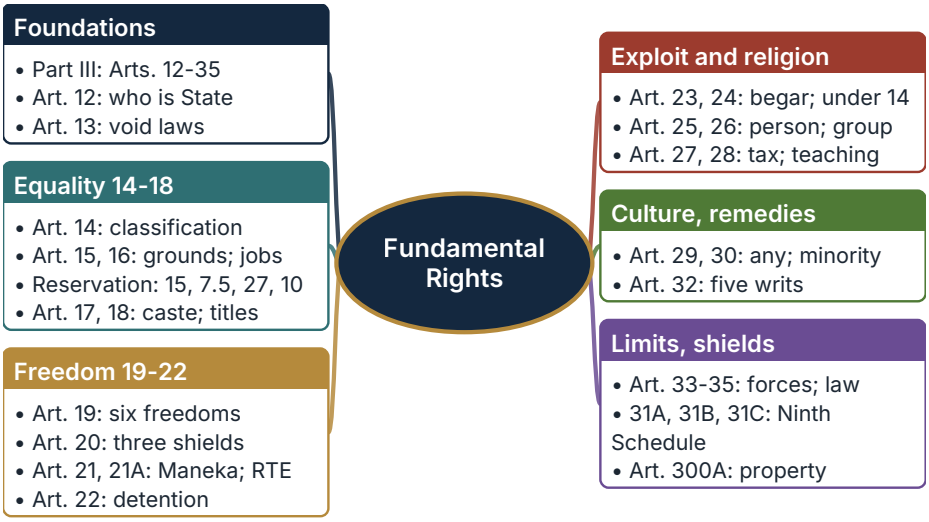
IN SIMPLE WORDS

- **Part III (Articles 12-35)** holds the **Fundamental Rights (FRs)**: basic freedoms that shield you from the **State**, and courts can enforce them (**justiciable**).
- There are **six** FRs today: Equality, Freedom, against Exploitation, Religion, Cultural-Educational and Constitutional Remedies. **Property** left Part III in **1978** and is now a legal right under **Art. 300A**.
- A law that breaks an FR is **void** (**Art. 13**). Even a constitutional amendment cannot destroy the **Basic Structure** (Kesavananda Bharati, 1973).
- FRs are **not absolute**: the State may set **reasonable restrictions** (for example Art. 19(2) to 19(6)). In an Emergency most can be suspended, but **Arts. 20 and 21 cannot**.
- If an FR is violated, go to the **Supreme Court under Art. 32** or a **High Court under Art. 226**. Five **writs** do the work: Habeas Corpus, Mandamus, Prohibition, Certiorari, Quo Warranto.
- Reservation sits in **Arts. 15 and 16**: SC **15**, ST **7.5**, OBC **27**, EWS **10** percent, with the **50% cap** from **Indra Sawhney** (not absolute, says Janhit Abhiyan 2022).

Key term	In plain words
Justiciable	Can be enforced in court; the SC (Art. 32) and HCs (Art. 226) issue writs
State (Art. 12)	Union and State governments and legislatures, local authorities and other authorities; FRs mainly bind the State
Void (Art. 13)	A law that takes away or limits an FR is invalid to the extent of the conflict
Reasonable classification	Allowed under Art. 14 if there is an intelligible differentia and a rational nexus with the law's object
Creamy layer	Advanced OBC families kept out of the 27% quota (Indra Sawhney, 1992)
Ex-post-facto law	A law that punishes an act retrospectively; barred in criminal law by Art. 20(1)
Preventive detention	Detention without trial to stop a future offence; beyond 3 months needs an Advisory Board (Art. 22)
Writ	A court order to enforce an FR; five kinds under Art. 32 (SC) and Art. 226 (HCs)

MY NOTES

MEMORY MAP: FUNDAMENTAL RIGHTS



MNEMONIC · ROAD TO THE MANDAL RESERVATION

Mandal's Votes Nudged India's Reservation Story

- **M** Mandal Commission (1979)
- **V** V.P. Singh government implements it (1990)
- **N** Narasimha Rao: economic filter and 10% (1991)
- **I** Indra Sawhney case (1992)
- **R** Ram Nandan Committee on creamy layer (1993)
- **S** Seventy-seventh Amendment, promotions (1995)

The story of how the Mandal report became law and case law, in year order from 1979 to 1995. (Memory aid, not from the handout.)

MNEMONIC · EVIDENCE OUTSIDE ART. 20(3)

B I O

- **B** Bodily examinations: blood, hair or DNA samples
- **I** Impressions: thumb impressions, specimen signatures, handwriting samples
- **O** Objects: compulsory production of material objects such as weapons

BIO evidence is physical and non-testimonial, so Art. 20(3) does not protect against it. Order is rearranged so the initials spell BIO. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · CREAMY LAYER: WHO IS KEPT OUT OF THE OBC QUOTA

CREAM

- **C** Constitutional post-holders (high constitutional positions)
- **R** Rank of Colonel and above in the armed forces
- **E** Employees in senior government posts: Group A and B officers
- **A** Advocates, doctors and other professionals
- **M** Money: annual family income above Rs 8 lakh

The cream of the OBCs is skimmed off: these five handout groups get no OBC quota. Order is rearranged so the initials spell CREAM. (Memory aid, not from the handout.)

MNEMONIC · FIVE WRITS UNDER ART. 32

CHAMP

- **C** Certiorari: to be certified; quash a lower authority order
- **H** Habeas Corpus: to have the body; produce the detained person
- **A** Authority: Quo Warranto, by what authority one holds a public office
- **M** Mandamus: we command a public authority to do its duty
- **P** Prohibition: to forbid a lower court from exceeding its jurisdiction

The Supreme Court is the CHAMPion of Fundamental Rights through these five writs. Order is rearranged so the initials spell CHAMP. (Memory aid, not from the handout.)

MNEMONIC · SIX FREEDOMS OF ART. 19(1)

MATURE

- **M** Move freely throughout India, 19(1)(d)
- **A** Assemble peaceably and without arms, 19(1)(b)
- **T** Trade: practise any profession or carry on any trade, business or occupation, 19(1)(g)
- **U** Unions: form associations, unions or co-operative societies, 19(1)(c)
- **R** Reside and settle in any part of India, 19(1)(e)
- **E** Expression: freedom of speech and expression, 19(1)(a)

These six freedoms are for MATURE citizens: Art. 19(1) belongs to citizens only. Order is rearranged so the initials spell MATURE. (Memory aid, not from the handout.)

INTRODUCTION, HISTORY AND THE SIX FUNDAMENTAL RIGHTS

- The Fundamental Rights (FRs) are basic human freedoms guaranteed in **Part III (Articles 12-35)**. Inspired largely by the **American Bill of Rights**, they are called the "**Magna Carta of India**" because they shield citizens from arbitrary State action.

MY NOTES

- **Why "fundamental":**
  - (1) guaranteed by the fundamental law of the land, the Constitution
  - (2) essential for the all-round development of individuals (material, intellectual, moral, spiritual)
  - (3) limitations on State power, giving a government of laws, not of men
- They make India's democracy not only political but rooted in justice, liberty, equality and fraternity (Preamble). FRs are **justiciable**: any person can approach the **Supreme Court under Article 32** or the **High Courts under Article 226**. Dr. B.R. Ambedkar called Article 32 the "**heart and soul of the Constitution**".

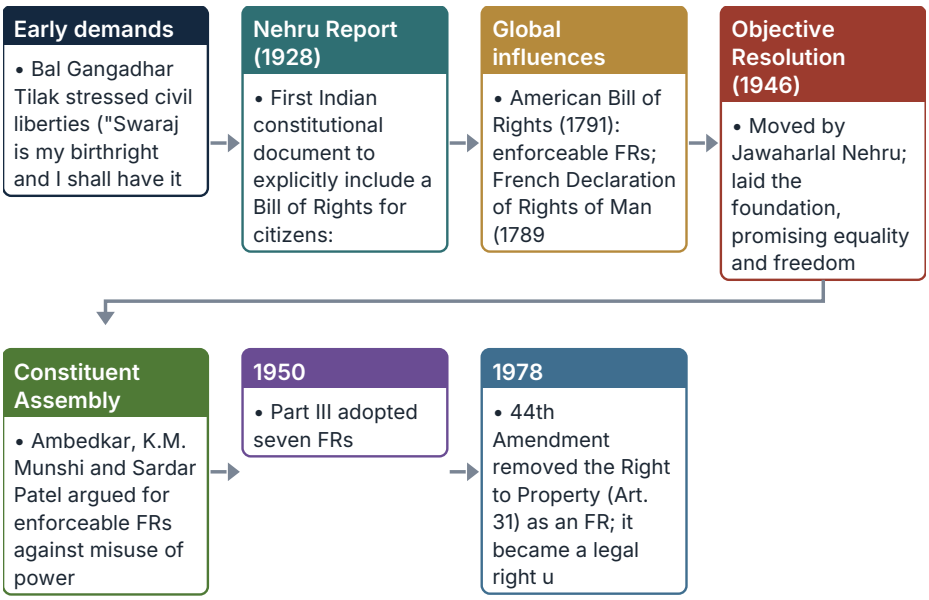
HISTORICAL BACKGROUND

HOW THE FRS ARRIVED

- **Early demands**:
  - Bal Gangadhar Tilak stressed civil liberties ("Swaraj is my birthright and I shall have it")
  - The Indian National Congress pressed for freedom of speech, press and association from the late 19th century
- **Nehru Report (1928)**: First Indian constitutional document to explicitly include a **Bill of Rights** for citizens: equality, freedom of expression, protection from discrimination
- **Global influences**:
  - American Bill of Rights (1791): enforceable FRs
  - French Declaration of Rights of Man (1789): equality and liberty
  - Irish Constitution (1937): directive principles concept
- **Objective Resolution (1946)**:
  - Moved by Jawaharlal Nehru
  - Laid the foundation, promising equality and freedom
- **Constituent Assembly**:
  - Ambedkar, K.M. Munshi and Sardar Patel argued for enforceable FRs against misuse of power by future governments
  - Despite concern that "abstract rights" may hinder governance, the Assembly held guaranteed rights essential for citizens' dignity
- **1950**: Part III adopted **seven** FRs
- **1978**:
  - **44th Amendment** removed the Right to Property (Art. 31) as an FR
  - It became a legal right under **Art. 300A**

MY NOTES

HOW THE FRS ARRIVED



- **Memory aid (Sources of the FR idea):** **T**ilak, **N**ehru Report 1928, **A**merican Bill of Rights 1791, **F**rench Declaration 1789, **I**rish Constitution 1937: "**T**ime **N**ever **A**llows **F**orgetting **I**deas".

PRESENT STATUS

- Originally **seven** FRs
- Right to Property (Art. 31) was removed in 1978 by the 44th Amendment and became a legal right under Art. 300-A. Today **six** FRs exist

THE SIX FUNDAMENTAL RIGHTS

No.	Right	Articles
1	Right to Equality	14-18
2	Right to Freedom	19-22
3	Right against Exploitation	23-24
4	Right to Freedom of Religion	25-28
5	Cultural and Educational Rights	29-30
6	Right to Constitutional Remedies	32

- **Memory aid (Six FRs):** **E**quality, **F**reedom, **E**xploitation (against), **R**eligion, **C**ultural-educational, **R**emedies: "**E**very **F**ree **E**ntity **R**eceives **C**ourt **R**emedies". Article spans run 14-18, 19-22, 23-24, 25-28, 29-30, 32 (5, 4, 2, 4, 2, 1 Articles).

FEATURES, ORDINARY RIGHTS AND CLASSIFICATION

- Nine features: each one has a "yes, but" the exam likes.

MY NOTES

NINE FEATURES AT A GLANCE

#	Feature	Meaning and example
1	**Not absolute**	Subject to **reasonable restrictions** on grounds such as public order, morality, sovereignty, security; balances liberty and social control. E.g., Art. 19 speech is restricted by defamation and contempt of court
2	**Justiciable**	Enforceable in court; SC (Art. 32) and HCs (Art. 226) issue writs; rights are real, "not merely decorative"
3	**Primarily against the State**	Restrict State action, not private individuals (few exceptions like abolition of untouchability, Art. 17; also Art. 23 per Art. 12 notes). "State" includes government at all levels, legislatures, local bodies and agencies under State control (Art. 12)
4	**Individual and collective welfare**	Personal liberty (speech) plus community identity (cultural and educational rights); liberal values combined with social justice
5	**Can be suspended in emergencies**	National Emergency (Art. 352): certain rights (e.g., Art. 19 freedoms) can be suspended; **Arts. 20 and 21 cannot be suspended** even in emergencies (44th Amendment)
6	**Amendable but not destroyable**	Parliament can amend FRs under Art. 368, subject to the **Basic Structure Doctrine** (Kesavananda Bharati, 1973)
7	**Negative and positive**	Negative: Art. 18 prohibits titles, Art. 15 bans discrimination. Positive (State must act): Art. 21A right to education, Art. 23 prohibition of forced labour
8	**Citizens and foreigners (with distinctions)**	Universal: Art. 14 equality before law, Art. 21 life. Citizens only: Art. 15 and the six freedoms of Art. 19
9	**Some self-executory**	Directly enforceable without prior legislation: Arts. 14, 19, 20, 21, 22(1)-(2), 17, 23, 25. Others need a law: Art. 21A via the RTE Act, 2009; preventive-detention scheme under Art. 22(3)-(7)

- **Memory aid (Nine features):** **N**ot absolute, **J**usticiable, **P**rimarily vs State, **I**ndividual+collective, **S**uspendable in emergency, **A**mendable not destroyable, **N**egative+positive, **C**itizens+foreigners, **S**elf-executory: "**N**ine **J**udges **P**resent **I**mportant **S**tates **A**gainst **N**o **C**ourt **S**ilence".

HANDOUT ALERT

Handout alert: Feature 3 names Art. 17 as the exception; Art. 12's section names **Arts. 17 and 23**. Both are valid: remember Art. 17 and Art. 23 bind private persons too.

MY NOTES

NEGATIVE VS POSITIVE RIGHTS

- **Negative (restrain the State):**
  - Art. 18 titles
  - Art. 15 discrimination
- **Positive (compel State action):**
  - Art. 21A education
  - Art. 23 forced labour

CITIZENS ONLY VS ALL PERSONS

- **All persons (also foreigners):**
  - Art. 14 equality before law
  - Art. 21 life
- **Citizens only:**
  - Art. 15 prohibition of discrimination
  - The six freedoms of Art. 19

FUNDAMENTAL RIGHTS VS ORDINARY RIGHTS; CLASSIFICATION

FUNDAMENTAL RIGHTS VS ORDINARY RIGHTS

Aspect	Fundamental Rights	Ordinary Rights
Source	Guaranteed by the Constitution (Part III, Arts. 12-35)	Conferred by ordinary laws made by the legislature
Nature	Basic and essential for individual liberty and democracy	Routine legal rights (e.g., contract rights, property rights after the 44th Amendment)
Enforceability	Directly enforceable in courts; individuals can approach SC (Art. 32) and HCs (Art. 226)	Enforceable through the normal legal process, but no special constitutional remedy
Protection	Special constitutional protection; cannot be taken away by ordinary law	Can be changed or withdrawn by a simple act of legislature
Scope	Limitation on State power; safeguard citizens from arbitrary action	Regulate relations among individuals or groups in society
Amendability	Only by constitutional amendment under Art. 368 (subject to Basic Structure)	Can be amended or modified by a simple majority in Parliament or State Legislature
Examples	Right to Equality (Art. 14), Right to Life (Art. 21), Freedom of Speech (Art. 19)	Right to Vote (under RPA 1950/1951), Right to Property (Art. 300A), rights under the Contract Act

MY NOTES

CLASSIFICATION OF FUNDAMENTAL RIGHTS (THE HANDOUT'S TABLE)

Category	Art-icles	Main provisions
Right to Equality	14-18	Art. 14 equality before law, equal protection of laws; Art. 15 no discrimination on religion, race, caste, sex, place of birth; Art. 16 equal opportunity in public jobs; Art. 17 abolition of untouchability; Art. 18 abolition of titles
Right to Freedom	19-22	Art. 19 six freedoms (speech, assembly, association, movement, residence, profession); Art. 20 safeguards in criminal laws (no ex-post facto, no double jeopardy, no self-incrimination); Art. 21 life and personal liberty (expanded by SC); Art. 21A free education (6-14 years); Art. 22 rights of arrested persons, preventive detention rules
Right against Exploita-tion	23-24	Art. 23 prohibits human trafficking, begar, forced labour; Art. 24 prohibits child labour in hazardous occupations
Right to Freedom of Religion	25-28	Art. 25 freedom of conscience, profess, practice, propagate religion; Art. 26 right to manage religious affairs; Art. 27 no compulsion to pay taxes for promot-ing religion; Art. 28 freedom from religious instruction in State institutions
Cultural and Edu-cational Rights	29-30	Art. 29 protection of minorities' culture, language, script; Art. 30 minorities' right to run educational insti-tutions
Right to Constitu-tional Remedies	32	Right to move the SC directly; SC issues writs (Habeas Corpus, Mandamus, Prohibition, Certiorari, Quo War-ranto); "Heart and Soul of the Constitu-tion" (Ambedkar)

ARTICLE 12: WHO IS THE "STATE"

- Article 12 defines "State" for **Part III only**. This matters because FRs are mainly enforceable against the State, not private individuals (limited exceptions like Arts. 17 and 23).
- **State under Art. 12:**
  - (1) Government and Parliament of India (Union executive and legislature)
  - (2) Government and Legislature of each State
  - (3) all local authorities within India or under central control
  - (4) other authorities within India or under the control of the Government of India

MY NOTES

LOCAL AUTHORITIES AND "OTHER AUTHORITIES"

- **Local authorities** (Section 3(31), General Clauses Act): municipalities, district boards, panchayats, improvement trusts, mining boards.
- **Other authorities** is open-ended, evolved by courts: bodies that are instrumentalities or agencies of the government, even if not constituted directly by statute. Examples: statutory corporations and government-controlled societies.

TESTS FOR "OTHER AUTHORITIES"

Test	Case
Instrumentality or agency test	Ajay Hasia v. Khalid Mujib, 1981
Deep and pervasive State control test	Pradeep Kumar Biswas v. Indian Institute of Chemical Biology, 2002
Public function test	(no case named in the handout)

- The tests are **not absolute or automatic**
- Courts examine the overall context and functions. Hence PSUs and government-owned corporations are **not automatically "State"**
- They count only if courts, after applying the tests, say so
- **Memory aid (Article 12 tests): A**jay Hasia 1981 = instrumentality, **P**radeep Kumar Biswas 2002 = deep and pervasive control, **P**ublic function: "**A**ll **P**ublic **P**owers".

IS THE JUDICIARY "STATE"?

JUDICIARY AND ART. 12

Case	Holding
Rati Lal v. State of Bombay	Judiciary is **not** State for Art. 12
A.R. Antulay v. R.S. Nayak and N.S. Mirajkar v. State of Maharashtra	"When rule making power of judiciary is concerned it is State but when exercise of judicial power is concerned it is not State"

PRIVATE ENTITIES

- Private bodies are not automatically "State", but the SC has evolved doctrines to bring them in when:
- i. a private entity performs **public functions of great importance** closely related to governmental duties;
- ii. there is **deep and pervasive State control** over its functioning, finance and policy;
- iii. it is an **instrumentality or agency of the State** (even though legally a private corporation).

MY NOTES

- **Why it matters:** The ambit of Art. 12 decides against whom FRs are enforceable through the SC's writ jurisdiction under Article 32.
- **Memory aid (Private body as State):** **P**ublic function, **D**eep control, **I**nstrumentality: "**P**ublic **D**uties **I**nvite" scrutiny.

ARTICLE 13: LAWS THAT VIOLATE FUNDAMENTAL RIGHTS

- Article 13 is the **backbone of FR protection**: any law made by the State that violates Part III is **null and void to the extent of the violation**.

ARTICLE 13 CLAUSES

Clause	Rule
13(1)	Pre-Constitution laws: any law existing before 26 January 1950 that violates FRs becomes invalid from that day
13(2)	Post-Constitution laws: State cannot make a law that takes away or limits FRs; if passed, void to the extent of conflict
13(3)	Meaning of "law": (a) permanent laws of Parliament or State legislatures; (b) temporary laws such as ordinances of the President or Governors; (c) delegated legislation: order, byelaw, rule, regulation, notification; (d) non-legislative sources: custom or usage having the force of law
13(4)	Constitutional amendments: added by the **24th Amendment Act, 1971**; amendments under Art. 368 are not "law" under Art. 13. But **Kesavananda Bharati (1973)** held amendments can still be reviewed if they destroy the Basic Structure

- **Memory aid (Art. 13 clauses):** **P**re-1950 laws, **P**ost-1950 laws, **M**eaning of law, **C**onstitutional amendments: "**P**olice **P**atrol **M**ain **C**orridors".
- **Memory aid (What counts as "law"):** **P**ermanent laws, **T**emporary (ordinances), **D**elegated legislation, **N**on-legislative custom: "**P**eople **T**rust **D**aily **N**orms".

JUDICIAL REVIEW UNDER ARTICLE 13

- Judicial review means courts check whether laws of the legislature or actions of the executive violate the Constitution. The words "judicial review" are **not explicitly in the Constitution**, but Art. 13 makes clear courts can strike down laws violating FRs, making the judiciary the **guardian of FRs**.
- **Constitutional amendments and Art. 13:** They are **not "law"** within Art. 13, but remain subject to judicial review if they violate the Basic Structure.

MY NOTES

EXCEPTIONS TO ARTICLE 13

WHERE ART. 13 DOES NOT FULLY APPLY

Exception	Detail
Constitutional amendments, Art. 13(4)	An amendment under Art. 368 is not "law" (24th Amendment, 1971). Not unlimited: Kesavananda Bharati (1973) says Parliament cannot change the basic structure (e.g., judicial review, rule of law, federalism, free and fair elections). Amendments escape Art. 13 directly but can be struck down if they damage the basic structure
Emergency, Arts. 358 and 359	**Art. 358**: if Emergency is due to **war or external aggression**, Art. 19 stops operating for that period, so laws or actions against Art. 19 are not void; protection ends for the future after the Emergency. **Art. 359**: the President can suspend the **right to go to court** for certain FRs during the Emergency; it blocks the remedy, not the right, and **cannot cover Arts. 20 and 21** (after the 44th Amendment)
Protective shields, Arts. 31A, 31B, 31C	Protect some laws from being struck down under Arts. 14 and 19. **31A**: laws on agrarian reforms and certain acquisitions/reorganisations. **31B**: puts selected laws in the **Ninth Schedule**, shielded from FR challenges; but after **24 April 1973** (Kesavananda date) Ninth Schedule laws can be tested on basic structure (Waman Rao, I.R. Coelho). **31C**: gives priority to laws implementing **Art. 39(b) and (c)** over Arts. 14 and 19 if there is a real link; a later attempt to extend 31C to all DPSPs was struck down in **Minerva Mills (1980)**. The shields narrow Art. 13 but cannot defeat the basic structure
Judicial decisions	Art. 13 targets laws (Acts, rules, regulations), not court judgments. A judgment interprets law and is not "law". To undo a judgment's effect the legislature must pass a new or validating law fixing the defect the court pointed out (e.g., changing the statute); it cannot simply declare the judgment wrong. The underlying law is what gets tested

ART. 358 VS ART. 359

- **Art. 358**:
  - Only for war or external aggression
  - Art. 19 stops operating automatically
  - Protection ends with Emergency
- **Art. 359**:
  - President suspends the right to move court for named FRs
  - Remedy blocked, not the right
  - Never Arts. 20 and 21
- **Memory aid (Three shields): 31A A**grarian laws, **31B B**inder into Ninth Schedule, **31C C**auses of Art. 39(b)-(c): "**A**ll **B**ills **C**overed".

MY NOTES

ARTICLE 14: EQUALITY BEFORE LAW

- Art. 14:
  - "The State shall not deny to any **person** equality before the law or the equal protection of the laws within the territory of India." Available to **all persons** (citizens and foreigners)
  - "person" includes legal persons such as companies, corporations, societies

TWO DIMENSIONS OF ARTICLE 14

Aspect	Equality before law	Equal protection of laws
Origin	British	American
Nature	**Negative** concept	**Positive** concept
Idea	No special privileges; all equally bound by the same laws and courts; absence of arbitrary discrimination; "Rule of Law", no one above the law	Equal treatment of equals; State may make reasonable classifications and take affirmative steps
Example	Minister or ordinary citizen committing the same offence faces the same legal process; President to ordinary citizen under the same laws and courts	Special provisions for socially and economically weaker sections (SCs, STs, women) to bring them at par

- **Memory aid (Origins):**
  - **B**ritish = **N**egative (before law)
  - **A**merican = **P**ositive (equal protection): "**B**ritain **N**o, **A**merica **P**lus"

REASONABLE CLASSIFICATION VS CLASS LEGISLATION

- Art. 14 forbids **class legislation** (arbitrary treatment on irrelevant grounds) but permits **reasonable classification** of persons, objects or situations, provided:
- 1. there is an **intelligible differentia** (a real, substantial distinction between groups);
- 2. there is a **rational nexus** between the difference and the object sought by the law.
- E.g., special laws for women, children, backward classes or weaker sections are valid classification. Unequals may be treated differently if classification has a reasonable basis and valid purpose (the SC's test of reasonable classification).
- **Memory aid (Classification test):** **I**ntelligible differentia + **R**ational nexus: "**I**f **R**easonable".

RULE OF LAW (A.V. DICEY) AND ARTICLE 14

- Equality before law links to the **Rule of Law**, developed by British jurist **A.V. Dicey**: law is supreme and applies equally to all.

MY NOTES

DICEY'S THREE ELEMENTS

Element	Meaning	In India
1. Absence of arbitrary power	No one punished unless a law is broken; government action must rest on law, not personal will. E.g., arrest only by legal procedure, not an officer's whim	Followed
2. Equality before law	All, rich or poor, official or not, under the same laws and ordinary courts; no special courts for any group. E.g., civil servant and citizen tried under the same criminal law	Followed
3. Primacy of individual rights	In Britain rights are protected by courts as common law, not a written constitution	**Not applicable**: replaced by constitutional guarantee of FRs

- The SC has declared the **Rule of Law part of the Basic Structure**: it cannot be abolished or diluted even by constitutional amendment. Art. 14 plus the Rule of Law ensure law, not the will of individuals, governs the State.

FORMAL VS SUBSTANTIVE EQUALITY

- **Formal equality:**
  - Equality in law
  - Law applies to all without distinction
  - Treats everyone the same regardless of actual conditions
  - E.g., "one person, one vote"
- **Substantive equality:**
  - Recognises social and economic inequalities and seeks to remove them
  - Needs positive State action (reservations, protective discrimination, welfare)
  - E.g., reservation for SCs, STs, OBCs and women

EXCEPTIONS TO EQUALITY UNDER ART. 14

- Art. 14 is not absolute.

EXCEPTIONS TO ART. 14

Exception	Detail
Art. 361 President and Governors	Not answerable to any court for acts in exercise of official duties; no criminal case, no arrest or imprisonment during term; civil suits for acts in personal capacity only after **two months' prior notice**
Art. 361A Publication of legislative proceedings	Substantially true report of Parliament or State Legislature proceedings (including authorised broadcasts) protected from court action (e.g., defamation), except **secret sittings** or reports made **with malice**

MY NOTES

Exception	Detail
Arts. 105 and 194 Legislative privileges	Members enjoy freedom of speech in the House; not liable in court for anything said or any vote given; publications by authority of the House also protected
Art. 31C	Law truly implementing Art. 39(b) or (c) cannot be struck down under Art. 14 or Art. 19; real nexus needed. "Where Article 31C comes in, Article 14 goes out" (SC), only for genuine 39(b)/(c) laws; blanket extension to all DPSPs struck down in Minerva Mills
Foreign sovereigns, ambassadors, diplomats	Immunity from Indian courts (civil and criminal) under international law (e.g., Vienna Convention on Diplomatic Relations) and Indian statutes; reciprocity
United Nations and agencies	Immunities and privileges in India (e.g., United Nations (Privileges and Immunities) Act, 1947)

- **Memory aid (Exceptions to Art. 14):**
  - **P**resident-Governors (361), **P**ublication of proceedings (361A), **L**egislative privileges (105, 194), **D**iplomats, **U**N, **C** = 31C: "**P**residents **P**ublish **L**aws
  - **D**iplomats **U**nite"

ALSO IN THE HANDOUT

- This reflects the famous British principle – "Rule of Law" – meaning no one is above the law.
- In response, the government took multiple legislative and institutional steps.

ARTICLE 15 AND THE 103RD AMENDMENT

- Art. 15 prohibits discrimination on grounds of **religion, race, caste, sex or place of birth**. Two key words: "**discrimination**" (an unfavourable distinction or treating someone less favourably) and "**only**" (unconstitutional only if based *exclusively* on the listed grounds; other valid factors such as merit or physical fitness make the classification valid).

CLAUSES 15(1) AND 15(2)

Clause	Rule	Binds
15(1)	No citizen shall face discrimination **by the State** on five grounds: religion, race, caste, sex, place of birth	State only

MY NOTES

Clause	Rule	Binds
15(2)	No citizen denied access to shops, restaurants, hotels, places of public entertainment; no restriction on use of wells, tanks, bathing ghats, roads and places of public resort maintained wholly or partly out of State funds	**State and private individuals**

- **Memory aid (Five grounds of Art. 15):** **R**eligion, **R**ace, **C**aste, **S**ex, **P**lace of birth: "**R**ich **R**ulers **C**annot **S**ort **P**eople".

FOUR PERMISSIBLE SPECIAL PROVISIONS (EXCEPTIONS)

- Art. 15 does not stop affirmative action
- The four exceptions show India's commitment to **substantive equality**

ART. 15(3) TO 15(6)

Clause	Special provision	Note
15(3)	Women and children	E.g., reservation of seats for women in panchayats and municipalities; free education schemes
15(4)	Socially and Educationally Backward Classes (SEBCs), SCs and STs	Added by the **First Amendment (1951)** after SC's **Champakam Dorairajan** case; basis of reservations in educational institutions
15(5)	Reservations in admissions to educational institutions (public or private, aided or unaided) **except minority institutions under Art. 30**	Inserted by **93rd Amendment (2005)**
15(6)	Special provisions including **10% reservation for EWS** in educational institutions (public or private, aided or unaided, except minority institutions)	Added by **103rd Amendment (2019)**

- **Memory aid (Art. 15 exceptions):** Clauses 3-6: **W**omen-children (3), **B**ackward classes (4), **E**ducation admissions (5), **E**WS (6): "**W**e **B**uild **E**qual **E**ducation".
- **Shortcut:**
  - **15 vs 16.** Art. 15 lists **5 grounds** (no descent, no residence) and covers **citizens vs State plus 15(2) public places**
  - Art. 16 adds **descent and residence** (7 grounds) and covers **jobs**

THE 103RD AMENDMENT (EWS) AND JANHIT ABHIYAN

- **103rd Constitutional Amendment Act, 2019:** Created a separate quota for **Economically Weaker Sections (EWS)** among groups not

MY NOTES

covered by SC, ST or OBC reservations, to address economic deprivation in access to education and public jobs.

WHAT THE AMENDMENT CHANGED

Provision	Effect
Art. 15(6) inserted	Special provisions including up to **10%** for EWS in admissions to educational institutions (Central/State, including private unaided), excluding minority institutions under Art. 30
Art. 16(6) inserted	Up to **10%** for EWS in initial appointments to public employment (Union and States)

KEY FEATURES

Feature	Detail
Ceiling	Up to 10%, in addition to SC/ST/OBC reservations (over and above the earlier 50% ceiling in practice)
Beneficiary class	Economically weaker persons from the unreserved/general category; SC, ST, OBC excluded because they already have separate frameworks
Criteria	Government-notified income and asset limits (policy decision; can be revised)
Coverage	Educational institutions (public and private unaided) and public employment; **not** minority institutions (Art. 30)

JANHIT ABHIYAN V. UNION OF INDIA (SC, 2022)

- **Holding**: Amendment held **constitutionally valid**
- **50% cap**:
  - Breach permissible here
  - The 50% is **not an absolute constitutional limit**
- **Exclusion of SC/ST/OBC**: **Not discriminatory**: they already receive reservation under other provisions
- **Wider holding**: Economic criteria can validly ground affirmative action (see EWS section below)

ARTICLE 16 AND RESERVATION POLICY

- Art. 16 gives equality of opportunity to **all citizens** in employment or appointment to any office under the State. It prohibits discrimination on grounds of **religion, race, caste, sex, descent, place of birth or residence**.

CLAUSES OF ARTICLE 16

Clause	Rule
16(1)	Equal chance for government jobs: all citizens get fair and equal opportunity to apply for and be appointed to any government post; State cannot arbitrarily close doors to some and open to others

MY NOTES

Clause	Rule
16(2)	No discrimination **only** because of religion, race, caste, sex, descent, place of birth or residence; merit and rules, not personal identity, decide
16(3)	**Parliament** (not States on their own) may make residence rules: for some posts in a State/UT a person must have lived there for a certain time; to meet local needs
16(4)	State may reserve appointments for **socially and educationally backward classes** not adequately represented in its view; **enabling (optional)** power
16(4A)	Reservation **in promotions for SCs/STs** (with consequential seniority) if not adequately represented; enabling and subject to legal conditions
16(4B)	**Carry-forward** of unfilled reserved vacancies: treated as a separate class and filled in future years; not clubbed with that year's vacancies when calculating the **50% cap** for that year
16(5)	Laws requiring the post-holder of a religious/denominational institution (or its governing body) to belong to that religion/denomination are protected, since the role is inherently religious
16(6)	Up to **10%** reservation in appointments for **EWS** (not covered under 16(4), i.e. not SC/ST/OBC); in addition to existing reservations; follows notified income/asset criteria

- **Memory aid (Art. 16 clauses):**
  - **E**qual chance (1), **N**o identity bias (2), **P**arliament residence (3), **B**ackward (4), **P**romotions SC/ST (4A), **C**arry-forward (4B), **R**eligious posts (5), **E**WS (6): "**E**very **N**ew **P**ost **B**elongs
  - **P**romotions **C**arry **R**ights, **E**WS"

HANDOUT ALERT

Handout alert: A later heading in the handout titles OBC public-employment reservation as "Article 16(5)", but the Art. 16 clause list assigns 16(5) to **religious posts**; OBC reservation in jobs flows from **Art. 16(4)**. Use 16(4) for OBCs and 16(5) for religious posts.

HANDOUT ALERT

Handout alert: The handout elsewhere says Art. 15(4) was added by the First Amendment after Champakam Dorairajan and gives the basis of OBC education reservation as **15(5)** (93rd Amendment, 2005, private unaided included, minority excluded). Use 15(4) for SEBC/SC/ST generally, 15(5) for admissions to institutions including private unaided.

RESERVATION POLICY: WHY, WHAT AND WHICH TYPE

- **Reservation policy** (affirmative action, positive discrimination) gives special opportunities in education, jobs and politics to socially and educationally backward groups, to remove historical

MY NOTES

injustice and discrimination and promote social equality and inclusive growth.

CONSTITUTIONAL BASIS

Provision	What it does
Art. 15(4)	Special provisions for SEBCs, SCs and STs in education
Art. 16(4)	Reservation in public employment for backward classes not adequately represented
Art. 46 (DPSP)	Directs the State to promote educational and economic interests of weaker sections

WHY RESERVATION: GROUP AND REASON

Group	Reason
Scheduled Castes (SCs)	Removal of untouchability and social exclusion
Scheduled Tribes (STs)	Protection from isolation and exploitation
Other Backward Classes (OBCs)	Social and educational backwardness
Economically Weaker Sections (EWS)	Economic disadvantage
Women, PwDs, Minorities	Lack of representation and opportunity

THREE CONCEPTUAL DIMENSIONS

EQUAL SHARE, EQUAL RESPECT, EQUAL SAY

Dimension	Idea
Economic redistribution ("Equal share")	One tool in a redistribution agenda correcting historical deprivation (limited land, capital, education, networks, jobs). Assured entry points in education and employment; **substantive equality** (real outcomes), not just formal (same rules). Complements scholarships, hostels, fee waivers, skill programmes so first-generation learners and workers can move up across generations
Cultural recognition ("Equal respect")	Addresses status hierarchies and stigma (caste, tribe, gender, disability and other identities); income support cannot erase exclusion, humiliation, invisibilisation. Preferential access signals public respect, validates diverse identities, dismantles stereotypes (e.g., "unsuitable for higher studies/leadership"); operationalises dignity and equality by countering cultural harms of discrimination

MY NOTES

Dimension	Idea
Political representation ("Equal say")	Reserved seats in elected bodies give communities a direct voice in law and policy; without presence, smaller or marginalised groups can be permanently out-voted. E.g., Parliament/Assemblies for SC/ST; Panchayats/Municipalities for SC/ST and women. Creates **descriptive representation** (people like me in office) that can lead to **substantive representation** (my issues on the agenda): basic services, local budget priorities, anti-discrimination enforcement, context-sensitive policy; strengthens democratic legitimacy and responsive governance

- **Memory aid (Three dimensions): S**hare (economic), **R**espect (cultural), **S**ay (political): "**S**ome **R**ights **S**peak".

VERTICAL VS HORIZONTAL RESERVATION

Type	Meaning	Example	Constitutional backing
Vertical	Reservation for broad social groups (SC, ST, OBC, EWS)	SC 15%, ST 7.5%, OBC 27%, EWS 10%	Arts. 15(4), 16(4), 15(6), 16(6)
Horizontal	Reservation **within each vertical category** (women, PwDs, ex-servicemen)	33% of seats for women within each category	Arts. 15(3), 16(1)

- **Shortcut:**
  - **Quotas. 15 + 7.5 + 27 + 10**: SC 15, ST 7.5, OBC 27, EWS 10. Vertical = across groups (Arts. 15(4), 16(4), 15(6), 16(6))
  - Horizontal = inside each group (Arts. 15(3), 16(1))

RESERVATION CATEGORIES: SC, ST AND OBC

(A) SCHEDULED CASTES

- SCs historically faced extreme untouchability, social exclusion and discrimination under the caste system: denied access to temples, education, wells, public institutions.

SCHEDULED CASTES AT A GLANCE

Aspect	Detail
Population	About **16.6%** (Census 2011); concentrated in UP, West Bengal, Tamil Nadu, Bihar, Andhra Pradesh
Art. 341	President specifies castes deemed SC in a State/UT; list modified **only by Parliament by law**, not executive order. E.g., Constitution (Scheduled Castes) Order, 1950
Arts. 15(4), 16(4)	Special provisions for SEBCs, SCs, STs

MY NOTES

Aspect	Detail
Art. 17	Abolishes untouchability, practice in any form an offence (Protection of Civil Rights Act, 1955 and SC/ST (Prevention of Atrocities) Act, 1989)
Arts. 330-334	Reservation of seats for SCs in Parliament and State Legislatures
Art. 46 (DPSP)	State to promote educational and economic interests of SCs and protect from social injustice and exploitation
Quota	**15%** in educational institutions (schools, universities, technical institutes); government jobs at Centre and State; legislatures: Lok Sabha and State Assemblies (Arts. 330 and 332)

RELIGIOUS CRITERIA FOR SC STATUS

- **1950 Order**:
  - Only **Hindus, Sikhs and Buddhists** recognised as SCs under the Constitution (Scheduled Castes) Order, 1950
  - Originally only Hindu Dalits
- **1956**: Extended to **Sikh** Dalits
- **1990**: Extended to **Buddhist** Dalits
- **Excluded**: **Muslim and Christian** Dalits not recognised, even if from historically "untouchable" castes
- **Soosai v. Union of India (1985)**: SC upheld the exclusion: link between untouchability and Hindu religion justified the original classification
- **Recent**:
  - A **Constitution Bench (2023)** hears petitions challenging the 1950 Order (conversion should not deprive Dalits of SC status if discrimination continues)
  - The Union formed the **Justice K.G. Balakrishnan Commission (2022)** to examine SC status for Dalits who converted to Christianity or Islam
- **Memory aid (SC religion extension): H**indu 1950, **S**ikh 1956, **B**uddhist 1990: "**H**ard **S**tarts, **B**roader".

(B) SCHEDULED TRIBES

- STs live in geographically isolated, forested or hilly regions with distinct cultures, languages and social practices
- They faced marginalisation through isolation, displacement, limited access to education/health and exploitation

MY NOTES

SCHEDULED TRIBES AT A GLANCE

Aspect	Detail
Population	About **8.6%** (Census 2011); central tribal belt (MP, Chhattisgarh, Jharkhand, Odisha), Northeast (Nagaland, Mizoram, Meghalaya, Arunachal Pradesh), parts of Maharashtra, Gujarat, Rajasthan, Andaman and Nicobar Islands
Art. 342	President specifies tribes deemed STs for each State/UT; list altered **only by Parliament by law**. E.g., Constitution (Scheduled Tribes) Order, 1950, as amended
Arts. 15(4), 16(4)	Special provisions for backward classes including STs
Arts. 330-334	Reserved seats in Lok Sabha and State Assemblies
Art. 46	Promote educational and economic interests of STs
Art. 244(1), 244(2) with Fifth and Sixth Schedules	Fifth: Scheduled Areas; Sixth: Autonomous District Councils in the Northeast; safeguard land, culture, self-governance
Art. 275(1)	Grants-in-aid from the Union to States for tribal welfare
Art. 338A	**National Commission for Scheduled Tribes (NCST)**
SC/ST (Prevention of Atrocities) Act, 1989	Penal protection against atrocities, intimidation, dispossession
Quota	**7.5%** in education and public employment at Union level (States follow notified percentages by local ST population); reserved seats in Lok Sabha and State Assemblies (Arts. 330 and 332)
Religion	**No religion-based restriction** for ST status (many follow indigenous faiths; others Hindu, Christian or other)

IDENTIFICATION OF STS

- **Listing power:** only **Parliament** can include or exclude a community (based on the Presidential notification under Art. 342).
- **Lokur Committee (1965):** historical indicators: distinct culture, geographical isolation, socio-economic backwardness etc. (earlier phrased "primitive traits", now outdated and replaced by respectful, evidence-based indicators).
- **State of Maharashtra v. Milind (2000):** courts cannot expand or modify the notified ST list by treating synonyms or sub-tribes as included unless Parliament amends the list.

SC VS ST AT A GLANCE

- **Scheduled Castes:**
  - Art. 341
  - Census 2011: 16.6%
  - Quota 15%
  - Religion limit (Hindu, Sikh, Buddhist)

MY NOTES

- Soosai 1985
- Atrocities Act
- Art. 17

- **Scheduled Tribes:**
  - Art. 342
  - Census 2011: 8.6%
  - Quota 7.5% (Union)
  - No religion limit
  - Lokur 1965, Milind 2000
  - Arts. 244, 275(1), 338A
  - Fifth and Sixth Schedules
- **Memory aid (SC/ST article numbers): S**C list = Art. **341**, **T**ribes list = Art. **342**: 1 before 2, as SC comes before ST.

CATEGORIES OF RESERVATION: OBC

- OBCs (also called **SEBCs**) suffer historical social disadvantage and educational deprivation but are not listed as SC/ST. There is **no all-India caste census figure for OBCs**
- Surveys estimate a large share with wide inter-state variation

OBC CONSTITUTIONAL BASIS AND FRAMEWORK

Provision	Detail
Arts. 15(4) and 16(4)	Special provisions/reservations for SEBCs in education and employment
Art. 338B (**102nd Amendment, 2018**)	Constitutional status to the **National Commission for Backward Classes (NCBC)**: monitor safeguards, advise on policy, examine inclusion/exclusion
Art. 342A (**102nd Amendment, 2018**)	**Central List** of SEBCs notified by the President (Central services/institutions)
105th Amendment Act, 2021 (earlier 127th Bill)	Restores States' power to maintain their own State OBC lists for state jobs/admissions, alongside the Central List for Union purposes
Central quota	**27%** in Central Government jobs and Central Educational Institutions (**CEI Act, 2006**), subject to the **non-creamy layer** filter; admissions (incl. Central universities/IITs/IIMs as per policy evolution) and recruitment; minority institutions exempt under Art. 30; States have own OBC quotas differing by percentage and list

NON-CREAMY LAYER (NCL)

- Introduced by the SC in **Indra Sawhney (Mandal Commission, 1992)** to exclude the socially advanced/affluent section of OBCs.

MY NOTES

- Income/occupation criteria notified by Government from time to time
- Applicants need valid NCL certificates
- Rationale:
  - Benefits reach the truly backward
  - Prevent elite capture within OBCs

IDENTIFICATION AND INCLUSION

- **Central List:** proposed by States/UTs/NCBC, scrutinised by NCBC, notified by the President (Art. 342A).
- **State Lists:** States run own commissions or expert bodies, frame state-specific criteria, notify OBCs for state employment/education.
- **Criteria** (evolved from commissions like **Kaka Kalelkar, Mandal**): social backwardness (status, stigma, exclusion), educational lag, economic indicators
- **religion is not a bar** (Muslim/Christian OBC groups can be included if they meet backwardness criteria)

SUB-CATEGORISATION WITHIN OBCS (ROHINI COMMISSION)

- Problem: a few relatively advanced OBC communities capture a disproportionate share of the 27%, while the most backward (smaller, dispersed, nomadic/denotified) struggle to benefit.
- **Rohini Commission (2017-), Justice G. Rohini:** set up to study the skew and recommend fairer distribution.
- It examined admission/recruitment data on who actually uses OBC reservation
- Noted methodological gaps (absence of fresh, granular socio-educational data)
- Explored splitting the 27% quota into layers, e.g., "backward / more backward / most backward", each with a fixed share of seats/jobs
- Legal backdrop: **Indra Sawhney (1992)** permits sub-classification within backward classes for real equality, if the framework stays reasonable and evidence-based.
- State models:
  - Tamil Nadu's MBC, Karnataka's 2A/2B/3A/3B, Andhra Pradesh's categories
  - Workable approach: earmark sub-shares, apply non-creamy layer uniformly, monitor uptake
- Challenges are practical: defining tiers credibly across diverse states, allocating sub-percentages without breaching the **50% ceiling**, avoiding fragmentation, updating lists as socio-economic status changes.

MY NOTES

OBC RESERVATION IN EDUCATIONAL INSTITUTIONS (ART. 15(5))

ROAD TO OBC RESERVATION IN EDUCATION

- **Before**: Art. 15 originally gave no reservation in education for backward classes
- **1951**: **State of Madras v. Champakam Dorairajan**: SC struck down caste-based admissions
- **1951**: **First Amendment** introduced **Art. 15(4)**: special provisions for SEBCs, SCs, STs
- **2005**: **93rd Amendment** inserted **Art. 15(5)**: backward-class admissions including **private unaided** institutions, excluding minority institutions under Art. 30(1)
- **2006**: **Central Educational Institutions (Reservation in Admission) Act, 2006**: **27%** OBC reservation in all central higher educational institutions (IITs, IIMs, Central Universities)
- **April 2008**: **Ashoka Kumar Thakur v. Union of India**: upheld the 93rd Amendment and the Act, but mandated **exclusion of the creamy layer**
- **Creamy layer (as listed in the handout):**
  - Individuals in high constitutional positions
  - Senior government officers (Group A/B)
  - Armed forces officers of **Colonel rank and above**
  - Professionals like doctors and lawyers
  - Families with annual income above **Rs 8 lakh**
- Challenges: identifying the creamy layer accurately, unequal benefit distribution among OBC subgroups, periodic revision of eligibility criteria.

OBC RESERVATION IN PUBLIC EMPLOYMENT (FLOWS FROM ART. 16(4))

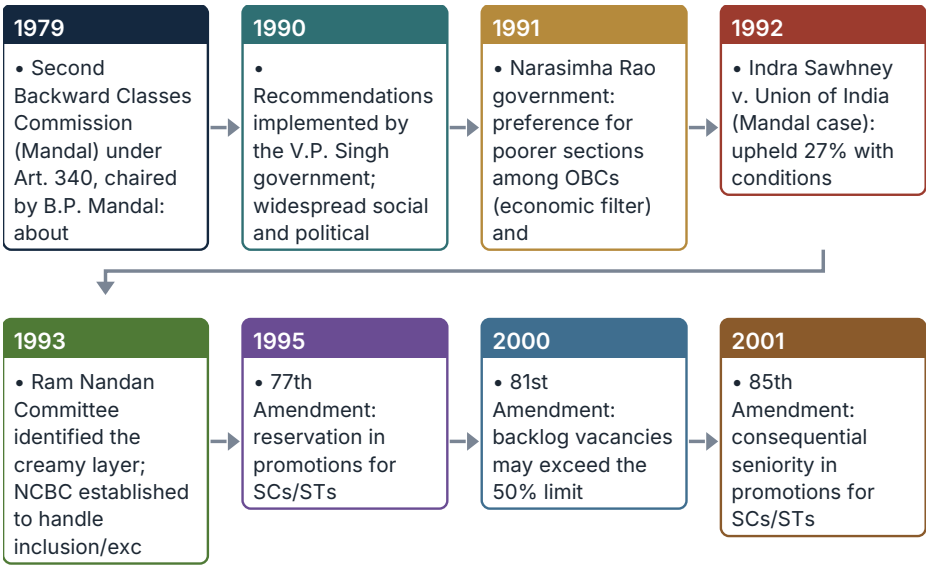
MANDAL TO INDRA SAWHNEY AND AFTER

- **1979**:
  - **Second Backward Classes Commission (Mandal)** under **Art. 340**, chaired by **B.P. Mandal**: about **3743 castes**, around **52%** of population, backward
  - Recommended **27%** reservation in jobs for OBCs, in addition to **22.5%** for SCs and STs (total below the 50% ceiling)
- **1990**:
  - Recommendations implemented by the **V.P. Singh** government
  - Widespread social and political debate
- **1991**: **Narasimha Rao** government: preference for poorer sections among OBCs (economic filter) and a proposed **10% for economically weaker sections among higher castes**, later struck down by the courts

MY NOTES

- **1992**: **Indra Sawhney v. Union of India (Mandal case)**: upheld 27% with conditions
- **1993**:
  - **Ram Nandan Committee** identified the creamy layer
  - **NCBC** established to handle inclusion/exclusion grievances (elevated to constitutional body by 102nd Amendment, 2018, **Art. 338-B**)
- **1995**: **77th Amendment**: reservation in promotions for SCs/STs
- **2000**: **81st Amendment**: backlog vacancies may exceed the 50% limit
- **2001**: **85th Amendment**: consequential seniority in promotions for SCs/STs

MANDAL TO INDRA SAWHNEY AND AFTER



INDRA SAWHNEY (1992): THE FIVE CONDITIONS

#	Holding
1	Upheld the constitutional validity of **27%** OBC reservation
2	**Exclusion of the creamy layer** (socially and economically advanced among OBCs)
3	**Reservation in promotions not permissible** under Art. 16(4)
4	Total reservations **not to exceed 50%**, except in exceptional circumstances
5	Upheld the **carry-forward rule** for unfilled vacancies if the 50% cap is not breached; recommended a **permanent statutory body** to review OBC list inclusion/exclusion

- **Memory aid (Indra Sawhney):** **V**alid 27%, **C**reamy layer out, **P**romotions barred, **F**ifty percent cap, **C**arry-forward valid: "**V**ery **C**lever **P**anel **F**ixes **C**aps".

MY NOTES

- **Memory aid (Amendments after Indra Sawhney): P**romotion (77th, 1995), **B**acklog beyond 50% (81st, 2000), **S**eniority consequential (85th, 2001): "**P**ay **B**ack **S**ervice".

> **HANDOUT ALERT**
> Handout alert: The 77th, 81st and 85th Amendments did **not** directly extend to OBCs; they concern SCs/STs (the handout says they reinforced the constitutional flexibility of the framework). Also note: Indra Sawhney barred promotions reservation, but the 77th Amendment (Art. 16(4A)) restored it for SC/ST.

ALSO IN THE HANDOUT

- These privileges ensure independent, fearless debate, without members worrying about later lawsuits for their speeches or votes.

EWS: ELIGIBILITY, EDUCATION AND EMPLOYMENT

- **EWS** = persons economically disadvantaged among those not covered by SC, ST or OBC reservation. Aim: assured entry points in education and public jobs for the poor in the unreserved/general category, since pure market competition can exclude first-generation learners and low-income families despite merit.

EWS CONSTITUTIONAL BASIS (103RD AMENDMENT, 2019)

Article	Effect
15(6)	Special provisions, reservation up to **10%** for EWS in admissions to educational institutions (Government and private unaided), excluding minority institutions under Art. 30
16(6)	Reservation up to **10%** for EWS in initial appointments to public employment (Union/States)

WHO IS ELIGIBLE

Test	Rule
Community	Not SC/ST/OBC (only the remaining general/unreserved category)
Family income	Annual family income **below Rs 8,00,000** (all sources: salary, agriculture, business, profession), previous financial year
Family unit	Applicant, parents, spouse, children **below 18** (also minor siblings dependent on parents)

ASSET LIMITS (ALL MUST BE BELOW, ELSE EXCLUDED EVEN IF INCOME IS UNDER RS 8 LAKH)

Asset	Limit
Agricultural land	**Below 5 acres**
Residential flat	**Below 1000 sq. ft.** built-up

MY NOTES

Asset	Limit
Residential plot in notified municipalities	**Below 100 sq. yards**
Residential plot elsewhere	**Below 200 sq. yards**

- **Memory aid (EWS limits): I**ncome Rs 8 lakh, **L**and 5 acres, **F**lat 1000 sq ft, **P**lot 100 sq yd (notified), **P**lot 200 sq yd (other): "**8-5-1000-100-200**".

IDENTIFICATION AND INCLUSION

- **Rule-based screening:** income/asset filters (family income ceiling, land/house limits) to issue EWS certificates.
- **Uniformity vs federal variation:**
  - The Union notifies baseline norms
  - States may adopt or frame aligned criteria for State institutions and services
- **Verification:**
  - Scrutiny/vigilance mechanisms
  - False certificates attract cancellation and penalties

EWS IN EDUCATIONAL INSTITUTIONS (ART. 15(6))

- Up to 10% in government and private unaided institutions
- Constitutional exclusion for **minority institutions (Art. 30)**
- Union issued directions in **2019** for Central higher-education institutions
- States adopted similar measures
- Same income/asset thresholds as employment, but a slightly wider family unit for verification: applicant, parents, spouse, children below 18 **and siblings below 18**
- Needs a valid **Income and Asset Certificate** from the competent authority
- Aim: assured entry for first-generation learners and low-income households in the unreserved pool without disturbing SC/ST/OBC quotas.
- **Janhit Abhiyan v. Union of India (2022):**
  - Upheld
  - Economic criteria can validly ground affirmative action
  - Excluding SC/ST/OBC does not violate equality since they have distinct reservation frameworks
- In practice institutions adjust seat matrices, verify certificates at admission, apply EWS alongside other quotas.

EWS IN PUBLIC EMPLOYMENT (ART. 16(6))

- Up to 10% in **initial appointments** to civil posts and services

MY NOTES

- Operationalised by a **January 2019 order** for all direct recruitment under the Union
- Eligibility: family income below Rs 8 lakh and no ownership of 5 acres or more agricultural land, flat of 1000 sq. ft. or more, plot of 100 sq. yards or more in notified municipal areas, or 200 sq. yards or more elsewhere.
- For employment, "family" typically includes applicant, parents, spouse and minor children
- Property of all family members is clubbed
- Expressly excludes those entitled to SC/ST/OBC quotas.
- **Scientific/technical carve-out:**
  - Certain scientific/technical posts are exempt from EWS reservation if **all three** hold: (1) the post is above the lowest Group-A grade
  - (2) it is formally classified scientific/technical under the **1961 Cabinet Secretariat Order**
  - (3) it primarily involves research or direction of research

HANDOUT ALERT

Handout alert: The EWS family unit is described three ways: "children below 18 (also minor siblings dependent on parents)", "applicant, parents, spouse, children below 18 and siblings below 18" for education, and "applicant, parents, spouse and minor children" for employment. Use the first definition as the base and the education one (siblings below 18) for institutions.

HANDOUT ALERT

Handout alert: The 15(6) bullet at the start says EWS applies to "public or private, aided or unaided"; the EWS section says "Government and private unaided". Use "government and private unaided, excluding Art. 30 minority institutions".

ARTICLES 17 AND 18: UNTOUCHABILITY AND TITLES

- **Article 17:** "Untouchability is abolished and its practice in any form is forbidden. The enforcement of any disability arising out of untouchability shall be an offence punishable in accordance with law."
- Practice of untouchability in any form is completely banned
- Anyone enforcing it is guilty of an offence
- **Parliament, under Article 35**, has power to make laws prescribing the punishment.

MY NOTES

MEANING

- The Constitution **does not define** untouchability. Courts clarified it is not literal avoidance of touch but the **caste-based social practice of exclusion and discrimination** against certain groups.
- E.g., denying entry to temples, refusing service in shops/hotels, prohibiting use of public wells and roads.

LAWS ENFORCING ART. 17

- **Untouchability (Offences) Act, 1955**:
  - **First law** passed by Parliament to enforce Art. 17
  - Declared acts of untouchability crimes
- **Protection of Civil Rights Act, 1955 (after 1976 amendment)**:
  - Renamed version of the 1955 Act
  - Wider scope to protect all civil rights of SCs against untouchability-based discrimination
- **SC/ST (Prevention of Atrocities) Act, 1989**:
  - Special law against atrocities, violence and exploitation of SCs and STs with stringent penalties
  - Created **special courts** for speedy trial

JUDICIAL INTERPRETATION OF ART. 17

- **Mysore High Court:** Untouchability refers to the historical practice of caste discrimination, not every form of social boycott
- **Supreme Court:** The right against untouchability is enforceable against the State **and private individuals**
- **Memory aid (Laws under Art. 17): U**ntouchability (Offences) Act 1955, **P**rotection of Civil Rights Act (1976 renamed), **A**trocities Act 1989: "**U**nder **P**arliament's **A**rticle".

ARTICLE 18: ABOLITION OF TITLES

- Art. 18 abolishes titles to uphold **equality of status** promised in the Preamble. Four provisions:

FOUR PROVISIONS OF ART. 18

#	Provision
1	State cannot confer any title on **any person (citizen or foreigner)** except **military or academic** distinctions
2	A **citizen of India** cannot accept any title from a foreign State
3	A **foreigner** holding an office of profit or trust under the State cannot accept any title from a foreign State without the **President's consent**

MY NOTES

#	Provision
4	No citizen or foreigner holding an office of profit or trust under the State shall accept any present, emolument or office from a foreign State without the **President's consent**

- **Memory aid (Art. 18 four rules):** **S**tate gives none (except military/academic), **C**itizen takes none from foreign State, **F**oreigner in office needs President's consent for titles, **P**resents/emoluments also need consent: "**S**ir **C**an't **F**ancy **P**refixes".

RATIONALE

- Under British rule, titles like **Rai Bahadur, Khan Bahadur, Maharaja** created loyal classes and divided society. The framers wanted equality, dignity and democratic spirit.

WHAT IS ALLOWED

- Universities and other public institutions may confer titles or honours (e.g., honorary degrees).
- State may award **military distinctions** (e.g., Param Vir Chakra) or **academic distinctions** (e.g., degrees).
- State may give awards for merit or public service if not used as hereditary titles.

NATIONAL AWARDS AND ART. 18

BHARAT RATNA AND ART. 18

- **1954**:
  - Four civilian awards introduced: **Bharat Ratna, Padma Vibhushan, Padma Bhushan, Padma Shri**
  - Decorations for exceptional service, not titles of nobility
- **Balaji Raghavan v. Union of India (1996)**: SC **upheld** the awards: no violation of Art. 18 **as long as not used as prefixes or suffixes** to names
- **Misuse**: If used as titles (e.g., "Padma Shri X"), the award can be **forfeited**
- **Memory aid (Four civilian awards (descending)):** **B**harat Ratna, Padma **V**ibhushan, Padma **B**hushan, Padma **S**hri: "**B**ig **V**ictories **B**uild **S**tature".

ARTICLE 19: THE SIX FREEDOMS

- Art. 19 is the core of FRs, promoting liberty alongside equality and fraternity. It originally had **7 freedoms**
- The **44th Amendment (1978)** removed the right to property (shifted to Art. 300A), leaving **6**. Art. 19(1) grants six freedoms to **citizens**
- Arts. 19(2)-19(6) give reasonable restrictions on each

MY NOTES

SIX FREEDOMS AND THEIR RESTRICTION CLAUSES

Freedom	Clause	Restriction clause	Grounds
Speech and expression	19(1)(a)	**19(2)**	Sovereignty and integrity, security of State, friendly relations with foreign States, public order, decency or morality, contempt of court, defamation, incitement to an offence
Assemble peaceably and without arms	19(1)(b)	**19(3)**	Sovereignty and integrity; public order
Form associations, unions, co-operative societies	19(1)(c)	**19(4)**	Sovereignty and integrity (16th Am., 1963); public order; morality
Move freely throughout India	19(1)(d)	**19(5)**	Interests of the general public; protection of Scheduled Tribes
Reside and settle in any part of India	19(1)(e)	**19(5)**	Same as above
Practise any profession, trade, business, occupation	19(1)(g)	**19(6)**	Interest of the general public; State monopoly (19(6)(ii)); professional or technical qualification

- **Memory aid (Six freedoms):**
  - **S**peech, **A**ssemble, **A**ssociation, **M**ove, **R**eside, **P**rofession: "**S**ome **A**dults **A**lways **M**ove, **R**est, **P**ractise". Clause letters: (a) (b) (c) (d) (e) (g)
  - There is **no (f)** since property was removed
- **Shortcut: Restrictions 19(2) to 19(6). 2-3-4-5-6** follow **a-b-c-d/e-g**: 19(2) speech, 19(3) assembly, 19(4) association, 19(5) movement and residence (one clause for both), 19(6) profession.

FREEDOM OF SPEECH AND EXPRESSION: ART. 19(1)(A)

- Guarantees every citizen the liberty to speak and express opinions through words, writing, printing, pictures, media or any form of communication. It is the foundation of democracy and essential for informed public participation. Scope includes the **right to receive information**: a two-way channel. Not absolute: balanced by reasonable limits under Art. 19(2).

MY NOTES

EXPANSIVE INTERPRETATION: HEADS AND CASES

Head	Detail
Express views	Word of mouth, writing, printing, pictures, films, art, any medium; includes right to criticise government policies
Freedom of press	No special privileges, but protected from discriminatory laws (e.g., heavy duties on newspapers)
Right to silence	Right not to speak or not to sing the national anthem: **Bijoe Emmanuel v. State of Kerala (1986)**
Right to know candidate's information	**PUCL v. Union of India (2002)**: voters may know criminal records, assets, liabilities, educational qualifications of candidates
Internet access for expression	**Anuradha Bhasin v. Union of India (2020)**: internet crucial for free speech, though restrictable
Right to broadcast	**Cricket Association of Bengal v. Union of India (1995)**: use of TV and radio for expression
Right to fly national flag	**Union of India v. Naveen Jindal (2004)**: holding and flying the national flag is a form of expression and an FR

- **Memory aid (Speech cases): B**ijoe Emmanuel (silence, 1986), **P**UCL (candidate info, 2002), **A**nuradha Bhasin (internet, 2020), **C**ricket Association (broadcast, 1995), **N**aveen Jindal (flag, 2004): "**B**ig **P**ublic **A**ctions **C**an **N**ame": order of years 1986, 2002, 2020, 1995, 2004.

REASONABLE RESTRICTIONS: ART. 19(2)

SEVEN GROUNDS UNDER 19(2)

#	Ground	Added by
1	Sovereignty and integrity of India	**16th Amendment, 1963**
2	Security of the State	original
3	Friendly relations with foreign States	**1st Amendment, 1951**
4	Public order, decency or morality	original
5	Contempt of court	original
6	Defamation	original
7	Incitement to an offence	original

- **Memory aid (Seven grounds of 19(2)): S**overeignty, **S**ecurity, **F**riendly relations, **P**ublic order-decency-morality, **C**ontempt, **D**efamation, **I**ncitement: "**S**ee **S**ome **F**riendly **P**olice **C**atch **D**angerous **I**ncidents".

REASONABLENESS VS PROPORTIONALITY

- **Test of reasonableness:**
  - Used by courts when a law limits an FR (esp. Art. 19)

MY NOTES

- Is it reasonable? A fair balance between individual freedom and society's interests
- Not arbitrary, excessive or beyond what is necessary. E.g., banning loudspeakers at night after 10 PM protects public health and peace

- **Test of proportionality:**
  - Stricter, modern test borrowed from European constitutional law
  - Checks if State action goes too far. Four questions: legitimate goal
  - Suitable measure
  - Least restrictive way
  - Benefit to society outweighs harm to rights. E.g., total internet shutdown to control fake news may fail
  - Blocking specific sites or content may be proportionate
- **Memory aid (Proportionality four questions): L**egitimate goal, **S**uitable measure, **L**east restrictive, **B**enefit outweighs harm: "**L**aw **S**hould **L**imit **B**alanced".

FREEDOM OF ASSEMBLY: ART. 19(1)(B)

- Right to assemble peacefully and without arms:
  - Public meetings, demonstrations, processions, **hunger strikes**. A necessary corollary of free speech
  - Recognised internationally (Article 21, UDHR). Cannot be exercised on **government premises or private property without consent**
- **T.K. Rangarajan v. State of Tamil Nadu (2003):** government employees have **no fundamental right to strike** (strikes cause hardship to the public and disrupt essential services).
- Courts:
  - Assemblies must be peaceful
  - Violent or armed gatherings are not protected
- **Art. 19(3)** restrictions:
  - (1) sovereignty and integrity of India (to prevent assemblies threatening national unity)
  - (2) public order (to prevent assemblies disturbing peace, law or social harmony). Must be reasonable and proportionate

FREEDOM OF ASSOCIATION: ART. 19(1)(C)

- "Association" = persons voluntarily coming together for a common objective: political, economic, social, cultural, charitable or scientific. Covers formation, administration, functioning and continuation.

MY NOTES

KEY FACETS OF ART. 19(1)(C)

#	Facet	Meaning
1	Right to membership	Join or not join any association voluntarily
2	Right to exit	Freedom not to be a member of any association
3	State intervention in cooperatives	Does not stop State reserving or nominating weaker sections into co-operatives or their committees
4	No prior restraint	State cannot require prior permission for mere formation
5	No fundamental right to recognition	Government need not recognise an association or union
6	No guarantee of objectives	Only formation; no right to achieve goals (e.g., unlawful purposes)

- **Art. 19(4)** restrictions:
  - Sovereignty and integrity (added by 16th Amendment, 1963; prevents associations threatening unity)
  - Public order (social peace)
  - Morality (against ethical or social norms)

FREEDOM OF MOVEMENT AND RESIDENCE: ART. 19(1)(D), (E)

- 19(1)(d):
  - Move freely throughout the territory
  - 19(1)(e): reside and settle in any part. **19(5)**: reasonable restrictions in the interest of the **general public** or protection of **Scheduled Tribes**. Both complementary: individual liberty and national integration
- **Movement** = right to locomotion (roads, highways, any mode of travel). **Kharak Singh v. State of UP (1963):** right to travel across India is an integral part of personal liberty.
- **Residence**:
  - Internal migration rights
  - Unity and equality of opportunity. **U.P. Avas Evam Vikas Parishad v. Friends Co-op Housing Society (1995):** right to residence extends to the **right to shelter and to construct houses**
- Restrictions under 19(5):
  - (1) general public interest, e.g., public safety, law and order, health, environment
  - (2) protection of STs, to prevent exploitation and preserve tribal culture and autonomy

FREEDOM OF PROFESSION, TRADE OR BUSINESS: ART. 19(1)(G)

- Right to practise any profession or carry on any occupation, trade or business

MY NOTES

- Enables participation in economic life, entrepreneurship and self-reliance. Subject to **Art. 19(6)**

SCOPE: INCLUDED AND NOT INCLUDED

Point	Detail
Includes right to close the business	**Excel Wear v. Union of India (1978):** struck down **Section 25-O of the Industrial Disputes Act** (prior government permission to close an industry) as violating 19(1)(g)
No right to a particular job	Losing employment because an establishment closes is not a violation
No right to dangerous or criminal activities	Harmful or antisocial activities excluded
No inherent right to trade with government	Business with the State is not guaranteed
No protection against competition	Loss from market competition is not a violation
Workplace dignity	**Vishaka v. State of Rajasthan (1997):** sexual harassment at work violates women's right to practise a profession under 19(1)(g); **Vishaka Guidelines** issued

- **Art. 19(6)** restrictions:
  - (1) interest of the general public (licensing, professional qualifications for doctors, lawyers; prohibition of harmful trades such as liquor, drugs)
  - (2) **State monopoly**, Art. 19(6)(ii): the State may create monopolies in any trade, business, industry or service, wholly or partially
  - Citizens' right is subordinate
  - (3) necessary **professional or technical qualification**, so only skilled or certified people engage in activities affecting public health, safety or welfare (only a medical degree holder can practise as a doctor; only a licensed advocate can appear in court)
- **Memory aid (Other 19 cases):**
  - **T**.K. Rangarajan (no strike, 2003), **K**harak Singh (travel, 1963), **U**.P. Avas (shelter, 1995), **E**xcel Wear (closure, 1978), **V**ishaka (harassment, 1997): "**T**ake **K**eys
  - **U**nlock **E**ach **V**ault"

ARTICLE 20: PROTECTION IN CRIMINAL LAW

- Art. 20 has **3 clauses** dealing with arbitrary action by the Legislature, Executive and implementing authorities. It applies **only to**

MY NOTES

criminal laws (not civil or tax laws). Available to **citizens and foreigners**, but only against **conviction** (not preventive detention).

THE THREE CLAUSES

Clause	Protection	Rule
20(1)	Ex-post-facto laws	No conviction except for violating a law **in force at the time of the act**; no penalty greater than the law then in force allowed
20(2)	Double jeopardy	No person **prosecuted and punished** for the same offence more than once
20(3)	Self-incrimination	No person accused of an offence shall be **compelled to be a witness against himself**

- **Memory aid (Art. 20 clauses):** **E**x-post-facto (1), **D**ouble jeopardy (2), **S**elf-incrimination (3): "**E**very **D**ay **S**afe".

20(1): EX-POST-FACTO LAWS

- An ex-post-facto law imposes penalties or enhances punishment **retroactively**
- Art. 20(1) prohibits such enactment and application in **criminal** law
- Limited to criminal laws: retrospective **civil or tax** laws are permitted (a tax law may be retrospective; criminal liability cannot be created or enhanced retrospectively).
- Prohibits only **conviction and sentence** under a retrospective criminal law, **not the trial**: a changed trial procedure may apply to past offences.
- Does not apply to **preventive detention** or security-from-a-person measures (preventive, not punitive).
- Retrospective law is valid if it **reduces punishment or benefits the accused**.

20(2): DOUBLE JEOPARDY

- Once convicted or acquitted for an offence, no further trial or punishment for the same offence on the same facts. Source: common-law maxim **"Nemo debet bis vexari"** (no one should be put twice in peril for the same offence). Upholds finality of judgment and fairness
- Prevents harassment and abuse of process
- Two conditions to claim it:
  - (1) prosecuted once **before a court of law or judicial tribunal**
  - (2) **punished** for that offence as a result
- If the earlier proceeding did not end in punishment (investigation or departmental inquiry) it cannot be invoked.

MY NOTES

- Limited to **judicial proceedings**: not departmental, disciplinary or administrative proceedings. A public servant facing departmental action can still be prosecuted in a criminal court for the same act.

20(3): SELF-INCRIMINATION

- An accused cannot be forced, coerced or induced to give incriminating evidence
- Preserves voluntary confessions
- A shield during **investigation and trial**
- Available only to **formally accused** persons (not witnesses or others questioned in investigation)
- Only in **criminal** proceedings
- Covers **oral and documentary** evidence
- Does **not** cover physical or mechanical (non-testimonial) evidence:

NOT COVERED BY ART. 20(3)

#	Evidence
1	Compulsory production of material objects (e.g., weapons)
2	Thumb impressions, specimen signatures, handwriting samples
3	Compulsory medical or bodily examination: blood, hair, DNA samples

ART. 20 LIMITS

- **Applies to:**
  - Criminal laws only
  - Citizens and foreigners
  - Conviction (not preventive detention)
- **Does not apply to:**
  - Civil or tax laws
  - Trial procedure
  - Departmental proceedings
  - Witnesses
  - Physical evidence

ARTICLES 21 AND 21A: LIFE, LIBERTY AND EDUCATION

- **Article 21:** "No person shall be deprived of his life or personal liberty except according to the **procedure established by law**."
- Right to life and personal liberty of **every person** (citizens and foreigners). Paramount among FRs, taking precedence over other attributes of political and social order. Enforceable through **Arts. 32 and 226**, including **PILs**, extending to collective rights.
- The sanctity of human life is probably the most fundamental of human social values

MY NOTES

- Recognised in all civilised legal systems and international human-rights statements
- A successful democracy guarantees the right to protect one's life and liberty

JUDICIAL EVOLUTION OF ART. 21

- **A.K. Gopalan (1950)**:
  - **Narrow** reading: protection only against **arbitrary executive action**, not legislative action
  - Upheld "**procedure established by law**" as different from American "due process of law"
  - Any validly enacted procedure was valid even if unfair, unreasonable or unjust
- **Maneka Gandhi (1978)**:
  - **Overruled Gopalan**: procedure must be **fair, just and reasonable**, effectively importing **due process of law**
  - Protects against arbitrary executive **and** legislative action
  - Life means dignity and worth, not mere animal existence
  - "personal liberty" of the widest amplitude
- **Since**: The SC has reaffirmed Maneka Gandhi and enlarged Art. 21 into many derivative rights

GOPALAN VS MANEKA GANDHI

- **A.K. Gopalan (1950):**
  - Procedure established by law
  - Against executive action only
  - Any enacted procedure valid
  - Articles read separately
- **Maneka Gandhi (1978):**
  - Procedure must be fair, just, reasonable
  - Against executive and legislature
  - Dignity
  - Arts. 14, 19, 21 read together
- **Memory aid (Art. 21 cases):**
  - **G**opalan = **G**rudging (narrow, 1950)
  - **M**aneka = **M**ighty (broad, 1978)

DERIVATIVE RIGHTS RECOGNISED UNDER ART. 21 (NON-EXHAUSTIVE, FROM JUDICIAL INTERPRETATION)

35 DERIVATIVE RIGHTS IN THE HANDOUT (CASES NAMED WHERE GIVEN)

#	Right	#	Right
1	Live with human dignity	19	Not to be driven out of a state

MY NOTES

#	Right	#	Right
2	Decent environment: pollution-free water and air, protection from hazardous industries	20	Fair trial
3	Livelihood (**Olga Tellis v. Bombay Municipal Corporation, 1985**)	21	Prisoners to have necessities of life
4	Privacy (**K.S. Puttaswamy v. Union of India, 2017**)	22	Women to be treated with decency and dignity
5	Shelter	23	Against public hanging
6	Health and medical care (**Paschim Banga Khet Mazdoor Samity, 1996**)	24	Road access in hilly areas
7	Free education up to 14 years (**Unni Krishnan v. State of AP, 1993**; led to Art. 21A)	25	Information (precursor to RTI Act, 2005)
8	Free legal aid (**Hussainara Khatoon v. State of Bihar, 1979**)	26	Reputation as part of dignity
9	Against solitary confinement	27	Appeal from a conviction judgment
10	Speedy trial	28	Family pension
11	Against handcuffing and custodial torture	29	Social and economic justice and empowerment
12	Against inhuman treatment	30	Against bar fetters in prison
13	Against delayed execution	31	Appropriate life insurance policy
14	Travel abroad (**Satwant Singh v. Assistant Passport Officer, 1967**)	32	Sleep (**Ramlila Maidan case, 2012**)
15	Against bonded labour	33	Freedom from noise pollution
16	Against custodial harassment	34	Sustainable development
17	Emergency medical aid	35	Opportunity and equal access
18	Timely treatment in government hospitals		

- **Memory aid (Art. 21 case-rights):** **O**lga Tellis (livelihood 1985), **P**uttaswamy (privacy 2017), Paschim Banga (**H**ealth 1996), **U**nni Krishnan (education 1993), **H**ussainara (legal aid 1979), **S**atwant Singh (travel abroad 1967): "**O**ne **P**erson **H**olds **U**nlimited **H**uman **S**tatus".

MY NOTES

GOLDEN TRIANGLE: ARTS. 14, 19 AND 21

GOLDEN TRIANGLE (MANEKA GANDHI, 1978)

- **Art. 14**:
  - Equality
  - Bedrock of fairness and non-arbitrariness
  - Ensures laws under Arts. 19 and 21 meet constitutional standards
- **Art. 19**:
  - Specific freedoms
  - Curtailed only by restrictions that are reasonable and pass Art. 14's equality test
- **Art. 21**: No deprivation of life or liberty except by a fair, just and reasonable procedure
- **Test**:
  - Any law encroaching on liberty must pass **all three**: equality (14), reasonable restrictions (19), fair procedure (21)
  - Read as a harmonious whole against arbitrary legislative or executive action
- In Maneka Gandhi the SC called Arts. 14, 19 and 21 a **"golden triangle" (or trinity)**
- Earlier treated as separate, now complementary and inseparable

ARTICLE 21A: RIGHT TO EDUCATION AND THE RTE ACT

- **Article 21A:** State shall provide **free and compulsory education to all children aged 6-14 years**, as the State may determine. Elementary education only (not higher or professional). Inserted by the **86th Constitutional Amendment Act, 2002**.

BACKGROUND AND EVOLUTION

- **Earlier**: **Art. 45 (DPSP)** directed free and compulsory education up to age 14 but was non-enforceable
- **1992**: **Mohini Jain v. State of Karnataka**: right to education declared an FR at all levels including higher education
- **1993**:
  - **Unni Krishnan v. State of AP**: **overruled Mohini Jain**
  - Free education for every child up to **14 years**, thereafter subject to State's economic capacity and development
  - Primary education part of Art. 21 even before the 86th Amendment
- **2002**:
  - 86th Amendment: Art. 21A inserted
  - **Art. 45** now: State shall endeavour to provide **early childhood care and education for all children until six years**

MY NOTES

  - New Fundamental Duty **Art. 51A(k)**: parents/guardians to provide educational opportunities to children 6-14
- **2009**: **Right to Education Act, 2009**
- **Memory aid (Education timeline): M**ohini Jain 1992, **U**nni Krishnan 1993, 86th **A**mendment 2002, **R**TE Act 2009: "**M**any **U**nis **A**sk **R**ights".

RTE ACT, 2009: KEY PROVISIONS

- Objective: make education a fundamental right of every child 6-14 and ensure free and compulsory elementary education.

RTE ACT PROVISIONS

Head	Provision
(a) Coverage	All children aged **6-14**; **Class I to VIII**
(b) State responsibility	Centre and States share implementation under **Sarva Shiksha Abhiyan (SSA)** and later **Samagra Shiksha Abhiyan**; neighbourhood schools within **3 km** (primary) and **5 km** (upper primary)
(c) No discrimination	No denial of admission for lack of documents, late admission or disability; no child expelled, held back or required to pass a board exam until elementary education is complete (**no-detention policy**, partially modified in 2019)
(d) 25% reservation	Private unaided schools reserve at least **25%** seats at entry level for disadvantaged and weaker sections, with government reimbursement; social inclusion and equity
(e) Infrastructure (**Section 19**)	Pupil-teacher ratio (PTR); classrooms and building; drinking water, toilets, playgrounds, library, teaching materials, qualified teachers
(f) Teachers	Minimum qualifications set by **NCTE**; barred from private tuition and non-academic duties (except census, elections, disaster relief); teacher training and continuous evaluation
(g) Curriculum and evaluation	Conforms to Constitutional values; child-centred, holistic development; **Continuous and Comprehensive Evaluation (CCE)** instead of rote learning
(h) Punishment and screening	Bans capitation fees, screening procedures, mental harassment and corporal punishment; admission by random selection and neighbourhood norms, not entrance tests

RTE AMENDMENTS

Amendment	Change
RTE (Amendment) Act, 2012	Included children with disabilities within the Act's scope

MY NOTES

Amendment	Change
RTE (Amendment) Act, 2019	Modified no-detention policy: States may hold exams in **classes 5 and 8**; if a child fails, a **re-exam** before detention

- **Memory aid (RTE provisions):** **C**overage 6-14, **S**tate (3 km, 5 km), **N**o discrimination, **Q**uota 25% private seats, **I**nfrastructure s.19, **T**eachers (NCTE), **C**urriculum (CCE), **P**unishment banned: "**C**hildren **S**tudy **N**ow **Q**uietly, **I**mprove **T**omorrow's **C**areers **P**roperly".

ARTICLE 22: ARREST AND PREVENTIVE DETENTION

- Art. 22 grants rights in cases of arrest and detention. It deals with two kinds:

PUNITIVE VS PREVENTIVE DETENTION

- **Punitive detention:** Punishment after trial and conviction for an offence already committed
- **Preventive detention:** Detention without trial or conviction, on suspicion, to prevent a future offence

ART. 22 CLAUSES

Clause	Provision
22(1)	No arrested person detained in custody without being informed, **as soon as possible**, of the grounds of arrest; not denied the right to **consult and be defended by a legal practitioner of his choice**
22(2)	Every arrested and detained person produced before the **nearest magistrate within 24 hours**; no detention beyond without the magistrate's authority
22(3)	Two exceptions to (1) and (2): (a) an **enemy alien**; (b) a person arrested or detained under any law for **preventive detention**
22(4)	No preventive-detention law may allow detention **longer than three months** unless an **Advisory Board of High Court judges** reports before expiry that there is sufficient cause
22(5)	Detaining authority must communicate the **grounds** as soon as possible and give the earliest opportunity of **representation** against the order
22(6)	Authority need not disclose facts it considers **against the public interest**
22(7)	Parliament may (a) prescribe circumstances and classes of cases where detention beyond three months is allowed without Advisory Board opinion; (b) specify the maximum period; (c) lay down Advisory Board procedure

- **Memory aid (Art. 22 clauses):** **I**nformed (1), **P**roduced in 24 hrs (2), **E**xceptions (3), **A**dvisory Board 3 months (4), **G**rounds + representa-

MY NOTES

tion (5), **N**on-disclosure (6), **P**arliament's power (7): "**I P**ut **E**very **A**ccused **G**uarded **N**ear **P**olice".

RIGHTS AND SAFEGUARDS

ORDINARY ARREST VS PREVENTIVE DETENTION

Aspect	Ordinary arrest	Preventive detention
Who	Citizens under ordinary law; **not** enemy aliens or preventive detainees	**Citizens and aliens**
Rights/ safe-guards	Told grounds; consult and be defended by lawyer; produced before magistrate within **24 hours** (excluding travel time); no detention beyond 24 hours without magistrate's authorisa-tion	Not beyond **3 months** unless Advisory Board of HC judges approves; grounds communic-ated (except if against public interest); opportunity to make representation
Parlia-ment's powers		Prescribe conditions for >3 months without Board; max-imum periods for classes of cases; Board procedure
Excep-tions	Do not apply to court-ordered arrests, civil arrests, tax default arrests, **deportation of aliens**	

HANDOUT ALERT

44th Amendment (1978): Reduced detention without Advisory Board opinion from **3 to 2 months**, but this was **not enforced**; hence **3 months** still applies.

LEGISLATIVE COMPETENCE ON PREVENTIVE DETENTION

UNION VS STATE

Power	Subjects
Parliament exclusive	Defence of India; foreign affairs; security of India
Concurrent (Parliament and State Legislatures)	Security of a State; maintenance of public order; maintenance of supplies and services essential to the community

- **Memory aid (Exclusive subjects):** **D**efence, **F**oreign affairs, **S**ecurity of India: "**D**elhi **F**ully **S**ecures".

MY NOTES

PREVENTIVE DETENTION LAWS

PAST AND CURRENT LAWS

Status	Law
Past	Preventive Detention Act (1950); MISA (1971-78); TADA (1985-95); POTA (2002-04)
Current	**COFEPOSA (1974)** foreign exchange and smuggling; **NSA (1980)** national security; **PBMSECA (1980)** blackmarketing/essential commodities; **PITNDPSA (1988)** narcotics and psychotropic substances; **UAPA (1967**, amended 2004, 2008, 2012, 2019) unlawful/terrorist activities

- **Memory aid (Past laws):** **P**DA 1950, **M**ISA 1971-78, **T**ADA 1985-95, **P**OTA 2002-04: "**P**eople **M**ust **T**hink **P**olitely".
- **Memory aid (Current laws):** **C**OFEPOSA 1974, **N**SA 1980, **P**BMSECA 1980, **P**ITNDPSA 1988, **U**APA 1967: "**C**ops **N**ab **P**oachers, **P**ushers, **U**nlawful groups".

RIGHT AGAINST EXPLOITATION: ARTICLES 23 AND 24

ARTICLE 23: TRAFFIC, BEGAR AND FORCED LABOUR

ART. 23 CLAUSES

Clause	Provision
23(1)	Traffic in human beings, **begar** and other similar forms of forced labour are prohibited; contravention is an offence punishable in accordance with law
23(2)	State may impose **compulsory service for public purposes** (e.g., military or social service, no obligation to pay); no discrimination **only** on grounds of religion, race, caste or class

- Available to **citizens and non-citizens**
- Enforceable against the **State and private individuals**

TERMS UNDER ART. 23

Term	Meaning
Traffic in human beings	Treating humans as commodities: buying, selling or transporting men, women, children; includes immoral trafficking for prostitution, sex work, slavery, exploitative practices like the **Devadasi system**. **Immoral Traffic (Prevention) Act, 1956**
Begar	Landlords or zamindars forcing tenants/labourers to give unpaid services; violates dignity and freedom
Other similar forms of forced labour	Bonded labour or work under compulsion due to debts; work at wages **below minimum wage** (PUDR 1982). Laws: Bonded Labour System (Abolition) Act, 1976; Minimum Wages Act, 1948; Contract Labour Act, 1970; Equal Remuneration Act, 1976

MY NOTES

ART. 23 CASES

- **PUDR v. Union of India (1982)**:
  - "Force" includes **economic compulsion**
  - Wages below the statutory minimum are forced labour
- **Bandhua Mukti Morcha v. Union of India (1984)**:
  - SC expanded Art. 23 to **bonded labour and inhuman working conditions**
  - A tool for social justice
- **Memory aid (Art. 23 trio): T**raffic, **B**egar, **F**orced labour: "**T**ough **B**osses **F**orbidden".

SEX WORK AND LAW: THE DEBATE

- **Law (Immoral Traffic (Prevention) Act, 1956):**
  - Criminalises running brothels, pimping, soliciting in public places
  - Does not explicitly criminalise voluntary sex work in private
- **Legalisation pros:**
  - Better regulation
  - Protection from trafficking and disease
  - Labour rights
  - Less exploitation by middlemen
  - Hygiene and safety
- **Legalisation cons:**
  - Risk of more trafficking
  - Commodification of women
  - Legitimising patriarchal exploitation
  - Wrong social messaging
- **Experts:** Many suggest improving living conditions and social protection rather than blanket legalisation

ARTICLE 24: CHILD LABOUR

- **Article 24:**
  - Prohibits employment of children **below 14 years** in any **factory, mine or hazardous employment**
  - Available against State and private individuals
  - Protects health, safety and dignity of children. Does not forbid harmless work such as helping in family businesses, artistic pursuits or education-related work

CHILD LABOUR LAW FRAMEWORK

- **Early laws**:
  - Employment of Children Act 1938
  - Factories Act 1948
  - Mines Act 1952
  - Plantation Labour Act 1951

MY NOTES

- Motor Transport Workers Act 1951
- Bidi and Cigar Workers Act 1966
- Apprentices Act 1961
- Merchant Shipping Act 1958

- **Child Labour (Prohibition and Regulation) Act, 1986**:
  - Prohibited child employment in **18 occupations and 65 industrial processes** deemed hazardous
  - Allowed non-hazardous child labour, conflicting with Art. 21A
- **Amendment Act, 2016**:
  - Renamed **Child and Adolescent Labour (Prohibition and Regulation) Act, 1986**
  - **complete prohibition** under 14 in all employment, **except** family-run enterprises and the audio-visual entertainment industry, provided schooling is not affected
  - New category **Adolescents (14-18)**: barred from hazardous occupations such as inflammable substances, explosives, mines

JUDICIAL AND INSTITUTIONAL INTERVENTIONS

Step	Detail
M.C. Mehta v. State of Tamil Nadu (1996)	SC directed a **Child Labour Rehabilitation Welfare Fund**; employers hiring children deposit **Rs 20,000 per child**; State to ensure education, health, nutrition of rescued children
Ban of 2006	Prohibited employment of children below 14 as domestic servants or in roadside eateries, restaurants, hotels, shops, factories, spas etc.
Commissions for Protection of Child Rights Act, 2005	Created National and State Commissions for Protection of Child Rights; **Children's Courts** for speedy trial of offences against children

- **Memory aid (Child labour numbers):** **U**nder 14 (Art. 24), **O**ccupations 18 and processes 65 (1986 Act), **A**dolescents 14-18 (2016), **R**s 20,000 per child (M.C. Mehta 1996): "**U**nder **O**ne-four, **A**dolescents **R**ested".

ALSO IN THE HANDOUT

- Employment of Children Act, 1938 - Factories Act, 1948 - Mines Act, 1952 - Plantation Labour Act, 1951 - Motor Transport Workers Act, 1951 - Bidi and Cigar Workers Act, 1966 - Apprentices Act, 1961 - Merchant Shipping Act, 195 - 8 2.

RIGHT TO RELIGION: ARTICLES 25 AND 26

- Art. 25 guarantees every person's right to believe, express and practise religion freely, but the right ends where public welfare,

MY NOTES

morality and others' freedoms begin. Available to **all persons, including non-citizens**.

ART. 25 PROVISIONS

Provision	Rule
25(1)	**Freedom of conscience** and right to freely **profess, practise and propagate** religion; subject to **public order, morality, health** and other Fundamental Rights
25(2)(a)	State may regulate or restrict any **economic, financial, political or other secular activity** associated with religious practice
25(2)(b)	State may make laws for **social welfare and reform**, or to open **Hindu religious institutions of a public character** to all classes and sections of Hindus
Explanation I	Wearing and carrying of **kirpans** is included in the profession of the Sikh religion
Explanation II	"Hindus" in 25(2)(b) include persons professing **Sikh, Jaina or Buddhist** religions and their institutions

COMPONENTS OF RELIGIOUS FREEDOM

Component	Meaning
Freedom of conscience	Inner freedom to believe in God, not believe, or change one's faith
Right to profess	Openly declare one's religion (e.g., wearing a turban, cross, tilak)
Right to practise	Perform rituals, ceremonies or observances integral to the faith
Right to propagate	Spread and share beliefs; **does not include forcible conversion**

- **Memory aid (Components):** **C**onscience, **P**rofess, **P**ractise, **P**ropagate: "**C**alm **P**eople **P**ray **P**eacefully".
- **Memory aid (Explanation I and II):**
  - **K**irpan for Sikhs (Expl. I)
  - "Hindus" includes **S**ikh, **J**aina, **B**uddhist (Expl. II): "**K**eep **S**ikh, **J**ain, **B**uddhist"
- **Limits:**
  - The right cannot be used to harm others or continue discriminatory practices. Untouchability, human sacrifice or animal cruelty cannot be protected as religion
  - Religious freedom cannot override gender equality or other FRs

MY NOTES

PROPAGATE VS CONVERT

REV. STAINISLAUS V. STATE OF MP (1977)

- **Holding**: Propagation is **not** conversion
- **Forced or fraudulent conversion**: Violates others' freedom of conscience
- **Limit**:
  - Right to propagate is not absolute
  - It stops where another person's freedom begins
- **Anti-conversion laws:**
  - Several States (e.g., Gujarat, MP, Odisha, Himachal Pradesh) have laws against forced or fraudulent conversion. **Gujarat Freedom of Religion (Amendment) Act, 2021:** prior permission from the District Magistrate for conversions
  - Criminalises conversion through force, fraud or allurement (including through marriage)
  - Some provisions stayed by the Gujarat HC for ambiguity and overreach

ESSENTIAL RELIGIOUS PRACTICES (ERP) DOCTRINE

- Introduced in the **Shirur Mutt case (1954)**:
  - Courts decide whether a practice is "essential" to the religion
  - A practice that is not essential can be regulated or banned by the State

LANDMARK JUDGMENTS ON RELIGION

Case	Essence / outcome
Shirur Mutt (1954)	Distinguished religious and secular activities; origin of ERP doctrine
Stainislaus (1977)	Propagate is not convert; conversion by force or fraud prohibited
Nikhil Soni v. Union of India (2015)	Rajasthan HC banned **Santhara** (Jain fasting to death); SC **stayed** the order
Sabarimala (2018)	Women's entry upheld; balance between equality and religious autonomy
Azaan case (Allahabad HC, 2020)	Azaan is an essential practice, but **loudspeakers are not essential** and can be restricted

- **Memory aid (Religion cases in order):** **S**hirur Mutt 1954, **S**tainislaus 1977, **N**ikhil Soni 2015, **S**abarimala 2018, **A**zaan 2020: "**S**ome **S**tudents **N**ever **S**kip **A**ssembly".

ARTICLE 26: COLLECTIVE RELIGIOUS RIGHTS

- Art. 26 protects the **collective rights of religious denominations or any section thereof**, unlike Art. 25 which protects individuals.

MY NOTES

They can manage their own affairs in matters of religion, charity and property

- Not absolute: State may regulate secular or administrative matters, especially for public order, morality, health

ART. 26 CLAUSES (SUBJECT TO PUBLIC ORDER, MORALITY, HEALTH)

Clause	Right	Nature
26(a)	Establish and maintain institutions for religious and charitable purposes	Religious and charitable autonomy
26(b)	Manage its own affairs in matters of religion	Freedom in internal spiritual matters
26(c)	Own and acquire movable and immovable property	Right to hold property for religious use
26(d)	Administer such property **in accordance with law**	Subject to State regulation and legal accountability

- **Memory aid (Art. 26 clauses):** **I**nstitutions (a), **M**anage religion (b), **O**wn property (c), **A**dminister property (d): "**I M**anage **O**wn **A**ssets".
- **Religious denomination (SC test):**
  - Must have (1) a set of **common beliefs or doctrines** conducive to spiritual well-being
  - (2) a **common organisation**
  - (3) a **distinctive name**. Examples: **Ramakrishna Mission** and **Ananda Marga** are denominations
  - **Aurobindo Society** is not
- **Memory aid (Denomination test):** **B**eliefs, **O**rganisation, **N**ame: "**B**old **O**ld **N**ames".
- **Relation with property rights:** although the Right to Property ceased to be an FR (44th Amendment, 1978), denominations keep property protection under Art. 26(c) and (d). The State can acquire religious property for public purposes but must rehabilitate or protect the religious character of the shrine.

ARTICLE 25 VS ARTICLE 26

Basis	Individual freedom (25)	Collective freedom (26)
Nature of right	Individual's freedom of conscience and religion	Collective right of religious denominations to manage own affairs
Beneficiaries	All persons (citizens and non-citizens)	Only religious denominations or their sections
Scope	Profess, practise, propagate religion	Manage religious affairs, own property, establish institutions

MY NOTES

Basis	Individual freedom (25)	Collective freedom (26)
State regulation	Subject to public order, morality, health **and other FRs**; allows State intervention for social reform and secular regulation	Subject to public order, morality, health **but not to other FRs** like Art. 25 is
Secular activities	State can regulate secular activities associated with religion (25(2)(a))	State cannot interfere in essential religious matters, though secular management may be regulated
Type of right	Individual freedom of religion	Institutional freedom of religion

ARTICLES 27 AND 28: TAX AND RELIGIOUS INSTRUCTION

ARTICLE 27

- **Article 27:**
  - No person can be compelled to pay **taxes** whose proceeds go to promoting or maintaining a particular religion or religious group. Tax money must serve secular and public purposes (education, health, roads, welfare), not religious propaganda
  - Keeps equality among religions and the secular character of the State

TAX VS FEE

Aspect	Tax	Fee
Purpose	Revenue for general/public use	Payment for a specific service or regulation
Example	Religion-specific tax (e.g., Jaziya tax, unconstitutional)	Fee for facilities at a shrine or to manage a religious place
Stance	**Prohibited** if for a particular religion	**Permitted** if for secular management or services

- Fee on pilgrims visiting Vaishno Devi or Tirupati for crowd management and safety: **constitutional**.
- Tax to maintain Hindu temples or churches: **unconstitutional**.

ARTICLE 28

- Ensures secular education in State-run or State-aided institutions and protects individual conscience regarding religious instruction.

ART. 28 CLAUSES

Clause	Rule
28(1)	No religious instruction in any institution **wholly maintained out of State funds**

MY NOTES

Clause	Rule
28(2)	Restriction does not apply to institutions **administered by the State but established under a trust or endowment** requiring religious instruction
28(3)	No student in a State-**recognised or aided** institution can be compelled to take part in religious instruction or worship without consent (or guardian's consent for minors)

CLASSIFICATION OF INSTITUTIONS UNDER ART. 28

Type	Religious instruction	Compulsory attendance
(a) Wholly maintained by the State	**Prohibited**	Not applicable
(b) Administered by State but established under endowment/ trust	**Permitted**	May be compulsory, if the trust requires
(c) Recognised by the State	Permitted	**Voluntary** only
(d) Receiving aid from State funds	Permitted	**Voluntary** only

- **Memory aid (Art. 28 types):** **W**holly State (banned), **A**dministered under trust (allowed, may be compulsory), **R**ecognised (voluntary), **A**ided (voluntary): "**W**e **A**llow **R**eligion **A**mong volunteers".
- **Memory aid (Arts. 25-28 in one line):** **I**ndividual religion (25), **C**ollective denominations (26), **T**axes (27), **E**ducation instruction (28): "**I C**an **T**each **E**veryone".

CULTURAL AND EDUCATIONAL RIGHTS: ARTICLES 29 AND 30

ARTICLE 29

- Purpose:
  - Preserve cultural diversity and pluralism so no group feels alienated in the national mainstream
  - Prevents majoritarian dominance over smaller linguistic or cultural groups

ART. 29 CLAUSES

Clause	Rule	Right type
29(1)	Any section of citizens residing in India or any part with a **distinct language, script or culture** has the right to **conserve** it	**Group** (collective) right
29(2)	No citizen denied admission to a State-maintained or State-aided educational institution on grounds **only** of religion, race, caste, language or any of them	**Individual** right

- "Any section of the citizens" covers **both minorities and majority** groups

MY NOTES

- Not limited to minorities

ARTICLE 30

- Right of **religious and linguistic minorities** to establish and administer educational institutions of their choice to preserve culture and identity.

ART. 30 CLAUSES

Clause	Rule
30(1)	All minorities, religious or linguistic, may **establish and administer** educational institutions of their choice
30(1A)	If the State compulsorily acquires property of a minority educational institution, compensation must not restrict or abrogate the right (added by **44th Amendment, 1978**)
30(2)	State shall not discriminate in aid because an institution is under minority management

- Exclusive to minorities (unlike Art. 29). "Minority" is **not defined** in the Constitution
- Determined by judicial interpretation (religious or linguistic basis)

RIGHTS UNDER ART. 30(1)

- As clarified in the **Malankara Syrian Catholic College case (2007)**:

FOUR RIGHTS

#	Right
1	Choose a **governing body**; founders select trusted managing authorities
2	**Appoint staff** (teaching and non-teaching) and take disciplinary action
3	**Admit students** of their choice (eligible) and decide reasonable fee structures
4	**Use property** for the institution's own benefit

- **Memory aid (Art. 30(1) rights):** **G**overning body, **S**taff, **A**dmission, **P**roperty: "**G**ood **S**chools **A**lways **P**rosper".

NATURE AND EXTENT OF ART. 30

NATURE OF THE RIGHT

Point	Detail
Not absolute	Does not protect mismanagement or practices harmful to the institution; courts can intervene on maladministration (financial irregularities, denial of fair service conditions, academic disorder)

MY NOTES

Point	Detail
Reasonable regulations allowed	Neutral regulatory measures: teacher qualifications, curricular norms, discipline, sanitation, safety, academic excellence; must improve quality, not dilute minority control over core administrative choices (staff, internal affairs)
No reverse discrimination	Equal treatment with majority institutions, not special favours; reverse discrimination = undue advantages solely for minority status (e.g., immunity from fair academic standards); protects identity and reasonable autonomy, not superior privileges
General laws apply	Not exempt from labour and employment laws, tax laws, building and safety codes, public order, health and morality requirements; must comply with non-discriminatory uniform laws provided the core of management autonomy is not destroyed

TYPES OF MINORITY EDUCATIONAL INSTITUTIONS

Type	Position
Recognised and aided	Subject to State regulation and oversight
Recognised but unaided	More autonomy in administration; still meet academic standards
Unrecognised and unaided	Free in internal management; must follow general laws

RELATIONSHIP BETWEEN ARTICLE 29 AND ARTICLE 30

Article	Beneficiaries	Nature of right	Scope
Art. 29	**Any section of citizens**	Cultural and linguistic conservation	**Group and individual** right
Art. 30	**Religious and linguistic minorities only**	Institutional right to establish and administer educational institutions	**Exclusive to minorities**

- **Memory aid (Art. 29 vs Art. 30):** **A**ny section (29) versus **M**inorities only (30): "**A**ll for 29, **M**inorities for 30".

ARTICLE 32: CONSTITUTIONAL REMEDIES AND WRITS

- Art. 32 guarantees the right to move the **Supreme Court directly** for enforcement of FRs
- In Dr. B.R. Ambedkar's words the "**heart and soul of the Constitution**". It is itself an FR

ART. 32 CLAUSES

Clause	Provision
32(1)	Right to move the SC by appropriate proceedings for enforcement of Part III rights is **guaranteed**

MY NOTES

Clause	Provision
32(2)	SC may issue **directions, orders or writs**, including **habeas corpus, mandamus, prohibition, quo warranto, certiorari**, as appropriate, to enforce FRs
32(3)	Without prejudice to the SC's powers, **Parliament may by law empower any other court** to exercise within its jurisdiction all or any of the 32(2) powers
32(4)	The right **shall not be suspended** except as the Constitution provides (e.g., National Emergency under **Art. 359**)

THE FIVE WRITS

Writ	Literal meaning	Issued to / by	Purpose	Not available against / limits
Habeas Corpus	"To have the body of"	Court to any person or authority that has detained another; directs production before court	Test whether detention is lawful or arbitrary; if illegal, immediate release; **most effective safeguard of personal liberty**; used against unlawful arrests or preventive detention	Not when detention is lawful, ordered by a competent court, or the person is detained **outside the court's jurisdiction**
Mandamus	"We command"	Court to a **public authority**	Perform a legal duty it failed or refused to perform; accountability of officials; e.g., body failing to provide a service or benefit it is legally obliged to give	**Not** against private individuals, discretionary functions, **President and Governors**, non-statutory instructions or contractual obligations
Prohibition	"To forbid"	**Higher court to lower court or tribunal**	Prevent exceeding jurisdiction or usurping jurisdiction it does not possess; **preventive**; stops judicial or quasi-judicial authorities acting beyond law; e.g., tribunal deciding a matter outside its powers	**Not** against administrative bodies, legislative bodies or private individuals

MY NOTES

Writ	Literal meaning	Issued to / by	Purpose	Not available against / limits
Certiorari	"To be certified" or "to be informed"	Higher court to lower court or tribunal	Transfer a case to itself or **quash** an order already passed; **preventive and corrective**; for error of law, lack of jurisdiction or excess of jurisdiction. Earlier only judicial/quasi-judicial bodies; **since 1991** also against administrative authorities affecting individual rights	**Not** against legislative bodies or purely private organisations
Quo Warranto	"By what authority"	Court examines a person's claim to a **public office**	If occupying without legal authority or qualifications, restrained from acting; prevents usurpation. **Any interested citizen** can file, not just the aggrieved person	Only **substantive public offices** created by statute or Constitution; not private or purely ministerial posts

- **Memory aid (Five writs):** **H**abeas Corpus, **M**andamus, **P**rohibition, **C**ertiorari, **Q**uo Warranto: "**H**ow **M**ay **P**eople **C**hallenge **Q**uickly".
- **Memory aid (Meanings):** **B**ody (habeas), **C**ommand (mandamus), **F**orbid (prohibition), **I**nformed/certified (certiorari), **A**uthority (quo warranto): "**B**ig **C**ourts **F**ind **I**ssues **A**t once".
- **Shortcut:**
  - **Writ picker. Detention** = Habeas Corpus
  - **Duty not done** = Mandamus
  - **Lower court exceeds jurisdiction, stop it** = Prohibition
  - **Lower court's order, quash or transfer** = Certiorari
  - **Illegal claim to office** = Quo Warranto. Prohibition is **preventive** (before)
  - Certiorari is **preventive and corrective** (also after the order)

PROHIBITION VS CERTIORARI

- **Prohibition:**
  - Higher court forbids lower court/tribunal from continuing
  - Preventive
  - Stops excess of jurisdiction
  - Not against administrative or legislative bodies

MY NOTES

- **Certiorari:**
  - Higher court transfers or quashes an order already passed
  - Preventive and corrective
  - Error of law, lack of or excess of jurisdiction
  - Also against administrative authorities since 1991
  - Not against legislative or private bodies

MANDAMUS VS QUO WARRANTO

- **Mandamus:**
  - Compels a public authority to do a legal duty
  - Against public bodies
  - Not against President/Governors or private individuals
- **Quo Warranto:**
  - Tests legality of a claim to public office
  - Filed by any interested citizen
  - Only substantive statutory or constitutional offices

ARTICLE 32 VS ARTICLE 226

- SC jurisdiction under Art. 32 is **original** (petitioner approaches directly) but **not exclusive**: it is **concurrent** with HC writ jurisdiction under Art. 226. The SC cannot refuse Art. 32 when an FR violation is shown
- HCs may be more accessible for speedy local relief. A petitioner may go to either

ARTICLE 32 VS ARTICLE 226

Aspect	Supreme Court (32)	High Courts (226)
Nature	Itself a **Fundamental Right** guaranteeing the right to move the SC	A **constitutional power** of HCs to issue writs; **not** an FR
Scope	Only for enforcement of **Fundamental Rights**	FRs **and other legal or statutory rights**
Obligation	SC **cannot refuse** when an FR violation is shown	HCs exercise it **discretionarily**; may decline relief
Territorial jurisdiction	Throughout India	Ordinarily within the HC's territorial limits; can act if the cause of action arises wholly or in part within its territory
Emergency	Right to move the SC for specified FRs can be suspended by Presidential Order under **Art. 359**	HC power continues in Emergency, though enforcement of the specified FRs may be barred by an Art. 359 order

MY NOTES

Aspect	Supreme Court (32)	High Courts (226)
Basic structure	Judicial review under Art. 32 is part of basic structure	Judicial review under Art. 226 is also part of basic structure

- **Memory aid (Art. 32 vs 226):**
  - **F**R itself (32) vs power (226)
  - **S**cope (FRs only vs FRs and legal rights)
  - **O**bligation (cannot refuse vs discretionary)
  - **T**erritory (India vs HC area)
  - **E**mergency (barred vs continues)
  - **B**asic structure (both): "**F**ive **S**tars **O**ver **T**he **E**ntire **B**uilding"

ARTICLES 33, 34 AND 35

ARTICLE 33: ARMED FORCES AND SIMILAR SERVICES

- Parliament may, by law, determine to what extent Part III rights apply to, and restrict or abrogate them for, to ensure proper discharge of duties and discipline:

PERSONS COVERED BY ART. 33

Clause	Persons
(a)	Members of the **Armed Forces**
(b)	Members of Forces charged with **maintenance of public order**
(c)	Persons in any bureau or organisation set up by the State for **intelligence or counter-intelligence**
(d)	Persons employed in or in connection with the **telecommunication systems** of any Force, bureau or organisation in (a)-(c)

- **Memory aid (Art. 33 persons):** **A**rmed forces, **P**ublic-order forces, **I**ntelligence bureaus, **T**elecom staff: "**A** **P**olice **I**nspector **T**ransmits".

KEY FEATURES OF ART. 33

Feature	Detail
Exclusive power of Parliament	Only Parliament (not State legislatures); uniformity across India
Beyond judicial review	A law under Art. 33 cannot be challenged in courts for violating FRs
Scope of restrictions	Can limit or abrogate: freedom of speech and expression; forming associations/unions; joining political parties or trade unions; communicating with the press; participating in demonstrations or public meetings
Non-combatants	"Members of armed forces" includes support staff: barbers, cooks, carpenters, mechanics, tailors, chowkidars etc.

MY NOTES

Feature	Detail
Court martial	Parliament may exclude court martial tribunals from the writ jurisdiction of the SC/HCs in matters relating to FRs

- Laws under Art. 33:
  - **Army Act, 1950**
  - **Navy Act, 1950**
  - **Air Force Act, 1950**
  - **Police Forces (Restriction of Rights) Act, 1966**
  - **Border Security Force Act, 1968**

ARTICLE 34: MARTIAL LAW

- Provides for restrictions on FRs while **martial law** is in force in any area
- Parliament may **indemnify** government servants or others for acts done to restore order and **validate** punishments or actions under martial law
- **Martial law** = civil administration suspended, military takes over law and order
- "military rule"
- **not defined** in the Constitution
- Different from **Military Law**, which applies only to armed forces personnel
- Only in extraordinary situations (war, invasion, rebellion, violent resistance, breakdown of law and order)

FEATURES OF MARTIAL LAW UNDER ART. 34

#	Feature
1	Civil administration suspended; **military governs** in the specified area
2	**Abnormal powers** of the military: curbing movement/assembly, trying offenders before military authorities, stringent punishments (historically even capital sentences); only within the affected area and period
3	Parliament may pass an **Act of Indemnity** protecting officials for acts done in good faith during martial law (shield from civil or criminal proceedings)
4	Parliament may **validate punishments or sentences** imposed under martial law
5	An Act of Indemnity under Art. 34 **cannot be struck down merely for violating FRs**

MY NOTES

MARTIAL LAW VS NATIONAL EMERGENCY (ART. 352)

Aspect	Martial Law	National Emergency (352)
Grounds	Local breakdown of law and order where civil authority fails	War, external aggression or armed rebellion
Scope	Specific disturbed area	Whole country or any part, as proclaimed
Administration	Military authorities run civil administration locally	Civil government continues; Union and States function with expanded powers
Constitutional basis	No detailed code; implicitly recognised; Art. 34 allows indemnity and FR curtailment as necessary	Explicit, detailed framework in **Part XVIII (Arts. 352-360)**
Status of Govt and courts	Ordinary courts and civil administration may be suspended in the area	Government and ordinary courts continue
Fundamental Rights	FR operation may be restricted locally to restore order (Art. 34)	Art. 19 auto-suspends only for war/external aggression (**Art. 358**); President may suspend right to move courts for specified FRs (**Art. 359**), but **Arts. 20 and 21 non-derogable** (44th Amendment)
Centre-State scheme	No general reallocation; localised	Union can legislate on the State List (**Art. 353**); revenue/tenure adjustments possible (**Arts. 354, 83, 172**)
Purpose	Immediate restoration of order where civil power has collapsed	Manage grave national threats while keeping constitutional governance running

HANDOUT ALERT

Handout alert: The handout lists Emergency grounds as "war, external aggression or armed rebellion" in this table, while Art. 358 (earlier) is limited to war/external aggression. Use: **358 = war or external aggression only**; the broader list describes Art. 352 grounds.

ARTICLE 35: PARLIAMENT'S EXCLUSIVE POWER

- Vests **exclusive power in Parliament** to make laws giving effect to certain FR provisions
- States are barred. Purpose: uniformity in security, discipline of armed forces, preventive detention and minority safeguards
- Rationale:
  - National unity and integrity
  - Avoid a patchwork of State laws (e.g., preventive detention, military discipline)

MY NOTES

- Consistent enforcement of critical FRs
- Prevent misuse of FRs that may endanger sovereignty or security

SCOPE OF ART. 35

Group	Article	Subject
FR matters	**16(3)**	Residence requirements for employment under State/UT/local authority (e.g., domicile preference for certain public jobs)
	32(3)	Empowering courts other than SC/HCs to issue writs for FRs
	33	Restricting/abrogating FRs for armed forces, police, paramilitary, intelligence agencies
	34	Indemnity for martial law acts; restricting FRs in such circumstances
Punishments (Parliament must prescribe)	**17** untouchability	Protection of Civil Rights Act, 1955
	23 trafficking and forced labour	Immoral Traffic (Prevention) Act, 1956; Bonded Labour (Abolition) Act, 1976

- **Memory aid (Art. 35 list):** Art. **16(3) R**esidence, **32(3) W**rits by other courts, **33 A**rmed forces, **34 M**artial law, **17 U**ntouchability penalty, **23 T**rafficking penalty: "**R**ight **W**ay **A**nd **M**ore **U**nder **T**he law".
- **Shortcut:**
  - **Arts. 32-35. 32** Remedies (SC writs)
  - **33** Forces' rights restricted
  - **34** Martial law indemnity
  - **35** Parliament alone legislates (16(3), 32(3), 33, 34; penalties for 17 and 23)

PROPERTY AND THE SHIELDS OF 31A, 31B, 31C

HISTORY OF THE RIGHT TO PROPERTY

- **1950**: One of the **seven FRs**. **Art. 19(1)(f)**: every citizen's right to acquire, hold and dispose of property. **Art. 31**: no person (citizen or not) deprived of property except by authority of law, for a **public purpose** and with **compensation**. Became the most controversial FR (land reform, zamindari abolition, compensation disputes): constant legislature-judiciary conflict
- **1951**: **1st Amendment** (with 39th, 42nd later): protect agrarian and socio-economic laws via **Arts. 31A, 31B, 31C** and the **Ninth Schedule**

MY NOTES

- **1955**: **4th Amendment**: adequacy of compensation cannot be challenged in courts
- **1971**:
  - **25th Amendment**: word "compensation" replaced by "**amount**"
  - Further reduced judicial scrutiny
- **1978**:
  - **44th Amendment**: abolished property as an FR
  - **Arts. 19(1)(f) and 31 repealed**
  - **Art. 300A** inserted in **Part XII**: "No person shall be deprived of his property save by authority of law"
- **2007**: **I.R. Coelho**: Ninth Schedule laws placed after **24 April 1973** (Kesavananda date) can be reviewed if they violate FRs forming part of the Basic Structure
- **Shortcut:**
  - **Property amendments in order. 1st (1951), 4th (1955), 25th (1971), 39th, 42nd, 44th (1978)**: read it as 1-4-25-39-42-44. The first five protected agrarian and socio-economic laws or cut judicial scrutiny
  - The **44th ended** the Fundamental Right

POSITION TODAY (ART. 300A)

RIGHT TO PROPERTY NOW

Point	Detail
Status	**Legal (constitutional) right**, not an FR; **not part of the Basic Structure**
Protection	Against **arbitrary executive action** only; **not** against legislative action; Parliament/State legislatures can curtail or modify it by ordinary law, no constitutional amendment needed
Remedy	Cannot go directly to the SC under Art. 32; go to the **High Court under Art. 226**
Compensation	**No guaranteed constitutional right** to compensation for acquisition or requisition, unlike before 1978
Exceptions where compensation is constitutionally mandated	(a) property of a **minority educational institution** acquired under Art. 30; (b) **land under personal cultivation within ceiling limits** acquired (proviso to **Art. 31A**)
Otherwise	Governed by ordinary law such as the **Land Acquisition, Rehabilitation and Resettlement Act, 2013** (statutory, not constitutional)

- **Memory aid (Two compensation exceptions): M**inority institutions (Art. 30) and **L**and within ceiling limits (31A proviso): "**M**ust **L**ay compensation".

MY NOTES

EXCEPTIONS TO FUNDAMENTAL RIGHTS: ARTICLES 31A, 31B AND 31C

- Although FRs are justiciable, the Constitution itself saves some laws from invalidation even if they contravene Art. 14 or 19, mainly through **Arts. 31A, 31B and 31C**.

ARTICLES 31A, 31B AND 31C COMPARED

Article	What it saves	Key limits
31A (Saving of laws providing for acquisition of estates etc.)	Introduced to protect land reform laws; saves **five categories** from challenge under **Art. 14 and Art. 19**: (1) taking over estates and related rights by the State; (2) State taking over management of properties; (3) merging or restructuring corporations; (4) changing rights of company directors/shareholders; (5) changing or cancelling mining leases	State laws protected only with the **President's assent**; personal land within ceiling limit acquired needs **market-value compensation**
31B (Validation of certain Acts; Ninth Schedule)	Protects **all laws in the Ninth Schedule** from FR challenge. First added in **1951** with **13 land reform laws**; now **more than 280 laws** covering other areas	**I.R. Coelho (2007):** laws placed after **24 April 1973** can still be struck down if they violate Art. 14, 19, 21 or damage the **Basic Structure**
31C (Saving of laws giving effect to certain DPSPs)	Laws giving effect to **Art. 39(b)** (equal distribution of resources) or **39(c)** (preventing concentration of wealth) cannot be challenged under **Art. 14 or 19**	**Kesavananda Bharati (1973)** struck down the clause barring courts from asking whether the law really implements these principles; **42nd Amendment (1976)** extended 31C to **any** DPSP, cancelled in **Minerva Mills (1980)**; today only **39(b), 39(c)**; a **State law** is not immune from judicial review unless reserved for the **President's assent**

- **Memory aid (31A categories):** **E**states taken over, **M**anagement taken over, **C**orporations merged, **D**irectors/shareholders' rights changed, **M**ining leases altered: "**E**very **M**inister **C**hecks **D**irector **M**eetings".

ARTICLE 31C TIMELINE

- **Original**:
  - Laws for 39(b), 39(c) saved from Arts. 14 and 19
  - No one may question whether the law truly implements them
- **1973**: **Kesavananda Bharati** struck down the "cannot question" part

MY NOTES

- **1976**: **42nd Amendment** extended 31C to all DPSPs
- **1980**:
  - **Minerva Mills** cancelled the extension
  - Only 39(b) and (c) remain

> **HANDOUT ALERT**
> Handout alert: The 31A passage says state laws need the President's approval, and the 31C passage says a State law is not immune unless reserved for President's assent and received assent: both describe the President's assent condition for **State** laws; apply it to State laws under 31A and 31C. Ninth Schedule laws: "more than 280" per this section; the Schedules chapter may give a different count, so quote "more than 280" only from this handout.

CRITICISM, SIGNIFICANCE AND RIGHTS OUTSIDE PART III

CRITICISM (TEN POINTS)

TEN CRITICISMS

#	Criticism	Detail
1	**Excessive limitations**	Hedged with restrictions, exceptions, qualifications; Art. 19 lists more restrictions than rights; **Jaspat Roy Kapoor**: rights given with one hand, taken with the other
2	**No socio-economic rights**	Dominated by civil and political liberties; no right to work, social security, rest and leisure (guaranteed in socialist constitutions e.g., USSR, China, and welfare democracies)
3	**Lack of clarity**	Vague terms: "reasonable restriction", "public order", "morality", "public interest"; **Sir Ivor Jennings**: India's Constitution a "**paradise for lawyers**"
4	**No permanency**	Can be curtailed, amended, abolished by Parliament (Right to Property removed 1978); only the **basic structure doctrine** prevents arbitrary curtailment
5	**Suspension in Emergency**	Except Arts. 20 and 21; liberties at the mercy of executive discretion (**1975-77 Emergency**)
6	**Expensive and complicated remedy**	Approaching SC/HCs is costly and slow; beyond poor and illiterate citizens; rights serve the affluent
7	**Preventive detention**	Art. 22 allows detention without trial; rare in democracies; colonial hangover
8	**Evasion via Ninth Schedule**	Laws placed there (originally agrarian reform) insulated from judicial review; dilutes the "fundamental" character
9	**Over-emphasis on libertarian principles**	Classical liberal rights (life, liberty, property) from Western models; egalitarian/socialist principles (work, health, housing) relegated to non-justiciable **Part IV**

MY NOTES

#	Criticism	Detail
10	**No philosophical consistency**	**Jennings**: Part III lacks coherent philosophy; some rights borrowed from the West, others (abolition of untouchability) reflect India's own reform needs

- **Memory aid (Ten criticisms):**
  - **E**xcessive limits, **S**ocio-economic missing, **L**acks clarity, **N**o permanence, **S**uspension in Emergency, **E**xpensive remedy, **P**reventive detention, **E**vasion by 9th Schedule, **O**ver-libertarian, **N**o consistent philosophy: "**E**very **S**ingle **L**aw **N**eeds **S**crutiny, **E**specially **P**reventive **E**xceptions
  - **O**ur **N**ation"

SIGNIFICANCE (TEN POINTS)

TEN SIGNIFICANCES

#	Significance	Detail
1	Bedrock of democracy	Foundation; limited government; prevents authoritarianism
2	Individual liberty	Bulwark against State excess: speech, movement, association
3	Rule of Law	Constitutional supremacy; no one above the law
4	Equality and social justice	Equality before law, abolition of untouchability, no discrimination
5	Secular character	Freedom of religion; cultural and educational rights strengthen the secular fabric
6	Minority protection	Linguistic, cultural and educational rights; unity in diversity
7	Dignity of the individual	Life, liberty, personal autonomy (expanded Art. 21)
8	Check on governmental power	Enforceable legal limits via judicial review
9	Material and moral security	Material interests (property as a legal right) and moral protections (freedom of conscience)
10	Catalyst for social transformation	Dismantle social hierarchies; progressive change

- **Memory aid (Significance): B**edrock, **I**ndividual liberty, **R**ule of law, **E**quality, **S**ecular, **M**inorities, **D**ignity, **C**heck on power, **M**aterial-moral security, **C**atalyst: "**B**ig **I**deas **R**eally **E**nrich **S**ociety, **M**aking **D**emocracy **C**onfident, **M**odern, **C**hanging".

MY NOTES

RIGHTS OUTSIDE PART III

- Besides Part III, other parts give **constitutional, legal or non-fundamental rights**. They are **justiciable** but lack FR status: no direct approach to the SC under **Art. 32**
- Remedy through the **High Court under Art. 226** or an ordinary suit

RIGHTS OUTSIDE PART III

Article and Part	Provision	Nature	Remedy
265 (Part XII)	No tax levied or collected except by **authority of law**	Constitutional and legal right against arbitrary taxation by the executive	Not Art. 32; High Court or ordinary civil court
300A (Part XII)	No person deprived of property except by authority of law; replaced Art. 19(1)(f) after the 44th Amendment (1978); not an FR	Constitutional right: Government can acquire property only through a valid law and due procedure	High Court under Art. 226 or civil suit
301 (Part XIII)	Trade, commerce and intercourse throughout India shall be **free**; free movement of goods, services, people across State boundaries; national economic unity	Constitutional right against unjustified restrictions on inter-state or intra-state trade	High Court; cannot invoke Art. 32 directly
326 (Part XV)	Elections to Lok Sabha and State Assemblies on **adult suffrage**: every citizen aged **18 or above** may vote, subject to qualifications by law	Constitutional and political right to democratic participation	Election laws, election authorities or courts (e.g., wrongful deletion of a voter's name); not Art. 32

- **Memory aid (Rights outside Part III):** **T**ax (265), **P**roperty (300A), **T**rade (301), **V**ote (326): "**T**ax **P**ay **T**rade **V**ote" = 265, 300A, 301, 326.
- **Prelims links:** Right to property today: a legal right available to **any person** (Art. 300A). Right to vote and be elected: a **constitutional right** (not an FR). Right to vote relates to Art. 326.

ALSO IN THE HANDOUT

- Critics argue this provision, rare in democracies, negates the spirit of fundamental rights and reflects colonial hangovers.

MY NOTES

CASE AND NUMBER BANK

- One place to revise every case and number the handout names. Cases are grouped by Article, with the year and the holding.

CASES BY ARTICLE

Art-icle	Case (year)	Holding
12	**Ajay Hasia v. Khalid Mujib (1981)**	Instrumentality or agency test for "other authorities"
12	**Pradeep Kumar Biswas v. IICB (2002)**	Deep and pervasive State control test
12	**Rati Lal v. State of Bombay**	Judiciary is not State
12	**A.R. Antulay v. R.S. Nayak; N.S. Mirajkar v. State of Maharashtra**	Rule-making power: State; judicial power: not State
13	**Kesavananda Bharati (1973)**	Amendments can be reviewed if they destroy the Basic Structure; also struck down the "cannot question" part of 31C
13, 31B	**Waman Rao; I.R. Coelho (2007)**	Ninth Schedule laws after 24 April 1973 are open to basic-structure review
31C	**Minerva Mills (1980)**	42nd Amendment's extension of 31C to all DPSPs cancelled
15	**State of Madras v. Champakam Dorairajan (1951)**	Struck down caste-based admissions; led to Art. 15(4) via the First Amendment
15, 16	**Janhit Abhiyan v. Union of India (2022)**	EWS amendment valid; 50% cap not absolute; SC/ST/OBC exclusion not discriminatory
15(5)	**Ashoka Kumar Thakur v. Union of India (2008)**	Upheld 93rd Amendment and the 2006 Act; creamy layer excluded
16	**Indra Sawhney v. Union of India (1992)**	27% valid; creamy layer out; no promotions reservation; 50% cap; carry-forward valid
SC list	**Soosai v. Union of India (1985)**	Upheld the religion-based exclusion from the SC list
ST list	**State of Maharashtra v. Milind (2000)**	Courts cannot expand the notified ST list
18	**Balaji Raghavan v. Union of India (1996)**	National awards valid unless used as prefix or suffix
19(1)(a)	**Bijoe Emmanuel v. State of Kerala (1986)**	Right to silence; not to sing the anthem
19(1)(a)	**PUCL v. Union of India (2002)**	Voters' right to know candidates' details

MY NOTES

Article	Case (year)	Holding
19(1)(a)	**Anuradha Bhasin v. Union of India (2020)**	Internet crucial for speech, though restrictable
19(1)(a)	**Cricket Association of Bengal v. Union of India (1995)**	Right to broadcast
19(1)(a)	**Union of India v. Naveen Jindal (2004)**	Flying the national flag is a form of expression
19(1)(b)	**T.K. Rangarajan v. State of Tamil Nadu (2003)**	No fundamental right to strike for government employees
19(1)(d)	**Kharak Singh v. State of UP (1963)**	Right to travel is part of personal liberty
19(1)(e)	**U.P. Avas Evam Vikas Parishad v. Friends Co-op Housing Society (1995)**	Residence includes shelter and construction of houses
19(1)(g)	**Excel Wear v. Union of India (1978)**	Right to close a business; Section 25-O struck down
19(1)(g)	**Vishaka v. State of Rajasthan (1997)**	Workplace sexual harassment; Vishaka Guidelines
21	**A.K. Gopalan (1950)**	Narrow reading; procedure established by law
21	**Maneka Gandhi (1978)**	Overruled Gopalan; fair, just, reasonable procedure; Golden Triangle
21	**Olga Tellis v. Bombay Municipal Corporation (1985)**	Right to livelihood
21	**K.S. Puttaswamy v. Union of India (2017)**	Right to privacy
21	**Paschim Banga Khet Mazdoor Samity (1996)**	Right to health and medical care
21	**Hussainara Khatoon v. State of Bihar (1979)**	Free legal aid
21	**Satwant Singh v. Assistant Passport Officer (1967)**	Right to travel abroad
21	**Ramlila Maidan case (2012)**	Right to sleep
21, 21A	**Mohini Jain v. State of Karnataka (1992)**	Right to education at all levels (overruled)
21, 21A	**Unni Krishnan v. State of AP (1993)**	Free education to 14; led to Art. 21A
23	**PUDR v. Union of India (1982)**	Wages below minimum wage are forced labour
23	**Bandhua Mukti Morcha v. Union of India (1984)**	Bonded labour and inhuman working conditions

MY NOTES

Art-icle	Case (year)	Holding
24	**M.C. Mehta v. State of Tamil Nadu (1996)**	Rehabilitation fund; Rs 20,000 per child
25	**Shirur Mutt (1954)**	Essential Religious Practices doctrine
25	**Rev. Stainislaus v. State of MP (1977)**	Propagation is not conversion
25	**Nikhil Soni v. Union of India (2015)**	Santhara ban by Rajasthan HC stayed by the SC
25	**Sabarimala (2018)**	Women's entry upheld
25	**Azaan case (Allahabad HC, 2020)**	Azaan essential; loudspeakers not
30	**Malankara Syrian Catholic College case (2007)**	Four rights under Art. 30(1)

- **Memory aid (Art. 19 cases in year order):** **K**harak Singh 1963 (movement), **B**ijoe Emmanuel 1986, **C**ricket Association 1995, **T**.K. Rangarajan 2003: "**K**ind **B**ig **C**rowds **T**alk" puts the Art. 19 cases in year order 1963, 1986, 1995, 2003.

NUMBERS BANK

Number	What it is
6	Fundamental Rights today (7 originally); six freedoms in Art. 19
12-35	Part III
24 hours	Production before the nearest magistrate (Art. 22(2))
3 months	Preventive detention without Advisory Board (Art. 22(4)); the 44th Amendment's 2 months was not enforced
2 months	Prior notice for civil suits against the President or Governors (Art. 361)
6-14 years	Art. 21A; Art. 45 now covers up to 6 years
Below 14	Art. 24 child labour ban; **18 occupations and 65 processes** in the 1986 Act
15, 7.5, 27, 10	SC, ST, OBC, EWS quotas (percent)
50%	Reservation ceiling (Indra Sawhney); not absolute (Janhit Abhiyan)
Rs 8 lakh; 5 acres; 1000 sq ft; 100 and 200 sq yd	EWS income and asset limits
25%	Seats reserved in private unaided schools (RTE)
3 km and 5 km	Neighbourhood school distance: primary and upper primary

MY NOTES

Number	What it is
16.6% and 8.6%	SC and ST population (Census 2011)
13 and 280+	Laws in the Ninth Schedule at the start (1951) and now
24 April 1973	Date after which Ninth Schedule laws are open to basic-structure review
3743 castes; 52%	Mandal Commission estimate of backward castes and share of population

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 8, FUNDAMENTAL RIGHTS

- Only citizens get Arts. 15, 16, 19, 29 and 30. Foreigners (except enemy aliens) also get Arts. 14, 20, 21, 21A, 22, 23, 24, 25, 26, 27 and 28. The Art. 19 freedoms also reach shareholders of a company, but not the company itself.
- Creamy-layer income ceiling over time: Rs 1 lakh (1993), Rs 2.5 lakh (2004), Rs 4.5 lakh (2008), Rs 6 lakh (2013), Rs 8 lakh (2017). The list also covers constitutional post-holders (President, Vice-President, SC and HC judges, UPSC members, CAG and others), people in trade, business and industry, and holders of agricultural land above a limit.
- Extra Indra Sawhney points:
  - Reservation in promotions already in place could continue for five years only (up to 1997)
  - The 50% rule is applied every year
  - No relaxation of qualifying marks in promotions, because of efficiency under Art. 335
- Government replies to Indra Sawhney:
  - The 82nd Amendment (2000) added a power in Art. 335 to relax qualifying marks for SC/ST in promotions
  - The 76th Amendment (1994) put Tamil Nadu's 1993 Reservation Act (69%, far above 50%) in the Ninth Schedule
  - The 85th Amendment (2001) gives consequential seniority with effect from June 1995
- National awards (Bharat Ratna and Padma):
  - Instituted 1954, discontinued in 1977 by the Morarji Desai government, revived in 1980 by the Indira Gandhi government. Padma awards were also interrupted in 1978-79 and 1993-97. Limits: Padma awards at most 120 a year (excluding posthumous and NRI, foreigner or OCI awards)
  - Bharat Ratna at most three a year
- More Art. 21 rights in Lakshmikanth (39 against the handout's 35): decent burial or cremation (36), marry a person of one's choice (37), die with dignity or passive euthanasia (38), and freedom from the adverse effects of climate change (39).

MY NOTES

- Art. 21 cases in Lakshmikanth's table:
  - Francis Coralie Mullin (1981) dignity and prisoners' necessities
  - Sheela Barse (1983) against custodial harassment
  - Rural Litigation and Entitlement Kendra v. UP (1985) decent environment
  - Parmanand Katara (1989) emergency medical aid
  - Shantistar Builders (1990) shelter
  - Common Cause (2018) die with dignity (passive euthanasia)
- Writ extras:
  - Habeas corpus can be issued against public authorities and private individuals, but not in a contempt proceeding of a legislature or court. Prohibition directs inactivity while mandamus directs activity
  - Prohibition lies only against judicial and quasi-judicial bodies. Before 1950 only the Calcutta, Bombay and Madras High Courts could issue writs
  - Parliament has not yet empowered any other court under Art. 32(3)
- Property-shield details:
  - The compensation rule for personal-cultivation land within ceiling limits (Art. 31A) came from the 17th Amendment (1964)
  - Art. 31C was inserted by the 25th Amendment (1971)
  - Waman Rao (1980) fixed the 24 April 1973 cut-off for Ninth Schedule review. The Ninth Schedule actually holds 282 laws (last entry is numbered 284, entries 87, 92 and 130 were deleted and one entry is 257A)
- Lakshmikanth differs:
  - Case years and one case. It gives Balaji Raghavan as 1995 (handout 1996) and Malankara Syrian Catholic College as 2006 (handout 2007). It names Hussainara Khatoon (1979) for speedy trial and M.H. Hoskot v. State of Maharashtra (1978) for free legal aid, whereas the handout gives Hussainara for legal aid. Use the handout in class
  - Keep LK's version in mind
- Lakshmikanth differs:
  - Art. 19(2) grounds. It counts eight (public order and decency or morality listed separately) and says the 1st Amendment (1951) added friendly relations, public order and incitement to an offence. The handout lists seven grounds and says only friendly relations came in 1951. Use the handout's seven
  - The 16th Amendment (1963) added sovereignty and integrity in both

MY NOTES

- Lakshmikanth differs:
  - Property amendments. It names the 1st, 4th, 7th, 25th, 39th, 40th and 42nd as the amendments fought over property, with the 44th (1978) ending the FR. The handout lists 1st, 4th, 25th, 39th, 42nd and 44th. Use the handout's 1-4-25-39-42-44
  - LK adds the 7th and 40th

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

What is Part III of the Constitution?	Fundamental Rights, Articles 12 to 35; inspired largely by the American Bill of Rights; called the 'Magna Carta of India'.
How many FRs were there originally and now?	Seven originally; six now. Right to Property (Art. 31) was removed by the 44th Amendment (1978) and became Art. 300A.
Article spans of the six FRs?	Equality 14-18; Freedom 19-22; Exploitation 23-24; Religion 25-28; Cultural and Educational 29-30; Constitutional Remedies 32.
Who called Art. 32 the 'heart and soul of the Constitution'?	Dr. B.R. Ambedkar.
What does Art. 12 say 'State' includes?	Government and Parliament of India; Government and Legislature of each State; all local authorities; other authorities within India or under Government of India control.
Which cases gave tests for 'other authorities' under Art. 12?	Ajay Hasia v. Khalid Mujib (1981): instrumentality or agency test; Pradeep Kumar Biswas v. IICB (2002): deep and pervasive State control; plus the public function test.
Is the judiciary 'State' under Art. 12?	Rati Lal: no. Antulay and Mirajkar: State for rule-making power, not State for exercise of judicial power.
What does Art. 13 do?	Laws that violate Part III are void to the extent of violation: 13(1) pre-1950 laws, 13(2) post-1950 laws, 13(3) meaning of law, 13(4) constitutional amendments (24th Amendment, 1971).

Origin of 'equality before law' versus 'equal protection of laws'?	Equality before law: British, negative concept (Rule of Law). Equal protection of laws: American, positive concept.
What are the two tests of reasonable classification?	Intelligible differentia and rational nexus with the object of the law.
Dicey's three elements of the Rule of Law and India's position?	Absence of arbitrary power and equality before law (followed in India); primacy of individual rights (replaced by constitutional FRs).
Name the exceptions to Art. 14.	President and Governors (361); publication of legislative proceedings (361A); legislative privileges (105, 194); Art. 31C; foreign sovereigns and diplomats; United Nations.
What are the five grounds in Art. 15?	Religion, race, caste, sex, place of birth. Art. 16 adds descent and residence.
Which clauses of Art. 15 add special provisions?	15(3) women and children; 15(4) SEBCs, SCs, STs (1st Am., 1951); 15(5) admissions including private unaided (93rd Am., 2005); 15(6) EWS 10% (103rd Am., 2019).
Which part of Art. 15 binds private persons too?	Art. 15(2): access to shops, restaurants, hotels, public entertainment, wells, tanks, bathing ghats, roads and places of public resort.
What do 16(3), 16(4), 16(4A), 16(4B), 16(5), 16(6) cover?	Parliament's residence rules; reservation for backward classes; promotions for SC/ST; carry-forward of unfilled vacancies; religious posts; EWS 10%.
What are the vertical and horizontal reservations?	Vertical: SC 15, ST 7.5, OBC 27, EWS 10 (Arts. 15(4), 16(4), 15(6), 16(6)). Horizontal: within each category, e.g., 33% women (Arts. 15(3), 16(1)).
What did Janhit Abhiyan (2022) hold?	EWS amendment valid; 50% cap is not absolute; excluding SC/ST/OBC from EWS is not discriminatory.

MY NOTES

EWS eligibility numbers?	Family income below Rs 8,00,000; agricultural land below 5 acres; flat below 1000 sq ft; plot below 100 sq yd (notified municipalities) or 200 sq yd (elsewhere).
What are the five conditions of Indra Sawhney (1992)?	27% valid; creamy layer excluded; no reservation in promotions under 16(4); 50% cap except in exceptional circumstances; carry-forward valid within the cap, with a permanent statutory body recommended.
Which Amendments followed Indra Sawhney for SC/ST?	77th (1995) promotions; 81st (2000) backlog beyond 50%; 85th (2001) consequential seniority.
Which Articles list SCs and STs?	Art. 341 (SC) and Art. 342 (ST); lists change only by Parliament by law.
Which religions can have SC status?	Hindus (1950), Sikhs (1956) and Buddhists (1990); Muslim and Christian Dalits are excluded (Soosai 1985); ST status has no religion limit.
What did the 102nd Amendment (2018) add?	Art. 338B (NCBC constitutional status) and Art. 342A (Central List of SEBCs); the 105th Amendment (2021) restored States' power over State OBC lists.
What is Art. 17?	Abolition of untouchability; practice in any form forbidden; enforcement of disability is a punishable offence; Parliament prescribes punishment under Art. 35; enforceable against private individuals too.
Name the laws under Art. 17.	Untouchability (Offences) Act, 1955; Protection of Civil Rights Act (renamed after 1976); SC/ST (Prevention of Atrocities) Act, 1989.
What are the four rules of Art. 18?	No titles from the State (except military or academic); no titles from foreign States to citizens; foreigners in office need the President's consent for titles; presents and emoluments also need consent.

MY NOTES

What did Balaji Raghavan (1996) hold?	Bharat Ratna and Padma awards are valid; not titles unless used as prefix or suffix, in which case they may be forfeited.
List the six freedoms of Art. 19.	Speech and expression (a); assemble peaceably (b); associations, unions, co-operatives (c); move freely (d); reside and settle (e); profession, trade, business (g). Property 19(1)(f) was removed in 1978.
Which clauses restrict each Art. 19 freedom?	19(2) speech; 19(3) assembly; 19(4) association; 19(5) movement and residence; 19(6) profession.
Seven grounds of Art. 19(2)?	Sovereignty and integrity (16th Am., 1963); security of the State; friendly relations with foreign States (1st Am., 1951); public order, decency or morality; contempt of court; defamation; incitement to an offence.
What are the four proportionality questions?	Legitimate goal; suitable measure; least restrictive way; benefit to society outweighs harm to individual rights.
What does Art. 20 protect against?	20(1) ex-post-facto laws; 20(2) double jeopardy (prosecution and punishment); 20(3) self-incrimination. Applies to criminal law only; citizens and foreigners.
Which evidence is outside Art. 20(3)?	Material objects, thumb impressions, specimen signatures, handwriting samples, blood, hair and DNA samples.
Gopalan (1950) versus Maneka Gandhi (1978)?	Gopalan: narrow, procedure established by law, executive action only. Maneka Gandhi overruled it: fair, just and reasonable procedure; Arts. 14, 19, 21 the Golden Triangle.
Which cases gave derivative rights of Art. 21?	Olga Tellis 1985 (livelihood); Puttaswamy 2017 (privacy); Paschim Banga 1996 (health); Unni Krishnan 1993 (education); Hussainara Khatoon 1979 (legal aid); Satwant Singh 1967 (travel abroad); Ramlila Maidan 2012 (sleep).

MY NOTES

What is Art. 21A and the RTE Act, 2009?	Free and compulsory education for children 6-14 (86th Am., 2002); RTE: Class I-VIII, schools within 3 km and 5 km, 25% private seats, no board exam till elementary, NCTE qualifications, CCE, no corporal punishment.
What are the Art. 22 clauses?	(1) grounds and lawyer; (2) 24 hours before magistrate; (3) exceptions: enemy alien and preventive detention; (4) Advisory Board beyond 3 months; (5) grounds and representation; (6) non-disclosure; (7) Parliament's powers.
Who may legislate on preventive detention?	Parliament alone: defence, foreign affairs, security of India. Parliament and States: security of a State, public order, supplies and services essential to the community.
Name the current preventive detention laws.	COFEPOSA 1974; NSA 1980; PBMSECA 1980; PITNDPSA 1988; UAPA 1967 (amended 2004, 2008, 2012, 2019).
What does Art. 23 prohibit?	Traffic in human beings, begar and other forced labour; State may impose compulsory service for public purposes without discrimination on religion, race, caste or class; binds private persons too.
Art. 24 and the child labour laws?	No child under 14 in a factory, mine or hazardous employment. 1986 Act: 18 occupations and 65 processes; 2016 amendment: Child and Adolescent Labour Act, adolescents 14-18 barred from hazardous work.
Art. 25 versus Art. 26?	Art. 25: individual, all persons, subject to public order, morality, health and other FRs. Art. 26: collective right of denominations, not subject to other FRs.
What is the test of a religious denomination?	Common beliefs or doctrines; common organisation; a distinctive name (Ramakrishna Mission and Ananda Marga are; Aurobindo Society is not).
Which case gave the Essential Religious Practices doctrine?	Shirur Mutt (1954); a practice not essential can be regulated or banned by the State.

MY NOTES

What is Art. 27 and how does a tax differ from a fee?	No compulsion to pay taxes for promoting any particular religion; a fee for services or management (e.g., crowd management at a shrine) is permitted.
Types of institutions under Art. 28?	Wholly State-maintained: no religious instruction; administered by State under trust: allowed, may be compulsory; recognised or aided: instruction allowed but attendance voluntary.
Art. 29 versus Art. 30?	Art. 29: any section of citizens; group right to conserve language, script, culture and individual right against denial of admission. Art. 30: religious and linguistic minorities only; right to establish and administer educational institutions.
What did Art. 30(1A) add and when?	Compensation for compulsory acquisition of a minority institution's property must not restrict the right; added by the 44th Amendment, 1978.
Name the five writs and their meanings.	Habeas Corpus (to have the body); Mandamus (we command); Prohibition (to forbid); Certiorari (to be certified); Quo Warranto (by what authority).
Art. 32 versus Art. 226?	Art. 32 is itself an FR and the SC cannot refuse; for FRs only. Art. 226 is a constitutional power of HCs, discretionary, for FRs and other legal rights.
What do Arts. 33, 34 and 35 do?	33: Parliament restricts FRs of forces and intelligence staff; 34: indemnity and validation during martial law; 35: Parliament alone legislates on 16(3), 32(3), 33, 34 and penalties for 17 and 23.
Position of the right to property today?	Art. 300A, a legal right for any person; protection only against executive action; remedy under Art. 226; compensation mandatory only for minority institutions (Art. 30) and personal land within ceiling limits (proviso to 31A).

MY NOTES

What do Arts. 31A, 31B and 31C protect?	31A: five categories of land and corporate laws; 31B: Ninth Schedule laws; 31C: laws for 39(b) and (c). All shield laws from challenge under Arts. 14 and 19 (31B from FR challenges), but not from the Basic Structure.
Which rights lie outside Part III?	Art. 265 (tax by authority of law); Art. 300A (property); Art. 301 (free trade); Art. 326 (adult suffrage, 18 years). Remedy through the High Court, not Art. 32.
Mains 2013: Discuss Section 66A of IT Act, with reference to its alleged violation of Article 19 of the Constitution.	Intro: The handout does not discuss Section 66A itself, so the answer is built on Art. 19(1)(a) and the restriction tests in the notes. Body: Art. 19(1)(a) covers speech through any medium and the right to receive information; Anuradha Bhasin (2020) treats the internet as crucial for free speech though restrictable; Art. 19(2) allows restrictions only on seven grounds: sovereignty and integrity, security of the State, friendly relations, public order, decency or morality, contempt of court, defamation, incitement to an offence; A restriction must pass reasonableness (fair balance, not arbitrary or excessive) and proportionality (legitimate goal, suitable, least restrictive, benefit outweighs harm); A blanket restriction fails where a narrower one such as blocking specific content may pass. Close: Speech limits stand only if they fit the 19(2) grounds and pass the reasonableness and proportionality tests.

MY NOTES

Mains 2014: What do you understand by the concept "freedom of speech and expression"? Does it cover hate speech also? Why do the films in India stand on a slightly different plane from other forms of expression? Discuss.	Intro: Art. 19(1)(a) guarantees expression through words, writing, printing, pictures, films, art and any medium; the handout does not discuss hate speech or film regulation by name. Body: Scope: the right to express views, criticise government policy, receive information, press freedom without special privileges, silence (Bijoe Emmanuel 1986), broadcast (Cricket Association 1995), fly the flag (Naveen Jindal 2004); Not absolute: Art. 19(2) grounds include public order, decency or morality, defamation and incitement to an offence, which are the grounds against which hate speech is tested; Films are named in the handout as a form of expression covered by 19(1)(a) and so fall under the same 19(2) grounds; The handout gives no separate rule for films, so the answer should say this and rely on the 19(2) grounds. Close: Freedom of expression is wide but bounded by the seven grounds of Art. 19(2) and the reasonableness and proportionality tests.

MY NOTES

Mains 2015: Does the right to clean environment entail legal regulation on burning crackers during Diwali? Discuss in the light of Article 21 of Indian Constitution and judgements of the apex court in this regard.	Intro: Art. 21 has been read to include a decent environment, so State regulation of polluting acts can be justified as protecting a right. Body: Art. 21 derivative rights include a decent environment with pollution-free water and air, freedom from noise pollution, health and medical care, sustainable development and the right to sleep (Ramlila Maidan 2012); Maneka Gandhi (1978): life means dignity, not mere animal existence; Rights of others are limited by public interest: the loudspeaker curb after 10 PM is cited as a reasonable restriction protecting public health and peace; Restrictions must pass the proportionality questions: legitimate goal, suitable, least restrictive and benefit outweighing harm; Religious practice under Art. 25 is subject to public order, morality, health and other FRs. Close: Art. 21 and the limits on Arts. 19 and 25 support reasonable regulation of crackers; the handout names no specific cracker judgement.
Mains 2015: In the integrity index of Transparency International, India stands very low. Discuss briefly the legal, political, social and cultural factors that have caused the decline of public morality in India.	Intro: The handout is silent on public morality and corruption, so only related constitutional ideas can be used. Body: Legal: the Rule of Law and Art. 14 require that no one is above the law and that government acts on law and not personal discretion; Legal: Art. 14 forbids arbitrary and unguided discretion; Art. 12 identifies bodies against whom FRs lie; Political and social: Art. 18 abolished titles that created loyal classes under the British; Art. 17 and Art. 15 attack social hierarchies; Handout gap: no direct material on integrity indices, so any further factors must come from other chapters. Close: Constitutional equality and the Rule of Law are the handout's tools against arbitrary power; the rest needs other sources.

MY NOTES

Mains 2017: Examine the scope of Fundamental Rights in the light of the latest judgement of the Supreme Court on Right to Privacy.	Intro: K.S. Puttaswamy v. Union of India (2017) places the right to privacy within Art. 21 as a derivative right. Body: Maneka Gandhi (1978): Art. 21 needs a fair, just and reasonable procedure and life means dignity; Arts. 14, 19 and 21 form the Golden Triangle and any law curtailing liberty must pass all three tests; Privacy is protected as an intrinsic part of life and personal liberty together with the freedoms of Part III; FRs are not absolute: reasonable restrictions and proportionality apply; Arts. 20 and 21 cannot be suspended even in an Emergency; Enforcement lies under Arts. 32 and 226 and through PILs. Close: Privacy enlarges Art. 21 and shows FRs growing through judicial interpretation while staying within reasonable limits.
Mains 2022: "Right of movement and residence throughout the territory of India are freely available to the Indian citizens, but these rights are not absolute." Comment.	Intro: Art. 19(1)(d) and (e) give citizens free movement and residence anywhere in India; Art. 19(5) shows these rights are not absolute. Body: Art. 19(1)(d) is the right to locomotion and Kharak Singh (1963) links travel to personal liberty; Art. 19(1)(e) supports internal migration and U.P. Avas (1995) extends residence to shelter and building houses; Both are available to citizens only and are complementary, serving individual liberty and national integration; Art. 19(5) permits restrictions in the interest of the general public such as public safety, law and order, health or environment, and for the protection of Scheduled Tribes; Restrictions must be reasonable and proportionate; Art. 19 freedoms can be suspended in a National Emergency. Close: Free movement and residence are cornerstones of liberty and unity, limited by Art. 19(5) for public interest and tribal protection.

MY NOTES

Mains 2023: Explain the constitutional provisions of Gender Justice with the help of relevant Constitutional Provisions and case laws.	Intro: The handout offers provisions on equality, special measures and dignity that bear on gender justice; it does not collect them under that heading. Body: Art. 14 equality; Art. 15(1) bans discrimination on sex and Art. 15(3) allows special provisions for women and children, such as seats for women in panchayats and municipalities; Art. 16(2) bars discrimination on sex in public jobs; horizontal reservation gives 33% of seats to women within each category; Art. 21 includes the right of women to be treated with decency and dignity; Vishaka (1997): workplace sexual harassment violates Art. 19(1)(g) and the Vishaka Guidelines were issued; Art. 23 and the Immoral Traffic (Prevention) Act 1956 tackle trafficking; Sabarimala (2018): women's entry upheld; religious freedom cannot override gender equality. Close: Equality, special provisions, dignity and case law together carry gender justice in Part III.

MY NOTES

Mains 2024: Right to privacy is intrinsic to life and personal liberty and is inherently protected under Article 21 of the Constitution. Explain. In this reference discuss the law relating to DNA testing of child in the womb to establish its paternity.

Intro: Privacy is a derivative right of Art. 21 (Puttaswamy 2017); the handout does not cover DNA testing of a child in the womb or paternity. Body: Art. 21 protects every person and Maneka Gandhi (1978) made the procedure fair, just and reasonable with dignity as the core; Puttaswamy (2017) is listed among the derivative rights, with reputation as part of dignity; Art. 20(3) bars compelling an accused to be a witness against himself but does not cover blood, hair or DNA samples, which are non-testimonial; Rights are subject to reasonable restrictions and the proportionality test; The handout gives no rule on testing a child in the womb, so state this limit and apply the principles above. Close: Privacy and dignity sit within Art. 21, and DNA samples fall outside Art. 20(3), but the handout supplies no specific rule on paternity tests of an unborn child.

Trap 1 · Persons versus citizens

Art. 14 (equality) and Art. 21 (life) protect all persons, foreigners included. Art. 15 and the six freedoms of Art. 19 are for citizens only. *Rule: equal law, life and crime shields = every person; discrimination ban, jobs and the six freedoms = citizens.*

Trap 2 · Art. 16(4) versus 16(5)

The handout once calls OBC job reservation 'Article 16(5)', but the clause list gives 16(5) to religious posts. *Rule: OBC reservation in jobs = 16(4); religious-institution posts = 16(5); EWS = 16(6).*

Trap 3 · Two months or three months

The 44th Amendment cut detention without an Advisory Board from 3 to 2 months, but it was never brought into force. *Rule: answer 3 months for Art. 22(4); the 2 months exists only on paper.*

Trap 4 · Padma awards are not titles

Art. 18 bans titles, yet Bharat Ratna and the Padma awards (1954) are valid because they are not titles of nobility (Balaji Raghavan). *Rule: awards are safe unless used as a prefix or suffix to the name; then they can be forfeited.*

MY NOTES

QUICK QUIZ

Q1. A Writ of Prohibition is an order issued by the Supreme Court or High Courts to:

1. a government officer prohibiting him from taking a particular action
2. the Parliament or Legislative Assembly to pass a law on Prohibition
3. the lower court prohibiting continuation of proceedings in a case
4. the Government prohibiting it from following an unconstitutional policy

Q2. With reference to the writs issued by the Courts in India, consider the statements: 1. Mandamus will not lie against a private organisation unless it is entrusted with a public duty. 2. Mandamus will not lie against a Company even though it may be a Government Company. 3. Any public minded person can be a petitioner to move the Court to obtain the writ of Quo Warranto. Which are correct?

1. 1 and 2 only
2. 2 and 3 only
3. 1 and 3 only
4. 1, 2 and 3

Q3. Consider the statements on Bharat Ratna and Padma Awards: 1. They are titles under Article 18(1). 2. Padma Awards, instituted in 1954, were suspended only once. 3. Bharat Ratna is restricted to a maximum of five in a year. Which are not correct?

1. 1 and 2 only
2. 2 and 3 only
3. 1 and 3 only
4. 1, 2 and 3

Q4. 'Right to Privacy' is protected under which Article of the Constitution of India?

1. Article 15
2. Article 19
3. Article 21
4. Article 29

Q5. A legislation which confers on the executive or administrative authority an unguided and uncontrolled discretionary power in the matter of application of law violates which Article?

1. Article 14
2. Article 28
3. Article 32
4. Article 44

Q6. What is the position of the right to property in India?

1. Legal right available to citizens only
2. Legal right available to any person
3. Fundamental Right available to citizens only
4. Neither Fundamental Right nor legal right

Q7. Which category of Fundamental Rights incorporates protection against untouchability as a form of discrimination?

1. Right against Exploitation
2. Right to Freedom
3. Right to Constitutional Remedies
4. Right to Equality

Q8. Right to Privacy is protected as an intrinsic part of Right to Life and Personal Liberty. Which correctly implies this?

1. Article 14 and the 42nd Amendment
2. Article 17 and the Directive Principles
3. Article 21 and the freedoms guaranteed in Part III
4. Article 24 and the 44th Amendment

MY NOTES

Q9. Right to vote and to be elected in India is a:

1. Fundamental Right
2. Natural Right
3. Constitutional Right
4. Legal Right

Q10. Which are envisaged by the Right against Exploitation? 1. Prohibition of traffic in human beings and forced labour 2. Abolition of untouchability 3. Protection of the interests of minorities 4. Prohibition of employment of children in factories and mines

1. 1, 2 and 4 only
2. 2, 3 and 4 only
3. 1 and 4 only
4. 1, 2, 3 and 4

Q11. Which judgment overruled A.K. Gopalan (1950) and made the procedure under Art. 21 fair, just and reasonable?

1. Kesavananda Bharati (1973)
2. Maneka Gandhi (1978)
3. Minerva Mills (1980)
4. Unni Krishnan (1993)

Q12. Under Art. 22(4), preventive detention beyond three months needs the approval of:

1. A Magistrate
2. A Sessions Judge
3. An Advisory Board of High Court judges
4. The President

Q13. Which was NOT held by the Supreme Court in Indra Sawhney (1992)?

1. Creamy layer to be excluded
2. Total reservation not to exceed 50% except in exceptional circumstances
3. Reservation in promotions is not permissible under Art. 16(4)
4. EWS reservation of 10% is valid

Q14. Which of the following is NOT protected by Art. 20(3) against self-incrimination?

1. Oral statement of an accused
2. Documentary evidence in possession of the accused
3. Compulsory giving of a DNA or blood sample
4. A confession induced by coercion

Q15. Article 31C today protects laws giving effect to:

1. Any Directive Principle
2. Article 39(b) and (c) only
3. Article 46 only
4. All of Part IV except Art. 45

Q16. Article 21A, free and compulsory education for children aged 6-14, was inserted by which Amendment?

1. 44th Amendment, 1978
2. 86th Amendment, 2002
3. 93rd Amendment, 2005
4. 103rd Amendment, 2019

Q17. Which clause of Art. 13 deals with constitutional amendments, added by the 24th Amendment (1971)?

1. 13(1)
2. 13(2)
3. 13(3)
4. 13(4)

Q18. PYQ 2024: A Writ of Prohibition is an order issued by the Supreme Court or High Courts to: [UPSC CSE – 2024 Prelims]

1. a government officer prohibiting him from taking a particular action.
2. the Parliament/Legislative Assembly to pass a law on Prohibition.
3. the lower court prohibiting continuation of proceedings in a case.
4. the Government prohibiting it from following an unconstitutional policy.

MY NOTES

Q19. PYQ 2022: With reference to the writs issued by the Courts in India, consider the following statements: [UPSC CSE – 2022 Prelims]
1. Mandamus will not lie against a private organisation unless it is entrusted with a public duty.
2. Mandamus will not lie against a Company even though it may be a Government Company. 3.Any public minded person can be a petitioner to move the Court to obtain the writ of Quo Warranto. Which of the statements given above are correct?

1. 1 and 2 only
2. 2 and 3 only
3. 1 and 3 only
4. 1, 2 and 3

Q20. PYQ 2022: Consider the following statements in respect of Bharat Ratna and Padma Awards: [UPSC CSE – 2022 Prelims]
1. Bharat Ratna and Padma Awards are titles under the Article 18(1) of the Constitution of India.
2. Padma Awards, which were instituted in the year 1954, were suspended only once.
3. The number of Bharat Ratna Awards is restricted to a maximum of five in a particular year. Which of the above statements are not correct?

1. 1 and 2 only
2. 2 and 3 only
3. 1 and 3 only
4. 1, 2 and 3

Q21. PYQ 2021: 'Right to Privacy' is protected under which Article of the Constitution of India? [UPSC CSE Prelims 2021]

1. Article 15
2. Article 19
3. Article 21
4. Article 29

Q22. PYQ 2021: A legislation which confers on the executive or administrative authority an unguided and uncontrolled discretionary power in the matter of application of law violates which one of the following Articles of the Constitution of India? [UPSC CSE Prelims 2021]

1. Article 14
2. Article 28
3. Article 32
4. Article 44

Q23. PYQ 2021: What is the position of the right to property in India? [UPSC CSE Prelims 2021]

1. Legal right available to citizens only
2. Legal right available to any person
3. Fundamental Right available to citizens only
4. Neither Fundamental Right nor legal right

Q24. PYQ 2020: Which one of the following categories of Fundamental Rights incorporate protection against untouchability as a form of discrimination? [UPSC CSE Prelims 2020]

1. Right against Exploitation
2. Right to Freedom
3. Right to Constitutional Remedies
4. Right to Equality

Q25. PYQ 2019: Which Article of the Constitution of India safeguards one's right to marry the person of one's choice? [UPSC CSE Prelims 2019]

1. Article 19
2. Article 21
3. Article 25
4. Article 29

MY NOTES

Q26. PYQ 2019: In the context of polity, which one of the following would you accept as the most appropriate definition of liberty? [UPSC CSE Prelims 2019]

1. Protection against the tyranny of political rulers
2. Absence of restraint
3. Opportunity to do whatever one likes
4. Opportunity to develop oneself fully

Q27. PYQ 2018: Right to Privacy is protected as an intrinsic part of Right to Life and Personal Liberty. Which of the following in the Constitution of India correctly and appropriately imply the above statement? [UPSC CSE Prelims 2018]

1. Article 14 and the provisions under the 42nd Amendment to the Constitution
2. Article 17 and the Directive Principles of State Policy in Part IV
3. Article 21 and the freedoms guaranteed in Part III
4. Article 24 and the provisions under the 44th Amendment to the Constitution

Q28. PYQ 2017: Right to vote and to be elected in India is a: [UPSC CSE Prelims 2017]

1. Fundamental Right
2. Natural Right
3. Constitutional Right
4. Legal Right

Q29. PYQ 2017: Which of the following are envisaged by the Right against Exploitation in the Constitution of India? [UPSC CSE Prelims 2017]

1. Prohibition of traffic in human beings and forced labour
2. Abolition of untouchability
3. Protection of the interests of minorities
4. Prohibition of employment of children in factories and mines Select the correct answer using the code given below:

1. 1, 2 and 4 only
2. 2, 3 and 4 only
3. 1 and 4 only
4. 1, 2, 3 and 4

Q30. PYQ 2017: In the context of India, which one of the following is the correct relationship between Rights and Duties? [UPSC CSE Prelims 2017]

1. Rights are correlative with Duties.
2. Rights are personal and hence independent of society and Duties.
3. Rights, not Duties, are important for the advancement of the personality of the citizen.
4. Duties, not Rights, are important for the stability of the State.

Q31. PYQ 2015: The ideal of 'Welfare State' in the Indian Constitution is enshrined in its: [UPSC CSE Prelims 2015]

1. Preamble
2. Directive Principles of State Policy
3. Fundamental Rights
4. Seventh Schedule

Answers: Q1 c, Q2 c, Q3 d, Q4 c, Q5 a, Q6 b, Q7 d, Q8 c, Q9 c, Q10 c, Q11 b, Q12 c, Q13 d, Q14 c, Q15 b, Q16 b, Q17 d, Q18 c, Q19 c, Q20 d, Q21 c, Q22 a, Q23 b, Q24 d, Q25 b, Q26 d, Q27 c, Q28 c, Q29 c, Q30 a, Q31 b

MY NOTES

CHAPTER 6 · HANDOUT PAGES ON THE BASIC STRUCTURE DOCTRINE

06 Basic Structure

MEDIUM PRIORITY Mains PYQs quoted: **2014, 2016, 2019**

Prelims PYQs: **1994, 2018, 2020**

MY NOTES

EXAM LENS

Prelims hooks

- the Constitution does not itself define the basic structure (2020)
- a Ninth Schedule law can be placed by Parliament but its validity can be examined (2018)
- basic structure theory means certain features cannot be abrogated (1994)
- order of cases (Shankari Prasad, Sajjan Singh, Golaknath, Kesavananda)
- Golaknath bench of 11 and Kesavananda bench of 13
- what the 24th, 25th, 29th, 39th and 42nd Amendments did
- Article 31C, 329A, 368(4) and (5)
- which cases are linked to Ninth Schedule
- which items are basic features.
- Handout stresses: The handout builds the doctrine as a chain of cases (Shankari Prasad to Coelho) (Sections 2 to 5)
- Handout stresses: A 26-row table of cases and the basic features each declared (Sections 6 and 7)
- Handout stresses: Kesavananda Bharati (1973): 13 judges, 7:6, limited amending power, cut-off 24 April 1973 (Section 4)
- Handout stresses: Ninth Schedule treatment in Waman Rao (1981) and I.R. Coelho (2007) (Section 5)
- Handout stresses: Four Prelims and three Mains PYQs quoted (Prelims 1994, 2018 x2, 2020; Mains 2014, 2016, 2019) (PYQ section)
- Handout stresses: Seven criticisms and seven points of significance (Sections 8 and 9)

Mains hooks

- 2014 judicial activism since the basic structure doctrine
- 2016 what was held in Coelho and is judicial review key
- 2019 can Parliament destroy the basic structure under Article 368
- See Ch 9 for the amending power.

MY NOTES

Parliament may amend the Constitution but may not change its identity, and the court that says so keeps adding to the list of what that identity contains.

IN SIMPLE WORDS

- The **Basic Structure Doctrine** says Parliament can amend any part of the Constitution, but it cannot destroy its **basic structure** (its core identity).
- The Supreme Court gave this in **Kesavananda Bharati v. State of Kerala (1973)**, a 13-judge Bench, the largest ever, with a narrow **7:6** verdict.
- Earlier, **Shankari Prasad (1951)** and **Sajjan Singh (1965)** said Parliament could amend even Fundamental Rights. **Golaknath (1967)** reversed this.
- Parliament hit back with the **24th, 25th and 29th Amendments** and later the **42nd Amendment**. The Court answered in **Indira Nehru Gandhi (1975)** and **Minerva Mills (1980)**.
- There is **no fixed list** of basic features. The Court adds them case by case, and critics call this judicial overreach.

Key term	In plain words
Basic structure	The essential identity and framework of the Constitution that Parliament cannot alter or destroy (Kesavananda, 1973).
Constituent power	Parliament's special power to amend the Constitution under Article 368, different from its ordinary law-making power.
Article 13(2)	Bars laws that violate Fundamental Rights. Golaknath said an amendment is a 'law' here; Kesavananda said it is not an ordinary law.
Article 31C	Inserted by the 25th Amendment (1971); protected laws implementing Articles 39(b) and 39(c) from judicial challenge.
Ninth Schedule / Article 31B	List of laws placed beyond judicial review; the 29th Amendment added two Kerala land reform laws.
Prospective application	Waman Rao (1981): the doctrine applies to amendments made after 24 April 1973.
Rights test, essence test	Used in I.R. Coelho (2007): a Ninth Schedule law is invalid if it destroys the core of Articles 14, 19, 21.
Mini-Constitution	Nickname of the 42nd Amendment (1976), passed during the Emergency.

MY NOTES

MEMORY MAP: BASIC STRUCTURE

Basic Structure

Idea
- Doctrine: amend yes, destroy no
- Kesavananda 1973: Art. 368 limited

Early cases
- Shankari Prasad 1951: can amend FRs
- Sajjan Singh 1965: same view; two judges doubt
- Golaknath 1967: FRs immutable; 11 judges

Parliament reacts
- 24th Am. 1971: not "law" (Art. 13)
- 25th Am. 1971: Art. 31C
- 29th Am. 1972: Ninth Schedule

Kesavananda
- 13 judges: 7:6 verdict
- Two powers: legislative vs constituent
- Cut-off: 24 April 1973

Consolidation
- Raj Narain 1975: Art. 329A struck down
- Minerva Mills 1980: 368(4)(5) struck
- Waman Rao, Bommai, Coelho: Ninth Schedule and federalism

Basic features
- 26-case table: rule of law, review
- Equality, federalism: secular, powers

Debate
- Criticism: overreach, subjectivity, 7-6
- Significance: guardian of spirit and rights

MNEMONIC · CASES LEADING TO BASIC STRUCTURE

Slow Steps Guard Keystone

S Shankari Prasad (1951) | S Sajjan Singh (1965) | G Golaknath (1967) | K Kesavananda Bharati (1973)

Slow steps (two cases upholding Parliament, then Golaknath) finally guarded the keystone, the basic structure, in Kesavananda. (Memory aid, not from the handout.)

MNEMONIC · POST-KESAVANANDA CASES

Indira's Mistake: We Block Changes

I Indira Nehru Gandhi v. Raj Narain (1975) | M Minerva Mills (1980) | W Waman Rao (1981) | B Bommai, S.R. (1994) | C Coelho, I.R. (2007)

Indira's election amendment was her mistake; the Court's reply was we block (destructive) changes, in this order. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · ELEMENTS IN THE ELECTION CASE (1975)

RECORD

- **R** Rule of law: government of laws and not of men
- **E** Elections: free and fair elections
- **C** Conscience: secularism and freedom of conscience and religion
- **O** Opportunity: equality of status and opportunity
- **R** Review: judicial review
- **D** Democratic: sovereign democratic republic

The Election Case (1975) set the RECORD straight on basic structure. Six elements, order rearranged so the initials spell RECORD. (Memory aid, not from the handout.)

MNEMONIC · MINERVA MILLS (1980) ELEMENTS

FAR

- **F** FRs and DPSPs: harmony and balance between them
- **A** Amending power of Parliament is limited
- **R** Review: judicial review

Parliament cannot go FAR: its amending power has limits. Order is rearranged so the initials spell FAR. (Memory aid, not from the handout.)

THE DOCTRINE IN A NUTSHELL

- The Basic Structure Doctrine is one of the most significant judicial innovations in Indian constitutional law. **Parliament can amend any part of the Constitution but cannot alter its fundamental identity or framework.** It safeguards the ideals, spirit and philosophy on which the Constitution rests.
- Propounded by the Supreme Court in **Kesavananda Bharati v. State of Kerala (1973)**.
- The Court held that **Article 368 confers a limited power of amendment**: Parliament can change the Constitution but cannot destroy its "basic structure".
- The doctrine balances **Parliament's authority** against the **supremacy of the Constitution**.
- **One line:** Amend: yes. Destroy the basic structure: no.

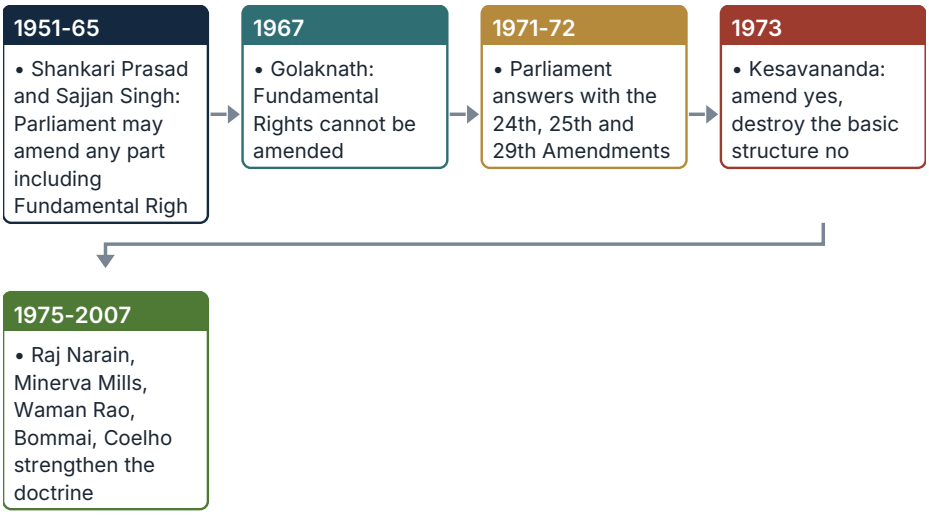
STORY OF THE DOCTRINE IN FIVE STEPS

- **1951-65**: Shankari Prasad and Sajjan Singh: Parliament may amend any part including Fundamental Rights
- **1967**: Golaknath: Fundamental Rights cannot be amended
- **1971-72**: Parliament answers with the 24th, 25th and 29th Amendments
- **1973**: Kesavananda: amend yes, destroy the basic structure no

MY NOTES

- **1975–2007**: Raj Narain, Minerva Mills, Waman Rao, Bommai, Coelho strengthen the doctrine

STORY OF THE DOCTRINE IN FIVE STEPS



ALSO IN THE HANDOUT

- To restore its authority, Parliament responded with a series of constitutional amendments.

BEFORE KESAVANANDA: THREE CASES

- The idea of limiting Parliament's amending power did not appear suddenly. It grew through early judgments on the true scope of **Article 368**.

THE PRE-KESAVANANDA CASES

Case	Amendment challenged	Issue	Held
Shankari Prasad v. Union of India (1951)	First Constitutional Amendment Act, 1951 (curtailed the Right to Property, then a Fundamental Right, to help land reform laws)	Does the amending power under Article 368 extend to Fundamental Rights?	Yes. Parliament can amend any part including Fundamental Rights. "Law" in Article 13(2) means only ordinary legislation, not constitutional amendments
Sajjan Singh v. State of Rajasthan (1965)	17th Constitutional Amendment Act, 1964 (again property rights)	Extent of Parliament's amending power	Earlier view reaffirmed (any part including Fundamental Rights). Justices **Hidayatullah** and **Mudholkar** feared there might be basic features Parliament cannot alter

MY NOTES

Case	Amendment challenged	Issue	Held
I.C. Golaknath v. State of Punjab (1967)	Not named in the handout (Shankari Prasad and Sajjan Singh overturned)	Can Fundamental Rights be amended?	No. **Eleven-judge bench**. FRs are transcendental and immutable. A constitutional amendment is also "law" under Article 13(2), so one that curtails FRs is void

WHAT EACH CASE DID

- **Shankari Prasad**: an amendment under Article 368 could not be challenged as violating Fundamental Rights. Parliament's power looked **unlimited** at that stage.
- **Sajjan Singh**: the minority doubt was **not the majority view**, but it was the **first judicial indication** of inherent limits on the amending power.
- **Golaknath**: **overturned** Shankari Prasad and Sajjan Singh. It restricted Parliament considerably and created a **constitutional impasse**, because the government found it hard to carry out socio-economic reforms touching property rights.

SHANKARI PRASAD AND SAJJAN SINGH VERSUS GOLAKNATH

- **Shankari Prasad and Sajjan Singh:**
  - Amending power reaches Fundamental Rights
  - Amendment is not "law" under Art. 13(2)
  - Parliament's power unlimited
- **Golaknath (1967):**
  - Fundamental Rights immutable
  - Amendment is "law" under Art. 13(2)
  - Amendment curtailing FRs is void
  - 11 judges
- **Memory aid (Case order): S**hankari Prasad (1951), **S**ajjan Singh (1965), **G**olaknath (1967), **K**esavananda (1973): "**S**ome **S**tudents **G**ot **K**nowledge".
- **Shortcut: Direction of the first three. Yes, Yes, No**: Shankari Prasad yes, Sajjan Singh yes, Golaknath no (to amending FRs). Then Kesavananda says: yes, but not the basic structure.

PARLIAMENT'S REACTION TO GOLAKNATH

- Golaknath created tension between legislature and judiciary. The government believed the interpretation made **land redistribution and removal of inequalities** impossible, so Parliament restored its authority by amendment.

MY NOTES

THREE AMENDMENTS

Amend-ment	What it did
24th Amendment Act, 1971	Reaffirmed Parliament's power to amend any provision including Fundamental Rights. A constitutional amendment is **not a "law" under Article 13**, so it cannot be struck down for violating FRs
25th Amendment Act, 1971	Curtailed the right to property. Gave precedence to certain Directive Principles over Fundamental Rights. Introduced **Article 31C**: protects laws implementing **Articles 39(b) and 39(c)** (equitable distribution of resources) from judicial review
29th Amendment Act, 1972	Placed **two Kerala land reform laws** in the **Ninth Schedule**, making them immune from judicial challenge

- **Memory aid (Which number does what):** **A**mend power = 24th, **C**31C = 25th, **K**erala laws in Ninth Schedule = 29th: "**A**ll **C**ows **K**eep calm" (24 amend, 25 property and 31C, 29 Kerala).
- **Shortcut: Number shortcut.** 24 = "amend anything, not a law". 25 = "31C, 39(b) and 39(c)". 29 = "Kerala, Ninth Schedule".
- **Connect:** The Ninth Schedule comes back in Waman Rao and I.R. Coelho (Section 5) and in Ch 4: The Schedules.

ALSO IN THE HANDOUT

- It was seen as a direct response to protect land reform policies from court interference.

THE KESAVANANDA MILESTONE

- By the early 1970s the conflict between Parliament and the judiciary was at its peak. Parliament had passed the **24th, 25th and 29th** Amendments. **Kesavananda Bharati**, head of the **Edneer Mutt in Kerala**, challenged them, arguing they violated Fundamental Rights.

TWO QUESTIONS BEFORE THE COURT

- Does Parliament's power under Article 368 have **any limits**?
- Can Parliament alter or destroy the **essential features** of the Constitution, including Fundamental Rights?

THE JUDGMENT

- A **13-judge Bench**, the largest in India's judicial history, gave a narrow **7:6** verdict.
- It **upheld the 24th Amendment**: Parliament may amend any part including Fundamental Rights.
- But it added the limit: the amending power **does not include the power to alter or destroy the basic structure**.

MY NOTES

- An amendment is **not the same as an ordinary law** under Article 13(2).

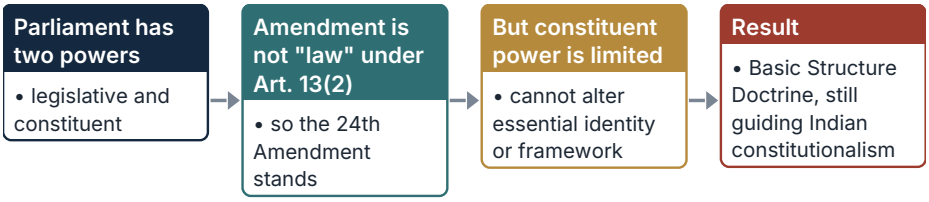
PARLIAMENT'S TWO FUNCTIONS

- **Legislative power:**
  - Makes laws for the country
  - Ordinary laws can be struck down if they violate Fundamental Rights
- **Constituent power:**
  - Amends the Constitution
  - Amendments are valid only if they respect the basic structure

REASONING IN KESAVANANDA

- **Parliament has two powers**: legislative and constituent
- **Amendment is not "law" under Art. 13(2)**: so the 24th Amendment stands
- **But constituent power is limited**: cannot alter essential identity or framework
- **Result**: Basic Structure Doctrine, still guiding Indian constitutionalism

REASONING IN KESAVANANDA



- **Numbers to fix:** 13 judges, 7:6, 1973, cut-off date 24 April 1973 (used later by Waman Rao and I.R. Coelho).
- **Memory aid (Kesavananda numbers):** **T**hirteen judges, **S**even to six: "**T**hirteen **S**ages split seven-six".

> **HANDOUT ALERT**
> Handout alert: The handout numbers the two issues as "10" and "11" (a printing slip). There are only **two** questions. The Golaknath bench was **11** judges and Kesavananda's was **13**: do not mix them.

ALSO IN THE HANDOUT

- It explained that the Indian Parliament performs two distinct functions: (a) it makes laws for the country by using its legislative power, and (b) it amends the Constitution by using its constituent power.
- This distinction between the two powers ensures that the process of amending the Constitution remains special and subject to con-

MY NOTES

stitutional limits. This historic ruling came to be known as the Basic Structure Doctrine, a principle that continues to guide Indian constitutionalism to this day 3.

AFTER KESAVANANDA: CONSOLIDATION

- The declaration that Parliament's amending power is **not absolute** became a turning point. Later cases and amendments refined the doctrine, reflecting the struggle between **Parliamentary Supremacy** and **Judicial Review**.

(A) INDIRA NEHRU GANDHI V. RAJ NARAIN (1975)

- After the 1971 general elections, Prime Minister Indira Gandhi was accused of unfair electoral practices. The **Allahabad High Court declared her election void**.
- During the appeal, Parliament passed the **39th Constitutional Amendment Act, 1975**, inserting **Article 329A**: elections of the **Prime Minister, President, Vice-President and Speaker of the Lok Sabha** could not be challenged in any court.
- The Supreme Court **struck it down** as violating the Basic Structure. **Free and fair elections** and **judicial review** are essential to democracy.
- It was the **first practical application** of the doctrine to strike down a constitutional amendment. No individual, not even the Prime Minister, is above the Constitution or law.

(B) THE 42ND AMENDMENT ACT (1976)

- Passed during the Emergency (1975-77)
- Called the "**Mini-Constitution**" for its extensive changes
- Inserted **Clauses (4) and (5) in Article 368**: no amendment can be questioned in any court on any ground, and there is no limitation whatsoever on Parliament's power to amend.
- An attempt to give Parliament **absolute amending power**, nullifying the doctrine.

(C) MINERVA MILLS V. UNION OF INDIA (1980)

- Challenged the 42nd Amendment, especially **Clauses (4) and (5) of Article 368**.
- The Court **struck both down**: Parliament's amending power is not unlimited, and a **limited amending power is itself part of the Basic Structure**.
- Restored balance: **Fundamental Rights and DPSPs must coexist harmoniously**, neither overriding the other.
- **Judicial review** is an integral part of the Basic Structure.

MY NOTES

(D) WAMAN RAO V. UNION OF INDIA (1981)

- Concerned the **Ninth Schedule**, a list of laws placed beyond judicial review.
- The doctrine applies to all constitutional amendments made **after 24 April 1973** (the date of Kesavananda).
- This is **prospective application**: continuity is kept while judicial review is preserved.

(E) S.R. BOMMAI V. UNION OF INDIA (1994)

- Arose from misuse of **Article 356 (President's Rule)** in several states.
- **Federalism is a basic feature** and cannot be destroyed even by constitutional amendment. States have an independent constitutional existence and are not mere agents of the Centre.
- The proclamation of President's Rule is **not immune from judicial scrutiny**. The President's satisfaction is reviewable if **mala fide** or based on **irrelevant grounds**.
- Basic structure includes **secularism, democracy, federalism, unity and integrity, and judicial review**.

(F) I.R. COELHO V. STATE OF TAMIL NADU (2007)

- A **nine-judge bench** revisiting the Ninth Schedule.
- **No blanket immunity** from judicial review for Ninth Schedule laws. Laws inserted after **24 April 1973** can be challenged if they violate Fundamental Rights forming part of the Basic Structure, especially **Articles 14, 19 and 21**.
- Applied the "**rights test**" and the "**essence of the right test**": a law that damages or destroys the core of these rights is invalid even though protected by **Article 31B**.

QUICK SHEET OF THE CONSOLIDATION CASES

Case	Key trigger	Outcome
Raj Narain (1975)	39th Amendment, Article 329A	Struck down. Free and fair elections, judicial review
Minerva Mills (1980)	42nd Amendment, Art. 368(4) and (5)	Struck down. Limited amending power, FR-DPSP balance, judicial review
Waman Rao (1981)	Ninth Schedule	Doctrine applies to amendments after 24 April 1973
Bommai (1994)	Article 356 misuse	Federalism and others basic. President's Rule reviewable

MY NOTES

Case	Key trigger	Outcome
I.R. Coelho (2007)	Ninth Schedule, Article 31B	No blanket immunity. Rights test and essence of right test

- **Memory aid (Post-1973 cases in order):** **I**ndira Nehru Gandhi v. Raj Narain (1975), **M**inerva Mills (1980), **W**aman Rao (1981), **B**ommai (1994), **C**oelho (2007): "**I M**et **W**ise **B**oys **C**onfidently".
- **Shortcut: Which Amendment, which Article. 39th = 329A** (election of PM, President, VP, Speaker beyond courts). **42nd = 368(4) and (5)** (no review, no limit). Both were struck down: 39th in Raj Narain, 42nd's clauses in Minerva Mills.
- **Shortcut: Ninth Schedule pair. Waman Rao = 24 April 1973 cut-off. Coelho = no blanket immunity, rights tests, Articles 14, 19, 21.**
- **Reading the pattern:** Each time Parliament tried to place something beyond the courts (329A, 368(4) and (5), the Ninth Schedule), the Court answered with the basic structure and judicial review.

ALSO IN THE HANDOUT

- The Supreme Court examined whether such proclamations could be subject to judicial review.

THE TABLE OF BASIC FEATURES (CASES 1 TO 13)

- The Supreme Court never gave a closed list. This is the handout's **table of cases and the elements each declared** as part of the Basic Structure.

CASES 1 TO 13

No.	Case (Year)	Elements declared
1	**Kesavananda Bharati v. State of Kerala (1973)** (Fundamental Rights Case)	Supremacy of the Constitution; Separation of powers; Republic and democratic form of government; Secular character; Federal character; Sovereignty and unity of India; Freedom and dignity of the individual; Mandate to build a welfare state; Parliamentary system
2	**Indira Nehru Gandhi v. Raj Narain (1975)** (Election Case)	India as a sovereign democratic republic; Equality of status and opportunity; Secularism and freedom of conscience and religion; Government of laws and not of men (Rule of Law); Judicial review; Free and fair elections
3	**Minerva Mills v. Union of India (1980)**	Limited power of Parliament to amend the Constitution; Judicial review; Harmony and balance between Fundamental Rights and DPSPs
4	**Central Coal Fields Ltd. v. Union of India (1980)**	Effective access to justice

MY NOTES

No.	Case (Year)	Elements declared
5	**Bhim Singhji v. Union of India (1980)**	Welfare State (socio-economic justice)
6	**S.P. Sampath Kumar v. Union of India (1986)**	Rule of law; Judicial review
7	**P. Sambamurthy v. State of A.P. (1986)**	Rule of law; Judicial review
8	**Delhi Judicial Service Assn. v. State of Gujarat (1991)**	Powers of the Supreme Court under Arts. 32, 136, 141 and 142
9	**Indra Sawhney v. Union of India (1992)** (Mandal Case)	Rule of law
10	**Kumar Padma Prasad v. Union of India (1992)**	Independence of judiciary
11	**Kihoto Hollohan v. Zachillhu (1992)** (Defection Case)	Free and fair elections; Sovereign, democratic, republican structure
12	**Raghunath Rao v. Union of India (1993)**	Principle of equality; Unity and integrity of India
13	**S.R. Bommai v. Union of India (1994)**	Federalism; Secularism; Democracy; Unity and integrity of the nation; Social justice; Judicial review

HANDOUT ALERT

Handout alert: In the PDF the Bommai row is scrambled (its list was numbered 29 to 34 and the next case L. Chandra Kumar is jumbled in). The rebuilt row above lists six elements: **federalism, secularism, democracy, unity and integrity, social justice, judicial review**. The earlier narrative (Section 5) names five (no social justice): for a "basic feature" question, treat **social justice** as also credited to Bommai in the table.

ALSO IN THE HANDOUT

- Unity and integrity of the nation / 33.

THE TABLE OF BASIC FEATURES (CASES 14 TO 26)

CASES 14 TO 26

No.	Case (Year)	Elements declared
14	**L. Chandra Kumar v. Union of India (1997)**	Powers of the High Courts under Arts. 226 and 227
15	**Indra Sawhney (II) (1999)**	Principle of equality
16	**All India Judges' Assn. v. Union of India (2001)**	Independent judicial system

MY NOTES

No.	Case (Year)	Elements declared
17	**Kuldip Nayar v. Union of India (2006)**	Democracy; Free and fair elections
18	**M. Nagaraj v. Union of India (2006)**	Principle of equality
19	**I.R. Coelho v. State of Tamil Nadu (2007)** (Ninth Schedule Case)	Rule of law; Separation of powers; Essence of Fundamental Rights; Judicial review; Principle of equality
20	**Ram Jethmalani v. Union of India (2011)**	Powers of the Supreme Court under Article 32
21	**Namit Sharma v. Union of India (2012)**	Freedom and dignity of the individual
22	**People's Union for Civil Liberties (PUCL) v. Union of India (2013)**	Free and fair elections; Right to Negative Vote (NOTA) as an element of democracy
23	**Madras Bar Association v. Union of India (2014)**	Judicial review; Powers of the High Courts under Arts. 226 and 227
24	**Supreme Court Advocates-on-Record Assn. v. Union of India (2015)** (NJAC Case)	Independence of judiciary; Judicial primacy in appointments; Separation of powers; Judicial accountability
25	**K.S. Puttaswamy v. Union of India (2017)** (Right to Privacy Case)	Constitutional morality; Rule of law; Privacy and individual dignity as core of the Constitution
26	**Union of India v. Madras Bar Association (2021)**	Judicial review; Separation of powers; Federal balance between Centre and States

REGROUPED BY ELEMENT (REBUILT FROM THE TWO TABLES)

WHICH CASES NAME WHICH ELEMENT

Element	Cases (by number)
Judicial review	2 Raj Narain; 3 Minerva Mills; 6 Sampath Kumar; 7 Sambamurthy; 13 Bommai; 19 Coelho; 23 Madras Bar (2014); 26 Union of India v. Madras Bar (2021)
Rule of law	2 Raj Narain; 6 Sampath Kumar; 7 Sambamurthy; 9 Indra Sawhney; 19 Coelho; 25 Puttaswamy
Free and fair elections	2 Raj Narain; 11 Kihoto Hollohan; 17 Kuldip Nayar; 22 PUCL
Principle of equality	2 Raj Narain (equality of status and opportunity); 12 Raghunath Rao; 15 Indra Sawhney (II); 18 Nagaraj; 19 Coelho
Separation of powers	1 Kesavananda; 19 Coelho; 24 NJAC; 26 Union of India v. Madras Bar
Independence of judiciary	10 Kumar Padma Prasad; 16 All India Judges (independent judicial system); 24 NJAC

MY NOTES

Element	Cases (by number)
Federalism	1 Kesavananda; 13 Bommai; 26 Union of India v. Madras Bar (federal balance)
Secularism	1 Kesavananda; 2 Raj Narain; 13 Bommai
Unity and integrity	1 Kesavananda (sovereignty and unity); 12 Raghunath Rao; 13 Bommai
Dignity and freedom of the individual	1 Kesavananda; 21 Namit Sharma; 25 Puttaswamy (privacy and individual dignity)
Welfare state	1 Kesavananda; 5 Bhim Singhji
Powers of High Courts, Arts. 226 and 227	14 L. Chandra Kumar; 23 Madras Bar (2014)
Powers of Supreme Court	8 Delhi Judicial Service (Arts. 32, 136, 141, 142); 20 Ram Jethmalani (Art. 32)

- **Memory aid (Big recurring features):** **J**udicial review, **R**ule of law, **F**ree and fair elections, **E**quality: "**J**udges **R**ule **F**air **E**lections" (the four that appear again and again).
- **Shortcut: Case-name hooks. Mandal = Indra Sawhney** (rule of law). **Defection = Kihoto** (elections). **Election Case = Raj Narain**. **Ninth Schedule Case = Coelho**. **NJAC = SC Advocates-on-Record**. **Privacy = Puttaswamy**. **NOTA = PUCL**.
- **Memory aid (Judiciary cluster):** **K**umar Padma Prasad, **A**ll India Judges, **N**JAC: "**K**een **A**dvocates **N**ame the judiciary" (independence of judiciary).
- **Not a closed list:** The handout's criticism (Section 8) says there is **no fixed list of basic features**. Use the two tables as the handout's compilation of what the Court has declared, not as a complete list.

CRITICISM OF THE DOCTRINE

SEVEN CRITICISMS

No.	Criticism	Argument
1	**Judicial overreach**	Unelected judges strike down amendments passed by an elected Parliament. Tension between judicial review and democratic will
2	**No constitutional basis**	The Constitution nowhere mentions "basic structure". Born of interpretation in Kesavananda (1973): an extra-constitutional innovation, absent from the intent of the Constituent Assembly
3	**Rewriting the Constitution**	By finding a "law within the law", the Court acts like a constituent assembly and becomes a third legislative chamber

MY NOTES

No.	Criticism	Argument
4	**Against the principle of majority**	Amendments need special majorities, yet a small bench can overrule them. The Court justifies this as a counter-majoritarian safeguard
5	**Decision by narrow margin**	Born of a 7-6 judgment on a 13-judge Bench: a sweeping revision on a narrow majority, limited democratic confidence
6	**Judicial subjectivity**	No fixed list of basic features. Inclusion depends on judges' interpretation: uncertainty, personal bias, variation from bench to bench
7	**Institutional tension**	Frequent invalidation fuels friction between organs, seems to undermine parliamentary sovereignty and blurs separation of powers

- **Memory aid (Seven criticisms):** **O**verreach, **B**asis missing, **R**ewriting, **M**ajority principle, **N**arrow margin, **S**ubjectivity, **I**nstitutional tension: "**O**ld **B**ooks **R**eveal **M**any **N**arrow **S**tories **I**ndeed".
- **Shortcut: Group the seven. Power** (1, 3) + **Legitimacy** (2, 4, 5) + **Uncertainty and friction** (6, 7).

CONTEMPORARY SIGNIFICANCE

SEVEN POINTS OF SIGNIFICANCE

Role	What it does
Guardian of constitutional spirit	Safeguards democracy, secularism and rule of law. Parliament cannot alter the essential identity or moral foundations
Judicial check on absolute power	Parliament can amend but not re-draft the Constitution. Rejects any absolute or unlimited constituent power
Balance between flexibility and stability	Equilibrium between change and permanence, "privileging uncertain democracy over certain tyranny"
Protection of Fundamental Rights	Shield for dignity and liberty. Prevents transient political majorities abridging freedoms in Part III
Preservation of separation of powers and federalism	Prevents one organ encroaching on another and protects State autonomy in India's cooperative federal framework
Global influence and legacy	Logic resonates globally: cited by courts in **Bangladesh, Uganda**, and echoed in **Germany's Basic Law under Article 79**
Enduring relevance	The Constitution's "conscience": temporary urges of majorities cannot override the framers' permanent vision. Preserves India's liberal-democratic identity

- **Memory aid (Significance in order):** **G**uardian of spirit, **J**udicial check, **B**alance flexibility-stability, **P**rotect FRs, **P**reserve separation

MY NOTES

and federalism, **G**lobal influence, **E**nduring relevance: "**G**ood **J**udges **B**alance **P**ower, **P**rotect **G**enerations **E**ternally".

CRITICISM VERSUS SIGNIFICANCE

- **Critics say:**
  - Unelected judges override Parliament
  - No textual basis
  - Narrow 7-6
  - No fixed list
  - Friction between organs
- **Defenders say:**
  - Guards spirit and rights
  - Checks absolute power
  - Balances change and stability
  - Protects federalism
  - Global resonance

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 12, BASIC STRUCTURE OF THE CONSTITUTION

- Golaknath challenged the 17th Amendment (1964), which put certain state acts in the Ninth Schedule.
- The 24th Amendment (1971) amended both Article 13 and Article 368.
- Kesavananda Bharati expressly overruled Golaknath. Result today: Parliament can abridge or take away a Fundamental Right only if that right is not part of the basic structure.
- Minerva Mills reasoning: a body given a limited power cannot turn it into an unlimited power. Parliament cannot repeal or abrogate the Constitution or destroy its basic features.
- The Supreme Court has not yet defined the basic structure. Lakshmikanth lists 20 elements from all cases, including independence of the judiciary, effective access to justice, and the principles (essence) underlying Fundamental Rights.
- Powers of the Supreme Court in the list: Article 32 (writs for FRs), 136 (special leave to appeal), 141 (law declared by the SC binds all courts), 142 (enforcing SC decrees and orders).
- Powers of High Courts in the list: Article 226 (writs) and Article 227 (superintendence over all courts).
- Case nicknames:
  - Central Coal Fields v. Jaiswal Coal Co. (1980) gave 'effective access to justice'
  - Bhim Singhji (1980) gave 'welfare state'
- Lakshmikanth differs:
  - Sajjan Singh is dated 1964 (handout: 1965) and Waman Rao 1980 (handout: 1981). Use the handout years for the class

MY NOTES

- Remember LK's 1964 and 1980

- Lakshmikanth differs: for the Election Case it names only the Prime Minister and the Speaker as kept outside the courts (handout also names the President and Vice-President). Its table also stops at 22 cases (up to Madras Bar Association 2014), while the handout continues to 26 (up to 2021).

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

What does the Basic Structure Doctrine say?	Parliament can amend any part of the Constitution but cannot alter its fundamental identity or framework.
Which case propounded the doctrine?	Kesavananda Bharati v. State of Kerala (1973).
Who was Kesavananda Bharati?	Head of the Edneer Mutt in Kerala.
Bench and verdict of Kesavananda?	13 judges, 7:6 (the largest Bench in India's judicial history).
Cut-off date used for Ninth Schedule review?	24 April 1973, the date of Kesavananda.
Shankari Prasad (1951): what held?	Amending power under Art. 368 extends to Fundamental Rights; "law" in Art. 13(2) does not include amendments.
Which amendment was challenged in Shankari Prasad?	The First Constitutional Amendment Act, 1951.
Sajjan Singh (1965): amendment and doubt?	17th Amendment (1964). Justices Hidayatullah and Mudholkar doubted that Parliament could alter basic features.
Golaknath (1967): bench and holding?	Eleven judges. Fundamental Rights immutable; an amendment is "law" under Art. 13(2).
What did the 24th Amendment do?	Reaffirmed power to amend any provision including FRs; amendment is not "law" under Article 13.
What did the 25th Amendment do?	Curtailed property right; precedence to certain DPSPs; Article 31C protecting laws under Arts. 39(b) and 39(c).
What did the 29th Amendment do?	Placed two Kerala land reform laws in the Ninth Schedule.

Parliament's two functions per Kesavananda?	Legislative power (makes laws) and constituent power (amends the Constitution).
Raj Narain (1975): what struck down?	Article 329A (39th Amendment), which barred challenges to elections of PM, President, VP and Speaker.
Why was Raj Narain significant?	First practical application of the doctrine to strike down a constitutional amendment.
Which Amendment is the "Mini-Constitution"?	The 42nd Amendment Act, 1976.
What did Article 368(4) and (5) say?	No amendment may be questioned in any court; no limitation on Parliament's power to amend.
What did Minerva Mills hold?	Clauses (4) and (5) void; limited amending power is basic structure; FR-DPSP harmony; judicial review basic.
Waman Rao (1981): holding?	Doctrine applies to amendments after 24 April 1973 (prospective application).
Bommai (1994): key holdings?	Federalism basic; States not mere agents of the Centre; President's Rule reviewable if mala fide or on irrelevant grounds.
Coelho (2007): bench and holding?	Nine judges. No blanket immunity for Ninth Schedule laws after 24 April 1973; rights test and essence of right test (Arts. 14, 19, 21).
Which cases name "judicial review" as basic?	Raj Narain, Minerva Mills, Sampath Kumar, Sambamurthy, Bommai, Coelho, Madras Bar (2014), Union of India v. Madras Bar (2021).
Which case is the NJAC case and what did it declare?	SC Advocates-on-Record Assn. (2015): independence of judiciary, judicial primacy in appointments, separation of powers, judicial accountability.
Puttaswamy (2017) declared what?	Constitutional morality; rule of law; privacy and individual dignity as core.
Name the seven criticisms.	Judicial overreach; no constitutional basis; rewriting the Constitution; against majority principle; narrow margin; judicial subjectivity; institutional tension.

MY NOTES

Which foreign courts and law are cited in the significance?	Courts in Bangladesh and Uganda; Germany's Basic Law under Article 79.
Mains 2014: Starting from inventing the 'basic structure' doctrine	Intro: The doctrine, born in Kesavananda (1973), made the judiciary the guardian of the Constitution's identity. Body: Raj Narain struck down Article 329A and upheld free and fair elections; Minerva Mills struck down Article 368(4) and (5) and protected judicial review; Bommai made President's Rule reviewable and protected federalism; Coelho denied blanket Ninth Schedule immunity; Puttaswamy and NJAC cases extended the list of features; critics cite overreach and subjectivity. Close: Activism that guards democracy is justified, but it needs restraint to avoid friction between organs.
Mains 2016: What was held in the Coelho case?	Intro: A nine-judge bench revisited the Ninth Schedule and the doctrine in 2007. Body: No blanket immunity for Ninth Schedule laws inserted after 24 April 1973; laws can be challenged if they violate Fundamental Rights in the basic structure especially Articles 14 19 and 21; rights test and essence of the right test; Article 31B protection does not save a law that destroys the core of rights; judicial review also stressed in Raj Narain Minerva Mills Bommai and Madras Bar cases. Close: Judicial review is a key basic feature because it keeps every organ within its constitutional authority.

MY NOTES

Mains 2019: "Parliament's power to amend the constitution is limited power	Intro: Article 368 gives a limited amending power, as held in Kesavananda and Minerva Mills. Body: Parliament can amend any part but cannot alter or destroy the basic structure; constituent power is distinct from legislative power; Article 368(4) and (5) claiming unlimited power were struck down in Minerva Mills; a limited amending power is itself basic structure; amendments after 24 April 1973 can be reviewed. Close: Parliament can amend but not destroy: the amending power cannot be enlarged into absolute power.

Trap 1 · Sajjan Singh is not Golaknath

In Sajjan Singh (1965) the majority again upheld unlimited amending power. Only Justices Hidayatullah and Mudholkar doubted it, and that was not the majority view. Golaknath (1967), an 11-judge Bench, overturned both earlier cases. *Rule: Shankari Prasad and Sajjan Singh = Parliament can amend FRs. Golaknath = it cannot. Kesavananda = it can, but not the basic structure.*

Trap 2 · Kesavananda upheld the 24th Amendment

Students think Kesavananda cancelled Parliament's power. It actually upheld the 24th Amendment (Parliament can amend any part, including FRs), and only added the limit of basic structure. It also separated legislative power from constituent power. *Rule: power stays, but with one limit: the basic structure.*

Trap 3 · Cut-off date for the Ninth Schedule

Waman Rao (1981) applied the doctrine only to amendments after 24 April 1973. I.R. Coelho (2007, nine judges) said no blanket immunity: Ninth Schedule laws after that date can be tested against Articles 14, 19, 21. *Rule: 24 April 1973 is the date of Kesavananda; laws before it stay protected.*

Trap 4 · First strike-down and the 42nd Amendment

Indira Nehru Gandhi (1975) was the first practical use of the doctrine, striking Article 329A (39th Amendment). Minerva Mills (1980) struck Clauses (4) and (5) of Article 368 added by the 42nd Amendment. *Rule: 1975 = Article 329A struck; 1980 = Article 368(4),(5) struck.*

QUICK QUIZ

Q1. The Basic Structure Doctrine was propounded in which case?

1. Golaknath v. State of Punjab
2. Kesavananda Bharati v. State of Kerala
3. Minerva Mills v. Union of India
4. Shankari Prasad v. Union of India

Q2. How many judges sat in the Kesavananda Bharati Bench and what was the verdict?

1. 11 judges, 6:5
2. 11 judges, 7:4
3. 13 judges, 7:6
4. 13 judges, 9:4

MY NOTES

Q3. Which case first held that Fundamental Rights cannot be amended by Parliament?

1. Shankari Prasad (1951)
2. Sajjan Singh (1965)
3. Golaknath (1967)
4. Waman Rao (1981)

Q4. In Sajjan Singh (1965), the two judges who feared basic features might exist were

1. Hidayatullah and Mudholkar
2. Hidayatullah and Golaknath
3. Mudholkar and Kesavananda
4. Sajjan and Shankari

Q5. Which Amendment introduced Article 31C?

1. 24th Amendment Act, 1971
2. 25th Amendment Act, 1971
3. 29th Amendment Act, 1972
4. 39th Amendment Act, 1975

Q6. Which Amendment placed two Kerala land reform laws in the Ninth Schedule?

1. 24th
2. 25th
3. 29th
4. 42nd

Q7. Article 329A, struck down in Indira Nehru Gandhi v. Raj Narain (1975), was inserted by the

1. 24th Amendment
2. 39th Amendment
3. 42nd Amendment
4. 44th Amendment

Q8. Clauses (4) and (5) of Article 368 were struck down in

1. Raj Narain
2. Waman Rao
3. Minerva Mills
4. Bommai

Q9. The doctrine applies to Ninth Schedule laws inserted after 24 April 1973 according to

1. Waman Rao and I.R. Coelho
2. Shankari Prasad only
3. Golaknath only
4. Sajjan Singh

Q10. Which case held that federalism is a basic feature and that the President's satisfaction under Article 356 can be reviewed?

1. S.R. Bommai (1994)
2. I.R. Coelho (2007)
3. Minerva Mills (1980)
4. Waman Rao (1981)

Q11. The "rights test" and "essence of the right test" were applied in

1. Golaknath
2. I.R. Coelho
3. Kihoto Hollohan
4. Bommai

Q12. Which of these is NOT a criticism of the doctrine in the handout?

1. Judicial overreach
2. Decision by narrow margin
3. Judicial subjectivity
4. Absence of a separate constitutional body

Q13. PYQ 2020: Consider the following statements: (2020)
1. The Constitution of India defines its 'basic structure' in terms of federalism, secularism, fundamental rights and democracy.
2. The Constitution of India provides for 'judicial review' to safeguard the 'citizens' liberties and to preserve the ideals on which the constitution is based. Which of the statements given above is/are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

MY NOTES

Q14. PYQ 2018: Consider the following statements: (2018)
1. The Parliament of India can place a particular law in the Ninth Schedule of the Constitution of India.
2. The validity of a law placed in the Ninth Schedule cannot be examined by any court and no judgement can be made on it. Which of the statements given above is/are correct ?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q15. PYQ 2018: Which one of the following reflects the nicest, appropriate relationship between law and liberty? (2018)

1. If there are more laws, there is less liberty.
2. If there are no laws, there is no liberty.
3. If there is liberty, laws have to be made by the people.
4. If laws are changed too often, liberty is in danger.

Q16. PYQ 1994: The basic structure theory of the Constitution of India Implies that (1994)

1. Certain features of the Constitution are so essential to it that they cannot be abrogated.
2. Fundamental rights cannot be abridged or taken away.
3. The Constitution cannot be amended except in accordance with the procedure laid down in Article 368.
4. The Preamble of the Constitution cannot be amended for it is not a part of the Constitution and at the same time represents its real spirit.

Answers: Q1 b, Q2 c, Q3 c, Q4 a, Q5 b, Q6 c, Q7 b, Q8 c, Q9 a, Q10 a, Q11 b, Q12 d, Q13 b, Q14 a, Q15 b, Q16 a

MY NOTES

CHAPTER 7 · HANDOUT PAGES ON PART IV (ARTICLES 36-51)

07 Directive Principles

HIGH PRIORITY Mains PYQs quoted: **2015**

Prelims PYQs: **2012, 2013, 2014, 2015, 2017, 2020, 2021, 2025**

EXAM LENS

Prelims hooks

- which Part and Articles hold DPSP
- Art. 37 statements
- Gandhian versus Socialistic versus Liberal grouping
- what the 42nd, 44th, 86th and 97th Amendments added
- Art. 31C and the cases
- Arts. 335, 350-A and 351 as directives outside Part IV
- match pairs of DPSP, FD and FR provisions.
- Handout stresses: Fourteen Prelims PYQs (2012 to 2025) quoted for this chapter (PYQ section)
- Handout stresses: Article 37 wording: not enforceable by any court, yet fundamental in governance, duty of State to apply them in making laws (Constitutional Status)
- Handout stresses: Amendment list: 42nd (1976) gave 39 (children), 39A, 43A, 48A; 97th (2011) gave 43B; 86th (2002) changed Art. 45 (Evolution)
- Handout stresses: Case chain Champakam 1951, Golaknath 1967, 24th and 25th 1971, Kesavananda 1973, 42nd 1976, Minerva Mills 1980 (Relationship with FRs)

Mains hooks

- one Mains PYQ quoted (2015): factors that inhibit a uniform civil code (Art. 44)
- The handout gives no UCC-specific factors, so the skeleton uses only its general points on non-justiciability, enabling legislation and political will
- Also likely: DPSP versus FR, significance and criticism of DPSP.

Rights restrain the State; Directives push it forward. The Court now treats them as two wheels of one chariot.

MY NOTES

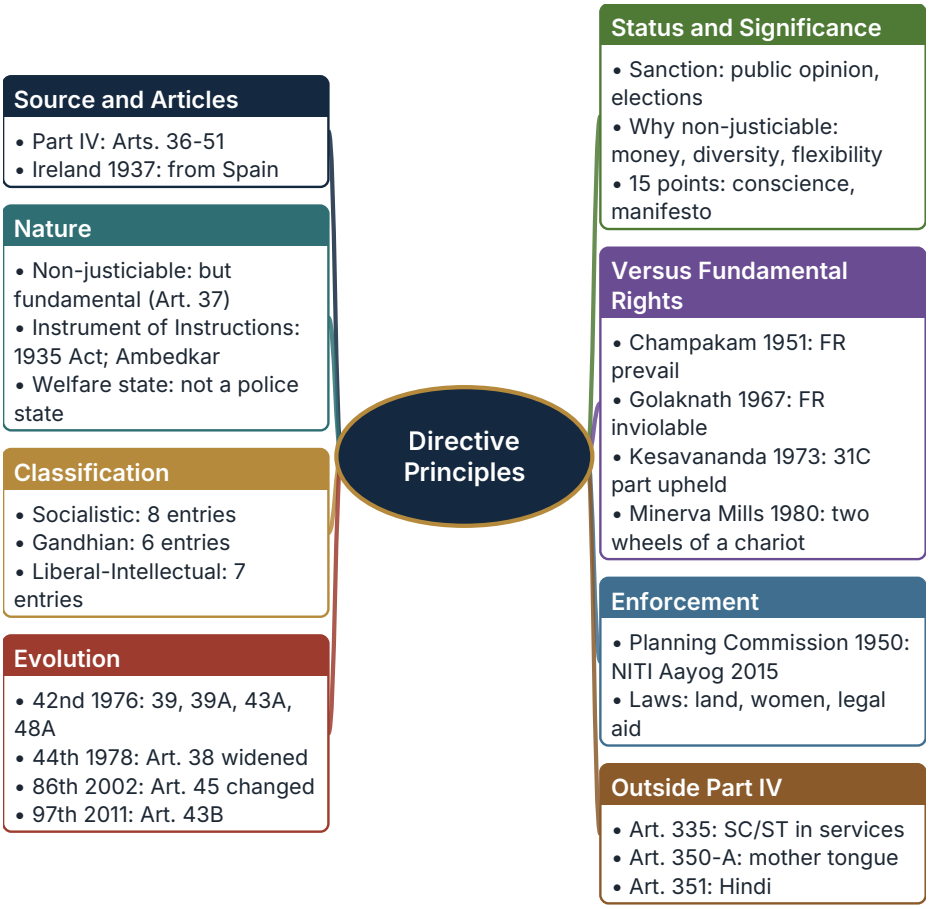
IN SIMPLE WORDS

- **Directive Principles of State Policy (DPSP)** are in **Part IV (Articles 36 to 51)**. They are ideals that guide the State in making laws and policies.
- They came from the **Irish Constitution (1937)** and aim at a **welfare state** with social and economic justice.
- They are **non-justiciable**: courts cannot enforce them. But **Article 37** says they are **fundamental in governance**, and their real force is public opinion and elections.
- They fall in three groups: **Socialistic, Gandhian and Liberal-Intellectual**. Amendments (42nd, 44th, 86th, 97th) added or changed some of them.
- Fundamental Rights prevail over DPSPs today, but the Court (Minerva Mills) calls them **two wheels of a chariot** that must be balanced.

Key term	In plain words
Part IV	Articles 36 to 51 of the Constitution, containing the Directive Principles.
Non-justiciable	Cannot be enforced through a court; no legal remedy if the State does not follow them.
Article 37	Says the principles are not enforceable by any court yet are fundamental in governance; State must apply them in making laws.
Instrument of Instructions	Directions given to Governors under the Government of India Act, 1935; Ambedkar compared DPSPs to it.
Welfare state	State that works for people's welfare, in contrast to the colonial police state.
Article 31C	Added by the 25th Amendment (1971); protects laws that implement Articles 39(b) and 39(c).
Two wheels of a chariot	Minerva Mills (1980) image for Fundamental Rights and DPSPs: both essential, neither absolute.
Directives outside Part IV	Article 335 (SC/ST claims in services), Article 350-A (mother tongue at primary level), Article 351 (Hindi).

MY NOTES

MEMORY MAP: DIRECTIVE PRINCIPLES



MNEMONIC · FOUR DPSPS ADDED BY THE 42ND AMENDMENT (1976)

H E L P

- **H** Healthy development of children (Art 39)
- **E** Environment, forests and wildlife (Art 48A)
- **L** Legal aid, free, and equal justice (Art 39A)
- **P** Participation of workers in management (Art 43A)

Directive Principles exist to HELP the people; the four 1976 additions are rearranged for memory so the initials spell HELP. (Memory aid, not from the handout.)

MNEMONIC · GANDHIAN PRINCIPLES

C I V I C S

- **C** Cow protection (Art. 48)
- **I** Industries, cottage (Art. 43)
- **V** Village panchayats (Art. 40)
- **I** Intoxicants, prohibition of (Art. 47)
- **C** Co-operative societies (Art. 43B)
- **S** Sections, weaker: welfare of SCs and STs (Art. 46)

Gandhi wanted a village CIVICS: self-governing, self-reliant villages. Six principles, order rearranged so the initials spell CIVICS. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · LIBERAL-INTELLECTUAL PRINCIPLES

S C I E N C E

- **S** Scientific lines: modern agriculture and animal husbandry (Art. 48)
- **C** Childhood care and education up to six years (Art. 45)
- **I** International peace and security (Art. 51)
- **E** Environment, forests and wildlife (Art. 48A)
- **N** National heritage: monuments of national importance (Art. 49)
- **C** Civil Code, uniform (Art. 44)
- **E** Executive: separation of judiciary from the executive (Art. 50)

The liberal-intellectual group is the modern, rational group: SCIENCE. Seven principles, order rearranged so the initials spell SCIENCE. (Memory aid, not from the handout.)

MNEMONIC · FR VERSUS DPSP CASES IN ORDER

Chariot's Gears Keep Moving

- **C** Champakam Dorairajan (1951)
- **G** Golaknath (1967)
- **K** Kesavananda Bharati (1973)
- **M** Minerva Mills (1980)

The two-wheeled chariot of FRs and DPSPs: its gears moved through these four cases. (Memory aid, not from the handout.)

SOURCE AND THE ARTICLES OF PART IV

- The DPSP sit in **Part IV, Articles 36 to 51**. They are the Constitution's philosophy of **social and economic justice** and guide the State in making laws and policies.
- Main source: the **Irish Constitution of 1937**, which itself took such principles from the **Spanish Constitution**.
- Other influences: **Baldwin's** ideas of the welfare state and **Gandhiji's** vision of socio-economic justice.

ARTICLES 36 TO 51 AT A GLANCE

Article	Subject matter	Group in the handout
36	Meaning of "State" for Part IV	none
37	Principles are fundamental to governance; duty of the State to apply them	none
38	Social order promoting welfare of the people	Socialistic
39	Specific policy principles to be followed by the State	Socialistic

MY NOTES

Art-icle	Subject matter	Group in the handout
39A	Equal justice and free legal aid to the underprivileged	Socialistic
40	Village panchayats as units of self-government	Gandhian
41	Right to work, education, public assistance in certain cases	Socialistic
42	Just and humane work conditions, maternity benefits	Socialistic
43	Fair wages, living wages, conditions of work for all workers	Socialistic (living wage); Gandhian (cottage industries)
43A	Workers' participation in industrial management	Socialistic
43B	Growth and functioning of cooper-ative societies	Gandhian
44	Uniform Civil Code for all citizens	Liberal-Intellectual
45	Early childhood care and education up to six years	Liberal-Intellectual
46	Educational and economic advancement of SCs, STs and other vulnerable groups	Gandhian
47	Nutrition, living standards, public health	Socialistic (nutrition); Gandhian (prohibition of intox-icants)
48	Organised development of agricul-ture and animal husbandry	Gandhian (cow protection); Liberal-Intellectual (modern agriculture)
48A	Protection and enhancement of environment; forests and wildlife	Liberal-Intellectual
49	Protection of monuments, places and objects of national importance	Liberal-Intellectual
50	Separation of judiciary from the executive	Liberal-Intellectual
51	Promotion of international peace and security	Liberal-Intellectual

- **Memory aid (Letter articles):**
  - **39A** (legal aid), **43A** (workers in management), **43B** (cooperat-ives), **48A** (environment): "**A**ll **A**ctive **B**odies **A**ssist." Three of them (39A, 43A, 48A) came with the 42nd Amendment
  - 43B came with the 97th
- **Shortcut: Band the Articles. 38-39A** social order, wealth, legal aid. **40** village panchayats. **41-43B** work, wages, workers, cooperatives.

MY NOTES

44 UCC. **45-47** child, weaker sections, health. **48-48A** farm, animals, environment. **49-51** heritage, judiciary, peace.

> **HANDOUT ALERT**
> Handout alert: The Article table gives each Article one subject, but the classification lists reuse **Arts. 43, 47 and 48** under two groups, and Art. 45 is described once as "early childhood care and education" and once as "free education up to six years". For the group questions use the classification lists; for the Article-subject questions use the table.

ALSO IN THE HANDOUT

- 46 Promotes the educational and economic advancement of Scheduled Castes, Scheduled Tribes, and other vulnerable groups.
- This ensured that the foundations of learning, health, and development were laid during the crucial formative years of childhood, complementing the fundamental right to elementary education.
- These institutions work to promote cottage industries, in line with Directive Principles emphasising economic decentralisation.

NATURE OF THE DIRECTIVE PRINCIPLES

- Five ideas define what the DPSP are.

1. GUIDING IDEALS FOR THE STATE

- They are constitutional instructions or recommendations to the legislative, executive and administrative organs. By **Art. 36**, "State" means the same as in **Part III**: Central and State governments, legislatures, local bodies and public authorities.

2. RESEMBLANCE TO THE INSTRUMENT OF INSTRUCTIONS

- They resemble the **Instrument of Instructions** of the **Government of India Act, 1935**.
- **Dr. B.R. Ambedkar** compared them to those colonial instructions, but in independent India they are addressed to the legislature and executive.
- The Governor-General once received directions from the British government
- DPSP now give democratic directions to Indian legislatures

3. COMPREHENSIVE SOCIO-ECONOMIC PROGRAMME

- A holistic economic, social and political programme for a modern democratic state.
- Aim: secure the Preamble's justice, liberty, equality and fraternity.
- Vision: a **welfare state**, not the colonial **police state**. Equitable distribution of wealth and protection of workers show this.

MY NOTES

4. NON-JUSTICIABLE BUT FUNDAMENTAL

- Courts cannot enforce them.
- Yet **Art. 37** declares them fundamental to governance and makes it the State's duty to apply them in policy-making.

5. ROLE IN CONSTITUTIONAL INTERPRETATION

- Courts use them to judge the reasonableness and constitutionality of laws.
- A law that furthers a DPSP may be upheld even if challenged under Fundamental Rights.
- Example in the handout: in land reform cases the Supreme Court upheld laws because they gave effect to Directive Principles promoting social justice.

INSTRUMENT OF INSTRUCTIONS: THEN AND NOW

- **1935 Act:** Directions from the British government to the Governor-General
- **DPSP:** Democratic directions to the legislature and executive of independent India

ALSO IN THE HANDOUT

- This directive ensures affirmative action while safeguarding the efficiency of governance.

CLASSIFICATION OF THE DIRECTIVE PRINCIPLES

- The Constitution does **not** classify them. On content and orientation they fall into three groups: **Socialistic, Gandhian, Liberal-Intellectual**.

SOCIALISTIC (SOCIAL AND ECONOMIC EQUALITY, WELFARE STATE)

- **Art. 38** welfare state:
  - Secure a social order based on justice
  - Minimise inequalities
- **Art. 39** equitable livelihood and distribution: adequate means of livelihood, no concentration of wealth, equal pay for equal work, protection of workers and children.
- **Art. 39A** equal justice and free legal aid, so economic barriers do not deny justice.
- **Art. 41** right to work, education, assistance: social security in unemployment, sickness, old age, disability.
- **Art. 42** humane work conditions and maternity relief.
- **Art. 43** living wage, decent standard of life, cultural opportunities.
- **Art. 43A** workers' participation in management.

MY NOTES

- **Art. 47** nutrition, living standards, public health.

GANDHIAN (SIMPLE LIVING, SELF-RELIANT VILLAGES, MORAL DEVELOPMENT)

- **Art. 40** village panchayats as units of self-government.
- **Art. 43** cottage industries: rural and cottage industries on an individual or cooperative basis.
- **Art. 43B** cooperative societies: autonomous and democratic functioning.
- **Art. 46** educational and economic promotion of SCs, STs and weaker sections.
- **Art. 47** prohibition of harmful drugs and drinks.
- **Art. 48** cow protection:
  - No slaughter of cows, calves and draught animals
  - Improve their breeds

LIBERAL-INTELLECTUAL (LIBERAL DEMOCRACY, MODERN AND GLOBALLY RESPONSIBLE STATE)

- **Art. 44** Uniform Civil Code across India.
- **Art. 45** early childhood care and education (the group list says free education up to six years).
- **Art. 48** modern agriculture and animal husbandry on scientific and modern lines.
- **Art. 48A** environment, forests and wildlife.
- **Art. 49** monuments and places of national importance.
- **Art. 50** separation of judiciary and executive, so the judiciary is independent in administration.
- **Art. 51** international peace, respect for international law, settlement of disputes by arbitration.
- **Memory aid (Three groups):** **S**ocialistic (8 entries), **G**andhian (6), **L**iberal-Intellectual (7): "**S**ome **G**ood **L**eaders."
- **Memory aid (Six Gandhian entries):** **V**illage panchayats (40), **C**ottage industries (43), **C**ooperatives (43B), **W**eaker sections (46), **P**rohibition (47), **C**ow protection (48): "**V**illagers **C**ooperate, **C**reate **W**ealth, **P**rohibit **C**ruelty."
- **Memory aid (Seven Liberal entries):** **U**CC (44), **C**hild care (45), **A**griculture (48), **E**nvironment (48A), **H**eritage (49), **J**udiciary separation (50), **P**eace (51): "**U**nited **C**itizens **A**dvance **E**very **H**uman **J**ourney to **P**eace."
- **Shortcut: Gandhian test.** Gandhian = village, cottage, cooperative, weaker sections, prohibition, cow. If the item is about panchayats or cooperatives, say Gandhian (2012 PYQ: panchayats and cottage industries yes; UCC and leisure for workers no).

MY NOTES

- **Do you know:** The handout says many progressive laws, such as the **Right to Education Act (2009)**, rest on DPSP, particularly Art. 45.

ALSO IN THE HANDOUT

- They emphasize the idea of a welfare state, where the government actively works to reduce the gap between the rich and poor. The ultimate goal is to create an egalitarian society based on social justice, where weaker and vulnerable groups are protected and supported.
- This reform acknowledged the importance of cooperatives in rural development, credit distribution, and community empowerment, while also ensuring that they were run in a transparent and democratic manner. By bringing cooperatives into the constitutional framework, the amendment sought to revitalise and strengthen this sector in line with the principles of grassroots democracy and economic inclusivity.

EVOLUTION THROUGH AMENDMENTS

- Amendments have expanded and modified the Directives, showing the Constitution adapts to national needs.

42ND AMENDMENT ACT, 1976

- The most comprehensive enlargement
- Four changes for social justice, workers' rights and environment
- **Memory aid (Four 42nd changes): C**hildren (Art. 39 widened: healthy development, physical and moral well-being), **L**egal aid (new 39A), **W**orkers in management (new 43A), **E**nvironment (new 48A): "**C**lever **L**awyers **W**in **E**lections."
- Art. 48A brought ecological concerns into the Constitution **for the first time**.
- 39A: access to justice must not depend on economic capacity.
- 43A: constitutional backing to industrial democracy.

ART. 45 OVER TIME

- **Original Art. 45**: Free and compulsory education up to **14 years**
- **86th Amendment 2002**: Education up to 14 made a Fundamental Right under **Art. 21A**
- **New Art. 45**: State to provide **early childhood care and education** for all children until **six years**

MY NOTES

ART. 45 OVER TIME

Original Art. 45
- Free and compulsory education up to 14 years

→

86th Amendment 2002
- Education up to 14 made a Fundamental Right under Art. 21A

→

New Art. 45
- State to provide early childhood care and education for all children until six years

AMENDMENT TO CHANGE

Amend-ment	Year	Change
42nd	1976	Art. 39 expanded (children); new 39A, 43A, 48A
44th	1978	Art. 38 widened: besides income inequalities, also status, facilities and opportunities
86th	2002	Art. 45 recast: early childhood care and education up to six years
97th	2011	New Art. 43B: voluntary formation, autonomous functioning, democratic control, professional management of cooperatives

HANDOUT ALERT

Handout alert: The handout says the 42nd Amendment "introduced four new principles", but its own list is one expanded Article (39) plus three new Articles (39A, 43A, 48A). For counting questions use **three new Articles plus one widened Article**.

ALSO IN THE HANDOUT

- 42nd Constitutional Amendment Act, 1976 The 42nd Amendment is often regarded as the most comprehensive in terms of enlarging the scope of DPSPs.
- Initially concerned with minimising income inequalities, the amended Article directed the State to also reduce disparities in status, facilities, and opportunities among individuals and groups. This broadened mandate reinforced the vision of a more equitable and just society, ensuring that equality was not restricted merely to income but also to access to social and economic opportunities.

CONSTITUTIONAL STATUS OF THE DIRECTIVE PRINCIPLES

- They are guiding values, not enforceable rights. The split between justiciable and non-justiciable rights was recommended by **Sir B.N. Rau** (Constitutional Advisor) and accepted by the Drafting Committee. FRs (Part III) are enforceable
- DPSP (Part IV) are not
- **Article 37:** "The provisions contained in this Part shall not be enforceable by any court, but the principles therein laid down are nevertheless fundamental in the governance of the country, and it

MY NOTES

shall be the duty of the State to apply these principles in making laws." Not legally binding, but a moral and political obligation.

CONSTITUENT ASSEMBLY VOICES

- **Alladi Krishna Swamy Ayyar**: no responsible ministry could "light-heartedly" ignore the DPSP, since public opinion and political accountability would compel them.
- **Dr. Ambedkar**: a government that ignores them answers to the people at elections.

WHY THE FRAMERS MADE THEM NON-JUSTICIABLE

THREE PRAGMATIC REASONS

- **1**: At Independence the country lacked the **financial resources** for the extensive programme
- **2**: **Socio-economic diversity** and regional backwardness made uniform enforcement hard
- **3**: The new State, burdened with integration, poverty and development, needed **flexibility** on order, timing and manner, free of litigation
- The real sanction is **not courts** but **public opinion, democratic processes and political responsibility**. The DPSP are a moral compass towards the Preamble's ideals.
- **Shortcut:**
  - **Sanction one-liner.** Court cannot enforce
  - The **voter** can. Money, diversity, flexibility = the three reasons

ALSO IN THE HANDOUT

- Constituent Assembly debates reinforced this position.
- Ambedkar highlighted that any government ignoring the DPSPs would be held answerable to the people during elections, thus placing their sanction in popular sovereignty and democratic accountability.
- First, at the time of Independence, the country lacked sufficient financial resources to implement the extensive social and economic programme envisaged. 24.Second, India's vast socio-economic diversity and regional backwardness would have made uniform enforcement extremely difficult. 25.Third, the newly independent State, burdened with challenges of integration, poverty, and development, required flexibility to decide the order, timing, and manner of implementing the principles without being constrained by litigation.
- These situations highlight the risk of friction when ideals clash with institutional roles.

MY NOTES

- These efforts span various sectors and address economic, social, environmental, and political objectives of the Constitution.
- This directive promotes cultural diversity, linguistic rights, and educational inclusivity, in line with India's pluralistic ethos.
- This directive aims to strengthen Hindi while respecting the linguistic diversity of the nation, fostering national integration through language policy.

SIGNIFICANCE OF THE DIRECTIVE PRINCIPLES

- Fifteen points in the handout, grouped for recall.

MORAL AND IDEOLOGICAL FRAME

- **Fundamental to governance**: the moral and ideological framework within which the State operates.
- **Life-giving provisions** (L.M. Singhvi)
- M.C. Chagla: full implementation would make India a true welfare state
- **Conscience of the Constitution** (Granville Austin)
- Instrument of social revolution
- **Moral and educative value** (B.N. Rau): a reminder to governments.
- **Instrument of Instructions** (M.C. Setalvad): guidance to build a just social and economic order.
- **Reinforce the Preamble**: justice, liberty, equality, fraternity.

ECONOMIC DEMOCRACY

- **Ambedkar**: the foundation of economic democracy alongside political democracy, so liberty and equality are substantive, not formal.
- They balance political democracy with economic justice, so democracy touches everyday life.
- **Supplement to FRs**:
  - FRs give political freedoms
  - DPSP recognise social and economic rights for human dignity

LAW, POLICY AND POLITICS

- **Guidance for judiciary** in judging reasonableness and constitutionality of laws.
- **Background for legislation and policy**.
- **Stability and continuity**: commitment stays constant when governments change.
- **Accountability tool for the Opposition**.
- **Standard for evaluating government performance**: citizens can use them as benchmarks.

MY NOTES

- **Common political manifesto**: a constitutional guide, philosopher and friend for any government.
- **Memory aid (Who said what): S**inghvi = life-giving, **C**hagla = true welfare state, **A**ustin = conscience, **R**au = moral and educative (Setalvad = instrument of instructions, Ambedkar = economic democracy): "**S**ome **C**ritics **A**dore **R**ights."

ALSO IN THE HANDOUT

- Accountability Tool for Opposition: They empower the Opposition to question ruling parties for neglecting social and economic commitments enshrined in the Constitution.

CRITICISM OF THE DIRECTIVE PRINCIPLES

FIVE LINES OF CRITICISM

Criticism	The argument
Lack of legal enforceability	Non-justiciable. K.C. Wheare and Sir Ivor Jennings: moral precepts, lofty ideals without teeth. Some Assembly members: "pious superfluities"
Illogical arrangement	No systematic classification; major socio-economic items sit beside minor ones
No coherent philosophy	Modern scientific measures mixed with sentiment and prejudice; open to subjective reading
Conservative and outdated	Reflect 19th-century **Fabian socialism**; fail new 21st-century realities
Potential for constitutional conflict	Tensions between Centre and states, President and Prime Minister, Governor and Chief Minister

- **Memory aid (Five criticisms): L**egal force missing, **I**llogical order, **N**o philosophy, **C**onservative outlook, **P**otential conflict: "**L**ong **I**nstructions, **N**o **C**ourt **P**ower."

ALSO IN THE HANDOUT

- While they may have been relevant in the mid-20th century, they appear outdated in the present era and fail to address newer socio-economic realities of the 21st century.

FUNDAMENTAL RIGHTS VERSUS DIRECTIVE PRINCIPLES

- Justiciable FRs and non-justiciable DPSP have clashed since 1950. Art. 37 makes DPSP morally binding, but only FRs can be enforced.

THE CASE CHAIN

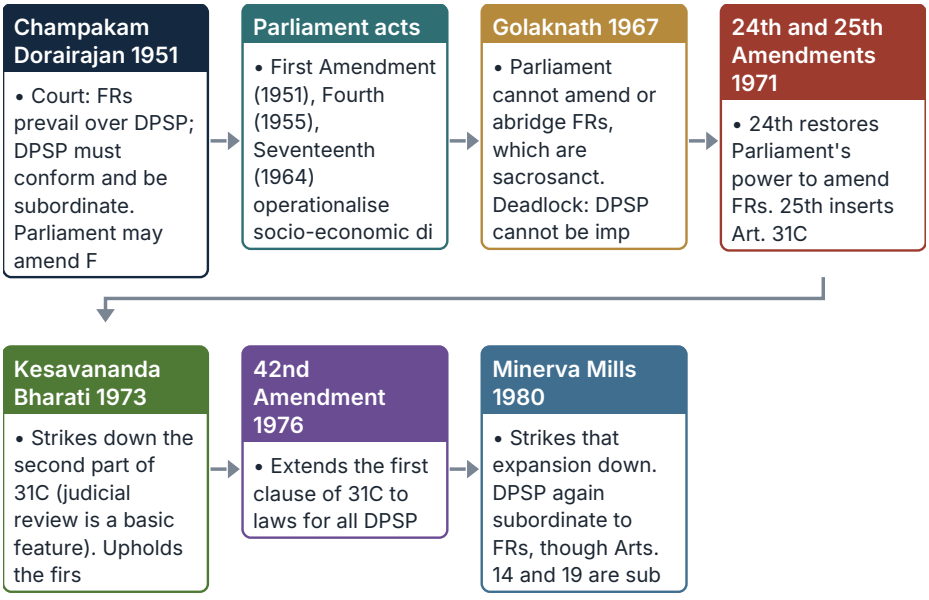
- **Champakam Dorairajan 1951**:
  - Court: FRs **prevail** over DPSP

MY NOTES

- DPSP must conform and be subordinate. Parliament **may amend** FRs to give effect to DPSP

- **Parliament acts**: First Amendment (1951), Fourth (1955), Seventeenth (1964) operationalise socio-economic directives
- **Golaknath 1967**: Parliament cannot amend or abridge FRs, which are sacrosanct. Deadlock: DPSP cannot be implemented if they encroach on FRs
- **24th and 25th Amendments 1971**: 24th restores Parliament's power to amend FRs. 25th inserts **Art. 31C**
- **Kesavananda Bharati 1973**: Strikes down the **second part** of 31C (judicial review is a basic feature). **Upholds the first part**: limited primacy of Art. 39(b) and (c) over Arts. 14, 19 and 31
- **42nd Amendment 1976**: Extends the first clause of 31C to laws for **all** DPSP
- **Minerva Mills 1980**: Strikes that expansion down. DPSP again subordinate to FRs, though Arts. 14 and 19 are subject to Art. 39(b) and (c)

THE CASE CHAIN



- **Art. 31C as inserted by the 25th Amendment:** (i) A law to implement the socialist DPSP in **Art. 39(b) and 39(c)** is not invalid for contravening **Arts. 14, 19 or 31**. (ii) No court can question such a law on the ground that it does not conform to that policy.
- **Memory aid (Case chain):** **C**hampakam, **G**olaknath, **A**mendments 24th-25th, **K**esavananda, **F**orty-second, **M**inerva Mills: "**C**ats **G**et **A**ngry, **K**ick **F**at **M**ice."
- The **44th Amendment (1978)** abolished Art. 31, removing the constitutional right to property.

MY NOTES

- **Minerva Mills** called FRs and DPSP "**two wheels of a chariot**": the Constitution rests on a delicate balance, neither gets absolute precedence, and DPSP goals must be pursued without undermining FRs.
- **Today**: FRs hold precedence, but Parliament may amend FRs to give effect to DPSP, provided the **basic structure** is preserved.

FUNDAMENTAL RIGHTS VERSUS DIRECTIVE PRINCIPLES

Aspect	Fundamental Rights	Directive Principles
Nature	Restrictive: stop the State from infringing individual freedoms	Prescriptive: direct the State to take positive measures for welfare
Enforceability	Legally enforceable; citizens go directly to courts	Not enforceable in court; depends on political will
Purpose	Political freedom and a democratic framework; safeguard individual liberty	Social and economic justice; overall welfare
Sanction	Legal sanctions; judicial remedies and penalties	Only moral and political sanctions
Focus	Individual rights and personal liberty	Collective welfare; a just and equitable society
Legislation needed	Automatically operational	Need enabling legislation or policy measures
Judicial role	Courts can strike down laws that contravene FRs	Courts cannot strike down a law only for violating DPSP, but can uphold laws that implement them

- **Shortcut: Restrain versus push. FR = restrictive, DP = prescriptive.** FR: court, legal sanction, self-operating. DP: voter, moral sanction, needs a law.

> **HANDOUT ALERT**
> Handout alert: The 42nd Amendment appears twice: once as the source of four DPSP changes (1976, Section 4) and once as the extension of Art. 31C (Section 8). Both are in the handout and both are true; keep them separate.

ALSO IN THE HANDOUT

- The Constitution makers consciously relied on the collective will of the people and the accountability of governments to ensure their gradual realization.
- Important socio-economic provisions are placed alongside relatively minor issues, creating an uneven and unsatisfactory structure. This reduces their conceptual clarity and makes them seem disorganized.

MY NOTES

- The situation shifted dramatically with the Golaknath case (1967).
- This judgment thus marked an attempt to balance the constitutional status of the two provisions, while reiterating that neither could be given absolute supremacy without undermining the spirit of the Constitution.
- At present, Fundamental Rights retain precedence over Directive Principles, but this does not render the latter ineffective.
- Such measures aimed to channel resources toward welfare and ensure economic equity.

FUNDAMENTAL DUTIES AND DIRECTIVE PRINCIPLES

- Both complement each other in achieving justice, liberty, equality and fraternity.

DPSP (PART IV) VERSUS FUNDAMENTAL DUTIES (PART IVA)

Aspect	DPSP	Fundamental Duties
Part	Part IV (Arts. 36-51)	Part IVA (Art. 51A)
Nature	Directions to the State for socio-economic welfare	Obligations on citizens to uphold constitutional values
Objective	Welfare state; social, economic and political justice	Responsible citizenship and national discipline
Justiciability	Non-justiciable	Non-justiciable (moral obligations)
Parallel example	Art. 48A: protect environment and wildlife	Art. 51A(g): protect natural environment, compassion for living creatures
Focus	Socio-economic and political welfare	Moral, ethical, civic responsibility
Source	Irish Constitution	Constitution of the erstwhile USSR
Implementation	Laws, policies, welfare schemes	Civic education, awareness, personal conduct
Relation	Guide the State's conduct; provide the legal-political framework	Guide citizens' behaviour; give moral and social support

ENFORCEMENT OF THE DIRECTIVE PRINCIPLES

- Since 1950 the Centre and States have used legislation, policy and programmes to give effect to the DPSP.

MY NOTES

AREAS OF ACTION

Area	Measures in the handout
Planned development	**Planning Commission 1950**; Five-Year Plans for equitable growth; replaced in **2015** by **NITI Aayog** (cooperative federalism, policy innovation, long-term planning)
Agrarian reforms	Abolition of intermediaries such as zamindars; tenancy reforms (fair rents, security of tenure); ceilings on landholdings; redistribution of surplus land; cooperative farming
Women's welfare	**Maternity Benefit Act (1961)**; **Equal Remuneration Act (1976)**
Economic and financial	Nationalisation of life insurance (**1956**), banks (**1969**), general insurance (**1971**); abolition of privy purses (**1971**)
Access to justice	**Legal Services Authorities Act (1987)**: free and competent legal aid; **Lok Adalats**: statutory conciliation, awards binding and enforceable
Cottage and rural industries	Khadi and Village Industries Commission, Small-Scale Industries Board, Handloom Board, Coir Board, Silk Board
Environment	**Wildlife (Protection) Act (1972)**; **Forest (Conservation) Act (1980)**; Water and Air (Prevention and Control of Pollution) Acts; **National Forest Policy (1988)**; pollution control boards

- **Memory aid (Seven areas): P**lanning, **A**grarian, **W**omen, **E**conomic (nationalisation), **A**ccess to justice, **C**ottage industries, **E**nvironment: "**P**eople **A**lways **W**ant **E**very **A**dvantage **C**ountry **E**ntails."
- **Shortcut: Dates to hold.** Nationalisation: **life insurance 1956, banks 1969, general insurance 1971** (privy purses also 1971). Planning Commission **1950**, NITI Aayog **2015**.

ALSO IN THE HANDOUT

- A major step in this direction was the establishment of the Planning Commission in 1950 to steer the nation's development in a planned manner.
- These measures aim to integrate women into the workforce while safeguarding their rights and dignity.

DIRECTIVES OUTSIDE PART IV

- Directive-type provisions also sit in other Parts. They are not enforceable, but courts read them with Part IV on the principle of **harmonious construction**.

MY NOTES

THREE DIRECTIVES OUTSIDE PART IV

Article	Part	Directs
335	Part XVI	Claims of **SCs and STs** to be considered in appointments to services and posts of the Union or a State, balanced with administrative efficiency
350-A	Part XVII	Every State and local authority to make genuine efforts to give facilities for teaching **linguistic minority children** in their **mother tongue** at primary level
351	(handout gives no Part)	Duty of the **Union** to spread **Hindi** and develop it as a medium of expression for India's composite culture

- **Memory aid (Outside Part IV):** **S**C/ST services (335), **M**other tongue (350-A), **H**indi (351): "**S**ome **M**en **H**ope."

ALSO IN THE HANDOUT

- Consideration of Claims of Scheduled Castes and Scheduled Tribes in Services: Article 335, located in Part XVI of the Constitution, directs that the claims of members of Scheduled Castes (SCs) and Scheduled Tribes (STs) should be considered while making appointments to public services and posts connected with the affairs of the Union or a State.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 9, DIRECTIVE PRINCIPLES OF STATE POLICY

- Ambedkar called the Directive Principles 'novel features' of the Constitution. Together with Fundamental Rights they contain the philosophy of the Constitution.
- A 'police state' only looks after law and order and defence
- It rests on the 19th century idea of laissez-faire individualism
- Strictly, Directive Principles are in Articles 38 to 51
- Article 36 defines State and Article 37 gives their nature
- Article 39 has six aims: livelihood, fair distribution of resources, no concentration of wealth, equal pay for men and women, health of workers and children, healthy development of children. Article 39(b): ownership and control of resources shared to serve the common good. Article 39(c): economic system must not concentrate wealth.
- Article 41 covers public assistance in unemployment, old age, sickness and disablement. Article 49 protects monuments of artistic or historic interest of national importance.
- A 'living wage' is more than a 'minimum wage' (food, shelter, clothing)

MY NOTES

- It adds education, health, insurance. A 'fair wage' lies between them
- FR versus DPSP:
  - FRs are negative, personal and individualistic and aim at political democracy
  - DPSPs are positive, societarian and socialistic and aim at social and economic democracy
- K. Santhanam's conflict example:
  - The Centre can direct states to follow DPSPs and may dismiss a non-complying state government
  - The President may reject a bill that ignores them
- Lok Adalat has the status of a civil court
- Its award is binding and final with no appeal. The Criminal Procedure Code (1973) separated judiciary from executive (Article 50)
- Why implementation is incomplete: inadequate finances, unfavourable socio-economic conditions, population explosion and strained Centre-state relations. Other steps: 73rd Amendment (1992) for panchayats, 103rd Amendment (2019) for 10% EWS reservation, 102nd Amendment (2018) for constitutional status to the Backward Classes Commission.

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Where are the DPSP placed and from which Constitution were they drawn?	Part IV, Articles 36-51; the Irish Constitution of 1937, which took them from the Spanish Constitution.
What does Art. 36 do?	Defines "State" for Part IV (same as in Part III).
What does Art. 37 say?	DPSP are not enforceable by any court but are fundamental in governance; the State must apply them in making laws.
Which Amendment added Art. 39A, and why?	42nd Amendment, 1976: equal justice and free legal aid for the poor and weaker sections.
Which four changes did the 42nd Amendment make to DPSP?	Art. 39 widened for children; new 39A, 43A (workers in management) and 48A (environment).
What did the 44th Amendment do to Art. 38?	Widened it from income inequalities to also status, facilities and opportunities.

What did the 86th Amendment do to Art. 45?	Replaced free and compulsory education up to 14 (now Art. 21A) with early childhood care and education until six years.
What did the 97th Amendment add?	Art. 43B: cooperative societies.
Name the three groups of DPSP.	Socialistic, Gandhian, Liberal-Intellectual.
Which Articles are Gandhian in the handout?	40 (panchayats), 43 (cottage industries), 43B (cooperatives), 46 (weaker sections), 47 (prohibition), 48 (cow protection).
Which Articles are Liberal-Intellectual?	44, 45, 48 (modern agriculture), 48A, 49, 50, 51.
Which Articles are Socialistic?	38, 39, 39A, 41, 42, 43, 43A, 47.
Why are DPSP called an "Instrument of Instructions"?	They resemble the 1935 Act's instructions to the Governor-General; Ambedkar noted they are now addressed to the legislature and executive.
Who recommended the justiciable and non-justiciable split?	Sir B.N. Rau, accepted by the Drafting Committee.
Three reasons for non-justiciability?	Lack of resources; socio-economic diversity; need for flexibility without litigation.
What is the real sanction behind DPSP?	Public opinion, democratic processes and political responsibility.
Who called DPSP the conscience of the Constitution?	Granville Austin.
Who called them life-giving provisions?	L.M. Singhvi.
Name the five criticisms of DPSP.	No legal force; illogical arrangement; no coherent philosophy; conservative Fabian outlook; potential for constitutional conflict.
What did Champakam Dorairajan (1951) hold?	FRs prevail over DPSP; DPSP must conform; Parliament may amend FRs to implement DPSP.
What did Golaknath (1967) hold?	Parliament cannot amend or abridge FRs.
What did the 24th and 25th Amendments (1971) do?	24th restored Parliament's power to amend FRs; 25th inserted Art. 31C.
What does Art. 31C protect?	Laws implementing Art. 39(b) and (c) from invalidity under Arts. 14, 19 and 31, with no court questioning them (second part later struck down).

MY NOTES

Kesavananda on 31C?	Second part struck down (judicial review is basic feature); first part upheld.
Minerva Mills (1980)?	Struck down the 42nd Amendment's extension of Art. 31C; FRs and DPSP are two wheels of a chariot.
FR versus DPSP in one line?	FR restrictive, enforceable, legal sanction; DPSP prescriptive, non-enforceable, moral and political sanction.
When were the Planning Commission and NITI Aayog set up?	Planning Commission 1950; NITI Aayog replaced it in 2015.
Which Acts of 1961 and 1976 serve women's welfare?	Maternity Benefit Act (1961); Equal Remuneration Act (1976).
Which directives lie outside Part IV?	Art. 335 (SC/ST in services), Art. 350-A (mother tongue), Art. 351 (Hindi).
What did the Legal Services Authorities Act (1987) do?	Framework for free and competent legal aid; Lok Adalats with binding awards.
Mains 2015: Discuss the possible factors that inhibit India from enacting for its citizens a uniform civil code	Intro: The Uniform Civil Code is a directive in Art. 44, listed among the Liberal-Intellectual principles of Part IV Body: Art. 44 is a Directive Principle and DPSP are non-justiciable so courts cannot compel Parliament to enact it; DPSP need enabling legislation or policy measures to be realised; implementation depends on the political will of the State; the framers left the State flexibility over the order and timing of implementing the principles; India's vast socio-economic diversity makes uniform enforcement difficult; the real sanction is public opinion and electoral accountability; Art. 37 makes it the duty of the State to apply the principle in making laws. Close: Art. 44 is a duty without a court behind it: the push must come from public opinion and political will.

MY NOTES

Trap 1 · Same article, different group

Article 47 appears in Socialistic (nutrition and public health) and in Gandhian (prohibition of intoxicants). Article 43 appears in Socialistic (living wage) and Gandhian (cottage industries). Article 48 appears in Gandhian (cow protection) and Liberal-Intellectual (modern agriculture). *Rule: judge by the part of the article being described, not the number.*

Trap 2 · Article 45 changed meaning

Originally Article 45 asked for free and compulsory education up to age 14. The 86th Amendment (2002) made elementary education a Fundamental Right (Article 21A) and changed Article 45 to early childhood care and education until six years. *Rule: 6 to 14 = right (21A); below 6 = directive (Article 45).*

Trap 3 · Two halves of Article 31C

Kesavananda (1973) struck the second part (no court can question the law) and kept the first part for Articles 39(b) and (c). The 42nd Amendment extended protection to all DPSPs; Minerva Mills (1980) struck that extension. *Rule: protection stays only for Article 39(b) and 39(c); judicial review stays.*

Trap 4 · Who wins: FR or DPSP

Champakam Dorairajan (1951) said FRs prevail. Golaknath (1967) said FRs cannot be amended at all. Today FRs have precedence, yet Parliament may amend FRs to implement DPSPs if the basic structure is respected. *Rule: FR supreme, but not absolute over DPSP.*

QUICK QUIZ

Q1. The Directive Principles of State Policy are contained in which Part and Articles of the Constitution?

1. Part III, Articles 12-35
2. Part IV, Articles 36-51
3. Part IVA, Article 51A
4. Part V, Articles 52-78

Q2. According to the Constitution of India, which of the following are fundamental for the governance of the country?

1. Fundamental Rights
2. Fundamental Duties
3. Directive Principles of State Policy
4. Fundamental Rights and Fundamental Duties

Q3. Consider the statements on DPSP (2015): 1. The principles spell out the socio-economic democracy in the country. 2. The provisions in these Principles are not enforceable by any court. Which is/are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q4. Which principle among the following was added to the DPSP by the 42nd Amendment (2017)?

1. Equal pay for equal work for both men and women
2. Participation of workers in the management of industries
3. Right to work, education and public assistance
4. Securing living wage and human conditions of work

MY NOTES

Q5. In the Constitution of India, promotion of international peace and security is included in the (2014)

1. Preamble
2. Directive Principles of State Policy
3. Fundamental Duties
4. Ninth Schedule

Q6. Which of the following are Gandhian principles reflected in the DPSP (2012)? 1. Uniform civil code 2. Organising village panchayats 3. Promoting cottage industries in rural areas 4. Reasonable leisure and cultural opportunities for workers

1. 1, 2 and 4 only
2. 2 and 3 only
3. 1, 3 and 4 only
4. 1, 2, 3 and 4

Q7. In India, separation of judiciary from the executive is enjoined by (2020)

1. The Preamble
2. A Directive Principle of State Policy
3. The Seventh Schedule
4. Conventional practice

Q8. Which Article inserted by the 97th Amendment (2011) directs the State on cooperative societies?

1. Art. 43A
2. Art. 43B
3. Art. 46
4. Art. 48A

Q9. Which case first held that Fundamental Rights prevail over Directive Principles but that Parliament may amend FRs to give effect to DPSP?

1. Golaknath case (1967)
2. Kesavananda Bharati case (1973)
3. Champakam Dorairajan case (1951)
4. Minerva Mills case (1980)

Q10. What did Kesavananda Bharati (1973) do to Art. 31C?

1. Struck down both parts
2. Upheld both parts
3. Struck down the second part and upheld the first
4. Struck down the first part and upheld the second

Q11. The Supreme Court described FRs and DPSP as "two wheels of a chariot" in which case?

1. Champakam Dorairajan
2. Golaknath
3. Kesavananda Bharati
4. Minerva Mills

Q12. Under the Constitution, according to the handout, which is NOT a reason the framers made the DPSP non-justiciable?

1. Lack of financial resources at Independence
2. Socio-economic diversity and regional backwardness
3. Need for flexibility in order, timing and manner
4. Fear that courts would be overloaded with appeals

Q13. Which Article directs consideration of the claims of SCs and STs in public services, balanced with administrative efficiency?

1. Art. 335
2. Art. 350-A
3. Art. 351
4. Art. 46

Q14. Under the Constitution of India, concentration of wealth violates (2021)

1. The Right to Equality
2. The Directive Principles of State Policy
3. The Right to Freedom
4. The Concept of Welfare

MY NOTES

Q15. PYQ 2012: Consider the following provisions under the Directive Principles of State Policy as enshrined in the Constitution of India: (2012)
1. Securing for citizens of India a uniform civil code.
2. Organizing village Panchayats.
3. Promoting cottage industries in rural areas.
4. Securing for all the workers reasonable leisure and cultural opportunities. Which of the above are the Gandhian Principles that are reflected in the Directive Principles of State Policy?

1. 1, 2 and 4 only
2. 2 and 3 only
3. 1, 3 and 4 only
4. 1, 2, 3 and 4

Q16. PYQ 2012: Which of the following provisions of the Constitution of India have a bearing on Education? (2012)
1. Directive Principles of State Policy
2. Rural and Urban Local Bodies
3. Fifth Schedule
4. Sixth Schedule
5. Seventh Schedule Select the correct answer using the codes given below:

1. 1 and 2 only
2. 3, 4 and 5 only
3. 1, 2 and 5 only
4. 1, 2, 3, 4 and 5

Q17. PYQ 2013: According to the Constitution of India, which of the following are fundamental for the governance of the country? (2013)

1. Fundamental Rights
2. Fundamental Duties
3. Directive Principles of State Policy
4. Fundamental Rights and Fundamental Duties

Q18. PYQ 2014: In the Constitution of India, promotion of international peace and security is included in the (2014)

1. Preamble to the constitution
2. Directive Principles of State Policy
3. Fundamental Duties
4. Ninth Schedule

Q19. PYQ 2015: Consider the following statements regarding the Directive Principles of State Policy: (2015)
1. The principles spell out of the socio-economic democracy in the country.
2. The provisions contained in these Principles are not enforceable by any court. Which of the statements given above is/are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q20. PYQ 2015: The ideal of 'Welfare State' in the Indian Constitution is enshrined in its (2015)

1. Preamble
2. Directive Principles of State Policy
3. Fundamental Rights
4. Seventh Schedule

Q21. PYQ 2017: Which principle among the following was added to the Directive Principles of State Policy by the 42nd Amendment to the Constitution? (2017)

1. Equal pay for equal work for both men and women
2. Participation of workers in the management of industries
3. Right to work, education and public assistance
4. Securing living wage and human conditions of work to workers

MY NOTES

Q22. PYQ 2017: Consider the following statements: With reference to the Constitution of India, the Directive Principles of State Policy constitute limitations upon (2017)
1. legislative function.
2. executive function. Which of the above statements is/are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q23. PYQ 2020: Which part of the Constitution of India declares the ideal of a Welfare State? (2020)

1. Directive Principles of State Policy
2. Fundamental Rights
3. Preamble
4. Seventh Schedule

Q24. PYQ 2020: With reference to the provisions contained in Part IV of the Constitution of India, which of the following statements is/ are correct? (2020)
1. They shall be enforceable by courts.
2. They shall not be enforceable by any court.
3. The principles laid down in this part are to influence the making of laws by the State. Select the correct answer using the code given below:

1. 1 only
2. 2 only
3. 1 and 3 only
4. 2 and 3 only

Q25. PYQ 2020: In India, separation of judiciary from the executive is enjoined by (2020)

1. the Preamble of the Constitution
2. a Directive Principle of State Policy
3. the Seventh Schedule
4. the conventional practice

Q26. PYQ 2020: In India, Legal Services Authorities provide free legal services to which of the following types of citizens? (2020)
1. Person with an annual income of less than Rs. 1,00,000.
2. Transgender with an annual income of less than Rs. 2,00,000.
3. Member of Other Backward Classes (OBC) with an annual income of less than Rs. 3,00,000.
4. All Senior Citizens Select the correct answer using the code given below:

1. 1 and 2 only
2. 3 and 4 only
3. 2 and 3 only
4. 1 and 4 only

Q27. PYQ 2021: Under the Indian Constitution, concentration of wealth violates (2021)

1. the Right to Equality
2. the Directive Principles of State Policy
3. the Right to Freedom
4. the Concept of Welfare

Answers: Q1 b, Q2 c, Q3 c, Q4 b, Q5 b, Q6 b, Q7 b, Q8 b, Q9 c, Q10 c, Q11 d, Q12 d, Q13 a, Q14 b, Q15 b, Q16 d, Q17 c, Q18 b, Q19 c, Q20 b, Q21 b, Q22 d, Q23 a, Q24 d, Q25 b, Q26 a, Q27 b

MY NOTES

08 Fundamental Duties

CHAPTER 8 · HANDOUT PAGES ON PART IVA (ARTICLE 51A)

MEDIUM PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **2011, 2012, 2015, 2017, 2025**

EXAM LENS

Prelims hooks

- list of duties (what is and is not a duty)
- source USSR
- Part IVA and Art. 51A
- Amendments of 1976 and 2002
- Swaran Singh Committee
- justiciability
- Verma Committee Acts
- match provisions across DPSP, FD and FR.
- Handout stresses: Five Prelims PYQs quoted (2011, 2012, 2015, 2017, 2025) (PYQ section)
- Handout stresses: Article 51A, Part IVA, added by the 42nd Amendment 1976; 86th Amendment 2002 added the duty on education for ages 6 to 14 (Evolution)
- Handout stresses: Swaran Singh Committee proposals not accepted: penalties, judicial bar, duty to pay taxes (Evolution and Criticism)
- Handout stresses: Non-justiciable; USSR, Yugoslavia and Albania made duties binding (Non-justiciability)

Mains hooks

- none quoted in the material
- Likely angles from the notes: need and criticism of duties, rights versus duties, Verma Committee on public office.

Rights tell the State what citizens may demand; duties tell citizens what the nation expects, with conscience as the only enforcer.

IN SIMPLE WORDS

- **Fundamental Duties** are the duties of **citizens**, listed in **Part IVA, Article 51A**.
- They were added by the **42nd Amendment (1976)** during the Emergency, on the advice of the **Swaran Singh Committee**. It suggested 8 duties

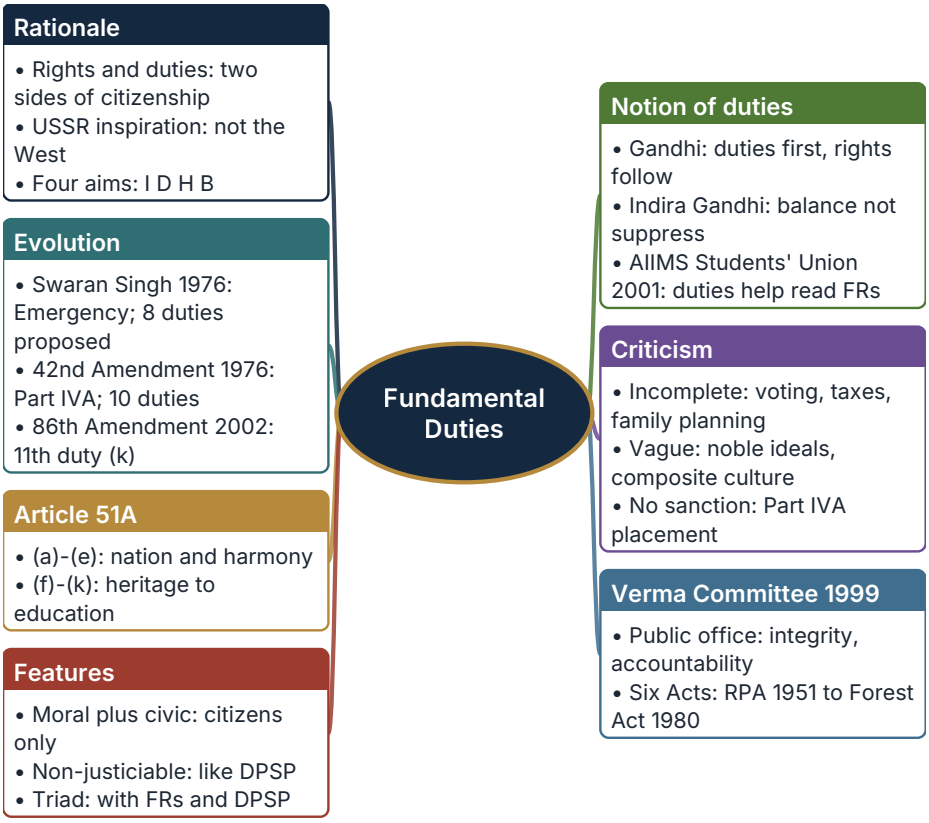
MY NOTES

- The Act gave **10**
- The **86th Amendment (2002)** added the **11th duty**: parents or guardians must provide education to children aged **6 to 14**.
- They are **non-justiciable**, like DPSPs, with no penalty. Their idea came from the **Constitution of the erstwhile USSR**.
- The **Verma Committee (1999)** pointed to existing laws that already help enforce them.

Key term	In plain words
Part IVA	Part of the Constitution with only Article 51A, containing the Fundamental Duties.
Swaran Singh Committee (1976)	Set up during the Emergency; recommended a chapter on duties, 8 in number.
Non-justiciable	Cannot be enforced in court; no penalty is prescribed, though Parliament may make laws to give them effect.
Citizens only	Duties apply to Indian citizens, unlike some rights that extend to foreigners too.
Verma Committee (1999)	Justice J.S. Verma Committee on Fundamental Duties; formed after the Supreme Court's 1998 notice on spreading awareness.
Scientific temper	Duty (h): rational thinking, inquiry and reform, rejecting superstition.
Duty (k)	Added by the 86th Amendment (2002): provide education to children between 6 and 14 years.
USSR source	Inspiration for including duties alongside rights.

MY NOTES

MEMORY MAP: FUNDAMENTAL DUTIES



MNEMONIC · DUTIES UNDER ART. 51A (1 OF 2)

D U T I E S

- **D** Defend the country and render national service, (d)
- **U** Unity: protect the sovereignty, unity and integrity of India, (c)
- **T** Temper: develop scientific temper and humanism, (h)
- **I** Ideals of the freedom struggle: cherish them, (b)
- **E** Environment: protect and improve it, (g)
- **S** Safeguard public property and renounce violence, (i)

These are the DUTIES. Six of the eleven, order rearranged so the initials spell DUTIES. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · DUTIES UNDER ART. 51A (2 OF 2)

C H E E R

- **C** Constitution: abide by it and respect the flag and anthem, (a)
- **H** Harmony and brotherhood; renounce discrimination, (e)
- **E** Excellence: strive for it in all spheres, (j)
- **E** Education: provide it to children aged 6 to 14, (k)
- **R** Rich cultural heritage: preserve it, (f)

Citizens CHEER the nation by doing the other five duties. Order is rearranged so the initials spell CHEER. (Memory aid, not from the handout.)

MNEMONIC · RECOMMENDATIONS NOT ACCEPTED

Pay Just Taxes

- **P** Penalty for non-performance of duties
- **J** Judicial bar: no court to question such a law
- **T** Taxes: duty to pay them

Remember the three rejected ideas: Penalty, Judicial bar, Taxes. Order is free here: no single word fits, so a sentence is used. (Memory aid, not from the handout.)

RATIONALE BEHIND FUNDAMENTAL DUTIES

- They remind citizens that while the State guarantees rights, it also expects them to uphold values of **national unity and social harmony**.
- The original Constitution had **only rights** and no duties
- The framers believed civic responsibility would evolve naturally
- By the **mid-1970s** it was felt necessary to define duties to promote discipline, responsibility and commitment.
- **Inspiration**: the Constitution of the erstwhile **USSR**, which treated rights and duties as inseparable. Unlike the USA, Canada, France or Australia, which stress individual rights, India aligns with nations balancing collective responsibility with personal freedom.
- **Main objective**: an ethical and moral code of conduct, so constitutional ideals become civic behaviour.

FOUR AIMS AND A PHILOSOPHY

- **Aims:**
  - Promote national integration (respect for Constitution, flag, national symbols)
  - Strengthen democracy (sovereignty, public property)
  - Foster social harmony (scientific temper, environment, inquiry)

MY NOTES

- Balance rights with responsibilities so freedoms are not misused

- **Philosophical objective:** A moral compass guiding citizens towards justice, liberty, equality and fraternity
- **Memory aid (Four aims):** **I**ntegration, **D**emocracy, **H**armony, **B**alance: "**I**ndians **D**o **H**onour **B**alance."

ALSO IN THE HANDOUT

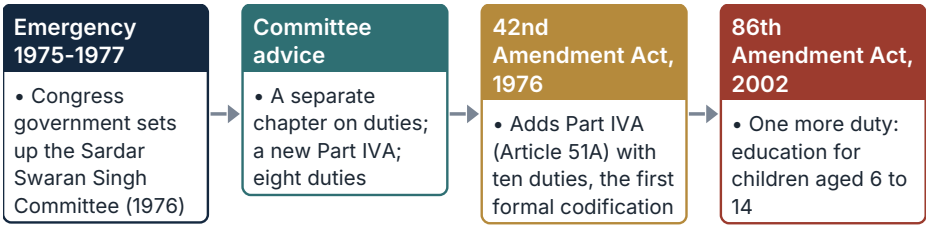
- Promote national integration by encouraging respect for the Constitution, the flag, and national symbols. 42.Strengthen democracy by reminding citizens of their role in upholding sovereignty and protecting public property. 43.Foster social harmony by promoting a scientific temper, environmental protection, and spirit of inquiry. 44.Balance rights with responsibilities, ensuring that freedoms are not misused to the detriment of others. 45.Philosophical Objective: Fundamental Duties act as the moral compass of the nation, guiding citizens to perform their part in achieving the goals set by the Constitution, such as justice, liberty, equality, and fraternity.
- The committee was tasked with examining the necessity of incorporating a set of duties for citizens in the Constitution, recognizing that the focus so far had been largely on Fundamental Rights, while civic responsibilities remained unarticulated.

EVOLUTION AND THE SWARAN SINGH COMMITTEE

FROM COMMITTEE TO CONSTITUTION

- **Emergency 1975-1977**: Congress government sets up the **Sardar Swaran Singh Committee (1976)**
- **Committee advice**:
  - A separate chapter on duties
  - A new **Part IVA**
  - **eight** duties
- **42nd Amendment Act, 1976**: Adds **Part IVA (Article 51A)** with **ten** duties, the first formal codification
- **86th Amendment Act, 2002**: One more duty: education for children aged **6 to 14**

FROM COMMITTEE TO CONSTITUTION



MY NOTES

WHAT THE COMMITTEE RECOMMENDED

- **Inclusion of Fundamental Duties**: a new section to enshrine duties beside rights.
- **Moral and civic responsibility**: enjoyment of rights is inseparable from performing duties.
- **Constitutional chapter**: a new Part IVA with a code of duties for all citizens.

RECOMMENDATIONS NOT ACCEPTED

THREE REJECTED SUGGESTIONS

Sugges-tion	Why it was left out
Penal pro-visions	Parliament to prescribe punishment for non-performance; not accepted as it could undermine Fundamental Rights
Judicial bar	No court to question any law enforcing duties; seen as incon-sistent with constitutional principles
Duty to pay taxes	Omitted from the final list

- **Memory aid (Three rejected): P**enalties, **J**udicial bar, **T**axes: "**P**oor **J**udges **T**remble."
- **Do you know:** India was the **first Commonwealth nation** to include Fundamental Duties in its Constitution.

> **HANDOUT ALERT**
> Handout alert: The duty count changes with the source: the committee suggested **eight**, the 1976 Amendment introduced **ten** (Art. 51A (a) to (j)), and with the 2002 addition (k) the list today has **eleven**. For "how many duties today" answer 11; for "original" answer 10.

ALSO IN THE HANDOUT

- The major suggestions included: 23.Inclusion of Fundamental Duties: A new section should be added to enshrine duties that every citizen is expected to follow, alongside their rights. 24.Moral and Civic Responsibility: Citizens should be made aware that the enjoyment of rights is inseparable from the performance of duties, ensuring a balance between individual freedom and collective wel-fare. 25.Addition of a Constitutional Chapter: The committee pro-posed introducing a new Part IVA, laying down a code of duties applicable to all citizens of India.
- Penal Provisions: The committee suggested empowering Parlia-ment to prescribe punishments or penalties for non-performance of duties — this was not accepted, as it could undermine Funda-mental Rights. 24.Judicial Bar: It proposed that no court should

MY NOTES

question any law related to the enforcement of Fundamental Duties — a clause considered inconsistent with constitutional principles. 25.Duty to Pay Taxes: The committee wanted to include tax payment as a Fundamental Duty — this too was omitted from the final list. Significance of the Committee's Work The Swaran Singh Committee played a pivotal role in shaping the moral and civic dimension of the Constitution. Its recommendations reflected the belief that citizenship is not merely a matter of entitlement but also of obligation.

- Many scholars and constitutional experts have argued that the provisions, while symbolically important, suffer from conceptual and practical limitations that undermine their effectiveness and constitutional coherence.
- Critics point out that the Swaran Singh Committee had proposed penalties for non-compliance, but this recommendation was ignored, thereby diluting their practical utility. Some constitutional experts have also questioned the necessity of including these duties in the Constitution at all.

ARTICLE 51A: THE ELEVEN DUTIES

- "It shall be the duty of every citizen of India":

DUTIES (A) TO (K)

Clause	Duty	What it means in the handout
(a)	Abide by the Constitution and respect its symbols	Uphold ideals and institutions; respect National Flag and National Anthem
(b)	Cherish the ideals of the freedom struggle	Follow ideals such as sacrifice, unity, self-reliance
(c)	Protect the sovereignty, unity and integrity of India	Act against threats to unity or independence
(d)	Defend the country and render national service when called upon	Defence in war and civil emergencies
(e)	Promote harmony and renounce discrimination	Brotherhood beyond caste, religion, language; denounce practices degrading women's dignity
(f)	Preserve the rich cultural heritage	Art, literature, monuments, practices of the composite culture
(g)	Protect and improve the environment	Forests, rivers, wildlife; compassion for living beings
(h)	Develop scientific temper and humanism	Rational thinking, inquiry, reform; reject superstition
(i)	Safeguard public property and renounce violence	Public assets as national trust; no destruction or violent protest

MY NOTES

Clause	Duty	What it means in the handout
(j)	Strive for excellence in all spheres	Continuous improvement by individuals and institutions
(k)	Provide education to children between 6 and 14 years	**Added by the 86th Amendment 2002**; duty of every parent or guardian; reinforces **Art. 21A**

- **Memory aid (First five (a to e)):** **C**onstitution, **I**deals of freedom struggle, **S**overeignty, **D**efend, **H**armony: "**C**ool **I**ndians **S**tand **D**ear **H**armony."
- **Memory aid (Last six (f to k)):** **H**eritage, **E**nvironment, **S**cientific temper, **P**ublic property, **E**xcellence, **E**ducation: "**H**ungry **E**lephants **S**eldom **P**ass **E**mpty **E**ateries."
- **Shortcut:**
  - **Not duties (PYQ traps). Voting** is not a duty (2011). **Protecting weaker sections** is not a duty (2012)
  - It is Art. 46, a DPSP. **Taxes**, **family planning** are not in the list. Duties that *are* in: scientific temper, public property, composite culture, excellence, sovereignty-unity-integrity, abide by Constitution

ALSO IN THE HANDOUT

- It omits several essential obligations expected of responsible citizens in a modern democracy, such as voting in elections, paying taxes honestly, and adopting family planning measures.

FEATURES OF THE FUNDAMENTAL DUTIES

FIVE FEATURES

Feature	Detail
Moral plus civic	Moral: cherish freedom struggle ideals. Civic: respect Constitution, Flag, Anthem
Rooted in Indian tradition	Drawn from civilisational heritage: compassion, harmony, respect for elders, environment, community living
Citizens only	Unlike several FRs that cover all persons (citizens and foreigners), duties bind only citizens
Non-justiciable	Like DPSP, not enforceable in court; no penalties for violation; the handout adds that Parliament may enact laws to give them effect
Complementary	Balance rights with collective responsibility; with FRs and DPSP form a **triad** of moral framework

TRIAD OF THE MORAL FRAMEWORK

- **Fundamental Rights:**
  - Part III

MY NOTES

- Justiciable
- Enforceable in court
- Extend to persons (several of them)

- **DPSP and Duties:**
  - Part IV and Part IVA
  - Non-justiciable
  - DPSP bind the State morally, duties bind citizens morally

ALSO IN THE HANDOUT

- ## Features of the Fundamental Duties 1.

THE NOTION OF DUTIES UNDER THE CONSTITUTION

- Six ideas about why duties matter.
- **Gandhian view**:
  - If individuals perform their duties diligently, protection of rights follows
  - Duties underpin justice and harmony
- **Preventive and cautionary role**: a moral warning against activities that undermine unity, integrity and harmony.
- **Reminder of civic responsibility**:
  - Rights go hand in hand with obligations
  - Citizenship means privileges and responsibilities
- **Source of inspiration and discipline**: citizens are active participants in nation-building, not spectators.
- **Democratic and moral balance**: **Indira Gandhi**: the aim was "not to suppress rights but to balance them by making people equally aware of their duties". Law Minister **H.R. Gokhale**: a "sobering reminder" against anti-national and unconstitutional behaviour seen in the 1970s.
- **Guidance for legislature and judiciary**: a moral and interpretative framework. In **AIIMS Students' Union v. AIIMS (2001)** the Supreme Court observed that duties are relevant in interpreting Fundamental Rights and ensuring responsible conduct.
- **Memory aid (Six notions):** **G**andhi view, **P**reventive role, **R**eminder, **S**ource of discipline, **D**emocratic balance, **G**uidance for courts: "**G**ood **P**eople **R**emember **S**erving **D**uty **G**ladly."

ALSO IN THE HANDOUT

- Although not all proposals were accepted, its vision ensured that rights and duties became complementary pillars of democratic governance, inspiring citizens to contribute actively toward the nation's progress and constitutional ideals.

MY NOTES

- This highlights that only those who enjoy the rights and privileges of citizenship are expected to fulfill the corresponding duties towards the nation.
- ## The Notion of Duties under the Constitution 1.
- This civic consciousness strengthens democratic institutions and encourages collective efforts toward achieving national goals.
- Courts and legislatures often rely on them to shape laws and judgments consistent with constitutional morality.

CRITICISM OF THE FUNDAMENTAL DUTIES

- Symbolically important, but weak in concept and practice.

FIVE CRITICISMS

Criticism	The argument
Incomplete list	Omits voting, honest tax payment, family planning. The committee itself proposed the tax duty, but it was not accepted
Vague and abstract	"noble ideals", "composite culture", "scientific temper" are too broad; hard for common citizens to apply; limits educational and moral influence
Non-justiciable	No legal sanction, so merely a code of moral conduct; the committee's penalty proposal was ignored
Unnecessary	They are inherent moral responsibilities; inclusion was superfluous and politically motivated, since the amendment passed during the **Emergency**
Placement	In Part IVA after the DPSP, symbolically diminishing them; should have followed Part III immediately for equal footing with rights

- **Memory aid (Five criticisms):** **I**ncomplete, **V**ague, **N**on-justiciable, **U**nnecessary, **P**lacement: "**I V**isited **N**ew **U**nits **P**lanned."

ALSO IN THE HANDOUT

- Secondly, several of these duties have been criticized as vague, abstract, and open to varied interpretations.
- Common citizens may find it difficult to grasp their precise meaning or to determine what specific behavior is required to fulfill them. This vagueness, critics argue, limits their educational and moral influence. Another major criticism relates to their non-justiciable nature, meaning that they cannot be enforced through legal mechanisms.

NON-JUSTICIABILITY OF THE FUNDAMENTAL DUTIES

- The Constitution has no provision for direct enforcement
- No citizen can be punished by a court for violating a duty. In this they resemble the DPSP

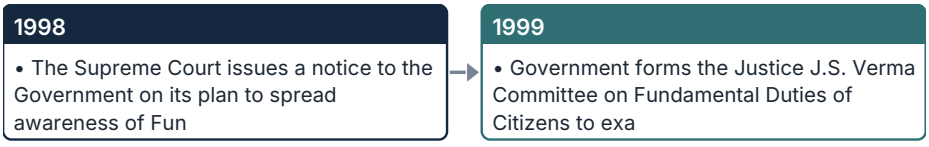
MY NOTES

- They were **deliberately placed in Part IVA** rather than at the end of the justiciable Part III, keeping them non-justiciable.
- **Contrast abroad**:
  - The erstwhile **USSR, Yugoslavia and Albania** made duties legally binding
  - In India they remain advisory
- **V.K.R.V. Rao**:
  - Duties will be ineffective without legal sanctions
  - People lack the courage to perform duties voluntarily
  - Rights without enforceable duties lack a firm ethical foundation

AFTER THE CRITICISM

- **1998**: The Supreme Court issues a notice to the Government on its plan to spread awareness of Fundamental Duties
- **1999**: Government forms the **Justice J.S. Verma Committee on Fundamental Duties of Citizens** to examine operational aspects and suggest ways to teach and encourage obedience

AFTER THE CRITICISM



HANDOUT ALERT

Handout alert: The Features section says Parliament has power to enact laws to give duties effect, while the non-justiciability section says the Constitution gives **no provision for direct enforcement**. The 2017 PYQ key says **no legislative process has been provided to enforce** the duties and they are **not correlative to legal duties** (answer: neither). Use the PYQ key in exams.

ALSO IN THE HANDOUT

- In response, the Government constituted the Justice J.S.

VERMA COMMITTEE ON FUNDAMENTAL DUTIES (1999)

RECOMMENDATIONS

- Duties raise the standards of citizens in public life
- Everyone should obey and promote them
- Holders of **public office** avoid selfishness and nepotism, putting public interest first.
- **Integrity** as the guiding principle in public office.
- **Accountability** to the public for decisions and actions.

MY NOTES

- **Transparency and openness** in all decisions and actions.
- **Honesty** at all times.
- **Leadership**: public office holders promote these principles by example.
- **Memory aid (Verma principles): S**elfishness and nepotism avoided, **I**ntegrity, **A**ccountability, **T**ransparency, **H**onesty, **L**eadership by example: "**S**ome **I**ntelligent **A**dults **T**each **H**onest **L**eaders."

EXISTING ACTS FOR IMPLEMENTATION

ACTS THE COMMITTEE IDENTIFIED

Act	Purpose in the handout	Duty it supports (matched from the wording)
Representation of People Act, 1951	Membership of Parliament or State Legislatures can be rejected for corrupt activities	Public integrity
Unlawful Activities Protection Act, 1967	Sectarian organisations to be banned for a peaceful and stable society	Sovereignty, unity, harmony (c, e)
Protection of Civil Rights Act, 1955	Punish those who preach and practise untouchability	Harmony, renounce discrimination (e)
Wildlife Protection Act, 1972	Protect rare and perishing animals, birds and plants; prohibits illegal trade in animals	Environment (g)
Prevention of Insults to National Honour Act, 1971	Prohibits insult to the national anthem, flag, Constitution	Respect symbols (a)
Forest Conservation Act, 1980	Prohibits destruction of natural forest; prohibits use of forest for other human activities	Environment (g)

- **Shortcut: Act year order. 1951** RPA, **1955** Civil Rights, **1967** Unlawful Activities, **1971** National Honour, **1972** Wildlife, **1980** Forest. Years rise as the list moves: R, P, U, N, W, F.
- **Memory aid (Six Acts): R**epresentation of People, **P**rotection of Civil Rights, **U**nlawful Activities, **N**ational Honour, **W**ildlife, **F**orest: "**R**eal **P**atriots **U**phold **N**ational **W**ild **F**orests."

ALSO IN THE HANDOUT

- However, these recommendations also attracted criticism.
- For this reason, this act strongly prohibits the illegal trading of animals.

MY NOTES

RIGHTS, DPSP AND DUTIES SIDE BY SIDE

THREE PARTS OF THE MORAL FRAMEWORK

Aspect	Fundamental Rights	DPSP	Fundamental Duties
Part	III	IV	IVA (Art. 51A)
Who is bound or served	Individuals; several apply to all persons	The State	Citizens only
Justiciable	Yes, legally enforceable	No	No
Source named in the handout	none in this chapter	Irish Constitution	Constitution of the erstwhile USSR
Added by	the Constitution as first framed (handout: originally only rights)	not stated in this chapter	42nd Amendment 1976 (and 86th, 2002)

HANDOUT ALERT

Handout alert: This chapter's handout describes only the Duties; the FR and DPSP columns above use facts from the Duties text and the Directive Principles chapter. Where in doubt, remember: **Duties and DPSP are both non-justiciable; only FRs are enforceable.**

ALSO IN THE HANDOUT

- Non-Justiciable in Nature Similar to the Directive Principles of State Policy (DPSPs), the Fundamental Duties are non-justiciable, meaning they cannot be legally enforced in a court of law. There are no specific penalties prescribed for their violation.
- In this regard, they are similar to the Directive Principles of State Policy contained in Part IV of the Constitution.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 10, FUNDAMENTAL DUTIES

- The framers placed the duties of the State in the Constitution as Directive Principles, but not duties of citizens. The ruling Congress later called this omission a historical mistake.
- Japan's Constitution is perhaps the only democratic constitution with a list of citizens' duties. USA, Canada, France, Germany and Australia have none.
- Part IVA has only one Article, 51A, which for the first time gave a code of ten duties.
- The recommendation not accepted in full: no law imposing penalty should be questioned in court as violating Fundamental Rights or any other provision.
- Fundamental Rights open to all persons, including foreigners: Articles 14, 20, 21, 21A, 22, 23, 24, 25, 26, 27 and 28.

MY NOTES

- Courts: Mohan Kumar Singhania (1991) held Article 51A can be used to interpret ambiguous laws. Ramlila Maidan Incident (2012) said a common thread runs through Parts III, IV and IVA and all three should be considered together.
- The opposition strongly opposed the duties in 1976. The Janata Government (Morarji Desai) undid many 42nd Amendment changes through the 43rd and 44th Amendments but kept the Fundamental Duties.
- Critics:
  - C.K. Daphtary said over 99.9 per cent citizens are law-abiding and need no reminder
  - A.K. Sen compared it to a harsh schoolmaster
  - D.D. Chawla said wording is vague
- Verma Committee also noted: criminal laws punish enmity between groups, and the Indian Penal Code punishes statements prejudicial to national integration.
- Lakshmikanth differs:
  - The Protection of Civil Rights Act (1955) was known as the Untouchability (Offences) Act till 1976, and the handout's 'Unlawful Activities Protection Act, 1967' is written by LK as Unlawful Activities (Prevention) Act, 1967. LK also says the duties are 'enforceable by law' through Parliament
  - For the exam keep the handout: non-justiciable

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Where are the Fundamental Duties placed?	Part IVA, Article 51A.
Which Amendment added them and when?	42nd Constitutional Amendment Act, 1976.
Which committee led to them?	Sardar Swaran Singh Committee (1976), set up in the Emergency.
Source of Fundamental Duties?	The Constitution of the erstwhile USSR.
How many duties did the committee propose, the Amendment add, and exist today?	Committee: 8; Amendment: 10; today: 11.
Which Amendment added the eleventh duty and what is it?	86th Amendment 2002: duty of parents or guardians to educate children aged 6 to 14.

Name duties (a) to (e).	Abide by Constitution and respect symbols; cherish freedom struggle ideals; protect sovereignty, unity and integrity; defend and render national service; promote harmony and renounce discrimination.
Name duties (f) to (k).	Preserve cultural heritage; protect environment; scientific temper and humanism; safeguard public property and renounce violence; strive for excellence; education for children 6 to 14.
Three Swaran Singh recommendations not accepted?	Penal provisions; judicial bar on questioning enforcement laws; duty to pay taxes.
Which duties are in Art. 51A for the environment and the heritage?	(g) environment and compassion for living creatures; (f) rich cultural heritage.
Are duties justiciable?	No; no court can punish a citizen for violating a duty; no penalties.
Who do duties apply to?	Only citizens of India.
Which Commonwealth first?	India was the first Commonwealth nation to include Fundamental Duties.
What did Gandhi say about duties?	Diligent performance of duties makes the protection of rights follow automatically.
What did Indira Gandhi say about their purpose?	Not to suppress rights but to balance them by making people equally aware of duties.
What did H.R. Gokhale call them?	A "sobering reminder" against anti-national and unconstitutional behaviour seen in the 1970s.
Which 2001 case is cited?	AIIMS Students' Union v. AIIMS: duties are relevant in interpreting Fundamental Rights.
Five criticisms of duties?	Incomplete; vague; non-justiciable; unnecessary and politically motivated; placement after DPSP.
What did V.K.R.V. Rao argue?	Duties are ineffective without legal sanctions; rights without enforceable duties lack a firm ethical foundation.
Which countries made duties binding?	USSR, Yugoslavia and Albania.

MY NOTES

What happened in 1998 and 1999?	The Supreme Court issued a notice on awareness (1998); the Verma Committee was constituted (1999).
Verma Committee advice to public office holders?	Avoid selfishness and nepotism; integrity; accountability; transparency; honesty; lead by example.
Which Act of 1971 protects national honour?	Prevention of Insults to National Honour Act: no insult to anthem, flag, Constitution.
Which Acts of 1972 and 1980 relate to the environment duty?	Wildlife Protection Act 1972; Forest Conservation Act 1980.
Which Act of 1955 relates to untouchability?	Protection of Civil Rights Act.
How do DPSP and duties both differ from FRs?	Both are non-justiciable; FRs are enforceable.
Which DPSP parallels duty (g)?	Art. 48A: protect environment and wildlife.

Trap 1 · Counting the duties

The Swaran Singh Committee suggested 8. The 42nd Amendment (1976) added Part IVA with 10 duties. The 86th Amendment (2002) added one more, duty (k), making 11. *Rule: 8 suggested, 10 enacted, 11 now.*

Trap 2 · Which part and which source

Duties are in Part IVA (Article 51A), not in Part III or Part IV. The idea came from the USSR, whereas DPSPs came from the Irish Constitution. Critics say the placement after Part IV lowers their importance. *Rule: Duties = USSR, Part IVA. DPSP = Ireland, Part IV.*

Trap 3 · Rejected recommendations

The committee wanted (1) penalties for non-performance, (2) a bar on courts questioning such laws, and (3) the duty to pay taxes. None was accepted. *Rule: no penalty, no judicial bar, no tax duty in Article 51A.*

Trap 4 · Citizens only and non-justiciable

Unlike many Fundamental Rights, duties bind only citizens. They cannot be enforced in court, but Parliament may legislate to give them effect, and courts use them to interpret laws. *Rule: not enforceable by courts, yet not meaningless.*

QUICK QUIZ

Q1. Under the Constitution of India, which one of the following is not a fundamental duty? (2011)

1. To vote in public elections
2. To develop the scientific temper
3. To safeguard public property
4. To abide by the Constitution and respect its ideals

MY NOTES

Q2. Which of the following are among the Fundamental Duties (2012)? 1. To preserve the rich heritage of our composite culture 2. To protect the weaker sections from social injustice 3. To develop the scientific temper and spirit of inquiry 4. To strive towards excellence in all spheres

1. 1 and 2 only
2. 2 only
3. 1, 3 and 4 only
4. 1, 2, 3 and 4

Q3. "To uphold and protect the Sovereignty, Unity and Integrity of India" is a provision made in the (2015)

1. Preamble
2. Directive Principles of State Policy
3. Fundamental Rights
4. Fundamental Duties

Q4. Consider the Fundamental Duties (2017): 1. A legislative process has been provided to enforce these duties. 2. They are correlative to legal duties.

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q5. Consider the pairs (2025): DPSP: separation of judiciary from the executive; Fundamental Duties: preserving the rich heritage of composite culture; Fundamental Rights: prohibition of employment of children below 14 in factories. How many are correctly matched?

1. Only one
2. Only two
3. All the three
4. None

Q6. Which Constitution inspired the Fundamental Duties?

1. Irish
2. Constitution of the erstwhile USSR
3. Canadian
4. American

Q7. Which Amendment added Part IVA containing Article 51A?

1. 42nd Amendment, 1976
2. 44th Amendment, 1978
3. 86th Amendment, 2002
4. 97th Amendment, 2011

Q8. Which duty was added by the 86th Amendment 2002?

1. To strive for excellence in all spheres
2. To safeguard public property
3. To provide education to children between 6 and 14 years
4. To protect and improve the environment

Q9. Which of these was NOT accepted from the Swaran Singh Committee's recommendations?

1. A separate Part IVA
2. Penalties for non-performance of duties
3. Inclusion of a chapter on duties
4. Awareness that rights and duties are inseparable

Q10. Fundamental Duties apply to

1. All persons including foreigners
2. Citizens of India only
3. The State only
4. Public servants only

Q11. The Justice J.S. Verma Committee on Fundamental Duties of Citizens was formed in

1. 1976
2. 1999
3. 2002
4. 2011

MY NOTES

Q12. Which Act did the Verma Committee link to punishing preaching and practice of untouchability?

1. Representation of People Act, 1951
2. Protection of Civil Rights Act, 1955
3. Unlawful Activities Protection Act, 1967
4. Wildlife Protection Act, 1972

Q13. Which countries made duties legally binding, according to the handout?

1. USSR, Yugoslavia and Albania
2. USA, Canada and France
3. Ireland, Japan and Australia
4. Britain, Germany and South Africa

Q14. PYQ 2011: Under the constitution of India, which one of the following is not a fundamental duty? (2011)

1. To vote in public elections
2. To develop the scientific temper
3. To safeguard public property
4. To abide by the Constitution and respect its ideals

Q15. PYQ 2015: "To uphold and protect the Sovereignty, Unity and Integrity of India" is a provision made in the: (2015)

1. Preamble of the Constitution
2. Directive Principles of State Policy
3. Fundamental Rights
4. Fundamental Duties

Q16. PYQ 2017: Which of the following statements is/are true of the Fundamental Duties of an Indian citizen? (2017)
1. A legislative process has been provided to enforce these duties.
2. They are correlative to legal duties. Select the correct answer using the code given below:

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q17. PYQ 2025: Consider the following pairs: (2025) Provision in the Constitution of India Stated under ● Separation of Judiciary from the Executive in the public services of the State The Directive Principles of the State Policy ● Valuing and preserving of the rich heritage of our composite culture The Fundamental Duties ● Prohibition of employment of children below the age of 14 years in factories The Fundamental Rights How many of the above pairs are correctly matched?

1. Only one
2. Only two
3. All the three
4. None

Answers: Q1 a, Q2 c, Q3 d, Q4 d, Q5 c, Q6 b, Q7 a, Q8 c, Q9 b, Q10 b, Q11 b, Q12 b, Q13 a, Q14 a, Q15 d, Q16 d, Q17 c

MY NOTES

CHAPTER 9 · HANDOUT PAGES ON ARTICLE 368 AND AMENDMENT TYPES

09 Amendment of the Constitution

HIGH PRIORITY Mains PYQs quoted: **2017, 2018, 2019**

Prelims PYQs: **2013, 2017, 2019, 2020, 2022, 2024**

EXAM LENS

Prelims hooks

- Bill in either House (not Lok Sabha only)
- no prior President permission
- President bound to assent
- special majority
- no joint sitting
- ratification by half of the States (not all)
- Rajya Sabha equal power in amendment
- addition, variation, repeal
- GST Council amendment needs ratification
- which subjects need only simple majority.
- Handout stresses: Article 368 clauses (1) to (5) set out one by one (Section 2 to 5)
- Handout stresses: Three methods of amendment with lists of provisions under each (Sections 6 and 7)
- Handout stresses: 24th Amendment (1971) made assent obligatory (Clause 2)
- Handout stresses: Six Prelims and three Mains PYQs quoted (Prelims 2013, 2017, 2019, 2020, 2022, 2024; Mains 2017, 2018, 2019) (PYQ section)
- Handout stresses: Clauses (4) and (5) inserted by the 42nd Amendment, struck down via Minerva Mills (Sections 5)

Mains hooks

- 2018 limited amending power and the basic structure
- 2017 the 101st Amendment (GST)
- 2019 the Constitution as a living instrument
- Use the significance and criticism lists.

MY NOTES

A three-tier process lets small matters change easily and core federal matters change only with the States, while the basic structure stays out of reach.

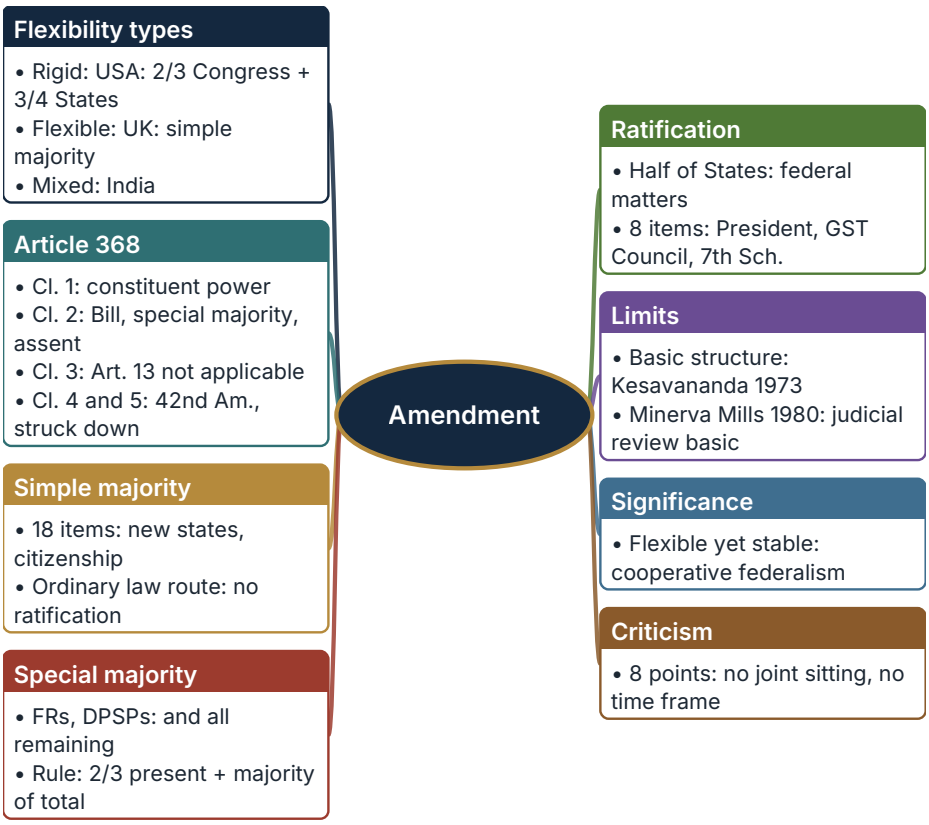
IN SIMPLE WORDS

- **Article 368 (Part XX)** gives Parliament the **constituent power** to amend the Constitution. India's Constitution is **neither rigid like the USA nor flexible like the UK**: it is a mix.
- An amendment starts only as a **Bill in either House of Parliament**, by a minister or a private member, with **no prior permission of the President**.
- There are **three ways**:
  - **simple majority**
  - **special majority** (majority of total membership plus two-thirds of those present and voting)
  - **special majority plus ratification by half the states**
- The President **must give assent** (24th Amendment, 1971). There is **no joint sitting** if the Houses disagree.
- Parliament cannot change the **basic structure** (Kesavananda)
- The 42nd Amendment's Clauses (4) and (5) were struck down in **Minerva Mills (1980)**

Key term	In plain words
Constituent power	Parliament's special power to amend the Constitution, different from ordinary law-making.
Special majority	Majority of the total membership of the House plus two-thirds of members present and voting.
Simple majority	Majority of members present and voting, as for an ordinary law.
Ratification by states	Approval by at least half of the State Legislatures, needed for federal provisions, before presidential assent.
Article 368(3)	Says Article 13 does not apply to amendments; still, basic structure limits them.
Article 368(4) and (5)	Added by the 42nd Amendment: bar on judicial review and no limit on power; struck down in Minerva Mills.
Rigid, flexible, mixed	USA is rigid, UK is flexible, India is mixed (semi-rigid).
GST Council	Introduced by the 101st Amendment; amending its provisions needs state ratification.

MY NOTES

MEMORY MAP: AMENDMENT OF THE CONSTITUTION



MNEMONIC · PROVISIONS NEEDING STATE RATIFICATION

P E D E S T A L

- **P** Parliament: representation of States in Parliament
- **E** Election of the President
- **D** Distribution of legislative powers
- **E** Extent of the executive power of the Union and States
- **S** Supreme Court and High Courts
- **T** Tax: Goods and Services Tax Council
- **A** Article 368 itself
- **L** Lists of the Seventh Schedule

The federal pillars stand on a PEDESTAL that half the States must approve. Eight items, order rearranged so the initials spell PEDESTAL. (Memory aid, not from the handout.)

MNEMONIC · CLAUSES OF ARTICLE 368

Clever Parliament Insists: Bar Nothing

- **C** Constituent power (Clause 1)
- **P** Procedure (Clause 2)
- **I** Immunity from Article 13 (Clause 3)
- **B** Bar on judicial review (Clause 4)
- **N** No limitation on power (Clause 5)

Clauses 4 and 5, added by the 42nd Amendment, were an attempt to bar everything; the Court struck them down. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · SIMPLE MAJORITY LIST (1 OF 3)

PRESIDE

- **P** Parliament: quorum
- **R** Rules of procedure in Parliament
- **E** English: its use in Parliament
- **S** Salaries and allowances of MPs
- **I** Immunities: privileges of Parliament
- **D** Delimitation of constituencies
- **E** Emoluments: Second Schedule matters (President, Governors, Judges, Speaker)

A simple majority can settle how Parliament and its presiding officers run the House. Seven items, order rearranged so the initials spell PRESIDE. (Memory aid, not from the handout.)

MNEMONIC · SIMPLE MAJORITY LIST (2 OF 3)

STATES

- **S** Sixth Schedule: tribal areas of Assam, Meghalaya, Tripura, Mizoram
- **T** Territories, Union: administration of Union Territories
- **A** Alteration of names, areas and boundaries of States
- **T** Tribes and scheduled areas: Fifth Schedule
- **E** Establishment or admission of new States
- **S** State legislative councils: creation or abolition

All six are about the States and territories, so STATES is the hook: reshaping the map needs only a simple majority. Order is rearranged so the initials spell STATES. (Memory aid, not from the handout.)

MNEMONIC · SIMPLE MAJORITY LIST (3 OF 3)

SCOPE

- **S** Supreme Court: its jurisdiction
- **C** Citizenship
- **O** Official language
- **P** Puisne judges: number in the Supreme Court
- **E** Elections to Parliament and State Legislatures

Ordinary law has wide SCOPE here: five items, order rearranged so the initials spell SCOPE. With PRESIDE (7) and STATES (6) this covers all 18. (Memory aid, not from the handout.)

A LIVING AND EVOLVING DOCUMENT

- Constitutions elsewhere often undergo overhauls after political upheavals. The Soviet Union had **four constitutions in seven decades**, and France experimented with several since its Revolution. India still works under the **Constitution adopted in 1949**.
- Its strength is **change without losing continuity**: firm in core values, flexible in application.
- The framers knew no constitution could foresee every future challenge.

MY NOTES

CLASSIFICATION OF CONSTITUTIONS

Feature	Rigid	Flexible	Mixed (semi-rigid)
Example	United States of America	United Kingdom	India
Method of amendment	Two-thirds majority in both Houses of Congress and ratification by three-fourths of the States	Simple majority in Parliament like an ordinary law	Most amendments need a special majority in Parliament and some also need ratification by half of the States
Underlying principle	Judicial supremacy: Constitution and Judiciary above the Legislature	Parliamentary sovereignty: Parliament can alter any law	Constitutional supremacy: Constitution supreme, not Parliament
Nature	Very rigid, change rare and complex	Highly flexible, change easy and frequent	Balanced: stability with adaptability

- **Memory aid (Three types): R**igid = USA, **F**lexible = UK, **M**ixed = India: "**R**ed **F**lags **M**ean India is mixed" (USA, UK, India in that order).
- **Shortcut: Fraction shortcut.** USA: **2/3 + 3/4**. UK: **simple**. India: **special majority, and for some items half of the States**.

ALSO IN THE HANDOUT

- In contrast, India continues to function under the same Constitution adopted in 1949 — a remarkable testimony to its resilience and adaptability.
- This blend of permanence and change, made possible through the amendment process, ensures that the Constitution remains both foundational and forward-looking, capable of meeting the evolving aspirations of Indian democracy.

ARTICLE 368 AT A GLANCE

- Article 368, in **Part XX**, gives the exclusive procedure and authority for amending the Constitution. It confers on Parliament the **constituent power**, distinct from ordinary legislative power, and fixes a special, rigid procedure.

THE FIVE CLAUSES

Clause	Subject	Gist
(1)	Constituent power	Parliament may add, vary or repeal any provision, following Article 368 procedure
(2)	Procedure	Bill in either House, special majority, President's assent. Proviso: ratification by half the States for federal matters

MY NOTES

Clause	Subject	Gist
(3)	Immunity from Article 13	"Nothing in Article 13 shall apply to any amendment made under this Article"
(4)	Bar on judicial review	Inserted by the 42nd Amendment (1976). Struck down in Minerva Mills (1980)
(5)	No limitation	Added by the 42nd Amendment (1976). Parliament's power is wide but not unlimited

- **Memory aid (Clause order):** **C**onstituent power (1), **P**rocedure (2), **I**mmunity from Art. 13 (3), **B**ar on review (4), **N**o limit (5): "**C**ats **P**refer **I**ce, **B**ut **N**ot always".
- **Shortcut: 1-2-3-4-5.** 1 = power. 2 = procedure. 3 = Art. 13 shield. 4 and 5 = **42nd Amendment, both defanged**.

CLAUSES (1) AND (2): POWER AND PROCEDURE

CLAUSE (1): CONSTITUENT POWER

- A special power, distinct from ordinary legislative power under **Article 245**.
- **Overriding effect** over other provisions: the amending power cannot be curtailed by any other article.
- Parliament may **add, vary or repeal** any provision, provided Article 368 is followed.
- So the power is not unlimited but **procedurally regulated**.

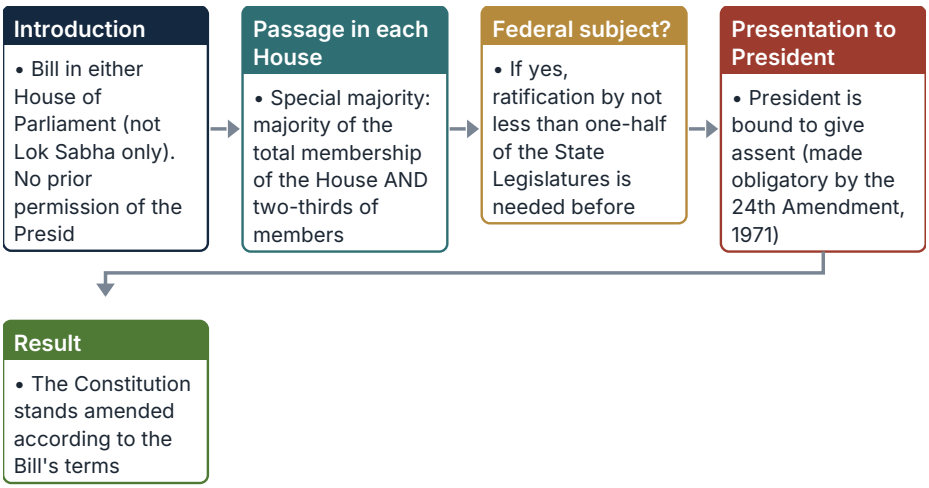
CLAUSE (2): PROCEDURE

HOW A CONSTITUTION AMENDMENT BILL PASSES

- **Introduction**: Bill in either House of Parliament (not Lok Sabha only). No prior permission of the President. Minister or private member may introduce
- **Passage in each House**: Special majority: majority of the total membership of the House AND two-thirds of members present and voting
- **Federal subject?**: If yes, ratification by not less than one-half of the State Legislatures is needed before presentation
- **Presentation to President**: President is bound to give assent (made obligatory by the 24th Amendment, 1971)
- **Result**: The Constitution stands amended according to the Bill's terms

MY NOTES

HOW A CONSTITUTION AMENDMENT BILL PASSES



- This ensures amendments reflect **broad consensus**, not a transient majority.

SPECIAL MAJORITY: THE TWO PARTS

- **Part 1:** Majority of the total membership of the House
- **Part 2:** Two-thirds of members present and voting
- **Memory aid (Passing steps): I**ntroduce in either House, **S**pecial majority in each House, **R**atify if federal, **A**ssent compulsory: "**I S**ee **R**ed **A**pples".
- **Shortcut: Four truths. Either House. No President's prior nod. Assent obligatory. No joint sitting.** (Joint sitting is missing: see Section 9.)

THE PROVISO: RATIFICATION BY STATES

- Certain amendments affecting the **federal structure** require ratification by **not less than one-half of the State Legislatures** before being presented to the President for assent. These include amendments that alter the distribution of powers between Union and States, or key federal provisions:

THE PROVISO LIST IN CLAUSE (2)

Subject	Where
Election of the President	Articles 54-55
Distribution of executive powers	Articles 73 and 162
Judiciary	Chapters IV of Part V and V of Part VI
Legislative relations	Chapter I of Part XI
Seventh Schedule	Union, State and Concurrent Lists
Representation of States in Parliament	
Procedure of amendment itself	Article 368

MY NOTES

HANDOUT ALERT

Handout alert: The proviso list here has **seven** items. The later list of "special majority plus ratification" (Section 6) has **eight** and adds the **Goods and Services Tax Council** (101st Amendment), and splits "distribution of legislative powers" from "Seventh Schedule lists". Use the **eight-item list in Section 6** for exams. Also: ratification needs **half** of the States, not all (a 2013 PYQ option says "all" and is wrong).

CLAUSES (3), (4) AND (5)

CLAUSE (3): IMMUNITY FROM ARTICLE 13

- "Nothing in Article 13 shall apply to any amendment made under this Article."
- A constitutional amendment is **not an ordinary law**, so it cannot be invalidated merely for violating Fundamental Rights.
- But **Kesavananda Bharati v. State of Kerala (1973)**: Article 13 does not apply, yet amendments **cannot alter the basic structure**.
- So the clause exempts amendments from **Article 13 but not from the basic structure doctrine**.

CLAUSE (4): BAR ON JUDICIAL REVIEW

- Inserted by the **42nd Amendment Act (1976)**: no amendment, including those touching Fundamental Rights, can be questioned in any court on any ground.
- Meant to make amendments **non-justiciable**.
- **Minerva Mills v. Union of India (1980)** struck down the absolute exclusion: **judicial review is part of the basic structure**. Amendments that damage or destroy the basic structure can still be challenged.

CLAUSE (5): NO LIMITATION

- Also added by the 42nd Amendment (1976): **no limitation whatsoever** on Parliament's constituent power.
- Meant to affirm Parliament's supremacy in amendment.
- The handout says it was curtailed by **Kesavananda Bharati and Minerva Mills**: power is **wide but not unlimited**. Parliament may amend any provision but cannot alter the basic identity or foundational features.

WHAT THE 42ND AMENDMENT TRIED AND WHAT HAPPENED

- **Tried:**
  - Clause 4: no judicial review
  - Clause 5: no limit on amending power

MY NOTES

- **Result:**
  - Minerva Mills (1980) struck down the absolute exclusion
  - Basic structure survives (see Ch 6)
- **Clause 5 detail:** The Basic Structure chapter credits **Minerva Mills** with striking down Clauses (4) and (5). Here the handout names Kesavananda and Minerva Mills together. For "which case struck down", answer **Minerva Mills (1980)**.

ALSO IN THE HANDOUT

- This clause states that “Nothing in Article 13 shall apply to any amendment made under this Article.” 47.It means a constitutional amendment is not treated as an ordinary law and thus cannot be invalidated merely for violating Fundamental Rights. 48.However, in Kesavananda Bharati v.
- Hence, this clause exempts amendments from Article 13 but not from the doctrine of basic structure.

THE THREE TYPES OF AMENDMENT

- Article 368 (Part XX) classifies amendments by rigidity. The Constitution can be amended in **three ways**.

1. SIMPLE MAJORITY OF PARLIAMENT

- Amended like ordinary legislation, by a **majority of members present and voting**. **No State ratification**, and not by the special Article 368 procedure.

SIMPLE MAJORITY SUBJECTS (18)

No.	Subject	Notes
1	Admission or establishment of new States	Creating or admitting new States into the Union
2	Formation of new States, alteration of boundaries or names	Reorganising States
3	Legislative Councils in States	Creation or abolition
4	Second Schedule matters	Emoluments, allowances, privileges of President, Governors, Speakers, Judges and others
5	Quorum in Parliament	Minimum members to conduct proceedings
6	Salaries and allowances of MPs	Pay and allowances
7	Rules of procedure in Parliament	Business and conduct

MY NOTES

No.	Subject	Notes
8	Privileges of Parliament	Of Parliament, its members and committees
9	Use of English in Parliament	Continuation or modification
10	Number of puisne Judges in the Supreme Court	Strength other than the Chief Justice
11	Jurisdiction of the Supreme Court	Additional jurisdiction or powers
12	Use of official language	Official language of the Union
13	Citizenship	Acquisition and termination
14	Elections to Parliament and State Legislatures	Conduct of elections
15	Delimitation of constituencies	Readjustment of constituencies
16	Union Territories	Their administration
17	Fifth Schedule	Scheduled areas and scheduled tribes
18	Sixth Schedule	Tribal areas in Assam, Meghalaya, Tripura and Mizoram

2. SPECIAL MAJORITY OF PARLIAMENT

- Applies to the **majority of constitutional provisions**. The Bill must be passed by a **majority of the total membership** of each House **and two-thirds of members present and voting**.
- Prevents frequent or politically motivated changes to vital principles.
- Covers:
  - **Fundamental Rights**
  - **Directive Principles of State Policy**
  - **all other provisions** not under the simple-majority category or the ratification category

3. SPECIAL MAJORITY PLUS RATIFICATION BY HALF OF THE STATES

- For provisions of **federal significance**. Needs special majority of Parliament and ratification by **at least half of the State Legislatures**.

RATIFICATION SUBJECTS (8)

No.	Subject	Why
1	Election of the President and its manner	Elected by both Parliament and State Legislatures
2	Extent of executive power of the Union and States	Distribution of authority between Centre and States

MY NOTES

No.	Subject	Why
3	Supreme Court and High Courts	Institutions safeguarding federal and constitutional balance
4	Distribution of legislative powers	Change in the Lists alters the federal scheme
5	Goods and Services Tax Council	Introduced by the 101st Amendment, involves Union and States
6	Any of the Lists in the Seventh Schedule	Affects Centre-State legislative relations
7	Representation of States in Parliament	Change in number of Rajya Sabha or Lok Sabha seats impacts State representation
8	Power of Parliament to amend the Constitution (Article 368 itself)	Affects the amending process

- **Memory aid (Ratification list): P**resident's election, **E**xecutive power, **C**ourts (SC and HC), **D**istribution of legislative powers, **G**ST Council, **L**ists of Seventh Schedule, **R**epresentation of States, **A**rticle 368: "**P**eople **E**ach **C**ount **D**uty **G**ood **L**ocal **R**ules **A**lways".
- **Memory aid (Simple majority groups): S**tates (new States, boundaries, councils), **B**enefits and rules of Parliament (salaries, quorum, rules, privileges, English), **P**uisne judges and SC jurisdiction, **C**itizenship, elections and delimitation, **L**anguage and areas (official language, UTs, Fifth and Sixth Schedules).
- **Shortcut: Fast sort. New states, citizenship, salaries, elections, languages, schedules 5 and 6 = simple. FR and DPSP = special. President, courts, Seventh Schedule, GST Council, States' seats, Art. 368 = special + half of States.**

ALSO IN THE HANDOUT

- Extent of Executive Power of the Union and States – Distribution of authority between Centre and States requires joint consent. 28.Supreme Court and High Courts – As these are institutions safeguarding federal and constitutional balance, amendments need state ratification. 29.Distribution of Legislative Powers – Any change in the Union, State, or Concurrent Lists alters the federal scheme. 30.Goods and Services Tax Council – Introduced by the 101st Amendment, this body involves both Union and States
- Hence amendments require their approval. 31.Any of the Lists in the Seventh Schedule – Alteration in Union, State, or Concurrent Lists affects Centre–State legislative relations. 32.Representation of States in Parliament – Any change in the number of seats in the Rajya Sabha or Lok Sabha impacts state representation

MY NOTES

- This graded approach provides both efficiency and restraint, safeguarding constitutional sanctity.

COMPARISON OF THE THREE TYPES

ALL THREE SIDE BY SIDE

Category	Majority type	State involvement	Examples
Simple majority	Majority of members present and voting	Not required	New States, salaries, citizenship
Special majority	Two-thirds of members present and voting plus majority of total membership	Not required	Fundamental Rights, DPSPs
Special majority plus State ratification	Special majority in Parliament plus 50 percent State ratification	Required	President's election, federal powers

- The three-tier process embodies India's **blend of flexibility and rigidity**: ordinary changes easily, while the federal and democratic foundations stay protected.

MNEMONIC CONTRAST

- **Easy:** Simple majority, no State role, ordinary-law method
- **Hard:** Special majority plus half of the States for federal matters
- **Reading the table:** In the handout's table the Special majority row says "two-thirds present and voting plus majority of total membership". Fundamental Rights and DPSPs are listed here under the **special majority only**, with **no** State ratification.

SIGNIFICANCE OF THE PROCEDURE

EIGHT POINTS

Point	What it does
Constitutional flexibility	Grows and adapts: Parliament modifies specific provisions without rewriting the text. A living document
Constitutional stability	Special majorities and sometimes State ratification prevent frequent politically driven alterations
Preserves the basic structure	Kesavananda (1973) limits the amending power, protecting democracy, secularism, rule of law and judicial review
Balances rigidity and flexibility	Minor matters easy, core provisions need wider agreement
Cooperative federalism	Involving States fosters shared responsibility

MY NOTES

Point	What it does
Democratic consensus	Special majority reflects collective will; dialogue, negotiation, inclusiveness
Protects Fundamental Rights	Judicial scrutiny prevents misuse of the amending power
Facilitates progressive reforms	New rights and institutions such as the 73rd and 74th Amendments (1992) for local self-government

- **Memory aid (Eight significances):** **F**lexibility, **S**tability, **B**asic structure, **B**alance, **C**ooperative federalism, **D**emocratic consensus, **P**rotects rights, **P**rogressive reforms: "**F**ive **S**ages **B**uilt **B**alanced **C**ouncils, **D**oing **P**ublic **P**rogress".

ALSO IN THE HANDOUT

- Protects Fundamental Rights and Liberties: Judicial scrutiny of amendments prevents misuse of the amending power, ensuring that basic freedoms and human dignity remain inviolable even against parliamentary excesses.

CRITICISM OF THE PROCEDURE

CRITICISMS LISTED

Criticism	Argument
No separate constitutional body	No independent constitutional convention. Parliament that makes ordinary laws also amends the Constitution, blurring legislative and constituent power
Centralised power of amendment	Only Parliament can initiate amendments, States cannot. Weakens federalism
Limited role of States	Only half of the States needed, even in federal matters. Dilutes shared sovereignty in a quasi-federal system
No time frame for ratification	No deadline. States may delay or withhold consent indefinitely
No provision for joint sitting	If the two Houses disagree the Bill lapses. Article 368 has no joint sitting, a rigidity absent in ordinary law-making
Similarity to ordinary legislative process	Apart from special majority, it resembles normal law-making. Constitution more amenable than in the USA or Australia
Ambiguous and incomplete provisions	Vague wording forced judicial interpretation (Kesavananda, Minerva Mills). Gaps about limits

MY NOTES

Criticism	Argument
Central dominance but judicial dependence	Union controls initiation but judiciary defines the limits: a dual dependence blurring accountability

- **Memory aid (Eight criticisms): S**eparate body absent, **C**entralised, **L**imited States role, **T**ime frame absent, **J**oint sitting absent, **S**imilar to ordinary law, **A**mbiguous, **C**entral-judicial dependence: "**S**ome **C**ritics **L**ove **T**o **J**udge **S**illy **A**mendments **C**losely".

> **HANDOUT ALERT**
> Handout alert: The handout numbers these 26 to 33 (print slip). There are **eight** criticisms. "Only Parliament can initiate" is consistent with the Bill being introduced in **either House** (2013 PYQ: not Lok Sabha only).

BALANCED VERDICT AND VOICES

- Experts have appreciated the design: **neither too rigid to resist change nor too flexible to invite instability**. Reforms such as the **Right to Education (86th Amendment, 2002)** and the **73rd and 74th Amendments (1992)** came while keeping stability.

VOICES QUOTED

Speaker	Quoted view
K.C. Wheare	The Indian system "strikes a good balance between flexibility and rigidity"
Jawaharlal Nehru (Constituent Assembly)	"No Constitution can be permanent; it must allow for growth with the nation"
Dr. B.R. Ambedkar	India avoided the "extraordinary terms and conditions" of the USA or Australia and adopted a facile yet responsible procedure
Granville Austin	"One of the most ably conceived aspects of the Constitution": diverse yet coherent, flexible yet protective of fundamental values

- **Memory aid (Four voices): W**heare, **N**ehru, **A**mbedkar, **A**ustin: "**W**ise **N**ames **A**dmire **A**mendment".

ALSO IN THE HANDOUT

- This procedure ensures that the states have a decisive role in altering provisions that directly affect their interests.
- This centralized control weakens federalism and sidelines State participation in shaping constitutional evolution.
- States may delay or withhold consent indefinitely, causing [TABLE CELLS] procedural / uncertainty in / important reforms. / 30.

MY NOTES

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 11, AMENDMENT OF THE CONSTITUTION

- The bill for amendment can be initiated only in either House of Parliament, not in state legislatures. Each House passes it separately.
- For federal provisions, state legislatures ratify by a simple majority of members present and voting. If half the states agree, the formality is complete even if others do nothing.
- 'Total membership' means all seats of the House, whatever the vacancies or absentees. Lok Sabha Rules apply the special majority at all effective stages of the Bill, not only the final vote.
- The President can neither withhold assent nor return the Bill for reconsideration. After assent the Bill becomes a constitutional amendment Act.
- Simple-majority matters are amended under other articles, outside Article 368, and are not treated as amendments of the Constitution for Article 368.
- State legislatures cannot start amendments, except by passing a resolution requesting Parliament to create or abolish a legislative council, and Parliament may ignore it.
- The Constitution is silent on whether states may withdraw their approval once given. In the USA three-fourths of the states are needed, and an amendment can also be proposed by a convention called on the petition of two-thirds of state legislatures.
- An ordinary Bill can have a joint sitting in a deadlock, but an amendment Bill cannot. The procedure is also called too sketchy, leaving wide scope for the judiciary.
- The GST Council item was added by the 101st Amendment (2016) and relates to Article 279-A.
- Lakshmikanth differs:
  - It says Article 368 itself provides two types (special majority; special majority with state ratification), while the simple-majority type sits in other articles. The handout shows three types under the amendment scheme
  - For the exam, state all three ways. K.C. Wheare: this variety in the amending process is 'wise but rarely found'

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

What does Article 368 give Parliament?	The constituent power to amend the Constitution, distinct from ordinary legislative power.
Which Part contains Article 368?	Part XX.
Who can introduce a Constitution Amendment Bill?	A minister or a private member, in either House, without prior permission of the President.
What majority is needed under Article 368?	Majority of the total membership of the House plus two-thirds of members present and voting.
Is the President bound to assent to a Constitution Amendment Bill?	Yes, since the 24th Amendment (1971).
What does Clause (3) say?	Nothing in Article 13 applies to any amendment made under Article 368.
Which Amendment inserted Clauses (4) and (5)?	The 42nd Amendment Act (1976).
Which case struck down the absolute exclusion of judicial review?	Minerva Mills v. Union of India (1980).
What is the proviso to Clause (2)?	Federal amendments need ratification by not less than half of the State Legislatures.
List ratification subjects.	President's election; executive power of Union and States; Supreme Court and High Courts; distribution of legislative powers; GST Council; Seventh Schedule Lists; representation of States in Parliament; Article 368 itself.
Which Amendment introduced the GST Council?	The 101st Amendment.
Name five simple majority subjects.	New States; boundaries and names; Legislative Councils; citizenship; delimitation (others include salaries, quorum, privileges).
How many simple-majority items does the handout list?	Eighteen, ending with the Sixth Schedule.
Which tribal Schedules need only simple majority?	The Fifth Schedule and Sixth Schedule (Assam, Meghalaya, Tripura, Mizoram).
Which Rights and Principles need only special majority?	Fundamental Rights and DPSPs (and all other provisions not in the other two categories).

MY NOTES

USA amendment method?	Two-thirds majority in both Houses of Congress and ratification by three-fourths of the States.
UK amendment method?	Simple majority in Parliament like an ordinary law.
What underlying principle does India reflect?	Constitutional supremacy (USA judicial supremacy, UK parliamentary sovereignty).
How many constitutions did the Soviet Union have in seven decades?	Four.
Is there a joint sitting for Constitution Amendment Bills?	No. If the Houses disagree the Bill lapses.
Is there a time limit for State ratification?	No time frame is fixed.
Which amendments did the handout cite for local self-government?	The 73rd and 74th Amendments (1992).
Which amendment gave the Right to Education?	The 86th Amendment (2002).
Who said "no Constitution can be permanent"?	Pandit Jawaharlal Nehru in the Constituent Assembly.
Who called the procedure "one of the most ably conceived aspects"?	Granville Austin.
Name the eight criticisms.	No separate body; centralised power; limited role of States; no ratification time frame; no joint sitting; similarity to ordinary legislation; ambiguity; central dominance with judicial dependence.
Mains 2017: Explain the salient features of the Constitution (One Hundred and First	Intro: The 101st Amendment created a Goods and Services Tax Council involving Union and States. Body: GST Council is introduced by the 101st Amendment; it involves both the Union and the States; amendments to it need a special majority plus ratification by half of the States; the handout gives no other features of the Act. Close: The handout supports only the Council and its ratification rule, so a full answer needs other sources.

MY NOTES

Mains 2018: Parliament's power to amend the constitution is limited power	Intro: Article 368 gives a constituent power that is wide but not unlimited. Body: Parliament may add vary or repeal any provision following Article 368; Clause 3 exempts amendments from Article 13 but not from the basic structure; Clauses 4 and 5 inserted by the 42nd Amendment claimed no judicial review and no limit; Minerva Mills and Kesavananda curtailed them; judicial review is part of the basic structure. Close: Parliament can amend any provision but cannot destroy the basic structure by expanding its power.
Mains 2019: "The Constitution of India is a living instrument	Intro: The Constitution grows with the nation through a blend of rigidity and flexibility. Body: Three methods: simple majority and special majority and special majority with State ratification; mixed type between USA rigid and UK flexible; reforms such as the 73rd and 74th Amendments and the 86th Amendment on education; Kesavananda protects the basic structure; Wheare and Nehru praised the balance. Close: A living instrument that adapts without losing its core identity.

Trap 1 · What the two majorities mean

Special majority is NOT just two-thirds. It needs a majority of the total membership of each House and two-thirds of members present and voting. Simple majority means a majority of those present and voting. *Rule: two tests together: total membership and present-and-voting.*

Trap 2 · Half the states, not three-fourths

Federal amendments need ratification by half of the State Legislatures (the USA needs three-fourths). There is no time limit for states, and only Parliament can start an amendment Bill. *Rule: half, not three-fourths; Centre initiates, states only ratify.*

Trap 3 · President and joint sitting

The President cannot refuse assent after the 24th Amendment (1971). No prior permission is needed to introduce the Bill, and a private member may introduce it. There is no joint sitting for amendment Bills, so disagreement means the Bill lapses. *Rule: assent is compulsory; joint sitting is not available.*

MY NOTES

Trap 4 · Article 13 immunity is not full immunity

Clause (3) says Article 13 does not apply to amendments, and Clauses (4) and (5) tried to end judicial review and all limits. Kesavananda and Minerva Mills held that the basic structure still limits amendments. *Rule: Article 13 does not apply, basic structure does.*

QUICK QUIZ

Q1. A Constitution Amendment Bill under Article 368 can be introduced in

1. Lok Sabha only
2. Rajya Sabha only
3. Either House of Parliament
4. A joint sitting

Q2. The special majority under Article 368 means

1. Simple majority of those present
2. Majority of total membership and two-thirds present and voting
3. Two-thirds of total membership
4. Three-fourths of both Houses

Q3. Which Amendment made the President's assent to a Constitution Amendment Bill obligatory?

1. 24th, 1971
2. 25th, 1971
3. 42nd, 1976
4. 101st

Q4. Clauses (4) and (5) of Article 368 were inserted by the

1. 24th Amendment
2. 39th Amendment
3. 42nd Amendment
4. 101st Amendment

Q5. Which needs ratification by at least half of the State Legislatures?

1. Citizenship
2. Salaries of MPs
3. Goods and Services Tax Council
4. Delimitation of constituencies

Q6. Which can be amended by a simple majority of Parliament?

1. Election of the President
2. Seventh Schedule Lists
3. Admission of new States
4. Article 368 itself

Q7. Fundamental Rights and DPSPs are amended by

1. Simple majority
2. Special majority only
3. Special majority plus ratification of half of the States
4. Referendum

Q8. Which is a criticism of the amendment procedure in the handout?

1. Joint sitting is available
2. No time frame for State ratification
3. States can initiate amendments
4. Amendments need a unanimous vote

Q9. Which type of constitution is amended by simple majority like an ordinary law (per the classification table)?

1. Rigid
2. Flexible
3. Mixed
4. Federal

Q10. Clause (3) of Article 368 exempts amendments from

1. Article 13
2. Article 14
3. Article 21
4. Article 32

MY NOTES

Q11. PYQ 2022: Consider the following statements: (2022) ● A bill amending the Constitution requires a prior recommendation of the President of India. ● When a Constitution Amendment Bill is presented to the President of India, it is obligatory for the President of India to give his/her assent. ● A Constitution Amendment Bill must be passed by both the Lok Sabha and Rajya Sabha by a special majority and there is no provision for joint sitting. Which of the statements given above are correct?

1. 1 and 2 only
2. 2 and 3 only
3. 1 and 3 only
4. 1, 2 and 3

Q12. PYQ 2020: Rajya Sabha has equal powers with Lok Sabha in (2020)

1. the matter of creating new All India Services
2. amending the Constitution
3. the removal of the government
4. making cut motions

Q13. PYQ 2019: Consider the following statements: (2019) (1) The 44th Amendment to the Constitution of India introduced an article placing the election of the Prime Minister beyond judicial review. (2) The Supreme Court of India struck down the 99th amendment to the Constitution of India as being violative of the independence of the judiciary. Which of the statements given above is/are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q14. PYQ 2017: Which of the following are not necessarily the consequences of the proclamation of the President's rule in a State? (2017) ● Dissolution of the State Legislative Assembly ● Removal of the Council of Ministers in the State ● Dissolution of the local bodies Select the correct answer using the code given below:

1. 1 and 2 only
2. 1 and 3 only
3. 2 and 3 only
4. 1, 2and 3

Q15. PYQ 2013: Consider the following statements: (2013) 26. An amendment to the Constitution of India can be initiated by an introduction of a bill in the Lok Sabha only. 27. If such an amendment seeks to make changes in the federal character of the Constitution, the amendment also requires to be ratified by the legislature of all the States of India. Which of the statements given above is/are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q16. PYQ 2024: As per Article 368 of the Constitution of India, the Parliament may amend any provision of the Constitution by way of: (2024) 12. Addition 13. Variation 14. Repeal Select the correct answer using the code given below:

1. 1 and 2 only
2. 2 and 3 only
3. 1 and 3 only
4. 1, 2 and 3

Answers: Q1 c, Q2 b, Q3 a, Q4 c, Q5 c, Q6 c, Q7 b, Q8 b, Q9 b, Q10 a, Q11 b, Q12 b, Q13 b, Q14 b, Q15 d, Q16 d

MY NOTES

PART II

Institutions and Processes

Executive, Parliament, Judiciary, States, federalism, Emergency, parties and elections

CHAPTER 10 · HANDOUT: UNION EXECUTIVE (PRESIDENT, VICE-PRESIDENT, PRIME MINISTER, COUNCIL OF MINISTERS, CABINET, SECRETARIATS)

10 Union Executive

HIGH PRIORITY

Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **1996, 1997, 1999, 2000, 2001, 2003, 2004, 2005, 2007, 2008, 2009, 2010, 2012, 2013, 2014, 2015, 2016, 2018, 2021, 2022, 2023, 2024**

MY NOTES

EXAM LENS

MY NOTES

Prelims hooks

- value of MLA and MP votes (1971 Census, 84th Am.)
- electoral college (elected members only
- no MLCs)
- President cannot be a member of Parliament
- Art. 71
- 15% cap and the 91st Amendment
- PM need not be a member but must become one in six months
- collective responsibility to Lok Sabha
- Cabinet mentioned only in Art. 352(3)
- VP removal resolution moved only in Rajya Sabha
- Departments such as Atomic Energy under PMO
- Order of Precedence.
- Handout stresses: 45 Prelims PYQs are quoted for this chapter (the build counts them from the handout's PYQ section; 8 or more = High) (PYQ section)
- Handout stresses: Value of votes: MLA vote depends on State population (1971 Census) and number of elected MLAs; every elected MP's vote has equal value (Election of the President)
- Handout stresses: Art. 74, 42nd and 44th Amendments (advice binding, one reconsideration) (Constitutional position)
- Handout stresses: 91st Amendment 2003: ministers not more than 15% of Lok Sabha; defectors barred (Council of Ministers)
- Handout stresses: Vetoes, Art. 123 ordinances, Art. 72 pardon with named cases (R.C. Cooper, D.C. Wadhwa, Maru Ram, Kehar Singh, Shatrughan Chauhan) (Powers sections)
- Handout stresses: Cabinet Secretariat, PMO and ministries (Department of Atomic Energy under PMO) (Secretariat sections)

Mains hooks

- pardon power and delay in mercy petitions (2014)
- size of the Cabinet versus efficiency (2014)
- President as nominal or active head
- discretion of the President
- PM as keystone
- PMO versus Cabinet Secretariat.

MY NOTES

The President reigns, the Prime Minister and Council rule, and Art. 74 with Art. 75(3) tie the two together through responsibility to the Lok Sabha.

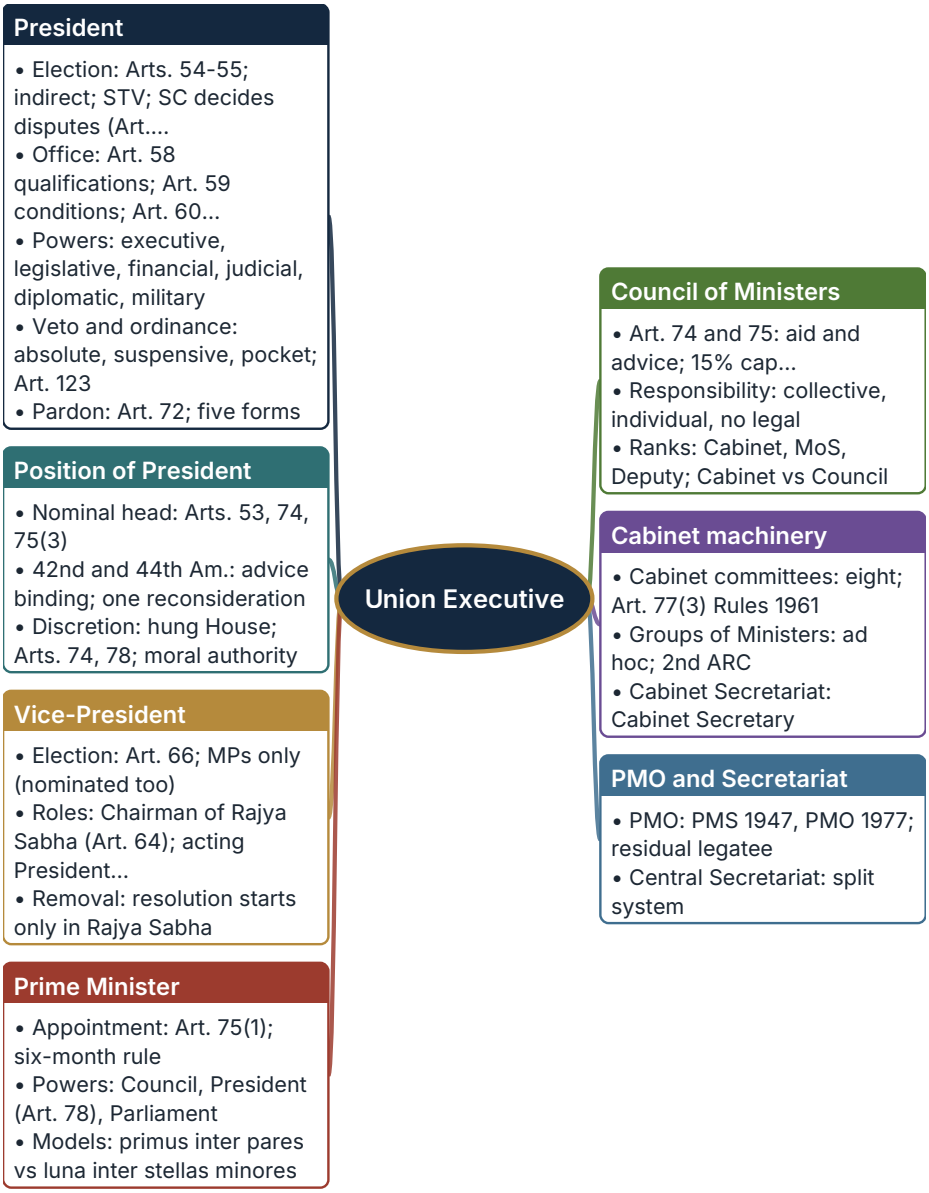
IN SIMPLE WORDS

- The **Union Executive** sits in **Part V, Chapter I (Arts. 52-78)**: the **President, Vice-President, Council of Ministers headed by the PM, and the Attorney-General**.
- The **President** is the **nominal head**. He is **elected indirectly** by an Electoral College of **elected MPs and elected MLAs** (STV, secret ballot)
- Real power lies with the **Council of Ministers** (Art. 74)
- The President has executive, legislative, financial, judicial, diplomatic and military powers, including **three vetoes**, **ordinances (Art. 123)** and **pardon (Art. 72)**, all used on ministers' advice.
- The **Vice-President** is elected by **MPs only**, chairs the **Rajya Sabha** and acts as President for **at most six months**.
- The **PM** is the real executive. The **Council** is capped at **15%** of the Lok Sabha (**91st Am.**) and is **collectively responsible** to the Lok Sabha. **Cabinet committees, the Cabinet Secretariat and the PMO** support them.

Key term	In plain words
Electoral College	Elected MPs plus elected MLAs (including Delhi and Puducherry); no nominated members, no MLCs
Value of vote	MLA vote depends on State population (1971 Census) and number of elected MLAs; every MP's vote is equal
Absolute, suspensive, pocket veto	Withhold assent; return a non-Money Bill; take no action at all (no time limit)
Ordinance (Art. 123)	Law made when Parliament is not in session; lapses six weeks after reassembly unless approved
Pardon (Art. 72)	Clemency for Union-law offences, court martial and death sentences; five forms
Collective responsibility	Whole Council answers together to the Lok Sabha (Art. 75(3)); swims or sinks together
Cabinet Secretariat	Principal staff agency of the Cabinet and its committees, working under the PM
PMO	PM's own office: PMS 1947, renamed PMO 1977; the residual legatee

MY NOTES

MEMORY MAP: UNION EXECUTIVE



MNEMONIC · CABINET COMMITTEES (1 OF 2)

A I D E S

- **A** Appointments
- **I** Investment and Growth
- **D** Development: Employment and Skill Development
- **E** Economic Affairs
- **S** Security

Cabinet committees are the Cabinet's AIDES, sharing its workload. Five of the eight; the other three are in APP. Order is rearranged so the initials spell AIDES. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · CABINET COMMITTEES (2 OF 2)

A P P

- **A** Accommodation (headed by the Home Minister)
- **P** Parliamentary Affairs (headed by the Defence Minister)
- **P** Political Affairs (headed by the Prime Minister)

The remaining three are the committee APP beside AIDES: together the eight Cabinet committees. Order is rearranged so the initials spell APP. (Memory aid, not from the handout.)

MNEMONIC · ORDINANCE CASES IN ORDER

Courts Always Discipline

- **C** Cooper, R.C. (1970)
- **A** A.K. Roy (1982)
- **D** D.C. Wadhwa (1987)

Courts keep a check on ordinance misuse; Wadhwa struck down re-promulgation as a fraud on the Constitution. (Memory aid, not from the handout.)

MNEMONIC · THREE VETOES OF THE PRESIDENT

A S P

- **A** Absolute veto: withhold assent, the Bill dies
- **S** Suspensive veto: return a non-Money Bill; assent if passed again
- **P** Pocket veto: take no action, no time limit

The ASP strikes quietly: the Bill dies. Same order as the handout: Absolute, Suspensive, Pocket. (Memory aid, not from the handout.)

MNEMONIC · FIVE FORMS OF PARDON (ART. 72)

S C R A P

- **S** Stay of execution, temporary: Reprieve
- **C** Commutation: a lighter form of punishment
- **R** Remission: shorter duration, same character
- **A** Absolves completely: Pardon
- **P** Physical disability or Pregnancy: Respite, a lesser punishment

Clemency can SCRAP or soften a sentence. Five forms, order rearranged so the initials spell SCRAP. (Memory aid, not from the handout.)

STRUCTURE OF THE UNION EXECUTIVE AND THE PRESIDENT'S STATUS

- The Union Executive implements laws and runs day-to-day administration

MY NOTES

- The Legislature makes laws and the Judiciary interprets them. It sits in **Part V, Chapter I (Articles 52 to 78)**

THE FOUR PARTS

- The **President**
- The **Vice-President**
- The **Council of Ministers**, headed by the **Prime Minister**
- The **Attorney-General of India**
- The President holds the highest constitutional position and is **head of the State**
- All executive actions of the Union are taken in his name
- **Memory aid (Four parts): P**resident, **V**ice-President, **C**ouncil of Ministers (with PM), **A**ttorney-General: "**P**olity **V**eterans **C**an **A**nswer".

KEY ARTICLES ON THE POSITION OF THE PRESIDENT

Art-icle	What it says
52	"There shall be a President of India" (the word "shall" makes it mandatory: the office can never be abolished and shall never remain vacant)
53	Executive power of the Union is vested in the President, exercised directly or through subordinate officers; also **Art. 53(2)**: Supreme Commander of the Defence Forces
74	Council of Ministers with the PM at the head to aid and advise the President, who shall act in accordance with that advice
75(3)	Council of Ministers is collectively responsible to the Lok Sabha

- The President is the **nominal (constitutional) executive**, like the British monarch
- The **real executive power** lies with the Council of Ministers headed by the PM (Art. 74). This is the Parliamentary form: the President acts on aid and advice

> **HANDOUT ALERT**
> Handout alert: The handout lists the Attorney-General as part of the Union Executive but gives **no separate section** on the office; only his appointment (by the President, on the PM's advice) appears. Also the handout has **empty headings** for "Emergency Power" (under the President's powers) and no impeachment procedure beyond the single ground: none of that is available to quote from this handout.

ALSO IN THE HANDOUT

- Establishes the principle of aid and advice.

MY NOTES

ELECTION OF THE PRESIDENT (ARTICLES 54, 55, 71)

- The President is **not elected directly**. An **Electoral College** (Art. 54) elects him, so he represents both the Union and the States.

WHO IS IN THE ELECTORAL COLLEGE

ELECTORAL COLLEGE OF THE PRESIDENT

- **Included:**
  - Elected members of both Houses of Parliament
  - Elected members of the Legislative Assemblies of States, **including Delhi and Puducherry (added by the 70th Amendment Act, 1992)**
- **Excluded:**
  - Nominated members of Parliament and of State legislatures (no democratic mandate)
  - Members of Legislative Councils (only directly elected representatives vote)
  - Members of a **dissolved** Assembly (they cease to be elected representatives and lose the vote)
- The 104th Amendment ended nomination of the Anglo-Indian community to the Lok Sabha and State Assemblies. The handout gives the **year 2020** for this.

ARTICLE 55: UNIFORMITY AND PARITY

- The Constitution wants **uniformity** among States and **parity** between the States as a whole and the Union. So every vote has a value:

VALUE OF VOTES

Voter	Value of vote
Elected MLA	Population of the State (**1971 Census, frozen by the 84th Amendment 2001**) in proportion to the number of its elected MLAs: bigger population gives more weight, balanced by the number of MLAs. PYQ wording: as many votes as there are multiples of one thousand in the quotient of population divided by elected members
Elected MP (Lok Sabha or Rajya Sabha)	**Equal value for all MPs**; the total of MP votes is made equal to the total of all MLA votes (parity)

- **2022 numbers in the handout:** Each MLA's vote: Uttar Pradesh **208**, Maharashtra **175**, Sikkim **7**. Each MP's vote: **700** after the reorganisation of Jammu & Kashmir (see alert below).

MY NOTES

HANDOUT ALERT

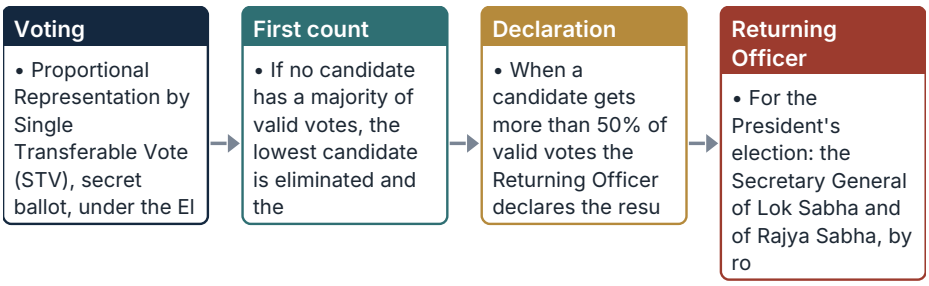
Handout alert: The MP vote value is given as **700 (2022)** in the election section but as **708** in the "Not Merely a Rubber Stamp" section. Quote **700 for 2022** (the figure tied to the J&K reorganisation); treat 708 as the older or alternative figure and check class notes.

METHOD OF VOTING AND COUNTING

HOW THE ELECTION IS RUN

- **Voting**:
  - **Proportional Representation by Single Transferable Vote (STV)**, **secret ballot**, under the **Election Commission of India**
  - Voters mark preferences 1, 2, 3
- **First count**: If no candidate has a majority of valid votes, the lowest candidate is eliminated and the votes are transferred by next preferences
- **Declaration**: When a candidate gets **more than 50% of valid votes** the Returning Officer declares the result
- **Returning Officer**: For the President's election: the **Secretary General of Lok Sabha and of Rajya Sabha, by rotation** (for Lok Sabha and Assembly elections it is generally the District Collector or Magistrate)

HOW THE ELECTION IS RUN



RECORDS AND RULES

Item	Detail
V.V. Giri (1969)	Only President elected after **second preference** votes were counted
Neelam Sanjiva Reddy (1977)	Only **unopposed** President
Proxy vote and NOTA	Not allowed
Security deposit	**Rs. 15,000** (Representation of the People Act 1951), forfeited if the candidate does not get at least **1/6th** of the votes needed to win
Nomination	**50 electors as proposers and 50 as seconders**

MY NOTES

Item	Detail
Presidential and Vice-Presidential Elections Act, 1952	Statutory framework; complements **Arts. 54-57** (President) and **Arts. 63-71** (Vice-President); notification before expiry of term or on vacancy; unopposed if only one valid candidate remains after withdrawals; poll if more than one

DISPUTES (ARTICLE 71)

- The **Supreme Court** decides all questions or disputes about the election
- Its decision is **final**
- If the election is declared **void**, all acts of the President before the judgment **remain valid**.
- A petition can be filed only by the **losing candidate or by 20 or more electors together**.
- **39th Amendment 1975** changed the forum to an authority created by Parliament
- **44th Amendment 1978** restored the Supreme Court
- The election cannot be challenged merely because some Assemblies are dissolved or seats are vacant (PYQ 2023: election cannot be postponed on that ground).
- **Memory aid (Value of vote):**
  - **M**LA vote = population (1971) per elected MLAs
  - **E**very MP equal
  - **P**arity of Union and States: "**M**any **E**lectors **P**articipate"
- **Shortcut: Prelims shortcut. Nominated members and MLCs never vote for the President** (but nominated MPs do vote for the Vice-President). **1971 Census** for MLA vote value. **Supreme Court** for disputes (Art. 71).

WHY INDIRECT ELECTION, AND CRITICISM

REASONS AND CRITICISMS

Why indirect (Constituent Assembly)	Criticism of the system
Parliamentary logic: nominal head, so direct election is unnecessary	It is a **highly complex** system
Avoid rivalry with the PM, both claiming a popular mandate	Value of an **MLA's vote differs** from State to State
Cost and complexity of a nationwide poll for a ceremonial office	The handout says it is "neither proportional representation nor single transferable vote" (see alert)
Federal representation of Union and States	

MY NOTES

HANDOUT ALERT

Handout alert: The handout calls the method PR with STV and also lists the criticism "neither proportional representation nor STV". Use "**PR through STV with secret ballot**" as the stated method; the criticism is a view that the multi-value system departs from textbook PR/STV.

INDIA, USA AND FRANCE: PRESIDENTIAL ELECTIONS

Aspect	India	USA	France
System	Indirect; Electoral College of MPs and State legislators	Indirect; **538-member** Electoral College	**Direct** by citizens (since 1962)
Voting method	STV with proportional representation	Winner-takes-all in most States; Maine and Nebraska use the district system	Two-round system; runoff if no majority
Electoral College	776 MPs and 4,000+ MLAs; vote value varies by State population	538 electors (State Senators + Representatives)	Not applicable
Popular vote	No direct public voting	Affects electors but does not ensure victory	Direct popular vote decides
Term	5 years, no limit on re-election	4 years, max two terms (22nd Amendment)	5 years, max two terms (2008 amendment)
Nomination	Proposers and seconders from the Electoral College; deposit	Primaries, caucuses, party conventions	**500 signatures** from elected representatives
Debates	No formal debates	Televised debates (Commission on Presidential Debates)	Televised debate between final two before runoff
Voting day	Single day set by the Election Commission	First Tuesday after the first Monday in November	Sunday; second round two weeks later
Result	Usually in 3-4 days	Often on election night	Same day as each round
Disputes	Supreme Court (Art. 71)	State courts, may reach the Supreme Court (2000 Florida case)	Constitutional Council, can annul results

ALSO IN THE HANDOUT

- Thus, the presence of a President is a permanent feature of India's constitutional system.

MY NOTES

- This system ensures that the winning candidate secures a majority of overall preferences, reflecting broad-based support rather than a simple majority of votes.
- Note: 39 th Constitutional Amendment Act, 1975 changed it to an authority to be created by Parliament by law, however 44 th Constitutional Amendment Act, 1978 restored the status quo ante and made the Supreme court the decider on election disputes of the President.
- He/she ensures that the election is conducted in a proper lawful manner, including fair counting of votes, announcement of results, etc.
- In order to discourage non-serious candidates: - According to the Representation of People Act (RPA) of 1951, each candidate has to submit a security deposit of Rs.
- In contrast, the United States restricts its President to a maximum of two terms.
- Ambedkar beautifully clarified this distinction in the Constituent Assembly: “The President of the Indian Union occupies the same position as the King under the English Constitution.
- This system gives the President a wider representative base than just Parliament, lending moral authority.
- The Assembly opted for an indirectly elected President to prevent concentration of power.
- This unique blend makes the office a bridge between Parliament and the Executive — ensuring both constitutional stability and institutional harmony.
- Varahagiri Venkata Giri (V.

QUALIFICATIONS, CONDITIONS AND OATH (ARTICLES 58, 59, 60)

QUALIFICATIONS (ARTICLE 58)

- **Memory aid (Four tests): C**itizen of India, **A**ge 35 completed, **L**ok Sabha-qualified, **N**o office of profit (exempt: President, Vice-President, Governor, Minister): "**C**lever **A**spirants **L**earn **N**otes".

CONDITIONS OF OFFICE (ARTICLE 59)

- Cannot be a **member of Parliament or of any State Legislature**
- If elected he is deemed to have vacated the seat from the date he enters office
- Cannot hold any other **office of profit**.
- **Rent-free official residences**
- Emoluments, allowances and privileges set by Parliament by law (until then, as in the **Second Schedule**)

MY NOTES

- Emoluments and allowances **cannot be diminished** during the term.
- **Immunities**:
  - Personal immunity for official acts
  - **no criminal proceedings** during the term, even for personal acts
  - Cannot be arrested or imprisoned
  - **civil proceedings** for personal acts only after **two months' notice**

OATH OR AFFIRMATION (ARTICLE 60)

- Taken before the **Chief Justice of India** (or, in his absence, the senior-most Judge of the Supreme Court).
- Anyone **acting as President** or discharging the President's functions takes the same oath.
- **Memory aid (Oath):**
  - **F**aithfully execute the office
  - **P**reserve, protect and defend the Constitution and the law
  - **D**evote himself to the service and well-being of the people: "**F**ine **P**lans **D**elivered". Loyalty is to the Constitution, not a party or government

ALSO IN THE HANDOUT

- Have completed 35 years of age – reflecting maturity and experience.
- In this oath, the President solemnly promises to: - To faithfully execute the office;

TERM, VACANCY AND IMPEACHMENT (ARTICLES 56, 61, 62)

TERM

- **Five years** from the day he takes office
- May **resign** by writing to the **Vice-President**
- Or be removed by **impeachment**
- Continues until his successor takes charge
- **no limit** on re-election (the USA limits to two terms)

VACANCY

THREE KINDS OF VACANCY

Kind	When	How it is filled
Anticipated	Term about to expire	Election completed **before** the term ends, so there is no gap

MY NOTES

Kind	When	How it is filled
Casual (unforeseen)	Death; resignation; impeachment for violating the Constitution; disqualification (e.g. loss of citizenship, office of profit); election declared void by the Supreme Court (Art. 71)	VP acts; if VP post is also vacant, the **Chief Justice of India** (or the senior-most SC Judge) discharges the duties; **fresh election within six months**; new President serves a **full five years**
Temporary	Illness, absence or other reason	**Vice-President** discharges the functions until the President resumes

WHO ACTS WHEN THE POST IS VACANT

- **Vice-President**: Acts as President until a new one takes office
- **If VP post is also vacant**: Chief Justice of India, or in his absence the senior-most Judge of the Supreme Court
- **Within six months**:
  - Fresh election
  - Full five-year term from the date he takes charge
- Anyone acting as President enjoys **all powers and immunities** of the President and his emoluments, allowances and privileges as fixed by Parliament.
- **The 1969 case:**
  - Dr. Zakir Husain died in **May 1969**
  - VP **V.V. Giri** acted as President, then resigned to contest the election
  - **Chief Justice M. Hidayatullah** officiated from **20 July to 24 August 1969**
- **Memory aid (Acting chain):** **V**ice-President, **C**hief Justice of India, **S**enior-most SC Judge: "**V**ery **C**areful **S**uccession".

IMPEACHMENT (ARTICLE 61)

- The **only ground** is "**violation of the Constitution**". It is a **quasi-judicial** process, deliberately rigorous to protect the dignity of the office.
- **No President has ever been impeached** in independent India. The word "impeachment" is used in the Constitution in Art. 61.
- It shows the President is accountable to Parliament
- The difficult procedure prevents frivolous attempts
- Handout PYQ (1996):
  - The State **Legislative Assemblies** are part of the Electoral College but **not** part of the forum for impeachment
  - Legislative Councils are in neither

MY NOTES

POWERS OF THE PRESIDENT: EXECUTIVE AND LEGISLATIVE

- Executive power of the Union is vested in the President, exercised directly or through subordinates. In practice all powers are exercised on the aid and advice of the Council of Ministers.

EXECUTIVE POWERS

APPOINTMENTS AND REMOVALS

- **The President appoints:**
  - The Prime Minister, and other ministers on the PM's advice
  - Governors
  - Attorney-General
  - CAG
  - Chief Election Commissioner and Election Commissioners
  - Chairpersons and Members of the Finance Commission, UPSC and other constitutional bodies
  - Judges of the Supreme Court and High Courts
  - Ambassadors and High Commissioners
- **The President can remove:**
  - Ministers (on the PM's advice)
  - Governors
  - Attorney-General
  - Members of constitutional commissions, under prescribed conditions
- **Head of administration**: all executive actions are in his name.
- **Union Territories**:
  - Administered through Administrators or Lieutenant Governors (**Art. 239**)
  - Special responsibility for the **Fifth and Sixth Schedules** (Scheduled and Tribal Areas)
- **Rule-making (Art. 77)**: rules for allocation of business among Ministers and for transaction of Government business (PYQ 2014: the President makes these rules; actions are in the President's name, not the PM's).
- **Seeking information (Art. 78)**: can call for information from the PM and require a Minister to submit proposals for the Council's consideration.
- **Administration**:
  - Ensures faithful execution of laws
  - May appoint inquiry commissions

LEGISLATIVE POWERS

- The President is a **part of Parliament** though not a member of either House
- No law exists without him

MY NOTES

LEGISLATIVE POWERS

Power	Detail
Summon, prorogue, dissolve (Art. 85)	Summons and prorogues Parliament; dissolves the Lok Sabha; Houses meet at least **once every six months**
Address (Arts. 86, 87)	Addresses both Houses jointly at the **first session each year** and after **every general election**: sets out government policy
Speaker's duties	If the offices of Speaker and Deputy Speaker are both vacant, a Lok Sabha member appointed by the President performs the Speaker's duties
Nominations	**12 members to the Rajya Sabha** (literature, science, art, social service); Anglo-Indian nomination to Lok Sabha ended by the **104th Amendment**
Assent to Bills (Arts. 111, 200, 201)	See the Veto section
Ordinances (Art. 123)	See the Ordinance section
Disqualification of members (Art. 103)	President decides finally, **after consulting the Election Commission**
Regulations for Union Territories	Peace, progress and good government of **Andaman and Nicobar Islands, Lakshadweep, Dadra and Nagar Haveli and Daman and Diu, and Ladakh**
Laying of reports	NCSC, NCST, UPSC, Finance Commission and others

PRIOR RECOMMENDATION OR SANCTION OF THE PRESIDENT FOR BILLS

BILLS NEEDING THE PRESIDENT'S PRIOR RECOMMENDATION

Article	Bill
Art. 3	Reorganisation of States
Art. 110	Money Bills
Art. 274	Bills affecting taxation in which States are interested
Art. 304	Restrictions on trade, commerce and intercourse among States

- **Memory aid (Prior sanction):** **3** States, **110** Money, **274** taxes of States' interest, **304** trade restrictions: "**S**tates **M**oney **T**axes **T**rade" (Art. numbers in that order).

ALSO IN THE HANDOUT

- These appointments establish the President as the constitutional appointing authority of the Republic.

MY NOTES

- This requirement ensures that only serious and widely acceptable candidates contest the election.
- It ensures that key administrative positions are filled promptly to maintain efficiency in governance.

FINANCIAL, JUDICIAL, DIPLOMATIC AND MILITARY POWERS

FINANCIAL POWERS

- The President is the "guardian of the nation's finances": Parliament cannot spend or raise money without his approval.

FINANCIAL POWERS

Power	Detail
Annual Financial Statement (Art. 112)	Laid before both Houses (estimated receipts and expenditure). PYQ 2024: the **Finance Minister lays it on behalf of the President**, not the PM
Money and Financial Bills	Introduced only in the **Lok Sabha** and only with the President's **prior recommendation**
Demands for Grants and Supplementary Grants	Made to the Lok Sabha only on the President's recommendation
Contingency Fund of India (Art. 267)	At his disposal for urgent or unforeseen expenses
Reports	Lays CAG, Finance Commission and Union Accounts reports before Parliament (PYQs 2010, 2012: the Finance Commission's recommendations and the CAG and NCSC reports are laid by the President; the Public Accounts Committee report is not in that list)

JUDICIAL POWERS

- **Appoints** the Chief Justice and Judges of the Supreme Court (**Art. 124**) and of the High Courts (**Art. 217**), in consultation with the judiciary through the **collegium**.
- **Removes** judges only after Parliament's special impeachment procedure for **proved misbehaviour or incapacity**.
- **Pardon (Art. 72)**: see the Pardon section.
- **Advisory opinion (Art. 143)**: see the Constitutional Position section.

DIPLOMATIC AND MILITARY POWERS

DIPLOMATIC AND MILITARY

- **Diplomatic:**
  - Represents India abroad

MY NOTES

- Appoints ambassadors and high commissioners and receives foreign diplomats
- Treaties are made in his name but become **binding only after Parliament's approval**

- **Military:**
  - **Supreme Commander** of the Defence Forces (Art. 53(2))
  - Appoints the Chiefs of Army, Navy and Air Force
  - Can declare war or conclude peace only with Parliament's approval
  - Used on the Council's advice

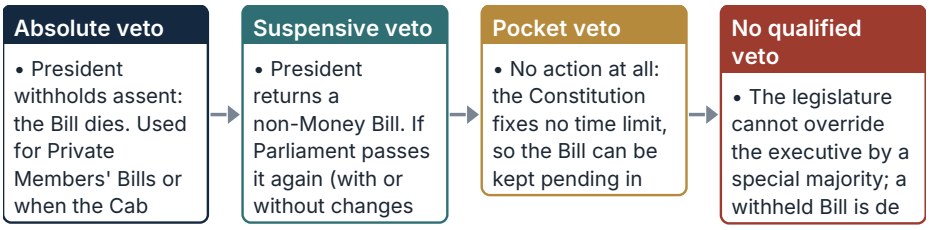
VETO POWER OF THE PRESIDENT

- A Bill becomes law only after assent. The President may **assent, withhold assent, or return a non-Money Bill**. India has three vetoes
- The **qualified veto of the USA does not exist** in India

THE THREE VETOES

- **Absolute veto**: President **withholds** assent: the Bill dies. Used for Private Members' Bills or when the Cabinet that introduced the Bill has lost power. Cases: **PEPSU Appropriation Bill 1954** (first use) and **MPs' Salary and Pension (Amendment) Bill 1991** (R. Venkataraman returned it unsigned)
- **Suspensive veto**: President **returns** a non-Money Bill. If Parliament passes it again (with or without changes) he **must assent**. Case: **Kalam 2006, Parliament (Prevention of Disqualification) Amendment Bill** (Office of Profit Bill)
- **Pocket veto**: **No action** at all: the Constitution fixes **no time limit**, so the Bill can be kept pending indefinitely. Case: **Zail Singh 1986, Indian Post Office (Amendment) Bill** (interception of private mail on security grounds)
- **No qualified veto**:
  - The legislature cannot override the executive by a special majority
  - A withheld Bill is dead unless introduced afresh

THE THREE VETOES



- **Memory aid (Veto types):** **A**bsolute (withhold), **S**uspensive (return), **P**ocket (sit on it): "**A S**ure **P**lan".

MY NOTES

- **Memory aid (Veto cases):**
  - **P**EPSU 1954, **M**Ps' salary 1991 (absolute)
  - **K**alam 2006 (suspensive)
  - **Z**ail Singh 1986 (pocket): "**P**eople **M**ust **K**now **Z**ail"

STATE BILLS (ART. 200 AND 201)

- The **Governor** has four options for a State Bill: **assent, withhold, return (non-Money Bill; assent if passed again) or reserve for the President**. A Governor **must reserve** a Bill that endangers the position of the High Court (Art. 200, second proviso).

PRESIDENTIAL VETO IN THREE CASES

Type of Bill	Central legislation	State legislation (reserved for the President)
Ordinary Bill	**Art. 111**: assent; withhold (absolute); or return for reconsideration (suspensive), and if passed again he **must assent**	**Arts. 200 and 201**: assent; withhold; or return (non-Money Bill). After reconsideration the President is **not bound** to assent; **no time limit**, so pocket veto is possible (Kerala Education Bill 1957 cited). His decision on a re-passed Bill is final
Money Bill	**Arts. 109, 110, 111**: introduced only in Lok Sabha with prior recommendation; **cannot be returned**; assent is general practice since the Cabinet has approved it	If reserved: assent or withhold only; **cannot be returned**
Constitutional Amendment Bill	**Art. 368**: assent is **mandatory**, no power to return or withhold (the **24th Amendment 1971** requires it)	Cannot be introduced in a State Legislature; States only **ratify** under Art. 368(2) where required

- **Shortcut: Prelims shortcut. Money Bill: cannot be returned. Constitutional Amendment Bill: cannot be returned or withheld.** Only ordinary Bills can be returned. **PYQ 2023: no time limits** for the President's assent to Bills.

ALSO IN THE HANDOUT

- He withheld assent amid concerns about misuse.

ORDINANCE-MAKING POWER (ARTICLE 123)

- The President can **promulgate ordinances when Parliament is not in session**
- They have the **same force as an Act of Parliament** but are temporary. Unlike Emergency powers, this works in normal times.

MY NOTES

Ambedkar justified it as a tool for a situation that arises suddenly when Parliament is not sitting. It is rare among democratic constitutions (not in the USA or UK)

- **Memory aid (Four limits):** **N**ot in session, **N**ecessity (immediate action), **C**ompetence (Union and Concurrent subjects), **L**aid before Parliament: "**N**ever **N**eglect **C**onstitutional **L**imits".

THE FOUR CONDITIONS

Condition	Detail
(a) Parliament not in session	Only when **both Houses** are not in session. An ordinance issued when either House sits would be void
(b) Immediate necessity	President must be satisfied that immediate action is needed (on the Council's advice) and it is **judicially reviewable**: **R.C. Cooper (1970)** held satisfaction can be questioned for **mala fides** or abuse. The **38th Amendment 1975** made it final; the **44th Amendment 1978** deleted that clause
(c) Legislative competence	**Coextensive** with Parliament's powers except in duration: only Union and Concurrent subjects; may be **retrospective**; cannot violate **Fundamental Rights or the Basic Structure**; can amend or repeal laws but **cannot amend the Constitution** (Art. 368)
(d) Laying and duration	Laid before both Houses on reassembly; ceases **six weeks after reassembly** unless approved; ends earlier if both Houses pass disapproving resolutions; if Houses meet on different dates the six weeks run from the **later date**

- **Maximum life** about **six months and six weeks**. Acts done under an ordinance stay valid even if it lapses.
- The President may **withdraw** an ordinance at any time, on the Council's advice.
- Lok Sabha rules: a Bill replacing an ordinance must be accompanied by a **statement of the circumstances** that made it necessary.
- PYQ 2003: the 2002 ordinance on electoral reforms, sent back by the Cabinet unchanged, was assented to under **Article 123**.

COURT CASES ON ORDINANCES

Case	Holding
R.C. Cooper v. Union of India (1970)	Satisfaction can be questioned on mala fides or abuse of power
A.K. Roy v. Union of India (1982)	Satisfaction is not beyond scrutiny; ordinances cannot be used to evade Parliament
D.C. Wadhwa v. State of Bihar (1987)	**Re-promulgation** without legislative approval struck down as a **fraud on the Constitution**; the Governor of Bihar kept over **250 ordinances** alive between **1967 and 1981**

MY NOTES

PARDONING POWER (ARTICLE 72)

- An act of **grace, not a judgment**: it corrects judicial errors or relieves harshness. It is independent of the judiciary but is **not an appeal** and is exercised on the **aid and advice of the Council of Ministers** (Art. 74).
- **Memory aid (Which cases): U**nion law offence, **C**ourt martial sentence, **D**eath sentence: "**U**nder **C**ourt, **D**eath".
- **Art. 72(2)**: does not affect military officers' power to suspend or remit sentences.
- **Art. 72(3)**: does not take away the Governor's power to suspend, remit or commute a death sentence under **Art. 161**.
- Aims:
  - (1) correct judicial errors or excessive punishment
  - (2) extend mercy on humanitarian, social or public-welfare grounds

THE FIVE FORMS OF CLEMENCY

Form	Meaning	Example in handout
Pardon	Completely absolves: conviction and punishment erased; civil rights restored	Treated as legally innocent
Commutation	Substitutes a **lighter kind** of punishment; conviction stays	Death to life imprisonment; rigorous to simple imprisonment
Remission	**Reduces the duration** without changing the character	Five years rigorous reduced to three; often on national occasions or good behaviour
Respite	**Lesser punishment** because of special circumstances	Physical disability, chronic illness, mental infirmity, pregnancy
Reprieve	**Temporary stay** of execution (usually death) for a period	Time to seek mercy or judicial review

- **Memory aid (Five forms): P**ardon wipes out, **C**ommutation changes the kind, **R**emission cuts the length, **R**espite = special circumstances, **R**eprieve = temporary stay: "**P**lease **C**ome **R**elax, **R**ahul, **R**est".

> **HANDOUT ALERT**
> Handout alert: Art. 72 text in the handout lists **pardon, reprieve, respite, remission, suspension, or commutation** (six words), while the explanation says "five distinct kinds". Learn the five defined above; "suspension" appears in the Article wording.

MY NOTES

LANDMARK CASES ON PARDON

Case	Holding
Maru Ram v. Union of India (1980)	President acts on the **Union Cabinet's** advice; **judicial review** if arbitrary or mala fide
Kehar Singh v. Union of India (1988)	**No right to oral hearing**; President can **re-examine evidence** independently; based on Cabinet advice; review only if **irrational, discriminatory or mala fide**
Shatrughan Chauhan v. Union of India (2014)	**Inordinate delay, mental illness or procedural lapses** in mercy petitions can justify commutation of death sentences; convicts and families must be **informed in advance** before execution

ALSO IN THE HANDOUT

- The objectives of this power are twofold: - To correct judicial errors or excessive punishments resulting from human fallibility.
- Respite: A respite implies awarding a lesser punishment in place of one originally prescribed, due to the presence of special circumstances such as: - Physical disability, chronic illness, or mental infirmity, or - Pregnancy in the case of a woman offender. It humanises the law by recognising that equal punishment may not be equitable in every case.

CONSTITUTIONAL POSITION, DISCRETION AND ARTICLE 143

- India has a parliamentary, not presidential, system: the President is **head of the State only**, unlike the US President who is head of State and government.
- **Ambedkar:** "The President ... represents the nation but does not rule the nation ... a ceremonial device or a seal by which the nation's decisions are made known." In the Constituent Assembly **K.T. Shah** warned against a "gramophone of the Prime Minister".

EVOLUTION OF ARTICLE 74

HOW THE ADVICE BECAME BINDING

- **Original Art. 74**:
  - Did not say the President must act on advice
  - Implied by convention
- **42nd Amendment (1976)**: Advice of the Council of Ministers made **binding**
- **44th Amendment (1978)**:
  - President may **once** ask the Council to **reconsider** its advice
  - After reconsideration he is **bound** by the reaffirmed advice
- **1997 case**:
  - **K.R. Narayanan** returned the Cabinet's advice to impose President's Rule in Uttar Pradesh

MY NOTES

- The Cabinet dropped it

- **Shortcut: Prelims shortcut. 42nd = binding. 44th = may send back once (PYQ 2002).** After the second advice, he must act.

> **HANDOUT ALERT**
> Handout alert: One passage credits "the 42nd and 44th Amendment Act (1976)" together; the 42nd is **1976** and the 44th is **1978**. PYQ 2002 answer: **44th** empowers the President to send back advice.

DISCRETION OF THE PRESIDENT

- No provision on the President's discretion (unlike the Governor). He can act independently of the Council in these situations:

WHERE THE PRESIDENT CAN ACT INDEPENDENTLY

Situation	Detail
Choosing the PM	In a **hung Lok Sabha** with no majority party
Duty to preserve, protect and defend the Constitution	Basis for independent action
Dissolution advice	May **reject** the PM's advice seeking dissolution when he has **lost majority**, and look for an alternative government. Lok Sabha is dissolved on the Council's advice, which is binding **only if the government has a majority**
Disqualification of an MP (Art. 103)	Need not consult the Council; consults the **Election Commission**
Art. 74	Return the advice for reconsideration
Art. 78	Seek information from the PM
Vetoes	Pocket veto (Indian Post Office Bill 1986); suspensive veto (Office of Profit Bill 2006)
Messages to Parliament	The handout's list ends with "sending messages to the" Parliament

MORAL AUTHORITY

- Facing unconstitutional advice: **Art. 78** (ask for further information) or **Art. 74** (send it back).
- The President is a "**Great Grandfather in a large joint family**": consulted, advises and warns, but the younger generation decides.
- **R. Venkataraman**: the President's discretion is an "**emergency light**" that glows only when regular current fails.

MY NOTES

ARTICLE 143: ADVISORY JURISDICTION

ARTICLE 143 AND 145(3)

- **Art. 143(1) discretionary:**
  - President may refer a question of law or fact of **public importance**
  - The Court **may decline**
  - Opinion is **advisory, not binding**, but carries weight
- **Art. 143(2) mandatory:**
  - Questions on **pre-constitutional treaties or agreements**: the President **must refer**
  - The Court must give its opinion
- **Art. 145(3):**
  - Any reference is heard by **five judges**
  - The Court returns it with the **majority opinion**
- Used **at least 15 times** since 1950. Examples: **Kerala Education Bill 1957**, **Ayodhya Reference 1993**.
- **Recent reference**: the President invoked Art. 143(1) on the powers of **Governors and the President under Arts. 200 and 201**, after an SC ruling set timelines for them and introduced "**deemed consent**".

> **HANDOUT ALERT**
> Handout alert: The Kerala Education Bill 1957 appears both as an **Art. 143 reference** and as a **pocket veto example** in the veto table. Remember it as an **Art. 143 reference**; treat the pocket-veto mention as the handout's own illustration. The handout also mentions "3 schools of thought" on the President's position but the figure is missing.

ALSO IN THE HANDOUT

- The Cabinet reconsidered and dropped the proposal — a classic demonstration of constructive Presidential caution.
- Ambedkar once remarked, “If any functionary under our Constitution is to be compared with the U.S.
- They must stand by these decisions, defend them both inside and outside Parliament, and present a united front to the nation.
- Which one of the following is not explicitly stated in the Constitution of India but followed as a convention?

THE VICE-PRESIDENT OF INDIA

- **Art. 63**: there shall be a Vice-President. He is the **second-highest** constitutional office (below the President in precedence), modelled on the **American VP**, and is **ex-officio Chairman of the Rajya Sabha**. **Dr. Sarvepalli Radhakrishnan** was the first VP (1952-1962).

MY NOTES

ELECTION (ARTICLE 66)

PRESIDENT VERSUS VICE-PRESIDENT ELECTION

Issue	President	Vice-President
Voters	Elected MPs and elected MLAs (**4,896** voters in 2017)	**Only MPs** of both Houses (**790** in 2017); State legislatures take no part
Nominated members vote?	**No**	**Yes**
Value of vote	Differs by State; MPs equal	**One** for every voter
Eligibility	Qualified as a **Lok Sabha** member	Qualified as a **Rajya Sabha** member
Nomination paper	**50** proposers and **50** seconders	**20** proposers and **20** seconders
Method	PR by STV, secret ballot, Election Commission	PR by STV, secret ballot, Election Commission
Disputes	Supreme Court, final	Supreme Court, final

- Ambedkar:
  - The President's power extends over Centre and States so State Legislatures vote
  - The VP's functions are confined to the Council of States, so States need not take part
- **Eligibility**:
  - Citizen
  - **35 years**
  - Qualified for Rajya Sabha
  - No office of profit (President, VP, Governor and Union or State Minister are exempt)
- **Conditions**:
  - Cannot be a member of either House or a State legislature (seat falls vacant when he enters office)
  - No other office of profit
- The election cannot be challenged because of **vacancies in the Electoral College**. If declared void, his earlier **acts remain valid**.
- **Oath**:
  - True faith and allegiance to the Constitution
  - Faithfully discharge duties
  - Administered by the **President** or a person he authorises

MY NOTES

HANDOUT ALERT

Handout alert: The handout's table says the value of the President's vote "excludes the population" of the State (garbled). Use the main-text rule: value depends on **State population (1971 Census) and number of elected MLAs**.

TERM (ART. 67) AND VACANCY (ART. 68)

TERM, VACANCY AND REMOVAL

Point	Rule
Term	**Five years** from entering duties; continues until successor takes charge; **no limit** on re-election
Vacancy occurs by	Expiry; resignation to the President; removal by resolution; death; other (disqualification, election declared void)
Anticipated vacancy	Election completed **before** the term ends
Unexpected vacancy	Election **as soon as possible** (**no six-month limit**, unlike the President); new VP gets a **full five years**
Removal	**No ground** stated in the Constitution; resolution moves **only in the Rajya Sabha** and must be passed by the **effective majority** of its then members; then agreed by the Lok Sabha by **simple majority**

- "Effective strength": maximum strength minus vacancies. Example: 5 vacancies gives 245 - 5 = 240, so **121 votes** are needed.
- The handout says there is **no requirement of one-fourth members signing a 14-day notice** (as there is for the President). Use it as stated.
- **Shortcut: Prelims shortcut. VP removal starts only in the Rajya Sabha (PYQ 2004).** Effective majority of the then members there, simple majority in Lok Sabha.

POWERS AND FUNCTIONS

DUAL ROLE OF THE VICE-PRESIDENT

- **Chairman of Rajya Sabha (Art. 64):**
  - Presides, keeps order, decides points of procedure, allows or disallows motions
  - **casting vote** in a tie
  - **not a member** of the House (like the American VP as President of the Senate)
- **Acting President (Art. 65):**
  - On **vacancy** (death, resignation, removal, disqualification) for at most **six months**
  - On **temporary inability** until the President resumes. Gets the **President's** powers, immunities, salary and allowances

MY NOTES

- The **Deputy Chairman** of the Rajya Sabha presides meanwhile

SIX VICE-PRESIDENTS WHO BECAME PRESIDENTS

Name	VP years	President
Dr. Sarvepalli Radhakrishnan	1952-1962	2nd (1962-1967)
Dr. Zakir Husain	1957-1962	3rd (1967-1969)
V.V. Giri	1967-1969	4th (1969-1974)
R. Venkataraman	1984-1987	8th (1987-1992)
Dr. Shankar Dayal Sharma	1987-1992	9th (1992-1997)
K.R. Narayanan	1992-1997	10th (1997-2002)

- **Memory aid (Six VPs):** **R**adhakrishnan, **Z**akir Husain, **G**iri, **V**enkataraman, **S**harma, **N**arayanan: "**R**are **Z**ebras **G**raze **V**ery **S**low **N**ights" (Presidents 2, 3, 4, 8, 9, 10).

INDIAN VERSUS AMERICAN VICE-PRESIDENT

Aspect	India	USA
Basis	Modelled on the American VP, adapted to the parliamentary framework	Original executive institution under the presidential system
Legislative role	Ex-officio Chairman of the Rajya Sabha	President of the Senate
Executive role	No real executive authority; largely legislative and ceremonial	Significant executive importance as immediate successor
Succession	Acts as President temporarily; election for new President within six months	Automatically succeeds and serves the remaining term
Tenure after succession	Only until a new President takes charge	Continues for the unexpired term

ALSO IN THE HANDOUT

- Note: In short, the Electoral College is designed to make the President a symbol of both national and state authority—representing India's unity within diversity.
- The Election Commission of India supervises the entire process, ensuring impartiality and uniformity. Difference between the election process of the President & Vice President of India Issue President's Election Vice-President's Election [TABLE CELLS] Who can Vote / ? / All elected MP's & all / elected MLA's from States. / Number of voters for the / 2017 election in 4896 / Only MP's from Lok Sabha & Rajya / Sabha can vote.
- Presiding over sessions of the Rajya Sabha and maintaining order and decorum.

MY NOTES

- Allowing or disallowing motions, adjournments, and discussions.

THE PRIME MINISTER

- The PM is the **real (de facto) executive**
- The President is nominal (de jure). Ivor Jennings: "The Prime Minister is the keystone of the Constitution. All roads in the Constitution lead to the Prime Minister." Ambedkar: the PM, not the President, is comparable to the US President

TWO VIEWS OF THE PM

- **Primus inter pares (first among equals):**
  - Not a boss or captain
  - Coordinator, with decisions taken by the Cabinet as a whole. Example in the handout: **Manmohan Singh**
- **Luna inter stellas minores (a moon among lesser stars):**
  - The boss, captain of the ship of State
  - Others are juniors. "Prime Ministerial government." Examples: **Nehru, Indira Gandhi, Rajiv Gandhi, Modi**

APPOINTMENT (ARTICLE 75)

- **Art. 75(1)**:
  - Appointed by the President
  - No detailed procedure, so **convention** applies. Ordinarily the **leader of the majority party in the Lok Sabha**
- In a **hung House** the President may invite the leader of the largest party or coalition to seek a **vote of confidence**: **Neelam Sanjiva Reddy appointed Charan Singh in 1979** after the Morarji Desai government fell.
- **Sudden death with no clear successor**:
  - After **Indira Gandhi's assassination in 1984**, **Zail Singh appointed Rajiv Gandhi**
  - The Congress Parliamentary Party endorsed it

JUDICIAL CLARIFICATIONS

- **Delhi High Court (1980)**: A person **need not prove majority before appointment**: appoint first, then require proof within a reasonable time. Applied to Charan Singh (1979), V.P. Singh (1989), Chandra Shekhar (1990), A.B. Vajpayee (1996)
- **S.P. Anand v. H.D. Deve Gowda (1997)**: A non-member **can** be PM but must become a member of **either House within six months** or cease to hold office
- **India versus Britain**:
  - In Britain the PM must be in the **House of Commons**

MY NOTES

- In India he may belong to **either House**: Indira Gandhi (1966), Deve Gowda (1996) and Manmohan Singh (2004) were Rajya Sabha members

OATHS OF THE PM (ADMINISTERED BY THE PRESIDENT)

Oath	Content
Oath of Office	True faith and allegiance to the Constitution; uphold sovereignty and integrity of India; faithfully discharge duties; do right to all manner of people **without fear or favour, affection or ill will**
Oath of Secrecy	Not to disclose any information that comes to his knowledge as a minister, except as required for official duties

TERM, SALARY

- **No fixed term**
- Holds office "during the pleasure of the President", but the President **cannot dismiss** a PM who has the Lok Sabha's confidence. On losing confidence he must **resign** (V.P. Singh 1990 and Deve Gowda 1997 resigned after losing confidence votes)
- Salary and allowances set by Parliament: **MP's pay plus sumptuary allowance**, free residence, travel, medical and security. In 2018 the PM's sumptuary allowance was **Rs. 3,000 per month**.

POWERS AND FUNCTIONS

THREE RELATIONS OF THE PM

Relation	Functions
With the Council of Ministers	Heads the Council; **recommends** ministers (the President cannot appoint anyone not recommended); **allocates and reshuffles portfolios**; can ask a minister to **resign** or advise the President to **dismiss**; presides over meetings; **chief coordinator**; PM's **resignation dissolves the whole Council**, while the resignation or death of another minister only creates a vacancy
With the President (Art. 78)	**Principal channel of communication**; keeps him informed of all decisions and legislative proposals; if the President requires, places a matter decided by one minister before the Council; **advises on appointment** of the Attorney-General, CAG, UPSC Chairman and Members, Election Commissioners, Finance Commission Chairman and Members
With Parliament	**Leader of the Lok Sabha**; advises the President on **summoning, proroguing and dissolving** the Lok Sabha (at any time); chief spokesperson of the government

MY NOTES

ARTICLE 74, 75, 78 SIDE BY SIDE

Article	Provision	Essence
74	Council with the PM at the head to aid and advise the President, who acts in accordance with the advice but may **once** ask reconsideration	Aid and advice
75	(a) PM appointed by the President, other ministers on the PM's advice; (b) ministers hold office during the President's pleasure; (c) Council collectively responsible to the Lok Sabha	Appointment, tenure, responsibility
78	PM's duty to communicate all decisions, supply information the President seeks, and submit matters for reconsideration	PM keeps the President informed

OTHER POWERS AND THE CARETAKER GOVERNMENT

- **Chairman** of **NITI Aayog, National Integration Council, Inter-State Council, National Water Resources Council**.
- Shapes **foreign policy**
- **chief spokesman**
- **Crisis Manager-in-Chief** in war, disaster or emergency
- **Memory aid (PM chairs): N**ITI Aayog, **N**ational Integration Council, **I**nter-State Council, **N**ational Water Resources Council: "**N**ever **N**eglect **I**mportant **N**etworks".
- **Caretaker government**:
  - Not mentioned in the Constitution
  - A **convention** when a government loses confidence, resigns or the Lok Sabha is dissolved. Only **routine administration**: no major policy, new schemes or large commitments, except for national security or urgent necessity. **Tarkunde Committee (1974-75)** and **Calcutta High Court (1979)** stressed this
  - President **Neelam Sanjiva Reddy** reaffirmed it in 1979
- **Deputy Prime Minister**:
  - **not a constitutional office**
  - Appointed by the President on the PM's recommendation
  - First **Sardar Vallabhbhai Patel**, last **L.K. Advani**. A similar **Deputy Chief Minister** is appointed by the Governor on the CM's advice and is not constitutionally recognised
- **Devi Lal's oath as Deputy PM (1990)** was challenged but the Supreme Court upheld it: titles like Deputy PM, Minister of State or Deputy Minister are **descriptive** and give no separate constitutional status if the substantive oath is correct.

MY NOTES

CHIEF MINISTERS WHO BECAME PRIME MINISTERS

Name	State	Became PM
Morarji Desai	Bombay State	1977
Charan Singh	Uttar Pradesh	1979
V.P. Singh	Uttar Pradesh	1989
P.V. Narasimha Rao	Andhra Pradesh	1991
H.D. Deve Gowda	Karnataka	1996
Narendra Modi	Gujarat	2014

- **Memory aid (CM to PM):** **M**orarji, **C**haran Singh, **V**.P. Singh, **P**.V. Narasimha Rao, **D**eve Gowda, **N**arendra Modi: "**M**y **C**ats **V**isit **P**eople **D**uring **N**ights".

PM IN THE LOWER HOUSE

- The PM should ideally come from the House to which the Council is accountable. In the **UK** always the Commons (last Lords PM: **Lord Salisbury, 1902**)
- The German Chancellor from the **Bundestag**
- The Japanese PM from the directly elected lower house
- In **1966 H.V. Kamath** moved a Bill to codify that the PM comes from the Lok Sabha
- **Congress rejected** it, saying convention would evolve

ALSO IN THE HANDOUT

- Ambedkar described the President as a “nominal figurehead,” the office is designed to embody constitutional morality, preserve the balance of powers, and prevent executive excesses.
- He represents India in bilateral summits, international forums, and global negotiations From Jawaharlal Nehru’s non-alignment vision to Narendra Modi’s focus on global partnerships and digital diplomacy, the PM’s leadership defines India’s international identity - Domestically, the Prime Minister acts as the chief spokesman of the Union government. He communicates the policies and decisions of the Cabinet to the public, Parliament, and the press, thereby shaping national opinion.
- Other benefits — including travel privileges, medical facilities, and motor-car advances — are extended to facilitate their official responsibilities.

COUNCIL OF MINISTERS: APPOINTMENT, RESPONSIBILITY, COMPOSITION

- The Council of Ministers is the **real executive (de facto)**. **Art. 74** gives it the aid-and-advice role

MY NOTES

- The advice **cannot be questioned in any court**

APPOINTMENT AND CONDITIONS (ART. 75)

- **PM** appointed by the President
- **other ministers** by the President **on the PM's advice**
- Ministers hold office **during the President's pleasure**, in practice as long as the Lok Sabha trusts them (Art. 75(3)).
- A non-member minister must become a member of Parliament within **six months** or cease to be a minister (Deve Gowda 1996 entered the Rajya Sabha within six months).
- A minister of one House may **speak** in the other but **vote only in his own**.
- Oath of office and secrecy by the **President**
- Salaries set by Parliament

91ST AMENDMENT ACT, 2003 ON THE UNION COUNCIL

Rule	Detail
Cap	Total ministers, **including the PM**, not more than **15% of the Lok Sabha** strength
Defection	An MP disqualified for defection under the **Tenth Schedule** cannot be appointed minister

> **HANDOUT ALERT**
> Handout alert: PYQ 2022 states the Constitution classifies ministers into four ranks (false). The Constitution does **not** classify ministers; the ranks arise by **convention** (see composition below). The 15% cap **is** constitutional (91st Amendment).

OATH (ART. 75(4)) AND SALARIES (ART. 75(6))

- Oath of office (true faith and allegiance, sovereignty and integrity, duties without fear or favour) and **Oath of Secrecy** (not to disclose any matter that comes before the Council).
- **Salaries under the Salaries and Allowances of Ministers Act, 1952**: MP's basic pay plus allowances. **Sumptuary allowance per month**: PM **Rs. 3,000**, Cabinet Minister **Rs. 2,000**, Minister of State **Rs. 1,000**, Deputy Minister **Rs. 600**.
- **Shortcut: Numbers. 3-2-1-0.6** thousand: PM, Cabinet Minister, MoS, Deputy Minister (sumptuary allowance).

MY NOTES

RESPONSIBILITY OF MINISTERS

THREE KINDS OF RESPONSIBILITY

Kind	Content
Collective (Art. 75(3))	Council is responsible to the **Lok Sabha**; "swims or sinks together". A **no-confidence** vote makes **all** ministers (including Rajya Sabha ones) resign. Cabinet decisions bind all; a minister who cannot defend one must **resign** (Ambedkar 1953, Hindu Code Bill; C.D. Deshmukh, Reorganisation of States; Arif Mohammad Khan 1986, Muslim Women (Protection of Rights on Divorce) Act)
Individual (Art. 75(2))	Each minister answers for his department; holds office at the President's pleasure, used **on the PM's advice**. Example: **A. Raja (2010)** resigned over the 2G spectrum allegations. Ambedkar: collective responsibility works only through the PM, who nominates and dismisses
No legal responsibility	In Britain a minister **countersigns** the King's orders and can be held liable in court. In India **no countersignature** is required and courts cannot inquire into the advice; ministers are politically accountable, not legally liable

- **Memory aid (Responsibility):** **C**ollective, **I**ndividual, **N**o legal: "**C**ats **I**gnore **N**oise".

NATURE OF ADVICE: TWO CASES

SUPREME COURT ON MINISTERIAL ADVICE

Case	Holding
U.N.R. Rao v. Indira Gandhi (1971)	Even after dissolution of the Lok Sabha, the Council continues; the President cannot use executive power without its aid and advice; acting otherwise breaches Art. 74
Shamsher Singh v. State of Punjab (1974)	"Satisfaction of the President" means the **satisfaction of the Council of Ministers**, not his personal satisfaction

COMPOSITION AND RANKS

RANKS OF MINISTERS

Rank	Role
Cabinet Minister	Heads key portfolios (Defence, Home, Finance, External Affairs); the core policy body; chaired by the PM. "Steering wheel of the ship of the State" (Ramsay Muir)
Minister of State (Attached)	Assists a Cabinet Minister in specific areas
Minister of State (Independent Charge)	Heads a smaller ministry with all functions of a Cabinet Minister but is **not in the Cabinet**; attends only when invited

MY NOTES

Rank	Role
Deputy Minister	Assists a Cabinet Minister or MoS; **no independent charge**; the rank is rarely used now

- **Kitchen Cabinet (Inner Cabinet)**:
  - The PM and a few trusted colleagues who discuss sensitive matters before Cabinet
  - Efficient and confidential, but may dilute the Cabinet and let non-elected advisers influence decisions. Under Indira Gandhi it was powerful, with **P.N. Haksar and D.P. Dhar**
- The word "**Cabinet**" came into the Constitution by the **44th Amendment (1978)** and appears **only once, in Art. 352(3)**: a national Emergency cannot be proclaimed without the Cabinet's **written advice**.
- **Memory aid (Ranks): C**abinet Minister, **M**inister of State (attached, independent charge), **D**eputy Minister: "**C**atch **M**y **D**eputy".

COUNCIL OF MINISTERS VERSUS CABINET

Basis	Council of Ministers	Cabinet
Composition	All categories: Cabinet Ministers, MoS (Independent Charge), Deputy Ministers	Smaller inner circle of senior ministers heading key departments
Size	About **40 to 60**, within the 15% ceiling	About **15 to 20**
Decision-making	Implements Cabinet decisions; seldom meets as a whole for policy	**Real decision-making authority**; meets regularly
Scope of power	Broader but mostly **advisory**	Supreme authority in policy, coordination and control
Constitutional mention	**Arts. 74 and 75**	Only **Art. 352(3)**
Accountability	Collectively responsible to the Lok Sabha	Maintains unity, coherence and collective accountability

ALSO IN THE HANDOUT

- To maintain confidentiality and stability in governance, the advice tendered by ministers cannot be questioned in any court of law.
- Ambedkar explained this linkage succinctly: “Collective responsibility can be achieved only through the instrumentality of the Prime Minister.

MY NOTES

CABINET COMMITTEES AND GROUPS OF MINISTERS

CABINET COMMITTEES

- They ease the Cabinet's workload by detailed examination before decisions.
- **Extra-constitutional**: they derive from the **Government of India (Transaction of Business) Rules, 1961**, framed under **Art. 77(3)**.
- **Formed by the PM**, who decides number, names and membership
- Typically **six to eight standing** committees plus **ad hoc** ones. Each has **3 to 8 members**
- Ministers of State may be included when their subjects are discussed
- The **PM chairs the crucial ones**
- Others are chaired by the Home or Defence Minister when delegated
- The **Cabinet Secretariat** provides staff, agenda papers and records decisions. Aim: **specialisation, coordination, speed**.

EIGHT CABINET COMMITTEES AS LISTED IN THE HANDOUT

Committee	Head	Role
Political Affairs (CCPA) ("Super Cabinet")	PM	Centre-State relations; political coordination; disputes among ministries; foreign affairs and internal political developments
Economic Affairs (CCEA)	PM	Economic and industrial policy; investment approvals, pricing, subsidy
Security (CCS)	PM	Defence, national security, intelligence coordination; defence procurement; internal security during emergencies
Parliamentary Affairs	**Minister of Defence** (senior-most after PM)	Legislative business; sessions; Bills
Investment and Growth	PM	Large-scale investment; removes policy bottlenecks
Employment and Skill Development (created **2019**)	PM	Jobs, skills, labour market reforms
Accommodation	**Minister of Home Affairs**	Allocation of government accommodation; rent norms, retention, eviction

MY NOTES

Committee	Head	Role
Appointments	PM	Top-level appointments, transfers and promotions; Secretaries, Directors, heads of PSUs and constitutional bodies

- **Memory aid (Eight committees):** **P**olitical, **E**conomic, **S**ecurity, **P**arliamentary, **I**nvestment, **E**mployment, **A**ccommodation, **A**ppointments: "**P**M **E**xpects **S**tellar **P**erformance, **I**ntelligent **E**ffort, **A**ccurate **A**nswers".
- **Shortcut:**
  - **Shortcut. PM heads six of the eight**
  - **Parliamentary Affairs: Defence Minister**
  - **Accommodation: Home Minister**

> **HANDOUT ALERT**
> Handout alert: The handout says "six to eight standing committees" in the features but lists **eight** as functioning at present. Use **eight** (with the list above) for the present-day list; the Cabinet Committee on Employment and Skill Development was created in 2019.

FUNCTIONS OF CABINET COMMITTEES

Function	Example
Policy formulation	Detailed examination before the full Cabinet
Administrative coordination	CCEA brings together Finance, Commerce and Industry
Dispute resolution	CCPA settles differences among ministries and Centre-State issues
Crisis and security	CCS handles war, terrorism, internal disturbances
Personnel	Appointments committee: transfer, posting and promotion of senior officers
Legislative management	Parliamentary Affairs: session timing and discussion hours
Economic and social development	Economic Affairs and Employment and Skill Development

- Significance: efficient decisions, **specialisation**, upholds **collective responsibility (Art. 75(3))**, strengthens the PM's leadership, inter-ministerial cooperation, continuity when the Cabinet is not in session, and acts as a policy think tank.

MY NOTES

GROUPS OF MINISTERS (GOMS)

GROUPS OF MINISTERS

- **Nature:**
  - **Ad hoc**, temporary, **issue-specific** bodies of ministers from the concerned departments
  - Some may **take final decisions** for the Cabinet while others only **recommend**
  - Dissolved automatically after the task
- **Second ARC (2005-2009):**
  - Proliferation caused **delays**
  - Recommended **selective use**
  - Only **time-bound** GoMs with clear mandates and decision powers
  - In **2024** two informal GoMs (iGoMs) were set up for economic and social reforms (Viksit Bharat by 2047)

ALSO IN THE HANDOUT

- Their composition can change according to administrative needs and political priorities.
- It plays a key role in boosting industrial development, infrastructure expansion, and economic growth.
- It reviews the performance of national skill missions and major employment programmes across sectors.
- It regulates rental norms, retention periods, and eviction procedures for government residences.
- Encourages Specialisation and Expertise: Each committee focuses on a specific area, allowing ministers with relevant experience to contribute more effectively.
- Enhances Inter-Ministerial Cooperation: Committees provide a common platform for ministries with overlapping areas of work to deliberate jointly and avoid duplication.
- Acts as Policy Think Tank: Cabinet Committees serve as forums for policy brainstorming and evaluation of existing programmes, improving decision quality.
- They are constituted when the subject involves multiple ministries — for example, reforms in infrastructure, education, health, or trade.

CABINET SECRETARIAT, CABINET SECRETARY, PMO AND CENTRAL SECRETARIAT

CABINET SECRETARIAT

- A **principal staff agency** that supports the Cabinet, its committees and the PM

MY NOTES

- It works under the **PM's direction** (the PM is the Chairperson of the Cabinet)

FUNCTIONS OF THE CABINET SECRETARIAT

- **Core functions:**
  - Secretarial assistance to Cabinet and committees (**agenda, minutes**, circulation, objections) so that **collective responsibility** works
  - Implements the **rules of business**
  - **chief coordinating agency**
  - Keeps the President and ministers informed by a **monthly summary**
  - Can promote new policy initiatives
- **PYQ 2014 and 2009:**
  - Preparation of **agenda for Cabinet meetings** and **secretariat assistance to Cabinet Committees** are its functions
  - **allocation of financial resources to ministries** is not. The Cabinet Secretariat works under the **PM**, not the Ministry of Parliamentary Affairs

CABINET SECRETARY

- Heads the Secretariat
- The **senior-most position an IAS officer** can reach
- Head of the civil services
- **11th rank** in the Table of Precedence (PYQ 2000: CJI, Cabinet Ministers, CEC, Cabinet Secretary in that order)
- **Principal adviser to the PM**
- "conscience keeper" of the civil service
- A **buffer** between the political executive and the civil service
- **Presides** over the conference of Chief Secretaries
- **chairs the Civil Services Board** that advises the Cabinet Committee on Appointments (PYQ 2015: the PM is **not** ex-officio chairman of it)
- Since **2010**: minimum tenure of **2 years**, may go beyond retirement age and is extendable by 2 years.
- **N.R. Pillai** was the first
- **Rajiv Gauba** is the present Cabinet Secretary

PRIME MINISTER'S OFFICE (PMO)

HOW THE PMO GREW

- **1947**: **Prime Minister's Secretariat (PMS)** created, first as an institutionalised private secretary

MY NOTES

- **1977**: **Janata Party** government renames it **PMO** to show it would restore the status of Nehru's time, after Indira Gandhi's centralising PMS
- **Indira Gandhi**: PMO took decisions like bank nationalisation, abolition of privy purses, imposing Emergency, intelligence reports, appointments
- **Rajiv Gandhi**:
  - PMO called the "**government of government of India**"
  - Cabinet Secretariat became its implementation arm
- **Members**: a Minister of State, the **Principal Secretary** (presently P.K. Mishra), the **National Security Advisor** and others.
- **Functions**:
  - Examines references and files for the PM
  - Helps the PM as "CEO of the country"
  - Handles departments in his **direct charge, such as atomic energy and space** (PYQ 2009: the **Department of Atomic Energy** is under the PMO)
  - Work as **NITI Aayog chairperson**
  - **public relations**
  - Any issue not under any ministry (hence "**residual legatee**")
  - Manages funds like **PM Relief Fund, PM National Defence Fund, PM CARES Fund**
- Its role reflects the PM's **personality and strength**
- Generally **weak in coalition governments**. As it strengthens, the **Principal Secretary** becomes more powerful than the Cabinet Secretary
- **Need**:
  - Continuity through the Principal Secretary's stable tenure
  - Coordination among ministries
  - Liaison with the offices of other countries' heads. It must **work through the system, not bypass it**

CABINET SECRETARIAT VERSUS PMO

Point	Cabinet Secretariat	PMO
Serves	Cabinet collectively, its committees and the PM	The PM personally
Head	Cabinet Secretary (senior-most IAS officer, 11th in precedence)	Principal Secretary (presently P.K. Mishra)
Origin	Principal staff agency	PMS 1947, PMO from 1977

MY NOTES

Point	Cabinet Secretariat	PMO
Special role	Chief coordinating agency; monthly summary; rules of business	"Residual legatee"; PM's funds; direct-charge departments

- **Memory aid (PMO): P**MS 1947, **M**ade PMO 1977, **O**ffice of "residual legatee": "**P**ut **M**e **O**n top".

CENTRAL SECRETARIAT

- The Government works on a "**split system**":
  - Ministries divide into **policy making** (generalist bureaucrats) and **implementation** (specialists). Examples: Health Department (policy) and Directorate of Health (implementation)
  - Home department and Directorate General of Police
- The **headquarters of all central ministries together** form the Central Secretariat, responsible for administering **Union List** subjects.
- **Functions**:
  - Policy advice (facts, figures, Supreme Court judgments)
  - **legislative** work (draft Bills, briefing ministers for Questions)
  - Ministry **budget**
  - **general supervision** without day-to-day implementation
  - **clearing house** of decisions
  - **institutional memory**
  - Continuity
  - Channel between ministries, Centre and States, and bodies like the **CAG and UPSC**

> **HANDOUT ALERT**
> Handout alert: The PYQ tail of the handout (Q45, Q46) is cut off in places. Q46 (1995): the **Finance Minister being a Lok Sabha member** or **all parts of India being represented** in the Council of Ministers are **conventions not written in the Constitution**; the answer given is (c), "all parts of India are to be represented in the Council of Ministers", and the Q45 PM question's answer is (c), "full discretion in the choice of ministers" (the handout's own key).

ALSO IN THE HANDOUT

- Qualifications Candidates must satisfy constitutional requirements such as citizenship, minimum age, and eligibility criteria.
- This speech outlines the government's policies and legislative priorities, serving as a bridge between the Executive and the Legislature.
- This reform created a constitutional dialogue mechanism — giving the President space to exercise caution, without disrupting the principle of responsible government.

MY NOTES

- To elaborate, if all cabinet members are standing in a line, the Prime Ministry would stand ahead of the line.
- The PM acts as the chief coordinator, ensuring that the policies and actions of various ministries align with the government's overall direction.
- He leads the nation's coordinated response, directing ministries, security agencies, and state governments to maintain stability and public confidence.
- Its composition is determined by the Prime Minister, who considers seniority, political experience, regional balance, and coalition requirements while forming the team.
- It also ensures that all decisions taken by committees are properly recorded, communicated, and implemented.
- The position has been accorded the 11 th rank in the Table of Precedence.
- He is often regarded as the conscience keeper of the civil service of the nation -whatever behavior he/she displays
- It tends to percolate down the line
- Any issue that does not fall under purview of any ministry is also looked after by the PMO.
- Its role waxes and wanes depending on the stature of the Prime Minister.
- It is said that the PMO is one of the youngest organizations in the government, yet one of the most powerful ones.
- Exercise general supervision over implementation of the policies without getting involved in the day-to-day implementation.
- The Secretariat is a headquarter organization, supposed to be involved in the process of policy making.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 18-22

- Impeachment procedure (Art. 61):
  - Charges start in either House, signed by one-fourth of its members, with 14 days' notice to the President
  - Passed by two-thirds of total membership, then the other House investigates (the President may appear or be represented) and must also pass it by two-thirds of total membership. Nominated MPs take part
  - State MLAs do not
- Winning quota in the Presidential poll = (valid votes polled / (seats to be filled + 1)) + 1. The Constituent Assembly objected that 'proportional representation' is a misnomer for a single post, and that 'single transferable vote' is odd because every voter has many votes
- It is better called a preferential vote

MY NOTES

- In 1997 the nomination was raised to 50 proposers and 50 seconders (earlier 10 each) and the deposit to Rs. 15,000 (earlier Rs. 2,500), to discourage non-serious candidates.
- More Bills needing the President's prior recommendation: expenditure from the Consolidated Fund, boundary change or new State, changing the meaning of 'agricultural income', changing how money is distributed to States, and a surcharge for the Centre. A State Bill restricting trade needs his previous sanction.
- Emergency powers (the handout leaves this heading empty):
  - Art. 352 national emergency (war, external aggression, armed rebellion; Fundamental Rights can be suspended except Arts. 20 and 21)
  - Arts. 356 and 365 President's Rule
  - Art. 360 financial emergency (salaries of all, even judges, can be cut)
- Veto details:
  - The US President must return a Bill within 10 days, so the Indian pocket is called bigger. PEPSU 1954 Bill was passed under President's Rule that was revoked before assent
  - The 1991 MPs' salary Bill was passed without the President's prior recommendation. The 1986 Post Office Bill was sent back in 1989 by Venkataraman, but the new National Front Government dropped it
- An ordinance can be issued when only one House is in session. It can be retrospective, can amend or repeal an Act and alter a tax law, and is made only on the Council's advice.
- Pardon:
  - The Governor (Art. 161) cannot pardon a court martial sentence or a death sentence
  - He can only suspend, remit or commute a death sentence. Both he and the President hold that concurrent power
- PM appointment: in a hung House the leader is asked to prove confidence within a month. After Nehru's and Shastri's deaths Gulzari Lal Nanda acted as PM. The Delhi HC list of appointed-first PMs also includes Narasimha Rao 1991, Deve Gowda 1996, Gujral 1997 and Vajpayee 1998.
- Parliamentary Secretaries are not in the Council of Ministers: the PM appoints them, they hold no department, and they assist senior ministers in Parliament. The full Council does not meet as a body, while the Cabinet usually meets once a week.
- Lakshmikanth differs:
  - For the VP's removal it says a 14 days' advance notice is needed (the handout says no 14-day notice rule applies). Use the handout for class

MY NOTES

- Remember that LK has the notice

- Lakshmikanth differs: it dates the six-month rule for a non-member PM to a 1996 Supreme Court ruling (the handout gives S.P. Anand v. Deve Gowda 1997). For D.C. Wadhwa it gives 1986 and exactly 256 ordinances kept alive for 1 to 14 years (the handout says 1987 and over 250). Use the handout's years for the class.

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Where is the Union Executive in the Constitution?	Part V, Chapter I (Arts. 52-78): President, Vice-President, Council of Ministers with the PM, Attorney-General.
Why does Art. 52 say "shall"?	The office of President can never be abolished and shall never remain vacant.
Who is in the Presidential Electoral College?	Elected MPs and elected MLAs of States (including Delhi and Puducherry, 70th Am. 1992). Nominated members and MLCs are excluded.
What happens to an MLA's vote when an Assembly is dissolved?	The members are no longer elected representatives and lose the right to vote.
How is the value of an MLA's vote fixed?	By State population (1971 Census, 84th Am. 2001) in proportion to its number of elected MLAs; every elected MP's vote is equal.
2022 MLA vote values in the handout?	Uttar Pradesh 208, Maharashtra 175, Sikkim 7. MP vote: 700 (the handout also says 708 elsewhere).
Method of Presidential election?	Proportional Representation by Single Transferable Vote, secret ballot, under the Election Commission.
Who is the Returning Officer for the President's election?	Secretary General of Lok Sabha and of Rajya Sabha, by rotation.
Who is the only President elected after second preference votes?	V.V. Giri (1969). Only unopposed President: Neelam Sanjiva Reddy (1977).
Security deposit and nomination for President?	Rs. 15,000 (forfeited below 1/6th of votes needed to win); 50 proposers and 50 seconders.

Who decides disputes about the President's election?	The Supreme Court (Art. 71), final. Petition by the losing candidate or 20 or more electors; acts before a void judgment stay valid.
Qualifications of President (Art. 58)?	Citizen; 35 years; qualified for the Lok Sabha; no office of profit.
President's immunity (Art. 59)?	No criminal proceedings during the term, no arrest; civil proceedings for personal acts only after two months' notice.
Who administers the President's oath?	The Chief Justice of India, or in his absence the senior-most Judge of the Supreme Court.
Vacancy: who acts and how long to elect?	Vice-President, then CJI or senior-most SC Judge; fresh election within six months; full five-year term.
Ground and record for impeachment of President?	Violation of the Constitution (Art. 61), quasi-judicial; no President has been impeached.
How many members does the President nominate to the Rajya Sabha?	12 (literature, science, art, social service).
Which Bills need the President's prior recommendation?	Art. 3 (State reorganisation), Art. 110 (Money Bills), Art. 274 (taxation in which States are interested), Art. 304 (trade restrictions).
Name the three vetoes with a case each.	Absolute (PEPSU 1954; MPs' salary 1991); suspensive (Kalam 2006, Office of Profit Bill); pocket (Zail Singh 1986, Indian Post Office Bill). No qualified veto.
Four conditions of an ordinance (Art. 123)?	Parliament not in session; immediate necessity; same competence as Parliament (cannot amend Constitution); laid before Parliament and ceases six weeks after reassembly.
Maximum life of an ordinance?	About six months and six weeks.
Which cases govern ordinances?	R.C. Cooper (1970), A.K. Roy (1982), D.C. Wadhwa (1987: re-promulgation a fraud on the Constitution).
Three classes of cases under Art. 72?	Union law offences, court martial sentences, death sentences.

MY NOTES

Define the five clemency powers.	Pardon (erases conviction), commutation (lighter kind), remission (shorter duration), respite (lesser punishment for special circumstances), reprieve (temporary stay).
Three pardon cases and their rule?	Maru Ram 1980 (Cabinet advice, review for mala fides); Kehar Singh 1988 (no oral hearing, can re-examine evidence); Shatrughan Chauhan 2014 (delay and mental illness can justify commutation).
What did the 42nd and 44th Amendments do to Art. 74?	42nd (1976): advice binding. 44th (1978): President may once send it back for reconsideration, then he must act on it.
Which President sent back the UP President's Rule advice and when?	K.R. Narayanan, 1997.
Art. 143(1) versus 143(2)?	(1) discretionary reference, the Court may decline; (2) mandatory for pre-constitutional treaties and agreements; Art. 145(3): five judges.
Voters and nomination in the Vice-President's election?	Only MPs (nominated included), one vote each; 20 proposers and 20 seconders; qualified for the Rajya Sabha.
Where is the Vice-President's removal moved?	Only in the Rajya Sabha, passed by an effective majority of its then members and agreed by the Lok Sabha by a simple majority.
Which six Vice-Presidents became Presidents?	Radhakrishnan, Zakir Husain, V.V. Giri, R. Venkataraman, Shankar Dayal Sharma, K.R. Narayanan.
Maximum period the VP acts as President?	Six months.
Two views of the PM's position?	Primus inter pares (first among equals) versus luna inter stellas minores (a moon among lesser stars).
Can a non-member be PM?	Yes, but must become a member of either House within six months (S.P. Anand v. Deve Gowda 1997).
Who appointed Charan Singh and Rajiv Gandhi?	Neelam Sanjiva Reddy (Charan Singh 1979) and Zail Singh (Rajiv Gandhi 1984).

MY NOTES

What does the PM's resignation do?	Dissolves the whole Council of Ministers; another minister's resignation or death only creates a vacancy.
Three kinds of ministerial responsibility?	Collective (Art. 75(3), to Lok Sabha), individual (at President's pleasure on PM's advice), no legal responsibility (no counter-signature).
What does the 91st Amendment do for the Union Council?	Ministers including the PM not more than 15% of the Lok Sabha; defectors cannot be ministers.
Where does "Cabinet" appear in the Constitution?	Only Art. 352(3) (44th Am. 1978).
Council of Ministers versus Cabinet size?	Council: about 40 to 60. Cabinet: about 15 to 20.
Who heads which committees apart from the PM?	Parliamentary Affairs: Minister of Defence. Accommodation: Minister of Home Affairs.
What is a Group of Ministers?	An ad hoc, issue-specific body, dissolved after the task; the Second ARC wanted selective, time-bound GoMs.
What is the Cabinet Secretary's rank and tenure?	11th in the Table of Precedence; minimum two years since 2010, extendable by two years.
PMS to PMO?	PMS created 1947; renamed PMO in 1977 by the Janata Party government; the PMO is the residual legatee.

MY NOTES

Mains 2014: Instances of the President's delay in commuting death sentences	Intro: Art. 72 lets the President grant pardon, reprieve, respite, remission, suspension or commutation for Union-law offences, court martial and death sentences, on the aid and advice of the Council of Ministers Body: The Constitution fixes no time limit for the President's action on Bills and none is stated for mercy petitions in the notes; Shatrughan Chauhan (2014) held that inordinate delay and mental illness can justify commutation and that convicts and families must be informed before execution; Maru Ram (1980) and Kehar Singh (1988) allow judicial review only for arbitrary, irrational, discriminatory or mala fide use; the power corrects judicial errors and extends mercy. Close: The notes support judicial safeguards against delay rather than a fixed outer limit on the President.
Mains 2014: The size of the cabinet should be as big as governmental work justifies	Intro: The Council of Ministers is capped at 15% of the Lok Sabha by the 91st Amendment, while the Cabinet is a small inner body Body: Council of about 40 to 60 versus Cabinet of about 15 to 20; Cabinet Committees (eight) and Groups of Ministers split the workload; Second ARC found GoMs delayed work and urged time-bound ones; Kitchen Cabinet can dilute the formal Cabinet; the notes link efficiency to specialisation and coordination, not to size alone. Close: Efficiency depends on structure and coordination, not on headcount alone.

Trap 1 · Who votes for whom

Nominated MPs and MLCs do not vote for the President, but nominated MPs do vote for the Vice-President. *Rule: President = elected members only (MPs plus MLAs); Vice-President = all MPs, nominated too, and no MLAs.*

Trap 2 · Which Bills can be returned

The President can return only an ordinary Bill. A Money Bill cannot be returned, and a Constitutional Amendment Bill can be neither returned nor withheld. *Rule: only ordinary Bills can be returned; Amendment Bill = assent is mandatory (24th Am.).*

MY NOTES

Trap 3 · 42nd versus 44th Amendment

The 42nd (1976) made the Council's advice binding; the 44th (1978) let the President send it back once. *Rule: 42nd = binding, 44th = one reconsideration, then he must act.*

Trap 4 · Council is not Cabinet

The 15% cap is for the Council of Ministers, and the word Cabinet appears only in Art. 352(3). *Rule: Council = Arts. 74-75 (about 40 to 60); Cabinet = Art. 352(3) only (about 15 to 20).*

QUICK QUIZ

Q1. Which Article declares that "There shall be a President of India"?

1. Article 52
2. Article 53
3. Article 54
4. Article 74

Q2. Who is part of the Electoral College for electing the President?

1. Nominated members of Parliament
2. Members of State Legislative Councils
3. Elected members of State Legislative Assemblies including Delhi and Puducherry
4. Members of the Anglo-Indian community

Q3. The value of the vote of each elected MLA in the Presidential election depends on:

1. Population (1971 Census) of the State and its number of elected MLAs
2. Number of Legislative Council members
3. The Union Territory's area
4. The latest Census

Q4. Which one of these statements about the Presidential election is correct?

1. The Supreme Court decides disputes and its decision is final
2. Disputes are decided by the Election Commission
3. Disputes go to a Parliamentary Committee
4. A High Court decides disputes

Q5. Who is the Returning Officer in the election of the President?

1. The Chief Election Commissioner
2. The District Collector
3. Secretary General of Lok Sabha or Rajya Sabha by rotation
4. The Chief Justice of India

Q6. If the President's office falls vacant and the Vice-President's post is also vacant, who performs the President's duties?

1. The Prime Minister
2. The Speaker of Lok Sabha
3. The Chief Justice of India or the senior-most Judge of the Supreme Court
4. The Attorney-General

Q7. Under which type of veto does the President take no action on a Bill, which the Constitution does not time-limit?

1. Absolute veto
2. Suspensive veto
3. Qualified veto
4. Pocket veto

MY NOTES

Q8. Which Bill cannot be returned by the President for reconsideration?

1. Ordinary Bill
2. A Bill reserved by the Governor that is not a Money Bill
3. Money Bill
4. A Private Member's Bill

Q9. An ordinance under Article 123 ceases to operate:

1. Six weeks after reassembly of Parliament unless approved
2. Six months after promulgation
3. At the end of the session
4. One year after promulgation

Q10. Which case struck down the repeated re-promulgation of ordinances as a fraud on the Constitution?

1. R.C. Cooper v. Union of India
2. A.K. Roy v. Union of India
3. D.C. Wadhwa v. State of Bihar
4. Kehar Singh v. Union of India

Q11. Substituting a lighter form of punishment (for example, death to life imprisonment) is called:

1. Remission
2. Commutation
3. Respite
4. Reprieve

Q12. Which case held that inordinate delay in deciding mercy petitions can justify commutation of death sentences?

1. Maru Ram (1980)
2. Kehar Singh (1988)
3. Shatrughan Chauhan (2014)
4. A.K. Roy (1982)

Q13. In which House can a resolution to remove the Vice-President be moved?

1. Lok Sabha only
2. Rajya Sabha only
3. Either House
4. Joint sitting

Q14. Which statement about the Vice-President's election is correct?

1. Nominated members of Parliament can vote
2. State Legislatures take part
3. Nomination needs 50 proposers and 50 seconders
4. The vote value differs between MPs

Q15. A person who is not a member of Parliament and is appointed Prime Minister must become a member:

1. Of the Lok Sabha within six months
2. Of either House within six months
3. Of the Rajya Sabha within six months
4. Within one year

Q16. The Council of Ministers, including the Prime Minister, cannot exceed what percentage of the Lok Sabha strength?

1. 10%
2. 12%
3. 15%
4. 20%

Q17. The word "Cabinet" appears in the Constitution in which Article, and by which Amendment?

1. Article 74, 42nd Amendment
2. Article 75, 44th Amendment
3. Article 352(3), 44th Amendment
4. Article 77(3), 42nd Amendment

Q18. Which Cabinet Committee is headed by the Minister of Defence, according to the handout?

1. Security
2. Parliamentary Affairs
3. Economic Affairs
4. Appointments

MY NOTES

Q19. Which of these is a function of the Cabinet Secretariat according to the handout?

1. Allocation of financial resources to the ministries
2. Preparation of agenda for Cabinet meetings
3. Conducting Presidential elections
4. Appointing Governors

Q20. PYQ 2024: With reference to Union Budget, consider the following statements:(2024)
1. The Union Finance Minister on behalf of the Prime Minister lays the Annual Financial Statement before both the Houses of Parliament. 2.At the Union level, no demand for a grant be made except on the recommendation of the President of India.

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q21. PYQ 2023: Consider the following statements: (2023)
1. If the election of the President of India is declared void by the Supreme Court of India, all acts done by him/her in the performance of duties of his/her office of President before the date of decision become invalid.
2.Election for the post of the President of India can be postponed on the ground that some Legislative Assemblies have been dissolved and election are yet to take place. 3.When a Bill is presented to the President of India, the Constitution prescribes time limits within which he/she has to declare his/her assent. How many of the above statements are correct?

1. only one
2. only two
3. All three
4. None

Q22. PYQ 2023: Consider the following statements in respect of election to the President of India: (2023)
1. The members nominated to either House of the Parliament or the Legislative Assemblies of States are also eligible to be included in the Electoral College. 2.Higher the number of elective Assembly seats, higher is the value of vote of each MLA of that state. 3.The value of vote of each MLA of Madhya Pradesh is greater than that of Kerala.
4. The value of vote of each MLA of Puducherry is higher than that of Arunachal Pradesh because the ratio of total population to total number of elective seats in Puducherry is greater as compared to Arunachal Pradesh. How many of the above statements are correct?

1. Only one
2. Only two
3. Only three
4. All four

Q23. PYQ Which one of the following suggested that the Governor should be an eminent person from outside the State and should be a detached figure without intense political links or should not have taken part in politics in the recent past? (2019)

1. First Administrative Reforms Commission (1966)
2. Rajamannar Committee (1969)
3. Sarkaria Commission (1983)
4. National Commission to Review the Working of the Constitution (2000)

MY NOTES

Q24. PYQ 2018: With reference to the election of the President of India, consider the following statements: (2018)
1. The value of the vote of each MLA varies from State to State. 2.The value of the vote of MPs of the Lok Sabha is more than the value of the vote of MPs of the Rajya Sabha. Which of the statements given above is/are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 and 2

Q25. PYQ 2018: Consider the following statements: (2018)
1. No criminal proceeding shall be instituted against the Governor of a State in any court during his terms of office. 2.The emoluments and allowances of the Governor of a State shall not be diminished during his terms of office. Which of the statements given above is/are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q26. PYQ 2013: Which one of the following statements is correct? (2013)

1. In India, the same person cannot be appointed as Governor for two or more States at the same time
2. The judges of the High Court of the States in India are appointed by the Governor of the State just as the judges of the Supreme Court are appointed by the President
3. No procedure has been laid down in the Constitution of India for the removal of a Governor from his/her post
4. In the case of a Union Territory having a legislative setup, the Chief Minister is appointed by the Lt. Governor on the basis of majority support

Q27. PYQ 2012: To the Constitution of India, it is the duty of the President of India to cause to be laid before the Parliament which of the following? (2012)
1. The Recommendations of the Union Finance Commission 2.The Report of the Public Accounts Committee 3.The Report of the Comptroller and Auditor General
4. The Report of the National Commission for Scheduled Castes Select the correct answer using the codes given below:

1. 1 Only
2. 2 & 4 Only
3. 1, 3 & 4 Only
4. 1, 2, 3 & 4

Q28. PYQ 2010: Who of the following shall cause every recommendation made by the Finance Commission to be laid before each House of Parliament? (2010)

1. The President of India
2. The Speaker of Lok Sabha
3. The Prime Minister of India
4. The Union Finance Minister

Q29. PYQ 2008: Who among the following have held the office of the Vice President of India? (2008)
1. Mohammad Hidayatullah 2.Fakhruddin Ali Ahmed 3.Neelam Sanjiva
4. Shankar Dayal Sharma Select the correct answer using the code given below:

1. 1, 2, 3 and 4
2. 1 and 4 only
3. 2 and 3 only
4. 3 and 4 only

MY NOTES

Q30. PYQ 2004: The resolution for removing the Vice-President of India can be moved in the: (2004)

1. Lok Sabha alone
2. Either House of Parliament
3. Joint Sitting of Parliament
4. Rajya Sabha alone

Q31. PYQ Under which Article of the Indian Constitution did the President give his assent to the ordinance on electoral reforms when it was sent back to him by the Union Cabinet without making any changes (in the year 2002)? (2003)

1. Article 121
2. Article 122
3. Article 123
4. Article 124

Q32. PYQ 2003: Consider the following statements: In the electoral college for the Presidential Election in India. (2003)
1. The value of the vote of an elected Member of Legislative Assembly equals 2.The value of the vote of an elected Member of Parliament equals 3.There were more than 5000 members in the latest election Which of these statements is/are correct?

1. 1 and 2
2. Only 2
3. 1 and 3
4. Only 3

Q33. PYQ Which one of the following amendments to the Indian Constitution empowers the President to send back any matter for reconsideration by the Council of Ministers? (2002)

1. 39th
2. 40th
3. 42nd
4. 44th

Q34. PYQ The Presidential election in India, every elected member of the Legislative Assembly of a State shall have as many votes as there are multiples of one thousand in the quotient obtained by dividing the population of the State by the total number of the elected members of the Assembly. As at present (1997) the expression “population” here means the population as ascertained by the: (1997)

1. 1991 Census
2. 1981 Census
3. 1971 Census
4. 1961 Census

Q35. PYQ 1997: Which of the following are/is stated in the Constitution of India? (1997) I. The President shall not be a member of either House of Parliament. II. The Parliament shall consist of the President and two Houses. Choose the correct answer from the codes given below:

1. Neither I nor II
2. Both I and II
3. I alone
4. II alone

Q36. PYQ 1996: Which one of the following is part of the electoral college for the election of the President of India but does not form part of the forum for his impeachment? (1996)

1. Lok Sabha
2. Rajya Sabha
3. State Legislative Councils
4. State Legislative Assemblies

MY NOTES

Q37. PYQ 2022: Consider the following statements: (2022) ● The Constitution of India classifies the ministers into four ranks viz. Cabinet Minister, Minister of State with Independent Charge, Minister of State and Deputy Minister. ● The total number of ministers in the Union Government, including the Prime Minister, shall not exceed 15 percent of the total number of members in the Lok Sabha.

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q38. PYQ 2021: With reference to the Union Government, consider the following statements: (2021)
1. Gopalaswamy Iyengar Committee suggested that a minister and a secretary be designated solely for pursuing the subject of administrative reform and promoting it. 2.In 1970, the Department of Personnel was constituted on the recommendation of the Administrative Reforms Commission, 1966, and this was placed under the Prime Minister's charge.

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q39. PYQ At the national level, which ministry is nodal agency to ensure effective implementation of the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006? (2021)

1. Ministry of Environment, Forest and Climate Change
2. Ministry of Panchayati Raj
3. Ministry of Rural Development
4. Ministry of Tribal Affairs

Q40. PYQ 2016: Consider the following statements: (2016)
1. The Chief Secretary in a State is appointed by the Governor of that State. 2.The Chief Secretary in a State has a fixed tenure

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q41. PYQ 2015: Consider the following statements: (2015)
1. The Executive Power of the Union of India is vested in the Prime Minister. 2.The Prime Minister is the ex-officio Chairman of the Civil Services Board.

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q42. PYQ 2014: Consider the following statements: (2014)
1. The President shall make rules for the more convenient transaction of the business of the Government of India, and for the allocation among Ministers of the said business. 2.All executive actions of the Government of India shall be expressed to be taken in the name of the Prime Minister.

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

MY NOTES

Q43. PYQ 2014: Consider the following pairs: (2014) Programme/Project — Ministry
1. Drought-Prone Area Programme : Ministry of Agriculture 2.Desert Development Programme : Ministry of Environment and Forests 3.National Watershed Development Project for Rainfed Areas : Ministry of Rural Development

1. 1 and 2 only
2. 3 only
3. 1, 2 and 3
4. None

Q44. PYQ 2014: Which of the following is/are the function/functions of the Cabinet Secretariat? (2014) ● Preparation of agenda for Cabinet Meetings ● Secretariat assistance to Cabinet Committees ● Allocation of financial resources to the Ministries

1. 1 only
2. 2 and 3 only
3. 1 and 2 only
4. 1, 2 and 3

Q45. PYQ 2013: Consider the following statements: (2013)
1. The Council of Ministers in the Centre shall be collectively responsible to the Parliament. 2.The Union Ministers shall hold the office during the pleasure of the President of India. 3.The Prime Minister shall communicate to the President about the proposals for legislation.

1. 1 only
2. 2 and 3 only
3. 1 and 3 only
4. 1, 2 and 3

Q46. PYQ 2012: The Prime Minister of India, at the time of his/her appointment: (2012)

1. Need not necessarily be a member of one of the Houses of the Parliament but must become a member of one of the Houses within six months
2. Need not necessarily be a member of one of the Houses of the Parliament but must become a member of the Lok Sabha within six months
3. Must be a member of one of the Houses of the Parliament
4. Must be a member of the Lok Sabha

Q47. PYQ 2009: With reference to Union Government, consider the following statements: (2009) ● The Constitution of India provides that all Cabinet Ministers shall be compulsorily the sitting members of Lok Sabha only. ● The Union Cabinet Secretariat operates under the direction of the Ministry of Parliamentary Affairs.

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q48. PYQ Which one of the following Constitutional amendments states that the total number of Ministers, including the Prime Minister, in the Council of Ministers shall not exceed fifteen percent of the total number of members of the House of the People? (2009)

1. 90th
2. 91st
3. 92nd
4. 93rd

MY NOTES

Q49. PYQ 2009: With reference to Union Government, consider the following statements: (2009)
1. The number of Ministries at the Centre on 15th August 1947 was 18.
2.The number of Ministries at the Centre at present is 36.

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q50. PYQ 2009: With reference to Union Government, consider the following statements: (2009) ● The Ministries and Departments of the Government of India are created by the Prime Minister on the advice of the Cabinet Secretary. ● Each of the Ministries is assigned to a Minister by the President of India on the advice of the Prime Minister.

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q51. PYQ 2009: Under the administration of which one of the following is the Department of Atomic Energy? (2009)

1. Prime Minister's Office
2. Cabinet Secretariat
3. Ministry of Power
4. Ministry of Science and Technology

Q52. PYQ 2008: Department of Border Management is a Department of which one of the following Union Ministries? (2008)

1. Ministry of Defence
2. Ministry of Home Affairs
3. Ministry of Shipping, Road Transport and Highways
4. Ministry of Environment and Forests

Q53. PYQ Which of the following Constitution Amendment Acts seeks that the size of the Councils of Ministers at the Centre and in a State must not exceed 15 percent of the total number of members in the Lok Sabha and the total number of members of the Legislative Assembly of that state, respectively? (2007)

1. 91st
2. 93rd
3. 95th
4. 97th

Q54. PYQ 2007: Consider the following statements: (2007) ● Jawaharlal Nehru was in his fourth term as the Prime Minister of India at the time of his death. ● Jawaharlal Nehru represented Rae Bareilly constituency as a Member of Parliament. ● The first non-Congress Prime Minister of India assumed the Office in the year 1977.

1. 1 and 2
2. 3 only
3. 1 only
4. 1 and 3

Q55. PYQ 2007: MCA-21 is a major initiative taken up by the Government of India in which one of the following areas? (2007)

1. Foreign direct investment in India
2. Attracting international tourists
3. e-Governance
4. Modernization of airports

Q56. PYQ 2007: Who among the following have been the Union Finance Ministers of India? (2007) ● V.P. Singh ● R. Venkataraman ● Y.B. Chavan ● Pranab Mukherjee

1. 1, 2 and 3 only
2. 1, 3 and 4 only
3. 2 and 4 only
4. 1, 2, 3 and 4

MY NOTES

Q57. PYQ 2005: Under which one of the Ministries of the Government of India does the Food and Nutrition Board work? (2005)

1. Ministry of Agriculture
2. Ministry of Health and Family Welfare
3. Ministry of Human Resource Development
4. Ministry of Rural Development

Q58. PYQ 2004: Which of the following pairs is correctly matched? Department – Ministry of the Government of India (2004)
1. Department of Women and Child Development – Ministry of Health and Family Welfare 2.Department of Official Language – Ministry of Human Resource Development 3.Department of Drinking Water Supply – Ministry of Water Resources

1. 1
2. 2
3. 3
4. None

Q59. PYQ The Genetic Engineering Approval Committee, whose permission is required for cultivation of any genetically modified crop such as Bt Cotton in India, is under the Union Minister of: (2003)

1. Agriculture
2. Environment and Forests
3. Commerce and Industry
4. Rural Development

Q60. PYQ 2001: Consider the following organisations: (2001) I. Atomic Minerals Directorate for Research and Exploration II. Heavy Water Board III. Indian Rare Earths Limited IV. Uranium Corporation of India Which of these is/are under the Department of Atomic Energy?

1. I only
2. I and IV
3. II, III and IV
4. I, II, III and IV

Q61. PYQ 2000: Consider the following functionaries: (2000) I. Cabinet Secretary II. Chief Election Commissioner III. Union Cabinet Ministers IV. Chief Justice of India Their correct sequence, in the Order of Precedence is:

1. III, IV, II, I
2. IV, III, I, II
3. IV, III, II, I
4. III, IV, I, II

Q62. PYQ 1999: Transchart is the: (1999)

1. Chartering wing of the Ministry of Surface Transport
2. Container service established by Indian Railways
3. Training institute of maritime studies and research
4. Passenger insurance scheme of Indian Railways

Q63. PYQ 1997: Match List I with List II and select the correct answer by using the codes given below: (1997) List I (Functionaries) – List II (Oaths/Affirmations) I. President of India – (C) Faith and Allegiance to the Constitution of India II. Judges of Supreme Court – (D) Upholding the Constitution and the Law III. Members of Parliament – (A) Secrecy of Information IV. Ministers for the Union – (B) Faithful Discharge of Duties

1. I-C, II-D, III-A, IV-B
2. I-D, II-C, III-B, IV-A
3. I-C, II-D, III-B, IV-A
4. I-D, II-C, III-A, IV-B

Answers: Q1 a, Q2 c, Q3 a, Q4 a, Q5 c, Q6 c, Q7 d, Q8 c, Q9 a, Q10 c, Q11 b, Q12 c, Q13 b, Q14 a, Q15 b, Q16 c, Q17 c, Q18 b, Q19 b, Q20 c, Q21 d, Q22 a, Q23 c, Q24 a, Q25 c, Q26 c, Q27 c, Q28 a, Q29 b, Q30 d, Q31 c, Q32 b, Q33 d, Q34 c, Q35 b, Q36 d, Q37 b, Q38 b, Q39 d, Q40 d, Q41 d, Q42 a, Q43 d, Q44 c, Q45 b, Q46 a, Q47 d, Q48 b, Q49 a, Q50 b, Q51 a, Q52 b, Q53 a, Q54 d, Q55 c, Q56 d, Q57 b, Q58 d, Q59 b, Q60 d, Q61 c, Q62 a, Q63 c

MY NOTES

11 Governor

CHAPTER 11 · HANDOUT: GOVERNOR (PART VI, ARTS. 153-167)

HIGH PRIORITY Mains PYQs quoted: **2018, 2022**

Prelims PYQs: **2013, 2014, 2015, 2018, 2019, 2025**

EXAM LENS

Prelims hooks

- Governor's immunities and emoluments
- discretion mentioned in the Constitution
- customary address in first session of the year
- Sarkaria Commission on an outsider Governor
- Legislative Council Chairman is not nominated by the Governor
- discretionary powers list
- no removal procedure in the Constitution.
- Handout stresses: Eight Prelims PYQs quoted (2025 x2, 2019 x2, 2018, 2015, 2014, 2013) (PYQ section)
- Handout stresses: Immunities (Art. 361) and emoluments not reduced (Art. 158) (Section 6)
- Handout stresses: Discretionary powers: Art. 356 report and reserving Bills are discretionary; appointing Ministers and framing business rules are not (Section 12)
- Handout stresses: Art. 200 (four options, Referential Veto) and Art. 213 (ordinance, six weeks, three presidential-instruction cases) (Sections 8 and 9)
- Handout stresses: No pardon of a death sentence by the Governor; no power in court-martial cases (Section 13)

Mains hooks

- Governor and elected government friction (2018 Delhi question)
- conditions for ordinance power and re-promulgation (2022)
- reforms in appointment (ARC, Sarkaria, NCRWC)
- B.P
- Singhal on removal.

MY NOTES

Nominal head by Arts. 154 and 163, yet with real discretion in a few places: that tension is the whole chapter.

IN SIMPLE WORDS

- Articles **153 to 167** (Part VI) deal with the **State Executive**: Governor, Chief Minister, Council of Ministers and Advocate-General.
- The Governor is the **nominal (constitutional) head** of the State. The real power sits with the Council of Ministers led by the **Chief Minister**.
- The office has a **dual role**: head of the State and **agent of the Centre**.
- The Governor is **appointed** by the President by warrant under hand and seal (Art 155), not elected. The Constituent Assembly chose the **Canadian model** and dropped the American model of election.
- He serves **five years at the pleasure of the President**. Only two written qualifications: **citizen of India, 35 years of age**.
- His powers are executive, legislative, financial and judicial, plus some **discretion** that the President does not have.

Key term	In plain words
Warrant	The written order under hand and seal by which the President appoints the Governor (Art 155).
Pleasure of the President	The Governor holds office at the President's pleasure (Art 156); normal term is five years and he continues until his successor takes charge.
Raj Bhavan	The Governor's official residence; he also draws emoluments fixed by Parliament and they cannot be reduced during his term.
Suspensive veto	If the Legislature passes a returned ordinary bill again, the Governor must give assent. He can only delay, not kill it.
Referential veto	The Governor reserves a bill for the President's consideration (Art 200).
Ordinance (Art 213)	Law-making by the Governor when the Legislature is not in session; it lapses six weeks after the Legislature reassembles.
Situational discretion	Hidden discretion from the political situation, e.g. choosing a CM in a hung Assembly.
Art 361 immunity	No criminal case against the Governor during his term; civil case on personal acts only after two months' notice.

MY NOTES

MEMORY MAP: GOVERNOR

Office and appointment
- Arts. 153-167: Part VI; dual role
- Art. 155: warrant, hand and seal
- Conventions: outsider; CM consulted
- Commissions: ARC, Sarkaria, NCRWC
- Cases: Singhal, Rameshwar, Bommai

Term and position
- Art. 156: pleasure; 5 yrs; 35
- Art. 158, 159: conditions; oath
- Art. 361: immunities
- Arts. 154, 163, 164: nominal head

Executive and legislative
- Executive: appoints; Chancellor
- Legislative: Arts. 168-175, 192
- Art. 200: assent, withhold, ...

Ordinance
- Art. 213: 6 weeks; 3 cases
- Cases: Wadhwa; Krishna Kumar

Governor

Finance and judicial
- Financial: Arts. 202, 207, 267
- Judicial: Art. 161, 217(1), 233, 234

Discretion
- Explicit: reserve Bill; UT; 6th Sch.
- Situational: hung House; dismissal
- Art. 371: special responsibilities

President vs Governor
- Veto: 3 options versus 4
- Pardon: no pardon of death sentence

MNEMONIC · GOVERNOR'S OPTIONS ON AN ORDINARY BILL

S W A T

S Send it to the President (reserve it) | **W** Withhold assent | **A** Assent | **T** Throw it back to the House (return for reconsideration)

The Governor can SWAT a Bill away (withhold, throw it back, send it up) or let it through (assent). The order is rearranged for memory (the four options are unordered). (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · GOVERNOR'S SITUATIONAL DISCRETION, PART 1 (CRISIS POWERS)

H A R D

- **H** Hung Assembly: appoint a CM (also on a CM's sudden death)
- **A** Axe (dismiss) the Council that cannot prove confidence
- **R** Report recommending President's Rule (Art. 356)
- **D** Dissolve the Assembly if the Council has lost its majority

A crisis is HARD for a State, and the Governor must act on his own judgment. Part 1 of 2: the handout's seven situational powers are split into crisis powers (HARD) and routine ones (MIC). Order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · GOVERNOR'S SITUATIONAL DISCRETION, PART 2 (ROUTINE POWERS)

M I C

- **M** Messages to the Legislature, and suspensive or pocket veto over Bills
- **I** Information sought from the CM (Art. 167)
- **C** Centre-State conflict: acts at discretion until the Union instructs

The Governor speaks through the MIC, and his voice carries even without ministerial advice. Part 2 of 2, completing the seven situational powers. Order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · SPECIAL RESPONSIBILITIES OF GOVERNORS

Mighty Governors Naturally Assume Many Special Assignments

- **M** Maharashtra (Art 371(2))
- **G** Gujarat (Art 371(2))
- **N** Nagaland (Art 371A)
- **A** Assam (Sixth Schedule)
- **M** Manipur (Art 371C)
- **S** Sikkim (Art 371F)
- **A** Arunachal Pradesh (Art 371H)

The Governors in these States take on special assignments, in the handout order. Order is free here: no clean word exists, so this sentence is the memory aid. (Memory aid, not from the handout.)

MNEMONIC · WHO GETS APPOINTED AS GOVERNOR (SARKARIA)

E S C A P E

- **E** Ex-bureaucrats (retired)
- **S** Social activists
- **C** Chiefs of the armed services (retired)
- **A** Academicians
- **P** Politicians
- **E** Ex-judges (retired)

Raj Bhavan is often seen as a comfortable ESCAPE for retirees, which is the criticism the handout makes. The order is rearranged for memory (the groups are unordered). (Memory aid, not from the handout.)

MY NOTES

OVERVIEW: THE STATE EXECUTIVE AND THE DUAL ROLE

- Articles **153 to 167** (Part VI) deal with the **State Executive**: Governor, Chief Minister, Council of Ministers and Advocate-General. The Constitution sets up a **parliamentary form** in States, mirroring the Centre. The Governor is the **constitutional head** of a State, like the President at the Union level. Executive power is vested in him (**Article 154**), but he works largely as a **nominal head**
- The real authority is the elected Council of Ministers under the Chief Minister
- **Dual role:** The Governor is (1) **head of the State** and (2) **link and agent of the Union Government**.
- **Memory aid (Five heads of power):** **E**xecutive, **L**egislative, **F**inancial, **J**udicial, **D**iscretionary. Sentence: "**E**very **L**azy **F**ox **J**umps **D**aily." (The handout adds a sixth heading, special responsibilities in certain States, under Discretion.)

HOW AUTHORITY IS SPLIT

- **Formal**: Executive power vested in the Governor (Art. 154), exercised directly or through subordinate officers
- **Real**: Council of Ministers headed by the CM aids and advises (Art. 163), responsible to the Assembly (Art. 164)
- **Agent role**: Acts as the Union's link and agent

ALSO IN THE HANDOUT

- The reasons for rejecting direct election were: - Nominal Head of State: Much like the President at the Union level, the Governor is only a constitutional (de-jure) head with no effective powers.

APPOINTMENT OF THE GOVERNOR

- **Article 155**:
  - The Governor is appointed by the **President by warrant under his hand and seal**. He is **not elected**
  - The post is nominated by the Union executive
- As per convention, the President **consults the Chief Minister** of the State before appointing, to keep Centre-State relations harmonious.
- By convention the appointee should **not belong to the same State**, so he is impartial and free of local pressure.
- One person may be Governor of **two or more States** (**7th Amendment Act, 1956**).
- **Constituent Assembly:** It first considered **direct election** (the American model) but adopted the **Canadian model** of appointment by the Centre.

MY NOTES

CONSTITUTION VERSUS CONVENTION

- **Written rule:**
  - Appointed by the President by warrant (Art. 155)
  - Same person can serve 2 or more States (7th Am. 1956)
- **Convention:**
  - Outsider to the State
  - CM consulted. Both conventions have been violated in some cases

NOMINATED VERSUS ELECTED GOVERNOR

ARGUMENTS AGAINST A NOMINATED GOVERNOR

- **Outsider**: unfamiliar with the local culture, language and ethos.
- **Friction with CMs**: generally aligned to the ruling party at the Centre, so clashes with opposition-run States (the handout names West Bengal and Goa).
- **Erosion of federal principles**: the Centre nominates the head of the State government.
- **Raj Bhavan as a "rehabilitation centre"**: retired politicians or election losers accommodated.
- **Mass removals** when the Centre changes, harming security of tenure and neutrality.
- **Interference** in State politics, including attempts to destabilise elected governments.
- **Memory aid (Six against nomination): O**utsider, **F**riction, **E**rosion of federalism, **R**ehabilitation centre, **M**ass removals, **I**nterference: "**O**ld **F**oxes **E**njoy **R**aj Bhavan **M**ostly **I**dle".

ARGUMENTS AGAINST AN ELECTED GOVERNOR

- **Nominal head**: like the President, a de-jure head acting on ministerial advice, so an election would serve little purpose.
- **Potential friction** with the CM: dual centres of authority, both with popular mandates.
- **Manifesto without authority**: campaign promises he cannot implement.
- **Loss of central control**:
  - The nominee serves as a channel of coordination and limited control
  - Seen as essential for unity and integrity amid separatist tendencies at framing
- **Second-rank candidate**: sidelined persons may win, and the CM may claim a superior mandate.

MY NOTES

- **Memory aid (Five against election): N**ominal head, **P**otential friction, **M**anifesto without authority, **L**oss of central control, **S**econd-rank candidate: "**N**o **P**oll **M**eans **L**ess **S**trife".

ALSO IN THE HANDOUT

- Their unfamiliarity with the local culture, language, and ethos limits their ability to contribute meaningfully to the state's political and administrative affairs.
- Raj Bhavan as a 'Rehabilitation Centre': The office of the Governor has often been misused to accommodate retired politicians or those who have lost elections, thereby diluting the prestige of the institution.
- This has included attempts to destabilize duly elected state governments.
- Hence, electing a Governor would not serve much purpose.
- Both the Governor and the Chief Minister, having popular mandates, may clash and this could result in serious constitutional conflicts.
- Possibility of a 'Second-Rank' Candidate: Elections could throw up situations where less capable or politically sidelined individuals win the governorship.

COMMISSIONS ON THE GOVERNOR

WHAT EACH BODY SAID

Body	Points
ARC-I (1966)	Not burnt-out politicians with long partisan years; avoid lifelong loyalty to one party; no election losers; exclude persons of doubtful integrity (criminal records, corruption allegations); appointment needs **approval of both Houses of Parliament**; **Leaders of Opposition** in both Houses to be consulted
Sarkaria Commission (1983)	First central government commission to study Centre-State relations comprehensively. Observed: usually **no consultation** with the CM, or a mere formality; CM objected yet the same person was appointed; Governors appointed even before a State government was formed
NCRWC (2002)	Appointment on the advice of a **high-level committee**: Prime Minister, Union Home Minister, Speaker of Lok Sabha and the CM of the State concerned

WHO BECOMES GOVERNOR (SARKARIA'S CATEGORIES)

- Politicians (ruling party at the Centre, active and retired)
- Retired bureaucrats
- Retired service chiefs (Defence, Naval, Army)
- Social activists (rare)

MY NOTES

- Academicians (very occasional)
- Retired judges (a few)
- **Memory aid (Six categories): P**oliticians, **B**ureaucrats, **C**hiefs (service), **S**ocial activists, **A**cademicians, **J**udges: "**P**retty **B**irds **C**an **S**ing **A**nd **J**ive".
- **Shortcut: Committee line-up.** NCRWC committee = **PM, Home Minister, Speaker, CM** ("**P**ut **H**ome **S**afe, **C**all"): {{P H S C}}.

> **HANDOUT ALERT**
> Handout alert: PYQ 2019 asks which body suggested an eminent outsider, detached figure without recent political links. The handout's answer key says **Sarkaria Commission (1983)**, yet its own notes list that kind of advice (not burnt-out politicians, no election losers) under **ARC-I 1966**, and the Sarkaria notes only record observations. Use the key (**Sarkaria**) for the PYQ. Also the notes date the NCRWC **2002** while the PYQ option says **2000**; treat NCRWC as the same body.

ALSO IN THE HANDOUT

- Persons with lifelong loyalty to a single political party should be avoided, as such deep-rooted affiliations undermine impartiality.
- The Commission also noted that those appointed as Governors in India typically belonged to the following categories: - Politicians – Primarily from the ruling party at the Centre, both active and retired.
- Broadly, the Governor's powers can be classified into the following categories: ### 1.

JUDICIAL INTERPRETATION ON APPOINTMENT

- Art. 155 gives the power to the President, but the Supreme Court set its limits and conventions.

THREE CASES

Case	Held
B.P. Singhal v. Union of India (2010)	President appoints and removes Governors but both must follow constitutional propriety and non-arbitrariness. "Pleasure of the President" (Art. 156) is **not absolute**. Dismissal cannot rest on political disagreement or a change of party at the Centre. The office is **not an employment under the Union**; it is a constitutional post needing independence and dignity
Rameshwar Prasad v. Union of India (2006)	The Centre must ensure impartiality and constitutional conventions. Misusing the office to influence government formation or to impose President's Rule (Art. 356) violates the basic spirit of the Constitution

MY NOTES

Case	Held
S.R. Bommai v. Union of India (1994)	Governors are crucial for the Centre-State balance. Cautioned against appointing politically affiliated persons or those lacking objectivity; partisan behaviour distorts federal governance

- **Memory aid (Case order): B**ommai 1994, **R**ameshwar 2006, **S**inghal 2010 (oldest to newest). Sentence: "**B**ig **R**ed **S**tamp".

TERM, QUALIFICATIONS, CONDITIONS OF OFFICE, OATH AND IMMUNITIES

TERM AND TENURE (ARTICLE 156)

- Holds office **during the pleasure of the President**.
- Normal term **five years**, continuing **until his successor assumes charge**.
- May **resign** any time by addressing the President.
- May be **transferred or reappointed** to another State.
- **Memory aid (Tenure four): P**leasure, **F**ive years, **S**uccessor takes charge, **R**esign to President: "**P**ut **F**orward **S**ome **R**esignation".

QUALIFICATIONS (ARTICLE 156)

- Only **two**: **citizen of India** and **completed 35 years**. Two conventions (outsider; CM consulted) have also developed, but both have been violated in some cases.

CONDITIONS OF OFFICE (ARTICLE 158)

- Cannot be a member of Parliament or a State Legislature
- If so, vacates the seat on taking office
- Cannot hold any **office of profit**.
- Entitled to an official residence (**Raj Bhavan**) and emoluments, allowances and privileges set by Parliament by law (**Governor's Emoluments Act, 1982**).
- For two or more States, emoluments are **shared** as the President determines.
- Emoluments and allowances **cannot be reduced during his term**.

OATH (ARTICLE 159)

- Administered by the **Chief Justice of the High Court** (or in his absence the senior-most judge). He swears to faithfully execute the office
- To **preserve, protect and defend the Constitution and the law**
- And to devote himself to the service and well-being of the people of the State

MY NOTES

PRIVILEGES AND IMMUNITIES (ARTICLE 361)

- Personal immunity from legal liability for **official acts**.
- During his term **no criminal proceedings** can be instituted against him, even for personal acts, and he **cannot be arrested or imprisoned**.
- **Civil proceedings** for personal acts only after **two months' notice**.

QUICK NUMBERS FOR THE GOVERNOR'S OFFICE

Item	Rule
Qualifications	Citizen; 35 years (Art. 156)
Normal term	5 years, until successor takes charge
Oath given by	HC Chief Justice or senior-most judge (Art. 159)
Criminal proceedings during term	None, not even for personal acts (Art. 361)
Civil proceedings for personal acts	After 2 months' notice
Emoluments	Not reducible during term (Art. 158)

- **Shortcut:**
  - **Prelims anchor.** PYQ 2018 and 2025: "no criminal proceedings" **true**
  - "emoluments not diminished" **true**. Together they appear as the correct pair

CONSTITUTIONAL POSITION OF THE GOVERNOR

- Like the President, the Governor is the nominal executive head. His position rests on three Articles:

ARTICLES 154, 163, 164

Art-icle	Rule
154	Executive power of the State is vested in the Governor, exercised directly or through subordinate officers; makes him the formal head
163	A **Council of Ministers headed by the CM** aids and advises the Governor, **except where he must act in his discretion**; the principle of ministerial responsibility
164	The Council is **collectively responsible to the Legislative Assembly**; real power sits with the elected government

MY NOTES

GOVERNOR VERSUS PRESIDENT: THE POSITION

WHERE THE TWO DIFFER

- **Governor:**
  - Constitution **explicitly allows discretion** in certain matters
  - No amendment made for him, so he is **not bound** to accept ministerial advice in every situation, especially where discretion is permitted
- **President:**
  - **No discretion** mentioned in the Constitution
  - After the **42nd Amendment (1976)** he is **bound** by the Council's advice
- **Memory aid (Two differences): D**iscretion (Governor has it) and **B**inding advice (President is bound since 42nd Am.): "**D**ifferent **B**ut similar".

ALSO IN THE HANDOUT

- ## Difference Between the Constitutional Position of the Governor and the President Although both are nominal executives under the parliamentary system, their positions differ in two important respects: - Discretionary Powers: - The Constitution explicitly allows the Governor to act in his discretion in certain matters.

POWERS: EXECUTIVE AND LEGISLATIVE (INCLUDING ARTICLE 200)

1. EXECUTIVE POWERS

- All executive actions are taken in the Governor's name
- The Council of Ministers does the actual administration

EXECUTIVE POWERS BY TYPE

Type	Powers
Formal	Executive actions in his name; makes rules on the manner of **authenticating** orders and instruments; frames rules for **transaction of business** and allocation of business among Ministers
Appointing	**CM**, and on his advice other Ministers (hold office during pleasure); Minister in charge of **Tribal Welfare** in Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha (Bihar excluded by **94th Amendment, 2006**); **Advocate-General** (fixes his remuneration; holds office during pleasure); **State Election Commissioner** (removal only like a High Court judge); **SPSC Chairman and members** (removable only by the **President**)
Supervisory and informational	Calls for information on administration and legislative proposals from the CM (**Art. 167**); can require the CM to place before the Council a decision taken by one minister but not considered by the Council; can recommend **President's Rule** (Art. 356)

MY NOTES

Type	Powers
Educational	**Chancellor** of State universities: appoints Vice-Chancellors, presides at convocations, maintains standards

- **Memory aid (Governor appoints):** **C**M (and Ministers), **M**inister for tribal welfare (4 States), **A**dvocate-General, **E**lection Commissioner (State), **S**PSC: "**C**ats **M**eet **A**ngry **E**lephants **S**oftly". Note: SPSC removal belongs to the President.

2. LEGISLATIVE POWERS

- The Governor is an **integral part of the State Legislature** (**Art. 168**). His powers mirror the President's, acting mostly on ministerial advice but at discretion in some matters (like reserving Bills).

RELATIONS WITH THE LEGISLATURE

Power	Details
Summon, prorogue, dissolve the Assembly (Art. 174)	On the Council's advice. **Nabam Rebia (2016)**: the power to summon is not solely the Governor's; it is exercised with the aid and advice of the Council of Ministers, not at his own
Address	At the first session after each general election and the **first session of each year**, outlining government policy (PYQ 2019)
Messages (Art. 175)	To one or both Houses on a pending Bill or any other matter
Presiding officers	If Speaker and Deputy Speaker are both vacant, appoints an Assembly member to preside; likewise a Council member if Chairman and Deputy Chairman are vacant
Nomination (Art. 171)	**One-sixth** of the Legislative Council: special knowledge or practical experience in literature, science, art, cooperative movement, social service
Disqualification (Art. 192)	Decides disqualification of members (other than under the Tenth Schedule) in consultation with the **Election Commission**

- **Memory aid (Council nominees):** **L**iterature, **S**cience, **A**rt, **C**ooperative movement, **S**ocial service: "**L**et **S**ome **A**rtists **C**ome **S**oon".

ASSENT TO BILLS (ARTICLE 200)

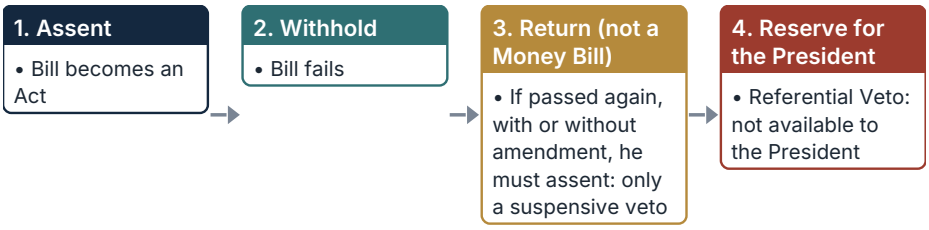
FOUR OPTIONS ON A BILL PASSED BY THE STATE LEGISLATURE

- **1. Assent**: Bill becomes an Act
- **2. Withhold**: Bill fails
- **3. Return (not a Money Bill)**: If passed again, with or without amendment, he **must assent**: only a suspensive veto

MY NOTES

- **4. Reserve for the President**: Referential Veto: not available to the President

FOUR OPTIONS ON A BILL PASSED BY THE STATE LEGISLATURE



- **Memory aid (Four options):** **A**ssent, **W**ithhold, **R**eturn, **R**eserve: "**A**ll **W**ild **R**abbits **R**un".

WHEN HE RESERVES A BILL

Kind	Cases
Mandatory	Bill that in his opinion **endangers the position of the High Court** (Art. 200, second proviso)
Discretionary	(i) Ultra vires the Constitution; (ii) contrary to DPSPs; (iii) against the larger national interest; (iv) of grave national importance; (v) compulsory acquisition of property under Art. 31A (before the 44th Amendment)

- **Memory aid (Discretionary reservation):** **U**ltra vires, **D**PSP-contrary, **N**ational interest, **G**rave importance, **A**rt. 31A acquisition: "**U**nder **D**iscussion, **N**o **G**overnor **A**grees".

REPORTS LAID BEFORE THE LEGISLATURE

- The Governor causes to be laid: reports of the **State Finance Commission**, the **State Public Service Commission**, and the **CAG** on State accounts.

ALSO IN THE HANDOUT

- These discretionary powers are grouped as follows: 1.

ORDINANCE-MAKING POWER (ARTICLE 213)

CONDITIONS

- Only when both Houses (bicameral) or the Assembly (unicameral) are **not in session**.
- Governor must be **personally satisfied** that circumstances need immediate action.
- Only within the State's legislative competence
- Beyond it, the Ordinance is **void ab initio**

MY NOTES

HANDOUT ALERT

Handout alert: The bullets say the Governor can issue an Ordinance only when **both Houses** are not in session. The comparison table says he can issue one when **either House** is not in session, "since a law requires approval of both Houses". The table's reasoning mirrors the President's rule; **use the table version** (either House not in session), and note the handout is inconsistent.

PRIOR PRESIDENTIAL INSTRUCTIONS (THREE CASES, PROVISO TO ART. 213(1))

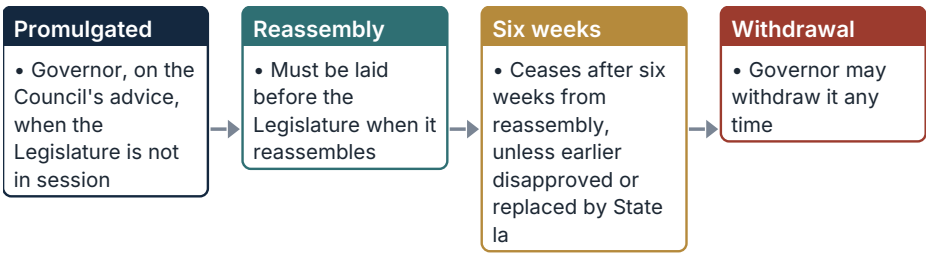
- A Bill with the same provisions would have needed the President's **previous sanction** for introduction.
- He would have thought it necessary to **reserve** such a Bill for the President.
- An Act with similar provisions would be **invalid unless reserved and assented** by the President.
- **Memory aid (Three cases): S**anction, **R**eserve, **I**nvalid without assent: "**S**tate **R**ules **I**nstruct".

DURATION AND CONTROL

LIFE OF AN ORDINANCE

- **Promulgated**: Governor, on the Council's advice, when the Legislature is not in session
- **Reassembly**: Must be **laid before the Legislature** when it reassembles
- **Six weeks**:
  - Ceases after **six weeks from reassembly**, unless earlier disapproved or replaced by State law
  - If Houses meet on different dates, count from the **later date** (Explanation to Art. 213(2))
- **Withdrawal**: Governor may withdraw it any time

LIFE OF AN ORDINANCE



SCOPE, VALIDITY, REPUGNANCY

- Same force as an Act of the State Legislature, but cannot override constitutional limits.

MY NOTES

- **Judicial review**: can be struck down for mala fide intent or lack of immediate necessity (**D.C. Wadhwa v. State of Bihar, 1987**).
- **Art. 213(3)**: a provision invalid in an ordinary State law is void in an Ordinance.
- **Art. 254 link**: an Ordinance on a Concurrent List matter conflicting with a Parliamentary law is ordinarily **void to the extent of repugnancy**. But if promulgated **with prior Presidential instructions**, it is treated as a State law reserved for and assented to by the President and **prevails in that State** (proviso to Art. 213(3) with Art. 254(2)). **Parliament** can still override it later.

TWO CASES TO REMEMBER

Case	Held
D.C. Wadhwa v. State of Bihar (1987)	Re-promulgation without placing before the Legislature violates constitutional morality and legislative supremacy
Krishna Kumar Singh v. State of Bihar (2017)	Governor's satisfaction under Art. 213 must be **real, not mechanical**; rights created by a lapsed Ordinance do not survive automatically

- **Shortcut: Mains hook.** Re-promulgation without laying it before the House = Wadhwa (1987). "Real satisfaction" = Krishna Kumar Singh (2017).

ALSO IN THE HANDOUT

- [TABLE CELLS] with or without amendments, and / presents it to the President, he is / bound to give his assent.

FINANCIAL POWERS

FINANCIAL POWERS

Power	Rule
State Budget (Art. 202)	Ensures the Annual Financial Statement is laid before the Legislature
Money Bills (Art. 207)	Introduced in the Assembly only with the **Governor's prior recommendation**
Demands for grants	No demand except on the Governor's recommendation
Contingency Fund (Art. 267(2))	Governor controls it; makes advances for unforeseen or urgent expenditure pending the Legislature's authorisation
State Finance Commission (Arts. 243-I, 243-Y)	Constitutes it **every five years**; places its report and Action Taken Report before the Legislature

MY NOTES

Power	Rule
Reports	Lays the CAG report on State accounts and the SFC recommendations on local finances

- **Memory aid (Financial five):** **B**udget, **M**oney Bill, **D**emand for grants, **C**ontingency Fund, **F**inance Commission: "**B**uy **M**ore **D**ates, **C**ash **F**irst".

JUDICIAL POWERS

JUDICIAL POWERS

Art-icle	Power
161	**Pardon, reprieve, respite, remission**, suspend, remit or commute the sentence of a person convicted of an offence against a law on matters within the State's executive power
217(1)	**Consulted by the President** in appointing the Chief Justice and Judges of the State High Court
233	Appoints, posts and promotes **District Judges**, in consultation with the High Court
234	Appoints persons (other than District Judges) to the State judicial service, in consultation with the **SPSC** and the **High Court**

- **PYQ 2013:**
  - High Court Judges are **not** appointed by the Governor "just as Supreme Court judges are by the President"
  - The Governor is only **consulted** (Art. 217(1))

DISCRETIONARY POWERS AND SPECIAL RESPONSIBILITIES

- Art. 163 makes the Governor act on ministerial advice **except** where discretion applies. The handout groups the discretion as explicit (in the Constitution), implicit (situational) and special responsibilities.

EXPLICIT DISCRETION

Kind	Matters
Independent of Ministers	**Reservation of Bills** (Art. 200); **administrator of an adjoining Union Territory** (Art. 239), acting independently of the State Council; **Sixth Schedule** States (Assam, Meghalaya, Tripura, Mizoram): decides the **royalty share** payable to Autonomous District Councils
Consultative (special responsibilities)	**Arts. 371 and 371A-J**: consults the Council, but the decision carries special responsibility

MY NOTES

IMPLICIT (SITUATIONAL) DISCRETION

Situation	Handout wording
Art. 356	Report recommending President's Rule
Hung Assembly	Appointing a CM when no party commands a majority; also when a CM dies suddenly with no obvious successor
Dismissal	Of the Council when it cannot prove confidence of the Assembly
Dissolution	Of the Assembly if the Council has lost its majority
Art. 167	Seeking information from the CM
Legislative	Messages; suspensive or pocket veto over Bills
Centre-State conflict	Acts at discretion temporarily until Union instructions arrive

CONSTITUTIONAL DISCRETION LIST (SECTION 5 OF THE HANDOUT)

- Administrator of an adjoining UT
- Recommending President's Rule (Art. 356)
- Reserving a Bill for the President
- Fixing the amount payable to autonomous tribal areas
- Seeking information from the CM (Art. 167)

HANDOUT ALERT

Handout alert: Lists differ. Art. 356 and Art. 167 are called **implicit** in one place and **constitutional discretion** in another; the Sixth Schedule item is the **royalty share** in one place and **peace and coordination** (Assam, Para 18(2)) in the special-responsibility list. For the **PYQ 2014**: **Art. 356 report and reserving Bills** are the discretionary powers; **appointing Ministers** and **framing business rules** are not. PYQ 2025 key: the Constitution **explicitly** mentions discretion, and the **President cannot of his own reserve** a State Bill (the Governor must forward it).

- **Memory aid (Constitutional discretion five): U**T administrator, **R**ule of President (Art. 356), **B**ill reserved, **T**ribal area amount, **I**nformation from CM: "**U**nder **R**aj **B**havan **T**he **I**nspector".

SPECIAL RESPONSIBILITIES (ARTS. 371 TO 371J)

STATE BY STATE

State	Responsibility
Maharashtra (Art. 371(2))	Development Boards for **Vidarbha and Marathwada**: equitable funds, facilities, jobs
Gujarat (Art. 371(2))	Development Boards for **Saurashtra and Kutch**
Nagaland (Art. 371A(1)(b))	Final authority over **law and order** in the Naga Hills-Tuensang area during internal disturbances

MY NOTES

State	Responsibility
Assam (Sixth Schedule, Para 18(2))	Peace, coordination, proper law implementation in tribal areas under ADCs
Manipur (Art. 371C)	Oversees hill areas' administration; **reports to the President**
Sikkim (Art. 371F)	Safeguards peace and ensures social and economic advancement of diverse groups
Arunachal Pradesh (Art. 371H)	Individual judgment on **law and order** when necessary
Karnataka	Development of the **Hyderabad-Karnataka** region (listed in the earlier part of the handout)
Hyderabad city	Security and coordination between the two States, under the **Andhra Pradesh Reorganisation Act, 2014**

- **Memory aid (Seven States):** **M**aharashtra, **G**ujarat, **N**agaland, **A**ssam, **M**anipur, **S**ikkim, **A**runachal: "**M**y **G**reat **N**ation **A**lways **M**akes **S**trong **A**rrangements".

PRESIDENT VERSUS GOVERNOR: VETOES, ORDINANCES, PARDONS

VETO POWERS ON BILLS

Situation	President	Governor
Ordinary Bill: options	**Three**: assent; withhold; return for reconsideration	**Four**: assent; withhold; return; **reserve for the President**
If returned and passed again	Bound to assent (**suspensive veto**)	Bound to assent (suspensive veto)
Bill reserved by the Governor	Three choices: assent, withhold, return. If the Legislature repasses it, the President is **not bound** to assent. The Governor then has **no further role**	Reserving is the extra option
Money Bill	**Two**: assent or withhold; **cannot return** it	**Three**: assent, withhold, or reserve; **cannot return** it
Money Bill reserved	Two options: assent or withhold; his decision is final	No further role

- **Why Money Bills pass:** Every Money Bill needs the executive's prior permission before introduction (the President's at the Centre, the Governor's in a State), so assent is normal.

MY NOTES

ORDINANCE-MAKING POWERS

Aspect	President	Governor
When	When either House is not in session	Unicameral: Assembly not in session; bicameral: when either House is not in session (see alert in section 9)
Grounds	Satisfied that immediate action is necessary	Same
Extent	Co-extensive with Parliament's legislative power	Co-extensive with the State Legislature's power
Force of law	Same as an Act of Parliament	Same as an Act of the State Legislature
Limitations	Invalid to the extent Parliament cannot legislate	Invalid to the extent the State Legislature cannot
Withdrawal	Any time	Any time
Discretionary?	No; on the advice of the Council headed by the PM	No; on the advice of the Council headed by the CM
Laying	Before both Houses when they reassemble	Before the State Legislature (the Assembly, or both Houses) on reassembly
Duration	Six weeks from reassembly; earlier if both Houses disapprove	Six weeks from reassembly; earlier if the Assembly disapproves, and the Council agrees where there is one
Special restriction	**None**: no prior instruction needed	**Three cases** need prior instructions of the President

PARDONING POWERS

Aspect	President	Governor
Offences	Against a law made by Parliament or a Central law	Against a law made by the State Legislature
Death sentence	Full pardon, reprieve, respite, suspension, remission, commutation; the **only authority who can fully pardon** a death sentence	**No pardon**; may only **suspend, remit or commute**
Court-martial	Can pardon, reprieve, respite, suspend, remit, commute	**No power**

- **Shortcut: Death and court-martial.** Governor: **no pardon of death sentence** (only suspend, remit, commute) and **no court-martial power**. Both belong to the President.
- **Memory aid (Governor pardon limits):** **D**eath-sentence pardon and **C**ourt-martial are barred: "**D**on't **C**ross".

MY NOTES

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 30, GOVERNOR

- There is no vice-governor in a State, unlike the Vice-President at the Centre. Hargovind Pant case (1979): the Governor's office is not an employment under the Central government
- It is an independent constitutional office
- Draft Constitution had provided direct election of the Governor on universal adult suffrage. Extra reasons for dropping it: an elected Governor would belong to a party and not be neutral, and the CM would push his own nominee, so a second-rate party man would win.
- Salary: Parliament raised the Governor's pay from Rs 1.10 lakh to Rs 3.50 lakh per month (Finance Act 2018, effective 1 Jan 2016, amending the 1982 Emoluments Act).
- Lakshmikanth differs:
  - He cites Surya Narain (1981), where the Court held the President's pleasure is not justiciable and the Governor has no security of tenure. Handout cites B.P. Singhal (2010), where pleasure is not absolute
  - Use B.P. Singhal for the exam
- Removal practice:
  - In 1989 the V.P. Singh government asked all Governors to resign
  - In 1991 the Narasimha Rao government changed fourteen Governors. A Governor can be transferred or reappointed to another State
- Art 160:
  - The President can make provision for a contingency such as the death of a Governor
  - The Chief Justice of the High Court may temporarily discharge the functions. Anyone doing so takes the same oath
- The Governor has no diplomatic, military or emergency powers, unlike the President.
- Before 2020 the Governor nominated one Anglo-Indian member to the Assembly
- The 104th Amendment Act 2019 ended this
- Lakshmikanth differs:
  - D.C. Wadhwa is dated 1986 (handout says 1987). Facts: the Bihar Governor issued 256 ordinances in 1967-81, kept alive 1 to 14 years by repromulgation
  - The Court said this violates the Constitution. Use the handout year in class
- Lakshmikanth differs: the Governor's qualification is listed under Art 157 in his article table (handout says Art 156). Other

MY NOTES

articles: 160 contingencies, 162 extent of State executive power, 165 Advocate-General, 176 special address, 201 reserved bills. Karnataka's Hyderabad-Karnataka board was added by the 98th Amendment 2012.

- If the President returns a reserved bill, the House must reconsider it within six months
- Once reserved, the Governor has no further role. Sarkaria also wanted a Governor eminent, from outside the State, detached from local politics, and not a Centre-ruling-party politician posted to an opposition-run State

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Which Articles cover the State Executive?	Arts. 153 to 167 (Part VI).
What is the Governor's dual role?	Head of the State, and link and agent of the Union Government.
How is the Governor appointed?	By the President by warrant under hand and seal (Art. 155).
Two conventions on appointment?	Outsider to the State; CM consulted.
What did the 7th Amendment (1956) allow?	One person to be Governor of two or more States.
Two qualifications for Governor?	Citizen of India; completed 35 years (Art. 156).
Normal term and tenure rule?	Five years, until the successor takes charge; at the President's pleasure.
Who administers the Governor's oath?	Chief Justice of the High Court (or the senior-most judge) under Art. 159.
What does Art. 361 grant?	No criminal proceedings during term, even for personal acts; no arrest; civil proceedings only after two months' notice.
What does ARC-I (1966) want for appointments?	Parliamentary approval by both Houses; consult Leaders of Opposition; no burnt-out politicians or election losers.
Who sits on the NCRWC committee?	PM, Union Home Minister, Speaker of Lok Sabha, CM of the State.
Three Governor cases and years?	Bommai 1994, Rameshwar Prasad 2006, B.P. Singhal 2010.

What did B.P. Singhal say?	Pleasure is not absolute; no dismissal for political disagreement or a change at the Centre.
Difference between Governor and President on discretion?	Governor has constitutional discretion; the President has none and, after the 42nd Am. 1976, is bound by advice.
Who removes the SPSC members?	The President, not the Governor.
What does the Governor nominate to the Legislative Council?	One-sixth of members from literature, science, art, cooperative movement, social service (Art. 171).
What did Nabam Rebia (2016) say?	The summoning power is exercised on ministerial advice, not at his own.
When does the Governor address the Legislature?	First session after each general election and first session of each year.
Four options under Art. 200?	Assent, withhold, return (not a Money Bill), reserve for the President.
When must a Bill be reserved?	Mandatory: it endangers the position of the High Court.
Can the Governor return a Money Bill?	No; he can assent, withhold or reserve.
How long does a Governor's Ordinance last?	Six weeks from reassembly, unless disapproved or replaced.
Three cases needing prior Presidential instruction?	Bill needing previous sanction; he would reserve it; Act invalid without President's assent.
What did D.C. Wadhwa (1987) hold?	Re-promulgation without laying before the Legislature is unconstitutional; Ordinances are reviewable for mala fide or no necessity.
What did Krishna Kumar Singh (2017) hold?	Satisfaction under Art. 213 must be real; rights under a lapsed Ordinance do not survive automatically.
Who recommends for a Money Bill in a State?	The Governor's prior recommendation (Art. 207).
How often is the State Finance Commission constituted?	Every five years (Arts. 243-I, 243-Y).
Governor's pardon limits?	No pardon of death sentence (only suspend, remit, commute) and no court-martial power.
Which Governor's special responsibility covers Vidarbha and Marathwada?	Maharashtra, Art. 371(2): Development Boards.

MY NOTES

Which Art. covers the Governor's call for information from the CM?	Art. 167.
Mains 2018: Whether the Supreme Court Judgement (July 2018) can settle the political tussle between the Lt. Governor and elected government of Delhi? Examine.	Intro: The handout does not discuss the Delhi judgment or the Lt. Governor's powers; only the Governor and CM relationship is covered Body: Governor is nominal head but has discretion (Arts. 154 and 163); Council of Ministers is responsible to the Assembly (Art. 164); CM is the channel to the Governor (Art. 167); B.P. Singhal says the office needs independence and dignity; friction arises when the Centre's nominee meets an opposition government. Close: the handout only supports the general principle that real power rests with the elected Council. (The Delhi specifics are not in the handout.)
Mains 2022: Discuss the essential conditions for exercise of the legislative power by the Governor. Discuss the legality of re – promulgation of ordinances by the Governor without placing them before the Legislature.	Intro: Art. 213 gives the Governor Ordinance power on ministerial advice Body: Legislature must not be in session; personal satisfaction that immediate action is needed; only within State competence or void ab initio; prior Presidential instructions in three cases; laid before the Legislature and ceases six weeks from reassembly; judicial review for mala fide or no necessity; Wadhwa 1987 held re-promulgation without laying before the Legislature violates constitutional morality; Krishna Kumar Singh 2017 requires real satisfaction. Close: the Ordinance power is an emergency tool kept under legislative control and judicial review.

Trap 1 · Pardon of a death sentence

The Governor can pardon for offences under State law, but not a death sentence. He can only suspend, remit or commute it. He also has no pardon power in court-martial cases. *Rule: full pardon of death sentence and court-martial = President only.*

Trap 2 · Conventions are not qualifications

Only two qualifications are written: citizen and 35 years. Being an outsider to the State and consulting the CM are only conventions, and both have been violated. *Rule: Constitution = 2 qualifications; outsider and CM consultation = conventions.*

MY NOTES

Trap 3 · Money Bill and the Governor

On a Money Bill the Governor has three options: assent, withhold, reserve. He cannot return it. On an ordinary bill he has four, and a returned bill passed again must get his assent. *Rule: ordinary bill = 4 options; Money Bill = 3 (no return).*

Trap 4 · Who removes whom

The Governor appoints the SPSC Chairman and members, but only the President can remove them. The State Election Commissioner is removed like a High Court judge. *Rule: appointing authority is not always the removing authority.*

QUICK QUIZ

Q1. With reference to the Governor of a State, consider: 1. No criminal proceedings can be instituted against him in any court during his term. 2. His emoluments and allowances cannot be diminished during his term. Which are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q2. Which of the following are discretionary powers of the Governor? 1. Report for President's Rule 2. Appointing Ministers 3. Reserving certain Bills for the President 4. Making rules to conduct State Government business

1. 1 and 2 only
2. 1 and 3 only
3. 2, 3 and 4 only
4. 1, 2, 3 and 4

Q3. Which statement is correct?

1. The same person cannot be Governor of two or more States
2. High Court judges are appointed by the Governor
3. No procedure is laid down in the Constitution for the removal of a Governor
4. A UT's Chief Minister is appointed by the Lt. Governor on majority support

Q4. Consider: I. The Constitution explicitly mentions that in certain spheres the Governor acts in his own discretion. II. The President can of his own reserve a State Bill without the Governor forwarding it. Which is correct?

1. I only
2. II only
3. Both
4. Neither

Q5. Consider: 1. Governor addresses the House at the start of the first session of the year. 2. When the State Legislature has no rule on a matter it follows the Lok Sabha rule.

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither

Q6. Which body suggested the Governor should be an eminent outsider, detached from politics?

1. First ARC (1966)
2. Rajamannar Committee (1969)
3. Sarkaria Commission (1983)
4. NCRWC (2000)

MY NOTES

Q7. Consider: 1. The Governor nominates the Chairman of the Legislative Council. 2. The Council can be larger than half the Assembly.

1. 1 only
2. 2 only
3. Both
4. Neither

Q8. Under Art. 200, a Governor MUST reserve a Bill when it:

1. affects a Union subject
2. endangers the position of the High Court
3. is a Money Bill
4. contradicts a DPSP

Q9. How many alternatives does the Governor have for an ordinary Bill, and for a Money Bill?

1. 4 and 3
2. 3 and 4
3. 4 and 2
4. 3 and 3

Q10. Who can grant a pardon in a death sentence case?

1. Governor
2. President only
3. Governor on CM advice
4. High Court

Q11. An Ordinance of the Governor ceases to operate at:

1. three months from promulgation
2. six weeks from reassembly of the Legislature
3. one year
4. six months

Q12. The Governor's Ordinance requires prior instructions of the President in how many cases?

1. Two
2. Three
3. Four
4. None

Q13. Which case held the Governor's satisfaction under Art. 213 must be real and not mechanical?

1. D.C. Wadhwa
2. Nabam Rebia
3. Krishna Kumar Singh
4. B.P. Singhal

Q14. The handout's Governor-versus-President position difference after 1976 is:

1. Both are bound by advice
2. The President is bound; the Governor is not constitutionally bound in discretion matters
3. Neither is bound
4. Only the Governor is bound

Q15. PYQ 2025: With reference to the Indian polity, consider the following statements: (2025) I. The Governor of a State is not answerable to any court for the exercise and performance of the powers and duties of his/her office. II. No criminal proceedings shall be instituted or continued against the Governor during his/her term of office. III. Members of a State Legislature are not liable to any proceedings in any court in respect of anything said within the House. Which of the statements given above are correct?

1. I and II only
2. II and III only
3. I and III only
4. I, II and III

MY NOTES

Q16. PYQ 2025: Consider the following statements: (2025) I. The Constitution of India explicitly mentions that in certain spheres the Governor of a State acts in his/her own discretion. II. The President of India can, of his/her own, reserve a bill passed by a State Legislature for his/her consideration without it being forwarded by the Governor of the State concerned. Which of the statements given above is/are correct?

1. I only
2. II only
3. Both I and II
4. Neither I nor II

Q17. PYQ 2019: With reference to the legislative Assembly of a state in India, consider the following Statements: (2019)
1. The Governor makes a customary address to Members of the house at the commencement of the first session of the year.
2. When a State Legislature does not have a rule on the particular matter, it follows the Lok Sabha rule on that matter.

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q18. PYQ Which one of the following suggested that the Governor should be an eminent person from outside the State and should be a detached figure without intense political links or should not have taken part in politics in the recent past? (2019)

1. First Administrative Reforms Commission (1966)
2. Rajamannar Committee (1969)
3. Sarkaria Commission (1983)
4. National Commission to Review the Working of the Constitution (2000)

Q19. PYQ 2018: Consider the following statements: (2018)
1. No criminal proceedings shall be instituted against the Governor of a State any court during his term of office.
2. The emoluments and allowances of the Governor of a State shall not be diminished during his term of office. Which of the statements given above is/are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q20. PYQ 2015: Consider the following statements: (2015)
1. The Legislative Council of a State in India can be larger in size than half of the Legislative Assembly of that particular State.
2. The Governor of a State nominates the Chairman of Legislative Council of that particular State. Which of the statements given above is/are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

MY NOTES

Q21. PYQ 2014: Which of the following are the discretionary powers given to the Governor of a State? (2014)

1. Sending a report to the President of India for imposing the President's rule
2. Appointing the Ministers
3. Reserving certain bills passed by the State Legislature for consideration of the President of India
4. Making the rules to conduct the business of the State Government

Select the correct answer using the code given below.

1. 1 and 2 only
2. 1 and 3 only
3. 2, 3 and 4 only
4. 1, 2, 3 and 4

Q22. PYQ 2013: Which one of the following statements is correct? (2013)

1. In India, the same person cannot be appointed as Governor for two or more States at the same time
2. The Judges of the High Court of the States in India are appointed by the Governor of the State just as the Judges of Supreme Court are appointed by the President
3. No procedure has been laid down in the Constitution of India for the removal of a Governor from his/her post
4. In the case of a Union Territory having a legislative setup, the Chief Minister is appointed by the Lt. Governor on the basis of majority support Governor from his/her post

Answers: Q1 c, Q2 b, Q3 c, Q4 a, Q5 c, Q6 c, Q7 d, Q8 b, Q9 a, Q10 b, Q11 b, Q12 b, Q13 c, Q14 b, Q15 d, Q16 a, Q17 c, Q18 c, Q19 c, Q20 d, Q21 b, Q22 c

MY NOTES

CHAPTER 12 · HANDOUT: CHIEF MINISTER, STATE COUNCIL OF MINISTERS, CHIEF SECRETARY

12 Chief Minister and State Executive

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **2016**

EXAM LENS

Prelims hooks

- Chief Secretary appointment and tenure
- six months rule for non-members
- 15% and 12 cap
- collective responsibility and what happens when the CM resigns
- CM as Vice-Chairman of the Zonal Council by rotation.
- Handout stresses: The handout quotes one Prelims PYQ (2016) on the Chief Secretary: appointed by the CM (not the Governor) and no fixed tenure (PYQ section and last section)
- Handout stresses: Art. 164(4): a non-member CM or minister must be elected within six months; B.R. Kapoor (2001) bars repeat appointments (Appointment section)
- Handout stresses: 91st Amendment (2003): Council not more than 15% of the Assembly, not fewer than 12 (Tenure section)
- Handout stresses: Responsibility: collective (Art. 164(2)), individual, and no legal responsibility since there is no countersignature (Responsibility section)

Mains hooks

- none quoted in the material
- plausible angles are the Governor-CM relationship, hung Assembly appointments, collective versus individual responsibility and the 91st Amendment cap.

The Governor reigns and the CM rules: Arts. 163, 164 and 167 keep the two in step through the Council of Ministers.

MY NOTES

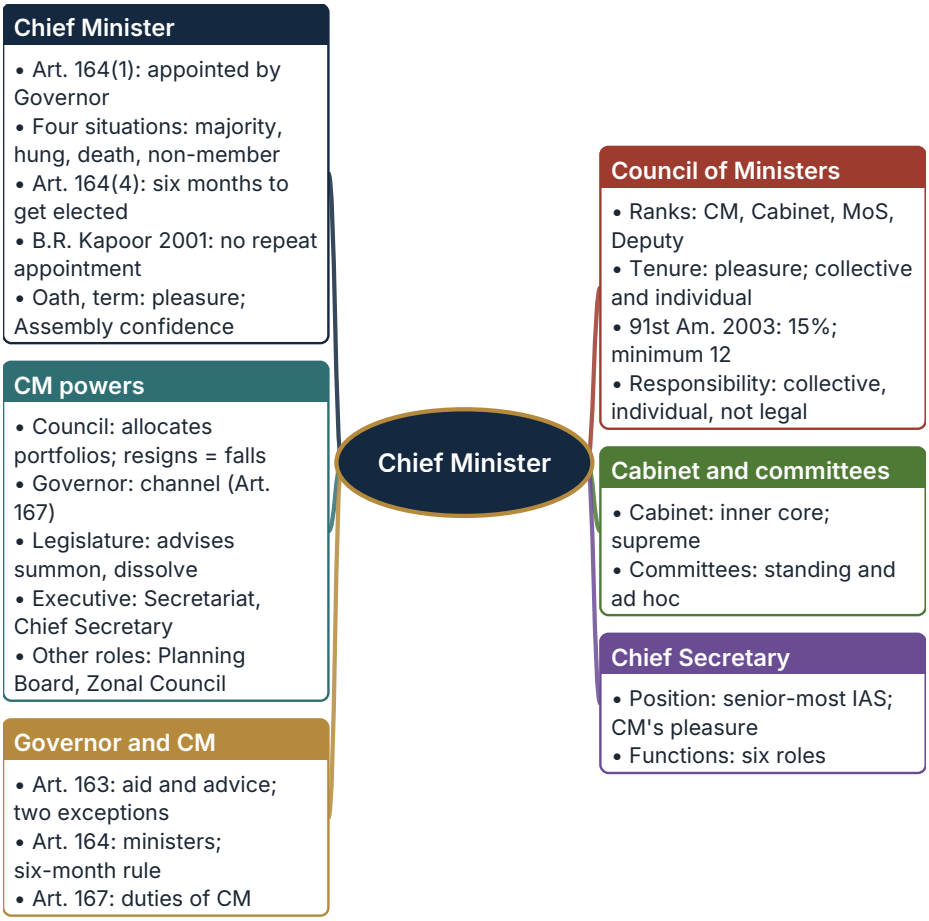
IN SIMPLE WORDS

- The Governor is the **nominal head (de jure)**
- The **Chief Minister** is the **real executive (de facto)**, like the Prime Minister at the Centre
- The CM is appointed by the Governor (**Art 164**), but there is no set procedure. The leader of the **majority party** gets the post
- In a **hung Assembly** the largest party or coalition is invited and must prove majority on the floor
- A non-member can become CM but must be elected within **six months**. The CM holds office at the **Governor's pleasure**, which in practice means only while he has the **Assembly's confidence**.
- The Council of Ministers is **collectively responsible** to the Legislative Assembly. Ranks: **CM, Cabinet Ministers, Ministers of State, Deputy Ministers**.
- The **91st Amendment (2003)**: Council cannot exceed **15%** of the Assembly and must be at least **12** including the CM.
- The **Chief Secretary** is the senior-most IAS officer and head of the State administration, appointed by the CM.

Key term	In plain words
De jure / de facto	Governor is the head on paper (de jure); CM is the head in reality (de facto).
Hung Assembly	No party has a clear majority; Governor exercises limited discretion and the appointee proves majority within about a month.
Art 164(4)	A non-legislator may be CM or minister but must get elected within six months or cease to hold office.
Collective responsibility	The whole Council answers to the Assembly; if it loses confidence, all including the CM must resign.
Individual responsibility	Each minister answers for his department; CM can ask him to resign or advise the Governor to dismiss him.
Sumptuary allowance	Extra allowance for official hospitality, paid on top of the legislator's salary.
Cabinet committees	Standing (permanent) or ad hoc (temporary) groups set up by the CM; the Cabinet can review their decisions.
Chief Secretary	Top civil servant of the State, Secretary to the Cabinet and principal adviser to the CM.

MY NOTES

MEMORY MAP: CHIEF MINISTER AND STATE EXECUTIVE



MNEMONIC · RANKS IN THE STATE COUNCIL OF MINISTERS

Chief Commands Many Deputies

- **C** Chief Minister
- **C** Cabinet Ministers
- **M** Ministers of State
- **D** Deputy Ministers

Read top to bottom: the Chief commands from the top down to the junior-most Deputies. (Memory aid, not from the handout.)

MNEMONIC · CM'S OATH OF OFFICE

Brave Upright Fair Dealings

- **B** Bear true faith and allegiance to the Constitution
- **U** Uphold sovereignty and integrity of India
- **F** Faithfully and conscientiously discharge duties
- **D** Do right to all without fear or favour, affection or ill will

A good CM is brave, upright and fair in his dealings, which is what the oath promises. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · HEADS OF CM'S POWERS

Chief Guides Legislature Executive Others

- **C** Council of Ministers
- **G** Governor
- **L** Legislature
- **E** Executive
- **O** Other powers and functions

The Chief guides each area of government in the handout order. Order is free here: no clean word exists, so this sentence is the memory aid. (Memory aid, not from the handout.)

MNEMONIC · CM'S SALARY AND PERKS (BESIDES THE MLA SALARY)

T R A M

- **T** Travelling allowance
- **R** Residence: free official residence
- **A** Allowance: sumptuary (hospitality)
- **M** Medical and other facilities

The CM's perks run on top of the MLA salary like a TRAM on its track: all four handout perks, order rearranged for memory (they are unordered). (Memory aid, not from the handout.)

MNEMONIC · POWERS OF THE STATE COUNCIL OF MINISTERS

L E A F

- **L** Legislative role (introduces most Bills)
- **E** Executive authority (implements laws)
- **A** Advisory role (aid and advice to the Governor)
- **F** Financial role (prepares the Budget)

The Council is the LEAF through which the State's governance feeds: Legislative, Executive, Advisory and Financial roles. The order is rearranged for memory (the four roles are unordered). (Memory aid, not from the handout.)

OVERVIEW: NOMINAL HEAD AND REAL HEAD

- In the parliamentary system the **Governor is the nominal (de jure) executive head** and the **Chief Minister is the real (de facto) executive head**. The CM does in the State what the **Prime Minister** does at the Union. Executive power of the State Government is described as resting with the Council of Ministers, but it is the CM who plays the central, commanding role.

HANDOUT ALERT

Handout alert: This chapter says executive power is "vested in the Council of Ministers", while the Governor chapter says **Art. 154** vests it in the Governor, to be exercised through the Council. Use this rule: **formally the Governor (Art. 154), in practice the Council under the CM**.

MY NOTES

GOVERNOR AND CHIEF MINISTER

- **Governor:**
  - Nominal head
  - De jure executive
  - Constitutional head of the State
- **Chief Minister:**
  - Real head
  - De facto executive
  - Head of the government with real authority

ALSO IN THE HANDOUT

- This oath symbolizes the Chief Minister's constitutional commitment, moral neutrality, and impartiality in governance.

APPOINTMENT OF THE CHIEF MINISTER

- The Constitution lays down no detailed procedure. **Article 164(1)**: the CM is appointed by the **Governor**. That is not an unfettered choice
- It must follow parliamentary principles and conventions

FOUR SITUATIONS

Situation	Practice
1. Normal	One party has an **absolute majority**: the Governor **must appoint its leader**; his role is purely formal
2. Hung Assembly	No clear majority: the Governor uses **limited personal discretion**, usually inviting the **largest party or post-poll coalition**; the appointee must **prove majority on the floor**, generally within a month or the period the Governor specifies. Legitimacy comes from legislative confidence, not the Governor's choice
3. Death of a sitting CM	No immediate successor: the Governor may use **individual judgment** for continuity. Conventionally the ruling party elects a new leader quickly, whom the Governor must appoint
4. Non-legislator (Art. 164(4))	A person from neither House can be appointed but must be **elected to the Legislature within six months**, else he **automatically ceases** to hold office

- **Memory aid (Four situations):** **N**ormal majority, **H**ung Assembly, **D**eath of a CM, **N**on-member: "**N**o **H**ousehold **D**isputes **N**ow".
- **Shortcut: Six-month rule.** Non-member CM or minister: **6 months** to get elected, else out (Arts. 164(4) and 164(1)(f) in the handout).

NEED TO PROVE MAJORITY

- The Constitution does **not** require a person to prove majority **before** appointment. The Governor may appoint the CM first and

MY NOTES

ask him to prove majority in the Assembly **within a reasonable time**. This has been upheld in several precedents

- The final authority on majority rests with the **Legislature**, not the Governor

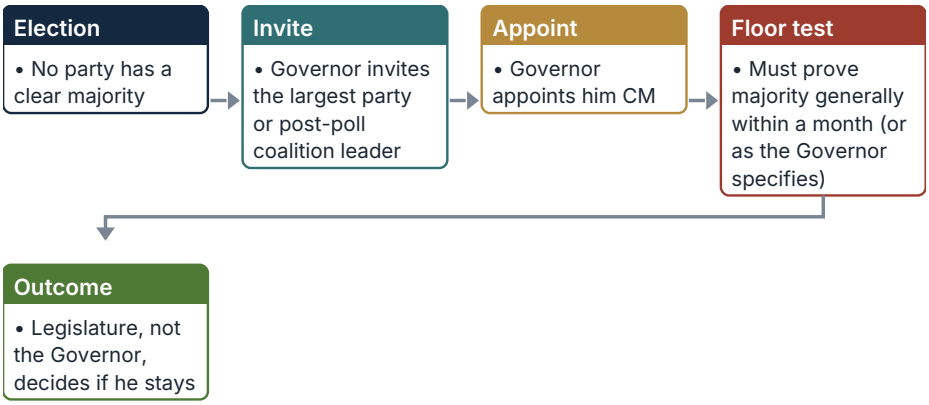
B.R. KAPOOR CASE, 2001

Point	Held
Qualification	One not qualified to contest elections cannot avail of **Art. 75(5)** and **Art. 164(4)**
No arbitrary appointment	These may be appointed: a competent person who has lost an election; a person who could not contest due to other constitutional commitments; experts
No repeats	No repeat appointment after the **six months** expire

HUNG ASSEMBLY PATH

- **Election**: No party has a clear majority
- **Invite**: Governor invites the largest party or post-poll coalition leader
- **Appoint**: Governor appoints him CM
- **Floor test**: Must prove majority generally within a month (or as the Governor specifies)
- **Outcome**: Legislature, not the Governor, decides if he stays

HUNG ASSEMBLY PATH



MEMBERSHIP OF EITHER HOUSE

- The CM can be a member of **either House** (Assembly or Council where one exists). Convention picks the CM from the **Legislative Assembly**, but members of the Legislative Council have also been CMs (the handout names **Uttar Pradesh and Bihar**).

OATH, TERM AND SALARY OF THE CM

- Before entering office the CM takes the **oaths of office and secrecy**, administered by the Governor.

MY NOTES

OATHS

Oath	Content
Office (Art. 164(3))	Bear true faith and allegiance to the Constitution; uphold sovereignty and integrity of India; discharge duties faithfully and conscientiously; do right to all manner of people in accordance with the Constitution and the law, without fear or favour, affection or ill will
Secrecy	Not to communicate or reveal any matter that comes to his knowledge as a Minister to any unauthorised person, except as needed for the due discharge of his duties

- **Memory aid (Office oath four):** **F**aith and allegiance, **S**overeignty and integrity, **D**uties faithfully, **R**ight to all: "**F**our **S**tars **D**eserve **R**espect".

TERM

- **No fixed term**
- Holds office during the **pleasure of the Governor** (Art. 164)
- The pleasure is not arbitrary: it lasts only while the CM enjoys the **confidence of the Assembly**.
- With majority support the Governor **cannot dismiss** him
- On losing the House's confidence he must resign or may be dismissed

SALARY AND ALLOWANCES

- Set by the **State Legislature**. In addition to his salary as a Legislature member he gets: **sumptuary allowance**, **free official residence**, **travelling allowance**, and **medical and other facilities** decided by the State government.

POWERS AND FUNCTIONS OF THE CM

BY RELATION

Relation	Powers
Council of Ministers	Governor appoints only persons the CM recommends; allocates and reshuffles portfolios; can ask a minister to resign or advise the Governor to dismiss him; presides over Council meetings and influences decisions; guides, directs, coordinates and controls ministers; **his resignation or death collapses the whole Council**, while another minister's merely creates a vacancy
Governor (Art. 167)	Principal channel between Governor and Council: communicates all decisions on administration and legislative proposals; furnishes information the Governor calls for; submits for Council reconsideration a matter decided by a minister alone if the Governor requires; advises on appointing the **Advocate General, SPSC members and State Election Commissioner**

MY NOTES

Relation	Powers
Legislature	Advises on **summoning, proroguing and dissolving**; can **recommend dissolution** of the Assembly at any time; announces policies and legislative programmes; keeps the House informed through answers, statements and debates
Executive	Supervises the **Secretariat headed by the Chief Secretary**; oversees senior appointments (Secretaries, Commissioners, department heads); leads the civil service on discipline, efficiency and morale; monitors performance through official channels, party networks and field visits; influences appointments to PSUs, Boards and Commissions

OTHER ROLES

Role	Detail
State Planning Board	Chairman
Zonal Council	**Vice-Chairman by rotation**, one year at a time
Inter-State Council and NITI Aayog Governing Council	**Ex-officio member** (both headed by the PM)
Spokesperson	Chief spokesperson of the State government
Crisis	Crisis manager-in-chief at the political level
Public	Meets sections of society, receives representations, hears grievances
Services	Political head of the State services

- **Memory aid (Other roles):** **P**lanning Board chair, **Z**onal Council vice-chair, **I**nter-State Council member, **S**pokesperson, **C**risis manager, **P**ublic grievances, **S**ervices head: "**P**eople **Z**ealously **I**ssue **S**mall **C**omplaints **P**roudly **S**igned".
- **Shortcut: CM falls = Council falls.** CM resigns or dies: the **entire Council** goes. Any other minister: only a **vacancy**.

ALSO IN THE HANDOUT

- These entitlements ensure that the Chief Minister can perform his public duties with dignity and efficiency.
- (b) To furnish information as the Governor may call for regarding State administration.
- He provides leadership and direction to the civil service to ensure discipline, efficiency, and morale.
- (a) Communicating all decisions of the Council of Ministers relating to administration and proposed legislation.

MY NOTES

- Their importance lies in the fact that the Cabinet, rather than the entire Council, directs the government.
- Through these functions, the Council transforms legislative intent into practical governance measures.

GOVERNOR AND CM: ARTS. 163, 164, 167

THREE ARTICLES

Art-icle	Rule
163	Governor acts on the **aid and advice** of the Council headed by the CM. **Two exceptions**: when the Constitution requires discretion (e.g. appointing a CM when no party has a majority) and when he performs **special responsibilities** (e.g. Sixth Schedule areas, reserving Bills for the President)
164	(a) CM appointed by the Governor, usually the majority leader; (b) other ministers on the **CM's advice**; (c) ministers hold office during pleasure, in practice while they have Assembly confidence; (d) Council **collectively responsible** to the Assembly; (e) Governor administers **oaths of office and secrecy**; (f) a minister not a Legislature member for **six consecutive months** ceases to be a minister
167	CM communicates Council decisions and legislative proposals; gives information the Governor calls for; submits matters for Council reconsideration if the Governor requires

- **Memory aid (Three Articles):** **A**id and advice (163), **A**ppointment and tenure (164), **C**ommunication duties of the CM (167): "**A**ll **A**ct **C**losely".
- **Legitimacy:** Appointments are made in the Governor's name, but **political legitimacy rests with the CM**.

ALSO IN THE HANDOUT

- All other ministers are appointed by the Governor on the advice of the Chief Minister.

THE STATE COUNCIL OF MINISTERS: COMPOSITION

- The Constitution sets up the parliamentary system at State level on the Union model. Principles are broadly outlined in **Article 163** (status of the Council) and **Article 164** (appointment, tenure, responsibility, qualifications, oath, salaries and allowances). The Constitution does **not** classify ministers into ranks
- The tiers are a **convention** from the British pattern

MY NOTES

FOUR RANKS

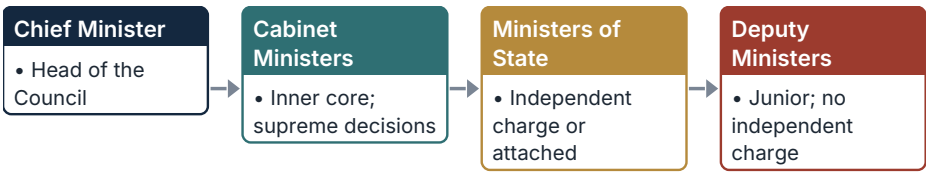
Rank	Role
Chief Minister	Head of the Council and central figure; leader of the majority party or coalition, appointed by the Governor; **all others appointed on his advice**; allocates portfolios, presides, links Governor and ministers
Cabinet Ministers	Senior members who head key departments (Home, Finance, Education, Health, Agriculture, Industries); form the **Cabinet**, the inner core and **supreme decision-making authority**; frame policy, introduce Bills, supervise departments; collectively responsible. In practice "Council of Ministers" often means the Cabinet
Ministers of State	Middle rank. Some hold **independent charge** of smaller departments (e.g. Tribal Welfare, Small Industries, Tourism) with Cabinet-like functions but outside the core; others are **attached to Cabinet Ministers**. Not generally in Cabinet meetings unless invited
Deputy Ministers	**Junior-most**; no independent charge; attached to Cabinet Ministers for routine work, piloting Bills, answering questions; usually do not attend Cabinet; often included for **political balancing** (caste, region, groups)

- **Memory aid (Four ranks):** **C**hief Minister, **C**abinet Minister, **M**inister of State, **D**eputy Minister: "**C**ool **C**ats **M**eet **D**aily".

RANK LADDER

- **Chief Minister**: Head of the Council
- **Cabinet Ministers**:
  - Inner core
  - Supreme decisions
- **Ministers of State**: Independent charge or attached
- **Deputy Ministers**:
  - Junior
  - No independent charge

RANK LADDER



ALSO IN THE HANDOUT

- In practice, the State Council of Ministers is organised into a multi-tier structure: ### a) Chief Minister 8.

MY NOTES

APPOINTMENT, TENURE AND SIZE OF THE COUNCIL

APPOINTMENT, TENURE, OATH, PAY

Topic	Rule
Appointment	Governor formally appoints the CM and ministers, strictly on the **CM's advice**. Single-party majority: leader becomes CM. Hung Assembly: Governor may invite the largest party or coalition leader to prove majority. Other ministers on the CM's recommendation; the CM assigns portfolios. The Governor has no discretion on other ministers, **except rare situations (like hung Assemblies)**
Tenure	No fixed tenure; during the Governor's pleasure (Art. 164) but exercised **only on the CM's advice**; in practice while they hold Assembly confidence; a **no-confidence vote** makes the whole Council resign
Oath	Art. 164(3) and the **Third Schedule**: Governor administers oaths of office and secrecy to every minister. Office: uphold the Constitution, protect sovereignty and integrity, discharge duties faithfully, do justice to all without fear or favour. Secrecy: keep matters confidential except when needed for official duties
Salary	Decided by the **State Legislature** (Art. 164(5)); until it makes a law, the **Second Schedule** applies; in practice equal to an **MLA**, plus sumptuary allowance by rank, free residence, travel, medical and other perks

COLLECTIVE VERSUS INDIVIDUAL TENURE

Type	Rule
Collective	The Council is collectively responsible to the Assembly; loss of majority forces **the entire Council** to step down
Individual	The CM may advise the Governor to remove any minister who loses his confidence, so individual tenure depends on the CM's will

SIZE OF THE COUNCIL: 91ST AMENDMENT ACT, 2003

- Created to prevent oversized ministries formed for political appeasement.
- Council strength **not more than 15%** of the total Assembly strength.
- Number of ministers **including the CM not less than 12**.

91ST AMENDMENT LIMITS

- **Ceiling**: At most 15% of the Assembly
- **Floor**: At least 12 ministers, including the CM
- **Aim**: Compact, efficient ministries with less burden on the exchequer

MY NOTES

- **Additional information in the handout:**
  - Despite the cap, States such as **Uttar Pradesh, West Bengal and Orissa** have disproportionately large Councils. The **2nd ARC** said there should be **no blanket 15% norm**
  - Council strength in each State should be **linked to the Assembly's strength**
- **Shortcut: Numbers. 15% and 12** (cap and floor). Non-member minister: **6 months**.

ALSO IN THE HANDOUT

- Their position is more supportive and functional rather than policy-oriented.

COLLECTIVE AND INDIVIDUAL RESPONSIBILITY

- Responsibility is the cardinal principle of the parliamentary system: the executive stays accountable to the legislature.

COLLECTIVE AND INDIVIDUAL

- **Collective (Art. 164(2)):**
  - Council functions as a team
  - One minister's decision is the Council's
  - A no-confidence vote means the whole ministry including the CM resigns
  - Even a motion against a single minister counts as loss of confidence by the whole Council
  - Ensures unity and solidarity
  - Stops ministers publicly opposing policy while staying in office
- **Individual:**
  - Each minister answers for his own department
  - For inefficiency, corruption or policy violation the CM can ask him to resign, and if he refuses advise the Governor to dismiss him
  - Accountability without disturbing the whole Council

NO LEGAL RESPONSIBILITY

Point	Detail
Scope	Ministers are **not legally responsible** for the Governor's official acts or for advice given under Art. 163
Contrast with Britain	Britain requires ministerial **countersignature** of Crown acts, making ministers liable; India's Constitution does not
Result	Ministers cannot be prosecuted or sued for advice to the Governor or executive acts in his name
Nature	Accountability is **political, not legal**: answerable to the Assembly, not the courts, for policy

MY NOTES

Point	Detail
Effect	Governor's acts stay valid even if the advice is later questioned politically

- **Memory aid (Three responsibilities):** **C**ollective, **I**ndividual, **N**o legal liability: "**C**ouncil **I**s **N**ot sued".

ALSO IN THE HANDOUT

- This ensures political stability and smooth transition.
- It coordinates the activities of various ministries and ensures that governance reflects collective responsibility and political direction.
- The Council is thus directly responsible for ensuring financial accountability and stability in state governance.

POWERS AND FUNCTIONS OF THE COUNCIL; CABINET AND COMMITTEES

FUNCTIONS OF THE COUNCIL

Sphere	What it does
Executive	Implements laws; supervises administration (police, education, health, agriculture, industries, welfare); formulates policies and programmes per priorities and electoral promises; coordinates ministries
Legislative	Introduces most Bills, especially **Money Bills**, which need the Council's prior approval; manages debates and answers questions; stays in power only while it has the majority
Advisory	Advises the Governor on almost all powers except discretionary ones: **Ordinance-making**; **appointments** (Advocate-General, State Election Commissioner, SPSC members); **dissolution** of the Assembly on its recommendation
Financial	Prepares and presents the **annual budget**; ensures revenue collection, expenditure control and financial discipline; no Money Bill or demand for grants without its approval

- **Memory aid (Four spheres):** **E**xecutive, **L**egislative, **A**dvisory, **F**inancial: "**E**very **L**ion **A**lways **F**eeds".

THE CABINET

- A smaller but **most powerful** part of the Council, made up only of **cabinet-rank ministers**
- The true centre of authority. It takes the most important political and administrative decisions, formulates policy, is the **supreme executive authority**, coordinates departments, advises the Governor on crucial matters, manages **crises**, deals with major legislative and financial matters (including the **budget**) and has a decisive role in senior appointments

MY NOTES

CABINET COMMITTEES

- Created by the **CM** according to need, so number, names and composition **vary**.
- **Standing** (permanent) or **ad hoc** (temporary).
- They examine issues in detail, sort out complex problems and prepare recommendations
- Sometimes they decide on their own
- The **Cabinet as a whole** can review and revise their decisions.

ALSO IN THE HANDOUT

- This ensures confidentiality, discipline, and trust in the functioning of the Council of Ministers.
- In certain cases, they also have the power to take decisions on their own.

CHIEF SECRETARY

- The **topmost executive officer** and head of the State administrative machinery
- The senior-most civil servant
- **principal adviser** to the CM and Council on administrative matters
- Symbolises **unity and continuity** of State administration

POSITION AND APPOINTMENT

Point	Detail
Cadre	Generally the **senior-most IAS officer** of the State cadre
Appointed by	The **Chief Minister**; holds office at the CM's pleasure; formally made in the Governor's name
Tenure	**No fixed tenure**; continuity kept by convention

> **HANDOUT ALERT**
> Handout alert: PYQ 2016 says "The Chief Secretary is appointed by the **Governor**" (false in the handout's key) and "has a **fixed tenure**" (false). Key: **neither** is correct. The appointment is **in the Governor's name** but made by the **CM**.

SIX FUNCTIONS

Function	Detail
Principal Adviser to the CM	Advises on all administration and policy implementation; coordinates departments
Head of the State civil services	Executive head of the State Secretariat and administrative head of civil services; secretaries report to him

MY NOTES

Function	Detail
Secretary to the Cabinet	Prepares agenda, records minutes, ensures decisions are implemented
Centre-State liaison	Main channel with the Union Government, including centrally sponsored schemes
Crisis manager	Coordinates relief and administration in emergencies, disasters and law and order crises
Guardian of discipline	Efficiency, integrity and discipline of civil servants; key in transfers and postings of senior officers

- **Memory aid (Six functions):** **A**dviser, **H**ead of civil services, **S**ecretary to Cabinet, **L**iaison, **C**risis manager, **G**uardian of discipline: "**A**ll **H**ands **S**tay **L**oyal, **C**alm, **G**uided".
- **Role:** A position of both **authority and neutrality**: balances political directives with bureaucratic objectivity and links the political executive with the permanent civil service.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 31-32

- Sarkaria on choosing a CM: the Governor's task is to see that a government is formed, not one whose policies he likes. A single party with absolute majority: its leader is asked automatically.
- Sarkaria order of preference if no majority: (1) pre-poll alliance, (2) largest single party with support of others including independents, (3) post-poll coalition with all partners in government, (4) post-poll alliance with some partners supporting from outside.
- Sarkaria: a CM who does not lead an absolute-majority party should seek a vote of confidence within 30 days. If members contest the CM's majority, the Governor should test it on the floor of the House, not decide himself.
- S.R. Bommai (1994): a CM cannot be dismissed while he has majority support in the Assembly. Many Governors have violated this by dismissing CMs without a floor test.
- Art 164(1B), added by the 91st Amendment: a legislator disqualified for defection is also disqualified from being a minister. Art 177: a minister may speak in either House and its committees but can vote only in the House he belongs to.
- Art 163(2) and (3): the Governor's decision on whether a matter is within his discretion is final, and the advice given by ministers cannot be enquired into by any court. Shamsher Singh (1974): the Governor's 'satisfaction' is the satisfaction of the Council of Ministers.

MY NOTES

- Art 166: all executive action is expressed in the Governor's name, and an order authenticated by rules cannot be questioned as not made by the Governor.
- Tribal welfare minister:
  - Originally required in Bihar, Madhya Pradesh and Odisha
  - The 94th Amendment 2006 freed Bihar and added Chhattisgarh and Jharkhand. The minister may also handle SC and backward-class welfare
- Cabinet decisions bind all ministers even if they disagreed
- A minister who cannot defend a decision must resign. A Council that lost confidence can advise dissolution, but the Governor may refuse
- A Deputy Chief Minister may sit in the Council, mostly for local political reasons. States have departments, not ministries. The Union Home Minister chairs all zonal councils, with the CM as vice-chairman by rotation.

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Who is the real executive head of a State?	The Chief Minister (de facto); the Governor is the nominal head.
Which Article appoints the CM?	Art. 164(1): by the Governor.
What if no party has a majority?	The Governor usually invites the largest party or post-poll coalition leader, who must prove majority, generally within a month.
Can a non-legislator become CM?	Yes (Art. 164(4)), but he must get elected within six months or cease to hold office.
What did B.R. Kapoor (2001) say about repeats?	No repeat appointment after the six months expire.
From which House is the CM drawn?	Either; conventionally the Assembly, but Council members have been CMs (UP and Bihar named).
What is the CM's term?	No fixed term; during the Governor's pleasure, which in practice is as long as the Assembly's confidence.
What happens when the CM resigns or dies?	The whole Council of Ministers collapses.
Which State bodies does the CM chair?	The State Planning Board.

What is the CM's role in the Zonal Council?	Vice-Chairman by rotation, one year at a time.
Which central bodies is the CM an ex-officio member of?	The Inter-State Council and the Governing Council of NITI Aayog.
What do Arts. 163, 164 and 167 say?	163: aid and advice with two exceptions; 164: appointments, tenure, responsibility, oath; 167: CM's duties to the Governor.
Two exceptions to Art. 163?	Discretion required by the Constitution, and special responsibilities.
How many ranks in the Council and are they in the Constitution?	Four (CM, Cabinet, MoS, Deputy), by convention not in the Constitution.
What is the 91st Amendment's cap?	Not more than 15% of the Assembly, not fewer than 12 including the CM.
What did the 2nd ARC suggest on the cap?	No blanket 15%; link Council size to the Assembly's strength.
What is collective responsibility?	The Council is jointly answerable to the Assembly; no-confidence forces the whole ministry, including the CM, to resign.
What is individual responsibility?	A minister answers for his department; the CM can ask him to resign or advise dismissal.
Why do ministers have no legal responsibility?	There is no countersignature requirement; accountability is political to the Assembly.
Which Schedule governs ministers' oaths?	The Third Schedule with Art. 164(3).
Who decides ministers' salary?	The State Legislature (Art. 164(5)); the Second Schedule applies until it legislates.
Who forms Cabinet committees?	The CM; they are standing or ad hoc.
Who appoints the Chief Secretary?	The CM, formally in the Governor's name; senior-most IAS; no fixed tenure.
Name six Chief Secretary functions.	Adviser to CM; head of civil services; Secretary to Cabinet; Centre-State liaison; crisis manager; guardian of discipline.
Who may prepare Money Bills in practice?	The Council of Ministers must approve them before introduction.

MY NOTES

What happens to a minister who is not a Legislature member for six consecutive months?	He ceases to be a minister (Art. 164).

Trap 1 · Majority before appointment?
The Constitution does not require a person to prove majority before being appointed CM. The Governor appoints first and then asks him to prove majority within a reasonable time. *Rule: appoint first, prove majority later on the floor of the House.*

Trap 2 · Six-month rule for non-members
A non-legislator CM must get elected within six months or he ceases to hold office. In the B.R. Kapoor case (2001) the Court said only a person qualified to contest can use this, and the same person cannot be re-appointed after the six months expire. *Rule: six months once; no repeat appointment.*

Trap 3 · One minister, whole Council
Even if a no-confidence motion is aimed at a single minister, the whole Council is treated as having lost the House's confidence. *Rule: collective responsibility means swim or sink together.*

Trap 4 · Political, not legal, responsibility
There is no countersignature as in Britain, so ministers cannot be sued or prosecuted for advice to the Governor. They answer to the Assembly, not the courts. *Rule: accountability is political, not legal.*

QUICK QUIZ

Q1. Consider: 1. The Chief Secretary in a State is appointed by the Governor. 2. The Chief Secretary has a fixed tenure. Which are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q2. A person who is not a member of either House of the State Legislature may be CM, but must be elected within:

1. three months
2. six months
3. one year
4. the first session

Q3. Under the 91st Amendment, a State's Council of Ministers including the CM cannot be:

1. more than 15% of the Assembly
2. less than 12
3. both of the above
4. neither of the above

Q4. On the resignation or death of a CM:

1. only the CM's portfolios change
2. the entire Council of Ministers collapses
3. the Governor must choose a new Council
4. Only the Cabinet resigns

Q5. The CM is Vice-Chairman, by rotation for one year at a time, of the:

1. Inter-State Council
2. State Planning Board
3. Zonal Council
4. NITI Aayog Governing Council

MY NOTES

Q6. Ministers in India are not legally responsible for the Governor's acts because:

1. they are exempt as elected members
2. the Constitution does not require ministerial countersignature
3. the Governor is above the Constitution
4. the Council is not answerable to anyone

Q7. In a hung Assembly the Governor usually:

1. dissolves the Assembly
2. invites the largest party or post-poll coalition leader to prove majority
3. appoints the oldest member
4. imposes President's Rule

Q8. Which ministers are the inner core and the supreme decision-making authority?

1. Deputy Ministers
2. Ministers of State
3. Cabinet Ministers
4. All members equally

Q9. B.R. Kapoor (2001) held that:

1. non-members cannot ever be CM
2. there can be no repeat appointment of a non-member after the six months
3. only experts can be ministers
4. the Governor decides majority

Q10. How are Cabinet committees formed?

1. By the Governor
2. By the Legislature
3. By the CM, standing or ad hoc
4. By the Chief Secretary

Q11. If the Assembly passes no-confidence even against one minister, the handout says:

1. only that minister resigns
2. the whole Council is considered to have lost confidence
3. the Governor chooses
4. the CM is unaffected

Q12. PYQ 2016: Consider the following statements: (2016)

1. The Chief Secretary in a State is appointed by the Governor of that State.

2. The Chief Secretary in a state has a fixed tenure. Which of the statements given above is/are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Answers: Q1 d, Q2 b, Q3 c, Q4 b, Q5 c, Q6 b, Q7 b, Q8 c, Q9 b, Q10 c, Q11 b, Q12 d

MY NOTES

CHAPTER 13 · HANDOUT: PANCHAYATI RAJ, URBAN LOCAL GOVERNMENT, 15TH FINANCE COMMISSION

13 Local Self-Government

HIGH PRIORITY

Mains PYQs quoted: **2013, 2015, 2017, 2018, 2019, 2020, 2022, 2024**

Prelims PYQs: **2011, 2012, 2013, 2015, 2016, 2017**

MY NOTES

EXAM LENS

MY NOTES

Prelims hooks

- democratic decentralisation (2017)
- minimum age and remainder of term (2016)
- Metropolitan Planning Committee and SFC/SEC (2011)
- PESA Gram Sabha powers (2012, 2013)
- Art. 40 and State List entry 5
- Mehta Committee tiers and the first state
- 64th, 65th, 73rd and 74th Amendments
- Part IX and Part IX-A article numbers
- Gram Sabha
- reservation (one-third women, SC/ST proportional)
- five-year term and six-month re-election
- age 21
- SFC every five years
- SEC
- Art. 243M exemptions
- 29 and 18 subjects
- DPC (four-fifths) and MPC (two-thirds)
- Art. 263 Central Council.
- Handout stresses: Part IX (Arts. 243-243O) and Part IX-A (Arts. 243P-243ZG) are set out article by article with a one-line rule for each (73rd and 74th Amendment sections)
- Handout stresses: Six mandatory and five voluntary provisions are listed under the 73rd Amendment (Compulsory and voluntary)
- Handout stresses: Handout names six committees (Mehta 1957, Ashok Mehta 1977, GVK Rao 1985, Singhvi 1986, Thungon 1988, Gadgil 1988) with what each recommended (Committees section)
- Handout stresses: The 15th Finance Commission gets a full section: Rs 4.36 lakh crore, 90:10 formula, 60:40 tied to untied, entry conditions (15th FC section)
- Handout stresses: Nine Prelims PYQs (2011 x2, 2012, 2013 x2, 2015, 2016 x2, 2017) and nine Mains PYQs (2013 to 2024) are quoted (PYQ section)
- Handout stresses: Challenges and way forward for PRIs are listed with examples (Challenges section)

Mains hooks

- Role of local bodies in good governance (2024)
- State reluctance to empower ULBs (2024)
- decentralisation and the grassroots (2022)
- Functions-Functionaries-Funds to Functionality (2020)
- women's reservation and patriarchy (2019)
- Panchayat finances beyond grants (2018)
- effectiveness of local self-government (2017, 2015)
- smaller States and bifurcation of districts (2013).

MY NOTES

The 73rd and 74th Amendments made local government a constitutional third tier, but real power depends on the 3Fs (functions, functionaries, funds) and the 4th F, functionality.

IN SIMPLE WORDS

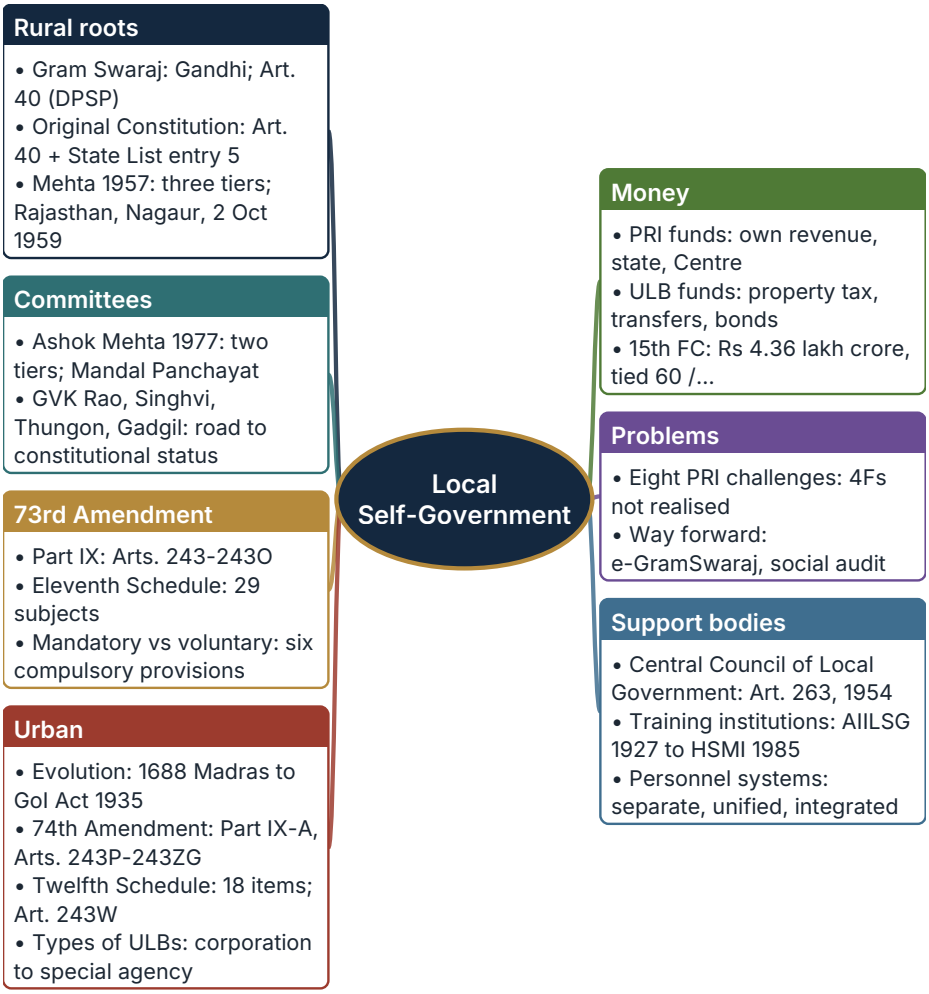
- **Local self-government** means villages and towns run their own affairs through elected bodies. It was only a **Directive Principle (Article 40)** and a **State List** subject (entry 5) until 1992.
- Several committees (**Balwant Rai Mehta 1957** first) argued for **democratic decentralisation**
- Rajasthan started Panchayati Raj on **2 Oct 1959** at Nagaur, then Andhra Pradesh
- The **73rd Amendment (1992)** made village bodies constitutional: **Part IX (Arts 243 to 243O)** and the **Eleventh Schedule (29 subjects)**. It gives a **three-tier** system, **5-year** terms, **one-third women** seats, a **State Election Commission** and a **State Finance Commission**.
- The **74th Amendment (1992)** did the same for towns: **Part IX-A (Arts 243P to 243ZG)** and the **Twelfth Schedule (18 subjects)**, with Nagar Panchayat, Municipal Council and Municipal Corporation.
- Problems remain: weak **devolution (3Fs and the 4th F, Functionality)**, tied funds, heavy dependence on grants, inactive **Gram Sabhas**. The **15th Finance Commission** gave a record **Rs 4.36 lakh crore** and linked grants to reforms.

Key term	In plain words
Gram Sabha	All registered voters of a village; the base of the democratic pyramid (Art 243A)
Intermediate level	The level between village and district, notified by the Governor; states with population up to 20 lakh may skip it
Eleventh Schedule	List of 29 subjects that Panchayats can handle (Art 243G)
Twelfth Schedule	List of 18 functional items for municipalities (Art 243W)
State Finance Commission (SFC)	Set up by the Governor every 5 years to review finances of Panchayats and municipalities
State Election Commission (SEC)	Controls elections to Panchayats and Municipalities; head appointed by the Governor, removed like a High Court judge
PESA Act, 1996	Extends Panchayat self-rule to Scheduled Areas where Part IX does not apply

MY NOTES

Key term	In plain words
District Planning Committee	Joins plans of panchayats and municipalities into one district plan; four-fifths of members elected (Art 243ZD)

MEMORY MAP: LOCAL SELF-GOVERNMENT



MNEMONIC · COMMITTEES ON PANCHAYATI RAJ IN ORDER

Bapu Asked: Give Locals Their Governance

B Balwant Rai Mehta (1957) **A** Ashok Mehta (1977) **G** G.V.K. Rao (1985)

L L.M. Singhvi (1986) **T** Thungon (1988) **G** Gadgil (1988)

Gandhi's Gram Swaraj idea (Bapu) is the root of Panchayati Raj; each word starts the next committee. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · ARTICLES 243A TO 243H

Gram Councils Compose Reserved, Durable, Disciplined, Powerful Taxers

- **G** Gram Sabha (243A)
- **C** Constitution of Panchayats (243B)
- **C** Composition (243C)
- **R** Reservation of seats (243D)
- **D** Duration (243E)
- **D** Disqualifications (243F)
- **P** Powers and responsibilities (243G)
- **T** Taxes and funds (243H)

A village council that is reserved for all, lasts five years, follows the rules, holds powers and taxes. (Memory aid, not from the handout.)

MNEMONIC · GRAM SABHA POWERS

A I R S

- **A** Approves the Gram Panchayat's annual plans and budgets
- **I** Identifies beneficiaries for housing, pensions, subsidies
- **R** Reviews development and welfare schemes
- **S** Social audits (e.g. MGNREGA Sec. 17)

In the Gram Sabha villagers AIR their views and check the Panchayat: all four powers in the handout. Order is rearranged for memory (the powers are unordered). (Memory aid, not from the handout.)

MNEMONIC · EIGHT TYPES OF URBAN LOCAL BODIES

C A M P M A T S

- **C** Cantonment Board
- **A** Area Committee, Notified (NAC)
- **M** Municipal Corporation
- **P** Port Trust
- **M** Municipality
- **A** Area Committee, Town (TAC)
- **T** Township
- **S** Special Purpose Agency

A Cantonment is a CAMP, so pitch the CAMP and lay the MATS: the eight types in two groups of four (two Area Committees: Notified and Town). The order is rearranged for memory (the types are unordered). (Memory aid, not from the handout.)

MNEMONIC · WHERE PART IX (PANCHAYATS) DOES NOT APPLY: ART. 243M

H A N D

- **H** Hill areas of Manipur
- **A** Areas that are Scheduled and tribal
- **N** Nagaland, Meghalaya and Mizoram
- **D** Darjeeling district of West Bengal

Part IX does not lend a HAND to these areas (PESA 1996 extends self-governance to Scheduled Areas). The order is rearranged for memory (the areas are unordered). (Memory aid, not from the handout.)

MY NOTES

LOCAL GOVERNMENT AND THE ORIGINAL CONSTITUTION

- Panchayati Raj is India's framework of **rural local self-government**: elected bodies at village (**Gram Panchayat**), intermediate/block (**Panchayat Samiti**) and district (**Zila Parishad**) levels plan, implement and monitor rural development. It brings decisions closer to people and keeps governance accountable and inclusive.
- **Gandhi's idea: Gram Swaraj**: self-reliant, self-governing villages as the backbone of democracy. Gandhi believed "India lives in her villages", so empowerment must begin at the village.

WHAT LOCAL GOVERNMENT MEANS

- Administration of a small locality by a body representing local inhabitants.
- A fairly large level of autonomy.
- Raises at least part of its revenue locally.
- Spends it on local services: basic amenities, sewage, sanitation, water supply, street lighting, roads, bridges, upkeep of the area.

THE ORIGINAL CONSTITUTION

ONLY TWO PROVISIONS AT THE START

Provision	Content
Article 40 (DPSP, Part IV)	State shall organise village panchayats and give them the powers and authority needed to function as **units of self-government**
State List, entry 5	Local self-government is a **State subject**

- The original Constitution gave local bodies **constitutional importance** but not **constitutional status**
- Status came in 1992. Art. 40 was only directive, so implementation was left to each State
- **Shortcut: Importance versus status. Importance** = Art. 40 + State List entry 5 (1950). **Status** = Part IX through the 73rd Amendment (1992).

ALSO IN THE HANDOUT

- In 1992, the government of India came up with the 73 rd and the 7 4th amendment act which gave constitutional status to the urban and rural local bodies.

EVOLUTION OF PANCHAYATI RAJ

- PRIs are set up by **Acts of State legislatures**
- The 73rd Amendment Act, 1992 constitutionalised them

MY NOTES

FROM MEHTA TO THE FIRST PANCHAYATS

- **Community Development Programme (1952) and National Extension Service (1953)**: Needed a check on how well they worked
- **Balwant Rai G. Mehta Committee (1957)**:
  - Appointed by the Government of India
  - Proposed "democratic decentralization"
- **NDC (January 1958)**: Accepted the recommendations but let States adopt their own models, provided core principles stayed uniform
- **2 October 1959**:
  - **Rajasthan** first, in **Nagaur** district
  - **Andhra Pradesh** followed the same year

STATES DIFFERED

VARIATION AMONG STATES

Feature	Example
Number of tiers	Rajasthan **three-tier**; Tamil Nadu **two-tier**; West Bengal **four-tier**
Rajasthan-Andhra Pradesh model	**Panchayat Samiti** stronger: block is the unit of planning and development
Maharashtra-Gujarat model	**Zila Parishad** dominant: district is the primary planning unit
Nyaya Panchayats	Several States set up judicial panchayats for minor civil and criminal cases (accessible local justice)

- **Memory aid (Tiers by State): R**ajasthan 3, **T**amil Nadu 2, **W**est Bengal 4: "**R**oads **T**o **W**ork": 3, 2, 4.

TWO MODELS

- **Rajasthan-AP model:**
  - Panchayat Samiti (block) more powerful
  - Block = unit of planning
- **Maharashtra-Gujarat model:**
  - Zila Parishad (district) more powerful
  - District = primary planning unit

PHASES OF DEMOCRATIC DECENTRALISATION

PHASES

Period	Name	Notes
1959-1965	**Ascendency**	Some developments taking place
1965-1969	**Stagnation**	No development
1969-1977	**Decline**	Heavy centralisation; State governments bypassed; Emergency (1975-77)

MY NOTES

Period	Name	Notes
1977 onwards	**Revival**	Janata party appointed the Ashok Mehta Committee
1992	**New Magna Carta phase**	73rd and 74th Amendments gave constitutional status to rural and urban bodies

- **Memory aid (Phases):** **A**scendency, **S**tagnation, **D**ecline, **R**evival, **N**ew Magna Carta: "**A**nts **S**ing **D**ull **R**hythmic **N**otes".

ALSO IN THE HANDOUT

- The journey toward this milestone spanned several governments and political ideologies during the late 1980s and early 1990s.
- It empowered citizens to shape development directly, realizing the spirit of democratic decentralization.

COMMITTEES ON PANCHAYATI RAJ

- Each committee added a piece of the final design.
- **Memory aid (Order of committees):** **B**alwant Rai Mehta (1957), **A**shok Mehta (1977), **G**.V.K. Rao (1985), **L**.M. Singhvi (1986), **T**hungon (1988), **G**adgil (1988): "**B**ig **A**pples **G**row **L**ike **T**iny **G**rapes".

SIX COMMITTEES AT A GLANCE

Committee	Objective	Key recommendations	Impact
Balwant Rai Mehta (1957)	Examine Community Development Programme (1952) and National Extension Service (1953); recommend democratic decentralisation	**Three tiers** (GP, Panchayat Samiti, Zila Parishad) linked by indirect elections; GP directly elected; Samiti = executive body; Zila Parishad = advisory and supervisory body; **District Collector chairs Zila Parishad**; genuine, progressive and continuous transfer of power and resources	Foundation of the system; Rajasthan first (Nagaur, 2 Oct 1959), then Andhra Pradesh
Ashok Mehta (1977)	Reasons for the **decline** of PRIs; revitalise	**Two tiers**: Zila Parishad (primary unit of planning) and **Mandal Panchayat** (group of villages, 15,000-20,000 population); SC/ST seats in proportion to population; **political parties** to take part; regular **social audits** and a **State Panchayati Raj Commission**; **District Planning Committee**; constitutional recognition strongly recommended	Not implemented because the **Janata Government fell (1979)**; redefined PR as an instrument of decentralised planning

MY NOTES

Committee	Objective	Key recommendations	Impact
G.V.K. Rao (1985)	Review administrative arrangements for rural development	Zila Parishad as principal planning and coordinating body; **DRDA merged with Zila Parishad**; strengthen block-level administration; popular participation and bureaucratic accountability	District made focal point; influenced the 73rd Amendment
L.M. Singhvi (1986)	Review status of PRIs; constitutional and legal measures	**Constitutional recognition**; a **new Part** exclusively for PR; regular, free and fair elections through **State Election Commissions**; **Nyaya Panchayats**; **Gram Sabha** as the foundation	Most recommendations went into the 73rd Amendment
P.K. Thungon (1988)	Groundwork for constitutional recognition and framework	Three tiers; elections every **five years**; reservation for SCs, STs and women; **SFCs and SECs**	Immediate basis of the **64th Amendment Bill (1989)**, later the 73rd Act after re-drafting by the Narasimha Rao government
Gadgil (1988)	Strengthen PRIs, effective decentralisation	Constitutional status; three tiers, all directly elected; **fixed five-year tenure** (no arbitrary dissolution); reservation for SCs, STs and women; constitutional list of subjects; power to levy, collect and use taxes plus an SFC; **State Election Commission**	Core foundation of the 73rd Amendment

- **Shortcut: Ashok Mehta contrast.** Mehta 1957 = **three tiers**, Samiti is the executive block. Ashok Mehta 1977 = **two tiers**, district is primary and Mandal Panchayat (15,000-20,000) replaces the block.

> **HANDOUT ALERT**
> Handout alert: The Ashok Mehta Committee is dated **1977** in the Panchayati Raj sections but **1978** in the urban committees list. Use **1977** (appointed by the Janata party; handout says its recommendations lapsed when the Janata Government fell in 1979).

ALSO IN THE HANDOUT

- Constitutional recognition of PRIs to ensure stability and continuity.

MY NOTES

- Despite its failure, the 64th Amendment Bill was a path-breaking attempt that formally placed the idea of constitutional Panchayati Raj on the national agenda.
- Subsequent legal measures further shaped the urban governance landscape.
- This arrangement aims to enhance administrative integration and ensure greater flexibility in managing urban and state-level functions.

THE ROAD TO THE 73RD AMENDMENT

- Before 1992, PRIs were weak and irregular because they depended on State discretion and had no constitutional backing.

THREE GOVERNMENTS, THREE ATTEMPTS

- **Rajiv Gandhi Government (1989)**:
  - **64th Amendment Bill**: three tiers, regular elections, reservation for SCs, STs and women, State Finance and Election Commissions, protection from arbitrary dissolution. **Lok Sabha passed it in August 1989**
  - **Rajya Sabha rejected it** (critics feared centralisation)
- **V.P. Singh Government (1990)**:
  - June 1990 two-day conference of Chief Ministers
  - Fresh Bill in the Lok Sabha in **September 1990**
  - Government fell so the Bill **lapsed**. Built consensus and cooperative federalism
- **P.V. Narasimha Rao Government (1991-92)**:
  - Redrafted, removed centralising clauses
  - Bill in the Lok Sabha **September 1991**
  - Passed **December 1992**
- **73rd Amendment Act, 1992**:
  - Presidential assent **20 April 1993**
  - In force **24 April 1993**
  - Added **Part IX (Arts. 243-243O)** and the **Eleventh Schedule** (29 subjects)

FAILED VERSUS SUCCESSFUL

- **64th Bill (1989):**
  - Rajiv Gandhi
  - Passed Lok Sabha
  - Defeated in Rajya Sabha
  - Seen as over-centralising
- **73rd Act (1992):**
  - Narasimha Rao
  - Consultation and redrafting
  - Stressed State autonomy

MY NOTES

- Became law

- **Memory aid (Leaders): R**ajiv (64th, 1989), **V**.P. Singh (1990 Bill, lapsed), **N**arasimha Rao (73rd, 1992): "**R**oad **V**ia **N**ew-delhi".

ALSO IN THE HANDOUT

- However, the discussions and consensus built during this period laid the groundwork for the eventual success of the next attempt.
- The government redrafted the earlier proposals, removing contentious clauses that were perceived as centralizing.

73RD AMENDMENT: PART IX, ARTICLES 243 TO 243E

- The Act made PRIs part of the justiciable Constitution. It operationalised Art. 40, obliged States to set up a uniform **three-tier system**, hold regular elections and devolve powers, and marks India's shift from representative to participatory democracy.

ARTICLES 243 TO 243E

Article	Rule
243 Definitions	District; **Gram Sabha** (persons registered in the electoral rolls of a village within the Panchayat area); **intermediate level** (between village and district, specified by the Governor); Panchayat (self-government institution for rural areas); Panchayat area; **population** (last preceding census with published figures); **village** (specified by the Governor, may be a group of villages)
243A Gram Sabha	Base of the democratic pyramid: all registered voters in the Panchayat area; village assembly to deliberate and oversee local development
243B Constitution	Uniform **three tiers**: village, intermediate, district. States with population **below 20 lakh** may skip the intermediate tier
243C Composition	All members at every level **directly elected**. Village chairpersons as per State law; intermediate and district chairpersons **indirectly elected** by and from among elected members
243D Reservation	**SC/ST** in proportion to population; **women one-third** of seats and of chairperson posts (including SC/ST women); **Backward Classes** at the State's discretion; **exception: Arunachal Pradesh** (83rd Amendment, 2000)
243E Duration	**5 years**; fresh election within **6 months** of dissolution; a reconstituted body serves only the **remainder** of the term

- **Memory aid (Articles A to O):**
  - **G**ram Sabha (A), **C**onstitution (B), **C**omposition (C), **R**eservation (D), **D**uration (E), **D**isqualification (F), **P**owers (G), **T**axes (H), **F**inance Commission (I), **A**udit (J), **E**lections (K), **U**Ts (L), **E**xemptions (M), **C**ontinuance (N), **B**ar on courts (O): "**G**ram **C**ouncils **C**hoose **R**epresentatives

MY NOTES

- **D**uration **D**ictates **P**owers
- **T**axes **F**und **A**ccounts
- **E**lections **U**nite
- **E**xempt areas **C**ontinue **B**arring courts."

- **Shortcut: Numbers to hold. 20 lakh** (skip middle tier), **one-third** women, **5 years**, **6 months**, **21 years**, **one year** (continuance), **24 April 1993**.

GRAM SABHA IN MORE DETAIL

- Direct-democracy platform of rural governance.
- **Powers**:
  - Approves the Gram Panchayat's annual plans and budgets
  - Reviews development and welfare schemes
  - Conducts **social audits** (e.g., MGNREGA Sec. 17)
  - Identifies beneficiaries for housing, pensions, subsidies
- **Backing**: State laws (e.g., MP Gram Swaraj Adhiniyam, Kerala People's Plan Campaign) and flagship programmes like MGNREGA and the **PESA Act 1996**.
- Eg: Kerala and Rajasthan empower Gram Sabhas to approve annual plans and social audits.
- **Memory aid (Gram Sabha powers): A**pproves plans and budgets, **R**eviews schemes, **S**ocial audits, **I**dentifies beneficiaries: "**A**ll **R**esidents **S**ee **I**mprovements".
- **PESA Act 1996:**
  - Extends Gram Sabha powers to **Scheduled Areas** (Fifth Schedule)
  - Lets it approve projects, manage minor water bodies, and safeguard tribal culture and identity
- **Examples in the handout:** Himachal Pradesh and Sikkim: functional three-tier. Goa, being smaller, runs a two-tier system. Bihar and Rajasthan have expanded women's reservation to 50%.

ALSO IN THE HANDOUT

- Definitions - In this Part, unless the context otherwise requires, 7.
- These issues have hindered their ability to function as effective agents of decentralized democracy envisioned in the Constitution.

ARTICLES 243F TO 243O

ARTICLES 243F TO 243O

Article	Rule
243F Disqualification	Ineligible for State Legislature elections, or under State laws; **minimum age 21**; disputes go to an authority designated by the State Legislature

MY NOTES

Article	Rule
243G Powers	States may devolve powers so Panchayats work as self-government institutions: plan and implement economic development and social justice schemes, including the **29 subjects** of the Eleventh Schedule. Eg: Kerala's People's Plan Campaign gives local bodies up to 40% of State plan funds
243H Taxes and funds	State legislature may authorise Panchayats to **levy, collect and appropriate** taxes and fees; assign State taxes; give **grants-in-aid**; create Panchayat funds. Eg: Karnataka and Maharashtra: property tax and water charges at GP level
243I Finance Commission	**Governor constitutes an SFC every 5 years** to review Panchayat finances: principles for tax sharing and grants, measures for financial autonomy, other fiscal reforms. Report laid before the State Legislature with an **Action Taken Report**. Eg: 15th Central FC: Rs 2.36 lakh crore for local bodies (2021-26)
243J Audit	States legislate for maintenance and audit of accounts. Eg: Kerala online auditing
243K Elections	**Superintendence, direction and control** of elections: **State Election Commission**, headed by a State Election Commissioner appointed by the Governor, removed only as a **High Court judge** is. SECs conduct elections for both Panchayats and Municipalities
243L Union Territories	Part IX applies to UTs with modifications by the **President**
243M Exempt areas	Does **not** apply to **Nagaland, Meghalaya, Mizoram**; Scheduled and tribal areas; **hill areas of Manipur**; **Darjeeling district** of West Bengal. Parliament passed **PESA 1996** for Scheduled Areas
243N Continuance	Existing State laws stayed valid for **one year** after commencement (24 April 1993); States had to enact conforming laws; most did by 1994
243O Bar on courts	Courts cannot interfere in Panchayat electoral matters; only **election petitions** per State law

- **Memory aid (Exempt areas):** **N**agaland, **M**eghalaya, **M**izoram, **S**cheduled and tribal areas, **H**ill areas of Manipur, **D**arjeeling: "**N**o **M**ore **M**ischief **S**ince **H**ills **D**iffer".

> **HANDOUT ALERT**
> Handout alert: The handout writes Art. 243B's reference in the definition of Panchayat as "2438" (a typo for **243B**). Use 243B.

COMPULSORY AND VOLUNTARY PROVISIONS

MANDATORY VERSUS VOLUNTARY (73RD AMENDMENT)

- **Mandatory (binding on all States):**
  - Constitutional status of PRIs (Arts. 243-243O)

MY NOTES

- Regular elections every five years (Art. 243E)
- Reservation for SC/ST and women (Art. 243D(3), 243T)
- Gram Sabha in every village (Art. 243A)
- State Election Commission (Art. 243K)
- State Finance Commission (Art. 243I)

- **Voluntary (State discretion):**
  - Devolution of powers and responsibilities (Art. 243G) largely at State discretion
  - Gram Panchayat structure, number of members and the intermediate tier
  - Merging smaller villages or creating new Panchayats
  - Additional reservations for backward classes or minorities beyond SC/ST/women
  - Assigning State schemes to PRIs
- **Memory aid (Six mandatory):** **C**onstitutional status, **R**egular elections, **R**eservation, **G**ram Sabha, **S**EC, **S**FC: "**C**ats **R**un **R**ound **G**rassy **S**lopes **S**ilently".
- **Shortcut:**
  - **Devolution is voluntary.** Even **Art. 243G** (devolution of functions) is left largely to States
  - This is why devolution varies and why the "4Fs" are not realised

THE ELEVENTH SCHEDULE: 29 SUBJECTS

- Inserted by the 73rd Amendment
- The handout also pairs the list with "village" themes

THE 29 SUBJECTS (HANDOUT ORDER)

Theme (handout)	Subjects
Poverty free and enhanced livelihoods village	1 Poverty alleviation programme; 2 Agriculture including extension; 3 Animal husbandry, dairying, poultry; 4 Fisheries; 5 Public distribution system; 6 Technical training and vocational education; 7 Markets and fairs; 8 Khadi, village and cottage industries; 9 Minor forest produce; 10 Small scale industries including food processing; 11 Rural housing
Healthy village	12 Health and sanitation including hospitals, PHCs and dispensaries; 13 Family welfare; 14 Adult and non-formal education
Child friendly village	15 Education including primary and secondary schools; 16 Women and child development
Water sufficient village	17 Minor irrigation, water management, watershed development; 18 Drinking water
Clean and Green village	19 Non-conventional energy sources; 20 Fuel and fodder; 21 Social forestry and farm forestry; 22 Land improvement, land reforms, land consolidation, soil conservation

MY NOTES

Theme (handout)	Subjects
Self-sufficient infrastructure	23 Roads, culverts, bridges, ferries, waterways, other communication; 24 Rural electrification including distribution; 25 Maintenance of community assets; 26 Libraries
Socially secured village	27 Social welfare including welfare of the handicapped and mentally retarded; 28 Welfare of the weaker sections, in particular SCs and STs
Village with good governance	29 Cultural activities

HANDOUT ALERT

Handout alert: The theme labels are flattened in the PDF and their exact span is read from where each label falls in the list. The 29 subjects and their order are certain; treat the theme grouping as a memory aid, not as tested wording.

- **Memory aid (Theme order):** **P**overty-free, **H**ealthy, **C**hild-friendly, **W**ater-sufficient, **C**lean-green, **S**elf-sufficient infrastructure, **S**ocially secured, **G**ood governance: "**P**oor **H**ens **C**an't **W**alk **C**lean, **S**o **S**he **G**oes".
- **Shortcut: Count check.** 11 + 3 + 2 + 2 + 4 + 4 + 2 + 1 = **29**.

SOURCES OF FUNDS FOR PRIS

WHERE PRIS GET MONEY

Source	Components	Examples and details
Own Source Revenue (OSR)	Local taxes and fees	House tax, property tax, professional tax, market fees, water tax, lighting tax
	User charges	Water supply, sanitation, street lighting, use of community assets
	Tolls and licences	Registration of cattle, shops, fairs, haats
	Non-tax revenues	Income from PRI-owned assets: ponds, markets, ferries, common lands
State Government transfers	Assigned/shared revenues	Share of State taxes: land revenue, excise duty, motor vehicle tax, entertainment tax
	Grants-in-aid	Purpose-specific grants: roads, drinking water, housing, sanitation
	State Finance Commission	Recommends distribution of State taxes, duties, tolls and grants between State and PRIs

MY NOTES

Source	Components	Examples and details
Central Government transfers	**Central Finance Commission**	Earmarked grants for PRIs **since the 10th FC**; 15th FC (2021-26): Rs 2.36 lakh crore for rural local bodies
	Centrally Sponsored Schemes	Direct fund flows: MGNREGA, PMAY-G, NRLM, Jal Jeevan Mission, Swachh Bharat Mission (Gramin)
	Central Sector Schemes	Smaller ministry-specific allocations: capacity building, e-governance pilots
Borrowings and other	Borrowings	Subject to State approval; rarely used; loans from financial institutions
	Donor/CSR	Support from private sector and NGOs; CSR, NGO-led rural infrastructure
	Community contributions	Villager participation: labour under MGNREGA; donations for temples, schools, wells

- **Memory aid (Three big buckets):** **O**wn revenue, **S**tate transfers, **C**entral transfers (plus borrowings and others): "**O**ur **S**tate **C**ares".

> **HANDOUT ALERT**
> Handout alert: The 15th FC rural grant is Rs **2.36** lakh crore in the Panchayat sections but Rs **2.4** lakh crore in the 15th FC section (rounded). Treat 2.4 as the rounded figure; the period is 2021-26.

CHALLENGES AND WAY FORWARD FOR PRIS

- Despite the 73rd Amendment, PRIs face deep structural problems.
- **Memory aid (Eight challenges):** **D**evolution inadequate, **B**ureaucratic control, **T**ied funding, **O**ver-dependence on grants, **R**eluctance to tax, **W**eak Gram Sabha, **P**arallel bodies, **I**nfrastructure and digital divide: "**D**ogs **B**ark **T**ill **O**wners **R**eturn **W**ith **P**et **I**guanas".

CHALLENGES EXPLAINED

Challenge	What happens
Lack of adequate devolution (the 4Fs)	The **3Fs**: Functions, Functionaries, Funds, now the **4th F: Functionality**. Many States have not transferred them in practice; Panchayats get duties without staff, resources or stable finances; **SFC recommendations remain unimplemented**
Excessive bureaucratic control	Sarpanches and members spend disproportionate time seeking approvals and fund releases from block/district officials; autonomy erodes
Tied and scheme-bound funding	Funds earmarked for centrally or State-sponsored schemes with rigid conditions; one-size-fits-all; misallocation or under-use

MY NOTES

Challenge	What happens
Over-dependence on grants	Weakens fiscal accountability and citizen engagement (e.g., lower demand for social audits)
Reluctance to use fiscal powers	Representatives fear political backlash or social friction, so own-revenue is chronically low
Weak Gram Sabha	State laws often do not define powers, procedures or enforcement; Gram Sabhas inactive or ritualistic; marginalised groups lose a forum
Parallel bodies	Mission cells, development societies, autonomous agencies bypass PRIs, duplicate functions, concentrate resources, foster **elite capture**
Poor infrastructure, capacity, digital divide	Lack of secretaries, buildings, databases, IT; limited training and literacy; only a small fraction of GPs have digital access

WAY FORWARD AND BEST PRACTICES

SEVEN PRACTICES WITH EXAMPLES

Practice	Example
Participatory planning (Gram Sabha and Ward Sabha)	Kerala's **Kudumbashree** links PRIs with women's self-help groups
Transparency and digital governance (**e-GramSwaraj, PFMS**)	Rajasthan's e-Panchayat
Social audits (e.g., MGNREGA)	Andhra Pradesh: mandatory social audits through Gram Sabhas
Capacity building	Ministry of Panchayati Raj's State Resource Centres
Women and marginalised empowerment	**Panchayat Se Parliament 2.0** brings grassroots women leaders, especially tribal, into governance discourse
Innovative local initiatives	Maharashtra's Panchayat-led watershed management
Performance monitoring with incentives and awards	Rajasthan's **Rajiv Gandhi Panchayat Sashaktikaran Abhiyan** awards

- **Shortcut: Mains frame.** Answer in three blocks: **Functions-Functionaries-Funds** (devolution), **control** (bureaucracy, tied funds, parallel bodies), **capacity** (Gram Sabha, digital, training). Then add two or three examples from the way-forward table.

ALSO IN THE HANDOUT

- In practice Gram Panchayats frequently operate under the shadow of the bureaucracy.

MY NOTES

- Creation and Encroachment by Parallel Bodies: Multiple parallel structures — mission cells, development societies, autonomous agencies — are created for speedy implementation.

URBAN LOCAL GOVERNMENT: EVOLUTION

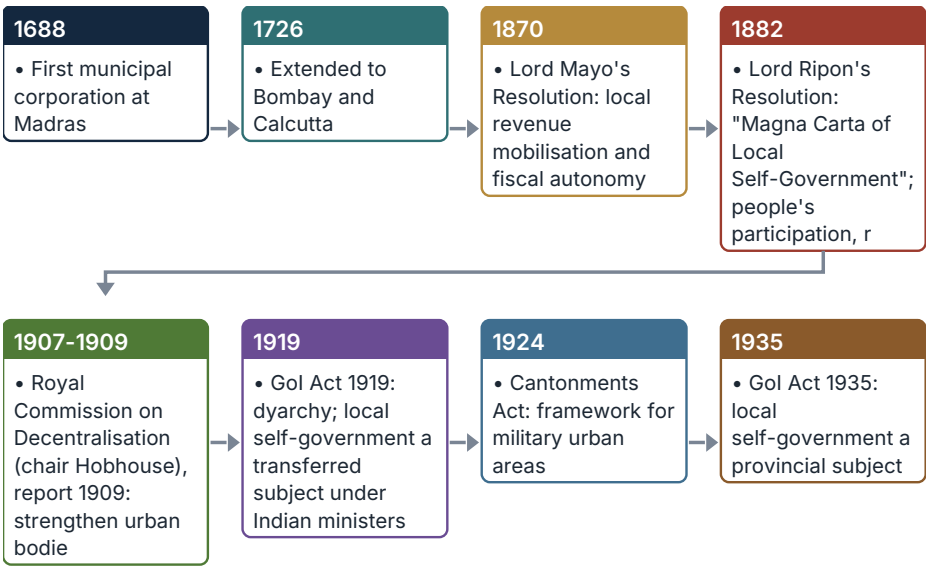
- Urban local government is administration of urban areas by **elected representatives**
- The jurisdiction of a body is an urban area **demarcated by the State Government**

COLONIAL EVOLUTION

- **1688**: First **municipal corporation** at **Madras**
- **1726**: Extended to **Bombay and Calcutta**
- **1870**: **Lord Mayo's Resolution**: local revenue mobilisation and fiscal autonomy
- **1882**:
  - **Lord Ripon's Resolution**: "**Magna Carta of Local Self-Government**"
  - People's participation, representation of Indians, financial decentralisation
- **1907-1909**: **Royal Commission on Decentralisation** (chair **Hobhouse**), report 1909: strengthen urban bodies administratively and financially
- **1919**:
  - **GoI Act 1919**: dyarchy
  - Local self-government a **transferred subject** under Indian ministers
- **1924**: **Cantonments Act**: framework for military urban areas
- **1935**: **GoI Act 1935**: local self-government a **provincial subject**

MY NOTES

COLONIAL EVOLUTION



- **Memory aid (Landmarks):** **M**ayo 1870, **R**ipon 1882, **H**obhouse 1907-09, **D**yarchy 1919, **C**antonments Act 1924, **P**rovincial subject 1935: "**M**any **R**ulers **H**eard **D**ull **C**ouncil **P**roposals".
- **Two Magna Cartas:** Ripon's 1882 Resolution is the "Magna Carta of Local Self-Government" (colonial). The handout also calls the 1992 constitutional phase the **New Magna Carta phase**.

MINISTRIES DEALING WITH URBAN BODIES

CENTRAL MINISTRIES

Ministry	Role
Housing and Urban Affairs	Overall policy, coordination, implementation of urban schemes
Defence	**Cantonment Boards**
Home Affairs	**Union Territories**

ALSO IN THE HANDOUT

- The origins of urban governance can be traced back to the colonial period, when structured municipal administration was first introduced to serve the interests of trade and local administration.
- This pre-independence evolution illustrates a gradual shift from colonial centralised control towards increased local participation and self-governance, thereby laying the groundwork for the constitutionalisation of urban local bodies in post-independence India.

THE 74TH AMENDMENT: PART IX-A

- Culmination of decades of effort
- It made municipalities **third-tier governments**

MY NOTES

ROAD TO THE 74TH AMENDMENT

- **1989**:
  - Rajiv Gandhi government: **65th Amendment Bill (Nagarpalika Bill)**
  - Passed Lok Sabha, **defeated in Rajya Sabha**, lapsed
- **1990**:
  - V.P. Singh (National Front): revised Nagarpalika Bill
  - **lapsed** with dissolution of Lok Sabha
- **1991**: P.V. Narasimha Rao: modified **Municipalities Bill**
- **74th Amendment Act, 1992**: Came into effect **1 June 1993**
- Added **Part IX-A, "The Municipalities"**, **Arts. 243P-243ZG**.
- Inserted the **Twelfth Schedule** with **18** items (Art. 243W).
- Regular elections, reservation for SCs, STs and women, and devolution of powers and funds
- Municipalities are **justiciable** and States must implement

PANCHAYATS VERSUS MUNICIPALITIES (HEADLINE NUMBERS)

- **73rd Amendment (rural):**
  - Part IX
  - Arts. 243-243O
  - Eleventh Schedule
  - 29 subjects
  - Art. 243G
  - In force 24 April 1993
  - Bill number 64th
- **74th Amendment (urban):**
  - Part IX-A
  - Arts. 243P-243ZG
  - Twelfth Schedule
  - 18 items
  - Art. 243W
  - In force 1 June 1993
  - Bill number 65th

ARTICLES 243P TO 243ZE

Article	Rule
243P Definitions	**Metropolitan area**: population **ten lakh or more** in one or more districts, with two or more Municipalities or Panchayats or other contiguous areas, specified by the Governor; Municipal area notified by the Governor; Committee under 243S; Municipality under 243Q
243Q Constitution	(a) **Nagar Panchayat** for a **transitional area** (rural to urban); (b) **Municipal Council** for a **smaller urban area**; (c) **Municipal Corporation** for a **larger urban area**

MY NOTES

Article	Rule
243R Composition	Members **directly elected** from territorial constituencies called **wards**; State legislature decides how the chairperson is chosen. May include non-voting persons with special knowledge, MPs and MLAs of the area, chairpersons of committees other than ward committees
243S Wards Committees	Municipalities with population **above 3 lakh** must constitute wards committees; States may create other committees
243T Reservation	SC/ST proportional; **one-third women** (including SC/ST women); backward classes at State option; SC/ST reservation **time-bound as per Art. 334**
243U Duration	**5 years**; election before expiry or within **6 months** of dissolution; reconstituted body serves the remaining term; reasonable opportunity of being heard before dissolution; amendments to existing laws cannot prematurely dissolve them
243V Disqualification	As per State laws or laws on State legislature elections; disputes to an authority designated by the State
243W Powers	Self-government; plan and implement economic development and social justice schemes, especially the **18 items** of the Twelfth Schedule
243X Taxes and funds	States may authorise levy of taxes, duties, tolls, fees; assign State taxes; **grants-in-aid** from the State Consolidated Fund; create funds
243Y Finance Commission	**SFC every five years** reviews finances, recommends tax distribution, assigned revenues, grants, measures to strengthen finances, other matters referred by the Governor; **Central FC** may suggest measures to augment municipal resources
243Z Audit	States may legislate for maintenance and audit of accounts
243ZA Elections	**State Election Commission** (Art. 243K) controls electoral rolls and elections to Municipalities; the State legislature may legislate on related matters
243ZB UTs	Applies to UTs with modifications by the President. In **2001** the President directed that **243ZD and 243ZE do not apply to the NCT of Delhi**
243ZC Exempt areas	**Scheduled and tribal areas** and the **Darjeeling Gorkha Hill Council** are exempt; Parliament may extend with exceptions or modifications
243ZD District Planning Committee	Consolidates plans of Panchayats and Municipalities into a district plan; **four-fifths** of members elected from municipalities and panchayats, in proportion to rural-urban population
243ZE Metropolitan Planning Committee	Drafts development plans for metropolitan areas; **two-thirds** of members elected; plans consider spatial planning, resource sharing, infrastructure, environment, government priorities

- **Memory aid (Three kinds of Municipality):** **T**ransitional = Nagar Panchayat, **S**maller = Municipal Council, **L**arger = Corporation: "**T**ea, **S**now, **L**ake": small to large.

MY NOTES

- **Shortcut:**
  - **Fractions.** DPC **4/5** elected
  - MPC **2/3** elected
  - Ward committees above **3 lakh**
  - Metropolitan area **10 lakh**
  - No intermediate tier below **20 lakh** (rural)

> **HANDOUT ALERT**
> Handout alert: Art. 243V is worded as "persons aged **21-25** are eligible" (carried over from the PDF) while the Panchayat rule (Art. 243F) says **minimum age 21**. For Prelims quote **21 years** as the minimum age.

ALSO IN THE HANDOUT

- The Congress Government under Prime Minister P.V. Narasimha Rao, who assumed office in June 1991, revived the process of constitutionalizing PRIs with a pragmatic and balanced approach.
- ## Salient Features/Provisions associated with the 74th Amendment 1.
- It enables Panchayats and Municipalities to plan proactively rather than depend passively on State-level funds.

TWELFTH SCHEDULE AND TYPES OF MUNICIPAL GOVERNMENT

TWELFTH SCHEDULE (18 ITEMS)

- The handout names these (urban planning, land regulation, economic and social development, roads, water supply, sanitation, fire services, urban forestry, slum improvement, urban amenities, cultural promotion, burials, animal welfare, vital statistics, public amenities, regulation of slaughterhouses and tanneries). It states the total as **18**.

> **HANDOUT ALERT**
> Handout alert: Only 16 items are named in the paragraph. The count to remember is **18** (the text says "including"). Do not try to force the named list to 18.

TYPES OF URBAN LOCAL GOVERNMENT

EIGHT TYPES

Type	Description and governance
Municipal Corporation (Mahanagar Palika)	Large metropolitan cities; State laws (Parliamentary Acts in UTs). **Council** (directly elected councillors plus nominated experts) headed by a **Mayor** (largely ceremonial); **Standing Committees** (public works, health, education, taxation, finance); **Municipal Commissioner** (usually IAS) is chief executive

MY NOTES

Type	Description and governance
Municipality (Nagar Palika / Municipal Council / Board)	Smaller towns; structure like corporations but the **Chairperson/President holds real executive power**; Standing Committees; Chief Executive Officer manages administration
Notified Area Committee	Fast-developing areas not meeting full municipality criteria; **entirely nominated** (Chairman and members appointed by the State); works under the State Municipal Act as notified in the Gazette; powers similar to municipalities
Town Area Committee	Smaller, transitional areas between rural and urban; limited services (roads, drainage, lighting, conservancy); fully elected, fully nominated or mixed as per State law
Cantonment Board	Cantonment areas under the **Ministry of Defence**, regulated by the **Cantonments Act, 2006**; elected plus nominated/ex-officio members; **Station Commander is ex-officio President**; obligatory and discretionary civic functions
Township	Created by public or industrial enterprises for employees' housing colonies; appointed **Town Administrator**, no elected members; part of the enterprise's machinery
Port Trust	Statutory bodies under Parliamentary Acts in port cities; civic amenities and port operations; elected plus nominated members; Chairman is an official
Special Purpose Agency	State legislation or executive order; single functions (planning, housing, water, sewerage, electricity, transport, pollution control); function-based, independent of territorial ULBs

- **Memory aid (Eight types):**
  - **C**orporation, **M**unicipality, **N**otified Area, **T**own Area, **C**antonment, **T**ownship, **P**ort Trust, **S**pecial purpose: "**C**ats **M**ake **N**oisy **T**ea
  - **C**ows **T**aste **P**lain **S**ugar"
- **Shortcut: Who is elected. Fully nominated**: Notified Area Committee. **No elected members**: Township. Elected plus nominated: Cantonment Board, Port Trust, Corporation council (with nominated experts).

PATTERNS OF MUNICIPAL GOVERNMENT

BOMBAY VERSUS HOWRAH/CALCUTTA PATTERN

- **Bombay pattern:**
  - Separation of powers: Mayor only ceremonial
  - **Municipal Commissioner** (bureaucrat) holds executive power
  - His appointment and transfer lie with the State Government

MY NOTES

- **Howrah/Calcutta pattern:**
  - **Mayor holds executive powers**, Commissioner works under him
  - Stronger democratic accountability, also recommended by the **2nd ARC**

ALSO IN THE HANDOUT

- Subsequently, other states too adopted similar structures.
- Proposing new legislation to improve the functioning of urban local bodies.

COMMITTEES ON URBAN GOVERNANCE

COMMITTEES AND COMMISSIONS

Body	Contribution
Lord Ripon's Resolution (1882)	Magna Carta of Local Self-Government; participation, representation of Indians, financial decentralisation
Local Finance Enquiry Committee (1951)	Municipal finances; more local revenue via **property tax** and grants-in-aid; financial autonomy
Taxation Enquiry Commission (1953-54)	Expand municipal tax base; States should **share certain taxes** with municipalities
Balwant Rai Mehta (1957)	Mainly PR, but stressed urban bodies for development planning
Ashok Mehta (handout date 1978)	Rural-focused; integrate **urban and rural planning at district level**
National Commission on Urbanisation (1985), chair **Charles Correa**	Urbanisation as driver of growth; classified towns into categories; **National Urbanisation Policy**; metropolitan planning for large cities and special planning for medium towns
G.V.K. Rao (1985)	Decentralised planning; role of local bodies incl. municipalities
L.M. Singhvi (1986)	**Constitutional recognition** for local bodies including municipalities; regular elections, financial devolution, citizen participation
2nd Administrative Reforms Commission (2007)	Report on "Local Governance": capacity building, financial autonomy, e-governance, citizen participation; effective **Metropolitan Planning Committees**
HPEC on Urban Infrastructure and Services (2011), chair **Isher Judge Ahluwalia**	Investment need **Rs 39 lakh crore over 20 years**; user charges, **municipal bonds**, **PPPs**

MY NOTES

Body	Contribution
15th Finance Commission	Rs 1.21 lakh crore for ULBs tied to property tax and service delivery reforms; performance-linked grants for solid waste, air quality and basic services

- **Memory aid (Urban inquiry order):** **L**ocal Finance Enquiry 1951, **T**axation Enquiry 1953-54, **N**ational Commission on Urbanisation 1985, **C**onstitutional amendment 1992, **H**PEC 2011: "**L**ong **T**asks **N**eed **C**areful **H**elp".

SUCCESSFUL ULBS NAMED IN THE HANDOUT

BEST PRACTICES

ULB	Known for
Surat (Gujarat)	Waste management, urban sanitation, high Swachh Survekshan rankings
Indore (MP)	Solid waste management; topped Swachh Survekshan multiple times
Pune (Maharashtra)	**First Indian city to issue municipal bonds**
Ahmedabad (Gujarat)	Urban planning, GIS-based property tax, e-governance
Chandigarh	Public service delivery, citizen forums
Bhubaneswar (Odisha)	Smart city initiatives, GIS mapping, sustainable mobility
Kochi (Kerala)	Decentralised governance; PPPs in water supply and waste

> **HANDOUT ALERT**
> Handout alert: The 15th FC urban figure appears as Rs **1.21** lakh crore (2020-25 in one place), Rs **1.2 lakh+** crore (2021-26) and Rs **1.2** lakh crore (15th FC section). The same grant is meant; use **2021-26** and about **Rs 1.2 lakh crore**.

ALSO IN THE HANDOUT

- Landmark report highlighting urbanization as a key driver of economic growth.

SOURCES OF FUNDS FOR ULBS

WHERE ULBS GET MONEY

Source	Components	Details
Own sources	**Property tax**	Major municipal revenue; land and buildings

MY NOTES

Source	Components	Details
	Other taxes	Profession, entertainment, advertisement, vehicle tax (per State law)
	Non-tax revenue	User charges (water, drainage, waste), licence fees, rent, market fees
State transfers	**SFC transfers**	Recommended under **Art. 243-I** (as the handout writes it); periodic devolution
	Assigned revenues	Share of motor vehicle tax, entertainment duty, surcharge on stamp duty
	Grants-in-aid	Specific or general
Central transfers	**Finance Commission grants**	15th FC: Rs 1.2 lakh+ crore to ULBs for 2021-26
	CSS	Smart Cities, AMRUT, Swachh Bharat Mission, PMAY-Urban
Market-based	Borrowings and **municipal bonds**	Pune, Ahmedabad, Indore
	Institutional loans	HUDCO, commercial banks, World Bank, ADB
	PPP models	Infrastructure with private participation
Development charges	**Impact fee / betterment levy**	Charged from property owners who benefit from improvements
	Development charges	Fees from developers for approvals, land-use conversion, building permissions
Innovative financing	**Land monetisation**	Leasing or auctioning municipal lands
	TDR (Transfer of Development Rights)	Capturing land value for infrastructure
	User-fee projects	Waste-to-energy plants, parking fees, bus rapid transit

HANDOUT ALERT

Handout alert: The handout cites the SFC for urban bodies under "Art. 243-I" (the Panchayat SFC article). The urban SFC article is **Art. 243Y** as set out in the 74th Amendment section. Use **243Y** for ULBs.

RBI'S 2024-25 REPORT ON MUNICIPAL FINANCES

FOUR FINDINGS

Theme	Finding
Fiscal capacity	ULBs generate only **0.6% of GDP** in revenue

MY NOTES

Theme	Finding
Dependence on transfers	**Over two-thirds** of ULB income is central and State transfers
Borrowings and bonds	Municipal bonds only **0.09%** of total corporate bond issuances
Financial management	Most ULBs lack standard accounting; many use **cash-based** systems

- **Shortcut: Numbers. 0.6%** GDP, **two-thirds** transfers, **0.09%** bonds.

MUNICIPAL PERSONNEL, TRAINING AND THE CENTRAL COUNCIL

THREE PERSONNEL SYSTEMS

MUNICIPAL PERSONNEL

System	Meaning	Strength	Weakness	States
Separate	Each ULB appoints and controls its own staff; **not transferable** between ULBs	Local autonomy, undivided loyalty, context-specific staffing	Limited mobility, uneven capacity	**Most common** in India
Unified	State creates a **State-wide municipal cadre**, transferable across ULBs within the State	Standard service rules, mobility, easier training	Dilutes local control; bureaucratic dominance	**Andhra Pradesh, Tamil Nadu, Uttar Pradesh, Rajasthan, Madhya Pradesh**
Integrated	Municipal staff **merged with the State civil service**; transferable across ULBs and State departments	High mobility, career progression, policy coherence	Municipal autonomy overshadowed by State control	**Odisha, Bihar, Karnataka, Punjab, Haryana**

- **Memory aid (Personnel systems): S**eparate = own staff, **U**nified = State-wide ULB cadre, **I**ntegrated = merged into State service. Order of control: ULB, then State municipal cadre, then State civil service.

TRAINING AND CAPACITY-BUILDING INSTITUTIONS

INSTITUTIONS IN ORDER

- **1927**: **All-India Institute of Local Self-Government**, Mumbai (private registered society; one of the oldest)

MY NOTES

- **1967**: **Centre for Urban and Environmental Studies**, New Delhi (on the **Nur-Ud-Din Ahmed Committee**)
- **1968**: **Regional Centres** for Urban and Environmental Studies: Kolkata, Lucknow, Hyderabad, Mumbai
- **1976**: **National Institute of Urban Affairs (NIUA)**: think tank for urban policy, planning, research
- **1985**: **Human Settlement Management Institute**

INSTITUTIONS IN ORDER



- **Memory aid (Training order):** **A**IILSG 1927, **C**UES 1967, **R**egional centres 1968, **N**IUA 1976, **H**SMI 1985: "**A**ll **C**ities **R**equire **N**ew **H**ands".

CENTRAL COUNCIL OF LOCAL GOVERNMENT

- Set up in **1954** under **Art. 263** by a Presidential Order
- First called **Central Council of Local Self-Government** ("self-government" dropped in the 1980s as redundant)
- Until **1958** it covered urban and rural
- Since then **urban only**
- **Advisory** body for Centre-State coordination in local administration.
- **Members**: Union Minister for Urban Development (**Chairman**) and State Ministers in charge of local government.

FUNCTIONS OF THE COUNCIL

Function
Formulate and recommend policies on local governance
Propose new legislation for ULBs
Facilitate Centre-State cooperation in urban affairs
Design common programmes of action

MY NOTES

Function
Advise on Central financial assistance to local bodies
Review performance of ULBs receiving Central support

- **Shortcut:**
  - **Art. 263.** The Council is created by **Presidential Order** under Art. 263 in 1954
  - It is advisory and urban-only since 1958

ALSO IN THE HANDOUT

- India uses three broad personnel arrangements, each reflecting different trade-offs between local control and state-level uniformity.
- However, it suffers from limited mobility, uneven administrative capacity, and difficulty in pooling expertise.
- This system promotes standardisation of service conditions and facilitates the redistribution of skilled staff.

THE 15TH FINANCE COMMISSION AND LOCAL BODIES

- Local government is the closest tier
- It cannot deliver water, sanitation, street lighting or waste management without predictable money. FC-XV made the **highest-ever grant** to local bodies, partly linked to performance and reforms

TOTAL GRANTS: RS 4.36 LAKH CRORE (2021-26)

Component	Amount
Rural local bodies (Panchayats)	Rs **2.4** lakh crore
Urban local bodies (Municipalities)	Rs **1.2** lakh crore
Health grants through local governments	Rs **70,051 crore** (first-ever dedicated health grants through local bodies)

HANDOUT ALERT

Handout alert: 2.4 + 1.2 + 0.70051 comes to about Rs 4.30 lakh crore, not 4.36. Quote the **headline Rs 4.36 lakh crore** and the component figures as the handout gives them; the handout also says this is nearly **4.2% of the divisible pool**.

MY NOTES

TIED VERSUS UNTIED (RURAL BODIES)

UNTIED 40 VERSUS TIED 60

- **Untied (40%):**
  - Local priorities and Gram Sabha resolutions: streetlights, small roads, culverts
  - Repair of GP buildings, drainage, sanitation
  - Local innovations (rainwater pits, village markets, CCTV)
  - Community facilities and sports grounds
  - Minor emergency responses
- **Tied (60%):** Two sectors: **drinking water** (under **Jal Jeevan Mission**: tap connections, groundwater recharge, rainwater harvesting, quality testing, maintenance) and **sanitation** (to reach **ODF+, ODF++**: solid waste, liquid/greywater, faecal sludge, village drainage, sanitation workers' support)

HEALTH GRANTS (RS 70,051 CRORE)

- Convert **Sub-Centres and PHCs into Health and Wellness Centres (HWCs)**.
- Strengthen **diagnostic infrastructure** for primary healthcare.
- **Block-level public health units**.
- **Urban health systems**: UPHCs, sub-centres, HWCs.

FORMULA AND TIERS

HOW THE MONEY IS SHARED

Rule	Detail
Distribution (all grants except health)	**90% population (2011 Census)** and **10% area**
Gram Panchayat share	**70-85%**
Block Panchayat share	**10-25%**
District Panchayat share	**5-15%**

- **Shortcut:**
  - **Memory. 90:10** (population:area)
  - **40:60** (untied:tied)
  - GP **70-85**, Block **10-25**, District **5-15**

ENTRY CONDITIONS AND RELEASE

- **Memory aid (Entry conditions): A**ccounts online (provisional and audited, in eGramSwaraj and AuditOnline), **P**roperty tax reforms (urban: minimum floor rates, better collection, fewer arrears), **S**FC constituted on time, report tabled, acted upon: "**A**ll **P**anchayats **S**ubmit".

MY NOTES

RELEASE MECHANISM

- **Entry conditions met**: Needed for everything
- **1st instalment**: Released **automatically** if entry conditions are met
- **2nd instalment**: Depends on **utilisation and reporting**: at least **50%** of the previous instalment used, **Grant Transfer Certificates (GTCs)** submitted, online accounting through **PFMS**
- **Penalty**: If a State does not constitute and act on SFCs, **no grants to any local body in that State after March 2024**

PLANNING FRAMEWORK

BOTTOM-UP PLANNING

- **Village Action Plan (VAP)**: **5-year** plan: water source mapping, greywater treatment, infrastructure needs, **O&M** strategy
- **Gram Panchayat Development Plan (GPDP)**: VAP feeds the GPDP, integrating **JJM, SBM-G, MGNREGS, DMF** and State schemes

WHY IT IS TRANSFORMATIVE

- **Largest-ever** fund flow to local governments.
- **WASH emphasis**: 60% of rural grants tied to drinking water and sanitation.
- **Modernisation**: eGramSwaraj, PFMS and AuditOnline make accounts digital and real-time.
- **Autonomy with accountability** through tied and untied grants.
- **Health governance** decentralised through local bodies.
- **SFCs enforced**:
  - Grants linked to timely SFC constitution and action
  - Strengthens fiscal federalism
- **Conclusion:** A decisive shift in decentralisation: record allocation, strict transparency norms, sector priorities and innovative health grants meant to make local governments stronger, more autonomous and more accountable.

ALSO IN THE HANDOUT

- This large allocation signals a strategic shift towards empowered, financially stable, and accountable LSGs.
- Untied grants provide flexibility.
- 10% weightage – Area This ensures that funds flow equitably while accounting for geographical spread.
- This enhances transparency, prevents fund leakages, and standardises financial reporting nationwide.
- This balances democratic autonomy with fiscal discipline and measurable outcomes.

MY NOTES

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 39 PANCHAYATI RAJ AND CH 40 MUNICIPALITIES

- Balwant Rai Mehta Committee was appointed in January 1957 and reported in November 1957. The National Development Council accepted it in January 1958 and let states choose their own pattern. Zila Parishad was to be 'advisory, coordinating and supervisory'.
- Ashok Mehta Committee:
  - Appointed December 1977 by the Janata Government, report August 1978, 132 recommendations. District is the first point of decentralisation
  - Zila Parishad is the executive body
  - Compulsory taxation powers for PRIs
  - If a body is superseded, elections within six months
  - Nyaya Panchayats under a qualified judge, separate from development panchayats
- G.V.K. Rao Committee found development had become bureaucratised, 'grass without roots'. It wanted a District Development Commissioner as chief executive of the Zila Parishad and noted elections were overdue in 11 states. Singhvi called the Gram Sabha the 'embodiment of direct democracy' and wanted tribunals for election disputes. Thungon wanted the District Collector as CEO of the Zila Parishad and a maximum supersession of six months.
- Passing of the 73rd Act:
  - Lok Sabha 22 December 1992, Rajya Sabha 23 December 1992, approved by 17 state assemblies, President's assent 20 April 1993. States had one year from 24 April 1993 to pass new laws
  - Most did so in 1993 and 1994
- More compulsory items: minimum age 21, voting rights for the chairperson and all members, indirect election of chairpersons at intermediate and district levels. Voluntary items: representation of MPs and MLAs in Panchayats, reservation for backward classes, and deciding how the village chairperson is elected. If a dissolved body has less than six months left, no fresh election is needed. SC/ST reservation lasts as long as Article 334 (till 2030).
- PESA Act 1996 (President's assent 24 December 1996):
  - Ten states have Fifth Schedule areas. Gram Sabha approves plans and identifies beneficiaries
  - STs get not less than one-half of seats and all chairperson posts
  - The state may nominate unrepresented STs up to one-tenth of members

MY NOTES

  - Gram Sabha owns minor forest produce and is consulted before land acquisition
- Panchayat finances (2nd ARC):
  - Sources are Central Finance Commission grants (Art 280), State Finance Commission devolution (Art 243-I), state loans and grants, Centrally Sponsored Schemes and own revenue. Only Gram Panchayats have a real tax domain
  - The intermediate and district tiers rely on tolls, fees and non-tax revenue
- Urban history:
  - Charter for the Madras Corporation issued 30 December 1687, corporation began 29 September 1688. Lord Ripon is called the father of local self-government in India
  - Hobhouse chaired the 1907 Royal Commission. The 65th Bill was introduced in August 1989 and defeated in the Rajya Sabha in October 1989
- Area type under the 74th Act depends on population, density, revenue, share of non-agricultural jobs and economic importance. An industrial township run by a company need not have a municipality. Wards committees are for municipalities with population of three lakh or more.
- Mayor is elected for a one-year renewable term in most states. There are 62 cantonment boards in four categories by civil population (above 50,000; 10,000 to 50,000; 2,500 to 10,000; below 2,500) under the Cantonments Act 2006, replacing the 1924 Act. Lakshmikanth differs: it gives Ashok Mehta as appointed 1977, report 1978, and G.V.K. Rao as appointed 1985, report 1986
- The handout dates them 1977 (some places 1978) and 1985, so use the handout years in class

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

What gave local bodies importance but not status in 1950?	Art. 40 (DPSP) and State List entry 5.
Who first adopted Panchayati Raj and when?	Rajasthan, Nagaur, 2 October 1959; then Andhra Pradesh.
Which committee gave the three-tier PR model?	Balwant Rai Mehta Committee (1957).
Who chairs the Zila Parishad per Mehta?	The District Collector.

What did the Ashok Mehta Committee propose?	Two tiers: Zila Parishad and Mandal Panchayat (15,000-20,000); SC/ST seats; party participation; social audit; State PR Commission; DPC; constitutional recognition.
Which committee wanted a new Part for PR?	L.M. Singhvi (1986).
Which committee formed the immediate basis of the 64th Bill?	P.K. Thungon (1988).
What was the fate of the 64th Bill (1989)?	Passed Lok Sabha in August 1989; defeated in Rajya Sabha.
When did the 73rd Amendment come into force?	24 April 1993 (assent 20 April 1993).
Which Articles form Part IX?	Arts. 243-243O.
Which Article creates the three tiers?	Art. 243B; States below 20 lakh may skip the intermediate tier.
Who is elected directly and indirectly in PRIs?	All members directly; intermediate and district chairpersons indirectly; village chairperson as per State law.
Reservation in Panchayats?	SC/ST in proportion; women one-third of seats and chair posts; backward classes at State discretion; Arunachal Pradesh exception (83rd Am. 2000).
Term and re-election rule for Panchayats?	Five years; re-election within six months of dissolution; reconstituted body serves the remainder.
Minimum age for Panchayat membership?	21 years (Art. 243F).
How often is the SFC constituted?	Every five years by the Governor (Art. 243I for Panchayats; Art. 243Y for Municipalities).
Who conducts Panchayat elections?	State Election Commission (Art. 243K); the Commissioner is removed like a High Court judge.
Which areas are exempt from Part IX?	Nagaland, Meghalaya, Mizoram, Scheduled and tribal areas, hill areas of Manipur, Darjeeling district.
What does Art. 243O do?	Bars courts from interfering in Panchayat electoral matters; only election petitions.
How many subjects in the Eleventh Schedule?	29 (Art. 243G).

MY NOTES

Name the mandatory provisions.	Constitutional status, regular elections, reservation, Gram Sabha, SEC, SFC.
Name three voluntary provisions.	Devolution of powers, Panchayat structure and intermediate tier, merging villages or creating Panchayats (also extra reservations and scheme assignment).
What is the 4th F?	Functionality (after Functions, Functionaries, Funds).
What did Ripon's 1882 Resolution earn?	The title Magna Carta of Local Self-Government.
Which Act made local self-government a transferred subject?	Government of India Act 1919 (dyarchy).
When did the 74th Amendment take effect and what did it add?	1 June 1993; Part IX-A (Arts. 243P-243ZG) and the Twelfth Schedule (18 items).
Three kinds of Municipality under Art. 243Q?	Nagar Panchayat (transitional), Municipal Council (smaller urban), Municipal Corporation (larger urban).
When must wards committees be formed?	Municipalities with population above 3 lakh (Art. 243S).
DPC versus MPC elected share?	DPC four-fifths (Art. 243ZD); MPC two-thirds (Art. 243ZE).
Bombay versus Howrah pattern?	Bombay: Commissioner executive, Mayor ceremonial. Howrah/Calcutta: Mayor executive.
Which pattern did the 2nd ARC recommend?	The Howrah/Calcutta (Mayor with executive power) approach, for democratic accountability.
Which Article set up the Central Council of Local Government?	Art. 263, by Presidential Order in 1954.
Name the 15th FC total for local bodies and split.	Rs 4.36 lakh crore: rural Rs 2.4 lakh crore, urban Rs 1.2 lakh crore, health Rs 70,051 crore.
What is the 15th FC population-area formula?	90% population (2011 Census), 10% area.
What is the Gram Panchayat share of rural grants?	70-85% (Block 10-25%, District 5-15%).
What penalty did FC-XV set for SFC default?	No grants to any local body in the State after March 2024.

MY NOTES

Mains 2024: Analyse the role of local bodies in providing good governance	Intro: Local bodies are the closest tier; the 73rd and 74th Amendments gave them constitutional status as third tier Body: Part IX and IX-A give regular elections, reservation, SFC, SEC; Gram Sabha as direct democracy platform with social audits; participatory planning and e-GramSwaraj; rural and urban bodies differ in structure (three tiers versus Nagar Panchayat, Council, Corporation) and in funds (OSR versus property tax and transfers); the handout does not discuss merging rural and urban bodies. Close: good governance needs functions, functionaries and funds on the ground (merger is not in the handout).
Mains 2024: The states in India seem reluctant to empower urban local bodies	Intro: Art. 243W lets States devolve the 18 Twelfth Schedule items but devolution is State discretion Body: ULBs generate only 0.6% of GDP revenue; over two-thirds of income is transfers; municipal bonds 0.09% of corporate bonds; cash-based accounting; Bombay pattern keeps Commissioner under State control; 15th FC links grants to property tax reform and timely SFC. Close: the 15th FC's entry conditions are an attempt to push States to devolve.
Mains 2022: To what extent, in your opinion, has the decentralization of power	Intro: Constitutional status ended dependence on State discretion; Part IX has six mandatory provisions Body: Regular elections, reservation for SC/ST and women, SFC and SEC, Gram Sabha; but devolution under Art. 243G is voluntary; bureaucratic control, tied funds and parallel bodies blunt it. Close: structure has changed more than power.

MY NOTES

Mains 2020: The strength of local institutions in India has shifted	Intro: The handout itself makes this point: the 3Fs (Functions, Functionaries, Funds) have become the 4th F, Functionality Body: Duties without staff or stable finances and unimplemented SFC recommendations; bureaucratic control; tied funds; grant dependence; reluctance to tax; weak Gram Sabha; parallel bodies; poor infrastructure and digital divide. Close: functionality needs capacity, digital governance and real devolution.
Mains 2019: The reservation of seats for women in the institution of local self-government	Intro: Art. 243D and Art. 243T give one-third of seats and chairperson posts to women Body: Bihar and Rajasthan 50% women; Panchayat Se Parliament 2.0 brings grassroots women leaders including tribal women into governance discourse; Kudumbashree links PRIs with women's self-help groups; the handout does not discuss patriarchy directly. Close: reservation opens the door; support mechanisms decide impact (the patriarchy link is not in the handout).
Mains 2018: Assess the importance of the Panchayat system in India as a part of local government	Intro: Part IX makes Panchayats units of self-government with three tiers Body: Planning and implementing economic development and social justice schemes (29 subjects); own revenue from house tax, property tax, market fees, user charges, tolls and licences, non-tax income; State assigned revenues and SFC; Central FC grants (15th FC) and CSS; borrowings with State approval; donor and CSR support; community contributions. Close: beyond grants, own revenue, borrowings, CSR and community contributions.

MY NOTES

Mains 2017: The local self-government system in India has not proved to be an effective instrument	Intro: Status is constitutional, performance is uneven Body: Challenges: devolution, bureaucracy, tied funds, grant dependence, reluctance to tax, weak Gram Sabha, parallel bodies, capacity; way forward: participatory planning, e-governance, social audits, capacity building, women empowerment, innovation, performance monitoring. Close: fix the 4Fs and enforce SFCs.
Mains 2015: In the absence of a well-educated and organized local level government system	Intro: PRIs depend on State discretion for devolution and face capacity gaps Body: Limited literacy and training of members; lack of secretaries and buildings; bureaucratic control; parallel bodies; weak Gram Sabhas; way forward: capacity building through State Resource Centres, e-GramSwaraj. Close: capacity and real devolution turn political bodies into governance instruments.
Mains 2013: Many State Governments further bifurcate geographical administrative areas	Intro: Not covered in this handout beyond local tiers Body: The handout discusses States differing in number of tiers (Rajasthan three, Tamil Nadu two, West Bengal four) and the district and block as planning units; it does not discuss smaller States. Close: the handout offers only the local-tier angle (smaller States are not in the handout).

Trap 1 · Who is directly elected?

All Panchayat members at village, intermediate and district level are directly elected. Chairpersons at intermediate and district levels are elected indirectly by and from the elected members. The village chairperson is elected as the State law says. *Rule: members = direct everywhere; chairperson = indirect for the top two tiers, State law for the village tier.*

Trap 2 · 73rd and 74th numbers mixed up

73rd gave Part IX (243 to 243O), Eleventh Schedule with 29 items, in force 24 April 1993. 74th gave Part IX-A (243P to 243ZG), Twelfth Schedule with 18 items, in force 1 June 1993. The failed bills were also different: the 64th Bill (1989) was for Panchayats and the 65th Bill (Nagarpalika Bill, 1989) was for municipalities. *Rule: 73 goes with the older rural body and the bigger list (29); 74 goes with towns and 18.*

MY NOTES

Trap 3 · Committee mix-ups

Balwant Rai Mehta proposed three tiers; Ashok Mehta proposed two tiers (Zila Parishad and Mandal Panchayat of 15,000 to 20,000 people) but was not implemented because the Janata Government fell; L.M. Singhvi wanted a new Part and constitutional recognition; Thungon's report was the base of the 64th Bill. *Rule: tie each committee to one idea: Mehta = three tiers, Ashok Mehta = two tiers, Singhvi = new Part.*

Trap 4 · Mayor and committees: which is ornamental?

In a Municipal Corporation the Mayor is largely ceremonial and the Municipal Commissioner is the chief executive. In a Municipality the Chairperson holds real executive powers. A Notified Area Committee is entirely nominated. Also: DPC has four-fifths elected members, MPC has two-thirds. *Rule: Corporation = Commissioner rules (Bombay pattern); Municipality = Chairperson rules; Notified Area = nominated.*

QUICK QUIZ

Q1. Which committee recommended a two-tier system with Mandal Panchayats of 15,000-20,000 population?

1. Balwant Rai Mehta
2. Ashok Mehta
3. G.V.K. Rao
4. L.M. Singhvi

Q2. The 73rd Amendment Act added which Part and which Schedule?

1. Part IX and Eleventh Schedule
2. Part IX-A and Twelfth Schedule
3. Part X and Ninth Schedule
4. Part IX and Twelfth Schedule

Q3. States with population below which figure may skip the intermediate tier?

1. 10 lakh
2. 20 lakh
3. 25 lakh
4. 30 lakh

Q4. Which is NOT a mandatory provision of the 73rd Amendment?

1. Gram Sabha
2. State Finance Commission
3. Devolution of powers under Art. 243G
4. State Election Commission

Q5. Within what time must elections to a dissolved Panchayat be held?

1. 3 months
2. 6 months
3. 1 year
4. 2 years

Q6. Which of these is exempt from Part IX?

1. Goa
2. Nagaland
3. Kerala
4. Punjab

Q7. The Twelfth Schedule was inserted by the 74th Amendment with how many items and under which Article?

1. 29 items, Art. 243G
2. 18 items, Art. 243W
3. 18 items, Art. 243G
4. 29 items, Art. 243W

Q8. A Metropolitan area under Art. 243P has a population of at least:

1. 5 lakh
2. 10 lakh
3. 20 lakh
4. 30 lakh

MY NOTES

Q9. In the District Planning Committee, what fraction of members is elected from municipalities and panchayats?

1. One-third
2. Half
3. Two-thirds
4. Four-fifths

Q10. Under the 15th Finance Commission, rural local body grants are split as:

1. 60% untied, 40% tied
2. 40% untied, 60% tied
3. 50% each
4. 90% untied, 10% tied

Q11. Local self-government can be best explained as an exercise in (2017)

1. Federalism
2. Democratic decentralization
3. Administrative delegation
4. Direct democracy

Q12. Consider: 1. The minimum age to be a member of a Panchayat is 25 years. 2. A Panchayat reconstituted after premature dissolution continues only for the remainder period. Which is/are correct? (2016)

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q13. The fundamental object of the Panchayati Raj system is to ensure: 1. People's participation in development 2. Political accountability 3. Democratic decentralisation 4. Financial mobilisation (2015)

1. 1, 2 and 3 only
2. 2 and 4 only
3. 1 and 3 only
4. 1, 2, 3 and 4

Q14. The 73rd Amendment provides for: 1. District Planning Committees 2. State Election Commissions to conduct all Panchayat elections 3. State Finance Commissions (2011)

1. 1 only
2. 1 and 2 only
3. 2 and 3 only
4. 1, 2 and 3

Q15. In India, a Metropolitan Planning Committee: 1. is constituted under the Constitution 2. prepares draft development plans for the metropolitan area 3. has sole responsibility for implementing Government schemes in the area (2011)

1. 1 and 2 only
2. 2 only
3. 1 and 3 only
4. 1, 2 and 3

Q16. PYQ 2017: Local self-government can be best explained as an exercise in (2017)

1. Federalism
2. Democratic decentralization
3. Administrative delegation
4. Direct democracy

Q17. PYQ 2016: Consider the following statements: (2016)
1. The minimum age prescribed for any person to be a member of Panchayat is 25 years.
2. A Panchayat reconstituted after premature dissolution continues only for the remainder period. Which of the statements given above is/are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

MY NOTES

Q18. PYQ 2016: With reference to "Gram Nyayalayas Acts" which of the following statements is/are correct? (2016)
1. As per the Act, Gram Nyayalayas can hear only civil cases and not criminal cases.
2. The Act allows local social activists as mediators/conciliators. Select the correct answer using the code given below:

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q19. PYQ 2015: The fundamental object of Panchayati Raj system is to ensure which among the following? (2015)
1. People's participation in development
2. Political accountability
3. Democratic decentralisation
4. Financial mobilisation Select the correct answer using the code given below:

1. 1, 2 and 3 only
2. 2 and 4 only
3. 1 and 3 only
4. 1, 2, 3 and 4

Q20. PYQ 2013: The Government enacted the Panchayat Extension to Scheduled Areas (PESA) Act in 1996. Which one of the following is not identified as its objective? (2013)

1. To provide self-governance
2. To recognize traditional rights
3. To create autonomous regions in tribal areas
4. To free tribal people from exploitation

Q21. PYQ Under the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006, who shall be the authority to initiate the process for determining the nature and extent of individual or community forest rights or both? (2013)

1. State Forest Department
2. District Collector/Deputy Commissioner
3. Tahsildar/Block Development Officer/Mandal Revenue Officer
4. Gram Sabha

Q22. PYQ 2012: In the areas covered under the Panchayat (Extension to the Scheduled Areas) Act, 1996, what is the role/power of Gram Sabha? (2012)
1. Gram Sabha has the power to prevent alienation of land in the Scheduled Areas.
2. Gram Sabha has the ownership of minor forest produce.
3. Recommendation of Gram Sabha is required for granting prospecting licence or mining lease for any mineral in the Scheduled Areas. Which of the statements given above is/are correct?

1. 1 only
2. 1 and 2 only
3. 2 and 3 only
4. 1, 2 and 3

MY NOTES

Q23. PYQ 2011: The Constitution (Seventy-Third Amendment) Act, 1992, which aims at promoting the Panchayati Raj Institutions in the country, provides for which of the following? (2011)
1. Constitution of District Planning Committees.
2. State Election Commissions to conduct all Panchayat elections.
3. Establishment of State Finance Commissions. Select the correct answer using the code given below:

1. 1 only
2. 1 and 2 only
3. 2 and 3 only
4. 1, 2 and 3

Q24. PYQ 2011: Consider the following statements: In India, a Metropolitan Planning Committee (2011)
1. is constituted under the provisions of the Constitution of India.
2. prepares the draft development plans for the metropolitan area.
3. has the sole responsibility for implementing Government sponsored schemes in the metropolitan area Which of the statements given above is/are correct?

1. 1 and 2 only
2. 2 only
3. 1 and 3 only
4. 1, 2 and 3

Answers: Q1 b, Q2 a, Q3 b, Q4 c, Q5 b, Q6 b, Q7 b, Q8 b, Q9 d, Q10 b, Q11 b, Q12 b, Q13 c, Q14 c, Q15 a, Q16 b, Q17 b, Q18 b, Q19 c, Q20 c, Q21 d, Q22 c, Q23 c, Q24 a

MY NOTES

CHAPTER 14 · HANDOUT: SUPREME COURT (COMPOSITION TO INDEPENDENCE) AND THE INDIA-UK-USA COMPARISON

14 Judiciary

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

MY NOTES

EXAM LENS

Prelims hooks

- collegium composition (CJI + 4 senior-most)
- NJAC struck down in 2015
- qualifications under Art. 124(3)
- removal grounds and 100/50 signatures
- Art. 131 exclusive jurisdiction
- writs and their meanings
- Art. 32 versus Art. 226
- Art. 136 special leave
- Art. 143(1) versus 143(2)
- contempt punishment
- review (30 days) and curative petition
- doctrine-to-case matching
- No Prelims PYQs are quoted in the material.
- Handout stresses: The handout gives no Prelims or Mains PYQ section for this chapter (Whole chapter)
- Handout stresses: Appointment of judges is told as a story: 1950s practice, First (1982), Second (1993), Third (1998) Judges Cases, NJAC (2015) (Appointment section)
- Handout stresses: Jurisdictions of the Supreme Court are set out article by article (131, 32, 132-134A, 136, 143, 129, 137) (Jurisdiction section)
- Handout stresses: Fifteen Presidential references are listed in chronological order (Advisory jurisdiction)
- Handout stresses: A table of 13 doctrines with landmark cases and years (Constitutional interpretation)
- Handout stresses: Seven safeguards of independence and a nine-row India-UK-USA comparison (Independence and comparison)

Mains hooks

- independence of the judiciary and its safeguards
- collegium versus NJAC
- judicial review and the Basic Structure
- Supreme Court's writ, appellate and advisory powers
- comparison with UK and US judiciary. none quoted in the material.

MY NOTES

One integrated pyramid with the Supreme Court at the top: appointed through the collegium, removable only by Parliament, powerful in nine jurisdictions and protected by seven safeguards.

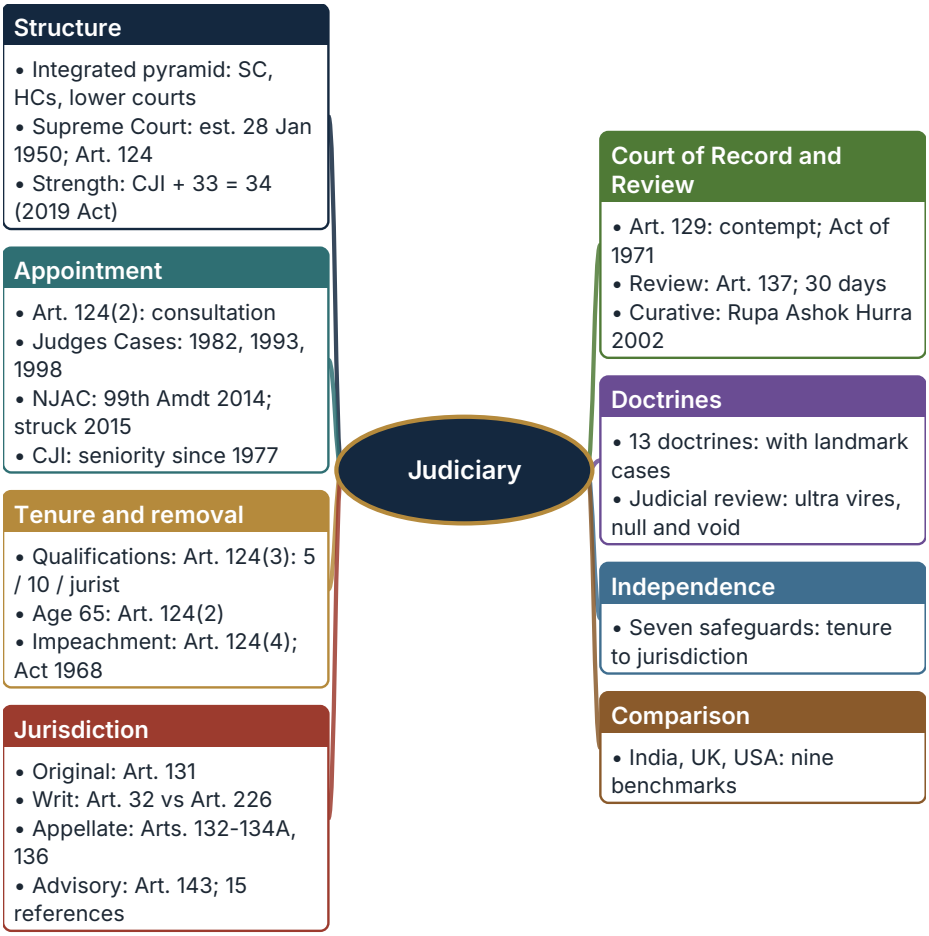
IN SIMPLE WORDS

- India has **one single court system** shaped like a pyramid: **Supreme Court** at the top, **High Courts** in the states, **district and subordinate courts** below. Higher courts supervise the lower ones.
- The **Supreme Court** began on **28 January 1950** (**Article 124**). It has the **Chief Justice of India plus 33 judges, total 34**, fixed by the **2019 Act**.
- Judges are appointed by the **President** through the **collegium** (CJI and four senior-most judges). The **NJAC** (99th Amendment, 2014) tried to replace it but was **struck down in 2015**.
- A judge keeps office till **65** and can be removed only for **proved misbehaviour or incapacity**, by a **special majority in both Houses**. No judge has ever been removed.
- Its powers: **original (Art 131)**, **writ (Art 32)**, **appellate (Arts 132 to 134A, 136)**, **advisory (Art 143)**, **court of record (Art 129)**, and **review and curative** powers. Seven safeguards protect its **independence**.

Key term	In plain words
Collegium	Body of the CJI and four senior-most Supreme Court judges that recommends judges for appointment and transfer
Consultation vs concurrence	First Judges Case: consultation is not concurrence (executive primacy). Second Judges Case: consultation means concurrence (judiciary primacy)
NJAC	National Judicial Appointments Commission created by the 99th Amendment (2014), with judiciary and executive members; struck down in 2015
Original jurisdiction (Art 131)	Exclusive power to hear Centre-State and State-State disputes directly, not on appeal
Writ	Order to enforce Fundamental Rights under Art 32: Habeas Corpus, Mandamus, Prohibition, Certiorari, Quo Warranto
Special Leave to Appeal (Art 136)	Discretionary appeal from any court or tribunal except military courts; not a right
Advisory jurisdiction (Art 143)	President may seek the Court's opinion; fifteen references so far
Curative petition	Last remedy after a review is dismissed; evolved in Rupa Ashok Hurra v. Ashok Hurra (2002)

MY NOTES

MEMORY MAP: JUDICIARY



MNEMONIC · SUPREME COURT: FOUR MAIN JURISDICTIONS (PART 1)

S A F E

- **S** States' disputes: original jurisdiction (Art 131)
- **A** Advisory jurisdiction (Art 143)
- **F** Final appeal: appellate jurisdiction (Arts 132 to 136)
- **E** Enforcement of rights: writ jurisdiction (Art 32)

The Supreme Court keeps the Constitution and your rights SAFE. Part 1 of 2: the first four heads (a to d) of the handout's list of eight; order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · SUPREME COURT: OTHER POWERS (PART 2)

C U R E

- **C** Court of Record (Art 129)
- **U** Undo unconstitutional laws: judicial review
- **R** Review and curative jurisdiction (Art 137)
- **E** Explain the Constitution: constitutional interpretation

The curative petition is the CURE for a wrong judgment. Part 2 of 2: heads (e) to (h) of the handout's eight; order is rearranged for memory. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · SEVEN SAFEGUARDS OF INDEPENDENCE

ASSURED

- **A** Appointment mode
- **S** Security of tenure
- **S** Service conditions fixed
- **U** Unshrinkable jurisdiction (cannot be curtailed)
- **R** Retirement: ban on practice afterwards
- **E** Expenditure charged on the Consolidated Fund
- **D** Discussion of judges' conduct barred in the legislature

With these seven safeguards the Court's independence is ASSURED. The order is rearranged for memory (the safeguards are unordered). (Memory aid, not from the handout.)

MNEMONIC · DOCTRINES OF INTERPRETATION, FIRST SEVEN

Strict Wigs Examine The Precise Constitutional Intent

- **S** Severability
- **W** Waiver
- **E** Eclipse
- **T** Territorial Nexus
- **P** Pith and Substance
- **C** Colourable Legislation
- **I** Implied Powers

Judges (wigs) examine what a law really means; the words follow the first seven doctrines in the handout table. Order is free here: no clean word exists, so this sentence is the memory aid. (Memory aid, not from the handout.)

MNEMONIC · DOCTRINES OF INTERPRETATION, LAST SIX

Impartial Persons Often Prevent Hasty Laws

- **I** Incidental and Ancillary Powers
- **P** Precedent
- **O** Occupied Field
- **P** Prospective Overruling
- **H** Harmonious Construction
- **L** Liberal Interpretation

Impartial judges prevent hasty laws; the words follow the remaining six doctrines in the handout table. Order is free here: no clean word exists, so this sentence is the memory aid. (Memory aid, not from the handout.)

THE JUDICIAL SYSTEM AND THE SUPREME COURT

- India has a **single, unified judicial system** that brings all levels of courts under one framework, unlike many federal nations with separate state and federal courts.

THE PYRAMID

- **Supreme Court**:
  - Apex
  - Guardian of the Constitution and final interpreter of law

MY NOTES

- **High Courts**: state level
- **District and subordinate courts**: below the High Courts
- **Control:** Lower courts work under the **supervision and control of the higher courts**, so laws are interpreted and applied uniformly across the country.
- The **Supreme Court** was established on **28 January 1950**.
- It protects fundamental rights, settles disputes between governments and maintains the rule of law.

COMPOSITION AND STRENGTH (ARTICLE 124)

- Art. 124 provides for the establishment and composition of the Court.
- The Court has a **Chief Justice of India (CJI)** and as many other judges as **Parliament decides by law**, so Parliament can revise strength with workload and population.
- Present strength: **1 CJI + 33 other judges = 34**.
- The number was raised by the **Supreme Court (Number of Judges) Amendment Act, 2019**, to meet rising cases and reduce pendency.
- **Shortcut:**
  - **Strength. 1 + 33 = 34**
  - Set by Parliament
  - Last raised in **2019**

APPOINTMENT OF JUDGES AND THE COLLEGIUM

- Under **Art. 124(2)** the President appoints every Supreme Court judge **after consultation** with such Supreme Court and High Court judges as he deems necessary. What "consultation" meant became a long debate.

EARLY PRACTICE (1950 TO EARLY 1980S)

- Appointments were made by the President on the advice of the **Union Council of Ministers**, after consulting the CJI.
- The CJI's opinion was respected but **not binding**, so the Executive had a major role.

THE CASES

JUDGES CASES AND THE COLLEGIUM

Stage	Case	What it held
First Judges Case (1982)	S.P. Gupta v. Union of India	"Consultation" is **not** "concurrence"; the President is not bound by the CJI's advice; **primacy to the executive**. Criticised as a threat to independence

MY NOTES

Stage	Case	What it held
Second Judges Case (1993)	Supreme Court Advocates-on-Record Association v. Union of India (constitutional bench)	Reversed it: "consultation" **means** "concurrence"; **primacy to the judiciary**; CJI recommends in consultation with the **two senior-most judges**: basis of the **collegium**
Third Judges Case (1998)	President's opinion sought under **Art. 143**	Collegium expanded to **five**: CJI + four senior-most judges; if **even two judges disagree**, the CJI should not send the recommendation forward

- **Memory aid (Judges Cases): G**upta 1982 = executive, **A**dvocates-on-Record 1993 = judiciary, **C**ollegium of five 1998 (Art. 143 opinion): "**G**overnment **A**sks, **C**ourt decides."
- **Shortcut: Case years. 82 - 93 - 98**: Executive wins, Judiciary wins, Collegium grows from 3 to 5.
- The 1998 collegium is the present system for appointing judges to the **Supreme Court and High Courts**.

THE ATTEMPTED REFORM: NJAC

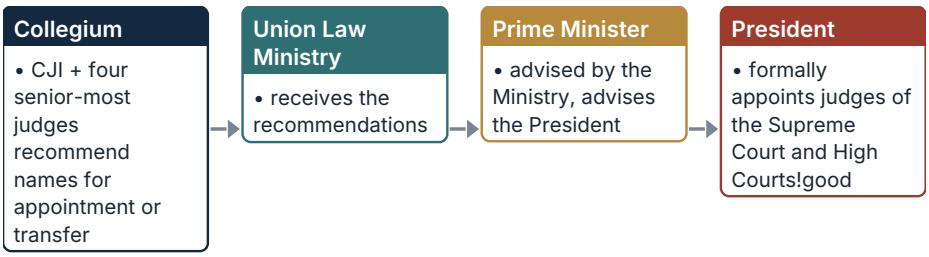
- Parliament passed the **99th Constitutional Amendment Act, 2014**, creating the **National Judicial Appointments Commission (NJAC)** with members from both judiciary and executive, for transparency and accountability.
- In **2015** the Supreme Court **struck it down**: it violated the independence of the judiciary, part of the **basic structure**.
- So the **collegium continues**.

PRESENT PROCESS

APPOINTMENT TODAY

- **Collegium**: CJI + four senior-most judges recommend names for appointment or transfer
- **Union Law Ministry**: receives the recommendations
- **Prime Minister**: advised by the Ministry, advises the President
- **President**: formally appoints judges of the Supreme Court and High Courts!good

APPOINTMENT TODAY



MY NOTES

APPOINTMENT OF THE CHIEF JUSTICE OF INDIA

- The CJI is appointed by the President under **Art. 124(2)**
- The process evolved through convention and judicial practice

CJI APPOINTMENT THROUGH TIME

Period	Practice
1950-1973	The **senior-most judge** was conventionally appointed CJI: an unwritten rule of seniority protecting the judiciary from political influence
1973	Convention ignored: **Justice A. N. Ray** appointed CJI, superseding three senior judges (**Shelet, Hegde and Grover**)
1977	Convention ignored again: **Justice M. H. Beg** superseded **Justice H. R. Khanna**
Since 1977	Senior-most judge **strictly** appointed; now a well-established constitutional custom

- Both supersessions drew wide criticism as executive interference.
- The Constitution does **not explicitly require** seniority.
- Formally the President appoints, on the recommendation of the **outgoing Chief Justice**, after consultation within the judiciary.
- **Memory aid (Supersession):** **R**ay 1973 (over three), **B**eg 1977 (over Khanna): "**R**ules **B**roken twice".

QUALIFICATIONS, OATH AND SALARIES

QUALIFICATIONS (ART. 124(3))

- A person must be a **citizen of India** and satisfy **any one** of:

ANY ONE CONDITION

Route	Requirement
Judge	Judge of a High Court (or two or more in succession) for **at least 5 years**
Advocate	Advocate of a High Court (or two or more in succession) for **at least 10 years**
Jurist	In the President's opinion, a **distinguished jurist**

- **Memory aid (Qualifications):** **J**udge 5 years, **A**dvocate 10 years, **J**urist by President's opinion: "**5, 10, Jurist**".

OATH OR AFFIRMATION (ART. 124(6))

- Made and subscribed before entering office, administered by the **President** or a person he authorises.
- The judge swears:
  - True faith and allegiance to the Constitution

MY NOTES

- Uphold sovereignty and integrity of India
- Perform duties faithfully, without fear or favour, affection or ill-will
- Uphold the Constitution and the laws

SALARIES (ART. 125)

- Salaries are fixed by **Parliament by law**
- Until then as in the **Second Schedule**
- Allowances, privileges, leave and pension also by Parliamentary law, till then as in the Second Schedule.
- **Protection clause:** after appointment, salary, allowances or pension **cannot be reduced to the judge's disadvantage**.

SUPREME COURT JUDGES (SALARIES AND CONDITIONS OF SERVICE) ACT, 1958

Post	Salary per month (approx.)
CJI	2.8 lakh
Supreme Court puisne judge	2.5 lakh
High Court Chief Justice	2.5 lakh
High Court puisne judge	2.25 lakh

HANDOUT ALERT

Handout alert: The handout gives a protection clause with **no exception** under Art. 125, but later (Independence section) says conditions cannot be changed to disadvantage "**except during a Financial Emergency**". For answers, write the safeguard and add the Financial Emergency exception as the independence section states it.

ALSO IN THE HANDOUT

- Fulfil any one of the following conditions:
  - - Have been a judge of a High Court (or of two or more such courts in succession) for at least five years
  - Or - Have been an advocate of a High Court (or of two or more such courts in succession) for at least ten years
  - Or - Are, in the opinion of the President, a distinguished jurist Oath or Affirmation Before entering office, every judge of the Supreme Court must make and subscribe an oath or affirmation as required by Article 124(6) of the Constitution.This oath is administered by the President of India, or by a person authorised by the President for that purpose

TENURE AND REMOVAL

- Tenure and removal are in **Arts. 124(2)-(4)** and aim at security of office and independence.

MY NOTES

TENURE

- A judge holds office until **age 65** (Art. 124(2)).
- A judge may **resign** by writing to the President, or **vacate** office on appointment to another constitutional post (for example President or Governor).
- Any age question is decided by an authority and manner provided by Parliament.

REMOVAL (ART. 124(4))

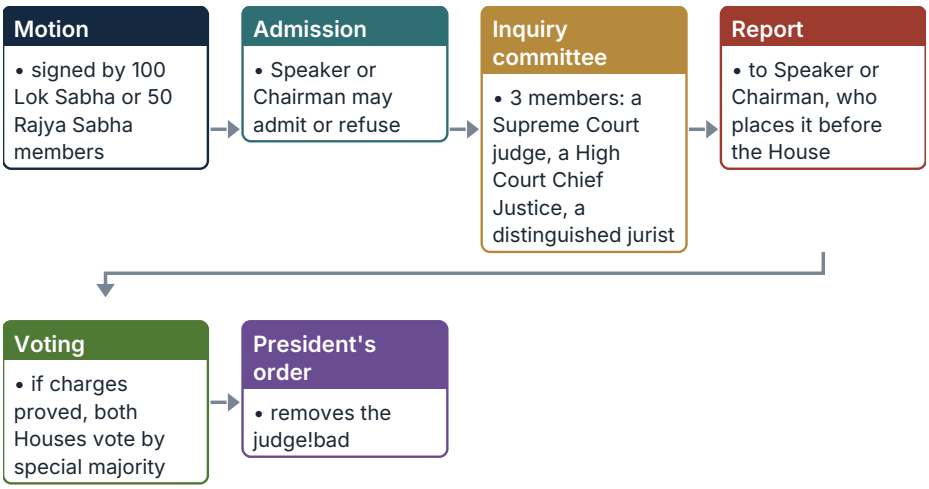
- Only by the **President**, on a motion passed by **both Houses**.
- Only **two grounds: proved misbehaviour** or **incapacity**.
- Special majority in **each House**: majority of total membership **and** two-thirds of members present and voting.

PROCEDURE IN PRACTICE: JUDGES (INQUIRY) ACT, 1968

REMOVAL OF A JUDGE

- **Motion**: signed by **100 Lok Sabha** or **50 Rajya Sabha** members
- **Admission**: Speaker or Chairman may admit or refuse
- **Inquiry committee**: **3 members**: a Supreme Court judge, a High Court Chief Justice, a distinguished jurist
- **Report**: to Speaker or Chairman, who places it before the House
- **Voting**: if charges proved, both Houses vote by special majority
- **President's order**: removes the judge!bad

REMOVAL OF A JUDGE



- **Memory aid (Impeachment numbers): H**undred in LS, **F**ifty in RS, **T**hree-member committee: "**H**ow **F**ew **T**hey need!" (100, 50, 3).
- So far **no Supreme Court judge has been removed**, though motions were initiated (for example against **Justice V. Ramaswami in 1993**).

MY NOTES

ALSO IN THE HANDOUT

- The age limit and secure tenure prevent arbitrary removal and allow judges to function independently.
- The difficulty of the impeachment procedure makes it almost impossible to remove a judge arbitrarily.

ACTING, AD HOC AND RETIRED JUDGES (ARTS. 126-128)

- These articles keep the Court working despite vacancies or absence.

THREE CONTINUITY PROVISIONS

Article	Who	Rule
126 Acting CJI	One of the other judges	President appoints when CJI office is vacant or CJI is temporarily unable to act (absence or illness); ends when the CJI resumes
127 Ad hoc judge	A High Court judge	Where there is **no quorum**, the CJI, with the **President's consent** and after consulting the HC Chief Justice concerned, requests him to sit temporarily; he has all powers, privileges and jurisdiction of a Supreme Court judge
128 Retired judge	A retired SC or HC judge	CJI, with **prior consent of the President and of the retired judge**, may request him to sit; allowances fixed by the President; same powers as a sitting judge

- **Memory aid (126-127-128):** **A**cting CJI, **A**d hoc judge, **R**etired judge: "**A**ct, **A**d-hoc, **R**etired" in article order.

ALSO IN THE HANDOUT

- Once the Chief Justice resumes office, the arrangement automatically ceases. This ensures uninterrupted leadership of the Court.

SEAT, PROCEDURE AND BENCHES (ARTS. 129-130, 145)

SEAT, RULES, RECORD

Topic	Rule
Seat (Art. 130)	Permanent seat at **New Delhi**; CJI, with the **President's approval**, may hold sittings elsewhere in India
Procedure (Art. 145)	Court frames its **own rules** on practice and procedure, with the **President's approval** (petitions, appeals, conduct of advocates)
Open justice	Proceedings generally in open court unless the Court directs otherwise
Language	Proceedings and records in **English**

MY NOTES

Topic	Rule
Court of Record (Art. 129)	Decisions are **binding precedents** on all lower courts

BENCHES

BENCHES

Bench	Strength and use
Single Judge	Rare; procedural or preliminary matters
Division Bench	**Two or three** judges; regular cases, appeals, writ petitions
Constitution Bench	**Five or more** judges; substantial question of law on **interpretation of the Constitution** (Art. 145(3))

- The **CJI determines the roster** (which judges hear which cases) and allocates benches.
- **Shortcut: Benches. 1 - 2/3 - 5+**: single, division, constitution.

ORIGINAL JURISDICTION (ART. 131)

- The Court's jurisdiction is set out mainly in **Arts. 131 to 139A**. Original jurisdiction means cases are heard **directly**, without filing first in a High Court or lower court.

EXCLUSIVE ORIGINAL JURISDICTION: DISPUTES

- 1. Between the **Government of India and one or more States**
- Or 2. Between the Government of India and one or more States on one side and **one or more other States** on the other
- Or 3. Between **two or more States**, if and only if the dispute involves a **question (of law or fact) on which the existence or extent of a legal right depends**
- **Examples in the handout:** The **Cauvery water conflict** (Tamil Nadu vs Karnataka) and State **boundary issues**.

NOT COVERED BY ORIGINAL JURISDICTION

EXCLUSIONS

Excluded matter	Detail
Pre-Constitution agreements	Treaty, agreement, covenant, engagement, sanad or similar instrument made **before the commencement** of the Constitution
Excluded treaties	Treaty or agreement that expressly says the Supreme Court has no jurisdiction
Inter-State water disputes	Handled under the **Inter-State Water Disputes Act, 1956**

MY NOTES

Excluded matter	Detail
Finance Commission matters	Adjustments and recommendations under **Art. 280**
Adjustment of certain expenses and pensions	e.g. sharing defence or administrative expenses between Centre and States
Ordinary commercial disputes	Purely commercial disputes between Centre and a State
Recovery of damages	Claims by a State against the Centre for damages or compensation

HANDOUT ALERT

Handout alert: The Cauvery dispute is given as an Art. 131 example, yet inter-State water disputes are listed as excluded (Act of 1956). Use the **exclusion list** for the rule and the Cauvery line only as the handout's illustration of inter-State disputes.

WRIT JURISDICTION (ART. 32)

- Under **Art. 32** every citizen can approach the Supreme Court **directly** to enforce **Fundamental Rights**. **Dr B. R. Ambedkar** called it the "**heart and soul of the Constitution**". The Court may issue directions, orders or writs, including **five**:

FIVE WRITS

Writ	Meaning	Use
Habeas Corpus	"to have the body"	Produce an illegally detained person so the court can examine detention and order release; **most powerful weapon for personal liberty**
Mandamus	"we command"	Directs a public authority (officer, agency, lower court) to do a public or statutory duty; **cannot be issued against the President, Governors or private individuals**
Prohibition	(none given)	Higher court tells a lower court or tribunal to **stop proceedings** beyond its jurisdiction or against natural justice; **preventive**, before judgment
Certiorari	"to be certified"	Higher court **quashes** an order of a lower court or tribunal that acted without jurisdiction or against due process; **preventive and corrective**
Quo Warranto	"by what authority"	Inquires into legality of a claim to **public office**; removes an unlawful holder

- **Memory aid (Writs):** **H**abeas, **M**andamus, **P**rohibition, **C**ertiorari, **Q**uo warranto: "**H**ot **M**asala **P**uffs **C**ost **Q**uite a lot".
- **Shortcut:**
  - **Prohibition vs Certiorari. Prohibition = before judgment (stop)**

MY NOTES

- **Certiorari = quash (preventive and corrective)**

SUPREME COURT (ART. 32) VERSUS HIGH COURTS (ART. 226)

WRIT JURISDICTION COMPARED

Basis	Supreme Court (Art. 32)	High Courts (Art. 226)
Constitutional basis	Art. 32; itself a **Fundamental Right**	Art. 226; a **constitutional power**, not a Fundamental Right
Purpose and scope	Enforces **Fundamental Rights only**	Fundamental Rights **and other legal rights** (statutory or common law)
Territorial extent	Writs run **throughout India**	Normally within the High Court's territorial limits, may reach outside if the cause of action partly arises within the state
Discretion	**Cannot refuse** a genuine petition for violation of FRs	**May refuse** if an effective alternative remedy exists
Nature	Original but **not exclusive**; citizens may also move High Courts	Original and **concurrent** with the Supreme Court for FRs
Types of writs	All five	The same five
Significance	"Heart and soul of the Constitution" (Ambedkar)	"**First line of defence**" for citizens' rights

ART. 32 VERSUS ART. 226 IN ONE LOOK

- **Supreme Court:**
  - FRs only
  - All India
  - Cannot refuse
  - Itself an FR
- **High Court:**
  - FRs plus other legal rights
  - Own territory (may extend)
  - May refuse if alternative remedy
  - Constitutional power only

ALSO IN THE HANDOUT

- If the person is found to be holding the office without lawful authority, the court can remove him or her.It prevents unlawful occupation of public posts.

APPELLATE JURISDICTION (ARTS. 132-136)

- The Court is the **final court of appeal** in constitutional, civil and criminal matters, under **Arts. 132 to 136**.

MY NOTES

APPEALS BY ARTICLE

Article	Matter	Rule
132	Constitutional	Lies from any judgment, decree or final order of a High Court involving a **substantial question of law on interpreting the Constitution**; only when the **High Court certifies**
133	Civil	High Court certifies a **substantial question of law of general importance** needing Supreme Court decision. The old Rs 20,000 money limit was removed by the **30th Amendment Act, 1972**
134	Criminal	See below
134A	Certificate	After judgment, decree or order the High Court may certify fitness for appeal on a substantial question of law: the **gateway** for civil and constitutional appeals
136	Special leave	Discretionary; any court or tribunal except military courts

- **Memory aid (132-133-134):** **C**onstitution 132, **C**ivil 133, **C**riminal 134: "Constitution, Civil, Criminal: one, two, three after 131."

CRIMINAL APPEALS (ART. 134)

- Appeal lies when the High Court:
  - 1. **Reverses an acquittal** and sentences the accused to **death**
  - 2. **Withdraws a case** from a subordinate court, tries it and convicts
  - 3. **Certifies** the case fit for appeal
- In the **first two** categories appeal is **of right**: no High Court certificate needed.
- If the High Court **reverses a conviction and acquits**, there is **no automatic right** of appeal.
- **1970 expansion:** Parliament widened criminal appellate jurisdiction. Appeals also lie where the High Court (1) reverses an acquittal and sentences to **life imprisonment or at least ten years**, or (2) takes over a case, convicts, and sentences to **life or ten years or more**.

SPECIAL LEAVE TO APPEAL (ART. 136)

- Grants special leave from **any judgment, decree or order of any court or tribunal** in India (**except military courts**).
- Used where there is gross injustice or violation of due process.

FOUR FEATURES OF SPECIAL LEAVE

Feature	Meaning
Discretionary	Not an appeal as of right; the Court decides whether to entertain it

MY NOTES

Feature	Meaning
Any stage	Against a final decision or an **interlocutory** (interim) order
Any subject	Constitutional, civil, criminal, tax, labour, revenue, professional conduct or other questions of law
Any court or tribunal	Not only High Courts (other than military courts)

- The Court calls it an **exceptional, residual power** to be used sparingly: grave miscarriage of justice, glaring error of law or question of general public importance.

ADVISORY JURISDICTION (ART. 143)

- The President may seek the Court's opinion on legal or constitutional questions of great public importance, making the Court a **constitutional adviser** to the executive.

TWO CLAUSES

Clause	Subject	Court's duty
143(1)	Any question of law or fact of public importance, or a substantial question on interpreting the Constitution	Court **may tender or may refuse** its opinion; opinion **not binding** but carries high authority and is generally accepted
143(2)	Disputes from pre-Constitution treaties, covenants or agreements outside **Art. 131**	Court **must tender** its opinion (investigation and report)

- **Shortcut: 143. (1) = may, (2) = must.** Pre-Constitution disputes are barred from Art. 131, so they come through 143(2).

THE FIFTEEN REFERENCES (CHRONOLOGICAL)

PRESIDENTIAL REFERENCES SO FAR

No.	Year	Subject
1	1951	Delhi Laws Act
2	1958	Kerala Education Bill
3	1960	Berubari Union
4	1963	Sea Customs Act
5	1964	Keshav Singh's case (privileges of the Legislature)
6	1974	Presidential Election
7	1978	Special Courts Bill
8	1982	Jammu and Kashmir Resettlement Act
9	1992	Cauvery Water Disputes Tribunal
10	1993	Rama Janma Bhumi case

MY NOTES

No.	Year	Subject
11	1998	Consultation process to be adopted by the CJI
12	2001	Legislative competence of Centre and States on natural gas and LNG
13	2002	Election Commission's decision deferring the Gujarat Assembly Elections
14	2004	Punjab Termination of Agreements Act
15	2012	2G spectrum verdict and mandatory auctioning of natural resources

- **Memory aid (First five):** **D**elhi Laws, **K**erala Education, **B**erubari, **S**ea Customs, **K**eshav Singh: "**D**on't **K**eep **B**ig **S**ecrets, **K**id" (1951, 58, 60, 63, 64).
- **Link:** Reference 11 (1998) is the same Art. 143 reference that produced the Third Judges Case and the five-member collegium.

COURT OF RECORD AND CONTEMPT (ART. 129)

- A Court of Record preserves its proceedings and judgments as **permanent evidence**. Two powers follow. 1. **Preservation of records:** judgments, orders and acts are recorded for perpetual memory and serve as **precedents**
- Accepted as authentic evidence and **cannot be questioned in any court**
- They form part of the doctrine of precedent. 2. **Power to punish for contempt:** any act lowering the Court's dignity or obstructing justice. In **1991** the Court ruled this covers contempt of **itself, High Courts, subordinate courts and tribunals** across the country

CONTEMPT OF COURTS ACT, 1971

- Enacted on the recommendations of the **H. N. Sanyal Committee (1961)**.

TWO KINDS OF CONTEMPT

- **Civil contempt:** Wilful disobedience of a court's order, judgment or undertaking
- **Criminal contempt:**
  - Publication or act that scandalises or lowers a court's authority
  - Prejudices or interferes with judicial proceedings
  - Obstructs the administration of justice

MY NOTES

RULES UNDER THE ACT

Point	Rule
Not contempt	Fair and accurate reporting, innocent publication, reasonable criticism of judicial acts
Punishment	Simple imprisonment up to **six months**, or fine up to **Rs 2,000**, or both
Limitation	No proceedings after **one year** from the alleged act
Exemption	Does **not** apply to Nyaya Panchayats or village courts

- **Memory aid (Contempt numbers): S**ix months, **O**ne year, **T**wo thousand: "**S**ilence **O**ften **T**ranquil".

ALSO IN THE HANDOUT

- This helps the Court utilise experienced judicial talent whenever required.
- This power enables the Court to act as the protector and guarantor of these rights.Dr B.

JUDICIAL REVIEW, REVIEW AND CURATIVE PETITIONS

JUDICIAL REVIEW

- Power to examine the **constitutionality of laws** passed by the legislature and **executive orders**, at the Centre and in the States.
- An inconsistent law or order is declared **ultra vires** (beyond power), **null and void**, and cannot be enforced.
- It makes the Court **guardian of the Constitution**, ensures no organ exceeds its authority, and is the **cornerstone** of constitutional democracy.

REVIEW (ART. 137)

- The Court may review **any judgment or order passed by it**, to correct its own errors.
- Filed within **30 days**
- Heard by the **same bench or judge**
- Grounds:
  - **new and important evidence**
  - **error apparent on the face of the record**
  - **any other sufficient reason**
- The Court may dismiss, or issue notice to the opposite party.

CURATIVE PETITION

- Even after a review is dismissed, the Court may reconsider through a curative petition, evolved in **Rupa Ashok Hurra v. Ashok Hurra (2002)**.

MY NOTES

CORRECTING A JUDGMENT

- **Final judgment**: delivered by the Court
- **Review petition**: Art. 137, within 30 days, same bench!good
- **Dismissed**: review fails
- **Curative petition**: Hurra 2002, limited grounds!warn

GROUNDS COMPARED

Review (3 grounds)	Curative (4 grounds)
New and important evidence	Violation of principles of natural justice
Error apparent on face of record	Prevent gross miscarriage of justice
Any other sufficient reason	Cure bias or procedural irregularity
-	Prevent abuse of judicial process

- **Memory aid (Review vs curative): Review 3** grounds, **Curative 4** grounds: "R-3, C-4: alphabet order, number order".

ALSO IN THE HANDOUT

- This provision ensures flexibility and accessibility when important cases arise outside the capital.
- Discovery of new and important evidence not available earlier;

CONSTITUTIONAL INTERPRETATION: 13 DOCTRINES

- As final authority the Court determines the true meaning, intent and scope of the Constitution, using doctrines it has evolved.

DOCTRINES AND LANDMARK CASES

Doctrine	Principle	Landmark case
Severability	If part of a statute is unconstitutional, only that part is invalid; the rest stays if separable	R.M.D.C. v. Union of India (1957)
Waiver	Fundamental Rights cannot be waived: conferred in public interest, not only individual benefit	Basheshar Nath v. CIT (1959)
Eclipse	A law inconsistent with FRs is not nullified but **inoperative ("in eclipse")** until the inconsistency is removed	Bhikaji Narain Dhakras v. State of M.P. (1955)
Territorial Nexus	State law applies extraterritorially if there is sufficient nexus between the object and the State	State of Bombay v. R.M.D.C. (1957)

MY NOTES

Doctrine	Principle	Landmark case
Pith and Substance	With overlap between legislative lists, the true nature of the law decides validity	State of Bombay v. F.N. Balsara (1951)
Colourable Legislation	Legislature indirectly achieving what it cannot do directly: invalid	K.C. Gajapati Narayan Deo v. State of Orissa (1953)
Implied Powers	Powers essential to exercise expressly conferred powers are implied	Re Delhi Laws Act (1951)
Incidental and Ancillary Powers	Legislature may exercise incidental or ancillary powers needed to make legislation effective	State of Rajasthan v. G. Chawla (1959)
Precedent	Decisions are binding precedents; certainty and uniformity in law	Bengal Immunity Co. v. State of Bihar (1955)
Occupied Field	Parliament legislates on a Concurrent List matter: State law void to the extent of repugnancy under **Art. 254**	Tika Ramji v. State of U.P. (1956)
Prospective Overruling	A decision applies to future cases, not acts done before the ruling	I.C. Golaknath v. State of Punjab (1967)
Harmonious Construction	Conflicting provisions are read to give effect to both	State of Rajasthan v. G. Chawla (1959) and Venkataramana Devaru v. State of Mysore (1958)
Liberal Interpretation	Provisions, especially FRs, are read liberally to promote spirit and purpose	Maneka Gandhi v. Union of India (1978)

- **Memory aid (FR doctrines):** **S**everability, **W**aiver, **E**clipse: "**S**ave **W**hat **E**xists" (the first three rows).
- **Memory aid (Law-making doctrines):** **T**erritorial nexus, **P**ith and substance, **C**olourable, **O**ccupied field: "**T**he **P**arliament **C**hecks **O**verreach".
- **Shortcut: Year pairs.** **1955** twins: Eclipse and Bengal Immunity. **1957** twins: Severability and Territorial Nexus. **1951** twins: Pith and Substance and Delhi Laws (Implied Powers). **1959** pair: Waiver and Chawla (Incidental).

HANDOUT ALERT

Handout alert: **G. Chawla (1959)** is the case for both Incidental and Ancillary Powers and Harmonious Construction; Harmonious Construction also cites **Devaru (1958)**. Match case to doctrine by the table; for Harmonious Construction give both.

MY NOTES

ALSO IN THE HANDOUT

- [TABLE CELLS] Where Introduced / / Applied / Doctrine of / Severability / If part of a statute is unconstitutional, / only the offending portion is / invalidated, while the rest remains / operative if separable. / R.M.D.C. v.

OTHER POWERS OF THE SUPREME COURT

MISCELLANEOUS POWERS

Power	Rule
Presidential and Vice-Presidential elections	**Original, exclusive and final** jurisdiction over election disputes (Act of **1952**)
UPSC and SPSC members	On the President's reference about misbehaviour, the Court inquires; if guilty it **recommends removal, binding on the President**
Transfer and withdrawal of cases	**Art. 139A** and the Code of Civil Procedure: transfer cases from one High Court to another, or withdraw and decide them itself
Binding judgments	**Art. 141**: law declared binds **all courts** in India; decrees enforceable throughout the country; all civil and judicial authorities act in aid
Superintendence and control	Judicial superintendence over **all courts and tribunals**
Enlargement of jurisdiction	**Art. 138**: Parliament may extend it for Union List matters. **Art. 139**: special Centre-State agreements may extend it

- **Cross-check:** Art. 131-139A in the handout's opening line include 138, 139 and 139A: these three are the enlargement and transfer powers.

INDEPENDENCE OF THE SUPREME COURT

- The Court guards the Constitution and Fundamental Rights, so it must be free of executive and legislative influence.

SEVEN SAFEGUARDS

Safeguard	How it protects
1. Mode of appointment	President in consultation with senior judges (collegium): limits executive discretion
2. Security of tenure	Removal only by impeachment under Art. 124(4) for proved misbehaviour or incapacity; not at the President's pleasure
3. Fixed service conditions	Set by Parliament; cannot be changed to disadvantage, **except during a Financial Emergency**

MY NOTES

Safeguard	How it protects
4. Expenditure charged	Salaries, pensions and administrative expenses are **charged on the Consolidated Fund of India**: non-votable in Parliament
5. Conduct not discussed	Neither Parliament nor State Legislatures may discuss judges' conduct, **except in impeachment**
6. Ban on post-retirement practice	Retired judges cannot practise or appear before **any court or authority** in India
7. Jurisdiction cannot be curtailed	Parliament **cannot reduce** powers, but may expand them under Arts. 138 and 139

- **Memory aid (Seven safeguards):** **A**ppointment, **S**ecurity of tenure, **F**ixed conditions, **E**xpenditure charged, **C**onduct not discussed, **B**an on practice, **J**urisdiction not curtailed: "**A S**afe **F**ortress **E**nsures **C**ourts **B**ehave **J**ustly".

INTERNATIONAL COMPARISON: INDIA, UK, USA

NINE BENCHMARKS (HANDOUT TABLE REBUILT)

Benchmark	India	United Kingdom	United States
1. Constitutional basis and judicial power	**Written** Constitution; power from **Arts. 124-147 and 214-237**; guardian of the Constitution	**Unwritten**; judicial authority evolved through common law and statutes; Parliament sovereign	**Written** (Art. III); judicial power vested in the Supreme Court and such inferior courts as Congress establishes
2. Structure	**Single integrated hierarchy**: SC, High Courts, Subordinate Courts	**No unified system**; separate hierarchies for England and Wales, Scotland, Northern Ireland	**Federal**: 94 District Courts, 13 Circuit Courts, US Supreme Court; parallel state courts
3. Judicial review and sovereignty	Exists but **limited**; Parliament's power subject to the **Basic Structure Doctrine**	**Absent** due to parliamentary sovereignty; courts cannot strike down Acts	**Very wide**; Supreme Court can nullify federal or state laws violating the Constitution
4. Appointment, tenure, removal	President after **collegium**; retire at **65 (SC) and 62 (HC)**; removed by Parliament for proven misbehaviour	Monarch on advice of the **Judicial Appointments Commission**; serve till **75** or resignation	President with **Senate consent**; **life tenure** "during good behaviour"; removable only by impeachment

MY NOTES

Benchmark	India	United Kingdom	United States
5. Administrative and subordinate control	**High Courts** control posting, promotion and discipline of lower judiciary (**Art. 235**)	High Courts supervise magistrates and circuit courts; **decentralised**	District judges supervised by Circuit Courts and Judicial Conference; **federal-state dual** control
6. Original and appellate jurisdiction	Original: **Centre-State disputes**; appellate: constitutional, civil, criminal; advisory (**Art. 143**)	High Court and Court of Appeal handle original and appellate matters; **Supreme Court (UK)** is final court of appeal	Broad original jurisdiction in constitutional or federal questions; appellate via Circuit Courts to the Supreme Court
7. Procedure, jury, due process	**Procedure established by law**; jury mostly abolished; fairness through reasoned judgments	**Active jury** in criminal cases; Common Law; verdict by citizens' jury	**Due process of law** (substantive and procedural) fundamental; strong jury tradition in civil and criminal trials
8. Independence and accountability	Security of tenure, fixed service conditions, separation of judiciary from executive (**Art. 50**)	Conventions and professional ethics; limited parliamentary oversight	Life tenure and financial autonomy; checks via impeachment and Senate confirmation
9. Judicial review and interpretation	Reviews legislative or executive acts against the Constitution; constrained by Basic Structure	Courts interpret but **cannot invalidate** statutes; sovereignty of (text cut off)	(not given: text cut off)

HANDOUT ALERT

Handout alert: The source text **ends mid-row 9** (UK cell cut at "sovereignty of", US cell missing). The handout also has **no High Court, subordinate court or tribunal section and no PYQ section** in the text provided, so this chapter covers the Supreme Court and the comparison only.

- **Shortcut:**
  - **Retirement ages.** India **65 (SC) and 62 (HC)**
  - UK **75**
  - US **life**
- **Memory aid (Three countries):**
  - **I**ndia single pyramid + limited review
  - **UK** no review (Parliament sovereign)
  - **US**A widest review + life tenure: "**I U**nify, **UK** defers, **US** decides"

MY NOTES

ALSO IN THE HANDOUT

- It clarifies the essence behind the words and expressions used in the document, shaping their application over time. In exercising this role, the Court relies on several judicially evolved doctrines that serve as guiding principles for interpretation. Some of the most significant among them are discussed below.
- This constitutional guarantee secures the Court's status as the final interpreter of law and protector of the Constitution.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 26 SUPREME COURT, CH 27 JUDICIAL REVIEW, CH 28 JUDICIAL ACTIVISM, CH 29 PIL

- The Supreme Court succeeded the Federal Court of India (Government of India Act 1935) and also replaced the British Privy Council as the highest appeal court, so its jurisdiction is greater. Articles 124 to 147 in Part V deal with it.
- Strength history (other judges, excluding CJI): 7 originally (8 in all), 10 in 1956, 13 in 1960, 17 in 1977, 25 in 1986, 30 in 2008, 33 in 2019. Article 124(1) says not more than seven other judges until Parliament decides otherwise.
- Other judges are appointed after consulting the CJI, which is obligatory, and other judges as the President thinks necessary. The NJAC verdict (2015) is called the Fourth Judges Case. Lakshmikanth differs: it dates S.P. Gupta (First Judges Case) as 1981 and prints the judge who superseded Khanna as M.U. Beg
- The handout says 1982 and M. H. Beg, so use the handout
- Supersessions:
  - In 1973 A.N. Ray (fourth in seniority) superseded Shelat, Hegde and Grover, who resigned after the Kesavananda Bharati judgment
  - In 1977 Khanna resigned after his dissent in ADM Jabalpur (1976). The Second Judges Case then said the senior-most judge alone should be CJI
- No minimum age is fixed for a Supreme Court judge. Retired judges get 50 per cent of last drawn salary as pension. The Constitution does not use the word 'impeachment' for judges (only for the President). In the Ramaswami case (1991 to 1993) the committee found him guilty, but the motion failed in the Lok Sabha as Congress abstained.
- Ad hoc judge must be qualified for the Supreme Court and must give priority to its sittings
- A retired judge called under Art 128 is not otherwise deemed a judge. Constitutional cases and Art 143 references need a bench of at least five judges. Judgments are by majority and judges may dissent

MY NOTES

- Art 131 needs a dispute on which a legal right depends, so political questions are out, and a private citizen cannot sue under it. First suit: West Bengal against the Centre (1961) on the Coal Bearing Areas Act 1957
- It was dismissed. Federal original jurisdiction is exclusive, but writ jurisdiction under Art 32 is shared with High Courts, whose writ power is wider (Parliament can widen the Supreme Court's)
- Judicial review (Lakshmikanth Ch 27):
  - Began with Marbury v. Madison (1803) in the USA
  - In India the Constitution itself gives it and the Court calls it a basic feature. Sources include Arts 13, 32, 131 to 136, 226 and 227. Grounds: violates Fundamental Rights, outside competence, or repugnant to the Constitution. Art 31B and the Ninth Schedule (First Amendment 1951, 13 Acts then, 282 now) are open to review for laws added after 24 April 1973 (Kesavananda 1973, Waman Rao 1980, I.R. Coelho 2007)
- Activism and PIL (Ch 28 and 29):
  - Activism began in India in the mid-1970s with Krishna Iyer, Bhagwati, Chinnappa Reddy and Desai
  - PIL began in the early 1980s with Krishna Iyer and Bhagwati. PIL relaxes the rule of locus standi, so any public-spirited person can move the court for the poor. Guidelines of 1988 (changed 1993 and 2003) allow bonded labour, neglected children, custodial and police cases, atrocities on women and environment
  - Landlord-tenant, service matters and medical admissions are not entertained. Lakshmikanth differs: it lists nine safeguards of independence, adding the power to punish for contempt and the CJI's freedom to appoint staff
  - The handout lists seven, so answer with the handout seven in class

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

When was the Supreme Court established?	28 January 1950.
What is the Supreme Court's strength and which Act set it?	1 CJI + 33 = 34; Supreme Court (Number of Judges) Amendment Act, 2019.
What did the First Judges Case (1982) hold?	S.P. Gupta: consultation is not concurrence; primacy to the executive.

What did the Second Judges Case (1993) hold?	Consultation means concurrence; judiciary has primacy; CJI with two senior-most judges: the collegium.
What did the Third Judges Case (1998) do?	On a Presidential reference under Art. 143, expanded the collegium to CJI + four senior-most judges; if two judges disagree the CJI should not forward the recommendation.
What happened to NJAC?	Created by the 99th Amendment (2014); struck down in 2015 as violating judicial independence, a basic structure element.
Who superseded whom in 1973 and 1977?	1973: A. N. Ray over Shelet, Hegde and Grover. 1977: M. H. Beg over H. R. Khanna.
Qualifications for a Supreme Court judge?	Citizen plus: 5 years HC judge, or 10 years HC advocate, or distinguished jurist in the President's opinion.
Who administers the Supreme Court judge's oath and under which article?	The President or a person authorised by him; Art. 124(6).
Retirement age of a Supreme Court judge?	65 years (Art. 124(2)).
Grounds and article for removing a judge?	Art. 124(4): proved misbehaviour or incapacity; special majority in both Houses; President orders removal.
Inquiry committee under the Judges (Inquiry) Act, 1968?	Three members: a Supreme Court judge, a High Court Chief Justice, a distinguished jurist.
Which articles cover acting, ad hoc and retired judges?	126 acting CJI; 127 ad hoc judges; 128 retired judges.
Who decides the roster of benches?	The Chief Justice of India.
What is a Constitution Bench?	Five or more judges, for a substantial question on interpreting the Constitution (Art. 145(3)).
Whose disputes fall under Art. 131?	Centre and States, or States among themselves (the latter only if a legal right depends on the question).
Why did Ambedkar call Art. 32 the heart and soul?	It gives practical force to the Fundamental Rights in Part III.
Which writ cannot be issued against the President, Governors or private individuals?	Mandamus.

MY NOTES

Which writ is preventive, issued before judgment?	Prohibition.
What does Art. 226 add over Art. 32?	High Courts can issue writs for FRs and other legal rights; they may refuse if an alternative remedy exists.
Which amendment removed the Rs 20,000 limit on civil appeals?	The 30th Amendment Act, 1972 (Art. 133).
Which criminal appeals lie as of right under Art. 134?	When the HC reverses an acquittal and awards death, or withdraws a case, tries and convicts; no certificate needed.
What is Art. 136?	Special leave to appeal against any court or tribunal (except military courts); discretionary, exceptional, residual power.
Difference between Art. 143(1) and 143(2)?	143(1): Court may refuse, opinion not binding. 143(2): pre-Constitution disputes barred from Art. 131; Court must tender opinion.
How many Presidential references so far and the last?	Fifteen; the last is the 2G spectrum case in 2012.
Contempt punishment and limitation?	Simple imprisonment up to six months or fine up to Rs 2,000 or both; no proceedings after one year.
Review grounds and time limit?	Within 30 days, same bench: new evidence, error on the face of record, other sufficient reason (Art. 137).
Curative petition grounds?	Natural justice violation; gross miscarriage of justice; bias or procedural irregularity; abuse of process (Rupa Ashok Hurra, 2002).
Doctrine of waiver and its case?	FRs cannot be waived; Basheshar Nath v. CIT (1959).
Doctrine of prospective overruling and its case?	Decisions apply to the future; I.C. Golaknath v. State of Punjab (1967).
Name the seven safeguards of independence.	Appointment, security of tenure, fixed service conditions, expenditure charged on Consolidated Fund, conduct not discussed in legislature, ban on post-retirement practice, jurisdiction cannot be curtailed.

MY NOTES

Judicial review in India, UK and USA?	India: limited by Basic Structure; UK: absent (Parliament sovereign); USA: very wide.

Trap 1 · The Judges Cases and 'consultation'

S.P. Gupta (First Judges Case, 1982) held that consultation is not concurrence, so the executive had primacy. The Second Judges Case (1993) held consultation means concurrence, giving the CJI plus two senior-most judges the lead. The Third Judges Case (1998), an Art 143 reference, made it a five-member collegium and said that if two judges disagree the CJI should not send the name. NJAC came later (2014) and fell in 2015. *Rule: First = executive wins; Second = judiciary wins (3 judges); Third = five-member collegium; NJAC = struck down.*

Trap 2 · Article 32 versus Article 226

Art 32 is itself a Fundamental Right, enforces Fundamental Rights only, works across India, and the Court cannot refuse a genuine petition. Art 226 is only a constitutional power, covers Fundamental Rights and other legal rights, works mainly within the High Court's territory, and the court may refuse if another remedy exists. Both can issue the same five writs. *Rule: Art 32 = right, FR only, nationwide, cannot refuse; Art 226 = power, wider, local, may refuse.*

Trap 3 · Article 143(1) versus 143(2)

Under 143(1) the President may refer a question of law or fact of public importance and the Court may tender or refuse its opinion. Under 143(2) the reference is about excluded pre-Constitution treaty disputes (outside Art 131) and the Court must tender its opinion. The opinion is not binding. *Rule: 143(1) = may refuse; 143(2) = must answer; never binding.*

Trap 4 · Removal and review numbers

Removal motion needs 100 Lok Sabha or 50 Rajya Sabha members; the inquiry committee has three members (a Supreme Court judge, a High Court Chief Justice, a jurist); passage needs a special majority in both Houses. Qualification is 5 years as High Court judge or 10 years as advocate or distinguished jurist. Review must be filed within 30 days; contempt punishment is up to 6 months or Rs 2,000 fine; no contempt action after one year. *Rule: keep the number pairs together: 100/50, 3 members, 5/10 years, 30 days, 6 months/Rs 2,000, 1 year.*

QUICK QUIZ

Q1. Under the handout, the Supreme Court at present has a total strength of

1. 31
2. 33
3. 34
4. 35

Q2. In which case did the Supreme Court hold that "consultation" means "concurrence" for appointing judges?

1. S.P. Gupta v. Union of India (1982)
2. Supreme Court Advocates-on-Record Association v. Union of India (1993)
3. Rupa Ashok Hurra v. Ashok Hurra (2002)
4. Maneka Gandhi v. Union of India (1978)

MY NOTES

Q3. The collegium as expanded after the Third Judges Case (1998) consists of

1. CJI and two senior-most judges
2. CJI and four senior-most judges
3. CJI and six senior-most judges
4. CJI and the Law Minister

Q4. Which of the following is NOT a qualification in Art. 124(3) for a Supreme Court judge?

1. Citizen of India
2. High Court judge for five years
3. High Court advocate for ten years
4. Having served as Attorney General for five years

Q5. A motion to remove a Supreme Court judge under the Judges (Inquiry) Act, 1968 must be signed by

1. 50 Lok Sabha or 100 Rajya Sabha members
2. 100 Lok Sabha or 50 Rajya Sabha members
3. 100 members of either House
4. 50 members of either House

Q6. Which article lets the CJI request a High Court judge to sit temporarily when there is no quorum?

1. Article 126
2. Article 127
3. Article 128
4. Article 130

Q7. Which writ is issued to inquire into the legality of a person's claim to a public office?

1. Mandamus
2. Certiorari
3. Quo Warranto
4. Prohibition

Q8. Which statement about Art. 32 and Art. 226 is correct?

1. Art. 226 is itself a Fundamental Right
2. The Supreme Court may refuse a genuine FR petition if an alternative remedy exists
3. High Courts can enforce FRs and other legal rights
4. Art. 32 writs run only within a State

Q9. Appeals to the Supreme Court in civil matters lie under

1. Article 132
2. Article 133
3. Article 134
4. Article 136

Q10. Under Art. 143, the Supreme Court

1. must tender its opinion in every reference
2. may refuse its opinion under 143(1) but must give it under 143(2)
3. must give its opinion under 143(1) but may refuse under 143(2)
4. has binding advisory opinions

Q11. Under the Contempt of Courts Act, 1971, simple imprisonment is up to

1. three months
2. six months
3. one year
4. two years

Q12. A review petition in the Supreme Court must be filed within

1. 15 days
2. 30 days
3. 60 days
4. 90 days

Q13. Which doctrine says a law inconsistent with Fundamental Rights is inoperative until the inconsistency is removed?

1. Waiver
2. Eclipse
3. Severability
4. Colourable Legislation

MY NOTES

Q14. Which Presidential reference was made in 1951?

1. Berubari Union
2. Delhi Laws Act
3. Kerala Education Bill
4. Sea Customs Act

Q15. In which year did the Supreme Court strike down the NJAC?

1. 2014
2. 2015
3. 2002
4. 1998

Answers: Q1 c, Q2 b, Q3 b, Q4 d, Q5 b, Q6 b, Q7 c, Q8 c, Q9 b, Q10 b, Q11 b, Q12 b, Q13 b, Q14 b, Q15 b

MY NOTES

CHAPTER 15 · HANDOUT PAGES ON THE COURTS BELOW THE SUPREME COURT, AND ON PARLIAMENT (PART V, ARTICLES 79-122)

15 Parliament

HIGH PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **1997, 2001, 2002, 2003, 2004, 2005, 2007, 2008, 2009, 2010, 2011, 2012, 2013, 2014, 2015, 2016, 2017, 2018, 2019, 2020, 2021, 2022, 2023, 2024**

MY NOTES

EXAM LENS

MY NOTES

Prelims hooks

- Money Bill (Art. 110, 109, 14 days)
- Financial Bill
- joint sitting scope
- lapse of Bills
- RS powers (Art. 249, 312)
- Speaker and Deputy Speaker rules
- Art. 102 and 103
- RPA sections
- Tenth Schedule
- funds and budget stages
- High Court tenure, removal, Lok Adalat, Gram Nyayalaya, Family Court, tribunals
- judicial review and Ninth Schedule.
- Handout stresses: 71 Prelims PYQs are matched by the build (33 on courts, 38 on Parliament) and 19 Mains questions are printed in the handout (8 on courts, 11 on Parliament) (PYQ section)
- Handout stresses: Money Bill and Financial Bill (Art. 110, 117, 109): asked in 2013, 2015, 2018, 2023, 2024 (Bills section)
- Handout stresses: Rajya Sabha special powers (Art. 249, Art. 312) and equal or inferior powers (2012, 2016, 2020, 2022) (Rajya Sabha role)
- Handout stresses: Joint sitting and lapse of Bills (2012, 2015, 2016, 2024) and prorogation versus dissolution (2024) (Bills and Sessions sections)
- Handout stresses: Speaker and Deputy Speaker (2012, 2017, 2022, 2024: resignation to Deputy Speaker, removal, not a constitutional rule on Deputy Speaker's party) (Speaker section)
- Handout stresses: Consolidated Fund, Public Account, Budget (2011, 2012, 2015, 2020) and Office of Profit (2019) (Budget and disqualification sections)
- Handout stresses: Court block: High Court, Lok Adalats (2005, 2009, 2010), Gram Nyayalayas (2016), judicial review (2017), First Amendment (2023), Contempt (1997, 2022) (Courts sections)

Mains hooks

- courts: Khap Panchayats, Arbitration and Conciliation Ordinance, free legal aid and NALSA, Lok Adalats versus Arbitration Tribunals, women in the higher judiciary, judicial activism, PIL, collegium
- Parliament: role of MPs and anti-defection, parliamentary privileges, Whistle Blowers amendment, joint sitting, decline of the individual MP, Rajya Sabha, "Once a Speaker, Always a Speaker", accountability of the executive, Legislative Councils, presiding officers, cabinet system versus parliamentary supremacy.

MY NOTES

Courts keep Parliament within the Constitution, Parliament keeps the executive within its accountability, and people's courts bring justice to the doorstep.

IN SIMPLE WORDS

- **Judicial review** lets courts strike down laws and orders that break the Constitution (**Art. 13**, **Arts. 32 and 226**). The **Ninth Schedule** (281 laws) is not a blanket shield: laws added after **24 April 1973** can be tested (**I.R. Coelho, 2007**). **Judicial activism** (Art. 142, PILs) must stay balanced by **restraint**.
- The **High Court** (Arts. 214-231) has a Chief Justice and other judges
- Judges retire at **62**, and are removed like Supreme Court judges (motion by **100 LS or 50 RS** members, 3-member inquiry, special majority). Its powers are **original, writ, appellate, supervisory, control over lower courts, court of record and judicial review**
- **Below the High Court** sit the District and Sessions Court, civil and magistrate courts, **tribunals** (Arts. 323-A and 323-B), and people's forums: **Lok Adalats** (final award, no appeal), **Gram Nyayalayas** (2008), **Family Courts** (1984) and **Consumer Commissions** (2019 Act; District up to Rs 50 lakh, State up to Rs 2 crore, National above Rs 2 crore).
- **Parliament** = **President** + **Rajya Sabha** + **Lok Sabha** (Art. 79). RS: max **250** (245 now), permanent, **6-year** terms, one-third retire every 2 years, chosen by **STV**. LS: max **552** (543 elected now), **5-year** term, **first-past-the-post**.
- **Members**:
  - Qualify at **30 (RS) and 25 (LS)** (Art. 84)
  - Disqualified under **Art. 102**, the RPA 1951 and the **Tenth Schedule**
  - Seat falls vacant for double membership (**10 / 14 days**) or **60 days** of absence. The **Speaker** (Art. 93) and the RS **Chairman** (the Vice-President) preside
- **Business**: sessions at most **6 months** apart, motions and closure, four kinds of Bills (**ordinary, Money Art. 110, Financial Art. 117, Constitution Amendment**), **joint sitting (Art. 108)**, the **Budget in six stages**, three Funds, privileges. Parliament is **not sovereign** like Britain's.

Key term	In plain words
Judicial review	Courts test laws and executive orders against the Constitution; a law that fails is ultra vires and void; it is part of the Basic Structure

MY NOTES

Key term	In plain words
Collegium	Senior Supreme Court judges led by the CJI who recommend judges; evolved in the Second (1993) and Third (1998) Judges Cases
Court of record (Art. 215)	A High Court keeps its judgments as permanent precedents and can punish contempt of itself and of lower courts
Lok Adalat	People's court under Sec 19 of the Legal Services Authorities Act 1987; settles by compromise; award is a civil court decree and cannot be appealed
Money Bill (Art. 110)	Deals only with tax, borrowing and the Consolidated Fund; only Lok Sabha introduces it; Rajya Sabha must return it in 14 days; the Speaker's certificate is final
Quorum	Minimum members for business: one-tenth of the House, so 55 in Lok Sabha and 25 in Rajya Sabha
Charged expenditure (Art. 112(3))	Spending charged on the Consolidated Fund (President, judges, CAG, UPSC, debt); Parliament can discuss it but not vote on it
Prorogation	The President ends a session (Art. 85(2)); adjournment only ends a sitting; dissolution ends the Lok Sabha itself

MY NOTES

MEMORY MAP: PARLIAMENT

Parliament and the courts

Judicial review and activism
- Judicial review: Art. 13; Arts. 32 and 226
- Ninth Schedule: 1973, 1981, 2007
- Activism: Art. 142; restraint

High Courts and lower courts
- High Court: Arts. 214-231; age 62
- Removal: 100 LS or 50 RS
- Subordinate courts: District and Sessions Court
- Tribunals: Arts. 323-A and 323-B

People's courts
- Lok Adalats: Sec 19; PLAs 22A-22E
- Gram Nyayalayas: Act 2008; 2 years
- Family and Consumer: 1984; 2019

The two Houses
- Parliament: President + RS + LS
- RS: 250 max, 245 now; 6 years
- LS: 552 max, 543 now; FPTP

Members
- Qualify: Art. 84; 30 and 25
- Disqualify: Art. 102; Tenth Sch.
- Vacate: 10, 14, 60 days

Officers and leaders
- Speaker: Art. 93; Money Bill
- Chairman: VP; Art. 64
- LoP and Whip: 1977 Act; convention

Business and Bills
- Sessions: Art. 85; six months
- Motions: no-confidence; closure
- Bills: ordinary, Money, Financial
- Joint sitting: Art. 108

Money, powers and limits
- Budget: six stages; Art. 112
- Funds and grants: Arts. 266, 267
- Privileges: Art. 105
- Limits: not sovereign

MNEMONIC · DISQUALIFICATIONS UNDER ART. 102(1)

Only Upright Individuals Can Legislate

- **O** Office of profit under the Union or a State (unless exempted)
- **U** Unsound mind declared by a court
- **I** Insolvent who is undischarged
- **C** Citizenship lost, or voluntary foreign citizenship or allegiance
- **L** Law of Parliament (for example the RPA 1951)

Only upright people may legislate: the five constitutional grounds in order (a) to (e). (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · SIX STAGES OF THE UNION BUDGET

Pocket Guards Savings Via Annual Finance

- **P** Presentation by the Finance Minister (1 February)
- **G** General discussion (3 to 4 days, no cut motions)
- **S** Scrutiny by the 24 departmental standing committees
- **V** Voting on demands for grants (Lok Sabha only)
- **A** Appropriation Bill (Art. 114)
- **F** Finance Bill (to be enacted within 75 days)

The Budget guards the nation's pocket: six steps from presentation to the Finance Bill, in order. (Memory aid, not from the handout.)

MNEMONIC · TYPES OF MAJORITY

S E A S

- **S** Simple: majority of members present and voting
- **E** Effective: majority of total strength minus vacancies
- **A** Absolute: majority of the total strength of the House
- **S** Special: 2/3 majorities (three kinds, e.g. 2/3 present and voting plus a majority of the House for amendments)

Parliament's majorities run from shallow to deep, like SEAS. The handout lists Simple, Absolute, Effective, Special, so this order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · HIGH COURT'S ORIGINAL JURISDICTION

F O R C E

- **F** Fundamental Rights enforcement (Art 226)
- **O** Original civil jurisdiction (Calcutta, Bombay, Madras, Delhi)
- **R** Revenue matters
- **C** Constitutional cases withdrawn from subordinate courts
- **E** Election disputes

The High Court acts with its own FORCE: it hears these five matters directly, not on appeal. The order is rearranged for memory (the matters are unordered). (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · RAJYA SABHA'S EXCLUSIVE POWERS

S A V E

- **S** State List law-making by 2/3 resolution (Art. 249)
- **A** All-India Services creation (Art. 312)
- **V** Vice-President's removal, initiated only in the Rajya Sabha (Art. 67)
- **E** Emergency approval when the Lok Sabha is dissolved

The Rajya Sabha SAVEs the States' interests: its four exclusive powers. Order is rearranged for memory (the powers are unordered). (Memory aid, not from the handout.)

JUDICIAL REVIEW AND THE NINTH SCHEDULE

- **Judicial review** is the process by which courts examine whether legislative and executive actions conform to the Constitution. It is a check on arbitrary power and upholds the **supremacy of the Constitution** and citizens' rights.
- First established in **Marbury v. Madison (1803)** by Chief Justice **John Marshall** of the US Supreme Court.
- In India the power flows **directly from the Constitution** and is vested in **both the Supreme Court and the High Courts**.
- The Supreme Court has held judicial review is part of the **basic structure**: it cannot be curtailed even by a constitutional amendment.
- It tests the validity of laws and executive orders. If they violate the Constitution they are declared **ultra vires** (beyond authority), **null and void**. It is also a **legitimiser** of government action that stays within limits.
- It does **not** mean every law is automatically examined
- It works only when a law's validity is **challenged in a case** or a citizen claims violation of rights. The courts are "**sentinels on the qui vive**"

DUE PROCESS VERSUS PROCEDURE ESTABLISHED BY LAW

Concept	Meaning	Application in India
Procedure established by law	A law is valid if passed by a **competent authority** following the proper legislative procedure, **regardless of fairness**	Originally adopted in **Art. 21**; emphasised in **A.K. Gopalan (1950)**
Due process of law	Law must be properly enacted **and** just, fair and reasonable in content and procedure	Not explicitly adopted, but **Maneka Gandhi v. Union of India (1978)** expanded "procedure" to include fairness, bringing India close to due process

MY NOTES

THREE LEVELS OF REVIEW IN INDIA

TYPES OF JUDICIAL REVIEW

Level	What it does	Handout example
Legislative actions	Laws of Parliament or State Legislatures must conform to the Constitution and not violate Fundamental Rights	Striking down laws in **Golaknath (1967)** and **Kesavananda Bharati (1973)**
Administrative actions	Checks executive orders and discretion so decisions are neither arbitrary nor beyond legal authority	Intervention on corruption, environmental protection, misuse of power
Judicial decisions	The judiciary can review or correct its own earlier judgments (**Art. 137**)	Prevents miscarriage of justice

- **Two functions**:
  - Legitimising conforming government action
  - Protecting the Constitution from encroachment by any organ. Seen as the "**interpretational and observer**" role
- **Suo motu** action and **PILs** expand access by relaxing **locus standi** (only the aggrieved person may sue)
- The court can act even without a direct complaint when public welfare is at stake
- **Memory aid (Six uses of judicial review):** **S**upremacy of the Constitution, **M**isuse of power prevented, **P**rotecting rights, **F**ederal balance, **I**ndependence of judiciary, **T**yranny of executive prevented: "**S**trong **M**en **P**rotect **F**air **I**ndependent **T**rials."

HOW THE SUPREME COURT HAS WIDENED RIGHTS THROUGH REVIEW

- Freedom of the **press** under **Art. 19(1)(a)** though not named
- **protective discrimination** (reservations) held compatible with equality
- **Right to Education** and **Right to Clean Environment** read into **Art. 21**
- Delay in trials as denial of justice
- Free legal aid and speedy trials as part of fundamental rights
- PILs and activism for bonded labourers, women, children and marginalised groups
- **CNG for public transport in Delhi** and **compulsory helmets** show review as a "living instrument"

MY NOTES

CONSTITUTIONAL PROVISIONS

PROVISIONS BEHIND JUDICIAL REVIEW

Article	Role
13	Any law inconsistent with Fundamental Rights is **void to that extent**; the bedrock of judicial review
32 and 226	Writ petitions to the **Supreme Court** and **High Courts** to enforce Fundamental Rights; widened by PIL
136	Supreme Court **special leave to appeal** against any court or tribunal
227	High Courts **supervise** lower courts
131	Supreme Court **original jurisdiction** in Centre-State disputes

- **Shortcut:**
  - **Judicial review in one line. Art. 13 is the base**
  - **Arts. 32 and 226 are the doors**
  - **Ultra vires means void**
  - **It is part of the basic structure.**

THE NINTH SCHEDULE AND JUDICIAL REVIEW

- Introduced by the **First Constitutional Amendment Act, 1951** with **Art. 31B**, under PM **Jawaharlal Nehru**.
- Purpose: protect socially progressive laws (land reforms, agrarian equality, abolition of the zamindari system) from being invalidated for violating Fundamental Rights.
- Originally **13 Acts**
- Today **281 laws** (the handout adds "of which about 66 were added before 24 April 1973")

LANDMARK CASES ON THE NINTH SCHEDULE

Case	Year	Principle
Kesavananda Bharati v. State of Kerala	1973	Basic Structure Doctrine; laws violating basic structure cannot be protected by the Ninth Schedule
Waman Rao v. Union of India	1981	Only laws added **before 24 April 1973** (the Kesavananda date) are fully protected; later additions can be judicially reviewed
I.R. Coelho v. State of Tamil Nadu	2007	No blanket immunity; laws inserted after 1973 can be struck down for violating **Arts. 14, 19, 21** or the Basic Structure

FIVE CONCLUSIONS OF I.R. COELHO (2007)

- **1**: No law can destroy the **Basic Structure**, whether by amendment or inclusion in the Ninth Schedule

MY NOTES

- **2**: The **impact and effect test**: if the consequence of a law violates basic features, it is invalid
- **3**: **All Ninth Schedule additions after 24 April 1973** can be challenged under Arts. 14, 19, 21
- **4**:
  - Protection is **conditional, not absolute**
  - Each case on its merits
- **5**:
  - A law already upheld cannot be re-challenged
  - A struck-down law cannot revive by mere inclusion in the Schedule
- **NCRWC recommendations**:
  - Use the Ninth Schedule only as a **last resort**, for **agrarian reform or Directive Principles in Arts. 39(b) and 39(c)**
  - Make inclusion **transparent** with justification for each
  - Set an **institutional review mechanism** to check periodically whether laws in the Schedule remain relevant and valid
- **Memory aid (Ninth Schedule cases): K**esavananda (1973), **W**aman Rao (1981), **C**oelho (2007): "**K**eep **W**atch, **C**ourts decide": 1973, 1981, 2007.

ALSO IN THE HANDOUT

- Friendly courtroom atmosphere, free from intimidation.

JUDICIAL ACTIVISM AND RESTRAINT

- Judicial activism is an **assertive judiciary** reading the law as a **living instrument of social transformation**, a shift from a reactive judiciary to a creative, proactive one.

ORIGIN AND CONSTITUTIONAL BASIS

- Term coined by **Arthur Schlesinger Jr.** in the USA in **1947**.
- In India it grew from the **mid-1970s** under **Justice V.R. Krishna Iyer, Justice P.N. Bhagwati and Justice O. Chinnappa Reddy**, especially after the **Emergency (1975-77)** exposed executive overreach.
- Legitimacy from **Art. 32** (SC writs for Fundamental Rights), **Art. 226** (HC writs "for any other purpose"), **Art. 142** (SC may pass any decree for **complete justice**).
- **Memory aid (Roots of activism): K**rishna Iyer, **B**hagwati, **C**hinnappa Reddy: "**K**een **B**old **C**ourts."

MY NOTES

FIVE FEATURES

KEY FEATURES OF JUDICIAL ACTIVISM

Feature	Handout example
Expansive reading of Arts. 14, 19, 21	**Maneka Gandhi (1978)** widened Art. 21 beyond physical liberty to dignity and fairness
PIL and liberalised locus standi	Access for the poor, bonded labourers, prisoners, environmental victims
Directions to fill a legislative vacuum	**Vishaka v. State of Rajasthan (1997)** on sexual harassment
Judicial accountability of authorities	Reinforces the Rule of Law
Dynamic interpretation (living Constitution)	**Navtej Johar (2018)**: reinterpreted Art. 21 to decriminalise Section 377 IPC

- **Activism versus dynamism**:
  - Activism = assertive intervention, even stepping into policy
  - **dynamism** = constructive, reform-oriented interpretation **without exceeding jurisdiction**. Both treat the judiciary as a catalyst of change

LANDMARK CASES OF ACTIVISM

Case	Contribution
Hussainara Khatoon v. State of Bihar (1979)	Right to a **speedy trial** under Art. 21
Bandhua Mukti Morcha (1984)	Abolition of **bonded labour**; widened PIL
M.C. Mehta (1987-1998)	Environmental jurisprudence; **absolute liability** for hazardous industries
Vishaka (1997)	**Vishaka Guidelines** against workplace sexual harassment using CEDAW, until the **2013 Act**
D.K. Basu v. West Bengal (1997)	Guidelines on **arrest and custodial safeguards**
Prakash Singh (2006)	**Police reforms**: autonomy, fixed tenure, independent complaint authorities
Lalita Kumari v. U.P. (2014)	**FIR mandatory** for all cognisable offences

- **Memory aid (Landmark order):** **H**ussainara, **B**andhua, **M**.C. Mehta, **V**ishaka, **D**.K. Basu, **P**rakash Singh, **L**alita Kumari: "**H**ow **B**ig **M**ighty **V**oices **D**emand **P**olice **L**aw." Years: 1979, 1984, 1987–98, 1997, 1997, 2006, 2014.

MY NOTES

JUDICIAL REVIEW VERSUS JUDICIAL ACTIVISM

TOOL VERSUS SPIRIT

Aspect	Judicial review	Judicial activism
Meaning	Power to examine constitutionality of laws and executive actions	Proactive interpretation to achieve justice and fill policy gaps
Nature	Legal and procedural, strictly constitutional	Creative, reform-oriented, social-justice driven
Purpose	Uphold constitutional supremacy; prevent arbitrary action	Advance socio-economic rights; responsive governance
Approach	Conservative: legality and validity	Dynamic: moral and policy reasoning
Extent	Checks legality of state action	Expands the meaning of law to include evolving rights
Outcome	May strike down a law as ultra vires (**Kesavananda, 1973**)	May issue new guidelines (**Vishaka, 1997**)
Role	Guardian of the Constitution	Catalyst of social transformation
Criticism	May look like judicial obstruction	May lead to **overreach** into the legislative domain

- **Relationship**:
  - Review is the **foundation** (Arts. 13, 32, 226)
  - Activism is its **progressive form**
  - "review ensures **rule of law**, activism ensures **rule of justice**": the first prevents misuse of power, the second fills the void when power is not used. **Review is the tool**
  - **Activism is the spirit.**

WHY ACTIVISM AROSE

JUSTIFICATIONS

- **Constitutional and practical:**
  - Constitutional supremacy (Arts. 32, 226, 142 make the judiciary a "sentinel on the qui vive")
  - Rule of Law (Art. 14) and rebalanced separation of powers
  - Transformative constitutionalism (Preamble and Part IV turned into enforceable rights such as Education and Clean Environment). Wadehra's causes: collapse of responsible governance
  - Citizens' expectations
  - Judicial enthusiasm and reformist zeal
  - Legislative vacuum
  - Constitutional scope for innovation (Art. 21, Art. 142)

MY NOTES

- **Situational and philosophical:**
  - Kashyap's grounds: legislative paralysis
  - Weak or fragmented governments
  - Political expediency
  - Failure to protect basic rights (Subhash Kumar v. Bihar, 1991)
  - Authoritarian misuse (Emergency 1975-77)
  - Populist pressures. Philosophy: justice as a living concept (Art. 38)
  - Continuing mandamus (Vineet Narain, 1998)
  - Conscience of the voiceless via PIL and suo motu

ACTIVATORS (UPENDRA BAXI'S GROUPS) AND THEIR CASES

SOCIAL ENGINES OF JUDICIAL DYNAMISM

Group	Example
Civil rights activists	**A.K. Gopalan (1950)** to **Maneka Gandhi (1978)**: from procedural liberty to substantive due process
People's rights and social-justice movements	**Olga Tellis v. Bombay Municipal Corporation (1985)**: **right to livelihood** in Art. 21
Consumer rights groups	Consumer Protection Act (1986): public accountability and consumer forums
Bonded labour and labour-rights organisations	**Bandhua Mukti Morcha (1984)** enforcing the Bonded Labour System (Abolition) Act, 1976
Environmental activists (CSE and others)	**M.C. Mehta (1987)** absolute liability; **Vellore Citizens' Welfare Forum (1996)** polluter pays and precautionary principle
Human-rights and custodial-rights groups	**D.K. Basu (1997)**
Child-rights activists	**M.C. Mehta v. Tamil Nadu (1996)** banned child labour in hazardous industries
Women's-rights movements	**Vishaka (1997)**
Bar and media-autonomy groups	**SC Advocates-on-Record Assn. (2016)**: collegium transparency
Individual petitioners and lawyers	**Kapila Hingorani, Prashant Bhushan, Subhash Kashyap**: made the Supreme Court a "**people's court**"

APPREHENSIONS ABOUT ACTIVISM

- Upendra Baxi: "**the nervous rationalities of conscientious judges**".

MY NOTES

SEVEN FEARS

Fear	Concern
Ideological	Blurs review and **judicial legislation**; usurping powers; Art. 50 separation (examples: banning diesel vehicles, fixing mining limits)
Epistemic	Judges lack expertise: **Kudankulam** nuclear safety, **Vodafone tax** issue; technocratic overreach
Management	PILs and suo motu add to caseload; **NJDG (2024): over 5.1 crore pending cases**
Legitimation	Unenforced orders erode public confidence and authority
Democratic	Unelected judges sidelining elected representatives: "judicial governance"
Biographical	Concern about post-retirement image; backlash and populism; humility needed
Institutional overreach	**Aravali Golf Club v. Chander Hass (2007)** warning

- **Memory aid (Six fears):** **I**deological, **E**pistemic, **M**anagement, **L**egitimation, **D**emocratic, **B**iographical: "**I**n **E**very **M**atter **L**imit **D**ominant **B**ench." (the seventh is institutional overreach, Aravali.)
- **Aravali Golf Club v. Chander Hass (2007)**:
  - Judges **cannot run the government**
  - Restraint complements democracy
  - Judges must not "behave like emperors"
  - Administrative expertise lies with the executive
  - Public discontent with other organs does not justify encroachment
  - Overreach erodes faith in the "last refuge of citizens". Elsewhere: activism must not become **judicial adventurism**
  - Policy-making is for executive and legislature
  - If they fail, the remedy lies with the **electorate**

ACTIVISM VERSUS RESTRAINT

TWO PHILOSOPHIES

Aspect	Activism	Restraint
Philosophy	Judiciary as catalyst; active interpreter of constitutional morality	Neutral arbiter; respects the will of legislature and executive
Core idea	Living document that evolves	Must not substitute its policy preferences for elected representatives
Objective	Advance justice, protect rights, fill governance gaps	Preserve institutional balance and prevent overreach

MY NOTES

Aspect	Activism	Restraint
Approach	Expansive, innovative (Art. 21 jurisprudence)	**Strict constructionism**: legislative intent and text
Roots	Post-WW II America; **Warren Court (1953-69)**	**Montesquieu's** separation of powers

- **Six assumptions of restraint**:
  - Democratic accountability (unelected courts defer)
  - Questionable origin of judicial review (not explicit in the Constitution)
  - Separation of powers
  - Federal deference
  - **pragmatic realism** (courts depend on appropriations and public trust)
  - Judicial decorum (law is reason, not politics)

HANDOUT ALERT

Handout alert: The date of the Aravali judgment (2007) appears twice with different lists of points (six in the criticism section, five in the restraint section); they overlap. Use both as one set: judges must know limits, restraint complements separation of powers, activism must not become adventurism, policy is for executive and legislature, remedy is the electorate.

ALSO IN THE HANDOUT

- Courts thus act as moral guardians ensuring substantive justice over procedural rigidity.
- Today, tribunals form an / integral part of India's justice delivery / framework, ensuring that the promise of "timely justice for all" becomes a practical reality rather than a distant ideal.
- By eliminating court fees and adopting a conciliatory approach, they democratize the justice process.
- Humanized Justice System: Family Courts adopt a non-adversarial approach, emphasizing dialogue, compassion, and emotional understanding rather than confrontation.
- These design choices are rooted in both constitutional principles and practical considerations of governance in a diverse, populous nation.
- These differences are essential for sustaining India's large, diverse, and multi-ethnic democracy, ensuring that governance remains both effective and inclusive.
- However, the salary hikes have also reignited debates about ethical and economic parity, as critics argue that periodic pay increases for MPs must be accompanied by tangible improvements in public accountability, attendance, and legislative productivity. Pro-

MY NOTES

ponents, however, emphasize that competitive remuneration is essential to attract competent individuals from diverse professional backgrounds into public service, thereby strengthening the quality of parliamentary democracy.

- Ensures that amendments preserve the constitutional ethos, preventing arbitrary or undemocratic modifications.

HIGH COURTS: ORGANISATION, APPOINTMENT, TENURE

- The High Courts are the highest judicial authorities **at State level**, below the Supreme Court, with **superintendence and control over all subordinate courts** in their jurisdiction.

ESTABLISHMENT AND COMPOSITION

- **Art. 214**: a High Court for each State. **Art. 231**: Parliament may set up a **common High Court** for two or more States, or States and a Union Territory.
- Examples:
  - **Punjab and Haryana HC** serves both States and **Chandigarh**
  - **Gauhati HC** serves several north-eastern States
- **25 High Courts** (2025)
- Delhi, Bombay, Madras, Calcutta and Allahabad are the oldest, from British rule
- **Art. 216**:
  - A Chief Justice and such other judges as the **President** deems necessary
  - Strength varies with population, pendency and workload and can be altered
- **Seat**:
  - Usually the State capital, with **permanent or circuit benches** elsewhere. Examples: **Bombay HC** benches at Nagpur, Aurangabad, Goa
  - **Madhya Pradesh HC** at Jabalpur with benches at Indore and Gwalior

APPOINTMENT (ART. 217) AND QUALIFICATIONS

- Judges are appointed by the **President**. For the **Chief Justice**: consult the **CJI** and the **Governor**. For **other judges**: consult the **CJI, the Governor and the Chief Justice of that High Court**.
- In practice the **Collegium System** (**Second Judges Case 1993**, reaffirmed by the **Third Judges Case 1998**): senior Supreme Court judges headed by the CJI recommend names
- The President normally follows

MY NOTES

QUALIFICATIONS

Require-ment	Detail
Citizen	Must be a **citizen of India**
Experience	**Ten years** in judicial office in India, **or** advocate of a High Court (or two or more in succession) for **ten years**

- **Oath (Art. 219)** before the **Governor**:
  - True faith and allegiance to the Constitution
  - Uphold sovereignty and integrity
  - Perform duties faithfully
  - Do right to all without fear or favour, affection or ill will
- **Salary (Art. 221)**:
  - Fixed by Parliament by law
  - Until then by the **Second Schedule**
  - Cannot be reduced to the judge's disadvantage. After the **High Court and Supreme Court Judges (Salaries and Conditions of Service) Amendment Act, 2018**: **Chief Justice ₹2.5 lakh per month**
  - **Other judges ₹2.25 lakh**
- **Shortcut: HC basics. Citizen, 10 years as judge or advocate, appointed by the President through the Collegium (1993, 1998), retire at 62.**

TENURE, REMOVAL AND TRANSFER

- No fixed term
- **retire at 62 (Art. 217)**
- Age disputes decided by the **President after consulting the CJI**, final
- **Resign** by writing to the President. **Vacate** office on appointment to the Supreme Court or transfer to another High Court.

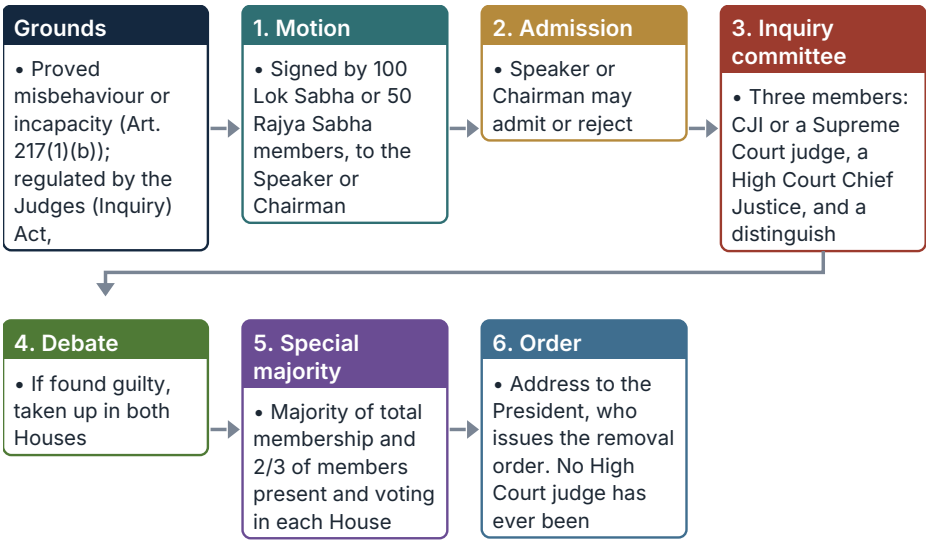
REMOVAL OF A HIGH COURT JUDGE (SAME AS SUPREME COURT)

- **Grounds**:
  - **Proved misbehaviour or incapacity** (Art. 217(1)(b))
  - Regulated by the **Judges (Inquiry) Act, 1968**
- **1. Motion**: Signed by **100 Lok Sabha** or **50 Rajya Sabha** members, to the Speaker or Chairman
- **2. Admission**: Speaker or Chairman may **admit or reject**
- **3. Inquiry committee**: **Three members**: CJI or a Supreme Court judge, a High Court Chief Justice, and a distinguished jurist
- **4. Debate**: If found guilty, taken up in **both Houses**
- **5. Special majority**: **Majority of total membership** and **2/3 of members present and voting** in each House

MY NOTES

- **6. Order**: Address to the President, who issues the removal order. **No High Court judge has ever been impeached.**

REMOVAL OF A HIGH COURT JUDGE (SAME AS SUPREME COURT)



- **Transfer of judges:**
  - **Art. 222**: the President may transfer a judge after consulting the CJI
  - The judge gets a **compensatory allowance**. **1977**: transfers only in **public interest**, not as punishment. **1994**: transfers are subject to **judicial review**, only the affected judge can challenge. **Third Judges Case (1998)**: the CJI must consult a **collegium of four senior-most Supreme Court judges** and the **Chief Justices of both High Courts** (sending and receiving)

ACTING, ADDITIONAL AND RETIRED JUDGES

FOUR STOP-GAP ARRANGEMENTS

Provision	Article	Rule
Acting Chief Justice	**223**	When the CJ's office is vacant or he cannot act, the President may appoint another judge until the CJ resumes or a new one is appointed
Additional Judges	**224(1)**	President appoints for a **temporary period not exceeding two years** for arrears or temporary increase in business, after consulting CJI, Governor and High Court CJ
Acting Judges	**224(2)**	When a judge (not the CJ) cannot act or numbers are insufficient, the **High Court CJ with the President's previous consent** may request a qualified person to act

MY NOTES

Provision	Art-icle	Rule
Retired Judges	**224A**	The CJ, with the **President's consent** and the retired judge's consent, may ask a retired judge of any High Court to sit; he has a serving judge's powers but is **not a permanent judge**

- **Memory aid (Articles 223-224A):** **A**cting CJ (223), **A**dditional (224(1)), **A**cting judge (224(2)), **R**etired (224A): "**A**ll **A**rticles **A**rrive **R**ight after 222." (Art. 222 = transfer.)

> **HANDOUT ALERT**
> Handout alert: **PYQ 2007** (in the handout's PYQ list) lists "after retirement a permanent High Court judge cannot plead or act in any court or before any authority in India" as correct, but the Independence section here says retired judges **cannot practise in the same High Court or its subordinate courts** and **may practise in the Supreme Court or any other High Court**. For concept questions use this section; for the PYQ use its key.

ALSO IN THE HANDOUT

- Hence it affected the rationalization of finances and reforms for the railway department.

HIGH COURTS: POWERS AND INDEPENDENCE

- Every High Court has **original, appellate, writ, supervisory and administrative** jurisdiction plus **judicial review**.

1. ORIGINAL JURISDICTION

- **Election disputes** (MPs and State legislators) under the **RPA, 1951**.
- **Revenue matters**.
- **Enforcement of Fundamental Rights** by writs (Art. 226).
- **Transfer of constitutional cases** from subordinate courts with a substantial question of constitutional interpretation.
- **Original civil jurisdiction** in higher-value cases: **Calcutta, Bombay, Madras and Delhi**. Before 1973 the first three also had original criminal jurisdiction, abolished by the **Criminal Procedure Code, 1973**.

2. WRIT JURISDICTION (ART. 226)

- Writs: **habeas corpus, mandamus, prohibition, certiorari, quo warranto**.
- Purposes:
  - (1) enforce **Fundamental Rights**

MY NOTES

- (2) **any other purpose** (ordinary legal rights). So the High Court's jurisdiction is **wider** than the Supreme Court's Art. 32 and **concurrent** with it for Fundamental Rights

- It can reach persons or authorities **outside** its territory if the **cause of action arises within** it.

3. APPELLATE JURISDICTION

CIVIL AND CRIMINAL APPEALS

Type	Rule
First appeals	From District Courts or Additional District Courts when law and fact are involved and the amount exceeds the prescribed limit
Second appeals	Only **substantial questions of law**
Intra-court appeals	From a single judge to a **Division Bench** of the same High Court
Appeals from tribunals	To a Division Bench; **Chandra Kumar (1997)**: tribunals are under High Court writ jurisdiction, so go to the **High Court first** before the Supreme Court
Criminal	From Sessions Courts when sentence exceeds **seven years**; **death sentence** by a Sessions Court **must be confirmed** by the High Court even without appeal; other appeals under CrPC 1973 from Assistant Sessions Judges and magistrates

4. SUPERVISORY JURISDICTION (ART. 227)

- **Superintendence over all courts and tribunals** in its territory, **except military courts**. Powers: **call for returns**, **frame rules and forms**, **regulate records and accounts**, **fix fees** of clerks, sheriffs, officers and legal practitioners.
- Covers judicial **and** administrative supervision
- Works as **revisional** jurisdiction
- May be used **suo motu**
- An **extraordinary power, to be used sparingly**, in cases of:
  - Excess of jurisdiction
  - Gross violation of natural justice
  - Error of law
  - Disregard of binding precedent
  - Perverse findings
  - Manifest injustice

5. CONTROL OVER SUBORDINATE COURTS (ARTS. 233-235)

- The Governor **consults** the High Court in appointment, posting and promotion of **District Judges** and in recruitment to the judicial service.

MY NOTES

- Manages posting, promotion, leave, transfer and discipline of judicial officers **below District Judge**.
- May **withdraw cases** involving a substantial constitutional question, decide them, or return them with its ruling.
- Its decisions **bind all subordinate courts** in its jurisdiction.

6. COURT OF RECORD (ART. 215)

- **Record of proceedings**: permanent record and precedent value, cannot be challenged before subordinate courts.
- **Power to punish for contempt** of itself and subordinate courts (civil or criminal), under the **Contempt of Courts Act, 1971**. It cannot take cognisance where the act is already an **IPC offence**.
- Inherent power to **review and correct its own judgments** though not written in the Constitution.

7. JUDICIAL REVIEW

- Examines laws and executive orders of **Centre and State**
- Unconstitutional ones are **ultra vires**. Flows from **Arts. 13 and 226**
- Part of the Basic Structure. Grounds: violates Part III
- Beyond the maker's competence
- Repugnant to the Constitution
- The **42nd Amendment (1976)** tried to bar High Courts from questioning Central laws
- The **43rd Amendment (1977)** restored the position

INDEPENDENCE OF HIGH COURTS (TEN SAFEGUARDS)

SAFEGUARDS

Safeguard	Content
1. Security of tenure	Till **62**; removable only by impeachment for proved misbehaviour or incapacity
2. Fixed service conditions	Salary and allowances **charged on the Consolidated Fund of the State**; no reduction to disadvantage; changes only by Parliament
3. No practice after retirement	Cannot practise in the **same High Court or its subordinate courts**; may practise in the **Supreme Court or any other High Court**
4. Appointment process	President with the CJI and others; **Collegium** (1993, 1998)
5. Transfer procedure	Only by the President after consulting the **CJI**
6. Contempt power	Art. 215
7. Own procedure	Free to frame its own rules of practice and procedure

MY NOTES

Safeguard	Content
8. Separation from executive	**Art. 50** (DPSP)
9. Conduct of judges	Cannot be discussed in Parliament or State Legislature except in removal proceedings
10. Control over subordinate judiciary	**Art. 235**: appointment, promotion, discipline

- **Memory aid (Ten safeguards):** **T**enure, **F**ixed conditions, **P**ractice ban, **A**ppointment, **T**ransfer, **C**ontempt, **P**rocedure, **S**eparation (Art. 50), **C**onduct not discussed, **A**dministrative control (Art. 235): "**T**en **F**amous **P**illars **A**lways **T**all, **C**ourts **P**ride, **S**afe **C**onstitutional **A**uthority."

ART. 226 VERSUS ART. 32

- **High Court (Art. 226):**
  - Fundamental Rights and any other legal right
  - Wider
  - Can issue to authorities outside its territory if cause of action arises within
- **Supreme Court (Art. 32):**
  - Enforcement of Fundamental Rights
  - Concurrent with the High Court for FRs
- **Shortcut: Original civil jurisdiction. Calcutta, Bombay, Madras, Delhi: "C-B-M-D"** (original criminal ended with CrPC 1973).

ALSO IN THE HANDOUT

- However, no High Court shall take cognizance of a contempt where such act already constitutes an offence under the Indian Penal Code (1860).

SUBORDINATE COURTS AND TRIBUNALS

STRUCTURE OF THE SUBORDINATE JUDICIARY

- Every district has a **District and Sessions Court** at the apex of the subordinate system: the same judge is **District Judge** (civil) and **Sessions Judge** (criminal). All work under the **High Court's** superintendence.

COURTS BELOW THE HIGH COURT

Branch	Court	Key points
Civil	**District Judge**	Highest civil court in the district; original and appellate jurisdiction; appointed by the **Governor in consultation with the High Court**

MY NOTES

Branch	Court	Key points
	Sub-Judge / Civil Judge (Senior Division)	Suits of moderate value; appeals from lower civil courts
	Munsif / Civil Judge (Junior Division)	Minor civil disputes
	Family Courts	**Family Courts Act, 1984**; matrimonial and custody cases
	Small Causes Courts	Petty civil cases; decisions **final**, no appeal
Criminal	**Sessions Court**	Highest criminal court in the district; any punishment including death, but a **death sentence must be confirmed by the High Court**; hears appeals from magistrates
	Chief Judicial Magistrate (CJM)	Principal magistrate; imprisonment up to **seven years**
	Metropolitan Magistrate	In Delhi, Mumbai, Chennai, Kolkata the CJM is the **Chief Metropolitan Magistrate**
	First-Class Magistrate	Up to **three years** or fine up to **₹10,000**
	Second-Class Magistrate	Petty offences: up to **one year** or fine up to **₹5,000**

- Every criminal case **begins before a magistrate**, who may commit serious cases to the Sessions Court.

APPOINTMENT OF SUBORDINATE JUDGES (ARTS. 233-237)

- **District Judge**:
  - Appointed by the **Governor after consulting the High Court**. Eligibility: **citizen**
  - **advocate or pleader for at least seven years**
  - **recommended by the High Court** (the PYQ 2004 also adds judicial service of the Union or State)
- **Removal and discipline**: the Governor can remove a District Judge **only on the High Court's recommendation** (**Art. 235**: High Court has complete control). The High Court can start disciplinary proceedings (suspension or demotion) against other judicial service members after a detailed inquiry.
- **Below District Judge** (Civil Judge Junior Division, Munsif, Judicial Magistrate): recruited through competitive exams by the **State Public Service Commission**
- The Governor appoints on the High Court's recommendation. The High Court controls posting, promotion and transfer

MY NOTES

TRIBUNALS: THE CONSTITUTIONAL BASE

- **42nd Amendment Act, 1976** inserted **Part XIV-A (Arts. 323-A and 323-B)**: parallel, specialised forums to decentralise justice.
- **Art. 323-A** (service matters): Parliament may set up tribunals for recruitment and service conditions of persons in public service of the Union, States and local authorities. **Administrative Tribunals Act, 1985** created a three-tier system.

ADMINISTRATIVE TRIBUNALS

Tribunal	Basis	Composition and tenure	Notes
CAT (Central)	Act of 1985	**Chairperson and Members** (judicial and administrative); appointed by the **Central Government** on a **Search-cum-Selection Committee**: **CJI or SC judge nominated by him (Chair), two senior Secretaries, outgoing Chairperson or retired SC/HC judge**. Tenure **4 years or age 70 (Chairperson) or 67 (Member)**, whichever earlier; **minimum age 50**; one re-appointment	Principal Bench in **New Delhi**; Union services, UTs, central public corporations; powers like a civil court; appeals **directly to the Supreme Court under Section 28** (see alert)
SAT (State)	**Section 4**; State Government with the President's approval	Appointed by the **President** in consultation with the **Governor and the High Court CJ**; committee headed by the **High Court CJ** with the **Chief Secretary**, **SPSC Chairperson** and one **Secretary to GoI**; **4 years (renewable)**, 70 and 67, minimum age 50	Kept by **Odisha, Karnataka, Maharashtra, Madhya Pradesh**; **Andhra Pradesh and Tamil Nadu abolished** theirs (cases to High Courts); challenge in High Court under **Arts. 226 and 227** (Chandra Kumar)
JAT (Joint)	**Art. 323-A(2)(b) and Section 12**; two or more States by agreement with Presidential approval	Chairperson and Members; President on a **joint committee headed by a High Court CJ of a participating State**	Rarely constituted; an instrument of **cooperative federalism**

JUDICIAL REVIEW OF TRIBUNALS

- **S.P. Sampath Kumar (1987)**: upheld tribunals but they must be **effective substitutes** for High Courts.

MY NOTES

- **L. Chandra Kumar (1997)**:
  - A **seven-judge bench**: judicial review by High Courts and the Supreme Court is part of the **Basic Structure**
  - Tribunal decisions are reviewable under **Arts. 226/227 and 32**
- **Madras Bar Association (2014, 2020, 2021)**:
  - Tenure must secure independence
  - Minimal executive control over appointments
  - The 2021 Act's **4-year tenure and 50-year minimum age** are under scrutiny

ART. 323-B TRIBUNALS

- Both **Parliament and State Legislatures** can create tribunals on a wide range of subjects: **(1) taxation, (2) industrial and labour matters, (3) land reforms and ceilings, (4) elections to Parliament and State Legislatures, (5) food procurement and distribution, (6) rent control and tenancy, (7) production, supply and distribution of essential goods, (8) any other matter** the legislature deems necessary.

ART. 323-A VERSUS ART. 323-B

Basis	323-A	323-B
Source	42nd Amendment (1976)	42nd Amendment (1976)
Who can create	**Parliament only**	**Parliament and State Legislatures**
Subject	**Service matters** of public servants	Taxation, industrial and labour disputes, land reforms, elections, rent control and similar
Examples	CAT, SAT, JAT	**NGT, NCLT/NCLAT, AFT, ITAT, TDSAT, SAT** etc.
Laws	**Administrative Tribunals Act, 1985** (as amended by the **Tribunals Reforms Act 2021**)	Specific statutes: **NGT Act 2010**, **Companies Act 2013**, **AFT Act 2007**
Appeal	**Directly to the Supreme Court** in service matters (handout)	Varies by statute: usually High Courts or Supreme Court
Aim	Reduce High Court workload; quasi-judicial	Expert, sector-specific adjudication

- **Memory aid (Eight 323-B subjects):** **T**axation, **I**ndustrial and labour, **L**and reforms, **E**lections, **F**ood procurement, **R**ent control, **E**ssential goods, **O**ther matters: "**T**ribunals **I**n **L**aw **E**nsure **F**air **R**esolution, **E**very **O**ccasion."

MY NOTES

HANDOUT ALERT

Handout alert: **Appeals from CAT**: the handout says "directly to the Supreme Court under Section 28" and the 323-A/323-B table also says direct appeal to the Supreme Court, but **Chandra Kumar (1997)** says tribunal decisions are subject to the High Courts' writ jurisdiction under Arts. 226/227 and the aggrieved person must go to the **High Court first**. For exam use the **Chandra Kumar rule (High Court first)**; keep the "Section 28 direct appeal" wording only as the handout's statement.

LOK ADALATS AND LEGAL SERVICES

- Lok Adalats ("People's Courts") were introduced by the **Legal Services Authorities Act, 1987** for inexpensive, quick, amicable settlement by compromise. They reflect **Art. 39A** (equal justice and free legal aid).

LEGAL SERVICES AUTHORITIES

LEVELS OF AUTHORITY

Level	Authority	Head	Function
National	**NALSA**	**Chief Justice of India**	Policy, coordination, monitoring
State	**SLSA**	**Chief Justice of the High Court**	Organising Lok Adalats across the State
District	**DLSA**	**District Judge**	Local disputes and awareness programmes
Taluk	**Taluk Legal Services Committee**	**Senior Civil Judge**	Mobile and grassroots Lok Adalats

- Three continuing functions at every level:
  - **free and competent legal services**
  - **Lok Adalats** at regular intervals
  - **legal awareness and literacy**
- **Free legal services** include court fees and process charges, a lawyer, certified copies and documents, and preparation and filing of appeals, paper books and translations.

SECTION 12: WHO GETS FREE LEGAL AID

- **Social groups**:
  - **Women and children**
  - **SC and ST members**
  - **industrial workmen**
  - **persons with disabilities**

MY NOTES

- **Situations**:
  - **Victims of mass disasters, violence, floods, droughts, earthquakes, industrial accidents**
  - **persons in custody** (protective homes, detention centres)
  - **victims of human trafficking or beggary**
- **Income**: **Economically weaker persons**: annual income up to **₹1,00,000** (general) or **₹5,00,000** before the Supreme Court Legal Services Committee
- **Memory aid (Section 12 groups): W**omen and children, **S**C/ST, **I**ndustrial workmen, **V**ictims of disasters, **D**isabled, **C**ustody, **T**rafficking and beggary victims, **E**conomically weak: "**W**e **S**erve **I**ndia's **V**ulnerable, **D**isadvantaged, **C**onfined, **T**rafficked, **E**conomically weak."

ORDINARY LOK ADALATS (SECTION 19)

- A forum where **pending cases and pre-litigation disputes** are settled amicably. Organised at all levels from the **Supreme Court to Taluk courts**.
- **Composition**: **Chairperson** (serving or retired judicial officer) plus **two members** (legal practitioners, social workers or persons of repute). No strict procedure or evidence law.
- **Jurisdiction**: cases pending before **any court** (civil, **motor accident claims, cheque bounce (Negotiable Instruments Act), compoundable criminal offences**) and **pre-litigation** disputes. **Cannot** deal with **non-compoundable offences** (murder, rape, grievous assault) or complex cases needing extensive evidence.
- **Reference**:
  - Mutual consent
  - Application by one party
  - **suo motu** by the court. For pre-litigation, the Legal Services Authority receives applications directly
- **Powers** of a **Civil Court under the CPC, 1908**:
  - Summon and examine on oath, require documents, accept affidavits, requisition public records, fix procedure. Proceedings are **judicial proceedings**
  - The Lok Adalat is a Civil Court for procedure, contempt and enforcement
- **Award**:
  - **final and binding**
  - Treated as a **decree of a civil court**
  - Enforceable like one
  - **no appeal**. No award without **consent**
  - If parties fail to agree, the case returns to the referring court

MY NOTES

TYPES OF LOK ADALAT

Type	Features
National Lok Adalats	Started by NALSA in **2015**; **quarterly**, from the Supreme Court to Taluk courts on a single day; target case categories. 2025 dates: **8 March, 10 May, 13 September, 13 December**
State (Regular): Continuous	Several consecutive days
Daily	Every day in busy places (traffic challans, small claims)
Mobile	Vans to remote and rural areas
Mega	All courts of a State on one day
Permanent (PLAs)	**2002 Amendment**; **Sections 22A-22E**; **pre-litigation public utility services**

PERMANENT LOK ADALATS (PLAS)

- **Composition**: a **Chairperson who is or was a District Judge** plus two members with experience in public affairs, social service or professional fields. Set up by the Central or State Government **in consultation with the High Court Chief Justice**.
- **Jurisdiction (Section 22A)**:
  - Transport (rail, road, air)
  - Postal, telegraph and telephone
  - Power, water, sanitation
  - Insurance, banking, financial services
  - Public distribution
  - Hospital and health services (by judicial interpretation). **Not**: non-compoundable offences
  - Disputes above **₹1 crore** (per NALSA guidelines)
- **Procedure**: **conciliation first, adjudication next**. Awards (**Section 22E**) are **final, binding, a civil-court decree, not appealable**.
- **Interglobe Aviation v. N. Satchidanand (2011)**:
  - PLAs have **dual jurisdiction** (conciliation and adjudication)
  - Awards are binding and not subject to routine interference. **Digital Lok Adalat** platform (2022-2024): pre-filing of PLA cases, e-summons, online tracking

ORDINARY LOK ADALATS VERSUS PERMANENT LOK ADALATS

Basis	Ordinary	Permanent
Legal basis	**Section 19**	**Sections 22A-22E** (2002 Amendment)
Disputes	Pending or pre-litigation, **by consent**	**Only pre-litigation in public utility services**
Method	Compromise or mutual consent only	**Conciliation first, adjudication if needed**

MY NOTES

Basis	Ordinary	Permanent
Award	Binding but consent-based	Binding **even without consent** once decided
Adjudicatory power	**None**	**Quasi-judicial** adjudication
Appeal	**None** (Section 21)	None; limited judicial review possible
Frequency	Occasional	**Continuous and permanent** body

SIGNIFICANCE AND LIMITS

- **Significance**:
  - Access for the poor (no court fee; fee already paid is **refunded** on settlement)
  - **speedy** (over **1.5 crore** cases in 2023 per NALSA)
  - Reduces backlog
  - Voluntary and non-adversarial
  - Economical
  - Legal literacy
  - PLAs avoid litigation in public utility grievances
- **Limits**:
  - **mutual consent** needed
  - **uneven quality** of conciliators
  - **limited jurisdiction**
  - **no appeal** (no review even if fairness or consent is disputed)
  - **poor rural infrastructure**
  - **numbers over quality**
- **Shortcut: Lok Adalat in one line. Ordinary: Sec 19, consent, no adjudication. Permanent: Sec 22A-22E, public utilities, conciliation then adjudication, up to ₹1 crore. Award = decree, no appeal.**
- **Memory aid (Four Lok Adalat levels):** **N**ALSA (CJI), **S**LSA (High Court CJ), **D**LSA (District Judge), **T**aluk (Senior Civil Judge): "**N**ever **S**kip **D**ue **T**rials."

ALSO IN THE HANDOUT

- The Act institutionalized a system where justice is made accessible, affordable, and participatory, especially for weaker sections of society.
- Transport services (railways, roadways, airways);
- Rising Quantitative Approach: Excessive emphasis on numerical disposal targets sometimes compromises the quality of justice, leading to superficial settlements rather than genuine conciliation.

MY NOTES

- This approach aligns with the national policy of "conciliation before adjudication," ensuring that justice heals relationships instead of deepening conflicts.

GRAM NYAYALAYAS, FAMILY COURTS AND CONSUMER COMMISSIONS

GRAM NYAYALAYAS

- **Background**:
  - Village panchayats
  - **14th Law Commission Report (1958)** first suggested village courts
  - **Balwantrai Mehta Committee (1957)**
  - **Justice P.N. Bhagwati Committee on Legal Aid (1977)** "justice at the doorstep"
  - Later **114th, 120th and 213th** Law Commission reports. Supporting provisions: **Art. 39A**, **Art. 50**, Directive Principles
- **Gram Nyayalayas Act, 2008**, in force **2 October 2009**.
- **Establishment (Section 3)**:
  - State Government **in consultation with the High Court** for every **intermediate-level panchayat** or a group of contiguous panchayats
  - Notification fixes local limits (normally a block or taluk)
  - A court of **subordinate jurisdiction under the High Court**
- **Presiding officer:**
  - **Nyayadhikari** with the powers of a **Judicial Magistrate First Class**
  - Appointed by the State **in consultation with the High Court**
  - From the State Judicial Service
- **Headquarters** at the intermediate panchayat or taluk
- **mobile sittings** at villages. Staff: clerks, stenographers, orderlies, process servers, **legal aid volunteers or conciliators**
- **Local language**
- Summary, flexible procedure that avoids the technicalities of the CPC (1908) and CrPC (1973)
- **Status (2024)**:
  - Of **5000** targeted, about **395 functional** in **11 States** (Rajasthan, Madhya Pradesh, Odisha, Maharashtra, Kerala among them)
  - Slow due to finance and administrative delay
- **Objectives**:
  - Access at the doorstep
  - Speedy minor cases
  - Inexpensive simple procedure
  - **conciliation before adjudication**
  - Decentralisation (High Court, District Court, Gram Nyayalaya)

MY NOTES

- Public confidence and legal awareness

JURISDICTION AND POWERS

Aspect	Rule
Civil (First Schedule)	Property, possession, tenancy; use of public resources; contracts and debts; wages and employment (Payment of Wages Act, Minimum Wages Act, MGNREGA); family and matrimonial disputes; social welfare laws (Domestic Violence Act 2005, Maintenance of Parents and Senior Citizens Act 2007). **Pecuniary limit fixed by the State**, typically **₹25,000 to ₹1,00,000**. Conciliation **first**
Criminal (Section 14; Second Schedule)	Offences **not punishable with imprisonment above two years**: minor IPC offences (assault, theft, mischief, nuisance, trespass, defamation) and special laws (**Protection of Civil Rights Act 1955**, **Bonded Labour System (Abolition) Act 1976**, **Forest Act 1927**, **Environment (Protection) Act 1986**, **Motor Vehicles Act 1988**, **Weights and Measures Act 1976**, **Public Gambling Act 1867**). **Summary trial**; takes cognisance directly; summons and warrants; up to two years or fine
Compounding	Compounds offences where the law allows; promotes reconciliation
Appeals	Civil decrees to the **District Court**; criminal judgments to the **Sessions Court**; within **30 days**; appellate decision final
Enforcement	Like civil or criminal court orders; execution through the nearest District or Taluk court

- **PYQ 2016 (in the handout)**:
  - Gram Nyayalayas can hear **both civil and criminal** cases
  - The Act allows **social activists as mediators/conciliators**
- **Shortcut: Gram Nyayalaya numbers. Section 3 (establish), JMFC powers (Nyayadhikari), 2 years maximum sentence, 30 days for appeal, 2 October 2009 start.**

FAMILY COURTS

- **Family Courts Act, 1984**:
  - Specialised forum for family and matrimonial disputes
  - **reconciliation** over adjudication. Origin: **1975 Committee on the Status of Women** report
  - **59th Law Commission Report** recommended specialised courts with counsellors
- **Establishment**:
  - State Government **in consultation with the High Court**
  - Towns or cities with **population above one million** or where needed. **Over 750** functioning (2024), nearly every district has one

MY NOTES

- **Composition**:
  - A **single judge** appointed by the State with the **High Court's concurrence**
  - **counsellors, welfare officers, social workers**. Women judges and trained counsellors for gender and child sensitivity
- **Judge**:
  - Qualifications of a **District Judge (Art. 233)**
  - Preference for family law or social welfare experience

FAMILY COURT SECTIONS

Section	Content
7	**Exclusive jurisdiction** over family and matrimonial matters: **matrimonial causes** (marriage, divorce, nullity, restitution of conjugal rights, judicial separation); **maintenance (Section 125 CrPC)** for wives, children, parents; **custody and guardianship**; **property disputes within the family**; **legitimacy and paternity**. Ordinary civil courts cannot entertain these
9	**Conciliation before adjudication**; parties may return to conciliation at any stage
10	Court may **evolve its own procedure** consistent with natural justice
11	**In-camera** proceedings
13	**No automatic right to lawyers**; court may permit
14	Court may take **expert opinions** (medical, psychologists, social workers)
19	**Appeal lies directly to the High Court** within **30 days**; **no appeal** against a consent order

- Evidence on **affidavits**
- The Indian Evidence Act, 1872 does not apply in full. Orders are **decrees of a civil court**, executable
- Non-compliance may attract civil imprisonment or attachment
- **Shortcut: Family Court sections. 7 jurisdiction, 9 conciliation, 10 procedure, 11 in camera, 13 lawyers, 14 experts, 19 appeal (30 days, direct to High Court).**

CONSUMER COMMISSIONS (CONSUMER PROTECTION ACT, 2019)

- The 2019 Act moved from a **reactive grievance model (1986 Act)** to a **proactive, rights-based** framework: e-commerce, **product liability**, unfair trade practices
- Three tiers: **District, State, National**

MY NOTES

THREE TIERS (THE HANDOUT'S TABLE, REBUILT)

Aspect	District Commission	State Commission	National Commission (NCDRC)
Set up by	State Government (one or more per district)	State Government in consultation with the Centre; at the State capital	Central Government; New Delhi
Composition	President plus **at least 2 Members**	President plus **at least 4 Members** (one a woman)	President (a **Supreme Court Judge**) plus **4 to 11 Members** (at least one woman)
Tenure	**4 years or up to 65**	**4 years or up to 67**	**4 years or up to 70**
Appointment	State Government	State Government	Central Government on recommendation of a **CJI-led Selection Committee**
Pecuniary jurisdiction	Consideration paid **not exceeding ₹50 lakh**	**Above ₹50 lakh up to ₹2 crore**	**Above ₹2 crore**
Appeals heard	None	From District Commission within **45 days**	From State Commission and **CCPA** orders within **30 days**
Further appeal	To State Commission	To National Commission	To **Supreme Court** within **30 days**
Revision	None	Can call for records if District Commission acted beyond or failed to exercise jurisdiction or committed material irregularity	Same for State Commission acting beyond jurisdiction or illegally
Review	Own order for apparent error within **30 days**	Own order or one obtained by fraud or apparent error	Own order if passed ex parte or with apparent error
Unfair contracts	Can declare any unfair term **null and void** in individual cases	Can declare unfair clauses void within the State	Can nullify unfair or one-sided contracts in national-level cases
Transfer	None	Between District Commissions in the State	Between State Commissions or District Commissions across States

MY NOTES

Aspect	District Commission	State Commission	National Commission (NCDRC)
Control	Under the State Commission	Over all District Commissions in the State	Supervises State Commissions; uniform procedure

- **Shortcut: Consumer thresholds. District up to ₹50 lakh, State above ₹50 lakh up to ₹2 crore, National above ₹2 crore. Appeal ladder: District to State to National to Supreme Court.**

> **HANDOUT ALERT**
> Handout alert: **Gram Nyayalaya** status ("395 functional in 11 States") and Family Court count ("over 750") are the handout's 2024 figures; use them as stated. The tenure ages for the Consumer Commissions (**65, 67, 70**) are listed in the order District, State, National.

ALSO IN THE HANDOUT

- These variations ensure that justice delivery reaches every corner of the country, both urban and rural.
- The relatively slow progress is attributed to financial constraints and administrative delays in several States.
- Use of public resources – irrigation channels, roads, pathways, or community facilities.
- This is especially useful in sensitive matters such as divorce, domestic violence, or custody disputes.The confidentiality clause encourages openness, reducing social stigma and emotional distress.

PARLIAMENT AND THE COMPOSITION OF THE TWO HOUSES

- Parliament is the **chief legislative authority of the Union** and represents the will of the people at the national level. It works in the **Westminster-pattern parliamentary system**, where the executive is accountable to the legislature.
- **Part V (Articles 79-122)** lays down structure, composition, tenure, offices, procedures, privileges and legislative powers of Parliament.
- The aim is both **supremacy of the legislature in lawmaking** and **responsible government** in the Union.

THREE ELEMENTS OF PARLIAMENT

- Parliament = **President + Council of States (Rajya Sabha) + House of the People (Lok Sabha)**.
- The Hindi names Rajya Sabha and Lok Sabha were formally adopted in the 1950s.

MY NOTES

- **Rajya Sabha** = upper chamber representing States and Union Territories. **Lok Sabha** = directly elected lower chamber representing the citizens.
- The President is **not a sitting member** of either House, yet is an essential part: a law passed by both Houses needs the President's **assent**.
- The President also summons and prorogues sessions, dissolves the Lok Sabha, addresses the Houses and promulgates ordinances when Parliament is not in session.

PRESIDENT-IN-PARLIAMENT VERSUS THE AMERICAN SCHEME

- **India (Westminster model):**
  - Executive is embedded in the legislature ("President-in-Parliament")
  - President is part of Parliament
  - Accountability of executive to legislature
  - Not strict separation of powers
- **USA:**
  - President is a separate, non-legislative head
  - The legislature (Congress) has only two Houses (Senate and House of Representatives)
- **Memory aid (Three limbs):** **P**resident, **R**ajya Sabha, **L**ok Sabha: "**P**arliament **R**uns on **L**imbs: three, not two."

ARTICLE MAP OF PART V (AS THE HANDOUT LISTS)

GENERAL PROVISIONS AND OFFICERS

Article	Subject
79	Constitution of Parliament (President, Lok Sabha, Rajya Sabha)
80	Composition of Rajya Sabha
81	Composition of Lok Sabha
82	Readjustment after each census (Delimitation)
83	Duration of Houses (Lok Sabha 5 years; Rajya Sabha permanent, 1/3rd retiring every 2 years)
84	Qualification for membership
85	Sessions, prorogation, dissolution of Lok Sabha
86	President's address to both Houses
87	Special address by President at the commencement of the first session each year and the first session after a general election
89	Chairman (Vice President) and Deputy Chairman of Rajya Sabha
93	Speaker and Deputy Speaker of Lok Sabha

MY NOTES

Art-icle	Subject
94	Vacation, resignation, removal of Speaker/Deputy Speaker
95	Power of Deputy Speaker or other member to act as Speaker
96	Speaker's role in President's impeachment

- **Shortcut: Article ladder. 79 = Parliament, 80 = RS, 81 = LS, 82 = delimitation, 83 = duration, 84 = qualifications, 85 = sessions.** Count up from 79 and the first seven fall into place.

COMPOSITION OF THE TWO HOUSES

- Both Houses are built differently: one **indirect and federal**, the other **direct and popular**.

RAJYA SABHA (COUNCIL OF STATES)

- Sanctioned maximum **250**: up to **238** represent States and UTs, **12** are **nominated** by the President for eminence in literature, science, art and social service.
- **Currently 245**: **229 from States, 4 from UTs, 12 nominated**. Seats are allotted by the **Fourth Schedule**.
- **States**: members are **indirectly elected** by the **elected members of the State Legislative Assemblies**, by **proportional representation through the single transferable vote**. Seats are broadly **population-based** (larger States more, smaller States like Tripura have one member), unlike the US Senate where every State has equal representation.
- **Union Territories**: also indirect, by a **specially constituted electoral college** for each UT, same STV method. Only UTs with sufficient population or legislative arrangements are represented.
- **Nominated**:
  - 12 persons with distinguished contribution in arts, science, literature and social service
  - They enrich debate without contesting elections
- Result: a **federal chamber** with indirect, population-weighted representation plus a small expert component.

LOK SABHA (HOUSE OF THE PEOPLE)

- Constitution fixes the **maximum at 552**: **530 from States, 20 from UTs, 2 Anglo-Indians** nominated by the President.
- **104th Amendment Act, 2020** abolished Anglo-Indian nomination and extended SC/ST seat reservation for another decade.
- **Currently 543 elected**: **530 from States, 13 from UTs**.

MY NOTES

- **States**:
  - Directly elected from territorial constituencies by **universal adult franchise**. Voting age **18 years**, reduced from 21 by the **61st Amendment Act, 1988**. Seats are broadly population-based
  - Boundaries are revised by Delimitation Commissions
- **Union Territories**:
  - Parliament decides how UT members are chosen
  - The **Union Territories (Direct Election to the House of the People) Act, 1965** provides **direct election**. Larger UTs like Delhi get more seats
- **Nominated (historical)**:
  - Until 2020 up to two Anglo-Indian members if the community lacked representation
  - Initially temporary, periodically extended until the 104th Amendment ended it

SEAT ARITHMETIC

House	Max-imum	Break-up of maximum	Present strength	Present break-up
Rajya Sabha	250	238 States and UTs + 12 nomin-ated	245	229 States + 4 UTs + 12 nomin-ated
Lok Sabha	552	530 States + 20 UTs + 2 Anglo-Indian	543	530 States + 13 UTs (all elected)

- **Shortcut: Present strength. Rajya = 245 (229 + 4 + 12). Lok = 543 (530 + 13).** The two numbers run in opposite order: 2-4-5 and 5-4-3.

> **HANDOUT ALERT**
> Handout alert: The Rajya Sabha comparison table says "245 maximum: 233 elected by States/UTs, 12 nominated". The text gives **229 + 4 = 233 elected, plus 12 = 245 present**, and **250 as the maximum**. Use: max-imum 250, present 245. The same table dates the 104th Amendment to "2019" while the text says "2020"; use **2020** (the Amendment Act, 2020).

ALSO IN THE HANDOUT

- The scheme aims to provide students with a practical understand-ing of parliamentary democracy and cultivate essential civic and leadership qualities.
- The Union Budget is a comprehensive document comprising mul-tiple elements: 1.

MY NOTES

ELECTORAL SYSTEM OF THE LOK SABHA

- Framework: **Articles 81, 82 and 170**, refined by amendments and delimitation. Principles: territorial representation, population-based seat allocation, universal adult franchise.

TERRITORIAL CONSTITUENCIES AND PARITY

- Each State is divided into **single-member territorial constituencies**.
- **Parity between States**:
  - Ratio of population to seats broadly uniform (**Art. 81(1)**)
  - States with population below **six million** are exempt from strict proportionality
- **Parity within a State**: constituencies carry roughly equal population.
- "Population" = figures of the **latest decennial census**.

DELIMITATION AND THE FREEZE

- **Art. 82** lets Parliament readjust constituencies after each census, through a **Delimitation Commission**. Commissions: **1952, 1962, 1972, 2002**.
- **42nd Amendment (1976)** froze inter-State seat allocation and boundaries at **1971 levels until 2000**, to encourage population control.
- **84th Amendment (2001)** extended the freeze **till 2026**
- It also allowed rationalising boundaries on population changes (initially **1991 census**, updated to **2001 by the 87th Amendment**) **without altering the total seats per State**
- Purpose: protect States that have controlled population while keeping proportional representation.

FREEZE OF SEATS OVER TIME

- **1976**: 42nd Amendment: seats and boundaries frozen at **1971** levels until **2000**
- **2001**:
  - 84th Amendment: freeze extended **till 2026**
  - Boundaries may be rationalised (1991 census) with no change in seats per State
- **87th Amendment**: Rationalisation basis updated to the **2001 census**

SC AND ST RESERVATION (ARTICLE 330)

- Reserved constituencies in the Lok Sabha **in proportion to SC/ST population in each State**.
- Reserved seats are delimited after each census, by the same method as general seats.

MY NOTES

- **Common electorate**: all voters vote, but candidates must belong to the reserved category. SC/ST members may also contest **general** seats.
- Reservation was meant for **ten years** from the Constitution
- Extended repeatedly, most recently by the **95th Amendment Act (2009)** and continued under the **104th Amendment Act (2020)**, which also ended Anglo-Indian nomination

VOTING METHOD: FIRST-PAST-THE-POST (FPTP)

- Single-member constituency
- **highest votes wins**
- Merits:
  - Direct accountability of MP to constituents
  - Simple
  - Helps **stable government formation**
- Rajya Sabha uses PR with STV (**Articles 80 and 66**)
- Lok Sabha prefers simplicity, local representation and clear outcomes

WHY THE CONSTITUENT ASSEMBLY REJECTED PR FOR THE LOK SABHA

- **Problems of PR:**
  - Complexity for a largely illiterate electorate
  - Party fragmentation and unstable coalitions
  - Costly and administratively complex
  - Voters choose parties not candidates
  - No by-elections (vacancies cannot be filled by individual contests)
- **What FPTP gives:**
  - Direct accountability
  - Constituency-based representation
  - Stability
  - Reservation and delimitation correct the representation of marginalised communities
- **Memory aid (Five faults of PR):** **C**omplexity, **I**nstability, **C**ost, **W**eak link, **N**o by-elections: "**C**areful **I**ndians **C**hose **W**inner-takes-all **N**ormally."

ALSO IN THE HANDOUT

- This inconsistency can affect the credibility of outcomes.
- Provides a simple, understandable process for a largely diverse and literate-varying electorate.

MY NOTES

DURATION AND CONTINUITY OF THE TWO HOUSES

- Provisions mainly in **Articles 80, 83, 85 and 352**, with the Representation of the People Act, 1951.

RAJYA SABHA: THE PERMANENT CHAMBER

- First constituted in **1952**
- **not subject to dissolution**
- **One-third retire every two years**
- Vacancies are filled by State Assembly election or by Presidential nomination (**Art. 80(3)**)
- **Six-year term** under the RPA, 1951
- The Constitution itself prescribes no fixed term
- Retiring members can be **re-elected or re-nominated indefinitely**.
- In the **first Rajya Sabha** the members to retire at the end of the initial term were chosen **by lottery** to start the rotation.
- Role: revising chamber, check on hasty or populist measures.

LOK SABHA: THE TEMPORARY HOUSE

- Normal term **five years** from its **first sitting** (**Art. 83(2)**)
- It then dissolves automatically
- The **President on the advice of the Council of Ministers** can dissolve it earlier (loss of majority or instability). Such dissolution is **not subject to judicial review** (handout's statement).
- **Emergency extension**: during a national emergency (**Art. 352**), Parliament may extend its term **by law, one year at a time**, but not beyond **six months after the emergency has ceased**.

RAJYA SABHA VERSUS LOK SABHA: CONTINUITY

- **Rajya Sabha:**
  - Permanent
  - 1/3 retire every 2 years
  - 6-year term
  - No dissolution
  - No special emergency provision needed
- **Lok Sabha:**
  - Temporary
  - 5-year term from first sitting
  - Dissolves
  - Term extendable 1 year at a time in emergency
  - Can be dissolved early by President

MY NOTES

RAJYA SABHA AND LOK SABHA COMPARED (THE HANDOUT'S TABLE, REBUILT)

Dimension	Lok Sabha	Rajya Sabha
Constitutional anchoring	Art. 81; directly represents citizens	Art. 80; represents States/UTs in the Union framework
Nature and continuity	Lower House; dissolves every 5 years (Art. 83(2)) or earlier	Upper House; permanent; one-third retire every two years
Membership and tenure	543 elected; 5-year term; earlier 2 Anglo-Indian nominations abolished (104th Amendment)	245 (see alert); 12 nominated; 6-year term
Election system	FPTP in territorial constituencies; universal adult suffrage (Art. 326)	Proportional representation by single transferable vote; elected by State legislatures
Representation logic	Population-based; voice of the masses	State-based, fixed allocation per State; safeguards federal character
Presiding officers	Speaker and Deputy Speaker, chosen from House members	Vice-President is ex-officio Chairman; Deputy Chairman elected by members
Dissolution and stability	Can be dissolved any time by President on Cabinet's advice; government is responsible to it	Cannot be dissolved; no-confidence motion not permitted; government not responsible to it
Legislative powers	Can introduce and pass all Bills, including Money Bills	Cannot initiate Money Bills; can only recommend amendments (Art. 110)
Special powers	Controls executive by no-confidence motion; final authority on Budget and grants; initiates Money Bills	Protects States' interests; can authorise Parliament to legislate on State subjects in national interest (Art. 249); participates in creation of All-India Services (Art. 312)
Joint sitting (Art. 108)	Numerical majority is decisive (e.g. POTA, 2002)	Participates but is outnumbered; revisory chamber
Reserved/ nominated	131 SC/ST reserved seats; 33% women under the 106th Amendment (after census and delimitation)	12 eminent members nominated by President
Orientation	Popular chamber: immediate will of the people; directly accountable	Federal chamber: revisory body; considered debate and balance against populist pressure

MY NOTES

WHY THE TERMS DIFFER (RATIONALE)

- 1. **Stability versus accountability**:
  - Permanence of the Rajya Sabha shields legislation from short-term swings
  - The five-year Lok Sabha term lets voters judge the government at regular intervals, with early dissolution if the government loses majority. 2. **Federal versus popular representation**: Rajya Sabha gives continuity to regional voices (smaller States keep a voice)
  - Lok Sabha carries the direct popular mandate. 3. **Adaptation to extraordinary circumstances**: Lok Sabha's term flexes in an emergency (Arts. 83(2), 352)
  - Rajya Sabha needs no such provision. 4. **Synergy**: Rajya Sabha anchors stability, expertise and federal representation
  - Lok Sabha ensures responsiveness and adaptability. Even if the Lok Sabha is dissolved or in a crisis, Rajya Sabha keeps legislative functioning
- Handout's illustration: **GST** needed long debate aligning federal and State views, aided by the Rajya Sabha's stable composition. Laws with State implications (land acquisition, environmental rules) gain from the Rajya Sabha's federal view.
- **Shortcut: One-liners. RS = Permanent, 6 years, 1/3 every 2 years, no dissolution. LS = 5 years, dissolvable, +1 year steps in Emergency (max 6 months after it ends).**

> **HANDOUT ALERT**
> Handout alert: The handout cites **Art. 85** for the President's dissolution of the Lok Sabha on the Council of Ministers' advice, and **Art. 83(2)** for the five-year term. Use: **term = Art. 83(2); sessions, prorogation and dissolution = Art. 85** (as the article table lists).

ALSO IN THE HANDOUT

- Such interventions, if not based on expert advice, may produce unintended governance consequences.
- Furthermore, to maintain accountability, the Representation of the People Act, 1951 and Parliamentary law impose specific penalties on any individual who disregards these constitutional obligations.
- Thus, the position is purely temporary, lasting only for a few days, yet it plays a crucial role in maintaining institutional continuity and constitutional order during the transition between two Lok Sabhas.

QUALIFICATIONS FOR MEMBERSHIP

- Two sources: the **Constitution (Article 84)** and the **Representation of the People Act, 1951 (RPA)**, made under **Art. 84(c)**, which lets Parliament prescribe further qualifications by law.

MY NOTES

CONSTITUTIONAL QUALIFICATIONS (ARTICLE 84)

- **Citizen of India.**
- Make and subscribe an **oath or affirmation** before a person authorised for the purpose (the handout here says authorised by the **Election Commission**; the oath section says President; see the alert under Oath and salaries). The oath: true faith and allegiance to the Constitution
- Uphold sovereignty and integrity of India
- **Age**: not less than **30** for the **Rajya Sabha**, **25** for the **Lok Sabha**.
- Parliament may add further qualifications by law (**Art. 84(c)**).

MINIMUM AGE AT A GLANCE

House	Minimum age	Handout's reason
Rajya Sabha	30 years	deliberative and revisory chamber
Lok Sabha	25 years	directly representative character

- **Memory aid (30 and 25): R**ajya = older (**30**), **L**ok = younger (**25**): "**R**ajya **R**eviews, so it is **R**ipe."

STATUTORY QUALIFICATIONS (RPA, 1951)

- Candidate must be a **registered elector in any parliamentary constituency** in India.
- **Pre-2003**:
  - A Rajya Sabha candidate had to be an elector in the **same State**. The **Representation of the People (Amendment) Act, 2003** removed this
  - The **Supreme Court in 2006** upheld it as not violating the federal character and as broadening democratic choice
- **Reserved constituencies**: only an SC/ST person may contest a seat reserved for SC/ST, but an SC/ST candidate may also contest a **general** seat.
- Procedural requirements: proper **nomination papers**, a prescribed **security deposit**, **self-declarations** of educational qualifications, assets and liabilities, and criminal antecedents.

SPECIAL AND SUPPLEMENTARY PROVISIONS

- **Art. 75(5)**:
  - A non-MP can be a **minister** if elected to either House **within six months**
  - Otherwise must step down
- **Art. 80(1)(a)**:
  - President nominates up to **12** members to the Rajya Sabha (literature, science, art, social service)
  - They must still meet citizenship and allegiance conditions

MY NOTES

- Eligibility is judged **at the time of nomination or election**. Challenges come at **scrutiny of nominations** by the returning officer or later by **election petition under Part VI of the RPA**
- The Election Commission oversees compliance

106TH CONSTITUTIONAL AMENDMENT ACT, 2023 (WOMEN'S RESERVATION)

- Reserves **one-third of seats for women** in the **Lok Sabha, State Legislative Assemblies and the Legislative Assembly of the NCT of Delhi**, **including** SC/ST reserved seats.

ARTICLES TOUCHED BY THE 106TH AMENDMENT

Article	Effect
239AA (amended)	One-third seats for women in the Legislative Assembly of NCT Delhi
330A (inserted)	One-third seats for women in the Lok Sabha, including SC/ST seats
332A (inserted)	One-third seats for women in State Legislative Assemblies, including SC/ST seats
334A (inserted)	Implementation only after the **first census and delimitation**

- **Sunset clause**: ends **15 years after implementation** (Parliament may extend).
- **Rotation**: reserved seats are rotated after each delimitation.
- **No impact** on current representation until the existing House is dissolved.

CHALLENGES TO IMPLEMENTATION

- **Legal and political:**
  - Delay: needs census and delimitation
  - Likely effective only by 2029 or later
  - No OBC sub-quota (SC's "Triple Test" ruling cites lack of data)
  - Bill failed 6 times (1996-2010) for lack of consensus
  - Reservation displaces male incumbents
  - Party-level tensions
- **Logistical and social:**
  - 2021 Census delayed, delimitation expected only 2027-28
  - Complex rotation creates uncertainty for candidates and parties
  - Patriarchy (e.g. the 2010 "wolf-whistling" remark)
  - Proxy representation ("Sarpanch Pati" syndrome)
- **Way forward (handout):**
  - Prevent proxy candidates and ensure women hold real ministerial roles

MY NOTES

- Expedite Census (2025) and Delimitation (2026-27) with independent oversight
- Leadership training, funding and legal protection, with Norway's financing model and France's equity laws
- Learn from **Rwanda (61% women MPs)**, **Mexico** (candidate quotas) and **Nepal** (mixed system)

HANDOUT ALERT

Handout alert: Timelines differ: the challenges list says delimitation "expected only by 2027-28" and implementation "2029 or later", while the way forward says "Census (2025) and Delimitation (2026-27)". Treat the dates as the handout's expectations, not constitutional facts; the fixed rule is **implementation after the first census and delimitation (Art. 334A)**.

RELATED JUDGMENTS ON THE RPA, 1951

CASES LISTED IN THE HANDOUT

Case	Holding
Mohinder Singh Gill v. CEC (1978)	Art. 324 gives the Election Commission **plenary powers** to act where law is silent, to ensure free and fair elections
Lily Thomas v. Union of India (2013)	Struck down **Section 8(4)** (three-month appeal window for sitting legislators); disqualification under Sections 8(1), 8(2), 8(3) takes effect **immediately on conviction**
Lok Prahari v. Union of India (2018)	Convicted lawmakers cannot hold office after conviction; reaffirmed automatic disqualification
Abhiram Singh v. C.D. Commachen (2017)	Constitution Bench: appeal for votes on **religion, caste, community or language** violates **Section 123(3)** and is a corrupt practice
Indira Nehru Gandhi v. Raj Narain (1975)	Allahabad High Court (later affirmed in part by the SC) held the then PM guilty of electoral malpractice; no one is above electoral law
Kanwar Lal Gupta v. Amar Nath Chawla (1975)	Party expenditure on behalf of a candidate may be counted in the candidate's election expenses
N.P. Ponnuswami v. Returning Officer (1952)	No judicial intervention before the election process is complete; only an **election petition** after results (**Art. 329(b)**)
Kuldip Nayar v. Union of India (2006)	Upheld **open ballot** in Rajya Sabha elections; secrecy not absolute when transparency serves a higher purpose
PUCL v. Union of India (2003)	Voters' **right to know** candidate information is a fundamental right; **PUCL (2013)** introduced **NOTA**

- **Memory aid (Election cases in order): M**ohinder Singh Gill, **L**ily Thomas, **L**ok Prahari, **A**bhiram Singh, **I**ndira Gandhi (Raj Narain),

MY NOTES

Kanwar Lal Gupta, **N**.P. Ponnuswami, **K**uldip Nayar, **P**UCL: "**M**any **L**aws **L**et **A**ll **I**ndians **K**now **N**ew **K**nowledge **P**ublicly."

ALSO IN THE HANDOUT

- Additionally, Article 84(c) empowers Parliament to prescribe further qualifications by law, allowing flexibility to adapt eligibility standards in light of evolving democratic needs.
- However, in practice, this oversight frequently proves ineffective due to structural, procedural, and political constraints.

DISQUALIFICATIONS FOR MEMBERSHIP

- Grounds are in **Articles 102 and 191** (for Parliament and State Legislatures), supplemented by the **RPA, 1951** and the **Tenth Schedule**. They protect integrity and independence and prevent conflict of interest.

CONSTITUTIONAL GROUNDS (ARTICLE 102(1))

- **Memory aid (Five grounds of Art. 102(1)): O**ffice of profit, **U**nsound mind, **I**nsolvent (undischarged), **C**itizenship lost, **P**arliamentary law: "**O**ur **U**nion **I**nsists on **C**lean **P**arliamentarians."

ART. 102(1) GROUNDS

Clause	Ground	Handout detail
(a)	**Office of profit** under the Government of India or a State Government, other than an office declared by Parliament not to disqualify	Prevents executive-legislature conflict; Ministers (Art. 75) and offices exempted by the **Parliament (Prevention of Disqualification) Act, 1959** are safe
(b)	**Unsound mind**	Declared so by a **competent court**
(c)	**Undischarged insolvent**	Has not settled debts
(d)	**Not a citizen**, or voluntarily acquired foreign citizenship, or acknowledges allegiance to a foreign power	Undivided loyalty to India
(e)	**Disqualified under a law made by Parliament**	Done through the RPA, 1951

OFFICE OF PROFIT

- Doctrine rooted in **Art. 102(1)(a) and 191(1)(a)**:
  - Separation between legislature and executive
  - Stops lucrative government posts from influencing legislators
- **Art. 103**:
  - A question of disqualification goes to the **President**, whose decision is final

MY NOTES

- The President must first obtain the **Election Commission's opinion** and act on it

- **Parliament (Prevention of Disqualification) Act, 1959**:
  - Lists offices that do **not** disqualify
  - **amended five times** to expand the list
  - **no limit** on how many offices may be exempted
- RPA, 1951 adds other grounds such as conviction.
- **Supreme Court test, Pradyut Bordoloi v. Swapan Roy (2001)**: the handout lists **four** criteria.
- – Government has power of **appointment and removal**.
- – Office carries **financial remuneration**.
- – It confers **executive or administrative powers**.
- – It entails **influence under government control**.
- The other passage gives three norms (government appoints and removes; remuneration; financial and administrative powers) and says **even if one norm is satisfied it is an office of profit**
- It notes that **Guru Gobinda Basu** tests (source, control, remuneration) are applied by courts
- **Office-of-profit instances in the handout:**
  - **2025**: Karnataka High Court notices over appointment of **42 legislators** as heads of boards and corporations with cabinet rank and perks. **2022**: Jharkhand Chief Minister faced allegations over a **stone mining lease** to himself
  - EC notice. **2018**: **twenty Delhi MLAs disqualified** by the President on EC's recommendation for being **parliamentary secretaries**. **2006**: President **A.P.J. Abdul Kalam used the suspensive veto** on an Office of Profit Amendment Bill, citing moral concerns

> **HANDOUT ALERT**
>
> Handout alert: The handout lists **four** criteria for Pradyut Bordoloi (2001) in one place and **three** norms in another. For a test question, use the four-point list; remember the "even one norm is enough" principle.

STATUTORY GROUNDS (RPA, 1951; SECTIONS 8, 9, 9A, 10, 10A)

STATUTORY DISQUALIFICATIONS

Section	Ground	Period or effect
8	**Conviction** for specified offences (promoting enmity Section 153A IPC, bribery, corruption, terrorism, Prevention of Corruption Act, Protection of Civil Rights Act)	If sentence is **two years or more**: disqualified **from date of conviction** and for **six years after release**

MY NOTES

Section	Ground	Period or effect
8A and 123	**Corrupt practices** in elections found by court or election tribunal	Disqualified for up to **six years** from date of order
10A	**Failure to lodge election expenses** account in time	Disqualified for **three years**
9A	**Interest in a government contract, supply or service**	Disqualified
10	Holding office of profit as director, managing agent or employee in a corporation where Central/State Government holds **at least 25%** shares	Disqualified
9	**Dismissal from government service** for corruption or disloyalty to the State	Barred for **five years** from dismissal
(social offences)	Conviction for **untouchability** (Protection of Civil Rights Act, 1955), **dowry** (Dowry Prohibition Act, 1961), **sati** (Commission of Sati Prevention Act, 1987)	Disqualified

- **Preventive detention** is **not** a disqualification.
- **Section 8(3)**:
  - Two years or more imprisonment
  - Disqualified from conviction and six more years after release
- **Section 8(4)** (old):
  - Sitting legislator not disqualified if appeal filed within **3 months**. **Struck down in Lily Thomas (2013)** (on the basis of discrimination)
  - Disqualification is now **immediate**
- **Memory aid (Section numbers):** **C**onviction (8), **C**orrupt practice (8A and 123), **E**xpenses (10A), **C**ontract (9A), **D**ismissal (9): "**C**ourts **C**hecked **E**ach **C**andidate's **D**ues."

ANTI-DEFECTION (TENTH SCHEDULE)

- Introduced by the **52nd Amendment Act, 1985**
- Strengthened by the **91st Amendment Act, 2003**
- Decided by the **Presiding Officer** (Speaker or Chairman), **not** the President.

GROUNDS UNDER THE TENTH SCHEDULE

- **1**: Member **voluntarily gives up membership** of the party on whose ticket elected
- **2**: Member **votes or abstains contrary to the party whip** without prior permission

MY NOTES

- **3**: An **independent** member **joins a party** after the election
- **4**: A **nominated** member **joins a party after six months** from taking his seat!warn
- **Kihoto Hollohan v. Zachillhu (1992)**: the Speaker's decision is subject to **judicial review**.

WHO DECIDES DISQUALIFICATION

- **President (Art. 103):**
  - Grounds under the Constitution and parliamentary law
  - After the opinion of the Election Commission, which binds
- **Presiding Officer (Tenth Schedule):**
  - Defection cases
  - Speaker of Lok Sabha or Chairman of Rajya Sabha
  - Subject to judicial review (Kihoto Hollohan)

ALSO IN THE HANDOUT

- Its staggered membership ensures that at any point, experienced legislators are available to provide guidance and oversight.
- This restriction prevents potential conflicts of interest between the executive and the legislature.

VACATING OF SEATS, OATH AND SALARIES

- Seats fall vacant by **Article 101**, the RPA, 1951 and parliamentary conventions. Purpose: no dual or conflicting offices, regular participation and integrity.

1. DOUBLE MEMBERSHIP

DUAL MEMBERSHIP RULES

Situation	Rule
Elected to **both Houses of Parliament**	Must intimate **within 10 days** which House to keep; otherwise **Rajya Sabha seat vacated**
Sitting member of one House **elected to the other**	Seat in the first House **vacant on election** to the second
Elected to **two seats in the same House**	Must vacate one in the prescribed period; otherwise **both seats vacant** (**Section 68, RPA**)
Parliament and a State Legislature (Art. 101(2))	Must resign from the State Legislature **within 14 days**, else the **parliamentary seat falls vacant**

2. DISQUALIFICATION

- Becoming subject to a disqualification under **Art. 102** or any parliamentary law vacates the seat (office of profit, citizenship, conviction under RPA, defection).

MY NOTES

- President decides after consulting the Election Commission (**Art. 103**). The 1959 Act lists exempted offices.

3. RESIGNATION

- Written to the **Chairman (Rajya Sabha) or Speaker (Lok Sabha)**
- Seat vacant once **accepted**
- Presiding officer may check that it is **voluntary and genuine**
- Under **Rule 240** can refuse if made under duress or coercion
- The handout mentions 2019 resignations of MLAs and MPs examined for voluntariness.

4. ABSENCE (ARTICLE 101(4))

- A member absent from **all sittings for 60 consecutive days** without permission may have the seat declared vacant **by the House**.
- Days when the House is **prorogued or adjourned for more than four consecutive days** are **excluded**.
- Leave is granted by the House (ill health, official duties abroad).

5. OTHER SITUATIONS

- **Election declared void** by a High Court under the RPA (appeal to the SC under **Section 116A**).
- **Expulsion** by the House for conduct unbecoming (**Arts. 105 and 122**)
- Handout example: the **2005 "cash-for-query"** scandal
- **Elected President (Art. 58) or Vice-President (Art. 66)**: must vacate the seat.
- **Appointed Governor**: **Art. 158(2)**: a Governor cannot be a member of either House.

6. ELECTION OF A DISQUALIFIED CANDIDATE

- Constitution lays down no procedure
- The **RPA** does. Under **Sections 80-84** an **election petition** goes to the **High Court**, which can declare the election void. The **Supreme Court** under **Art. 136** is the final appellate authority
- **Memory aid (Ways to lose the seat): D**ouble membership, **D**isqualification, **R**esignation, **A**bsence, **O**ther (void election), **E**xpulsion, **P**resident or VP election, **G**overnor appointment: "**D**on't **D**ally, **R**eport **A**ll **O**ffice **E**xits, **P**lease, **G**entlemen."
- **Shortcut: Numbers on seat vacation. 10 days** (elected to both Houses), **14 days** (Parliament plus State Legislature), **60 days** (absence), **4 days** (adjournment exclusion), **3 months** (old Section 8(4) appeal window).

MY NOTES

OATH AND SALARIES

OATH OR AFFIRMATION (ARTICLE 99; THIRD SCHEDULE)

- Every member must make and subscribe an oath or affirmation **before taking a seat**, before the **President or a person authorised by the President**.
- Form in the **Third Schedule**:
  - (1) true faith and allegiance to the **Constitution of India**
  - (2) uphold **sovereignty and integrity** of India
  - (3) **faithfully discharge** the duty about to be entered upon
- Only after the oath does one become a **full member** with right to vote, debate and enjoy privileges and immunities.
- **Penalty**: **₹500 per day** for sitting or voting (1) without taking the oath, (2) knowing he is not qualified or is disqualified, or (3) despite a prohibition by a law made by Parliament.

> **HANDOUT ALERT**
> Handout alert: Under Art. 84 the handout says the oath is before a person authorised by the **Election Commission**; under Art. 99 it says the **President** or a person authorised by the President. For the MP's oath in Parliament use **Art. 99: President or his authorised person**.

SALARIES AND ALLOWANCES

- Governed by the **Salary, Allowances and Pension of Members of Parliament Act, 1954** under **Art. 106**. The Constitution fixes no salary
- Parliament does by law
- **March 2025**: Centre notified a **24% hike**, **retrospective from 1 April 2023**, first major revision since **2018**.

2025 REVISION

Item	Old	New
Basic salary (per month)	₹1,00,000	₹1,24,000
Daily allowance	₹2,000	₹2,500
Pension of former MPs (per month)	₹25,000	₹31,000
Pension increment per year beyond five years (per month)	₹2,000	₹2,500
Constituency allowance	n/a	about ₹87,000 per month
Office expense allowance	n/a	about ₹75,000 per month

- Average total monthly package: about **₹2.5 lakh**.

MY NOTES

- **2018 Finance Act**: automatic revision linked to the **Cost Inflation Index** (Income Tax Act, 1961), **every five years**. This ended MPs voting on their own pay. The 2025 hike is the **first under this formula**.
- Perquisites: free air and train travel for self and spouse, official residence or housing allowance, travel concessions for family, central-government-level medical facilities, communication allowances, office support for personal staff, vehicle advances, furnished offices, free electricity and water within limits.

PRESIDING OFFICERS' PAY

- Set separately by the **Salaries and Allowances of Officers of Parliament Act, 1953**
- **charged on the Consolidated Fund of India** (not voted annually)
- **Chairman of Rajya Sabha** (Vice President) draws **₹4 lakh per month**.
- **Speaker, Deputy Speaker, Deputy Chairman**: salary and allowances equal to MPs, with extras.
- **Sumptuary allowance**:
  - Speaker = **Union Cabinet Minister**
  - Deputy Speaker and Deputy Chairman = **Minister of State**
- **Memory aid (Pay laws):**
  - **M**Ps = **1954** Act
  - **O**fficers = **1953** Act: "**M**embers **fifty-four**, **O**fficers **fifty-three**."

ALSO IN THE HANDOUT

- This rule enforces legislative accountability, ensuring that representatives actively fulfill their parliamentary responsibilities rather than treating their membership as nominal.

PRESIDING OFFICERS: THE SPEAKER AND DEPUTY SPEAKER

- Each House has its own presiding officers to ensure smooth, impartial and efficient proceedings. **Lok Sabha**: Speaker, assisted by the Deputy Speaker. **Rajya Sabha**: Chairman (the Vice President), assisted by the Deputy Chairman. Each House also keeps a **panel of chairpersons or vice-chairpersons** to preside in their absence.

SPEAKER OF THE LOK SABHA: ELECTION AND TENURE

- Elected by Lok Sabha members **from among themselves**, as soon as possible after the House's first sitting
- The **President fixes the date** of the election
- Office falls vacant if the Speaker:
  - (1) **ceases to be a member**
  - (2) **resigns in writing to the Deputy Speaker**

MY NOTES

  - (3) is **removed by a resolution passed by a majority of all the then members** (effective majority), with **14 days' prior notice**
- Normally holds office for the life of the House (five years) but **continues after dissolution until a new Speaker is elected** by the new House.
- A removal motion can be admitted only if supported by **at least 50 members**.

SPEAKER'S OFFICE ACROSS DISSOLUTION

- **New Lok Sabha meets**: Outgoing Speaker vacates office **immediately before the first meeting** (Art. 94(2))
- **Speaker Pro Tem**:
  - President appoints a newly elected member (usually the senior-most)
  - President administers his oath
- **Pro Tem's duties**:
  - Administer the **oath to new members (Art. 99)** and preside until the new Speaker is elected
  - Helps form the panel of chairpersons
- **New Speaker elected (Art. 93)**: Office of Speaker Pro Tem **ceases automatically**

ROLE, POWERS AND FUNCTIONS

- Head of the Lok Sabha, principal spokesperson, guardian of its privileges and procedures. Authority comes from the **Constitution, the Rules of Procedure and Conduct of Business, and conventions**.
- Maintains **order and decorum**
- **final interpreter** of the Constitution's provisions, the Rules and precedents as they apply to the House
- Can **adjourn or suspend** a sitting in the absence of **quorum** (one-tenth of the total membership).
- **Casting vote** only in a tie
- Does not vote in the first instance
- Presides over **joint sittings** convened by the President under **Art. 108**.
- May permit a **secret sitting** on the request of the Leader of the House.
- His **certification of a Money Bill under Art. 110 is final and binding**
- It is endorsed before transmission to the Rajya Sabha or President
- Decides **defection disqualification** under the **Tenth Schedule**
- **Kihoto Hollohan (1992)** made this subject to judicial review

MY NOTES

- Ex-officio **Chairman of the Indian Parliamentary Group** and of the **Conference of Presiding Officers of Legislative Bodies in India**.
- **Appoints chairpersons of all Lok Sabha committees**
- Himself chairs the **Business Advisory Committee, Rules Committee and General Purposes Committee**

INDEPENDENCE AND IMPARTIALITY

- **Security of tenure**: removable only by a resolution of a majority of the **total membership**, motion admitted with **50 members**' support.
- **Salary** fixed by Parliament under the **1954 Act**, **charged on the Consolidated Fund of India** (no annual vote)
- Stated at **₹4,00,000 per month** (revised by the 2018 Rules)
- Conduct and decisions **cannot be discussed** in the House except by a **substantive motion**
- His rulings on procedure and discipline are **beyond the courts** (privilege, **Art. 122**)
- Votes only to break a tie.
- **Order of precedence** (Ministry of Home Affairs): **rank seven**, with the Chief Justice of India, above all Cabinet Ministers except the PM and Deputy PM.
- UK convention: Speaker resigns from party on election. In India the Speaker **retains party membership**, yet is expected to rise above party.
- **Why "Speaker"?:**
  - He hardly speaks in a session or gives views on a Bill
  - He speaks only to tell members to sit down. The name comes from **Britain**, where the Speaker summed up the views of members and communicated them to the King

"ONCE A SPEAKER, ALWAYS A SPEAKER"

THE PROPOSAL

- **Why India should consider it:**
  - Speaker is from the ruling party and depends on it for re-election
  - Protects all MPs' rights (Nehru, Mavalankar)
  - Fair anti-defection adjudication (SC ordered Telangana Speaker to decide on 10 defecting MLAs within three months)
  - UK precedent (Sir Lindsay Hoyle re-elected unopposed in 2024)
- **Challenges:**
  - Career disincentive and shrinking talent pool
  - Weak neutrality conventions in India

MY NOTES

- Judicial overhang
- Risk of executive influence over an isolated Speaker
- Reduced accountability

- **Way forward** (handout):
  - Codify neutrality by convention or law (resign from party, no re-entry into active politics, **supermajority removal**)
  - Transfer anti-defection adjudication to an **independent tribunal**
  - Build UK-like conventions (the opposition does not contest the Speaker's seat)
  - Training in constitutional law and procedure
- **Global practice**:
  - **UK** Speaker resigns party and is re-elected across governments
  - **Canada** Speaker chosen by **secret ballot**
  - **Australia** Speaker party-affiliated but neutral, votes only to break ties
- Mavalankar (first Lok Sabha Speaker): the Speaker "belongs to all the members or belongs to none". Nehru: the Speaker is "the symbol of the nation's freedom and liberty".

SPEAKERS OF THE LOK SABHA

Lok Sabha	Speaker	Tenure and remarks
1st	**G.V. Mavalankar**	1952-1956 (died in office)
1st	Ananthasayanam Ayyangar	1956-1957
2nd	Ananthasayanam Ayyangar	1957-1962
3rd	Hukam Singh	1962-1967
4th	Neelam Sanjiva Reddy	1967-1969 (resigned)
4th	Gurdial Singh Dhillon	1969-1971
5th	Gurdial Singh Dhillon	1971-1975 (resigned)
5th	Bali Ram Bhagat	1976-1977
6th	Neelam Sanjiva Reddy	1977 (resigned)
6th	K.S. Hegde	1977-1980
7th	Balram Jakhar	1980-1985
8th	Balram Jakhar	1985-1989
9th	Rabi Ray	1989-1991
10th	Shivraj Patil	1991-1996
11th	P.A. Sangma	1996-1998
12th	G.M.C. Balayogi	1998-1999
13th	G.M.C. Balayogi	1999-2002 (died in office)

MY NOTES

Lok Sabha	Speaker	Tenure and remarks
13th	Manohar Joshi	2002-2004
14th	Somnath Chatterjee	2004-2009
15th	**Meira Kumar**	2009-2014
16th	**Sumitra Mahajan**	2014-2019
17th	**Om Birla**	2019-2024
18th	**Om Birla**	2024-present

- **Memory aid (Died in office): M**avalankar (1st LS) and **B**alayogi (13th LS) died in office: "**M**en **B**ehind the Chair."
- **Memory aid (Resigned Speakers): R**eddy (1969 and again 1977) and **D**hillon (1975) resigned: "**R**eddy **D**eparted."

DEPUTY SPEAKER OF THE LOK SABHA

- Elected by the House itself under **Art. 93**, **after** the Speaker's election
- The **Speaker fixes the date**
- Holds office for the life of the House
- Vacates if he **ceases to be a member**, **resigns in writing to the Speaker**, or is **removed by a majority of all the then members** after **14 days' notice**
- Acts as Speaker when the Speaker is absent or the office vacant, with all powers, **including presiding over a joint sitting**. He is **not subordinate** to the Speaker
- He is directly responsible to the House
- **Unique feature**: whenever appointed a member of a parliamentary committee he **automatically becomes its chairman**.
- Does not vote first, **casting vote** in a tie. During his own removal proceedings he **does not preside** but may speak and take part in debate.
- While the Speaker presides he is an ordinary member (debates and votes).
- Pay: fixed by Parliament, charged on the Consolidated Fund of India.
- **Convention**:
  - Up to the **10th Lok Sabha** both Speaker and Deputy Speaker were usually from the ruling party
  - **since the 11th Lok Sabha** the Speaker is from the ruling party and the Deputy Speaker is typically from the **main opposition**

MY NOTES

HISTORY OF THE OFFICES

When	Event
1919	Government of India Act, 1919 (Montague-Chelmsford Reforms): offices begin as **President and Deputy President** of the Central Legislative Assembly (the Governor-General presided over the Council before 1921)
First holders	**Frederick Whyte** (first Speaker) and **Sachidanand Sinha** (first Deputy Speaker) of the Central Legislative Assembly
1925	**Vithalbhai J. Patel**: first Indian and first elected Speaker of the Assembly
1935	Government of India Act, 1935 formally changed titles to Speaker and Deputy Speaker (old names persisted until independence)
After 1947	**G.V. Mavalankar** and **Ananthasayanam Ayyangar**: first Speaker and Deputy Speaker of the Lok Sabha; Mavalankar held the post for a decade (1946-1956) including the Constituent Assembly (Legislative) and provisional Parliament

PANEL OF CHAIRPERSONS (LOK SABHA)

- Speaker nominates a panel of **up to ten** chairpersons
- Any member can preside in the absence of Speaker and Deputy Speaker with the Speaker's powers
- Panel serves until a new one is nominated
- The House can designate another member if a panel member is absent
- If **both** Speaker and Deputy Speaker offices are vacant, the panel **cannot** preside
- The **President appoints a member** to perform the Speaker's duties until elections

HANDOUT ALERT

Handout alert: Mavalankar's tenure is **1952-1956** as Lok Sabha Speaker (table) but **1946-1956** counting the Constituent Assembly (Legislative) and provisional Parliament. The Speaker's salary is stated as **₹4,00,000 per month** here, while the salary section says the Speaker, Deputy Speaker and Deputy Chairman get pay "equivalent to MPs, with additional entitlements" and names only the Chairman at ₹4 lakh. Use ₹4 lakh for both Speaker and Chairman (the Speaker section and the Chairman section both state it).

ALSO IN THE HANDOUT

- Final / Appellate / Authority & / Binding / Precedent / Supreme Court of / India
- Its decisions / binding on all / courts (Art 141). / Supreme Court of / UK (2009 / onwards)

MY NOTES

- Follows / doctrine of / precedent (stare / decisis). / U.S. Supreme Court
- / decisions binding / nationwide under stare / decisis
- The Act aims to ensure swift resolution through simplified procedures and reduced formality, bringing justice closer to families in distress.
- This staggered retirement maintains legislative continuity, prevents abrupt disruptions, and allows for the gradual infusion of new perspectives.
- This intricate design is central to the functioning of a robust parliamentary democracy capable of meeting the challenges of governance in a vast and plural society.
- Career disincentive: Permanent political detachment may discourage capable politicians from accepting the post, limiting the talent pool.
- He holds the scales of justice evenly, irrespective of party or person." —G.V.
- Maintaining discipline and cohesion within the party ranks.

CHAIRMAN, DEPUTY CHAIRMAN AND LEADERS IN PARLIAMENT

CHAIRMAN OF THE RAJYA SABHA

- **Art. 64**: the **Vice-President is ex-officio Chairman**. This links the executive and legislative organs.
- **Art. 65(2)**: when the VP acts as President or discharges the President's functions he **does not perform the Chairman's duties**.
- Unlike the Speaker, the Chairman is **not a member** of the Rajya Sabha
- So no vote in the first instance, only a **casting vote in a tie** (**Art. 100(1)**)
- Similar to the Speaker: presides, decides points of order, interprets provisions. **Two powers belong only to the Speaker**: deciding a **Money Bill** (**Art. 110(3)**) and presiding over a **joint sitting** (**Art. 118**).
- **Removal** only by removal as Vice-President (**Art. 67(b)**): resolution of the Rajya Sabha by an **effective majority**, agreed to by the Lok Sabha.
- **Pay** under the **1953 Act**, Consolidated Fund
- **₹4,00,000 per month**, with housing, travel and medical facilities equal to the Speaker
- **Art. 65(3)**: when VP acts as President he gets the **President's emoluments**, not the Chairman's.

MY NOTES

- **Art. 90(b)**: while a resolution for his removal is under consideration he **cannot preside**, though he may speak and take part, **without voting**.

DEPUTY CHAIRMAN OF THE RAJYA SABHA

- Created by **Art. 89(2)**
- The regular day-to-day presiding officer
- **elected from among members** by a **simple majority of members present and voting**
- Holds office while a member
- Vacates (**Art. 90**) if he **ceases to be a member**, **resigns in writing to the Chairman**, or is **removed by a majority of all the then members** after **14 days' notice**
- When presiding has the Chairman's powers
- No vote first, casting vote in a tie
- May represent the Rajya Sabha in State functions or delegations
- **Art. 97**: pay of Chairman and Deputy Chairman fixed by Parliament, Consolidated Fund.

PANEL OF VICE-CHAIRPERSONS (RAJYA SABHA)

- Chairman nominates it under the Rules
- Any member presides in the absence of both Chairman and Deputy Chairman. It is a **procedural, not constitutional** arrangement
- If **both** offices are vacant, no panel member can preside
- Under **Art. 91(1)** the **President appoints a Rajya Sabha member** to perform the Chairman's duties until elections

SPEAKER VERSUS CHAIRMAN (THE HANDOUT'S TABLE, REBUILT)

Aspect	Lok Sabha Speaker	Rajya Sabha Chairman
Selection	Elected by Lok Sabha members from among themselves by simple majority; need not resign from party	**Ex-officio Vice-President**; not a member of the Rajya Sabha
Term	5 years, co-terminous with the Lok Sabha; does not vacate on dissolution until new Speaker elected	As long as he is Vice-President
Removal	Resolution of Lok Sabha by majority of all members	Only by the procedure of removal of VP (Art. 67(b))
Money Bills	**Exclusive power** to decide (Art. 110); decision final	No such power
Joint sittings	Presides (Art. 118)	Does not preside

MY NOTES

Aspect	Lok Sabha Speaker	Rajya Sabha Chairman
Casting vote	Casting vote in a tie; no vote in the first instance	Same (Art. 100)
Rules and order	Final interpreter of Constitution, Rules and precedents in the Lok Sabha	Same within the Rajya Sabha
Disciplinary powers	Can suspend or expel members for unruly behaviour	Can take disciplinary action but with limited scope
Appointment powers	Constitutes Parliamentary Committees; appoints Chairpersons; nominates members to bodies	Appoints Deputy Chairman and other committee members of Rajya Sabha (handout wording)
Administrative role	Head of Lok Sabha Secretariat; ex-officio President of Indian Parliamentary Group	Head of Rajya Sabha Secretariat; administrative authority of the Council of States
Constitutional basis	Arts. 93-96	Arts. 64 and 89
Oath	Takes oath before assuming office (as per Rules)	No separate oath; covered by VP's oath (Art. 69)
Salary	Fixed by Parliament; Consolidated Fund	Determined by Parliament as for the Vice-President
Resignation	To Deputy Speaker	To Deputy Chairman
In absence	Deputy Speaker presides; deputy is not subordinate	Deputy Chairman presides
Role in legislation	Can withhold assent in certain cases; may correct errors in certified Bills (handout)	Cannot withhold assent to any Bill
Discretionary powers	Decides Tenth Schedule disqualification; key procedural discretion	Limited discretionary powers; primarily procedural
Privileges	Work and conduct cannot be discussed except on a substantive motion	Same privilege

HANDOUT ALERT

Handout alert: The table says the Speaker "can withhold assent to Bills in certain cases". Assent is the **President's** act (Art. 111, as the legislative-procedure introduction says). Use: assent belongs to the President; the Speaker certifies Money Bills and corrects errors in certified Bills.

- **Memory aid (Money and joint sitting):** Only the Speaker decides **M**oney Bill status (**110**) and presides at the **J**oint sitting (**118**): "**M**ark **J**udges' words: Speaker only."
- **Shortcut:**
  - **Resignation chain. Speaker resigns to Deputy Speaker**

MY NOTES

- **Deputy Speaker to Speaker. Chairman's deputy resigns to Chairman.** A deputy always receives the principal's resignation, and the principal receives the deputy's

SECRETARIAT OF PARLIAMENT

- Each House has its **own independent secretariat** to assist presiding officers and members
- Some posts (security, translation, documentation) may be common
- Recruitment and service conditions are **regulated by Parliament**, not the executive.
- Headed by a **Secretary-General**:
  - Permanent, **non-political**, **appointed by the presiding officer**, with status **equal to the Cabinet Secretary**
  - Gives procedural advice, keeps records, coordinates committee work

LEADERS IN PARLIAMENT

- These offices come from **Rules, statutes and conventions**, not from an explicit constitutional mention.

LEADER OF THE HOUSE

- **Rule 2** of the Lok Sabha Rules:
  - The **Prime Minister if a Lok Sabha member**
  - If the PM is in the Rajya Sabha he nominates another **minister who is a Lok Sabha member**. In the Rajya Sabha: a **minister who is a member of that House**, appointed by the PM
- Sets the schedule of government Bills, motions and discussions with the presiding officer
- Chief government spokesperson
- Works with the Speaker or Chairman to keep order and consensus
- The PM may nominate a **Deputy Leader of the House**. The US equivalent is the **Majority Leader**.

LEADER OF THE OPPOSITION (LOP)

- Leader of the **largest opposition party with at least one-tenth of the House's strength**. Statutory recognition by the **Salary and Allowances of Leaders of Opposition in Parliament Act, 1977** (first time).
- First recognised in **1969**
- Formally in both Houses since **1977**
- Functions:
  - Constructive criticism
  - Alternative policy framework ("government in waiting")
  - Accountability through debates, questions and motions

MY NOTES

  - **member of Selection Committees** for the **CVC, CBI Director, Lokpal**
- Rank, salary and allowances **equal to a Cabinet Minister**, charged on the Consolidated Fund.
- UK:
  - **Shadow Cabinet**
  - **Ivor Jennings** called the LoP an "**alternative Prime Minister**"

PARTY WHIP

- **No mention** in the Constitution, Rules or any statute: a **convention** from Britain. Every party appoints a Whip in both Houses.
- Duties:
  - Attendance in important debates and votes
  - Direct voting along the party line (confidence motions, **Money Bills (Art. 110)**, **Constitution amendments (Art. 368)**)
  - Discipline
  - Informing members through **whip notices**
- Defying the Whip can lead to disqualification under the **Tenth Schedule (52nd Amendment, 1985)**
- Decided by the Speaker/Chairman under **Paragraph 6**, subject to judicial review under **Art. 136 or 226**

THREE LEADERS

Office	Source	Key point
Leader of the House	Rules (Rule 2 of LS Rules)	PM or a minister nominated by him
Leader of the Opposition	1977 Act	At least one-tenth of House strength; Cabinet Minister rank
Whip	Convention only	Not in Constitution, Rules or statute

- **Memory aid (Three non-constitutional leaders): L**eader of House, **L**eader of Opposition, **W**hip: "**L**eaders **L**ead, **W**hips **W**arn."

SESSIONS, QUORUM, VOTING AND MAJORITIES

- Under **Art. 85(1)** the **President summons** each House from time to time, so that **no more than six months elapse between two sessions**. Parliament therefore meets **at least twice a year**
- Typically **three sessions**

THE THREE SESSIONS

Session	Months	Main use (handout)
Budget	February to May	Presenting and passing the Union Budget
Monsoon	July to September	Legislative business and policy discussions

MY NOTES

Session	Months	Main use (handout)
Winter	November to December	Often private members' Bills and legislative review

- A **session** begins with the first sitting and runs until **prorogation** or, for the Lok Sabha, **dissolution**. The gap between sessions is **recess** (no business).
- Each session has many **sittings**, usually a morning sitting (**11 am–1 pm**) and an afternoon sitting (**2 pm–6 pm**). The Speaker or Chairman controls adjournment of sittings.

FOUR TERMS THAT CONFUSE

- **Adjournment**: suspends a sitting for a set time (hours, days, weeks) without ending the session.
- **Adjournment sine die**:
  - Suspends the sitting **without fixing a date**
  - The presiding officer can reconvene before or after
- **Prorogation**: formal end of a **session** (ends the sitting and the session). The presiding officer declares adjournment sine die, but the **President prorogues under Art. 85(2)**.
- **Dissolution**:
  - Only the **Lok Sabha**
  - Ends its life **irrevocably** (**Art. 83(2)**), automatically after five years (extendable in a national emergency under **Art. 352**) or prematurely by the **President on the Council of Ministers' advice**. The Rajya Sabha is permanent

ADJOURNMENT, SUSPENSION, PROROGATION, DISSOLUTION (THE HANDOUT'S TABLE)

Aspect	Adjournment	Suspension of sitting	Prorogation	Dissolution
Meaning	Temporary end of a sitting till the next scheduled date or hour	Short pause within the same sitting	Termination of an entire session	Permanent termination of the Lok Sabha's life
Authority	Speaker (LS) or Chairman (RS)	Speaker or Chairman	President (on advice of Council of Ministers)	President (on advice of Council of Ministers)
Duration	Hours, days or sine die	Minutes to hours; same day	Ends the session but not the House	Ends the Lok Sabha itself; elections follow

MY NOTES

Aspect	Adjournment	Suspension of sitting	Prorogation	Dissolution
Purpose	Lack of quorum, end of business, protests, routine breaks	Handle disorder, lunch or short recess	Formal closure after completion of business	Term expires (5 years) or earlier dissolution
Effect on business	Pending business carries to next sitting	Same sitting resumes	Pending business lapses but Bills can be re-introduced in next session (table)	All business lapses except Bills passed by both Houses and pending Presidential assent
Example (India)	Monsoon Session 2023 repeatedly adjourned over Manipur	2020: LS suspended amid uproar on Delhi violence	May 2023: Budget Session prorogued after passage of Finance Bill	May 2019: 16th Lok Sabha dissolved before general elections

WHAT LAPSES AND WHAT SURVIVES

- **Prorogation**: pending Bills generally **remain unaffected**, but **notices for new business lapse**. (Contrast: in Britain prorogation ends all pending business.)
- **Dissolution**:
  - All pending business, including Bills, motions and committee reports, **lapses**. Exceptions: **Bills pending in the Rajya Sabha but not passed by the Lok Sabha survive**
  - **Bills passed by both Houses but awaiting Presidential assent survive**

FATE OF BILLS ON DISSOLUTION

- **Lapse:** All pending business of the Lok Sabha: Bills, motions, committee reports
- **Survive:**
  - Bills pending in the Rajya Sabha but not passed by the Lok Sabha
  - Bills passed by both Houses but pending Presidential assent
  - A Bill for which the President has notified a joint sitting before the dissolution

MY NOTES

HANDOUT ALERT

Handout alert: Two inconsistencies on prorogation: the text says pending Bills are **generally unaffected**, while the table says pending business **lapses but Bills can be re-introduced**. Use the text rule (**Bills survive prorogation; notices lapse**). For dissolution the handout states that Bills "pending in the Rajya Sabha but not passed by Lok Sabha" survive; remember: **a Bill that originated in the Rajya Sabha and is pending there (not passed by the Lok Sabha) survives; a Bill passed by the Lok Sabha and pending in the Rajya Sabha lapses (PYQ 2024); Bills passed by both Houses awaiting assent survive; a Bill for which the President has already given notice of a joint sitting survives**.

- **Memory aid (Four stops):** **A**djournment, **S**uspension, **P**rorogation, **D**issolution: "**A**ll **S**essions **P**ause, **D**ie." The authority grows from **Speaker/Chairman (A, S)** to **President (P, D)**.
- **Shortcut: Who ends what. Speaker/Chairman = sitting (adjourn, suspend). President = session (prorogue) and House (dissolve).**

COMPARISON WITH OTHER SYSTEMS

- **UK House of Commons**: strong conventions and Speaker's neutrality ensure debate proceeds smoothly without frequent suspensions. **Canada**: House Leaders' meeting schedules business (collective ownership), unlike India's presiding-officer-centric model.

QUORUM, VOTING, LANGUAGES AND MAJORITIES

QUORUM (ARTICLE 100(3))

- Minimum members for valid business: **one-tenth of total membership** = **55 in the Lok Sabha** and **25 in the Rajya Sabha**. The presiding officer suspends proceedings if quorum is lacking.

VOTING PROCEDURE

- Generally **majority of members present and voting**, excluding the presiding officer
- **casting vote** only on a tie
- Special majorities: **Constitution amendments (Art. 368)**, **impeachment of the President (Arts. 61, 62)** and removal of presiding officers.

METHODS OF VOTING

Method	Key features	When used
Voice vote	Members say "Aye" or "No"; Speaker judges by loudness	Routine decisions with consensus; quickest

MY NOTES

Method	Key features	When used
Division vote	Exact numbers recorded after a challenged voice vote: **Automatic Vote Recording (EVS)** by buttons (main Lok Sabha method today); **physical division** (lobbies, when EVS unavailable); **head count** by tellers	Voice vote disputed; contentious Bills
Voting by slips	Printed slips (Yes/No/Abstain)	Technical failures or special situations (e.g. constitutional amendments when electronic system fails)
Secret ballot	Voter identity not revealed	Very rare; elections held within the House (e.g. Speaker/Deputy Speaker in certain circumstances), not for ordinary legislation

LANGUAGE (ART. 120), MINISTERS (ART. 88), LAME DUCK

- **Art. 120**:
  - **Hindi and English** are the languages of parliamentary business
  - Members may use their mother tongue with translation. English was to end after 1965, but the **Official Languages Act, 1963** lets both continue
- **Art. 88**: **Ministers and the Attorney General** may take part in either House, committees and joint sittings **without voting rights** if not members. A minister who is not yet a member can stay **six months** (**Art. 75(5)**).
- **Lame-duck session**:
  - After a new Lok Sabha is elected but before it first meets
  - Outgoing members not re-elected are "lame ducks"
  - Used to finish urgent business

TYPES OF MAJORITY

MAJORITIES IN PARLIAMENT

Majority	Meaning	Where used
Simple	50% + 1 of **present and voting**	Most legislative business, Money Bills
Absolute	50% + 1 of the **total strength** of the House	Majority needed to form the government
Effective	Majority of total strength **minus vacancies** (majority of the "then members")	Removal of the **Vice-President** (Rajya Sabha) and the **Speaker** (Lok Sabha)

MY NOTES

Majority	Meaning	Where used
Special (type 1)	**2/3 of present and voting** AND a majority of the total membership	Constitution Amendment Bills, removal of judges, CAG and similar
Special (type 2)	**2/3 of present and voting**	**Art. 312** (All India Service) and **Art. 249** (RS authorising Parliament to legislate on a State List subject)
Special (type 3)	**2/3 of the total member-ship** of the House	Impeachment of the President

- **Memory aid (Four majorities): S**imple, **A**bsolute, **E**ffective, **S**pecial: "**S**ome **A**ctors **E**nter **S**tage" (smallest to biggest).
- **Shortcut: Presiding-officer removal. Effective majority + 14 days' notice** removes Speaker, Deputy Speaker, Chairman (as VP) or Deputy Chairman. The Speaker's motion also needs **50 members** to be admitted.

ALSO IN THE HANDOUT

- E.g.,In the 2025 Monsoon Session, the Speaker sharply criticized opposition protest tactics, warning that such conduct tarnished parliamentary culture and discouraged meaningful debate.
- By employing closure motions, the House can avoid unnecessary delays while maintaining orderly proceedings.

QUESTION HOUR, ZERO HOUR AND MOTIONS

- Parliamentary procedures ensure transparency and accountability. Questions and motions are the main tools of oversight.

QUESTION HOUR

- Period when MPs pose questions to ministers
- Rooted in executive accountability. **Not mentioned in the Constitution**
- Governed by the **Rules of Procedure**
- Overseen by the Speaker/Chairman

TYPES OF QUESTIONS

Type	Feature
Starred (marked *)	**Oral** answer; supplementary questions allowed
Unstarred	**Written** answer; no supplementaries
Short Notice	Less than **ten days'** notice; **oral**; urgent matters

- Disruption: in the Rajya Sabha **over 60%** of Question Hour time has been lost in recent years.

MY NOTES

ZERO HOUR

- **Informal** practice:
  - Matters of urgent public importance **without prior notice**
  - Begins right after Question Hour and runs until the regular agenda. **Introduced in 1962**
- Lok Sabha:
  - **Rule 377**
  - Rajya Sabha: **Rule 180-E**
  - With the permission of the Speaker/Chairman
- Example: **182 matters** raised in the Lok Sabha in the **Winter Session 2024**.

QUESTION HOUR VERSUS ZERO HOUR

- **Question Hour:**
  - Starts the day
  - Starred, unstarred, short notice
  - Written notice
  - Answers by ministers
  - Governed by Rules
  - Not in Constitution
- **Zero Hour:**
  - Right after Question Hour
  - Raised without notice
  - Informal
  - Introduced 1962
  - Rule 377 (LS) and Rule 180-E (RS)

MOTIONS

- A **motion** is a formal proposal by an MP. **No matter of general public importance** can be discussed without the consent of the **Speaker or Chairman**.

CLASSIFICATION OF MOTIONS

- **Substantive**:
  - Independent, self-contained, expresses the House's decision
  - E.g. **impeachment of the President (Arts. 61, 111)** or removal of the Chief Election Commissioner
- **Substitute**:
  - Moved as an **alternative** to an original motion
  - Supersedes it if adopted
- **Subsidiary**:
  - No independent meaning
  - Depends on a main motion: **ancillary**, **superseding**, **amendment**

MY NOTES

CLOSURE MOTIONS (LIMIT OR END DEBATE)

TYPES OF CLOSURE

Type	How it works
Simple closure	Member moves that the matter has been sufficiently debated; once approved, debate ceases and the House votes
Closure by compartments	Clauses of a long Bill grouped into compartments; debate each as a unit, then one collective vote per group
Kangaroo closure	Only the most important or contentious clauses are debated and voted; the rest are **deemed passed** without debate
Guillotine closure	When time is short, **discussed and undiscussed clauses are voted together**; used for budget Bills and large legislation

- **Memory aid (Four closures):** **S**imple, **C**ompartments, **K**angaroo, **G**uillotine: "**S**ome **C**ats **K**eep **G**oing" (kangaroo skips clauses; guillotine cuts the rest).

OTHER IMPORTANT MOTIONS

MOTIONS AT A GLANCE

Motion	Key points
Privilege motion	Against a **minister** for breach of privilege (withholding facts, false information); protects dignity of Parliament; rooted in **Arts. 105 and 118**
Calling attention	Draws a minister's attention to an **urgent public matter** for an authoritative statement; formally in the Rules; an **Indian innovation since 1954**
Adjournment motion	Interrupts normal business to discuss a **definite matter of urgent public importance**; admission needs support of **50 MPs** in the Lok Sabha; **not permitted in the Rajya Sabha**; carries an element of **censure**; debate **not less than 2 hours 30 minutes**
No-confidence motion	Moved by the opposition (**Art. 75**: Council of Ministers collectively responsible to the **Lok Sabha**); if passed, the government must resign
Confidence motion	Moved by the **government** to prove its majority; if negatived the government falls
Censure motion	Disapproval of policies or administrative actions **without** necessarily removing the ministry
Motion of Thanks	After the **President's Address (Art. 87)** at the first session after a general election or at the start of each fiscal year; must be passed; **rejection = loss of confidence** like a no-confidence motion

MY NOTES

Motion	Key points
No-Day-Yet-Named (NDYN)	Admitted by the Speaker but **no date fixed**; scheduled with the **Business Advisory Committee** and Leader of the House
Dilatory motion	Used to **delay or obstruct** business; debate confined to the motion; presiding officer may put it to vote at once or decline it
Point of Order	Raised when proceedings break the Rules or the Constitution (**Arts. 118, 122**); suspends proceedings temporarily; **no debate allowed**
Half-an-Hour Discussion	Matters needing detailed elucidation; Speaker may allot **up to three days a week**; no formal motion or vote
Short Duration Discussion	"Two-hour discussion" for urgent matters; **up to two per week**; **introduced 1953**; no motion or vote
Special Mention	For matters that fit no other device; LS equivalent is **Notice (Mention) under Rule 377**; flexible forum in Rajya Sabha

HANDOUT ALERT

Handout alert: **Rule 377** appears both for **Zero Hour** and for the Lok Sabha form of **Special Mention**. The handout does not separate them; remember "Rule 377 (LS)" for both and "Rule 180-E" for the Rajya Sabha Zero Hour.

- **Memory aid (Motions that topple a government): N**o-confidence, **C**onfidence, **M**otion of Thanks (if lost) all topple a government: "**N**o **C**onfidence, **M**inistry **T**opples."

RESOLUTIONS

- A **resolution** expresses the House's opinion
- **all resolutions must be voted on**. Discussion is confined to the resolution. A mover cannot withdraw without the House's permission

THREE KINDS OF RESOLUTION

Kind	Mover	When
Private Member's	Non-minister MPs	Alternate Fridays, afternoon sitting
Government	Ministers	Any day **Monday to Thursday**
Statutory	Minister **or** private member	Mandated by law or the Constitution (e.g. financial or constitutional provisions)

- **All resolutions are substantive motions**
- **Not all motions are substantive.** Motions may not need a vote
- Resolutions always do

MY NOTES

YOUTH PARLIAMENT SCHEME

- On the recommendation of the **Fourth All India Whips Conference**. Objectives: awareness of Parliament's functioning
- **character and discipline** (tolerance, constructive dialogue)
- **democratic values**. The **Ministry of Parliamentary Affairs** guides States and institutions
- Simulated question hours, zero hours, debates and motions in schools and colleges

BILLS: ORDINARY, MONEY, FINANCIAL AND THE JOINT SITTING

- A **Bill** is a proposal for a law. Both Houses follow the **same process**. A Bill becomes an **Act** only after passage in both Houses and the **President's assent (Art. 111)**. Bills are of two broad kinds: **Public (Government) Bills** and **Private Members' Bills**.

TYPES OF BILLS (BY CONTENT)

KINDS OF BILLS THE HANDOUT LISTS

Type	Meaning
Original	Fresh proposals, not amending an existing bill
Amendment	Amend existing legislation (e.g. Citizenship Amendment Bill)
Consolidating	Bring scattered provisions on one subject into one law (handout examples: GST Bill, demand for a Direct Tax Code)
Expiring-laws continuance	Extend the life of laws that came with a **sunset clause**
Bills to replace ordinances	Passed by both Houses to turn an ordinance into permanent law
Money, financial, ordinary	See the Money Bill and Financial Bill parts below
Constitution Amendment	Under **Art. 368**
Repealing	Repeal an existing law

PUBLIC BILL VERSUS PRIVATE MEMBER'S BILL

- **Public (Government) Bill:**
  - Introduced by a **minister**
  - **seven days' notice**
  - Backed by the Cabinet, higher chance of passage, priority time
  - May be ordinary, financial or constitutional
  - Most Indian laws come from these (Arts. 107-111)
- **Private Member's Bill:**
  - Introduced by a **non-minister MP**

MY NOTES

- **one month's notice**
- No automatic government backing
- Discussed on **alternate Fridays** in the Lok Sabha
- Very low success (the last one passed in the **1970s**)
- Needs bipartisan support
- Raises issues and holds government to account

FOUR CLASSES BY FINANCIAL CHARACTER (THE HANDOUT'S SUMMARY TABLE)

ORDINARY, MONEY, FINANCIAL, CONSTITUTION AMENDMENT

Type	Subject	House of introduction	Key features
Ordinary	Matters other than financial	Either House	Must pass both Houses before assent
Money	Exclusively taxation, expenditure, borrowing, appropriations	**Only Lok Sabha**, on prior recommendation of the President	Rajya Sabha can suggest amendments within **14 days**; cannot reject or amend; Lok Sabha has the final say
Financial	Financial matters other than Money Bills	Either House	Both Houses have equal powers; must pass both Houses
Constitution Amendment	Amending the Constitution	Either House	**Special majority** in both Houses; some amendments also need ratification by **at least half of the State legislatures**

STAGES OF AN ORDINARY BILL (ART. 111 ON ASSENT)

FROM INTRODUCTION TO ACT

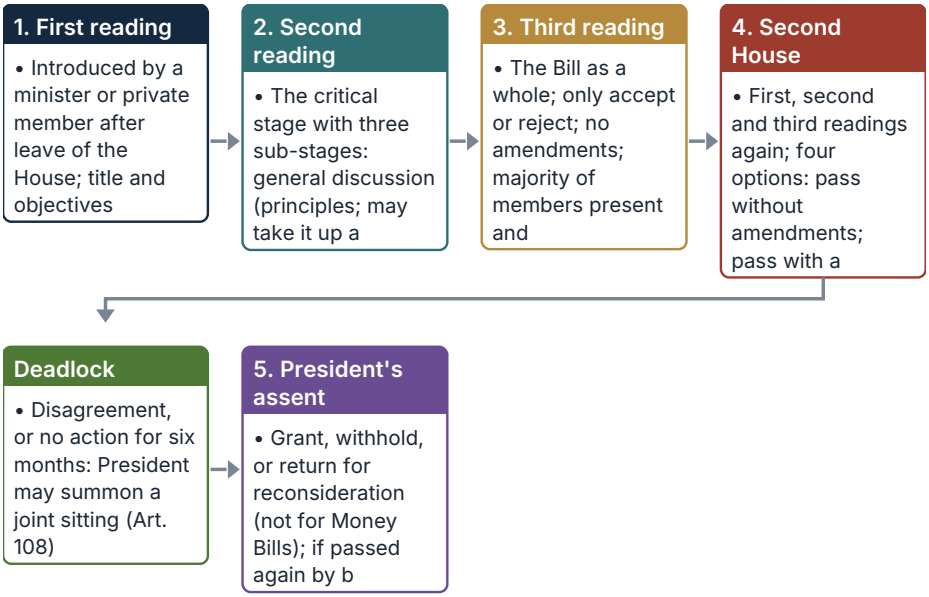
- **1. First reading**:
  - Introduced by a minister or private member after **leave of the House**
  - Title and objectives read
  - **no debate**
  - Then published in the **Gazette**. If already gazetted before introduction, leave is not required
- **2. Second reading**:
  - The critical stage with three sub-stages: **general discussion** (principles; may take it up at once, send to select/joint committee, or seek public opinion)
  - **committee stage** (clause by clause, report to the House)
  - **consideration stage** (vote on each clause; amendments incorporated)
- **3. Third reading**:
  - The Bill **as a whole**

MY NOTES

- Only accept or reject
- **no amendments**
- Majority of members present and voting passes it

- **4. Second House**:
  - First, second and third readings again
  - **four options**: pass without amendments
  - Pass with amendments and return
  - Reject
  - Take no action
- **Deadlock**:
  - Disagreement, or no action for **six months**: President may summon a **joint sitting** (Art. 108)
  - Majority there passes it
- **5. President's assent**:
  - Grant, withhold, or return for reconsideration (**not for Money Bills**)
  - If passed again by both Houses the President **must assent** (suspensive veto)

FROM INTRODUCTION TO ACT



- **Memory aid (Three readings):** **F**irst = introduction, **S**econd = details (three sub-stages), **T**hird = whole Bill: "**F**ind, **S**crutinise, **T**hink-and-vote." Second-reading sub-stages: **G**eneral, **C**ommittee, **C**onsideration.
- **Shortcut: Second House options.** **P**ass, **P**ass-with-amendments, **R**eject, **N**o action: "**P**arliament **P**rocesses **R**ightly, **N**ever idle" (four options).

MY NOTES

HANDOUT ALERT

Handout alert: On the President's power to return a Bill, the text says "return for reconsideration **except Money Bills**"; the comparison table says an ordinary Bill can be returned "**except constitutional amendment Bills**". Use: the President **cannot return Money Bills** (text and table) and cannot refuse assent to a **Constitution Amendment Bill** (the table's exception); for ordinary Bills the President has all three options and the **suspensive veto** applies.

MONEY BILLS AND FINANCIAL BILLS

MONEY BILL (ARTICLE 110)

- A special class of Bills dealing **exclusively** with government finance. Art. 110 gives an **exhaustive list** of matters that make a Bill a Money Bill, singly or together:
- – imposition, alteration or abolition of **taxes**;
- – regulation of **borrowing** by the Union;
- – custody, payment into and withdrawal from the **Consolidated and Contingency Funds**
- **appropriation** from the Consolidated Fund
- – declaring or increasing **expenditure charged** on the Consolidated Fund;
- – receipt or custody of public money, or **audit** of Union/State accounts.
- Provisions only **incidentally** connected may still make it a Money Bill. **Fines, licence or service fees, and local taxes for local purposes** are excluded from being Money Bills merely on that account.
- **Speaker's certificate (Art. 110(3))** settles any dispute and is **final**
- It is endorsed when the Bill goes to the Rajya Sabha or the President
- Introduced **only in the Lok Sabha**, on the President's recommendation (Arts. 110 and 117).
- **Rajya Sabha (Art. 109)**:
  - Can only **recommend**
  - Must return the Bill within **14 days**. The Lok Sabha may accept or reject any or all recommendations
  - If it rejects them, the Bill is deemed passed in the **original** form. If the Rajya Sabha does not return it within 14 days, it is **deemed passed** in the form sent by the Lok Sabha
- **Assent (Art. 111)**:
  - The President may give or withhold assent
  - Cannot return it

MY NOTES

- **Why special**:
  - Control of taxation and spending rests with the directly elected house
  - Avoids delay in budgetary work
  - Predictable timetable for fiscal measures. Classification is contentious because it curtails the Rajya Sabha

ORDINARY BILL VERSUS MONEY BILL (THE HANDOUT'S 12 ROWS)

Basis	Ordinary Bill	Money Bill
1. Constitutional provision	Arts. 107-111	Defined under Art. 110
2. Subject matter	Any matter other than financial	Exclusively financial: taxation, borrowing, expenditure from Consolidated Fund
3. House of introduction	Either House	**Only Lok Sabha**
4. President's recommendation	Not required	**Mandatory** before introduction (the table cites Art. 110(3))
5. Who can introduce	Minister or private member	**Only a minister** on behalf of the government
6. Role of Rajya Sabha	Equal powers; can amend, reject or delay up to **six months** (the table cites Art. 108)	Restricted: recommendations only, returned within **14 days**; Lok Sabha may accept or reject
7. Speaker's certification	Not required	Speaker certifies before transmitting to Rajya Sabha; final and binding (the table cites Art. 110(4))
8. Deadlock and joint sitting	Joint sitting by the President under Art. 108	**No joint sitting**; Lok Sabha's decision final
9. Time limit in Rajya Sabha	Delay up to six months	**14 days**; then deemed passed as the Lok Sabha passed it
10. President's assent	Give, withhold or return (except constitutional amendment Bills) (Art. 111)	Give or withhold; **cannot return** (Art. 111 read with 110)
11. Effect of rejection in Lok Sabha	If introduced by a minister and defeated, may lead to the government's resignation	Defeat is a defeat of the government (loss of confidence)
12. Summary	Co-equal powers of both Houses	Lok Sabha enjoys exclusive financial control

MY NOTES

HANDOUT ALERT

Handout alert: **Speaker's certificate**: Art. **110(3)** in the Speaker and Chairman sections and in the Money Bill text; Art. **110(4)** in the comparison table. Use **Art. 110(3)** as the handout's main reference.

FINANCIAL BILLS (ARTICLE 117)

- All Money Bills are Financial Bills
- **not** all Financial Bills are Money Bills. Art. 117 has two categories

FINANCIAL BILL (I) VERSUS (II)

Feature	Financial Bill (I)	Financial Bill (II)
Article	**117(1)**	**117(3)**
Content	Matters of Art. 110 **plus** other legislative provisions (hybrid)	Expenditure from the Consolidated Fund but **no** Art. 110 matter
Introduction	**Only Lok Sabha**	**Either House**
President's recommendation	**Before introduction**	**Before consideration/passage**, not at introduction
Rajya Sabha	Can discuss, **amend or reject**	Same as an ordinary Bill
Joint sitting	Yes (Art. 108)	Yes (Art. 108)
Nature	Hybrid of financial and general content	Ordinary Bill with fiscal implications

- **Financial Bill (I)**: after introduction it follows the ordinary procedure, but **no amendment imposing or altering a tax** can be moved without the President's recommendation. Example: a new taxation framework plus a regulatory body.
- **Financial Bill (II)**: example, a Bill authorising expenditure on new social-sector programmes without touching taxation or borrowing.
- **Memory aid (Money Bill traits):** **L**ok Sabha only, **R**ajya Sabha 14 days, **S**peaker certifies, **J**oint sitting never: "**L**ords **R**eturn **S**ealed **J**udgments."
- **Shortcut: Money versus Financial. Money Bill = Art. 110 only, Lok Sabha only, 14 days, no joint sitting. Financial Bill (I) = 110 + more, Lok Sabha only, but RS has full powers. Financial Bill (II) = spends only, either House, recommendation at consideration.**

JOINT SITTING OF THE TWO HOUSES (ARTICLE 108)

- An extraordinary device to break a deadlock between the Houses
- Balances bicameral scrutiny with decisive lawmaking

MY NOTES

WHEN CAN A JOINT SITTING BE SUMMONED?

- **Deadlock arises**:
  - (a) the other House **rejects** the Bill
  - (b) the Houses **finally disagree on amendments**
  - (c) the other House takes **no action for six months** from receipt (time prorogued or adjourned for **more than four consecutive days** is excluded)
- **President summons**: Discretionary but within constitutional limits and conventions
- **Vote**:
  - A Bill is deemed passed if a **majority of members present and voting** in the joint sitting approve
  - In practice favours the larger Lok Sabha

RULES OF THE JOINT SITTING

- **Presiding**:
  - The **Speaker**
  - If absent, the **Deputy Speaker**
  - If both unavailable, the **Deputy Chairman of the Rajya Sabha**. The **Chairman of the Rajya Sabha does not preside** (he is not a member of either House)
- **Lok Sabha Rules** govern the conduct. **Quorum** = **one-tenth of the total membership of both Houses together**.
- **Scope**:
  - Only **ordinary Bills and financial Bills**
  - **not Money Bills** (Lok Sabha overrides) and **not Constitution Amendment Bills** (each House must pass separately under Art. 368)
- **Amendments**: no genuinely new amendments, except those that were the **precise cause of the deadlock** or those needed because of **delay**.
- Once the President **gives notice** of summoning, **neither House can proceed** further with the Bill.
- If the Lok Sabha is **dissolved after the notice** but before the sitting, the joint sitting **can still be held**
- If dissolved **before the notice**, the Bill **lapses** and no sitting can be summoned

HISTORY

JOINT SITTINGS SO FAR (HANDOUT'S EXAMPLES)

Year	Bill
1960	Dowry Prohibition Bill
1977	Banking Service Commission (Repeal) Bill

MY NOTES

Year	Bill
2002	Prevention of Terrorism Bill (POTA)

- Joint sittings are **rare**, a last resort after negotiation fails.
- **Memory aid (Three joint sittings): D**owry (1960), **B**anking Service Commission Repeal (1977), **P**OTA (2002): "**D**own **B**y **P**OTA", with 1960, 1977, 2002 in rising order.
- **Shortcut:**
  - **Joint sitting at a glance. Art. 108. Deadlock = reject, final disagreement, or 6 months. President summons**
  - **Speaker presides. Not for Money Bills or Constitution Amendments. Quorum one-tenth of both Houses.**

ALSO IN THE HANDOUT

- This technique allows the House to focus time and energy on critical matters while ensuring the bill progresses efficiently.
- Understanding these funds is crucial for grasping how public money is managed, appropriated, and controlled in India.

THE UNION BUDGET, GRANTS AND GOVERNMENT FUNDS

- The Union Budget is the **Annual Financial Statement (Art. 112)** of estimated receipts and expenditure for the financial year **1 April to 31 March**. The Constitution does not use the word "budget".

CONTENTS

- Revenue and capital **receipts**
- Revenue and capital **expenditure**
- Fiscal and economic policy proposals
- **past year's** financial review
- **ways and means** to raise revenue

FROM DUAL BUDGETS TO ONE

RAILWAY AND GENERAL BUDGET

- **Until 1924**: **Combined** budget
- **1924 to 2017**: **Dual budgets**: separate Railway Budget (presented 3-4 days before the General Budget) on the recommendation of the **Acworth Committee (1921)**
- **2016**: **Bibek Debroy Committee** recommended merging the two budgets
- **2017**: Railway Budget merged with the General Budget into one Union Budget
- **Debroy committee's arguments**:
  - Railway budget was **not more than 4%** of the total budget

MY NOTES

- It had become a **political exercise** of sops and freebies (subsidies, fare cuts) which hurt rationalisation and reform
- Used to **placate coalition partners**

CONSTITUTIONAL FRAMEWORK

KEY CONSTITUTIONAL RULES

Rule	Article
President lays the statement of estimated receipts and expenditure before **both Houses**	**112**
No demand for a grant without the **President's recommendation**	**113** (the handout also cites **266**)
Money cannot be drawn from the Consolidated Fund except by **law** (appropriation)	**266**
Money Bills imposing tax: **Lok Sabha only**, on President's recommendation	**110 and 117**
No tax levied or collected except by authority of law	**265**
Charged expenditure not votable but open to discussion	**112(3)**
Appropriation Bills	**114**
Consolidated and Contingency Funds	**266-267**

- **Lok Sabha alone votes** demands for grants. **Rajya Sabha** may recommend within **14 days**
- Money Bills cannot start in the Rajya Sabha
- Parliament can **reduce or abolish** a tax but cannot **increase** it without following the Money Bill procedure.
- Expenditure is also **revenue** (day-to-day) or **capital** (assets, debt repayment).

CHARGED VERSUS VOTED EXPENDITURE

CHARGED AND VOTED

- **Charged (Art. 112(3)):**
  - On the Consolidated Fund automatically
  - **not voted**, only **discussed**
  - Protects independence of constitutional bodies and credibility of debt payments
- **Voted:**
  - Needs approval through **demands for grants**
  - Yearly scrutiny of each ministry
  - Lok Sabha can amend or reject (with Rajya Sabha recommendations)

MY NOTES

ITEMS CHARGED ON THE CONSOLIDATED FUND (THE HANDOUT'S LIST)

No.	Item
1	**Emoluments of the President**
2	Salaries and allowances of **Speaker and Deputy Speaker**, **Chairman and Deputy Chairman**
3	**Supreme Court judges'** salaries, allowances and pensions; **High Court judges' pensions**
4	**CAG**: salary, allowances, pension and office expenses
5	**UPSC**: Chairman and members' pay and pensions, administrative costs
6	Administration costs of the **Supreme Court, CAG and UPSC**
7	**Debt servicing**: interest, sinking fund, redemption charges (Art. 112(3)(c))
8	**Court judgments, decrees or awards** (including arbitral awards) against the Government of India
9	Any expenditure **declared by Parliament** to be charged

- The significance paragraph also lists the **Vice-President's emoluments** and members of **Union and State Public Service Commissions (Art. 322)**. Related references: **Arts. 148, 149** (CAG), **Arts. 52-55, 124, 315**.
- **Memory aid (Main charged items):** **P**resident, **S**peaker and presiding officers, **J**udges, **C**AG, **U**PSC, **D**ebt: "**P**arliament **S**hields **J**udges, **C**AG, **U**PSC and **D**ebt." (Court awards and items declared by Parliament complete the list.)

SIX STAGES OF PASSING THE BUDGET

BUDGET IN PARLIAMENT

- **1. Presentation**:
  - Finance Minister presents in the **Lok Sabha**
  - Until 2017 on the **last working day of February**, now **1 February**
  - May be in parts. Then laid before the Rajya Sabha, which **may discuss but cannot vote** on demands
- **2. General debate**:
  - **3-4 days** in both Houses
  - Principles and policies
  - **no cut motions**
  - Finance Minister has a **right of general reply**
- **3. Standing Committees**:
  - Parliament adjourns **3-4 weeks**
  - The **24 Departmental Standing Committees** (established **1993**, expanded **2004**) scrutinise ministry-wise demands and report

MY NOTES

- **4. Voting on demands**:
  - **Lok Sabha only**
  - **votable** expenditure only
  - **cut motions**
  - Speaker may apply the **guillotine** on the last day
- **5. Appropriation Bill**:
  - Authorises withdrawal from the Consolidated Fund (**Art. 114**): voted grants plus charged expenditure
  - **no amendment** may change amount or destination of grants or charged items
- **6. Finance Bill**:
  - Tax proposals
  - Treated as a **Money Bill (Art. 110)**
  - Amendments to **reduce or abolish taxes** can be moved
  - Must be passed and assented to **within 75 days** (**Provisional Collection of Taxes Act, 1931**)
- **Vote on account**: interim approval, typically **two months**, about **one-sixth** of estimated expenditure, before the Appropriation Act.

CUT MOTIONS

Type	Effect
Policy cut	Disapproves the policy behind the demand; reduces the demand to **Re 1**
Economy cut	Proposes a **specific reduction or omission** in expenditure
Token cut	Airs a particular grievance; reduces the demand by **₹100**

- **Admissibility**:
  - Relate to a **single demand**
  - No defamatory statements or proposals to amend law
  - Not on charged expenditure, trivial matters or matters before a court. They rarely succeed because the government has a majority
- **Documents with the budget**:
  - Budget Speech
  - Annual Financial Statement (Art. 112)
  - Demands for Grants
  - Appropriation Bill
  - Finance Bill
  - **FRBM Act** statements (Macro-Economic Framework, Fiscal Policy Strategy, Medium-Term Fiscal Policy)
  - Expenditure Budget and Receipts Budget
  - Expenditure Profile, Outcome Budget, Budget at a Glance
  - Memorandum explaining the Finance Bill
  - **Economic Survey** (a day or two before the budget)

MY NOTES

- **Memory aid (Six stages): P**resentation, **G**eneral debate, **S**tanding committees, **V**oting on demands, **A**ppropriation Bill, **F**inance Bill: "**P**arliament **G**ets **S**et, **V**otes, **A**uthorises, **F**unds."
- **Shortcut:**
  - **Budget numbers. 1 Feb**
  - **3-4 days debate**
  - **3-4 weeks committees**
  - **24 committees**
  - **Vote on account 2 months and 1/6**
  - **Finance Bill 75 days**
  - **Token cut Re 100 (₹100), policy cut Re 1.**

> **HANDOUT ALERT**
> Handout alert: The Acworth Committee is dated **1921** in the Railway Budget bullet but the text also says the combined budget changed to dual **"until 1924"**. Use: **Acworth Committee 1921; dual budget 1924 to 2017**. Also the handout tabulates the charged list as **High Court judges' pensions** (no pay), whereas the significance paragraph mentions only Supreme Court judges; use the list.

SPECIAL GRANTS AND GOVERNMENT FUNDS

SPECIAL GRANTS (BEYOND THE REGULAR BUDGET)

SIX SPECIAL GRANTS

Grant	When and how
Supplementary	Amount authorised by the Appropriation Act for a service is **insufficient**; voted by the Lok Sabha
Additional	**Unforeseen need for a new service** not in the original budget; voted by the Lok Sabha
Excess	Government has **spent more** than authorised; voted **after the financial year**; first examined by the **Public Accounts Committee (PAC)**
Vote of Credit	**Unexpected or extraordinary demands** where amount or nature cannot be estimated (natural disasters, war); blanket authorisation to the executive
Exceptional	For a **specific purpose** outside the regular services of the year; one-time
Token	**Nominal sum (usually Re 1)** to start a new service, with actual funds from **reappropriation** between heads

- All follow procedures like the ordinary budget (presentation, discussion, voting in the Lok Sabha). The **Rajya Sabha can recommend, not enforce**. Basis: **Arts. 112 and 114**.

MY NOTES

- **Memory aid (Special grants):** **S**upplementary, **A**dditional, **E**xcess, **V**ote of credit, **E**xceptional, **T**oken: "**S**tudents **A**lways **E**xpect **V**ery **E**asy **T**ests."

THREE GOVERNMENT FUNDS

UNION GOVERNMENT FUNDS

Fund	Article	Purpose	Operation	Parliamentary control	Examples
Consolidated Fund of India	**266(1)**	Main government fund: all revenues, loans, repayments	Spending only with **parliamentary appropriation**	**High**; Parliament must approve all spending	Ministers' salaries, defence, subsidies
Public Account of India	**266(2)**	Money held **in trust** for third parties; not government revenue	Operated by the **executive** without parliamentary appropriation	**Low**: Parliament is informed but need not approve	PF deposits, judicial deposits, departmental remittances
Contingency Fund of India	**267**	**Urgent, unforeseen** expenditure	Operated by executive; advances made by the President (**Finance Secretary** is custodian); **regularised later by Parliament**	Regularised afterwards by appropriation	Disaster relief, emergency defence spending

- **Consolidated Fund** components:
  - All **revenues** (tax and non-tax)
  - All **loans raised** (treasury bills, market loans, ways and means advances)
  - All **loan repayments** received. No payment without prior appropriation (**Art. 266(1)**)
- **Public Account** credits: **Provident Fund** deposits of government employees, **judicial deposits**, **departmental deposits** (e.g. security deposits), **savings bank** deposits and other remittances. It works "like a bank account" for money that belongs to others.
- **Contingency Fund**:
  - **Art. 267(1)** lets Parliament set it up
  - **Contingency Fund of India Act, 1950**

MY NOTES

  - Placed at the **President's disposal**
  - Payments are immediate
  - All advances must be **regularised by appropriation**
- **Memory aid (Funds by Article): C**onsolidated **266(1)**, **P**ublic Account **266(2)**, **C**ontingency **267**: "**C**ash **P**arked, **C**ash **C**alled."
- **Shortcut: Fund control ladder. CFI = Parliament approves first. Contingency = executive spends, Parliament approves after. Public Account = executive operates, Parliament only informed.**

ALSO IN THE HANDOUT

- Revenue and Capital Expenditure – Planned outlays for operational and developmental activities, including social welfare, defense, infrastructure, and subsidies.
- Categorization of Expenditure:
  - Expenditure is classified into: - Charged Expenditure: Charged on the Consolidated Fund of India
  - Not subject to vote but open for discussion (Article 112(3))
- Purpose: Enables Parliament to allocate funds for new priorities or schemes that emerge mid-year.

ROLE OF PARLIAMENT: LAWMAKING AND CONTROL OF THE EXECUTIVE

- Parliament is the supreme representative body. Its role goes beyond lawmaking to **executive oversight, financial control, constitutional amendment** and more, creating checks and balances among legislature, executive and judiciary.

LEGISLATIVE AUTHORITY

- **Union List**: exclusive power (the handout says **98 subjects** at present), Seventh Schedule, **Art. 246(1)**.
- **Residuary powers**: subjects in no list.
- **Concurrent List** (**52** subjects): Parliament prevails over State legislatures in conflict (**Art. 254**).
- **State List** (**59** subjects): Parliament can legislate only in special situations.

PARLIAMENT ON STATE LIST SUBJECTS

Situation	Article
Rajya Sabha resolution	249
National Emergency	250
Two or more States request	252
International treaties or conventions	253

MY NOTES

Situation	Article
President's Rule in a State	**356**

- **Memory aid (State List windows): R**ajya Sabha resolution (249), **E**mergency (250), **S**tates' request (252), **T**reaties (253), **P**resident's Rule (356): "**R**ush **E**very **S**tate **T**o **P**arliament."
- **Ordinances (Art. 123)**: an ordinance made during recess must be approved within **six weeks of reassembly**, else it **lapses**.
- **Delegated (subordinate) legislation**:
  - Parliament makes framework laws, the executive frames detailed rules
  - Parliament scrutinises them
- **Handout figure:** The handout gives Union List **98**, Concurrent List **52**, State List **59** "currently". Use these for this chapter's questions.

CONTROL OVER THE EXECUTIVE (ARTS. 75 AND 77)

- Tools: **Question Hour**, **Zero Hour**, **Half-an-Hour** and **Short Duration** discussions, **Calling Attention** motions, **Adjournment** motions, **Censure** and **No-Confidence** motions.
- **Collective responsibility to the Lok Sabha (Art. 75(3))**:
  - The whole council is accountable
  - A passed no-confidence motion makes the **entire council resign**
- **Individual responsibility**: each minister answers for his ministry's administration and efficiency.

FIVE WAYS THE LOK SABHA CAN SHOW LACK OF CONFIDENCE

- **Memory aid (Ways to withdraw confidence): M**otion of Thanks not passed, **R**ejection of a Money Bill, **C**ensure motion, **A**djournment motion, **C**ut motion (plus the formal no-confidence motion): "**M**inisters **R**isk **C**ensure, **A**djournments, **C**uts."
- **Non-passage of the Motion of Thanks**: rejecting the President's address implies disapproval of policies.
- **Rejection of a Money Bill**
- **Censure motion**
- **Adjournment motion**
- **Cut motion** (signals disagreement with spending priorities)
- Role in government: Parliament determines who forms the government (the party or coalition with a Lok Sabha majority), sustains it while it has confidence, and once confidence is withdrawn the government must resign, so the electorate decides at the next general election.

MY NOTES

FINANCIAL, CONSTITUENT, JUDICIAL AND ELECTORAL POWERS

FINANCIAL AUTHORITY

- **Art. 265**: no tax except by law. **Arts. 266 and 266(3)**: no spending from the Consolidated Fund without Parliament's approval. **Art. 112**: budget laid before both Houses. Approval of the budget **legalises all receipts and expenditure** for the year. (Handout cites **Arts. 110, 112, 113, 266 and 279**.)

PRE-BUDGET AND POST-BUDGET CONTROL

- **Pre-expenditure (budgetary control):**
  - Budget authorises grants for the next year
  - Appropriation Bill and Finance Bill formalise spending and taxation
  - Demands for grants scrutinised
  - Cut motions
- **Post-expenditure:**
  - **Public Accounts Committee** (accounts and compliance with authorisation)
  - **Estimates Committee** (efficiency, economy, effectiveness)
  - **Committee on Public Undertakings** (public sector enterprises). They highlight unauthorised, irregular, wasteful, extravagant spending
- **Annual grant principle**:
  - Funds granted for **one financial year**
  - Unspent funds **lapse** back to the Consolidated Fund (**Rule of Lapse**)
- **March Rush**: ministries rush to spend unspent funds before year-end, raising March expenditure.

CONSTITUENT AUTHORITY (ART. 368)

- **Only Parliament** starts an amendment
- State legislatures cannot amend the Constitution on their own
- **Exception**: a State may request creation or abolition of its **Legislative Council** and Parliament then passes the law (Art. 169).

THREE MODES OF AMENDMENT

Mode	Requirement	Applies to
Simple majority	Majority present and voting in each House	Ordinary provisions and technical aspects not affecting federal structure or framework
Special majority	**Majority of total membership** and **2/3 of present and voting** in each House	Most constitutional provisions

MY NOTES

Mode	Requirement	Applies to
Special majority + State consent	Special majority plus **at least half of State legislatures** (simple majority in each)	Federal features: Union-State distribution of powers, State representation in Parliament, alteration of State boundaries

- **Limits**: **Basic Structure Doctrine** (**Kesavananda Bharati v. State of Kerala, 1973**): Parliament cannot alter basic features: supremacy of the Constitution, rule of law, separation of powers, fundamental rights, democratic governance, federal structure. **Minerva Mills v. Union of India (1980)** reaffirmed it and struck down attempts to dilute fundamental features.

JUDICIAL POWERS OF PARLIAMENT

JUDICIAL AND QUASI-JUDICIAL POWERS

Function	Article	Process
Impeach the President	**61**	For **violation of the Constitution**; initiated in **either House**; notice signed by at least **one-fourth** of the initiating House's members; **2/3 of total membership of both Houses**
Remove the Vice-President	**67 read with 66**	Initiated in the **Rajya Sabha**; resolution by a majority (see alert)
Judges of Supreme Court and High Courts	**124(4), 124(5), 217(1)**	**Proved misbehaviour or incapacity**; motion in both Houses with **2/3 of present and voting**
CEC and Election Commissioners	**324**	Parliament can **recommend removal** to the President for misbehaviour or incapacity
CAG	**148**	Parliament can recommend removal to safeguard audit independence
Protect privileges	**105**	Punish members or outsiders for breach or contempt: censure, fines, imprisonment per rules

HANDOUT ALERT

Handout alert: **Removal of the Vice-President**: here "a resolution passed by a majority of the total membership of both Houses", while the Chairman section says an **effective majority of the Rajya Sabha** and **agreement of the Lok Sabha** (**Art. 67(b)**). Use the Chairman section's rule (**effective majority in RS, then Lok Sabha agrees**). **Removal of judges**: this section gives "2/3 of members present and voting"; the High Court material adds a **majority of total membership** as well; use **special majority = both**.

MY NOTES

ELECTORAL FUNCTIONS

ELECTORAL ROLES OF PARLIAMENT

Role	Detail
President's election (Arts. 54-55)	Electoral college of **elected members of both Houses** and **elected members of Legislative Assemblies of all States and Union Territories** (the handout's wording); **PR by single transferable vote**
Vice-President's election (Arts. 66-67)	Electoral college of **members of both Houses of Parliament only**; STV and proportional representation
Own officers	Lok Sabha elects **Speaker and Deputy Speaker (Art. 93)**; Rajya Sabha elects **Deputy Chairman (Art. 89)**
Election laws (Art. 324)	Parliament makes laws on elections to the offices of **President and Vice-President**, **both Houses**, **State legislatures**

- Key laws:
  - **Presidential and Vice-Presidential Election Act, 1952** (procedure, conduct, disputes)
  - **Representation of the People Act, 1950** (electoral rolls, qualifications, disqualifications)
  - **Representation of the People Act, 1951** (conduct of elections, offences, disputes)
- **Memory aid (Election laws): P**&VP Act 1952, **R**PA **1950** (rolls), **R**PA **1951** (conduct): "**P**eople **R**ead **R**olls" (rolls = 1950, conduct = 1951).

MISCELLANEOUS POWERS (THE HANDOUT'S TABLE)

OTHER POWERS

Power	Provision	Content
Apex deliberative authority	Implicit in **Art. 79**	Highest national forum; dialogue between government and opposition; shapes public opinion and policy direction
Approval of proclaimed emergencies	**Arts. 352, 356, 360**	**National** (war, external aggression, armed rebellion), **State** (failure of constitutional machinery), **Financial** (threat to financial stability or credit); Parliament approves or revokes within a specified period
State Legislative Councils	**Art. 169**	Assembly passes a resolution to create or abolish its Council; Parliament then enacts the law
State boundaries and names	**Art. 3**	Parliament can increase or decrease area, alter boundaries, change names; Bill introduced after consulting the State Legislature (view **not binding**)

MY NOTES

Power	Provision	Content
Regulating higher judiciary	**Arts. 124, 214, 225, 231**	Regulate organisation, jurisdiction and powers of the Supreme Court and High Courts; may set up a **common High Court** for two or more States

- **Shortcut: Functions of Parliament. Legislate, control the executive, control money, amend the Constitution, judge (impeach, remove), elect (President, VP, own officers), and approve emergencies.**
- **Memory aid (Seven functions):** **L**egislative, **E**xecutive control, **F**inancial, **C**onstituent, **J**udicial, **E**lectoral, **M**iscellaneous: "**L**awmakers **E**xamine **F**unds, **C**hange the Constitution, **J**udge, **E**lect, and **M**anage emergencies."

ALSO IN THE HANDOUT

- Comptroller and Auditor General (CAG): - Parliament can recommend removal to safeguard the independence of the apex audit authority, crucial for financial accountability.

THE RAJYA SABHA'S ROLE: PARITY, INFERIORITY, SPECIAL POWERS

- The Rajya Sabha balances State and Union Territory representation with lawmaking. Its role is shown by where it is equal, inferior or special.

RAJYA SABHA VERSUS LOK SABHA: THREE ZONES

Zone	Powers
Equal	Ordinary laws and **Constitution Amendment Bills (Art. 368)**; **election and impeachment of the President (Arts. 52-61)**; **election and removal of the Vice-President** (removal initiated only in the RS, Art. 67); removal recommendations for **SC and HC judges, CEC, CAG** (Arts. 124, 217, 148, 324); approval of **ordinances (Art. 123)** and **emergency proclamations (Arts. 352, 356, 360)**; review reports of the **Finance Commission, UPSC, CAG**; expanding the **jurisdiction of the Supreme Court and UPSC**; Ministers including the PM can come from either House
Inferior	**Money Bill** only in the Lok Sabha (Art. 110); RS recommends, LS decides within **14 days** (handout cites Art. 110(3)); **budget**: RS can **discuss** demands for grants but **not vote** (Arts. 112-114); **no-confidence motion** only in the Lok Sabha (Art. 75(3)); **Council of Ministers responsible only to Lok Sabha**; in **joint sittings** the LS's numbers usually prevail

MY NOTES

Zone	Powers
Special (exclusive)	**Art. 249**: by a **2/3 resolution** lets Parliament legislate on a **State List** subject; **Art. 312**: authorise creation of **All-India Services**; **initiation of removal of the Vice-President (Art. 67)**; if an **emergency is proclaimed while the Lok Sabha is dissolved**, the **Rajya Sabha alone** approves it (Arts. 352, 356, 360)

- **Memory aid (Rajya Sabha's exclusive trio): S**tate list law (249), **A**ll-India Services (312), **V**P removal initiation (67), **E**mergency approval when LS is dissolved: "**S**tates **A**lways **V**oice **E**xclusively."
- **Shortcut:**
  - **RS in one line. Equal in ordinary law, amendments, impeachment and ordinances**
  - **Inferior in money and confidence**
  - **Unique in Art. 249, Art. 312 and VP removal.**

PARLIAMENTARY PRIVILEGES

- **Privileges** are special rights, immunities and exemptions of the **Houses, their committees and members**, protecting independence, dignity and functioning. They extend to persons entitled to take part in proceedings, such as the **Attorney General** and **Union Ministers (Art. 105)**. They **do not extend to the President**, though he is part of Parliament.

COLLECTIVE PRIVILEGES

- **Publication of proceedings**: each House controls publication. The **44th Amendment Act, 1978** restored the **press's freedom to report true proceedings** without prior permission, except in **secret sittings**.
- **Exclude strangers and hold secret sessions** on sensitive matters of national importance.
- **Regulate internal procedure**: frame rules, conduct business, adjudicate procedural disputes.
- **Punish breach of privilege** (members and outsiders): reprimand, admonition, imprisonment, suspension, expulsion.
- **Immediate information** of **arrest, detention or conviction** of a member.
- **Summon witnesses and papers**
- Hold inquiries
- **Judicial immunity**: courts cannot question proceedings (**Art. 122**).
- **Legal protection in the House**: no one, member or outsider, can be **arrested or served legal process within the precincts** without the presiding officer's permission.

MY NOTES

INDIVIDUAL PRIVILEGES

- **Freedom from arrest in civil matters**:
  - During the session and **40 days before and after**
  - **only civil cases**, not criminal or preventive detention
- **Freedom of speech** in Parliament, including votes and speeches in committees (**Art. 105**)
- No court proceedings for statements in the House, subject to the Constitution and rules
- **Exemption from jury service** and the right to **refuse to appear as a witness** in court cases during sessions.
- **Memory aid (Individual privileges): A**rrest (civil only, 40 days), **S**peech (Art. 105), **J**ury exemption: "**A**ll **S**peak **J**ustly."

BREACH OF PRIVILEGE AND CONTEMPT

- **Breach of privilege** = violating the rights or immunities of members individually or the House collectively
- **punishable by the House (Art. 105)**
- **Contempt of the House** = any act or omission that obstructs the House, members or officers or undermines the House's dignity, authority and honour. It is **broader**: e.g. disobedience of a lawful order of the House is contempt though not a specific breach of privilege.

BREACH VERSUS CONTEMPT

- **Breach of privilege:**
  - Violation of a specific right or immunity
  - May amount to contempt
- **Contempt of the House:**
  - Broader
  - Includes breach of privilege and other acts lowering the House's authority (e.g. disobeying its lawful order)

SOURCES OF PRIVILEGES

SIX SOURCES

- **1. Constitution**:
  - **Art. 105(1)**: freedom of speech and right to publish proceedings
  - Other privileges initially like the **British House of Commons at 26 January 1950**
- **2. 44th Amendment (1978)**:
  - Replaced the Commons reference: privileges remain as they existed on **20 June 1979** until Parliament defines them
  - A verbal change with the same practical effect

MY NOTES

- **3. Statutes**:
  - Parliament may define, modify or expand them
  - **no exhaustive law** codifies privileges yet
- **4. Rules of Procedure**: Each House's rules and standing orders, with mechanisms to punish breach and contempt
- **5. Conventions**: Practices that develop over time
- **6. Judicial interpretations**: Courts balance parliamentary autonomy with fundamental rights
- **Memory aid (Six sources): C**onstitution, 44th **A**mendment, **S**tatutes, **R**ules, **C**onventions, **J**udgments: "**C**ourts **A**llow **S**ome **R**ights, **C**arefully **J**udged."
- **Shortcut:**
  - **Privileges numbers. 40 days** before and after the session (civil arrest only). **44th Amendment 1978: press right**
  - **Reference date 20 June 1979.**

> **HANDOUT ALERT**
> Handout alert: Under privileges the **44th Amendment** is dated **1978** (the Act), but the reference date for the privileges is "**20 June 1979**". Both are as the handout writes them; do not mix the two.

LIMITS ON PARLIAMENT: SOVEREIGNTY AND WEAK OVERSIGHT

PARLIAMENTARY SOVEREIGNTY: BRITAIN

- In Britain Parliament is the **supreme legal authority**: it can enact, amend or repeal any law without legal limit.
- **A.V. Dicey**:
  - Three implications: (1) **unlimited legislative power** (De Lolme: Parliament "can do everything except make a woman a man and a man a woman")
  - (2) **no legal distinction** between ordinary and constitutional law, so no separate constituent authority
  - (3) **no judicial review**: courts cannot invalidate Acts

WHY INDIA'S PARLIAMENT IS NOT SOVEREIGN

FOUR LIMITS

Limit	India	Britain
1. Written Constitution	Codified; delineates powers of the three organs; legislative and constituent powers are **legally distinct**; some amendments need ratification by **at least half of State legislatures (Art. 368)**	Unwritten

MY NOTES

Limit	India	Britain
2. Federal structure	Division of powers (**Arts. 245-255**); Parliament mainly on Union and Concurrent Lists (**Arts. 246-254**); on State List only in exceptions (Arts. 249, 250, 252, 253, 356)	Unitary; all legislative power at the centre
3. Judicial oversight	Judicial review (**Art. 13**) strikes down laws inconsistent with Part III; Supreme Court and High Courts keep the rule of law	Courts cannot question Acts
4. Fundamental rights	Justiciable rights, **Part III (Arts. 12-35)**; **Art. 13(2)**: any inconsistent law is **void**	No codified charter; liberties by common law and conventions

- **Comparison**: the Indian Parliament is more like the **U.S. Congress**: limited by a **written Constitution, federal division, judicial review and a Bill of Rights**. India adopted the **parliamentary model**, but its sovereignty is restricted to keep the balance of powers, rights and federal harmony.
- **Memory aid (Four limits): W**ritten Constitution, **F**ederalism, **J**udicial review, **F**undamental rights: "**W**e **F**ace **J**udges' **F**irmness."

SOVEREIGN BRITAIN VERSUS BOUND INDIA

- **Britain:**
  - Unlimited legislation
  - No separate constituent power
  - No judicial review
  - Unitary
  - No written charter of rights
- **India:**
  - Written Constitution
  - Federal division
  - Judicial review (Art. 13)
  - Justiciable Part III rights
  - Basic structure limits amendments

WHY PARLIAMENTARY OVERSIGHT IS WEAK IN PRACTICE

- **Size and complexity** of government machinery:
  - Parliament cannot scrutinise every detail
  - **technical budget documents** hinder financial oversight
  - Ordinary members lack expertise in public finance (Arts. 112, 266)
- **Executive dominance**:
  - The government has the Lok Sabha majority, controls the agenda, so Parliament often **ratifies rather than shapes**
  - Large Houses make coordination and debate cumbersome

MY NOTES

- **Post facto financial control**:
  - PAC, Estimates Committee and COPU examine spending **after it is incurred**
  - The **guillotine** curtails debate on demands for grants
- **Delegated legislation** moves detailed lawmaking to the bureaucracy
- **ordinances (Art. 123)** let the President, on the Council of Ministers' advice, bypass Parliament
- **Political factors**:
  - Majority support discourages criticism
  - Weak, fragmented opposition
  - Oversight is sporadic, politically motivated or symbolic
  - Decline in decorum and ethics
- **Reforms** needed: committee systems, financial scrutiny, legislative processes and opposition participation.
- **Memory aid (Weak oversight):** **S**ize, **E**xecutive dominance, **P**ost-facto control, **D**elegated legislation, **G**uillotine, **O**pposition weakness: "**S**ilent **E**xecutives **P**ass **D**ull **G**uillotined **O**pposition."

ALSO IN THE HANDOUT

- This distinction is crucial for understanding Parliament's control over public finances.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 23, 34-38

- High Courts began in 1862 at Calcutta, Bombay and Madras
- Allahabad followed in 1866. The 7th Amendment (1956) allowed a common High Court for two or more States. Of the 25 High Courts only three cover more than one State
- Delhi is the only UT with its own High Court (since 1966), and J&K and Ladakh share one
- For High Court appointments the Third Judges Case says the CJI consults a collegium of the two senior-most Supreme Court judges. The 99th Amendment and NJAC Act (2014) replaced the collegium, but the Supreme Court struck both down in 2015 (Fourth Judges Case). The Constitution sets no minimum age and has no 'distinguished jurist' route for a High Court judge
- Pension is 50% of last salary
- High Court independence extras:
  - Its Chief Justice appoints the court's staff without executive interference, and its constitutional jurisdiction cannot be cut down by Parliament or a State Legislature. Judges' salaries cannot be changed to their disadvantage except in a financial emergency

MY NOTES

- A judge's pension is charged on the Consolidated Fund of India, not the State's

- CAT facts:
  - 19 regular benches (17 at High Court seats, plus Jaipur and Lucknow), no Vice-Chairman since 2006, sanctioned strength 1 Chairman and 69 Members, application fee only Rs 50, and it is not bound by the Civil Procedure Code. Defence forces, Supreme Court staff and Parliament secretariat staff are outside it. Under Art. 323-A there is no hierarchy of tribunals, but Art. 323-B allows one
  - Chandra Kumar struck down the clauses barring High Court and Supreme Court review in both articles
- Lok Adalat extras:
  - The first post-Independence camp was in Gujarat in 1982
  - The 1987 Act gave it statutory status and came into force on 9 November 1995. Its proceedings count as judicial proceedings and it is treated as a civil court. A Permanent Lok Adalat is headed by a person who is or was a District Judge (or higher) with two public-utility members
  - Its limit was Rs 10 lakh, raised to Rs 1 crore in 2015
  - Once a party applies, no one can go to court on that dispute
  - Its award is by majority
- Commercial Courts Act, 2015: Commercial Courts at district level, a Commercial Division in High Courts with original civil jurisdiction, and a Commercial Appellate Division. The specified value was cut from Rs 1 crore to Rs 3 lakh in 2018. Compulsory pre-institution mediation applies to suits that need no urgent interim relief (Law Commission 253rd Report).
- Lakshmikanth differs:
  - National Lok Adalats. The handout says they are held quarterly (four dates in 2025). Lakshmikanth says that from 2015 they are held every month on a specific subject, on one day across all courts. Use the handout's quarterly answer in class
  - Remember the monthly subject-wise idea
- Censure vs no-confidence: a censure motion must give reasons, can be against one minister, a group or the whole council, and the ministry need not resign if it passes. A no-confidence motion needs no reasons, targets the whole council only, and the council must resign if it passes. Both an adjournment motion and a no-confidence motion need the support of 50 members.

MY NOTES

- What lapses when the Lok Sabha is dissolved:
  - A Bill pending in LS, and a Bill passed by LS but pending in RS. What does not lapse: a Bill pending in RS and not passed by LS
  - A Bill passed by both Houses and awaiting assent
  - A Bill returned by the President for reconsideration
  - And a disputed Bill for which the President had already notified a joint sitting
- Lakshmikanth differs:
  - House strengths. It gives Lok Sabha maximum 550 (530 States + 20 UTs) and 543 now (524 States + 19 UTs)
  - Rajya Sabha 245 = 225 States + 8 UTs + 12 nominated, with only Delhi, Puducherry and J&K represented. The handout says 552 (with 2 Anglo-Indian), 530 + 13 and 229 + 4. Use the handout
  - The totals 543 and 245 agree
- Lakshmikanth differs:
  - Salaries of officers. The handout says the Speaker draws Rs 4 lakh a month. Lakshmikanth says only the Rajya Sabha Chairman gets Rs 4 lakh (2018, up from Rs 1.25 lakh)
  - The Speaker, Deputy Speaker and Deputy Chairman get the same salary as an MP, plus a sumptuary allowance (Speaker at Cabinet Minister rate, Rs 2,000; deputies at Minister of State rate, Rs 1,000). Use the handout in class
- Lakshmikanth differs:
  - Removal of the Vice-President. The handout once says a resolution passed by a majority of the total membership of both Houses. Lakshmikanth (and the handout's own majority list) says the Rajya Sabha passes it by an effective majority and the Lok Sabha agrees by a simple majority
  - Only the Rajya Sabha can start it. Use effective majority in RS plus simple majority in LS

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Who first established judicial review and when?	John Marshall in Marbury v. Madison (1803).
What does ultra vires mean in judicial review?	Beyond authority: such laws become null and void.
What does the Gopalan and Maneka Gandhi pair show?	Gopalan (1950) read Art. 21 as procedure established by law; Maneka Gandhi (1978) added fairness, close to due process.

Which Article lets the Supreme Court review its own decisions?	Art. 137.
What did the First Amendment add?	The Ninth Schedule and Art. 31B (1951, under Nehru), to protect land-reform laws.
State the three Ninth Schedule cases.	Kesavananda (1973) basic structure; Waman Rao (1981) 24 April 1973 cut-off; I.R. Coelho (2007) no blanket immunity, impact and effect test.
Who coined 'judicial activism'?	Arthur Schlesinger Jr. in 1947 (USA).
Which three provisions give judicial activism legitimacy?	Arts. 32, 226 and 142.
What is the difference between judicial review and activism?	Review is the tool (examines legality); activism is the spirit (proactive justice, fills gaps).
What does the Aravali Golf Club case (2007) warn against?	Judicial overreach: judges cannot run the government; activism must not become adventurism.
Count of High Courts and the oldest ones?	25 (2025); Delhi, Bombay, Madras, Calcutta and Allahabad are the oldest from British rule.
Qualification for a High Court judge?	Indian citizen with ten years as judicial officer or High Court advocate.
When must a High Court judge retire?	At 62 (Art. 217).
Which Articles cover acting, additional and retired High Court judges?	Acting CJ 223; additional 224(1) (up to two years); acting judges 224(2); retired judges 224A.
Original civil jurisdiction High Courts?	Calcutta, Bombay, Madras and Delhi.
On what grounds can Art. 227 power be used?	Excess of jurisdiction, gross violation of natural justice, error of law, disregard of precedent, perverse findings, manifest injustice.
Why is Art. 226 wider than Art. 32?	It covers Fundamental Rights and any other legal right.
Which Act governs High Court contempt power?	Contempt of Courts Act, 1971 (Art. 215 court of record).
Which Amendments tried and reversed curbing High Courts' review of Central laws?	The 42nd (1976) curbed; the 43rd (1977) restored.

MY NOTES

Powers of a Chief Judicial Magistrate versus first and second class?	CJM up to seven years; first class up to three years or Rs 10,000; second class up to one year or Rs 5,000.
Who appoints District Judges and who removes them?	Governor appoints in consultation with the High Court; removes only on the High Court's recommendation.
Which Amendment inserted Arts. 323-A and 323-B?	The 42nd Amendment (1976), Part XIV-A.
Who can create tribunals under 323-A and 323-B?	323-A Parliament only (service matters); 323-B Parliament and State Legislatures (taxation, industrial, land reforms, elections and others).
Which case upheld tribunals as effective substitutes for High Courts, and which made High Court review part of the Basic Structure?	Sampath Kumar (1987) and Chandra Kumar (1997).
Who heads NALSA, SLSA, DLSA and the Taluk Committee?	CJI, High Court Chief Justice, District Judge, Senior Civil Judge.
What is the status of a Lok Adalat award?	Final and binding, deemed a civil-court decree, no appeal.
What limit applies to Permanent Lok Adalats?	Pre-litigation public utility disputes up to Rs 1 crore; no non-compoundable offences.
Features of the Gram Nyayalayas Act, 2008?	Effective 2 October 2009; Nyayadhikari with JMFC powers; summary trial; offences up to two years; appeals within 30 days.
Where do Family Court appeals go?	Directly to the High Court within 30 days (Section 19); not against a consent order.
Which tier hears consumer cases above Rs 2 crore?	The National Commission (NCDRC); appeal to the Supreme Court within 30 days.
What are the three elements of Parliament?	President, Rajya Sabha and Lok Sabha (Art. 79).
Which Part and Articles deal with Parliament?	Part V, Articles 79-122.
Maximum and present strength of the Rajya Sabha?	Maximum 250 (238 + 12 nominated); present 245 (229 States + 4 UTs + 12 nominated).
Maximum and present strength of the Lok Sabha?	Maximum 552 (530 + 20 + 2 Anglo-Indian); present 543 (530 + 13 UTs).

MY NOTES

Which Amendment abolished Anglo-Indian nomination?	The 104th Amendment Act, 2020; it also extended SC/ST reservation for a decade.
Who lowered the voting age to 18?	The 61st Amendment Act, 1988 (from 21).
What did the 42nd and 84th Amendments do to seats?	42nd froze seat allocation at 1971 levels until 2000; 84th extended the freeze till 2026.
Delimitation Commissions listed in the handout?	1952, 1962, 1972, 2002.
Why was PR rejected for the Lok Sabha?	Complexity, instability, cost, weak voter-representative link, no by-elections.
How is the Rajya Sabha kept permanent?	One-third retire every two years; six-year term under the RPA, 1951; no dissolution.
Minimum age for Rajya Sabha and Lok Sabha?	30 and 25 years.
What does the 106th Amendment insert?	Arts. 330A, 332A and 334A (and amends 239AA): one-third seats for women, effective after census and delimitation; 15-year sunset, rotation of seats.
What did Lily Thomas (2013) do?	Struck down Section 8(4) RPA; disqualification on conviction is immediate.
Five grounds under Art. 102(1)?	Office of profit; unsound mind; undischarged insolvent; loss of citizenship; disqualification by parliamentary law.
Who decides disqualification under Art. 103?	The President, after obtaining and acting on the Election Commission's opinion.
Pradyut Bordoloi (2001) test for office of profit?	Power of appointment and removal; remuneration; executive or administrative powers; influence under government control.
RPA disqualification periods: Sections 8, 8A, 9, 10A?	Conviction 2 years or more: from conviction plus 6 years after release; corrupt practice up to 6 years; dismissal 5 years; failure to lodge expenses 3 years.
Tenth Schedule grounds?	Voluntarily giving up membership; voting or abstaining against the whip; independent joins a party; nominated member joins after six months.

MY NOTES

What is Kihoto Hollohan (1992)?	The Speaker's decisions under the Tenth Schedule are subject to judicial review.
Days rules for vacating a seat?	10 days (elected to both Houses), 14 days (Parliament and State Legislature), 60 days absence.
What penalty applies for sitting or voting without taking the oath?	₹500 per day.
Who is the Speaker removed by?	A resolution of a majority of all then members, with 14 days' notice; motion needs 50 members to be admitted.
Speaker's special powers?	Certifies Money Bills (Art. 110(3)), presides over joint sittings, chairs the BAC, Rules and General Purposes Committees, appoints committee chairpersons.
Who is the Rajya Sabha Chairman?	The Vice-President ex-officio (Art. 64); not a member; removed only as VP (Art. 67(b)).
What is a Speaker Pro Tem?	A newly elected member (usually senior-most) appointed by the President to administer oaths and preside until the Speaker is elected.
Source of Leader of Opposition status?	Salary and Allowances of Leaders of Opposition in Parliament Act, 1977; leader of largest opposition party with at least one-tenth strength; Cabinet Minister rank.
What is a whip's legal status?	Not in the Constitution, Rules or any statute; a convention from Britain.
Gap between two sessions?	Not more than six months (Art. 85(1)).
Who prorogues and who adjourns?	President prorogues (Art. 85(2)); the Speaker or Chairman adjourns.
What survives dissolution of the Lok Sabha?	Bills pending in the Rajya Sabha and Bills passed by both Houses awaiting Presidential assent.
Quorum in each House?	One-tenth: 55 in the Lok Sabha and 25 in the Rajya Sabha.
Effective majority is used for?	Removing the Speaker and the Vice-President.

MY NOTES

Which motion is a calling attention?	Draws a minister's attention to an urgent matter; an Indian innovation since 1954.
Adjournment motion rules?	50 MPs in Lok Sabha; not allowed in Rajya Sabha; not less than 2 hours 30 minutes.
Four types of closure?	Simple, compartments, kangaroo, guillotine.
Short notice question?	Less than ten days' notice; oral.
Zero Hour rules?	Introduced 1962; Rule 377 (LS) and Rule 180-E (RS); raised without notice.
Ordinary Bill stages?	First reading, second reading (general discussion, committee, consideration), third reading, second House, assent.
How long can the Rajya Sabha hold a Money Bill?	14 days; then deemed passed as passed by the Lok Sabha.
Financial Bill (I) versus (II)?	(I) Art. 117(1): Lok Sabha only, recommendation before introduction. (II) Art. 117(3): either House, recommendation at consideration.
Deadlock triggers for joint sitting?	Rejection; final disagreement on amendments; no action for six months.
Joint sittings so far?	Dowry Prohibition Bill (1960), Banking Service Commission (Repeal) Bill (1977), POTA (2002).
Six stages of the Budget?	Presentation; general debate; Standing Committee scrutiny; voting on demands; Appropriation Bill; Finance Bill.
Cut motions?	Policy (Re 1), Economy (specific reduction), Token (₹100).
What is a vote on account?	Interim approval, typically for two months, about one-sixth of estimated expenditure.
Special grants?	Supplementary, additional, excess, vote of credit, exceptional, token.
Three government funds?	Consolidated Fund 266(1), Public Account 266(2), Contingency Fund 267.
Ways to express lack of confidence besides no-confidence?	Motion of Thanks defeated, Money Bill rejected, censure, adjournment motion, cut motion.

MY NOTES

Modes of amendment by Parliament?	Simple majority; special majority; special majority plus half of State legislatures.
Rajya Sabha exclusive powers?	Art. 249, Art. 312, initiation of VP removal, approval of emergency when LS dissolved.
Individual privileges?	Freedom from civil arrest (40 days before and after session), freedom of speech (Art. 105), jury and witness exemption.
Which Amendment dealt with privileges and the press?	The 44th Amendment (1978): press may report true proceedings; privileges as on 20 June 1979.
Dicey's three implications of sovereignty?	Unlimited legislative power; no distinction between ordinary and constitutional law; no judicial review.
Four limits on the Indian Parliament?	Written Constitution, federal structure, judicial oversight, fundamental rights.
Mains 2013: Khap Panchayats have been in the news for functioning as extra-constitutional authorities, often delivering pronouncements amounting to human rights violations.Discuss critically the...	Intro: Khap pronouncements that violate rights are extra-constitutional; the answer sets the Constitution's rights framework against them. The handout has no notes on the specific legislative or executive steps taken. Points: Judicial route: Arts. 32 and 226 writs to enforce Fundamental Rights and 'any other purpose'; Art. 13: any law or practice inconsistent with Fundamental Rights is void; judicial activism: guidelines to fill a legislative vacuum (Vishaka 1997 and D.K. Basu 1997 as models); Art. 142 for complete justice; limits: restraint, as judges cannot run the government (Aravali 2007). Close: Rights flow from the Constitution; courts enforce them where legislature and executive are slow, within the limits of restraint.

MY NOTES

Mains 2015: What are the major changes brought in the Arbitration and Conciliation Act, 1996 through the recent Ordinance promulgated by the President? How far will it improve India's dispute...	Intro: The question joins ordinance-making with alternative dispute resolution. The handout has no notes on the Act's changes; use its notes on ordinances and ADR bodies. Points: Ordinance (Art. 123): made during recess and must be approved within six weeks of reassembly or it lapses; ordinance may be replaced by a Bill passed by both Houses; ADR in the notes: Lok Adalats (conciliation, award as decree, no appeal) and Permanent Lok Adalats; benefit: speed, low cost, reduced backlog (over 5.1 crore pending cases quoted); limits: need for consent and uneven quality. Close: Reform helps if consent-based, speedy ADR is backed by Parliament's approval and quality of conciliators.
Mains 2023: Who are entitled to receive free legal aid? Assess the role of the National Legal Services Authority(NALSA) in rendering free legal aid in India.	Intro: Art. 39A and the Legal Services Authorities Act, 1987 make free legal aid a statutory entitlement. Points: Section 12 groups: women and children; SC and ST; industrial workmen; disaster and violence victims; persons with disabilities; persons in custody; trafficking and beggary victims; income up to Rs 1,00,000 or Rs 5,00,000 before the Supreme Court Legal Services Committee; NALSA (headed by the CJI) does policy, coordination and monitoring; State, District and Taluk bodies run Lok Adalats and awareness; services: court fees, lawyers, certified copies, appeals; National Lok Adalats from 2015 and Digital Lok Adalat. Close: NALSA turns Art. 39A into a working network from Supreme Court to taluk; reach and quality of conciliators remain the test.

MY NOTES

Mains 2024: Explain and distinguish between Lok Adalats and Arbitration Tribunals. Whether they entertain civil as well as criminal cases ?	Intro: Lok Adalats are the statutory people's courts under the Act of 1987; the handout has no notes on Arbitration Tribunals, so the Lok Adalat side is built from the notes. Points: Lok Adalat: Section 19; chairperson plus two members; compromise by consent; no strict procedure; handles pending cases and pre-litigation disputes: civil, motor accident claims, cheque bounce and compoundable criminal offences only; cannot try non-compoundable offences such as murder and rape; award is a civil-court decree and not appealable; Permanent Lok Adalats (Sections 22A-22E) conciliate first and then adjudicate, for public utility disputes. Close: Lok Adalats cover civil and compoundable criminal matters through consent; they complement, not replace, courts.
Mains 2021: Discuss the desirability of greater representation to women in the higher judiciary to ensure diversity, equity and inclusiveness.	Intro: The handout has no notes on women in the higher judiciary; only the appointment framework can be quoted. Points: High Court judges appointed by the President through the Collegium (Second Judges Case 1993 and Third Judges Case 1998); qualification: ten years as judicial officer or High Court advocate; Family Courts Act mandates women judges and counsellors for gender sensitivity; Consumer Commissions require at least one woman Member; 106th Amendment's one-third seats for women in legislatures shows the push for representation. Close: Appointment through the Collegium and inclusion norms in other bodies show where reform can begin.

MY NOTES

Mains 2014: Starting from inventing the 'basic structure' doctrine, the judiciary has played a highly proactive role in ensuring that India develops into a thriving democracy. In light of the...	Intro: Activism grew after the Emergency and rests on Arts. 32, 226 and 142; Kesavananda (1973) and Maneka Gandhi (1978) mark its milestones. Points: Rights widened: Art. 21 (Maneka Gandhi, Hussainara speedy trial, Olga Tellis livelihood); PIL and liberalised locus standi for the poor and bonded labourers; filling vacuums: Vishaka, D.K. Basu, Prakash Singh, Lalita Kumari; environment: M.C. Mehta absolute liability and Vellore polluter pays; limits: judicial legislation fears, epistemic limits, caseload (5.1 crore pending), Aravali warning. Close: Activism deepens democracy when it fills gaps; restraint keeps it within the Constitution.
Mains 2024: Explain the reasons for the growth of public interest litigation in India. As a result of it, has the Indian Supreme Court emerged as the world's most powerful judiciary?	Intro: PIL grew with relaxed locus standi after the Emergency; the handout gives causes and criticisms but no international comparison. Points: Causes (Wadehra): collapse of responsible governance; citizens' expectations; judicial enthusiasm; legislative vacuum; constitutional scope (Art. 21 and Art. 142); Baxi's activators: civil rights, labour, environmental and women's groups, lawyers like Kapila Hingorani; Court became a people's court; concerns: judicial overreach, caseload of over 5.1 crore, technocratic limits, democratic legitimacy; restraint view: remedy lies with the electorate. Close: PIL widened access and the Court's reach, but its power is checked by restraint and capacity limits.

MY NOTES

Mains 2025: Discuss the evolution of collegium system in India. Critically examine the advantages and disadvantages of the system of appointment of the Judges of the Supreme Court of India and that...	Intro: The handout covers the collegium only through High Court appointment and transfer; it has no notes on the US system. Points: Art. 217: President consults CJI, Governor and High Court CJ; Second Judges Case (1993) and Third Judges Case (1998) evolved the collegium of senior judges headed by the CJI; transfer: CJI consults four senior-most judges and both High Court Chief Justices; benefit: protects independence from executive discretion; concern: transparency (Advocates-on-Record 2016 collegium case). Close: The collegium shifted appointment weight to the judiciary; transparency is the continuing debate.
Mains 2013: The role of individual MPs (Members of Parliament) has diminished over the years and as a result healthy constructive debates on policy issues are not usually witnessed. How far can this...	Intro: The Tenth Schedule (52nd Amendment, 1985; 91st, 2003) binds members to the party whip; its aim was to stop defections for personal gain. Points: Grounds: giving up membership, voting against the whip, independent joining a party, nominated member joining after six months; the Whip is a convention that directs votes on confidence motions, Money Bills and amendments; Presiding Officer decides, subject to judicial review (Kihoto Hollohan 1992); weak oversight causes beyond defection: executive dominance, guillotine, delegated legislation, large Houses; reform: independent tribunal instead of the Speaker. Close: The law keeps governments stable but also reduces free voting; other causes of decline lie in executive dominance.

MY NOTES

Mains 2014: The 'Powers, Privileges and Immunities of parliament and its Members' as envisaged in Article 105 of the Constitution leave room for large number of un - codified and un - enumerated...	Intro: Art. 105 gives freedom of speech and the right to publish; other privileges rest on the pre-1950 House of Commons model and on usage. Points: Sources: Art. 105(1), 44th Amendment (privileges as on 20 June 1979), statutes, Rules, conventions, judicial interpretation; no exhaustive law codifies them; Parliament may define, modify or expand them; the notes only say no exhaustive law has been enacted (reasons are not given); collective and individual privileges; breach versus broader contempt; fix: codify by statute balancing autonomy with fundamental rights (courts already interpret scope). Close: Codification would give clarity and protect rights while preserving the House's independence.
Mains 2015: If amendment bill to the Whistle Blowers Protection Act 2011 tabled in the Parliament is passed, there may be no one left to protect. Critically Evaluate.	Intro: The handout has no notes on the Whistle Blowers Protection Act; only the legislative process can be quoted. Points: Public Bill introduced by a minister (seven days' notice) goes through first, second and third readings; second reading: general discussion, committee stage (select or joint committee), consideration; second House: pass, amend, reject or no action; Departmental Standing Committees and select committees scrutinise; Parliament's oversight is weakened by executive dominance and guillotine. Close: A Bill that dilutes protections should pass through committee scrutiny; the handout supplies the process, not the Act's detail.

MY NOTES

Mains 2017: The Indian Constitution has provisions for holding joint session of the two houses of the Parliament. Enumerate the occasions when this would normally happen and also the occasions when...	Intro: Art. 108 allows a joint sitting to break a deadlock; the Speaker presides. Points: When it happens: other House rejects the Bill; final disagreement on amendments; no action for six months (excluding prorogation or adjournment beyond four days); only for ordinary and financial Bills; when it cannot: Money Bills (Lok Sabha overrides; Rajya Sabha has 14 days) and Constitution Amendment Bills (separate passage under Art. 368); if the Lok Sabha dissolves before the notice, the Bill lapses; used in 1960, 1977, 2002. Close: A joint sitting is a last resort that favours the larger Lok Sabha but not where the Constitution reserves the decision.
Mains 2020: Individual Parliamentarian's role as the national lawmaker is on a decline, which in turn, has adversely impacted the quality of debates and their outcome. Discuss.	Intro: Individual MPs are squeezed by the whip, executive-led legislation and disruption. Points: Anti-defection law and the Whip direct voting; Public Bills dominate while private members' Bills almost never pass (last in the 1970s); delegated legislation and ordinances shift lawmaking; guillotine curtails debate on grants; Question Hour: over 60% time lost to disruption in the Rajya Sabha; large Houses and falling decorum; reform: committees, financial scrutiny, opposition participation. Close: Strengthening committees and debate time can restore the individual MP's role.

MY NOTES

Mains 2020: Rajya Sabha has been transformed from a 'useless stepney tyre to supporting organ in past few decades. Highlight the factors as well as the areas which this transformation could be visible.	Intro: Rajya Sabha is a federal, permanent chamber with equal powers in many areas and special powers in some. Points: Equal: ordinary laws, Constitution Amendment Bills, election and impeachment of the President, VP removal, judges and CEC and CAG removal recommendations, ordinances, emergency proclamations; inferior: Money Bills (14 days), budget voting, no-confidence; special: Art. 249, Art. 312, initiation of VP removal, emergency approval when the Lok Sabha is dissolved; permanence gives continuity and a revising role (GST example). Close: Rajya Sabha is a revising and federal chamber, not a rival; its special powers give it a distinct place.
Mains 2020: 'Once a Speaker, Always a Speaker'! Do you think this practice should be impart objectivity to the office of Speaker of Lok Sabha? What could be its implications for the robust...	Intro: The Speaker is from the ruling party and depends on it for re-election, so neutrality is questioned. Points: For: impartiality; Nehru and Mavalankar on protecting all MPs; fair anti-defection adjudication (Telangana case); UK precedent (Hoyle re-elected unopposed 2024); against: career disincentive; weak Indian conventions; judicial overhang; risk of executive influence; reduced accountability; way forward: codify neutrality, supermajority removal, independent tribunal for defection, training; global: UK resigns party, Canada secret ballot, Australia neutrality. Close: Neutrality needs conventions and structural reform, not only a slogan.

MY NOTES

Mains 2021: To what extent, in your view, the Parliament is able to ensure accountability of the executive in India?	Intro: Accountability rests on Arts. 75 and 77, tools of oversight and financial control; practice is weaker than theory. Points: Tools: Question Hour, Zero Hour, discussions, calling attention, adjournment, censure and no-confidence motions; collective responsibility to the Lok Sabha (Art. 75(3)) and individual responsibility; other signs: Motion of Thanks, Money Bill, cut motion; financial: PAC, Estimates Committee, COPU, annual grant and rule of lapse; weaknesses: size of government, executive dominance, post facto control, guillotine, delegated legislation, ordinances, weak opposition. Close: Parliament has the tools; majority dominance and procedural limits blunt them.
Mains 2021: Explain the constitutional provisions under which the Legislative Councils are established. Review the working and current status of Legislative Councils with suitable illustrations.	Intro: Art. 169 lets a State Assembly seek creation or abolition of its Council. Points: Assembly passes a resolution; Parliament enacts the law to give effect to it; the State legislature cannot itself amend the Constitution (Art. 368) except for this; purpose: bicameral system at State level only where necessary; the handout has no notes on current status or illustrations. Close: Councils exist at the State's request and Parliament's law; the handout stops there.

MY NOTES

Mains 2023: Discuss the role of presiding officers in legislatures in maintaining order and impartiality in conducting legislative work and in facilitating best democratic practices.	Intro: Presiding officers: Speaker, Deputy Speaker, Chairman, Deputy Chairman, with panels. Points: Maintain order and decorum; final interpreters of Rules and precedents; casting vote only in a tie; Speaker certifies Money Bills and decides Tenth Schedule cases, now subject to judicial review; safeguards: removal by effective majority with 14 days' notice, pay charged on the Consolidated Fund, conduct not discussed except on a substantive motion; impartiality gaps: Speaker keeps party membership; reforms such as Once a Speaker Always a Speaker. Close: Impartiality rests on tenure safeguards and conventions that India is still building.
Mains 2024: 'The growth of cabinet system has practically resulted in the marginalisation of the parliamentary supremacy.' Elucidate.	Intro: Executive dominance of the legislative agenda is the core of the argument. Points: Government is formed by the majority in the Lok Sabha and controls the agenda; Parliament often ratifies rather than shapes laws; ordinances (Art. 123) and delegated legislation bypass debate; guillotine and post facto committee control; the Indian Parliament is also bound by the Constitution, federal division, judicial review and rights (not sovereign like Britain); control tools: no-confidence, censure, cut motions. Close: Parliament is limited by its own executive and by the Constitution; oversight reforms can rebalance.

MY NOTES

Mains 2013: Khap Panchayats have been in the news for functioning as extra-constitutional authorities, often delivering pronouncements amounting to human rights violations.Discuss critically the actions taken by the legislative, executive and the judiciary to set the things right in this regard.	Intro: Khap pronouncements that violate rights are extra-constitutional; the answer sets the Constitution's rights framework against them. The handout has no notes on the specific legislative or executive steps taken Body: Judicial route: Arts. 32 and 226 writs to enforce Fundamental Rights and 'any other purpose'; Art. 13: any law or practice inconsistent with Fundamental Rights is void; judicial activism: guidelines to fill a legislative vacuum (Vishaka 1997 and D.K. Basu 1997 as models); Art. 142 for complete justice; limits: restraint, as judges cannot run the government (Aravali 2007). Close: Rights flow from the Constitution; courts enforce them where legislature and executive are slow, within the limits of restraint.
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Mains 2014: Starting from inventing the 'basic structure' doctrine, the judiciary has played a highly proactive role in ensuring that India develops into a thriving democracy. In light of the statement, evaluate the role played by judicial activism in achieving the ideals of democracy.	Intro: Activism grew after the Emergency and rests on Arts. 32, 226 and 142; Kesavananda (1973) and Maneka Gandhi (1978) mark its milestones Body: Rights widened: Art. 21 (Maneka Gandhi, Hussainara speedy trial, Olga Tellis livelihood); PIL and liberalised locus standi for the poor and bonded labourers; filling vacuums: Vishaka, D.K. Basu, Prakash Singh, Lalita Kumari; environment: M.C. Mehta absolute liability and Vellore polluter pays; limits: judicial legislation fears, epistemic limits, caseload (5.1 crore pending), Aravali warning. Close: Activism deepens democracy when it fills gaps; restraint keeps it within the Constitution.

MY NOTES

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MY NOTES

Mains 2013: The role of individual MPs (Members of Parliament) has diminished over the years and as a result healthy constructive debates on policy issues are not usually witnessed. How far can this be attributed to the anti - defection law which was legislated but with a different intention ?	Intro: The Tenth Schedule (52nd Amendment, 1985; 91st, 2003) binds members to the party whip; its aim was to stop defections for personal gain Body: Grounds: giving up membership, voting against the whip, independent joining a party, nominated member joining after six months; the Whip is a convention that directs votes on confidence motions, Money Bills and amendments; Presiding Officer decides, subject to judicial review (Kihoto Hollohan 1992); weak oversight causes beyond defection: executive dominance, guillotine, delegated legislation, large Houses; reform: independent tribunal instead of the Speaker. Close: The law keeps governments stable but also reduces free voting; other causes of decline lie in executive dominance.
Mains 2014: The 'Powers, Privileges and Immunities of parliament and its Members' as envisaged in Article 105 of the Constitution leave room for large number of un - codified and un - enumerated privileges to continue. Assess the reasons for the absence of legal codification of the 'parliamentary privileges'. How can this problem be addressed?	Intro: Art. 105 gives freedom of speech and the right to publish; other privileges rest on the pre-1950 House of Commons model and on usage Body: Sources: Art. 105(1), 44th Amendment (privileges as on 20 June 1979), statutes, Rules, conventions, judicial interpretation; no exhaustive law codifies them; Parliament may define, modify or expand them; the notes only say no exhaustive law has been enacted (reasons are not given); collective and individual privileges; breach versus broader contempt; fix: codify by statute balancing autonomy with fundamental rights (courts already interpret scope). Close: Codification would give clarity and protect rights while preserving the House's independence.

MY NOTES

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MY NOTES

Mains 2020: 'Once a Speaker, Always a Speaker'! Do you think this practice should be impart objectivity to the office of Speaker of Lok Sabha? What could be its implications for the robust functioning of parliamentary business in India?	Intro: The Speaker is from the ruling party and depends on it for re-election, so neutrality is questioned Body: For: impartiality; Nehru and Mavalankar on protecting all MPs; fair anti-defection adjudication (Telangana case); UK precedent (Hoyle re-elected unopposed 2024); against: career disincentive; weak Indian conventions; judicial overhang; risk of executive influence; reduced accountability; way forward: codify neutrality, supermajority removal, independent tribunal for defection, training; global: UK resigns party, Canada secret ballot, Australia neutrality. Close: Neutrality needs conventions and structural reform, not only a slogan.
Mains 2021: To what extent, in your view, the Parliament is able to ensure accountability of the executive in India?	Intro: Accountability rests on Arts. 75 and 77, tools of oversight and financial control; practice is weaker than theory Body: Tools: Question Hour, Zero Hour, discussions, calling attention, adjournment, censure and no-confidence motions; collective responsibility to the Lok Sabha (Art. 75(3)) and individual responsibility; other signs: Motion of Thanks, Money Bill, cut motion; financial: PAC, Estimates Committee, COPU, annual grant and rule of lapse; weaknesses: size of government, executive dominance, post facto control, guillotine, delegated legislation, ordinances, weak opposition. Close: Parliament has the tools; majority dominance and procedural limits blunt them.

MY NOTES

Mains 2021: Explain the constitutional provisions under which the Legislative Councils are established. Review the working and current status of Legislative Councils with suitable illustrations.	Intro: Art. 169 lets a State Assembly seek creation or abolition of its Council Body: Assembly passes a resolution; Parliament enacts the law to give effect to it; the State legislature cannot itself amend the Constitution (Art. 368) except for this; purpose: bicameral system at State level only where necessary; the handout has no notes on current status or illustrations. Close: Councils exist at the State's request and Parliament's law; the handout stops there.
Mains 2023: Discuss the role of presiding officers in legislatures in maintaining order and impartiality in conducting legislative work and in facilitating best democratic practices.	Intro: Presiding officers: Speaker, Deputy Speaker, Chairman, Deputy Chairman, with panels Body: Maintain order and decorum; final interpreters of Rules and precedents; casting vote only in a tie; Speaker certifies Money Bills and decides Tenth Schedule cases, now subject to judicial review; safeguards: removal by effective majority with 14 days' notice, pay charged on the Consolidated Fund, conduct not discussed except on a substantive motion; impartiality gaps: Speaker keeps party membership; reforms such as Once a Speaker Always a Speaker. Close: Impartiality rests on tenure safeguards and conventions that India is still building.

MY NOTES

Mains 2024: 'The growth of cabinet system has practically resulted in the marginalisation of the parliamentary supremacy.' Elucidate.	Intro: Executive dominance of the legislative agenda is the core of the argument Body: Government is formed by the majority in the Lok Sabha and controls the agenda; Parliament often ratifies rather than shapes laws; ordinances (Art. 123) and delegated legislation bypass debate; guillotine and post facto committee control; the Indian Parliament is also bound by the Constitution, federal division, judicial review and rights (not sovereign like Britain); control tools: no-confidence, censure, cut motions. Close: Parliament is limited by its own executive and by the Constitution; oversight reforms can rebalance.

Trap 1 · CAT appeals: Supreme Court or High Court?

The handout says CAT appeals go directly to the Supreme Court under Section 28 of the 1985 Act, but also says Chandra Kumar (1997) made tribunals subject to High Court writ jurisdiction under Arts. 226 and 227. *Rule: after Chandra Kumar, first go to the High Court (Division Bench), then the Supreme Court.*

Trap 2 · What Rajya Sabha cannot do

Rajya Sabha cannot bring a no-confidence motion, cannot use the adjournment motion, cannot introduce or reject a Money Bill, and cannot vote on demands for grants. *Rule: money and ministry control sit with Lok Sabha; Rajya Sabha only discusses and recommends.*

Trap 3 · Speaker-only powers

Only the Speaker certifies a Money Bill (Art. 110(3)) and presides over a joint sitting (Art. 118). The RS Chairman does neither because he is not a member of either House. *Rule: Money Bill certificate + joint sitting chair = Speaker; if absent, Deputy Speaker, then Deputy Chairman of RS.*

Trap 4 · Which seat falls vacant

Elected to both Houses without choosing in 10 days: the Rajya Sabha seat goes. Elected to Parliament and a State Legislature and no resignation from the State in 14 days: the Parliament seat goes. Two seats in one House with no choice: both go. *Rule: 10 days = Houses, 14 days = State Legislature, 60 days = absence (House may declare vacant).*

QUICK QUIZ

Q1. Waman Rao v. Union of India (1981) held that Ninth Schedule laws are fully protected only if added before

1. 26 January 1950
2. 24 April 1973
3. 31 December 1976
4. 11 September 2007

MY NOTES

Q2. A High Court judge's removal motion must be signed by at least

1. 100 Lok Sabha or 50 Rajya Sabha members
2. 50 Lok Sabha or 25 Rajya Sabha members
3. One-tenth of either House
4. One-third of the Lok Sabha

Q3. Permanent Lok Adalats (Sections 22A-22E) deal with

1. Non-compoundable criminal offences
2. Pre-litigation disputes on public utility services
3. Only matters pending before the Supreme Court
4. Constitutional disputes

Q4. Under the Consumer Protection Act, 2019, the State Commission hears complaints where the value

1. does not exceed Rs 50 lakh
2. is above Rs 50 lakh and up to Rs 2 crore
3. exceeds Rs 2 crore
4. exceeds Rs 10 crore

Q5. Which case held that judicial review by High Courts and the Supreme Court over tribunals is part of the Basic Structure?

1. S.P. Sampath Kumar
2. L. Chandra Kumar
3. Madras Bar Association
4. Kihoto Hollohan

Q6. What is the minimum age to be a member of the Rajya Sabha?

1. 25 years
2. 30 years
3. 35 years
4. 21 years

Q7. According to the handout, the present strength of the Rajya Sabha is

1. 238
2. 233
3. 245
4. 250

Q8. A member absent from all sittings without permission can have the seat declared vacant after how many consecutive days?

1. 30
2. 45
3. 60
4. 90

Q9. Who decides disqualification of an MP under Art. 102?

1. The Speaker
2. The Supreme Court
3. The President after obtaining the Election Commission's opinion
4. The Chief Justice of India

Q10. Lily Thomas v. Union of India (2013) struck down

1. Section 8(3) of the RPA
2. Section 8(4) of the RPA
3. Section 123(3) of the RPA
4. Section 10A of the RPA

Q11. The Speaker of the Lok Sabha can be removed by

1. A 2/3 majority present and voting
2. A majority of all the then members with 14 days' notice
3. The President on advice
4. The Rajya Sabha

Q12. What is the quorum for the Rajya Sabha?

1. 25
2. 55
3. 50
4. 83

MY NOTES

Q13. [PYQ 2024] Money Bill statements: 1. Art. 109 gives special procedure for Money Bills. 2. A Money Bill cannot be introduced in the Council of States. 3. The Rajya Sabha can approve or suggest changes but cannot reject it. 4. Rajya Sabha amendments must be accepted by the Lok Sabha.

1. 1 and 2 only
2. 2 and 3 only
3. 1, 2 and 3
4. 1, 3 and 4

Q14. [PYQ 2024] Bills and dissolution: 1. A Bill pending in the Lok Sabha lapses on its dissolution. 2. A Bill passed by the Lok Sabha and pending in the Rajya Sabha lapses on its dissolution. 3. A Bill for which the President notified a joint sitting lapses on dissolution.

1. 1 only
2. 1 and 2
3. 2 and 3
4. 3 only

Q15. [PYQ 2022] Exclusive power(s) of the Lok Sabha: 1. Ratify the declaration of Emergency 2. Pass a no-confidence motion against the Council of Ministers 3. Impeach the President

1. 1 and 2
2. 2 only
3. 1 and 3
4. 3 only

Q16. [PYQ 2020] Rajya Sabha has equal powers with the Lok Sabha in

1. creating new All India Services
2. amending the Constitution
3. the removal of the government
4. making cut motions

Q17. [PYQ 2016] Parliament can legislate on a State List item in the national interest if a resolution is passed by the

1. Lok Sabha by a simple majority of total membership
2. Lok Sabha by two-thirds of total membership
3. Rajya Sabha by a simple majority of total membership
4. Rajya Sabha by two-thirds of members present and voting

Q18. [PYQ 2015] 1. The Rajya Sabha has no power to reject or amend a Money Bill. 2. It cannot vote on Demands for Grants. 3. It cannot discuss the Annual Financial Statement.

1. 1 only
2. 1 and 2 only
3. 2 and 3 only
4. 1, 2 and 3

Q19. [PYQ 2013] 1. The Chairman and Deputy Chairman of the Rajya Sabha are not members of that House. 2. Nominated members have no vote in the presidential election but vote in the Vice-President's election.

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q20. [PYQ 2012] A deadlock between the Houses calls for a joint sitting during the passage of 1. Ordinary legislation 2. Money Bill 3. Constitution Amendment Bill

1. 1 only
2. 2 and 3 only
3. 1 and 3 only
4. 1, 2 and 3

MY NOTES

Q21. PYQ 2022: [2022] Consider the following statements:
1. Pursuant to the report of H.N. Sanyal Committee, the Contempt of Courts Act, 1971 was passed.
2. The Constitution of India empowers the Supreme Court and the High Courts to punish for contempt of themselves.
3. The Constitution of India defines Civil Contempt and Criminal Contempt.
4. In India, the Parliament is vested with the powers to make laws on Contempt of Court. Which of the statements given above is/are correct?

1. 1 and 2 only
2. 1, 2 and 4
3. 3 and 4 only
4. 3 only

Q22. PYQ 2022: [2022] With reference to the writs issued by the Courts in India, consider the following statements:
1. Mandamus will not lie against a private organisation unless it is entrusted with a public duty.
2. Mandamus will not lie against a company even though it may be a Government company.
3. Any public minded person can be a petitioner to move the Court to obtain the writ of Quo Warranto. Which of the statements given is/are correct?

1. 1 and 2 only
2. 2 and 3 only
3. 1 and 3 only
4. 1, 2 and 3

Q23. PYQ 2022: [2022] With reference to India, consider the following statements:
1. Government law officers and legal firms are recognised as advocates, but corporate lawyers and patent attorneys are excluded from recognition as advocates.
2. Bar Councils have the power to lay down the rules relating to legal education and recognition of law colleges. Which of the statements given above is/are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q24. PYQ 2021: [2021] With reference to Indian judiciary, consider the following statements:
1. Any retired judge of the Supreme Court of India can be called back to sit and act as a Supreme Court judge by the Chief Justice of India with prior permission of the President of India.
2. A High Court in India has the power to review its own judgement as the Supreme Court does. Which of the statements given above is/are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

MY NOTES

Q25. PYQ 2019: [2019] Consider the following statements:
1. The motion to impeach a Judge of the Supreme Court of India cannot be rejected by the Speaker of the Lok Sabha as per the Judges (Inquiry) Act 1968.
2. The Constitution of India defines and gives details or what constitutes 'incapacity and proved misbehaviour' of the Judges of the Supreme Court of India.
3. The details of the process of impeachment of the Judges of the Supreme Court of India are given in the Judges (Inquiry) Act, 1968.
4. If the motion for the impeachment of a Judge is taken up for voting, the law requires the motion to be backed by each House of the Parliament and supported by a majority of total membership of that House and by not less than two-thirds of total members of that House present and voting.
Which of the statements given above is/are correct?

1. 1 and 2
2. 3 only
3. 3 and 4 only
4. 1, 3 and 4

Q26. PYQ 2019: [2019] With reference to the Constitution of India, prohibitions or limitations or provisions contained in ordinary laws cannot act as prohibitions or limitations on the constitutional powers under Article 142. It could mean which one of the following?

1. The decisions taken by the Election Commission of India while discharging its duties cannot be challenged in any court of law.
2. The Supreme Court of India is not constrained in the exercise of its powers by the laws made by Parliament.
3. In the event of grave financial crisis in the country, the President of India can declare Financial Emergency without the counsel from the Cabinet.
4. State Legislatures cannot make laws on certain matters without the concurrence of Union Legislature.

Q27. PYQ 2019: [2019] With reference to the Constitution of India, consider the following statements:
1. No High Court shall have the jurisdiction to declare any central law to be constitutionally invalid.
2. An amendment to the Constitution of India cannot be called into question by the Supreme Court of India. Which of the statements given above is/are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q28. PYQ 2016: [2016] With reference to the 'Gram Nyayalaya Act', which of the following statements is/are correct?
1. As per the Act, Gram Nyayalayas can hear only civil cases and not criminal cases.
2. The Act allows local social activists as mediators/conciliators. Select the correct answer using the code given below.

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

MY NOTES

Q29. PYQ 2015: [2015] Who/Which of the following is the Custodian of the Constitution of India?

1. The President of India
2. The Prime Minister of India
3. The Lok Sabha Secretariat
4. The Supreme Court of India

Q30. PYQ 2014: [2014] The power of the Supreme Court of India to decide disputes between the Centre and the States falls under its:

1. Advisory jurisdiction
2. Appellate jurisdiction
3. Original jurisdiction
4. Writ jurisdiction

Q31. PYQ 2013: [2013] Under the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006, who shall be the authority to initiate the process for determining the nature and extent of individual or community forest rights or both?

1. State Forest Department
2. District Collector / Deputy Commissioner
3. Tahsildar / Block Development Officer / Mandal Revenue Officer
4. Gram Sabha

Q32. PYQ 2012: [2012] The National Green Tribunal Act, 2010 was enacted in consonance with which of the following provisions of the Constitution of India?

1. Right to a healthy environment, construed as part of Right to Life under Article 21
2. Provision of grants for raising the level of administration in the Scheduled Areas for the welfare of Scheduled Tribes under Article 275(1)
3. Powers and functions of Gram Sabha as mentioned under Article 243-A

Select the correct answer:

1. 1 only
2. 2 and 3 only
3. 1 and 3 only
4. 1, 2 and 3

Q33. PYQ 2012: [2012] Which of the following are included in the original jurisdiction of the Supreme Court?

1. A dispute between the Government of India and one or more States
2. A dispute regarding elections to either House of Parliament or that of Legislature of a State
3. A dispute between the Government of India and a Union Territory
4. A dispute between two or more States Select the correct answer using the codes given below:

1. 1 and 2
2. 2 and 3
3. 1 and 4
4. 3 and 4

Q34. PYQ 2010: [2010] The Supreme Court of India tenders advice to the President of India on matters of law or fact —

1. On its own initiative (on any matter of larger public interest)
2. If he seeks such advice
3. Only if the matters relate to the Fundamental Rights of the citizens

Which of the statements given above is/are correct?

1. 1 only
2. 2 only
3. 3 only
4. 1 and 2

MY NOTES

Q35. PYQ 2010: [2010] With reference to the Lok Adalats, which of the following statements is correct?

1. Lok Adalats have jurisdiction to settle matters at pre-litigation stage and not those pending before any court.
2. Lok Adalats can deal with matters which are civil and not criminal in nature.
3. Every Lok Adalat consists of either serving or retired judicial officers only and not any other person.
4. None of the statements given above is correct.

Q36. PYQ 2009: [2009] With reference to Lok Adalats, consider the following statements:
1. An award made by a Lok Adalat is deemed to be a decree of a civil court and no appeal lies therefrom before any court.
2. Matrimonial/Family disputes are not covered under Lok Adalat. Which of the statements given above is/are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q37. PYQ 2008: [2008] Consider the following statements:
1. Justice V. R. Krishna Iyer was the Chief Justice of India.
2. Justice V. R. Krishna Iyer is considered as one of the progenitors of Public Interest Litigation (PIL) in the Indian judicial system. Which of the statements given above is/are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q38. PYQ 2008: [2008] How many High Courts in India have jurisdiction over more than one State (Union Territories not included)?

1. 2
2. 3
3. 4
4. 5

Q39. PYQ 2007: [2007] Consider the following statements:
1. The mode of removal of a Judge of a High Court in India is the same as that of removal of a Judge of the Supreme Court.
2. After retirement from office, a permanent Judge of a High Court cannot plead or act in any court or before any authority in India. Which of the statements given above is/are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q40. PYQ 2005: [2005] Consider the following statements:
1. There are 25 High Courts in India.
2. Punjab, Haryana and the Union Territory of Chandigarh have a common High Court.
3. National Capital Territory of Delhi has a High Court of its own. Which of the above statements is/are correct?

1. 2 and 3
2. 1 and 2
3. 1, 2 and 3
4. 3 only

MY NOTES

Q41. PYQ 2005: [2005] Consider the following:
1. Disputes with mobile cellular companies
2. Motor accident cases
3. Pension cases For which of the above are Lok Adalats held?

1. 1 only
2. 1 and 2
3. 2 only
4. 1, 2 and 3

Q42. PYQ 2004: [2004] The highest criminal court of the district is the Court of District and Sessions Judge. The District Judges are appointed by the Governor in consultation with the High Court. A person to be eligible for appointment as a District Judge should be an advocate or pleader of seven years' standing or more, or an officer in judicial service of the Union or the State. When the Sessions Judge awards a death sentence, it must be confirmed by the High Court before it is carried out. Which of the statements given above are correct?

1. 1 and 2
2. 2, 3 and 4
3. 3 and 4
4. 1, 2, 3 and 4

Q43. PYQ 2003: [2003] The power to enlarge the jurisdiction of the Supreme Court of India with respect to any matter included in the Union List of Legislative Powers rests with:

1. The President of India
2. The Chief Justice of India
3. The Parliament
4. The Union Ministry of Law, Justice and Company Affairs

Q44. PYQ 2003: [2003] Which one of the following High Courts has the territorial jurisdiction over Andaman and Nicobar Islands?

1. Andhra Pradesh
2. Calcutta
3. Madras
4. Orissa

Q45. PYQ 2002: [2002] The salaries and allowances of the Judges of the High Court are charged on the:

1. Consolidated Fund of India
2. Consolidated Fund of the State
3. Contingency Fund of India
4. Contingency Fund of the State

Q46. PYQ 2001: [2001] Consider the following statements regarding the High Courts in India:
1. There are eighteen High Courts in the country.
2. Three of them have jurisdiction over more than one State.
3. No Union Territory has a High Court of its own.
4. Judges of the High Court hold office till the age of 62. Which of these statements is/are correct?

1. 2 and 4
2. 2 and 3
3. 1 and 4
4. 4 only

Q47. PYQ 2001: [2001] The Supreme Court of India tenders advice to the President on a matter of law or fact:

1. On its own initiative
2. Only if he seeks such advice
3. Only if the matter relates to the Fundamental Rights of citizens
4. Only if the issue poses a threat to the unity and integrity of the country

MY NOTES

Q48. PYQ 1997: [1997] The concept of Public Interest Litigation originated in:

1. The United Kingdom
2. Australia
3. The United States
4. Canada

Q49. PYQ 1997: [1997] Assertion (A): Wilful disobedience or non-compliance of Court orders and use of derogatory language about judicial behaviour amounts to Contempt of Court. Reason (R): Judicial activism cannot be practised without arming the judiciary with punitive powers to punish contemptuous behaviour. In the context of the above two statements, which one of the following is correct?

1. Both A and R are true and R is the correct explanation of A
2. Both A and R are true, but R is not the correct explanation of A
3. A is true, but R is false
4. A is false, but R is true

Q50. PYQ 2024: [2024] Under which of the following Articles of the Constitution of India has the Supreme Court of India placed the Right to Privacy?

1. Article 15
2. Article 16
3. Article 19
4. Article 21

Q51. PYQ 2024: [2024] A Writ of Prohibition is an order issued by the Supreme Court or High Courts to:

1. A government officer prohibiting him from taking a particular action.
2. The Parliament/Legislative Assembly to pass a law on Prohibition.
3. The lower court prohibiting continuation of proceedings in a case.
4. The Government prohibiting it from following an unconstitutional policy.

Q52. PYQ 2023: [2023] In India, which one of the following Constitutional Amendments was widely believed to be enacted to overcome the judicial interpretations of Fundamental Rights?

1. 1st Amendment
2. 42nd Amendment
3. 44th Amendment
4. 86th Amendment

Q53. PYQ 2017: [2017] In India, Judicial Review implies:

1. The power of the Judiciary to pronounce upon the constitutionality of laws and executive orders.
2. The power of the Judiciary to question the wisdom of the laws enacted by the Legislatures.
3. The power of the Judiciary to review all the legislative enactments before they are assented to by the President.
4. The power of the Judiciary to review its own judgements given earlier in similar or different cases.

Answers: Q1 b, Q2 a, Q3 b, Q4 b, Q5 b, Q6 b, Q7 c, Q8 c, Q9 c, Q10 b, Q11 b, Q12 a, Q13 c, Q14 b, Q15 b, Q16 b, Q17 d, Q18 b, Q19 b, Q20 a, Q21 b, Q22 d, Q23 b, Q24 a, Q25 c, Q26 b, Q27 d, Q28 b, Q29 d, Q30 c, Q31 d, Q32 a, Q33 c, Q34 b, Q35 d, Q36 a, Q37 b, Q38 c, Q39 c, Q40 a, Q41 d, Q42 d, Q43 c, Q44 b, Q45 b, Q46 a, Q47 b, Q48 c, Q49 a, Q50 d, Q51 c, Q52 a, Q53 a

MY NOTES

CHAPTER 16 · HANDOUT PAGES ON PARLIAMENTARY COMMITTEES

16 Parliamentary Committees

MEDIUM PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **2013, 2014, 2017, 2018**

MY NOTES

EXAM LENS

MY NOTES

Prelims hooks

- 2018 Subordinate Legislation
- 2014 Estimates as the largest committee
- 2013 PAC functions and size
- 2017 collective responsibility as the principle of Cabinet government (a parliamentary-system point, see Ch 18)
- Further hooks: PAC chair, DRSC numbers, which committees are Lok Sabha only, Consultative Committee tenure.
- Handout stresses: Handout gives exact member counts, chairmen and founding years for nearly every committee (Financial, DRSC, inquiry, scrutiny, business and housekeeping sections)
- Handout stresses: PAC versus Estimates versus COPU compared on size, origin, limits (Financial Committees section)
- Handout stresses: DRSCs: 24 committees (16 LS + 8 RS), 31 members (21 + 10), one-year tenure, 1993 (DRSC section)
- Handout stresses: Parliamentary forums versus committees: four differences (Forums section)
- Handout stresses: Four Prelims PYQs (2013, 2014, 2017, 2018) and four Mains questions (2017, 2018, 2021, 2023) quoted (PYQ section)
- Handout stresses: 2013 asks whether the PAC has "not more than 25 Members of the Lok Sabha": the notes give 22 members (15 LS + 7 RS), so that statement is false; the PAC scrutinises Appropriation and Finance Accounts and examines the CAG report (PAC section)
- Handout stresses: 2014 asks the largest committee: the Estimates Committee (30) (Estimates section)
- Handout stresses: 2018 asks which committee checks delegated rules, regulations, sub-rules and by-laws: Subordinate Legislation (Scrutiny section)

Mains hooks

- 2017 role of the PAC in accountability
- 2018 why committees are useful and the role of the Estimates Committee
- 2021 DRSCs keeping administration on its toes
- 2023 structure of the committee system and the financial committees
- Also forums versus committees and the fall in Bill referrals (71% to about 16%).

MY NOTES

Committees are Parliament's workshops: small, expert-assisted, year-round bodies that scrutinise money, Bills and the executive while the full House keeps the final word.

IN SIMPLE WORDS

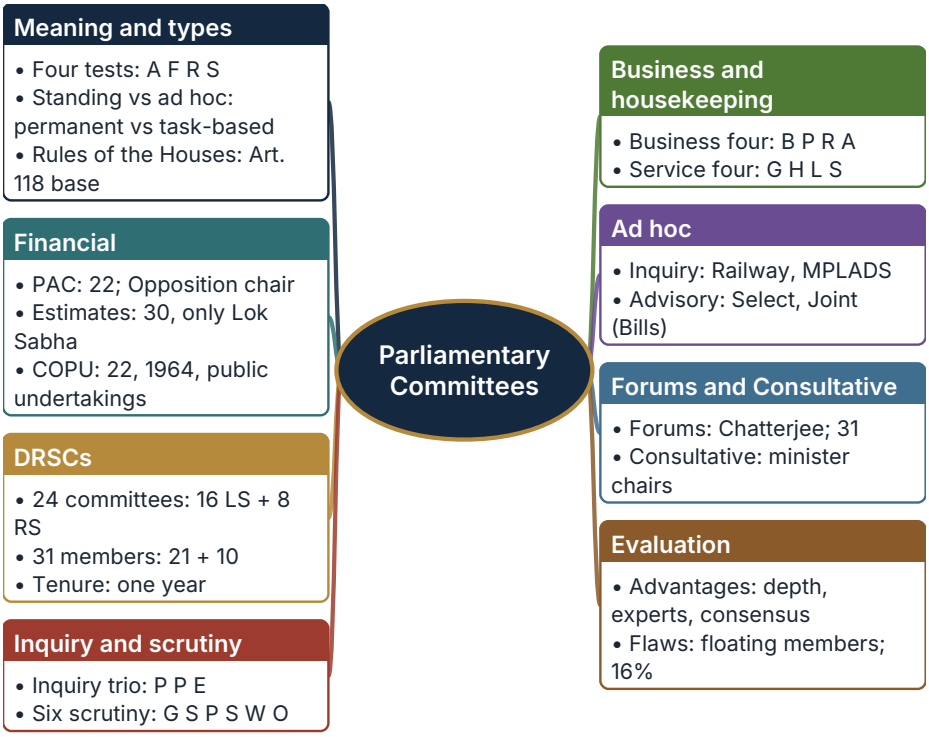
- **Parliamentary committees** are small bodies that do the detailed work Parliament cannot do on the floor. The Constitution only hints at them
- The **rules of the Houses (Art. 118)** fix composition, tenure and powers
- A body counts as a parliamentary committee if it is **appointed or nominated** by the House or Speaker, works under the **Speaker/Chairman**, **reports** to the House or Speaker, and has a **secretariat** from the House.
- There are two kinds: **standing** (permanent, often renewed every year) and **ad hoc** (temporary; **Inquiry** and **Advisory** such as Select or Joint Committees on Bills). Standing ones fall in **six families**: Financial, Department-related, Inquiry, Scrutiny and control, Day-to-day business, House-keeping.
- **Financial trio: PAC** (22 members, 15 LS + 7 RS, Opposition chairman since 1967, helped by the CAG), **Estimates** (30, only Lok Sabha) and **COPU** (22, set up in 1964). All are elected yearly by STV, no ministers, and their advice is **only advisory**.
- **24 DRSCs** (16 LS + 8 RS), started in 1993, have **31 members** each (21 + 10) for **one year** and study Demands for Grants and Bills ministry by ministry.
- Forums are not committees: no statutory sanction, no power to compel records, no Action Taken Report, and ministers may join. **Consultative Committees** are chaired by the minister and last as long as the Lok Sabha.

Key term	In plain words
Standing committee	Permanent or recurring body, usually constituted every year, working on a continuing basis
Ad hoc committee	Temporary body for one purpose; ends when its task is done (Inquiry and Advisory kinds)
Select / Joint Committee	Advisory ad hoc committee on a Bill: clause-by-clause study, expert evidence, then a report; Joint means both Houses
Minute of dissent	Note by a member who disagrees with the majority report
Post-mortem scrutiny	Checking spending after it is done; the handout's main complaint against PAC, Estimates and COPU

MY NOTES

Key term	In plain words
Action Taken Report	Government's reply to a committee report; needed for committees, not for forums
DRSC	Department-Related Standing Committee: 24 of them, ministry-wise oversight, 31 members each
Consultative Committee	Non-statutory informal group of MPs chaired by the minister; 10 to 30 members; lasts for the life of the Lok Sabha

MEMORY MAP: PARLIAMENTARY COMMITTEES



MNEMONIC · FINANCIAL COMMITTEES IN FOUNDING ORDER

Pennies Examined Carefully

- **P** Public Accounts Committee (1921)
- **E** Estimates Committee (1950)
- **C** Committee on Public Undertakings (1964)

Public pennies are examined carefully by three watchdogs, in the year order 1921, 1950, 1964. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · SIX FAMILIES OF STANDING COMMITTEES

Fiscal Duty Includes Strict Business Housekeeping

- **F** Financial committees
- **D** Department-related standing committees
- **I** Inquiry committees
- **S** Scrutiny and control committees
- **B** Business of the House (day-to-day)
- **H** House-keeping or service committees

A committee's fiscal duty includes strict business and housekeeping: the six families in handout order. Order is free here: no clean word exists, so this sentence is the memory aid. (Memory aid, not from the handout.)

MNEMONIC · WHAT THE PAC EXAMINES

ASSURE

- **A** Appropriation and Finance Accounts
- **S** State corporations and autonomous bodies
- **S** Stores and receipts: audit of receipts and stores
- **U** Use of funds for authorised purposes
- **R** Re-appropriation of funds
- **E** Excess expenditure

The PAC works to ASSURE that money is spent as Parliament authorised. The order is rearranged for memory (the six areas are unordered). (Memory aid, not from the handout.)

MNEMONIC · DRSC PROCEDURE ON DEMANDS FOR GRANTS

A Careful Review Helps Spending

- **A** Adjournment of the Houses for a fixed period after the general budget discussion
- **C** Committees examine the Demands for Grants of their ministries
- **R** Report on time; no extension
- **H** Houses decide the demands in the light of the reports
- **S** Separate report for each ministry

A careful review helps spending: the five steps from adjournment to separate ministry reports. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · COMMITTEES FOR SCRUTINY AND CONTROL

GOSPEL

- **G** Government Assurances
- **O** Offices of Profit (Joint Committee)
- **S** Scheduled Castes and Scheduled Tribes welfare
- **P** Papers Laid on the Table
- **E** Empowerment of Women
- **L** Legislation, subordinate (Committee on Subordinate Legislation)

These committees hold ministers to the GOSPEL of what they promise and do. The order is rearranged for memory (the six committees are unordered). (Memory aid, not from the handout.)

WHY COMMITTEES AND WHAT MAKES ONE

- Parliament is a large House facing legislation, policy, budgets and oversight in huge volume and technical detail, so smaller focused bodies do the **detailed scrutiny and preparatory work**: they sift evidence, examine Bills clause by clause and prepare reports for the House.

CONSTITUTIONAL POSITION

- The Constitution refers to committees at various places but **does not prescribe composition, tenure or functions**.
- Those details come from the **rules of the two Houses** (Lok Sabha and Rajya Sabha): formation, term, powers, reporting.

THE FOUR CONDITIONS

- A body is a parliamentary committee if it:
- **(a)** is appointed or elected by the House, or nominated by the Speaker/Chairman;
- **(b)** functions under the direction of the Speaker or Chairman;
- **(c)** submits its report to the House or to the Speaker/Chairman;
- **(d)** is supported by a secretariat provided by the Lok Sabha or the Rajya Sabha.
- **Memory aid (Four tests):** **A**ppointed or nominated, **F**unctions under the Speaker/Chairman, **R**eports to House or Speaker, **S**ecretariat from the House: "**A**lways **F**ollow **R**ules, **S**ir." These four give the committee its formal identity, accountability to the House and administrative support. Reports give the House researched findings, recommendations and proposed amendments, a job not feasible in full sittings.

ALSO IN THE HANDOUT

- ## Parliamentary Committees Parliament, by design, is a large deliberative assembly with wide-ranging functions.

MY NOTES

CLASSIFICATION OF COMMITTEES

TWO BROAD TYPES

- **Standing committees:**
  - Permanent or recurrent
  - Constituted periodically (often every year)
  - Continuing functions
- **Ad hoc committees:**
  - Temporary
  - Set up for one purpose or inquiry
  - Cease to exist when the task is done
- The standing committees fall into **six categories** by the nature of their work.

SIX FAMILIES OF STANDING COMMITTEES

Family	Concern	Committees
Financial	Financial scrutiny of government and public expenditure	Public Accounts Committee; Estimates Committee; Committee on Public Undertakings
Department-related	Ministry-wise work, budgets, policy (24 committees)	Department-Related Standing Committees (DRSCs)
Inquiry	Petitions, breaches of privilege, ethics	Committee on Petitions; Committee of Privileges; Ethics Committee
Scrutiny and control	Executive assurances, subordinate legislation, social interests	Government Assurances; Subordinate Legislation; Papers Laid on the Table; Welfare of SCs and STs; Empowerment of Women; Joint Committee on Offices of Profit
Day-to-day business	Timetable and procedure	Business Advisory; Private Members' Bills and Resolutions; Rules; Absence of Members from Sittings
House-keeping / service	Facilities and services for Members	General Purposes; House; Library; Joint Committee on Salaries and Allowances of MPs

- **Memory aid (Six families):**
  - **F**inancial, **D**epartment-related, **I**nquiry, **S**crutiny, **B**usiness, **H**ouse-keeping: "**F**at **D**ogs **I**n **S**low **B**uses **H**onk." The Constitution recognises committees indirectly by letting the Houses regulate their internal functioning
  - The rules decide how committees are appointed or elected, operate under the Speaker/Chairman, present reports and staff their secretariats

MY NOTES

ALSO IN THE HANDOUT

- In contrast, ad hoc committees are temporary: they are set up for a specific purpose or to inquire into a defined issue and cease to exist once their assigned task is completed.
- These committees are entrusted with examining petitions, investigating breaches of privilege, and maintaining the moral and procedural integrity of the Houses.

AD HOC COMMITTEES

- Ad hoc committees serve one purpose and cease when it is done. There are two types: **Inquiry Committees** and **Advisory Committees**.

1. INQUIRY COMMITTEES

- Set up either by a **motion adopted in the House(s)** or by the **Speaker/Chairman**, to examine and report on particular matters of public importance or administrative concern.

EXAMPLES OF INQUIRY COMMITTEES

Committee	Job
Railway Convention Committee	Examines arrangements between Railways and the general revenues
Committee on MPLADS	Oversees the Members of Parliament Local Area Development Scheme
Joint Committee on Security in Parliament Complex	Reviews and recommends security measures
Committee on Provision of Computers to Members and Political Parties	Technological support and computer access for MPs
Committee on Food Management in Parliament House Complex	Monitors catering in the premises
Committee on Installation of Portraits/ Statues of National Leaders and Parliamentarians	Regulates installation in the complex
Joint Committee on Maintenance of Heritage Character and Development of Parliament House Complex	Heritage preservation
Committee on Violation of Protocol Norms and Contemptuous Behaviour of Government Officers with Members	Breach of protocol and misconduct
Committee on Welfare of Other Backward Classes	Reviews welfare schemes for OBCs
Committee to Inquire into Improper Conduct of a Member	Misconduct cases involving MPs

MY NOTES

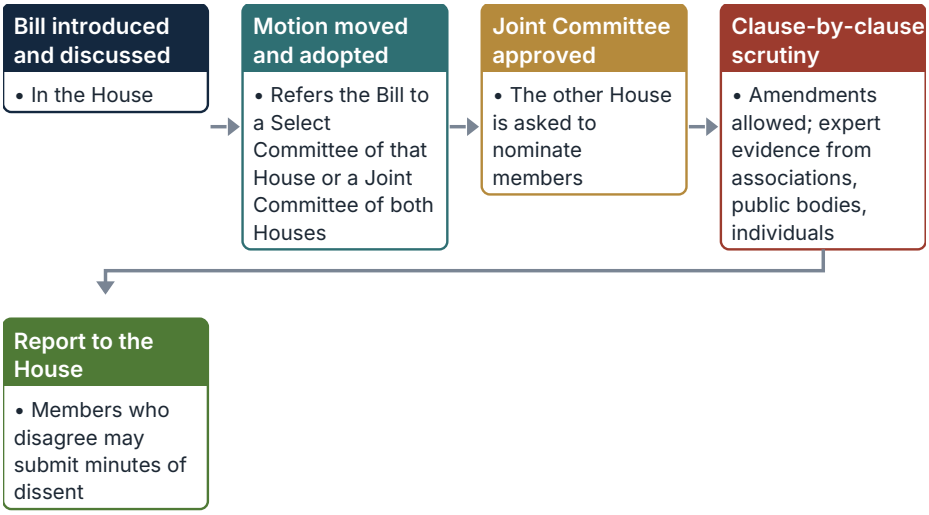
2. ADVISORY COMMITTEES

- These are **Select Committees** and **Joint Committees on Bills**: they deal **only with legislative business**, unlike inquiry committees.

HOW A BILL GOES TO A SELECT OR JOINT COMMITTEE

- **Bill introduced and discussed**: In the House
- **Motion moved and adopted**: Refers the Bill to a Select Committee of that House or a Joint Committee of both Houses
- **Joint Committee approved**: The other House is asked to nominate members
- **Clause-by-clause scrutiny**:
  - Amendments allowed
  - Expert evidence from associations, public bodies, individuals
- **Report to the House**: Members who disagree may submit minutes of dissent

HOW A BILL GOES TO A SELECT OR JOINT COMMITTEE



- Procedure is governed by the Rules of Procedure and Directions of the Presiding Officers.
- **Memory aid (Ad hoc split): I**nquiry (matters of public or administrative concern) and **A**dvisory (Bills only): "**I A**sk, **A**dvise".

PUBLIC ACCOUNTS COMMITTEE (PAC)

PAC AT A GLANCE

Feature	Detail
First established	1921, under the Government of India Act, 1919
Members	**22**: **15 Lok Sabha + 7 Rajya Sabha**
Election	Annually, by proportional representation by single transferable vote (all parties represented)

MY NOTES

Feature	Detail
Ministers	Cannot be members
Chairman	Appointed by the **Speaker** from among Lok Sabha members; **since 1967, by convention an Opposition member**

- **Core job:** Scrutinises the annual **CAG audit reports**, presented to Parliament by the President under **Article 151**, to ensure financial propriety and efficiency of spending.

CAG REPORTS AND WHAT THE PAC EXAMINES

- CAG submits three reports: **Appropriation Accounts, Finance Accounts, Public Undertakings**.
- Appropriation and Finance Accounts: spending must match grants voted through the Appropriation Act.
- Use of funds: disbursed for authorised purposes.
- Re-appropriation of funds: complies with the rules.
- Accounts of State corporations and autonomous bodies: audit findings.
- Audit of receipts and stores: losses, wastage, inefficiency.
- Excess expenditure: spending beyond parliamentary grants.
- The CAG acts as "guide, friend, and philosopher" to the PAC.

LIMITATIONS

- Post-expenditure scrutiny, not policy formulation.
- Cannot intervene in day-to-day administration.
- Recommendations are **advisory**, not binding on ministries.
- Cannot disallow expenditure or issue executive orders.
- Former CAG **Ashok Chanda** called the PAC a "powerful force in the control of public expenditure".
- **Memory aid (PAC facts):** **C**AG as friend, **O**pposition chair since 1967, **S**TV election of 22 members (15 + 7): "**C**ats **O**ften **S**leep."

ALSO IN THE HANDOUT

- Re-appropriation of Funds — ensuring compliance with prescribed rules.

ESTIMATES COMMITTEE

ESTIMATES COMMITTEE AT A GLANCE

Feature	Detail
Origin	Evolved from the **Standing Financial Committee of 1921**; formally constituted **1950** on the recommendation of Finance Minister **John Mathai**

MY NOTES

Feature	Detail
Members	Initially 25, now **30**, **all from Lok Sabha** (no Rajya Sabha representation)
Election	Annually, PR by single transferable vote
Ministers	Barred
Chairman	Appointed by the Speaker, **usually from the ruling party**

FUNCTIONS

- Suggest economies in public expenditure and administrative efficiency.
- Recommend alternative policies for better use of resources.
- Ensure money is well spent within the approved policy framework.
- Recommend reforms in the presentation of estimates.
- It works through the financial year and may report periodically, but Parliament need **not wait for its report** before voting on Demands for Grants.

LIMITATIONS

- Examines estimates **after** Parliament votes them.
- Cannot question the policy behind estimates.
- Recommendations are advisory.
- Reviews only a few ministries each year.
- **No CAG expert help**, unlike the PAC.
- Mostly retrospective: a post-mortem, not preventive oversight.
- **Memory line:**
  - PAC chair = **Opposition** (since 1967)
  - Estimates chair = **ruling party**
  - Estimates is **Lok Sabha only**

COMMITTEE ON PUBLIC UNDERTAKINGS (COPU)

- Constituted in **1964** on the recommendation of the **Krishna Menon Committee** for sustained scrutiny of public sector undertakings. Its working follows the Houses' Rules of Procedure (Article 118 lets each House frame its own rules).

COPU AT A GLANCE

Feature	Detail
Original strength	15 members (10 Lok Sabha + 5 Rajya Sabha)

MY NOTES

Feature	Detail
Increased in 1974	**22** members (**15 Lok Sabha + 7 Rajya Sabha**)
Election	Annually by Parliament from its members, PR by single transferable vote
Term	**One year**
Ministers	Ineligible
Chairman	Appointed by the Speaker from among its members

FUNCTIONS

- Examine reports and accounts of specified public undertakings.
- Examine **CAG reports** on public undertakings (laid under Article 151).
- Judge whether undertakings are run on **sound commercial principles** and prudent business practice, with autonomy and efficiency.
- Do other work the **Speaker** allots, including tasks like those of the PAC and Estimates Committee.

OUTSIDE ITS REMIT

- Major government policy distinct from business or commercial functions.
- Day-to-day administration of the undertakings.
- Matters under special statutory machinery set up by the Act creating the undertaking.

PRACTICAL CONSTRAINTS

- Cannot examine more than **ten to twelve undertakings a year**.
- Mostly post-facto (post-mortem) scrutiny.
- Members are not technical experts.
- Recommendations are advisory.

PAC, ESTIMATES AND COPU SIDE BY SIDE

Point	PAC	Estimates	COPU
Founded	1921 (GoI Act 1919)	1950 (roots in 1921)	1964 (Krishna Menon Committee)
Strength	22 (15 LS + 7 RS)	30, all LS	22 (15 LS + 7 RS), from 15 in 1974
Chairman	Speaker appoints; Opposition since 1967	Speaker appoints; usually ruling party	Speaker appoints from members

MY NOTES

Point	PAC	Estimates	COPU
Focus	CAG audit reports, past spending	Economy and efficiency in estimates	Public undertakings
CAG help	Yes	No	Handout mentions CAG reports, no CAG help stated

- **Memory aid (Financial three):** **P**AC, **E**stimates, **C**OPU: "**P**lease **E**conomise **C**arefully."
- **Shortcut: Count shortcut. 22-22-30**: PAC 22, COPU 22, Estimates 30. Only Estimates is **LS only**. All three have **no ministers**, **annual** election by **STV**, **advisory** reports.

ALSO IN THE HANDOUT

- Practical constraints on effectiveness Although the committee is an important instrument of oversight, its effectiveness is constrained by institutional limits: (a) it cannot examine more than ten to twelve undertakings in a year;
- This mechanism ensures that non-government members have a platform to introduce legislation and participate in the policymaking process.

DEPARTMENT-RELATED STANDING COMMITTEES (DRSCS)

- Established in **1993** on the recommendation of the **Lok Sabha Rules Committee** and expanded in **2004 to 24 committees**, to strengthen Parliament's oversight and financial accountability of the Executive. They enable detailed ministry-wise scrutiny and act as "**miniature Parliaments**".

DRSC STRUCTURE

Feature	Detail
Number	**24**: **16** under Lok Sabha, **8** under Rajya Sabha
Members	**31**: **21** from Lok Sabha (nominated by the **Speaker**) + **10** from Rajya Sabha (nominated by the **Chairman**)
Ministers	Cannot be members; a member who becomes a minister ceases to be a member
Tenure	**One year** from constitution
Basis	Article 118 (rules of procedure)

MY NOTES

KEY FUNCTIONS WITH THE HANDOUT'S EXAMPLES

Function	What it means	Example
Scrutiny of Demands for Grants	Examines ministry budgets before Lok Sabha voting	Standing Committee on Finance's review of the GST Act (2016)
Examination of Bills	Studies legislative proposals in depth	Select Committee on Surrogacy Bill (2019) suggested key safeguards
Annual reports and policy papers	Evaluates ministry performance and long-term policies	Committee on Health reviewed the COVID-19 vaccine strategy
Stakeholder consultation	Invites experts, civil society, industry	Consultations with health professionals on the National Medical Commission Bill
Continuous oversight	Tracks scheme implementation	DRSC on Rural Development assessed PMGSY progress

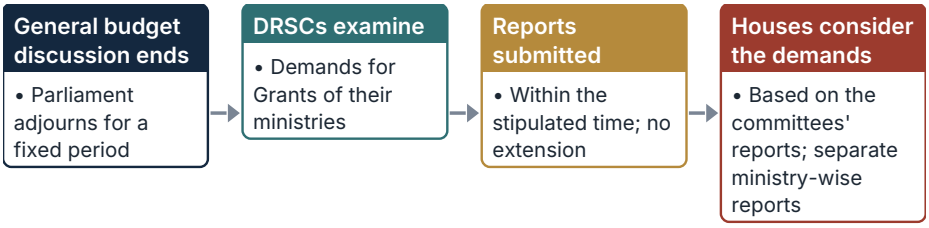
LIMITS

- Do not deal with day-to-day administration of ministries.
- Avoid subjects already before other parliamentary committees.
- Recommendations are **advisory**, not binding.

DEMANDS FOR GRANTS PROCEDURE

- **General budget discussion ends**: Parliament adjourns for a fixed period
- **DRSCs examine**: Demands for Grants of their ministries
- **Reports submitted**:
  - Within the stipulated time
  - **no extension**
- **Houses consider the demands**:
  - Based on the committees' reports
  - Separate ministry-wise reports

DEMANDS FOR GRANTS PROCEDURE



BILLS PROCEDURE

- **Bill referred**: Only **introduced** Bills are examined
- **Committee studies**: Principles and provisions
- **Report within a fixed time**: Ensures legislative efficiency

MY NOTES

ADVANTAGES OF THE DRSC SYSTEM

- **Non-partisan** discussion, free of party bias.
- **Flexible procedure** compared with the Lok Sabha.
- **Continuous oversight** of the executive.
- **Financial discipline**: ministries prepare demands more carefully.
- **Wider participation** of Members from all parties.
- **Expert opinion** through invited experts and eminent persons.
- **Stronger Opposition and Rajya Sabha** in financial oversight.
- **Shortcut:**
  - **DRSC numbers. 24** committees = **16** LS + **8** RS
  - **31** members = **21** LS + **10** RS
  - Tenure **1** year
  - Set up **1993**, expanded **2004**

> **HANDOUT ALERT**
> Handout alert: The Consultative-Committees section says the DRSCs began with **45 members each (30 Speaker + 15 Chairman) in the 13th Lok Sabha**, cut to **31 (21 + 10) in July 2004**, while the DRSC section says they were set up in 1993 and "expanded in 2004 to 24 committees". Use **24 committees, 31 members (21 + 10)** as the present position. Also note the surrogacy example is a **Select Committee**, which the notes class as an ad hoc advisory body, not a DRSC.

ALSO IN THE HANDOUT

- Key Advantages of the DRSC System The DRSC mechanism has strengthened the institutional capacity of Parliament through the following merits: - Non-partisan Functioning – Discussions within DRSCs are free from party bias, encouraging objective deliberation. - Flexible Procedure – Compared to the Lok Sabha, their method of working allows greater adaptability.
- Wider Member Participation – Members from all parties gain exposure to governmental processes and policymaking.
- This committee plays a vital role in institutionalising ethical standards within Parliament, thereby enhancing public trust and confidence in democratic governance. ## Committees for Scrutiny and Oversight The Committees to Scrutinise and Control act as vital instruments of parliamentary supervision over the Executive, ensuring that ministerial actions remain accountable, transparent, and in conformity with constitutional and legislative intent.
- In essence, these Committees to Scrutinise and Control serve as the institutional backbone of parliamentary accountability. They ensure that executive actions are not only lawful and transparent but also aligned with the democratic and constitutional ethos envisioned by the framers of the Constitution.

MY NOTES

- They help parliamentarians understand the objectives, programmes, and administrative challenges faced by ministries, while also allowing them to express views, suggestions, and feedback on policy matters.

COMMITTEES OF INQUIRY

- They examine petitions, probe breaches of privilege and guard ethical standards, drawing authority from the Rules of Procedure under **Article 118**.

INQUIRY COMMITTEES

Committee	Role	LS	RS
Petitions	Citizens' grievances; examines petitions on Bills and public-importance matters; representations from individuals and associations on Union subjects	15	10
Privileges	Protects the dignity and authority of Parliament; investigates breach of privilege or contempt; **semi-judicial**; recommends action	15	10
Ethics	Enforces the code of conduct for MPs; examines ethical misconduct; recommends action	15	10

- The Ethics Committee was set up in the **Rajya Sabha in 1997** and the **Lok Sabha in 2000**.
- **Memory aid (Inquiry trio): P**etitions, **P**rivileges, **E**thics: "**P**eople **P**lead, **E**thics decides." All are **15 LS + 10 RS**.

ALSO IN THE HANDOUT

- The committee is tasked with enforcing the code of conduct for Members of Parliament, examining cases of ethical misconduct, and recommending appropriate action to maintain the decorum and integrity of the institution.

COMMITTEES FOR SCRUTINY AND CONTROL

- These supervise the Executive under Rules framed through **Article 118**: delegated legislation, assurances, and welfare measures.

THE SIX SCRUTINY COMMITTEES

Committee	Year	Strength	Job
Government Assurances	1953	LS 15, RS 10	Reviews assurances, promises and undertakings given by ministers on the floor; reports if fulfilled in time
Subordinate Legislation	1953	15 in each House	Checks that rules, regulations, bye-laws and sub-rules follow the parent Act; guards against executive overreach

MY NOTES

Committee	Year	Strength	Job
Papers Laid on the Table	1975	LS 15, RS 10	Checks papers laid by ministers for conformity with the Constitution, statute or House rules; does **not** examine notifications or statutory orders (those go to Subordinate Legislation)
Welfare of SCs and STs	none stated	**30**: 20 LS + 10 RS	Reviews National Commissions' reports, safeguards, welfare programmes; Articles 17, 46, 338-338A
Empowerment of Women	1997	**30**: 20 LS + 10 RS	Reviews National Commission for Women reports and measures for dignity, rights, participation; Articles 14, 15(3), 39(a)
Joint Committee on Offices of Profit	none stated	**15**: 10 LS + 5 RS	Reviews bodies set up by Central, State and UT Governments to decide if holding them disqualifies from Parliament; Article 102(1)(a)

- **Memory aid (Six scrutiny bodies):** **G**overnment Assurances, **S**ubordinate Legislation, **P**apers Laid, **S**Cs and STs, **W**omen, **O**ffices of Profit: "**G**ood **S**tudents **P**refer **S**hort **W**ritten **O**utlines."
- **Shortcut:**
  - **Years and sizes. 1953** = Assurances and Subordinate Legislation
  - **1975** = Papers
  - **1997** = Women. **30-member** committees = SC/ST and Women (20 + 10). **15-member joint** = Offices of Profit (10 + 5)

ALSO IN THE HANDOUT

- Its mandate includes evaluating the reports of the National Commission for Women and examining government measures aimed at securing women's dignity, rights, and participation in all spheres. This body reinforces the objectives of Articles 14, 15(3), and 39(a) of the Constitution, which ensure gender justice and equal opportunity.

COMMITTEES ON DAY-TO-DAY BUSINESS

BUSINESS COMMITTEES

Committee	Job	Lok Sabha	Rajya Sabha
Business Advisory (BAC)	Programme and time for government and other official business; coordination between government and opposition	15 members; **Speaker** chairs	11 members; **Chairman** (Vice-President) chairs ex officio

MY NOTES

Committee	Job	Lok Sabha	Rajya Sabha
Private Members' Bills and Resolutions	Classifies Private Members' Bills and allots time for their Bills and resolutions	15 members; chaired by the **Deputy Speaker**	None; the RS **BAC** does similar work
Rules	Reviews and recommends changes in rules of procedure	15 members; Speaker chairs ex officio	16 members; Chairman chairs ex officio
Absence of Members from Sittings	Leave applications; cases of absence for **60 or more consecutive days** without permission	15 members	None; the House itself deals with it

- **Memory aid (Four business bodies):** **B**AC, **P**rivate Members, **R**ules, **A**bsence: "**B**rave **P**ilots **R**arely **A**bsent."
- **Shortcut:**
  - **Only-in-Lok-Sabha. Private Members** and **Absence** committees exist only in the Lok Sabha. Chairs: BAC, Rules = presiding officer
  - Private Members = Deputy Speaker

HOUSE-KEEPING AND ADMINISTRATIVE COMMITTEES

SERVICE COMMITTEES

Committee	Job	Strength
General Purposes	Administrative and procedural matters not under any other committee; guidance on management and decorum	Presiding officer chairs ex officio in both Houses; members include Deputy Speaker/Deputy Chairman, panel of chairpersons, chairpersons of all DRSCs, leaders of recognised parties and groups
House	Residential accommodation and amenities for MPs in Delhi: food, medical aid, maintenance of residences and hostels	LS 12, RS 10
Library	Parliament Library: reference material, research reports, legislative documentation	**9**: 6 LS + 3 RS

MY NOTES

Committee	Job	Strength
Joint Committee on Salaries and Allowances of MPs	Constituted under the **Salary, Allowances and Pension of Members of Parliament Act, 1954**; rules on remuneration, allowances, pensions	**15**: 10 LS + 5 RS

- **Memory aid (Four service bodies):** **G**eneral Purposes, **H**ouse, **L**ibrary, **S**alaries: "**G**ood **H**ouses **L**ack **S**ervants."

ALSO IN THE HANDOUT

- This committee keeps the procedural framework of Parliament updated and aligned with evolving legislative needs and democratic practices.
- It plays a key role in strengthening the knowledge and research support for parliamentary debates and legislative analysis.

NUMBERS AT A GLANCE

STRENGTH OF EACH COMMITTEE

Committee	Lok Sabha	Rajya Sabha	Total or note
PAC	15	7	22
Estimates	30	none	30
COPU	15	7	22
DRSC (each)	21	10	31
Petitions	15	10	separate in each House
Privileges	15	10	separate in each House
Ethics	15	10	separate in each House
Government Assurances	15	10	separate in each House
Subordinate Legislation	15	15	one in each House
Papers Laid	15	10	separate in each House
SC/ST Welfare	20	10	30
Empowerment of Women	20	10	30
Offices of Profit	10	5	15
BAC	15	11	separate in each House

MY NOTES

Committee	Lok Sabha	Rajya Sabha	Total or note
Private Members	15	none	LS only
Rules	15	16	separate in each House
Absence of Members	15	none	LS only
House	12	10	separate in each House
Library	6	3	9
Salaries and Allowances	10	5	15
Parliamentary Forum	21	10	31

- **Shortcut: Default pattern.** Most committees: **15 in Lok Sabha, 10 in Rajya Sabha**. Joint ones with 15 total: **10 + 5**. Joint ones with 30 total: **20 + 10**. Exceptions: BAC RS **11**, Rules RS **16**, House LS **12**, Library **9**.

PARLIAMENTARY FORUMS

- The idea came from Lok Sabha Speaker **Somnath Chatterjee** (UPA-1 period).

WHY

- He found Parliament's matters were specialised and technical, and MPs' contributions were ill-informed on technicalities.
- Forums give MPs a platform to interact with **departmental experts and outside domain experts**.
- They sensitise MPs to the latest information so they can raise matters effectively.
- They gather information from government and non-government entities and build an **integrated database** on a topic.

STRUCTURE

- Each forum has **31 members: 21 Lok Sabha + 10 Rajya Sabha**.
- Membership lasts **5 years**, or the member may resign any time.
- Around **eight** forums exist.
- All are presided over by the **Lok Sabha Speaker**, except the Forum on **Population and Public Health**, presided over by the **Rajya Sabha Chairman**.

FORUMS AGAINST COMMITTEES

- **Parliamentary committees:**
  - Statutory sanction

MY NOTES

- Ministers cannot be members
- Legal right to enforce production of records and documents and to summon and question civil servants
- Government must prepare an Action Taken Report on their reports

- **Parliamentary forums:**
  - Created on the Speaker's initiative in UPA-1
  - Ministers can be members
  - No formal powers to enforce production or summon
  - No Action Taken Report required
- **Memory aid (Four differences): S**anction, **M**inisters, **P**owers, **A**ction Taken Report: "**S**ome **M**embers **P**ush **A**head."

> **HANDOUT ALERT**
> Handout alert: The forums list ("Presently there are around eight such forums:") is **blank** in the handout and the Lok Sabha figure is garbled as "2 1". Read it as **21 + 10 = 31**. No forum names are given, so none are added here.

ALSO IN THE HANDOUT

- He found that the matters being brought before the Parliament were specialized and technical in nature and the questions raised by the MPs on these matters, the kind of contribution the MPs were making to Parliamentary debates were totally ill informed and innocent of technicalities. The MPs were not able to understand the complexity of these issues. - Hence, he suggested to come up with Parliamentary Forums as a platform for MPs to call for interaction with experts from concerned departments or domain experts from outside to enhance their knowledge.

ADVANTAGES AND CRITICAL EVALUATION

ADVANTAGES

- 1. **More effective deliberation**: small committees (PAC with 22 members) go deeper than the Houses of **543** and **245**. 2. **Technical and domain expertise**: outside experts can be called. 3. **Stakeholder participation**: citizens, interest groups, industry, civil society can present views. 4. **Inadequate sittings**: Parliament meets about **67 days a year**, committees work all year. 5. **Inter-party consensus**: PR membership and closed-door, non-televised meetings help cross-party agreement.
- **Memory aid (Five advantages): D**eliberation, **E**xperts, **S**takeholders, **I**nadequate sittings, **F**orge consensus: "**D**eep **E**xpert **S**tudies **I**mprove **F**inal laws."

MY NOTES

CRITICAL EVALUATION

- 1. **Inadequate expert assistance**:
  - Most lack regular technical support, unlike PAC with CAG. 2. **Floating membership**: frequent reconstitution blocks continuity. 3. **Members' background ignored**: MPs placed without matching sectoral expertise. 4. **Party lines**: partisan behaviour weakens objectivity. 5. **Declining referrals**: **71%** of Bills went to committees in the **15th Lok Sabha**
  - Only about **16%** were examined in the **17th**
- **Memory aid (Five flaws):** **I**nadequate experts, **F**loating membership, **B**ackground ignored, **M**Ps on party lines, **D**eclining referrals: "**I F**ind **B**ills **M**issing **D**ebate."

> **HANDOUT ALERT**
> Exam trap: The 71% and 16% figures compare **Bills sent to committees** (15th LS) and **Bills examined by committees** (17th LS). Quote the handout wording.

ALSO IN THE HANDOUT

- Provide for technical considerations and domain expertise: Committees can call external experts and specialists to enrich their analysis and reports.
- Floating membership: Frequent reconstitution of committees prevents MPs from building continuity and fully using the experience gained.

CONSULTATIVE COMMITTEES ATTACHED TO MINISTRIES

- Non-statutory advisory bodies, **joint** in nature (both Houses), that give ministers and MPs an **informal forum** on a ministry's policies and programmes. The **Minister or Minister of State** in charge is the chairperson. Discussions are non-partisan and non-binding, supplementing formal oversight such as the DRSCs.

CONSULTATIVE COMMITTEES AT A GLANCE

Feature	Detail
Status	**Non-statutory**, advisory
Constituted by	**Ministry of Parliamentary Affairs**, under Article 118 guidelines; it also arranges meetings in sessions and inter-session
Membership	Voluntary: MPs' willingness and party leaders' nominations
Size	Maximum **30**, minimum **10**
Chair	Minister or Minister of State of the ministry
Tenure	Life of the **Lok Sabha**; reconstituted afresh after each general election; dissolve automatically with the Lok Sabha

MY NOTES

RAILWAY ZONES

- Informal Consultative Committees exist for **all Railway Zones**, made of MPs from constituencies in that zone, to review railway operations, finances and projects. The handout links railways to **Article 77** (executive action of the Government of India).

HISTORY

- **Railway Convention Committee, 1949**:
  - An early post-independence joint committee
  - First set the rate of dividend payable by Railways to General Revenues
  - From **1971** widened to working and financial performance of Railways
- **DRSC system** formally introduced in **1993**, evolving from **1989** experimental committees on Agriculture, Science and Technology, and Environment and Forests.
- Inaugurated on **31 March 1993** by Vice-President and Rajya Sabha Chairman **K.R. Narayanan**: a way to ensure accountability through detailed, constructive scrutiny, to **strengthen** administration, not weaken it.
- **13th Lok Sabha**: 45 members per DRSC (30 Speaker + 15 Chairman). **July 2004**: reduced to **31 (21 + 10)** for focus and efficiency.
- **Memory aid (Consultative facts): M**inister chairs, **T**en to thirty members, **L**ife of the Lok Sabha: "**M**inisters **T**alk **L**ocally."

ALSO IN THE HANDOUT

- Through its deliberations, the committee strengthens participatory democracy by enabling citizens to influence parliamentary oversight on issues that affect them directly.
- By safeguarding parliamentary privileges, the committee ensures that members can perform their duties without fear, obstruction, or undue influence, preserving the independence of the legislature.
- Accordingly, they stand dissolved automatically upon the dissolution of the Lok Sabha and are re-formed after every new House is constituted.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 24, PARLIAMENTARY COMMITTEES; CH 25, INDIAN PARLIAMENTARY GROUP

- A joint committee has members of both Houses. Consultative Committees, though made of MPs, are not parliamentary committees because they fail the four tests (appointment, Speaker's direction, report, secretariat).
- DRSC count in steps: 17 were set up in 1993 and 7 more in 2004, making 24. Three earlier DRSCs of 1989 (Agriculture, Sci-

MY NOTES

ence and Technology, Environment and Forests) were replaced in 1993.

- The 8 Rajya Sabha DRSCs:
  - Commerce
  - Home Affairs
  - Education, Women, Children, Youth and Sports
  - Industry
  - Science and Technology, Environment, Forest and Climate Change
  - Transport, Tourism and Culture
  - Health and Family Welfare
  - Personnel, Public Grievances, Law and Justice. The other 16 are Lok Sabha committees (for example Finance, Defence, External Affairs, Railways)
- DRSC reports on Demands for Grants must not suggest anything of the nature of cut motions. They also consider ministry annual reports and national basic long-term policy documents. Lok Sabha members are nominated by the Speaker and Rajya Sabha members by the Chairman.
- Lakshmikanth says ministries have by and large accepted DRSC recommendations. It judges DRSCs on four yardsticks: holding officials to account, publication of information, effect on the House and public, and influence on government decisions.
- The PAC checks spending for economy, prudence, wisdom and propriety, not just legal slips, to expose waste, loss, corruption, extravagance, inefficiency and nugatory expenses. Until 1966-67 its chairman came from the ruling party.
- In scrutinising appropriation accounts the PAC must be satisfied that the money was legally available for the purpose, that spending followed the governing authority and that every re-appropriation followed the rules. It is not an executive body: only Parliament takes the final decision on its findings.
- Estimates Committee:
  - Described as a 'continuous economy committee'
  - Strength raised from 25 to 30 in 1956
  - It need not examine the entire estimates of one year, and Demands for Grants can be voted even if it has made no report
- Indian Parliamentary Group (IPG):
  - Formed in 1949 as an autonomous body
  - Speaker of Lok Sabha is ex officio President, Deputy Speaker and Rajya Sabha Deputy Chairman are vice-presidents, and the Secretary-General of Lok Sabha is its Secretary-General. All MPs can be members

MY NOTES

- Former MPs can be associate members

- The IPG acts as the National Group of the Inter-Parliamentary Union (IPU) and as the India Branch of the Commonwealth Parliamentary Association (CPA). Only MPs who have been IPG members for six months can join delegations abroad
- The Outstanding Parliamentarian award began in 1995
- IPU had 179 parliaments

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

What four conditions make a body a parliamentary committee?	Appointed or elected by the House or nominated by the Speaker/Chairman; works under the Speaker/Chairman; reports to the House or Speaker/Chairman; supported by a House secretariat.
Name the six families of standing committees.	Financial; Department-related; Inquiry; Scrutiny and control; Day-to-day business; House-keeping (service).
What are the two kinds of ad hoc committees?	Inquiry Committees and Advisory Committees (Select and Joint Committees on Bills).
How many members does the PAC have and who chairs it?	22 (15 LS + 7 RS); chairman appointed by the Speaker, an Opposition member by convention since 1967.
What is the CAG's role with the PAC?	"Guide, friend, and philosopher"; PAC scrutinises CAG audit reports presented under Article 151.
Name the PAC's limitations.	Post-expenditure only; no day-to-day intervention; advisory recommendations; cannot disallow expenditure or issue orders.
Estimates Committee: origin, size, chair?	Roots in 1921 Standing Financial Committee; formed 1950 (John Mathai); 25 then 30, all Lok Sabha; chair usually from the ruling party.
Estimates Committee limitations?	Works after voting; cannot question policy; advisory; few ministries yearly; no CAG help; retrospective.

COPU: year, recommendation, size?	1964, Krishna Menon Committee; 15 members raised to 22 (15 LS + 7 RS) in 1974; one-year term.
What is outside COPU's remit?	Major policy, day-to-day administration, matters under special statutory machinery.
COPU's practical constraints?	10 to 12 undertakings a year; post-mortem; non-expert members; advisory.
When were DRSCs set up and how big are they?	1993 (Lok Sabha Rules Committee), expanded in 2004 to 24; 31 members each (21 LS + 10 RS); one-year tenure.
What does a DRSC do with Demands for Grants?	Examines them in the adjournment after general budget discussion; reports within time with no extension; one report per ministry.
Which Bills do DRSCs examine?	Only introduced Bills, within a fixed time frame.
Who has the right to be on the Committee of Privileges and what is its nature?	15 LS and 10 RS members; semi-judicial; protects dignity of Parliament.
When was the Ethics Committee formed?	Rajya Sabha 1997, Lok Sabha 2000.
Which two scrutiny committees came in 1953?	Government Assurances and Subordinate Legislation.
Strength of SC/ST Welfare and Women committees?	30 each: 20 LS + 10 RS; Women's committee constituted 1997.
BAC strength and chairs?	LS 15 (Speaker chairs); RS 11 (Chairman, i.e. Vice-President).
Who chairs the Committee on Private Members' Bills and Resolutions?	The Deputy Speaker (Lok Sabha only, 15 members).
After how many days of absence does the Absence Committee examine a case?	60 or more consecutive days without permission.
Library Committee strength?	9: 6 Lok Sabha + 3 Rajya Sabha.
Four differences between forums and committees?	Statutory sanction; ministers (not allowed in committees); enforcement powers; Action Taken Report (only for committees).
Who proposed Parliamentary Forums and how big are they?	Speaker Somnath Chatterjee (UPA-1); 31 members (21 + 10); 5-year membership.
What fall in Bills referred to committees did the handout cite?	From 71% (15th Lok Sabha) to about 16% (17th Lok Sabha).

MY NOTES

Who chairs a Consultative Committee and how large is it?	The Minister or Minister of State in charge; 10 to 30 members.
Who constitutes Consultative Committees?	The Ministry of Parliamentary Affairs; tenure is the life of the Lok Sabha.
When and by whom were DRSCs inaugurated?	31 March 1993 by K.R. Narayanan, Vice-President and Rajya Sabha Chairman.
Mains 2018: Why are committees useful for parliamentary work, and what is the role of the Estimates Committee?	Useful for deeper deliberation than 543 and 245 members, expert and stakeholder input, year-round scrutiny given about 67 sitting days, cross-party consensus. Estimates Committee: suggests economies and efficiency, alternative policies, better presentation of estimates; limits: after voting, no policy challenge, advisory, no CAG help.
Mains 2021: Do DRSCs keep administration on its toes?	Yes: 24 committees give ministry-wise year-round scrutiny of Demands for Grants and Bills, with experts, non-partisan debate and a role for the Opposition and Rajya Sabha; limits: advisory, no day-to-day administration, one-year tenure, falling referrals (about 16% in 17th LS).
Mains 2023: Structure of the committee system and the financial committees' help?	Standing and ad hoc; six families; PAC, Estimates and COPU scrutinise spending, estimates and undertakings; limits: post-mortem, advisory, few ministries or undertakings a year, less expertise than the PAC gets from the CAG.

MY NOTES

Mains 2017: Discuss the role of Public Accounts Committee in establishing accountability of the government to the people.	Intro: The PAC (1921, under the Government of India Act 1919) is the main parliamentary check on how public money is spent Body: 22 members (15 LS + 7 RS) elected annually by STV and no ministers; chairman an Opposition member by convention since 1967; scrutinises CAG audit reports on Appropriation Accounts and Finance Accounts under Article 151; checks spending against grants and use for authorised purposes; examines excess expenditure and losses in receipts and stores; CAG acts as guide, friend and philosopher; limits: post-expenditure only and advisory, cannot disallow expenditure. Close: Ashok Chanda called it a powerful force in the control of public expenditure, but its reports only advise.

Trap 1 · Three financial committees look alike

PAC has 22 members including 7 from Rajya Sabha, an Opposition chairman since 1967 and CAG help. Estimates has 30, all from Lok Sabha, a chairman usually from the ruling party and no CAG help. COPU has 22 (15 + 7) and was set up in 1964. *Rule: Estimates = only Lok Sabha; PAC = Opposition chair + CAG; PAC and COPU both 22.*

Trap 2 · 15 and 10 is a habit, not a rule

Petitions, Privileges, Ethics, Government Assurances and Papers Laid have 15 LS and 10 RS. But Subordinate Legislation has 15 in each House, SC/ST Welfare and Women have 30 (20 + 10), Offices of Profit and Salaries are joint with 15 (10 + 5), Business Advisory is 15/11, Rules is 15/16, House is 12/10 and Library is 9 (6 + 3). *Rule: use 15/10 only for the five named committees; learn the exceptions.*

Trap 3 · Lok Sabha-only committees

Private Members' Bills and Resolutions (chaired by the Deputy Speaker) and Absence of Members (60 or more days) exist only in the Lok Sabha. Rajya Sabha's Business Advisory Committee handles private members' business, and the House itself handles absence. *Rule: if the question says 'no Rajya Sabha counterpart', think Private Members and Absence.*

Trap 4 · Ministers: committees versus forums

Ministers cannot be members of committees such as DRSCs and the financial three. They can be members of Parliamentary Forums, and the minister chairs the Consultative Committee of his ministry. *Rule: committees = no ministers; forums and Consultative Committees = ministers allowed.*

MY NOTES

QUICK QUIZ

Q1. How many members does the Public Accounts Committee have?

1. 15
2. 22
3. 30
4. 31

Q2. Which financial committee has members only from the Lok Sabha?

1. Public Accounts Committee
2. Estimates Committee
3. Committee on Public Undertakings
4. Committee on Subordinate Legislation

Q3. Since 1967, by convention the chairman of the PAC is from:

1. The ruling party
2. The Opposition
3. The Rajya Sabha
4. The Cabinet

Q4. How many Department-Related Standing Committees are there, and how many of them function under the Rajya Sabha?

1. 24 and 8
2. 24 and 16
3. 31 and 10
4. 17 and 8

Q5. Each DRSC has 31 members, split as:

1. 15 LS and 16 RS
2. 21 LS and 10 RS
3. 20 LS and 11 RS
4. 30 LS and 15 RS

Q6. The Committee on Public Undertakings was constituted in 1964 on the recommendation of the:

1. Krishna Menon Committee
2. John Mathai Committee
3. Lok Sabha Rules Committee
4. Ashok Chanda Committee

Q7. Which of these exist only in the Lok Sabha?

1. Business Advisory Committee and Rules Committee
2. Private Members' Bills and Resolutions Committee and Committee on Absence of Members
3. Committee on Petitions and Ethics Committee
4. General Purposes Committee and House Committee

Q8. Which committee does NOT have a minister as its chair or member and is semi-judicial in nature?

1. Committee of Privileges
2. Consultative Committee
3. Library Committee
4. Business Advisory Committee

Q9. Which statement about Parliamentary forums is correct?

1. Ministers cannot be members
2. The government must prepare an Action Taken Report on their reports
3. They were created on the Speaker's initiative during UPA-1
4. They can enforce production of documents

Q10. The tenure of a Consultative Committee is the same as that of:

1. One year
2. The Lok Sabha
3. The Rajya Sabha member
4. The Speaker

Q11. Which committee considers whether holding a Central, State or UT office disqualifies a person from Parliament under Article 102(1)(a)?

1. Committee on Papers Laid on the Table
2. Joint Committee on Offices of Profit
3. Committee on Subordinate Legislation
4. Committee on Government Assurances

MY NOTES

Q12. The Committee on Papers Laid on the Table does NOT examine:

1. Papers placed by ministers
2. Notifications and statutory orders
3. Conformity with House rules
4. Statutory requirements

Q13. PYQ 2018: With reference to the Parliament of India, which of the following Parliamentary Committees scrutinizes and reports to the House whether the powers to make regulations, rules, sub-rules, by-laws, etc. conferred by the Constitution or delegated by the Parliament are being properly exercised by the Executive within the scope of such delegation? [UPSC CSE – 2018 Prelims]

1. Committee on Government Assurances
2. Committee on Subordinate Legislation
3. Rules Committee
4. Business Advisory Committee

Q14. PYQ 2017: Out of the following statements, choose the one that brings out the principle underlying the Cabinet form of Government: [UPSC CSE – 2017 Prelims]

1. An arrangement for minimizing the criticism against the Government whose responsibilities are complex and hard to carry out to the satisfaction of all.
2. A mechanism for speeding up the activities of the Government whose responsibilities are increasing day by day.
3. A mechanism of parliamentary democracy for ensuring collective responsibility of the Government to the people.
4. A device for strengthening the hands of the head of the Government whose hold over the people is in a state of decline.

Q15. PYQ 2014: Which of the following committees is the largest Committee of the Parliament? [UPSC CSE – 2014 Prelims]

1. The Committee on Public Accounts
2. The Committee on Estimates
3. The Committee on Public Undertakings
4. The Committee on Petitions

Q16. PYQ 2013: Consider the following statements: The Parliamentary Committee on Public Accounts

1. consists of not more than 25 Members of the Lok Sabha
2. scrutinizes appropriation and finance accounts of the Government
3. examines the report of the Comptroller and Auditor General of India

Which of the statements given above is/are correct? [UPSC CSE – 2013 Prelims]

1. 1 only
2. 2 and 3 only
3. 3 only
4. 1, 2 and 3

Answers: Q1 b, Q2 b, Q3 b, Q4 a, Q5 b, Q6 a, Q7 b, Q8 a, Q9 c, Q10 b, Q11 b, Q12 b, Q13 b, Q14 c, Q15 b, Q16 b

MY NOTES

CHAPTER 17 · HANDOUT PAGES ON THE STATE LEGISLATURE (ARTS. 168-212)

17 State Legislature

MEDIUM PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **2015, 2018, 2019, 2021, 2025**

MY NOTES

EXAM LENS

Prelims hooks

- 2015 Council size and Chairman
- 2018 Speaker vacating
- 2019 Governor's address
- further hooks: Assembly and Council minimums, five categories of Council members, 60-day absence, Rs 500 penalty, quorum, six-month rule, Art. 169, Art. 199 and 200.
- Handout stresses: Six Prelims PYQs (2015, 2018, 2019, 2021 twice, 2025) and one Mains block of four questions (2001, 2021, 2023, 2023) quoted (PYQ section)
- Handout stresses: 2015: the Council cannot exceed one-third of the Assembly (so not larger than half), and its Chairman is elected by its members, not nominated by the Governor: both statements false (Council and presiding officers)
- Handout stresses: 2018: the Speaker vacates office on ceasing to be a member; the handout does not say the Speaker vacates immediately on dissolution (Speaker section)
- Handout stresses: 2019: the Governor's customary address at the first session of the year is correct; the second statement (State follows Lok Sabha rule where it has none) is not covered in the notes, but the handout's answer is (c) both correct (Governor and Houses)
- Handout stresses: Money Bill, ordinary Bill, Governor's four options and Council's three-plus-one-month delay are stressed again and again (Bills sections)

Mains hooks

- 2001 why the Centre is said to have an absolute veto over State legislation (Governor's reservation of Bills)
- 2021 how Councils are established and their working
- 2023 role of Presiding Officers in order, impartiality and democratic practice
- 2023 reduced use of Article 356 (the notes mention Art. 356 only in the context of dissolution).

MY NOTES

The Assembly is the dominant House of the State: directly elected, supreme on money, able to overrule the Council, and the only House to which the ministry answers.

IN SIMPLE WORDS

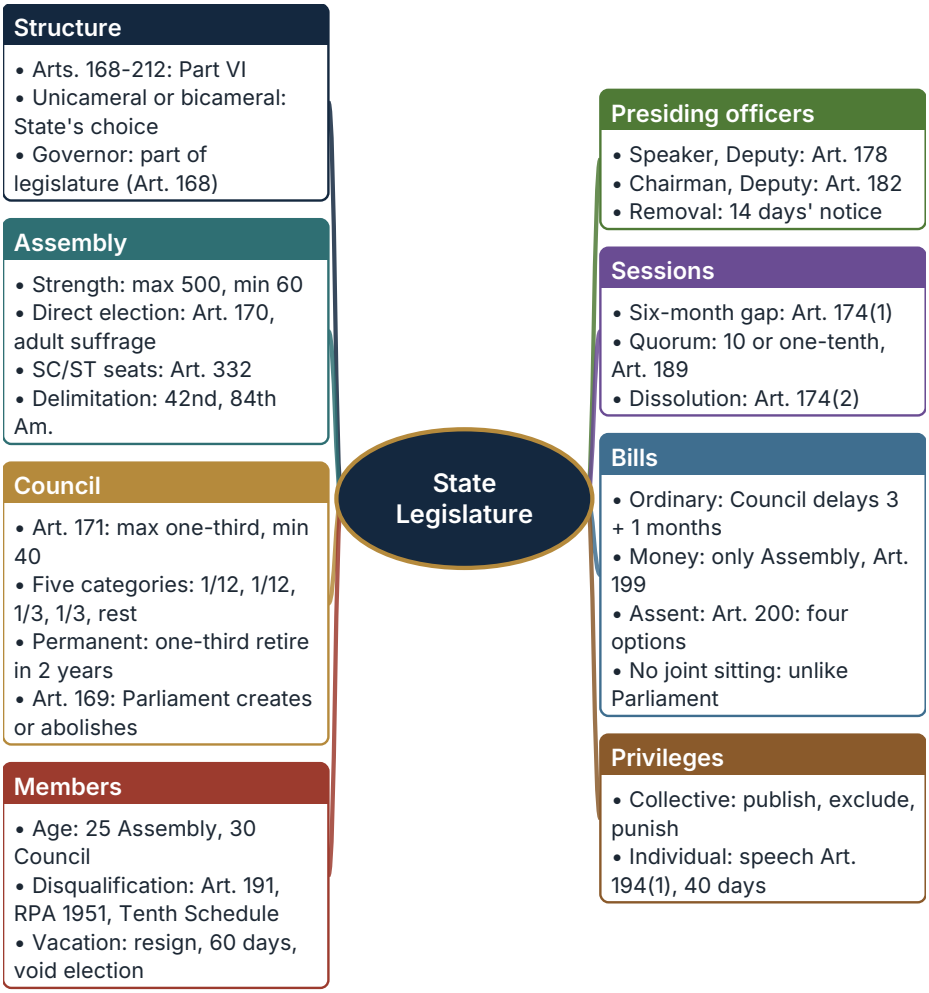
- The **State Legislature** (**Arts. 168-212**, Part VI) makes laws on the **State List and Concurrent List**. Most states have only the **Assembly** (unicameral)
- A few also have a **Council** (bicameral). The **Governor** is part of the legislature
- **Vidhan Sabha**: directly elected, **500 maximum and 60 minimum** seats (30 in Arunachal, Sikkim, Goa; 40 Mizoram; 46 Nagaland), **5-year** term, dissolved early by the Governor. **Vidhan Parishad**: at most **one-third** of the Assembly and at least **40**, **permanent**, one-third retire every **2 years**, so a member serves 6 years.
- A member must be an Indian citizen aged **25** (Assembly) or **30** (Council) and take the oath. Disqualified for an office of profit, unsound mind, insolvency, loss of citizenship, a Parliament law, or **defection** (Tenth Schedule; Speaker or Chairman decides).
- Presiding officers: **Speaker and Deputy Speaker** (Art. 178), **Chairman and Deputy Chairman** (Art. 182). Only the **Speaker** decides whether a Bill is a Money Bill. The Governor summons (no gap above **6 months**), prorogues and dissolves the Assembly.
- **Ordinary Bills**:
  - The Council can delay only **4 months** (3 + 1), there is **no joint sitting** and the Assembly prevails. **Money Bills** start only in the Assembly on the Governor's recommendation
  - The Council returns them within **14 days** and cannot amend or reject. The Governor can **assent, withhold, return or reserve** (not return a Money Bill)
- Members have civil-arrest immunity **40 days** before and after a session and free speech under **Art. 194(1)**. Parliament can create or abolish a Council under **Art. 169** on the Assembly's resolution, and the Council is far weaker than the Rajya Sabha.

Key term	In plain words
Unicameral / Bicameral	One House (Assembly) or two Houses (Assembly + Council)
Continuing chamber	The Council is never dissolved; one-third of its members retire every 2 years

MY NOTES

Key term	In plain words
Prorogation	Formally ends a session (Governor notifies); different from adjournment (a pause) and dissolution (ends the Assembly's life)
Dissolution	Ends the life of the Assembly, at the 5-year mark or earlier by the Governor; the Council cannot be dissolved
Quorum	Minimum present to do business: 10 members or one-tenth of the House, whichever is higher (Art. 189)
Casting vote	The presiding officer votes only to break a tie
Suspensive veto	If the Governor returns a Bill and it is passed again, he must give assent
Money Bill	Financial Bill that can start only in the Assembly, on the Governor's recommendation, moved by a minister

MEMORY MAP: STATE LEGISLATURE



MY NOTES

MNEMONIC · STATES WITH A LEGISLATIVE COUNCIL

Any Bicameral King Must Tolerate Upper-houses

- **A** Andhra Pradesh (58)
- **B** Bihar (75)
- **K** Karnataka (75)
- **M** Maharashtra (78)
- **T** Telangana (40)
- **U** Uttar Pradesh (100)

A bicameral state must tolerate an upper house: the six Councils in alphabetical order, with their seats from the handout's table. Order is free here: no clean word exists, so this sentence is the memory aid. (Memory aid, not from the handout.)

MNEMONIC · THE COUNCIL'S FOUR OPTIONS ON AN ASSEMBLY BILL

P A R T

- **P** Pass the Bill without amendments
- **A** Amend and return it to the Assembly
- **R** Reject the Bill outright
- **T** Take no action: keep it pending

The Council plays only a PART in law-making: in the last three cases the Assembly can pass the Bill again and the Council can delay at most 3 + 1 months. The order is rearranged for memory (the options are unordered). (Memory aid, not from the handout.)

MNEMONIC · BILLS ON DISSOLUTION OF THE ASSEMBLY

Assembly Perishes, Council Gets Reprieve

- **A** Assembly-pending Bills lapse
- **P** Passed by Assembly but pending in Council: lapses
- **C** Council-pending Bills not yet passed by the Assembly: do not lapse
- **G** Governor or President assent pending or given: valid, no lapse
- **R** Returned by the President for reconsideration: no lapse

When the Assembly dies, its Bills perish (first two); the Council is given a reprieve for the rest (last three). Order is free here: no clean word exists, so this sentence is the memory aid. (Memory aid, not from the handout.)

MNEMONIC · WHO ELECTS THE LEGISLATIVE COUNCIL

A N G L E

- **A** Assembly members (nearly 1/3)
- **N** Nominated by the Governor (the remainder)
- **G** Graduates (1/12)
- **L** Local authorities (nearly 1/3)
- **E** Educators: teachers (1/12)

The Council is the house of revision that gives a second ANGLE on the Assembly's laws. The order is rearranged for memory (the five groups are unordered). (Memory aid, not from the handout.)

MY NOTES

STRUCTURE AND ORGANISATION

- The State Legislature is the law-making authority of the State for subjects in the **State List and Concurrent List** of the Seventh Schedule, much like Parliament at the Union level but adapted to State needs. Its provisions are in **Articles 168 to 212, Part VI**.
- Some States have **one chamber (unicameral)**, a few have **two (bicameral)**: the choice is left flexible for local considerations of representation, cost and governance.

UNICAMERAL AGAINST BICAMERAL

- **Unicameral:**
  - Legislative Assembly only
  - A passed Bill goes directly to the Governor for assent
- **Bicameral:**
  - Legislative Assembly (Vidhan Sabha) plus Legislative Council (Vidhan Parishad)
  - A Bill also goes to the second House

ALSO IN THE HANDOUT

- This mechanism safeguards against hasty or unrepresentative decision-making and maintains the credibility of legislative proceedings.
- ## Legislative Procedure in the State Legislature The legislative procedure in a state legislature refers to the systematic process by which laws are proposed, debated, amended, and enacted. The Constitution of India provides a structured mechanism to ensure that law-making is orderly, transparent, and representative. The procedure differs slightly between unicameral and bicameral legislatures, particularly with regard to the role of the Legislative Council, where present.
- ## Comparative Analysis of Legislative Procedures: Parliament vs State Legislature Understanding the legislative procedures at both the Union and State levels is crucial for grasping the federal structure and law-making in India. While the Constitution provides broadly similar mechanisms, there are important distinctions in the powers, processes, and checks between Parliament and state legislatures, especially in bicameral states.
- This establishes the Assembly's dominant role in state law-making.

GOVERNOR AND THE TWO HOUSES

- The Governor is an **integral part** of the State Legislature (**Art. 168**), though in practice the Governor acts on the aid and advice of the Council of Ministers headed by the Chief Minister.

MY NOTES

GOVERNOR'S FUNCTIONS IN LEGISLATIVE BUSINESS

Function	Article and detail
Summon and prorogue the Houses	Art. 174
Dissolve the Legislative Assembly	Art. 174(2)(b)
Address the Legislature	Art. 176: at the first session after each general election and at the commencement of each year
Assent to Bills	Gives assent, withholds, returns for reconsideration (Art. 200)

THE COUNCIL AGAINST THE ASSEMBLY IN A BICAMERAL STATE

- **Money**: the Assembly is supreme. A Money Bill originates only in the Assembly and the Council has only recommendatory powers: it cannot reject or amend it.
- **Ordinary Bills**:
  - Assembly primacy (Art. 197). The Council can only delay: **three months** in the first instance and **one month** if the Bill is returned again
  - After that the Bill is deemed passed by both Houses
- **Accountability**:
  - The Council cannot remove the Council of Ministers by a no-confidence motion
  - The executive is collectively responsible to the Assembly alone
- **Memory aid (Governor's links): S**ummon and prorogue, **A**ddress, **D**issolve (Assembly only): "**S**omeone **A**lways **D**irects."

ALSO IN THE HANDOUT

- Adjournments ensure that business is managed efficiently while preventing disruption due to lack of quorum or procedural issues.
- However, the Council has restricted powers.

THE LEGISLATIVE ASSEMBLY (VIDHAN SABHA)

- The Assembly is the main law-making body, directly elected by universal adult franchise from territorial constituencies (**Art. 170**, with suffrage under **Art. 326**). Each constituency elects **one member**, with an approximately uniform population-to-seat ratio.

STRENGTH OF AN ASSEMBLY

Point	Rule
Maximum	**500**
Minimum	**60**
Arunachal Pradesh, Sikkim, Goa	Minimum **30**

MY NOTES

Point	Rule
Mizoram	Minimum **40**
Nagaland	Minimum **46**
Sikkim and Nagaland	Some members also elected **indirectly**

- Strength varies with population and limits set by Parliament. Smaller States and UTs (the handout names **Goa, Mizoram, Puducherry**) have smaller Assemblies for efficiency.

> **HANDOUT ALERT**
> Handout alert: The handout text gives minimums of **30 (Arunachal, Sikkim, Goa), 40 (Mizoram), 46 (Nagaland)**, but its seat table shows **Arunachal 60, Goa 40, Sikkim 32, Mizoram 40, Nagaland 60**. For **legal minimums** quote the rule (60 generally, with the exceptions above). For **actual seats** use the table in Section 15.

DELIMITATION AND READJUSTMENT

- Governed by **Arts. 170(3) and 327**, carried out by **Delimitation Commissions** set up by Parliament.
- **42nd Amendment (1976)** froze the inter-State allocation of seats so States controlling population growth are not penalised.
- **84th Amendment (2001)** extended the freeze until the **first census after 2026**, while allowing internal rationalisation within States.

RESERVED SEATS AND ANGLO-INDIAN NOMINATION

- **Art. 332**: seats reserved for **SCs and STs** in proportion to their population in the State. Only SC/ST candidates contest, but all eligible voters take part. Reservation was meant to be temporary and has been extended by several amendments.
- **Art. 333**:
  - The Governor could nominate one **Anglo-Indian** member
  - **abolished by the 104th Amendment Act, 2019**, effective **January 2020**
- **Memory aid (Assembly numbers):** **M**ax 500, **M**in 60, **S**mall exceptions 30, 40, 46: "**M**ore **M**embers, **S**ome smaller."

ALSO IN THE HANDOUT

- These differences underline the stronger political role of the directly elected Assembly in representing popular will and controlling the state executive.
- Delimitation and Readjustment of Seats To ensure fair representation, the Constitution mandates periodic readjustment of constituencies based on census data.

MY NOTES

- This mechanism ensures balance between demographic representation and population policy goals, allowing uniformity without discouraging population control efforts. Reservation of Seats for Scheduled Castes and Scheduled Tribes The Indian Constitution upholds the principle of social justice and inclusivity by reserving seats for Scheduled Castes (SCs) and Scheduled Tribes (STs) in State Legislative Assemblies.
- Originally intended as a temporary measure, this reservation has been extended through multiple constitutional amendments to ensure continued political representation for marginalized communities.

THE LEGISLATIVE COUNCIL (VIDHAN PARISHAD)

- The Council is the upper chamber, a house of **revision and review** (Art. 171, mixed method of representation).
- Strength: **not more than one-third** of the Assembly and **not less than 40**.

COMPOSITION OF THE COUNCIL

Constituency	Share elected
Graduates	One-twelfth (1/12)
Teachers	One-twelfth (1/12)
Local authorities	Nearly one-third (1/3)
Assembly members	Nearly one-third (1/3)
Nominated by the Governor	Remaining

- **Memory aid (Five groups):** **G**raduates, **T**eachers, **L**ocal authorities, **A**ssembly members, **N**ominated: "**G**ood **T**eachers **L**ead **A**ll **N**ations."

NATURE

- A **continuing body**:
  - It cannot be dissolved
  - **one-third retire every two years**
- Primarily deliberative: reviews, suggests, refines. It can delay non-Money Bills for a maximum of **four months**.

WHO HAS A COUNCIL AND WHO ABOLISHED IT

- The handout says **Punjab and West Bengal abolished** theirs, while **Maharashtra, Bihar, Karnataka, Andhra Pradesh, Telangana** keep theirs.
- **Art. 169**: **Parliament** creates or abolishes a Council on a **State Assembly resolution**.

MY NOTES

ARGUMENTS ABOUT COUNCILS

- **In favour:**
  - Bring expertise
  - A forum for specialists
  - Revising chamber that improves quality
- **Against:**
  - Financial cost
  - Delays in lawmaking
  - Limited democratic legitimacy as many members are indirectly elected or nominated

> **HANDOUT ALERT**
> Handout alert: The handout's text names five States with Councils but its strength table also shows **Uttar Pradesh (100 seats)** with a Council. Use the table: **six Councils** (AP 58, Bihar 75, Karnataka 75, Maharashtra 78, Telangana 40, UP 100). Gujarat's Council cell is blank in the handout.

ALSO IN THE HANDOUT

- The members are chosen from five distinct categories: Composition of a Legislative Council Constituency Number of Members to be elected Graduates One-Twelfth (1/12th)
- Nomination by Governor Remaining This mixed system ensures that functional, educational, and professional groups gain representation in state law-making, providing depth and specialized insight.
- This ensures that the Council retains experienced legislators, contributing to stability and quality of legislative deliberation.
- The presence of quorum is crucial because it ensures that legislative decisions are taken with adequate representation and legitimacy.
- This ensures swift enactment of financial legislation while maintaining constitutional checks.

DURATION OF THE TWO HOUSES

ASSEMBLY AGAINST COUNCIL

- **Legislative Assembly:**
  - Not a continuing House
  - **five-year** term from the first meeting after the general election (**Art. 172(1)**)
  - Can be dissolved early
- **Legislative Council:**
  - Permanent, not subject to dissolution (**Art. 171(2)** as cited)
  - **one-third retire every two years**
  - **six-year** term for each member

MY NOTES

ASSEMBLY

- **Automatic dissolution** after five years. Example in the handout: first meeting 1 March 2020 means the term would normally expire on **28 February 2025**.
- **Early dissolution** by the Governor under **Art. 174(2)(b)**, normally on the Council of Ministers' advice, except in exceptional cases such as breakdown of constitutional machinery (**Art. 356**).
- **National Emergency (Art. 352)**: Parliament may by law extend the term by **one year at a time**, but not beyond **six months after the Emergency ends**. The 1975-77 Emergency is the handout's example.
- After the Emergency ends, the Assembly must be **re-elected within six months**.

COUNCIL

- Vacancies filled by elections and Governor's nominations. Example: in a Council of **90**, **30** retire every two years.
- Retiring members can be re-elected or re-nominated **any number of times**.
- Continuity gives institutional memory and policy consistency while the Assembly is dissolved.

LIFE OF AN ASSEMBLY

- **First meeting after elections**: Clock of five years starts (Art. 172(1))
- **Five years end**: Automatic dissolution
- **Or Governor dissolves**: Art. 174(2)(b), usually on advice
- **Emergency**: Extension one year at a time, at most six months past the end of the Emergency
- **Memory aid (Why tenure matters): D**emocratic accountability, **C**ontinuity (Council), **B**alanced governance, **E**mergency flexibility: "**D**on't **C**ancel **B**asic **E**lections."
- **Key Articles:** Art. **171(2), 172, 174(2)(b), 352** govern duration and continuity.

ALSO IN THE HANDOUT

- This structure allows for stability in legislative functioning and preserves institutional memory.
- The Constitution provides distinct rules regarding the tenure and continuity of these two houses to maintain a balance between democratic renewal and institutional stability.
- Similar to the Lok Sabha, it is not a continuing chamber, meaning that it ceases to exist either upon the completion of its five-year term or through early dissolution.

MY NOTES

- Early dissolution allows for fresh elections when the ruling government loses majority support or political stability is disrupted.
- This provision ensures continuity of governance during crises, while also safeguarding timely restoration of democratic processes once normalcy returns.
- Each member thus serves a six-year term, providing a balance between legislative experience and regular infusion of fresh members.
- Democratic Accountability: Regular elections ensure governments are answerable to the electorate.
- Legislative Continuity: The Council maintains stability and experience in law-making.
- These roles are critical for maintaining legislative discipline and upholding the constitutional framework.
- Such a mechanism applies regardless of which House originated the bill.

MEMBERSHIP: QUALIFICATIONS AND DISQUALIFICATIONS

QUALIFICATIONS

- **Citizen of India** (**Art. 173(1)**)
- Takes an oath or affirmation before a person authorised by the **Election Commission**: bear true faith and allegiance to the Constitution and uphold the sovereignty and integrity of India
- **Age**: **25** for the Assembly, **30** for the Council.
- Under the **Representation of the People Act, 1951**:
  - Assembly candidate must be an **elector** in any Assembly constituency of the State
  - Council candidate likewise an elector, and a Governor's nominee must **reside in the State**
  - Reserved-seat candidates must be **SC or ST** but may also contest general seats

DISQUALIFICATIONS UNDER THE CONSTITUTION (ART. 191)

- Holds an **office of profit** under the Union or State Government (except a minister's office or others exempted by the State Legislature).
- **Unsound mind**, declared by a competent court.
- **Undischarged insolvent**.
- Not a citizen, voluntarily acquired **foreign citizenship**, or owes allegiance to a foreign State.
- Disqualified under a law made by **Parliament**.

MY NOTES

DISQUALIFICATIONS UNDER THE RPA, 1951

- 1. Conviction for certain election offences or corrupt practices. 2. Conviction for any offence with imprisonment of **two years or more** (not preventive detention). 3. Failure to file election expense accounts in time. 4. Interests in government contracts, works or services. 5. Director, managing agent or office-holder in a corporation with **25% or more** government share. 6. Dismissal from government service for corruption or disloyalty. 7. Conviction for promoting enmity between groups or for bribery. 8. Punishment for practising or preaching social crimes like untouchability, dowry or sati.
- **Who decides:** The **Governor** decides whether a member has become disqualified, but must first seek the **Election Commission's opinion** (Art. 192 per the Articles table).

DEFECTION (TENTH SCHEDULE)

- Disqualified if the member defects from the party on whose ticket elected.
- **Assembly: Speaker decides. Council: Chairman decides.**
- The **Supreme Court (1992 ruling)** held such decisions subject to **judicial review**.

TWO DECIDERS

- **Ordinary disqualification:** Governor decides, after the Election Commission's opinion
- **Defection:**
  - Speaker (Assembly) or Chairman (Council)
  - Open to judicial review
- **Memory aid (Constitutional disqualifications): O**ffice of profit, **U**nsound mind, **I**nsolvent, **C**itizenship lost, **P**arliament's law: "**O**ur **U**nruly **I**ndia **C**an't **P**ass."

ALSO IN THE HANDOUT

- The trade-off between inclusivity and efficiency has led to varying practices.
- This system mandates that the government return to the electorate at fixed intervals to seek a renewed mandate.
- This stability facilitates deliberate law-making and oversight, complementing the Assembly's role in representing the people's mandate.
- Reserved Seats:
  - Candidates for reserved seats must belong to Scheduled Castes or Scheduled Tribes
  - However, they may also contest general seats

MY NOTES

- Disqualifications for Membership The Constitution and statutory laws ensure that certain categories of individuals are prevented from becoming members of the State Legislature to maintain ethical and legal standards.
- Powers and Responsibilities of the Speaker The Speaker's role encompasses administrative, procedural, and judicial responsibilities, making the office pivotal for legislative governance.

OATH AND VACATION OF SEATS

OATH OR AFFIRMATION

- Taken before the **Governor or a person authorised by the Governor** (**Art. 188**).
- Pledge: true faith and allegiance to the Constitution, uphold sovereignty and integrity of India, **faithfully discharge duties**.
- Until the oath is taken a member **cannot vote or take part** in proceedings, and privileges and immunities are not granted.
- **Penalty of Rs 500 per day** (Art. 193 per the Articles table) for sitting or voting without the oath, or acting while knowing one is disqualified or prohibited by a law of Parliament or the State Legislature.
- Salaries and allowances are fixed periodically by the State Legislature.

VACATION OF SEATS

HOW A SEAT FALLS VACANT

Ground	Rule
Dual membership	No one can sit in both Houses; if elected to both, one seat falls vacant under State law
Disqualification	Vacates on becoming disqualified under the Constitution, the RPA 1951 or the Tenth Schedule
Resignation	In writing to the **Speaker** (Assembly) or **Chairman** (Council); vacated when **accepted**
Absence	Absent from all sittings for **60 consecutive days** without permission: the House can declare the seat vacant
Other	Election declared void by a court; **expelled** by the House; elected **President or Vice-President**; appointed **Governor** of a State

- **Memory aid (Vacation of seats):** **D**ual membership, **D**isqualification, **R**esignation, **A**bsence (60 days), **O**ther grounds: "**D**ogs **D**on't **R**emain **A**bsent **O**ften."

MY NOTES

ALSO IN THE HANDOUT

- Two essential aspects in this regard are the oath or affirmation of members and the circumstances under which a seat in the legislature becomes vacant.
- The position ensures continuity in leadership and smooth functioning of the Council in the absence or vacancy of the Chairman.

PRESIDING OFFICERS

- The Assembly has a **Speaker and Deputy Speaker** with a **panel of chairpersons**
- The Council has a **Chairman and Deputy Chairman** with a **panel of vice-chairmen**

FOUR OFFICES SIDE BY SIDE

Point	Speaker	Deputy Speaker	Chairman (Council)	Deputy Chairman
Elected by	Assembly members from among themselves (**Art. 178**)	Assembly members, after the Speaker	Council members from among themselves (**Art. 182**)	Council members (Art. 182)
Resigns to	**Deputy Speaker**	**Speaker**	**Deputy Chairman**	**Chairman**
Removal	Resolution by **majority of all members, 14 days' notice**	Same	Same	Same
Also vacates on	Ceasing to be a member	Ceasing to be a member	Ceasing to be a member	Ceasing to be a member

- **Shortcut: Resign-to-the-other.** Each officer resigns in writing to the **other half of the pair**: Speaker to Deputy Speaker, Deputy to Speaker, Chairman to Deputy Chairman, Deputy Chairman to Chairman.

SPEAKER'S POWERS

- 1. **Order and decorum**:
  - Regulates debate, authority final and binding. 2. **Interprets** the Constitution, the Assembly's rules and precedents **within the House**. 3. **Adjourns or suspends** in the absence of a quorum. 4. **Casting vote** only in a tie
  - Otherwise does not vote. 5. **Secret sittings** on the Leader of the House's request. 6. **Money Bill decision is final** (Art. 110 as the handout cites, and Art. 199 later). 7. **Disqualification** cases under the Tenth Schedule. 8. **Committees**: appoints chairpersons and supervises

MY NOTES

- Chairs the **Business Advisory, Rules and General Purposes** committees

DEPUTY SPEAKER AND PANEL

- Acts as presiding officer when the Speaker is absent or the office is vacant, with **all the Speaker's powers**, including committee management when required.
- The **Speaker nominates** a **panel of chairpersons**
- Any member of the panel presides when both Speaker and Deputy are absent, with the Speaker's powers, until a new panel is nominated

CHAIRMAN AND DEPUTY CHAIRMAN OF THE COUNCIL

- Chairman's powers resemble the Speaker's: conducts proceedings, interprets Council rules, appoints committee chairpersons.
- **Unlike the Speaker, the Chairman cannot decide whether a Bill is a Money Bill.**
- The **Deputy Chairman** acts as Chairman when the post is vacant and presides in the Chairman's absence.
- The **Chairman nominates** a **panel of vice-chairmen** to preside in the absence of both.
- Salaries and allowances of the Speaker, Deputy Speaker, Chairman and Deputy Chairman are fixed by the State Legislature and are **charged on the State's Consolidated Fund**, so are not voted annually.
- **Memory aid (Speaker's eight):** **O**rder, **I**nterpretation, **A**djournment, **V**oting (casting), **S**ecret sittings, **M**oney Bill decision, **D**isqualification, **C**ommittees: "**O**ur **I**ntelligent **A**ssembly **V**alues **S**ilent **M**ajor **D**ebates **C**losely."

> **HANDOUT ALERT**
> Handout alert: In one place the handout says removal needs a **special majority**; in the presiding-officer sections it says a **resolution passed by a majority of all members** after **14 days' notice**. Use the latter (effective majority).

ALSO IN THE HANDOUT

- ## Presiding Officers of the State Legislature The State Legislature operates under a structured hierarchy of presiding officers who ensure smooth functioning, adherence to rules, and maintenance of decorum.
- By regulating debates, ensuring adherence to rules, and supervising committees, presiding officers maintain transparency, prevent arbitrary decisions, and strengthen the accountability of legis-

MY NOTES

lators. Their independent authority, particularly in interpreting the Constitution and managing disqualification cases, safeguards the legislature from partisan influence and ensures fair and orderly governance.

- A 14-day advance notice must precede such a resolution, ensuring due procedure.
- A 14-day prior notice is mandatory before moving such a resolution.

SESSIONS OF THE STATE LEGISLATURE

SESSIONS AT A GLANCE

Topic	Rule
Summoning	By the **Governor**, Art. 174(1); no more than **six months** between two sessions, so at least **two sessions a year**
Adjournment	Temporary suspension of a sitting for hours, days or weeks; session continues
Adjournment sine die	Indefinite suspension with no next date; done by the **Speaker** or **Chairman**
Prorogation	Formal **end of a session**; the presiding officer adjourns sine die and the **Governor notifies prorogation**; the Governor may also prorogue during a session
Dissolution	Assembly only (Art. 174(2)): at five years or earlier by the Governor; ends the House's life
Quorum	**Ten members or one-tenth** of the House, whichever is **higher** (Art. 189); the presiding officer must adjourn or suspend if quorum fails
Voting	Simple majority of members present and voting; presiding officer votes only to break a tie (**casting vote**)
Language	State's official language(s), Hindi or English; the presiding officer may allow the **mother tongue**; States decide on English after the first 15 years (1965)
Ministers and Advocate General	May take part in either House or its committees even if not members, **without voting**; a non-member can remain a minister for up to **six months** (Art. 164(4))

ADJOURNMENT AGAINST PROROGATION

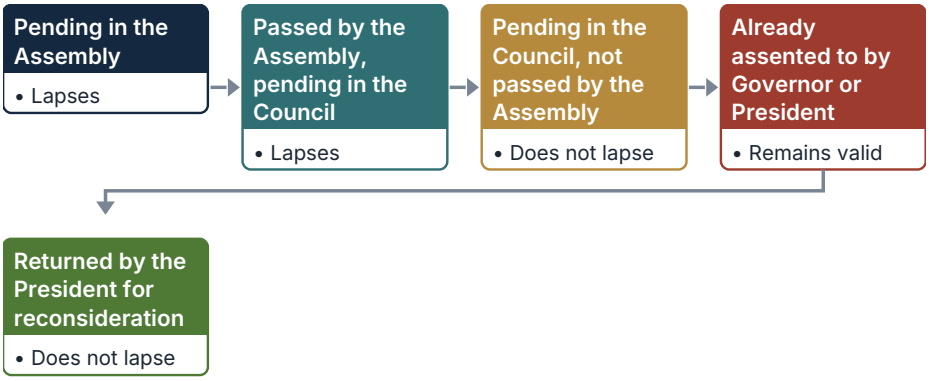
- **Adjournment:**
  - Temporary break
  - Same session continues
  - Presiding officer's act
- **Prorogation:**
  - Ends the session
  - Governor's notification
  - Calendar resets till next summons

MY NOTES

EFFECT OF DISSOLUTION ON BILLS

- **Pending in the Assembly**: **Lapses**
- **Passed by the Assembly, pending in the Council**: **Lapses**
- **Pending in the Council, not passed by the Assembly**: **Does not lapse**
- **Already assented to by Governor or President**: Remains valid
- **Returned by the President for reconsideration**: Does not lapse

EFFECT OF DISSOLUTION ON BILLS



- **Memory aid (Session words):** **S**ummon, **A**djourn, **P**rorogue, **D**issolve: "**S**ome **A**ssemblies **P**ause, **D**ie."

ALSO IN THE HANDOUT

- A key mandate is that no more than six months should elapse between two consecutive sessions, ensuring that the legislature meets at least twice a year.
- Summoning ensures that the executive remains accountable to the legislature, and citizens' representatives can perform their law-making and oversight duties.
- This system balances majority rule with procedural fairness and ensures that key decisions reflect broad consensus rather than narrow interests.

ORDINARY BILLS

- An ordinary Bill is neither a Money Bill nor a Constitution Amendment Bill. It can start in **either House** (or the Assembly in a unicameral State) and can be moved by a **minister or private member**.

PASSAGE IN THE FIRST HOUSE

- **First Reading**: Introduction, no discussion
- **Second Reading**: Clause-by-clause detailed debate
- **Third Reading**: Final discussion and vote on the whole Bill
- **Sent to the second House**: In a unicameral State, straight to the Governor

MY NOTES

COUNCIL'S FOUR OPTIONS ON AN ASSEMBLY BILL

- 1. Pass without amendments. 2. Pass with amendments and return it. 3. Reject outright. 4. Take no action and keep it pending.
- If passed without amendment, or the Assembly accepts the amendments, the Bill is sent to the Governor.
- If the Council **rejects it, suggests unacceptable amendments, or does not act within three months**, the Assembly may pass it **again**. If the Council again rejects or delays (within **one month**), it is **deemed passed by both Houses** in the Assembly's form.
- **Delay power:** The Council can delay for at most **four months** (three plus one). There is **no joint sitting** in a State. A Bill that **starts in the Council** and is rejected by the Assembly **lapses**.

GOVERNOR'S ASSENT (ART. 200): FOUR OPTIONS

- **Memory aid (Governor's four): A**ssent, **W**ithhold, **R**eturn, **R**eserve for the President: "**A**lways **W**eigh **R**ules **R**igorously."
- If returned and passed again by the House(s) with or without amendments, the Governor **must** give assent: a **suspensive veto**, not absolute.

PRESIDENT ON RESERVED BILLS (ART. 201)

- May **give assent**, **withhold assent**, or **return** the Bill for reconsideration.
- After return the House(s) must pass it again within **six months**, then it goes back to the President.
- The Constitution does not clearly say whether the President **must** assent after reconsideration.
- **Memory aid (President's three): A**ssent, **W**ithhold, **R**eturn: "**A**ll **W**ill **R**eturn."

ALSO IN THE HANDOUT

- The passage of a bill in the originating House occurs in three stages: 1.
- The Constitution does not explicitly mandate whether the President is obliged to give assent in such cases, leaving some discretion in the matter.
- Assent and Presidential/Gubernatorial Oversight: After passage, the bill is presented to the President at the Centre or the Governor in states.

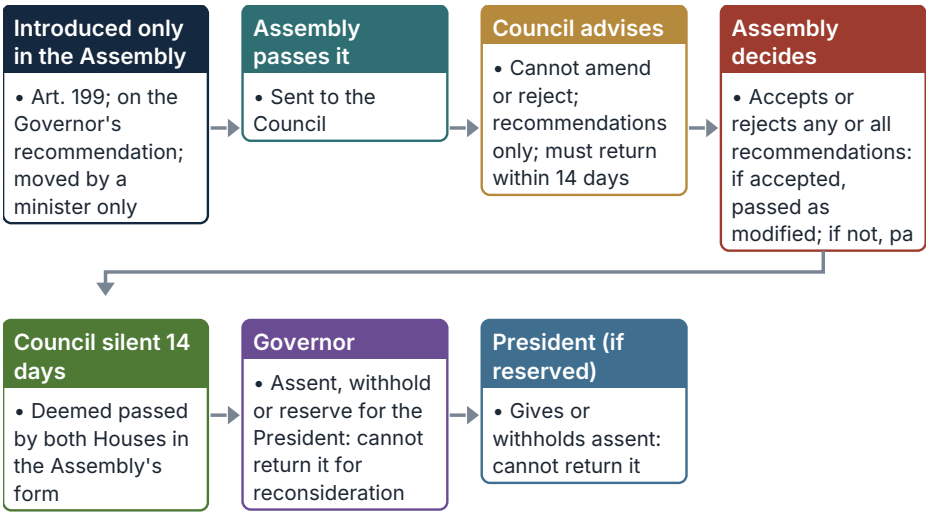
MY NOTES

MONEY BILLS

MONEY BILL IN A STATE

- **Introduced only in the Assembly**:
  - Art. 199
  - On the **Governor's recommendation**
  - Moved by a **minister** only
- **Assembly passes it**: Sent to the Council
- **Council advises**:
  - Cannot amend or reject
  - **recommendations only**
  - Must return within **14 days**
- **Assembly decides**:
  - Accepts or rejects any or all recommendations: if accepted, passed as modified
  - If not, passed in the **original form**
- **Council silent 14 days**: Deemed passed by both Houses in the Assembly's form
- **Governor**: **Assent, withhold or reserve** for the President: **cannot return it** for reconsideration
- **President (if reserved)**: Gives or withholds assent: **cannot return it**

MONEY BILL IN A STATE



HANDOUT ALERT

Handout alert: The handout cites **Art. 199** for Money Bill origination, **Art. 110** for the Speaker's final say, and its Articles table gives **198 = Money Bill procedure** and **199 = definition of Money Bill**. Use: **198** procedure, **199** definition and the Speaker's final decision; Art. 110 is the Union-level provision.

- **Shortcut: Money Bill shortcut. Only Assembly, only minister, only on Governor's recommendation. Council: 14 days, advise only.**

MY NOTES

Governor: cannot return. Speaker's certificate on what is a Money Bill is final.

ALSO IN THE HANDOUT

- A money bill can originate only in the Assembly and the Council has only recommendatory powers — it cannot reject or amend a money bill (procedure mirrors Articles 109–111 at Union level adapted in state statutes).

PARLIAMENT AGAINST STATE LEGISLATURE

KEY DIFFERENCES

Aspect	Parliament	State Legislature
Deadlock resolution	**Joint sitting** of both Houses (Art. 108), whichever House started the Bill	**No joint sitting**; the Assembly prevails after passing the Bill a second time
Time for Upper House	Rajya Sabha may delay an ordinary Bill for **six months**	Council delays for at most **four months** (three first, one second)
Primacy	Both Houses theoretically equal; joint sitting needed	**Assembly dominates**; Council advisory or delaying
Money Bills	Only in Lok Sabha on the **President's** recommendation; RS can only suggest	Only in the Assembly on the **Governor's** recommendation; Council can only suggest
Origin in Upper House	May be introduced in either House	Bill from the Council rejected by the Assembly **lapses**

WHAT IS COMMON

Point	Same in both
Ordinary Bill	Either House can start it; minister or private member; three readings
Passed when	Both Houses agree, with or without amendments
Money Bill	Upper House returns it within **14 days**; lower House accepts or rejects the recommendations; silence means deemed passed
Assent	Governor (State) or President (Union): the Governor may assent, withhold or reserve but **cannot return** a Money Bill; the President can only assent or withhold on it
Private members	**Cannot** introduce Money Bills

- **Union deadlock:** In Parliament a deadlock arises if the second House rejects the Bill, proposes unacceptable amendments, or does not act within **six months**.

MY NOTES

POSITION OF THE LEGISLATIVE COUNCIL

- The Council is largely **advisory and subordinate**: equal to the Assembly in a few areas, unequal in most.

AREAS OF PARITY

- 1. **Ordinary Bills**: takes part, but the Assembly prevails on disagreement. 2. **Ordinances (Art. 213)**: ordinances promulgated by the Governor must be approved by both Houses. 3. **Ministers (Art. 164)**: ministers, including the Chief Minister, can be members of either House, yet remain responsible only to the Assembly. 4. **Reports** of the State Finance Commission, State Public Service Commission and the CAG are reviewed. 5. **PSC jurisdiction**: can discuss proposals to enlarge the State PSC's powers.

AREAS OF SUBORDINATION

- 1. **Money Bills**:
  - Only suggestions, return within 14 days. 2. **Money Bill status**: the **Speaker** decides (Art. 199). 3. **Ordinary Bills**: Assembly can override
  - Delay up to four months
  - The Council is **not a revising chamber** unlike the Rajya Sabha. 4. **Finance**: can discuss the budget but **cannot vote on Demands for Grants**. 5. **Control over government**: **no no-confidence motion**
  - Ministers answer only to the Assembly. 6. **Bills from the Council**: lapse if the Assembly rejects them. 7. **Elections**: no part in electing the **President** or the State's **Rajya Sabha members**. 8. **Constitution Amendments**: the Assembly's will prevails in ratification. 9. **Existence**: Parliament can abolish the Council under **Art. 169**, but only on the **Assembly's** recommendation
- **Memory aid (Nine weaknesses): M**oney Bills, **S**peaker decides status, **O**rdinary Bills overridden, **F**inance (no vote on grants), **C**ontrol (no no-confidence), **B**ills from Council lapse, **E**lections (President, RS), **A**mendments, e**X**istence (Art. 169): "**M**y **S**mall **O**ld **F**ather **C**an't **B**eat **E**very **A**ngry **X**-ray."

ALSO IN THE HANDOUT

- This ensures that proposals affecting state finances are carefully controlled and introduced by the executive responsible for the state budget.
- Its powers and relevance can be examined under two broad categories: areas where it is equal to the Assembly and areas where it is subordinate or unequal.

MY NOTES

PRIVILEGES OF THE STATE LEGISLATURE

- Special rights and immunities for the Houses, committees and members, to protect independence, authority and dignity. They extend to State **ministers and the Advocate-General**, but **not to the Governor**, though the Governor is part of the legislature.

COLLECTIVE AND INDIVIDUAL

- **Collective (the House):**
  - Publish reports, debates and proceedings and stop others from publishing
  - Exclude outsiders and hold secret sittings
  - Make rules and adjudicate breaches
  - Punish members and outsiders for contempt (reprimand, admonition, imprisonment, suspension, expulsion)
  - Be told at once of a member's arrest, detention, conviction, imprisonment or release
  - Inquire, summon witnesses, call for documents
  - Courts cannot question proceedings
  - No arrest or legal process within the precincts without the presiding officer's permission
- **Individual (members):**
  - Freedom from arrest in **civil** cases during the session and **40 days before and after** (not criminal cases or preventive detention)
  - **freedom of speech** in the House and committees (**Art. 194(1)**)
  - Exempt from jury service
  - May refuse to appear as a witness in courts during sessions
- **Memory aid (Individual privileges):** **A**rrest immunity (civil, 40 days), **S**peech (Art. 194(1)), **J**ury exemption, **W**itness refusal: "**A**ll **S**peakers **J**oke **W**isely."
- **Rationale:** These immunities let legislators work without fear of intimidation, litigation or outside pressure and reinforce separation of powers between legislature and judiciary.

ALSO IN THE HANDOUT

- These provisions ensure that legislators are eligible, competent, and free from conflicts of interest, thereby upholding the integrity of the legislative process.
- However, they do not have voting rights, preserving the principle of elected representation. This provision allows ministers to explain government policies, introduce bills, respond to questions, and engage in debates relevant to their departments, thereby promoting accountability and transparency.
- They also protect legislators in performing their duties, ensuring that they can discharge their responsibilities freely and effectively.

MY NOTES

- The Houses are also entitled to receive immediate information regarding the arrest, detention, conviction, imprisonment, or release of any member, reinforcing legislative oversight over potential infringements on members' freedoms. They can institute inquiries, summon witnesses, and call for relevant documents, ensuring robust investigative powers.

STRENGTH OF STATE ASSEMBLIES AND COUNCILS

SEATS IN EACH STATE AND UT (HANDOUT TABLE)

State or UT	Assembly	Council
Andhra Pradesh	175	58
Arunachal Pradesh	60	none
Assam	126	none
Bihar	243	75
Chhattisgarh	90	none
Goa	40	none
Gujarat	182	blank in handout
Haryana	90	none
Himachal Pradesh	68	none
Jharkhand	81	none
Karnataka	224	75
Kerala	140	none
Madhya Pradesh	230	none
Maharashtra	288	78
Manipur	60	none
Meghalaya	60	none
Mizoram	40	none
Nagaland	60	none
Odisha	147	none
Punjab	117	none
Rajasthan	200	none
Sikkim	32	none
Tamil Nadu	234	none
Telangana	119	40
Tripura	60	none
Uttarakhand	70	none
Uttar Pradesh	403	100

MY NOTES

State or UT	Assembly	Council
West Bengal	294	none
Delhi (UT)	70	none
Jammu and Kashmir (UT)	90	none
Puducherry (UT)	30	none

- **Shortcut:**
  - **Council seats. A**P 58, **B**ihar 75, **K**arnataka 75, **M**aharashtra 78, **T**elangana 40, **U**P 100. Biggest Assembly: UP 403
  - Smallest: Puducherry 30

ALSO IN THE HANDOUT

- State/UT Legislative Assembly / Seats / Legislative Council Seats / 1 Andhra Pradesh 175 58 / 2 Arunachal Pradesh 60 - / 3 Assam 126 - / 4 Bihar 243 75 / 5 Chhattisgarh 90 - / 6 Goa 40 - / 7 Gujarat 182 / 8 Haryana 90 - / 9 Himachal Pradesh 68 - / 10 Jharkhand 81 - / 11 Karnataka 224 75 / 12 Kerala 140 - / 13 Madhya Pradesh 230 - / 14 Maharashtra 288 78 / 15 Manipur 60 - / 16 Meghalaya 60 - / 17 Mizoram 40 - / 18 Nagaland 60 - / 19 Odisha 147 - / 20 Punjab 117 - [TABLE CELLS] 21 Rajasthan 200 - / 22 Sikkim 32 - / 23 Tamil Nadu 234 - / 24 Telangana 119 40 / 25 Tripura 60 - / 26 Uttarakhand 70 - / 27 Uttar Pradesh 403 100 / 28 West Bengal 294 - / 29 Delhi (UT) 70 - / 30 Jammu & Kashmir / (UT) / 90 - / 31 Puducherry (UT) 30 - Key Articles related to the State Legislature, updated as per the Constitution of India, 2025: Article Subject / Matter Brief Description 168 Constitution of Legislatures in States Establishes the Legislative Assembly for every state and Legislative Council where applicable.

KEY ARTICLES 168 TO 212

ARTICLES AT A GLANCE

Group	Articles
Constitution of Legislatures	168 Legislatures in States; 169 Abolition or creation of Councils; 170 Assemblies; 171 Councils; 172 Duration; 173 Qualification; 174 Sessions, prorogation, dissolution
Governor and Ministers	175 Governor's right to address and send messages; 176 Special address at the first session each year; 177 Ministers and Advocate-General may speak without voting
Officers	178 Speaker and Deputy Speaker; 179 Vacation, resignation, removal; 180 Acting Speaker; 181 Speaker or Deputy Speaker not to preside during removal resolution; 182 Chairman and Deputy Chairman; 183 their vacation, resignation, removal; 184 Acting Chairman; 185 Chairman or Deputy not to preside during removal; 186 Salaries; 187 Secretariat

MY NOTES

Group	Articles
Conduct of business	188 Oath or affirmation; 189 Voting, quorum, vacancies
Disqualifications	190 Vacation of seats; 191 Disqualifications (office of profit, defection); 192 Decision on disqualification by the Governor; 193 Penalty for sitting or voting before oath or when disqualified
Powers and privileges	194 Powers, privileges and immunities; 195 Salaries and allowances of members
Legislative procedure	196 Introduction and passing of Bills; 197 Restriction on Council's powers over non-Money Bills; 198 Money Bill procedure; 199 Definition of Money Bill; 200 Assent; 201 Bills reserved for the President
Financial procedure	202 Annual Financial Statement; 203 Estimates; 204 Appropriation Bills; 205 Supplementary grants; 206 Votes on account and exceptional grants; 207 Special provisions for financial Bills
General procedure	208 Rules of procedure; 209 Parliament may regulate procedure for financial business; 210 Language; 211 Restriction on discussion; 212 Courts not to inquire into proceedings

- **Memory aid (Memorable cut-offs):** **L**egislature (168-174), **C**hairs (178-187), **A**ssent (200-201), **P**rivileges (194): "**L**et **C**hairs **A**ssent **P**rivileges."

> **HANDOUT ALERT**
> Handout alert: The Articles table puts Art. 176 as the Governor's address at the first session **each year**, but the text adds the first session **after each general election** as well. Learn both: the Governor addresses at the first session after a general election and at the start of each year.

ALSO IN THE HANDOUT

- This mechanism reflects the Constitution's commitment to democracy even during periods of exceptional circumstances.
- Sits or votes without taking the prescribed oath.
- Interpreting Rules: Providing authoritative interpretations of the Council's rules of procedure and ensuring proper conduct of business. - Committee Supervision: Appointing chairpersons for various committees and overseeing their functioning, ensuring that legislative scrutiny and oversight continue smoothly.
- Powers and Responsibilities The Deputy Chairman assumes the full responsibilities of the Chairman in the following situations: - Acting as Chairman during Vacancy: When the office of the Chairman is vacant, the Deputy Chairman performs all duties and exercises all powers of the Chairman.
- They ensure the regular, representative, and orderly functioning of the legislature, enabling debate, scrutiny of bills, discussion on

MY NOTES

policies, and oversight of the executive. The Constitution provides a framework for summoning, adjourning, proroguing, and dissolving the House, along with procedural rules for quorum, voting, and language of proceedings.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 33, STATE LEGISLATURE

- Art. 169: the Assembly's resolution to create or abolish a Council must pass by a special majority (majority of total membership and two-thirds of members present and voting). Parliament's Act is not an amendment under Art. 368 and passes by simple majority.
- Council history:
  - Andhra Pradesh created 1957, abolished 1985, revived 2007 after the 2005 Act
  - Tamil Nadu abolished 1986
  - Punjab and West Bengal abolished 1969
  - Tamil Nadu Act 2010 never came into force because the Assembly asked for abolition in 2011
  - Jammu and Kashmir Council abolished by the 2019 Reorganisation Act
- Madhya Pradesh: the 7th Amendment (1956) provided a Council, but the President's notification has never been made, so it has one House. LK counts six bicameral states: Andhra Pradesh, Telangana, Uttar Pradesh, Bihar, Maharashtra, Karnataka.
- Council details:
  - Graduates and teachers must be of three years' standing, teachers not lower than secondary school
  - The Assembly's one-third is chosen from persons who are not Assembly members
  - The Governor nominates experts in literature, science, art, cooperative movement and social service
  - 5/6 are indirectly elected and 1/6 nominated, by STV. Parliament fixes actual strength and may change the scheme
- Delimitation:
  - The 42nd Amendment (1976) froze seats at the 1971 level to 2000
  - The 84th (2001) extended the freeze to 2026
  - The 87th (2003) moved readjustment to the 2001 census without changing the seat totals. Delimitation Acts: 1952, 1962, 1972, 2002
- SC/ST seat reservation was first for ten years (to 1960), renewed every ten years, and now runs to 2030 (104th Amendment, 2019). Anglo-Indian nomination, extended to 2020 by the 95th Amendment (2009), ceased on 25 January 2020.

MY NOTES

- Sarkaria Commission (1983-88) on State Bills reserved for the President: must reserve (Bills cutting down High Court powers, tax on water or electricity under Art. 288, and Art. 360 financial emergency)
- May reserve (Arts. 31A and 31C immunity, Concurrent List repugnancy under Art. 254, trade restrictions needing sanction under Art. 304)
- Other cases the Governor decides under Art. 200
- Why the Council is weaker than the Rajya Sabha:
  - Rajya Sabha reflects federalism, the Council is a mixed body with nominated members, and the Council follows the British pattern where the House of Lords can delay an ordinary Bill one year and a Money Bill one month. Critics call it a 'white elephant'
  - Supporters value its check on hasty laws and its experts
- Lakshmikanth differs: it calls the Council not even a revising body but only a dilatory or advisory chamber, while the handout's introduction says house of revision and review. For the exam use the 'dilatory/delay up to four months' wording.
- Lakshmikanth differs: it says the Speaker or Chairman is removed by a majority of all the then members (effective majority) after 14 days' notice, whereas the handout's voting section says special majority. Use effective majority. LK also gives Jammu and Kashmir Assembly seats as 83 (107 total minus 24 vacant PoK seats) against the handout's 90.

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

What do Arts. 168 to 212 deal with?	Part VI provisions on the State Legislature: organisation, powers, privileges and functioning.
Who is part of the State Legislature besides the Houses?	The Governor (Art. 168).
What are the Assembly's maximum and minimum strengths?	Maximum 500, minimum 60 (30 for Arunachal, Sikkim, Goa; 40 Mizoram; 46 Nagaland, as the handout states).
What did the 42nd and 84th Amendments do for delimitation?	42nd (1976) froze inter-State seat allocation; 84th (2001) extended it to the first census after 2026, allowing internal rationalisation.

What does Art. 332 give?	Reserved seats for SCs and STs in proportion to their population in the State.
What ended Anglo-Indian nomination?	The 104th Amendment Act, 2019, effective January 2020 (Art. 333).
What is the Council's size rule?	Not more than one-third of the Assembly and not less than 40 members.
How is the Council composed?	Graduates 1/12; teachers 1/12; local authorities nearly 1/3; Assembly members nearly 1/3; remainder nominated by the Governor.
How long is a Council member's term?	Six years; one-third retire every two years; the Council cannot be dissolved.
Who can abolish a Council?	Parliament, under Art. 169, on a State Assembly resolution.
Which States abolished Councils per the handout?	Punjab and West Bengal.
How long is an Assembly's term and which Article?	Five years from the first meeting after the general election (Art. 172(1)).
How can an Assembly's term be extended?	By Parliament during a National Emergency, one year at a time, not beyond six months after it ends (Art. 352).
Minimum ages for membership?	25 for the Assembly, 30 for the Council.
Who decides ordinary disqualification and defection?	Ordinary: the Governor after the Election Commission's opinion; defection: Speaker (Assembly) or Chairman (Council), subject to judicial review.
Which disqualifications are in Art. 191?	Office of profit, unsound mind, undischarged insolvency, citizenship loss or foreign allegiance, disqualification by Parliament's law.
What is the penalty for sitting or voting without taking the oath?	Rs 500 per day.
Who administers the oath?	The Governor or a person authorised by the Governor (Art. 188).
What happens if a member is absent 60 consecutive days?	The House may declare the seat vacant.

MY NOTES

How is a Speaker removed?	By a resolution passed by a majority of all Assembly members after 14 days' notice.
Which committees does the Speaker chair?	Business Advisory, Rules and General Purposes.
Can the Chairman decide Money Bill status?	No: only the Speaker of the Assembly can.
What is prorogation?	The formal end of a session by the Governor's notification; adjournment is only a temporary break.
What is the quorum and its Article?	Ten members or one-tenth, whichever is higher (Art. 189).
What are the Council's four options on an Assembly Bill?	Pass it, pass with amendments, reject it, or keep it pending.
What are the Governor's four options under Art. 200?	Assent, withhold, return for reconsideration, reserve for the President.
What happens when a Money Bill reaches the Council?	It can only recommend and must return the Bill within 14 days; the Assembly may accept or reject the recommendations.
Why is there no joint sitting in a State?	The Assembly prevails after a second passage; a Bill from the Council rejected by the Assembly lapses.
Name two things the Council cannot do.	Vote Demands for Grants; move a no-confidence motion; take part in electing the President or State's Rajya Sabha members.
What are the individual privileges of members?	Civil-arrest freedom for the session and 40 days either side, freedom of speech (Art. 194(1)), jury exemption, refusal to appear as witness during sessions.
Do privileges extend to the Governor?	No: privileges cover Houses, committees, members, ministers and the Advocate-General, not the Governor.

MY NOTES

Mains 2021: Constitutional provisions on Legislative Councils and their working?	Art. 169 (Parliament creates or abolishes on an Assembly resolution), Art. 171 (strength and five categories), permanent house with one-third retiring every two years; delay power of four months; no vote on grants, no no-confidence, subordinate to the Assembly; handout lists Punjab and West Bengal abolishing, and six Councils in its table.
Mains 2023: Role of Presiding Officers in order, impartiality and democratic practice?	Speaker and Chairman regulate debate, interpret rules, adjourn without quorum, casting vote only in a tie, decide Money Bill status (Speaker) and Tenth Schedule cases, chair key committees; independence supported by Consolidated Fund salaries and removal only by majority of all members on 14 days' notice.
Mains 2023: Reduced use of Article 356 since the mid-1990s?	Not covered in this handout beyond Art. 356 appearing as the exceptional ground for dissolution of an Assembly without the Council of Ministers' advice; build this answer from the Centre-State and Governor chapters.

MY NOTES

Mains 2001: Why is it said that the centre has absolute veto over State Legislature

Intro: The handout shows several places where the Union and its nominee touch State law-making Body: The Governor, a Centre-appointed officer, may withhold assent or reserve a Bill for the President (Art. 200 and 201); the President may give, withhold or return a reserved Bill and the Constitution does not say he must assent after reconsideration; the Governor cannot return a Money Bill but can reserve it, and the President cannot return it either; Parliament creates or abolishes the Council (Art. 169) and sets delimitation through Commissions; Parliament can regulate financial procedure (Art. 209) and disqualify members by law (Art. 191); on the other side the Governor has only a suspensive veto on ordinary Bills returned and passed again. Close: the veto is real but not absolute, since an ordinary Bill returned by the Governor and passed again must be assented to. (Built only from the notes.)

Trap 1 · Is the Council a revising House?

The handout introduces the Council as a house of revision and review, yet its list of subordinate areas says the Council is not a revising chamber like the Rajya Sabha. It can only delay an ordinary Bill by up to four months. *Rule: in the exam call it a delaying and advisory House: 3 months + 1 month, then the Assembly prevails.*

Trap 2 · How many states have a Council

The text names Maharashtra, Bihar, Karnataka, Andhra Pradesh and Telangana, but its strength table also gives Uttar Pradesh a Council of 100. *Rule: six states: AP 58, Bihar 75, Karnataka 75, Maharashtra 78, Telangana 40, UP 100.*

Trap 3 · Removal of the Speaker: which majority

The voting section says a special majority is needed to remove the Speaker or Chairman, but the Speaker section says a resolution passed by a majority of all members after 14 days' notice. *Rule: write majority of all members of the House with 14 days' notice.*

MY NOTES

Trap 4 · Money Bill article numbers

The handout names Art. 199 for origin of Money Bills and the Speaker's decision, but also Art. 110 in the Speaker's powers; its Key Articles table gives Art. 198 as the special procedure and Art. 199 as the definition. *Rule: states = Art. 198 (procedure) and Art. 199 (definition); Art. 110 is the Union version.*

QUICK QUIZ

Q1. What is the minimum strength of a Legislative Council?

1. 30
2. 40
3. 60
4. 75

Q2. Which Article empowers Parliament to create or abolish a Legislative Council on a State Assembly resolution?

1. Art. 168
2. Art. 169
3. Art. 171
4. Art. 172

Q3. What fraction of the Council is elected by graduates and by teachers, each?

1. One-third
2. One-sixth
3. One-twelfth
4. One-fourth

Q4. By how long can a National Emergency extend an Assembly's term at a time, and with what limit?

1. Six months, no limit
2. One year at a time, not beyond six months after the Emergency ends
3. Two years at a time
4. One year, no limit

Q5. A member who is absent from all sittings without permission can have the seat declared vacant after:

1. 30 consecutive days
2. 45 consecutive days
3. 60 consecutive days
4. 90 consecutive days

Q6. To whom does the Speaker of the Assembly address a written resignation?

1. The Governor
2. The Chief Minister
3. The Deputy Speaker
4. The Chairman of the Council

Q7. The quorum in a State legislative House is:

1. One-fourth of members
2. Ten members or one-tenth, whichever is higher
3. Fifty members
4. One-tenth always

Q8. Within how many days must the Council return a Money Bill to the Assembly?

1. 7
2. 14
3. 30
4. 90

Q9. Which statement about the Governor and a Money Bill is correct?

1. The Governor may return it for reconsideration
2. The Governor may give assent, withhold assent or reserve it, but cannot return it
3. The Governor must always assent
4. The Governor must reserve it

MY NOTES

Q10. How long can the Legislative Council delay an ordinary Bill passed by the Assembly?

1. Six months
2. Four months in all (three plus one)
3. Fourteen days
4. Indefinitely

Q11. Who decides whether a Bill is a Money Bill in a State?

1. The Governor
2. The Chairman of the Council
3. The Speaker of the Assembly
4. The Advocate-General

Q12. Which pending Bill does NOT lapse on dissolution of the Assembly?

1. A Bill pending in the Assembly
2. A Bill passed by the Assembly and pending in the Council
3. A Bill pending in the Council but not passed by the Assembly
4. None of these

Q13. Which is a privilege of individual members?

1. Freedom from arrest in civil cases during the session and 40 days before and after
2. Freedom from arrest in criminal cases
3. Immunity from preventive detention
4. Right to remain unsworn

Q14. PYQ 2015: Consider the following statements. (2015)
1. The Legislative Council of a state in India can be larger in size than half of the Legislative Assembly of that particular state.
2. The Governor of a state nominates the chairman of Legislative Council of that particular state. Which of the statement(s) given above is/are correct?

1. Only 1
2. Only 2
3. Both 1 and 2
4. Neither 1 nor 2

Q15. PYQ 2018: Consider the following statements. (2018)
1. The Speaker of the Legislative Assembly shall vacate his/her office if he/she ceases to be a member of the Assembly.
2. Whenever the Legislative Assembly is dissolved, the Speaker shall vacate his/her office immediately. Which of the statement(s) given above is/are correct?

1. Only 1
2. Only 2
3. Both 1 and 2
4. Neither 1 nor 2

Q16. PYQ 2019: With reference to the Legislative Assembly of a State in India, consider the following statements. (2019)
1. The Governor makes a customary address to Members of the House at the commencement of the first session of the year.
2. When a State Legislature does not have a rule on a particular matter, it follows the Lok Sabha rule on that matter. Which of the statement(s) given above is/are correct?

1. Only 1
2. Only 2
3. Both 1 and 2
4. Neither 1 nor 2

MY NOTES

Q17. PYQ 2021: With reference to India, consider the following statements. (2021)

1. When a prisoner makes out a sufficient case, parole cannot be denied to such prisoner because it becomes a matter of his/her right.
2. State Governments have their own Prisoners Release on Parole Rules.

Which of the statement(s) given above is/are correct?

1. Only 1
2. Only 2
3. Both 1 and 2
4. Neither 1 nor 2

Q18. PYQ 2021: Which one of the following best defines the term 'State'? (2021)

1. A community of persons permanently occupying a definite territory independent of external control and possessing an organised government
2. A politically organised people of a definite territory and possessing an authority to govern them, maintain law and order, protect their natural rights and safeguard their means of sustenance
3. A number of persons who have been living in a definite territory for a very long time with their own culture, tradition and government
4. A society permanently living in a definite territory with a central authority, an executive responsible to the central authority and an independent judiciary

Answers: Q1 b, Q2 b, Q3 c, Q4 b, Q5 c, Q6 c, Q7 b, Q8 b, Q9 b, Q10 b, Q11 c, Q12 c, Q13 a, Q14 d, Q15 a, Q16 c, Q17 b, Q18 a

MY NOTES

CHAPTER 18 · HANDOUT, PARLIAMENTARY SYSTEM OF GOVERNMENT

18 Parliamentary System

MEDIUM PRIORITY Mains PYQs quoted: **2023, 2024**

Prelims PYQs: **1998, 2015, 2020, 2021**

EXAM LENS

Prelims hooks

- Articles 74, 75(3), 75(5), 85, 163-164
- nominal versus real executive
- PM may sit in either House
- minister must become an MP within six months
- none quoted in the material as PYQs.
- Handout stresses: The handout lists 8 features of the Indian parliamentary system with Articles 74, 75(3), 75(5) and 85 (Features section)
- Handout stresses: A comparison table of the Presidential (USA) and Indian parliamentary systems on seven points (Presidential section)
- Handout stresses: Six reasons for adoption and seven differences from the British model (Rationale and Comparative sections)
- Handout stresses: Five Prelims PYQs (1998, 2015, 2020, 2021 x2) and two Mains PYQs (2023, 2024) are quoted (PYQ section)

Mains hooks

- merits and demerits of the parliamentary system
- why India chose it over the presidential model
- how the Indian model differs from the British one
- the quoted Mains PYQs ask about cabinet growth and parliamentary supremacy (2024) and British versus Indian parliamentary sovereignty (2023).

India chose responsibility over rigid stability, and adapted the Westminster model to a republic, a written Constitution and a federal, plural society.

IN SIMPLE WORDS

- The **parliamentary system** (also **cabinet, responsible or Westminster model**) makes the executive answer to the legislature. India has it at the Centre (**Arts. 74, 75**) and in the states (**Arts. 163, 164**). Britain, India, Japan and Canada follow it

MY NOTES

- The US, Brazil, Russia and Sri Lanka follow the presidential model
- **Eight features**: nominal (President) and real (PM) executive, majority-party rule, **collective responsibility** (Art. 75(3)), political cohesion, **double membership** (a non-member minister gets 6 months, Art. 75(5)), PM's leadership, dissolution of the lower house (Art. 85) and **secrecy**.
- In the **US** one President is head of State and head of Government, elected by an electoral college for a **fixed 4 years**, removable only by **impeachment**, cannot dissolve the House, and works on **separation of powers**.
- **Merits**: harmony, responsible government, check on despotism, ready alternative government, wide representation. **Demerits**: instability, no policy continuity, cabinet dominance, fusion of powers, non-experts, coalition and regionalism.
- **Why India chose it**: familiarity (Acts of 1919 and 1935), Ambedkar's preference for **responsibility over stability**, avoiding deadlocks, diversity, flexibility, and the **Swaran Singh Committee (1975)** backing.
- **Unlike Britain**: republic, constitutional supremacy, PM from **either House**, outsider minister for 6 months, **no countersignature**, no shadow cabinet, and a federal and plural setting.

Key term	In plain words
De jure / de facto executive	Nominal executive = President; real executive = Prime Minister with the Council of Ministers
Collective responsibility	The whole Council of Ministers answers to the Lok Sabha; a no-confidence vote removes all (Art. 75(3))
Westminster model	Another name for parliamentary government, after the British Parliament
Primus inter pares	'First among equals': the old British view of the PM, now 'prime ministerial government' (Crossman, Mackintosh)
Double membership	Ministers sit in both the legislature and the executive
Kitchen Cabinet	US President's informal advisers: chosen by him, answer only to him, need not be in Congress
Fusion of powers	Executive and legislature joined through the cabinet (Bagehot's 'hyphen'), against strict separation
Shadow cabinet	British Opposition team that watches the government and trains future ministers; India has none

MY NOTES

MEMORY MAP: PARLIAMENTARY SYSTEM

Parliamentary System

Meaning
- Other names: cabinet, responsible, Westminster
- Where: Arts. 74-75 Union; 163-164 States
- Followers: Britain, India, Japan, Canada

Eight features
- Nominal and real executive: President and PM
- Majority party rule: Lok Sabha
- Collective responsibility: Art. 75(3)
- Double membership: six months, Art. 75(5)
- Dissolution: Art. 85

Presidential model
- USA 1787: fixed tenure
- Separation of powers: no dissolution
- Kitchen Cabinet: advisers

Merits
- Harmony: ready alternative
- Responsible government: checks on despotism
- Broad representation: diversity

Limits
- Instability: policy discontinuity
- Cabinet dictatorship: fusion of powers
- Non-experts: coalition politics

Why adopted
- Familiarity: GoI Acts 1919, 1935
- Responsibility over stability: Ambedkar
- Swaran Singh Committee: 1975

India vs Britain
- Republic vs monarchy: Art. 52
- Constitution supreme: Art. 13
- PM from either House: Arts. 75(5), 164(1)
- No shadow cabinet: no countersigning

MNEMONIC · PARLIAMENTARY COUNTRIES

Ballots Install Judicious Cabinets

B Britain | I India | J Japan | C Canada

In parliamentary systems the ballots install the cabinets: Britain, India, Japan and Canada. Order is free here: no clean word exists, so this sentence is the memory aid. (Memory aid, not from the handout.)

MNEMONIC · PRESIDENTIAL COUNTRIES

Unified Bosses Rule Singly

U United States | B Brazil | R Russia | S Sri Lanka

In a presidential system one boss is head of State and Government and rules singly: US, Brazil, Russia, Sri Lanka. Order is free here: no clean word exists, so this sentence is the memory aid. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · SHORT-LIVED GOVERNMENTS

Many Cabinets Vanished, Collapsing, Dwindling Governments

- **M** Morarji Desai
- **C** Charan Singh
- **V** V.P. Singh
- **C** Chandra Sekhar
- **D** Deve Gowda
- **G** Gujral (I.K. Gujral)

Six governments that did not last: the handout's examples of instability, in its order. (Memory aid, not from the handout.)

MNEMONIC · ADVANTAGES OF THE PARLIAMENTARY SYSTEM

C H A R M

- **C** Checks on arbitrary authority
- **H** Harmonious legislature-executive relationship
- **A** Alternative government ready without fresh elections
- **R** Responsible government
- **M** Mass representation: broad and inclusive

The parliamentary system has its CHARM. The order is rearranged for memory (the five advantages are unordered). (Memory aid, not from the handout.)

MNEMONIC · LIMITATIONS OF THE PARLIAMENTARY SYSTEM

S P R U C E

- **S** Separation of powers is limited (fusion of powers)
- **P** Policy continuity is lacking
- **R** Regionalism and coalition politics
- **U** Unstable governments
- **C** Cabinet concentration of power
- **E** Experts left out: ministers come only from Parliament

The system needs a SPRUCE-up to fix these six problems. The order is rearranged for memory (the limitations are unordered). (Memory aid, not from the handout.)

WHAT THE PARLIAMENTARY SYSTEM IS

- The Constitution sets up a parliamentary government at the **Union level (Arts. 74, 75)** and the **State level (Arts. 163, 164)**. Democracies are classed by the executive-legislature link.

PARLIAMENTARY AGAINST PRESIDENTIAL

- **Parliamentary:**
  - Executive is politically **accountable to the legislature** for decisions and actions
  - Also called **cabinet government, responsible government, Westminster model**
  - Origin in the United Kingdom

MY NOTES

  - Followers: Britain, India, Japan, Canada
- **Presidential:**
  - Executive works **independently** of the legislature, holds a **fixed term**, is not answerable to it
  - Also called **fixed executive or non-responsible government**
  - Followers: United States, Brazil, Russia, Sri Lanka
- **Ivor Jennings** called it the **cabinet system**: the cabinet is the core of executive authority.
- Real executive power lies with the **council of ministers**, which jointly makes policy and runs the administration.
- The cabinet stays in office only while it has the **confidence of the legislature**.

THE PRIME MINISTER'S POSITION

- Traditionally in Britain the PM was **primus inter pares** (first among equals).
- Over time the post became centralised and dominant: **Crossman and Mackintosh** called it **prime ministerial government**.
- In India a similar trend is seen: the PM coordinates policy, guides the cabinet, and represents the government in Parliament and abroad.
- **Memory aid (Names of the system):** **C**abinet government, **R**esponsible government, **W**estminster model: "**C**abinets **R**un **W**estminster".

ALSO IN THE HANDOUT

- Modern democracies are broadly classified into parliamentary and presidential systems, depending on the relationship between the executive and the legislature.
- However, over time, the Prime Minister's position has evolved into a centralised and dominant role, exerting substantial influence over cabinet decisions and the administrative machinery.
- The most prominent example of this system is the United States of America, whose Constitution (1787) laid down the model, which has influenced several other nations.

EIGHT FEATURES IN INDIA

- The system fuses the executive and the legislature, decides collectively, and answers to the legislature.

MY NOTES

THE EIGHT FEATURES

#	Feature	Content
1	**Nominal and real executive**	President = nominal (de jure), ceremonial head of state. PM = real (de facto), heads the government. **Art. 74**: Council of Ministers led by the PM aids and advises the President, who is **bound** to act on this advice
2	**Rule of the majority party**	Government is formed by the party or coalition with a majority in the **Lok Sabha**. President appoints the majority leader as PM; other ministers are appointed on the PM's advice. If no party has a majority, the President may invite a **coalition**
3	**Collective responsibility**	**Art. 75(3)**: the council of ministers headed by the PM is collectively accountable to the **Lok Sabha**. All ministers act as one unit; a **vote of no-confidence** makes the **whole council resign**
4	**Political cohesion**	Ministers usually belong to one party and share an ideology. In coalitions they are bound by mutual consensus
5	**Double membership**	Ministers sit in both executive and legislature. A non-member can be a minister only if he becomes an MP **within six months** (**Art. 75(5)**)
6	**Leadership of the PM**	PM is leader of the council of ministers, leader of the ruling party and leader of the legislature; coordinates policy, directs administration, represents the Union nationally and internationally
7	**Dissolution of the lower house**	The President can dissolve the **Lok Sabha** on the PM's advice (**Art. 85**), to seek fresh elections
8	**Principle of secrecy**	Ministers keep cabinet deliberations and decisions confidential; they take an **oath of secrecy** administered by the President before assuming office

- **Memory aid (Eight features): N**ominal-real, **M**ajority rule, **C**ollective responsibility, **C**ohesion, **D**ouble membership, **L**eadership of PM, **D**issolution, **S**ecrecy: "**N**o **M**inister **C**an **C**ommit **D**ouble **L**ife **D**uring **S**ession".
- **Shortcut: Article shortcut. 74** = aid and advise (nominal vs real). **75(3)** = collective responsibility. **75(5)** = six months. **85** = dissolve Lok Sabha. **163-164** = the same system in the States.

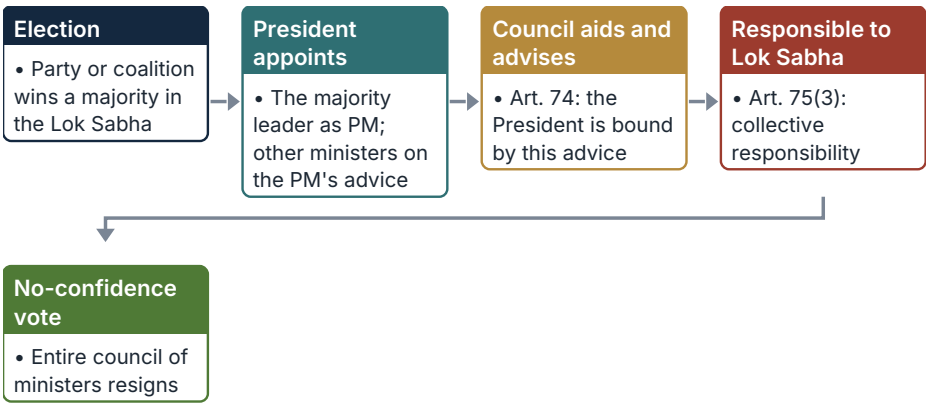
HOW A GOVERNMENT IS FORMED AND FALLS

- **Election**: Party or coalition wins a majority in the Lok Sabha
- **President appoints**:
  - The majority leader as PM
  - Other ministers on the PM's advice
- **Council aids and advises**: Art. 74: the President is bound by this advice
- **Responsible to Lok Sabha**: Art. 75(3): collective responsibility

MY NOTES

- **No-confidence vote**: Entire council of ministers resigns

HOW A GOVERNMENT IS FORMED AND FALLS



ALSO IN THE HANDOUT

- Principle of Secrecy Ministers operate under the principle of confidentiality, which requires them to maintain secrecy regarding cabinet deliberations, policy discussions, and decisions. Before assuming office, ministers take an oath of secrecy administered by the President, ensuring that sensitive government information remains protected and that policy formulation is conducted in a secure environment.
- This disrupts sustained socio-economic development and hampers administrative predictability.
- This provision ensures broader eligibility for leadership and accommodates the federal principle of regional representation.

THE PRESIDENTIAL SYSTEM (USA)

- Here the executive and legislature work independently. The model comes from the **US Constitution (1787)** and is called **non-responsible government**: the executive is not answerable to the legislature for day-to-day administration.

STRUCTURE

- **Unified executive role**: the President is both Head of State (ceremonial) and Head of Government (leads the executive, policy and implementation).
- **Fixed tenure**:
  - Elected for a fixed term (**four years in the US**) by an **electoral college**
  - The legislature cannot remove him in this period except by **impeachment** for serious unconstitutional acts
- **Independent executive council**:
  - Advisers such as a cabinet or the informal **Kitchen Cabinet**

MY NOTES

- Appointed solely by the President, responsible only to him, removable at his discretion, and **need not be legislators**

KEY FEATURES

SIX FEATURES OF THE PRESIDENTIAL SYSTEM

#	Feature	Content
11	**Separation of powers**	Legislative, executive and judicial powers sit in independent organs; no branch dominates
12	**Non-responsibility to the legislature**	President and cabinet are not accountable to Congress, do not attend its sessions and are not its members; independence, but less oversight of day-to-day administration
13	**Non-dissolution**	The President cannot dissolve the House of Representatives; the legislature keeps autonomy and its members a fixed term
14	**Centralised executive authority**	Policy and administration are concentrated in the President; the cabinet is only **advisory**
15	**Fixed tenure and stability**	Gives stability and prevents frequent change; may be rigid in political crises
16	**Distinct electoral mechanism**	President is elected **indirectly** by an electoral college, so he has a mandate separate from the legislature

- The handout numbers these six as 11 to 16 (continuing from an earlier list)
- The content is what matters

> **HANDOUT ALERT**
> Handout alert: The "Distinction" paragraph says the presidential head of state is **directly elected**, but the same chapter says he is elected **indirectly through an electoral college**. Use **indirect (electoral college)** for the US, as the features list says.

COMPARISON WITH THE INDIAN MODEL

PRESIDENTIAL (USA) AGAINST INDIAN PARLIAMENTARY

Feature	Presidential (USA)	Indian parliamentary
Executive-legislature relation	Independent	Dependent on the legislature
Head of State and Government	Same person (President)	Separate: President (nominal), PM (real)
Tenure	Fixed (4 years)	Depends on parliamentary confidence

MY NOTES

Feature	Presidential (USA)	Indian parliamentary
Removal of the executive	Only by impeachment	By vote of no-confidence in the Lok Sabha
Cabinet responsibility	Only to the President	Collective responsibility to the Lok Sabha
Dissolution of legislature	Not possible	PM can advise the President to dissolve the Lok Sabha
Membership	President and cabinet are not members of the legislature	Ministers are members of both legislature and executive

- Parliamentary = **fusion of powers**, flexible and responsive to changes in legislative confidence. Presidential = **separation of powers**, stability and separation of authority.
- **Memory aid (Presidential traits): S**eparation of powers, **N**on-responsibility, **N**on-dissolution, **C**entralised executive, **F**ixed tenure, **E**lectoral college: "**S**ix **N**ew **N**ames **C**ame **F**rom **E**urope".

ALSO IN THE HANDOUT

- This distinction ensures a balance between symbolic authority and practical governance.
- Understanding these demerits is crucial for grasping both the strengths and the vulnerabilities of India's democratic structure.
- This reliance on political representation over professional expertise can affect the quality of governance and policy implementation.
- Such dynamics highlight the delicate balance the parliamentary system must maintain between inclusivity and effective administration.

ADVANTAGES

- These merits come from joining the executive to the legislature, from collective responsibility and from representative governance (Arts. 74, 75, 163, 164).

FIVE MERITS

Merit	Content
Harmony between legislature and executive	Ministers are MPs and draw legitimacy from Parliament, so fewer institutional conflicts; smoother policymaking, quicker laws, efficient governance, shared political mandate
Responsible government	Ministers collectively answerable to the Lok Sabha (Art. 75) for acts of omission and commission; tools: **question hour, debates, adjournment motions, no-confidence motion**; transparency and no misuse of authority

MY NOTES

Merit	Content
Check on arbitrary authority	Executive power is shared among ministers, so it is not concentrated in one person; a no-confidence motion is a continuous check against despotism
Ready alternative government	If the ruling party loses its majority, the President, acting under Art. 75, can invite another party or coalition with a majority; no fresh election needed. **Jennings**: the leader of the opposition is an alternative PM
Broad representation	PM picks ministers from elected members, so leaders of different states, social groups and factions can be included: regional, gender and minority representation

- **Memory aid (Merits):**
  - **H**armony, **R**esponsible, **C**heck on arbitrary power, **A**lternative government, **B**road representation: "**H**ow **R**eally **C**an **A**ll **B**e heard?" In short: efficiency, accountability and inclusiveness
  - Smooth transfer of power
  - Suited to a diverse, plural society

ALSO IN THE HANDOUT

- This ensures that governance reflects the pluralistic character of the country, promoting equity and inclusiveness.
- By linking the executive to the legislature, it ensures coordination, disperses authority to prevent despotism, and maintains democratic control through collective responsibility and no-confidence mechanisms.
- Emphasis on Responsible Government A central consideration was the balance between stability and accountability.

LIMITATIONS

SIX LIMITATIONS

Limitation	Content
Political instability	Ministers hold office only while they have Lok Sabha confidence (Art. 75); no-confidence motions, defections or coalition disagreements can end a government. Short-lived governments: **Morarji Desai, Charan Singh, V.P. Singh, Chandra Sekhar, Deva Gowda, I.K. Gujral**
Lack of policy continuity	Uncertain tenure causes reversals. Example: the **Janata Government (1977-79)** under Morarji Desai reversed many policies of the earlier Congress government; Congress under **Indira Gandhi** brought back its own measures after returning in **1980**
Concentration of power in the cabinet	With a strong majority, the cabinet and especially the PM can sideline scrutiny. **Laski and Ramsay Muir** warned of the **dictatorship of the cabinet**; seen in the eras of **Indira Gandhi and Rajiv Gandhi**

MY NOTES

Limitation	Content
Fusion of powers	PM and council lead the executive while answerable to the legislature. **Bagehot**: the cabinet is a hyphen that joins the buckle that binds the executive and legislative departments. Goes against strict separation of powers; legislature may be subordinate to the executive
Governance by non-experts	PM selects ministers from among Members of Parliament (Art. 75), limiting technocrats; ministers spend time on Parliament, party and cabinet meetings rather than technical administration
Coalition politics and regionalism	Policy compromises, inflated cabinets, decision delays; regional parties may put short-term regional gains over national priorities

- The handout says the cure lies in mechanisms like **anti-defection law, coalition consensus-building and institutional reforms**.

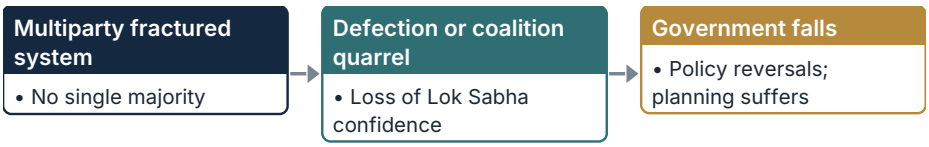
> **HANDOUT ALERT**
> Handout alert: The limitations section says the PM can pick ministers **only from elected MPs** (Art. 75), but the comparison section says India allows a **non-member** to be a minister if he becomes an MP **within six months** (Art. 75(5)). For an exam, use the **six-month rule** (Art. 75(5)); the "only MPs" line describes the usual practice.

- **Memory aid (Limitations): I**nstability, **P**olicy discontinuity, **C**abinet dominance, **F**usion of powers, **N**on-experts, **C**oalition and regionalism: "**I P**ity **C**abinets **F**acing **N**oisy **C**oalitions".

INSTABILITY CHAIN

- **Multiparty fractured system**: No single majority
- **Defection or coalition quarrel**: Loss of Lok Sabha confidence
- **Government falls**:
  - Policy reversals
  - Planning suffers

INSTABILITY CHAIN



ALSO IN THE HANDOUT

- This is particularly useful in countries with a strong emphasis on executive continuity but may create rigidity in response to political crises.
- This ensures continuity of governance and stability of the state, as the transition of power occurs smoothly.

MY NOTES

- Gujral, which lasted for less than full terms, reflecting the vulnerability of parliamentary governments in fractured party systems.
- Long-term planning can suffer as incoming governments may undo decisions of their predecessors.
- Governance by Non-Experts Another limitation arises from the restricted pool of ministerial appointments.
- Several compelling reasons influenced this decision.
- This characteristic suits India's dynamic and plural political environment, where coalition governments are often necessary.

WHY INDIA CHOSE IT

- The Constituent Assembly debated parliamentary versus US-style presidential government and chose the parliamentary form at the Centre and in the States (Arts. 74-75; 163-164).

SIX REASONS

#	Reason	Content
1	**Historical familiarity**	Experience under British rule, through the **Government of India Acts (1919 and 1935)** which brought responsible government at the provincial level. **K.M. Munshi**: India had decades of parliamentary responsibility; a novel US model could unsettle a new nation
2	**Responsible government**	**Ambedkar**: a democratic executive needs both **stability and accountability**, but no system gives both equally. US: stability (fixed tenure), less accountability. British model: more responsibility (Art. 75; no-confidence, Art. 75(3)). The Assembly preferred **responsibility over rigid stability**
3	**No legislative-executive deadlock**	US Congress and President often clash, causing paralysis. India in 1947, new and diverse, could not risk deadlock; the executive drawn from the legislature gives cooperation
4	**Diverse society**	Many languages, religions, castes, regions; ministerial representation of groups, coalition-building, national integration; regional parties get ministerial posts
5	**Flexibility**	If a government loses its majority, the President can invite the opposition or another coalition **without dissolving** the Lok Sabha
6	**Post-independence endorsement**	**Swaran Singh Committee (1975)**, appointed by the Congress government, found the system working effectively and saw no need to replace it with a presidential model

- **Memory aid (Six reasons): H**istory, **R**esponsibility, **D**eadlock avoided, **D**iversity, **F**lexibility, **E**ndorsement: "**H**e **R**eally **D**ebated **D**eeply, **F**inally **E**ndorsed".
- **Shortcut: Ambedkar's trade-off.** Stability (presidential) versus responsibility (parliamentary): the framers picked **responsibility**.

MY NOTES

ALSO IN THE HANDOUT

- Harmonious Relationship Between Legislature and Executive One of the foremost benefits of the parliamentary system is that it fosters coordination and cooperation between the legislature and the executive.
- ## Rationale Behind Adopting the Parliamentary System in India During the framing of the Indian Constitution, the choice between a parliamentary and a presidential system was a subject of extensive debate in the Constituent Assembly.
- Introducing a completely novel system like the US presidential model could have created administrative and political unfamiliarity, potentially destabilizing the newly independent nation.
- Prevention of Legislative–Executive Deadlocks The framers sought to minimise potential conflicts between the legislature and the executive, which are common in presidential systems.
- India, being a newly independent and diverse nation in 1947, could not risk prolonged deadlocks that might obstruct policy-making or social development.
- By allowing coalition-building and inclusive ministerial representation, this system fosters national integration and mitigates regional or communal alienation. For example, regional parties often secure ministerial positions in coalition governments, ensuring local interests are represented at the Centre.
- It concluded that the system had been functioning effectively and there was no pressing need to replace it with a presidential model, reaffirming the validity of the original choice. This committee's findings highlighted that, despite challenges like coalition politics, the parliamentary system remained the most suitable for India's democratic and socio-cultural landscape.
- By prioritizing responsibility and inclusivity over rigid stability, the framers created a flexible system capable of accommodating India's complex political and social realities.

INDIA AGAINST BRITAIN

- India draws on the **Westminster model** but is **not a carbon copy**.

SEVEN DIFFERENCES

#	Point	Britain	India
1	**Head of State**	Hereditary, ceremonial **monarch**	**Elected President** (Art. 52) by an electoral college of MPs and State legislators: a republic

MY NOTES

#	Point	Britain	India
2	**Supremacy**	**Parliamentary sovereignty**: Parliament is the supreme law-making body	**Written Constitution** supreme (Art. 13); Parliament limited by judicial review, Fundamental Rights (Part III) and federal division of powers (Seventh Schedule)
3	**PM's House**	PM must be a member of the **House of Commons**	PM may be from **either Lok Sabha or Rajya Sabha** (Arts. 75(5) and 164(1))
4	**Ministers**	Only elected MPs can be ministers	A non-member can be appointed if he becomes an MP **within six months** (Art. 75(5)); allows expert talent (finance, law, science and technology)
5	**Legal responsibility**	Ministers **countersign** the monarch's official acts	No countersigning; the President acts on the **binding advice** (Art. 74(1)); responsibility lies **collectively** with the council
6	**Shadow cabinet**	The opposition forms a **shadow cabinet**	**No formal shadow cabinet**; Leader of the Opposition (Arts. 100, 113 as cited) in both Houses has a partial role; committees like **Public Accounts and Estimates** oversee the government
7	**Federal and plural society**	Unitary, largely centralised	Union and States share an executive framework (Arts. 163-164); ministries reflect regional, linguistic and social diversity

CORE CONTRAST

- **Britain:**
  - Monarch
  - Parliamentary sovereignty
  - PM from Commons only
  - Only MPs as ministers
  - Countersignature
  - Shadow cabinet
  - Unitary
- **India:**
  - Elected President
  - Constitutional supremacy
  - PM from either House
  - Non-MP minister for six months
  - Collective responsibility, no countersigning
  - No formal shadow cabinet
  - Federal

MY NOTES

- **Memory aid (Seven differences):** **R**epublic, **S**upremacy of Constitution, **P**M from either House, **M**inisters from outside for six months, **L**egal responsibility (no countersign), **S**hadow cabinet absent, **F**ederal: "**R**ed **S**cooters **P**ass **M**any **L**ong **S**hiny **F**erries".
- **PYQ link:**
  - The quoted Prelims PYQ (2021) also treats a **Constitution Bench reference** on the constitutionality of an Amendment of an Act as a point where India differs from Britain
  - The handout's key says statements 1 (British Parliament sovereign, Indian Parliament limited) and 2 are **both correct**. The 1998 PYQ answer is **judicial review** (India has it, Britain does not)

HANDOUT ALERT

Handout alert: "Opposition Leader (Article 100, 113)" is cited as written in the handout; Articles 100 and 113 are quoted without further explanation in the material, so just remember the idea: India has a Leader of the Opposition but no formal shadow cabinet.

ALSO IN THE HANDOUT

- India adapted the system to its unique socio-political context, constitutional framework, and republican ethos. The differences between the Indian and British models can be understood across several dimensions:
- Monarchy One of the most fundamental distinctions lies in the nature of the Head of State.
- This republican feature ensures that India does not inherit any monarchical legacy, while maintaining the ceremonial and constitutional functions of the Head of State.
- India does not follow this procedure.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 13, PARLIAMENTARY SYSTEM

- Advice binding on the President: the 42nd (1976) and 44th (1978) Amendments made the ministers' advice binding.
- Collective responsibility is called the bedrock of the system: ministers act as a team and swim and sink together.
- Three Prime Ministers were Rajya Sabha members: Indira Gandhi (1966), Deve Gowda (1996) and Manmohan Singh (2004).
- The theory of separation of powers is from Montesquieu's The Spirit of Laws (1748), meant to protect individual liberty. K.T. Shah favoured the presidential system in the Constituent Assembly.
- Ramsay Muir's 'dictatorship of the cabinet' comes from his book How Britain is Governed.

MY NOTES

- Table 13.1, presidential features:
  - Single executive
  - President and legislators elected separately for a fixed term
  - Non-responsibility
  - Political homogeneity may not exist
  - Single membership
  - Domination of the President
  - No dissolution of the lower house
  - Separation of powers
- Table 13.1, presidential merits: stable government, definiteness in policies, separation of powers, government by experts. Demerits: conflict between legislature and executive, non-responsible government, possible autocracy, narrow representation.
- Lakshmikanth differs: its Table 13.1 lists fusion of powers as the 8th parliamentary feature, while its text and the handout give secrecy. Use the handout: secrecy.
- Lakshmikanth differs: it says ministers are responsible to Parliament in general and to the Lok Sabha in particular, while the handout says the Lok Sabha. For the exam write Lok Sabha (Art. 75(3)).

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Which Articles set up the parliamentary system at Union and State levels?	Arts. 74-75 (Union); Arts. 163-164 (States).
Another names for the parliamentary system?	Cabinet government, responsible government, Westminster model.
Who called it the cabinet system?	Ivor Jennings.
Who called the PM's role prime ministerial government?	Crossman and Mackintosh.
Which Article makes the council of ministers collectively responsible to the Lok Sabha?	Art. 75(3).
Which Article gives six months for a non-MP minister to become an MP?	Art. 75(5).
Which Article lets the President dissolve the Lok Sabha on the PM's advice?	Art. 85.
Who is the nominal and who the real executive in India?	President is nominal (de jure); PM is real (de facto).

What are the eight features?	Nominal-real executive; majority rule; collective responsibility; political cohesion; double membership; PM's leadership; dissolution of lower house; secrecy.
What is the Kitchen Cabinet?	An informal advisory body of the US President; appointed by him, responsible only to him, removable at will, not legislators.
What is the US presidential term and how is the President removed?	Four years, by electoral college; removal only by impeachment.
What does the "nominal" President's duty under Art. 74 require?	To act on the advice of the Council of Ministers led by the PM.
Five merits of the parliamentary system?	Harmony; responsible government; check on arbitrary authority; ready alternative government; broad representation.
Six limitations?	Instability; policy discontinuity; concentration of power in cabinet; fusion of powers; non-experts; coalition politics and regionalism.
Who warned of the dictatorship of the cabinet?	H.J. Laski and Ramsay Muir.
Which Governments are cited as short-lived?	Morarji Desai, Charan Singh, V.P. Singh, Chandra Sekhar, Deva Gowda, I.K. Gujral.
Who said the cabinet is a hyphen joining the buckle?	Walter Bagehot.
Why did the framers prefer the parliamentary system?	Familiarity (GoI Acts 1919, 1935), responsibility over stability (Ambedkar), no deadlock, diversity, flexibility, Swaran Singh Committee 1975.
What did Ambedkar say about stability and responsibility?	A democratic executive needs both, but no system guarantees both equally; the Assembly preferred responsibility.
Name the seven differences from the British model.	Republic (Art. 52); constitutional supremacy (Art. 13); PM from either House; non-member ministers for six months; no countersigning (Art. 74(1)); no formal shadow cabinet; federal and plural society.
Which committees oversee the government in India instead of a shadow cabinet?	Public Accounts Committee and Estimates Committee.

MY NOTES

Mains 2024: "The growth of cabinet system has practically resulted in the marginalisation of the parliamentary supremacy:" Elucidate.	Intro: The cabinet leads the executive and is drawn from the legislature, so a strong majority can dominate Parliament. Body: Collective responsibility to the Lok Sabha (Art. 75(3)) makes cabinet a team that carries the House; Fusion of powers: ministers sit in both organs, the cabinet a hyphen joining executive and legislature (Bagehot); With a strong majority the cabinet and PM can sideline legislative scrutiny: the dictatorship of the cabinet (Laski, Ramsay Muir), seen in the Indira Gandhi and Rajiv Gandhi eras; Prime ministerial government (Crossman, Mackintosh); Checks remain: no-confidence motion, question hour, debates, adjournment motions, Public Accounts and Estimates Committees; judicial review and Fundamental Rights limit Parliament. Close: Parliamentary supremacy needs real scrutiny of a strong cabinet, with the Constitution as the final limit.
Mains 2023: Compare and contrast the British and Indian approaches to Parliamentary sovereignty.	Intro: Britain follows parliamentary sovereignty; India follows constitutional supremacy. Body: Britain: Parliament is the supreme law-making body without constitutional constraint; India: written Constitution is supreme (Art. 13); Indian Parliament is limited by judicial review, Fundamental Rights (Part III) and the federal division of powers (Seventh Schedule); Britain is unitary, India federal and plural; Head of state: hereditary monarch in Britain, elected President (Art. 52) in India. Close: Both are Westminster-style, but India adapted the model to a written, supreme Constitution.

Trap 1 · Answerable to Lok Sabha, not the whole Parliament

Art. 75(3) makes the Council of Ministers collectively accountable to the Lok Sabha, and a no-confidence vote there removes the whole Council. *Rule: collective responsibility = Lok Sabha only.*

MY NOTES

Trap 2 · Which House the PM may come from

In Britain the PM must be in the House of Commons; in India the PM can belong to the Lok Sabha or the Rajya Sabha. A non-member can be a minister for 6 months (Art. 75(5)); British ministers are MPs. *Rule: India = either House + 6-month window; UK = lower house only.*

Trap 3 · Countersignature and legal responsibility

Britain makes ministers countersign the monarch's acts and bear legal responsibility. India has no such rule; the President acts on the binding advice of the Council (Art. 74(1)) and responsibility is collective. *Rule: countersignature = Britain; collective responsibility = India.*

Trap 4 · Who can dissolve and who can remove

The Indian President can dissolve the Lok Sabha on the PM's advice (Art. 85) and the government falls by no-confidence. The US President cannot dissolve the House and is removed only by impeachment. *Rule: parliamentary = dissolution + no-confidence; presidential = fixed term + impeachment.*

QUICK QUIZ

Q1. Which Articles provide the parliamentary system at the Union level?

1. Arts. 52 and 53
2. Arts. 74 and 75
3. Arts. 163 and 164
4. Arts. 85 and 86

Q2. The council of ministers is collectively responsible to which body, under Art. 75(3)?

1. Rajya Sabha
2. President
3. Lok Sabha
4. Supreme Court

Q3. A person who is not an MP can be a minister provided he becomes an MP within

1. One month
2. Three months
3. Six months
4. One year

Q4. Who dissolves the Lok Sabha according to the handout's features?

1. President on the PM's advice
2. PM alone
3. Speaker
4. Rajya Sabha Chairman

Q5. Which is a feature of the presidential system but not of India's?

1. Fixed tenure
2. Separation of powers
3. Non-dissolution of the legislature
4. All of the above

Q6. Which pair is correct?

1. UK PM: member of either House
2. India PM: member of either House
3. UK head of state: elected
4. India head of state: monarch

Q7. Which committee (1975) reaffirmed the parliamentary system for India?

1. Swaran Singh Committee
2. Sarkaria Commission
3. Punchhi Commission
4. Administrative Reforms Commission

MY NOTES

Q8. Which statement on the UK system is true according to the handout?

1. Ministers countersign the monarch's acts
2. The President acts on collective advice
3. There is no shadow cabinet
4. Written Constitution is supreme

Q9. "The leader of the opposition serves as an alternative Prime Minister" is attributed to

1. Bagehot
2. Ivor Jennings
3. Laski
4. Munshi

Q10. Which is an advantage listed for the parliamentary system?

1. Fixed tenure
2. Separation of powers
3. Ready alternative government
4. Non-responsibility to legislature

Q11. PYQ 2021: We adopted parliamentary democracy based on the British model, but how does our model differ from that model? [2021] 1) As regards legislation, the British Parliament is supreme or sovereign but in India, the power of the Parliament to legislate is limited. 2) In India, matters related to the constitutionality of the Amendment of an Act of the Parliament are referred to the Constitution Bench by the Supreme Court. Select the correct answer using the code given below.

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q12. PYQ 2021: With reference to India, consider the following statements: [2021] 1) There is only 'one citizenship and one domicile'. 2) A citizen by birth only can become the Head of State. 3) A foreigner once granted the citizenship cannot be deprived of it under any circumstances Which of the statements given above is/are correct?

1. 1 only
2. 2 only
3. 1 and 3
4. 2 and 3

Q13. PYQ 2015: There is a Parliamentary System of Government in India because the [2015]

1. Lok Sabha is elected directly by the people
2. Parliament can amend the constitution
3. Rajya Sabha cannot be dissolved
4. Council of Ministers is responsible to the Lok Sabha

Q14. PYQ 1998: The Indian parliamentary system is different from the British parliamentary system in that India has: [1998]

1. Both a real and a nominal executive
2. A system of collective responsibility
3. Bicameral legislature
4. The system of judicial review

Answers: Q1 b, Q2 c, Q3 c, Q4 a, Q5 d, Q6 b, Q7 a, Q8 a, Q9 b, Q10 c, Q11 c, Q12 a, Q13 d, Q14 d

MY NOTES

19 Federal System

CHAPTER 19 · HANDOUT, FEDERAL SYSTEM

MEDIUM PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **2017, 2021**

EXAM LENS

Prelims hooks

- federal versus unitary features
- Article 1 "Union of States"
- why states are destructible (Art. 3)
- single citizenship (Art. 5)
- Art. 248 residuary power, Art. 254 conflict rule, Art. 249 Parliament over State List
- independent judiciary as an essential federal feature (PYQ 2021)
- "result of an agreement among the federating units" is not a feature of Indian federalism (PYQ 2017).
- Handout stresses: A nine-row table Federal versus Unitary, and a ten-row table India versus USA (Comparison sections)
- Handout stresses: Seven federal and fourteen unitary features of India, each with its Article (Features sections)
- Handout stresses: Two Prelims PYQs (2017, 2021) and one Mains PYQ block (2022 stem, with questions of 2020, 2019, 2015, 2014, 2013 listed alongside) (PYQ section)
- Handout stresses: S.R. Bommai v. Union of India (1994): federalism is a basic feature (Evaluation section)

Mains hooks

- quasi-federal India (Wheare)
- cooperation, competition and confrontation (2020 stem)
- centralisation versus State autonomy and regional parties (2022 stem)
- cooperative federalism drawbacks (2019)
- strong Centre against basic-feature federalism (2015)
- principle of federal supremacy and harmonious construction (2019 stem as listed)
- inter-state water disputes (2013).

India is a Union that is federal in structure and unitary in tilt: indestructible Union, destructible States, and a Constitution that works as unitary or federal as the need arises.

MY NOTES

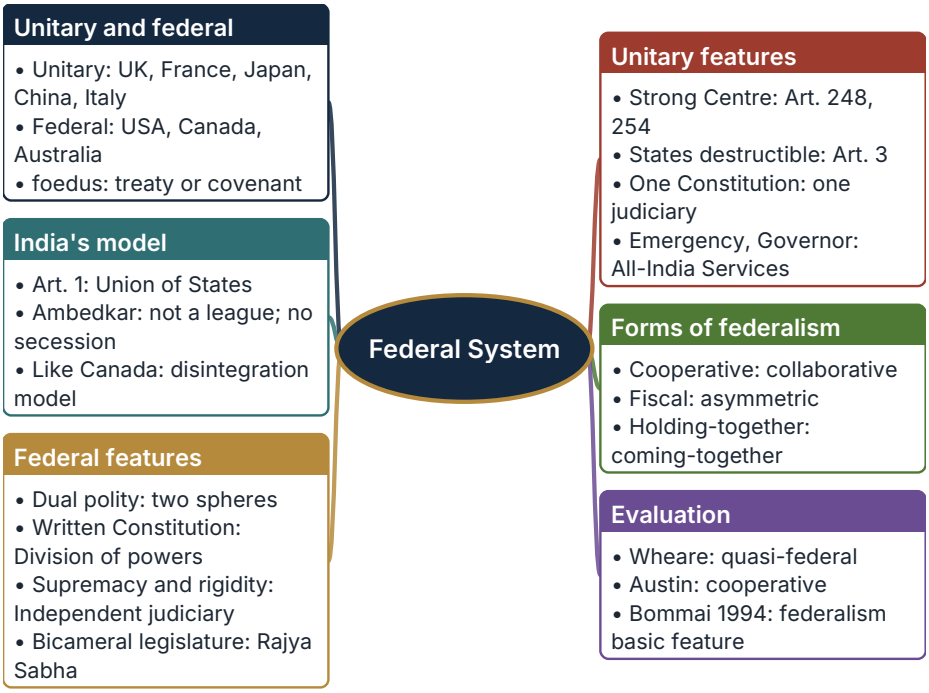
IN SIMPLE WORDS

- Governments are either **unitary** (all power at the centre: UK, France, Japan, China, Italy) or **federal** (power divided by the Constitution: USA, Canada, Switzerland, Australia).
- India is a **Union of States** (**Art. 1**), a **federation with a strong Centre**. Ambedkar chose 'Union' because the states did not make an agreement to form it and they cannot **secede**.
- India has **7 federal features**: dual polity, written Constitution, division of powers, supremacy of the Constitution, rigidity, independent judiciary and bicameral legislature.
- India also has **14 unitary features**, such as a strong Centre, destructible states, single citizenship, the Governor, emergency powers and All-India Services. So K.C. Wheare called it **quasi-federal**.
- Others see the federal spirit: Austin's **cooperative federalism**, Morris Jones' **bargaining federalism**, Alexandrowicz's **sui generis**. **S.R. Bommai (1994)** held federalism a **basic feature**.

Key term	In plain words
Unitary system	Central authority holds all power; regional bodies are subordinate (UK, France, Japan, China, Italy)
Federal system	Constitution divides power between national and regional governments, each independent in its own field (USA, Canada, Switzerland, Australia)
Foedus	Latin word for treaty or covenant; the root of the word 'federation'
Dual polity	Two governments, the Union and the States, both created by the Constitution
Quasi-federal	K.C. Wheare's label: a unitary state with subsidiary federal features
Residuary powers (Art. 248)	Subjects in none of the three lists; they belong to the Union
Asymmetric federalism	Units have unequal powers or status under one Constitution (for example the special provisions of Art. 371A-H, J)
Holding-together / coming-together	Holding-together: a large unitary state decentralises (India). Coming-together: independent units join (USA)

MY NOTES

MEMORY MAP: FEDERAL SYSTEM



MNEMONIC · SEVEN FEDERAL FEATURES

Dual Wheels Drive Strong Republic In Balance

- **D** Dual polity: Union and States
- **W** Written Constitution
- **D** Division of powers (Seventh Schedule)
- **S** Supremacy of the Constitution
- **R** Rigid Constitution (federal parts)
- **I** Independent judiciary
- **B** Bicameral legislature

India runs on two wheels, Union and States, driving a strong republic in balance. Order is free here: no clean word exists, so this sentence is the memory aid. (Memory aid, not from the handout.)

MNEMONIC · UNITARY FEATURES 1 TO 7

SURFACE

- **S** Single citizenship
- **U** Unprotected states: Parliament can alter their area, boundaries or name (Art. 3)
- **R** Representation of states unequal in the Rajya Sabha
- **F** Flexible amendment procedure
- **A** Authority of the Centre is strong
- **C** Constitution is single for the Centre and states
- **E** Emergency provisions

The unitary features SURFACE beneath the federal skin: these are the first seven in the handout. The order is rearranged for memory (the features are unordered). (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · UNITARY FEATURES 8 TO 14

SPECIAL

- **S** Services: All-India Services
- **P** Presidential veto over state bills
- **E** Election machinery integrated
- **C** Centralised audit and financial control (CAG)
- **I** Integrated judiciary
- **A** Agent of the Centre: the Governor
- **L** Law-making by Parliament on State List subjects (Art. 249)

India is a SPECIAL federation (the handout quotes Alexandrowicz: sui generis, a case of its own). These are unitary features 8 to 14, with the order rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · INDIA COPIED CANADA, NOT THE USA

Delhi Understudied Canada

- **D** Disintegration of a unitary state (formation)
- **U** Union as the preferred term
- **C** Centralising tendency, a strong Centre

India studied the Canadian model: formed by disintegration, called a Union, and tilted to the Centre. Order is free here: no clean word exists, so this sentence is the memory aid. (Memory aid, not from the handout.)

UNITARY AGAINST FEDERAL SYSTEMS

- Governments are classed by how power is shared between the national and regional levels.

UNITARY AGAINST FEDERAL

- **Unitary:**
  - The **central authority holds supreme power**
  - All administrative and legislative powers sit with the national government
  - Regional or local bodies are **subordinate agencies**, do delegated duties, and cannot act independently or claim constitutional status
  - Examples: United Kingdom, France, Japan, China, Italy
- **Federal:**
  - **Constitutional division of powers** between two distinct levels, national (central or union) and regional (state or provincial)
  - Both derive authority **directly from the Constitution** and act autonomously in their spheres
  - Neither is subordinate to the other in its own field
  - Examples: United States, Canada, Switzerland, Australia, Russia, Brazil, Argentina
- In a federation the national authority is the Federal or Union Government

MY NOTES

- The sub-national units are called States, Provinces or Republics

THE NINE-POINT COMPARISON

#	Basis	Federal government	Unitary government
1	**Structure of authority**	Two distinct levels, national and regional; both derive power from the Constitution	One central authority with supreme control; regional bodies, if created, are subordinate to the centre
2	**Source of power**	The Constitution divides powers, ensuring autonomy for both within their jurisdictions	The national government is the sole source of authority and may delegate or withdraw powers at its discretion
3	**Nature of Constitution**	Written and codified, with functions and powers of each level clearly specified	Written or unwritten: written in France, unwritten in the UK
4	**Distribution of powers**	Constitutionally distributed by clear demarcation of subjects	No constitutional division; national legislature has comprehensive authority
5	**Supremacy**	The Constitution is supreme; both levels act within its framework	Parliament or national legislature is supreme; the Constitution may or may not have higher authority (UK)
6	**Amendments**	**Rigid**; cannot be amended easily without participation of both national and regional governments	Generally **flexible**; the centre can amend without consulting regional entities
7	**Role of judiciary**	Independent; safeguards the Constitution, settles Centre-State disputes, upholds rule of law	May or may not be independent; in some unitary states it works under the legislature or executive
8	**Legislative structure**	Usually **bicameral**: one house represents the people, the other the constituent units	Unicameral or bicameral, depending on tradition and design
9	**Examples**	United States, Canada, Australia, India, Switzerland	United Kingdom, France, Japan, China, Italy

QUICK CONTRAST ON DEPENDENCE

	Federal	Unitary
Relation	Independent of each other; coordinate with each other	States dependent on the Union; subordinate to the Union

ORIGIN OF THE WORD

- **Federation** comes from the Latin **foedus**: a treaty or covenant.

MY NOTES

- Historically, several units or provinces agreed to unite under a common constitution while keeping some self-rule: a new arrangement by mutual consent, balancing unity with regional autonomy.
- Units are named **States** (USA), **Cantons** (Switzerland), **Provinces** (Canada), **Republics** (Russia): all share the principle of constitutionally guaranteed powers.
- **Memory aid (Federal traits): S**tructure two-tier, **D**istribution of powers, **W**ritten constitution, **S**upremacy of Constitution, **R**igidity, **J**udiciary independent, **B**icameral: "**S**ome **D**ancers **W**ear **S**ilver **R**ed **J**ackets, **B**ravo!"
- **Shortcut: Unitary versus federal.** Federal = **two levels, both from the Constitution, rigid, written**. Unitary = **one centre, delegates downward, flexible**.

ALSO IN THE HANDOUT

- ## Federal System ## Understanding the Federal System of Government Governments across the world are broadly organised according to how power is shared between the national and regional levels.
- By distributing powers between the Union and the states, the Constitution aimed to accommodate local aspirations while preserving the cohesion of the country as a whole.
- This contrasts with countries like the U.S., where state finances are audited independently.
- Contrary to such centralisation critiques, other scholars emphasise India's federal spirit.

INDIA'S MODEL: A UNION WITH A FEDERAL STRUCTURE

- India is a **"Union of States"** with a federal structure and strong unitary features. The Constitution creates a **dual polity** (Union and States) but adds single citizenship, a strong Centre in some matters and emergency powers, so Indian federalism is **flexible rather than rigid**. This hybrid helps keep national unity while allowing regional autonomy.

HOW FEDERATIONS ARISE

INTEGRATION AGAINST DISINTEGRATION

- **Integration (coming together):**
  - Several independent or semi-independent states, often smaller, join to form a larger entity
  - **USA**: thirteen colonies came together in **1787** after the American Revolution (**1775–1783**), now fifty states

MY NOTES

- **Disintegration (holding together):**
  - A previously unitary state becomes a federation by granting constitutional powers to its provinces
  - **Canada**: four provinces in **1867**, now ten

WHY INDIA CHOSE FEDERALISM

- Vast **geographical expanse** and socio-cultural **diversity** (many languages, religions, traditions) make decentralised governance essential.
- Aim: efficient governance and harmony of **national unity with regional autonomy**.

"UNION OF STATES"

- The Constitution does **not use the word "federation"**
- **Art. 1** says "Union of States"
- **Ambedkar** said the wording was intentional: India's federation is **not an agreement among sovereign states** as in the USA, and the units **cannot secede**.
- So the Indian Union is **indestructible**: a Centre strong enough to protect integrity, with States autonomous in their constitutional spheres.

CANADA, NOT THE USA

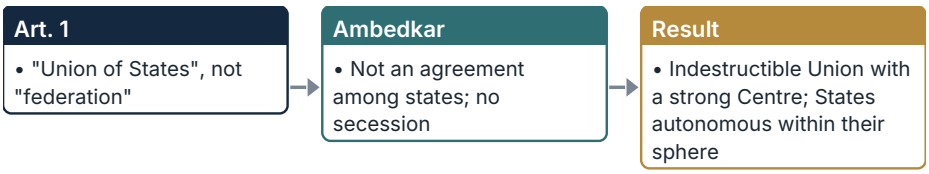
- India is compared to **Canada**: formed by the disintegration of a larger unitary state (the British colonial administration), then powers were granted to provinces.
- The Constitution has a **centralising tendency**: residuary powers, state reorganisation, emergency provisions.
- Both India and Canada use the term **Union** to stress an **indissoluble** federation.
- The US model is a **treaty among independent states** with stronger safeguards for state sovereignty.

WHY INDIA IS "UNION OF STATES"

- **Art. 1**: "Union of States", not "federation"
- **Ambedkar**:
  - Not an agreement among states
  - No secession
- **Result**:
  - Indestructible Union with a strong Centre
  - States autonomous within their sphere

MY NOTES

WHY INDIA IS "UNION OF STATES"



- **Memory aid (Canada match):**
  - **C**anada and India: formed by **D**isintegration
  - Both say **U**nion: "**C**anada **D**oes **U**nion"

ALSO IN THE HANDOUT

- Ambedkar, in the Constituent Assembly debates, clarified that this terminology was intentional.
- A single constitutional document promotes uniformity and legal coherence across the country.
- This balance is reflected in several practical manifestations of federalism in India.

SEVEN FEDERAL FEATURES

FEDERAL FEATURES OF THE CONSTITUTION

#	Feature	Content
1	**Dual polity**	Two spheres: Union at the centre, States at the periphery, each independent in its domain. **Union**: defence, foreign affairs, currency, communications, inter-state trade (Art. 246, Union List). **States**: public order, agriculture, health, local governance, police (State List)
2	**Written Constitution**	Originally **Preamble, 395 Articles, 8 Schedules**; now (2025) Preamble, about **470 Articles** in **25 Parts**, **12 Schedules**. Defines structure, powers, limits of each level and reduces conflict
3	**Division of powers**	**Seventh Schedule**: Union List (Parliament only, currently **98**), State List (State legislatures, currently **59**), Concurrent List (both, currently **52**). Concurrent conflict: **Union law prevails (Art. 254)**. **Residuary powers** with the Union (**Art. 248**)
4	**Supremacy of the Constitution**	Binds Union and States; laws or acts that violate it may be struck down by the **Supreme Court or High Courts** through judicial review (**Arts. 13, 32, 226**)
5	**Rigidity**	Amendments affecting federal features (Centre-State relations, powers of the judiciary, legislative competencies) need a **special majority in Parliament** and **ratification by at least half of the State legislatures** (**Art. 368**)
6	**Independent judiciary**	Headed by the Supreme Court; **dual role**: protects supremacy of the Constitution by judicial review, and decides disputes between Union and States or among States (**Art. 131**); security of tenure, fixed service conditions, protection against arbitrary removal

MY NOTES

#	Feature	Content
7	**Bicameral legislature**	**Rajya Sabha** represents the States, **Lok Sabha** the people; Rajya Sabha has less power but protects State interests, mainly when Union legislation touches State subjects (**Arts. 80, 249**)

- **Memory aid (Seven federal features):** **D**ual polity, **W**ritten constitution, **D**ivision of powers, **S**upremacy, **R**igidity, **I**ndependent judiciary, **B**icameralism: "**D**ear **W**riters, **D**on't **S**kip **R**eading **I**ndian **B**ooks".
- **Shortcut: Article anchors for federal features.** Powers: **246** (Union List), **248** (residuary), **254** (conflict). Judiciary: **13, 32, 226, 131**. Amendment: **368**. House of States: **80, 249**.

> **HANDOUT ALERT**
> Handout alert: The Union, State and Concurrent List counts are given here as **98, 59, 52**. The Schedules chapter gives **97, 61, 52**. Use the **98, 59, 52** figures of this Part and check your class notes before quoting either.

ALSO IN THE HANDOUT

- It also defines the limits within which each level of government can operate, thereby reducing potential conflicts and misunderstandings between the two tiers of governance.

FOURTEEN UNITARY FEATURES

- These make the Union far stronger than the States and give the label "**quasi-federal**" or "**federation with a strong Centre**".

UNITARY FEATURES OF THE CONSTITUTION

#	Feature	Content
1	**Strong central authority**	Union List has more subjects than State List; defence, foreign affairs, currency are with the Union (Art. 246); Union prevails in Concurrent conflicts (Art. 254); **residuary powers** with the Union (Art. 248)
2	**States not indestructible**	Parliament can alter area, boundaries or name of a State by **simple majority (Art. 3)**; in Ambedkar's words the States are "**destructible**", the Union indestructible
3	**Single Constitution**	Union and States work under one Constitution (Arts. 245, 246); only exception: **Jammu and Kashmir**, with its own Constitution until **2019**
4	**Flexible amendment**	Most provisions can be amended by **Parliament alone** (Art. 368); only amendments touching the Centre-State balance need ratification by at least half the States

MY NOTES

#	Feature	Content
5	**Unequal representation**	Rajya Sabha seats are by **population** (Art. 80); larger States get more. The US Senate gives equal representation
6	**Emergency provisions**	**National, State, Financial** (Arts. 352-360); the Union gets legislative and executive authority over the States; federal structure becomes effectively unitary
7	**Single citizenship**	**Art. 5**; unlike the US, Switzerland or Australia with national and state citizenship; same rights everywhere
8	**Integrated judiciary**	Supreme Court at the top, High Courts in States (**Arts. 124-237**); applies Union and State laws; unlike separate US federal and state courts
9	**All-India Services**	IAS, IPS, IFS (**Arts. 312-323**); recruited and controlled by the Union, deployed in States
10	**Centralised audit**	**CAG** audits Union and State accounts (**Arts. 148-151**); appointed by the President without State consultation
11	**Parliament over State List**	Parliament may legislate on a State List subject if the **Rajya Sabha passes a resolution** declaring it in the national interest (**Art. 249**); no amendment needed
12	**Governor as Central agent**	Appointed by the President (**Art. 155**), holds office at his pleasure; may reserve bills for the President; US States elect their heads
13	**Integrated election machinery**	**Election Commission** conducts Union and State elections (**Art. 324**), constituted by the President
14	**Presidential veto over State bills**	The Governor can reserve certain State bills for the President, who may **withhold assent even upon re-submission** (**Art. 200**): an absolute veto

- **Memory aid (Fourteen unitary features):**
  - **S**trong Centre, **S**tates destructible, **S**ingle Constitution, **F**lexible amendment, **U**nequal RS seats, **E**mergency, **S**ingle citizenship, **I**ntegrated judiciary, **A**ll-India Services, **C**AG, **P**arliament over State List, **G**overnor, **E**lection Commission, **V**eto: "**S**even **S**ailors **S**ang **F**our **U**seful **E**nglish **S**ongs
  - **I A**dded **C**arefully **P**erfect **G**uitar **E**ndings **V**ividly"
- **Shortcut: Unitary shortcut. Lists, Land (Art. 3), Law (one Constitution, one judiciary, one citizenship), Leaders (Governor, AIS, CAG, EC), Crisis (Emergency), Council (RS by population).**

HANDOUT ALERT

Handout alert: The Governor's reservation and the "absolute veto" is cited to **Art. 200** in the handout. Quote it as the handout does: Art. 200, reservation for the President, who may withhold assent even on re-submission.

MY NOTES

PARLIAMENT OVER A STATE LIST SUBJECT

- **RS resolution**: The Rajya Sabha declares it is in the national interest (Art. 249)
- **Parliament legislates**: On the State List subject
- **No amendment**: The Union overrides State competence without amending the Constitution

FORMS OF FEDERALISM

SEVEN FORMS

Form	Meaning
Cooperative	Union and States share functions and cooperate through coordination, joint programmes and institutions
Collaborative	Union and States jointly design, implement and monitor policies through formal consultation
Competitive	States (and sometimes local bodies) compete for investment, talent and resources inside a national framework
Fiscal	Division of taxing powers, expenditure responsibilities and transfers between levels
Asymmetric	Different units have unequal powers, status or autonomy under one federal Constitution
Holding-together	A large unitary state decentralises downward to keep unity (e.g. **India**)
Coming-together	Previously independent units voluntarily join and share sovereignty (e.g. **USA**)

- **Memory aid (Seven forms):** **C**ooperative, **C**ollaborative, **C**ompetitive, **F**iscal, **A**symmetric, **H**olding-together, **C**oming-together: "**C**ats **C**an **C**limb **F**ences **A**fter **H**ot **C**hases".

ASYMMETRIC FEDERALISM

- India shows **asymmetry** on two axes: **vertical** (Centre against States) and **horizontal** (among States). Causes: historical compulsion, socio-cultural diversity and the need for unity within pluralism.

DIMENSIONS OF ASYMMETRY

Dimension	Vertical (Centre-State)	Horizontal (State-State)	Implication
Nature	Unequal power and fiscal dominance of the Union over States	Unequal autonomy, resources and fiscal treatment among States	India's quasi-federal tilt, with varied decentralisation

MY NOTES

Dimension	Vertical (Centre-State)	Horizontal (State-State)	Implication
Legislative powers	Union List more expansive; residuary powers with Parliament (Art. 248)	Special provisions (**Arts. 371A-H, J**) give some States cultural or administrative autonomy	Balances national unity and regional aspiration
Emergency provisions	**Arts. 352, 356, 360** let the Union override State autonomy (e.g. **Uttarakhand 2016, Maharashtra 2019**)	**J&K before 2019** under special rules; **North-East States with AFSPA**	Crises reinforce the Centre; breed trust deficit
Financial powers	Union controls buoyant taxes; States rely on **Finance Commission** transfers; **Art. 293** restricts borrowing	Finance Commissions and GST Council devolve funds unevenly (NE and poorer States get higher shares; **15th FC** added performance-linked criteria)	Vertical dependency; horizontal redistribution tensions
Political status	**Governors** (appointed by the President) act as the Union's representatives, often politicised	**Union Territories** like Delhi and Puducherry have limited powers; **J&K downgraded post-2019**: extreme asymmetry	Frictions vertically; regional resentment horizontally
Economic outcomes	Strong fiscal centralisation limits State policy flexibility	Rich States (**Maharashtra, Tamil Nadu**) draw more investment; **BIMARU** States rely on central transfers	Widening development gap; calls for fiscal federalism reform

- **Memory aid (Asymmetry rows):** **N**ature, **L**egislative, **E**mergency, **F**inancial, **P**olitical status, **E**conomic outcomes: "**N**ew **L**eaders **E**ven **F**ight **P**oor **E**conomies".

INDIA AGAINST THE USA

TEN DIMENSIONS

Dimension	India	United States
Nature of federalism	**Quasi-federal** with unitary bias; Centre stronger (**K.C. Wheare**: quasi-federal)	**True dual federalism**; Union and States sovereign in their domains
Source of authority	States derive power from the Constitution; they are **creations of Parliament**	States pre-existed and **voluntarily created the Union**; sovereignty partly kept
Creation and status of States	Parliament (**Arts. 3 and 4**) can alter boundaries, names, even existence **without State consent**	Once admitted, States have **indestructible and equal** status; Union cannot alter them alone

MY NOTES

Dimension	India	United States
Distribution of powers	**Three lists** (Union, State, Concurrent) in the Seventh Schedule; Union dominates residuary powers	**Two-fold** distribution: federal and state subjects, with exclusive domains
Supremacy	Constitution supreme but **Centre prevails in conflicts** (**Arts. 249, 250, 254**)	Constitution supreme; federal and state laws equally supreme in their spheres
Judiciary's role	Supreme Court decides Centre-State disputes, often reinforcing Union tilt (**S.R. Bommai**)	US Supreme Court is neutral umpire protecting States' rights (**McCulloch v. Maryland**)
Amendment	Mainly by Parliament; only some amendments need State ratification (**Art. 368**)	Very rigid: **2/3 Congress** approval plus **3/4 State ratification**
Emergency powers	Union can override State powers in National, State or Financial Emergencies	No emergency override; States keep autonomy in crises
Citizenship and finance	**Single citizenship**; Centre controls key taxes; States depend on transfers (Finance Commissions, GST)	**Dual citizenship** (US plus State); States have wider fiscal autonomy and tax income, sales and property

CORE CONTRAST

- **India:**
  - Union of States
  - Quasi-federal
  - States created by Parliament
  - Lists
  - Flexible-rigid mix
  - Emergency override
  - Single citizenship
- **USA:**
  - Federation by agreement
  - True dual federalism
  - States create Union
  - Two-fold distribution
  - Very rigid
  - No emergency override
  - Dual citizenship
- **Memory aid (US contrast):** **N**ature, **S**ource, **C**reation of States, **D**istribution, **S**upremacy, **J**udiciary, **A**mendment, **E**mergency, **C**itizenship-and-finance: "**N**o **S**ister **C**ares **D**eeply **S**ince **J**uly **A**s **E**very **C**ousin".

MY NOTES

- **PYQ link:**
  - **PYQ 2017**: "It is the result of an agreement among the federating units" is **not** a feature of Indian federalism
  - India is not formed by a treaty among States (Art. 1 "Union", Ambedkar). **PYQ 2021**: the federal essential in the options is the **independence of judiciary** (the answer option)

ALSO IN THE HANDOUT

- All Indian citizens enjoy the same rights and privileges throughout the country, reinforcing national unity and eliminating potential fragmentation.
- One of the primary reasons for India's centralising bias, as noted by K.

EVALUATING THE FEDERAL CHARACTER

- India's Constitution blends federal and unitary elements, so experts call it "**quasi-federal**".

SCHOLARS AND VERDICTS

Scholar	View
K.C. Wheare	**Quasi-federal**: "a unitary state with subsidiary federal features rather than a federal state with subsidiary unitary features"
K. Santhanam	Financial dependence of States on Union grants and central planning (the erstwhile **Planning Commission**) centralised power; "India has practically functioned as a unitary state, though Union and States have tried to function legally as a federation"
Paul Appleby	"**Extremely federal**"
Morris Jones	"**Bargaining federalism**": neither Centre nor States can impose their will absolutely
Ivor Jennings	"A federation with a strong centralising tendency"; also quoted as "mainly federal, with unique safeguards for enforcing national unity and growth"
Granville Austin	**Cooperative federalism**: Centre is strong but States are not weak or subordinate; "designed to meet India's peculiar needs"; federation built for diversity with strength at the Centre
Alexandrowicz	India is **sui generis**: a unique case not fitting classical models
Ambedkar	**Dual polity**: Union and States co-created by the Constitution, deriving power directly from it (**Arts. 245-255**); neither mere administrative extensions nor sovereign units; the Constitution can work as **unitary or federal** depending on circumstances

- **Memory aid (Scholar set): W**heare quasi, **S**anthanam unitary in practice, **A**ppleby extremely federal, **M**orris Jones bargaining,

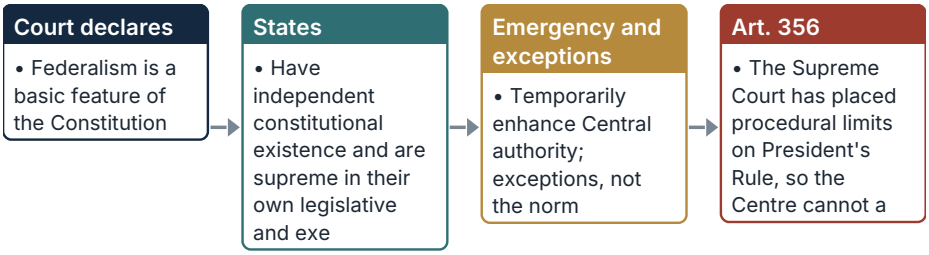
MY NOTES

Jennings strong centre, Austin cooperative, Alexandrowicz sui generis, Ambedkar dual polity: "Why So Angry, Mr Jones? Austin Asked Ambedkar".

S.R. BOMMAI V. UNION OF INDIA (1994)

- **Court declares**: **Federalism is a basic feature** of the Constitution
- **States**: Have independent constitutional existence and are **supreme in their own legislative and executive spheres**
- **Emergency and exceptions**:
  - Temporarily enhance Central authority
  - **exceptions, not the norm**
- **Art. 356**: The Supreme Court has placed **procedural limits** on President's Rule, so the Centre cannot arbitrarily dismiss State governments

S.R. BOMMAI V. UNION OF INDIA (1994)



BALANCE OF TWO NEEDS

- **Meaningful State autonomy:**
  - Division of powers
  - States as independent units in their domains
- **Strong Union:** Protects national integrity, especially in crises

FEDERALISM AT WORK IN PRACTICE

- **Territorial dispute**: Maharashtra and Karnataka over **Belgaum**.
- **River dispute**: **Cauvery**, Karnataka and Tamil Nadu (Art. 262, Inter-State River Water Disputes Act).
- **Regional parties**: Tamil Nadu, Andhra Pradesh, West Bengal.
- **New States** for regional aspirations: **Jharkhand, Mizoram**.
- Demands for greater **fiscal devolution**.

KEY CONSTITUTIONAL PROVISIONS LISTED

Article	Provision
1	India: "A Union of States"
245-255	Distribution of legislative powers (especially **246**) and the Seventh Schedule
262	Parliament may provide for adjudication of inter-state water disputes (Inter-State River Water Disputes Act)

MY NOTES

Article	Provision
263	Inter-State Council: cooperation mechanism
352-360	Emergency provisions: national, state, financial
368	Amendment procedure; some amendments need State ratification

HANDOUT ALERT

Handout alert: Jennings is quoted in two ways: "a federation with a strong centralising tendency" (evaluation section) and "mainly federal, with unique safeguards for enforcing national unity and growth" (quotes section). Both come from the handout; use the first for "centralising tendency" questions.

ALSO IN THE HANDOUT

- Furthermore, the assertion of state autonomy is also visible in judicial interventions.
- Article 1 — India: “A Union of States.” 15.

QUOTES BANK

QUOTES ON INDIAN FEDERALISM

Theme	Speaker	Quote
Nature	**Ambedkar**	"The Constitution is a federal Constitution inasmuch as it establishes a dual polity. Both Union and States derive their authority from the Constitution."
Nature	**Wheare**	"The Indian Union is a unitary state with subsidiary federal features, rather than a federal state with subsidiary unitary features."
Nature	**Alexandrowicz**	"India is a case sui generis: a unique example of federalism not fitting neatly into classical models."
Cooperative	**Granville Austin**	"India's federalism is essentially cooperative federalism, designed to meet India's peculiar needs."
Cooperative	**Supreme Court (S.R. Bommai, 1994)**	"Greater power to the Centre does not make States mere appendages; within their allotted sphere, they are supreme."
Cooperative	**Ivor Jennings**	"The Indian Constitution is mainly federal, with unique safeguards for enforcing national unity and growth."
Bargaining	**Morris Jones**	"Indian federalism is a bargaining federalism, where neither Centre nor States can impose their will absolutely."

MY NOTES

Theme	Speaker	Quote
Unitary in practice	**K. Santhanam**	"India has practically functioned as a unitary state, though Union and States have tried to function legally as a federation."
Unity and diversity	**Granville Austin**	"The Constitution created a federation to accommodate India's diversity, but with strength at the Centre to maintain unity."
Unity and diversity	**Ambedkar**	"India is a Union of States, not a league of States. The federation is not the result of an agreement, nor can States secede."

- **Shortcut: Quote shortcut. Dual polity = Ambedkar. Quasi = Wheare. Cooperative = Austin. Bargaining = Morris Jones. Sui generis = Alexandrowicz. Appendages = Bommai.**

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 14, FEDERAL SYSTEM

- Original counts of the lists: Union List 97 subjects (now 98), State List 66 (now 59), Concurrent List 52 (originally 47).
- The Constitution began with a Preamble, 395 Articles in 22 Parts and 8 Schedules
- Now about 470 Articles, 25 Parts and 12 Schedules. Amendments since 1951 deleted about 20 Articles and Part VII, and added about 95 Articles, four Parts (IVA, IXA, IXB, XIVA) and four Schedules (9 to 12)
- For comparison: the American Constitution originally had only 7 Articles, the Australian 128 and the Canadian 147.
- Special majority, used for the rigid federal provisions: two-thirds of members present and voting, plus a majority of the total membership of each House.
- The US is 'an indestructible Union of indestructible states'
- India is 'an indestructible Union of destructible states'. Residuary powers rest with the states in the USA but with the Centre in India
- Rajya Sabha seats range from 1 to 31 per state, while the US Senate has 100 members, two per state, a safeguard for small states. Only the Centre can initiate a constitutional amendment
- In the USA states can also propose one
- Art. 249 lets Parliament legislate on a State List subject by Rajya Sabha resolution even when there is no emergency of any kind. For Governor and veto: India copied the Canadian system of an appointed Governor
- The President has an absolute veto, not a suspensive one, over reserved state bills

MY NOTES

- All-India Services are recruited and trained by the Centre, which holds the ultimate control. Lakshmikanth says they violate the principle of federalism.
- Ambedkar in the Constituent Assembly:
  - The Union is not a league of states, nor are states agencies of the Union
  - The Centre cannot alter the line of partition by its own will, and neither can the judiciary. The states are not mere municipalities
- Bommai (1994) adds:
  - States are 'not satellites or agents of the Centre'
  - Emergency override is an exception, not the rule
  - Federalism is a matter of principle, not administrative convenience. Telangana is another new state created for regional aspirations
  - The Planning Commission was replaced by NITI Aayog in 2015

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

What is a unitary government?	Central authority holds supreme power; regional bodies are subordinate and act under delegation (UK, France, Japan, China, Italy).
What is a federal government?	Constitutional division of powers between national and regional levels; both derive authority from the Constitution (USA, Canada, Switzerland, Australia, Russia, Brazil, Argentina).
Origin of the word federation?	Latin foedus: treaty or covenant.
What are federal units called in different countries?	States (USA), Cantons (Switzerland), Provinces (Canada), Republics (Russia).
Which Article calls India a Union of States and why?	Art. 1; Ambedkar: not an agreement among sovereign States and States cannot secede.
Integration versus disintegration federations?	Integration: USA 1787 (thirteen colonies, now fifty). Disintegration: Canada 1867 (four provinces, now ten); India is compared to Canada.

List the seven federal features.	Dual polity; written Constitution; division of powers; supremacy of Constitution; rigidity; independent judiciary; bicameral legislature.
What are the sizes of the Constitution originally and now (2025)?	395 Articles and 8 Schedules; about 470 Articles in 25 Parts and 12 Schedules.
Union, State, Concurrent List counts in this chapter?	98, 59, 52.
Conflict on Concurrent List: which prevails and under which Article?	Union law, Art. 254.
Who holds residuary powers and under which Article?	The Union, Art. 248.
Which Articles give judicial review?	Arts. 13, 32, 226.
Which Article gives the Supreme Court original jurisdiction in disputes between Union and States?	Art. 131.
Why is the Indian State "destructible"?	Parliament can alter area, boundaries or name by simple majority under Art. 3 (Ambedkar's word).
Which Constitution did J&K have until 2019?	Its own Constitution, the only exception to the single Constitution.
How are Rajya Sabha seats allocated?	By population (Art. 80); the US Senate gives equal representation.
Which Articles cover Emergency provisions?	Arts. 352-360: national, State, financial.
All-India Services: Articles and examples?	Arts. 312-323; IAS, IPS, IFS.
Which Articles cover the CAG?	Arts. 148-151.
Who appoints Governor and which Article?	The President, Art. 155; holds office at his pleasure.
Which body conducts Union and State elections?	Election Commission, Art. 324.
What is cooperative federalism?	Union and States share functions and cooperate through coordination, joint programmes and institutions.
What is asymmetric federalism?	Different units enjoy unequal powers, status or autonomy under the same federal Constitution.

MY NOTES

Holding-together versus coming-together?	Holding-together: unitary state decentralises (India). Coming-together: independent units join (USA).
Special provisions for some States?	Arts. 371A-H, J: cultural and administrative autonomy.
Who called India quasi-federal?	K.C. Wheare.
Who called India's federalism cooperative?	Granville Austin.
Who called India sui generis?	Alexandrowicz.
What did Bommai (1994) hold on federalism?	Federalism is a basic feature; States are supreme in their own spheres; Emergency powers are exceptions.
Which Article is the Inter-State Council and which the water dispute provision?	Art. 263 and Art. 262.
Mains 2022: While the national political parties in India favour centralisation, the regional parties are in favour of State autonomy." Comment.	Intro: Indian federalism leans to a strong Centre, while regional parties assert State interests. Body: Unitary tilt: Union List larger, residuary power Art. 248, Art. 3, Emergency, Governor, Art. 249; Federal features: dual polity, division of powers, independent judiciary, bicameral Rajya Sabha, rigidity; Regional assertion: Belgaum, Cauvery, rise of regional parties, new States, demand for fiscal devolution; Fiscal dependence on Finance Commission and GST Council, with Art. 293 limits on borrowing; Bommai 1994: federalism is a basic feature; Art. 356 has procedural limits. Close: Cooperative federalism (Austin) and bargaining federalism (Morris Jones) show that Centre and States need each other.

Trap 1 · Federation or Union

The word 'federation' is not used in the Constitution. Art. 1 says 'Union of States'. Ambedkar: it is not the result of an agreement among states, and states cannot secede. *Rule: write 'Union of States' with a federal structure; never 'federation of sovereign states'.*

Trap 2 · Indestructible union, destructible states

Parliament can change the area, boundaries or name of a state by simple majority (Art. 3). In the USA states are indestructible. *Rule: India = indestructible Union of destructible states.*

MY NOTES

Trap 3 · Canadian model, not American

India resembles Canada: formed by disintegration of a unitary state, uses the word 'Union', and has a centralising tendency. The USA formed by integration in 1787. *Rule: integration = USA; disintegration = Canada and India.*

Trap 4 · Rigid or flexible, equal or unequal

The Constitution is rigid only for federal matters (half of the states must ratify under Art. 368); most of it Parliament amends alone. Rajya Sabha represents states, but seats follow population, unlike the US Senate. *Rule: rigid for federal features, flexible for the rest; Rajya Sabha seats are unequal.*

QUICK QUIZ

Q1. Which Article describes India as a "Union of States"?

1. Article 1
2. Article 3
3. Article 245
4. Article 368

Q2. According to Ambedkar, the phrase "Union of States" indicates that

1. States agreed among themselves
2. States cannot secede
3. States are sovereign
4. the Centre is weak

Q3. Which Article lets Parliament alter the area, boundaries or name of a State by simple majority?

1. Art. 3
2. Art. 5
3. Art. 248
4. Art. 249

Q4. Which Article provides for single citizenship in India?

1. Art. 3
2. Art. 5
3. Art. 80
4. Art. 124

Q5. Parliament can legislate on a State List subject if which body passes a national-interest resolution?

1. Lok Sabha
2. Rajya Sabha
3. Supreme Court
4. President

Q6. For constitutional amendments affecting the federal features, ratification is needed from

1. All States
2. At least half of State legislatures
3. Two-thirds of States
4. Governors

Q7. Which scholar called India "bargaining federalism"?

1. Morris Jones
2. Wheare
3. Austin
4. Santhanam

Q8. In which case did the Supreme Court declare federalism a basic feature?

1. Kesavananda Bharati
2. S.R. Bommai
3. Golaknath
4. I.R. Coelho

Q9. Which is a unitary feature of India?

1. Written Constitution
2. Dual polity
3. Single citizenship
4. Bicameral Parliament

Q10. Holding-together federalism is best illustrated by

1. USA
2. India
3. Switzerland
4. Russia

MY NOTES

Q11. Union List, State List, Concurrent List in this chapter currently stand at

1. 97, 61, 52
2. 98, 59, 52
3. 100, 61, 52
4. 98, 66, 47

Q12. Which is the origin of the word federation?

1. Latin foedus
2. Greek polis
3. French union
4. Latin lex

Q13. PYQ 2021: Which one of the following in Indian polity is an essential feature that indicates that it is federal in character? [2021]

1. The independence of judiciary is safeguarded
2. The Union Legislature has elected representatives from constituent units
3. The Union Cabinet can have elected representatives from regional parties
4. The Fundamental Rights are enforceable by Courts of Law

Q14. PYQ 2017: Which one of the following is not a feature of Indian federalism? [2017]

1. There is an independent judiciary in India
2. Powers have been clearly divided between the Centre and the States
3. The federating units have been given unequal representation in the Rajya Sabha
4. It is the result of an agreement among the federating units

Answers: Q1 a, Q2 b, Q3 a, Q4 b, Q5 b, Q6 b, Q7 a, Q8 b, Q9 c, Q10 b, Q11 b, Q12 a, Q13 a, Q14 d

MY NOTES

CHAPTER 20 · HANDOUT, CENTRE-STATE RELATIONS

20 Centre-State Relations

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **2012**

MY NOTES

EXAM LENS

MY NOTES

Prelims hooks

- Arts. 245-255 and what each does
- Art. 249 (Rajya Sabha resolution), Art. 250 (emergency), Art. 252 (States' request), Art. 253 (treaties)
- Art. 254 conflict rule
- Arts. 256-258A
- Art. 263 Inter-State Council (1990)
- Art. 312 All-India Services
- Art. 280 Finance Commission
- Art. 279A GST Council
- Arts. 268-271
- origin of the three lists in the 1935 Act (PYQ 2012)
- Sarkaria and Punchhi facts.
- Handout stresses: The handout organises the chapter as Legislative, Administrative, Financial relations, with an article-by-article table for each (245-255, 256-263, 268-293) (Three relation sections)
- Handout stresses: Five routes for Parliament to legislate on State List subjects: Arts. 249, 250, 252, 253, 356 (Legislative relations)
- Handout stresses: Five categories of tax distribution (Arts. 268, 269, 269A, 270, 271) plus the 80th and 101st Amendments (Financial relations)
- Handout stresses: Commission details: ARC (1966, report 1969), Rajamannar (1971), Sarkaria (1983-88; 247 recommendations, 180 implemented), Punchhi (2007-10; 310 recommendations) (Commissions section)
- Handout stresses: One Prelims PYQ (2012) is quoted: distribution of powers is based on the Government of India Act, 1935 (PYQ section)

Mains hooks

- none quoted in the material
- likely angles are Union supremacy and legislative routes, financial dependence of States and GST, commission recommendations on Governor and Art. 356, cooperative federalism machinery.

MY NOTES

Three kinds of relations (law, administration, money) tilt towards the Centre, but checks, commissions and cooperative bodies keep a federal balance in a quasi-federal system.

IN SIMPLE WORDS

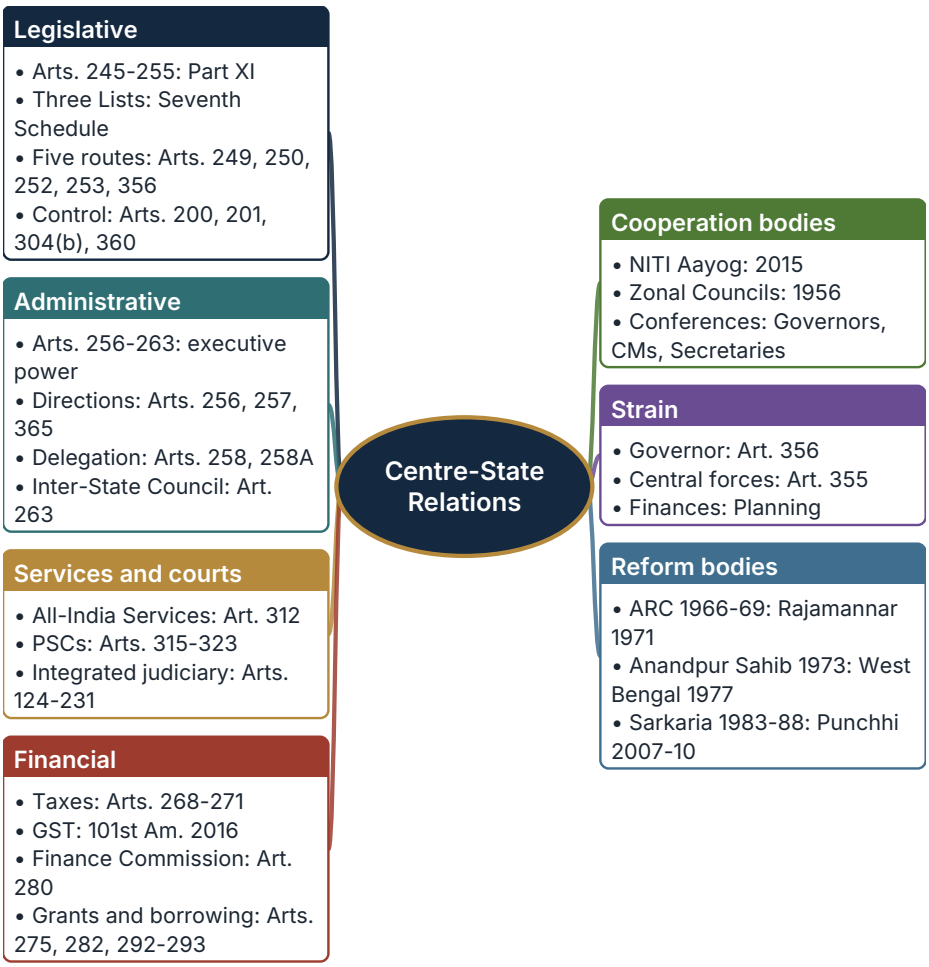
- Centre-State relations have three heads: **legislative** (**Arts. 245-255**), **administrative** (**Arts. 256-263**) and **financial** (**Arts. 268-293**).
- The **Seventh Schedule** has the **Union (98)**, **State (59)** and **Concurrent (52)** Lists. Union List prevails over both others and the Concurrent List over the State List. On a Concurrent subject **central law prevails (Art. 254)**
- **residuary** powers go to Parliament (**Art. 248**)
- Parliament can legislate on the State List in **five ways**: Rajya Sabha resolution (**249**), National Emergency (**250**), states' request (**252**), treaties (**253**) and President's Rule (**356**).
- In administration, the Centre can **direct** states (**Arts. 256-257**). Defiance can lead to President's Rule through **Art. 365**. **All-India Services**, the **Inter-State Council (Art. 263)** and bodies like **NITI Aayog** link the two levels.
- For money, **Arts. 268-271** divide tax proceeds, **GST** came with the **101st Amendment (2016)** and the **GST Council (Art. 279A)**, and the **Finance Commission (Art. 280)** advises on sharing taxes and grants.
- Friction produced the **ARC (1966)**, **Rajamannar (1969)**, **Anandpur Sahib (1973)**, **West Bengal (1977)**, **Sarkaria (1983)** and **Punchhi (2007)** reports.

Key term	In plain words
Repugnancy (Art. 254)	Clash of a central and a state law on a Concurrent subject: central law wins, unless the state law got Presidential assent (then it holds in that state until Parliament overrides)
Residuary powers	Subjects in no list; Parliament has them (Art. 248), following Canada, not the USA
Mutual delegation	President (Art. 258) with a state's consent gives Union functions to it; Governor (Art. 258A) with Union consent gives state functions to the Union
Net proceeds	Tax collected minus the cost of collection; the CAG certifies it and his certificate is final
Surcharge (Art. 271)	Extra levy kept wholly by the Centre; none can be levied on GST

MY NOTES

Key term	In plain words
Statutory grants	Art. 275 grants charged to the Consolidated Fund of India for needy states, on Finance Commission advice
Discretionary grants	Art. 282 grants for any public purpose, even outside legislative competence; the Centre is under no duty to give them
Finance Commission (Art. 280)	Constituted by the President every five years to advise on the sharing of taxes and on grants

MEMORY MAP: CENTRE-STATE RELATIONS



MY NOTES

MNEMONIC · FIVE ROUTES INTO THE STATE LIST

Rajya Nudges States, Inviting Parliament

- **R** Rajya Sabha resolution in the national interest (Art. 249)
- **N** National Emergency (Art. 250)
- **S** States' request, two or more (Art. 252)
- **I** International treaties and agreements (Art. 253)
- **P** President's Rule (Art. 356)

Rajya Sabha nudges the states and invites Parliament into the State List; the five routes in article order. (Memory aid, not from the handout.)

MNEMONIC · 42ND AMENDMENT: FIVE SUBJECTS TO THE CONCURRENT LIST

Every Forest Welcomes Wild Animals

- **E** Education
- **F** Forests
- **W** Weights and measures
- **W** Wild animals and birds, protection of
- **A** Administration of justice (except Supreme Court and High Courts)

The 42nd Amendment (1976) moved these five from the State List; the forest and wild animals picture helps recall them. Order is free here: no clean word exists, so this sentence is the memory aid. (Memory aid, not from the handout.)

MNEMONIC · SIX REPORTS ON CENTRE-STATE RELATIONS IN YEAR ORDER

Autonomy Rarely Arrives Without Strong Pressure

- **A** ARC (1966, report 1969)
- **R** Rajamannar Committee (1969, report 1971)
- **A** Anandpur Sahib Resolution (1973)
- **W** West Bengal Memorandum (1977)
- **S** Sarkaria Commission (1983, report 1988)
- **P** Punchhi Commission (2007, report 2010)

States kept pressing for autonomy; the strongest pushes came in this order. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · UNION'S DIRECTIONS TO STATES

C R E W

- **C** Communication means of national or military importance
- **R** Railways, protection of
- **E** Education: primary schooling in the mother tongue for linguistic minority children
- **W** Welfare schemes for Scheduled Tribes

Like a train CREW, states follow the Centre's directions (Art. 365 backs them). The order is rearranged for memory (the four matters are unordered). (Memory aid, not from the handout.)

MNEMONIC · CENTRE'S SUPERVISION OF STATE LEGISLATION

T U R F

- **T** Trade-restricting Bills need prior Presidential sanction (Art. 304(b))
- **U** Union law prevails (federal supremacy)
- **R** Reservation of State Bills for the President (Arts. 200-201)
- **F** Financial Emergency: State Money Bills reserved for the President (Art. 360)

The Centre guards its TURF in the Centre-State legislative contest. The order is rearranged for memory (the four checks are unordered). (Memory aid, not from the handout.)

FRAMEWORK OF CENTRE-STATE RELATIONS

- India has a **parliamentary government inside a federal framework**: the executive is responsible to the legislature (parliamentary principle), and the Union and States have separate spheres (federal principle). Because laws, administration and money touch people directly, the Constitution sets detailed rules.

THREE DIMENSIONS OF RELATIONS

- **Legislative**: Who makes laws on what (Arts. 245-255)
- **Administrative**: Who executes and how the Centre supervises (Arts. 256-263 and others)
- **Financial**: Who taxes, shares and spends (Arts. 268-293)
- The legislative scheme is the **three-fold division** (Union List, State List, Concurrent List) in the **Seventh Schedule**
- Arts. 245-255, especially **Art. 246**, explain the powers and the rules where both legislate on one subject. **Residuary subjects go to the Union.**
- **Memory aid (Three relations):** **L**egislative, **A**dministrative, **F**inancial: "**L**aw, **A**dministration, **F**unds".

MY NOTES

- **Shortcut: Article bands. 245-255** legislative. **256-263** administrative. **268-293** financial.

LEGISLATIVE RELATIONS: TERRITORY AND THE LISTS

- Part XI (Arts. 245-255) is the core, with other Articles making exceptions. The handout gives four headings: (a) territorial reach
- (b) distribution of subjects
- (c) Parliament in the State field
- (d) central controls over State laws

TERRITORIAL REACH (ARTS. 245-246)

- Parliament may legislate for **the whole or any part of India**.
- State legislatures may legislate for **the whole or any part of their own State**.
- Parliament may make laws with **extra-territorial effect**, applying to Indian citizens and their property beyond India.

EXCEPTIONS TO PARLIAMENT'S REACH

- **Art. 240**: the President may make **regulations** for certain Union Territories, with the force of parliamentary enactments.
- **Fifth and Sixth Schedules (Art. 244)**:
  - Central laws may be adjusted or regulated in Scheduled Areas and tribal districts
  - The **Governor or the President** can make modifications or exceptions to protect local interests
- **Art. 246(4)**: Parliament can make laws on any subject (even State List) for territories **not part of any State** (Union Territories, acquired territories). Example in the handout: Ladakh laws made by Parliament or under Art. 240 regulations.

THE THREE LISTS

UNION, STATE AND CONCURRENT LISTS (ART. 246 AND 246A WITH THE SEVENTH SCHEDULE)

List	Who legislates	Count in the handout	Examples
Union (List I)	Parliament exclusively	**98** items (originally **97**)	Defence, foreign affairs, atomic energy, banking, currency, communication, inter-state trade and commerce
State (List II)	State legislatures, normally	**59** items (earlier **66**)	Police, public health, agriculture, markets, local government, public order

MY NOTES

List	Who legislates	Count in the handout	Examples
Concurrent (List III)	Both Parliament and States	**52** subjects (up from **47** originally)	Criminal law, marriage and divorce, bankruptcy, education, labour welfare, electricity, forests, population control

- Handout examples:
  - Nuclear energy under the Atomic Energy Act, 1962
  - Defence forces under Art. 53
  - Police and public order are State List Entries 1 and 2 (except when a national emergency lets Parliament legislate temporarily)
  - Education coordinated by NEP 2020 and implemented by States

HANDOUT ALERT

Handout alert: The Schedules chapter gives the counts as Union **97**, State **61**, Concurrent **52**. This chapter gives **98, 59, 52** (with 97, 66, 47 as earlier figures). Quote **98, 59, 52** from this handout and check your class notes.

HANDOUT ALERT

Handout alert: The **42nd Amendment (1976)** is said here to have moved **five** subjects from the State to the Concurrent List: **education, forests, weights and measures, protection of wild animals and birds, administration of justice (excluding the Supreme Court and High Courts)**. The Schedules chapter lists **four** (education, forests, wildlife, weights and measures). For this chapter use the five.

HIERARCHY AND CONFLICT

- The Union List prevails over both the State and Concurrent Lists
- The Concurrent List prevails over the State List
- **Art. 254(1)**: on a Concurrent subject, the **Central law overrides** the State law.
- **Art. 254(2)**:
  - A State law that receives **Presidential assent** may prevail **within that State**
  - Parliament can still **override** it later
- Example in the handout: the **Kerala Professional Colleges Act (2006)**, though approved by the President, was later superseded by Central NEET regulations under a Union law.

MY NOTES

SPECIAL POINTS

- **GST**:
  - The **101st Amendment (2016)** inserted **Art. 246A** giving Parliament and States concurrent power on GST
  - Parliament is **exclusive** on GST in inter-state trade (**Art. 269A**)
  - The **GST Council (Art. 279A)** is the joint forum
- **Residuary powers**: Parliament, **Art. 248**, includes law-making and taxation on unlisted subjects (digital currencies, space technology, cybersecurity named as examples).

ORIGIN AND COMPARISON

- The idea of lists comes from the **Government of India Act, 1935**: **Federal, Provincial, Concurrent** lists.
- In 1935 residuary powers lay with the **Governor-General**
- The Constitution gives them to **Parliament**, following the **Canadian** model
- The **US** has a single enumeration of federal powers with residuary power to the States
- **Australia** is similar. India has **double enumeration plus a concurrent field**
- **Memory aid (Lists): U**nion = national uniformity (defence, currency), **S**tate = local diversity (police, agriculture), **C**oncurrent = cooperation: "**U**nion **S**erves **C**ountry".
- **Shortcut:**
  - **List counts.** Union **98**, State **59**, Concurrent **52**
  - 42nd Amendment: **five** subjects to Concurrent
  - Residuary with Parliament (**Art. 248**), Canadian model
  - Lists from the **1935 Act** (PYQ 2012)

ALSO IN THE HANDOUT

- However, unlike the 1935 Act, where residuary powers were vested in the Governor-General, the Indian Constitution (1950) assigns them to Parliament, following the Canadian model of federal supremacy.
- Australia follows a similar pattern.
- This power ensures that the Union can discharge foreign commitments consistently across the country.
- Eg: This provision empowers the Centre to prevent states from enacting financially unsustainable or inconsistent measures during national fiscal crises.
- This provision safeguards a critical mode of transport that is both economically and strategically vital.

MY NOTES

- This ensures that national priorities are executed even if a State is unable or unwilling to assume responsibility.
- This ensures that States benefit from trade activities that traverse their territories.
- This ensures that state borrowings do not jeopardize national economic stability.
- This safeguard ensures that states have a formal channel of protection against unilateral changes in taxation or revenue sharing.
- This ensures that the Union has adequate financial control to respond effectively to the emergency situation.
- While some encroachments are constitutionally permissible under the Doctrine of Residuary Powers and Concurrent Lists, frequent or aggressive use of this authority has contributed to state grievances regarding infringement of their legislative domain.
- This aimed to reduce excessive central control and enable states to tailor governance according to local needs.

PARLIAMENT IN THE STATE FIELD: FIVE ROUTES

- Normally Parliament cannot touch the State List. Five exceptions exist, each with its own trigger, scope and checks.

THE FIVE ROUTES

#	Route	Trigger	Effect and duration
1	**Art. 249**	**Rajya Sabha resolution** by a special majority that Parliament should legislate on a State List subject in the **national interest**	Parliament can legislate for the whole or part of India. Resolution lasts **one year**, renewable yearly. Laws cease **six months after** the resolution lapses. States may still legislate, but Parliamentary law prevails on direct inconsistency
2	**Art. 250 with Art. 352**	**National Emergency**	Parliament can legislate on any State List entry for the Emergency's duration. Laws end **six months after** the Emergency ceases, unless Parliament provides otherwise. States not barred; Central law overrides on repugnancy
3	**Art. 252**	**Two or more State legislatures** pass resolutions requesting it	Parliament legislates for the requesting States. Other States may **adopt** by resolution. Only **Parliament** can amend or repeal it, not the adopting States. Examples: **Prize Competitions Act, 1955**; **Wildlife (Protection) Act, 1972**

MY NOTES

#	Route	Trigger	Effect and duration
4	**Art. 253**	To implement **treaties, conventions or international agreements**	Parliament can legislate on State List matters. Examples: privileges of international organisations, Geneva Conventions laws, anti-hijacking law, environmental statutes
5	**Art. 356**	**President's Rule** in a State	Parliament can legislate on any State List subject for that State. Laws **continue after** President's Rule ends; the State Legislature may later repeal, amend or replace them

ART. 249 RESOLUTION LIFE CYCLE

- **Rajya Sabha passes resolution**:
  - National interest
  - Special majority
- **Valid for one year**: Renewable year after year
- **Resolution lapses**: Law stays for six more months, then ceases to operate
- **Memory aid (Five routes): R**ajya Sabha (249), **N**ational Emergency (250), **S**tates' request (252), **T**reaties (253), **P**resident's Rule (356): "**R**ed **N**ew **S**ofa **T**ops **P**illows".
- **Shortcut: Duration rule. 249 and 250: laws end six months after the trigger ends. 356: laws continue until the State repeals them. 252: only Parliament can amend.**
- **Constitutional logic:** Each route is a compromise: the Union acts when uniform action is needed, but with checks (special majorities, State requests, a presidential proclamation). In practice these routes have enabled central laws on pollution control, wildlife protection, transplantation law, urban land regulation and implementation of international conventions.

> **HANDOUT ALERT**
> Handout alert: The Art. 249 route is said to need a **special majority** in the text and **two-thirds of Rajya Sabha members** in the Articles table. Read them as the same rule: a two-thirds-type special majority of the Rajya Sabha.

CENTRAL CONTROLS OVER STATE LEGISLATION

- Parliamentary oversight keeps laws consistent. The handout roots it in Arts. 200, 201, 304(b) and 360.

MY NOTES

FOUR SUPERVISORY TOOLS

#	Tool	Content
1	**Reservation of State Bills (Arts. 200-201)**	The Governor may **reserve** a Bill for the President if it conflicts with central laws, the Directive Principles or the national interest. The President may **assent, withhold assent (absolute veto), or return** it (not if a Money Bill) for reconsideration. Examples: Bills affecting High Court powers or conflicting with Union List entries
2	**Presidential sanction (Art. 304(b))**	Certain State List Bills that restrict **trade, commerce or intercourse among States** need the President's **prior approval** before introduction; protects economic unity and free trade (**Art. 301**)
3	**Financial Emergency (Art. 360)**	The President may direct that **State Money Bills** and other financial legislation be **reserved** for him
4	**Federal supremacy (Arts. 246 with 254)**	Union law prevails in overlap; prevents legislative chaos

- **Sarkaria Commission (1983-88)**: "the rule of federal supremacy is not a denial of federalism but a device to preserve unity amidst diversity."
- **Rationale:** These checks aim to preserve **cooperative federalism**, with the Union guiding and harmonising State laws on nationally significant matters. The handout cites the **Ministry of Home Affairs' Report on Centre-State Relations (2023)** for their role in policy coherence in taxation, trade, environment and social welfare.

KEY ARTICLES ON LEGISLATIVE RELATIONS

Article	Key focus
245	Territorial extent of laws by Parliament and State legislatures
246	Subject-matter: Union, State, Concurrent Lists
246A	GST: Parliament and States may legislate; Parliament exclusive on inter-state trade
247	Parliament may set up **additional courts** for administering Union laws
248	**Residuary** legislative powers with Parliament
249	State List subject in the national interest on Rajya Sabha's two-thirds agreement
250	State List during a Proclamation of Emergency
251	Resolves **inconsistency** between laws under 249 or 250 and State laws

MY NOTES

Art-icle	Key focus
252	State List for two or more States with their consent; others may adopt
253	Legislation to implement international treaties
254	Conflict between Central and State laws on concurrent subjects; Central law prevails, except where a State law has Presidential assent
255	Recommendations and prior sanctions of the President are **procedural formalities** only

- **Memory aid (Articles 245-255):** **T**erritory (245), **L**ists (246), **G**ST (246A), **C**ourts (247), **R**esiduary (248), **R**ajya Sabha (249), **E**mergency (250), **I**nconsistency (251), **S**tates' consent (252), **T**reaties (253), **C**onflict (254), **P**rocedure only (255): "**T**en **L**ucky **G**irls **C**ame **R**ound **R**ose **E**very **I**nteresting **S**unday **T**o **C**atch **P**oems".

ALSO IN THE HANDOUT

- In essence, the Centre's limited supervisory role in State legislation reflects the federal character with a unitary bias that the framers of the Constitution consciously adopted.
- Understanding these historical and contemporary trends is essential for appreciating the complex interplay of politics, administration, and federal principles in India.
- It consulted stakeholders across the Union and state governments, reviewed past reports, and analyzed patterns of conflicts and cooperation. Based on these findings, the ARC prepared its report and submitted a comprehensive set of recommendations in 1969.

ADMINISTRATIVE RELATIONS: EXECUTIVE POWER AND DIRECTIONS

- The administrative framework lies in **Arts. 256-263** (Part XI). It gives the Centre power to guide, coordinate and supervise State administration.

DISTRIBUTION OF EXECUTIVE AUTHORITY

- **Union**: extends to the whole of India on matters where Parliament has exclusive legislative authority (Union List), and to implementing treaties and agreements (**Art. 73**).
- **State**: confined to its own territory, extends to the State List.
- **Concurrent List**: **Art. 73(1)(a)** says the State's executive power generally extends to these subjects unless the Constitution or a parliamentary law gives responsibility to the Union.
- Example: Right to Education Act (2009) and Environmental Protection Act (1986) are carried out jointly by Union and States.

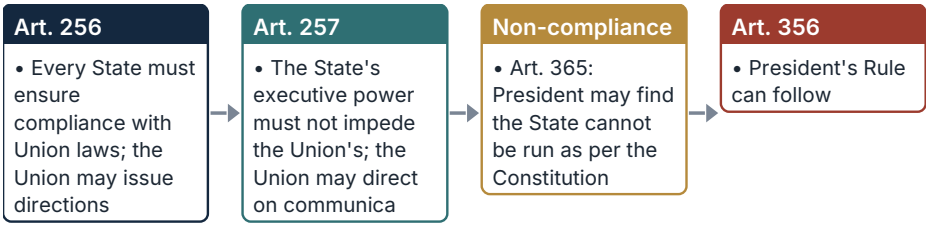
MY NOTES

SUPERVISION AND COMPLIANCE

COMPLIANCE CHAIN

- **Art. 256**:
  - Every State must ensure **compliance with Union laws**
  - The Union may issue directions
- **Art. 257**:
  - The State's executive power must **not impede** the Union's
  - The Union may direct on communications, railways and national schemes
- **Non-compliance**: Art. 365: President may find the State cannot be run as per the Constitution
- **Art. 356**: President's Rule can follow

COMPLIANCE CHAIN



- Examples cited: Art. 356 in **Punjab (1980s)** and **Uttarakhand (2016)**.

AREAS WHERE THE UNION CAN DIRECT STATES

Area	Content
Means of communication	Construct and maintain roads, bridges, ports, airways of national or military importance (examples: border roads in the North-East and Ladakh)
Protection of railways	States must take measures to protect railways in their territory
Linguistic minority education	Adequate facilities for primary education in the **mother tongue** for linguistic minority children (**Art. 350A**)
Scheduled Tribes welfare	States formulate and implement ST welfare schemes (examples: Eklavya Model Residential Schools, Tribal Sub-Plan)

- Handout notes:
  - The **Sarkaria Commission (1983-88)** said these obligations strengthen cooperative federalism
  - The **Second Administrative Reforms Commission (2007)** said directions help implement national schemes and reduce disparities (education, infrastructure, tribal development)
- **Memory aid (Directions):** **C**ommunications, **R**ailways, **L**inguistic minority education, **S**T welfare: "**C**ats **R**un **L**ike **S**quirrels".

MY NOTES

- **Shortcut: Chain of command. 256 = obey Union laws. 257 = do not obstruct. 365 = failure to comply. 356 = President's Rule.**

ALSO IN THE HANDOUT

- The Constitution emphasises intergovernmental cooperation in several ways: - Under Article 257, States are required to ensure that their executive powers do not impede the functioning of the Union.
- However, a rigid separation of executive authority can sometimes result in administrative deadlocks or inefficiencies.
- These arrangements help reconcile administrative convenience with fiscal equity.

DELEGATION AND COOPERATION (ARTS. 258-263)

MUTUAL DELEGATION OF EXECUTIVE FUNCTIONS

DELEGATION

Route	Content
President to State (Art. 258)	With the **State's consent**, the President may entrust Union functions to the State government or officers, conditionally or unconditionally (e.g. centrally sponsored schemes, disaster management, regional development)
Governor to Union (Art. 258A)	With the **Union's consent**, the Governor may entrust State functions to the Union or its agencies (border security, complex infrastructure)
Parliament without State consent	By legislation on a **Union List** subject, Parliament can authorise the Centre to entrust executive powers to a State **without its consent**
State cannot	A State cannot confer its powers on the Centre unilaterally; mutual agreement is needed

- Methods:
  - **agreement-based** delegation (both sides) and **legislative** delegation (only Parliament can assign without consent). The CBI example: it works in a State only with the State's consent, except when the judiciary orders otherwise. The Sarkaria Commission is cited for the efficiency this adds
  - Examples of joint programmes: PMAY, Poshan Abhiyaan, disaster management

COOPERATION MECHANISMS

COOPERATION PROVISIONS

Article	Mechanism
261	**Full faith and credit** throughout India to public acts, records and judicial proceedings of the Union and every State

MY NOTES

Article	Mechanism
262	Parliament may provide for **adjudication of inter-state river water disputes**; led to the **Inter-State River Water Disputes Act, 1956**
263	President may establish an **Inter-State Council**; **first constituted in 1990**; chaired by the **Prime Minister**; the Ministry of Home Affairs oversees it under the Allocation of Business Rules, 1961
307 related	Parliament may appoint authorities for **inter-state trade, commerce and intercourse**; **none has been constituted to date**
260	By agreement, the Government of India may exercise functions in **territories outside India**
259	**Repealed**; related to armed forces in Part B States (repealed after 1956 reorganisation)

- The handout also names the **Disaster Management Act (2005)** and the Inter-State Water Disputes Act (1956) as frameworks for water, environment and public health emergencies.

HANDOUT ALERT

Handout alert: In the cooperation paragraph the handout does not name the Article for the **inter-state trade authority** and says only that none has been constituted. The Punchhi section links such a body to **Art. 307 and List I Entry 42**. Remember "no authority has been set up yet".

HANDOUT ALERT

Handout alert: Art. **258A** is described in one place as the **Governor** entrusting functions with the Union's consent and in the Articles table as the **State government** doing so with mutual consent. Both mean the State may hand functions to the Union.

- **Memory aid (Cooperation Articles): F**ull faith (261), **W**ater disputes (262), **C**ouncil (263), **T**rade authority (none set up): "**F**ish **W**ait **C**lose **T**o shore".

ALSO IN THE HANDOUT

- The delegation can be conditional or unconditional, depending on the administrative requirements.
- Such practices exacerbate mistrust and feed the narrative of central intrusion in state affairs.

ALL-INDIA SERVICES AND PUBLIC SERVICE COMMISSIONS

ALL-INDIA SERVICES (ART. 312)

- Three core services: **IAS, IPS, IFS**. Officers serve at both Union and State levels and rotate between them.

MY NOTES

- **Recruitment, training and ultimate control** with the Central Government
- **day-to-day** supervision with the States
- Origins:
  - **Indian Civil Service (ICS)** and **Indian Police (IP)** replaced by **IAS and IPS** after **1947**
  - **IFS established 1966**
- **Art. 312**: Parliament can create **additional** All-India Services if the **Rajya Sabha** passes a resolution (given as a two-thirds majority in one passage).
- Members share common rights, uniform pay scales and equal status: a single integrated service.

WHY ALL-INDIA SERVICES EXIST

Justification	Content
Administrative excellence	High governance standards across India
Uniformity	Consistent procedures and policies
Centre-State coordination	Link for disaster management, national security, centrally sponsored schemes (PMAY, Poshan Abhiyaan, MGNREGA)
Strategic policy implementation	Officers positioned to execute key laws and national programmes

- **Ambedkar** in the Constituent Assembly:
  - Dual polity is followed in all federations by a dual service
  - Some posts are **strategic**
  - States keep their own civil services but there shall be an All-India Service recruited on an all-India basis, with **common qualifications, uniform pay**, whose members alone could fill strategic posts. The services are seen as limiting State autonomy slightly in personnel management but justified for unity and standards

PUBLIC SERVICE COMMISSIONS (PART XIV, ARTS. 315-323)

PSC PROVISIONS

Point	Content
State PSC	Chairman and members **appointed by the Governor**; **removal only by the President (Art. 316)**
Joint State PSC (Art. 315(2))	Parliament may create one on the **request of two or more State legislatures**; Chairman and members **appointed by the President**

MY NOTES

Point	Content
UPSC help to States (Art. 320)	At a Governor's request and with the President's approval, UPSC may assist States in recruitment for specialised services; also joint recruitment schemes for two or more States

- **Memory aid (AIS and PSC):** **I**AS, **I**PS, **I**FS: "**I** **I**mplement **I**ndia". For PSCs: **G**overnor appoints, **P**resident removes: "**G**ive **P**ower".

HANDOUT ALERT

Handout alert: Art. 312 is described as requiring a Rajya Sabha **resolution** in one place and a **two-thirds majority** resolution in another. Use: Rajya Sabha resolution (two-thirds majority).

ALSO IN THE HANDOUT

- This ensures strategic mobility and coordination in times of defence requirements or natural disasters.
- It fosters coordination and trust by enabling both levels of government to cooperate in executing flagship programs like Pradhan Mantri Awas Yojana (PMAY), Poshan Abhiyaan, and disaster management initiatives, ensuring that governance remains responsive to local needs. At the same time, it provides the necessary flexibility to adapt policies to ground realities, while upholding the federal structure enshrined in the Constitution, thus promoting an effective and harmonious system of cooperative federalism.
- Collectively, these provisions are designed to foster a collaborative federal structure, balance regional interests with national priorities, and ensure smooth governance across diverse states.
- These joint commissions are especially useful for states that require recruitment for specialized services or wish to pool administrative resources efficiently.
- This provision enhances administrative efficiency and ensures uniformity in recruitment standards across multiple jurisdictions.
- This integrated structure achieves several critical objectives.
- Control and Oversight Mechanisms The Constitution balances autonomy and supervision in state borrowings to prevent excessive debt accumulation that could destabilize the economy.
- Strengthening state finances was seen as essential for promoting effective federal governance and ensuring equitable development across regions.

MY NOTES

INTEGRATED JUDICIARY, EMERGENCIES AND UNION SAFEGUARDS

INTEGRATED JUDICIAL SYSTEM

- A single hierarchy enforces both Union and State laws:
  - **Supreme Court (Arts. 124-147)** with appellate, advisory and original jurisdiction
  - **High Courts (Arts. 214-231)**
- **Art. 231**: Parliament may set up a **common High Court** for two or more States or Union Territories (Maharashtra and Goa; Punjab and Haryana).
- High Court judges are appointed by the President (**Art. 217**) after consulting the **Chief Justice of India** and the **Governor**
- The President also transfers or removes judges
- Aims: uniform interpretation, unitary judicial frame in a federal system, flexibility through common High Courts and transfers.

EMERGENCIES AND CENTRE-STATE RELATIONS (PART XVIII)

EMERGENCIES

Emergency	Effect on States
National (Art. 352): war, external aggression, armed rebellion	Union may issue executive directions to States on any subject; States not suspended but autonomy curtailed; their legislative and executive functions must align with the Centre
President's Rule (Art. 356)	President assumes State government functions (including the Governor's); Parliament's laws for the State continue after the Rule unless the State Legislature alters or repeals them
Financial (Art. 360): financial stability or credit of India threatened	Union directs States on financial propriety, including **salary reductions**

OTHER SAFEGUARDS

SAFEGUARDS

Article or office	Content
Art. 355	Union's **dual duty**: protect every State against **external aggression and internal disturbance**, and ensure State governments work **per the Constitution**
Governor (Art. 155)	Appointed by the President, holds office at his pleasure; head of the State and **representative of the Union**; **reports** to the Centre on governance, public order and constitutional compliance

MY NOTES

Article or office	Content
State Election Commissioner (Art. 243K)	Appointed by the Governor; **removable only by the President**

- **Memory aid (Safeguards):** **J**udiciary integrated, **E**mergencies, **G**overnor, **S**tate Election Commissioner: "**J**ust **E**very **G**ood **S**tate".

ALSO IN THE HANDOUT

- They ensure that the federal structure remains flexible, allowing the Union government to intervene decisively when the constitutional machinery in states faces exceptional challenges, while still preserving the framework of representative government.

EXTRA-CONSTITUTIONAL BODIES AND ADMINISTRATIVE ARTICLES

- Practical governance needs bodies beyond the Constitution. They complement **Art. 263** and **Art. 275**.

EXTRA-CONSTITUTIONAL MACHINERY

Type	Bodies
Planning and policy	**NITI Aayog (2015)**, replaced the Planning Commission; think tank for cooperative federalism
Advisory councils	National Integration Council; Central Council of Health and Family Welfare; Central Council of Local Government
Regional councils	**Zonal Councils** under the **States Reorganisation Act, 1956**; **North Eastern Council** (statutory)
Professional councils	Central Council of Indian Medicine; Central Council of Homoeopathy; University Grants Commission
Conferences	**Governors' Conference** presided by the President; **Chief Ministers' Conference** chaired by the PM; **Chief Secretaries' Conference** led by the Cabinet Secretary; sector meetings of IGPs, Chief Justices, Vice-Chancellors, Home Ministers, Law Ministers

KEY ARTICLES ON ADMINISTRATIVE RELATIONS

Article	Key focus
256	State executive power exercised in compliance with Parliament's laws; Union directions
257	State power must not impede Union power; directions on communications, railways
258	President may entrust Union functions to States
258A	State may entrust functions to the Union with mutual consent

MY NOTES

Art-icle	Key focus
259	Repealed: armed forces in Part B States
260	Union's functions in territories outside India
261	Full faith and credit to public acts, records, judicial proceedings
262	Inter-state river disputes; Act of 1956
263	Inter-State Council; established 1990

- **Memory aid (Bodies): N**ITI Aayog, **Z**onal Councils, **N**orth Eastern Council, **C**onferences: "**N**ice **Z**ebras **N**ever **C**ry".

ALSO IN THE HANDOUT

- They act as a professional bridge, balancing central oversight with state participation, which is essential for the smooth execution of both national and regional policies.
- This ensures that the Union is continuously apprised of administrative developments and can intervene if the constitutional machinery in a state is threatened.
- Functioning as a policy think tank, NITI Aayog facilitates cooperative federalism by promoting dialogue and partnership between the Union and the states on socio-economic planning, sustainable development, and priority sector interventions.
- In addition to these advisory bodies, a series of periodic conferences and consultative meetings provide structured platforms for Centre-state dialogue.

FINANCIAL RELATIONS: TAX POWERS AND GST

- **Part XII (Arts. 268-293)** governs tax assignments, revenue sharing, grants-in-aid, fiscal institutions and public funds. Aim: strong Centre for national needs, adequate predictable resources for States. Five mechanisms: (a) division of taxes, (b) Finance Commission, (c) grants and transfers, (d) funds and borrowing rules, (e) audit and safeguards.
- Tax division works through **Art. 246 with the Seventh Schedule**:
  - Union List taxes belong to Parliament
  - State List taxes to State legislatures
- **No tax entries in the Concurrent List**: taxation is normally exclusive to Union or States, except **GST**.
- **Residuary taxing power**: Parliament (**Art. 248**), historically used for wealth tax and other central levies.

LEVY, COLLECTION, APPROPRIATION

- **Three powers: Levy** (impose), **collect**, **appropriate** (keep proceeds)

MY NOTES

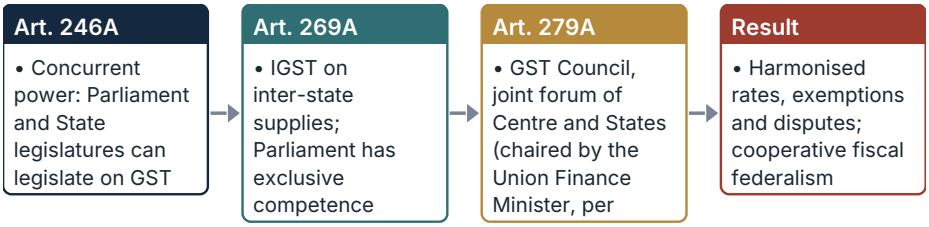
- **Examples:**
  - Duties **levied by the Union but collected and appropriated by States** (Art. 268)
  - Income tax (except agricultural) **levied and collected by the Union**, proceeds shared (Art. 270)

GST

101ST AMENDMENT (2016)

- **Art. 246A**: Concurrent power: Parliament and State legislatures can legislate on GST
- **Art. 269A**:
  - IGST on inter-state supplies
  - Parliament has exclusive competence
- **Art. 279A**: **GST Council**, joint forum of Centre and States (chaired by the Union Finance Minister, per the Articles table)
- **Result**:
  - Harmonised rates, exemptions and disputes
  - Cooperative fiscal federalism

101ST AMENDMENT (2016)



- Taxes **subsumed**: Centre: Central Excise Duty, Additional Excise Duties, Service Tax, Customs (Countervailing and Special Additional Duties). States: VAT/Sales Tax, Entertainment Tax (except by local bodies), Entry Tax, Octroi, Purchase Tax, Luxury Tax. **Art. 268A** (88th Amendment, service tax) and **Union List Entry 92C** were **deleted**.

80TH AMENDMENT (2000)

- **Alternative Scheme of Devolution**, based on the **10th Finance Commission**: **29%** of gross revenue from certain central taxes devolved to States
- Parity between corporation tax, customs duties and income tax in sharing
- Applied **retrospectively from 1 April 1996**

MY NOTES

LIMITS ON STATE TAXATION

CONSTITUTIONAL LIMITS

Article	Limit
276	Profession, trade, calling, employment tax: not more than **Rs 2,500 per person per year**
286	No State tax on supply of goods or services **outside the State** or in the course of **import or export**; Parliament sets inter-state rules
287	Limits State tax on **electricity** consumed by or sold to the Union (or used in railway construction or operation)
288	Special exemptions for certain authorities dealing with water or electricity across river valleys

- **Memory aid (GST articles): T**ax concurrent 246A, **I**GST 269A, **C**ouncil 279A: "**T**ax **I**s **C**ommon".
- **Shortcut: Money numbers. 29%** (80th Amendment, from 1996, 10th FC). **Rs 2,500** (Art. 276). **41%** (15th FC). **101st = 246A, 269A, 279A.**

ALSO IN THE HANDOUT

- The 101st Constitutional Amendment Act, 2016 ushered in a new era of indirect taxation by introducing the Goods and Services Tax (GST)—a unified tax regime designed to eliminate the cascading effect of multiple taxes and create a common national market.
- Borrowing by the Centre is usually done through the issuance of government securities, bonds, and loans from domestic and international sources, including multilateral institutions.

DISTRIBUTION OF TAX RECEIPTS

- After the reforms the handout groups tax distribution in six categories.

REVENUE DISTRIBUTION

#	Category	Content
1	**Levied by Centre, collected and appropriated by States (Art. 268)**	Stamp duties on bills of exchange, cheques, insurance policies and transfer of shares; proceeds collected within a State go to that State
2	**Levied and collected by Centre, assigned to States (Art. 269)**	Taxes on inter-State sale or purchase of goods (except newspapers) and consignment of goods in inter-State trade; net proceeds **not credited to the Consolidated Fund of India**; distributed on principles set by Parliament
3	**GST on inter-State trade (Art. 269A)**	IGST levied and collected by the Centre, shared between Union and States on the GST Council's guidance; Parliament decides place of supply

MY NOTES

#	Category	Content
4	**Levied and collected by Centre, shared (Art. 270)**	All Union taxes and duties except those under Arts. 268, 269, 269A, surcharges under Art. 271 and **cesses** for specific purposes; shared on **Finance Commission** recommendations. This is the backbone of transfers
5	**Surcharge (Art. 271)**	Parliament may levy a surcharge on taxes in Arts. 269 and 270 for the **Centre's exclusive use**; goes to the Consolidated Fund of India; **no surcharge on GST**
6	**Levied, collected and retained by States**	State List taxes; **18 taxes** in the handout

THE STATE LIST TAXES THE HANDOUT NAMES

- Land revenue
- Taxes on agricultural income
- Duties on succession to agricultural land
- Estate duty on agricultural holdings
- Taxes on lands, buildings, mineral rights, professions.
- Excise on alcoholic liquors for human consumption, opium and narcotics (excluding medicinal preparations).
- Taxes on electricity, vehicles, road or inland waterway passengers.
- Entertainment, luxury and betting taxes (where applicable to local bodies).
- Stamp duties on non-Union subjects
- Fees on State List matters (excluding court fees)
- **Memory aid (Tax Articles): S**tamp duties (268), **P**roceeds assigned (269), **I**GST (269A), **S**hared (270), then surcharge (271): "**S**ome **P**eople **I**nvest **S**lowly".

WHICH ARTICLE, WHICH OWNER

- **268**:
  - Levied by Union
  - States collect and keep
- **269 and 269A**:
  - Union collects
  - Assigned or shared with States
- **270**:
  - Union collects
  - Shared by Finance Commission formula
- **271**: Surcharge: Union keeps all

MY NOTES

HANDOUT ALERT

Handout alert: The Articles table says Art. 268 covers stamp duties **and excise on medical preparations**, and calls Art. 269 a pre-GST inter-State trade tax; the text lists stamp duties on bills of exchange, cheques, insurance policies and transfer of shares. Use the text list and remember the table's mention of excise on medicinal preparations.

ALSO IN THE HANDOUT

- Distribution of Tax Receipts The financial relationship between the Union and the States forms a crucial component of India's federal structure.
- This mechanism, often referred to as Integrated GST (IGST), ensures a transparent and equitable distribution of tax proceeds from cross-border trade.
- However, a key exception exists—no surcharge can be levied on GST, thereby preserving the integrity of the shared tax base under the GST system.

NON-TAX REVENUE, GRANTS AND BORROWING

NON-TAX REVENUE

WHO EARNS WHAT

- **Union:**
  - Posts and telegraphs
  - Railways
  - Banking
  - Broadcasting (All India Radio, Doordarshan)
  - Coinage and currency (seigniorage)
  - Central public sector enterprises
  - Escheat and lapse
  - Dividends, fees, fines
- **States:**
  - Irrigation
  - Forests
  - Fisheries
  - State enterprises
  - Escheat and lapse
  - Fees from professional licences and educational institutions
  - Fines

HANDOUT ALERT

Handout alert: The handout cites **Art. 261** for the Union's control over coinage and currency, but Art. 261 is **full faith and credit** in its Administrative table. Remember Art. 261 as full faith and credit.

MY NOTES

GRANTS-IN-AID

GRANTS

Type	Content
Statutory (Art. 275)	Parliament may give grants to States needing assistance; different sums for different States; **charged on the Consolidated Fund of India**; specific grants for **ST welfare and Scheduled Areas** (e.g. Assam); typically on **Finance Commission** advice (Art. 280)
Discretionary (Art. 282)	Union and States may give grants for **any public purpose**, even beyond their legislative powers; at the Union's discretion; helps States meet plan targets and coordinates national programmes (education, health, infrastructure)
Temporary (Art. 273)	Grants in lieu of **export duty on jute and jute products** for **ten years** from the Constitution's commencement to Assam, Bihar, Odisha, West Bengal (text list; the Articles table names West Bengal, Bihar, Assam)

BORROWING

BORROWING

Government	Article	Rule
Union	**292**	Can borrow **within and outside India**; **no limit** stated; credited to the Consolidated Fund of India; Parliament sets the framework; Ministry of Finance and RBI manage
State	**293**	Can borrow **within India** only; **no Union consent** needed within limits set by law or arrangement (Finance Commission limits); **with Union consent** for borrowing from outside India or beyond limits; FRBM norms may be imposed

- The Finance Commission also evaluates States' borrowing needs and recommends **debt ceilings**
- The Ministry of Finance monitors compliance
- **Memory aid (Grants): S**tatutory 275, **D**iscretionary 282, **T**emporary 273: "**S**un **D**oes **T**ravel".

ALSO IN THE HANDOUT

- Passing the enabling resolution therefore amounts to a temporary surrender of legislative competence by the participating States in favour of Parliament.
- These directions carry a coercive dimension, reflecting the priority of national interests over State discretion in specific circumstances.

MY NOTES

- Major contributors include posts and telegraphs, which encompass earnings from postal services and telecommunications, and railways, which generate revenue from passenger and freight services.
- States also earn from forests, including the sale of timber and forest produce, and fisheries, which include licenses and royalties from inland and coastal fisheries. State-owned public enterprises, ranging from energy and transport undertakings to manufacturing units, contribute profits to the Consolidated Fund of the State, thereby supplementing tax revenues.

FINANCE COMMISSION, SAFEGUARDS AND TAX IMMUNITIES

FINANCE COMMISSION (ART. 280)

- The President constitutes it **every five years** or earlier.
- Composition:
  - A **Chairperson** with public affairs experience
  - **at least one member** with finance or economics expertise
  - Other members nominated by the President
- Independent
- Recommends on objective criteria

THREE FUNCTIONS

Function	Content
Distribution of tax revenues	State share in net proceeds of Central taxes (income tax, GST compensation, customs duties, other levies)
Grants-in-aid (Art. 275)	Statutory grants for welfare programmes, backward regions, Scheduled Areas
Fiscal consolidation	Advice on fiscal discipline, reducing deficits, prudent borrowing, revenue generation, expenditure rationalisation

- **15th Finance Commission (2020-2025)**: recommended **41%** devolution of Central taxes, considering population, income distance, area and fiscal performance.
- **Art. 281**:
  - The President lays the Commission's recommendations with an **explanatory memorandum** before Parliament
  - **Art. 282**: discretionary grants

SAFEGUARDS FOR STATES' FINANCES

- Bills need the **President's recommendation** (Art. 274) before introduction in Parliament if they: impose or vary taxes in which States are interested
- Alter the definition of **agricultural income**
- Affect the **principles of distribution** of central revenues

MY NOTES

- Impose a **surcharge** for the Centre
- "Tax or duty in which States are interested" = taxes whose net proceeds are wholly or partly assigned to a State, or on whose net proceeds sums are paid to a State out of the Consolidated Fund of India.
- **Net proceeds** = total collected minus cost of collection
- The **CAG certifies** it, and the certificate is **final and binding**

MUTUAL TAX IMMUNITY

INTERGOVERNMENTAL IMMUNITY

Point	Content
Union property (Art. 285)	Exempt from State and local taxes (municipalities, panchayats, district boards); "property" includes land, buildings, assets, shares, debts; exempt whether sovereign or commercial use; **Parliament can remove or modify** the exemption; Union **corporations and companies** are separate legal entities and **not automatically immune**
State property and income (Art. 289)	Generally exempt from Union taxation, including commercial operations; Parliament may authorise taxing **commercial activities** of States; local authorities and State corporations are **not immune**
1963 advisory opinion	State immunity does **not** extend to **customs and excise duties**; the Union may levy customs on imports or exports by a State and excise on goods produced by State entities

FINANCIAL EFFECTS OF EMERGENCIES

- **Art. 352**:
  - The President may **modify or withhold** transfer of Central taxes and grants-in-aid
  - Modifications last until the **end of the financial year** in which the Emergency ceases
- **Art. 360**:
  - Directions on financial propriety
  - **salary and allowance reductions** for State employees (including constitutional authorities and local body staff)
  - **State money bills reserved** for the President

KEY ARTICLES ON FINANCIAL RELATIONS

Article	Key focus
268	Duties levied by Union, collected and appropriated by States
269	Taxes levied and collected by Union, assigned to States
269A	GST on inter-State trade, shared

MY NOTES

Art-icle	Key focus
270	Taxes shared between Union and States on Finance Commission advice
271	Union surcharge, retained by Centre
272	Repealed (excise sharing, subsumed under GST)
273	Grants in lieu of jute export duties (West Bengal, Bihar, Assam)
274	Prior Presidential recommendation for Bills affecting taxation with State interest
275	Grants to certain States (ST welfare, special needs)
276	State tax on professions: maximum Rs 2,500 per person per year
277	Saves taxes levied by States or municipalities before the Constitution, unless Parliament alters
278	Repealed (Dominion-Province arrangements)
279	Calculation of "net proceeds"
279A	GST Council, chaired by the Union Finance Minister
280	Finance Commission every five years
281	Recommendations laid before Parliament with explanatory memorandum
282	Discretionary grants
283	Custody of Consolidated Fund, Contingency Fund, Public Account
284	Custody of suitors' deposits, court fees, other public moneys
285	Union property exempt from State taxation
286	Limits on taxing inter-State trade or import and export
287	Exemption on electricity supplied to the Union or another State
288	Limits on taxing water or electricity under Union control
289	State property and income exempt from Union tax
290	Adjustments for certain expenses, pensions, obligations
290A	Annual payments to certain Devaswom Funds in Kerala and Tamil Nadu
292	Borrowing by Government of India
293	Borrowing by States

- **Memory aid (Finance Commission):** **F**ive years, **C**hairperson plus finance member, **D**istribute taxes, **G**rants (275), **F**iscal consolidation: "**F**ive **C**ats **D**ance **G**racefully **F**ast".
- **Shortcut: Article anchors. 268-271** tax split. **275** statutory grants. **280** Finance Commission. **282** discretionary grants. **285** and **289** immunities. **292 and 293** borrowing.

MY NOTES

ALSO IN THE HANDOUT

- This ensures that non-compliance does not hinder national priorities or violate constitutional obligations.
- The term "property" is broadly defined to include land, buildings, movable and immovable assets, chattels, shares, debts, and all other tangible or intangible resources of monetary value.
- Moreover, activities classified as incidental to ordinary government functions are protected from taxation to prevent undue interference with state operations.

EVOLVING DYNAMICS AND SOURCES OF STRAIN

EVOLUTION

- First two decades: relations **cooperative and stable** because of **Congress** dominance at the Centre and in most States.
- After the **1967 elections** Congress lost power in **nine States** while keeping a fragile Centre majority
- Non-Congress States resisted centralisation and asserted autonomy
- Disputes: legislative competence, funds, Union's discretionary powers, **President's Rule (Art. 356)**, control of services, State planning.

FACTORS SHAPING RELATIONS TODAY

Factor	Content
Political federalism	Regional parties and coalitions since the **late 1980s** need negotiation; States with strong identities demand fiscal and administrative autonomy
Financial dependence	States depend on the Centre for centrally sponsored schemes and projects despite Arts. 268-293, 275-282
Judicial intervention	Supreme Court and High Courts mediate on resources, legislative competence, central directives
Institutional mechanisms	Inter-State Council (Art. 263), Zonal Councils, NITI Aayog
Multi-dimensional conflicts	Regional disparity, linguistic and cultural identity, statehood demands

NINE SOURCES OF STRAIN

STRAIN POINTS

#	Source	Content
1	**Governors**	Appointed under Art. 155, hold office at pleasure (Art. 156); partisanship concerns in recommending Art. 356 or reserving Bills (Art. 200); dual role

MY NOTES

#	Source	Content
2	**President's Rule**	Misuse, such as dismissing opposition governments (Art. 356)
3	**Central forces**	Deployment under **Art. 355** can look like encroachment
4	**Finance**	Perceived discrimination in grants, devolution, centrally sponsored schemes (Arts. 268-282)
5	**Planning**	Planning Commission (now NITI Aayog) approving State projects
6	**All-India Services**	Dual control; Centre decides appointments, postings, transfers (Art. 312)
7	**Reservation of State Bills**	Art. 201; delays and perceived interference
8	**Media and inquiry commissions**	Seen as politically motivated against States
9	**Encroachment on State List**	Union and Concurrent overlaps (Art. 246)

- **Memory aid (Strain points):** **G**overnors, **P**resident's Rule, **C**entral forces, **F**inance, **P**lanning, **A**ll-India Services, **R**eservation of Bills, **M**edia and commissions, **E**ncroachment: "**G**reat **P**eople **C**an **F**ix **P**roblems **A**s **R**eal **M**en **E**ngage".
- **Shortcut: Strain shortcut. People (Governor), Power (356), Police (Art. 355), Purse (finance and planning), Posts (AIS), Papers (Bills, media, encroachment).**

ALSO IN THE HANDOUT

- This promotes linguistic diversity and inclusivity in education, enabling children to retain cultural identity while accessing formal schooling.
- This constitutional arrangement strengthens institutional neutrality, particularly in maintaining free and fair elections, and exemplifies the Centre's indirect control to uphold democratic processes.
- Regional and sectoral councils also play a pivotal role.
- The period post-1967 underscored the need to balance national priorities with regional aspirations, highlighting the delicate equilibrium inherent in Indian federalism.
- Significance of Historical Trends The post-1967 era highlighted the dynamic and evolving nature of Indian federalism, demonstrating that the balance between central authority and state autonomy is not static.
- Understanding these sources of tension is essential for appreciating the evolving nature of Indian federalism.

MY NOTES

- States have frequently raised concerns about the dual role of Governors as constitutional heads and as representatives of the Centre, leading to mistrust in Centre-state relations.
- Such appointments would reduce the perception of political bias and foster trust between the Centre and state governments.
- While some suggestions were gradually incorporated into administrative practices, many recommendations remained unimplemented, delaying the formalization of mechanisms that could have strengthened Centre-State cooperation and reduced conflicts.

ARC, RAJAMANNAR, ANANDPUR SAHIB AND WEST BENGAL

ARC (1966)

Point	Content
Formed	**1966**, chaired by **Morarji Desai**, later **K. Hanumanthayya**; mandate included Centre-State relations
Study team	Led by **M.C. Setalvad**, first **Attorney General of India**; report **1969**
Recommendations	**Inter-State Council** (Art. 263); **non-partisan, experienced** Governors (spirit of Arts. 155-156); **devolution** of administrative powers; more **financial resources** to States; deploy **Central armed forces mainly on State request** (Art. 355)
Status	Union took no significant action on most proposals

RAJAMANNAR COMMITTEE

Point	Content
Set up	**1969** by the **DMK** Tamil Nadu government; three members under **Dr. P.V. Rajamannar**; report **1971**
Causes of centralisation	Constitutional provisions (**Arts. 356, 352, 360**); **one-party dominance**; weak fiscal autonomy; **centralised planning** by the Planning Commission
Recommendations	**Inter-State Council** now; **permanent Finance Commission**; replace Planning Commission with a **statutory body**; omit **Arts. 356, 357, 365** and remove the Governor's power to dismiss a ministry at pleasure; shift subjects from Union and Concurrent Lists to State List; **residuary powers to States**; **abolish IAS, IPS, IFS**
Status	Largely ignored; none implemented

TWO STATE DEMANDS

- **Anandpur Sahib Resolution (1973, Akali Dal):**
  - Punjab
  - Centre limited to **defence, foreign affairs, communications, currency**
  - **residuary powers to States** (Art. 248)
  - Truly federal model with equal authority for States

MY NOTES

- **West Bengal Memorandum (1977, Communist-led government):**
  - Replace "**Union**" with "**Federal**"
  - Centre limited to defence, foreign affairs, currency, communications, economic coordination
  - Residuary powers to States
  - Repeal **Arts. 356, 357, 360**
  - State **consent for new States or reorganisation**
  - **75%** of Centre's revenue to States
  - **equal powers for Rajya Sabha and Lok Sabha**
  - Abolish **All-India Services**
- **Memory aid (Autonomy demands):** **A**RC 1966-69, **R**ajamannar 1971, **A**nandpur Sahib 1973, **W**est Bengal 1977: "**A**ll **R**ounds **A**sk **W**hy".

ALSO IN THE HANDOUT

- The report, however, remains a significant reference in discussions on enhancing state autonomy and federal governance in India.

SARKARIA AND PUNCHHI COMMISSIONS

SARKARIA COMMISSION

SARKARIA COMMISSION (1983-88)

Point	Content
Set up	**1983**, three-member, chaired by **Justice R.S. Sarkaria** (retired Supreme Court judge)
Report	**1988**; term extended **four times**
Stance	**No major structural change**; federalism is **functional and cooperative**; strong Centre needed; warned that over-centralisation causes "**blood pressure at the Centre and anaemia at the periphery**"
Recommendations	**247** in all; **180 implemented**, including the **Inter-State Council (1990)**

SARKARIA RECOMMENDATIONS IN THE HANDOUT

Subject	Recommendation
Inter-State Council	Permanent Inter-Governmental Council under Art. 263
Art. 356	Very limited use, last resort
All-India Services	Strengthen; create more
Residuary powers	Residuary **taxation** powers with Parliament; **other** residuary powers to the **Concurrent List**
Assent to State Bills	President should give **reasons** when assent is withheld

MY NOTES

Subject	Recommendation
National Development Council	Rename and reconstitute as **National Economic and Development Council (NEDC)**
Zonal Councils	Revive them
Armed forces	Centre may deploy **without prior consent**, but consultation desirable
Concurrent List	Centre consults States before legislating
Governors	Formalise consultation with the Chief Minister in appointment; Governors cannot dismiss ministries with majority support; protect the **five-year term** except in extreme cases
Corporation tax	Net proceeds may be shared with States
Commissions of Enquiry	None against State ministers unless Parliament demands
Surcharge on income tax	Only for specific purposes and limited periods
Finance and Planning Commissions	Current division of functions is reasonable
Three-language formula	Implement uniformly
Media	Radio and television centrally controlled in policy, decentralised in operations
Rajya Sabha and reorganisation	No change in the Upper House role or the Centre's powers to reorganise States
Linguistic minorities	Activate the Commissioner for Linguistic Minorities

- **Memory aid (Sarkaria 247 and 180):** **I**nter-State Council, **R**ule 356 last resort, **A**ll-India Services stronger, **R**esiduary split, **A**ssent reasons, **N**EDC, **Z**onal Councils: "**I**n **R**eal **A**dministration, **R**eform **A**lways **N**eeds **Z**eal".

PUNCHHI COMMISSION

PUNCHHI COMMISSION (2007-2010)

Point	Content
Set up	**April 2007**, **Justice Madan Mohan Punchhi**, former Chief Justice of India; the **Second Commission** on Centre-State Relations
Terms	Constitutional arrangements, legislative, administrative, financial relations, Governors, emergency provisions, Panchayati Raj, resource sharing including inter-state rivers, district-level planning; communal or caste violence, mega projects, backward States, inter-state trade

MY NOTES

Point	Content
Report	**April 2010**, **1,456 pages**, **over 310 recommendations**; builds on Sarkaria, the Second ARC and the **NCRWC**

KEY PUNCHHI RECOMMENDATIONS

Topic	Recommendation
Concurrent List	Broad consensus between Union and States before Parliament legislates
Parliamentary supremacy	Restraint in State subjects; more flexibility to States
Overlaps	Centre occupies only areas needed for national uniformity
Inter-State Council	Continuing auditing and coordinating role on overlapping jurisdiction
Assent to Bills	The **six-month time limit in Art. 201** should guide the President on reserved Bills
Treaties	Parliament to legislate clearly (Entry 14, List I); Finance Commissions consider treaty cost to States
Governors	Eminent, politically neutral, from **outside the State**, **fixed five-year** tenure; removal not at the Centre's discretion; act within constitutional limits (**Art. 163**); no ceremonial roles such as **university chancellorships**
Hung assemblies, majority	Clear conventions favouring majority support; Chief Minister proves majority on the floor before dismissal, with a strict timeline
Prosecution sanction	Governors may sanction prosecution of State ministers when cabinet decisions seem biased
Emergency (Arts. 352, 355, 356)	Exhaust alternatives before Art. 356; a "**localised emergency**" framework without dissolving assemblies
Inter-State bodies	Empower Art. 263 council and Zonal Councils; meet regularly
Fiscal coordination	Institutionalise models like the **Empowered Committee of State Finance Ministers**; mandate cost-sharing in Central legislation
All-India Services	New services in health, education, judiciary, engineering
Rajya Sabha	Equal seats for all States
Local governance	Constitutionally define powers of Panchayati Raj and local bodies
Resources	Mineral royalties revised **every three years**; remove professional tax ceilings; free inter-state trade; **Inter-State Trade and Commerce Commission** under **Art. 307 and List I Entry 42** with binding powers

MY NOTES

Topic	Recommendation
Fiscal transparency	Annual independent assessment of fiscal legislation, laid before Parliament and State legislatures; stronger coordination between Finance and Planning Commissions; upgrade the Finance Commission Secretariat

SARKARIA AGAINST PUNCHHI

- **Sarkaria 1983-88:**
  - Three-member
  - 247 recommendations (180 implemented)
  - No major structural change
  - Inter-State Council (1990)
  - Art. 356 last resort
  - Governors consult CM
- **Punchhi 2007-10:**
  - Second Commission
  - 310+ recommendations
  - 1,456 pages
  - Fixed five-year Governor tenure from outside the State
  - Localised emergency
  - Art. 201 six-month guide
  - Inter-State Trade Commission
- **Memory aid (Commissions in order):** **A**RC (1966-69), **R**ajamannar (1971), **S**arkaria (1983-88), **P**unchhi (2007-10): "**A**ll **R**eports **S**eek **P**eace".
- **Shortcut: Commission shortcut. ARC 1966-69 = Setalvad. Rajamannar = DMK, Tamil Nadu, 1971. Sarkaria = 247 and 180. Punchhi = 1,456 pages, 310+, Governors from outside.**

ALSO IN THE HANDOUT

- Such institutionalized consultation ensures that national priorities—ranging from health, education, and law enforcement to regional development—are implemented efficiently while maintaining the federal balance inherent in the Indian Constitution.
- This is a constitutional ceiling designed to avoid excessive overlapping with central income tax.
- These grants are crucial for states that may face resource constraints or require support to implement national priorities.
- Unlike statutory grants, the provision of discretionary grants is entirely at the discretion of the Union, providing flexibility to respond to emergent needs or to support experimental initiatives.
- However, such measures are temporary and contingent upon the duration of the emergency, ensuring that normal federal fiscal arrangements are restored once the situation stabilizes.

MY NOTES

- This marked the beginning of a new phase in Indian federalism, characterized by a more assertive stance by state governments. Non-Congress governments in several states began to resist the increasing centralisation of powers and sought to assert greater autonomy, particularly in areas of administration, taxation, and resource allocation.
- Abolition of All-India Services The committee proposed the abolition of IAS, IPS, and IFS, arguing that these central services curtailed state administrative independence and reinforced the unitary bias.
- The memorandum further suggested that the formation of new states or reorganization of existing states should require the consent of the affected states, thereby respecting the principle of state sovereignty.
- Additionally, it called for the abolition of All-India Services (IAS, IPS, IFS), suggesting instead the establishment of separate central and state services, to prevent the dominance of central officers in state administration and promote local accountability.
- It highlighted that Indian federalism is primarily functional and cooperative, rather than merely institutional, and underlined the necessity of a strong Centre to maintain national unity and integrity, while cautioning that over-centralisation could stifle state initiative and create tensions.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 15, CENTRE-STATE RELATIONS

- Territory:
  - A state law does not apply outside the state unless there is a sufficient nexus. Only Parliament can make extra-territorial laws. The President makes regulations for Andaman and Nicobar, Lakshadweep, Dadra and Nagar Haveli and Daman and Diu, and Ladakh
  - For Puducherry only when its Assembly is suspended or dissolved. Such a regulation can repeal or amend an Act of Parliament
- Scheduled and tribal areas:
  - The Governor can direct that an Act of Parliament does not apply, or applies with changes, to a scheduled area. The Governor of Assam does this for tribal areas
  - The President does it for Meghalaya, Tripura and Mizoram
- List numbering still shows old last entries:
  - Union List ends at 97 but has 98 entries (2A, 92A, 92B added; 33, 92, 92C omitted)
  - State List ends at 66 but has 59 (11, 19, 20, 29, 36, 52, 55 omitted)

MY NOTES

- Concurrent List ends at 47 but has 52 (11A, 17A, 17B, 20A, 33A added). Extra examples: Union - census, audit, insurance
- State - prisons, fisheries, markets, theatres, gambling
- Concurrent - civil procedure, economic and social planning, drugs, newspapers and printing presses

- Art. 249 needs two-thirds of members present and voting (it also covers GST). Under Art. 252 the state legislature gives up its power on the matter, so the resolution works as abdication. More Art. 252 laws: Water (Prevention and Control of Pollution) Act 1974, Urban Land (Ceiling and Regulation) Act 1976, Transplantation of Human Organs Act 1994. Art. 253 examples: UN (Privileges and Immunities) Act 1947, Geneva Convention Act 1960, Anti-Hijacking Act 1982, TRIPS laws.
- Other controls:
  - The Governor cannot make an ordinance without the President's instructions in certain cases (Art. 213). Executive power on Concurrent subjects stays with the states unless the Constitution or Parliament gives it to the Centre (for example the Essential Commodities Act). The Centre cannot delegate legislative power, and one state cannot ask Parliament to legislate on a state subject. The state's power to entrust functions to the Centre (Art. 258A) came by the 7th Amendment, 1956
  - Art. 257A (armed forces help) is repealed
- Finance: Union taxes lie in 13 entries and state taxes in 18. Parliament used residuary taxation for gift tax, wealth tax and expenditure tax. The professional tax cap was Rs 250 until the 60th Amendment (1988) raised it to Rs 2,500. The 80th Amendment deleted Art. 272. GST Council advises on taxes to merge, goods exempted, model laws, turnover threshold, rates with floor and bands, and special rates in a disaster.
- Finance Commission is a quasi-judicial body called the 'balancing wheel' of fiscal federalism. It also advises on measures to supplement panchayat and municipal resources based on State Finance Commission reports (added by the 73rd and 74th Amendments). Committee members: Rajamannar had Lakshmanswamy Mudaliar and P.C. Chandra Reddy
- Sarkaria had B. Sivaraman and S.R. Sen. Lakshmikanth lists 14 tension areas, adding governor appointment and dismissal, enquiry commissions against Chief Ministers, centrally sponsored schemes, and CBI and ED
- Punchhi extras:
  - Governors should be eminent, from outside the state, detached from local politics and not recently active in it

MY NOTES

    - Impeachment of Governors like the President
    - Decide on assent or reservation within six months. For a hung assembly the order of preference is pre-poll alliance, largest single party, post-poll coalition of all, post-poll alliance with outside support. Bommai guidelines should enter Art. 356, a 'localised emergency' framework should be made, and the Inter-State Trade and Commerce Commission (Art. 307) should have appeal to the Supreme Court
- Lakshmikanth differs:
    - Borrowing. The Centre can borrow inside or outside India within limits fixed by Parliament (no such law yet), and a state can borrow only within India, within limits fixed by its legislature
    - A state needs Centre's consent if a Central loan or guarantee is still outstanding. The handout says states may borrow abroad with Union consent. Use the handout in class
    - Remember LK's rule
- Lakshmikanth differs: ARC (1969) made 22 recommendations and wanted Central forces deployed 'on request or otherwise', while the handout says mainly on state request. For Art. 268, LK gives post-GST stamp duties on bills of exchange, cheques and insurance policies, and its table puts coinage and currency under non-tax revenue without Art. 261, which is Full Faith and Credit (the handout wrongly ties Art. 261 to coinage).

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Which Articles are the legislative relations?	Arts. 245-255 (Part XI).
Which Articles are the administrative relations?	Arts. 256-263 (with other Articles).
Which Articles are the financial relations?	Arts. 268-293 (Part XII).
List counts in the handout?	Union 98 (originally 97), State 59 (earlier 66), Concurrent 52 (up from 47).
Which subjects did the 42nd Amendment move to the Concurrent List?	Education, forests, weights and measures, protection of wild animals and birds, administration of justice (excluding SC and HC).

What does Art. 254 say?	Central law prevails on a Concurrent subject; a State law with Presidential assent may prevail in that State, but Parliament can override it later.
What does Art. 246(4) say?	Parliament may legislate on any subject for territories not part of any State.
Name the five routes for Parliament in the State field.	Art. 249 (RS resolution), Art. 250 (National Emergency), Art. 252 (States' request), Art. 253 (treaties), Art. 356 (President's Rule).
How long does an Art. 249 resolution last and what happens after?	One year, renewable; laws cease six months after it lapses.
Examples of Art. 252 laws?	Prize Competitions Act, 1955 and Wildlife (Protection) Act, 1972.
What do Arts. 200 and 201 do?	Governor may reserve State Bills for the President; President can assent, withhold (absolute veto) or return (not Money Bills).
What does Art. 304(b) require?	Prior Presidential approval to introduce State List Bills that restrict inter-state trade.
Art. 256 versus Art. 257?	256: States must comply with Union laws; 257: State power must not impede the Union (directions on communications, railways).
Art. 258 versus 258A?	258: President entrusts Union functions to States (with State consent); 258A: State functions to the Union.
What is Art. 262 and Art. 263?	262: Parliament may adjudicate inter-state river disputes (Act of 1956); 263: Inter-State Council (1990).
What is Art. 312?	Parliament can create new All-India Services on a Rajya Sabha resolution; IAS, IPS, IFS.
When was the IFS established?	1966.
Who appoints and removes State PSC members?	Governor appoints; President removes (Art. 316).
What did the 101st Amendment (2016) insert?	Art. 246A, Art. 269A, Art. 279A (GST Council); deleted Art. 268A and Entry 92C.

MY NOTES

What is the 80th Amendment (2000)?	Alternative Scheme of Devolution: 29% of gross revenue from certain central taxes to States, from 1 April 1996 (10th FC).
Art. 268 versus 269 versus 270 versus 271?	268: levied by Union, collected and kept by States; 269: levied and collected by Union, assigned to States; 270: shared per Finance Commission; 271: surcharge kept by Centre.
What is the Art. 276 limit?	Rs 2,500 per person per year on professions, trades, callings and employments.
What are Art. 292 and 293?	292: Union borrowing (within and outside India); 293: State borrowing within India, Union consent needed beyond limits or from outside.
Statutory versus discretionary grants?	Statutory: Art. 275 on Finance Commission advice; Discretionary: Art. 282 for any public purpose.
Finance Commission facts?	Art. 280; President constitutes every five years; Chairperson plus at least one finance member; 15th FC (2020-25) recommended 41%.
Art. 285 versus Art. 289?	285: Union property exempt from State tax; 289: State property and income exempt from Union tax.
What did the 1963 advisory opinion say?	State immunity does not extend to customs and excise duties.
What changed after the 1967 elections?	Congress lost nine States; non-Congress States asserted autonomy.
ARC 1966: chair, study team head, report year?	Morarji Desai then K. Hanumanthayya; M.C. Setalvad; 1969.
Rajamannar Committee: who set it up and when did it report?	DMK Tamil Nadu government (1969); report 1971.
Anandpur Sahib versus West Bengal memorandum?	Anandpur Sahib 1973 (Akali Dal): residuary powers to States; West Bengal 1977: "Federal" for "Union", 75% revenue to States, abolish AIS.
Sarkaria Commission key numbers?	Set up 1983, report 1988, term extended four times; 247 recommendations, 180 implemented; Inter-State Council 1990.

MY NOTES

Punchhi Commission key numbers?	April 2007; report April 2010; 1,456 pages; over 310 recommendations.
What did Punchhi say on Governors?	Eminent, neutral, from outside the State, fixed five-year tenure, no chancellorships; majority proved on the floor before dismissal.

Trap 1 · Which law wins on a Concurrent subject

Art. 254(1): the central law overrides the state law. Art. 254(2): a state law with Presidential assent prevails in that state, but Parliament can later override it (Kerala Professional Colleges Act, 2006, overtaken by NEET rules). *Rule: Centre wins by default; the assent exception is itself overridable.*

Trap 2 · Six months or for good

Laws under Art. 249 and Art. 250 end six months after the resolution or emergency lapses. Laws made during President's Rule (Art. 356) continue until the State Legislature repeals or amends them. An Art. 252 law can be amended only by Parliament. *Rule: 249 and 250 = six-month tail; 356 = stays; 252 = only Parliament changes it.*

Trap 3 · Levied by whom, kept by whom

Art. 268 duties are levied by the Union but collected and kept by the states. Art. 269 and 269A are levied and collected by the Centre and handed to states. Art. 270 taxes are shared on Finance Commission advice. Art. 271 surcharge stays with the Centre. *Rule: ask three questions: who levies, who collects, who keeps.*

Trap 4 · Appointed by Governor, removed by President

The State PSC chairman and members, and the State Election Commissioner (Art. 243K), are appointed by the Governor but removed only by the President. JSPSC members are appointed by the President. *Rule: state-level watchdogs are appointed by the Governor, yet removal power sits with the President.*

QUICK QUIZ

Q1. The distribution of powers between the Centre and the States in the Indian Constitution is based on the scheme provided in the

1. Morley-Minto Reforms, 1909
2. Montagu-Chelmsford Act, 1919
3. Government of India Act, 1935
4. Indian Independence Act, 1947

Q2. Under which Article may Parliament legislate on a State List subject after a Rajya Sabha resolution?

1. Art. 249
2. Art. 250
3. Art. 252
4. Art. 253

Q3. A law made under Art. 249 ceases to operate after the resolution lapses by

1. Immediately
2. Six months
3. One year
4. Two years

MY NOTES

Q4. Which Article lets Parliament legislate for States that request it, with only Parliament able to amend or repeal?

1. Art. 249
2. Art. 252
3. Art. 253
4. Art. 356

Q5. Which route lets laws continue after the trigger ends, unless the State Legislature changes them?

1. Art. 249
2. Art. 250
3. Art. 356
4. Art. 252

Q6. Which Article makes the executive power of each State subject to compliance with laws of Parliament?

1. Art. 256
2. Art. 258
3. Art. 261
4. Art. 263

Q7. The Inter-State Council under Art. 263 was first established in

1. 1956
2. 1969
3. 1983
4. 1990

Q8. Which Article provides for full faith and credit to public acts, records and judicial proceedings?

1. Art. 260
2. Art. 261
3. Art. 262
4. Art. 263

Q9. Net proceeds assigned to States and not credited to the Consolidated Fund of India are taxes under

1. Art. 268
2. Art. 269
3. Art. 270
4. Art. 271

Q10. Surcharges retained by the Centre are provided under

1. Art. 269A
2. Art. 270
3. Art. 271
4. Art. 272

Q11. The maximum State tax on professions, trades, callings and employments per person per year is

1. Rs 2,000
2. Rs 2,500
3. Rs 3,000
4. Rs 5,000

Q12. The 80th Amendment (2000) devolved what share of gross revenue from certain central taxes to States?

1. 29%
2. 41%
3. 50%
4. 75%

Q13. Which Commission, set up in 1983, made 247 recommendations of which 180 were implemented?

1. Rajamannar
2. Sarkaria
3. Punchhi
4. ARC

Q14. The Second Commission on Centre-State Relations (2007) was chaired by

1. R.S. Sarkaria
2. P.V. Rajamannar
3. Madan Mohan Punchhi
4. M.C. Setalvad

MY NOTES

Q15. PYQ 2012: The distribution of powers between the Centre and the States in the Indian Constitution is based on the scheme provided in the (2012)

1. Morley-Minto Reforms, 1909
2. Montagu-Chelmsford Act, 1919
3. Government of India Act, 1935
4. Indian Independence Act, 1947

Answers: Q1 c, Q2 a, Q3 b, Q4 b, Q5 c, Q6 a, Q7 d, Q8 b, Q9 b, Q10 c, Q11 b, Q12 a, Q13 b, Q14 c, Q15 c

MY NOTES

CHAPTER 21 · HANDOUT CHAPTER: INTER-STATE RELATIONS

21 Inter-State Relations

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **2024**

EXAM LENS

Prelims hooks

- Art. 261 to 263 and 301 to 307 one-line meanings
- River Boards Act versus Inter-State Water Disputes Act
- composition of the Inter-State Council and Zonal Councils
- which council is constitutional and which statutory
- Zonal Council headquarters.
- Handout stresses: Handout ends with a Key Articles on Inter-State Relations table covering Arts. 261, 262, 263, 301, 302, 303, 304, 305, 306 and 307 (Final table)
- Handout stresses: Article 262 with the two 1956 Acts and the nine tribunals (states and years) (Water disputes section)
- Handout stresses: Zonal Councils are statutory (States Reorganisation Act 1956), Home Minister is common chairman, headquarters table (Zonal Councils section)
- Handout stresses: One Prelims PYQ (2024) quoted: inter-state quarantine is a Union subject (PYQ section)

Mains hooks

- none quoted in the material
- Likely angles from the notes: Article 262 and the delay and non-compliance problem, advisory Inter-State Council and cooperative federalism.

Courts decide legal disputes, tribunals settle rivers, councils talk things through, and Articles 261 and 301 keep the country one legal and economic space.

IN SIMPLE WORDS

- Water, trade and law cross state borders, so the Constitution gives tools to keep states in harmony: **water tribunals**, the **Inter-State Council**, **full faith and credit**, **free trade** and **Zonal Councils**.

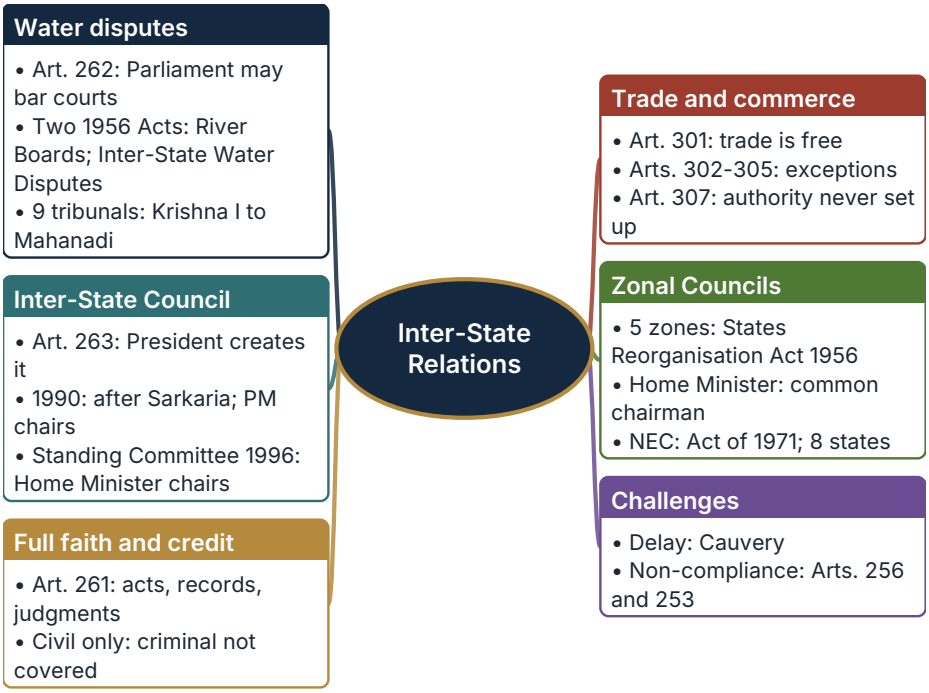
MY NOTES

- **Art. 262**: Parliament can set up bodies for river disputes and bar all courts. The two **1956 Acts** are the **River Boards Act** (advisory boards) and the **Inter-State Water Disputes Act** (ad hoc tribunal, final award). **Nine tribunals** were set up from **1969** to **2018**.
- **Art. 263**:
  - The President can create an **Inter-State Council**. The permanent one began in **1990** after the **Sarkaria** call
  - The **Prime Minister** chairs it and it only **advises**
- **Art. 261**: public acts, records and judicial proceedings get **full faith and credit**. Civil judgments run anywhere in India, but **criminal** ones do not.
- **Arts. 301-307**:
  - Trade is **free** across India (**Art. 301**) with limits in 302-305
  - The authority under **Art. 307** has **never been appointed**
- **Zonal Councils** came from the **States Reorganisation Act, 1956**: five zones, the **Union Home Minister** as common chairman. The **North-Eastern Council** has its own **1971** Act.

Key term	In plain words
Full Faith and Credit	Art. 261: every state must honour public acts, records and judicial proceedings of the Centre and of other states
Public acts and records	Acts are laws and executive actions; records are official books or registers kept by public servants
Ad hoc tribunal	Temporary body set up under the 1956 Act to decide one river dispute; its award is final and binding
River Board	Advisory body set up on the request of the states for an inter-state river (River Boards Act, 1956)
Inter-State Council	Art. 263 forum chaired by the Prime Minister; advisory, meets in camera and works by consensus
Intercourse (Art. 301)	Free movement of goods, services and people; covers inter-state and intra-state trade
Zonal Council	Statutory advisory body for each of five zones; the Union Home Minister is common chairman
North-Eastern Council	Separate body under the 1971 Act for Assam, Manipur, Mizoram, Arunachal Pradesh, Nagaland, Meghalaya, Tripura and Sikkim

MY NOTES

MEMORY MAP: INTER-STATE RELATIONS



MNEMONIC · FIVE TOOLS OF INTER-STATE RELATIONS

C R A F T

- **C** Council: Inter-State Council (Art. 263)
- **R** Regional Zonal Councils (statutory, 1956)
- **A** Adjudication of water disputes (Art. 262)
- **F** Full faith and credit to acts, records and judgments (Art. 261)
- **T** Trade, commerce and intercourse kept free (Arts. 301-307)

States CRAFT cooperation with these five tools. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · NINE WATER TRIBUNALS IN YEAR ORDER

Keen Guides Never Reject Calm, Kindly Voiced Mutual Meetings

- **K** Krishna-I (1969)
- **G** Godavari (1969)
- **N** Narmada (1969)
- **R** Ravi and Beas (1986)
- **C** Cauvery (1990)
- **K** Krishna-II (2004)
- **V** Vansadhara (2010)
- **M** Mahadayi (2010)
- **M** Mahanadi (2018)

Water tribunals work by calm talk and mutual meetings between states, in the order of their setting up. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · WHO SITS IN THE INTER-STATE COUNCIL

P A T R O N

- **P** Prime Minister, chairman
- **A** All States' Chief Ministers
- **T** Territories with legislatures: their Chief Ministers
- **R** Rule (President's Rule) States: their Governors
- **O** Other Union Territories: their Administrators
- **N** Nominated Union Cabinet Ministers (nominated by the Prime Minister)

The Prime Minister is the PATRON (chairman) of the Council; the other groups follow. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · ZONAL COUNCIL HEADQUARTERS (NORTHERN TO SOUTHERN)

New Allies Keep Meeting Cordially

- **N** New Delhi (Northern)
- **A** Allahabad (Central)
- **K** Kolkata (Eastern)
- **M** Mumbai (Western)
- **C** Chennai (Southern)

Allies of a zone keep meeting at these headquarters in the order Northern, Central, Eastern, Western, Southern. (Memory aid, not from the handout.)

MNEMONIC · TRADE ARTICLES 301 TO 307

Free Parliament Limits States, Saving Repealed Authority

- **F** Freedom of trade, commerce and intercourse (Art. 301)
- **P** Parliament may impose restrictions (Art. 302)
- **L** Limits on legislatures: no discrimination between states (Art. 303)
- **S** State legislature restrictions, with President's prior sanction (Art. 304)
- **S** Saving of existing laws and state monopolies (Art. 305)
- **R** Repealed (Art. 306)
- **A** Authority for implementation, never appointed (Art. 307)

Read the sentence as the story of Arts. 301 to 307 in order. (Memory aid, not from the handout.)

WHY INTER-STATE RELATIONS MATTER

- The federal system depends on smooth relations among the states as well as between Centre and states. Conflicts arise over **resources, jurisdiction and legislative matters**, so the Constitution gives tools for cooperation, coordination and dispute resolu-

MY NOTES

tion. The aim is national integration, economic development and social harmony.

FIVE MECHANISMS

Mechanism	Where it comes from
Resolution of inter-state water disputes	Art. 262 and two 1956 Acts
Coordination through Inter-State Councils	Art. 263
Mutual recognition of acts, records and judicial proceedings	Art. 261
Freedom of inter-state trade, commerce and communication	Arts. 301-307
Role of Zonal Councils	States Reorganisation Act, 1956 (statutory)

- **Memory aid (Five tools): W**ater disputes, **C**ouncils (Inter-State), **M**utual recognition, **F**ree trade, **Z**onal Councils: "**W**e **C**ooperate, **M**eet, **F**lourish **Z**ealously."
- **Shortcut: Article run 261 to 263. 261 = Records (full faith), 262 = Rivers, 263 = Round table (Council).** Then jump to **301 onwards = trade**.

ALSO IN THE HANDOUT

- Overall, the constitutional and institutional framework under Article 262 plays a pivotal role in promoting justice, equity, and harmony in the management of India's shared water resources, reinforcing the country's federal structure through cooperation rather than confrontation.

INTER-STATE WATER DISPUTES (ART. 262)

- Water is vital and finite, so rivers shared by states cause tension. **Article 262** lets Parliament make laws to **adjudicate disputes about the use, control and distribution of inter-state rivers or river valleys**. It also lets Parliament **exclude the jurisdiction of the Supreme Court or any other court** over these disputes, which gives a dedicated and binding mechanism.

THE TWO ACTS PASSED UNDER ART. 262

RIVER BOARDS ACT VERSUS INTER-STATE WATER DISPUTES ACT

- **River Boards Act, 1956:**
  - Central government may set up river boards
  - For regulation, development and management of inter-state rivers and valleys
  - Primarily **advisory**
  - Constituted **on the request of the concerned states**

MY NOTES

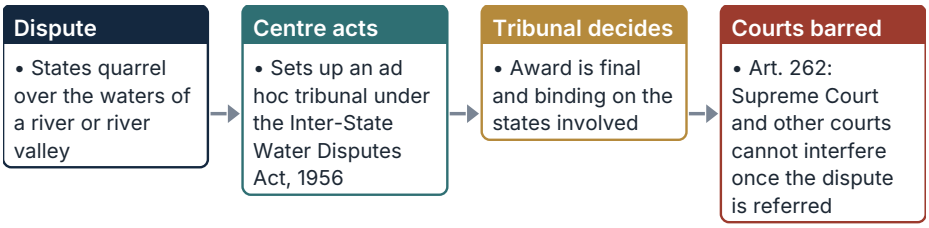
- Promotes cooperative planning and equitable use

- **Inter-State Water Disputes Act, 1956:**
  - Central government sets up an **ad hoc tribunal** to adjudicate disputes over waters of a river or valley
  - Decision is **final and binding**
  - Once referred, **no court can interfere**
  - Speedy and focused

HOW A WATER DISPUTE IS SETTLED

- **Dispute**: States quarrel over the waters of a river or river valley
- **Centre acts**: Sets up an ad hoc tribunal under the Inter-State Water Disputes Act, 1956
- **Tribunal decides**: Award is final and binding on the states involved
- **Courts barred**: Art. 262: Supreme Court and other courts cannot interfere once the dispute is referred

HOW A WATER DISPUTE IS SETTLED



- **Why tribunals, not courts:** The Supreme Court could decide such cases as a matter of law. But they involve complex **inter-state and public-interest** questions beyond simple legal rights. Tribunals allow a **technical, equitable and cooperative** settlement.

TRIBUNALS SET UP UNDER THE 1956 ACT

NINE TRIBUNALS (HANDOUT'S TABLE, REBUILT)

No.	Tribunal	Year	States involved
1	Krishna Water Disputes Tribunal-I	1969	Maharashtra, Karnataka, Andhra Pradesh
2	Godavari Water Disputes Tribunal	1969	Maharashtra, Karnataka, Andhra Pradesh, Madhya Pradesh, Odisha
3	Narmada Water Disputes Tribunal	1969	Rajasthan, Gujarat, Madhya Pradesh, Maharashtra
4	Ravi and Beas Water Disputes Tribunal	1986	Punjab, Haryana, Rajasthan
5	Cauvery Water Disputes Tribunal	1990	Karnataka, Kerala, Tamil Nadu, Puducherry
6	Krishna Water Disputes Tribunal-II	2004	Maharashtra, Karnataka, Andhra Pradesh

MY NOTES

No.	Tribunal	Year	States involved
7	Vansadhara Water Disputes Tribunal	2010	Odisha, Andhra Pradesh
8	Mahadayi Water Disputes Tribunal	2010	Goa, Karnataka, Maharashtra
9	Mahanadi Water Disputes Tribunal	2018	Odisha, Chhattisgarh

- **Memory aid (Nine tribunals in order):**
  - **K**rishna-I, **G**odavari, **N**armada, **R**avi-Beas, **C**auvery, **K**rishna-II, **V**ansadhara, **M**ahadayi, **M**ahanadi: "**K**eep **G**ood **N**eighbours
  - **R**ivers **C**an **K**eep **V**ery **M**oody **M**oods."
- **Shortcut: Year clusters. 1969 = three** (Krishna-I, Godavari, Narmada). **1986** Ravi-Beas, **1990** Cauvery, **2004** Krishna-II, **2010 = two** (Vansadhara, Mahadayi), **2018** Mahanadi.

WHY ART. 262 MATTERS

- A safeguard for **cooperative federalism**
- Adjudication is **impartial and insulated** from political influence and electoral considerations
- Tribunals are **neutral platforms** where states present technical and legal claims, building trust.
- It **preserves the balance between Union and State interests** and keeps national unity amid regional disagreements.
- It promotes **equitable and sustainable distribution** and stops unilateral state action.
- It **reduces the burden on constitutional courts** by sending complex technical cases to expert bodies.

CHALLENGES

WHY DISPUTES STILL HURT

Challenge	Detail
Scarcity	Population growth, urbanisation, industrial expansion and climate change
Delay	Tribunals take years or decades; the **Cauvery** tribunal is the example
Non-compliance	States ignore awards; Centre may need to intervene under **Articles 256 and 253**
Complex river management	Many stakeholders, agriculture, ecology, hydroelectric projects
Politicisation	Hydrological and technical issues become politically charged

MY NOTES

ALSO IN THE HANDOUT

- These tribunals have played a pivotal role in addressing long-standing conflicts and ensuring equitable water distribution. The details are summarized below:
- These pressures have intensified competition among states sharing river basins, making consensus and cooperation increasingly difficult. Another major challenge lies in the prolonged adjudication process of water disputes. Tribunals often take several years, or even decades, to deliver their verdicts—such as seen in the case of the Cauvery Water Dispute Tribunal—leading to uncertainty, political tension, and delayed implementation of water-sharing arrangements.
- Additionally, the complex nature of river management, involving multiple stakeholders, agricultural dependencies, ecological considerations, and hydroelectric projects, adds layers of administrative and technical difficulty. The interplay of political interests and regional sentiments often transforms what are essentially hydrological and technical issues into politically charged disputes, further complicating resolution efforts.
- This means that while the general obligation of recognition exists, Parliament can frame procedures detailing how these acts and records are presented as evidence and the legal consequences attached to them when applied in another state.

INTER-STATE COUNCIL (ART. 263)

- **Article 263** lets the **President** create a consultative body when public interest would benefit from formal cooperation between the Union and States or among States. The President decides whether to create it, its remit, and its organisation and procedure. It is flexible and does not touch judicial functions or the distribution of legislative powers.

THREE KINDS OF WORK UNDER ART. 263

Clause	Task
(a)	Examine and **advise on disputes** between States
(b)	**Study and discuss** subjects of shared interest (States, or Centre and States)
(c)	**Make recommendations**, especially to improve coordination of policy and action

- Because it is **advisory**, it complements the courts. Where a legal dispute needs a binding decision, the Supreme Court's jurisdiction under **Article 131** remains. The Council is best for political, technical and policy questions that need negotiation and consensus.

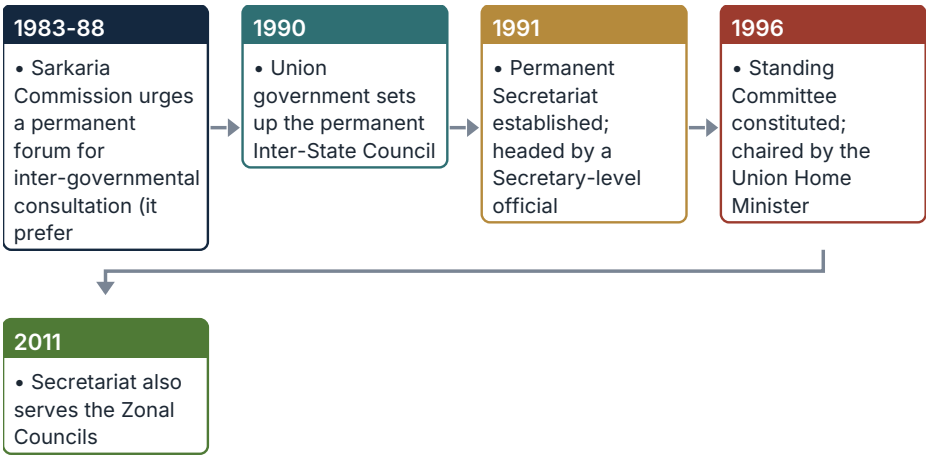
MY NOTES

CREATION AND EVOLUTION

PATH TO THE INTER-STATE COUNCIL

- **1983-88**:
  - **Sarkaria Commission** urges a permanent forum for inter-governmental consultation (it preferred the name Inter-Governmental Council)
  - Main duties to be clauses (b) and (c)
- **1990**: Union government sets up the permanent **Inter-State Council**
- **1991**:
  - Permanent **Secretariat** established
  - Headed by a Secretary-level official
- **1996**:
  - **Standing Committee** constituted
  - Chaired by the Union Home Minister
- **2011**: Secretariat also serves the **Zonal Councils**

PATH TO THE INTER-STATE COUNCIL



MEMBERS OF THE COUNCIL

Member	Role
Prime Minister	Chairs the Council
Chief Ministers of all States	Members
Chief Ministers of Union Territories with legislatures	Members
Administrators of other Union Territories	Members
Governors of States under President's Rule	Members
Select Union Cabinet Ministers	Nominated by the Prime Minister
Cabinet-rank Ministers or Ministers of State (independent charge)	**Permanent invitees**

MY NOTES

HOW IT WORKS

- Mandate: **investigate and discuss** matters of shared concern, **recommend** better coordination, and take up matters referred by the Chair.
- Meets periodically
- Its rules envisage **at least three meetings a year**
- Business is **in camera**
- Decisions by **consensus**, not majority
- **Standing Committee** (Home Minister in the chair, with some Union Ministers and Chief Ministers) processes items for the full Council and follows up decisions.
- **Secretariat** does agenda preparation, research, coordination with States and Central Ministries, and monitoring of implementation.
- **Memory aid (Council set-up dates): S**arkaria 1983-88, **C**ouncil 1990, **S**ecretariat 1991, **S**tanding Committee 1996, **Z**onal link 2011: "**S**ome **C**ouncils **S**it **S**ilently, **Z**ero fuss."

SECTORAL AND REGIONAL COUNCILS UNDER ART. 263

- Examples: **Central Council of Health and Family Welfare**, **Central Council of Local Government**, and regional councils for **sales-tax coordination** across Northern, Eastern, Western and Southern zones. They pool technical knowledge, harmonise standards and fix operational problems before they become constitutional disputes.

STRENGTHS AND CONSTRAINTS

VALUE VERSUS LIMIT

- **Strengths:**
  - Predictable space for negotiation
  - Policy convergence on cross-cutting issues (disaster management, inter-state infrastructure, centrally sponsored schemes)
  - Less litigation and less central coercion
- **Constraints:**
  - Advisory only
  - Recommendations carry moral and political force but are **not legally enforceable**
  - Depends on political will
  - Sarkaria and Punchhi urged stronger capacity, secretariat support and systematic follow-up
- **Exam trap:** Sarkaria wanted the Council to handle mainly clauses **(b) and (c)** of Art. 263 (investigation, discussion, recommendation on common interest). It is **advisory**: do not say it can bind states.

MY NOTES

ALSO IN THE HANDOUT

- This constitutional device is deliberately flexible — designed to foster dialogue and harmonise policy across jurisdictions without encroaching on judicial functions or upsetting the distribution of legislative powers.
- Strengths and Constraints The Inter-State Council and its associated forums are valuable instruments for enhancing cooperative federalism.
- This ensures that government actions in one state are legally acknowledged and can be relied upon in other states, thereby preventing administrative and legal conflicts arising from territorial boundaries.

FULL FAITH AND CREDIT (ART. 261)

- Each state's authority is **territorial**, so acts, records and judgments of one state must be recognised in another. **Article 261** states the **Full Faith and Credit** principle. It applies to the Union and the states and covers legislative, executive and judicial outputs.
- **Public acts**: all laws and executive actions issued by a government.
- **Public records**: official books, registers or records kept by public servants in their official capacity.
- **Judicial proceedings**: judgments and decisions of courts.

HOW ART. 261 WORKS

- **Clause 1**: Public acts, records and judicial proceedings of the Union and every state must be respected across India
- **Clause 2**: **Parliament** can lay down the **mode of proof and the effect** of such acts, records and proceedings
- **Result**: Land records, birth or marriage certificates are generally admissible across India, subject to parliamentary law on proof

CIVIL VERSUS CRIMINAL

- **Civil judgments:**
  - Final civil court judgments of any state can be **executed anywhere in India** without a fresh suit
  - Helps commerce, property deals and civil disputes
- **Criminal matters:**
  - **Not covered**: criminal judgments or penal laws of one state do not automatically bind the courts of another
  - States keep jurisdictional autonomy over criminal law enforcement
- **Memory aid (Art. 261 pieces): A**cts, **R**ecords, **J**udicial proceedings, **P**arliament proves: "**A R**ight **J**udgment **P**ersists."

MY NOTES

- **Shortcut: Shortcut. Civil = travels, criminal = stays home.** Clause 2 = Parliament decides proof and effect. The clause balances **state autonomy with national coherence** and reflects cooperative federalism.

ALSO IN THE HANDOUT

- An important aspect of this principle is its application to judicial decisions.
- This greatly facilitates inter-state commerce, property transactions, and civil dispute resolution, as parties can rely on the enforceability of judgments across state boundaries.
- It reflects the broader spirit of cooperative federalism by enabling mutual recognition and enforceability of laws and decisions while allowing Parliament to regulate procedural and evidentiary standards for smooth inter-state operation.

INTER-STATE TRADE AND COMMERCE (ARTS. 301-307)

- A seamless domestic market is a federal necessity. **Articles 301 to 307** regulate trade, commerce and intercourse within India, protecting free movement of goods, services and people. **Article 301** guarantees that trade, commerce and intercourse throughout India shall be **free**. It covers **inter-state and intra-state** trade, so restrictions at borders or inside a state both count. The freedom is **not absolute**. Exceptions in the public interest:

EXCEPTIONS AND WHO MAY RESTRICT (HANDOUT'S TEXT)

Article	Handout's statement
302	**Parliament** may impose restrictions on trade between states or within a state in public interest; **no discrimination** or preference between states, except in **scarcity of essential goods**
303 and 304	A **state legislature** may impose **reasonable restrictions** within the state or with other states in public interest; **prior presidential approval is mandatory**; no preference to its own producers and no discrimination between states
304 (taxation)	States may tax goods imported from other states or UTs, but the tax must be **uniform and comparable** to tax on goods made in the state; discriminatory tax favouring local goods is prohibited
305	Union or states may make laws creating **government monopolies** in sectors (trades, industries, services, exclusively or partly) without violating Art. 301

MY NOTES

HANDOUT ALERT

Handout alert: The prose lists **303 and 304 together** as state restrictions, but the closing **Key Articles table** gives: **303 = limits on legislative powers** (Union and state laws must not discriminate between states), **304 = state restrictions with President's prior approval**, **305 = saving of existing laws and state monopolies**. For the exam use the **table's article numbers**, with the prose giving the content.

ART. 307 AND THE MISSING AUTHORITY

- Parliament may appoint a **regulatory authority** to implement the provisions, monitor restrictions and ensure non-discrimination. **No such authority has been appointed so far.**

ARTS. 301-307 IN ONE VIEW (HANDOUT'S KEY ARTICLES TABLE)

Article	Subject	Gist
301	Freedom of trade, commerce and intercourse	Free throughout India; applies to inter-state and intra-state trade
302	Parliamentary power to impose restrictions	Public interest; non-discriminatory between states
303	Limitations on legislative powers	Union and states cannot discriminate or prefer one state
304	Restrictions by state legislatures	Reasonable restrictions in public interest; President's prior approval
305	Saving of existing laws	Existing laws and state monopolies not invalidated by Arts. 301-304
306	Repealed	Had empowered certain Part B states to restrict trade
307	Authority for trade and commerce	Parliament may appoint authority for Arts. 301-304; none appointed so far

- **Memory aid (Arts. 301 to 307):**
  - **F**ree (301), **P**arliament restricts (302), **N**o discrimination (303), **S**tates restrict (304), **S**aving (305), **R**epealed (306), **A**uthority (307): "**F**ree **P**arcels **N**ever **S**tay **S**tuck
  - **R**ules **A**re set."
- **Shortcut: Shortcut. 301 free, 302 Parliament, 303 no favouritism, 304 State with President's nod, 305 saves, 306 gone, 307 authority never formed.** Together the Articles create **cooperative federalism in economic governance**, with extra importance in the post-liberalisation era of growing interdependence among states.

ALSO IN THE HANDOUT

- This provision is not limited to inter-state transactions but also applies to trade and commerce within a state, ensuring that

MY NOTES

restrictions imposed at any stage—whether at the borders or internally—do not hinder the free flow of economic activity. The underlying objective of Article 301 is to dismantle internal barriers and foster a unified national market, thereby enhancing economic efficiency and equitable development.

- Discriminatory taxation that favors local goods over imports from other states is constitutionally prohibited, ensuring fairness and preventing economic fragmentation.
- This ensures the state's ability to regulate or control critical sectors while balancing free trade principles.
- This framework becomes particularly crucial in the context of India's growing economic interdependence among states, the expansion of markets, and the rise of interstate commerce in the post-liberalisation era.

ZONAL COUNCILS AND THE NORTH-EASTERN COUNCIL

- Zonal Councils are **statutory**, not constitutional, created by the **States Reorganisation Act, 1956**. The Act divided India into **five zones**: Northern, Central, Eastern, Western and Southern, using geography, river systems, communications, linguistic and cultural ties, economic development, law and order and internal security.

COMPOSITION OF EACH ZONAL COUNCIL

Group	Members
Chairman	**Union Home Minister**, common chairman of all five
Vice-Chairmen	Chief Minister of each member state, **rotating, one year each**
Members	Chief Ministers of all states in the zone; **two other ministers** nominated by each state; Administrators of UTs in the zone
Advisors (no vote)	Nominee of the **Planning Commission (NITI Aayog as successor)**; **Chief Secretary** of each state; **Development Commissioner** of each state

- **Memory aid (Who sits):** **H**ome Minister chairs, **C**hief Ministers, **T**wo ministers per state, **A**dministrators of UTs: "**H**ome **C**ouncil **T**ypically **A**ttended".

OBJECTIVES AND FUNCTIONS

- They are **deliberative and advisory**, not decision-making. Aim: **cooperation, coordination and emotional integration** among states, UTs and the Centre. Topics include economic and social planning, development projects, border disputes, linguistic minorities and inter-state transport.

MY NOTES

FIVE FUNCTIONS

Function	Meaning
Fostering national integration	Counter excessive regionalism, linguism and state-consciousness
Coordinating development efforts	Large projects; uniform policy where feasible
Harmonising post-reorganisation challenges	Residual issues after state reorganisation
Sharing knowledge and best practices	Exchange of ideas and experience
Maintaining regional equilibrium	Political and economic balance between regions

NORTH-EASTERN COUNCIL (NEC)

- Set up under the **North-Eastern Council Act, 1971** for the special needs of the north-east. Members: **Assam, Manipur, Mizoram, Arunachal Pradesh, Nagaland, Meghalaya, Tripura and Sikkim** (eight). Extra tasks: **formulate a coordinated regional plan**
- **periodically review security and public order measures** of member states
- **promote socio-economic development** in a harmonised way
- **Memory aid (NEC's eight):** **A**ssam, **M**anipur, **M**izoram, **A**runachal, **N**agaland, **M**eghalaya, **T**ripura, **S**ikkim: "**A**ll **M**y **M**ates **A**re **N**ice **M**ountain **T**ravellers, **S**mile."

ZONAL COUNCILS AND HEADQUARTERS

Council	Members (states and UTs)	Headquarters
Northern	Himachal Pradesh, Haryana, Punjab, Rajasthan, Delhi, Chandigarh, Jammu and Kashmir, Ladakh	New Delhi
Central	Uttar Pradesh, Uttarakhand, Chhattisgarh, Madhya Pradesh	Allahabad
Eastern	Bihar, Jharkhand, West Bengal, Odisha	Kolkata
Western	Gujarat, Maharashtra, Goa, Dadra and Nagar Haveli, Daman and Diu	Mumbai
Southern	Andhra Pradesh, Telangana, Karnataka, Tamil Nadu, Kerala, Puducherry	Chennai

- **Memory aid (Headquarters):** **D**elhi (Northern), **A**llahabad (Central), **K**olkata (Eastern), **M**umbai (Western), **C**hennai (Southern): "**D**ogs **A**lways **K**eep **M**uddy **C**oats."
- **Shortcut: Counts. Northern 8, Central 4, Eastern 4, Western 5, Southern 6** members (states and UTs as the handout lists).

MY NOTES

THREE BODIES, THREE BASES

- **Inter-State Council:**
  - Basis **Art. 263** (President)
  - Set up **1990**
  - Chaired by **Prime Minister**
- **Zonal Councils and NEC:**
  - **Statutory**: Zonal Councils by **States Reorganisation Act 1956**, NEC by **NEC Act 1971**
  - Zonal Councils chaired by **Home Minister**
- The Zonal Councils and NEC strengthen regional cooperation, policy coordination and conflict resolution, and sit alongside the constitutional and statutory mechanisms above.

ALSO IN THE HANDOUT

- The rationale for establishing special tribunals lies in the limitations of ordinary judicial mechanisms.
- Additionally, several advisors without voting rights assist the councils, including: 11.
- While the NEC shares similar objectives with the Zonal Councils, it has additional responsibilities, such as: 5.
- Promoting socio-economic development and ensuring that the region progresses in a harmonized manner.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 16, INTER-STATE RELATIONS

- Sarkaria wanted a permanent body called the Inter-Governmental Council, to tell it apart from other Art. 263 bodies. The Inter-State Council was set up by the V.P. Singh (Janata Dal) government under an Order of 28 May 1990.
- Council members in numbers: Prime Minister (chairman), all Chief Ministers, Chief Ministers of UTs with assemblies, Administrators of other UTs, Governors of states under President's Rule, and six Central Cabinet Ministers including the Home Minister. Five ministers of Cabinet rank or MoS (independent charge) are permanent invitees. It meets at least thrice a year.
- Standing Committee (1996): the Union Home Minister as chairman, five Union Cabinet Ministers and nine Chief Ministers. The Secretariat (1991) is headed by a Secretary to the Government of India and has served the Zonal Councils since 2011.
- Other Art. 263 bodies: Central Council of Health and Family Welfare, Central Council of Local Government (earlier the Central Council of Local Self-Government, 1954) and four Regional Councils for Sales Tax (Northern, Eastern, Western, Southern). The Central Council of Indian Medicine and the

MY NOTES

Central Council of Homoeopathy were set up by Acts of Parliament.

- Art. 301 is violated whether the restriction is at the frontier or at an earlier or later stage. Example of Parliament's restriction: the Essential Commodities Act, 1955, to control production, supply and distribution of petroleum, coal, iron and steel. In the USA the similar authority is the Inter-State Commerce Commission.
- Zonal Councils were planned using natural divisions, river systems, communications, cultural and linguistic affinity, and needs of economy, security and law and order. Aims include emotional integration, checking state-consciousness, regionalism, linguism and particularistic trends, and removing after-effects of state reorganisation.
- North-Eastern Council: it came into existence on 8 August 1972 under the 1971 Act, and Sikkim joined as the eighth member in 2002. It also frames a unified regional plan and reviews members' security and public order measures.
- Lakshmikanth differs:
  - It names the Central Zonal Council headquarters as Prayagraj, while the handout says Allahabad (same city, renamed). It lists only a NITI Aayog nominee as advisor, where the handout adds 'Planning Commission or NITI Aayog'. Use the handout's Allahabad for the mnemonic
  - Both are right
- Lakshmikanth differs:
  - Article titles. LK calls Art. 304 'Restrictions on trade among states' and Art. 305 'Saving of existing laws and laws providing for state monopolies'
  - The handout calls Art. 304 'Restrictions by State Legislatures' and Art. 305 'Saving of Existing Laws'. The content is the same
  - Use the handout's wording in class

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

What does Art. 261 provide?	Full faith and credit: public acts, records and judicial proceedings of the Union and each state are recognised throughout India; Parliament may prescribe the mode of proof and effect.

Do civil and criminal judgments both travel across states under Art. 261?	Only civil: final civil judgments execute anywhere in India without a fresh suit; criminal judgments do not automatically bind other states.
What does Art. 262 allow Parliament to do?	Provide for adjudication of inter-state river disputes and exclude the jurisdiction of the Supreme Court and other courts.
Name the two 1956 Acts under Art. 262.	River Boards Act (advisory boards) and Inter-State Water Disputes Act (ad hoc tribunal, final and binding).
Which tribunals were set up in 1969?	Krishna-I, Godavari and Narmada.
Which tribunals date from 2010?	Vansadhara (Odisha, Andhra Pradesh) and Mahadayi (Goa, Karnataka, Maharashtra).
Which is the latest tribunal in the handout's table?	Mahanadi Water Disputes Tribunal, 2018 (Odisha and Chhattisgarh).
Why are tribunals preferred to courts for water disputes?	Complex inter-state and public-interest questions beyond simple legal rights; technical, equitable and cooperative settlement.
Name challenges in inter-state water management.	Scarcity; slow adjudication (Cauvery); non-compliance (Arts. 256 and 253); complex river management; politicisation.
Who can create an Inter-State Council and under which Article?	The President, under Art. 263.
List the three works of an Art. 263 council.	(a) Advise on disputes between states; (b) study subjects of shared interest; (c) make recommendations for coordination.
Which Article keeps the Supreme Court available for binding inter-state legal disputes?	Article 131.
Who chairs the Inter-State Council and when was it set up?	The Prime Minister; 1990, after the Sarkaria Commission.
Who chairs the Standing Committee and since when?	The Union Home Minister; constituted 1996.
Since when has the Secretariat also served Zonal Councils?	2011 (the Secretariat itself dates from 1991).
How often should the Inter-State Council meet?	At least three times a year per its rules; in camera; decisions by consensus.

MY NOTES

Name sectoral councils under Art. 263.	Central Council of Health and Family Welfare; Central Council of Local Government; regional sales-tax councils.
Does Art. 301 cover only inter-state trade?	No: inter-state and intra-state.
What does Art. 302 allow?	Parliament may restrict trade in public interest, without discriminating between states (except scarcity of essential goods).
What is Art. 306?	Repealed; it had empowered certain Part B states to restrict trade.
What is Art. 307?	Authority for trade and commerce; none appointed so far.
Are Zonal Councils constitutional?	No, statutory: States Reorganisation Act, 1956.
Who chairs the Zonal Councils and who are vice-chairmen?	Union Home Minister; Chief Ministers of member states by rotation, one year each.
Name the five zones.	Northern, Central, Eastern, Western, Southern.
Which Act created the North-Eastern Council and how many members?	North-Eastern Council Act, 1971; eight states (Assam, Manipur, Mizoram, Arunachal, Nagaland, Meghalaya, Tripura, Sikkim).
Give the Zonal Council headquarters.	Northern New Delhi; Central Allahabad; Eastern Kolkata; Western Mumbai; Southern Chennai.

Trap 1 · Tribunal binds, Council only advises

Once a dispute goes to an Art. 262 tribunal, no court can interfere and the award is final. The Art. 263 Council handles political, technical and policy questions, its recommendations are not enforceable, and legal disputes between governments go to the Supreme Court (Art. 131). *Rule: tribunal = binding; Inter-State Council = advice only.*

Trap 2 · Civil only

Full Faith and Credit lets a final civil judgment be executed anywhere in India without a fresh suit. Criminal judgments and penal laws of one state do not bind another. *Rule: civil judgments travel; criminal ones do not.*

Trap 3 · Free, but not absolute

Art. 301 covers inter-state and intra-state trade, but Arts. 302-305 allow limits: Parliament may restrict without preferring a state (except in scarcity); a state bill needs the President's prior sanction; Art. 305 saves monopoly laws. Art. 307's authority has never been appointed. *Rule: 301 free, 302-305 exceptions, 307 authority missing.*

MY NOTES

Trap 4 · Statutory, not constitutional

Zonal Councils are statutory bodies from the 1956 Act, with five zones. The North-Eastern Council is separate (1971 Act) and is not one of the five. Chief Ministers are Vice-Chairmen by rotation for one year each. *Rule: five Zonal Councils + one NEC; Home Minister is chairman of all five.*

QUICK QUIZ

Q1. Article 262 of the Constitution deals with

1. Full faith and credit
2. Adjudication of inter-state water disputes
3. Establishment of an Inter-State Council
4. Freedom of trade and commerce

Q2. Which of the following is advisory in nature and set up on the request of the concerned state governments?

1. Inter-State Water Disputes tribunal
2. River Board under the River Boards Act, 1956
3. Inter-State Council
4. Supreme Court under Article 131

Q3. Under the Inter-State Water Disputes Act, 1956, once a dispute is referred to the tribunal

1. Only the High Court may interfere
2. The Supreme Court may hear appeals as of right
3. Neither the Supreme Court nor any other court can interfere
4. The tribunal's decision is only advisory

Q4. Which statement about the Inter-State Council is correct?

1. It is chaired by the Union Home Minister
2. It was set up in 1990 and the Prime Minister chairs it
3. Its recommendations are legally enforceable
4. It was created by the States Reorganisation Act, 1956

Q5. The Full Faith and Credit clause (Art. 261) extends to

1. Final civil judgments, which can be executed anywhere in India
2. Criminal judgments, which bind courts in every state
3. Only laws of the Union
4. Only executive actions of a state

Q6. Which Article guarantees that trade, commerce and intercourse throughout India shall be free?

1. Article 261
2. Article 301
3. Article 305
4. Article 307

Q7. The regulatory authority that Parliament may appoint to implement Articles 301 to 304 (Art. 307) has

1. Been appointed in 1956
2. Been appointed in 1990
3. Been appointed in 2011
4. Not been appointed so far

Q8. Which statement about Zonal Councils is correct?

1. They are constitutional bodies under Art. 263
2. The Union Home Minister is the common chairman of all five
3. The Prime Minister chairs each Zonal Council
4. They can take binding decisions on states

MY NOTES

Q9. The headquarters of the Central Zonal Council, as per the handout, is

1. Kolkata
2. Allahabad
3. Mumbai
4. New Delhi

Q10. The North-Eastern Council was established under

1. The States Reorganisation Act, 1956
2. Article 263
3. The North-Eastern Council Act, 1971
4. The River Boards Act, 1956

Q11. PYQ 2024: Which one of the following statements is correct as per the Constitution of India? [2024]

1. Inter-State trade and commerce is a State subject under the State List.
2. Inter-State migration is a State subject under the State List.
3. Inter-State quarantine is a Union subject under the Union List.
4. Corporation tax is a State subject under the State List.

Answers: Q1 b, Q2 b, Q3 c, Q4 b, Q5 a, Q6 b, Q7 d, Q8 b, Q9 b, Q10 c, Q11 c

MY NOTES

CHAPTER 22 · HANDOUT CHAPTER: EMERGENCY PROVISIONS

22 Emergency Provisions

MEDIUM PRIORITY Mains PYQs quoted: **2018, 2023**

Prelims PYQs: **2007, 2017, 2018, 2021, 2022**

EXAM LENS

Prelims hooks

- Exclusive powers of the Lok Sabha
- what is not a necessary result of President's Rule
- Art. 360 statements (2 months, judges' salaries)
- Art. 356 effects
- Art. 352 grounds, 1 month, special majority
- 358 versus 359
- Articles 20 and 21 never suspended.
- Handout stresses: Seven PYQs quoted (five Prelims: 2007, 2017, 2018, 2021, 2022; two Mains: 2018, 2023) (PYQ section)
- Handout stresses: Key Takeaways for Prelims box and the Articles 358 versus 359 table (End of chapter)
- Handout stresses: Comparison table of National Emergency and President's Rule (Comparison section)
- Handout stresses: Bommai judgment (1994) principles and proper versus improper grounds for Art. 356 (President's Rule section)

Mains hooks

- Financial Emergency circumstances and consequences (2018)
- legal and political factors behind the reduced use of Art. 356 since the mid 1990s (2023, see Bommai and the 44th Amendment).

Emergency powers make the federal Constitution work like a unitary one in a crisis, but the 44th Amendment, the courts and Parliament now box them in.

MY NOTES

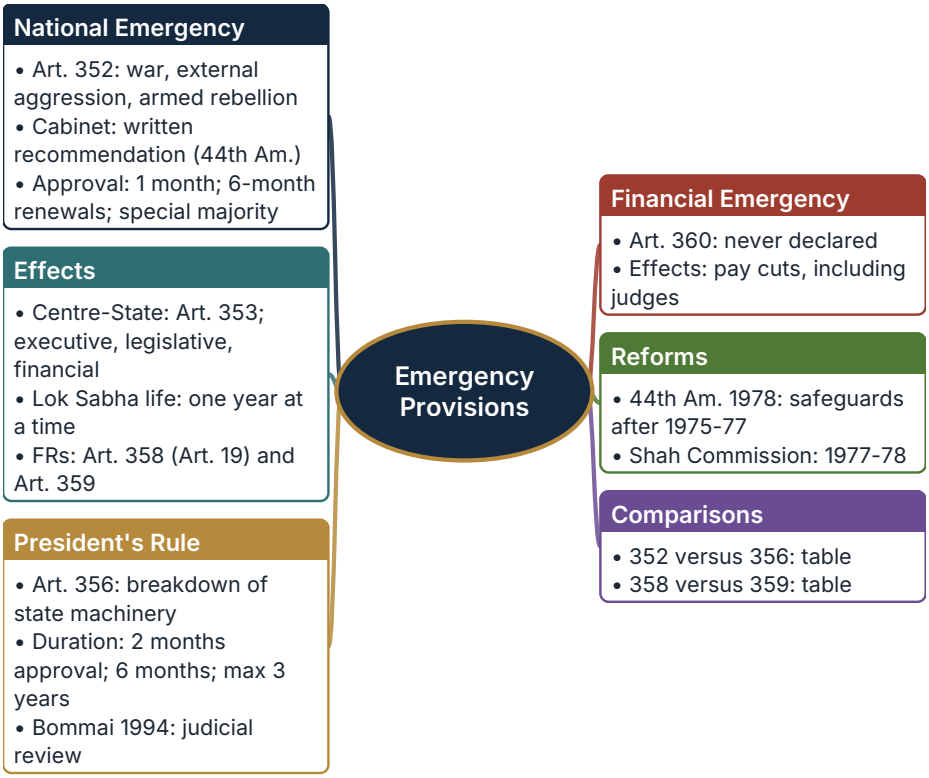
IN SIMPLE WORDS

- **Part XVIII (Articles 352-360)** gives the Union special powers in a crisis. There are three kinds: **National (Art. 352)**, **President's Rule (Art. 356)** and **Financial (Art. 360)**.
- A **National Emergency** needs **war, external aggression or armed rebellion** (imminent danger also counts). The **44th Amendment (1978)** replaced 'internal disturbance' and demanded the **Cabinet's written recommendation**.
- Both Houses must approve within **1 month** by a **special majority**
- It lasts **6 months** and is renewed **6 months at a time**. The **Lok Sabha alone** can force revocation by a simple majority
- During the Emergency the Centre commands the states, **Art. 358** suspends **Art. 19** automatically, and **Art. 359** suspends the remedy for other FRs, but **never Arts. 20 and 21**.
- **President's Rule** follows a breakdown in a state: approval in **2 months** (simple majority), **6 months** at a time, **3 years** at most. The **Bommai case (1994)** made it reviewable.
- A **Financial Emergency** needs approval in **2 months**, has no time limit, can cut pay (even of judges) and has **never been declared**.

Key term	In plain words
Proclamation of Emergency	The President's formal order that starts an emergency under Art. 352, 356 or 360
External Emergency	National Emergency on the ground of war or external aggression
Internal Emergency	National Emergency on the ground of armed rebellion (44th Amendment, 1978)
Special majority	Majority of the total membership of the House AND two-thirds of members present and voting
Disapproval resolution	Lok Sabha only, simple majority; forces the President to revoke the National Emergency
President's Rule	Takeover of a state when its constitutional machinery breaks down (Art. 356); the Council of Ministers is dismissed
President's Acts	Laws for a state made by the President, because Parliament may delegate law-making during President's Rule
Floor test	Bommai rule: loss of majority must be proved on the floor of the House, not assumed

MY NOTES

MEMORY MAP: EMERGENCY PROVISIONS



MNEMONIC · THE FOUR 44TH AMENDMENT SAFEGUARDS

S C A R

- **S** Suspension barred for Arts. 20 and 21
- **C** Cabinet's written recommendation is required
- **A** Armed rebellion replaces internal disturbance
- **R** Review by courts restored, and Parliament's approval made more demanding (special majority, six-monthly review)

The Emergency left a SCAR, and these four safeguards stop it happening again. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · MINERVA MILLS: WHEN A PROCLAMATION CAN BE STRUCK DOWN

A I M

- **A** Absurd or perverse reasoning
- **I** Irrelevant or non-existent facts
- **M** Mala fide decision

Courts take AIM at a proclamation that fails these three tests (Minerva Mills, 1980). The order is rearranged for memory. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · THREE NATIONAL EMERGENCIES

Calm Peace Inside

- **C** China war, 1962
- **P** Pakistan war, 1971
- **I** Internal disturbance, 1975

After the three Emergencies (62, 71, 75) the country wants calm peace inside; the order is China, Pakistan, Internal. (Memory aid, not from the handout.)

MNEMONIC · PROPER GROUNDS FOR ART. 356

F A B R I C

- **F** Failure of the majority party to form a government
- **A** Assembly hung after elections
- **B** Breakdown: State wilfully refuses its constitutional duties (physical breakdown)
- **R** Resignation of the ministry with no alternative
- **I** Internal subversion
- **C** Constitutional directions of the Centre defied

When the FABRIC of constitutional government in a State is torn, President's Rule is proper (Sarkaria and Bommai). The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · IMPROPER USES OF ART. 356

T E A R I N G

- **T** Trivial internal disturbances treated as subversion
- **E** Exploring alternatives skipped (no alternative majority tried)
- **A** Administrative failure or corruption allegations alone
- **R** Response to a heavy Lok Sabha defeat (punitive dismissal)
- **I** Intramural party disputes or extraneous purposes
- **N** No prior warning given to the State
- **G** Governor's unverified assessment, no floor test

Misuse of Art. 356 is TEARING the federal fabric. The order is rearranged for memory. (Memory aid, not from the handout.)

PART XVIII AND THE THREE EMERGENCIES

- Part XVIII (**Articles 352 to 360**) holds the powers to respond to extreme threats: grave peril to the country or a part of it, **breakdown of a state's constitutional machinery**, or a serious threat to **financial stability**. The framers meant these as safety valves for sovereignty, unity and integrity, and added checks over time to prevent misuse.

MY NOTES

THREE EMERGENCIES

Emergency	Article	Trigger
National Emergency	352	War, external aggression, armed rebellion
President's Rule (State or Constitutional Emergency)	356	State's constitutional machinery has broken down
Financial Emergency	360	Financial stability or credit of India (or any part) is threatened

- **Memory aid (Three emergencies):** **N**ational (352), **P**resident's Rule (356), **F**inancial (360): "**N**o **P**anic, **F**olks."
- **Shortcut: Anchor numbers. 352 national, 356 state, 360 financial.** 353 effects, 354 money sharing, 355 Union's duty, 357 Parliament legislates for state, 358 Art. 19, 359 enforcement of rights, 359A repealed.

ALSO IN THE HANDOUT

- This equips the Union to respond to changing security environments dynamically.

NATIONAL EMERGENCY: GROUNDS AND SCOPE (ART. 352)

- The President may proclaim that the security of the **whole nation or a part of it** is endangered by **war, external aggression or armed rebellion**. It can be done also where there is **imminent danger**, so the Union can act pre-emptively.

GROUNDS AND NAMES

Ground	Name	Note
War	External Emergency	Original ground
External aggression	External Emergency	Original ground
Armed rebellion	Internal Emergency	Inserted by the **44th Amendment Act, 1978**

- The earlier phrase "**internal disturbance**" (used in 1975–77) was **removed by the 44th Amendment** because it was ambiguous and wide.

AMENDMENTS THAT SHAPED ART. 352 PROCLAMATIONS

Amendment	Change
38th Amendment Act, 1975	Different proclamations on different threats allowed, even while an earlier one is in force; also tried to bar judicial review

MY NOTES

Amendment	Change
42nd Amendment Act, 1976	Emergency may cover the **entire territory** or be **restricted to a region or state**
44th Amendment Act, 1978	Armed rebellion replaces internal disturbance; Cabinet's written recommendation; judicial review restored; stricter approval; Arts. 20 and 21 protected

- **Memory aid (Which Amendment): 38th** = multiple proclamations (and the bar on review that was later removed), **42nd** = area-specific, **44th** = the big safeguards: "**38** many, **42** area, **44** safe."

ALSO IN THE HANDOUT

- Importantly, the constitutional authority extends not only to events that have already occurred but also to situations where there is “imminent danger” of such threats. This forward-looking design allows the Union to act pre-emptively to preserve sovereignty and territorial integrity. Broad Grounds & Classification The three explicit constitutional triggers are:

JUDICIAL REVIEW AND THE CABINET SAFEGUARD

- The 38th Amendment (1975) tried to **bar judicial review** of proclamations. The **44th Amendment (1978)** removed this shield and restored accountability.

SAFEGUARD ON DECLARING THE EMERGENCY

- **Before 1978**: Proclamation issued without prior Cabinet consultation in 1975
- **44th Amendment**: Emergency can be declared only on the **written recommendation of the Union Cabinet**, not merely the Prime Minister's advice
- **Result**:
  - The Cabinet is the decision-maker
  - Misuse of 1975 corrected

MINERVA MILLS V. UNION OF INDIA (1980)

- **The Supreme Court held:**
  - Proclamations **can be challenged in court**
  - Emergency is **no longer a political question** immune from review
- **Review is allowed if:**
  - The decision is **mala fide**
  - Based on **irrelevant or non-existent facts**
  - Or **absurd or perverse** in reasoning
- **Memory aid (Grounds of review): M**ala fide, **I**rrelevant or non-existent facts, **A**bsurd or perverse: "**M**y **I**nquiry **A**sks".

MY NOTES

ALSO IN THE HANDOUT

- Result: Allows legislative continuity during national crises while maintaining time-bound democratic accountability.

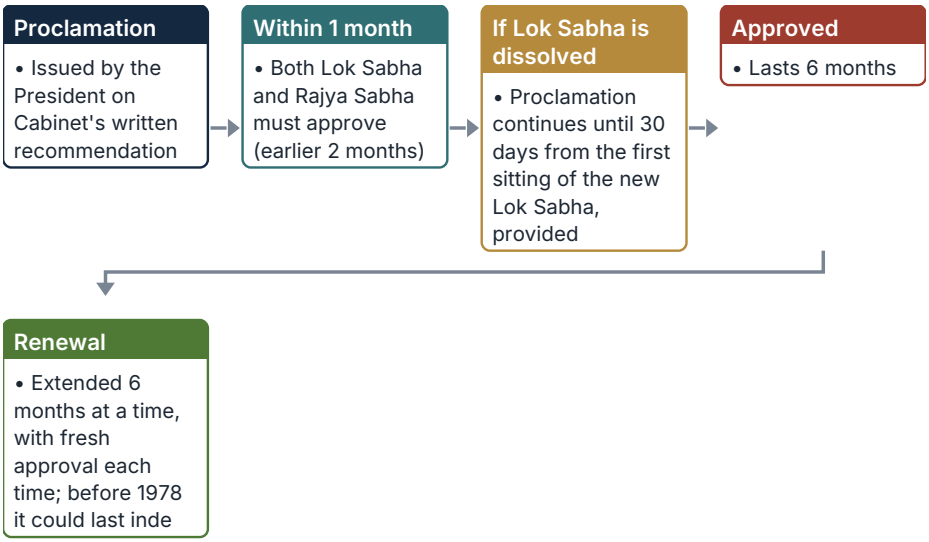
PARLIAMENTARY APPROVAL, DURATION AND RENEWAL

- The 44th Amendment strengthened Parliament's control after the misuse of 1975-77.

LIFE OF A NATIONAL EMERGENCY

- **Proclamation**: Issued by the President on Cabinet's written recommendation
- **Within 1 month**: Both **Lok Sabha and Rajya Sabha** must approve (earlier 2 months)
- **If Lok Sabha is dissolved**: Proclamation continues until **30 days from the first sitting** of the new Lok Sabha, **provided the Rajya Sabha has approved**
- **Approved**: Lasts **6 months**
- **Renewal**:
  - Extended **6 months at a time**, with fresh approval each time
  - Before 1978 it could last indefinitely

LIFE OF A NATIONAL EMERGENCY



- **Special majority:** Each resolution approving or extending the Emergency needs a **special majority in both Houses**: a **majority of the total membership** of the House AND **two-thirds of members present and voting**.

BEFORE AND AFTER THE 44TH AMENDMENT

Feature	Before 44th Amendment	Current rule
Time for initial approval	2 months	**1 month**

MY NOTES

Feature	Before 44th Amendment	Current rule
Extension	No periodic approval needed	**Every 6 months**
Voting	Simple majority	**Special majority**

- These changes prevent unilateral and prolonged Emergency rule, reassert Parliament over the Executive, and protect democracy, federalism and civil liberties.
- **Memory aid (Numbers): 1** month approval, **6** months first period, **6** months each renewal, **2/3** of present and voting plus majority of total: "**1-6-6** and **two-thirds**."

ALSO IN THE HANDOUT

- Once such a Proclamation is issued by the President, it cannot remain in operation indefinitely without democratic scrutiny.

REVOCATION (ART. 352(2) AND (7))

- The President may **withdraw** the proclamation **at any time** by a later proclamation, and this **needs no parliamentary approval**. The 44th Amendment gave the **Lok Sabha** more power:

WAYS EMERGENCY CAN END

- **By President**: Subsequent proclamation, no Parliament approval needed
- **By Lok Sabha**: A resolution **disapproving** continuation obliges the President to **revoke immediately**
- **Special sitting**: If **one-tenth of total Lok Sabha membership** gives written notice to the Speaker (in session) or the President (not in session), a **special sitting within 14 days** must consider a disapproval resolution

DISAPPROVAL VERSUS APPROVAL OF CONTINUANCE

Feature	Resolution for disapproval	Resolution for approval of continuance
House	**Lok Sabha only**	**Both Houses**
Majority	**Simple majority** (more votes for than against)	**Special majority** under Art. 352(4): majority of total membership and two-thirds of those present and voting
Effect	**Mandatory revocation** by the President	Emergency continues another **6 months**

- **Shortcut: Shortcut. Disapprove = Lok Sabha alone + simple majority. Approve or extend = both Houses + special majority.** One-tenth of the House can force a sitting within 14 days.

MY NOTES

ALSO IN THE HANDOUT

- This ensures that even a minority of the House can initiate democratic scrutiny and veto power over emergency continuation.

EFFECTS OF A NATIONAL EMERGENCY

- Three domains change: **Centre-State relations**, **tenure of the Lok Sabha and State Assemblies**, and **Fundamental Rights** under Part III.

EFFECT ON CENTRE-STATE RELATIONS

Area	Rule during the Emergency
Executive (Art. 353(a))	Union may direct any state on **how to exercise its executive power, on any subject** (normally limited to Arts. 256 and 257)
Legislative (Art. 353(b))	Parliament may legislate on **any State List subject**; state legislatures continue but are subordinate; such laws stay valid up to **six months after** the Emergency ends; President may issue **ordinances** on State subjects (Art. 123) when Parliament is not in session; these powers apply to **all states** (42nd Amendment)
Financial (Art. 354 in the handout's article table)	President may alter the **sharing of finances** (tax-sharing, cut or cancel grants); such orders continue until the **end of the financial year** in which the Emergency ends and must be **laid before Parliament**

- **Memory aid (Three relations):** **E**xecutive (directions on any subject), **L**egislative (State List), **F**inancial (tax-sharing and grants): "**E**very **L**aw **F**lows to the Centre."

LIFE OF THE LOK SABHA AND ASSEMBLIES (ARTS. 83(2) AND 172(1))

- Parliament may extend the normal **5-year** Lok Sabha term **one year at a time**, for as long as the Emergency continues.
- The extension cannot go **beyond six months after the Emergency is lifted**.
- Example in the handout: the **5th Lok Sabha (1971-77)** was **twice extended** under the Emergency of 1975-77.
- Same one-year rule and six-month limit for **State Assemblies**.

FUNDAMENTAL RIGHTS: ARTICLES 358 AND 359

ARTICLE 358 VERSUS ARTICLE 359

Feature	Article 358	Article 359
Scope	Only **Article 19**	**Any specified FR** except Arts. 20 and 21
Automatic?	**Yes**, automatic suspension	**No**, needs a **Presidential Order**

MY NOTES

Feature	Article 358	Article 359
Grounds	Only **war or external aggression**	War, external aggression **or** armed rebellion
Duration	**Entire** Emergency period	**Period specified** in the Order
Area	Entire country	Whole or part of India
Enforcement	The **right itself** is suspended	Only the **remedy** (right to move court) is suspended

- **Similarity:** Both protect only **Emergency-related laws and matching executive actions** from judicial challenge.

> **HANDOUT ALERT**
> Post-44th safeguards: **Art. 19** cannot be suspended in an Emergency based on **armed rebellion** (only war or external aggression). **Arts. 20 and 21** (protection in respect of conviction; life and personal liberty) **cannot be suspended** under Art. 359. Only laws related to the Emergency are protected.

- **Memory aid (358 and 359):**
  - **358 = Art. 19 automatically, war or aggression only**
  - **359 = by Order, any FR except 20 and 21, remedy only**: "**358 Auto, 359 Order**."

ALSO IN THE HANDOUT

- These effects are primarily classified into three significant domains: - Transformation of Centre–State Relations - Changes in tenure of the Lok Sabha and State Legislative Assemblies - Restrictions on Fundamental Rights under Part III Effect on Centre–State Relations During a National Emergency, the federal structure tilts strongly toward unitary control.
- These changes were intended to make arbitrary exercise of Emergency powers far harder.

HISTORICAL USE AND REFORMS

- Three proclamations so far under Art. 352.

THREE NATIONAL EMERGENCIES

Year	Ground	Date	Note
1962	China war	26 October 1962	After Sino-Indian hostilities
1971	Indo-Pak war	3 December 1971	At outbreak of hostilities; wartime proclamation; kept in force thereafter

MY NOTES

Year	Ground	Date	Note
1975	"Internal disturbance" (the term then)	25 June 1975	Most contentious; lifted **21 March 1977**

- **Memory aid (Dates): 1962** China, **1971** Pakistan, **1975** internal: "**62**, **71**, **75**: **C**hina, **P**akistan, **I**nternal = **CPI**."

REFORMS AFTER 1975-77

44TH AMENDMENT (1978) SAFEGUARDS

No.	Safeguard
(i)	**Written recommendation of the Union Cabinet** before an Art. 352 proclamation
(ii)	**"Armed rebellion"** replaces "internal disturbance"
(iii)	**Judicial review restored**; approval more demanding (special majority, six-month reviews)
(iv)	**Arts. 20 and 21 protected** from suspension under Art. 359

- The **Shah Commission (1977-78)** investigated abuses during 1975-77
- Its findings gave the political and moral push for the constitutional safeguards

> **HANDOUT ALERT**
> Handout alert: The handout gives the **end date (21 March 1977)** only for the 1975 Emergency; for 1971 it says only that it "continued during the war period and was kept in force thereafter". Do not invent an end date for 1971.

ALSO IN THE HANDOUT

- The abuses identified after 1977 prompted major constitutional corrective measures (see below). The Government of India's official fact sheets and records discuss the 1975 Emergency and subsequent responses.
- 44th Constitutional Amendment (1978): key safeguards introduced included (inter alia): (i) requiring a written recommendation of the Union Cabinet before Article 352 proclamation;
- The combination of textual safeguards and practice — plus political-institutional lessons from past episodes — aims to keep emergency powers tightly circumscribed and accountable.

PRESIDENT'S RULE: GROUNDS, APPROVAL AND DURATION (ART. 356)

- Art. 355 makes it the **Union's duty** to protect states and ensure their governance runs according to the Constitution. When the state's **constitutional machinery has broken down**, the President

MY NOTES

may act under **Art. 356**: "a situation has arisen in which the government of the State cannot be carried on in accordance with the provisions of this Constitution." It is exceptional, not routine.

GROUNDS

Basis	Detail
(a) **Report of the Governor**	President acts on it
(b) **Any other information**	Also sufficient
Art. 365	If a state fails to comply with the Union's directions, that failure may justify Art. 356

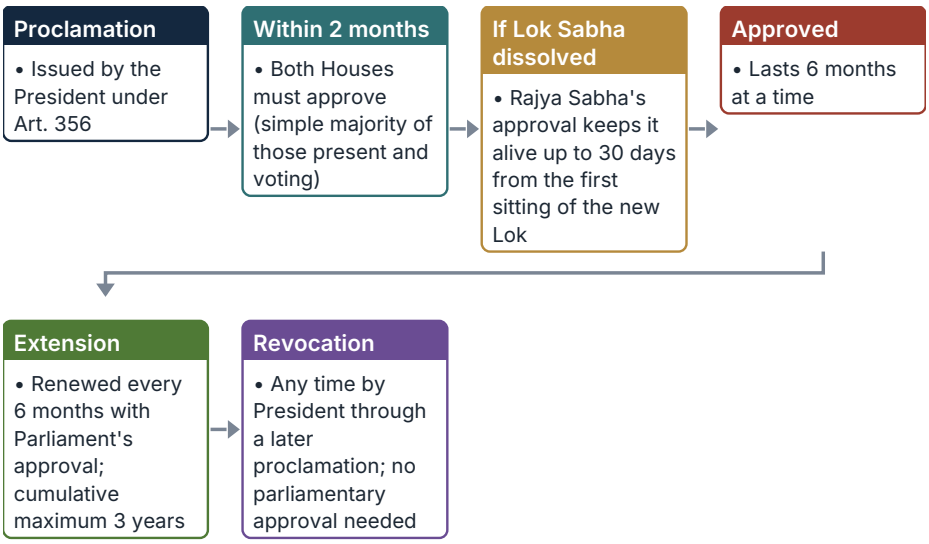
- The test is whether constitutional machinery has broken down, not a criminal standard.

LIFE OF PRESIDENT'S RULE

- **Proclamation**: Issued by the President under Art. 356
- **Within 2 months**: Both Houses must approve (simple majority of those present and voting)
- **If Lok Sabha dissolved**: Rajya Sabha's approval keeps it alive up to **30 days** from the first sitting of the new Lok Sabha
- **Approved**: Lasts **6 months at a time**
- **Extension**:
  - Renewed every 6 months with Parliament's approval
  - **cumulative maximum 3 years**
- **Revocation**:
  - Any time by President through a later proclamation
  - **no parliamentary approval needed**

MY NOTES

LIFE OF PRESIDENT'S RULE



- **Voting:** Approval of President's Rule is **not** a constitutional amendment, so **simple majority** of those present and voting in each House is enough.

44TH AMENDMENT RESTRICTION

- Extension **beyond one year** is allowed only if **both** conditions are met:
- A **National Emergency (Art. 352)** is in force in the **entire country** or in the **whole or any part of the state**
- AND
- The **Election Commission certifies** that elections to the state Assembly cannot be held because of difficulties.
- **Memory aid (One year plus):** **E**mergency in force AND **E**lection Commission certificate: "**E** and **E**, both needed after year one."
- **Shortcut: Numbers. 2 months** approval, **6 months** each, **3 years** max, **beyond 1 year needs Art. 352 emergency + ECI certificate.**

ALSO IN THE HANDOUT

- Government summaries and historical records refer to the Commission's report and its role in shaping reform.

CONSEQUENCES OF PRESIDENT'S RULE

- The President acquires extraordinary executive and legislative powers over that state.

MY NOTES

WHAT CHANGES

Area	Consequence
Executive	President takes over state government functions and any powers of the Governor or other state authority; the **Council of Ministers headed by the CM is dismissed**; Governor administers for the President, helped by the **Chief Secretary or advisors**
Legislative	Parliament exercises the state legislature's powers; the state legislature is **suspended or dissolved**; Parliament may **delegate** law-making to the President or another authority; delegated laws can confer powers and duties on the Centre and its officers (Art. 357)
Financial and ordinances	President may authorise **expenditure from the State Consolidated Fund** when Parliament is not in session (pending later sanction); may issue **ordinances** when Parliament is not sitting
Laws made	Laws by Parliament, the President or the specified authority **stay in force after** the Proclamation ends; the state legislature may **repeal, amend or re-enact** them
High Court	President **cannot** assume the High Court's powers or suspend its provisions

NOT NECESSARILY HAPPENS VERSUS ALWAYS HAPPENS

- **Not necessarily:**
  - **Dissolution** of the State Assembly (it may be suspended instead)
  - Dissolution of **local bodies**
- **Always:**
  - **Removal of the Council of Ministers**
  - State legislature's powers passed to Parliament
  - High Court untouched
- **Memory aid (After PR):** **C**M and ministers go, **P**arliament makes laws, **H**igh Court stays: "**C**ouncil **P**acks, **H**igh court **H**olds."
- **Shortcut: Shortcut. FRs not affected** by President's Rule (unlike a National Emergency). Laws made in PR **outlive** PR.

ALSO IN THE HANDOUT

- This takeover of executive functions is the concrete reason why an Article 356 proclamation is commonly termed ‘President’s Rule’.

USE, MISUSE AND JUDICIAL REVIEW OF ART. 356

- President's Rule has been imposed on **about 134 occasions** since 1950, **roughly twice a year**. The first was **Punjab in 1951**. Almost every state has seen it.

MY NOTES

POLITICAL PATTERN

Year	Event
1977	After general elections the Janata government imposed PR in **nine Congress-ruled states** (assemblies no longer represented the electorate)
1980	Congress returned and did likewise in **nine states**
1992	Congress government imposed PR in **three BJP-ruled states**: Madhya Pradesh, Himachal Pradesh, Rajasthan (alleged non-implementation of a ban on certain religious organisations)
1994	**Bommai**: SC upheld one such proclamation (secularism basic feature) but did not uphold Nagaland (1988), Karnataka (1989), Meghalaya (1991)

- Ambedkar hoped Art. 356 would be a **"dead letter"**, a last resort. A commentator later wrote: "Dr. Ambedkar is dead and the Articles are very much alive."

JUDICIAL REVIEW

JUDICIAL REVIEW OF ART. 356

- **1975**: **38th Amendment** made the President's satisfaction final and beyond court challenge
- **1978**:
  - **44th Amendment** removed that protection
  - Review restored
- **1994**: **S.R. Bommai v. Union of India** sets the principles

BOMMAI PRINCIPLES (S.R. BOMMAI V. UNION OF INDIA, 1994)

Principle	Content
Reviewable	A proclamation can be examined by courts
Reasoned satisfaction	Must rest on relevant material; extraneous factors, mala fides or perversity can strike it down
Burden on Centre	Union must show relevant material
Scope	Courts do not judge correctness or sufficiency of material, only its **relevance**
Remedies	Court may **restore** the dismissed state government and **revive** the legislature
Procedure	Assembly to be **suspended, not dissolved**, until Parliament approves; if Parliament refuses, reactivate it
Secularism	A basic feature; anti-secular conduct can justify action under Art. 356
Floor test	Loss of majority to be tested **on the floor of the House**, not assumed

MY NOTES

Principle	Content
Change at Centre	A new party at the Centre cannot automatically dismiss other parties' state ministries
Exceptional power	Use sparingly, only where normal governance is impossible

- **Memory aid (Bommai principles):**
  - **R**eviewable, **R**easoned material, **B**urden on Centre, **S**cope (relevance only), **R**emedies (restore), **P**rocedure (suspend), **S**ecularism, **F**loor test, **C**hange at Centre, **E**xceptional: "**R**ight **R**ules **B**ind **S**tates
  - **R**evive **P**olity, **S**ave **F**ederal **C**onstitution **E**very time."

ALSO IN THE HANDOUT

- He warned that Centre's interference should be exceptional and carefully exercised. Subsequent experience, however, demonstrates that what was hoped to be rarely used has become a potent instrument — as one commentator noted, "Dr.
- Floor-test Principle:
  - Allegations that a State Ministry has lost majority should be resolved on the floor of the House
  - Absent such a determination, the ministry should not be dismissed

PROPER AND IMPROPER USES OF ART. 356

- Drawing on the **Sarkaria Commission** and **Bommai**: Art. 356 is for clear, provable breakdowns only.

JUSTIFIED VERSUS UNWARRANTED

- **Proper grounds:**
  - Hung Assembly after elections
  - Majority party declines to form government and no alternative
  - Resignation after losing a confidence vote with no alternative
  - Deliberate defiance of lawful Union directions
  - Internal subversion (e.g. fomenting violent revolt)
  - Physical breakdown (wilful refusal to discharge duties endangering security)
- **Improper uses:**
  - No exploration of alternatives
  - Governor's unverified assessment without a floor test
  - Punishing a ministry for heavy defeat in Lok Sabha elections (1977 and 1980 alleged)
  - Trivial internal disturbances
  - Administrative failure or corruption alone
  - No prior warning (except sudden emergency)

MY NOTES

- Intra-party disputes or extraneous purposes

- **Memory aid (Proper grounds):** **H**ung assembly, **M**ajority refuses, **R**esignation with no alternative, **D**efiance of directions, **I**nternal subversion, **P**hysical breakdown: "**H**ard **M**oments **R**equire **D**ecisive **I**ntervention, **P**rovably."
- **Memory aid (Improper uses):** **F**ailure to explore alternatives, **G**overnor's unverified view, **P**unitive after Lok Sabha defeat, **T**rivial disturbances, **A**dministrative failure or corruption alone, **A**bsence of warning, **I**ntra-party or extraneous purposes: "**F**ew **G**overnors **P**lay **T**ricks, **A**nd **A**ll **I**gnore rules."
- **Shortcut: Shortcut. Hung, Refuse, Resign, Defy, Subvert, Break** = proper. **Alternatives, Assessment, Punish, Trivial, Admin, Notice, Party** = improper. Principle in brief: the Sarkaria and Bommai guidance confines Art. 356 to clear, provable breakdowns and bars use for routine political or administrative disagreements.

ALSO IN THE HANDOUT

- These are heavy constitutional tools and therefore are covered by clear textual rules and parliamentary oversight.
- The following situations are identified as improper bases for imposing President's Rule: - Failure to Explore Alternatives — where a ministry resigns or loses majority and the Governor recommends direct Central rule without first probing the possibility of an alternative majority government.

NATIONAL EMERGENCY VERSUS PRESIDENT'S RULE

COMPARISON (HANDOUT'S TABLE, REBUILT)

Feature	National Emergency (Art. 352)	President's Rule (Art. 356)
When applicable	Security of India or any part threatened by war, external aggression or armed rebellion	State government cannot be carried on per the Constitution (reasons need not be war, aggression or rebellion)
Effect on state institutions	State executive and legislature **continue** to function; Centre gets concurrent powers in administration and legislation	State executive **dismissed**; legislature **suspended or dissolved**; Centre rules through the Governor and Parliament makes laws
Legislative power	Parliament legislates on State List; **cannot delegate** this power to another body	Parliament **may delegate** law-making to the President or an authority he specifies ("President's Acts")
Maximum duration	**No maximum**; continued with approval every six months	**Three years** (extensions every six months)

MY NOTES

Feature	National Emergency (Art. 352)	President's Rule (Art. 356)
Scope	Alters Centre-State relations across **all states** while operative	Alters relations only between Centre and the **state under PR**
Voting threshold	**Special majority**	**Simple majority** of present and voting
Fundamental Rights	**Affected** (subject to Emergency terms)	**Not affected**
Revocation	Lok Sabha can pass a resolution for revocation	No parliamentary revocation; President can revoke any time

- **Shortcut: Memory pairs. 352: no limit, special majority, FRs hit, LS can revoke. 356: 3 years, simple majority, FRs safe, President revokes.**

> **HANDOUT ALERT**
> Handout alert: The comparison table says Art. 356 has **no parliamentary revocation provision**, yet the text of President's Rule says the President revokes by proclamation without approval. Treat this as consistent: the **only** way to end PR is a later Presidential proclamation, whereas a National Emergency can also be ended by a **Lok Sabha disapproval resolution**.

ALSO IN THE HANDOUT

- This aligns the response directly with the scale of security challenges.
- This ensures continuity of security measures while upholding democratic accountability.
- Such laws are therefore not strictly coterminous with the duration of the President's Rule
- They may, however, be repealed, amended, or re-enacted by the reconstituted State Legislature

FINANCIAL EMERGENCY (ART. 360)

- The framers saw that economic instability can threaten the country like war. **Art. 360** lets the President proclaim a Financial Emergency if the **financial stability or credit of India or any part of its territory** is threatened. This reflects India's **quasi-federal** character: federal in normal times, unitary under stress, especially in finance.

MY NOTES

GROUNDS AND APPROVAL

Item	Rule
Ground	Financial stability of India endangered **OR** creditworthiness of India or any region compromised
Judicial review	38th Amendment (1975) made satisfaction final; **44th Amendment (1978)** removed that, so review is allowed
Approval	Laid before both Houses; approval within **2 months**
If Lok Sabha dissolved	Rajya Sabha approval keeps it alive; Lok Sabha must approve within **30 days** of re-constitution
Majority	**Simple majority** (present and voting)
Duration	**No maximum**; no recurring approval; continues until revoked
Revocation	President, any time, fresh proclamation, **no parliamentary approval needed**

UNLIKE A NATIONAL EMERGENCY

- **National Emergency:**
  - Approval in **1 month**
  - **6-month renewals**
  - **special majority**
- **Financial Emergency:**
  - Approval in **2 months**
  - **no renewal**
  - **simple majority**
  - No maximum period

EFFECTS

FISCAL FEDERALISM CHANGES

Area	Effect
Central supervision of state finances	Union may direct states to follow **financial propriety** and budget discipline
Salaries and allowances	Reduction in **pay and perks of state government employees**; **Money Bills** of the state legislature reserved for the President after passage
Union institutions	Reduction in pay and allowances of **Central government employees**; **salary cuts for judges of the Supreme Court and High Courts**

- Members of the Constituent Assembly like H.N. Kunzru warned about state autonomy
- Ambedkar said such extraordinary powers mirror global precedents such as the **US National Industrial Recovery Act, 1933**, made to fight the Great Depression

MY NOTES

- **Never used: No Financial Emergency has ever been declared.** Even the **1991 Balance of Payments crisis** was managed through structural reforms, **external borrowing (IMF)** and **fiscal consolidation** without invoking Art. 360.
- **Memory aid (Art. 360 facts): 2** months, **N**o limit, **S**imple majority, **J**udges' pay can be cut: "**T**wo **N**o **S**imple **J**udges".

ALSO IN THE HANDOUT

- States remain functional but operate under the complete administrative command of the Centre. Result: A centralized command structure replacing cooperative federalism.
- The Constituent Assembly debate contains a cautionary note from Dr.
- Effects of a Financial Emergency Once proclaimed, India's fiscal federalism undergoes a major shift: Central Supervision over State Finances The Union Government's executive power extends to issuing directives to states to follow financial propriety rules and budget discipline.
- Reduction of compensation and allowances of Central Government employees 10.
- Kunzru, highlighted the potential risk to state autonomy, while Dr.
- Even severe macro-economic challenges— including the 1991 Balance of Payments Crisis—were addressed through: - Structural reforms - External borrowing (IMF) - Fiscal consolidation measures —without invoking Article 360. This demonstrates India's strong resilience and cautious approach toward constitutional emergency powers.
- However, strong safeguards—anchored in parliamentary scrutiny and judicial review—preserve India's democratic and federal balance.

HOW EMERGENCIES ALTER THE ORDER

- In a valid proclamation the Centre's reach widens:
  - Parliament legislates on state subjects, the Centre gives binding directions to state executives, and certain FR protections can be cut. The working federal balance becomes **more unitary without amending the Constitution**
  - Ambedkar noted the Constitution is **federal in normal times but able to work as unitary when necessity demands**. Art. 356 especially has drawn judicial review and controversy
  - **Sarkaria and Punchhi** urged restraint and prior consultation

MY NOTES

LIMITS (NOT LAWLESS)

Type	Examples
Formal	Cabinet recommendation for Art. 352; laying before Parliament; periodic approvals
Statutory and judicial	Courts may examine the validity of proclamations and their base facts
Political	Parliamentary debates and commissions of inquiry after the fact

ARTICLES ON EMERGENCY (HANDOUT'S OVERVIEW)

Article	Theme
352	Proclamation of National Emergency: war, external aggression, armed rebellion
353	Consequences: expanded executive power of the Union and Parliament over states
354	Modification of financial distribution between Union and States during an Art. 352 Emergency
355	Union's duty to protect states and ensure constitutional governance
356	Breakdown of constitutional machinery: President's Rule
357	Exercise of the state legislature's powers by Parliament or its authorised body in PR
358	Automatic suspension of Art. 19 during an Emergency (war or external aggression)
359	President may suspend enforcement of certain FRs by Order
359A	Repealed; had applied Emergency provisions only to Punjab
360	Financial Emergency

KEY TAKEAWAYS FOR PRELIMS: NATIONAL EMERGENCY

Provision	Reform
Grounds: war, external aggression, armed rebellion (Art. 352)	"Internal disturbance" removed by 44th Amendment 1978
Cabinet must give written advice	44th Amendment 1978
Can be area-specific	42nd Amendment 1976
Multiple proclamations allowed	38th Amendment 1975
Supreme Court can review a proclamation	Minerva Mills (1980) and 44th Amendment

MY NOTES

HANDOUT ALERT

Handout alert: In the overview table **Art. 355** is described as protecting states from **external aggression or internal disturbances**, while the text on Art. 355 speaks of the Union's **duty to protect states and ensure governance per the Constitution**. Use both: duty to protect, and to ensure constitutional functioning. Stray list numbers from the PDF (5, 6, 11-14, 17-19) are dropped.

ALSO IN THE HANDOUT

- This ensures the executive can promptly restore constitutional normalcy when exigencies cease to exist. However, in order to strengthen democratic control and ensure against misuse, the 44th Constitutional Amendment Act, 1978 introduced multiple safe-guards that significantly enhanced the role of the Lok Sabha, the popularly elected House:
- The Court's holdings can be summarised as follows:
  - - Subject to Judicial Review: A presidential proclamation under Article 356 is amenable to judicial review
  - Courts may examine its legality
- This legal shift can transform the working federal balance into a more unitary operational form without formally amending the Constitution — a feature explicitly discussed by Dr.
- Practical and legal limitations on the use of emergency powers Although the emergency articles grant wide powers, they are not lawless.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 17, EMERGENCY PROVISIONS

- The Constitution itself calls the Art. 352 emergency a 'proclamation of emergency'. It does not use the word 'emergency' for Art. 356
- That is why the latter is only popularly called 'State Emergency' or 'Constitutional Emergency'
- In Art. 352 'Cabinet' means the council of the Prime Minister and other Cabinet-rank ministers. In 1975 the Cabinet was told only after the proclamation was made.
- During a National Emergency Parliament may also give powers and duties to the Centre and its officers on matters outside the Union List, to carry out its extended laws.
- Art. 358: when the Emergency ends, Art. 19 revives and inconsistent laws lapse, but no remedy lies for anything done during the Emergency. The same holds after an Art. 359 Order ends. An Art. 359 Order must be laid before each House.
- The 1962 Emergency (Chinese aggression in NEFA, now Arunachal Pradesh) lasted till January 1968, so no fresh pro-

MY NOTES

clamation was needed for the 1965 war. The 1975 proclamation was made while the 1971 one was still in force

- Both were revoked in March 1977
- The 1962 and 1971 proclamations were on the ground of external aggression
- The 1975 one was on 'internal disturbance'. The Janata government appointed the Shah Commission, which did not justify the 1975 declaration, and the 44th Amendment followed
- Lok Sabha extension: the 5th Lok Sabha (due to end 18 March 1976) was extended to 1977 and then 1978, but was dissolved on 18 January 1977 after 5 years, 10 months and 6 days.
- President's Rule: the President may act on the Governor's report or without it. A footnote adds that the 42nd Amendment (1976) raised the 6-month period to one year and the 44th Amendment brought it back to 6 months.
- President's Rule in Punjab (May 1987) was allowed to run five years by the 68th Amendment (1991). The nine states of 1977 were Rajasthan, UP, MP, Punjab, Bihar, HP, Orissa, West Bengal, Haryana
- Of 1980: UP, Bihar, Rajasthan, MP, Punjab, Orissa, Gujarat, Maharashtra, Tamil Nadu
- Constituent Assembly voices:
  - Critics Kamath (police state), K.T. Shah, T.T. Krishnamachari (constitutional dictatorship) and Kunzru
  - Supporters Alladi Krishnaswami Ayyar ('life-breath of the Constitution') and Mahabir Tyagi ('safety-valve'). Ambedkar admitted the Articles could be abused. The 'Ambedkar is dead' remark is credited to H.V. Kamath
- Lakshmikanth differs:
  - President's Rule count. It says more than 125 occasions since 1950
  - The handout says about 134. Use the handout's 134 in class and remember LK's 'more than 125'

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

What are the three emergencies and their Articles?	National (Art. 352), President's Rule (Art. 356), Financial (Art. 360).
Grounds for a National Emergency?	War, external aggression, armed rebellion; imminent danger also counts.

What did the 44th Amendment do to "internal disturbance"?	Removed it and inserted "armed rebellion".
Which Amendment allowed multiple proclamations?	38th Amendment, 1975.
Which Amendment allowed area-specific National Emergency?	42nd Amendment, 1976.
Who must recommend a National Emergency in writing?	The Union Cabinet (44th Amendment).
What did Minerva Mills (1980) say about Emergency?	Proclamations can be reviewed: mala fide, irrelevant or non-existent facts, absurd or perverse.
Time to approve a National Emergency?	1 month in both Houses (earlier 2 months).
How long does an approved National Emergency last?	6 months, then renewals of 6 months each with a special majority.
What is the special majority?	Majority of total membership plus two-thirds of members present and voting.
What if the Lok Sabha is dissolved during the approval window?	Continues until 30 days from the new Lok Sabha's first sitting, if the Rajya Sabha approved.
How can a National Emergency be revoked?	By the President any time, or compulsorily after a Lok Sabha disapproval resolution (simple majority).
When must a special sitting be held?	Within 14 days of a written notice from one-tenth of Lok Sabha members.
What can the Union do under Art. 353(a)?	Direct any state on how to use its executive power, on any subject.
What does Art. 353(b) allow?	Parliament may legislate on State List subjects; laws last up to six months after the Emergency ends.
How long can the Lok Sabha be extended?	One year at a time, not beyond six months after the Emergency ends.
Which Lok Sabha was extended twice?	The 5th Lok Sabha (1971-77).
Compare Arts. 358 and 359.	358: Art. 19 only, automatic, war or aggression, whole Emergency; 359: Order, FRs except 20 and 21, remedy suspended only, period in the Order.

MY NOTES

Dates of the three National Emergencies?	26 Oct 1962 (China), 3 Dec 1971 (Pakistan), 25 June 1975 (internal; lifted 21 March 1977).
What was the Shah Commission?	1977-78 inquiry into 1975-77 abuses; gave impetus for the 44th Amendment safeguards.
What triggers Art. 356?	Breakdown of constitutional machinery: Governor's report or other information; failure to follow directions (Art. 365).
Time limits for President's Rule?	Approval within 2 months; 6 months each; maximum 3 years; simple majority.
Conditions to extend President's Rule beyond 1 year?	Art. 352 Emergency in force and ECI certificate that elections are not feasible.
Does President's Rule affect the High Court?	No; its powers and provisions stay.
What happens to laws made during President's Rule?	They continue after PR ends; the state legislature may repeal, amend or re-enact.
How many times has PR been imposed and where first?	About 134 times since 1950; first in Punjab, 1951.
Name the Bommai (1994) principles briefly.	Reviewable; relevant material; burden on Centre; relevance only; restore government; suspend not dissolve; secularism basic feature; floor test; no automatic dismissal on change at Centre; exceptional power.
Financial Emergency rules?	Art. 360; approval in 2 months; simple majority; no maximum; pay cuts including judges; never declared.

MY NOTES

Mains 2018: Under what circumstances can the Financial Emergency be proclaimed by the President of India? What consequences follow when such a declaration remains in force?	Intro: Art. 360 lets the President proclaim a Financial Emergency when the financial stability or credit of India or any part of its territory is threatened Body: Grounds are financial stability endangered or creditworthiness of India or any region compromised; Approval within 2 months by simple majority with Rajya Sabha keeping it alive if the Lok Sabha is dissolved; No maximum duration and no renewal until the President revokes it; Union directs states on financial propriety; Pay and perks of state employees can be reduced and state Money Bills reserved for the President; Pay of Central employees and judges of the Supreme Court and High Courts can be cut; Judicial review allowed after the 44th Amendment; Never declared so far including in the 1991 crisis. Close: it is a rarely needed power that makes fiscal federalism temporarily unitary and is balanced by parliamentary approval and judicial review.

MY NOTES

Mains 2023: Account for the legal and political factors responsible for the reduced frequency of using Article 356 by the Union Governments since mid 1990s.

Intro: The handout shows Art. 356 was used about 134 times since 1950 and was much criticised for political misuse Body: Legal: the 44th Amendment removed the bar on judicial review; Legal: Bommai 1994 made proclamations reviewable and required relevant material with the burden on the Centre; Legal: Assembly to be suspended and not dissolved until Parliament approves and courts can restore the government; Legal: floor test and no automatic dismissal on change at the Centre; Political: Sarkaria and Punchhi urged restraint and prior consultation; Political: criticism after the 1977 1980 and 1992 episodes and Ambedkar's hope of a dead letter. Close: courts and commissions confined Art. 356 to clear breakdowns. (The handout does not itself give a post-1990s frequency count; this answer is built from its safeguards.)

Trap 1 · Who revokes, and by what majority

A resolution of disapproval needs the Lok Sabha only and a simple majority. A resolution approving or extending the Emergency needs both Houses and a special majority. *Rule: disapprove = Lok Sabha alone + simple majority; approve or extend = both Houses + special majority.*

Trap 2 · Emergency numbers do not match across types

National Emergency: 1 month approval, 6-month renewals, special majority. President's Rule and Financial Emergency: 2 months, simple majority. *Rule: only the National Emergency has the 1-month window and the special majority.*

Trap 3 · Art. 358 versus Art. 359

Art. 358 is automatic, covers Art. 19 only and only for war or external aggression. Art. 359 needs a Presidential Order and suspends only the right to move court, and never for Arts. 20 and 21. *Rule: 358 Auto, 359 Order; 20 and 21 are always safe.*

Trap 4 · President's Rule does not touch FRs or the High Court

Unlike a National Emergency, President's Rule does not affect Fundamental Rights, and the President cannot take over the High Court's powers. Dissolving the Assembly is also not automatic. *Rule: Council of Ministers always goes; Assembly may be only suspended; High Court and FRs stay.*

MY NOTES

QUICK QUIZ

Q1. Which of the following is a ground for National Emergency under Article 352 as it stands after the 44th Amendment?

1. Internal disturbance
2. Armed rebellion
3. Breakdown of constitutional machinery in a state
4. Threat to financial stability

Q2. A National Emergency can be declared on

1. The advice of the Prime Minister alone
2. The written recommendation of the Union Cabinet
3. The report of the Governor
4. The recommendation of the Rajya Sabha

Q3. A proclamation of National Emergency must be approved by both Houses within

1. 14 days
2. 1 month
3. 2 months
4. 6 months

Q4. Approval or extension of a National Emergency requires

1. Simple majority of the House
2. Special majority in both Houses
3. Special majority in the Lok Sabha only
4. Simple majority in the Rajya Sabha only

Q5. Which of the following forces the President to revoke a National Emergency?

1. A resolution of the Rajya Sabha
2. A resolution of the Lok Sabha disapproving its continuation
3. A decision of the Election Commission
4. A report of the Governor

Q6. A special sitting of the Lok Sabha to consider disapproval must be held within

1. 7 days
2. 14 days
3. 30 days
4. 2 months

Q7. Which of the following is correct about Article 358?

1. It requires a Presidential Order
2. It automatically suspends Article 19 on war or external aggression
3. It can suspend Articles 20 and 21
4. It applies only for the period specified in an Order

Q8. Which Fundamental Rights cannot be suspended under Article 359?

1. Articles 14 and 15
2. Articles 19 and 22
3. Articles 20 and 21
4. Articles 25 and 26

Q9. For President's Rule, the maximum cumulative period is

1. 1 year
2. 2 years
3. 3 years
4. Unlimited

Q10. Extension of President's Rule beyond one year requires

1. A National Emergency in force and Election Commission certification
2. Only a two-thirds Lok Sabha vote
3. Governor's recommendation
4. Supreme Court permission

MY NOTES

Q11. Which of the following is a Bommai (1994) principle?

1. Courts cannot review Art. 356 proclamations
2. The Assembly should be dissolved before Parliament approves
3. Allegations of loss of majority should be decided on the floor of the House
4. A new Central government may dismiss all state ministries of other parties

Q12. Under a Financial Emergency (Art. 360), the President may direct reduction of salaries of

1. Only state government employees
2. Only central government employees
3. State and Union employees, including Supreme Court and High Court judges
4. Everyone except judges

Q13. Which statement about the Financial Emergency is correct?

1. It has been declared once, in 1991
2. It needs approval within 2 months and has no maximum duration
3. It needs a special majority every 6 months
4. Its proclamation cannot be reviewed by courts

Q14. PYQ 2022: Which of the following is/are the exclusive power(s) of Lok Sabha? (2022) 11. To ratify the declaration of Emergency 12. To pass a motion of no-confidence against the Council of Ministers 13. To impeach the President of India Select the correct answer using the code given below:

1. 1 and 2
2. 2 only
3. 1 and 3
4. 3 only

Q15. PYQ 2021: Which of the following are not necessarily the consequences of the proclamation of the President's rule in a State? (2021) 16. Dissolution of the State Legislative Assembly 17. Removal of the Council of Ministers in the State 18. Dissolution of the local bodies Select the correct answer using the code given below:

1. 1 and 2 only
2. 1 and 3 only
3. 2 and 3 only
4. 1, 2and 3

Q16. PYQ 2007: Consider the following statements in respect of financial emergency under Article 360 of the Constitution of India: (2007) ●
1. A Proclamation of financial emergency issued shall cease to operate at the expiration of two months, unless, before the expiration of that period, it has been approved by the resolutions of both Houses of Parliament. ●
2. If any Proclamation of financial emergency is in operation, it is competent for the President of India to issue directions for the reduction of salaries and allowances of all or any class of persons, serving in connection with the affairs of the Union but excluding the Judges of the Supreme Court and the High Courts. Which of the statements given above is/are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

MY NOTES

Q17. PYQ 2018: If the president of India exercises his power as provided under Article 356 of the constitution in respect of a particular state, then (2018)

1. the assembly of a state is automatically dissolved.
2. the power of the Legislature of that State shall be exercisable by or under the authority of the Parliament.
3. Article 19 is suspended in that State.
4. the President can make laws relating to that State.

Q18. PYQ 2017: Which of the following are not necessarily the consequences of the proclamation of the President's rule in a State? (2017) ● Dissolution of the State Legislative Assembly ● Removal of the Council of Ministers in the State ● Dissolution of the local bodies Select the correct answer using the code given below:

1. 1 and 2 only
2. 1 and 3 only
3. 2 and 3 only
4. 1, 2 and 3

Answers: Q1 b, Q2 b, Q3 b, Q4 b, Q5 b, Q6 b, Q7 b, Q8 c, Q9 c, Q10 a, Q11 c, Q12 c, Q13 b, Q14 b, Q15 b, Q16 a, Q17 b, Q18 b

MY NOTES

23 Political Parties

CHAPTER 23 · HANDOUT SECTION: POLITICAL PARTIES

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

EXAM LENS

Prelims hooks

- none quoted in the material as PYQs
- likely hooks are Art. 19(1)(c), Art. 324, Section 29A, the national/state party criteria, reserved versus free symbols, 1952 (14 national, 39 state) versus pre-2019 (7 national, 52 state), and party founders and years.
- Handout stresses: The handout carries no PYQ section for this chapter (Whole chapter)
- Handout stresses: National Party criteria (6% in four states + four LS seats; 2% of LS seats = 11 of 543 from three states; State party in four states) (Classification section)
- Handout stresses: State Party criteria (6% + 2 seats; 6% + 1 LS seat; 3% of seats or three seats; 1 LS seat per 25; 8% votes) (Classification section)
- Handout stresses: Legal basis: Art. 19(1)(c), Art. 324, RP Act 1951 (Sec. 29A), Election Symbols (Reservation and Allotment) Order, 1968 (Constitutional underpinning and Classification)

Mains hooks

- none quoted in the material as PYQs
- likely themes are the rise, role and limits of regional parties, the Indian party system's features, and coalition politics.

Parties are not named in the Constitution; they live on Art. 19(1)(c), ECI recognition under Art. 324 and the RP Act 1951, and regional parties both deepen representation and test national unity.

MY NOTES

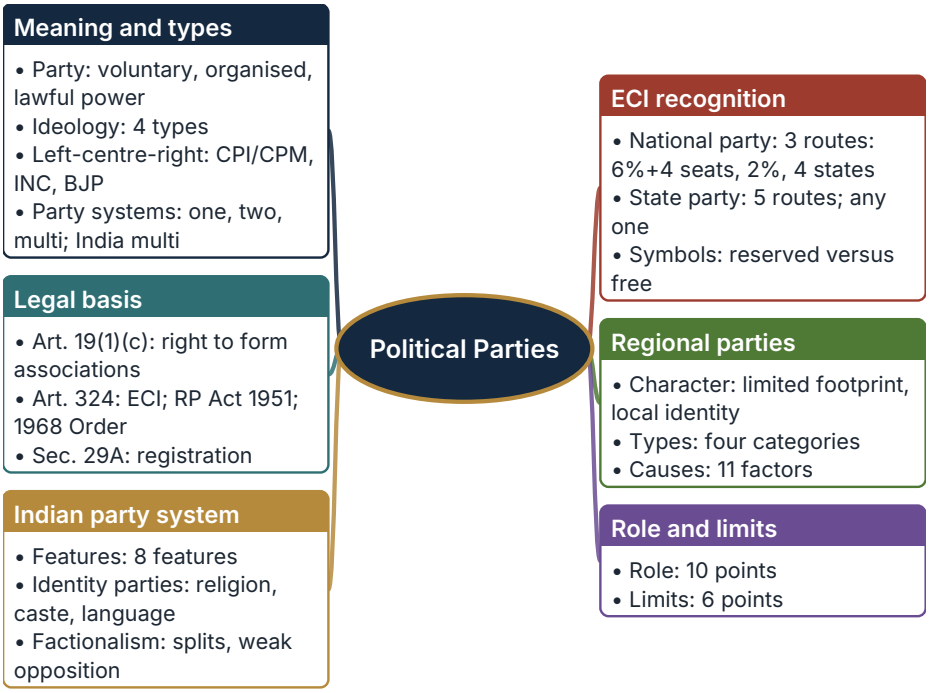
IN SIMPLE WORDS

- A **political party** is a voluntary, organised group that seeks public power by **lawful means**. The Constitution does **not define parties**
- **Art. 19(1)(c)** (form associations) lets them exist
- Parties are classed by ideology:
  - **Radical = left, Liberal = centre, Reactionary and Conservative = right** (CPI/CPM left, INC centre, BJP right of centre). By system: **one, two or multi-party**
  - India is **multi-party**
- The **ECI (Art. 324)** registers parties under **Sec. 29A** of the **RP Act, 1951** and recognises them as **National**, **State** or **Registered-Unrecognised**, using the **Symbols Order, 1968**.
- Recognised parties get a **reserved symbol**, free airtime on Doordarshan and AIR, and access to electoral rolls. Others pick a **free symbol**.
- **Regional parties** have a limited footprint, rest on local identity, and now decide coalitions. They check the Centre and widen choice, but can put regional interests above national ones.

Key term	In plain words
Political party	Voluntary, organised group that seeks and uses public power by lawful, constitutional means
Congress system	Long one-party dominance of the Congress, later weakened by regional and new national parties
Reserved symbol	Symbol kept exclusively for the candidates of recognised national or state parties
Free symbol	Symbol from an ECI list for registered-unrecognised parties and independents
Registered-Unrecognised party	Registered under Sec. 29A but failing the criteria; contests with free symbols and has no privileges
National party	Recognised by the ECI across the country; any one of three routes (6% in 4 states plus 4 LS seats; 2% LS seats from 3 states; State party in 4 states)
State (regional) party	Recognised in a state by any one of five routes; its reserved symbol works only in that state
Offshoot party	Regional party formed by a split from a national party; inherits its structure and cadres

MY NOTES

MEMORY MAP: POLITICAL PARTIES



MNEMONIC · FOUR IDEOLOGICAL TYPES OF PARTY

Retain Conserve Liberalise Revolutionise

- **R** Reactionary (right): clings to old institutions
- **C** Conservative (right): keeps the status quo
- **L** Liberal (centre): reforms existing institutions
- **R** Radical (left): builds a new order

The four verbs run from the most backward-looking party type to the most changing one: right, right, centre, left. (Memory aid, not from the handout.)

MNEMONIC · EIGHT FEATURES OF THE INDIAN PARTY SYSTEM

PROLIFIC

- **P** Plurality: a multi-party system
- **R** Regional formations rise
- **O** Opposition is weak
- **L** Leader-centred organisation
- **I** Identity bases: religion, caste, language
- **F** Factionalism, splits and instability
- **I** Ideological identities are weak
- **C** Congress system: long one-party dominance

Indian parties are PROLIFIC: they multiply, split and spread. The order is rearranged for memory. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · FOUR TYPES OF REGIONAL PARTY

ROLE

- **R** Rooted in a region with a pan-India outlook
- **O** Offshoots of national parties
- **L** Leader-centred (personalised)
- **E** Ethnicity- or culture-based

Regional parties play a big ROLE in the party system. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · SIX LIMITS OF REGIONAL PARTIES

POISON

- **P** Populism and fiscal strain
- **O** Obstacles to inter-state cooperation
- **I** Identity politics reinforced
- **S** Selfish narrow regional priorities over national interest
- **O** Outsized influence in coalitions
- **N** Nepotism and corruption

These six limits are the POISON in a federal system. The order is rearranged for memory. (Memory aid, not from the handout.)

MEANING AND IDEOLOGICAL TYPES

- Political parties are **voluntary, organised groupings** of persons around shared political beliefs who seek to **acquire and exercise public power by lawful, constitutional means**. They aggregate interests, formulate public policies and give citizens distinct choices at elections. They also claim to work for the national interest while following programmes that reflect their ideology and organisational priorities.

FOUR TYPES BY IDEOLOGICAL ORIENTATION

IDEOLOGICAL TYPES

Type	What it seeks	Place on axis
Reactionary	Preserve older socio-political and economic institutions; resist modernising change	Right
Conservative	Favour the status quo; incremental change, not radical transformation	Right
Liberal	Reform existing institutions to expand rights, opportunity and governance effectiveness	Centre
Radical	Fundamental transformation of the political or socio-economic order; often a new institutional framework	Left

MY NOTES

INDIAN EXAMPLES ON THE AXIS

Position	Example
Left	Communist Party of India (CPI) and Communist Party of India (Marxist)
Centre	Indian National Congress (commonly treated as centrist)
Right of centre	Bharatiya Janata Party (BJP)

- **Memory aid (Four types):** **R**eactionary, **C**onservative, **L**iberal, **R**adical: "**R**eally **C**areful **L**ads **R**ebel".
- **Shortcut: Axis shortcut. Radical = Left, Liberal = Centre, Reactionary + Conservative = Right.** Examples: CPI/CPM left, INC centre, BJP right of centre.

ALSO IN THE HANDOUT

- They perform the basic democratic function of aggregating interests, formulating public policies and offering citizens distinct choices at elections.

TYPES OF PARTY SYSTEMS

- Systems are also classified by party competition.

THREE PARTY SYSTEMS

System	Meaning	Examples in the handout
One-party	Only a single party as ruling formation; organised opposition not permitted	Several former Communist states
Two-party	Two major parties dominate, alternately forming government and opposition	United Kingdom, United States
Multi-party	Several parties coexist and compete; often needs coalition governance	Many continental European democracies

- India is a **multi-party system**: many national and regional parties compete, and coalition arrangements recur in government formation.
- **Memory aid (Party systems):** **O**ne, **T**wo, **M**ulti: "**O**ne **T**o **M**any", and India sits at **M**any.

ONE-PARTY VERSUS TWO-PARTY VERSUS MULTI-PARTY

- **Two-party:**
  - Two big parties
  - Government and opposition alternate
  - UK and US

MY NOTES

- **Multi-party:**
  - Several parties
  - Coalition governance
  - India

CONSTITUTIONAL UNDERPINNING

- The enabling base for parties is the fundamental freedom to **form associations and unions**, **Article 19(1)(c)**. It lets citizens organise political parties and take part collectively in democracy.
- **Key point:** The Constitution does **not itself define or regulate parties** exhaustively. Article 19(1)(c) only creates the enabling environment in which parties operate and contest public office. Recognition and functioning are governed by the **Representation of the People Act, 1951** and the **Election Symbols (Reservation and Allotment) Order, 1968**, both administered by the **Election Commission of India under Article 324** (see Section 5).
- **Memory aid (Legal base):** **A**rt. 19(1)(c) (association), **R**P Act 1951 (registration under Sec. 29A), **E**CI under Art. 324 (recognition and symbols): "**A**ll **R**ecognised **E**ntities".

FEATURES OF THE INDIAN PARTY SYSTEM

- Parties are organised, voluntary associations that aggregate interests, mobilise voters, frame programmes and offer alternatives. Eight features are stressed.

EIGHT FEATURES

- **Plurality and multi-party character**: vast territory, social and cultural diversity, universal adult franchise and the political process produced very many parties. Left, centre and right coexist with communal and non-communal formations. The result is often **hung legislatures and coalitions** at the Centre and in States.
- **Long single-party dominance and its decline**: called the **one-party dominance** or the "**Congress system**". It weakened as regional formations and new national parties emerged, giving a progressively competitive multiparty order.
- **Weak ideological identities**: except a few clearly ideological formations, parties have broad commitments (democracy, secularism, social justice) and overlap in policy. Mobilisation is driven by electoral considerations and issue positions more than deep ideology.
- **Leader-centred organisation**: parties are identified with a prominent leader whose stature eclipses ideology. They are known by leaders' names or images rather than manifestos.
- **Identity bases**: many parties formed on religion, caste, language or culture, unlike Western parties built on socio-economic pro-

MY NOTES

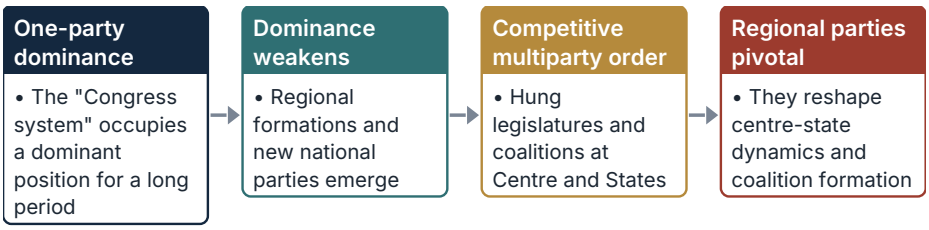
grammes. They pursue sectional interests and can divert attention from broader public policy.

- **Rise of regional formations**: first state-level, many became pivotal nationally in coalitions. They reshaped **centre-state dynamics** and national coalition patterns.
- **Factionalism, splits and instability**: defections, splits, mergers and fragmentation, driven by ambition and pragmatism, cause instability, realignments and offshoots of major parties.
- **Challenge of effective opposition**:
  - A robust opposition checks the executive and is a potential alternative government. India has struggled to sustain a cohesive national opposition
  - It has been fragmented and united only intermittently
- **Memory aid (Eight features): P**lurality, **C**ongress system, **W**eak ideology, **L**eader-centred, **I**dentity, **R**egional rise, **F**actionalism, **O**pposition weak: "**P**arties **C**ontinue **W**ith **L**eaders **I**nvoking **R**egional **F**actions, **O**pposition weak".

FROM CONGRESS SYSTEM TO COALITIONS

- **One-party dominance**: The "Congress system" occupies a dominant position for a long period
- **Dominance weakens**: Regional formations and new national parties emerge
- **Competitive multiparty order**: Hung legislatures and coalitions at Centre and States
- **Regional parties pivotal**: They reshape centre-state dynamics and coalition formation

FROM CONGRESS SYSTEM TO COALITIONS



ALSO IN THE HANDOUT

- Historically, India has struggled to sustain a permanently cohesive and effective national opposition
- Opposition forces have often been fragmented and unable to present a unified counter-vailing political front except intermittently

MY NOTES

PARTY FORMATION TABLE

- The handout lists parties in chronological order with founders and year. The PDF flattened the table
- It is rebuilt here

PARTIES, FOUNDERS AND YEAR OF FORMATION

Party	Founder(s)	Year
Indian National Congress (INC)	A. O. Hume	1885
Shiromani Akali Dal (SAD)	not given	1920
Communist Party of India (CPI)	M. N. Roy	1925
Jammu & Kashmir National Conference (JKNC)	Sheikh Abdullah	1939
Dravida Munnetra Kazhagam (DMK)	C. N. Annadurai	1949
Communist Party of India (Marxist) (CPM)	not given	1964
Shiv Sena (SHS)	Bal Thackeray	1966
All India Anna Dravida Munnetra Kazhagam (AIADMK)	M. G. Ramachandran	1972
Bharatiya Janata Party (BJP)	A. B. Vajpayee and L. K. Advani	1980
Telugu Desam Party (TDP)	N. T. Rama Rao	1982
Bahujan Samaj Party (BSP)	Kanshi Ram	1984
Asom Gana Parishad (AGP)	P. K. Mahanta	1985
Samajwadi Party (SP)	Mulayam Singh Yadav	1992
Rashtriya Janata Dal (RJD)	Lalu Prasad Yadav	1997
Biju Janata Dal (BJD)	Naveen Patnaik	1997
All India Trinamool Congress (AITC)	Mamata Banerjee	1998
Jammu & Kashmir People's Democratic Party (PDP)	Mufti Mohd. Sayeed	1999
Janata Dal (United) (JD(U))	Sharad Yadav	1999
Janata Dal (Secular) (JD(S))	H. D. Deve Gowda	1999
Nationalist Congress Party (NCP)	Sharad Pawar, P. A. Sangma and Tariq Anwar	1999
Lok Janshakti Party (LJP)	Ram Vilas Paswan	2000
Telangana Rashtra Samithi (TRS), now BRS	K. Chandrashekar Rao	2001
Yuvajana Sramika Rythu Congress Party (YSRCP)	Y. S. Jagan Mohan Reddy	2011
Aam Aadmi Party (AAP)	Arvind Kejriwal	2012

MY NOTES

Party	Founder(s)	Year
National People's Party (NPP)	P. A. Sangma	2013

- **Reading the table:** The handout gives no founder for **SAD** and **CPM**. Four parties share **1999** (PDP, JD(U), JD(S), NCP) and two share **1997** (RJD, BJD).
- **Memory aid (Decades):** **I**NC 1885, **S**AD 1920, **C**PI 1925, **D**MK 1949: "**I** **S**ee **C**hanges **D**aily" for the first four.
- **Shortcut: Same-year shortcut. 1997 = RJD + BJD. 1999 = PDP + JD(U) + JD(S) + NCP.** Leader pairs: **NTR = TDP 1982, MGR = AIADMK 1972**, **Kanshi Ram = BSP 1984**, **Kejriwal = AAP 2012**.

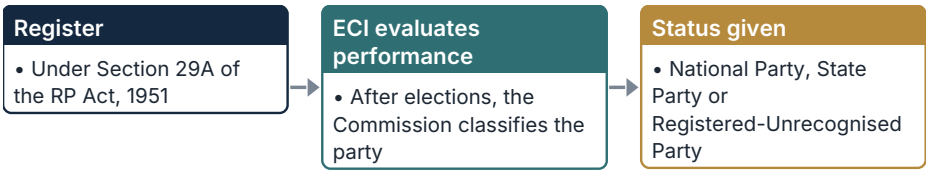
CLASSIFICATION AND RECOGNITION BY THE ECI

- The Constitution does not explicitly mention political parties. Their functioning and recognition are governed by the **Representation of the People Act, 1951** and the **Election Symbols (Reservation and Allotment) Order, 1968**, both administered by the **Election Commission of India under Article 324**.

HOW A PARTY GETS ITS STATUS

- **Register**: Under **Section 29A** of the RP Act, 1951
- **ECI evaluates performance**: After elections, the Commission classifies the party
- **Status given**: **National Party**, **State Party** or **Registered-Unrecognised Party**

HOW A PARTY GETS ITS STATUS



WHY RECOGNITION MATTERS

- Exclusive use of a reserved election symbol.
- Free airtime on state-owned media (Doordarshan and All India Radio) during elections.
- Access to electoral rolls and voter data for campaigns.
- Enhanced status and visibility in the electoral arena.

MY NOTES

SYMBOLS

TWO KINDS OF SYMBOLS

Kind	For whom
Reserved	Recognised national or state parties for their candidates, exclusively
Free	Candidates of registered-unrecognised parties or independents (from a list notified by the ECI)

- A national party uses its symbol across the country
- A state party uses its reserved symbol only in the state or states where it is recognised

NATIONAL PARTY: ANY ONE OF THREE

NATIONAL PARTY CRITERIA

Route	Condition
Vote share + LS seats	At least **6% of valid votes** in any **four or more states** in a Lok Sabha or State Assembly general election, **and** at least **four LS seats** from any state or states
Seats in Lok Sabha	At least **2% of total LS seats** (**11 of 543**), elected from at least **three different states**
State party status	Recognised as a State Party in at least **four states**

- These ensure broad geographical presence and electoral strength across India.

STATE PARTY: ANY ONE OF FIVE

STATE PARTY CRITERIA

No.	Condition
1	**6%** of valid votes in the state's Assembly election **and** at least **2 Assembly seats**
2	**6%** of valid votes in the Lok Sabha election from that state **and** at least **1 LS seat** from the state
3	At least **3% of total Assembly seats** or **3 seats**, whichever is higher
4	**1 LS seat for every 25 seats** (or any fraction) allotted to that state
5	At least **8% of total valid votes** in the state in either an LS or Assembly election

- **Memory aid (National route numbers):**
  - **S**ix percent in four states with four seats, **T**wo percent (11 seats) from three states, **S**tate party in four states: "**S**ix **T**o **S**ucceed"

MY NOTES

- For State parties remember 6, 3, 8 and 1-per-25

- **Shortcut: Number shortcut. National = 4s** (four states, four seats, four-state recognition) with **2% = 11 of 543** as the odd route. **State = 6% twice, 3% seats, 1-per-25, 8% votes.**

REGISTERED-UNRECOGNISED

- Registered under Section 29A but failing the criteria. They can contest elections but get **no reserved symbol** and none of the recognised parties' privileges
- They choose from the free symbols

CHANGING DYNAMICS

- Status is re-assessed after each general election and the ECI revises the list.

NUMBER OF RECOGNISED PARTIES

Time	National parties	State parties
First General Elections, **1952**	14	39
Before the **2019** (17th Lok Sabha) elections	7	52

- **National versus regional:** National parties (All-India Parties) have a pan-India vision and presence. State parties, commonly called regional parties, represent specific states or regions. Both play a pivotal role in coalition politics and federal balance.
- **Conclusion:** Recognition supports electoral integrity and transparency through the ECI (Art. 324) and the RP Act 1951, keeping competition fair, structured and reflective of genuine public support. Electoral performance is the measure of legitimacy.

ALSO IN THE HANDOUT

- Recognition by the ECI is crucial because it determines a party's eligibility for specific privileges such as: - Exclusive use of a reserved election symbol.
- The Election Commission periodically revises the list after assessing poll results.

REGIONAL PARTIES IN THE PARTY SYSTEM

- Regional parties operate mainly in sub-national spaces but influence local, state and national governance. They articulate region-specific interests, mobilise local identities and contest state and municipal elections, so that diversity is represented in democracy.
- In **coalition politics** their importance has risen. Without a single-party majority at the Centre they are often pivotal partners

MY NOTES

- Their support can decide **formation, durability and policy orientation** of national governments
- Within States, strong regional parties shape administrative priorities, legislative agendas and **centre-state bargaining** over resources and implementation.

THREE INTERLINKED ROLES

ROLES DRAWN FROM LOCAL CONSTITUENCIES

- **Aggregate**: Regional demands become coherent political programmes
- **Intermediate**: They link local societies with higher tiers of government
- **Negotiate**: Leverage in multi-party coalitions, influencing national policy
- Result: deeper democratic representation within states and a balance of regional interests in the federal polity.
- **Memory aid (Three roles):** **A**ggregate, **I**ntermediary, **N**egotiate: "**A**ll **I**ssues **N**egotiated".

ALSO IN THE HANDOUT

- In the contemporary era of coalition politics, the strategic importance of regional parties has increased markedly.

CHARACTER, TYPES AND CAUSES OF REGIONAL PARTIES

- Regional parties get strength from concentrated social bases and claims grounded in local culture, language, ethnicity or community interests. Their main aim is to mobilise local constituencies, take up region-specific issues and **capture power at state level** to influence policy, resources and centre-state relations.

SALIENT CHARACTERISTICS

- Limited territorial footprint: one state or clearly defined region.
- Identity linked to cultural, religious, linguistic or ethnic communities
- Demands flow from historic, economic or social particularities
- Exploit local grievances or primordial loyalties: **language, caste, religion, regional pride**.
- Appeal built on local development, identity protection and often claims for **greater regional autonomy** within the federation.
- Programmes aim at securing state-level power rather than an immediate nationwide presence.

MY NOTES

FOUR TYPES

TYPOLOGY OF REGIONAL PARTIES

Type	Meaning
Culture- or ethnicity-based	Anchored in regional cultural or ethnic identities (linguistic, religious or historic community claims)
Regionally rooted with pan-India outlook	State base, all-India perspective, occasional national alliances; strength stays regional
Offshoots of national parties	Created by splits from larger national parties; inherit structures and cadres, then evolve distinct regional programmes
Personalised or leader-centred	Built around a charismatic individual; frequently short-lived or dependent on the founder's popularity

- This typology explains why some regional parties are durable and others transient or episodic.
- **Memory aid (Four types):** **C**ulture-based, **P**an-India outlook, **O**ffshoots, **P**ersonality-led: "**C**ats **P**refer **O**ne **P**erch".

ELEVEN CAUSES OF RISE

FACTORS BEHIND THE RISE OF REGIONAL PARTIES

Factor	Explanation
Cultural and ethnic diversity	Pluralism supports mobilisation to protect local identity and traditions
Economic disparities and regional imbalances	Uneven development and perceived neglect by the Centre; parties promise equitable growth and regional justice
Historical and identity-based aspirations	Communities with distinct history or identity seek a separate political voice
Local elites and former rulers	Deposed princes, zamindars or elites founded or supported parties to keep relevance
Failure of national parties	They overlook regional demands, creating space for new actors
Linguistic reorganisation of States	States created on linguistic lines (post-1956) strengthened regional consciousness
Charismatic regional leadership	Mass-appeal leaders such as M.G. Ramachandran (Tamil Nadu) and N.T. Rama Rao (Andhra Pradesh) built lasting movements
Factionalism and splits in major parties	Breakaways from larger national parties give new regional formations
Weak central opposition	No cohesive national opposition left a vacuum for regional parties

MY NOTES

Factor	Explanation
Caste and religious dynamics	Caste and community grievances led to parties for specific social groups
Tribal alienation and marginalisation	Socio-economic neglect and lack of representation drove regionally focused parties for tribal rights and autonomy

- **Memory aid (Eleven causes):** **C**ulture, **E**conomic gaps, **H**istory, **R**ulers/elites, **F**ailure of nationals, **L**inguistic states, **C**harisma, **F**actionalism, **W**eak opposition, **C**aste/religion, **T**ribal alienation: "**C**ountry's **E**very **H**ome **R**aised **F**ierce **L**ocal **C**hampions **F**or **W**hat **C**ounts, **T**ruly".
- **Shortcut: Cause groups. Identity** (culture, history, caste/religion, tribal), **Economy** (disparities), **Politics** (national failure, weak opposition, splits, elites), **Language** (post-1956 states), **Leaders** (MGR, NTR).

ROLE AND SIGNIFICANCE OF REGIONAL PARTIES

- Ten contributions are listed.

ROLE OF REGIONAL PARTIES

No.	Role	What it means
1	**Strengthening regional governance**	Efficient and stable governance in states by focusing on local priorities
2	**Challenge to one-party dominance**	Weakened the Congress system; more balanced, competitive politics
3	**Influence on centre-state relations**	Demand greater autonomy; keep the Union responsive to regional aspirations
4	**Expansion of political participation**	Grassroots presence widened participation at village and district levels
5	**Diversifying voter choices**	More options, including platforms on regional or state-specific concerns
6	**Raising political awareness**	Highlight regional development, language, identity and engage more people
7	**Curbing central authoritarianism**	Counterbalance to the Centre; pushes a more conciliatory approach
8	**Strengthening parliamentary democracy**	Ruling in states and opposing at the Centre, they make the system more inclusive
9	**Exposing misuse of constitutional offices**	Watchdog on partisan acts of Governors: appointment or dismissal of Chief Ministers, misuse of ordinance powers

MY NOTES

No.	Role	What it means
10	**Rise in coalition politics**	With single-party majorities declining, key players in coalitions at the Centre

- **Memory aid (Ten roles):** **G**overnance, **C**hallenge to dominance, **C**entre-state ties, **E**xpand participation, **D**iversify choice, **A**wareness, **C**urb authoritarianism, **S**trengthen parliamentary democracy, **E**xpose Governors, **R**ise of coalitions: "**G**ood **C**oalitions **C**ome **E**asily **D**uring **A**ny **C**risis, **S**ays **E**very **R**egion".
- **Shortcut: Role shortcut.** Think **Centre, Governor, Coalition**: they check the Centre (roles 3, 7), watch the Governor (role 9) and anchor coalitions (role 10).

LIMITS AND CHALLENGES

- Six problems accompany the rise of regional parties.

LIMITS OF REGIONAL PARTIES

Limit	Problem
Narrow regional priorities versus national interest	Local or sectional concerns come first; policy ignores nationwide consequences; coordinated responses to pan-Indian challenges become harder
Reinforcement of identity politics	Mobilise on region, caste, language, religion or tribal identity; deepen cleavages; regionalism, casteism, communalism, tribalism hinder national integration
Obstacles to interstate cooperation	Disputes over water sharing, territorial boundaries and other cross-border issues stay unresolved as regional interests and elections complicate settlements
Corruption and nepotism	Concentrated regional power sometimes brings misuse of authority, favouritism, eroded probity and rent-seeking and patronage
Populism and fiscal strain	Populist short-term schemes strain state finances and distort long-term development
Disproportionate influence in coalitions	Narrow regional demands can skew central policy-making and the coherence of national programmes

ROLE VERSUS LIMIT (THE TWO FACES)

- **Strength:**
  - Stable state governance
  - Check on Centre
  - Wider participation
  - Coalition leverage
- **Weakness:**
  - Parochial priorities
  - Identity politics

MY NOTES

  - Inter-state deadlock
  - Populism
  - Coalition pressure
- **Memory aid (Six limits):** **N**arrow priorities, **I**dentity politics, **O**bstacles to inter-state cooperation, **C**orruption/nepotism, **P**opulism, **D**isproportionate coalition influence: "**N**o **I**nterstate **O**utcome **C**omes **P**romptly **D**espite pressure".
- **Conclusion:** Parties are the indispensable vehicles of representative democracy: they aggregate interests, structure electoral choice and convert mandates into policy. Their plural and regionalised character deepens representation but needs continual reform and responsible practice so that competition strengthens, not fragments, the national project.

ALSO IN THE HANDOUT

- Such practices erode institutional probity, weaken public trust, and divert administrative energy away from development goals toward rent-seeking and patronage.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 79-80

- The 'Congress system' (one-party dominance) is the phrase of the analyst Rajni Kothari. Its dominance has been falling since 1967, with the rise of regional parties and of Janata (1977), Janata Dal (1989) and the BJP (1991).
- India has the largest number of political parties in the world, spanning left, centrist, right, communal and non-communal parties
- Hung Parliaments, hung assemblies and coalitions are common
- Weak ideology:
  - Except the BJP and the two communist parties (CPI, CPM), other parties have no clear ideology
  - Almost all say they favour democracy, secularism, socialism and Gandhism, and are driven by power capture. It is said that India has 'political personalities rather than political parties'
- Defections gained greater currency after the fourth general elections (1967). An effective, organised national Opposition has appeared only 'in flashes' since the first general elections.
- Party-system examples:
  - One-party = former communist countries such as the USSR and East Europe
  - Two-party = USA (Democratic, Republican) and Britain (Conservative, Labour)
  - Multi-party = France, Switzerland, Italy

MY NOTES

- The 14 national parties of 1952: BJS, Bolshevik Party of India, CPI, two Forward Bloc groups, Hindu Mahasabha, INC, Krishikar Lok Party, KMPP, RCPI, Ram Rajya Parishad, RSP, Scheduled Caste Federation and Socialist Party. The 7 national parties before 2019: BSP, BJP, CPI, CPM, INC, NCP and AITC.
- Examples for the four regional types:
  - Culture or ethnicity = SAD, National Conference, DMK, TDP, Shiv Sena, AGP
  - All-India outlook but no national base = SP, NCP
  - Formed by a split in national parties = BJD, RJD, Trinamool, YSR Congress
  - Personalised parties = short-lived
- Role extras: the minority must have its say and the majority its way, and regional parties served this by ruling in states and opposing at the Centre. They also exposed Governors' partisan acts in dismissing Chief Ministers, issuing ordinances and reserving bills for the President.
- Lakshmikanth differs: causes of regional parties. It lists 12, adding 'centralising tendencies of the Congress party' (the handout has 11). Use the handout's 11 in class and remember LK's extra cause.

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

What is a political party?	A voluntary, organised grouping around shared beliefs that seeks to acquire and exercise public power by lawful, constitutional means.
Name the four ideological types.	Reactionary, Conservative, Liberal, Radical.
Where are radical, liberal and reactionary/ conservative parties on the axis?	Radical = left, liberal = centre, reactionary and conservative = right.
Indian examples: left, centre, right of centre?	CPI and CPM; INC; BJP.
Three party systems?	One-party, two-party (UK, US), multi-party (India).
Which Article underpins forming parties?	Article 19(1)(c), the right to form associations and unions.

Does the Constitution define parties?	No; it does not define or regulate them exhaustively. Recognition is by RP Act 1951 and the 1968 Symbols Order under ECI, Art. 324.
Registration provision?	Section 29A of the RP Act, 1951.
What are the three statuses given by ECI?	National Party, State Party, Registered-Unrecognised Party.
Privileges of recognition?	Reserved symbol; free airtime on Doordarshan and AIR; access to electoral rolls and voter data; enhanced status.
Reserved versus free symbols?	Reserved: recognised national or state parties. Free: registered-unrecognised parties and independents.
National Party route 1?	6% valid votes in four or more states plus at least four LS seats.
National Party route 2?	2% of LS seats (11 of 543) from at least three states.
National Party route 3?	Recognised as State Party in at least four states.
State Party criteria (five)?	6% + 2 Assembly seats; 6% in LS + 1 LS seat; 3% of seats or 3 seats; 1 LS seat per 25 seats; 8% of valid votes.
Numbers of recognised parties in 1952 and before 2019?	1952: 14 national and 39 state. Before 2019: 7 national and 52 state.
What is the "Congress system"?	Prolonged one-party dominance that later weakened as regional and new national parties emerged.
Name some features of the Indian party system.	Multi-party; Congress system; weak ideology; leader-centred; identity-based; regional rise; factionalism; weak opposition.
Four types of regional parties?	Culture/ethnicity-based; regionally rooted with pan-India outlook; offshoots of national parties; personalised or leader-centred.
Three roles of regional parties from local constituencies?	Aggregate regional demands; act as intermediaries; negotiate leverage in coalitions.
Regional leaders named as examples?	M. G. Ramachandran (Tamil Nadu) and N. T. Rama Rao (Andhra Pradesh).

MY NOTES

Which regional role concerns Governors?	Exposing misuse of constitutional offices: appointment or dismissal of Chief Ministers and misuse of ordinance powers.
Six limits of regional parties?	Narrow priorities; identity politics; inter-state obstacles; corruption and nepotism; populism and fiscal strain; disproportionate coalition influence.
Who founded INC, CPI, DMK, BSP?	A. O. Hume (1885); M. N. Roy (1925); C. N. Annadurai (1949); Kanshi Ram (1984).
Who founded BJP, AAP, TRS, NPP?	Vajpayee and Advani (1980); Arvind Kejriwal (2012); K. Chandrashekar Rao (2001); P. A. Sangma (2013).
Parties formed in 1999?	PDP, JD(U), JD(S) and NCP.

Trap 1 · National versus State party numbers

National routes: 6% in four states plus four LS seats; 2% of LS seats (11 of 543) from three states; State party in four states. State routes: 6% plus 2 Assembly seats; 6% LS plus 1 LS seat; 3% seats or 3 seats; 1 LS seat per 25; 8% votes. *Rule: National = 4s plus the 2%-from-3-states route; State = 6, 6, 3, 1-per-25, 8.*

Trap 2 · Radical is left, not right

Radical parties want a new order and sit on the left; liberal in the centre; reactionary and conservative on the right. *Rule: radical = left, liberal = centre, the two old-order types = right.*

Trap 3 · Parties are not in the Constitution

Only Art. 19(1)(c) gives the freedom to form associations; recognition comes from the RP Act 1951, the 1968 Symbols Order and the ECI under Art. 324. *Rule: Constitution = right to form; law + ECI = recognition.*

Trap 4 · Reserved versus free symbols and the 1952 numbers

Reserved symbols go to recognised parties; free symbols to registered-unrecognised parties and independents. In 1952 there were 14 national and 39 state parties; before 2019, 7 national and 52 state. *Rule: recognised = reserved; others = free. National parties shrank from 14 to 7; state parties grew from 39 to 52.*

QUICK QUIZ

Q1. Under which Article does the Election Commission of India administer party registration and recognition?

1. Article 19(1)(c)
2. Article 324
3. Article 326
4. Article 352

MY NOTES

Q2. The freedom that gives citizens the legal basis to form political parties is

1. Article 19(1)(c)
2. Article 19(1)(a)
3. Article 324
4. Section 29A

Q3. A party is registered with the ECI under

1. Section 29A of the RP Act, 1951
2. Article 19(1)(c)
3. Section 29A of the Symbols Order
4. Article 324(6)

Q4. A party qualifies as a National Party if it wins at least 2% of total Lok Sabha seats elected from at least

1. two states
2. three states
3. four states
4. five states

Q5. Which is NOT a route to State Party recognition?

1. 6% votes and 2 Assembly seats
2. 8% of valid votes in the state
3. 1 LS seat for every 25 seats allotted
4. 6% votes in four states and four LS seats

Q6. Reserved election symbols are available to

1. all registered parties
2. recognised national or state parties
3. independents
4. only parties in government

Q7. Before the 2019 Lok Sabha elections the ECI recognised

1. 14 national and 39 state parties
2. 7 national and 52 state parties
3. 52 national and 7 state parties
4. 39 national and 14 state parties

Q8. The "Congress system" refers to

1. the party's coalition with regional parties
2. long one-party dominance
3. the Congress's federal structure
4. its internal elections

Q9. Which is a type of regional party in the handout's typology?

1. Offshoots of national parties
2. Reactionary parties
3. Two-party blocs
4. Registered-unrecognised parties

Q10. Which regional party was founded by N. T. Rama Rao in 1982?

1. AIADMK
2. TDP
3. DMK
4. BJD

Q11. In ideological terms, radical parties are placed on the

1. right
2. centre
3. left
4. none of these axes

Q12. Which is a limit posed by regional parties?

1. Weak Central opposition
2. Populism and fiscal strain
3. Challenge to one-party dominance
4. Linguistic reorganisation

Answers: Q1 b, Q2 a, Q3 a, Q4 b, Q5 d, Q6 b, Q7 b, Q8 b, Q9 a, Q10 b, Q11 c, Q12 b

MY NOTES

CHAPTER 24 · HANDOUT PAGES: ELECTIONS, ELECTION LAWS, ELECTORAL REFORMS, ELECTORAL FINANCES

24 Elections and Electoral Reforms

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

MY NOTES

EXAM LENS

MY NOTES

Prelims hooks

- Articles 324 to 329 and 329A
- 61st Amendment (18 years, in force 28 March 1989)
- RPA 1950 versus RPA 1951
- who runs what (CEO, DEO, RO, ERO, Presiding Officer)
- MCC period and area
- Delimitation Commission composition
- Symbols Order 1968
- NOTA, VVPAT, EPIC
- Lily Thomas
- electoral bond features
- Election Laws (Amendment) Act 2021 qualifying dates
- No Prelims PYQ is quoted in the material.
- Handout stresses: The handout gives a Part XV article table (324 to 329A) and a table of Other Articles related to elections (54, 55, 58, 66, 67(b), 80(4), 81-84, 101-104, 170-173, 174-176, 191-193, 243K, 243ZA, 243O) (Section 5)
- Handout stresses: The reform story is told in four phases (before 1996, 1996, after 1996, since 2010) with a year against each reform (Sections 13 and 14)
- Handout stresses: Model Code of Conduct has its own evolution (1960, 1962, 1979, 1991), area of enforcement and authority (Section 6)
- Handout stresses: Judicial support table (Raj Narain 1975, ADR 2002, PUCL 2003, Lily Thomas 2013, Subramanian Swamy 2013, 2024 bonds verdict) (Section 12)
- Handout stresses: Electoral Finances part carries data (crorepati MPs), arguments for and against state funding, and the bond scheme details (Section 15)

Mains hooks

- free and fair elections and what ensures them
- reforms still needed (Law Commission 255th Report)
- state funding versus corporate donations
- electoral bonds and the right to information
- criminalisation of politics
- independence of the ECI (2023 Act)
- No Mains PYQ is quoted in the material.

MY NOTES

Part XV sets the principles, Parliament's two RPAs fill in the detail, the ECI and the courts keep pushing reforms, and money power remains the unfinished problem.

IN SIMPLE WORDS

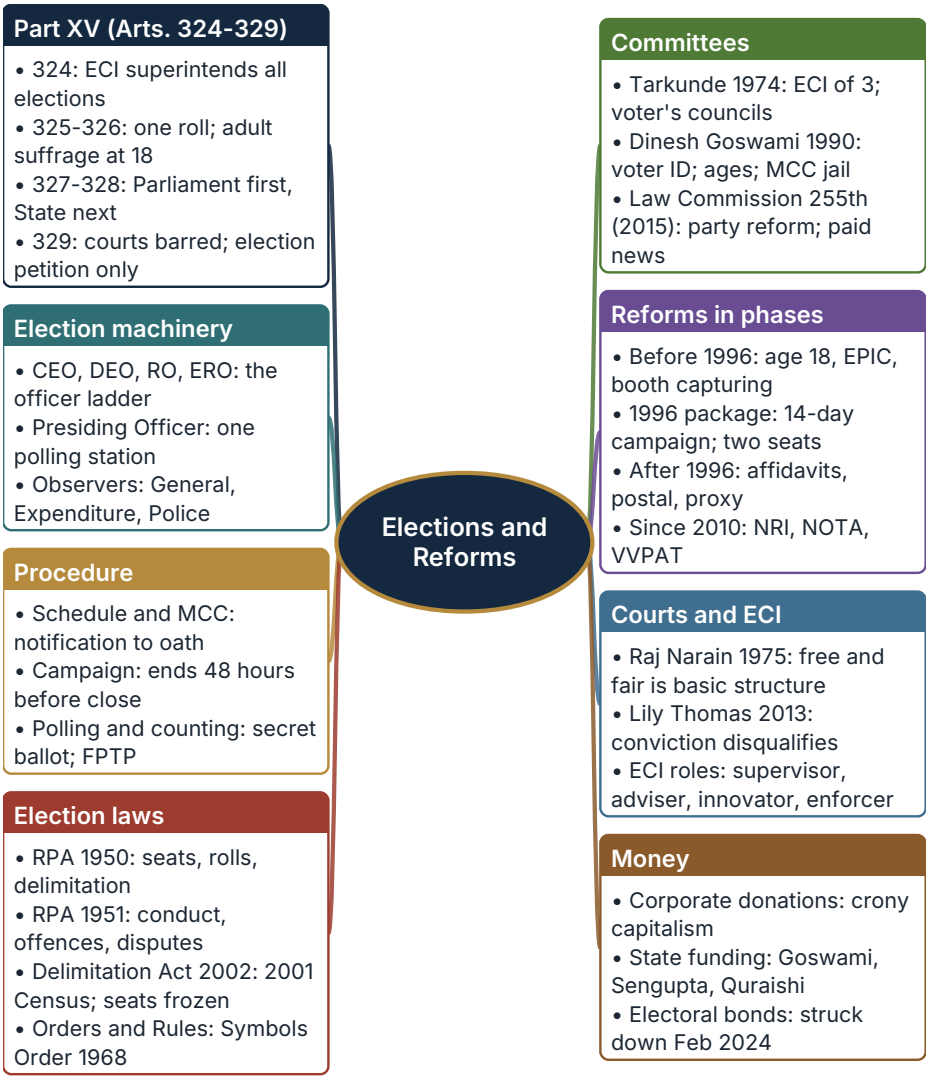
- **Part XV (Articles 324-329)** is the base: the **Election Commission (Art. 324)** runs elections, there is **one roll** (325) and **adult suffrage at 18** (326), **Parliament** makes election law first (327) and **States** fill gaps (328), and **courts are barred** from delimitation and seat allotment (329).
- The officer ladder runs **CEO (State) to DEO (district) to Returning Officer (constituency)**, plus the **ERO** for rolls and the **Presiding Officer** at one polling station. Observers are **General, Expenditure and Police**.
- The poll goes from **notification, nomination, scrutiny, withdrawal** to campaign, secret-ballot voting and counting. The campaign ends **48 hours before polling closes** and the **MCC** applies from the day the schedule is announced.
- **RPA 1950** is about **rolls, seats and delimitation**
- **RPA 1951** is about **conduct, offences and disputes**. The **Delimitation Act 2002** redrew boundaries on the 2001 Census
- Seat numbers stay frozen
- Reforms came in phases: **before 1996** (age 18, EPIC, EVM law), the **1996 package**, **after 1996** (affidavits, postal and proxy voting) and **since 2010** (NRI voting, NOTA, VVPAT). Money power is the unfinished problem and **electoral bonds were struck down in February 2024**.

Key term	In plain words
Superintendence, direction and control	The ECI's power under Art. 324 over rolls and all elections to Parliament, State Legislatures, President and Vice-President
Model Code of Conduct (MCC)	Voluntary code for parties and candidates, in force from announcement of polls to declaration of results; no legal backing
Delimitation	Redrawing constituency boundaries after a Census so each has roughly equal population
First-past-the-post	Single-member constituencies; the candidate with the largest number of valid votes wins
Election petition	The only way to question an election to Parliament or a State Legislature; tried by the High Court, appeal to the Supreme Court
EPIC	Electors' Photo Identity Card, issued by the ECI from 1993 to prevent bogus voting

MY NOTES

Key term	In plain words
NOTA and VVPAT	NOTA lets a voter reject all candidates (2013); VVPAT is a paper slip to verify the vote
Electoral bond	Interest-free bearer instrument bought from SBI for anonymous party donations; struck down in February 2024

MEMORY MAP: ELECTIONS AND ELECTORAL REFORMS



MY NOTES

MNEMONIC · ARTICLES 324 TO 329

Commission Supervises All Polls; Statutes Block

- **C** Commission: ECI superintends elections (324)
- **S** Single electoral roll (325)
- **A** Adult suffrage (326)
- **P** Parliament's power to make election law (327)
- **S** State legislature's power, where Parliament has not acted (328)
- **B** Bar on courts: election petition only (329)

The Commission supervises all polls, and election statutes (Parliament's, then the State's) block courts from interfering, in the order 324 to 329. (Memory aid, not from the handout.)

MNEMONIC · TARKUNDE COMMITTEE (1974)

V O T E

- **V** Voter's councils in every polling booth area
- **O** Only a committee appoints the ECI: PM, Leader of Opposition, CJI
- **T** Three-member ECI
- **E** Eighteen as the voting age

The Tarkunde Committee was about elections, so the word is VOTE. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · CRITERIA FOR DELIMITING CONSTITUENCIES

C A R E

- **C** Contiguity: all parts of a constituency physically connected (geographical)
- **A** Administrative convenience: district and tehsil boundaries respected
- **R** Representation: adequate consideration of SC/ST concentration
- **E** Equal population in each constituency

Delimitation needs CARE to be fair. The order is rearranged for memory. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · DISQUALIFICATIONS FOR MEMBERSHIP (RPA 1951)

CLOUD

- **C** Conviction for certain offences or corrupt practices
- **L** Lodging of election expenses failed
- **O** Office of profit under the government (unless exempted)
- **U** Unsound mind or undischarged insolvent
- **D** Defection under the Tenth Schedule

A disqualification hangs like a CLOUD over a legislator. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · CORRUPT PRACTICES UNDER RPA 1951

PRICE

- **P** Publication of false statements about candidates
- **R** Religion or caste used to seek votes
- **I** Influence: bribery and undue influence
- **C** Capturing of booths or tampering with ballots
- **E** Exceeding expenditure limits

Corrupt practices carry a PRICE: the election can be voided. The order is rearranged for memory. (Memory aid, not from the handout.)

PART XV: THE CONSTITUTIONAL BASE

- India's electoral system rests on **Part XV (Articles 324-329)**. These Articles create **one independent machinery** to run elections to Parliament, State Legislatures and the offices of President and Vice-President. Core principles: a **single electoral roll** per territorial constituency, **equal access** to the vote, **adult suffrage**, and **legislative competence** to frame election laws. The aim is free, fair and uniform elections across the country.
- The Constitution gives election details **only for the President and Vice-President**.
- Elections to Parliament and State Legislatures are governed by **law made by Parliament under Article 327**.
- **Memory aid (Articles 324 to 329): C**ommission (324), **S**ingle roll (325), **A**dult suffrage (326), **P**arliament's law (327), **S**tate legislature's law (328), **B**ar on courts (329): "**C**hief **S**ays **A**ll **P**eople **S**hall **B**allot."

ARTICLE 327: PARLIAMENT'S POWER

- Parliament may make law on **all matters relating to or connected with elections** to either House of Parliament or the House(s) of a

MY NOTES

State Legislature. This includes the **preparation of electoral rolls**, the **delimitation of constituencies** and all other matters needed for the due constitution of the House(s).

TWO LIMITS ON THIS POWER

PRINCIPLES BINDING PARLIAMENT

- **No separate electorate:**
  - The Indian Councils Act 1909 (Morley-Minto reform) had given separate electorates during British rule to divide the country
  - Article 325 says no person is ineligible for inclusion in, or to claim inclusion in, a special electoral roll on grounds of religion, race, caste or sex
- **Universal adult suffrage:** Article 326: elections to the House of the People and State Legislative Assemblies are on the basis of adult suffrage

POWER OF STATE LEGISLATURES (ARTICLE 328)

- Subject to the Constitution, and **in so far as Parliament has not made provision**, a State Legislature may make law on all matters relating to elections to its House(s), including preparation of electoral rolls and other matters needed for due constitution of the House(s). So the State can **supplement but not supersede** parliamentary law: a unified national frame, with States filling residual details.
- **Shortcut: Parliament first, State second. 327 = Parliament leads. 328 = State fills the gap.** Remember "328 is 327's junior".

ALSO IN THE HANDOUT

- These safeguards aim to preserve impartiality and autonomy of the ECI in administering elections.
- This sequence ensures uniformity and predictability in all elections across India.

ARTICLES 325, 326 AND 329 IN DETAIL

ARTICLE 325: ONE ROLL, EQUAL FRANCHISE

- **One general electoral roll** for every territorial constituency.
- No exclusion or special roll on grounds only of **religion, race, caste or sex**.
- This **abolished separate electorates and communal representation**. Every eligible citizen stands equal before the franchise
- Voting rights must not be partitioned on communal or identity lines

MY NOTES

ARTICLE 326: ADULT SUFFRAGE

- The person must:
- be a **citizen of India**;
- be **not less than 18 years** of age on the date fixed under a law of the appropriate Legislature (changed from 21 to 18 by the **61st Amendment Act, 1988**, in force **28 March 1989**);
- not be disqualified under the Constitution or any law of the appropriate Legislature on the ground of **non-residence, unsoundness of mind, crime, or corrupt or illegal practice** (the RPA lists some other disqualifications).
- Such a person is entitled to be **registered as a voter**.

> **HANDOUT ALERT**
> Registration is not the right to vote: Article 326 provides **only for registration** as a voter. It does **not** itself provide the right to vote or the right to get elected. By Supreme Court judgments the **right to vote is a Constitutional Right**. In the **Rajbala case (2015)**, on Haryana Panchayat elections, Justice Chelameswar and Justice Abhay Manohar Sapre held that the right to vote and the right to contest a Panchayat election are **Constitutional Rights**.

ARTICLE 329: COURTS KEPT OUT

- Laws on **delimitation of constituencies and allotment of seats**, and orders of the Delimitation Commission, cannot be questioned in any court. So the orders are **final** and elections are not stalled by endless litigation. (Delimitation itself runs under **Articles 82 and 170** and Delimitation Acts passed after each Census.)
- Elections to Parliament or State Legislatures can be questioned **only by an election petition** presented as the appropriate legislature prescribes (Art. 329(b)).
- Election petitions have been tried by the **High Courts since the mid-1960s**, with appeals to the **Supreme Court**. The **RPA 1951** supplies grounds, procedure and time limits.

> **HANDOUT ALERT**
> Handout alert: The handout says delimitation orders cannot be questioned in court (Art. 329) but later says that, per a **2024 Supreme Court verdict**, courts can now review an order that is "manifestly arbitrary or violates constitutional values". Write both: the **constitutional bar** and the **2024 limited review**.

- **Tribunals and L. Chandra Kumar (1997):** Later amendments allowed specialised tribunals (**Articles 323A/323B**), including for some election-related matters. In **L. Chandra Kumar v. Union of India (1997)** the Supreme Court held that Art. 323B, to the extent it

MY NOTES

ousted High Court review (**Arts. 226/227**) and Supreme Court review (**Art. 32**), was **unconstitutional**. Judicial review is a **basic feature**: tribunals may exist but cannot wholly exclude ordinary courts from constitutional questions.

ALSO IN THE HANDOUT

- This ensures equitable representation so that each constituency represents a comparable number of citizens.

ELECTION MANAGEMENT: WHO RUNS THE POLL

- The **Election Commission of India (ECI)** is a **permanent, constitutional, multi-member body** (Art. 324). It has **superintendence, direction and control** of preparation of electoral rolls and the conduct of all elections to Parliament, State Legislatures, and the offices of President and Vice-President.
- Composition: **Chief Election Commissioner and such other Election Commissioners as the President may appoint**.
- Independence: the **CEC can be removed only in the same manner and on the same grounds as a Supreme Court judge**.

THE OFFICER LADDER

FROM THE ECI TO THE BOOTH

- **ECI**:
  - Directs and supervises everything
  - Appoints field officers (in consultation with the State/UT where stated)
- **CEO**:
  - **Chief Electoral Officer** for each State and UT
  - Oversees and co-ordinates election work
  - Principal link between ECI and sub-state officials
  - Appointed in consultation with the State/UT administration
- **DEO**:
  - **District Election Officer**: nodal official in a district, a State Government officer nominated by the ECI in consultation with the State
  - Supervises district planning
- **RO**: **Returning Officer** for each parliamentary and assembly constituency: conducts the election from nomination to counting
- **ERO**: **Electoral Registration Officer**: prepares and maintains the roll for a constituency
- **Presiding Officer**:
  - Runs one **polling station** with polling officers
  - Keeps secrecy and order
  - Returns records to DEO/RO

MY NOTES

WHO DOES WHAT

Officer	Appointed by	Job
CEO	ECI (in consultation with State/UT administration)	Oversees all election work in the State/UT
DEO	ECI, in consultation with the State government, from State Government officers	Nodal official at district level
Returning Officer	ECI in consultation with the State/UT administration (government or local authority officer)	One constituency, nomination to counting
ERO	ECI after consultation with the State/UT administration (government or local authority officer)	Electoral roll of a constituency
Presiding Officer	District Election Officer (and Returning Officers in Union Territories)	One polling station: secrecy, orderly voting, returns records

- **Memory aid (Officer ladder):** **C**EO, **D**EO, **R**O, **E**RO, **P**residing Officer: "**C**ats **D**ream **R**eally **E**normous **P**ies."

OBSERVERS (NOMINATED FROM THE SERVICES, REPORT TO ECI)

- **General Observers**: monitor overall processes and implementation of ECI directions.
- **Expenditure Observers** (and Assistant Expenditure Observers): watch **candidates' election expenditure** exclusively.
- **Police Observers** (usually senior IPS officers): advise and monitor law and order, force deployment, civil-police co-ordination.
- The ECI provides portals, guidelines and reporting formats for structured monitoring.
- **Memory aid (Three observers):** **G**eneral, **E**xpenditure, **P**olice: "**G**o **E**very **P**lace."
- **RPA 1951 adds Micro-Observers:** The RPA 1951 section lists **Observers and Micro-Observers** deputed by the ECI. The Election Management section names the three main categories above.

ALSO IN THE HANDOUT

- Monitoring and oversight To strengthen impartial oversight, the Commission deploys various Observers to constituencies.
- All these officials operate under the control of the Election Commission of India, guaranteeing neutrality and efficiency.

ELECTION PROCEDURE STEP BY STEP

- Lok Sabha and State Assemblies normally face elections at **five-year intervals**. The House may be **dissolved earlier** if the Government loses the confidence of the Lower House and no alternative

MY NOTES

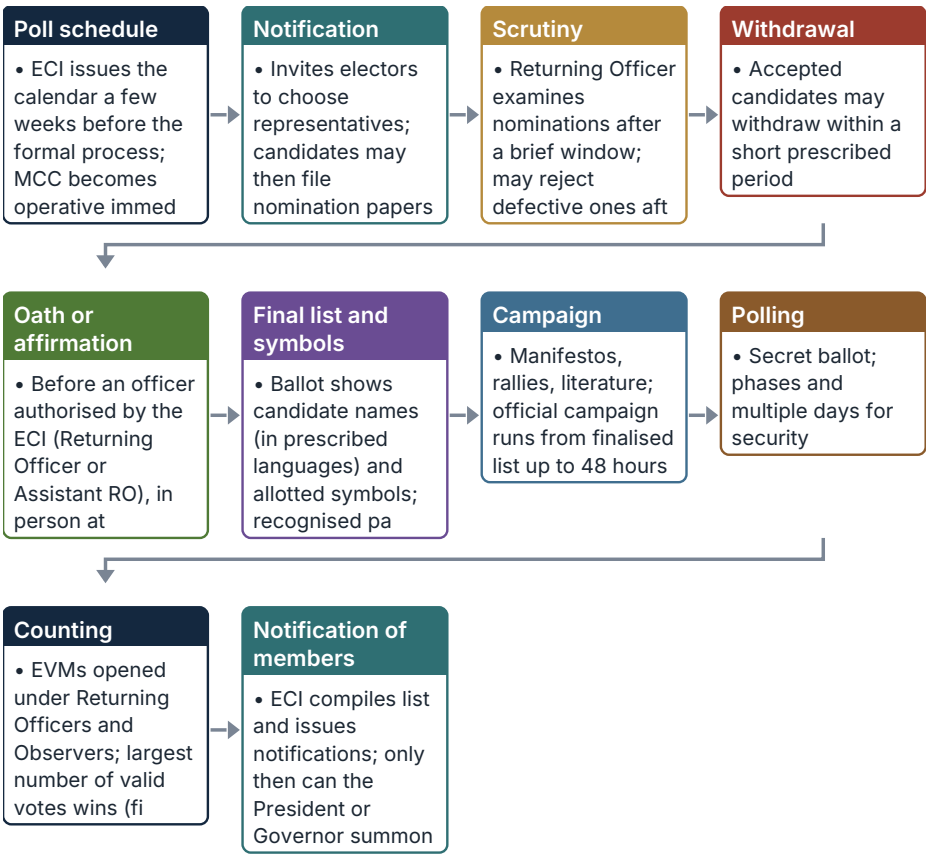
majority is possible. The ECI then runs the full machinery for voting, counting and constitution of the new House within the constitutional limits.

FROM SCHEDULE TO NEW HOUSE

- **Poll schedule**:
  - ECI issues the calendar a few weeks before the formal process
  - **MCC becomes operative immediately** and notifications are set in motion
- **Notification**:
  - Invites electors to choose representatives
  - Candidates may then file **nomination papers**
- **Scrutiny**:
  - Returning Officer examines nominations after a brief window
  - May reject defective ones after a **summary hearing**
- **Withdrawal**: Accepted candidates may withdraw within a short prescribed period
- **Oath or affirmation**: Before an officer authorised by the ECI (Returning Officer or Assistant RO), **in person** at presenting nomination papers or at the latest **before the day of scrutiny**
- **Final list and symbols**:
  - Ballot shows candidate names (in prescribed languages) and allotted symbols
  - Recognised parties get their allotted symbols
- **Campaign**:
  - Manifestos, rallies, literature
  - Official campaign runs from finalised list **up to 48 hours before polling closes**
  - MCC applies
- **Polling**:
  - Secret ballot
  - Phases and multiple days for security
- **Counting**:
  - EVMs opened under Returning Officers and Observers
  - **largest number of valid votes wins (first-past-the-post, single-member constituencies)**
- **Notification of members**:
  - ECI compiles list and issues notifications
  - Only then can the **President or Governor summon** the new House

MY NOTES

FROM SCHEDULE TO NEW HOUSE



- **Memory aid (Pre-poll steps):** **N**otification, **N**omination, **S**crutiny, **W**ithdrawal: "**N**ever **N**eglect **S**mall **W**ords."

POLLING DAY DETAILS

- **Polling stations** are in public institutions (schools, community halls) and kept accessible and manageable in size.
- On arrival: name checked on the roll, identity verified, **indelible ink on the left forefinger**, voter slip issued, then the vote is cast (EVM ballot button) under the Presiding Officer's supervision. Stations stay open for a prescribed minimum duration.
- **EVMs** replaced paper ballots progressively
- ECI-listed advantages: **no doubtful or invalid ballots, much faster counting, less paper, lower printing cost**

> **HANDOUT ALERT**
>
> Handout alert: The EVM chronology differs across the handout. The Procedure section says EVMs had **experimental use in the 1980s** and were used **nationwide for Lok Sabha by the early 2000s**. The reform table says EVMs were **legalised in 1989**, **first tested in 1998** and **fully used in Goa (1999)**. For years, use the **reform table** (1989 legalisation; 1998 test; Goa 1999) and treat the Procedure section as general background.

MY NOTES

MEDIA, OPINION POLLS AND EXIT POLLS

- Accredited media may witness polling and counting, subject to **secrecy of the ballot**.
- The ECI regulates opinion polls and exit polls:
  - Restrictions on publishing certain opinion-poll results close to and during polling
  - **exit polls only after polling ends in the final phase**

ELECTION PETITIONS

- If an elector or candidate believes malpractice affected the result, an **election petition** can be filed. It is tried by the **High Court of the State**
- Success can lead to **annulment of the election and a re-poll** in that constituency
- **Shortcut:**
  - **Campaign clock.** Official campaign ends **48 hours before polling closes**
  - **liquor sale is also barred 48 hours before poll closure** (1996 reform). Two "48"s: campaign and liquor

ALSO IN THE HANDOUT

- They are not merely a mechanism to choose representatives but a reaffirmation of the people's sovereignty enshrined in the Constitution.

KEY ARTICLES RELATED TO ELECTIONS

PART XV: ARTICLES 324 TO 329A

Article	Key provision
324	Vests in the ECI the power to supervise and control elections to Parliament, State Legislatures and the offices of President and Vice-President
325	One general electoral roll for every territorial constituency; no discrimination on grounds of religion, race, caste or sex
326	Universal adult franchise for citizens aged 18 and above, subject to disqualification such as non-residence, unsoundness of mind, or crime
327	Parliament may make laws on conduct of elections, delimitation of constituencies and allied matters
328	Similar to Art. 327 but for State Legislatures, subject to Parliament's overriding power
329	Bars courts from questioning delimitation or allotment of seats; election disputes only by election petition as provided by law

MY NOTES

Article	Key provision
329A	Repealed by the **44th Amendment, 1978**; inserted by the **39th Amendment (1975)** but repealed as inconsistent with judicial review

OTHER ARTICLES RELATED TO ELECTIONS

Article	Part	Subject
54	V (Union Executive)	Election of the President by an Electoral College of elected members of both Houses of Parliament and of State Legislative Assemblies
55	V (Union Executive)	Method of calculating votes for the Presidential election, based on population and proportional representation by single transferable vote
58	V (Union Executive)	Qualifications for election as President
66	V (Union Executive)	Election of the Vice-President by members of both Houses of Parliament
67(b)	V (Union Executive)	Vice-President's term: five years from entering office
80(4)	V (Parliament)	Rajya Sabha members elected by elected members of State Legislative Assemblies by proportional representation using the single transferable vote
81-84	V (Parliament)	Composition of Lok Sabha, allocation of seats, delimitation of constituencies, qualifications for membership
101-104	V (Parliament)	Vacation of seats, disqualification, filling of vacancies
170-173	VI (State Legislatures)	Composition, duration and qualifications for membership of State Legislative Assemblies
174-176	VI (State Legislatures)	Summoning, prorogation and dissolution of State Legislatures, which triggers fresh elections
191-193	VI (State Legislatures)	Disqualifications for membership, similar to Parliament
243K	IX (Panchayats)	Panchayat elections under direction, control and superintendence of the **State Election Commission**
243ZA	IXA (Municipalities)	Municipal elections conducted by the State Election Commission
243O	IX (Panchayats)	Bar on court interference in Panchayat election matters (similar to Art. 329)

MY NOTES

ASSOCIATED PROVISIONS AND AMENDMENTS

PROVISIONS THAT SHAPE ELECTIONS

Provision	Relevance
10th Schedule	Disqualification on grounds of defection (anti-defection law)
61st Amendment Act (1988)	Lowered voting age from 21 to 18 by amending Art. 326
84th Amendment (2001)	Froze total seats in Lok Sabha (and State Assemblies) on the 1971 Census; allocation among States fixed on 1971 population
87th Amendment (2003)	Delimitation of territorial constituencies to use the 2001 Census instead of the 1991 Census earlier envisaged
104th Amendment Act (2020)	Amended Art. 334: SC/ST seat reservation in Lok Sabha and Assemblies extended by 10 years (until 2030); ended nomination of the Anglo-Indian community in Parliament and State Assemblies

- **Memory aid (Panchayat and municipal elections): K** = 243**K** Panchayat elections by SEC, **O** = 243**O** courts barred in Panchayat polls, **Z** = 243**Z**A municipal elections by SEC: "**K**ings **O**ften **Z**ap."

ELECTION LAWS AND THE MODEL CODE OF CONDUCT

- Elections involve **over 90 crore voters**, thousands of constituencies and hundreds of parties, so laws ensure **uniformity, transparency and accountability** from rolls to results. The framework has **four pillars**:
- **Constitutional Provisions** (Articles 324-329).
- **Representation of the People Acts, 1950 and 1951**.
- **Delimitation Act, 2002**.
- **Rules, Orders and other allied laws** governing specific procedures.

MODEL CODE OF CONDUCT (MCC)

MCC AT A GLANCE

Point	Detail
Origin	1960, on the eve of the Kerala Legislative Assembly election; voluntarily accepted by all parties
1962	Before the general election, ECI circulated the code to State governments to discuss with parties; all adopted it and MCC was enforced
1979	ECI amplified the code
1991	ECI consolidated and reissued it; **strict enforcement since 1991**, as observers came into existence
Period	From announcement of polls to declaration of results

MY NOTES

Point	Detail
Area	Lok Sabha polls: whole country. Assembly polls: whole State. By-election: the **district** in which the constituency falls

- **Memory aid (MCC history):** **K**erala 1960, **C**irculated 1962, **A**mplified 1979, **C**onsolidated 1991: "**K**ind **C**itizens **A**lways **C**omply."

WHAT THE MCC REGULATES

SIX HEADS OF THE CODE

Head	Rules
Peaceful and orderly conduct	Prior permission for rallies and processions; avoid road congestion, follow traffic rules, orderly behaviour
Equal opportunity	Government guest houses cannot be monopolised by one party; allot on **first come, first served** basis
Right of citizens to peace	No wall writings; prior permission of the Returning Officer for vehicles used in electioneering; loudspeakers allowed **6 AM to 10 PM**; none near schools, hospitals etc.
Decorum in campaign	No personal attacks; no baseless allegation
Corrupt practice and electoral offence	Many provisions similar to the RPA 1951
Misuse of government machinery	No combining official visits with election work; no new schemes (relief and rehabilitation allowed); no foundation stones for new projects; no ad hoc appointment in PSU

- **Memory aid (Six heads):** **P**eace, **E**qual chance, **R**ight to quiet, **D**ecorum, **C**orrupt practice, **M**achinery misuse: "**P**oll **E**tiquette **R**equires **D**ecent **C**onduct, **M**odesty."

AUTHORITY OF THE MCC

- It is a **voluntary code**: if violated there is **no legal backing** to enforce punishment.
- The ECI **rejected making it a law**: many provisions already sit in laws like the IPC and RPA 1951, and a law would keep cases in court for long, defeating the aim of **immediate** resolution.
- Parties respect the punishments the Commission gives for MCC violation.

MY NOTES

HANDOUT ALERT

Handout alert: In the Election Procedure section the MCC is called "an ECI instrument that has evolved by consensus" and "not a statute"; the Election Laws section also calls it a **voluntary code** with no legal backing. They agree. Remember also that it becomes operative **as soon as the schedule is announced**.

ALSO IN THE HANDOUT

- Avoid congestion on roads, observe traffic regulations, and show orderly behavior.

REPRESENTATION OF THE PEOPLE ACT, 1950

- Focus: the **structure** of elections: seats, constituency boundaries and electoral rolls. It makes sure every eligible citizen can vote and constituencies are fairly represented.

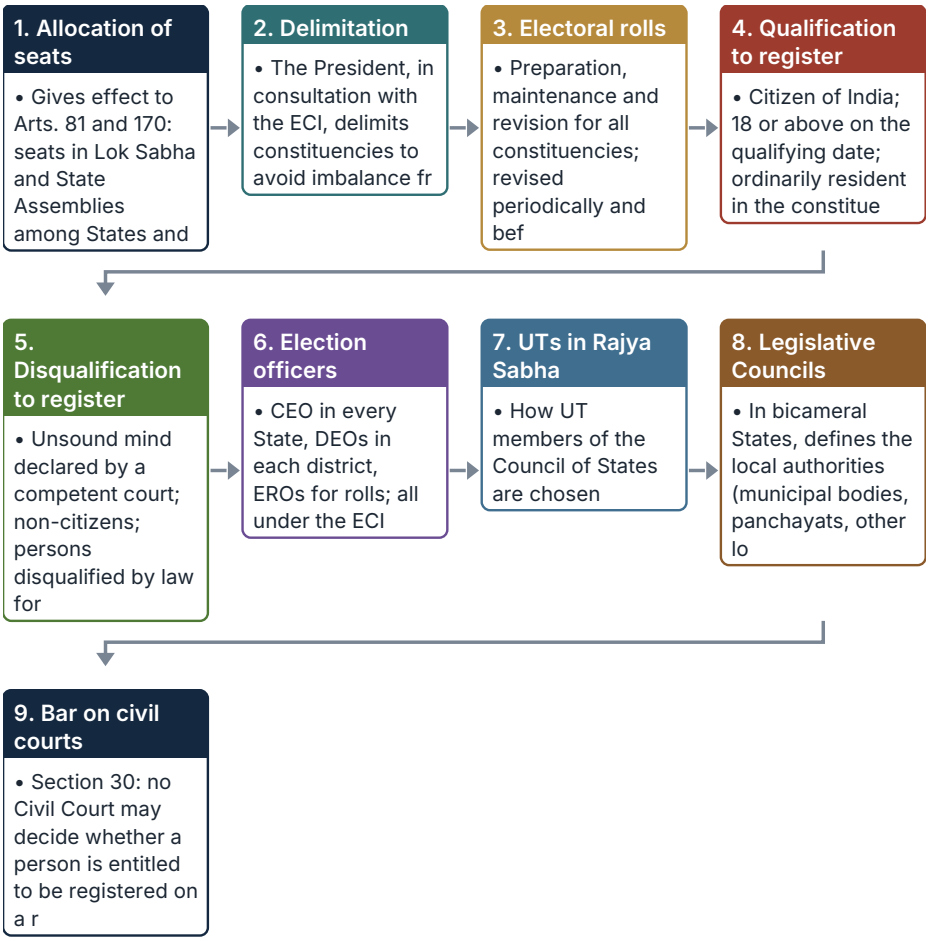
NINE KEY PROVISIONS

- **1. Allocation of seats**: Gives effect to **Arts. 81 and 170**: seats in Lok Sabha and State Assemblies among States and UTs, linked to Census population
- **2. Delimitation**: The **President**, in consultation with the ECI, delimits constituencies to avoid imbalance from uneven population growth
- **3. Electoral rolls**:
  - Preparation, maintenance and revision for all constituencies
  - Revised periodically and before every election to add those who turned 18 and remove ineligible names
- **4. Qualification to register**:
  - **Citizen of India**
  - **18 or above on the qualifying date**
  - **Ordinarily resident** in the constituency
- **5. Disqualification to register**:
  - **Unsound mind** declared by a competent court
  - **non-citizens**
  - Persons disqualified by law for offences or corrupt practices
- **6. Election officers**:
  - **CEO** in every State, **DEOs** in each district, **EROs** for rolls
  - All under the ECI
- **7. UTs in Rajya Sabha**: How UT members of the Council of States are chosen
- **8. Legislative Councils**: In bicameral States, defines the **local authorities** (municipal bodies, panchayats, other local self-governing institutions) whose members elect Council representatives

MY NOTES

- **9. Bar on civil courts**: **Section 30**: no Civil Court may decide whether a person is entitled to be registered on a roll, or question the legality of action by an ERO or roll-revision authority

NINE KEY PROVISIONS



- **Shortcut: RPA 1950 in one line. 1950 = Structure and rolls** (seats, delimit, register). **1951 = Conduct and disputes.** "Fifty builds, Fifty-one runs."
- **Memory aid (Registration test): C**itizen, **A**ge 18+, **R**esident (ordinarily): "**C**ars **A**lways **R**un."

REPRESENTATION OF THE PEOPLE ACT, 1951

- In force from **17 July 1951**, it is the cornerstone of the electoral process. It covers the **conduct** of elections from nominations to results, disputes and disqualification.

PURPOSE

- Conduct of elections to Parliament and State Legislatures.
- Qualifications and disqualifications of candidates.
- Registration of political parties and election expenses.
- Corrupt practices and election offences.
- Resolving election disputes through petitions.

MY NOTES

QUALIFICATIONS AND DISQUALIFICATIONS OF MEMBERS

WHO MAY SIT

- **Qualifications:**
  - Citizen of India
  - Age **25** (Lok Sabha and Assembly) or **30** (Rajya Sabha and Council)
  - An **elector** in any parliamentary constituency (for Parliament) or assembly constituency (for a State Legislature)
- **Disqualifications:**
  - Office of profit under the government (unless exempted)
  - Unsound mind or undischarged insolvent
  - Conviction for certain offences or corrupt practices
  - Failure to lodge election expenses
  - Defection under the Tenth Schedule (added later)

OTHER FEATURES

- **Notification:** once the President (Parliament) or Governor (State) issues the notification, the ECI starts the process: notification and nominations, scrutiny by Returning Officers, withdrawal, polling and counting under ECI supervision, publication of results in the **official gazette**.
- **Machinery:** Returning Officers, Presiding and Polling Officers, Observers and Micro-Observers, all under ECI control.
- **Registration of political parties** (added in **1989**):
  - Party submits its constitution, office-bearers' details and membership criteria
  - By performance it may be recognised as a **National Party** or a **State Party**
- **Conduct:**
  - Nomination of candidates and agents
  - Ballot, EVM and **postal voting**
  - Polling and counting
  - Declaration of winners
  - **filing of expenses**. Candidates must **declare assets, liabilities and educational qualifications**
- **Expenditure and free supply:**
  - Legal **limits** on candidates' expenditure
  - Detailed statements to the ECI
  - **free copies of electoral rolls** and certain materials to candidates of recognised parties
- **Disputes:**
  - Election petition in the **High Court** within a prescribed period
  - Presentation and trial
  - Withdrawal or abatement

MY NOTES

  - **appeals to the Supreme Court**
  - Costs and security for costs to stop frivolous suits
- **Bye-elections:** vacancy from death, resignation or disqualification must be filled within **six months**.
- **Powers of ECI:**
  - Inquiries on disqualification of members
  - Supervising all election procedures
  - Directions and guidelines for uniform conduct
- **Protective provisions:**
  - Civil courts barred where the Act gives remedies
  - Administrative decisions channelled through the ECI machinery

CORRUPT PRACTICES

- **Memory aid (Five corrupt practices): B**ribery and undue influence, **R**eligion or caste to seek votes, **F**alse statements about candidates, **B**ooth capturing or tampering with ballots, **E**xceeding expenditure limits: "**B**ig **R**ats **F**ear **B**lack **E**yes." Conviction can mean **disqualification, imprisonment or both**.

1950 VERSUS 1951 ACT

Point	RPA 1950	RPA 1951
Focus	Structure: seats, boundaries, rolls	Conduct: nominations to results, disputes
Seats	Gives effect to Arts. 81 and 170	Not its subject
Officers	CEO, DEOs, EROs	Returning, Presiding, Polling Officers, Observers, Micro-Observers
Courts	Sec. 30 bars civil courts on roll entitlement	Election petition in High Court; appeals to Supreme Court
Voter or candidate	Qualification to register as voter	Qualifications and disqualifications of candidates and members

ALSO IN THE HANDOUT

- It covers the following stages: - Notification of elections and calling for nominations.
- Shortened the campaign period from 20 to 14 days, cutting costs and preventing prolonged political disturbances.

DELIMITATION ACT, 2002

- Uneven growth (migration, urbanisation, demographic variation) left some constituencies far larger than others. To deliver "**one vote, one value**", the Constitution provides **readjustment of seats**

MY NOTES

and boundaries after every Census. **Delimitation** is redrawing boundaries so each constituency has a roughly equal population.

CONSTITUTIONAL BASIS

- **Article 82**: Parliament enacts a law to readjust Lok Sabha constituencies after each Census.
- **Article 170**: same for State Legislative Assemblies.
- **Articles 330 and 332**: reserved representation for SCs and STs, with reserved seats tied to their population share in the latest Census, linking reservation to delimitation.

PURPOSES OF THE 2002 ACT (BASED ON THE 2001 CENSUS)

- Redefine constituency boundaries for Lok Sabha and Assemblies.
- Re-fix reserved seats for SCs and STs in proportion to population.
- Correct inequality from uneven population growth and migration.
- Balance rural and urban representation.

DELIMITATION COMMISSION

- **Composition:**
  - **Chairperson**: a person who is or has been a **Supreme Court Judge**, appointed by the Central Government
  - The **Chief Election Commissioner or an Election Commissioner** nominated by the CEC, ex officio
  - The **State Election Commissioner** of the State concerned, ex officio
- **Functions:**
  - Fix boundaries and number of constituencies in each State and UT
  - Identify SC and ST reserved constituencies
  - Publish draft proposals for objections and suggestions
  - Finalise orders after feedback
- **Memory aid (Commission members): J**udge (chair), **C**EC or EC, **S**tate EC: "**J**olly **C**hiefs **S**ing."
- **Memory aid (Guiding principles): E**qual population, **A**dministrative convenience (district and tehsil boundaries), **G**eographical contiguity, **C**ommunity representation (SC/ST concentration): "**E**very **A**rea **G**ets **C**overed."

FREEZE ON SEATS

- The **42nd Amendment (1976)**, extended by the **84th Amendment (2001)**, froze total Lok Sabha and Assembly seats **until the first Census after 2026**, so States that control population growth are not penalised.

MY NOTES

- Hence the 2002 delimitation changed **boundaries, not the number of seats**.

> **HANDOUT ALERT**
> Handout alert: The handout says the **84th Amendment froze seats on the 1971 Census** (Sec. 5) and also that the **42nd (1976) froze and the 84th (2001) extended** the freeze to the first Census after 2026 (here). Use: **42nd started the freeze, 84th extended it, on 1971 population**. The **87th Amendment (2003)** used the **2001 Census** for drawing boundaries.

- **Finality of orders:** Historically delimitation orders were final and not challengeable in courts. A **2024 Supreme Court verdict** allows review where an order is "manifestly arbitrary or violates constitutional values".

OTHER ACTS, ORDERS AND RULES

OTHER ACTS RELATING TO ELECTIONS

Act	What it does
Parliament (Prevention of Disqualification) Act, 1959	Lists offices of profit that do **not** disqualify holders from being chosen as, or continuing as, MPs; prevents automatic disqualification of ministers, parliamentary secretaries or chairpersons of government boards; separates personal-gain offices from public-interest offices; Parliament can modify the list
Scheduled Castes and Scheduled Tribes Orders (Amendment) Act, 1976	Revises lists of SCs and STs for States and UTs; includes, excludes or modifies castes and tribes under **Arts. 341 and 342**; helps readjust reserved constituencies; basis for reservation in Lok Sabha and Assemblies under **Arts. 330 and 332**
Government of Union Territories Act, 1963	Legal framework for UTs with legislatures (such as Puducherry); Legislative Assemblies, composition, powers; elections under ECI supervision
Government of National Capital Territory of Delhi Act, 1991	Implements **Art. 239AA**: elected Assembly and Council of Ministers; powers of elected government and role of the Lieutenant Governor; ECI supervises elections
Presidential and Vice-Presidential Elections Act, 1952	Method of election (**proportional representation by single transferable vote**); nomination, scrutiny, polling, counting, declaration; disputes before the **Supreme Court under Art. 71**

MY NOTES

ORDERS ISSUED BY THE ECI (UNDER ARTICLE 324, BINDING AND ENFORCEABLE)

ELECTION ORDERS

Order	Key features
Election Symbols (Reservation and Allotment) Order, 1968	Governs recognition of parties and allocation of symbols. Every candidate uses an ECI-approved symbol; recognised parties get **reserved symbols** (e.g., Lotus for BJP, Hand for INC); independents and unrecognised candidates get **free symbols** from an approved list. ECI may **suspend or withdraw recognition** if a party violates the MCC or legal provisions; prevents misuse or duplication of symbols, especially by splinter groups
Registration of Political Parties (Furnishing of Additional Particulars) Order, 1992	Parties seeking registration under RPA 1951 must give a copy of their constitution; names and addresses of office-bearers; membership rules, funding sources and internal elections. ECI may verify and scrutinise before registering

RULES RELATING TO ELECTIONS

- **Registration of Electors Rules, 1960**: preparation and publication of electoral rolls.
- **Conduct of Elections Rules, 1961**: fair and free elections to Parliament and State Legislatures.
- **Prohibition of Simultaneous Membership Rules, 1950.**
- **Members of Lok Sabha (Disqualification on Ground of Defection) Rules, 1985** and the matching **Rajya Sabha Rules, 1985**.
- **Presidential and Vice-Presidential Elections Rules, 1974.**
- **Members of Lok Sabha / Rajya Sabha (Declaration of Assets and Liabilities) Rules, 2004.**
- **Shortcut:**
  - **Year of each law. 1950** RPA rolls
  - **1951** RPA conduct
  - **1952** President-VP Act
  - **1959** offices of profit
  - **1963** UT Govt Act
  - **1968** Symbols Order
  - **1976** SC/ST Orders
  - **1991** Delhi Act
  - **1992** party Order
  - **2002** Delimitation
- **Memory aid (Election Orders): S**ymbols Order 1968, **R**egistration of Parties Order 1992: "**S**oon **R**eceive."

MY NOTES

ALSO IN THE HANDOUT

- Balances representative governance with Union oversight in the national capital.

HISTORY OF ELECTORAL REFORMS AND THE COMMITTEES

- Electoral reforms have been on the national agenda since the **4th general elections (1967)**. Regional parties formed after 1967, India became a true multi-party democracy, competition rose and so did unethical practices. Challenges in each decade: **money and muscle power, criminalisation of politics, voter apathy, digital information manipulation**. Reform is a **continuing necessity**, not a one-time exercise. Electoral reforms are continuous efforts to improve the legal, administrative and procedural side of elections so they stay **free, fair, transparent, inclusive and credible**. They include:
- Updating electoral laws and institutions.
- New technology such as **EVMs and VVPATs**.
- Financial and ethical transparency.
- Wider participation through **NOTA, NRI voting and postal ballots**.

TARKUNDE COMMITTEE (1974, SET UP BY JAYPRAKASH NARAYAN)

- Fix the strength of the ECI at **3**.
- Reduce voting age to **18**.
- **Voter's councils** in every polling booth area to ensure fairness.
- **Committee-based appointment** of the ECI: **Prime Minister, Leader of Opposition in Lok Sabha, and Chief Justice of India**. The EC's independence is of prime importance.

CHANGES MADE IN 1988

- RPA amended so elections can be **countermanded** for offences such as large-scale booth capturing.
- Voting age reduced to 18 by the **61st Amendment Act, 1988** (Art. 326).

DINESH GOSWAMI COMMITTEE (1990)

- Recommended a **Voter ID card**.
- Reduce contesting ages:
  - Rajya Sabha and Legislative Councils **30 to 25**
  - Lok Sabha and Legislative Assemblies **25 to 21**
- **Ban transfer** of officials connected with election work.
- **Increase security deposits**.
- Standing committee of Parliament on electoral reforms (yet to be implemented).
- Violation of MCC should attract **2 years of imprisonment**.

MY NOTES

- **Memory aid (Dinesh Goswami):** **V**oter ID, **A**ge to contest lower, **B**an transfers, **D**eposits up, **S**tanding committee, **M**CC jail: "**V**ery **A**ble **B**oys **D**eliver **S**ound **M**anifestos."

VOHRA COMMITTEE (1993)

- The handout names the **Vohra Committee on Crime-politics nexus (1993)** but lists **no recommendations**. Remember only the name, the year and the subject: the **nexus between crime and politics**.

TARKUNDE 1974 VERSUS GOSWAMI 1990

- **Tarkunde (1974):**
  - ECI strength fixed at 3
  - Voting age 18
  - Voter's councils
  - Selection committee of PM, Leader of Opposition and CJI
- **Goswami (1990):**
  - Voter ID card
  - Contesting age 25 for RS and Councils, 21 for LS and Assemblies
  - Ban on transfer of election staff
  - Higher deposits
  - 2 years jail for MCC violation

LAW COMMISSION, 255TH REPORT (2015)

RECOMMENDATIONS

Subject	Recommendation
Regulation of political parties	No electoral reform works without party reform; parties cannot be democratic outside and dictatorships inside; over-centralisation of decisions causes corruption; hardly any law regulates internal functioning
Party structure	**3 tiers**: Executive Committee (apex), State Committees, Local (district) Committees; members elected by party members from among themselves; **elections every 5 years supervised by ECI observers**
Party affairs	Secret ballot; candidate selection by the Executive Committee with due regard to local units' recommendations; a **separate chapter in RPA**; parties not contesting for **10 years or more** de-registered; ECI empowered to fine and de-register for non-compliance
Proportional representation	The **Hybrid System** of election
Anti-defection	Power to disqualify should go from the Speaker to the **President or Governor**, who decide on the **binding advice of the Election Commission**

MY NOTES

Subject	Recommendation
Independence of ECI	Same protection to all 3 members (CEC and two ECs now removed differently); committee-based selection; **independent secretariat** (current one has government officers on deputation)
Paid news	Must be declared an **electoral offence**
Opinion polls	**Section 126** to include print media; regulate opinion and exit polls
Compulsory voting	Should **not** be implemented
Right to Reject and Right to Recall	Both **rejected**
Counting	**Totalizer** of votes; no ward-wise counting
Government advertisements	Restriction to start **6 months before** the election, not after MCC
Number of seats	A candidate should contest **one seat only**
Independents	Should be **banned**
Rolls	**Common electoral rolls** for all elections (local body polls now use different rolls; same roll serves Lok Sabha and Assembly)

- **Who recommended charged expenditure:** The handout says it was the **Election Commission (not the Law Commission)** that recommended changing ECI expenditure from **voted** to **charged** expenditure.

ELECTION PETITION RECOMMENDATIONS

HOW ELECTION PETITIONS EVOLVED

- **Early scheme**: Article 324 specified ECI could appoint **Election Tribunals**: **3-member** (sitting or retired district judges, or advocates with 10 years experience)
- **1956**:
  - Changed to a **single-member** tribunal (sitting or retired district judge)
  - Appeals to High Courts then Supreme Court caused delay
- **1964**:
  - **19th Amendment** amended Art. 324 and the RPA 1951: **High Courts get original jurisdiction**, appeals to Supreme Court
  - Still dilatory

MY NOTES

- **Law Commission asks**:
  - Trial within **6 months** (day-to-day trial, few adjournments)
  - Judgment within **90 days**
  - Appeals to Supreme Court **only on questions of law**
- **Memory aid (Commission's party-reform bundle): P**arties need 3 tiers, **S**ecret ballot, **C**andidate selection by committee, **S**eparate RPA chapter, **R**egistration cancelled after 10 years, **F**ines by ECI: "**P**arties **S**hould **C**hange **S**tructure, **R**eally, **F**ully."

ALSO IN THE HANDOUT

- Elections are the heartbeat of democracy, and their fairness determines the strength of people's faith in governance. India's electoral journey—from the first general election of 1951–52 to today's technology-driven polls—has been marked by constant change and adaptation.
- Voting age was reduced to 18 years by the 61 st Constitutional Amendment Act, 1988 (amended article 326).
- The law commission rejected the Right to Reject.

LAWS, ECI ROLE AND THE COURTS AS REFORMERS

MAJOR LAWS GIVING SHAPE TO REFORMS

LAWS AND WHAT REFORM THEY CARRY

Law	Content and reform link
RPA 1950	Seats, delimitation, voter registration; foundation for Aadhaar-Voter ID linkage, EPIC and online enrolment
RPA 1951	Conduct, candidate eligibility, corrupt practices, disputes; amended for **affidavit disclosure (2003)**, **disqualification on conviction (2013)**, **NOTA and VVPAT (2013-14)**
Delimitation Acts (1952, 1962, 1972, 2002)	Readjust constituencies by Census; correct imbalance; re-fix SC/ST seats
Election Laws (Amendment) Act, 2021	Aadhaar linkage, four qualifying dates, gender-neutral "spouse"

ROLE OF THE ECI

- The ECI is the central guardian of electoral integrity, empowered by **Art. 324** to implement, recommend and innovate reforms. It can issue **binding orders and model codes even without parliamentary legislation**.

MY NOTES

FOUR ROLES

Function	Reform role
Supervisory authority	Conducts elections, revises rolls, enforces the MCC
Advisory role	Recommends legislative and administrative reforms (for example 1998 and 2004 reports)
Innovator	Introduced EPICs, EVMs, VVPAT, NOTA and Braille EVMs
Enforcer	Acts against violations like excessive expenditure or hate speech

- **Memory aid (ECI's four hats):** **S**upervisor, **A**dviser, **I**nnovator, **E**nforcer: "**S**ome **A**ctive **I**nspectors **E**nforce."

JUDICIAL SUPPORT

CASES

Case	Contribution
Indira Nehru Gandhi v. Raj Narain (1975)	"Free and fair elections" declared part of the **basic structure**
ADR v. Union of India (2002)	Mandated disclosure of **criminal, financial and educational** details of candidates
PUCL v. Union of India (2003)	Introduced **NOTA** and strengthened the voter's right to information
Lily Thomas v. Union of India (2013)	Immediate disqualification of convicted legislators
Subramanian Swamy v. ECI (2013)	Upheld **VVPAT** as essential for transparency
Supreme Court (2024)	Struck down the **Electoral Bonds Scheme** for violating transparency under **Art. 19(1)(a)**

HANDOUT ALERT

Handout alert: The case table dates the **NOTA** judgment to **PUCL (2003)**, but the reform tables date NOTA to **2013** (introduced via a Supreme Court directive). Use: **PUCL case and NOTA reform listed as 2013 in the reform table**; if a question gives 2003 beside PUCL, that is the handout's case table. Also do not mix **ADR (2002)** (disclosure of candidate details) with **ADR (2020)** (justify criminal candidates within 48 hours).

- **Memory aid (Six cases):** **I**ndira Nehru Gandhi 1975, **A**DR 2002, **P**UCL 2003, **L**ily Thomas 2013, **S**ubramanian Swamy 2013, **E**lectoral bonds 2024: "**I** **A**lways **P**ick **L**oyal **S**eats, **E**veryone."

MY NOTES

THE REFORM STORY, PHASE 1: BEFORE 1996

REFORMS BEFORE 1996

Reform	Explanation
Lowering of voting age (61st Amendment, 1988)	21 to 18 for Lok Sabha and Assembly elections; youth join directly; electorate expands
Deputation to the ECI (1989)	Officers preparing rolls deemed on deputation to the ECI: neutral, free of local political pressure
Higher number of proposers for Rajya Sabha and Legislative Council (1989)	**10% of electors or 10 electors, whichever is less**, to propose a candidate; deters frivolous contestants
Legalisation of EVMs (1989)	EVMs enabled; first tested in **1998**, fully used in **Goa (1999)**; faster counting, fewer invalid votes, no ballot-box manipulation
Provision against booth capturing (1989)	ECI can adjourn or cancel polling on booth seizure, violence or intimidation
EPIC scheme (1993)	Electors' Photo Identity Card by the ECI to prevent bogus voting and impersonation; cornerstone of later digital authentication

- **Shortcut:**
  - **Phase-1 years. 1988** age
  - **1989** four items (deputation, proposers, EVM, booth capturing)
  - **1993** EPIC. "88 age, 89 four, 93 card."

THE REFORM STORY, PHASES 2 TO 4

THE 1996 PACKAGE

REFORMS OF 1996

Reform	Explanation
Listing of candidates by category	Names in **three groups**: recognised parties, registered-unrecognised parties, independents; alphabetical within each
Disqualification for insulting national symbols	Conviction under the **Prevention of Insults to National Honour Act, 1971** bars contesting for **six years**
Ban on sale of liquor before poll	No sale or distribution within **48 hours** before poll closure
Nomination and proposer rule	**10 registered electors** propose candidates not sponsored by recognised parties; **one proposer** for those backed by recognised parties
Death of candidate rule	Election not countermanded if a candidate dies before polling; recognised parties may nominate a substitute within **seven days**

MY NOTES

Reform	Explanation
Time limit for by-elections	Within **six months** of vacancy unless remaining term is under **one year** or conditions make it impracticable
Paid holiday for voters	Every registered voter, including daily-wage workers, gets a paid holiday on polling day
Restriction to two constituencies	Candidates cannot contest more than **two** constituencies at once
Prohibition of arms near polling booths	Carrying arms near polling stations is a **cognisable offence**
Campaign period reduced	From **20 days to 14 days**

- **Memory aid (1996 package):**
  - **C**ategory listing, **D**isqualification (national symbols), **L**iquor ban, **N**omination proposers, **D**eath of candidate, **T**ime limit by-elections, **P**aid holiday, **R**estriction two seats, **P**rohibition of arms, **C**ampaign 14 days: "**C**andidates **D**on't **L**ike **N**eedless **D**elays
  - **T**ime **P**ays, **R**ules **P**revent **C**haos."

AFTER 1996

REFORMS AFTER 1996

Reform	Explanation
Stricter Presidential and Vice-Presidential nominations (1997)	Proposers raised to **50** (President) and **20** (Vice-President); security deposit **Rs 15,000**
Requisitioning staff from wider institutions (1998)	ECI can deploy staff from PSUs, LIC, universities and nationalised banks
Postal ballot (1999)	For notified categories such as service voters
Proxy voting for armed forces (2003)	Service voters may appoint proxies
Candidate affidavit disclosure (2003)	Every candidate declares criminal cases, assets, liabilities and education; upheld by the Supreme Court as part of the voter's right to information
Rajya Sabha election reforms (2003)	**Domicile requirement removed**; **open ballot** introduced to prevent cross-voting and money power
Free supply of electoral rolls and media time (2003)	Recognised parties get rolls and equal electronic media access
Braille signage on EVMs (2004-09)	For visually impaired voters; nationwide by 2009
Ban on exit polls (2009)	No conducting or publishing exit polls during the voting period

MY NOTES

Reform	Explanation
Higher security deposits (2009)	Cuts non-serious contestants seeking publicity

SINCE 2010

REFORMS SINCE 2010

Reform	Explanation
Voting rights to NRIs (2010)	Citizens living abroad can register, linked to **passport address**
Online voter enrolment (2013)	Digital application for inclusion or correction of roll entries
NOTA (2013)	Via Supreme Court directive; voters can reject all candidates while keeping ballot secrecy
VVPAT (2013 onwards)	Paper slip to verify choice; expanded nationwide by **2019**
Immediate disqualification on conviction (2013)	**Lily Thomas** struck down **Section 8(4) of RPA 1951**
Photos of candidates on EVMs (2015)	Avoids confusion from similar names
Nationwide VVPAT deployment (2019 onwards)	Every EVM paired with VVPAT
CEC and Other ECs Act (2023)	Appointment by a panel (PM, Leader of Opposition and a Minister); tenure up to 6 years or age 65; criticised for limiting ECI independence
Supreme Court directions on criminalisation (2020-21)	Parties must justify fielding candidates with criminal charges and publish reasons within **48 hours** of selection

PHASE MARKERS

- **Before 1996:**
  - Voting age 18 (1988)
  - Deputation (1989)
  - Proposers (1989)
  - EVM legal (1989)
  - Booth capture (1989)
  - EPIC (1993)
- **1996 and after:**
  - 1996 package
  - 1997 President-VP nominations
  - 1999 postal ballot
  - 2003 proxy, affidavit, RS reforms
  - 2009 exit-poll ban

MY NOTES

- 2010 NRI voting
- 2013 NOTA and VVPAT
- 2023 CEC Act

HANDOUT ALERT

Handout alert: Two overlaps to keep straight. (1) **Two seats** (1996 rule) versus the **Law Commission's** call for **one seat only**. (2) **By-election**: RPA 1951 says vacancy filled within **six months**; the 1996 rule adds the exceptions (term left under one year or impracticable).

- **Memory aid (Post-1996 chain): P**res-VP nominations 1997, **R**equisition staff 1998, **P**ostal 1999, **P**roxy 2003, **A**ffidavit 2003, **R**S reforms 2003, **F**ree rolls 2003, **B**raille 2004-09, **E**xit-poll ban 2009, **H**igher deposits 2009: "**P**olls **R**eform **P**eople's **P**ower, **A**ll **R**ights **F**or **B**etter **E**lections **H**ere."

ALSO IN THE HANDOUT

- Allowed service voters to appoint proxies to vote on their behalf, increasing participation among soldiers stationed away from home.

CONTEMPORARY REFORMS AND THE 2021 ACT

CONTEMPORARY REFORMS

Area	Reform
Electoral transparency	**Electoral Bonds verdict (2024)**: Supreme Court struck down the scheme as unconstitutional for violating the right to information under **Art. 19(1)(a)**. **Political funding disclosure**: ECI directed parties to publish audited accounts and donor details **quarterly**
Rolls and voter identity	**Election Laws (Amendment) Act, 2021** (below); digital roll management: **E-roll** integration and national voter portal upgrades (2023-24)
Criminalisation and disclosure	**ADR v. Union of India (2020)**: parties must publicly justify choosing candidates with criminal cases, on websites and in newspapers **within 48 hours** of selection; enhanced scrutiny of affidavits by ECI and media watchdogs
Technology	**Remote Voting Machine (RVM) prototype (2023)** for domestic migrant workers; pilot postponed pending political consensus. **Electronic Postal Ballot System (ETPBS)** for service voters and senior citizens above **80 years** (2022 guidelines). **VVPAT verification expansion**: since 2019, random verification increased to **5 EVMs per Assembly segment**
Finance	**Capping anonymous donations**: post-2024, Finance Act rules cap cash donations at **Rs 2,000 per contributor**. **Election Expenditure Portal** (ECI proposal, pilot 2023) to monitor spending in real time

MY NOTES

Area	Reform
Institutions and law	**CEC and Other ECs (Appointment, Conditions of Service and Term of Office) Act, 2023**: three-member **Selection Committee** (PM, Leader of Opposition, a Cabinet Minister nominated by the PM); **six-year tenure or up to age 65**; criticised for reducing perceived independence; under Supreme Court review (2024-25). **Common Electoral Roll Bill (2023 draft)**: merge rolls for Lok Sabha, Assembly and local bodies

ELECTION LAWS (AMENDMENT) ACT, 2021

- It amends **both RPA 1950 and RPA 1951**. Lok Sabha passed it on **20 December 2021**, Rajya Sabha on **21 December 2021**, Presidential assent **29 December 2021**.

FOUR FEATURES

- **Aadhaar linkage (optional)**:
  - EROs may ask an existing or prospective elector for the Aadhaar number to verify or authenticate roll entries
  - Voluntary to eliminate duplication
- **Four qualifying dates**: **1 January, 1 April, 1 July, 1 October** instead of only 1 January, so new 18-year-olds enrol on time
- **Gender-neutral language**: "**Wife** of service voter" becomes "**spouse** of service voter"
- **Premises requisition**: Wider purposes for requisitioning premises: polling, storage, counting, staff accommodation
- **Memory aid (2021 Act):** **A**adhaar, **Q**ualifying dates, **G**ender-neutral, **P**remises: "**A**ll **Q**uick **G**ood **P**olls." Dates: {{J A J O}} **J**an, **A**pr, **J**ul, **O**ct: "**J**ust **A**sk **J**ust **O**nce."

> **HANDOUT ALERT**
> Handout alert: The handout lists the **CEC Act 2023** twice: once as an "Act (2023)" in the reform table (panel of PM, LoP and a Minister) and once in Contemporary Reforms (Selection Committee of PM, LoP and a Cabinet Minister nominated by the PM). Same content. Use: **three-member panel, 6 years or age 65, criticised as weakening ECI independence**.

ELECTORAL FINANCES AND STATE FUNDING

WHY FINANCE REFORM IS NEEDED

- Money gives **electoral advantage**: wider and repeated outreach.
- **Crorepati candidates**:
  - 2009 Lok Sabha **16%**
  - 2014 **27%**. Crorepati MPs: **442** in the 16th Lok Sabha
  - **475** in the 17th

MY NOTES

- **Bribing voters**:
  - Black money
  - Creates incentives to be corrupt once elected
- **Crony capitalism**: big corporations donate expecting favours (**quid pro quo**).
- **Violates equal participation**: big donors benefit more from government policy than common people.
- Large donations are **institutionalised corruption**: parties shape economic positions to attract funding.

CORPORATE DONATIONS

- Justice Louis Brandeis: "We can have democracy or we can have great wealth concentrated in a few hands."
- Economic inequality leads to **political inequality**. As elections get costlier, parties depend on the **super-rich (0.1% of the population)**.
- Link between donations and policy: **Germany** is the only EU country allowing outdoor cigarette advertisements as major parties get donations from tobacco companies. In India, the **corporate tax rate has come down significantly**.
- **USA**: super-rich share of political donations rose from **15% (1980) to 70% (2016)**, while the bottom 50% saw income and corporate taxes fall significantly.
- **France** banned corporate donations in **1995** and capped individual contributions at **6,000 Euro**. **Chile and Brazil** banned corporate donations recently.

STATE FUNDING OF ELECTIONS

- The State provides funds to parties on the eve of elections instead of corporates.

COMMITTEES AND PROPOSALS

Source	Proposal
Dinesh Goswami Committee (1990)	State funding **in kind** to recognised parties; include **fuel** (large campaign need)
Indrajit Sengupta Committee (1998)	State funding **in kind** to recognised parties
Law Commission (170th and 255th Reports)	**Partial** State funding in kind
S.Y. Quraishi (former CEC)	**Direct cash funding** by voting percentage (every vote has a value); **National Election Fund** replenished by an **election cess on companies**; **complete legal ban** on corporate donations

MY NOTES

LAW COMMISSION'S OBJECTIONS TO THE ABOVE

- **Practical doubts:**
  - Under present economic conditions and distrust of parties, voters will not support it
  - No clear picture of election cost, and it works only if it precisely replaces actual party demand or parties will keep raising funds elsewhere
- **Prior conditions:**
  - It must follow de-criminalisation, **inner-party democracy** and **transparency**
  - Without inner-party democracy cadre cannot spend funds, and with criminalisation funds may be used in criminal activities
  - It may reduce incentive to keep a social base and mobilise funds, and discourage new parties

OTHER COUNTRIES

Country	State funding
USA	None
UK	Modest funding up to 2 million pounds per year
Germany, Sweden	Massive State funding

- **Handout spelling:** The handout names the 1998 committee as "Indrajit Sengupta Committee". Use that spelling in this notebook.

ELECTORAL BONDS

LIFE OF AN ELECTORAL BOND

- **Issue**:
  - **SBI** issues interest-free **bearer instruments** for anonymous donations to parties
  - Anyone can buy them
- **Denominations**: Rs **1,000, 10,000, 1 lakh, 10 lakh, 1 crore**
- **15 days**: The party must **encash it in its account within 15 days**
- **Unencashed**: SBI deposits the amount in the **PMRF (Prime Minister's Relief Fund)**
- **Verdict**: Struck down in **February 2024** by the Supreme Court for violating voters' **right to information**, ending a **seven-year** era of largely opaque political funding

ISSUES WITH THE SCHEME

- **Disclosure gaps:**
  - Parties need not disclose money raised through bonds so one cannot know which corporate house gains

MY NOTES

  - Donor and amount unknown even to parties, though SBI works under the government so information may be accessed wrongfully, giving the **ruling party** the upper hand
- **Wider harms:**
  - Company shareholders do not know donation details
  - Ruling party at distinct advantage
  - Black money funnelled through shell companies
  - Taxpayers completely in the dark
- **Shortcut: Bond denominations.** Each step is **ten times** the last: 1 thousand, 10 thousand, 1 lakh, 10 lakh, 1 crore.
- **Memory aid (Bond issues): P**arties need not disclose, **D**onor unknown, **S**hareholders blind, **R**uling party advantage, **F**unnelling black money, **T**axpayers in dark: "**P**eople **D**eserve **S**traight **R**eal **F**inance, **T**oo."

ALSO IN THE HANDOUT

- Violates the principle of equal participation as corporations giving large amounts of donations are being more benefited by the government policies than the common people.
- The same period saw a significant decrease in annual income of the bottom 50 % of US population as well as a significant reduction in corporate taxes. - France banned corporate donations in 1995 and capped individual contributions at 6000 Euro.
- Issued by SBI in multiples of Rupees 1000, 10,000, 1 lakh, 10 lakh, and 1 Crore.
- But this norm can be bypassed as SBI works under the government and there is a chance of getting such information with wrongful means.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 81-83

- Art. 323B lets the legislature set up tribunals for election disputes, but none has been established so far. After L. Chandra Kumar (1997) any such tribunal's decision could be appealed to the High Court. A separate State Election Commission handles panchayat and municipal elections. The ECI is a three-member body: one Chief Election Commissioner and two Election Commissioners appointed by the President.
- Timetable: candidates get a week to file nominations and may withdraw within two days after scrutiny. The official campaign lasts at least two weeks from the list of nominated candidates, and no more than six months may pass between the last session of a dissolved Lok Sabha and the first of the new one.
- Polling:
  - The ECI tries to place a polling station within two kilometres of every voter, with no more than 1200 voters per

MY NOTES

station, open at least eight hours. Opinion poll results cannot be published from two days before polling starts to the close of poll
    - Exit poll results only half an hour after polling ends on the last day
- EVM facts:
    - First used in 1998 on trial in Rajasthan, Madhya Pradesh and Delhi Assembly polls
    - All State elections and by-elections in 2003 used EVMs
    - The 2004 Lok Sabha election was held wholly on EVMs (more than one million machines)
- Committees in Lakshmikanth's list:
    - Joint Parliamentary Committee on Amendments to Election Laws (1971-72)
    - Tarkunde (unofficial, set up by JP in his Total Revolution movement, report 1975)
    - Goswami (1990, set up by V.P. Singh's government, some proposals implemented in 1996)
    - ECI proposals (1998)
    - Law Commission 170th Report (1999)
    - Venkatachaliah Commission (2000-02)
    - ECI report (2004)
    - 2nd ARC on Ethics (2007, Veerappa Moily)
    - Tankha Committee (2010)
    - J.S. Verma Committee (2013)
    - Law Commission 244th (2014) and 255th (2015)
- 1996 and later details: insulting the National Flag, the Constitution or preventing the National Anthem (Prevention of Insults to National Honour Act, 1971) bars contesting for 6 years. The 1997 President and Vice-President rule raised proposers from 10 to 50 and from 5 to 20, and the deposit from Rs 2,500 to Rs 15,000. In 2009 Lok Sabha deposits rose from Rs 10,000 to Rs 25,000 (SC/ST Rs 5,000 to Rs 12,500).
- 2003 changes: candidates must give criminal and asset details in an affidavit, and false information is an electoral offence. Parties may take any contribution from a person or company (not a government company) and must report amounts above Rs 20,000. Travel costs of leaders campaigning for a party are not counted in a candidate's expenses.
- NOTA:
    - Even if NOTA gets more votes than any candidate, the candidate with the most votes is still declared elected. VVPAT slips stay visible for seven seconds
    - First used in the Noksen (Nagaland) by-election, 2013. Jan Chaukidar (2013) said persons in jail cannot contest

MY NOTES

  - Parliament then amended RPA 1951 to negate it
- Funding rules:
  - The 2017 Budget cut anonymous cash donations from Rs 20,000 to Rs 2,000 and removed the 7.5 percent of profit cap on company donations. The 2018 bond scheme allowed only parties with at least 1 percent of votes polled and treated buyer details as confidential
  - 2018 also allowed foreign funds (FCRA amended)
- Lakshmikanth differs: committee name and Model Code dates. It calls the 1998 funding panel the Indrajit Gupta Committee (eight members, report 1999; handout says Indrajit Sengupta). It says the MCC was agreed by all parties in 1968 and first effectively used in 1991 (handout: began 1960 for Kerala). Use the handout's 1960 start in class and remember LK's 1968.

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Which Articles form Part XV on elections?	Articles 324 to 329 (and the repealed 329A).
What does Article 325 provide?	One general electoral roll per territorial constituency; no exclusion on grounds of religion, race, caste or sex.
What does Article 326 provide?	Adult suffrage: citizens aged 18 and above, subject to disqualification for non-residence, unsound mind, crime or corrupt or illegal practice.
Which Amendment lowered the voting age from 21 to 18?	The 61st Amendment Act, 1988; in force 28 March 1989.
What is the difference between Articles 327 and 328?	327: Parliament's power to make election laws. 328: State Legislature's power, only where Parliament has made no provision.
What can challenge an election result?	Only an election petition (Art. 329(b)), tried by the High Court with appeal to the Supreme Court.
Name the five election officers from State to booth.	CEO, DEO, Returning Officer, Electoral Registration Officer, Presiding Officer.
Three types of ECI observers?	General, Expenditure and Police Observers.
When does official campaigning end?	48 hours before polling closes.

Four stages of the MCC's history?	1960 Kerala; 1962 circulated; 1979 amplified; 1991 consolidated and strictly enforced.
Area of MCC enforcement?	Lok Sabha: whole country. Assembly: whole State. By-election: the district of the constituency.
Why did the ECI reject making MCC a law?	Many provisions already exist in IPC and RPA 1951, and court cases would be slow and defeat quick resolution.
What does RPA 1950 do?	Allocates seats, delimits constituencies, prepares electoral rolls, sets officers; Section 30 bars civil courts on roll entitlement.
Age limits to contest under RPA 1951?	25 for Lok Sabha and Assembly; 30 for Rajya Sabha and Council.
List the RPA 1951 corrupt practices.	Bribery and undue influence; religion or caste for votes; false statements about candidates; booth capturing or tampering; exceeding expenditure limits.
Who sits on the Delimitation Commission?	A Supreme Court Judge (chair), the CEC or an EC, and the State Election Commissioner.
Principles of delimitation?	Equal population, administrative convenience, geographical contiguity, community representation.
Which Amendments froze seats and used the 2001 Census?	42nd (1976) and 84th (2001) froze seats; 87th (2003) used 2001 Census for boundaries.
Symbols Order year and a key rule?	1968; recognised parties get reserved symbols, independents get free symbols.
What did Tarkunde Committee (1974) recommend?	ECI of 3; voting age 18; voter's councils; selection committee of PM, Leader of Opposition and CJI.
What did Dinesh Goswami Committee (1990) recommend?	Voter ID; lower contesting ages (25 for RS, 21 for LS); ban transfers; higher deposits; standing committee; 2 years jail for MCC violation.
Law Commission 255th Report on petitions?	Trial in 6 months; judgment in 90 days; appeals to Supreme Court only on law.

MY NOTES

What did the 1996 campaign reform change?	Campaign period cut from 20 to 14 days.
Presidential and VP nominations (1997)?	50 proposers for President, 20 for Vice-President; deposit Rs 15,000.
What did NOTA come from?	A 2013 Supreme Court directive (handout also credits PUCL 2003).
What did Subramanian Swamy v. ECI (2013) uphold?	The VVPAT system.
What does the CEC and Other ECs Act, 2023 provide?	Selection panel of PM, Leader of Opposition and a Minister; six-year tenure or age 65; criticised for limiting independence.
What did ADR (2020) direct?	Parties must justify and publish reasons for fielding candidates with criminal cases within 48 hours.
Electoral bond details?	SBI issued; Rs 1,000 to 1 crore; encash within 15 days or amount goes to PMRF; struck down Feb 2024.
What did the Law Commission say on state funding?	Partial state funding in kind is recommended (170th and 255th) but it also set preconditions: de-criminalisation, inner-party democracy, transparency.

Trap 1 · Art. 326 gives registration, not the right to vote

Art. 326 provides only for registration as a voter and does not itself give the right to vote or to be elected. Supreme Court judgments (for example Rajbala, 2015) call the right to vote a Constitutional Right. *Rule: Art. 326 = adult suffrage and registration; the right to vote comes from the courts' reading.*

Trap 2 · EVM years

The handout gives different EVM years in different places. The reform table says legalised 1989, first tested 1998, fully used in Goa 1999. *Rule: for years use 1989 (law), 1998 (test), 1999 (Goa); treat the early 2000s as general background.*

Trap 3 · NOTA 2003 or 2013, and the two ADR cases

The case table lists PUCL as 2003 but the reform table dates NOTA to 2013. ADR 2002 is about disclosure of candidate details; ADR 2020 is about justifying criminal candidates within 48 hours. *Rule: PUCL (2003) case, NOTA reform 2013; ADR 2002 = disclosure, ADR 2020 = 48-hour justification.*

MY NOTES

Trap 4 · Delimitation orders and the seat freeze

Art. 329 bars courts from questioning delimitation orders, yet a 2024 Supreme Court verdict allows review of an order that is manifestly arbitrary. The 42nd Amendment started the seat freeze and the 84th extended it, on the 1971 population. *Rule: write both the constitutional bar and the 2024 limited review; freeze = 42nd (1976) then 84th (2001), 1971 population; 87th (2003) uses the 2001 Census for boundaries.*

QUICK QUIZ

Q1. Which Article of the Constitution vests superintendence, direction and control of elections in the Election Commission of India?

1. Article 323
2. Article 324
3. Article 326
4. Article 329

Q2. The voting age was lowered from 21 to 18 by which Amendment?

1. 44th Amendment
2. 61st Amendment
3. 84th Amendment
4. 87th Amendment

Q3. Which Article bars courts from questioning delimitation of constituencies and allotment of seats?

1. Article 327
2. Article 328
3. Article 329
4. Article 325

Q4. Which Act deals with the preparation of electoral rolls and allocation of seats, while another deals with conduct of elections and disputes?

1. RPA 1951 for rolls, RPA 1950 for conduct
2. RPA 1950 for rolls, RPA 1951 for conduct
3. Delimitation Act 2002 for both
4. Presidential and Vice-Presidential Elections Act 1952 for both

Q5. During which period does the Model Code of Conduct operate in a Lok Sabha election?

1. Only on polling day
2. From notification of nominations until counting begins
3. From the announcement of polls to the declaration of results
4. From the day of the last-phase polling to results

Q6. The Delimitation Commission under the Delimitation Act, 2002 is chaired by

1. A sitting or former Supreme Court Judge
2. The Chief Election Commissioner
3. The State Election Commissioner
4. The Law Minister

Q7. In which case did the Supreme Court hold that free and fair elections are part of the basic structure?

1. Lily Thomas v. Union of India
2. Indira Nehru Gandhi v. Raj Narain
3. ADR v. Union of India
4. Subramanian Swamy v. ECI

Q8. Which case struck down Section 8(4) of the Representation of the People Act, 1951?

1. Lily Thomas v. Union of India
2. PUCL v. Union of India
3. Rajbala v. State of Haryana
4. L. Chandra Kumar v. Union of India

MY NOTES

Q9. The Election Laws (Amendment) Act, 2021 provides which qualifying dates for enrolment of voters?

1. 1 January only
2. 1 January and 1 July
3. 1 January, 1 April, 1 July and 1 October
4. 26 January and 15 August

Q10. Electoral bonds, under the scheme described in the handout, were issued by

1. Reserve Bank of India
2. State Bank of India
3. Election Commission
4. Finance Ministry directly

Q11. The 1996 reform on candidates contesting from multiple constituencies allowed a candidate to contest from at most

1. One
2. Two
3. Three
4. Any number

Q12. Under the Symbols Order, 1968, independents and unrecognised candidates are given

1. Reserved symbols
2. Free symbols from an approved list
3. No symbol
4. Symbols chosen by the Returning Officer

Q13. The Law Commission's 255th Report recommended that the power to decide disqualification under the anti-defection law be given to

1. The Speaker with ECI advice
2. The President or Governor on binding advice of the ECI
3. The Supreme Court
4. The Prime Minister

Q14. Which Article provides for State Election Commission control of Panchayat elections?

1. Article 243K
2. Article 243O
3. Article 243ZA
4. Article 329

Q15. Who nominates or designates the District Election Officer?

1. The Governor alone
2. The ECI in consultation with the State government
3. The Returning Officer
4. The Presiding Officer

Answers: Q1 b, Q2 b, Q3 c, Q4 b, Q5 c, Q6 a, Q7 b, Q8 a, Q9 c, Q10 b, Q11 b, Q12 b, Q13 b, Q14 a, Q15 b

MY NOTES

CHAPTER 25 · HANDOUT PAGES: VOTING BEHAVIOR IN INDIA, PARADOXES IN OUR DEMOCRACY, DEMOCRACY INDEX

25 Voting Behaviour

HIGH PRIORITY Mains PYQs quoted: **2017, 2018, 2019, 2020, 2022, 2024, 2025**

Prelims PYQs: **1995, 1997, 2001, 2012, 2020**

EXAM LENS

Prelims hooks

- short-term versus long-term factors
- Psephocracy
- the three phases of identity politics
- Democracy Index categories and India's 2020 status
- 15 September as International Democracy Day
- No Prelims PYQ is quoted in the material.
- Handout stresses: Voter's choice is split into short-term and long-term influences (Section 1)
- Handout stresses: The handout lists nine paradoxes in our democracy and defines Psephocracy (Section 4)
- Handout stresses: The Democracy Index paragraph (60 indicators, 5 categories, 4 regime types, India "Flawed democracy" in 2020, score 6.61) (Section 5)
- Handout stresses: International Democracy Day (15 September; Universal Declaration on Democracy 2007) (Section 5)

Mains hooks

- factors shaping voting behaviour in India
- role of caste and religion in elections
- paradoxes of Indian democracy
- identity politics and its phases
- No Mains PYQ is quoted in the material.

Voters choose on both passing issues and lasting loyalties, and Indian democracy keeps free elections while struggling with money, identity and real choice.

MY NOTES

IN SIMPLE WORDS

- A voter's choice comes from **individual** and **group** choices (religious group, social group and so on). The handout splits the influences into **short-term** and **long-term**.
- **Short-term** influences work in one election only: the **economy** (inflation, unemployment), **local conditions**, **leaders**, **specific events** (the **Emergency** hurt **Indira Gandhi**) and **media coverage**.
- **Long-term** influences last: **social** (age, gender, inhabitation, caste, religion), **economic** (income groups versus the poor) and **political** (ideology, family background, **party identification**).
- Trends: voters choose the **party or leader over the candidate**, **independents do poorly**, people **vote against the ruling party**, and national and State choices differ.
- The handout lists paradoxes of Indian democracy: **muscle and money**, **identity politics** (language, then caste after **Mandal**, then religion after the **Ram Janmabhoomi Movement**), poverty, no real choice, and **Psephocracy**.
- The **Democracy Index** (0-10, 60 indicators, 5 categories, 4 regime types) called India a **Flawed democracy** in 2020 (**6.61**). **International Democracy Day** is **15 September**.

Key term	In plain words
Short-term influence	Immediate factor that affects one particular election only
Long-term influence	Lasting social, economic or political factor behind a voter's behaviour
Inhabitation	Whether the voter lives in urban or rural areas; rural people are now also politically aware
Party identification	Psychological attachment with a political party
Psephocracy	Democracy honoured during elections and peaceful transfer of power but not between two elections; leads to electoral dictatorships
Frozen identities	Excess focus on identity makes negotiation and reconciliation impossible
Democracy Index	EIU score on a 0 to 10 scale from 60 indicators in five categories; four regime types from Full to Authoritarian
Flawed democracy	The second step of the Index ladder; India's class in 2020 with score 6.61

MY NOTES

MEMORY MAP: VOTING BEHAVIOUR

Two kinds of influence
- Short-term: immediate, one election only
- Long-term: social, economic, political

Short-term factors
- Economy: inflation, unemployment
- Local conditions: water, power, roads
- Leaders and events: Emergency and Indira Gandhi
- Media: pattern of coverage

Long-term factors
- Social: age, gender, inhabitation, caste, religion
- Economic: income groups versus the poor
- Political: ideology, family, party identification

Trends
- Party or leader over candidate: independents do poorly
- Vote against the ruling party: not for another
- National versus State choice: different

Voting Behaviour

Paradoxes
- Participation versus muscle and money: peaceful power transfer
- Identity politics: language, caste, religion
- Democracy and poverty: quota not material gain
- Psephocracy: electoral dictatorship

Party system
- Personality cult: high command parties
- Fluid ideology: defection
- Consensus is hard: many parties, no real choice

Democracy Index
- 0-10 scale: 60 indicators, 5 categories
- Four regime types: full to authoritarian
- India 2020: Flawed democracy 6.61

MNEMONIC · SHORT-TERM INFLUENCES ON A VOTE

P U L S E

- **P** Pattern of media coverage of issues
- **U** Unemployment and inflation: state of the economy
- **L** Local conditions: water, power, roads
- **S** Standing of leaders: personality or public standing
- **E** Events before the election, such as the Emergency

The PULSE of the voter in one election. The order is rearranged for memory. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · SOCIAL FACTORS IN LONG-TERM VOTING

Allegiances Guide Indian Choices, Repeatedly

- **A** Age
- **G** Gender
- **I** Inhabitation: urban or rural
- **C** Caste
- **R** Religion

Lasting social allegiances guide Indian voters' choices again and again, election after election. No good single word exists for this list, so this is a sentence aid; the order of items is free. (Memory aid, not from the handout.)

MNEMONIC · THREE PHASES OF IDENTITY POLITICS

Lines Create Rifts

- **L** Language-based identity first
- **C** Caste-based identity after the Mandal Commission period
- **R** Religion-based identity after the Ram Janmabhoomi Movement

Identity lines create rifts, and when identities freeze, negotiation and reconciliation become impossible. (Memory aid, not from the handout.)

MNEMONIC · FIVE CORE CATEGORIES OF THE DEMOCRACY INDEX

Every Fair Poll Protects Citizens

- **E** Electoral process and pluralism
- **F** Functioning of government
- **P** Political participation
- **P** Political culture
- **C** Civil liberties

Every fair poll protects citizens: the Index judges elections, government, participation, culture and civil liberties. No good single word exists for this list, so this is a sentence aid; the order of items is free. (Memory aid, not from the handout.)

WHAT DECIDES A VOTE

- Individual voting is the function of **individual choices** and **group choices** (religious group, social group and so on). The determinants of a voter's choice split into **short-term influence** and **long-term influence**.

SHORT-TERM VERSUS LONG-TERM

- **Short-term:**
  - Immediate influence on **specific elections only**
  - They do not decide voters' long-term behaviour
- **Long-term:** Lasting factors: **social, economic and political**
- **Memory aid (Long-term trio):** **S**ocial, **E**conomic, **P**olitical: "**S**ome **E**lectors **P**onder."

MY NOTES

SHORT-TERM INFLUENCES

- **State of the economy** at election time: **inflation, unemployment** and similar parameters shape voter behaviour.
- **Local conditions of life**: water supply, power supply, road conditions.
- **Personality or public standing of leaders.**
- **Specific events** before the election: the imposition of the **National Emergency** affected election results for **Indira Gandhi**.
- **Pattern of media coverage** of issues.
- **Memory aid (Five short-term factors):** **E**conomy, **L**ocal conditions, **P**ersonality of leaders, **S**pecific events, **M**edia: "**E**very **L**eader **P**refers **S**mooth **M**essages."

LONG-TERM FACTORS

SOCIAL FACTORS

FIVE SOCIAL FACTORS

Factor	How it shapes voting
Age	The age of the voter affects behaviour
Gender	Gender inequality can give one gender greater participation and awareness than the other
Inhabitation	In the initial decades after independence urban voters were considered politically **more aware and active** than rural voters; **now rural people are also politically conscious and aware**
Caste	Especially in rural areas **caste loyalties run very deep**; caste-based mobilisation of **OBC and Dalit communities** increased its influence further
Religion	Religion is used by **exploiting the apprehension** of minority and majority. In the initial decades the **minority's** apprehension was exploited; in recent times the **majority's** apprehension is seen. These apprehensions can be **real or imaginary**

- **Memory aid (Social factors):** **A**ge, **G**ender, **I**nhabitation, **C**aste, **R**eligion: "**A** **G**ood **I**dea: **C**ount **R**ightly."

ECONOMIC FACTORS

INCOME GROUPS AND VOTING

- **Higher, middle and lower-income groups:**
  - More concerned with the problems of society
  - Politically more aware
  - Conscious of the effects of government policies on their long-term interests
- **Poor sections:**
  - More concerned with their personal economic problems

MY NOTES

- Only sense of belonging is to caste and religion
- Vote as their **employer** says, more so in **rural India**

POLITICAL FACTORS

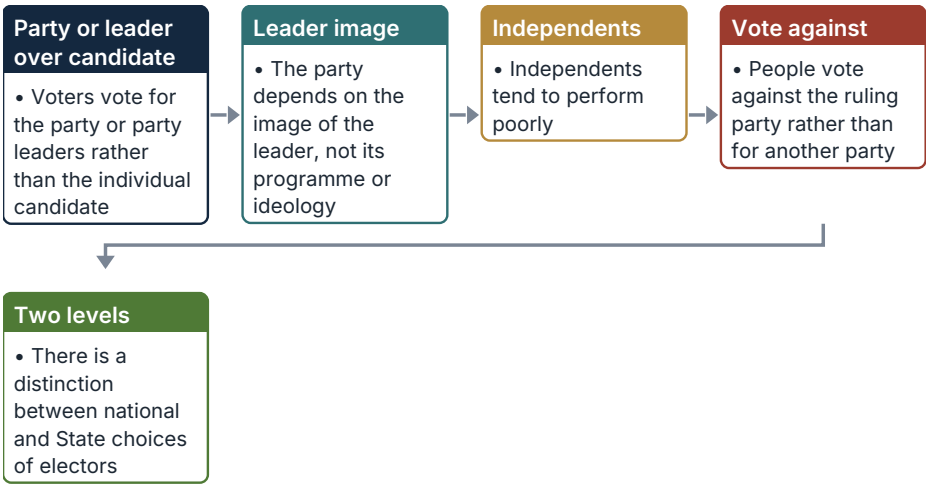
- When a voter's **ideology matches** a party's ideology, the voter tends to vote for that party.
- **Political family background** and **political socialisation** also affect voting.
- **Party identification**: the **psychological attachment** with a political party.

TRENDS

TRENDS IN VOTING

- **Party or leader over candidate**: Voters vote for the **party or party leaders** rather than the individual candidate
- **Leader image**: The party depends on the **image of the leader**, not its programme or ideology
- **Independents**: **Independents tend to perform poorly**
- **Vote against**: People vote **against the ruling party** rather than for another party
- **Two levels**: There is a **distinction between national and State choices** of electors

TRENDS IN VOTING



- **Shortcut: Anti-incumbency rule of thumb.** The handout's trend is **"vote against, not for"**: the ruling party carries the burden, whoever gains.

ALSO IN THE HANDOUT

- Thus the party becomes dependent on the image of the leader rather than their program or ideology.

MY NOTES

PARADOXES IN OUR DEMOCRACY

THE PARADOXES (HANDOUT ORDER)

Paradox	One side	Other side
1. Participation versus muscle and money	Participation has increased; **peaceful transition of power**; **gun culture stamped out**	**Muscle and money power** in elections is very much prevalent
2. Bureaucracy and the State	Bureaucracy works within a **democratic framework and political control**	The State has become **more repressive** through **draconian laws**; bureaucracy often behaves **anti-people**
3. Issue-based versus identity politics	Democratic politics should be **issue-based**	In most countries **politics of identity** prevails on a large scale
4. Democracy and abject poverty	Voting rights, regular elections and peaceful transfer should let the poor remove parties that ignore them	That is **not the case**
5. Too many parties, no real choice	Many parties	Most stand for the **same type of economic ideologies and policies**
6. Tolerance without liberal ethic	Tolerance is propagated as a **virtue**	Without a **strong liberal ethic** it cannot be practised, so **mob lynching, vigilantism** are justified
7. Multi-party system and personality cult	**Multi-party system** exists	**Personality cult prevails**; democracy should not rest on a leader's personality
8. Psephocracy	Democratic practices honoured **during** free and fair elections and peaceful transfer	Not **between** two elections: leads to **electoral dictatorships**
9. Contradictions in the party system	See below	

- **Memory aid (Nine paradoxes):** **P**articipation vs muscle, **B**ureaucracy vs repression, **I**dentity vs issues, **D**emocracy vs poverty, **T**oo many parties, **T**olerance without liberalism, **M**ulti-party vs cult, **P**sephocracy, **C**ontradictions: "**P**oor **B**oys **I**gnore **D**ull **T**alk, **T**hink **M**ore, **P**lan **C**arefully."

POLITICS OF IDENTITY: THREE PHASES

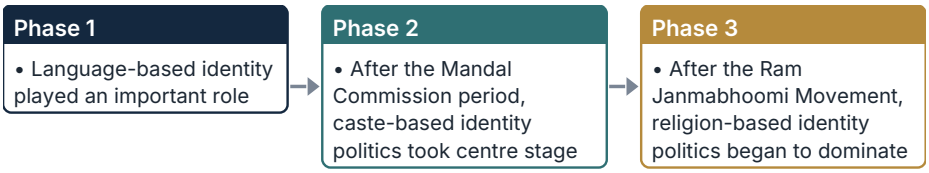
PHASES OF IDENTITY POLITICS

- **Phase 1**: **Language**-based identity played an important role

MY NOTES

- **Phase 2**: After the **Mandal Commission** period, **caste**-based identity politics took centre stage
- **Phase 3**: After the **Ram Janmabhoomi Movement**, **religion**-based identity politics began to dominate

PHASES OF IDENTITY POLITICS



- With excessive focus on identities, **identities get frozen**, so **negotiation and reconciliation become impossible**.
- **Memory aid (Identity phases): L**anguage, **C**aste (post-Mandal), **R**eligion (post-Ram Janmabhoomi): "**L**ook, **C**ast **R**ight."

DEMOCRACY AND POVERTY IN DETAIL

- **Economic inequality is not as much a scandal as social inequality.** The **reservation (quota)** system is an example of the effort to address social inequalities.
- But these efforts **did not convert into material or economic benefits** for the poor.
- Indian democracy has been **preoccupied with transforming the pre-existing imbalance of social power**.
- The idea was to bring **new political elites from Backward Classes**. Backward-class people did not get substantial benefit from this
- The **material status of the poor remained unchanged**

PSEPHOCRACY

- **Psephocracy:** A democracy in which democratic practices are honoured **during the election** (free and fair) and at **peaceful transfer of power**, but **not in the period between two consecutive elections**. This leads to **electoral dictatorships**.

CONTRADICTIONS IN THE PARTY SYSTEM

- **Memory aid (Seven contradictions): P**ersonality cult at the Centre, **H**igh command parties, **I**ncreasing regional parties, **R**eal choice absent, **F**luid ideology, **C**onsensus difficult, plus rising **I**ndependents: "**P**arties **H**old **I**nterests, **R**arely **F**ollowing **C**onscience."
- The **personality cult re-emerged** at the central level.
- **High command-oriented, centralised** parties.
- **Increasing influence of regional parties.**
- Multi-party system but **absence of real choice**.
- **Increasing number of independent candidates.**

MY NOTES

- **Fluid ideology of members**: candidates now change parties and ideology frequently.
- The multi-party system has made the system **more representative, yet consensus-building has become difficult**.

> **HANDOUT ALERT**
> Handout alert: The handout says **independents tend to perform poorly** (Trends) and also lists **increasing numbers of independent candidates** (party-system contradictions). They answer different questions: **numbers rise, success stays low**. Also the paradox list has **nine** headings only if "contradictions in the party system" is counted as the last one; the handout does not number them.

ALSO IN THE HANDOUT

- Without liberal ethics, tolerance cannot be realized into practice.
- This would lead to electoral dictatorships.

DEMOCRACY INDEX AND INTERNATIONAL DEMOCRACY DAY

THE DEMOCRACY INDEX

- Scores countries on a **0 to 10 scale** using **60 individual indicators** in **five core categories**: **electoral process and pluralism, functioning of government, political participation, political culture, civil liberties**.
- Each country is placed in one of **four regime types**: **Full democracy, Flawed democracy, Hybrid regime, Authoritarian regime**.
- **2024 edition**:
  - Global democracy is under strain
  - The **average global score dropped to its lowest since the index began in 2006**
- **2020 Index**: the EIU ranked **India a "Flawed democracy"**. India's score fell from an earlier peak to **6.61 in 2020**, which the EIU described as **democratic backsliding**.
- **Memory aid (Five categories): E**lectoral process, **F**unctioning of government, **P**articipation, **P**olitical culture, **C**ivil liberties: "**E**very **F**air **P**oll **P**rotects **C**itizens."
- **Shortcut: Index ladder.** Full > Flawed > Hybrid > Authoritarian. India (2020): **second step, Flawed**, score **6.61**.

INTERNATIONAL DEMOCRACY DAY

- **15 September** each year. On this date in **2007** the **Universal Declaration on Democracy** was adopted by the **Inter-Parliamentary Union**.

MY NOTES

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 84, VOTING BEHAVIOUR

- Voting behaviour is also called electoral behaviour and is a form of political behaviour. Its scientific study is psephology, from the Greek 'psephos', the piece of pottery on which votes about banishing dangerous people were inscribed.
- Why study it (five points): it explains political socialisation, shows how far democracy is valued by elite and masses, shows the real impact of the ballot box, tells whether electoral politics continues or breaks with the past, and shows whether it is modern or primordial.
- N.G.S. Kini sees voting behaviour as a mode of legitimising democratic rule, an instance of participation and integration into the political community, an act of decision-making, a role-action in a political culture, and a direct relation of citizens to government.
- Caste:
  - Rajni Kothari said 'Indian politics is casteist, and caste is politicised'. Paul Brass: in the countryside, caste solidarity is by far the most important factor
  - Large castes back a respected member of their caste or a party their caste identifies with
- Language and region: language rose with the 1956 reorganisation of States, and the rise of the DMK and TDP is linked to it. Regional sub-nationalism feeds regional parties, and secessionist parties sometimes call for an election boycott.
- Personality:
  - The images of Nehru, Indira Gandhi, Rajiv Gandhi, Jayaprakash Narayan, Vajpayee and Narendra Modi swayed voters
  - Regional leaders do the same in States
- Money: votes are freely exchanged for notes, liquor or goods despite expenditure limits, but money works only in normal times, not in a wave election (Paul Brass: a clear tendency in one direction for a national party or leader, based on issues that go beyond local calculations).
- Performance of the ruling party is judged on its manifesto
- The Congress defeat in 1977 and the Janata defeat in 1980 show anti-incumbency, meaning dissatisfaction with the ruling party's performance
- Other factors in Lakshmikanth: events before the poll (war, murder of a leader, corruption scandals), economic conditions (inflation, food shortage, unemployment), factionalism, candidate orientation, the election campaign, political family background and the media.

MY NOTES

- Lakshmikanth differs:
  - Classification. It splits the determinants into socio-economic and political factors and lists ten (caste, religion, language, region, personality, money, ruling party's performance, party identification, ideology, others). The handout instead uses short-term and long-term influences and adds age, gender and inhabitation. Use the handout's frame in class
  - LK's list is useful extra content

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

What are the two kinds of influence on a voter?	Short-term (immediate, one election) and long-term (lasting: social, economic, political).
Name the five short-term influences.	Economy, local conditions, personality of leaders, specific events (such as the Emergency), media coverage.
Name the five social factors in long-term voting.	Age, gender, inhabitation, caste, religion.
How has urban versus rural awareness changed?	Urban voters were once seen as more aware; now rural voters are also politically conscious.
How does the handout describe caste in voting?	Loyalties run deep in rural areas; OBC and Dalit mobilisation increased its influence.
How does the handout describe religion in voting?	Exploiting apprehension of minority (earlier) and majority (recent); real or imaginary.
How do richer and poorer groups vote?	Higher, middle and lower-income groups are society-minded and policy-aware; the poor focus on personal problems, caste, religion and the employer's word.
What is party identification?	Psychological attachment with a political party.
What are the three trends in voting?	Party or leader over candidate; vote against the ruling party; national and State choices differ.
What is Psephocracy?	Democracy honoured only during elections and transfer of power, not between elections: leads to electoral dictatorships.

The three phases of identity politics?	Language; caste (post-Mandal Commission); religion (post-Ram Janmabhoomi Movement).
What happens when identities get frozen?	Negotiation and reconciliation become impossible.
Why is poverty a paradox of Indian democracy?	Voting rights and elections should let the poor remove unresponsive parties, but quotas for social equality did not convert into material benefit.
What is the tolerance paradox?	Tolerance is propagated as a virtue without a strong liberal ethic, so mob lynching and vigilantism are justified.
List the contradictions in the party system.	Personality cult at the Centre; high command parties; rising regional parties; no real choice; more independents; fluid ideology; representative but consensus is hard.
What is the Democracy Index scale?	0 to 10, from 60 indicators in five categories.
Four regime types in the Index?	Full democracy, Flawed democracy, Hybrid regime, Authoritarian regime.
India in the 2020 Democracy Index?	Flawed democracy; score 6.61, which the EIU called democratic backsliding.
What happened in the 2024 Index edition?	The average global score dropped to its lowest since the index began in 2006.
When is International Democracy Day and why?	15 September; the Universal Declaration on Democracy was adopted by the Inter-Parliamentary Union in 2007.

Trap 1 · Independents: more of them, less success

The handout says independents tend to perform poorly, yet also lists increasing numbers of independent candidates as a party-system contradiction. *Rule: numbers rise, success stays low.*

Trap 2 · Whose apprehension is exploited

Religion is used by exploiting apprehension: the minority's in the early decades after independence, the majority's in recent times. Either can be real or imaginary. *Rule: early = minority, recent = majority.*

Trap 3 · Order and trigger of identity politics

Phase 1 is language; phase 2 is caste after the Mandal Commission period; phase 3 is religion after the Ram Janmabhoomi Movement. *Rule: language, then caste (Mandal), then religion (Ram Janmabhoomi).*

MY NOTES

Trap 4 · Democracy Index numbers

The Index has 60 indicators in 5 categories and 4 regime types. India was a Flawed democracy (second step, not Hybrid) with 6.61 in 2020. International Democracy Day (15 September) marks the 2007 Universal Declaration on Democracy by the Inter-Parliamentary Union. *Rule: 0-10, 60 indicators, 5 categories, 4 types; Full > Flawed > Hybrid > Authoritarian.*

QUICK QUIZ

Q1. Which of the following is a short-term influence on a voter's choice?

1. Caste loyalty
2. State of the economy at election time
3. Party identification
4. Political family background

Q2. Party identification is best described as

1. Voting for the candidate with the best manifesto
2. Psychological attachment with a political party
3. Voting against the party in power
4. Voting by employer's wishes

Q3. In the handout's account of religion as a factor in voting, in the initial decades of independence the apprehension exploited was mainly that of

1. The majority
2. The minority
3. The urban voters
4. The rural voters

Q4. Which phase of identity politics followed the Mandal Commission period?

1. Language-based
2. Caste-based
3. Religion-based
4. Region-based

Q5. A democracy that honours democratic practices during elections and peaceful transfer of power but not between two consecutive elections is called

1. Plutocracy
2. Psephocracy
3. Technocracy
4. Theocracy

Q6. Which is NOT one of the five core categories of the Democracy Index as given in the handout?

1. Political culture
2. Civil liberties
3. Economic growth
4. Functioning of government

Q7. In the 2020 Democracy Index, India was classified as

1. Full democracy
2. Flawed democracy
3. Hybrid regime
4. Authoritarian regime

Q8. International Democracy Day is celebrated on

1. 15 August
2. 15 September
3. 26 November
4. 2 October

Q9. According to the handout, which tends to perform poorly in Indian elections?

1. Party candidates
2. Independents
3. Regional parties
4. Incumbent leaders

Q10. The Democracy Index sorts countries on a scale of

1. 0 to 5
2. 0 to 10
3. 1 to 100
4. 0 to 60

MY NOTES

Q11. PYQ 2020: Consider the following statements: [2020]
1. According to the Constitution of India, a person who is eligible to vote can be made a minister in a State for six months even if he/she is not a member of the Legislature of that State.
2. According to the Representation of People Act, 1951, a person convicted of a criminal offence and sentenced to imprisonment for five years is permanently disqualified from contesting an election even after his release from prison. Which of the statements given above is/are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q12. PYQ 2012: With reference to the Delimitation Commission, consider the following statements: (2012)
1. The orders of the Delimitation Commission cannot be challenged in a Court of Law.
2. When the orders of the Delimitation Commission are laid before the Lok Sabha or State Legislative Assembly, they cannot effect any modifications in the orders. Which of the statements given above is/are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Q13. PYQ 2001: Consider the following statements regarding the political parties in India: [2001] I. The Representation of the People Act, 1951 provides for the registration of political parties. II. Registration of political parties is carried out by the Election Commission. III. A national level political party is one which is recognised in four or more States. IV. During the 1999 general elections, there were six National and 48 State level parties recognised by the Election Commission. Which of these statements are correct?

1. I, II and IV
2. I and III
3. II and IV
4. I, II, III and IV

Q14. PYQ 1995: The Dinesh Goswami Committee was concerned with: [1995]

1. De nationalisation of banks
2. Electoral reforms
3. Steps to put down insurgency in the North East
4. The problem of the Chakmas

Q15. PYQ 1997: Dinesh Goswami Committee recommended: [1997]

1. The constitution of state level election commissions
2. List System of election to the Lok Sabha
3. Governmental funding of parliamentary elections
4. A ban on the candidature of independent candidates in the parliamentary elections

Answers: Q1 b, Q2 b, Q3 b, Q4 b, Q5 b, Q6 c, Q7 b, Q8 b, Q9 b, Q10 b, Q11 a, Q12 c, Q13 d, Q14 b, Q15 c

MY NOTES

PART III

Bodies, Commissions and Governance

Territory, citizenship, constitutional bodies, anti-corruption and RTI

26 Union Territories

CHAPTER 26 · HANDOUT PAGES ON UNION TERRITORIES

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

EXAM LENS

Prelims hooks

- none quoted in the material
- Likely hooks from the notes: which UTs have legislatures, subjects barred to the Delhi and J&K Assemblies, number of members in Delhi and Puducherry, High Court jurisdictions, Articles 239 to 241 and 239AA.
- Handout stresses: No PYQs are quoted for this chapter in the handout (Whole chapter)
- Handout stresses: Eight UTs, with a creation-year table ("Present Composition" section)
- Handout stresses: Delhi gets the longest treatment: Arts. 239AA, 239AB, 70 members, ministers up to 10%, GNCTD (Amendment) Act 2021, ordinances (Delhi section)
- Handout stresses: A closing comparison of UTs with and without a legislature (Last section)

Mains hooks

- none quoted in the material
- Likely hooks from the notes: why UTs exist, Delhi's hybrid status, supremacy of Parliament over UT legislatures.

UTs are the Union's own territory: where an Assembly exists, Parliament and the President still stand above it.

IN SIMPLE WORDS

- **Union Territories (UTs)** are areas run directly by the **Centre** under **Arts. 239 to 241** (Part VIII). Their roots lie in the **Scheduled Districts Act, 1874** and the Chief Commissioner's Provinces
- After 1950 Part C and D territories were merged into UTs by the **States Reorganisation Act and 7th Amendment (1956)**
- There are **eight UTs** today: Andaman and Nicobar Islands, Delhi, Lakshadweep, Puducherry, Chandigarh, Jammu and

MY NOTES

Kashmir, Ladakh, and Dadra and Nagar Haveli and Daman and Diu (**2020**).

- Each UT is administered by the **President** through an **Administrator**, who is the President's **agent**, not a constitutional head like a Governor. The title is **Lieutenant Governor (LG)** in five UTs and **Administrator** in three.
- Only **three** UTs have an **Assembly and a Chief Minister**: **Delhi (1992), Puducherry (1963), Jammu and Kashmir (2019)**. Even there, **Parliament** can make laws on any subject and its law prevails.
- For UTs **without** a legislature the **President** makes **regulations** that carry the force of an Act of Parliament
- Puducherry only when its Assembly is suspended or dissolved
- **Delhi** is special: **69th Amendment (1991)**, **Arts. 239AA and 239AB**, **70** seats, ministers up to **10%** (seven). It is also the **only UT with its own High Court (1966)**.

Key term	In plain words
Union Territory	An area under the direct control of the Central Government; governed under Arts. 239 to 241
Administrator / LG	The President's agent who runs a UT; the President decides the title (LG, Chief Commissioner or Administrator)
Scheduled Districts Act, 1874	British law creating special 'scheduled districts' that later became Chief Commissioner's Provinces
Regulation (President)	Law for peace, progress and good governance of a UT without a legislature; equals an Act of Parliament and can amend or repeal Central laws
NCT of Delhi	National Capital Territory, status given by the 69th Amendment (1991) with Arts. 239AA and 239AB
Art. 239AB	President may suspend Art. 239AA and take over Delhi if normal governance breaks down, like Art. 356 for States
Art. 239A	Inserted by the 14th Amendment (1962); lets Parliament create legislatures and councils of ministers for certain UTs such as Puducherry
HMAC / AAC	Home Minister's Advisory Committee and Administrator's Advisory Committee for UTs without legislatures, set up by MHA (the nodal ministry)

MY NOTES

MEMORY MAP: UNION TERRITORIES

Origins
- 1874: Scheduled Districts Act
- 1935: Chief Commissioners' provinces
- 1950: Part C and Part D States
- 1956: SRA and 7th Amendment

Why UTs exist
- Convenience: Delhi, Chandigarh
- Culture: Puducherry, DNH and DD
- Strategy: A&N, Lakshadweep, Ladakh
- Tribal and backward: Manipur, Tripura, Mizoram

Eight UTs
- With legislature: Delhi, Puducherry, J&K
- Without legislature: the other five
- Heads: Lt Governor or Administrator

Administration
- Arts. 239 to 241: Part VIII
- Administrator: agent of the President
- Parliament: any list, laws prevail
- Regulations: UTs without legislature

Union Territories

Delhi
- 69th Amendment: Arts. 239AA, 239AB
- Assembly: 70 members
- Council: up to 10% (seven)
- LG and CoM clash: President decides

Puducherry
- Art. 239A: 14th Amendment 1962
- Assembly: 30 elected + up to 3 nominated
- Four regions: Puducherry, Karaikal, Mahe, Yanam

J&K and Ladakh
- Reorganisation Act: 31 Oct 2019
- J&K: Assembly; no police, public order
- Ladakh: no legislature; LAHDCs

Courts and advice
- Delhi: own High Court (1966)
- J&K and Ladakh: common High Court
- HMAC and AAC: advisory committees

MNEMONIC · THE EIGHT UNION TERRITORIES IN HANDOUT ORDER

Administrators Direct Lakshadweep, Puducherry, Chandigarh, Jammu, Ladakh, Dadra

- **A** Andaman and Nicobar Islands (1956)
- **D** Delhi (1956, NCT 1992)
- **L** Lakshadweep (1956)
- **P** Puducherry (1962)
- **C** Chandigarh (1966)
- **J** Jammu and Kashmir (2019)
- **L** Ladakh (2019)
- **D** Dadra and Nagar Haveli and Daman and Diu (2020)

Administrators run UTs for the President; the words give the eight UTs in order of the handout table (years in the chips). (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · WHY UNION TERRITORIES WERE CREATED

A C T S

- **A** Administrative and political convenience (Delhi, Chandigarh)
- **C** Cultural and historical distinctiveness (Puducherry, Dadra and Nagar Haveli and Daman and Diu)
- **T** Tribal and backward regions (former UTs Manipur, Tripura, Mizoram)
- **S** Strategic and security importance (Andaman and Nicobar, Lakshadweep, Ladakh)

ACTS: the four reasons behind creating Union Territories. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · UTS WHERE THE PRESIDENT MAKES REGULATIONS (NO LEGISLATURE)

H A L L

- **H** Haveli: Dadra and Nagar Haveli and Daman and Diu
- **A** Andaman and Nicobar Islands
- **L** Lakshadweep
- **L** Ladakh

With no Assembly the HALL is empty, so the President makes regulations for these four (Chandigarh also has no legislature but is not in the handout's regulation list). The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · SUBJECTS DELHI CANNOT LEGISLATE ON

L O P

- **L** Land
- **O** Order (public order)
- **P** Police

Delhi's law-making is LOPped by these three; J&K is barred from only public order and police. The order is rearranged for memory. (Memory aid, not from the handout.)

ROOTS AND IDEA OF UNION TERRITORIES

- Union Territories began as British arrangements for **backward and strategically important regions**, and became a flexible tool of Indian federalism.

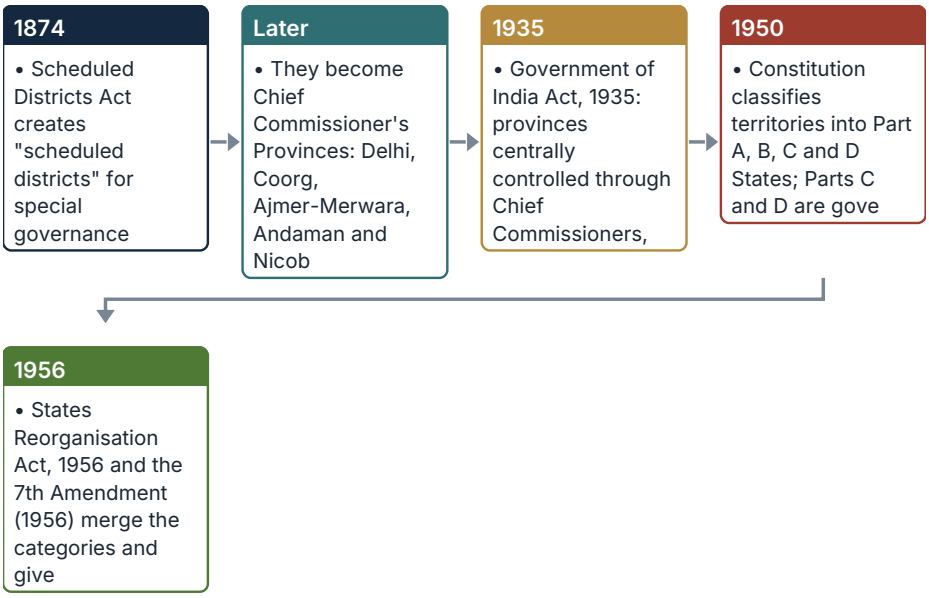
HOW THE UT IDEA EVOLVED

- **1874**: Scheduled Districts Act creates "scheduled districts" for special governance
- **Later**: They become **Chief Commissioner's Provinces**: Delhi, Coorg, Ajmer-Merwara, Andaman and Nicobar Islands
- **1935**: Government of India Act, 1935: provinces centrally controlled through Chief Commissioners, the early model of direct Union administration

MY NOTES

- **1950**:
  - Constitution classifies territories into **Part A, B, C and D States**
  - Parts C and D are governed directly by the Centre
- **1956**: **States Reorganisation Act, 1956** and the **7th Amendment (1956)** merge the categories and give the modern concept of Union Territories

HOW THE UT IDEA EVOLVED



- Several UTs later became full States: **Himachal Pradesh, Manipur, Tripura, Mizoram, Arunachal Pradesh and Goa**, showing a dynamic and flexible federal design.
- **Shortcut: Origin shortcut. 74 (1874) scheduled, 35 (1935) commissioners, 50 (1950) Parts, 56 (1956) UTs born.**

WHY UTS WERE CREATED

- Statehood was impractical for each of these, for a different reason.

FOUR REASONS FOR CREATING UTS

Reason	Examples	Why
Political and administrative convenience	Delhi, Chandigarh	Central control for efficient national governance; neutral administration as national capital and joint capital
Cultural and historical distinctiveness	Puducherry, Dadra and Nagar Haveli and Daman and Diu	Preserve the French and Portuguese colonial heritage; special administrative treatment
Strategic and security importance	Andaman and Nicobar Islands, Lakshadweep, Ladakh	Key maritime and border positions; defence and surveillance justify direct Central administration

MY NOTES

Reason	Examples	Why
Tribal and backward regions	Former UTs Manipur, Tripura, Mizoram	Focused governance and development before statehood

- **Memory aid (Four reasons):** **C**onvenience, **C**ulture, **S**trategy, **T**ribal and backward: "**C**ats **C**an **S**tay **T**onight".

ALSO IN THE HANDOUT

- Each UT reflects a distinct rationale shaped by historical and administrative circumstances.

THE EIGHT UTS TODAY

- At present there are **eight Union Territories**, governed under **Articles 239 to 241**.

PRESENT COMPOSITION (THE HANDOUT'S TABLE)

No.	Union Territory	Year of creation or latest reorganisation	Special feature and administrative head
1	**Andaman and Nicobar Islands**	1956	Strategic maritime territory in the Bay of Bengal; Lieutenant Governor
2	**Delhi (National Capital Territory)**	1956 (re-designated in 1992)	National capital with an elected legislature; Lieutenant Governor
3	**Lakshadweep**	1956	**Smallest UT**; group of islands in the Arabian Sea; Administrator appointed by the President
4	**Puducherry**	1962	Former French colony with unique culture; Legislative Assembly and Lt. Governor
5	**Chandigarh**	1966	Joint capital of Punjab and Haryana; Administrator
6	**Jammu and Kashmir**	2019	Created after bifurcation of the former State; UT **with** Legislature
7	**Ladakh**	2019	Created alongside J&K; UT **without** Legislature, directly administered by Lt. Governor

MY NOTES

No.	Union Territory	Year of creation or latest reorganisation	Special feature and administrative head
8	**Dadra and Nagar Haveli and Daman and Diu**	2020 (merger of two UTs)	Merged for administrative efficiency; Administrator

- **Memory aid (Eight UTs):** **A**&N, **D**elhi, **L**akshadweep, **P**uducherry, **C**handigarh, **J**&K, **L**adakh, **D**NH and DD: "**A**ny **D**ancer **L**ikes **P**retty **C**olourful **J**ewelled **L**ehengas, **D**ear".

WHO HEADS WHICH UT

- **Lieutenant Governor (5):**
  - Delhi
  - Puducherry
  - Andaman and Nicobar Islands
  - Jammu and Kashmir
  - Ladakh
- **Administrator (3):**
  - Chandigarh
  - Lakshadweep
  - Dadra and Nagar Haveli and Daman and Diu
- **Memory aid (Lt Governors):** **D**elhi, **P**uducherry, **A**&N, **J**&K, **L**adakh: "**D**ear **P**olice **A**lways **J**ust **L**isten".

> **HANDOUT ALERT**
> Handout alert: **Delhi's dates differ inside the handout**: the table says "1956 (re-designated in 1992)", the Delhi section says the **69th Amendment Act, 1991**, and the framework section says "Delhi (1992)". Read it as: the Act is of **1991**, Delhi is re-designated NCT in **1992**.

HOW UTS ARE ADMINISTERED

- Articles **239 to 241** (Part VIII) govern UTs. All fall under the **direct control of the Centre**, but structures differ.

1. ADMINISTRATION BY THE PRESIDENT

- Every UT is administered by the **President**, acting through an **Administrator** he appoints.
- The Administrator is an **agent of the President**, not a constitutional head like a State Governor.
- The President decides the **designation**: Lieutenant Governor, Chief Commissioner, or simply Administrator.
- The President may appoint the **Governor of a neighbouring State** as Administrator of an adjoining UT
- He then acts **independently of the State's Council of Ministers**

MY NOTES

2. LEGISLATIVE AND EXECUTIVE FRAMEWORK

- Three UTs have a Legislative Assembly and a Council of Ministers headed by a Chief Minister: **Delhi (1992), Puducherry (1963), Jammu and Kashmir (2019)**.
- The other **five** are governed directly by the Centre through Administrators.
- Elected institutions **do not dilute** the supreme authority of the President and Parliament.

3. LEGISLATIVE POWERS OF PARLIAMENT

PARLIAMENT AND THE LOCAL ASSEMBLIES

UT Assembly	Can legislate on	Except
Delhi	State and Concurrent Lists	**Public order, police and land**
Puducherry	State and Concurrent Lists	None stated
Jammu and Kashmir	State and Concurrent Lists	**Public order and police**

- Parliament may legislate on **any subject** of the Union, State or Concurrent List for **all UTs**, and **Parliament's law prevails** in a conflict.
- **Memory aid (Delhi's three barred subjects): P**ublic order, **P**olice, **L**and: "**P**olite **P**eople **L**eave".

4. PRESIDENT'S POWER TO MAKE REGULATIONS

- For UTs **without** legislatures, the President can issue regulations for **peace, progress and good governance**. The handout names **Andaman and Nicobar Islands, Lakshadweep, Ladakh, and Dadra and Nagar Haveli and Daman and Diu**.
- These regulations have the **same force as Acts of Parliament** and may **amend or repeal** Central laws.
- In **Puducherry** the power applies only when the Assembly is **suspended or dissolved**.

> **HANDOUT ALERT**
> Handout alert: Five UTs have no legislature (including **Chandigarh**), but the regulation-making list above names **only four** and omits Chandigarh. Use the handout's list as given for answers, and remember the point is "UTs without legislatures".

MY NOTES

5. JUDICIAL ADMINISTRATION

HIGH COURTS OF THE UTS

Union Territory	High Court
Delhi	**Own** High Court (established **1966**), the only UT with one
Andaman and Nicobar Islands	Calcutta
Chandigarh	Punjab and Haryana
Lakshadweep	Kerala
Puducherry	Madras
Dadra and Nagar Haveli and Daman and Diu	Bombay
Jammu and Kashmir and Ladakh	**Common** High Court of J&K and Ladakh

- Parliament can set up a High Court for a UT or place it under a State's High Court.
- **Memory aid (UT with State High Court): C**alcutta (A&N), **P**unjab and Haryana (Chandigarh), **K**erala (Lakshadweep), **M**adras (Puducherry): "**C**ool **P**arrots **K**eep **M**angoes".

ALSO IN THE HANDOUT

- In all cases, Parliament's laws prevail in case of a conflict.

DELHI (NCT): ARTS. 239AA AND 239AB

- The **69th Constitutional Amendment Act, 1991** re-designated Delhi as the **National Capital Territory** and its administrator as the **Lieutenant Governor**, inserting **Articles 239AA and 239AB**. Delhi combines features of a UT and a State.

DELHI AT A GLANCE

Feature	Detail
Assembly	**70** directly elected members; elections by the **Election Commission of India**
Laws	State and Concurrent Lists except **public order, police and land**; Parliament's law prevails
Council of Ministers	Headed by the CM; up to **10%** of the Assembly (i.e. **seven**)
Appointment	**CM** appointed by the **President**; other ministers on the CM's advice
Tenure and duty	Hold office during the **President's pleasure**; collectively responsible to the Assembly
Role	Aids and advises the **LG**, except where the LG must act in his **discretion**

MY NOTES

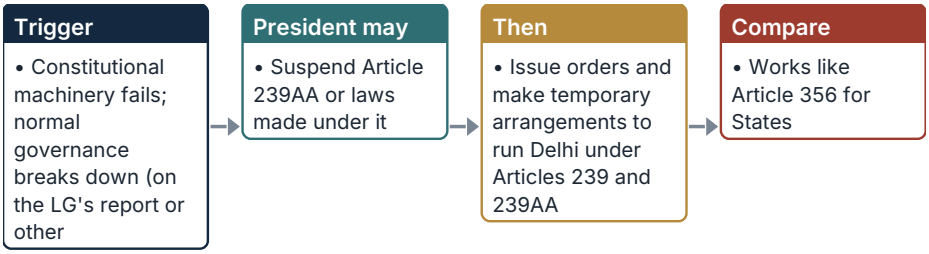
WHEN THE LG AND MINISTERS DISAGREE

- **Disagreement**: Between the LG and the Council of Ministers
- **Referred to**: The **President**
- **Decision**: **Binding**: Central oversight of the capital

PRESIDENT'S RULE IN DELHI (ART. 239AB)

- **Trigger**:
  - Constitutional machinery fails
  - Normal governance breaks down (on the LG's report **or otherwise**)
- **President may**: **Suspend** Article 239AA or laws made under it
- **Then**: Issue orders and make **temporary arrangements** to run Delhi under Articles 239 and 239AA
- **Compare**: Works like **Article 356** for States

PRESIDENT'S RULE IN DELHI (ART. 239AB)



ORDINANCE POWER

- **LG**: May promulgate ordinances during the **recess** of the Assembly, with the **force of an Act of the Assembly**
- **Condition**: **No ordinance** can be issued **or withdrawn** without the **President's prior approval**
- **After**: The Assembly must approve it within **six weeks** of reassembly

GNCTD (AMENDMENT) ACT, 2021

- Delhi Assembly rules must **not be inconsistent** with those of the **Lok Sabha**.
- The Assembly cannot make a rule allowing it to **inquire into administrative decisions**
- All earlier rules on this are **void**
- The Delhi Government must obtain the **LG's opinion** before acting on decisions.
- In these laws and documents, "**Government**" means the **Lieutenant Governor**.

MY NOTES

- The handout calls it an attempt to **overrule the Supreme Court**, which settled the position of the Centre and the Delhi Government in **2018**.
- **Memory aid (Delhi's key numbers):** **S**eventy members, **T**en per cent ministers (seven), **T**wo articles (239AA, 239AB): "**S**even **T**en **T**wo".

ALSO IN THE HANDOUT

- All previous rules in this regard are void.

PUDUCHERRY: ART. 239A

- **Article 239A** (inserted by the **14th Amendment Act, 1962**) lets Parliament create legislatures and councils of ministers for certain UTs, including Puducherry. Parliament then passed the **Government of Union Territories Act, 1963**.

PUDUCHERRY'S SPECIAL PROVISIONS

Feature	Detail
Assembly	Unicameral; up to **33 members**: **30 elected** and up to **3 nominated** by the Centre
Nominated members	Unique power of the Centre, **upheld by the Supreme Court (2021)**: equal voting rights as elected members
Laws	State and Concurrent Lists, subject to Parliament's overriding power; the President may give directions so laws fit national policy
Executive	The **LG** is administrative head; the CM-led Council **aids and advises** on matters within the Assembly's competence
Discretion and differences	LG acts independently where discretion is required or where differences arise; such matters go to the **President** for final decision
President's regulations	Only when the Assembly is **suspended or dissolved**; same force as Acts of Parliament, can amend or repeal laws
Regions	**Four** separated regions: **Puducherry, Karaikal, Mahe, Yanam** (Tamil, Malayalam and Telugu-speaking)

- The handout adds that the Assembly reflects this diversity through proportional representation and locally focused governance.
- **Memory aid (Puducherry's four regions):** **P**uducherry, **K**araikal, **M**ahe, **Y**anam: "**P**lease **K**eep **M**y **Y**ogurt".
- **Memory aid (Assembly numbers):** **30** elected plus up to **3** nominated makes up to **33**: "thirty vote, three nominated".

MY NOTES

JAMMU AND KASHMIR AND LADAKH

- The **Jammu and Kashmir Reorganisation Act, 2019**, in force from **31 October 2019**, split the erstwhile State into two UTs to improve governance, security and regional development.

J&K AGAINST LADAKH

- **Jammu and Kashmir (with Legislature):**
  - Legislative Assembly on the Delhi and Puducherry model
  - LG is administrative head and acts on aid and advice of a CM-led Council
  - Laws on State and Concurrent Lists except public order and police
  - Parliament can legislate on any subject
- **Ladakh (without Legislature):**
  - Administered by the President through the Lieutenant Governor
  - No elected legislature
  - LG exercises executive powers with Central officers
  - Ladakh Autonomous Hill Development Councils (LAHDCs) for Leh and Kargil manage local development and cultural affairs
- Both share one **High Court of Jammu and Kashmir and Ladakh**.
- Parliament can make laws for both
- The **President may issue regulations for Ladakh** for peace, progress and good governance
- **Shortcut: J&K shortcut. J&K = Assembly, minus police and public order. Ladakh = no Assembly, hill councils (Leh, Kargil).**

ADVISORY COMMITTEES FOR UTS

- The **Ministry of Home Affairs** (the nodal ministry for UTs) set up advisory committees under the **Government of India (Allocation of Business) Rules, 1961**, especially for UTs without legislatures.

TWO ADVISORY COMMITTEES

Committee	Chair	Members and role
Home Minister's Advisory Committee (HMAC)	**Union Home Minister**	High-level body for A&N Islands, Ladakh, Lakshadweep, Chandigarh and DNH and DD; discusses social, economic and infrastructure issues; reviews central schemes; guides administrators
Administrator's Advisory Committee (AAC)	**Administrator or Lt. Governor** of that UT	MPs, elected local representatives (District Panchayats or Municipal Councils) and UT officials; gives local feedback, coordination and accountability

- Together they blend **local representation with central oversight**.

MY NOTES

- **Memory aid (HMAC against AAC):**
  - **H**ome Minister heads the **H**igh-level one
  - **A**dministrator heads the **A**dvisory one at **A**dministrator level: "**H**ome is **H**igh, **A**dministrator is **A**t home"

UTS WITH AND WITHOUT A LEGISLATURE

COMPARATIVE OVERVIEW (THE HANDOUT'S TABLE)

Feature	UTs with Legislature (Delhi, Puducherry, J&K)	UTs without Legislature (A&N Islands, Ladakh, Chandigarh, Lakshadweep, DNH and DD)
Constitutional basis	Articles 239A, 239AA and 239AB	Article 239
Legislative body	Legislative Assembly with elected representatives	No legislature; laws by Parliament or Presidential regulations
Executive authority	CM-headed Council aids and advises the Administrator or LG	Administrator or LG directly administers under the President's direction
Local law-making	State and Concurrent Lists except specified ones (police, land, public order in Delhi; police and public order in J&K)	No law-making powers vested in local administration
Parliament's power	Can legislate on any matter; local legislature also has powers, subject to Union supremacy	Complete legislative control
Judicial system	Under the concerned State High Court (e.g. one common High Court for J&K and Ladakh)	Under nearby State High Courts

- **Quick test:** If the question says "Council of Ministers headed by a Chief Minister", the UT is **Delhi, Puducherry or J&K**. Everything else is run by an **Administrator or LG** under the President.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 41

- Lakshmikanth calls UTs 'centrally administered territories'. The Centre's relation with them is unitary, a clear departure from federalism
- States are federal members, UTs are not
- Reasons for the 2019 split of J&K: Ladakh has a large area, thin population and difficult terrain, and its people long demanded UT status (no legislature). J&K was made a separate UT with a legislature because of the internal security situation and cross-border terrorism.

MY NOTES

- Reasons for merging Dadra and Nagar Haveli (UT in 1961) with Daman and Diu (UT in 1962): common history, language and culture
- The same secretaries, police chief and forest chief
- Two duplicate secretariats
- The Administrator worked in both on alternate days. The government's slogan was 'Minimum Government, Maximum Governance'
- Old names:
  - Lakshadweep was Laccadive, Minicoy and Amindivi Islands till 1973
  - Puducherry was Pondicherry till 2006
- Delhi details:
  - The Chief Minister is appointed by the President (not by the LG)
  - Other ministers are appointed by the President on the CM's advice. The LG can withdraw an ordinance at any time but cannot issue one while the Assembly is dissolved or suspended. The 69th Amendment took effect from 1 February 1992
- The Constitution has no separate rules for acquired territories
- The UT provisions apply to them too
- Articles at a glance:
  - 239 administration of UTs
  - 239A local legislatures for certain UTs
  - 239AA special provisions for Delhi
  - 239AB failure of constitutional machinery
  - 239B administrator's ordinances during recess
  - 240 President's regulations
  - 241 High Courts for UTs
  - 242 Coorg (repealed)
- Ministry of Home Affairs is the nodal ministry for UT legislation, finance and budget, services, and appointment of LGs and Administrators. HMAC/AAC members include MPs and elected members of District Panchayats and Municipal Councils.
- States versus UTs (table):
  - States have a federal relation, autonomy, a uniform set-up and a Governor as constitutional head
  - UTs have a unitary relation, no autonomy, no uniformity and an Administrator as the President's agent. Parliament can make State List laws for States only in extraordinary circumstances, but for UTs on any subject

MY NOTES

- Lakshmikanth differs:
  - Assembly size. A footnote gives Puducherry 30 members, Delhi 70 and J&K 83, whereas the handout says Puducherry has up to 33 (30 elected plus up to 3 nominated) and gives no J&K figure. For the exam use the handout's 30 + 3 nominated
  - Keep 83 for J&K in mind
- Lakshmikanth differs: count. One line says the remaining 'six' UTs have no assemblies, but its own table and list show five without a legislature. Use five (handout).

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

What are the Articles for administration of UTs?	Articles 239 to 241 under Part VIII.
How many UTs exist now?	Eight.
Which UTs have Legislative Assemblies?	Delhi, Puducherry and Jammu and Kashmir.
Who administers a UT?	The President, through an Administrator (an agent of the President, not a constitutional head like a Governor).
Which UTs have a Lieutenant Governor?	Delhi, Puducherry, Andaman and Nicobar Islands, Jammu and Kashmir, Ladakh.
Which UTs have an Administrator?	Chandigarh, Lakshadweep, Dadra and Nagar Haveli and Daman and Diu.
Which subjects can Delhi's Assembly not legislate on?	Public order, police and land.
Which subjects can J&K's Assembly not legislate on?	Public order and police.
Who wins when Parliament's law and the UT Assembly's law conflict?	Parliament's law.
Which UT's regulation power by the President is limited to periods of suspension or dissolution?	Puducherry.
Which Amendment re-designated Delhi as NCT?	The 69th Amendment Act, 1991 (Arts. 239AA, 239AB).
How many members in the Delhi Assembly and how many ministers at most?	70 members; ministers up to 10% of the Assembly, i.e. seven.
What happens when the LG and Delhi ministers disagree?	It is referred to the President, whose decision is binding.

What is Article 239AB?	The President may suspend Art. 239AA or laws under it when normal governance in Delhi breaks down.
Within how long must an LG ordinance be approved?	Within six weeks of the Assembly reassembling; the President's prior approval is needed to issue or withdraw it.
Which Article and Amendment give Puducherry its legislature?	Article 239A, inserted by the 14th Amendment, 1962; the Government of Union Territories Act, 1963.
What are the four regions of Puducherry?	Puducherry, Karaikal, Mahe, Yanam.
Which High Courts serve the other UTs?	All share: Calcutta (A&N), Punjab and Haryana (Chandigarh), Kerala (Lakshadweep), Madras (Puducherry), Bombay (DNH and DD), common J&K and Ladakh High Court.
When did the J&K Reorganisation Act take effect?	31 October 2019.
What are LAHDCs?	Ladakh Autonomous Hill Development Councils for Leh and Kargil.
Which committee does the Union Home Minister chair for UTs?	The Home Minister's Advisory Committee (HMAC).
Which Rules created the UT advisory committees?	Government of India (Allocation of Business) Rules, 1961.
Which Act created the scheduled districts?	The Scheduled Districts Act of 1874.
What did the GNCTD (Amendment) Act, 2021 say "Government" means?	The Lieutenant Governor.
Which UT is the smallest?	Lakshadweep.

Trap 1 · Puducherry: 1962 or 1963

The handout gives 1962 as the year Puducherry became a UT (14th Amendment, Art. 239A) but 1963 as the year it got its Assembly (Government of Union Territories Act, 1963). *Rule: 1962 = UT status; 1963 = Legislative Assembly.*

Trap 2 · Delhi: 1956, 1991 or 1992

Delhi became a UT in 1956. The 69th Amendment is of 1991, and the table says it was re-designated as NCT in 1992. *Rule: amendment 1991, NCT and Assembly from 1992.*

MY NOTES

Trap 3 · What each Assembly cannot touch

Delhi cannot legislate on public order, police and land. J&K cannot touch public order and police. Puducherry has no such exclusion. In all three, Parliament's law prevails. *Rule: Delhi = 3 excluded subjects (police, public order, land); J&K = 2; Puducherry = none.*

Trap 4 · Administrator versus Governor

An Administrator is only the President's agent. If the President names a neighbouring State's Governor as Administrator, that Governor acts independently of the State's Council of Ministers. *Rule: UT head = President's agent; a Governor acting as Administrator is not bound by State ministers.*

QUICK QUIZ

Q1. Which Union Territory is the only one with its own High Court?

1. Puducherry
2. Chandigarh
3. Delhi
4. Lakshadweep

Q2. Which of the following lists the UTs with a Legislative Assembly and a Council of Ministers?

1. Delhi, Puducherry, Jammu and Kashmir
2. Delhi, Chandigarh, Ladakh
3. Puducherry, Lakshadweep, Ladakh
4. Delhi, Puducherry, Chandigarh

Q3. The Delhi Legislative Assembly CANNOT make laws on which set of subjects?

1. Education, health, roads
2. Public order, police and land
3. Public order and police only
4. Agriculture, forests, fisheries

Q4. Articles 239AA and 239AB were inserted by which Amendment?

1. 7th Amendment, 1956
2. 14th Amendment, 1962
3. 69th Amendment, 1991
4. 100th Amendment, 2015

Q5. If the Delhi LG and the Council of Ministers disagree, the matter is referred to:

1. The Supreme Court
2. Parliament
3. The Election Commission
4. The President

Q6. The Puducherry Legislative Assembly consists of:

1. 30 elected members only
2. 33 elected members
3. Up to 33 members: 30 elected and up to 3 nominated
4. 70 elected members

Q7. Who chairs the Home Minister's Advisory Committee for Union Territories?

1. The Administrator
2. The Lieutenant Governor
3. The Prime Minister
4. The Union Home Minister

Q8. The President can make regulations for this UT only when its Assembly is suspended or dissolved. Which UT?

1. Delhi
2. Puducherry
3. Jammu and Kashmir
4. Chandigarh

MY NOTES

Q9. Which High Court has jurisdiction over Dadra and Nagar Haveli and Daman and Diu?

1. Bombay
2. Kerala
3. Madras
4. Calcutta

Q10. Which one of the following is the smallest Union Territory in the handout's table?

1. Chandigarh
2. Lakshadweep
3. Puducherry
4. Delhi

Answers: Q1 c, Q2 a, Q3 b, Q4 c, Q5 d, Q6 c, Q7 d, Q8 b, Q9 a, Q10 b

MY NOTES

CHAPTER 27 · HANDOUT PAGES ON SCHEDULED AND TRIBAL AREAS

27 Scheduled and Tribal Areas

HIGH PRIORITY Mains PYQs quoted: **2013, 2016, 2017**

Prelims PYQs: **2008, 2013, 2015, 2019, 2022, 2023, 2025**

EXAM LENS

Prelims hooks

- Fifth versus Sixth Schedule
- who declares Scheduled Areas
- whether a Fifth Schedule area transfers executive power
- Governor's report
- land transfer protection
- PESA objectives and Gram Sabha powers.
- Handout stresses: Eleven Prelims and three Mains PYQs are quoted (Prelims 2008, 2013 x2, 2015, 2019, 2021, 2022, 2023, 2025 and two undated; Mains 2013, 2016, 2017) (PYQ section)
- Handout stresses: Fifth Schedule questions dominate: Scheduled Areas (2008), the Fifth and Sixth Schedules together (2015), tribal land transfer for mining (2019), consequence of the Fifth Schedule (2022), notification and reports (2023, 2025) (PYQ section)
- Handout stresses: PESA Act objective asked in 2013: it gives self-governance, recognises traditional rights and frees tribals from exploitation, but does not create autonomous regions (PESA section)
- Handout stresses: Several PYQs concern the Forest Rights Act, 2006 and Scheduled Tribe declaration, which the chapter text does not cover (PYQ section)

Mains hooks

- the Fifth Schedule and Left Wing extremism (2013)
- legal initiatives against discrimination of Scheduled Tribes (2017)
- why tribals are "Scheduled Tribes" and the constitutional provisions for them (2016).

MY NOTES

Article 244 gives tribal India two tracks of protection: guardianship through the Governor and Tribes Advisory Council in the Fifth, self-rule through elected councils in the Sixth.

IN SIMPLE WORDS

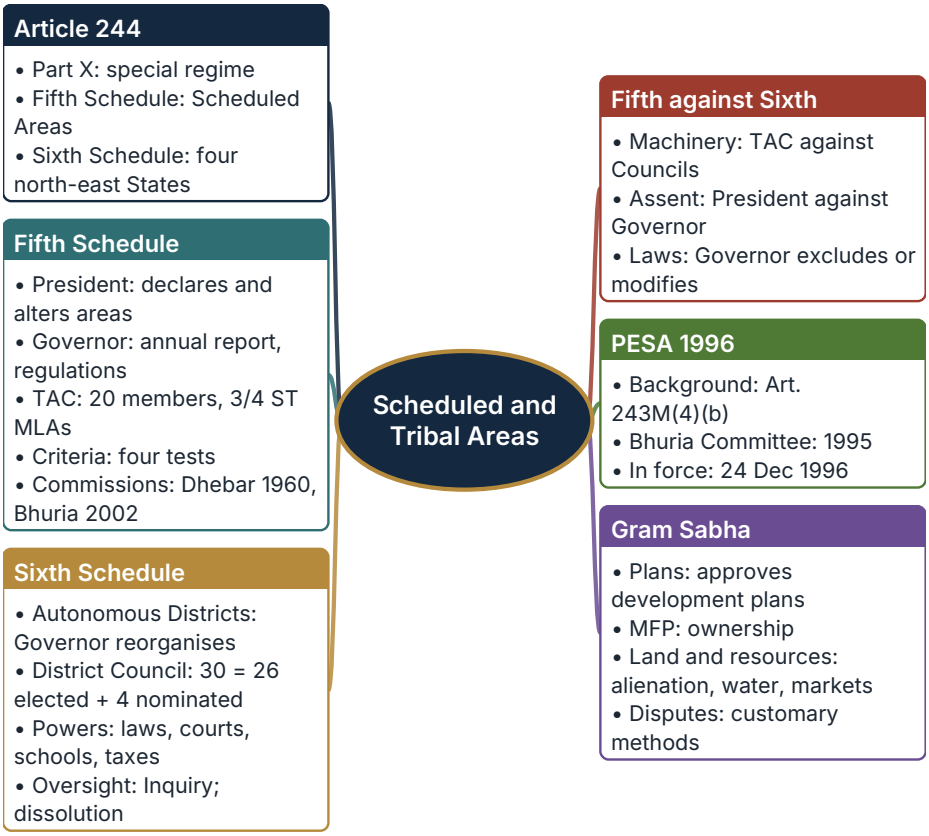
- **Art. 244** (Part X) sets a special system for **scheduled areas** and **tribal areas**. The **Fifth Schedule** covers scheduled areas and tribes in any State **except Assam, Meghalaya, Tripura and Mizoram**
- The **Sixth Schedule** covers tribal areas of those **four** North-East States
- **Fifth Schedule:** the **President** declares or changes Scheduled Areas after consulting the Governor. The **Governor** reports to the President and can adapt laws and make regulations (with the President's assent). A **Tribes Advisory Council (TAC)** of **20** members advises.
- **Sixth Schedule:** tribal areas become **Autonomous Districts** (and Autonomous Regions), each with a **30-member** council (**26 elected, 4 nominated**) that can make laws, run courts and collect land revenue and taxes.
- Laws of Parliament and the State do not automatically apply in autonomous areas
- They apply only with changes or not at all. The **Governor** can order an inquiry and even dissolve a council
- Reviews: **Dhebar Commission** (appointed 1960, report 1961) and **Bhuria Commission** (2002, report 2004).
- **PESA Act, 1996** (in force **24 December 1996**) extends Panchayati Raj to Fifth Schedule areas and makes the **Gram Sabha** the nodal authority, with ownership of **minor forest produce**.

Key term	In plain words
Scheduled Area	Tribal-dominated area declared by the President under the Fifth Schedule (outside the four NE States)
Tribal Area	Area in Assam, Meghalaya, Tripura or Mizoram governed by the Sixth Schedule
Tribes Advisory Council	20-member body in each State with Scheduled Areas; three-fourths are ST members of the Assembly
Autonomous District	Tribal area of the four NE States given self-governing powers, still under the State's executive authority
Autonomous Region	Sub-division of a district when many tribes live there, with its own Regional Council

MY NOTES

Key term	In plain words
District Council	30 members: 26 elected for five years, 4 nominated by the Governor (during pleasure)
PESA Act, 1996	Law extending Part IX (Panchayats) to Fifth Schedule areas; based on the Bhuria Committee (1995)
Minor Forest Produce (MFP)	Items such as tendu leaves, honey and bamboo; the Gram Sabha owns and manages them under PESA

MEMORY MAP: SCHEDULED AND TRIBAL AREAS



MNEMONIC · CRITERIA FOR DECLARING A SCHEDULED AREA

A R E A

- **A** A preponderance of tribal population
- **R** Reasonable size and compactness of the area
- **E** Economic backwardness compared with neighbouring areas
- **A** Administrative entity that is viable, such as a District, Block or Taluk

The topic is a Scheduled AREA, and these are its four criteria. The order is rearranged for memory. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · GOVERNOR'S REGULATIONS IN SCHEDULED AREAS

M A T

- **M** Money-lending practices restricted
- **A** Allotment of land controlled
- **T** Transfer of land among Scheduled Tribe members prevented or regulated

The Governor lays a MAT of protection under tribal land (President's assent needed). The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · POWERS OF THE GRAM SABHA UNDER PESA

C O R D I A L

- **C** Control over local markets (haats) and money-lending
- **O** Ownership of minor forest produce
- **R** Resources: management of village resources such as minor water bodies
- **D** Dispute resolution through customs
- **I** Identification of beneficiaries
- **A** Approval of development plans
- **L** Land alienation prevented

The Gram Sabha, the nodal authority, settles matters in the village itself (even disputes by custom) and keeps tribal self-rule CORDIAL. All seven powers of the handout are covered; the order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · SIXTH SCHEDULE STATES

Autonomous Mountain Tribes Manage

- **A** Assam
- **M** Meghalaya
- **T** Tripura
- **M** Mizoram

The autonomous mountain tribes of the North-East manage themselves: the four Sixth Schedule States. No good single word exists for this list, so this is a sentence aid; the order of items is free. (Memory aid, not from the handout.)

ARTICLE 244: TWO TRACKS

- **Article 244**, in **Part X**, creates a distinct administrative regime for "scheduled areas" and "tribal areas" because of their unique social, cultural and historical circumstances.

THE TWO TRACKS

- **Fifth Schedule:** Administration and control of Scheduled Areas and Scheduled Tribes in **any State except** Assam, Meghalaya, Tripura and Mizoram
- **Sixth Schedule:** Autonomous arrangements for the tribal areas of **Assam, Meghalaya, Tripura and Mizoram**

MY NOTES

- **Shortcut: Track shortcut. Fifth = outside the north-east, Governor and TAC. Sixth = inside the four north-east States, elected councils.**

ALSO IN THE HANDOUT

- Its provisions apply to scheduled areas and tribal populations outside the specified northeastern region and provide the central statutory basis for administration in those parts of the country.

FIFTH SCHEDULE: SCHEDULED AREAS

- Scheduled Areas are largely inhabited by tribal communities who have faced **social and economic marginalisation**. The Constitution limits the direct application of the ordinary State administration and gives the **Union a greater supervisory role**.

IDENTIFICATION AND MODIFICATION

- The **President** holds **exclusive authority** to designate any area as a Scheduled Area, in consultation with the Governor.
- This includes **increasing or reducing** the area, **modifying boundaries**, and **cancelling** or issuing fresh notifications.

EXECUTIVE POWERS

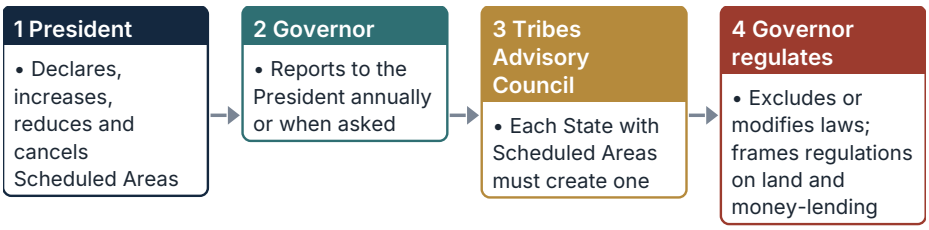
- The **State's executive power continues** within Scheduled Areas.
- The **Governor** carries a special responsibility: periodic reports to the President on administration, **annually or whenever directed**.
- The **Union** may issue **directions** to the State for good governance and welfare.

FIFTH SCHEDULE IN FOUR MOVES

- **1 President**: Declares, increases, reduces and cancels Scheduled Areas
- **2 Governor**: Reports to the President annually or when asked
- **3 Tribes Advisory Council**: Each State with Scheduled Areas must create one
- **4 Governor regulates**:
  - Excludes or modifies laws
  - Frames regulations on land and money-lending

MY NOTES

FIFTH SCHEDULE IN FOUR MOVES



- **Memory aid (Four moves):** **P**resident declares, **G**overnor reports, **T**AC, **R**egulations: "**P**retty **G**irls **T**ake **R**ides".

HANDOUT ALERT

Handout alert: PYQ 2023 tests who reports. The notes say the **Governor** reports to the **President** (not the Chief Minister to the Home Ministry). Two of the three statements in that PYQ are correct, as printed in the handout.

TRIBES ADVISORY COUNCIL AND GOVERNOR'S REGULATIONS

TRIBES ADVISORY COUNCIL (TAC)

TAC (AS PRINTED IN THE HANDOUT)

Point	Detail
Who creates it	Each State with Scheduled Areas
Size	**20 members** in total
Composition	**Three-fourths** are elected ST representatives in the Legislative Assembly
Extra	The President may direct even a State with Scheduled Tribes but **no Scheduled Areas** to set up a TAC
Purpose	Community participation in tribal welfare and advancement

HANDOUT ALERT

Handout alert: This chapter says "total 20 members". The Schedules chapter (Ch 4) says "**up to 20**" and adds that, if STs have little representation, the Governor nominates and **not less than half** must be ST persons. Use "up to 20, about three-fourths ST MLAs" for answers.

GOVERNOR'S LEGISLATIVE AND REGULATORY POWER

- The Governor may **exclude or modify** the application of Acts of Parliament or the State law in Scheduled Areas.
- The Governor may frame **regulations** to: **prevent or regulate land transfer among Scheduled Tribe members**, **control land allotment**, and **restrict exploitative money-lending**.

MY NOTES

- Regulations need the **President's assent** before they come into force.
- The Governor may even **repeal or amend** existing laws in Scheduled Areas, subject to constitutional approval.
- **Memory aid (Regulation topics):** **T**ransfer of land, **A**llotment of land, **M**oney-lending: "**T**ribal **A**reas **M**atter".

CRITERIA AND COMMISSIONS FOR SCHEDULED AREAS

CRITERIA FOR DECLARING A SCHEDULED AREA (THE HANDOUT'S BOX)

No.	Criterion
1	**Preponderance of tribal population**
2	**Compactness and reasonable size** of the area
3	**A viable administrative entity** such as a District, Block or Taluk
4	**Economic backwardness** compared with neighbouring areas

- **Memory aid (Four criteria):** **P**reponderance of tribals, **C**ompactness, **V**iable administrative unit, **E**conomic backwardness: "**P**lease **C**ome **V**isit **E**den".

COMMISSIONS ON SCHEDULED AREAS

- The President must appoint a commission to **evaluate governance and welfare** in Scheduled Areas periodically.

THE TWO COMMISSIONS

Commission	Appointed	Chair	Report
First	1960	**U.N. Dhebar**	1961
Second	2002	**Dilip Singh Bhuria**	2004

- **Memory aid (Two commissions):** **D**hebar then **B**huria: "**D**ouble **B**ed".

> **HANDOUT ALERT**
> Handout alert: **Dilip Singh Bhuria** appears twice: as chair of the **2002 Scheduled Areas commission** and as head of the **1995 committee** behind PESA. They are different bodies.

ALSO IN THE HANDOUT

- [TABLE CELLS] 13 / The criteria for declaring any area / as a scheduled area is as follows: / 1.

MY NOTES

SIXTH SCHEDULE: TRIBAL AREAS OF THE NORTH-EAST

- It covers **Assam, Meghalaya, Tripura and Mizoram**, where tribal groups kept their **indigenous cultural identity, customs and traditional institutions**. The Constitution gives them **substantial autonomy and self-governing powers**.

STRUCTURE

- The tribal areas are **Autonomous Districts**, still within the **State Government's** executive authority.
- The **Governor** can restructure them: alter **boundaries**, **size**, **names**, and **create or abolish** districts.
- If several tribes live in one district, the Governor may form **Autonomous Regions** with separate **Regional Councils**.

COUNCIL COMPOSITION

Point	Detail
Members per District Council	**30**
Elected	**26** by adult suffrage, five-year term
Nominated	**4** by the Governor, serve at the Governor's pleasure

- **Memory aid (Council of 30):** **26** elected plus **4** nominated makes **30**: "twenty-six vote, four named".
- **Memory aid (Sixth States):** **A**ssam, **M**eghalaya, **T**ripura, **M**izoram: "**A**ll **M**y **T**ribal **M**ates".

ALSO IN THE HANDOUT

- Although granted autonomy, they remain within the overall executive authority of the respective State Government.
- Creation of Autonomous Regions within Districts If multiple tribes inhabit a single district, the Governor may further subdivide the area into Autonomous Regions to ensure adequate representation for each tribal group.

SIXTH SCHEDULE: POWERS OF THE COUNCILS

LAW-MAKING

- District and Regional Councils make laws on: **land use and ownership**, **forests (excluding reserved forests)**, **water resources like canals**, **village administration**, **inheritance**, **customary marriage and divorce**, **local social customs**. These laws come into force **only with the Governor's assent**.

MY NOTES

- **Memory aid (Seven subjects):** **L**and, **F**orests (not reserved), **W**ater, **V**illage administration, **I**nheritance, **M**arriage and divorce, **C**ustoms: "**L**ittle **F**rogs **W**ade **V**ery **I**ndifferently **M**ost **C**ongested".

JUSTICE

- Councils may set up **village councils or courts** for civil and tribal cases.
- **Appeals** go to the District or Regional Council.
- The Governor decides the **extent of High Court jurisdiction** over these courts.

ADMINISTRATION AND WELFARE

- District Councils can manage **primary schools, markets, dispensaries, roads, ferries and fisheries**.
- They may regulate **money-lending and trade by non-tribals**, subject to the Governor's assent.
- **Memory aid (Council works):** **P**rimary schools, **M**arkets, **D**ispensaries, **R**oads, **F**erries and fisheries: "**P**ay **M**y **D**ear **R**ickshaw **F**are".

FINANCE

- Assess and collect **land revenue** and impose **certain local taxes**: an independent financial base.

GENERAL LAWS AND OVERSIGHT

- Acts of Parliament or the State Legislature **do not automatically apply**: they apply with **modifications** or are **excluded**.
- The Governor may set up a **Commission of Inquiry**
- On its recommendation the Governor can **modify arrangements** or even **dissolve** a District or Regional Council

ALSO IN THE HANDOUT

- Unlike tribal populations in many other parts of India who have assimilated into mainstream society to a significant extent, these northeastern tribes continue to live by their own cultural and social value systems.
- Judicial Functions through Local Courts To uphold customary justice systems, the Councils may: - Establish village councils or courts - Handle civil disputes and tribal cases Appeals may be taken to the District or Regional Council.
- Administrative Powers and Community Welfare Responsibilities District Councils can manage and develop public service and commerce infrastructure: - Primary schools - Markets - Dispensaries - Roads - Ferries and fisheries They may also regulate money-lend-

MY NOTES

ing and trade by non-tribals, subject to Governor's assent, to prevent exploitation of tribal communities.

FIFTH AGAINST SIXTH

COMPARING THE TWO SCHEDULES (FROM THE HANDOUT'S TEXT)

Point	Fifth Schedule	Sixth Schedule
Where	Any State except Assam, Meghalaya, Tripura, Mizoram	Assam, Meghalaya, Tripura, Mizoram
Units	**Scheduled Areas** (declared by the President)	**Autonomous Districts and Regions** (restructured by the Governor)
Main body	**Tribes Advisory Council** (20 members)	**District and Regional Councils** (30 members in a District Council)
Laws	Governor excludes or modifies Acts; makes **regulations**	Councils **make laws** on listed subjects
Assent	Regulations need the **President's assent**	Council laws need the **Governor's assent**
Courts	Not mentioned	Village councils and courts; appeals to the Councils
Finance	Not mentioned	Land revenue and local taxes
Oversight	Governor's annual report; commissions of 1960 and 2002	Governor's Commission of Inquiry; can dissolve a Council
Core idea	Protection and supervision of land and livelihood	Autonomy and self-governance

- **Quick rule: Autonomous region or district = Sixth.** If PESA is said to "create autonomous regions", it is wrong (PYQ 2013).

PESA ACT, 1996: BACKGROUND

- The **Panchayats (Extension to the Scheduled Areas) Act, 1996** extended the **73rd Amendment (1992)** to Fifth Schedule areas, which are mostly inhabited by Scheduled Tribes.

HOW PESA CAME ABOUT

- **1992**: 73rd Amendment constitutionalises Panchayati Raj but does **not** automatically apply to Scheduled Areas
- **Art. 243M(4)(b)**: Parliament may, by law, extend **Part IX** to Scheduled Areas with suitable modifications and exceptions
- **1995**: **Dilip Singh Bhuria Committee** (an MP) examines how to adapt Panchayati Raj to tribal traditions
- **24 December 1996**: **PESA Act comes into force**

MY NOTES

HOW PESA CAME ABOUT

1992
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→ **Art. 243M(4)(b)**
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- Dilip Singh Bhuria Committee (an MP) examines how to adapt Panchayati Raj to tribal tradit

→ **24 December 1996**
- PESA Act comes into force

SALIENT FEATURES OF PESA

Feature	Description
Applicability	Extends **Part IX** to the Fifth Schedule areas with necessary modifications
Gram Sabha	The foundation of local self-governance: direct powers over resource management, social justice and development
Autonomy	Tribal communities manage their own affairs in line with customs and traditions
Consultation	Panchayats must be consulted before **land acquisition, rehabilitation or resettlement**
Control over resources	**Minor forest produce, land alienation, minor water bodies, village markets**
Disputes	Resolved by Gram Sabha under tribal customs
Adaptation by States	Each State with Scheduled Areas must amend its Panchayati Raj Act to conform

- **Memory aid (PESA states):** **A**ndhra Pradesh, **C**hhattisgarh, **G**ujarat, **H**imachal Pradesh, **J**harkhand, **M**adhya Pradesh, **M**aharashtra, **O**disha, **R**ajasthan, **T**elangana: "**A** **C**ool **G**uy **H**elps **J**ust **M**y **M**other **O**ften **R**un **T**ea".

PESA: KEY PROVISIONS AND GRAM SABHA POWERS

KEY PROVISIONS OF PESA

Provision	Meaning
Gram Sabha as nodal authority	Approves development plans and projects while safeguarding traditions, customs, cultural identity and community resources
Mandatory consultation	State governments and panchayats must consult Gram Sabhas before acquiring land, resettling people or implementing schemes
Ownership of MFP	Gram Sabhas own and manage **minor forest produce**
Natural resources	Gram Sabhas regulate **land, water bodies and minor minerals**

MY NOTES

Provision	Meaning
Custom-based disputes	Traditional dispute resolution and customary laws recognised
Local institutions	Gram Sabhas approve licensing of **markets**, control **money lending** and regulate **intoxicants**
Traditional alignment	Panchayat structures must align with tribal traditions

GRAM SABHA POWERS UNDER PESA

- **Planning and welfare:**
  - Approve development plans and programmes
  - Identify beneficiaries of poverty alleviation and welfare programmes
- **Resources and rights:**
  - Own MFP (tendu leaves, honey, bamboo, etc.) with full rights to collect, process and sell
  - Be consulted to prevent land alienation and restore unlawfully alienated land
- **Markets and money:**
  - Control haats (weekly markets)
  - Regulate money lending
- **Village resources and justice:**
  - Manage minor water bodies and local natural resources sustainably
  - Resolve minor disputes by traditional customary methods
- **Memory aid (Gram Sabha's seven):** **D**evelopment plans, **B**eneficiaries, **M**FP, **L**and alienation, **H**aats and money, **W**ater and resources, **R**esolving disputes: "**D**on't **B**reak **M**y **L**ovely **H**ot **W**ater **R**ack".
- **PYQ trap:** PESA objectives: **self-governance, recognising traditional rights, freeing tribals from exploitation**. It does not create autonomous regions (2013).

ALSO IN THE HANDOUT

- It reflects India's constitutional commitment to integrating diverse populations while preserving indigenous identities and governance traditions.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 42

- Purpose of Scheduled Areas:
  - Preserve tribal autonomy, culture and economic empowerment
  - Ensure justice and peace
  - Protect tribals from exploitation. The Fifth Schedule is called 'a constitution within a constitution'

MY NOTES

- The four criteria for a Scheduled Area are not written in the Constitution
- They are well-established practice
- The Governor makes regulations for a Scheduled Area after consulting the Tribes Advisory Council. A regulation may even repeal or amend an Act of Parliament or the State legislature, but needs the President's assent.
- The President can appoint the commission on Scheduled Areas at any time but must do so after ten years of the Constitution's start
- Hence the 1960 commission. The second came after about four decades
- Ten States have Scheduled Areas: Andhra Pradesh, Telangana, Jharkhand, Chhattisgarh, Gujarat, Himachal Pradesh, Madhya Pradesh, Maharashtra, Odisha and Rajasthan.
- Why only four NE States get the Sixth Schedule: it stresses tribal self-rule, because many of these communities had ruled themselves until the British subjugated them in the 19th century.
- Ten tribal areas exist:
  - Assam (North Cachar Hills, Karbi Anglong, Bodoland Territorial Areas District)
  - Meghalaya (Khasi Hills, Jaintia Hills, Garo Hills)
  - Tripura (Tripura Tribal Areas District)
  - Mizoram (Chakma, Mara, Lai districts)
- Council law subjects in Lakshmikanth also include shifting cultivation. Councils can also construct or manage primary schools, dispensaries, markets, ferries, fisheries and roads.
- Power to direct that laws do not apply (or apply with changes) lies with the Governor in Assam for both Parliament's and State laws
- In Meghalaya, Tripura and Mizoram it lies with the President for Acts of Parliament and the Governor for State Acts
- Related articles:
  - 244 (administration of Scheduled and Tribal Areas)
  - 244A (autonomous State within Assam)
  - 339 (Union control over Scheduled Areas administration and ST welfare)

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Which Article covers Scheduled and Tribal Areas?	Article 244, in Part X.
Which States fall under the Sixth Schedule?	Assam, Meghalaya, Tripura and Mizoram.
Who declares Scheduled Areas?	The President, in consultation with the Governor.
What must every State with Scheduled Areas create?	A Tribes Advisory Council.
How big is the TAC and who fills it?	20 members; three-fourths elected ST representatives in the Assembly.
Who reports on Scheduled Areas and to whom?	The Governor to the President, annually or when directed.
What three matters can the Governor regulate in Scheduled Areas?	Land transfer among STs, land allotment, and exploitative money-lending.
Whose assent do the Governor's regulations need?	The President's.
What are the four criteria for a Scheduled Area?	Preponderance of tribal population; compactness and reasonable size; a viable administrative entity (District, Block, Taluk); economic backwardness.
Who chaired the first Scheduled Areas commission?	U.N. Dhebar, appointed 1960, report 1961.
Who chaired the second Scheduled Areas commission?	Dilip Singh Bhuria, appointed 2002, report 2004.
Composition of a Sixth Schedule District Council?	30 members: 26 elected, 4 nominated by the Governor; five-year term for elected members.
Which laws of Sixth Schedule councils need the Governor's assent?	All laws on land, forests (not reserved), water, village administration, inheritance, marriage and divorce, customs.
What can District Councils manage?	Primary schools, markets, dispensaries, roads, ferries and fisheries; they may regulate money-lending and trade by non-tribals.
Financial powers of Sixth Schedule councils?	Assess and collect land revenue; impose certain local taxes.
How can a Sixth Schedule Council be dissolved?	The Governor can do so on the recommendation of a Commission of Inquiry.

MY NOTES

How do general Acts apply in Sixth Schedule areas?	Not automatically: with modifications or excluded.
What did the 73rd Amendment leave out?	It did not automatically apply to Scheduled Areas; PESA extended it.
Which Article allowed PESA?	Article 243M(4)(b).
Which committee led to PESA?	The Dilip Singh Bhuria Committee of 1995.
When did PESA come into force?	December 24, 1996.
What is the Gram Sabha's role under PESA?	The nodal authority: approves plans, owns MFP, controls land, markets, money-lending and customary disputes.
Name PESA's MFP examples.	Tendu leaves, honey, bamboo.
Which States must conform their Panchayati Raj Acts to PESA?	Jharkhand, Chhattisgarh, Odisha, Maharashtra, Madhya Pradesh, Gujarat, Rajasthan, Andhra Pradesh, Telangana, Himachal Pradesh.
PYQ 2013: which is NOT a PESA objective?	Creating autonomous regions in tribal areas.
Who initiates the process for forest rights under the 2006 Forest Rights Act (as printed in PYQ 2013)?	The Gram Sabha.
Which Ministry is the nodal agency for the Forest Rights Act (PYQ 2021 answer)?	Ministry of Tribal Affairs.
PYQ 2022: what does a Fifth Schedule area do?	Prevents transfer of land of tribal people to non-tribals.
Mains 2013: Article 244 of the Indian Constitution relates to administration of scheduled areas and tribal areas.	Intro: Art. 244 is the base of the Fifth Schedule (Scheduled Areas) and Sixth Schedule (tribal areas of four north-eastern States) Body: The Fifth Schedule works through the President's declaration, the Governor's annual report, the Tribes Advisory Council and the Governor's regulations on land transfer, allotment and money-lending; where these safeguards are not applied tribal land and livelihood protection weakens (the handout does not discuss Left Wing extremism). Close: the Fifth Schedule protects only if the Governor and the State act on it. (Built from the notes only; the link to extremism is not in the handout.)

MY NOTES

Mains 2017: What are the two major legal initiatives by the State since Independence addressing discrimination against Scheduled Tribes	Intro: The handout's text names two legal tracks for tribal areas Body: Fifth and Sixth Schedules under Article 244 with protected land and self-rule; PESA 1996 giving Gram Sabha ownership of minor forest produce and control over land alienation and markets; the Forest Rights Act 2006 appears only in PYQs here. Close: Schedules protect land and autonomy while PESA gives village-level power. (The handout names no other initiatives.)
Mains 2016: Why are the tribals in India referred to as	Intro: The notes explain tribal regimes rather than the word Scheduled Tribes Body: Article 244 sets up Scheduled Areas and tribal areas because of their unique social, cultural and historical circumstances and marginalisation; Fifth Schedule: President declares areas, Governor reports and regulates land and money-lending, TAC advises; Sixth Schedule: autonomous district and regional councils with law-making, courts and taxes; PESA gives Gram Sabhas control of forest produce and land. Close: the Constitution protects tribal land, culture and self-governance through special regimes. (The handout does not explain the term Scheduled Tribes.)

Trap 1 · Fifth versus Sixth Schedule

Both come under Art. 244. The Fifth applies to scheduled areas in every State except four; the Sixth only to tribal areas of Assam, Meghalaya, Tripura and Mizoram. *Rule: Sixth = four NE States only; everywhere else = Fifth.*

Trap 2 · President or Governor

In the Fifth Schedule the President declares Scheduled Areas (after consulting the Governor). In the Sixth the Governor reorganises districts, and council laws need the Governor's assent. *Rule: declare Scheduled Area = President; reshape Autonomous Districts = Governor.*

Trap 3 · 20 or 30

The Tribes Advisory Council has 20 members (three-fourths ST MLAs). A District Council has 30 (26 elected plus 4 nominated). *Rule: Advisory Council 20; District Council 30.*

MY NOTES

Trap 4 · Two Bhurias and Dhebar

Dhebar Commission: 1960, report 1961. Bhuria Commission on Scheduled Areas: 2002, report 2004. A separate Bhuria Committee (1995) shaped PESA. *Rule: Dhebar first (1961); Bhuria commission 2004; Bhuria committee 1995 = PESA.*

QUICK QUIZ

Q1. How many members does a District Council under the Sixth Schedule have, according to the handout?

1. 20
2. 26
3. 30
4. 33

Q2. Which statement about regulations framed by the Governor for Scheduled Areas is correct?

1. They need the Governor's own assent only
2. They need the President's assent
3. They need the Supreme Court's assent
4. They need no assent

Q3. Who submits periodic reports on the administration of Scheduled Areas to the President?

1. The Chief Minister
2. The Governor
3. The Home Minister
4. The Chief Justice

Q4. The first commission on Scheduled Areas was chaired by:

1. Dilip Singh Bhuria
2. U.N. Dhebar
3. K.M. Panikkar
4. S.K. Dhar

Q5. The PESA Act came into force on:

1. 24 December 1996
2. 24 December 1992
3. 26 January 1996
4. 31 October 1996

Q6. Which Article lets Parliament extend Part IX to Scheduled Areas?

1. Article 243G
2. Article 243M(4)(b)
3. Article 244
4. Article 275

Q7. Which of the following is NOT among the subjects on which Sixth Schedule councils make laws?

1. Management of reserved forests
2. Inheritance
3. Village administration
4. Customary marriage and divorce

Q8. The Dilip Singh Bhuria Committee of 1995 was related to:

1. Scheduled Areas commission
2. PESA Act
3. Sixth Schedule councils
4. Fifth Schedule criteria

Q9. Which of these is NOT among the criteria for declaring a Scheduled Area?

1. Preponderance of tribal population
2. Compactness and reasonable size
3. Economic backwardness
4. Presence of a High Court

Q10. Under PESA, the Gram Sabha has ownership and management rights over:

1. Reserved forests
2. Minor forest produce
3. All minerals
4. Interstate rivers

MY NOTES

Q11. Which of the following States is NOT listed among the States adapting PESA in the handout?

1. Odisha
2. Rajasthan
3. Assam
4. Telangana

Q12. PYQ 2008: Which Schedule of the Constitution of India contains special provisions for the administration and control of Scheduled Areas in several States? (2008)

1. Third
2. Fifth
3. Seventh
4. Ninth

Q13. PYQ 2013: The Government enacted the Panchayat Extension to Scheduled Areas (PESA) Act in 1996. Which one of the following is not identified as its objective? (2013)

1. To provide self-governance
2. To recognize traditional rights
3. To create autonomous regions in tribal areas
4. To free tribal people from exploitation

Q14. PYQ Under the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006, who shall be the authority to initiate the process for determining the nature and extent of individual or community forest rights or both? (2013)

1. State Forest Department
2. District Collector/Deputy Commissioner
3. Tahsildar/Block Development Officer/Mandal Revenue Officer
4. Gram Sabha

Q15. PYQ 2015: The provisions in Fifth Schedule and Sixth Schedule in the Constitution of India are made in order to (2015)

1. protect the interests of Scheduled Tribes
2. determine the boundaries between States
3. determine the powers, authority and responsibilities of Panchayats
4. protect the interests of all the border States

Q16. PYQ 2019: Under which Schedule of the Constitution of India can the transfer of tribal land to private parties for mining be declared null and void? (2019)

1. Third Schedule
2. Fifth Schedule
3. Ninth Schedule
4. Twelfth Schedule

Q17. PYQ Consider the following statements:
1. As per recent amendment to the Indian Forest Act, 1927, forest dwellers have the right to fell the bamboos grown on forest areas.
2. As per the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006, bamboo is a minor forest produce.
3. The Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006 allows ownership of minor forest produce to forest dwellers. Which of the statements given above is/are correct?

1. 1 and 2 only
2. 2 and 3 only
3. 3 only
4. 1, 2 and 3

MY NOTES

Q18. PYQ At the national level, which ministry is the nodal agency to ensure effective implementation of the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006? (2021)

1. Ministry of Environment, Forest and Climate Change
2. Ministry of Panchayati Raj
3. Ministry of Rural Development
4. Ministry of Tribal Affairs

Q19. PYQ 2022: If a particular area is brought under the Fifth Schedule of the Constitution of India, which one of the following statements best reflects the consequence of it? (2022)

1. This would prevent the transfer of land of tribal people to non-tribal people.
2. This would create a local self-governing body in that area.
3. This would convert that area into a Union Territory.
4. The State having such areas would be declared a Special Category State.

Q20. PYQ 2023: With reference to Scheduled Areas in India, consider the following statements: (2023) ● Within a State, the notification of an area as Scheduled Area takes place through an Order of the President. ● The largest administrative unit forming the Scheduled Area is the District and the lowest is the cluster of villages in the Block. ● The Chief Ministers of the concerned States are required to submit annual reports to the Union Home Ministry on the administration of Scheduled Areas in the States. How many of the above statements are correct?

1. Only one
2. Only two
3. All three
4. None

Q21. PYQ Consider the following statements:
1. It is the Governor of the State who recognizes and declares any community of that State as a Scheduled Tribe.
2. A community declared as a Scheduled Tribe in a State need not be so in another State. Which of the statements given above is/are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Answers: Q1 c, Q2 b, Q3 b, Q4 b, Q5 a, Q6 b, Q7 a, Q8 b, Q9 d, Q10 b, Q11 c, Q12 b, Q13 c, Q14 d, Q15 a, Q16 b, Q17 b, Q18 d, Q19 a, Q20 b, Q21 b

MY NOTES

CHAPTER 28 · HANDOUT PAGES ON UNION AND ITS TERRITORY

28 Union and its Territory

MEDIUM PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **1994, 2000, 2007**

EXAM LENS

Prelims hooks

- Art. 3 powers
- no amendment needed under Art. 4
- Berubari and the 1969 ruling
- 100th Amendment numbers
- Part A to D in 1950
- order and numbering of States
- name changes
- "indestructible Union of destructible States".
- Handout stresses: Three Prelims PYQs are quoted (2000, 2007, 1994) (PYQ section)
- Handout stresses: The PYQs test chronology of States (Nagaland, Haryana, Sikkim, Arunachal), Goa and Daman and Diu facts, and what Parliament may do to States (PYQ section)
- Handout stresses: Berubari (1960) and the 100th Amendment, 2015 with 111 and 51 enclaves (Cession section)
- Handout stresses: A 32-row table of Acts under Article 3 and a list of renamed States (Acts and names)

Mains hooks

- none quoted in the material
- Likely hooks from the notes: linguistic basis of States, the case for a 2nd SRC, Parliament's power to redraw States.

The Union is indestructible but its States are not: Parliament can reshape the map by ordinary law, and India's map has evolved for seven decades.

IN SIMPLE WORDS

- **Part I (Arts. 1 to 4)** defines the Union and its territory. **Art. 1**: 'India, that is Bharat, shall be a **Union of States**', not a federation, because States cannot **secede**. Territory has three parts: **States, Union Territories, acquired territories**.

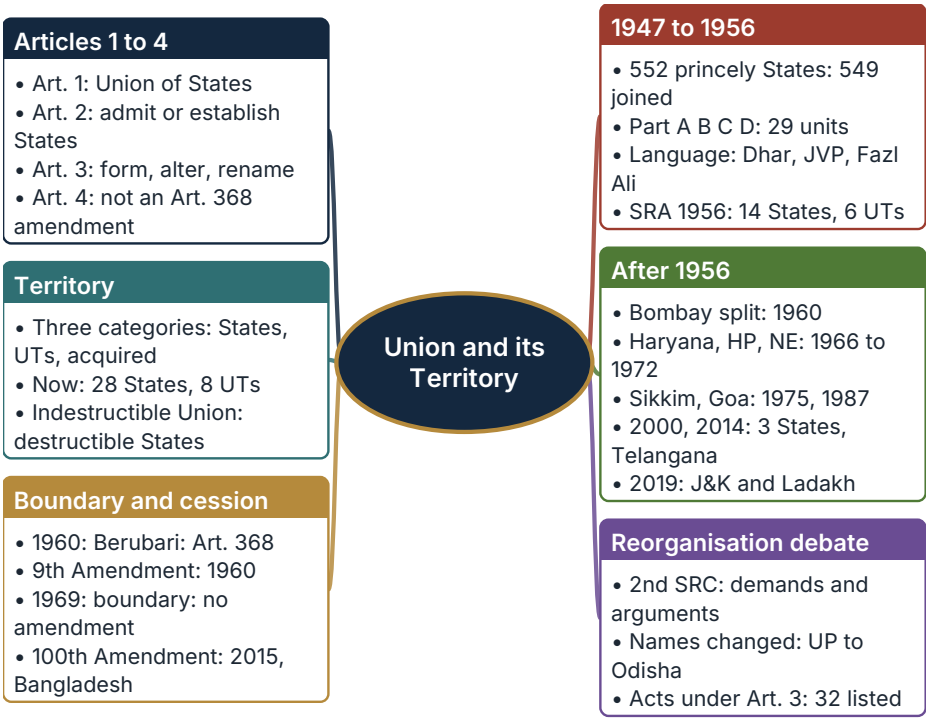
MY NOTES

- **Art. 2**: Parliament can **admit or establish new States** from outside. **Art. 3**: Parliament can **form new States, change area, boundaries or names** of existing States. **Art. 4**: such laws are **not** Art. 368 amendments, so a **simple majority** is enough.
- Art. 3 needs the **President's recommendation** and a reference to the **State legislature**, but its views are **not binding**. So India is 'an **indestructible Union of destructible States**'.
- **Berubari (1960)**:
  - Ceding territory to a foreign country needs an **Art. 368 amendment** (9th Amendment, 1960)
  - Settling a boundary dispute (**1969**) does not. The **100th Amendment (2015)** exchanged enclaves with Bangladesh: India gave **111**, got **51**
- In **1950** there were **29** units (Part A, B, C, D). The **Dhar Commission** and **JVP Committee** said no to language
- After **Andhra State (1953)** the **Fazl Ali Commission** led to the **States Reorganisation Act, 1956**: **14 States and 6 UTs**
- Since then the map kept changing, ending with **28 States and 8 UTs**: Telangana (**2014**) and the J&K Reorganisation Act (**2019**) are the latest.

Key term	In plain words
Union of States	Art. 1 phrase: one indivisible whole; States have no right to secede
Territory of India	Wider than 'Union of India': States plus Union Territories plus acquired territories
First Schedule	Lists the States and Union Territories and their territorial extent
Art. 2	Admission or establishment of new States by Parliament on its own terms
Art. 3	Parliament may create States, change area, boundaries or names of existing States
Art. 4	Laws under Arts. 2 and 3 are not Art. 368 amendments; they need only a simple majority
Princely States	552 States under British paramountcy; 549 joined India, Hyderabad, Junagarh and Kashmir held out at first
Linguistic State	State formed on the basis of language; Andhra State (1953) was the first in independent India

MY NOTES

MEMORY MAP: UNION AND ITS TERRITORY



MNEMONIC · WHAT ARTICLE 3 LETS PARLIAMENT DO

A M E N D

- **A** Alter the boundaries of a State
- **M** Make (form) a new State
- **E** Enlarge the area of a State
- **N** Name of a State changed
- **D** Diminish the area of a State

Parliament can AMEND the map of India by ordinary law; such laws are not constitutional amendments under Art. 368. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · FAZL ALI COMMISSION: FOUR FACTORS

D U E L

- **D** Development and welfare planning
- **U** Unity and security of the country
- **E** Economic, financial and administrative considerations
- **L** Linguistic and cultural homogeneity

Language and unity fight a DUEL, and the Commission says unity must come first (it rejected one language-one state). The order is rearranged for memory. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · HOW THE THREE HOLDOUT PRINCELY STATES JOINED

P A R

- **P** Police action, Operation Polo (Hyderabad)
- **A** Accession by Instrument of Accession (Kashmir)
- **R** Referendum (Junagarh)

Of 552 princely States, 549 joined; the three holdouts were brought on a PAR with the rest by these methods. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · ROAD TO THE BANGLADESH LAND BOUNDARY DEAL

Rival Borders Need Negotiated Agreements Peaceful Handshakes

- **R** Radcliffe Award (1947)
- **B** Bagge Award (1950)
- **N** Nehru-Noon Agreement (1958)
- **N** Ninth Amendment (1960)
- **A** Agreement of 16 May 1974
- **P** Protocol of 6 September 2011
- **H** Hundredth Amendment (2015)

Rival borders were settled through negotiated agreements and a peaceful handshake; the seven steps in year order. (Memory aid, not from the handout.)

MNEMONIC · STATES 15 TO 21 IN ORDER

Growing Nation Hatches Hill Manipur Tripura Meghalaya

- **G** Gujarat (15th, 1960)
- **N** Nagaland (16th, 1963)
- **H** Haryana (17th, 1966)
- **H** Himachal Pradesh (18th, 1971)
- **M** Manipur (19th, 1972)
- **T** Tripura (20th, 1972)
- **M** Meghalaya (21st, 1972)

The growing nation hatched new states; the last three words are the actual states 19 to 21. (Memory aid, not from the handout.)

PART I: ARTICLES 1 TO 4

- **Part I** lays down the political identity and territorial structure of India. **Articles 1 to 4** set the legal foundation for territorial integrity and evolution.

ARTICLE 1: UNION OF STATES

- "**India, that is Bharat, shall be a Union of States.**" The compound name reconciles the Constituent Assembly's views, some preferring the traditional name and others the contemporary one.

MY NOTES

- "**Union of States**" was preferred to "**Federation of States**" (as explained by Ambedkar and the Assembly debates): India is **not a compact among sovereign units** as in the American model, but a **single, indivisible sovereign whole** whose divisions exist for administrative convenience.
- So States have **no unilateral right to secede**
- The Union is **indestructible**

TERRITORY OF INDIA: THREE CATEGORIES (ART. 1)

Category	What it is
(i)	Territories that constitute the **States**
(ii)	**Union Territories** named in the **First Schedule**
(iii)	Territories that may be **acquired** by the Government of India

UNION OF INDIA AGAINST TERRITORY OF INDIA

- **Union of India:** The **collective of States**
- **Territory of India: Broader**: States, Union Territories and any future acquisitions
- At present there are **28 States and 8 Union Territories**.
- The **First Schedule** is the formal register of States and UTs.
- States share powers with the Centre
- UTs and acquired territories are ordinarily run **directly by the Centre**. **Part XXI** has special provisions for specified States, and the **Fifth and Sixth Schedules** create separate regimes for scheduled and tribal areas

ACQUIRING TERRITORY

- India can acquire territory by modes recognised in international law: **cession by treaty** (including purchase, gift or plebiscite), **occupation** of territory not under a recognised sovereign, or other lawful means. Examples integrated since 1950: **Dadra and Nagar Haveli, Goa, Daman and Diu, Puducherry and Sikkim**.
- **Memory aid (Three kinds of territory):** **S**tates, **U**nion Territories, **A**cquired: "**S**ome **U**nusual **A**ntiques".

ALSO IN THE HANDOUT

- The choice of the compound phrase — using both India and Bharat — reflected differing views in the Constituent Assembly
- Some members preferred the traditional appellation while others favoured the contemporary name, and the adopted wording reconciles both positions
- Part XXI contains such special arrangements that apply to specified States.

MY NOTES

- Historical incorporations since the commencement of the Constitution provide concrete instances: territories like Dadra and Nagar Haveli, Goa, Daman and Diu, Puducherry, and Sikkim were integrated into the Republic through processes consistent with constitutional and international legal norms
- Their formal integration and the legal adjustments required are treated elsewhere in the constitutional text and implementing legislation

ARTICLES 2, 3 AND 4 AT A GLANCE

ARTICLES RELATED TO THE UNION AND ITS TERRITORY

Article	Subject matter
1	Name and territorial extent: "India, that is Bharat"; States and territories per the First Schedule
2	**Admission or establishment** of new States by Parliament; allows India to accept territories from outside
2A	Association of **Sikkim** as an "associate state" (added by the **35th Amendment, 1974**); **repealed** after Sikkim became a full State in 1975
3	Parliament may **form new States** or alter **areas, boundaries or names** of States; must follow procedure including reference to the State legislature
4	Laws under Arts. 2 or 3 must also provide for amending the **First and Fourth Schedules** and for **supplemental, incidental and consequential** matters

ARTICLE 2 AGAINST ARTICLE 3

- **Article 2:**
  - Admission or establishment of States from **outside** the present roster (existing political units or new ones)
  - Terms set by Parliament
- **Article 3: Internal** reorganisation among existing States: form, enlarge, reduce, change boundaries or names
- **Memory aid (Articles 1 to 4): N**ame (1), **A**dmit (2), **R**eshape (3), **S**chedules and consequences (4): "**N**ever **A**sk **R**ude **S**tudents".

ALSO IN THE HANDOUT

- In substance, Article 2 contemplates the inclusion or creation of political units that lie outside the present roster of States and leaves the precise modalities and conditions of admission to Parliamentary legislation.
- Thus these reasons provide enough rationale for the government to consider constituting a 2 nd SRC.

MY NOTES

- Any such law must comply with procedural requirements, including reference to the concerned state legislature for its views.

ARTICLE 3: PARLIAMENT'S POWER TO REORGANISE STATES

- Article 3 empowers Parliament to make law for:
- **Forming a new State** by separating territory from a State, uniting two or more States or parts, or merging any territory with a part of a State.
- **Increasing** a State's area.
- **Reducing** a State's area.
- **Changing** the boundaries of a State.
- **Changing the name** of a State.

THE PROCEDURE UNDER ARTICLE 3

- **Step 1**: The Bill needs the **President's recommendation** before it is introduced in Parliament
- **Step 2**: The President refers the proposal to the **State legislature** for its views within a **specified time**
- **Views**: **Not binding** on the President or Parliament
- **Amendments**: Even if the Bill is amended in Parliament, **no fresh consultation** is needed
- **UT**: For a **Union Territory**, Parliament can act on its own without referring to any legislature
- **Reading note:** The handout says both that the Bill needs the President's recommendation to be introduced and that the President must forward it to the State legislature **before granting this recommendation**. The point is the same: **consultation is mandatory in form, not decisive in substance**.

NATURE OF THE UNION

INDIAN UNION AGAINST THE USA

- **India:**
  - Parliament holds complete power to redraw the map
  - States have **no guaranteed territorial integrity**: "**An indestructible Union of destructible States**"
- **USA:**
  - Federal structure protects State boundaries
  - **no change without the States' consent**: "**An indestructible Union of indestructible States**"
- **Memory aid (Article 3 verbs):** **F**orm, **I**ncrease, **R**educe, **C**hange boundaries, **C**hange name: "**F**ive **I**ndian **R**ivers **C**ross **C**ities".

MY NOTES

ARTICLE 4: ORDINARY LAW

- A law under **Article 2** or **Article 3** is **not an amendment under Article 368**.
- It can pass by **simple majority** and **ordinary legislative procedure**.
- **Shortcut: PYQ 1994 shortcut.** Parliament **can** increase, diminish, alter boundary and alter name. So the statements "cannot alter the boundary" and "cannot alter the name" are the incorrect ones.

ALSO IN THE HANDOUT

- Those views are consultative in character
- Parliament is not legally bound by the opinion of the State legislature(s) and retains the ultimate authority to legislate on territorial re-adjustments
- This power is contained in Article 3 under Part-I of the Constitution, which clearly vests the authority in the Parliament to reorganize states in multiple ways.
- Despite this, popular movements continued to demand linguistic states.

CESSION OF TERRITORY: BERUBARI AND BOUNDARY DISPUTES

CESSION AND THE COURTS

- **Question**: Does Art. 3's power to **diminish** a State's area allow ceding Indian territory to a **foreign State**?
- **1960**: Supreme Court: **No**. Cession is not covered by Art. 3 and needs a **constitutional amendment under Art. 368** (case: part of **Berubari Union**, West Bengal, proposed for Pakistan)
- **Result**: **9th Constitutional Amendment Act, 1960** passed to implement the transfer
- **1969**: Supreme Court: **settling a boundary dispute** with another country does **not** need an amendment, as it is not a cession of Indian territory

CESSION AGAINST BOUNDARY SETTLEMENT

- **Cession (1960):** Giving away Indian territory: needs Art. 368 amendment
- **Boundary settlement (1969):** Resolving a dispute over the line: no amendment needed
- **Memory aid (Court rulings):** **C**ession needs amendment (1960), **B**oundary settlement does not (1969): "**C**ede = **C**hange the Constitution, **B**oundary = **B**ypass".

MY NOTES

ALSO IN THE HANDOUT

- The Commission was tasked with re-examining the question of state reorganisation comprehensively.

LAND BOUNDARY WITH BANGLADESH: 100TH AMENDMENT

- The **100th Constitutional Amendment Act, 2015** gave legal effect to the **Land Boundary Agreement and its Protocol** between India and Bangladesh.

WHAT THE 100TH AMENDMENT DID

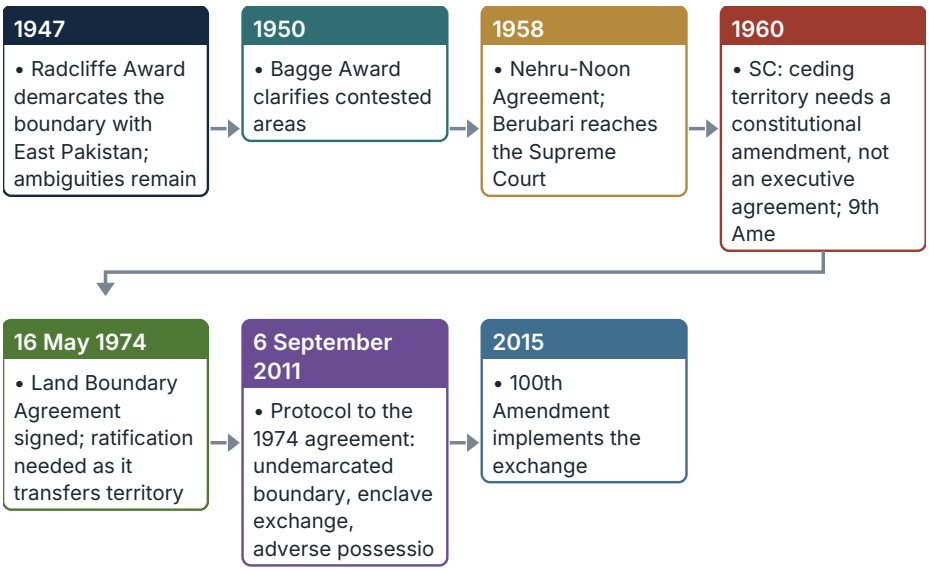
Item	Detail
India transferred	**111** enclaves inside Bangladesh
Bangladesh transferred	**51** enclaves inside India
Also settled	Areas under **adverse possession**; demarcation of an undemarcated **6.1 km** border stretch
First Schedule altered for	**Assam, West Bengal, Meghalaya and Tripura**
Border length	About **4096.7 km**

ROAD TO THE 100TH AMENDMENT

- **1947**:
  - **Radcliffe Award** demarcates the boundary with East Pakistan
  - Ambiguities remain
- **1950**: **Bagge Award** clarifies contested areas
- **1958**:
  - **Nehru-Noon Agreement**
  - Berubari reaches the Supreme Court
- **1960**:
  - SC: ceding territory needs a constitutional amendment, not an executive agreement
  - **9th Amendment** enacted
- **16 May 1974**:
  - **Land Boundary Agreement** signed
  - Ratification needed as it transfers territory
- **6 September 2011**:
  - **Protocol** to the 1974 agreement: undemarcated boundary, enclave exchange, adverse possession
  - Agreed with Assam, Meghalaya, Tripura and West Bengal
- **2015**: **100th Amendment** implements the exchange

MY NOTES

ROAD TO THE 100TH AMENDMENT



- **Memory aid (Enclave numbers):** India gave **111**, Bangladesh gave **51**: "India's big hand 111, Bangladesh's 51".

> **HANDOUT ALERT**
>
> Handout alert: The handout says the **9th Amendment (1960) was passed to implement the Berubari transfer**, but also that it **could not be operationalised** for territories concerning former East Pakistan because of political complexities and litigation. So it was enacted in 1960, and the **100th Amendment (2015)** finally settled the matter.

ALSO IN THE HANDOUT

- Some ambiguities remained unresolved and several attempts were made over time to settle them: - Bagge Award (1950): Aimed to clarify certain areas where the Radcliffe line was contested.
- Land Boundary Agreement with Bangladesh To resolve remaining issues comprehensively, a major bilateral step was taken: - On May 16, 1974, India and Bangladesh signed an agreement to settle the land boundary and associated matters.
- The Protocol addressed all critical unresolved matters including: a. demarcation of un-demarcated boundary portions, b. exchange of enclaves, and c. areas under adverse possession.
- It was finalized with the support and concurrence of the Governments of Assam, Meghalaya, Tripura, and West Bengal.

INTEGRATION OF PRINCELY STATES AND THE 1950 MAP

- At independence there were **British Provinces** (direct British rule) and **Princely States** (native monarchs under British paramountcy). The **Indian Independence Act, 1947** created two dominions, India and Pakistan, and gave princely States three options: **join India, join Pakistan or remain independent**.

MY NOTES

552 PRINCELY STATES

- **552**: Within India's geographical boundaries
- **549**: Joined India
- **3**: **Hyderabad, Junagarh and Kashmir** initially refused

HOW THE THREE WERE INTEGRATED

State	Mechanism
Hyderabad	**Police action** (Operation Polo)
Junagarh	**Referendum**
Kashmir	**Instrument of Accession**

- **Memory aid (Three refusers):** **H**yderabad (police action), **J**unagarh (referendum), **K**ashmir (accession instrument): "**H**ot **J**ilebi **K**eeps".

THE FOUR-FOLD CLASSIFICATION OF 1950

TERRITORIAL COMPOSITION IN 1950

Cat-egory	Description	Units
Part A (9)	Former governors' provinces of British India, with a Governor and elected legislature	Assam, Bihar, Bombay, Madhya Pradesh, Madras, Orissa, Punjab, United Provinces, West Bengal
Part B (9)	Former princely States or groups with legislatures	Hyderabad, Jammu and Kash-mir, Madhya Bharat, Mysore, PEPSU, Rajasthan, Saurashtra, Travancore-Cochin, Vindhya Pradesh
Part C (10)	Former chief commissioner's provinces and some smaller princely States, run directly by the Union via a Chief Commissioner or Lieutenant Governor	Ajmer, Bhopal, Bilaspur, Cooch Behar, Coorg, Delhi, Himachal Pradesh, Kutch, Manipur, Tripura
Part D (1)	Centrally administered territory	Andaman and Nicobar Islands

- Total: **9 + 9 + 10 + 1 = 29 units**.

ORIGINAL CONSTITUTIONAL PARTS FOR THESE CATEGORIES

Part	Heading	Art-icles	Scope
VI	States in Part A of the First Schedule	152 to 237	Former governors' provinces; struc-ture, governance and powers
VII	States in Part B	238	Former princely States with legis-latures; integration and administration

MY NOTES

Part	Heading	Art-icles	Scope
VIII	States in Part C	239 to 242	Chief commissioner's provinces and some princely territories; centrally administered
IX	Territories in Part D and other territ-ories	243	A&N Islands and other territories; central administration

- **Memory aid (Numbers 9 9 10 1): A** nine provinces, **B** nine princely, **C** ten central, **D** one island: "**A**ny **B**ody **C**an **D**ance, 9-9-10-1".
- **Cross-check:** Part C and D were governed directly by the Centre, as in Ch 26 (Union Territories). Today's UT provisions are Arts. 239 to 241 in Part VIII.

ALSO IN THE HANDOUT

- Article 1 further defines the territorial composition of the Republic.
- These provisions demonstrate that Parliament's powers cover all dimensions of state structure — creation, expansion, reduction, alteration of boundaries, and renaming. Constitutional Conditions for State Reorganisation While Article 3 grants broad authority, it also sets two essential procedural requirements:
- However, they were subsequently integrated into India through different mechanisms: - Hyderabad: Integrated through police action (Operation Polo) - Junagarh: Integrated via a referendum - Kashmir: Accession formalized through the Instrument of Acces-sion Constitutional Classification in 1950 Upon the commencement of the Constitution in 1950, the Union of India adopted a four-fold classification of its states and territories: Part A, Part B, Part C, and Part D.
- Formerly a protectorate after British paramountcy ended in 1947, Sikkim sought greater integration with India.

LANGUAGE AS THE BASIS OF REORGANISATION

- In independent India the main basis for reorganising States was **language**, a break from the colonial pattern of **administrative con-venience**.

THE DEBATE

- **For linguistic States:**
  - 1920s Congress consensus
  - Gandhiji organised Pradesh Congress Committees on lin-guistic lines
  - Language is more secular than religion or caste
  - Mother-tongue education

MY NOTES

- Masses participate better
- Regional languages preserved and enriched

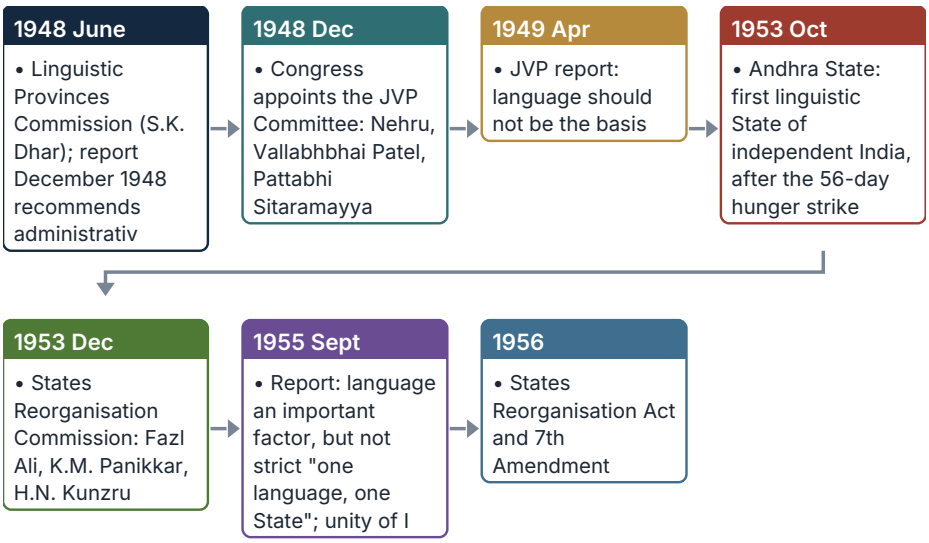
- **Against linguistic States:**
  - Nehru, after seeing Partition, feared Lilliputian States
  - Focus should be national identity
  - Language binds strongly so secession demands may follow, as in Europe
  - May raise demands for jobs and subsidies and xenophobia against people from other States

COMMISSIONS AND COMMITTEES

- **1948 June**:
  - **Linguistic Provinces Commission (S.K. Dhar)**
  - Report **December 1948** recommends **administrative convenience**, not language
  - Widespread dissatisfaction
- **1948 Dec**: Congress appoints the **JVP Committee**: **Nehru, Vallabhbhai Patel, Pattabhi Sitaramayya**
- **1949 Apr**: JVP report: language **should not** be the basis
- **1953 Oct**: **Andhra State**: first linguistic State of independent India, after the 56-day hunger strike and death of **Potti Sriramulu** (Telugu areas of Madras State)
- **1953 Dec**: **States Reorganisation Commission**: Fazl Ali, **K.M. Panikkar**, **H.N. Kunzru**
- **1955 Sept**:
  - Report: language an important factor, but **not** strict "one language, one State"
  - Unity of India first
- **1956**: **States Reorganisation Act** and **7th Amendment**

MY NOTES

COMMISSIONS AND COMMITTEES



- **Memory aid (JVP):** **J**awaharlal, **V**allabhbhai, **P**attabhi: "**J**ust **V**ery **P**eaceful".
- **Memory aid (Fazl Ali's three):** **F**azl Ali, **P**anikkar, **K**unzru: "**F**ast **P**ostman **K**nocks".

FOUR FACTORS OF THE FAZL ALI COMMISSION

FACTORS

No.	Factor
1	**Unity and security** of the country
2	**Linguistic and cultural homogeneity** balanced with administrative feasibility
3	**Financial, economic and administrative** considerations
4	**Welfare and development planning** for the State and the nation

- **Memory aid (Four factors):** **U**nity, **L**anguage and culture, **F**inance and administration, **W**elfare and planning: "**U**nder **L**ucky **F**ull **W**heels".

> **HANDOUT ALERT**
> Handout alert: Handout detail on Andhra: the 1949 JVP report said language should not be the basis, yet the first linguistic State came in **1953**. The handout also notes **Odisha was organised on linguistic basis in 1936**, so "first linguistic State **of independent India**" means Andhra (1953), not Odisha.

ALSO IN THE HANDOUT

- But before coming to this basis, there was much debate among national leaders regarding the basis for reorganization.

MY NOTES

- But post-independence, Nehru witnessed the horrors of partition and became opposed to the idea of linguistic reorganization. He stated that there were numerous languages in the country and thus reorganization on those lines would give rise to Lilliputian states.
- Since language was a strong binder and created a greater sense of identity, a state reorganisation based on languages would lead to a slippery slope where even demands for secession may be justified as seen in Europe.
- Another benefit could be that it would make the task of educating children in their mother tongue easier.
- Similarly, it also ensures regional languages are preserved, promoted, and enriched. Commissions Investigating State Reorganization:
- But the most prominent was the Telugu speaking areas in Madras State by stalwarts like Swami Sitaram and Potti Sreeramulu who went on a hunger strike and finally sacrificed himself. • Thus in 1953, the state of Andhra Pradesh was created as the first linguistically organized state in Independent India.

STATES REORGANISATION ACT, 1956

- The Commission recommended **abolishing Parts A, B, C and D** and creating **16 States and 3 centrally administered territories**. The Government accepted with **minor modifications**.

> **HANDOUT ALERT**
> Handout alert: The Commission proposed **16 States + 3 territories**, but the 1956 outcome is **14 States and 6 Union Territories on 1 November 1956**. Use 16 + 3 for the *recommendation*, 14 + 6 for the *result*.

WHAT THE 1956 ACT DID

Result	Detail
Part A and B	Merged or reclassified
Part C	Abolished: some merged with neighbours, others became UTs
Kerala	Travancore-Cochin + Malabar District of Madras + Kasargode (South Canara)
Andhra Pradesh	Telugu-speaking areas of Hyderabad State + Andhra State
Madhya Pradesh	Madhya Bharat + Vindhya Pradesh + Bhopal
Bombay State	Merged Saurashtra and Kutch
Mysore State	Absorbed Coorg
Punjab	Integrated PEPSU

MY NOTES

Result	Detail
Rajasthan	Included Ajmer State
New UT	Laccadive, Minicoy and Amindivi Islands, detached from Madras State

- **Memory aid (Merger partners):** **K**erala, **A**ndhra, **M**adhya Pradesh, **B**ombay, **M**ysore, **P**unjab, **R**ajasthan: "**K**ind **A**unts **M**ake **B**ig **M**ango **P**ickles, **R**eally".

THE MAP AFTER 1956: STATES IN ORDER

- At present India has **28 States and 8 Union Territories**.

CHRONOLOGY OF STATES AND UTS AFTER 1956

Year	Event	Detail
1960	**Maharashtra and Gujarat**	Bilingual Bombay State split; **Gujarat = 15th State**
1961	**Dadra and Nagar Haveli**	Portuguese rule until 1954; UT under the **10th Amendment, 1961**
1961 to 1987	**Goa, Daman and Diu**	Acquired from Portugal by police action in 1961; UT under the **12th Amendment, 1962**; Goa a State in 1987 and Daman and Diu stays a UT
1962	**Puducherry**	French establishments (Puducherry, Karaikal, Mahe, Yanam) transferred in 1954; UT in 1962 under the **14th Amendment**
1963	**Nagaland**	From Naga Hills and Tuensang area of Assam; under Governor of Assam in 1961; **16th State**
1966	**Haryana, Chandigarh**	After the Shah Commission, Punjab split: **Haryana = 17th State** for Hindi-speaking areas; **Chandigarh** UT as shared capital; hills merged with Himachal
1971	**Himachal Pradesh**	**18th State**
1972	**Manipur and Tripura**	**Manipur = 19th, Tripura = 20th** State
1972	**Meghalaya**	**21st State**; first an autonomous sub-State of Assam (22nd Amendment, 1969)
1972	**Mizoram and Arunachal Pradesh**	Created as UTs from Assam
1974 to 1975	**Sikkim**	35th Amendment (1974): associate State via **Art. 2A** and a **10th Schedule**; 1975 referendum then **36th Amendment**: **22nd State**, **Art. 371-F**

MY NOTES

Year	Event	Detail
1987	**Mizoram, Arunachal Pradesh, Goa**	**Mizoram = 23rd** (after the Mizoram Peace Accord, 1986); **Arunachal = 24th**; **Goa = 25th**
2000	**Chhattisgarh, Uttarakhand, Jharkhand**	**26th** (from MP), **27th** (from UP), **28th** (from Bihar)
2014	**Telangana**	**29th State**, carved out of Andhra Pradesh
2019	**Jammu and Kashmir and Ladakh**	Article 370 status revoked via the Constitution (Application to J&K) Order, 2019; J&K Reorganisation Act, 2019 makes two UTs; J&K UT has all districts except Kargil and Leh, which form Ladakh

- **Memory aid (States 15 to 29): G**ujarat 15, **N**agaland 16, **H**aryana 17, **H**imachal 18, **M**anipur 19, **T**ripura 20, **M**eghalaya 21, **S**ikkim 22, **M**izoram 23, **A**runachal 24, **G**oa 25, **C**hhattisgarh 26, **U**ttarakhand 27, **J**harkhand 28, **T**elangana 29: "**G**ood **N**ew **H**ome, **H**oney, **M**ake **T**ea, **M**y **S**weet **M**onsoon **A**fternoon, **G**o **C**ome **U**s **J**oin **T**ogether".
- **Shortcut: PYQ 2007 shortcut.** Chronology order: **Nagaland (1963), Haryana (1966), Sikkim (1975), Arunachal (1987)**. So the right order is Nagaland, Haryana, Sikkim, Arunachal Pradesh.

HANDOUT ALERT

Handout alert: **Count**: the list reaches the **29th State (Telangana, 2014)**, but the handout says there are **28 States and 8 UTs** now. This is because **Jammu and Kashmir** (a State among the 29) became a **UT in 2019**. The handout does not spell out this subtraction.

HANDOUT ALERT

Handout alert: **Tenth Schedule**: Sikkim's 1974 associate-State arrangement is said to use "a 10th Schedule". The Schedules chapter (Ch 4) says the **Tenth Schedule is anti-defection (52nd Amendment, 1985)**. Treat the Sikkim reference as a historical arrangement that is no longer the current Tenth Schedule.

HANDOUT ALERT

Handout alert: **North-east dates**: the section is headed 1972 but the **North-Eastern Areas (Reorganisation) Act is of 1971**, the **State of Mizoram and Arunachal Pradesh Acts are of 1986** while the heading says 1987, and HP's Act is 1970 (State in 1971). Use the Act year for the **law** and the heading year for **when the State came into being**.

ALSO IN THE HANDOUT

- Later, significant progress came when: 1.

MY NOTES

- The bilingual Bombay State was split into Maharashtra for Marathi speakers and Gujarat for Gujarati speakers, recognizing the cultural and linguistic identity of the respective populations.
- Formerly under Portuguese rule until 1954, the territory was liberated and initially administered by a locally appointed administrator.
- This reorganisation responded to the demand for a distinct Sikh-majority homeland while ensuring administrative efficiency.
- 1972 witnessed significant changes in the Northeast: - Manipur (19th state) and Tripura (20th state) elevated from Union Territories.

SECOND SRC AND NAME CHANGES

CASE FOR A 2ND STATE REORGANISATION COMMISSION

- Demands persist for Koshal (Odisha), Kodagu (Karnataka), Vidarbha and Konkan (Maharashtra), Bodoland (Assam), Maru Pradesh (Rajasthan), Mithilanchal (Bihar), Gorkhaland (West Bengal).
- The Union views these demands through a **political lens** instead of rational, scientific criteria.
- A 2nd SRC would evolve **rational, scientific and objective criteria**.
- State reorganisation is an **evolving exercise**, not one-time.
- **30 years of LPG reforms** brought demographic, economic, social and regional imbalances and allegations of regional neglect.
- Some States have grown very large in population, raising governance concerns.
- **Memory aid (Case for 2nd SRC): D**emands many, **R**ational criteria, **E**volving process, **L**PG imbalances, **P**opulation size: "**D**on't **R**ush **E**very **L**ittle **P**roposal".

CHANGE OF NAMES

NAMES CHANGED

Old name	New name	Year
United Provinces	**Uttar Pradesh**	1950
Madras	**Tamil Nadu**	1969
Mysore	**Karnataka**	1973
Laccadive, Minicoy, Amindivi Islands	**Lakshadweep**	1973
Delhi	**National Capital Territory of Delhi**	1992 (69th Amendment)
Uttaranchal	**Uttarakhand**	2006
Pondicherry	**Puducherry**	2006
Orissa	**Odisha**	2011

MY NOTES

HANDOUT ALERT

Handout alert: **Madras**: the name-change list says **1969**, but the Acts table gives the **Madras State (Alteration of Name) Act, 1968**. Quote **1968 for the Act** and **1969 as the year of change** listed in the handout.

ALSO IN THE HANDOUT

- Thus when such demands arise, the government at the Union level sees these demands through the political lens rather than the rationality and modern scientific criteria that is expected.
- The process of state reorganization is an evolving exercise and not a one stop exercise and as the demands for statehood arise, they have to be examined properly.

ACTS OF PARLIAMENT UNDER ARTICLE 3

THE HANDOUT'S 32 STATUTES

No.	Act	Provision or purpose
1	**Assam (Alteration of Boundaries) Act, 1951**	Altered Assam's boundaries by ceding a strip of territory to Bhutan
2	**Andhra State Act, 1953**	First linguistic State, from Telugu-speaking areas of Madras State; capital Kurnool; High Court Guntur
3	**Himachal Pradesh and Bilaspur (New State) Act, 1954**	Created Himachal Pradesh by merging existing Himachal Pradesh and Bilaspur
4	**Chandernagore (Merger) Act, 1954**	Merged the former French enclave Chandernagore into West Bengal
5	**States Reorganisation Act, 1956**	Major linguistic, regional and administrative reorganisation; 14 States and 6 UTs; new UT of Laccadive, Minicoy and Amindivi Islands
6	**Bihar and West Bengal (Transfer of Territories) Act, 1956**	Transferred territories from Bihar to West Bengal
7	**Rajasthan and Madhya Pradesh (Transfer of Territories) Act, 1959**	Transferred territories from Rajasthan to Madhya Pradesh
8	**Andhra Pradesh and Madras (Alteration of Boundaries) Act, 1959**	Altered boundaries between Andhra Pradesh and Madras
9	**Bombay Reorganisation Act, 1960**	Split Bombay into Maharashtra and Gujarat; Ahmedabad Gujarat's capital
10	**Acquired Territories (Merger) Act, 1960**	Merged territories acquired from Pakistan (1958 to 59 agreements) into Assam, Punjab and West Bengal

MY NOTES

No.	Act	Provision or purpose
11	**State of Nagaland Act, 1962**	Created Nagaland (16th State) from Naga Hills and Tuensang; tribal areas under the Sixth Schedule
12	**Punjab Reorganisation Act, 1966**	Haryana (17th State) from Hindi-speaking areas; Chandigarh UT as common capital
13	**Bihar and Uttar Pradesh (Alteration of Boundaries) Act, 1968**	Altered boundaries between Bihar and UP
14	**Andhra Pradesh and Mysore (Transfer of Territory) Act, 1968**	Transferred territory from Mysore (Karnataka) to Andhra Pradesh
15	**Madras State (Alteration of Name) Act, 1968**	Renamed Madras State as Tamil Nadu
16	**Assam Reorganisation (Meghalaya) Act, 1969**	Created autonomous State or sub-State Meghalaya within Assam
17	**State of Himachal Pradesh Act, 1970**	Elevated Himachal Pradesh from UT to full State (18th)
18	**North-Eastern Areas (Reorganisation) Act, 1971**	Manipur (19th) and Tripura (20th) States; full statehood for Meghalaya (21st); UTs of Mizoram and Arunachal Pradesh from Assam
19	**Mysore State (Alteration of Name) Act, 1973**	Renamed Mysore as Karnataka
20	**Laccadive, Minicoy and Amindivi Islands (Alteration of Name) Act, 1973**	Renamed the UT as Lakshadweep
21	**Haryana and Uttar Pradesh (Alteration of Boundaries) Act, 1979**	Altered boundaries between Haryana and UP
22	**State of Mizoram Act, 1986**	Elevated Mizoram UT to State (23rd)
23	**State of Arunachal Pradesh Act, 1986**	Elevated Arunachal UT to State (24th)
24	**Goa, Daman and Diu Reorganisation Act, 1987**	Goa as State (25th); Daman and Diu a separate UT
25	**Madhya Pradesh Reorganisation Act, 2000**	Chhattisgarh (26th) from MP
26	**Uttar Pradesh Reorganisation Act, 2000**	Uttaranchal (27th, now Uttarakhand) from UP
27	**Bihar Reorganisation Act, 2000**	Jharkhand (28th) from Bihar
28	**Uttaranchal (Alteration of Name) Act, 2006**	Renamed Uttaranchal as Uttarakhand
29	**Pondicherry (Alteration of Name) Act, 2006**	Renamed Pondicherry as Puducherry

MY NOTES

No.	Act	Provision or purpose
30	**Orissa (Alteration of Name) Act, 2011**	Renamed Orissa as Odisha
31	**Andhra Pradesh Reorganisation Act, 2014**	Created Telangana (29th) from Andhra Pradesh
32	**Jammu and Kashmir Reorganisation Act, 2019**	Bifurcated J&K into two UTs: J&K and Ladakh

- **Shortcut: Acts shortcut.** Names follow the pattern: **new State = "(State) Act"** (Andhra, Nagaland, Himachal, Mizoram, Arunachal), **split = "Reorganisation Act"** (Bombay, Punjab, MP, UP, Bihar, AP, J&K), **rename = "Alteration of Name Act"** (Madras, Mysore, Laccadive, Uttaranchal, Pondicherry, Orissa).

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 6, UNION AND ITS TERRITORY

- Modes of acquiring foreign territory in international law: cession (treaty, purchase, gift, lease or plebiscite), occupation of unoccupied land, conquest or subjugation. The handout leaves out lease and conquest.
- Part XXI special provisions apply to Maharashtra, Gujarat, Nagaland, Assam, Manipur, Andhra Pradesh, Telangana, Sikkim, Mizoram, Arunachal Pradesh, Goa and Karnataka
- They override the general rules for States. The Fifth and Sixth Schedules separately cover scheduled and tribal areas
- Art. 3 also lets Parliament form a new State or UT by uniting part of a State or UT with another State or UT.
- The JVP Committee (Nehru, Patel, Pattabhi Sitaramayya) had no chairman or convenor.
- Shah Commission (1966): Punjabi-speaking areas became Punjab, Hindi-speaking areas Haryana, hill areas joined Himachal Pradesh. Background: the Akali Dal under Master Tara Singh demanded a Punjabi Suba (Sikh homeland).
- Meghalaya first became an autonomous sub-state in Assam by the 22nd Amendment (1969). Mizoram and Arunachal Pradesh (earlier NEFA, North-East Frontier Agency) were carved from Assam as UTs in 1972.
- Sikkim:
  - Ruled by the Chogyal
  - After 1947 it was a protectorate and India handled its defence, external affairs and communications. The 35th Amendment (1974) made it an associate State (Art. 2-A and the Tenth Schedule). After the 1975 referendum the 36th Amendment made it the 22nd State, added Art. 371-F, and repealed Art. 2-A and the Tenth Schedule

MY NOTES

- Mizoram became a State after the Mizoram Peace Accord (1986) between the Centre and the Mizo National Front, ending a two-decade insurgency.
- Dadra and Nagar Haveli:
  - Portuguese rule till 1954
  - Then run till 1961 by an administrator chosen by the people. The Dadra and Nagar Haveli and Daman and Diu (Merger of Union Territories) Act, 2019 merged the two UTs (effective 2020)
- J&K:
  - The 2019 Presidential Order superseded the 1954 Order (issued under Art. 370) and extended all provisions of the Constitution to J&K. Act-wise highlights: Andhra State Act, 1953 (capital Kurnool, High Court Guntur)
  - Bombay Reorganisation Act, 1960 (Ahmedabad capital of Gujarat)
- The 1956 list: 14 States (Andhra Pradesh, Assam, Bihar, Bombay, J&K, Kerala, Madhya Pradesh, Madras, Mysore, Orissa, Punjab, Rajasthan, Uttar Pradesh, West Bengal) and 6 UTs (Andaman and Nicobar, Delhi, Himachal Pradesh, Laccadive-Minicoy-Amindivi, Manipur, Tripura).

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

What does Article 1 say?	"India, that is Bharat, shall be a Union of States."
Why "Union" and not "Federation"?	India is not a compact among sovereign units; it is one indivisible whole and States cannot secede.
What are the three categories of Indian territory?	Territories of the States; Union Territories (First Schedule); territories that may be acquired.
How many States and UTs now?	28 States and 8 Union Territories.
What does Article 2 do?	Parliament may admit or establish new States on such terms as it thinks fit.
What can Parliament do under Article 3?	Form new States; increase or reduce area; change boundaries; change names.

Procedure under Article 3?	President's recommendation before the Bill; State legislature's views sought but not binding; no fresh consultation after amendment; UTs need no referral.
What does Article 4 say?	Laws under Arts. 2 or 3 are not amendments under Art. 368 and pass by simple majority; they amend the First and Fourth Schedules.
India's description against the USA's?	India: indestructible Union of destructible States. USA: indestructible Union of indestructible States.
What did the Supreme Court hold in 1960 on cession?	Cession of Indian territory needs a constitutional amendment under Art. 368 (Berubari).
What did the Supreme Court hold in 1969?	A boundary settlement with another country needs no amendment.
Which Amendment implemented the Berubari transfer?	The 9th Constitutional Amendment Act, 1960.
What did the 100th Amendment (2015) do?	Gave effect to the Land Boundary Agreement: India gave 111 enclaves, Bangladesh gave 51; settled adverse possession and a 6.1 km stretch; changed the First Schedule for Assam, West Bengal, Meghalaya and Tripura.
Name the awards and agreements before the 100th Amendment.	Radcliffe Award 1947; Bagge Award 1950; Nehru-Noon Agreement 1958; 9th Amendment 1960; 1974 agreement (16 May); 2011 Protocol (6 September).
How many princely States were there and how many joined India?	552; 549 joined; Hyderabad, Junagarh and Kashmir initially refused.
How were Hyderabad, Junagarh and Kashmir integrated?	Police action (Operation Polo); referendum; Instrument of Accession.
Describe the 1950 classification.	Part A 9 provinces; Part B 9 princely States; Part C 10 centrally run; Part D A&N Islands: 29 units.
Which commission rejected linguistic States in 1948?	S.K. Dhar Commission (report December 1948): administrative convenience.

MY NOTES

Who made up the JVP Committee and what was its view?	Jawaharlal Nehru, Vallabhbhai Patel, Pattabhi Sitaramayya; report April 1949: language should not be the basis.
Which leader's hunger strike led to Andhra State?	Potti Sriramulu (56 days); Andhra State came in October 1953.
Who made up the Fazl Ali Commission?	Fazl Ali, K.M. Panikkar and H.N. Kunzru (appointed December 1953, report September 1955).
Four factors of the SRC?	Unity and security; linguistic and cultural homogeneity; financial, economic and administrative considerations; welfare and development planning.
What did the SRC recommend and what happened in 1956?	Recommended 16 States and 3 territories; the SRA and 7th Amendment gave 14 States and 6 UTs on 1 November 1956.
Which State is the 15th, 16th, 17th, 18th?	Gujarat (1960), Nagaland (1963), Haryana (1966), Himachal Pradesh (1971).
Which are the 19th to 21st States?	Manipur, Tripura, Meghalaya (1972).
Which is the 22nd State and how did it become one?	Sikkim: associate State in 1974 (35th Amendment, Art. 2A), full State in 1975 (36th Amendment, Art. 371-F).
Which are the 23rd to 25th States?	Mizoram, Arunachal Pradesh, Goa (1987).
Which are the 26th to 29th States?	Chhattisgarh, Uttarakhand, Jharkhand (2000); Telangana (2014).
What happened in 2019?	Article 370 status revoked; J&K Reorganisation Act made J&K and Ladakh two UTs.
Name the old and new names for Madras, Mysore, Orissa.	Madras to Tamil Nadu (1969); Mysore to Karnataka (1973); Orissa to Odisha (2011).
Why a 2nd SRC?	Many demands for new States, political rather than scientific handling, an evolving process, regional imbalances after 30 years of LPG reforms, and large populations.

MY NOTES

Trap 1 · Article 2 versus Article 3

Art. 2 deals with admitting or establishing new States that are outside the Union's present States. Art. 3 deals with changes among existing States of the Union. *Rule: Art. 2 = new from outside; Art. 3 = internal readjustment.*

Trap 2 · Cession versus boundary settlement

In 1960 (Berubari) the Supreme Court said ceding territory to a foreign country needs an Art. 368 amendment (9th Amendment, 1960). In 1969 it said settling a boundary dispute needs no amendment. *Rule: giving away land = amendment; fixing a disputed border = executive action.*

Trap 3 · 28 States or 29

The handout says there are 28 States and 8 UTs, yet its list numbers Telangana (2014) as the 29th State formed. *Rule: write 28 States + 8 UTs for today; 29th is only the serial of Telangana's creation (J&K became a UT in 2019).*

Trap 4 · First linguistic State

Odisha was organised on a linguistic basis in 1936 under British rule. The first linguistic State of independent India is Andhra State (October 1953), after Potti Sriramulu's 56-day fast. *Rule: independent India's first = Andhra (1953); Odisha 1936 was before independence.*

QUICK QUIZ

Q1. "India, that is Bharat, shall be a Union of States" is found in which Article?

1. Article 1
2. Article 2
3. Article 3
4. Article 4

Q2. Which of the following is true of the State legislature's opinion on an Article 3 Bill?

1. It is binding on Parliament
2. It is consultative and not binding
3. It must be re-obtained after every amendment
4. It requires a two-thirds majority

Q3. A law under Article 3 is passed by:

1. Special majority under Art. 368
2. Simple majority by ordinary legislative procedure
3. Ratification by half the States
4. A Supreme Court order

Q4. In 1960 the Supreme Court held that ceding Indian territory to a foreign country:

1. Is covered by Article 3
2. Needs only an executive agreement
3. Needs a constitutional amendment under Art. 368
4. Needs a State legislature resolution

Q5. Under the 100th Constitutional Amendment Act, 2015, how many enclaves did Bangladesh transfer to India?

1. 51
2. 111
3. 6
4. 4096

Q6. Which princely State was integrated through a referendum?

1. Hyderabad
2. Junagarh
3. Kashmir
4. Mysore

MY NOTES

Q7. How many Part C States existed in 1950?

1. 9
2. 10
3. 1
4. 29

Q8. Who were the members of the States Reorganisation Commission of 1953?

1. Dhar, Panikkar, Kunzru
2. Fazl Ali, Panikkar, Kunzru
3. Nehru, Patel, Sitaramayya
4. Fazl Ali, Dhar, Patel

Q9. Which was the first linguistic State of independent India?

1. Maharashtra
2. Gujarat
3. Andhra
4. Kerala

Q10. Which State was the 22nd State of the Indian Union?

1. Sikkim
2. Meghalaya
3. Mizoram
4. Goa

Q11. The States Reorganisation Commission recommended:

1. 14 States and 6 UTs
2. 16 States and 3 centrally administered territories
3. 28 States and 8 UTs
4. 29 States and 1 UT

Q12. Which Act renamed Orissa as Odisha?

1. Orissa (Alteration of Name) Act, 2011
2. Orissa Reorganisation Act, 2006
3. Odisha State Act, 2014
4. Orissa (Alteration of Name) Act, 2000

Q13. Which Article originally provided for Sikkim as an associate State and was later repealed?

1. Article 2A
2. Article 3
3. Article 371-F
4. Article 4

Q14. Under Article 4, laws under Articles 2 and 3 must also provide for amendment of:

1. Third and Fifth Schedules
2. First and Fourth Schedules
3. Seventh Schedule only
4. Eighth Schedule only

Answers: Q1 a, Q2 b, Q3 b, Q4 c, Q5 a, Q6 b, Q7 b, Q8 b, Q9 c, Q10 a, Q11 b, Q12 a, Q13 a, Q14 b

MY NOTES

CHAPTER 29 · HANDOUT PAGES ON PART II (ARTICLES 5-11), THE CITIZENSHIP ACT 1955, OCI, DOMICILE, ILP, NRC-NPR-CENSUS

29 Citizenship

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **2005, 2021**

MY NOTES

EXAM LENS

Prelims hooks

- 2021 (one citizenship and one domicile
- deprivation of a granted citizenship is possible) and 2005 (dual polity but single citizenship in India
- Articles 371A-371I
- a naturalised citizen can be deprived)
- Other hooks from the notes: Articles 5 to 11 and their dates
- Sections 3 to 10 of the 1955 Act
- birth-based cut-offs of 1987 and 2004
- grounds for deprivation
- what an OCI cardholder cannot do
- ILP states
- NRC versus NPR versus Census.
- Handout stresses: Two Prelims PYQs are quoted (2021 and 2005) (PYQ section)
- Handout stresses: Articles 5 to 11 laid out in a table with cut-off dates (26 Jan 1950, 19 July 1948, 1 March 1947) (Constitutional Framework)
- Handout stresses: Five modes of acquisition with Sections 3 to 7 and the birth table (1 July 1987, 3 Dec 2004) (Acquisition of Citizenship)
- Handout stresses: Sections 8, 9 and 10 (renunciation, termination, deprivation) (Termination of Citizenship)
- Handout stresses: CAA 2019, Assam Section 6A, OCI privileges and the OCI versus dual citizenship table (Naturalisation, Case of Assam, OCI)

Mains hooks

- none quoted in the material
- Plausible angles from the notes: single citizenship and national unity, CAA 2019 and its exclusions, Assam and Section 6A, OCI versus dual citizenship, NRC and NPR.

Citizenship is a legal bond of membership: Part II fixed who was a citizen in 1950, and the Citizenship Act 1955 decides how it is gained and lost.

MY NOTES

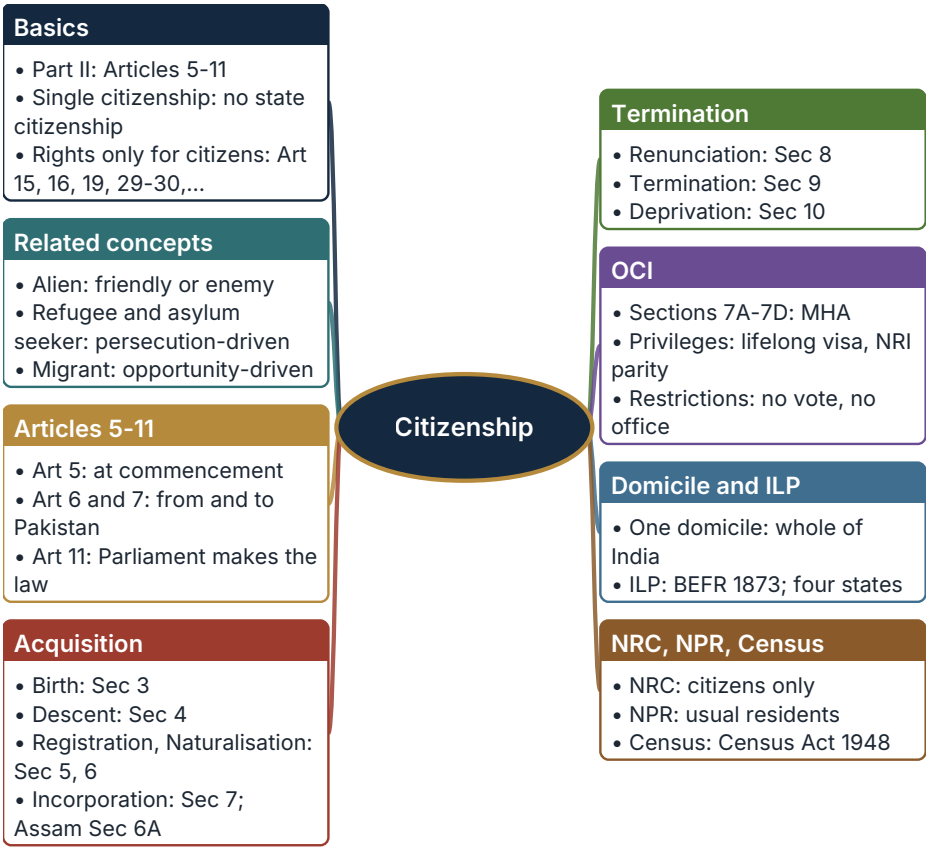
IN SIMPLE WORDS

- **Citizenship** is legal membership of the nation. India has **single citizenship** (no separate State citizenship). **Part II (Arts. 5 to 11)** decided who was a citizen at the start (**26 January 1950**) and gave **Parliament** the power to make a law: the **Citizenship Act, 1955**.
- Citizens alone enjoy Art. 15, 16, 19, 29-30, voting, contesting elections and high offices. **Aliens** are friendly (civil rights only) or enemy (neither civil nor political).
- The Act gives **five ways to acquire** citizenship: **birth (S.3), descent (S.4), registration (S.5), naturalisation (S.6), incorporation of territory (S.7)**. Birth rules tightened in **1987** and **2004**.
- **Three ways to lose** it: **renunciation (S.8), termination (S.9), deprivation (S.10)**. Deprivation never applies to citizens by birth.
- **CAA 2019** cut naturalisation residence from 12 to **5** years for six minorities from Pakistan, Afghanistan and Bangladesh who entered by **31 December 2014**. **Assam Accord** cut-offs: **1 Jan 1966** and **25 March 1971** (Sec. 6A).
- **OCI cardholders** (Secs. 7A to 7D) get a lifelong visa and economic parity, but **no vote, no public office**. India does **not** allow dual citizenship.

Key term	In plain words
Jus soli / Jus sanguinis	Citizenship by place of birth / by descent from parents; the Act blends both
Alien	A non-citizen: friendly (civil rights only) or enemy (no civil or political rights)
Illegal migrant	Foreigner who enters without valid documents or overstays; barred from registration and naturalisation
Refugee versus migrant	Refugee flees persecution and cannot safely return; migrant moves voluntarily and can return
Naturalisation (S.6)	Certificate given by the Centre to a foreigner meeting Third Schedule qualifications
OCI cardholder	Person of Indian origin with lifelong visa and economic parity but no political rights; not dual citizenship
Domicile	Permanent legal home for personal law; India has one domicile for the whole country, unlike citizenship which gives political rights
Inner Line Permit (ILP)	Entry permit under BEFR 1873 for Arunachal, Nagaland, Mizoram and Manipur (since 2019)

MY NOTES

MEMORY MAP: CITIZENSHIP



MNEMONIC · FIVE WAYS TO ACQUIRE INDIAN CITIZENSHIP

Born Daughters Raise New India

- **B** Birth (Section 3)
- **D** Descent (Section 4)
- **R** Registration (Section 5)
- **N** Naturalisation (Section 6)
- **I** Incorporation of territory (Section 7)

Born daughters raise a new India: the five modes with sections 3 to 7 in order. (Memory aid, not from the handout.)

MNEMONIC · THREE WAYS TO LOSE CITIZENSHIP

Right To Depart

- **R** Renunciation (Section 8)
- **T** Termination (Section 9)
- **D** Deprivation (Section 10)

Losing citizenship is the right to depart: voluntary, automatic or compulsory. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · GROUNDS TO CANCEL OCI REGISTRATION

MISLED

- **M** Misrepresentation: registration obtained by fraud
- **I** Imprisoned for two years or more within five years of registration
- **S** Sovereignty, integrity or security of India threatened
- **L** Local laws or MHA conditions violated (2021 Amendment)
- **E** Enemy assisted during war
- **D** Disaffection shown towards the Constitution

An OCI who has MISLED the authorities or acted against India loses the card. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · WHAT AN OCI CARDHOLDER CANNOT DO

OVAL

- **O** Offices: President, Governor, judges, civil services
- **V** Vote in Indian elections
- **A** Agricultural or plantation property
- **L** Legislature: MP or MLA membership

An OCI cardholder can never reach the Oval Office or any such post. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · GROUNDS FOR DEPRIVATION OF CITIZENSHIP

DRIFT

- **D** Disloyalty to the Constitution
- **R** Residence abroad for seven years without registering
- **I** Imprisonment of two years or more within five years of registration or naturalisation
- **F** Fraud or concealment of facts
- **T** Trade or communication with the enemy in war (unlawful)

A citizen who commits these acts can DRIFT out of citizenship. The order is rearranged for memory. (Memory aid, not from the handout.)

MEANING, SINGLE CITIZENSHIP AND RIGHTS

- Citizenship is the **legal membership** of a person in a political community. It brings full civil and political rights and matching duties. It is both identity and allegiance, the bond between an individual and the State.
- Governed by **Part II (Articles 5-11)** plus the **Citizenship Act, 1955**.

MY NOTES

- The framers adopted **single citizenship**, unlike the dual system of federal countries like the USA. Aim: national unity and equal rights across states and regions.
- Citizenship provisions came into force on **26 November 1949**.
- Whether from Kerala or Kashmir, Gujarat or Nagaland, a person is a citizen only of India with uniform rights and obligations.

RIGHTS AND PRIVILEGES ONLY FOR CITIZENS (DENIED TO ALIENS)

- Right against discrimination on grounds of religion, race, caste, sex or place of birth (Article 15).
- Equality of opportunity in public employment (Article 16).
- Freedom of speech and expression, assembly, association, movement, residence and profession (Article 19).
- Cultural and educational rights (Articles 29 and 30).
- Right to vote in elections to the **Lok Sabha and state legislative assembly**.
- Right to contest for membership of Parliament and the state legislature.
- Eligibility to hold certain public offices: **President, Vice-President, judges of the Supreme Court and High Courts, Governor of states, Attorney General of India and Advocate General of states**.
- **Memory aid (Citizen-only rights): D**iscrimination (Art 15), **E**mployment (Art 16), **F**reedoms (Art 19), **C**ultural-educational (Arts 29-30), **V**ote, **C**ontest, **O**ffices: "**D**ear **E**very **F**riend, **C**itizens **V**alue **C**hoosing **O**fficials."
- **Memory aid (Offices only for citizens): P**resident, **V**ice-President, **J**udges (SC and HC), **G**overnor, **A**ttorney General, **A**dvocate General: "**P**ut **V**ery **J**ust **G**uards **A**t **A**ll posts."
- **Handout detail:** Vote is limited to elections to the Lok Sabha and state legislative assembly, as the handout words it.

RELATED CONCEPTS: ALIEN, REFUGEE, ASYLUM SEEKER, MIGRANT

- An **alien** is anyone who is not a citizen of a State. Under the **Foreigners Act, 1946 (amended 1957)** "foreigner" is equated with alien.

TWO KINDS OF ALIEN

- **Friendly aliens:**
  - Entitled to civil rights
  - Denied political rights
  - Example: Australian cricketers visiting India on visa are aliens or foreigners under Indian law
- **Enemy aliens:**
  - Citizens of states at war with India (or aiding them)
  - Denied both civil and political rights

MY NOTES

- Example: Chinese nationals in India during the 1962 war treated as enemy aliens under the Defence of India Act

FOUR RELATED GROUPS

Group	Meaning	Key points	Handout example
Refugees	Flee their country due to persecution or threats to life	Principle of **non-refoulement** (Art. 33, 1951 UN Refugee Convention) bars sending them back to danger. India is not a signatory, but the Supreme Court in **NHRC v. State of Arunachal Pradesh (1996)** affirmed that fundamental rights like equality and right to life extend to all persons, including refugees	Tibetan refugees settled in Dharamshala since 1959: rights but not citizenship
Asylum seekers	Individuals seeking international protection and awaiting recognition of refugee status	International law affirms the right to seek asylum, but States keep discretion in granting it	Sri Lankan Tamils sought asylum in Tamil Nadu during the ethnic conflict in the 1980s
Migrants	Move voluntarily within or across borders for economic, educational or social opportunities	Can safely return and are protected by their home state	Large-scale migration of Bihari workers to Punjab's farms for agricultural employment

REFUGEE VERSUS MIGRANT

- **Refugee:**
  - Persecution-driven
  - Faces barriers to return
- **Migrant:**
  - Opportunity-driven
  - Can return freely
- **Memory aid (Related concepts):** **A**lien, **R**efugee, **A**sylum seeker, **M**igrant: "**A**ll **R**ights **A**re **M**ixed."
- **Shortcut: Friend or enemy. Friendly alien = civil rights only. Enemy alien = neither civil nor political rights.** Refugees get fundamental rights (equality, right to life) as persons, not citizenship.

MY NOTES

CONSTITUTIONAL FRAMEWORK: ARTICLES 5 TO 11 (PART II)

- Articles 5 to 11 lay down the **initial basis** of citizenship: who was deemed a citizen at the commencement of the Constitution (26 January 1950). They do **not** create a permanent law. They empower Parliament to frame one, now the **Citizenship Act, 1955**.

ARTICLES 5-11

Article	Subject	Key provision
Art 5	Citizenship at commencement	A person **domiciled in India** and (a) born in India, or (b) either of whose parents was born in India, or (c) ordinarily resident in India for **5 years** immediately before 26 Jan 1950, is deemed a citizen
Art 6	Persons who migrated from Pakistan	Those who migrated to India **before 19 July 1948** are deemed citizens. Those migrating **after** that date need **registration** after residence in India for **six months**
Art 7	Persons who migrated to Pakistan	A person who migrated to Pakistan **after 1 March 1947** ceases to be a citizen. If they later return under a **permit for resettlement**, they may regain citizenship by registration
Art 8	Persons of Indian origin residing outside India	Deemed citizens if registered with an Indian **diplomatic or consular** representative
Art 9	Voluntary acquisition of foreign citizenship	A person who **voluntarily** acquires citizenship of another country ceases to be an Indian citizen
Art 10	Continuance of citizenship rights	Every citizen under these provisions continues to be one, subject to any law made by Parliament
Art 11	Parliament's power to regulate	Empowers Parliament to make laws on acquisition, termination and other matters of citizenship (leads to the Citizenship Act, 1955)

- **Why 19 July 1948:** It is the date an ordinance came into force, the **Influx from West Pakistan (Control) Ordinance**. Hence the date in Article 6.
- **Memory aid (Articles 5-11 in order):** **C**ommencement (5), **F**rom Pakistan (6), **T**o Pakistan (7), **O**rigin outside India (8), **V**oluntary foreign citizenship (9), **C**ontinuance (10), **P**arliament (11): "**C**itizens **F**ind **T**heir **O**wn **V**alid **C**ertificates, **P**lease."
- **Shortcut:**
  - **Pakistan dates. Came to India: 19 July 1948 (before = citizen, after = register after 6 months). Went to Pakistan: after 1**

MY NOTES

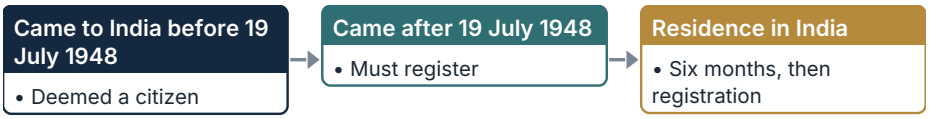
March 1947 = lost citizenship, return only on permit by registration. Art 5 residence test is **5 years**

- Art 6 registration wait is **6 months**

ART 6: MIGRANTS FROM PAKISTAN

- **Came to India before 19 July 1948**: Deemed a citizen
- **Came after 19 July 1948**: Must register
- **Residence in India**: Six months, then registration

ART 6: MIGRANTS FROM PAKISTAN



HANDOUT ALERT

Handout alert: The handout says citizenship provisions came into force on **26 November 1949** (Introduction) but also says Articles 5-11 fix citizens at commencement, **26 January 1950**. Both dates are in the handout: use 26 Nov 1949 for "provisions in force" and 26 Jan 1950 for "who is a citizen at commencement".

ACQUISITION OF CITIZENSHIP: THE FIVE MODES

- The **Citizenship Act, 1955** gives five legal modes, a blend of **jus soli** (citizenship by birthplace) and **jus sanguinis** (citizenship by descent): **Birth, Descent, Registration, Naturalisation, Incorporation of Territory**.
- **Memory aid (Five modes):** **B**irth, **D**escent, **R**egistration, **N**aturalisation, **I**ncorporation: "**B**right **D**ogs **R**arely **N**eed **I**nstructions." The Sections run in order: **3, 4, 5, 6, 7**.

1. BY BIRTH (SECTION 3)

- Recognises jus soli, with progressive restrictions to prevent misuse through illegal migration. Amendments in **1986 and 2003** tightened the criteria, linking citizenship to parentage and legality of residence.

CITIZENSHIP BY BIRTH (SECTION 3)

Period of birth	Eligibility	Explanation
Before 1 July 1987	Every person born in India automatically became a citizen, irrespective of parents' nationality	Broad jus soli principle, immediately after Independence
1 July 1987 to 2 December 2004	Citizen only if **either parent was an Indian citizen** at the time of birth	Excludes children of foreign diplomats or enemy aliens

MY NOTES

Period of birth	Eligibility	Explanation
On or after 3 December 2004	Citizen only if **one parent is an Indian citizen and the other is not an illegal migrant** at the time of birth	Restriction brought by the Citizenship (Amendment) Act, 2003 to control illegal immigration

- **Illegal migrant:** A foreigner who enters India **without valid travel documents** or **overstays** beyond the permitted period. The definition became crucial after 2003 due to security and demographic concerns.

BIRTH RULE TIGHTENING

- **Before 1 July 1987**: Born in India = citizen
- **1 July 1987 to 2 Dec 2004**: One parent a citizen
- **From 3 Dec 2004**: One parent a citizen and the other not an illegal migrant
- **Shortcut: Birth cut-offs. 1987 = one parent a citizen. 2004 = one parent a citizen plus the other not an illegal migrant.** Before 1987 = no parent test at all.

2. BY DESCENT (SECTION 4)

- Follows **jus sanguinis**: citizenship through parentage, not place of birth. Covers persons **born outside India** to Indian citizens, subject to registration and declaration.

CITIZENSHIP BY DESCENT (SECTION 4)

Period of birth	Eligibility	Explanation
26 January 1950 to 10 December 1992	Person born outside India is a citizen if the **father** was an Indian citizen at the time of birth	Gendered early law: citizenship passed only through the father
10 December 1992 to 3 December 2004	Citizen if **either parent** was an Indian citizen at the time of birth	The 1992 amendment removed gender bias and recognised both parents equally
After 3 December 2004	Only if (a) parents declare the child does **not hold a foreign passport**, and (b) the birth is **registered at an Indian consulate within one year**	Ensures documentation and dual-nationality control

- **Not automatic:** Citizenship by descent requires **proactive registration**. This prevents dual citizenship conflicts and ensures voluntary attachment to India.

MY NOTES

HANDOUT ALERT

Handout alert: The descent table in the PDF is scrambled across lines. It is rebuilt here with the three periods as the handout words them: 1950-1992 (father), 1992-2004 (either parent), after 2004 (declaration plus consulate registration within one year).

CITIZENSHIP BY REGISTRATION (SECTION 5)

- A **semi-discretionary** process: the **Central Government** may grant citizenship on application to certain categories, provided they are **not illegal migrants**. It mainly caters to Persons of Indian Origin (PIOs) and those with close familial or historical links to India.

WHO CAN REGISTER UNDER SECTION 5

Category	Condition
PIO residing in India	Ordinarily resident in India for **7 years** before applying ("ordinarily resident" means residing in India throughout the period, allowing short absences)
PIO residing abroad	Ordinarily resident in any country **outside undivided India** (before Partition)
Spouse of an Indian citizen	Ordinarily resident in India for **7 years** before application
Minor children of Indian citizens	The minor child of an Indian citizen may be registered (avoids statelessness)
Children of registered citizens	A person of **full age and capacity** whose parents are already registered Indian citizens under this section
Former citizens of independent India	The person or parents were citizens of independent India and the person has been ordinarily resident in India for at least **12 months** before applying
OCI cardholders	Registered as OCI for **5 years** and ordinarily resident in India for **12 months** before applying. Bridges quasi-citizenship (OCI) to full citizenship

- **Conditions for all:** Applicants must satisfy the Central Government on **character, intention to reside permanently, and lawful stay**. The power to grant or reject rests entirely with the Government.
- **Memory aid (Registration categories):** **P**IO in India, **P**IO abroad, **S**pouse, **M**inor children, **C**hildren of registered citizens, **F**ormer citizens, **O**CI cardholders: "**P**eople **P**ursue **S**ome **M**ore **C**itizenship **F**or **O**urselves."
- **Shortcut: Numbers in Section 5. 7 years** for PIO in India and for spouses. **12 months** for former citizens. **5 years OCI plus 12 months residence** for OCI cardholders.

MY NOTES

CITIZENSHIP BY NATURALISATION (SECTION 6)

- Granted by the **Central Government** to a **foreign national (not an illegal migrant)** who voluntarily seeks Indian citizenship and meets the qualifications of the **Third Schedule** of the Act.

ELIGIBILITY CONDITIONS

- Not a citizen of a country where Indian citizens are barred from naturalisation or citizenship (**reciprocity**).
- Of **full age and capacity** at the time of application.
- Of **good character** and intends to **reside permanently** in India.
- Adequate knowledge of a language specified in the **Eighth Schedule**.
- Has resided in India or been in government service:
- – for **12 years** immediately preceding the application (including **12 months** continuous stay before the date of application);
- – the **remaining 11 years** must fall within the previous **14 years**.
- **Reading the numbers:** 12 months of continuous stay plus the remaining 11 years make the 12 years in total. The 11 years must fall within the previous 14 years.

GRANT OF CERTIFICATE

- **Application**: Foreign national, not an illegal migrant
- **Central Government checks**: Eligibility and bona fides
- **Certificate of Naturalisation**:
  - Full Indian citizenship
  - Discretionary, not automatic, and the Government's decision is final

RELAXATION UNDER THE CITIZENSHIP (AMENDMENT) ACT, 2019

- Special exemption for persons from **six specified religious minorities: Hindus, Sikhs, Buddhists, Jains, Parsis and Christians**, from **Pakistan, Afghanistan and Bangladesh**, who entered India **before 31 December 2014**.
- Residence requirement reduced from **12 years to 5 years**.
- Exempted from being treated as illegal migrants under the 2003 amendment.
- Exempted from the classification of illegal migrant under the **Foreigners Act, 1946** and the **Passport Act, 1920**.
- New **Section 6B** reduces the qualifying residence period for naturalisation for these eligible persons.

MY NOTES

RESTRICTIONS ON THE CAA RELAXATION

- **Does not apply to:**
  - Persons from the six communities if they are from other countries
  - Muslim communities in the eligible countries
- **Does not extend to:**
  - Certain tribal areas under the Sixth Schedule
  - Areas under the Inner Line Permit (ILP) regime (for example parts of North-East India)

ADMINISTRATIVE ASPECTS

- Applications are processed through the **online portal of the Ministry of Home Affairs (MHA)**.
- MHA issued the **Citizenship (Amendment) Rules, 2024**: procedures, documentation, eligibility verification and online registration.
- **Memory aid (CAA 2019 communities):**
  - **H**indus, **S**ikhs, **B**uddhists, **J**ains, **P**arsis, **C**hristians
  - Countries **P**akistan, **A**fghanistan, **B**angladesh
  - Entry before **31 Dec 2014**: "**H**ow **S**ome **B**rave **J**ourneys **P**ass **C**ustoms."
- **Shortcut: Naturalisation numbers. Normal = 12 years. CAA 2019 groups = 5 years. Cut-off = 31 December 2014.**

INCORPORATION OF TERRITORY (SECTION 7) AND THE ASSAM CASE

- When a new territory becomes part of India, the Central Government decides, **through a notification**, who among its residents become citizens.
- **Puducherry (1962)**: French territories merged after the Treaty of Cession.
- **Dadra and Nagar Haveli (1961)**: integrated after liberation from Portuguese rule.
- **Sikkim (1975)**: citizens of Sikkim automatically became citizens of India after the merger through the **36th Amendment**.
- Result: political integration leads to automatic national belonging and avoids statelessness.

MODES OF ACQUIRING INDIAN CITIZENSHIP (SUMMARY)

Mode	Section	Key features	Notes and examples
By Birth	3	Based on birth in India with parental and migrant-status conditions	Different rules pre-1987, 1987-2004, post-2004

MY NOTES

Mode	Section	Key features	Notes and examples
By Descent	4	Through parentage for those born abroad	Registration needed post-2004; must declare no foreign passport
By Registration	5	For PIOs, spouses, minor children, former citizens, OCI holders and others	Requires residence and government approval
By Naturalisation	6	For foreign nationals meeting residency, language and moral standards	Relaxed to 5 years under CAA 2019 for specified minorities
By Incorporation of Territory	7	Automatic citizenship for residents of newly added Indian territories	Puducherry (1962), Sikkim (1975)

CASE OF ASSAM (SECTION 6A)

- Assam has been a victim of large-scale illegal migration, especially from Bangladesh regardless of religion. This created ethnic anxiety among Assamese and led to violence. To deal with it the **Assam Accord was signed in 1985**, and **Section 6A** was added to the Citizenship Act 1955. It deals **only with people living in Assam**.

SECTION 6A: DATES FOR ASSAM

- **Came before 1 January 1966**: Citizens of India
- **Came 1 January 1966 to 25 March 1971**: Citizens of India, but denied voting rights for **10 years**
- **Came after 25 March 1971**: To be identified and deported
- **Shortcut: Assam dates. 1966 = full citizen. 1966 to 1971 = citizen minus 10 years of vote. After 25 March 1971 = deport.**

TERMINATION OF CITIZENSHIP (SECTIONS 8, 9, 10)

- Citizenship is not perpetual. The Citizenship Act, 1955 gives **three modes**: **Renunciation, Termination, Deprivation**.
- **Memory aid (Three ways to lose): R**enunciation (Sec 8), **T**ermination (Sec 9), **D**eprivation (Sec 10): "**R**eally **T**ough **D**ecisions." Voluntary, automatic, compulsory in that order.

MY NOTES

RENUNCIATION, TERMINATION, DEPRIVATION

Mode	Section	Nature	Key points
Renunciation	8	**Voluntary** surrender	Any citizen of **full age and capacity** who also holds another country's citizenship may make a declaration in the prescribed form. On registration of the declaration the person ceases to be a citizen. **Minor children also lose** citizenship automatically, but may resume it by declaration **within one year of attaining majority**
Termination	9	**Automatic** cessation when a person **voluntarily acquires** another country's citizenship, with or without a formal declaration	Applies to citizens by birth, descent, registration or naturalisation. Government of India decides whether the acquisition was voluntary. Excludes those who got foreign citizenship **during a war involving India**, unless the Central Government permits
Deprivation	10	**Compulsory** withdrawal by the Central Government in exceptional circumstances	Applies **only** to those who got citizenship by **registration, naturalisation or incorporation of territory** (**not by birth**)

- **Dual nationality:** India does not allow dual citizenship. Anyone voluntarily acquiring foreign citizenship is deemed to have renounced Indian citizenship.

GROUNDS FOR DEPRIVATION (SECTION 10)

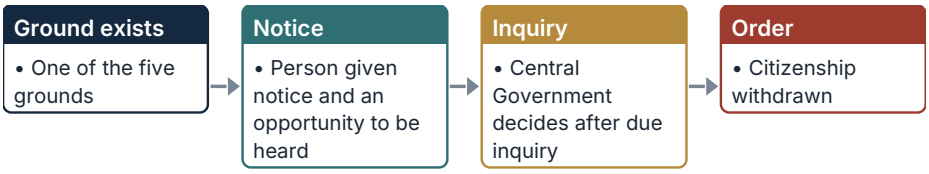
- **Fraud or concealment**: citizenship obtained by fraud, false representation or suppression of facts.
- **Disloyalty**: disaffection or disloyalty towards the Constitution of India.
- **Unlawful trade or communication**: with an enemy during war.
- **Imprisonment**: two years or more within **five years** after registration or naturalisation.
- **Ordinary residence abroad**: resided outside India for **seven consecutive years** without registering annually at an Indian mission the intention to retain Indian citizenship.
- **Memory aid (Deprivation grounds):** **F**raud, **D**isloyalty, **U**nlawful trade with enemy, **I**mprisonment (2 years in 5), **R**esidence abroad (7 years): "**F**ive **D**eadly **U**nforgivable **I**nfractions **R**emove citizenship."

MY NOTES

DEPRIVATION PROCEDURE

- **Ground exists**: One of the five grounds
- **Notice**: Person given notice and an opportunity to be heard
- **Inquiry**: Central Government decides after due inquiry
- **Order**: Citizenship withdrawn

DEPRIVATION PROCEDURE



- **Shortcut: Sec 8 versus 9 versus 10. Voluntary (8), automatic (9), compulsory (10).** Only Section 10 spares citizens by birth. Numbers to recall: **2 years in 5 years** (prison), **7 consecutive years** (abroad), **1 year after majority** (minors resume).

> **HANDOUT ALERT**
> Handout alert: The handout says under Renunciation that anyone voluntarily acquiring foreign citizenship is "deemed to have renounced", while Section 9 says termination is automatic on such acquisition. For the exam: **declaration by choice = Section 8 renunciation; voluntary acquisition of foreign citizenship = Section 9 termination**.

OVERSEAS CITIZENSHIP OF INDIA (OCI)

- The **Citizenship (Amendment) Act, 2015** replaced "Overseas Citizen of India" with **"Overseas Citizen of India Cardholder"** and **merged the PIO category**, creating one simplified scheme for the diaspora.
- India does not permit dual citizenship. OCI is a **limited form of overseas nationality**: long-term residency, travel and economic rights **without political participation**.
- Began under the **Citizenship (Amendment) Act, 2003**
- Expanded by the **2005 and 2015** amendments
- Legal authority: **Sections 7A to 7D** of the Citizenship Act, 1955 (eligibility, registration, rights, cancellation).
- Administered by the **Ministry of Home Affairs (MHA)** through its **Foreigners Division**.
- Objective: a lifelong connection with persons of Indian origin abroad, with travel, residence and business privileges while protecting constitutional and security interests.

ELIGIBILITY FOR OCI REGISTRATION

- A person (not an illegal migrant) may be registered if they:
- Were citizens of India on or after **26 January 1950**

MY NOTES

- Or
- Were eligible to become citizens on that date
- Or
- Belonged to a territory that became part of India after **15 August 1947**
- Or
- Are **children, grandchildren or great-grandchildren** of such citizens
- Or
- are **spouses of Indian citizens or OCI cardholders**, with the marriage registered and subsisting for at least **two years** before application.
- **Not eligible:** Citizens or former citizens of **Pakistan or Bangladesh**.

PRIVILEGES OF OCI CARDHOLDERS

Domain	Privileges
Travel	Multiple-entry, **lifelong visa**; exemption from FRRO registration for any duration
Economic	Parity with NRIs in economic, financial and educational fields (**except** agricultural or plantation property)
Education	Same admission rights as NRIs in professional courses
Social and civic	Eligible for Aadhaar, PAN, bank accounts and property ownership (**except** farm or plantation land)
Employment	Can work in the **private sector** but cannot hold public or constitutional offices

WHAT AN OCI CARDHOLDER CANNOT DO

- **Vote** in Indian elections (electoral sovereignty).
- **Hold public or constitutional offices**: posts such as President, Governor, judges or civil services.
- Become a **Member of Parliament or State Legislature** (prevents dual loyalty concerns).
- **Acquire agricultural or plantation property**.
- OCI gives privileged residency and economic participation, **not complete citizenship**.

GROUNDS FOR CANCELLATION (SECTION 7D)

- The Central Government may cancel OCI registration if the cardholder:
- obtained registration through **fraud or misrepresentation**;
- shows **disaffection** toward the Constitution of India;

MY NOTES

- is **imprisoned for two years or more within five years** of registration;
- **assists an enemy** during war;
- poses a **threat to the sovereignty, integrity or security** of India;
- (2021 Amendment) **violates local laws or MHA conditions**.

CITIZENSHIP (AMENDMENT) ACT, 2021: NEW PROVISIONS

- Prior permission needed for: **(a) Research, (b) Missionary work, (c) Mountaineering, (d) Journalism, (e) visits to restricted, protected or cantonment areas**.
- Parity with Indian citizens only in certain matters: entry fees to monuments, tariffs in domestic air travel, admission to medical and engineering colleges under the NRI quota.
- MHA periodically issues updated OCI guidelines (**2021, 2023**).

OCI CARDHOLDER VERSUS DUAL CITIZEN

Aspect	OCI cardholder	Dual citizen (not applicable in India)
Legal status	Foreign national with lifelong visa privileges	Citizen of two countries simultaneously
Political rights	No voting or constitutional posts	Full rights in both countries
Employment	Private sector only, no public service	Public and private allowed
Property rights	Excluded from agricultural and plantation property	Full rights in both jurisdictions
Basis of law	Citizenship (Amendment) Acts, 2003 and 2005	Not recognised under Indian law
Nature	Privileged visa plus cultural linkage	Full legal membership in two nations
Example	An Indian-origin Canadian with OCI card	A person holding US and UK passports

- **Memory aid (OCI cancellation grounds):** **F**raud, **D**isaffection, **I**mprisonment (2 in 5), **E**nemy assistance, **T**hreat to sovereignty, **V**iolation of local laws or MHA conditions (2021): "**F**ive **D**ays **I**n **E**xile **T**eaches **V**alue."
- **Memory aid (2021 prior-permission list):** **R**esearch, **M**issionary work, **M**ountaineering, **J**ournalism, **R**estricted areas: "**R**ed **M**aps **M**ark **J**ourneys **R**estricted."
- **Memory aid (OCI cannot):** **V**ote, **O**ffice, **M**P or MLA seat, **A**gricultural land: "**V**ery **O**ften **M**embers **A**sk."

MY NOTES

- **Shortcut: OCI in one line. Lifelong visa, NRI-like economics, private jobs: yes. Vote, office, legislature, farm land: no.** Spouse eligibility needs a marriage subsisting for **2 years**.

> **HANDOUT ALERT**
> Handout alert: The handout says the OCI scheme "originated under the 2003 Amendment" and was expanded by 2005 and 2015, while the comparison table lists the basis of law as the 2003 and 2005 Acts only. Treat 2003 as origin, 2005 and 2015 as expansion, and 2015 as the merger of PIO with OCI.

ALSO IN THE HANDOUT

- Poses a threat to sovereignty, integrity, or security of India: Allows preventive action against anti-national or extremist conduct.

DOMICILE AND INNER LINE PERMIT (ILP)

- **Domicile** is a person's permanent home, the place with which they have a permanent legal connection and intend to reside indefinitely. In India a person can have **only one domicile**, linked to the **whole territory of India**, not to individual states, though states may issue domicile certificates for administrative purposes such as education or employment. Domicile governs **personal legal matters** (succession, marriage, inheritance). Citizenship governs **political and civic membership**.

CITIZENSHIP VERSUS DOMICILE

Basis	Citizenship	Domicile
Meaning	A political and legal status of membership of a sovereign nation	A legal residence fixing a person's permanent home and personal-law jurisdiction
Governing law	Citizenship Act, 1955	Common law principles (lex fori); states issue domicile certificates for administrative purposes
Nature	Single citizenship only, no separate state citizenship	Only one domicile for the whole of India (as per HC rulings), though states may issue certificates for benefits
Purpose	Political rights such as voting, contesting elections and protection of the State	Civil matters such as succession, marriage, wills, taxation and educational or reservation benefits
Acquisition	Can be acquired or lost (birth, registration, naturalisation, renounced when foreign citizenship is acquired)	Acquired by birth or by choosing a permanent residence with intention to stay indefinitely

MY NOTES

Basis	Citizenship	Domicile
Changeability	Can be changed by legal procedures (for example renunciation)	Cannot be easily changed: needs proof of long-term residence and intent to reside permanently
Uniformity	Same for all Indians, no variation by state	Linked to individual residence and intention, varies person to person

INNER LINE PERMIT (ILP)

- **Origin**: introduced under the **Bengal Eastern Frontier Regulation (BEFR), 1873** by the British to restrict outsider entry and protect their commercial interests.
- **Post-Independence**: the term "British subject" was replaced with "Citizen of India", keeping ILP to protect tribal rights and land ownership.
- **Applicability**: currently in **Arunachal Pradesh, Nagaland, Mizoram and Manipur (since 2019)**.
- **Requirement**: Indian citizens from outside these states need a permit to enter or stay. Land purchase by outsiders is prohibited.
- **Purpose**: safeguard indigenous culture, demographic balance and socio-economic interests of tribal communities.
- **Constitutional link**: aligns with **Article 371** provisions giving special protections to Northeast states.
- **Memory aid (ILP states): A**runachal Pradesh, **N**agaland, **M**izoram, **M**anipur (since 2019): "**A**ll **N**orth-East **M**ountain **M**embers."
- **Shortcut: Citizenship versus domicile. Citizenship = political, one for India, law of 1955. Domicile = personal-law residence, one for India, certificates by states for benefits.**

ALSO IN THE HANDOUT

- Citizenship, therefore, lies at the core of India's constitutional democracy—defining who belongs to the nation and who enjoys its constitutional guarantees.

NRC, NPR AND CENSUS

COMPARATIVE FRAMEWORK

Feature	NRC	NPR	Census
Definition	Register of all **legal Indian citizens**	Register of all **usual residents** (citizens plus foreigners living for **6 months or more**)	Enumeration of the population covering demographic, social and economic data

MY NOTES

Feature	NRC	NPR	Census
Legal basis	Citizenship Act, 1955 and Rules, 2003 (Assam Accord specific)	Citizenship Act, 1955 and Citizenship (Registration of Citizens and Issue of National ID Cards) Rules, 2003	**Census Act, 1948**
Coverage	Only citizens	Citizens plus non-citizens (usual residents)	Entire population (statistical)
Purpose	Identify illegal migrants. Example: Assam NRC (2019 draft excluded about 19 lakh people)	Create a comprehensive identity database. First step towards a potential NRC	Collect demographic, economic and social data for planning and policy
Frequency	Never nationwide. Assam updated (2013-19)	First prepared **2010**, updated **2015**, to be updated with Census	Every **10 years** (last in 2011, 2021 postponed)
Data collected	Proof of lineage (1951 NRC, electoral rolls up to 24 March 1971 in Assam)	Demographic plus biometric data, Aadhaar or mobile linked	Age, sex, language, caste, occupation, religion, disability, migration and so on
Confidentiality	Publicly verifiable citizenship list	Shared with state and central authorities	Data confidential under the Census Act (only aggregates shared)

- **Memory aid (NRC NPR Census):** **C**itizens only (NRC), **R**esidents (NPR), **E**veryone counted (Census): "**C**ats **R**ule **E**verywhere."
- **Shortcut: Three registers. NRC = citizens, NPR = usual residents (6 months), Census = everyone, every 10 years, confidential.** NPR is the first step towards a potential NRC.
- **Handout detail:** The NRC cut-off in Assam is **24 March 1971** in the electoral-roll proof, while Section 6A uses **25 March 1971**. Use each date in its own context as the handout gives it.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 7, CITIZENSHIP

- Enemy aliens lose even protection against arrest and detention (Art. 22). Naturalised citizens can become President in India, but in the USA only birth citizens can.
- Single citizenship avoids the US problem where a State can favour its own citizens. Exceptions: Parliament can set residence conditions for State jobs under Art. 16 (the 1957 Act covered Andhra Pradesh, Himachal Pradesh, Manipur and

MY NOTES

Tripura non-gazetted posts and lapsed in 1974, except for Andhra Pradesh and Telangana)

- Art. 15 bars discrimination on place of birth, not residence
- Art. 19 movement is limited to protect tribes
- Art. 35A (J&K permanent residents) was ended by the 2019 Order
- Art. 6 details:
  - Migrants from Pakistan before 19 July 1948 needed ordinary residence since migrating
  - Those on or after that date needed registration after six months' residence. Art. 7 covers those who went to Pakistan after 1 March 1947 and came back to resettle
- Commonwealth citizenship was part of the 1955 Act until the 2003 amendment removed it.
- Descent extras: a minor citizen by descent who also holds another nationality ceases to be a citizen if he or she does not renounce it within six months of attaining full age.
- Registration extras: a person is of Indian origin if he or either parent was born in undivided India or in territory that became part of India after 15 August 1947. All registered persons must take an oath of allegiance.
- Naturalisation extras:
  - The applicant who is a citizen elsewhere must undertake to renounce that citizenship
  - All conditions can be waived for distinguished service to science, philosophy, art, literature, world peace or human progress. The oath of allegiance is compulsory
- Incorporation example: the Citizenship (Pondicherry) Order, 1962 under the 1955 Act.
- CAA 2019 came into force on 10 January 2020. Before it, such migrants without valid papers were illegal migrants
- In 2015 they were exempted from the Passport (Entry into India) Act, 1920 and the Foreigners Act, 1946, and in 2016 made eligible for long-term visas
- OCI history:
  - Singhvi High Level Committee on the Indian Diaspora (2000, report 2002)
  - 2003 Act gave OCI for 16 specified countries
  - 2005 Act widened it
  - The PIO card (August 2002) was merged into OCI card (December 2005 start) by the 2015 Act, effective 9 January 2015. OCI cannot hold Arts. 16, 58, 66, 124 and 217 posts
- Lakshmikanth differs: naturalisation under CAA 2019. It says the aggregate residence of 11 years (in the previous 14) is cut to

MY NOTES

5 years, besides the 12 months just before applying. The handout says residence falls from 12 to 5 years. Use the handout's '12 to 5 years' in class.

- Lakshmikanth differs: renunciation. It says a declaration made during a war in which India is engaged is withheld by the Centre, and a renouncing person's minor children may resume citizenship within one year of turning 18. The handout gives the one-year resumption without naming age 18.

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

What does Part II of the Constitution cover?	Citizenship, Articles 5 to 11.
Which Act currently governs citizenship in India?	The Citizenship Act, 1955, made under Parliament's power in Article 11.
Why did the framers choose single citizenship?	To reinforce national unity and equality of rights across states and regions, unlike the dual system of the USA.
Friendly alien versus enemy alien?	Friendly: civil rights but no political rights. Enemy: citizens of states at war with India (or aiding them), denied both civil and political rights.
What is non-refoulement?	The principle (Art. 33, 1951 UN Refugee Convention) that bars sending refugees back to danger. India is not a signatory.
Which case affirmed fundamental rights for refugees as persons?	NHRC v. State of Arunachal Pradesh (1996).
Refugee versus migrant?	Refugee: persecution-driven, faces barriers to return. Migrant: opportunity-driven, can return freely.
What does Article 5 say?	Citizen at commencement: domiciled in India and born in India, or either parent born in India, or ordinarily resident for 5 years before 26 Jan 1950.
What are the Article 6 and Article 7 dates?	Art 6: migrated to India before 19 July 1948 means citizen, after means register after six months. Art 7: migrated to Pakistan after 1 March 1947 means citizenship ceases.

Why 19 July 1948?	The Influx from West Pakistan (Control) Ordinance came into force on that date.
What do Articles 8, 9, 10 and 11 cover?	8: persons of Indian origin abroad (register with consular office). 9: voluntary foreign citizenship ends Indian citizenship. 10: continuance. 11: Parliament's power to regulate.
Five modes of acquisition with Sections?	Birth 3, Descent 4, Registration 5, Naturalisation 6, Incorporation of Territory 7.
Birth rule after 3 December 2004?	One parent an Indian citizen and the other not an illegal migrant at the time of birth.
Descent rule after 3 December 2004?	Parents declare the child holds no foreign passport and the birth is registered at an Indian consulate within one year.
Who can register under Section 5 with a 7-year rule?	A PIO ordinarily resident in India for 7 years, and the spouse of an Indian citizen ordinarily resident for 7 years.
OCI cardholder route to full citizenship?	Registered as OCI for 5 years and ordinarily resident in India for 12 months before applying.
Naturalisation residence rule?	12 years in total (including 12 months continuous before applying), with the remaining 11 years within the previous 14 years. Also needs an Eighth Schedule language.
Who benefits from the CAA 2019 and how?	Hindus, Sikhs, Buddhists, Jains, Parsis and Christians from Pakistan, Afghanistan and Bangladesh who entered before 31 Dec 2014. Residence cut from 12 to 5 years (Section 6B).
Where does the CAA relaxation not apply?	Sixth Schedule tribal areas and Inner Line Permit regime areas.
Examples of incorporation of territory?	Puducherry (1962), Dadra and Nagar Haveli (1961), Sikkim (1975, 36th Amendment).
What does Section 6A of the Citizenship Act provide?	Assam: came before 1 Jan 1966 citizens. 1 Jan 1966 to 25 March 1971 citizens but no vote for 10 years. After 25 March 1971 to be identified and deported. Follows the 1985 Assam Accord.

MY NOTES

Renunciation (Section 8) in brief?	Voluntary declaration by a citizen of full age and capacity who holds another citizenship. Minor children also lose it but can resume within one year of attaining majority.
Termination (Section 9) in brief?	Automatic loss on voluntarily acquiring foreign citizenship. Excludes citizenship acquired during a war involving India unless the Central Government permits.
Who can be deprived of citizenship (Section 10)?	Only those who got it by registration, naturalisation or incorporation of territory, not by birth.
Five grounds of deprivation?	Fraud, disloyalty to the Constitution, unlawful trade or communication with an enemy during war, imprisonment of 2 years within 5 years, 7 consecutive years abroad without registering intention.
Which Sections cover OCI and its cancellation?	Sections 7A to 7D, cancellation in 7D.
Who is not eligible for OCI?	Citizens or former citizens of Pakistan or Bangladesh.
What can OCI cardholders not do?	Vote, hold public or constitutional offices, become an MP or state legislator, acquire agricultural or plantation property.
What needs prior permission under the 2021 OCI provisions?	Research, missionary work, mountaineering, journalism, and visits to restricted, protected or cantonment areas.
OCI versus dual citizen?	OCI: foreign national with lifelong visa, no vote, private sector only. Dual citizen: full rights in two countries, not recognised in India.
Citizenship versus domicile?	Citizenship: political status under the 1955 Act. Domicile: permanent home for personal law matters, one for all of India (states issue certificates for benefits).
ILP origin and states?	BEFR 1873. Arunachal Pradesh, Nagaland, Mizoram, Manipur (since 2019). Linked to Article 371 protections.

MY NOTES

NRC versus NPR versus Census?	NRC: citizens only. NPR: usual residents (6 months or more). Census: whole population, every 10 years, Census Act 1948, data confidential.

Trap 1 · Descent is not automatic

Birth abroad to an Indian parent gives citizenship only if the birth is registered at an Indian consulate within one year, with a declaration of no foreign passport (after 3 December 2004). *Rule: descent after 2004 = register within one year.*

Trap 2 · Three eras of birth rules

Before 1 July 1987 every person born in India was a citizen. From 1 July 1987 to 2 December 2004 one parent had to be a citizen. From 3 December 2004 one parent a citizen and the other not an illegal migrant. *Rule: 1987 = one parent a citizen; 2004 = and the other not an illegal migrant.*

Trap 3 · Deprivation versus termination

Termination is automatic when a citizen voluntarily takes foreign citizenship. Deprivation is a compulsory act of the Centre and applies only to citizens by registration, naturalisation or incorporation of territory. *Rule: birth citizens can never be deprived.*

Trap 4 · OCI is not dual citizenship

OCI replaced the PIO category (2015) and gives privileges only. OCI holders cannot vote, hold public or constitutional offices, sit in Parliament or buy agricultural or plantation property. *Rule: OCI = lifelong visa plus economic parity, never political rights.*

QUICK QUIZ

Q1. Under Article 6, persons who migrated from Pakistan to India before which date are deemed citizens?

1. 1 March 1947
2. 19 July 1948
3. 26 November 1949
4. 26 January 1950

Q2. Which Article empowers Parliament to make laws on acquisition and termination of citizenship?

1. Article 5
2. Article 9
3. Article 10
4. Article 11

Q3. Which Section of the Citizenship Act, 1955 deals with citizenship by registration?

1. Section 3
2. Section 4
3. Section 5
4. Section 7

Q4. A person born in India on 5 December 2004 is a citizen by birth only if

1. both parents are citizens
2. one parent is a citizen and the other is not an illegal migrant
3. either parent is a citizen
4. born in India, irrespective of parents

MY NOTES

Q5. Citizenship by descent for a person born abroad between 1950 and 10 December 1992 required that

1. the mother was a citizen
2. either parent was a citizen
3. the father was a citizen
4. the birth was registered within one year

Q6. Under the CAA 2019, the residence requirement for naturalisation of eligible persons is reduced from 12 years to

1. 3 years
2. 5 years
3. 7 years
4. 11 years

Q7. Citizenship can be taken away by Deprivation (Section 10) from a person who acquired it by

1. birth
2. registration
3. descent
4. birth in India after 1987

Q8. Which of these is NOT a ground for deprivation of citizenship in the handout?

1. Fraud or concealment
2. Disloyalty to the Constitution
3. Imprisonment for two years within five years of registration or naturalisation
4. Marriage to a foreign national

Q9. Automatic cessation of Indian citizenship on voluntarily acquiring foreign citizenship is covered by

1. Section 8
2. Section 9
3. Section 10
4. Section 7

Q10. An OCI cardholder CAN

1. vote in Lok Sabha elections
2. become a Member of Parliament
3. work in the private sector
4. acquire agricultural land

Q11. Which of the following needs prior permission for an OCI cardholder under the 2021 provisions?

1. Opening a bank account
2. Journalism
3. Owning a house
4. Getting an Aadhaar card

Q12. The Inner Line Permit regime originates from

1. Bengal Eastern Frontier Regulation, 1873
2. Foreigners Act, 1946
3. Citizenship Act, 1955
4. Census Act, 1948

Q13. Which register covers all usual residents, including foreigners living for six months or more?

1. NRC
2. NPR
3. Census
4. Electoral roll

Q14. Under Section 6A for Assam, those who came between 1 January 1966 and 25 March 1971 are citizens but denied voting rights for

1. 5 years
2. 7 years
3. 10 years
4. 12 years

MY NOTES

Q15. PYQ 2021: With reference to India, consider the following statements: [2021]
4. There is only 'one citizenship and one domicile'.
5. A citizen by birth only can become the Head of State.
6. A foreigner once granted the citizenship cannot be deprived of it under any circumstances.

1. 1 only
2. 2 only
3. 1 and 3
4. 2 and 3

Q16. PYQ 2005: Consider the following statements:[2005]
3. Articles 371 A to 371 I were inserted in the Constitution of India to meet regional demands of Nagaland, Assam, Manipur, Andhra Pradesh, Sikkim, Mizoram, Arunachal Pradesh and Goa.
4. Constitutions of India and the United States of America envisage a dual policy (The Union and the States) but a single citizenship.
5. A naturalised citizen of India can never be deprived of his citizenship.
Which of the above statements is/are correct?

1. 1, 2 and 3
2. 1 and 3
3. 3 only
4. 1 only

Answers: Q1 b, Q2 d, Q3 c, Q4 b, Q5 c, Q6 b, Q7 b, Q8 d, Q9 b, Q10 c, Q11 b, Q12 a, Q13 b, Q14 c, Q15 a, Q16 d

MY NOTES

CHAPTER 30 · HANDOUT PAGES ON ARTICLE 324 AND THE ELECTION COMMISSION OF INDIA

30 Election Commission

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

EXAM LENS

Prelims hooks

- Article 324 and 325-329 subjects
- composition and tenure (6 years or 65)
- equal salary with SC Judge
- removal procedure
- Regional Commissioners
- National Voter's Day (25 January, 2011)
- Election Symbols Order 1968
- Gill case
- 61st, 73rd, 74th, 84th, 87th Amendments
- None quoted in the material as PYQs.
- Handout stresses: No PYQs are quoted in this handout chapter (Whole chapter)
- Handout stresses: Article 324 vests superintendence, direction and control of elections to Parliament, State Legislatures, President and Vice-President (Overview)
- Handout stresses: Membership history with exact dates: single member to 15 Oct 1989; two ECs on 16 Oct 1989; abolished January 1990; two ECs again October 1993 (Evolution of membership)
- Handout stresses: Three safeguards and three gaps under Article 324 (Safeguards)
- Handout stresses: Gill vs. CEC (1977) plenary power, with the 2019 Vellore example (Powers)

Mains hooks

- none quoted in the material
- Plausible angles from the notes: independence of the Election Commission and the gaps in Article 324, powers and functions, Model Code of Conduct, State Election Commissions versus the ECI.

MY NOTES

Article 324 gives the Commission full control of elections, and the CEC's judge-like removal protection is the anchor of its independence, though qualifications, fixed term and post-retirement bars are missing.

IN SIMPLE WORDS

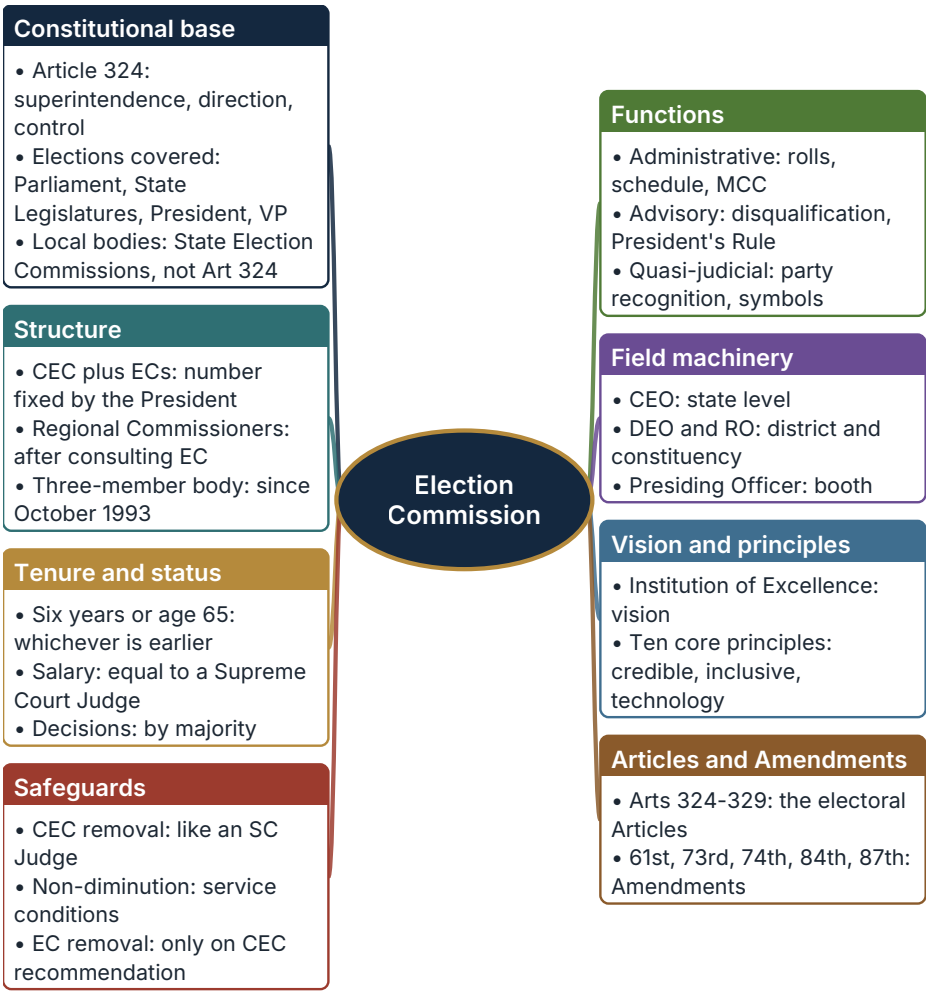
- The **Election Commission (EC)** is a **permanent, independent** body under **Article 324**. It holds the **superintendence, direction and control** of elections to **Parliament, State Legislatures, President and Vice-President**.
- Panchayat and Municipality elections are **not** under it
- They belong to separate **State Election Commissions** (73rd and 74th Amendments)
- It has a **Chief Election Commissioner (CEC)** plus other ECs fixed by the **President**. Since **October 1993** it has been a **three-member** body. Tenure is **6 years or age 65**, whichever is earlier
- Pay equals a **Supreme Court Judge**
- Disagreements are settled by **majority**
- The **CEC** can be removed only like an **SC Judge**. Other ECs and Regional Commissioners can be removed only on the **CEC's recommendation**.
- Its work is **administrative** (rolls, schedule, Model Code of Conduct), **advisory** (disqualification, President's Rule) and **quasi-judicial** (party recognition and symbols).
- On the ground: **CEO** (state), **DEO** (district), **Returning Officer** (constituency), **Presiding Officer** (booth).

Key term	In plain words
Article 324	Vests superintendence, direction and control of elections in the Election Commission
Regional Commissioners	Appointed by the President, after consulting the EC, to assist the Commission
Model Code of Conduct	Rules for parties and candidates during campaigns, issued and enforced by the EC
Quasi-judicial function	Settling disputes on party recognition and election symbols
Plenary power (Gill vs CEC, 1977)	EC can use powers even outside the RPA Act to ensure free and fair polls; Vellore 2019 poll was cancelled
Chief Electoral Officer	State-level head of election work, designated in consultation with the state government
Returning Officer	Conducts the election of one parliamentary or assembly constituency

MY NOTES

Key term	In plain words
State Election Commission	Conducts Panchayat and Municipality polls; outside Article 324

MEMORY MAP: ELECTION COMMISSION



MNEMONIC · TENURE AND STATUS OF THE CEC AND ECS

T E R M S

- **T** Term of six years or age 65, whichever is earlier
- **E** Equal powers with the other Commissioners
- **R** Resign any time, or be removed before the term ends
- **M** Majority decides when Commissioners differ
- **S** Salary and privileges equal to a Supreme Court Judge

These are the TERMS of service of the CEC and ECs. The order is rearranged for memory. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · SAFEGUARDS FOR THE COMMISSION'S AUTONOMY

S E T

- **S** Security of tenure: the CEC is removed like a Supreme Court Judge
- **E** ECs and Regional Commissioners removed only on the CEC's recommendation
- **T** Terms of service of the CEC cannot be reduced after appointment

These three safeguards SET the Commission free of the executive. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · THREE GAPS IN ARTICLE 324'S DESIGN

N O T

- **N** No qualifications specified in the Constitution
- **O** Offices after retirement: no bar on later appointments
- **T** Term of office not definitively fixed

Each gap is a NOT: the Constitution does NOT specify qualifications, does NOT bar later offices, does NOT fix the term. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · THREE KINDS OF EC FUNCTIONS

Act Advise Quell

- **A** Administrative: rolls, schedule, Model Code of Conduct
- **A** Advisory: disqualification, President's Rule
- **Q** Quasi-judicial: party recognition and symbol disputes

The EC acts to run polls, advises the President and Governors, and quells disputes over parties and symbols. No good single word exists for this list, so this is a sentence aid; the order of items is free. (Memory aid, not from the handout.)

MNEMONIC · HOW THE EC'S SIZE CHANGED

Solo Trio Solo Trio

- **S** Single member from 1950 to 15 Oct 1989
- **T** Three members from 16 Oct 1989 (voting age lowered to 18)
- **S** Single member again from Jan 1990
- **T** Three members again from Oct 1993, still today

One lone CEC, a trio, one lone CEC, then a trio for good. (Memory aid, not from the handout.)

MY NOTES

OVERVIEW: ARTICLE 324 AND WHAT IT COVERS

- The Election Commission is a **constitutionally established, permanent and independent** authority created to safeguard the integrity of the electoral process.
- **Article 324** vests it with **superintendence, direction and control** of elections to **Parliament, State Legislatures, and the offices of President and Vice-President**.
- It is an **all-India body**, working uniformly across the Union and the States for these elections.

LOCAL BODIES ARE SEPARATE

- Elections to **Panchayats and Municipalities** do **not** fall under Article 324.
- The Constitution provides separate **State Election Commissions**, constituted by the respective State Governments, to supervise and conduct local body elections.
- So Article 324 gives a **unified national framework** for major offices, while local government elections follow a **decentralised, state-specific** mechanism.

ECI VERSUS STATE ELECTION COMMISSION

- **Election Commission of India:**
  - Article 324
  - Elections to Parliament, State Legislatures, President, Vice-President
  - All-India body
- **State Election Commission:**
  - Constituted by the State Government
  - Elections to Panchayats and Municipalities
  - Outside Article 324
- **Memory aid (What ECI runs): P**arliament, **S**tate Legislatures, **P**resident, **V**ice-President: "**P**eople **S**elect **P**resident and **V**P."
- **Shortcut: ECI or SEC. Top four offices = ECI. Panchayats and Municipalities = State Election Commission.**

STRUCTURE AND COMPOSITION

CONSTITUTIONAL PROVISIONS (ARTICLE 324)

- The Commission has a **Chief Election Commissioner (CEC)** and such number of other **Election Commissioners (ECs)** as the **President** determines from time to time.
- The **President appoints** both the CEC and the other ECs.
- When other ECs are appointed, the **CEC automatically acts as Chairperson**.

MY NOTES

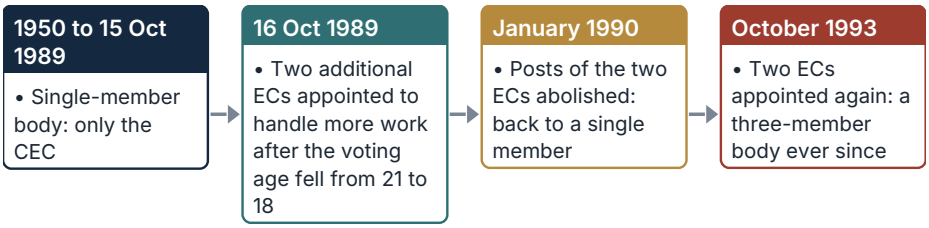
- The President may appoint **Regional Commissioners**, when required, **after consulting the Election Commission**.
- The President specifies the **service conditions and tenure** of ECs and Regional Commissioners.

EVOLUTION OF MEMBERSHIP

HOW THE COMMISSION GREW

- **1950 to 15 Oct 1989**: Single-member body: only the CEC
- **16 Oct 1989**: Two additional ECs appointed to handle more work after the voting age fell from 21 to 18
- **January 1990**: Posts of the two ECs abolished: back to a single member
- **October 1993**: Two ECs appointed again: a three-member body ever since

HOW THE COMMISSION GREW



- **Shortcut: Membership counts. 1 (1950-89), 3 (Oct 1989 to Jan 1990), 1 (1990-93), 3 (since Oct 1993).**

TENURE, STATUS AND DECISIONS

- The CEC and the other ECs:
- have **equal powers** in all operational and administrative matters;
- receive **identical salaries, allowances and privileges** equal to a **Judge of the Supreme Court**;
- serve **six years or until age 65, whichever is earlier**;
- may **resign** at any time or be **removed** before completing their tenure as per constitutional provisions.
- When Commissioners differ in opinion, decisions are taken **by majority**.
- **National Voter's Day:** In **2011**, **25 January** was declared "National Voter's Day", to mark the Election Commission's foundation day.
- **Memory aid (Article 324 composition):** **C**EC plus ECs, **P**resident appoints, **R**egional Commissioners, **S**ervice conditions by President: "**C**ommissioners **P**icked, **R**egions **S**erved."

MY NOTES

HANDOUT ALERT

Handout alert: The handout gives a six-year term or age 65 (Structure section) but later lists as a gap that the Constitution "does not fix a definitive term of office for members (beyond age and tenure norms provided elsewhere)". Use **six years or 65** for tenure and read the gap as: the Constitution itself fixes no term.

ALSO IN THE HANDOUT

- This expansion aimed to handle the increased workload following the lowering of the voting age from 21 to 18 years, which substantially enlarged the electorate.
- From that time onward, the Election Commission has consistently operated as a three-member body, continuing to the present day.

SAFEGUARDS FOR THE AUTONOMY OF THE COMMISSION

- Article 324 builds protections to insulate the Commission from executive interference and keep public confidence.

THREE SAFEGUARDS

Safeguard	What it means
1. Security of tenure of the CEC	Cannot be removed except in the **same manner and on the same grounds as a Judge of the Supreme Court**: removal by the President after both Houses of Parliament pass a resolution by a **special majority** on proven **misbehaviour or incapacity**. Though appointed by the President, the CEC does not hold office at the President's pleasure
2. Non-diminution of service conditions	The CEC's pay, allowances or other service benefits cannot be reduced to his or her disadvantage after appointment
3. Removal of other functionaries	An **Election Commissioner or Regional Commissioner** cannot be removed except **on the recommendation of the CEC**. An internal check on arbitrary executive action

REMOVING THE CEC

- **Misbehaviour or incapacity proven**: Grounds as for an SC Judge
- **Resolution in both Houses**: Special majority
- **President orders removal**: Only after both Houses act

LIMITATIONS (GAPS IN THE DESIGN)

- The Constitution gives **no formal qualifications** (legal, administrative, educational or judicial) for appointment.
- It does **not fix a definitive term** of office for members (beyond the age and tenure norms provided elsewhere).

MY NOTES

- There is **no bar** on retiring Election Commissioners being given other offices by the government.
- These gaps are seen as weaknesses against perceptions of executive influence.
- **Memory aid (Safeguards): T**enure like an SC Judge, **N**on-diminution of service conditions, **R**emoval of ECs only on CEC recommendation: "**T**he **N**ation **R**elies on it."
- **Memory aid (Gaps): Q**ualifications not specified, **T**erm not fixed, **P**ost-retirement jobs not barred: "**Q**uiet **T**ime **P**asses."
- **Shortcut: CEC versus EC protection. CEC = removed like an SC Judge. EC and Regional Commissioners = removed only on the CEC's recommendation.**

ALSO IN THE HANDOUT

- This non-diminution clause ensures that once appointed the CEC cannot be penalised by retrospective or subsequent reduction in pay, allowances or other service benefits.
- These gaps have been identified as potential weaknesses in the statute-based architecture for insulating electoral administration from perceptions of executive influence.

POWERS, RESPONSIBILITIES AND FUNCTIONS

- Authority is exercised through three categories: **administrative, advisory and quasi-judicial**.

THREE KINDS OF FUNCTION

Category	What the Commission does
Administrative	Supervises the electoral machinery. Determines the **territorial extent of constituencies** under the Delimitation Commission Act of Parliament. Prepares and updates **electoral rolls**. Fixes and publishes the **election schedule**, scrutinises **nomination papers**, and **cancels polls** for serious irregularities such as rigging, booth-capturing or violence. Requisitions staff from the Centre or state (through the President or Governors). Appoints **returning and presiding officers** at district and booth level. Organises **broadcast time** for parties on radio and TV. Issues and enforces the **Model Code of Conduct**
Advisory	Advises the **President** on disqualification of **MPs** and advises **Governors** on disqualification of **members of state legislatures**. Advises whether **elections can be held in a State under President's Rule** (emergency extension considerations). Recognises political parties and recommends classification as **national or state parties** based on electoral performance

MY NOTES

Category	What the Commission does
Quasi-judicial	Settles disputes on **recognition of parties and allocation of election symbols**. Appoints officers and **inquiry bodies** to investigate irregularities. Enforces election laws and its own orders through due procedure. Manages the **India International Institute of Democracy and Election Management** (set up in 2011)

REGISTRATION, SYMBOLS AND PARTY STATUS

- The Commission **registers political parties**. Based on poll performance, parties get **national or state party status**.
- Recognition affects entitlement to **reserved symbols, broadcast time** and other privileges.
- It decides election symbols and adjudicates disputes, under the **Election Symbols (Reservation and Allotment) Order, 1968**.
- **National party symbols** cannot be used by another party anywhere in India. **State party symbols** can be used in states **other than** the one where the party is recognised as a state party.
- Detailed powers are in the **Representation of the People Act (RPA)**.
- **Plenary power: Gill vs. CEC (1977):** The Commission has **plenary power**: it can use powers not even mentioned in the RPA to ensure **free and fair elections**. In **2019** the Commission **nullified the election of Vellore constituency** after reports of large-scale bribing.

NATIONAL VERSUS STATE PARTY SYMBOLS

- **National party:** Symbol cannot be used by another party in any part of India
- **State party:** Symbol can be used in other states, not where the party is recognised
- **Memory aid (Three functions): A**dministrative, **A**dvisory, **Q**uasi-judicial: "**A**ll **A**round **Q**uality."
- **Memory aid (Administrative tasks): C**onstituencies, **R**olls, **S**chedule, **N**omination scrutiny, **C**ancel polls, **R**equisition staff and appoint officers, **M**odel Code: "**C**ommissioners **R**un **S**ound **N**ational **C**ontests, **R**ightly, **M**ethodically."
- **Shortcut: Advisory in two lines. President on MPs, Governor on state legislators.** Also advises on holding elections under President's Rule and recognises parties as national or state.

ORGANISATIONAL SUPPORT AND FIELD STRUCTURE

- The ECI works through a **central headquarters in New Delhi** and a cadre of officers, with a hierarchical, multi-level machinery.

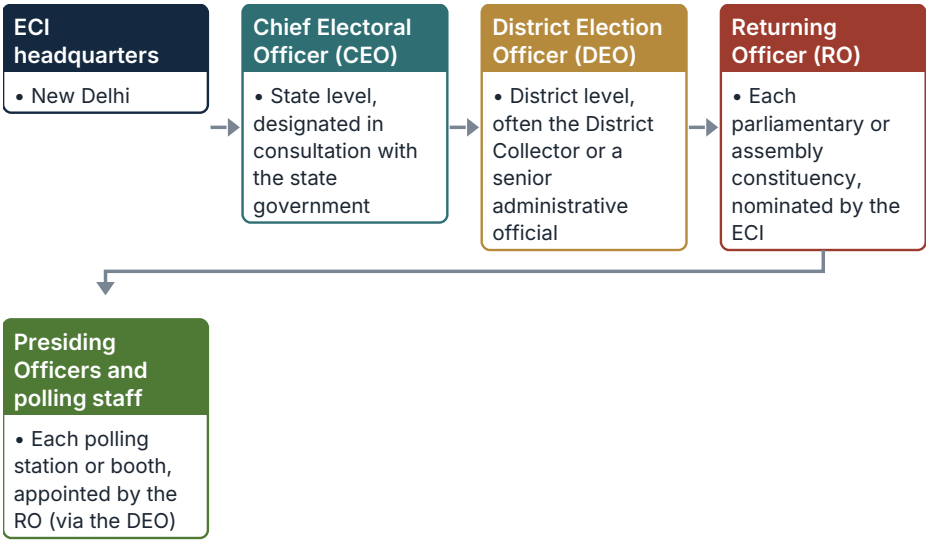
FIELD HIERARCHY

- **ECI headquarters**: New Delhi

MY NOTES

- **Chief Electoral Officer (CEO)**: State level, designated in consultation with the state government
- **District Election Officer (DEO)**: District level, often the District Collector or a senior administrative official
- **Returning Officer (RO)**: Each parliamentary or assembly constituency, nominated by the ECI
- **Presiding Officers and polling staff**: Each polling station or booth, appointed by the RO (via the DEO)

FIELD HIERARCHY



- This layered structure ensures the Commission's policies and procedures are implemented across India.
- **Memory aid (Field ladder): C**EO, **D**EO, **R**O, **P**residing Officer: "**C**ome **D**own **R**ight **P**ort." Top to bottom: state, district, constituency, booth.

VISION, MISSION AND CORE PRINCIPLES

- **Vision**: an **Institution of Excellence**: continuously enhancing citizen engagement and participation, deepening electoral democracy in India and serving as a model globally.
- **Core purpose (mission)**: preserve **independence, integrity and operational autonomy** while ensuring elections are **accessible, inclusive and ethically conducted**, with the highest standards of professionalism for **free, fair and transparent** elections.

TEN CORE PRINCIPLES

- **Constitutional values**: equality, equity, impartiality, independence and the rule of law in exercising superintendence, direction and control.
- **Credible elections**: freeness, fairness, transparency, integrity, accountability, autonomy and professionalism.

MY NOTES

- **Inclusive participation**: voter-centric, voter-friendly environment that removes barriers to enrolment and voting.
- **Stakeholder engagement**: constructive engagement with parties and all stakeholders to promote responsible political conduct.
- **Public awareness and trust**: public understanding of electoral processes among voters, parties, election functionaries and candidates.
- **Human resource development**: invest in people so electoral services are delivered professionally.
- **Infrastructure quality**: build and maintain quality electoral infrastructure.
- **Adoption of technology**: appropriate technology for efficiency, accuracy and transparency.
- **Innovation and excellence**: innovative practices that raise institutional performance.
- **Reinforcing democratic values**: maintain and enhance people's confidence and trust in the electoral system.
- **Memory aid (Ten principles):** **C**onstitutional values, **C**redible elections, **I**nclusive participation, **S**takeholder engagement, **P**ublic awareness, **H**uman resources, **I**nfrastructure, **T**echnology, **I**nnovation, **R**einforcing democratic values: "**C**areful **C**ommissioners **I**nclude **S**tates, **P**ublic, **H**uman **I**deas, **T**echnology, **I**nnovation, **R**esults."

ALSO IN THE HANDOUT

- The Commission's supervisory role extends to issuing and enforcing the Model Code of Conduct that governs behaviour of parties and candidates during campaigns.
- This vision emphasises elevating the credibility and reach of the electoral process so that democratic participation becomes more meaningful and resilient.
- ## Core Principles Guiding Electoral Governance To translate its vision and mission into practice, the Commission follows a set of guiding principles that define its approach to electoral administration and reform: - Constitutional Values: Uphold constitutional values — equality, equity, impartiality, independence and the rule of law — in the exercise of superintendence, direction and control over electoral governance.

MY NOTES

KEY CONSTITUTIONAL ARTICLES

ARTICLES 324 TO 329

Article	Subject
324	Superintendence, direction and control of elections vested in an Election Commission
325	No person ineligible for inclusion in, or to claim inclusion in, a special electoral roll on grounds of religion, race, caste or sex
326	Elections to the House of the People and State Legislative Assemblies on the basis of **adult suffrage**
327	Power of **Parliament** to make provision on elections to Legislatures
328	Power of the **Legislature of a State** to make provision on elections to such Legislature
329	**Bar to interference by courts** in electoral matters

- **Memory aid (Articles 324-329):** **S**uperintendence (324), **N**o discrimination in roll (325), **A**dult suffrage (326), **P**arliament's power (327), **S**tate Legislature's power (328), **B**ar on courts (329): "**S**ome **N**ew **A**dmirals **P**refer **S**ea **B**reeze."
- **Shortcut: Parliament versus State. 327 = Parliament. 328 = State Legislature.** 324 control, 325 roll, 326 vote age and suffrage, 329 courts barred.

CONSTITUTIONAL AMENDMENTS AFFECTING THE ECI

AMENDMENTS

Amendment	Key change
61st Amendment Act, 1988	Reduced the voting age from **21 to 18** for Lok Sabha and State Assembly elections
73rd Amendment Act, 1992	Constitutional status to rural local self-government (Panchayats) by adding **Part IX (Articles 243-243O)**; provided for **State Election Commissions** for Panchayat elections
74th Amendment Act, 1992	Constitutional status to urban local bodies (Municipalities) via **Part IX-A**; elections for municipalities under State Election Commissions
84th Amendment Act, 2001	Extended the freeze on readjustment of Lok Sabha and State Assembly seats (seat allocation by population) until after the **first census after 2026**
87th Amendment Act, 2003	Allowed delimitation based on the **2001 Census**, keeping the total seats per state unchanged

AMENDMENTS IN TIME ORDER

- **1988: 61st**: Voting age 21 to 18

MY NOTES

- **1992: 73rd and 74th**: Panchayats (Part IX) and Municipalities (Part IX-A) with State Election Commissions
- **2001: 84th**: Seat freeze extended to after the first census after 2026
- **2003: 87th**: Delimitation on 2001 Census, seats per state unchanged
- **Memory aid (Amendment order): V**oting age (61st), **P**anchayats (73rd), **M**unicipalities (74th), **F**reeze (84th), **D**elimitation on 2001 Census (87th): "**V**ery **P**ractical **M**inisters **F**ix **D**istricts."
- **Shortcut: Amendment numbers. 61 = age 18. 73 = rural. 74 = urban. 84 = freeze. 87 = 2001 Census.**

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 43, ELECTION COMMISSION

- Anoop Baranwal case (2023): the SC said the CEC and other ECs should be appointed on the recommendation of a three-member committee: the Prime Minister, the Leader of the Opposition in Lok Sabha (or the leader of the largest opposition party if there is none), and the Chief Justice of India. It applies until Parliament makes a law under Art. 324.
- Same case:
  - It is desirable that other ECs be removable on the same grounds as the CEC (like an SC Judge), subject to the CEC's recommendation
  - Their service conditions cannot be varied to their disadvantage after appointment
- The conditions of service and equal powers of the CEC and two ECs come from the Election Commission (Conditions of Service of Election Commissioners and Transaction of Business) Act, 1991. They may resign at any time by writing to the President.
- In 2018 a Supreme Court judge's salary was fixed at Rs 2.50 lakh per month, which is the pay level of the CEC and ECs.
- Parliament has made Delimitation Commission Acts in 1952, 1962, 1972 and 2002
- The EC fixes constituency areas on that basis
- The EC is assisted by deputy election commissioners drawn from the civil service and appointed by the Commission with a tenure system, who are helped by secretaries, joint secretaries, deputy secretaries and under secretaries.
- The 61st Amendment (1988), in force from 1989, lowered the voting age from 21 to 18
- That is why two more ECs were appointed in October 1989
- Vision, mission and the ten guiding principles come from the EC Strategic Plan 2016-2025.

MY NOTES

- Lakshmikanth differs:
  - Field officers. It says the Chief Electoral Officer is appointed by the CEC in consultation with the state government, and that the District Collector acts as district returning officer who appoints a returning officer for every constituency and a presiding officer for every booth. The handout says the ECI nominates the Returning Officer and the RO appoints presiding officers via the DEO. Use the handout in class
  - LK's Collector point is a useful extra

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Which Article establishes the Election Commission's control of elections?	Article 324: superintendence, direction and control of elections to Parliament, State Legislatures, President and Vice-President.
Who conducts Panchayat and Municipality elections?	State Election Commissions (not under Article 324).
Who decides the number of Election Commissioners?	The President, from time to time.
Who chairs the Commission when ECs are appointed?	The Chief Election Commissioner.
Who appoints Regional Commissioners and when?	The President, whenever required, after consulting the Election Commission.
Membership history of the ECI?	Single member 1950 to 15 Oct 1989; two ECs 16 Oct 1989; posts abolished January 1990; two ECs again October 1993, a three-member body since.
Why were two ECs appointed in 1989?	To handle the increased workload after the voting age fell from 21 to 18.
Tenure and pay of CEC and ECs?	Six years or age 65, whichever is earlier. Salary and privileges equal to a Supreme Court Judge. Equal powers. Decisions by majority.
When is National Voter's Day?	25 January, declared in 2011 to mark the Commission's foundation day.

How is the CEC removed?	Same procedure and grounds as an SC Judge: resolution of both Houses by special majority on proven misbehaviour or incapacity, then the President removes.
How are ECs and Regional Commissioners removed?	Only on the recommendation of the CEC.
Three gaps in Article 324's design?	No specified qualifications, no definitive term of office, no bar on post-retirement appointments by the government.
Three kinds of ECI functions?	Administrative, advisory, quasi-judicial.
Administrative duties of the ECI?	Constituencies, electoral rolls, schedule, nomination scrutiny, cancelling polls, staff requisition, appointing officers, broadcast time, Model Code of Conduct.
Advisory duties of the ECI?	Advises the President on disqualification of MPs, Governors on state legislators, whether elections can be held under President's Rule, and recommends national or state party status.
Quasi-judicial duties of the ECI?	Disputes on party recognition and symbols, inquiry bodies for irregularities, enforcing election laws. Also manages the India International Institute of Democracy and Election Management (2011).
Which Order covers election symbols?	The Election Symbols (Reservation and Allotment) Order, 1968.
Symbol rule for national and state parties?	National party symbol cannot be used by another party anywhere in India. A state party symbol can be used in other states.
What did Gill vs. CEC (1977) establish?	The Commission has plenary power to use even powers not in the RPA to ensure free and fair elections. Example: Vellore 2019.
Field machinery of the ECI?	CEO at state, DEO at district, RO per constituency, Presiding Officers and polling staff at each booth. Headquarters in New Delhi.
What is the ECI's vision?	An Institution of Excellence enhancing citizen engagement and serving as a global model.

MY NOTES

What do Articles 325 to 329 say?	325 no ineligibility for the roll on religion, race, caste or sex. 326 adult suffrage. 327 Parliament's power. 328 State Legislature's power. 329 bar to court interference.
What did the 73rd and 74th Amendments do for the ECI context?	Gave constitutional status to Panchayats (Part IX, Arts 243-243O) and Municipalities (Part IX-A) with State Election Commissions.
What did the 84th and 87th Amendments do?	84th: extended the freeze on readjustment of seats until after the first census after 2026. 87th: delimitation on the 2001 Census with seats per state unchanged.

Trap 1 · Local body elections

Article 324 covers Parliament, State Legislatures, President and Vice-President only. Panchayat and Municipality polls go to State Election Commissions. *Rule: Union and top offices = EC (Art. 324); local bodies = State Election Commission.*

Trap 2 · Who gets judge-style removal

Only the CEC is removed like an SC Judge. An Election Commissioner or Regional Commissioner is removed only on the CEC's recommendation. *Rule: CEC = special-majority route in both Houses; other ECs = CEC must recommend.*

Trap 3 · Single or three-member

The EC was single-member from 1950 to 15 Oct 1989, had two extra ECs from 16 Oct 1989, went back to one in Jan 1990, and has been three-member since Oct 1993. *Rule: answer three-member for today; remember the 1989-90 experiment was temporary.*

Trap 4 · Gaps in the design

The Constitution fixes no qualifications, no definite term, and no bar on later government posts for retiring ECs. *Rule: three gaps = qualifications, term, post-retirement jobs.*

QUICK QUIZ

Q1. Which Article vests the superintendence, direction and control of elections in the Election Commission?

1. Article 324
2. Article 325
3. Article 326
4. Article 329

Q2. Elections to Panchayats and Municipalities are conducted by

1. the Election Commission of India under Article 324
2. State Election Commissions
3. the Delimitation Commission
4. the President

MY NOTES

Q3. The Election Commission has functioned as a three-member body continuously since

1. 1950
2. October 1989
3. January 1990
4. October 1993

Q4. The CEC and other ECs serve for

1. five years or age 62
2. six years or age 65, whichever is earlier
3. six years or age 62
4. five years or age 65

Q5. An Election Commissioner or Regional Commissioner can be removed only

1. by Parliament by simple majority
2. on the recommendation of the CEC
3. by the Supreme Court
4. by the Governor

Q6. Which of these is a limitation of the Election Commission's design noted in the handout?

1. The CEC is removable at the President's pleasure
2. The Constitution specifies no formal qualifications for members
3. Members' salaries can be reduced after appointment
4. The CEC cannot chair the Commission

Q7. The Election Commission advises the President on disqualification of

1. members of state legislatures
2. Members of Parliament
3. Governors
4. the Vice-President

Q8. The "plenary power" of the Election Commission to use powers not mentioned in the RPA was recognised in

1. Gill vs. CEC (1977)
2. the Election Symbols Order 1968
3. the 61st Amendment
4. the Delimitation Commission Act

Q9. Which official is nominated by the ECI for each parliamentary or assembly constituency?

1. Chief Electoral Officer
2. District Election Officer
3. Returning Officer
4. Presiding Officer

Q10. Which Amendment reduced the voting age from 21 to 18?

1. 61st Amendment Act, 1988
2. 73rd Amendment Act, 1992
3. 84th Amendment Act, 2001
4. 87th Amendment Act, 2003

Q11. Article 329 deals with

1. adult suffrage
2. bar to interference by courts in electoral matters
3. power of Parliament to make election laws
4. power of State Legislature to make election laws

Q12. Which Amendment allowed delimitation based on the 2001 Census with the total seats per state unchanged?

1. 61st
2. 73rd
3. 84th
4. 87th

Answers: Q1 a, Q2 b, Q3 d, Q4 b, Q5 b, Q6 b, Q7 b, Q8 a, Q9 c, Q10 a, Q11 b, Q12 d

MY NOTES

CHAPTER 31 · HANDOUT PAGES ON PART XIV (ARTICLES 315-323) AND THE UPSC

31 Union Public Service Commission

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

MY NOTES

EXAM LENS

Prelims hooks

- Articles 315-323 and their subjects
- who appoints (President for UPSC, Governor for SPSC)
- 6 years or 65 and 62
- removal and suspension
- Article 319 bars
- Article 320 consultation and exclusions
- Article 322 charged expenditure
- Article 323 report and memorandum
- UPSC versus DoPT
- CVC 1964 and 2003
- None quoted in the material as PYQs.
- Handout stresses: No PYQs are quoted in this handout chapter (Whole chapter)
- Handout stresses: Articles 315 to 323 each treated one by one, with a closing table of Article and subject (Article headings and Key Articles table)
- Handout stresses: Appointment and tenure numbers: six years, age 65 (UPSC), age 62 (SPSC and Joint), at least half the members with ten years of government service (Article 316)
- Handout stresses: Removal rules: SC inquiry for misbehaviour, three grounds without reference, suspension, and the contract rule (Article 317)
- Handout stresses: Consultation is directory, not mandatory, and non-acceptance of advice is explained to Parliament and approved by the ACUC (Legal interpretation and Annual Report)

Mains hooks

- none quoted in the material
- Plausible angles from the notes: UPSC as guardian of merit, limits on its role, independence safeguards, ARC-1 recommendations, UPSC versus CVC and DoPT.

MY NOTES

The UPSC is the Constitution's guardian of merit, strongly protected in appointment, removal, finance and reporting, yet advisory: the Government can reject its advice if it explains why to Parliament.

IN SIMPLE WORDS

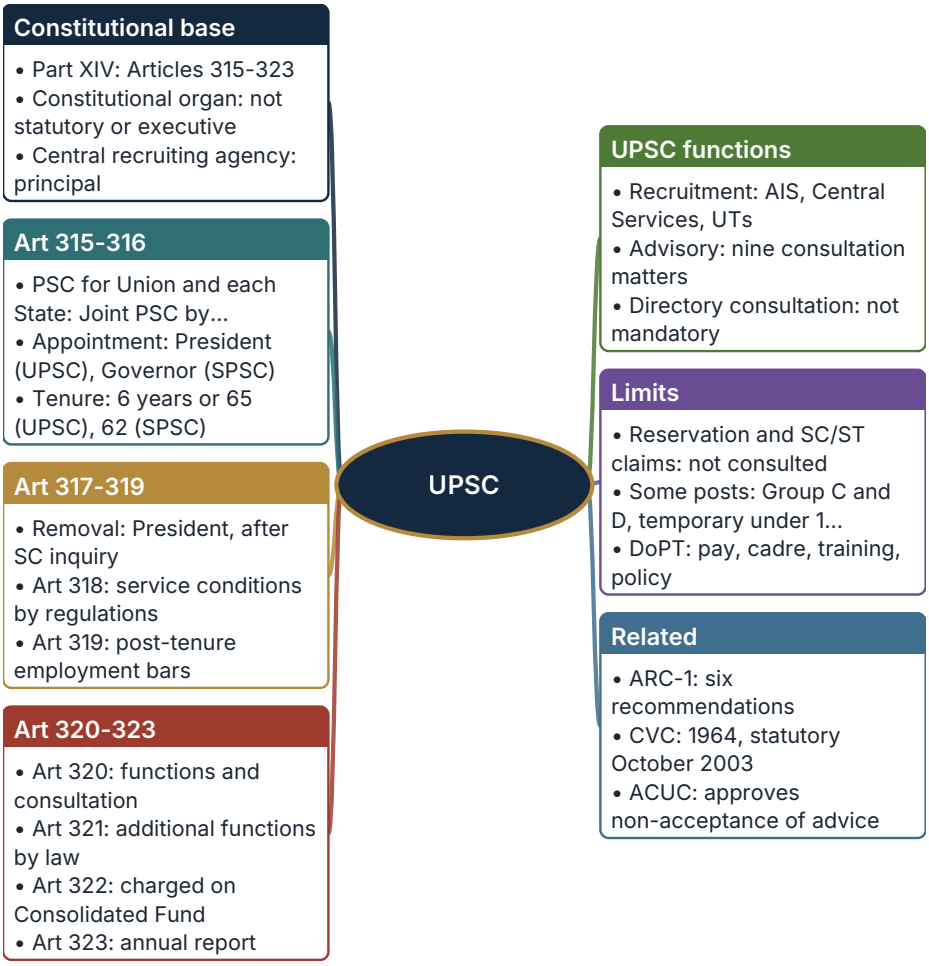
- The **UPSC** is the main **central recruiting agency**, created directly by the Constitution in **Part XIV (Articles 315-323)**.
- The **President** appoints the Chairman and members. Term is **6 years or age 65**, whichever is earlier
- **at least half** must have held government service for **10 years**. A former member cannot be **reappointed**
- Only the **President** removes them. For **misbehaviour** the matter goes to the **Supreme Court** for inquiry. For **insolvency, outside paid job, or infirmity**, no SC reference is needed.
- Independence: **non-diminution** of service conditions (**Art. 318**), expenses **charged on the Consolidated Fund** (**Art. 322**), and **bars on later government jobs** (**Art. 319**).
- It holds exams for **All India Services, Central Services and UT services**, and is **consulted** on recruitment methods, promotions, transfers and discipline. Its advice is **advisory**, not binding
- Consultation is **directory, not mandatory**
- It is the **recruiting** agency
- **DoPT** is the **personnel** agency. Annual report goes to the **President**, with a **memorandum** on advice not accepted

Key term	In plain words
Art. 315	A Public Service Commission for the Union and each State; Joint State PSC possible by Parliament's law
Art. 317	Removal and suspension; misbehaviour needs a Supreme Court inquiry
Art. 320	Functions: exams, and consultation on recruitment, promotions, discipline, legal costs, injury pensions
Art. 322	Expenses charged on the Consolidated Fund, so not voted upon
Directory (not mandatory)	Failure to consult UPSC does not invalidate a government decision; selection gives no right to a post
ACUC	Appointments Committee of the Union Cabinet; must approve any non-acceptance of UPSC advice
DoPT	Department of Personnel and Training: central personnel agency (pay, cadre, training, policy)

MY NOTES

Key term	In plain words
CVC	Central Vigilance Commission (1964, statutory Oct 2003) also consulted in discipline; UPSC has the edge as a constitutional body

MEMORY MAP: UNION PUBLIC SERVICE COMMISSION



MY NOTES

MNEMONIC · ARTICLES 315 TO 323

Every Aspirant Resolves, Clears Prelims, Finally Achieves Entering Rank

- **E** Establishment of PSCs for Union and States (315)
- **A** Appointment and tenure of members (316)
- **R** Removal and suspension (317)
- **C** Conditions of service and staff (318)
- **P** Prohibition on jobs after office (319)
- **F** Functions and consultation (320)
- **A** Additional functions by law (321)
- **E** Expenses charged on the Consolidated Fund (322)
- **R** Reports to President or Governor (323)

An aspirant's journey from prelims to rank walks the nine Articles in order. (Memory aid, not from the handout.)

MNEMONIC · REMOVAL WITHOUT A SUPREME COURT INQUIRY

O U T

- **O** Outside paid employment during the term
- **U** Unfit because of infirmity of mind or body
- **T** Tapped out: adjudged insolvent

Three grounds on which the President can put a member OUT without a Supreme Court reference. The order is rearranged for memory; the handout does not fix an order. (Memory aid, not from the handout.)

MNEMONIC · SAFEGUARDS OF UPSC INDEPENDENCE

S A F E R

- **S** Security of tenure: six-year term (316)
- **A** Alteration to a member's disadvantage barred after appointment (318)
- **F** Fund charged: expenses on the Consolidated Fund (322)
- **E** Employment barred after office (319)
- **R** Removal only by the Article 317 route

Five protections make the Commission SAFER from the executive: tenure, no adverse alteration, funds, post-office job bar, removal route. The order is rearranged for memory; the handout does not fix an order. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · MATTERS OUTSIDE UPSC CONSULTATION

PATROL

- **P** Posts of the highest diplomatic rank (heads of missions)
- **A** Appointment claims of SC and ST
- **T** Tribunals and commissions: chairmanship or membership posts
- **R** Reservations for backward classes
- **O** Officiating or temporary posts, tenure not over one year
- **L** Lower Group C and Group D services (most)

Six areas the UPSC does not PATROL; the President may add more by regulation laid before Parliament for 14 days. The order is rearranged for memory; the handout does not fix an order. (Memory aid, not from the handout.)

MY NOTES

OVERVIEW: A CONSTITUTIONAL ORGAN

- The Union Public Service Commission is the **principal central recruiting agency** of India. It is **not** a statutory or executive creation but a **constitutional organ**, established directly by the Constitution for an impartial and authoritative process of selecting personnel for central services.
- Framework: **Part XIV (Articles 315-323)**.
- Provisions cover **composition**, **appointment and removal** of members and **safeguards** that secure independence.
- **Memory aid (Articles 315-323 in order):** **E**stablishment (315), **A**ppointment and tenure (316), **R**emoval and suspension (317), **C**onditions of service (318), **P**ost-tenure employment bar (319), **F**unctions (320), **A**dditional functions (321), **E**xpenses (322), **R**eport (323): "**E**very **A**spirant **R**eads **C**onstitution, **P**reparing **F**or **A**dmission, **E**xpecting **R**esults."

ARTICLE 315: PUBLIC SERVICE COMMISSIONS FOR THE UNION AND THE STATES

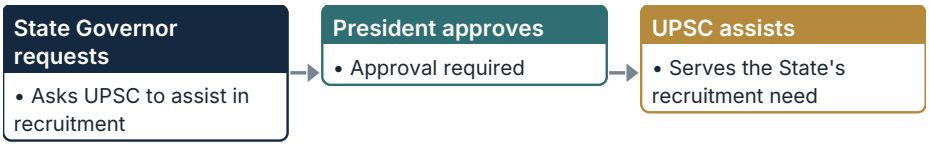
- A **PSC shall exist for the Union and for each State**.
- **Two or more States** may, by resolutions of their Legislatures, request **Parliament** to establish a **Joint State Public Service Commission** for common needs.
- The Parliamentary law may include incidental or consequential provisions.
- The **UPSC**, if **requested by a State Governor and approved by the President**, may assist a State PSC in recruitment.
- A reference to UPSC or SPSC in the Constitution means whichever Commission serves the relevant government's need in the matter concerned.

- **Handout illustration: Sikkim in 1975** sought UPSC assistance for recruitment and the request was **accepted**. A similar request by **Punjab in 2008** was **not approved**.

UPSC HELPING A STATE

- **State Governor requests**: Asks UPSC to assist in recruitment
- **President approves**: Approval required
- **UPSC assists**: Serves the State's recruitment need

UPSC HELPING A STATE



- **Shortcut: Who creates what. Union and each State: Constitution. Joint PSC: Parliament law on request of State Legislatures. UPSC help to a State: Governor asks, President approves.**

ALSO IN THE HANDOUT

- This ensures flexibility in adapting the Commission's role to evolving administrative needs.

ARTICLE 316: APPOINTMENT AND TENURE OF MEMBERS

APPOINTMENT

Commission	Appointing authority
UPSC	**President**
Joint State PSC	**President**
State PSC (SPSC)	**Governor** of the State

- At least **half** of the Commission's members must have held government service for a minimum of **ten years** under the Union or a State government.
- If the **Chairman's office is vacant** or the Chairman cannot perform functions, the **President** (UPSC or Joint) or **Governor** (SPSC) may authorise **one of the members** to act as Chairperson temporarily.

TENURE

- Each member serves **six years** from the date of entering office, or until the age limit, **whichever is earlier**.

AGE LIMITS

- **UPSC:** 65 years
- **SPSC or Joint Commission:** 62 years

MY NOTES

- A member resigns by **written letter to the President** (UPSC or Joint) or **to the Governor** (State Commission).
- A former member **cannot be reappointed** to the Commission. But a **serving member may be elevated to Chairperson**, giving a fresh term within the age limits.
- **Memory aid (Article 316 numbers): S**ix years, **H**alf the members with ten years of service, **T**wo ages (65 and 62): "**S**ix **H**ens **T**ravel."
- **Shortcut: Tenure in one line. 6 years or age limit, whichever first. 65 for UPSC, 62 for SPSC and Joint PSC. No reappointment, but a member can become Chairperson.**

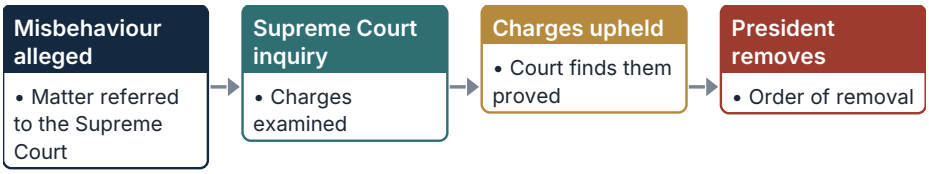
ARTICLE 317: REMOVAL AND SUSPENSION

- Only the **President** can remove the Chairman or a member of a PSC.
- For **misbehaviour**, the matter must be **referred to the Supreme Court** for inquiry. If the Court upholds the charges, the President may order removal.
- **Pending** the decision, the President (or the **Governor for an SPSC**) may **suspend** the member.

REMOVAL FOR MISBEHAVIOUR

- **Misbehaviour alleged**: Matter referred to the Supreme Court
- **Supreme Court inquiry**: Charges examined
- **Charges upheld**: Court finds them proved
- **President removes**: Order of removal

REMOVAL FOR MISBEHAVIOUR



REMOVAL WITHOUT SUPREME COURT REFERENCE

- The President may remove a member if the member:
- is adjudged **insolvent**;
- Engages in **paid employment** outside Commission duties
- Or
- is deemed unfit due to **infirmity of mind or body**.
- **Contract rule:** A member having an **interest in a government contract**, or enjoying benefits from such a contract, is guilty of **misbehaviour** under this Article.
- **Memory aid (No-reference grounds): I**nsolvent, paid **E**mployment outside, **I**nfirmity of mind or body: "**I**n **E**very **I**nstitution."

MY NOTES

- **Shortcut: Misbehaviour versus the three. Misbehaviour = SC inquiry first. Insolvency, outside paid job, infirmity = President removes directly.** Suspension pending inquiry: President or Governor.

ARTICLES 318 AND 319: SERVICE CONDITIONS AND POST-TENURE BARS

ARTICLE 318: CONDITIONS OF SERVICE AND STAFF

- The **President** (UPSC or Joint) or the **Governor** (SPSC) may by **regulations** fix the **conditions of service, number of members and staffing** of the Commission.
- Service conditions **cannot be altered to a member's disadvantage** after appointment.

ARTICLE 319: EMPLOYMENT AFTER LEAVING OFFICE

- Strict limits protect impartiality:

WHO CAN HOLD WHAT AFTER OFFICE

Former office	Further government employment allowed
UPSC Chairman	**None** under the Union or a State Government
State PSC Chairman	May be appointed to the **UPSC** (as member or Chairperson) or as Chairman of **another State PSC**, but **no other government post**
Member of UPSC or SPSC	May be elevated to Chairperson positions as specified, but **no other government employment** after office

- **Shortcut: Article 319. UPSC Chairman: nothing further. SPSC Chairman: UPSC or another SPSC only. Members: only the Chairperson route.**
- **Memory aid (Article 318 and 319):** **N**on-diminution of service conditions (318) and **C**ooling bar on later jobs (319): "**N**o **C**hange, **N**o **C**ash-in."

ARTICLE 320: DUTIES AND CONSULTATION

- The handout describes the constitutional pattern first for the **State PSC**: its primary responsibility is to **conduct examinations** for appointments to State civil services and posts. These duties under clauses (1) and (2) are **mandatory**.

THE STATE GOVERNMENT MUST CONSULT THE SPSC ON

- methods of recruitment;
- principles of appointment, promotion and transfer;
- suitability of candidates for such actions;

MY NOTES

- **disciplinary** matters of State civil servants;
- claims for **reimbursement of legal expenses** from official duties;
- **pension** claims for injuries on service.
- **Flexibility proviso:** The **Governor** may issue regulations saying when consultation is **not necessary**. These regulations must be **laid before the State Legislature for not less than 14 days** and can be modified in the same session.

ARTICLE 320 CONSULTATION LISTS COMPARED

Matter	State Government and SPSC	Union Government and UPSC (see Section 8)
Methods of recruitment	Yes	Yes
Principles of appointment, promotion, transfer	Yes	Yes
Suitability of candidates	Yes	Yes (appointments, promotions, transfers, deputations)
Disciplinary cases	Yes	Yes (six listed)
Legal expense reimbursement	Yes	Yes
Pension claims for injury on service	Yes	Yes
Temporary appointments over one year, extension of service, other referred matter	Not listed	Yes

- **Memory aid (State consultation list):** **M**ethods, **P**rinciples, **S**uitability, **D**iscipline, **L**egal expenses, **P**ension for injury: "**M**any **P**eople **S**eek **D**ifferent **L**egal **P**aths."

ALSO IN THE HANDOUT

- Appointment, promotion, and transfer principles 10. Suitability of candidates for such personnel actions 11. Disciplinary matters involving State civil servants 12. Requests for reimbursement of legal expenses arising from official duties 13.

ARTICLES 321, 322 AND 323

ARTICLE 321: ADDITIONAL FUNCTIONS

- **Parliament** or a **State Legislature** may by law give the UPSC or SPSC **additional functions** relating to services of the Union, State, local authorities, statutory bodies or public institutions.

MY NOTES

ARTICLE 322: FINANCIAL INDEPENDENCE

- All expenses of a Union or State PSC, including **salaries, allowances and pensions**, are **charged on the Consolidated Fund of India or of the State**. Charged expenditure is **not subject to vote**, so the Commission's financial autonomy is protected.

ARTICLE 323: ANNUAL REPORT

WHO RECEIVES THE REPORT

Commission	Submits annual report to	Laid before
UPSC	The **President**	Parliament
State PSC	The **Governor** of the State	State Legislature
Joint State PSC	The **Governors of all participating States**	State Legislatures

- Along with the report, a **memorandum** must be laid before the legislature explaining the **instances and reasons where the Government did not accept** the Commission's advice.
- This strengthens transparency, legislative oversight and functional independence.
- **Shortcut: Money and report. 322 = charged on the Consolidated Fund, no vote. 323 = report plus a memorandum on advice not accepted.**
- **Memory aid (Independence pillars): A**ppointment protection (316), **R**emoval by SC route (317), **B**ar on later jobs (319), **F**unds charged (322): "**A**ll **R**ules **B**ack **F**reedom."

ALSO IN THE HANDOUT

- This ensures transparency and collective accountability in deviations from UPSC advice.

CORE FUNCTIONS OF THE UPSC

- A multidimensional mandate: **recruitment, advisory supervision and personnel governance** for the Union and certain centrally administered services.

RECRUITMENT AND EXAMINATIONS

- Competitive examinations for **All India Services, Central Services, and Services of Union Territories and other centrally administered regions**. Includes written tests, interviews and all selection procedures.

MY NOTES

HELP TO STATES

- **Joint recruitment schemes**: UPSC may assist two or more States that request cooperation for joint recruitment or need candidates with specialised qualifications.
- **Individual States**: UPSC may serve a State in recruitment or advisory matters **only when the Governor requests and the President approves**.

ADVISORY ROLE: MATTERS ON WHICH THE UNION GOVERNMENT MUST CONSULT UPSC

NINE CONSULTATION MATTERS

No.	Matter
1	**Methods of recruitment** to civil services and posts
2	**Principles** of appointments, promotions and transfers across services
3	**Suitability of candidates** for appointments, promotions, transfers and deputations
4	**Disciplinary cases**: censure; withholding of increments or promotions; recovery of financial loss; demotion; compulsory retirement; removal or dismissal
5	Claims for **legal expense reimbursement** for officials defending actions done in official duty
6	**Pension claims** for injury during service
7	**Temporary appointments exceeding one year** and their regularisation
8	**Extension of service** or **re-employment of retired** civil servants
9	**Any other personnel matter** referred by the Government

- These consultations establish procedural fairness across service conditions.

NATURE OF CONSULTATION (AS CLARIFIED BY THE SUPREME COURT)

- Consultation with UPSC is **directory, not mandatory**.
- Government decisions do **not automatically become invalid** if consultation is omitted.
- UPSC selection gives **no right to appointment**.
- Yet the Government must **act fairly**, avoiding arbitrariness or mala fides.

EXPANSION OF JURISDICTION

- Parliament may confer additional functions on the UPSC and place the personnel systems of public authorities or corporate bodies under UPSC jurisdiction.

MY NOTES

ANNUAL REPORT TO PARLIAMENT

- UPSC submits its report to the **President**, who lays it before **both Houses of Parliament**.
- A memorandum must detail **every instance** where UPSC advice was not accepted.
- Such non-acceptance must be approved by the **Appointments Committee of the Union Cabinet (ACUC)**, not by a single ministry or department.
- **Memory aid (Disciplinary penalties): C**ensure, **W**ithholding increments or promotions, **R**ecovery of loss, **D**emotion, **C**ompulsory retirement, **R**emoval or dismissal: "**C**ool **W**inds **R**ush **D**own **C**ool **R**ooms."
- **Memory aid (Nine consultation heads): M**ethods, **P**rinciples, **S**uitability, **D**isciplinary, **L**egal expenses, **P**ension, **T**emporary posts over one year, **E**xtension or re-employment, **O**ther referred matters: "**M**y **P**olicy **S**tays **D**irect, **L**ightly **P**ressing **T**o **E**nd **O**bjections."

HANDOUT ALERT

Handout alert: The handout says UPSC "must be consulted" on these matters, yet the Supreme Court clarifies that consultation is **directory, not mandatory**. Use both: the Government has a duty to consult, but omitting consultation does not invalidate its decision.

HANDOUT ALERT

Handout alert: The Article 320 section opens with State PSC duties, while the Core Functions section gives the Union list for the UPSC. The handout's Key Articles table gives Article 320 as the core-functions Article for all PSCs. Treat Article 320 as the common source, with the SPSC list and the UPSC list as in the comparison table above.

ALSO IN THE HANDOUT

- These functions ensure that the quality, fairness and meritocracy of India's civil services are constitutionally safeguarded.
- Request cooperation for joint recruitment - Require candidates with specialised qualifications This collaborative function enables States to overcome skill gaps while maintaining constitutional coordination.
- However, the UPSC's institutional role is deliberately limited.

CONSTITUTIONAL LIMITS ON UPSC'S CONSULTATIVE ROLE

- The Constitution limits the consultative role in a few areas to preserve executive discretion in social justice policy and urgent staffing.

MY NOTES

WHERE UPSC IS NOT CONSULTED

Area	What is excluded
Affirmative action	UPSC is **not consulted** when **reservations for backward classes** are made or when **SC/ST claims** in appointments are considered (kept executive-led)
Specialised and lower-tier posts	Chairmanship or membership of **commissions or tribunals**, **highest diplomatic posts**, and **most Group C and Group D** services
Temporary staffing	Temporary or officiating posts where tenure is not expected to exceed **one year**
Presidential power to expand exclusions	The President may by **regulations** remove more posts or matters from UPSC oversight for All-India and Central Services. Regulations are laid before Parliament for **14 days** and are open to amendment or repeal

- **Memory aid (Exclusions): A**ffirmative action (reservations, SC/ST), **S**pecialised posts (commissions, tribunals, top diplomats, Group C and D), **T**emporary posts under one year, **P**resident's regulations (14 days): "**A**ll **S**tations **T**hink **P**olicy."
- **Shortcut: Two 14-day rules. Governor's regulations under Art 320 (state) and President's exclusion regulations (Union) both must be laid for at least 14 days.**

UPSC AS GUARDIAN OF MERIT: SCOPE AND LIMITS

- The Constitution envisages the UPSC as the **watch-dog of the merit system**.
- It handles recruitment to **All-India Services and Central Services (Group A and B)** under Article 320 and advises on **promotions and disciplinary matters** of central civil servants when consulted.

UPSC VERSUS DOPT

UPSC AND DOPT

- **UPSC:**
  - Central recruiting authority
  - Conducts examinations and selections
  - Advises when consulted
- **DoPT:**
  - Central personnel agency, within the Ministry of Personnel, Public Grievances and Pensions
  - Service classification, pay scales, cadre management, training and wider personnel policy

ADVICE IS ADVISORY

- UPSC advice is **non-binding**: the Union Government may accept or reject it.

MY NOTES

- The safeguard is **accountability to Parliament**: any departure must be explained in the President's annual report.
- The Government may frame rules that define or limit the scope of the UPSC's advisory role.

UPSC AND THE CVC

- The **Central Vigilance Commission (CVC)** emerged in **1964**, and the Government also consults it in disciplinary proceedings.
- Conflicting advice can cause tension, but UPSC keeps a **constitutional advantage**: it is a **constitutional body**, whereas the CVC began by **executive decision** and got **statutory status in October 2003**.
- **Shortcut: UPSC versus DoPT. UPSC recruits. DoPT manages pay, cadre, training and policy.** UPSC does not do classification, pay scales, cadre, training or policy.
- **Memory aid (UPSC does not do): C**lassification, **P**ay scales, **C**adre management, **T**raining, **P**ersonnel policy: "**C**ats **P**refer **C**ream, **T**una, **P**rawns." These belong to the DoPT.

ARC-1 RECOMMENDATIONS AND THE KEY ARTICLES TABLE

ARC-1 RECOMMENDATIONS ON THE WORKING OF PUBLIC SERVICE COMMISSIONS

- **One member of an SPSC** should come from **outside the state**.
- Members should **possess a graduation degree**.
- The **Chairman of UPSC and of the SPSC** should be consulted while appointing SPSC members.
- The **Chairman of UPSC** should be consulted while appointing UPSC members and his successor.
- **Two-thirds of the members of UPSC** should be drawn from among **Chairmen of SPSCs**.
- Qualifications for **official members and unofficial members** should be set out.
- **Memory aid (ARC-1 six): O**utside member in SPSC, **G**raduation, **C**onsult chairmen for SPSC members, **C**onsult UPSC chairman for UPSC members and successor, **T**wo-thirds of UPSC from SPSC chairmen, **Q**ualifications of official and unofficial members: "**O**ld **G**overnments **C**hoose **C**areful **T**eams, **Q**uietly."

KEY ARTICLES AT A GLANCE

Art-icle	Key subject
315	Establishes Public Service Commissions for the Union and each State

MY NOTES

Art-icle	Key subject
316	Appointment, tenure and service duration of UPSC and State PSC members
317	Grounds and procedures for removal or suspension of a Commission member
318	President (UPSC) and Governors (State PSCs) frame rules on service conditions of members and staff
319	Restricts UPSC or PSC members from taking certain offices after they cease to be members
320	Core functions of PSCs: recruitment, promotion advice and disciplinary consultation
321	Parliament may assign additional functions to PSCs by law
322	Expenses of UPSC or PSCs charged on the Consolidated Fund of India or State
323	Annual reports of UPSC or PSCs to the President or Governor and their presentation before Parliament or State Legislature

HANDOUT ALERT

Handout alert: The Article 319 lines in the PDF lose their list numbering and are loosely worded (the third line repeats the first two). The table in Section 5 follows the handout's wording.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 44, UNION PUBLIC SERVICE COMMISSION

- The Constitution does not fix the Commission's strength
- The President decides it. No qualification is prescribed except that half the members must have held office 10 years under the Union or a State
- Acting chairman (added by the 15th Amendment, 1963):
  - The President can appoint a member when the chairman's office is vacant or he is unable to work
  - The acting chairman serves until the new chairman joins or the old one resumes
- The Supreme Court's advice on a misbehaviour inquiry is binding on the President
- During the inquiry the President can suspend the member
- Misbehaviour also covers a member who is interested in a government contract or shares its profit, except as an ordinary member of an incorporated company.
- A member of the UPSC can become chairman of the UPSC or of a State PSC, but gets no other government job. A member made chairman holds the new office for six years or until superannuation.

MY NOTES

- In 1979 the Supreme Court upheld A.R. Kidwai, a former UPSC Chairman, as Governor of Bihar, since the Governor's office is a constitutional office and not employment under the government.
- Disciplinary consultation also covers memorials and petitions on such matters. If government skips consultation, the public servant has no remedy in court.
- The President's exemption rules are the UPSC (Exemption from Consultation) Regulations, 1958, amended from time to time.
- The Ministry of Personnel, Public Grievances and Pensions (full-fledged from 1985) has three departments: Personnel and Training, Administrative Reforms and Public Grievances, and Pensions and Pensioners' Welfare.

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

What kind of body is the UPSC?	A constitutional organ (not statutory or executive): the principal central recruiting agency, Part XIV, Articles 315-323.
What does Article 315 provide?	A PSC for the Union and each State; Joint State PSC by Parliament on resolutions of State Legislatures; UPSC may assist a State on the Governor's request with the President's approval.
Sikkim 1975 versus Punjab 2008?	Sikkim's request for UPSC assistance was accepted, Punjab's was not approved.
Who appoints members of UPSC, Joint PSC and SPSC?	President for UPSC and Joint PSC. Governor for SPSC.
What experience rule does Article 316 set?	At least half of the members must have held government service for at least ten years.
Tenure and age limit of members?	Six years or the age limit (65 for UPSC, 62 for SPSC or Joint), whichever is earlier.
Can a former member be reappointed?	No, but a serving member may be elevated to Chairperson within the age limits.
Who removes UPSC members and how?	The President only. For misbehaviour, after a Supreme Court inquiry upholds the charges.

Grounds for removal without SC reference?	Insolvency, paid employment outside Commission duties, infirmity of mind or body.
What counts as misbehaviour under Article 317?	Having an interest in a government contract or benefiting from one.
Who can suspend a member?	President (Governor for an SPSC), pending the decision.
What does Article 318 say?	President (UPSC) or Governor (SPSC) frames regulations on service conditions, number of members and staff. Conditions cannot be altered to a member's disadvantage.
What does Article 319 say about the UPSC Chairman?	After office he cannot hold any further employment under the Union or a State Government.
What may a State PSC Chairman become under Article 319?	Member or Chairperson of the UPSC, or Chairman of another State PSC. No other government post.
What is the Governor's proviso power under Article 320?	Regulations saying where consultation is not necessary, laid before the State Legislature for at least 14 days.
What does Article 321 allow?	Parliament or a State Legislature may give additional functions to the UPSC or SPSC by law.
What does Article 322 do?	Charges expenses (salaries, allowances, pensions) on the Consolidated Fund, not subject to vote.
What does Article 323 require?	Annual report to the President (UPSC) or Governor (SPSC, or Governors of all States for a Joint PSC), laid before the legislature with a memorandum on non-acceptance of advice.
Which exams does the UPSC conduct?	Competitive examinations for All India Services, Central Services and services of Union Territories and other centrally administered regions.
Is UPSC consultation mandatory?	No, directory only. UPSC selection gives no right to appointment, but the Government must act fairly.
Who approves non-acceptance of UPSC advice?	The Appointments Committee of the Union Cabinet (ACUC).

MY NOTES

Where is the UPSC not consulted?	Reservations for backward classes and SC/ST claims; chairs of commissions or tribunals, top diplomatic posts, most Group C and D posts; temporary posts under one year; areas excluded by Presidential regulations (14 days in Parliament).
UPSC versus DoPT?	UPSC: central recruiting authority. DoPT: central personnel agency for classification, pay, cadre, training and policy.
UPSC versus CVC?	CVC emerged in 1964 by executive decision, statutory in October 2003. UPSC has a constitutional advantage in conflicting advice.
Name the ARC-1 recommendations.	One SPSC member from outside the state; graduation degree; consult UPSC and SPSC chairmen for SPSC members; consult UPSC chairman for UPSC members and his successor; two-thirds of UPSC members from SPSC chairmen; qualifications for official and unofficial members.

Trap 1 · 65 versus 62

UPSC members retire at 65; a State PSC or Joint Commission member retires at 62. Both have a six-year term, whichever comes first. *Rule: UPSC = 65, SPSC and Joint = 62.*

Trap 2 · When the Supreme Court is needed

Only removal for misbehaviour needs an SC inquiry. Insolvency, outside paid work and unfitness of mind or body let the President remove without it. *Rule: misbehaviour = SC reference; the other three = direct.*

Trap 3 · Mandatory or directory

The Supreme Court held consultation with the UPSC is directory. Skipping it does not void a decision, and a UPSC selection gives no right to appointment. *Rule: advice is non-binding; the Government must still act fairly, without mala fides.*

Trap 4 · Who the UPSC recruits for

UPSC recruits for All India Services, Central Services (Groups A and B mainly) and UT services. Most Group C and D posts, tribunals and diplomatic heads are outside its consultation. *Rule: reservations, SC/ST claims, short temporary posts, tribunals, diplomatic heads, Group C/D = no UPSC consultation.*

MY NOTES

QUICK QUIZ

Q1. The UPSC is established by

1. an Act of Parliament
2. an executive order
3. the Constitution itself
4. the Department of Personnel and Training

Q2. Chairman and members of the UPSC are appointed by

1. the Prime Minister
2. the President
3. the Governor
4. the Chief Justice of India

Q3. What are the maximum age limits for members of the UPSC and a State PSC respectively?

1. 62 and 65
2. 65 and 62
3. 65 and 65
4. 60 and 62

Q4. At least how many of the Commission's members must have held government service for ten years?

1. One third
2. Half
3. Two thirds
4. All

Q5. If a member is accused of misbehaviour, the President can remove only after

1. an inquiry by the Supreme Court
2. a resolution by Parliament
3. the advice of the Prime Minister
4. an inquiry by the CVC

Q6. Which of these is a ground for removal by the President WITHOUT a Supreme Court reference?

1. Misbehaviour
2. Being adjudged insolvent
3. Disagreement with the Government
4. Rejection of Government advice

Q7. Under Article 319, a UPSC Chairman after office

1. may become Governor
2. may join another State PSC
3. cannot hold further employment under the Union or a State Government
4. may be appointed Chairman of a State PSC

Q8. Expenses of the UPSC are

1. subject to annual vote in Parliament
2. charged on the Consolidated Fund of India
3. met by the DoPT
4. met by State Governments

Q9. The annual report of the UPSC is submitted to

1. the Prime Minister
2. the President
3. the Speaker
4. the Chief Justice

Q10. Non-acceptance of UPSC advice must be approved by

1. the Ministry concerned
2. the Appointments Committee of the Union Cabinet
3. the Prime Minister alone
4. the Supreme Court

Q11. According to the Supreme Court, consultation with the UPSC is

1. mandatory
2. directory, not mandatory
3. a fundamental right
4. binding on the UPSC

MY NOTES

Q12. Which body handles pay scales, cadre management and training in the civil services?

1. UPSC
2. DoPT
3. CVC
4. Appointments Committee

Answers: Q1 c, Q2 b, Q3 b, Q4 b, Q5 a, Q6 b, Q7 c, Q8 b, Q9 b, Q10 b, Q11 b, Q12 b

MY NOTES

CHAPTER 32 · HANDOUT: STATE PUBLIC SERVICE COMMISSION (ARTS. 315-323), JOINT SPSC, KEY ARTICLES TABLE

32 State Public Service Commission

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

EXAM LENS

Prelims hooks

- none quoted in the material
- Likely hooks from the handout: appointing and removing authority, age 62 versus 65, one-half of Members with 10 years of service, Art. 322 charged expenditure, JSPSC being statutory, the Article table (315-323).
- Handout stresses: Governor appoints but only the President removes SPSC Chairman and Members (Art. 317) (Removal of Members)
- Handout stresses: Six years or 62 years, whichever is earlier (UPSC is 65) (Composition and Tenure)
- Handout stresses: Consultation is directory, not mandatory, and an SPSC recommendation gives no right to appointment (Role and Responsibilities)
- Handout stresses: Joint SPSC is statutory, not constitutional (Joint SPSC)

Mains hooks

- none quoted in the material
- Use the independence safeguards and the advisory-versus-binding position of the SPSC.

An SPSC is a constitutional body made independent by a split in power: the Governor appoints, the President removes, the State Consolidated Fund pays, and the State government may still depart from its advice.

IN SIMPLE WORDS

- Every State has a **State Public Service Commission (SPSC)**, the state twin of the UPSC, under the same **Articles 315-323**. It is a **constitutional body**.
- The **Governor appoints** the Chairman and members and fixes their service conditions. Term is **6 years or age 62**, whichever

MY NOTES

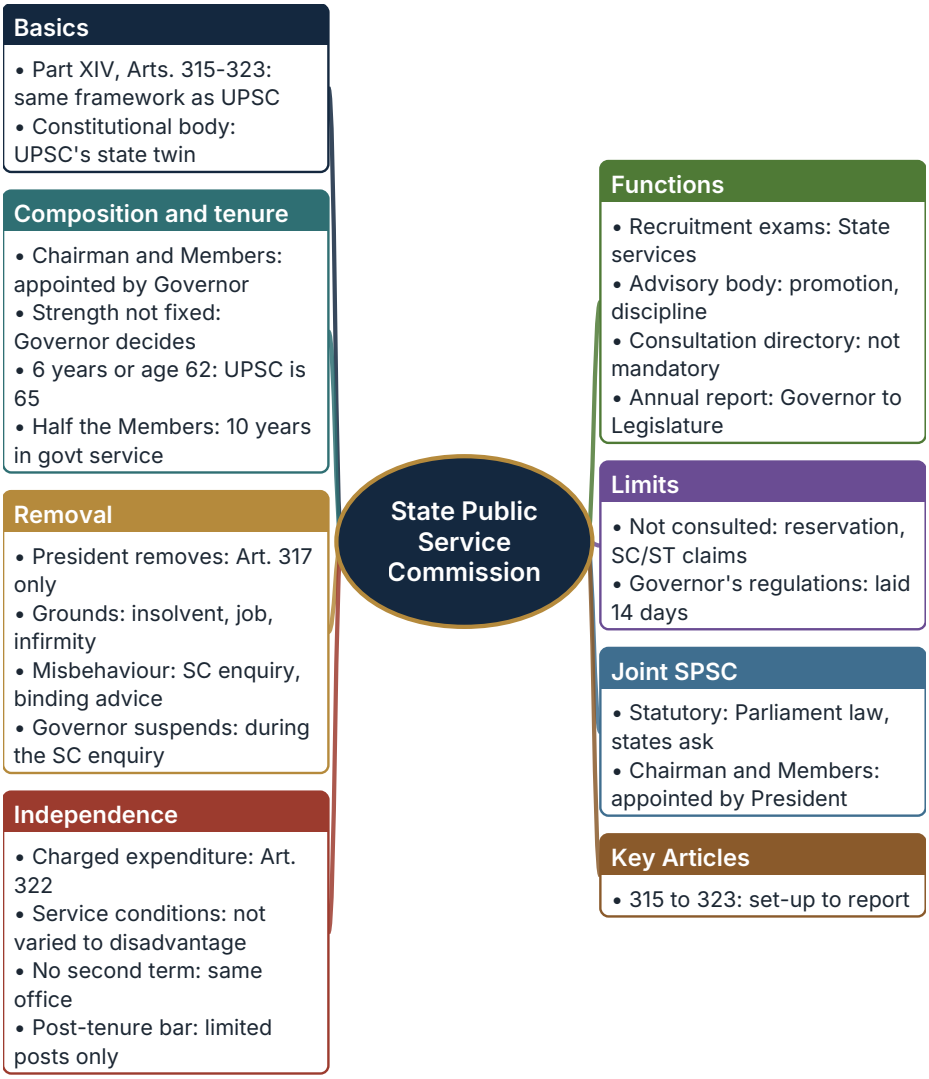
is earlier (UPSC is 65). At least **half** must have held office for **10 years** under the Union or a State.

- Only the **President removes** them, on the **same grounds as UPSC members** (Art. 317). For misbehaviour the **Supreme Court** inquires and its advice is **binding**
- The **Governor can suspend** during the inquiry
- Safeguards: security of tenure, **no worsening of service conditions**, expenses **charged on the State Consolidated Fund**, bars on later jobs, and **no second term**.
- Functions mirror the UPSC: **exams for State services** and **advice** on recruitment, promotions, transfers, discipline, legal costs and injury pensions. Consultation is **directory**, and advice is **not binding**.
- A **Joint SPSC** is **statutory** (made by Parliament on request of State Legislatures)
- The **President** appoints its members, who also retire at **62**

Key term	In plain words
SPSC	State Public Service Commission: recruits for State services; constitutional body under Arts. 315-323
Joint SPSC (JSPSC)	Commission for two or more States, created by an Act of Parliament; statutory, not constitutional
Acting Chairman	A member whom the Governor appoints when the Chairman's post is vacant or he cannot work
Consolidated Fund of the State	Source of all SPSC salaries, allowances and pensions (Art. 322); not voted by the Legislature
Directory consultation	Skipping SPSC consultation does not invalidate the government's decision
Exemption regulations	Governor's rules excluding posts from SPSC consultation; laid before the Legislature for 14 days
State Vigilance Commission	Appeared in 1964; also consulted in discipline, but the SPSC has precedence as a constitutional body
Government of India Act, 1935	Envisaged Federal, Provincial and Joint Public Service Commissions; the 1919 Act led to the Central PSC of 1926

MY NOTES

MEMORY MAP: STATE PUBLIC SERVICE COMMISSION



MNEMONIC · GOVERNOR AND PRESIDENT IN SPSC SERVICE

G A P

G Governor suspends during the Supreme Court inquiry

A Appointed by the Governor **P** President alone removes

A deliberate GAP between the appointer (Governor) and the remover (President) protects independence. The order is rearranged for memory; the handout does not fix an order. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · SAFEGUARDS OF SPSC INDEPENDENCE

F E N C E

- **F** Funds charged on the State Consolidated Fund
- **E** Exit (removal) only by the President on constitutional grounds
- **N** No second term in the same office
- **C** Conditions of service cannot be varied to the member's disadvantage
- **E** Employment barred after office, except as UPSC members or chairmen of PSCs

Five safeguards fence the Commission off from pressure. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · DISCIPLINARY MATTERS ON WHICH THE SPSC IS CONSULTED

Cautious Workers Respect Discipline Codes Rigorously

- **C** Censure
- **W** Withholding of increments or promotions
- **R** Recovery of pecuniary loss to the government
- **D** Demotion to a lower rank or service
- **C** Compulsory retirement
- **R** Removal or dismissal from service

The six penalties run from mildest to harshest, like a disciplinary note file. (Memory aid, not from the handout.)

OVERVIEW AND CONSTITUTIONAL BASIS

- Every state has its own **State Public Service Commission (SPSC)**, the state-level counterpart of the Union Public Service Commission. It is a constitutional body created to secure impartial and professional recruitment for state services.
- The framework for existence, membership, tenure, safeguards and autonomy is the same as for the UPSC: **Part XIV, Articles 315-323**.
- This parity gives state commissions a protected status like the Union body, while they work inside the federal structure.
- The Constitution sets out: composition, term and conditions of members, grounds and procedure for removal or suspension, power to frame regulations on service conditions, limits on post-service employment, functions, and reporting and financial safeguards.
- **Core idea:** SPSC = UPSC framework applied at state level. Same Articles (315-323), same removal grounds, same Article 317 procedure.

MY NOTES

COMPOSITION AND TENURE

- An SPSC has a **Chairman and a number of Members**, all appointed by the **Governor**.

COMPOSITION AND TENURE AT A GLANCE

Point	Rule
Appointing authority	Governor of the State
Numerical strength	Not fixed by the Constitution; the Governor decides
Qualifications	No educational or professional qualification prescribed
Experience safeguard	One-half of the Members must have held office for at least ten years under the Government of India or the Government of any State
Conditions of service	Determined by the Governor
Term	Six years or until age 62, whichever is earlier
UPSC con-trast	UPSC age limit is 65 years
Resignation	At any time, to the Governor

- **Shortcut: Number trick. 6 and 62** for the state, **65** for the Union. State = smaller number.

ACTING CHAIRMAN

- If the Chairman's office is vacant, or he is temporarily unable to perform duties (for example absence or incapacity), the **Governor may appoint one of the sitting Members** to act as Chairman.
- The acting Chairman continues until a substantive Chairman assumes office or the original Chairman resumes duties.
- **Memory aid (Composition facts): G**overnor appoints, **N**umber not fixed, **H**alf the Members with 10 years' service, **S**ix years or 62: "**G**ood **N**ewspapers **H**ave **S**tories".

ALSO IN THE HANDOUT

- They may, however, resign at any time by tendering their resignation to the Governor.

REMOVAL OF MEMBERS

- The appointing authority and the removing authority are different. The Governor appoints, but **the President alone can remove** the Chairman or a Member. Grounds and procedure are the same as for the UPSC and are governed by **Article 317**.

MY NOTES

GOVERNOR VERSUS PRESIDENT

- **Governor:**
  - Appoints Chairman and Members
  - Fixes their conditions of service
  - Accepts resignation
  - May appoint an acting Chairman
  - May suspend a Chairman or Member during the Supreme Court enquiry
- **President:**
  - Alone can remove
  - Refers misbehaviour charges to the Supreme Court
  - Removes on grounds (a) to (c) below
  - Bound by the Supreme Court's advice

GROUNDS FOR REMOVAL BY THE PRESIDENT

TWO ROUTES TO REMOVAL

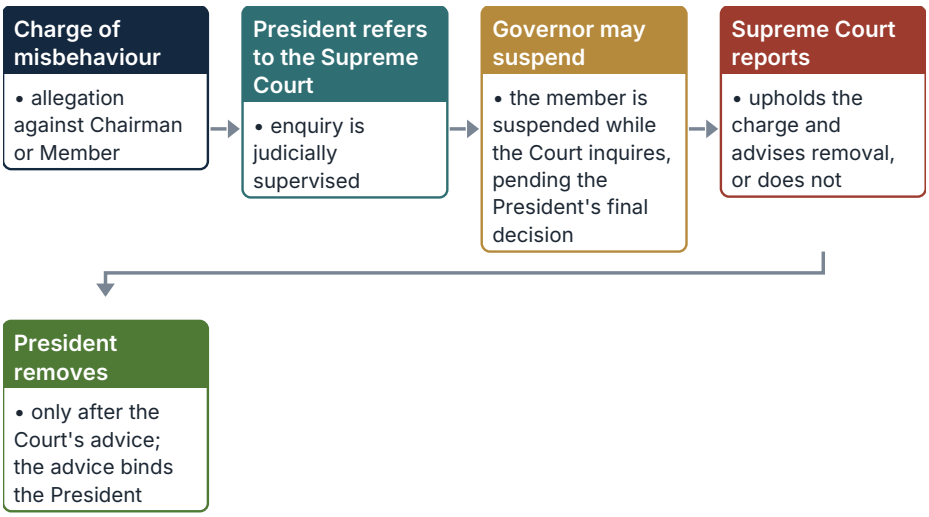
Route	What happens
Express grounds	(a) adjudged insolvent; (b) accepts paid employment outside the duties of the office during tenure; (c) in the President's opinion unfit to continue because of mental or physical infirmity
Misbehaviour	President refers the charge to the Supreme Court for enquiry; removal follows only if the Supreme Court upholds the charge and advises removal; the advice is binding on the President

REMOVAL FOR MISBEHAVIOUR

- **Charge of misbehaviour**: allegation against Chairman or Member
- **President refers to the Supreme Court**: enquiry is judicially supervised
- **Governor may suspend**: the member is suspended while the Court inquires, pending the President's final decision
- **Supreme Court reports**: upholds the charge and advises removal, or does not
- **President removes**:
  - Only after the Court's advice
  - The advice binds the President

MY NOTES

REMOVAL FOR MISBEHAVIOUR



WHAT COUNTS AS MISBEHAVIOUR

- A member is guilty of misbehaviour if he or she is **concerned or interested in any contract or agreement** made by the Government of India or a State Government, or **derives profit or benefit** from such a contract or agreement. Holding shares as one shareholder among others in an incorporated company is the exception. This narrow definition prevents conflicts of interest.
- **Memory aid (Grounds for removal): I**nsolvent, **P**aid job outside office, **I**nfirmity (mental or physical): "**I**t **P**ays **I**nside".
- **Shortcut: Who does what. Governor: appoint, suspend. President: remove. Supreme Court: inquire.**

INDEPENDENCE OF THE SPSC

- Six safeguards protect the Commission, as listed by the handout.

SAFEGUARDS OF INDEPENDENCE

Safeguard	Detail
Security of tenure	Removal only by the President and only on grounds in Article 317; appointment (Governor) is separated from removal (President) to prevent arbitrary state executive control
Service conditions protected	Set by the Governor but cannot be varied to the disadvantage of a sitting Chairman or Member
Charged expenditure	All salaries, allowances and pensions are charged on the Consolidated Fund of the State (Article 322); not subject to a legislative vote
Post-tenure bar: Chairman	May be appointed Chairman or Member of UPSC, or Chairman of another SPSC; barred from any other government employment
Post-tenure bar: Member	May become Chairman or Member of UPSC, or Chairman of the same or another SPSC; cannot accept any other role under Union or State Governments

MY NOTES

Safeguard	Detail
No second term	Chairman or Member is not eligible for a second term in the same office

- **Memory aid (Independence): S**ecurity of tenure, **P**rotected service conditions, **C**harged expenditure, **P**ost-tenure bar (Chairman), **P**ost-tenure bar (Members), **N**o reappointment: "**S**ix **P**ens **C**an **P**roduce **P**erfect **N**otes".
- **Compare the two bars:** A Chairman can go to UPSC (Chairman or Member) or to Chairman of another SPSC. A Member has one more door: Chairman of the same SPSC as well.

ALSO IN THE HANDOUT

- Protection Against Adverse Service Alteration: Although service conditions are set by the Governor, they cannot be varied to the disadvantage of a sitting Chairman or Member, preventing coercion through retrospective changes to terms.

FUNCTIONS OF THE SPSC

- Under Articles 315-323 the SPSC ensures a merit-based, transparent and professional civil service at the state level. Its mandate mirrors the UPSC but for state services.

PRIMARY FUNCTION

- **Conduct examinations** for recruitment to State civil services and posts, giving equal opportunity and competitive selection.

ADVISORY ROLE

- The SPSC advises the State executive on personnel matters. Consultation is needed in these areas.

MATTERS ON WHICH THE SPSC IS CONSULTED

Area	Items
Recruitment and service management	Method and procedure of recruitment; principles for appointments, promotions and inter-service transfers; suitability of persons for direct recruitment, promotions and transfers, and appointments through transfer or deputation (departmental promotion proposals are referred to the Commission for approval)
Disciplinary matters	Censure (formal reprimand); withholding of increments or promotions; recovery for pecuniary loss caused to the government; demotion to a lower rank or service; compulsory retirement; removal or dismissal from service
Service-related claims	Reimbursement of legal expenses for officials defending acts done in the course of duty; grant and quantum of pension or compensation for injuries sustained during service

MY NOTES

Area	Items
Other personnel matters	Any additional service administration issue the State executive refers to it
State Judicial Services	Governor consults the SPSC (and the High Court) on rules for appointments to State Judicial Services, excluding District Judges

- **Memory aid (Six disciplinary penalties): C**ensure, **W**ithholding increments or promotion, **R**ecovery of loss, **D**emotion, **C**ompulsory retirement, **R**emoval or dismissal: "**C**lerks **W**ho **R**eport **D**elays **C**ome **R**ight back".

JUDICIAL POSITION ON CONSULTATION

- **Supreme Court position:**
  - Non-consultation or irregular consultation does **not invalidate** the government's final decision. Consultation is **directory, not mandatory**. An SPSC recommendation gives **no legal right to appointment**
  - Selections must still be acted on fairly and without arbitrariness

EXTENSION OF FUNCTIONS

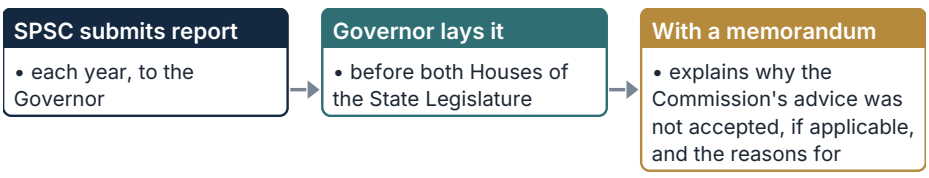
- The **State Legislature** may expand the SPSC's role by assigning additional functions relating to State services, and by bringing the services of local authorities, public bodies or statutory institutions under SPSC oversight.
- Such extension must be made through a **State law** (Article 321).

REPORTING TO THE STATE LEGISLATURE

ANNUAL REPORT

- **SPSC submits report**: each year, to the Governor
- **Governor lays it**: before both Houses of the State Legislature
- **With a memorandum**: explains why the Commission's advice was not accepted, if applicable, and the reasons for the divergence! good

ANNUAL REPORT



- **Shortcut: Article cue. Art. 320 functions, Art. 321 extension, Art. 322 expenses, Art. 323 annual report.**

MY NOTES

ALSO IN THE HANDOUT

- Assessment of suitability of individuals for: a.
- Censure (formal reprimand) 2. Withholding of increments or promotions 3. Recovery for pecuniary loss caused to the government 4. Demotion to a lower rank or service 5.
- Removal or dismissal from service These safeguards ensure that punitive actions are scrutinized professionally and fairly.
- Assigning additional functions relating to State services 2.
- Why the advice of the Commission was not accepted (if applicable) 2.
- Here, the High Court of the respective state is also involved in the consultation process, ensuring judicial autonomy and quality in subordinate courts.
- These exclusions mean that affirmative-action choices and the administration of caste-based or tribal claims in recruitment remain within the direct competency of the state executive and legislature.

INSTITUTIONAL ROLE WITHIN STATE ADMINISTRATION

- The Constitution treats the SPSC as a guardian of meritocracy in state public services.
- Its advisory scope covers **recruitment and evaluation** such as promotions and disciplinary proceedings.
- It does **not** deal with broader personnel administration such as service classification, pay structures, cadre policies or training. These are handled by the Department of Personnel or the General Administration Department.
- Its recommendations are **advisory**
- The state government may depart from them with legislative accountability
- The executive can frame rules defining the extent and manner of the Commission's advisory involvement.

OVERLAP WITH THE STATE VIGILANCE COMMISSION

- The **State Vigilance Commission (SVC)** emerged in **1964**.
- Both bodies are consulted in disciplinary cases, so overlapping jurisdiction can lead to differing recommendations.
- As a constitutional authority, the **SPSC retains precedence** when conflicts arise.

ADVISORY VERSUS BINDING

- **What the SPSC does:**
  - Conducts exams

MY NOTES

- Advises on recruitment, promotions, discipline and claims
- Reports annually

- **What it does not do:**
  - Bind the government
  - Decide service classification, pay structures, cadre policies or training
  - Give a right to appointment

ALSO IN THE HANDOUT

- This procedural requirement ensures that any narrowing of the SPSC's consultative scope is subject to legislative scrutiny and correction.

LIMITS ON THE SPSC'S AUTHORITY

- The Constitution carves out areas where the SPSC is not consulted.

EXCLUSIONS FROM CONSULTATION

Excluded area	Who decides
Reservation in favour of any backward class of citizens	State executive and legislature
Claims of Scheduled Castes and Scheduled Tribes in appointments to services and posts	State executive and legislature
Posts, services or matters excluded by the Governor through regulations	Governor, subject to Legislature

GOVERNOR'S REGULATIONS

- The Governor may exclude specified posts, services or matters from the SPSC's purview by making regulations.
- Every such regulation must be **laid before each House of the State Legislature for at least fourteen days**.
- The State Legislature may **amend or repeal** those regulations.
- **Memory aid (Exclusions): R**eservation for backward classes, **S**C/ST claims, **G**overnor's regulations: "**R**ules **S**et **G**ently".

JOINT STATE PUBLIC SERVICE COMMISSION

- Two or more States may have a **Joint State Public Service Commission (JSPSC)**. It is created by a **law of Parliament** when the Legislatures of the States pass resolutions requesting it (Article 315).

MY NOTES

SPSC VERSUS JSPSC

Point	SPSC	JSPSC
Nature	Constitutional body	Statutory body (created only by a Parliament law on state request)
Appointing authority	Governor	President
Tenure	Six years or age 62, whichever earlier	Six years or age 62, whichever earlier
Suspension and removal	President removes; Governor may suspend during SC enquiry	President suspends or removes
Resignation	To the Governor	To the President
Number of members and conditions of service	Governor decides	President decides under the enabling statute
Annual report	To the Governor	To each of the Governors of the States it serves; each places it before his State Legislature

OTHER POINTS

- Where a single State needs support, the **UPSC may serve the State** on the Governor's request and with Presidential approval, an alternate statutory route for cooperation in recruitment.
- **Historical roots:** Under the Government of India Act, 1919, a **Central Public Service Commission** was constituted (1926). The Government of India Act, 1935 envisaged a Federal Public Service Commission and also Provincial and Joint Public Service Commissions for groups of provinces. These precedents inform the modern JSPSC.

> **HANDOUT ALERT**
> Handout alert: Do not carry the SPSC rule over to the JSPSC. For an SPSC the Governor appoints and the President removes. For a JSPSC the **President** both appoints and removes (the handout says so for both).

KEY ARTICLES

ARTICLE TABLE (REBUILT FROM THE FLATTENED HANDOUT)

Article	Subject matter
315	Establishment of Public Service Commissions
316	Appointment and term of office of Chairman and Members
317	Removal and suspension

MY NOTES

Article	Subject matter
318	Conditions of service and staff regulations
319	Restrictions on further employment
320	Functions of PSC
321	Extension of functions
322	Expenses charged on Consolidated Fund
323	Annual report

- **Memory aid (Article ladder):** **E**stablish 315, **A**ppointment 316, **R**emoval 317, **C**onditions 318, **R**estrictions 319, **F**unctions 320, **E**xtension 321, **E**xpenses 322, **A**nnual report 323: "**E**very **A**spirant **R**eads **C**ase **R**eports **F**or **E**xam **E**xcellence **A**lways".
- **Two Articles to pin:** The post-tenure employment bar is **Art. 319** and the charged expenditure rule is **Art. 322**.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 45, STATE PUBLIC SERVICE COMMISSION

- The age limit of 62 was originally 60
- The 41st Amendment Act of 1976 raised it to 62
- The provision for an acting chairman was added by the 15th Amendment Act of 1963
- He serves till the new chairman joins or the old one resumes
- The Governor also decides the number of staff of the Commission and their service conditions.
- In 1993 the Supreme Court ruled that appointing a university professor known to be blind as an SPSC member cannot be set aside on the ground of infirmity of body or mind.
- A retiring SPSC member may become chairman of that same SPSC or another one, or chairman or member of the UPSC
- A retiring SPSC chairman may become chairman or member of the UPSC or chairman of any other SPSC
- The Governor's exemption rules are called the SPSC (Exemption from Consultation) Regulations.
- Role:
  - The Department of Personnel or the General Administration Department handles classification, pay, cadre management and training
  - The SPSC is only the State's recruiting agency
- The SPSC is consulted by the Governor, along with the State High Court, in framing rules for judicial service appointments other than district judges.

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Which Articles govern the SPSC?	Part XIV, Articles 315-323, the same framework as the UPSC.
Who appoints SPSC Chairman and Members?	The Governor.
Who removes them?	Only the President (Article 317).
Tenure of SPSC members?	Six years or age 62, whichever is earlier (UPSC: 65).
How many Members need ten years' government service?	One-half of the Members.
Who appoints an acting Chairman of an SPSC?	The Governor, from among the sitting Members.
Three express grounds for removal?	Adjudged insolvent; paid employment outside the office; unfit due to mental or physical infirmity.
Misbehaviour procedure?	President refers to the Supreme Court; removal only if the Court upholds the charge and advises it; the advice binds the President.
Who suspends during the enquiry?	The Governor.
What is misbehaviour here?	Being concerned or interested in a government contract, or deriving profit from it (except as one shareholder in an incorporated company).
Which Article charges SPSC expenses on the State Consolidated Fund?	Article 322.
Can a member get a second term in the same office?	No.
Six disciplinary matters needing consultation?	Censure; withholding increments or promotions; recovery of loss; demotion; compulsory retirement; removal or dismissal.
Is SPSC consultation mandatory?	No. It is directory, and its recommendation gives no right to appointment.
Who can extend the SPSC's functions?	The State Legislature, by a State law.
Governor's regulations excluding posts must be laid for how long?	At least fourteen days before each House; the Legislature may amend or repeal them.

MY NOTES

What does the Governor attach to the annual report?	A memorandum explaining why the Commission's advice was not accepted and the reasons.
Which areas is the SPSC not consulted on?	Reservation for backward classes and the claims of SC and ST in appointments.
Nature of a JSPSC?	Statutory, created by a Parliament law on request of state Legislatures.
Who appoints and removes a JSPSC's members?	The President.
Which body emerged in 1964 and overlaps with the SPSC?	The State Vigilance Commission.
Which Article covers restrictions on further employment?	Article 319.

Trap 1 · Appointer is not the remover

The Governor appoints SPSC members, but only the President can remove them. The Governor can only suspend while the Supreme Court inquires. *Rule: Governor = appoint and suspend; President = remove.*

Trap 2 · Age 62 for state, 65 for Union

SPSC and Joint SPSC members serve six years or until 62; UPSC members until 65. *Rule: only the UPSC has 65.*

Trap 3 · Joint SPSC is not constitutional

UPSC and SPSC are created directly by the Constitution; a Joint SPSC exists only by a law of Parliament on the request of the States, and the President appoints its members. *Rule: Joint SPSC = statutory, President appoints, report goes to every Governor concerned.*

Trap 4 · What the SPSC is not consulted on

Backward-class reservations and SC/ST claims are outside consultation. The Governor can exclude more posts by regulations laid for 14 days. Unlike the UPSC list, no tribunal, diplomatic or Group C/D exclusion is stated here. *Rule: two core exclusions plus whatever the Governor excludes.*

QUICK QUIZ

Q1. Who appoints the Chairman and Members of a State Public Service Commission?

1. President
2. Governor
3. Chief Minister
4. Chief Justice of the High Court

Q2. Who has the constitutional power to remove the Chairman or a Member of an SPSC?

1. Governor
2. State Legislature
3. President
4. High Court

Q3. Members of an SPSC hold office for six years or until the age of

1. 60 years
2. 62 years
3. 65 years
4. 58 years

MY NOTES

Q4. What portion of the Members of an SPSC must have held office for at least ten years under the Government of India or a State Government?

1. One-fourth
2. One-third
3. One-half
4. Two-thirds

Q5. In a misbehaviour enquiry, who may suspend the Chairman or Member of an SPSC while the Supreme Court inquires?

1. President
2. Governor
3. Chief Justice of India
4. State Legislature

Q6. Expenses of an SPSC are charged on the Consolidated Fund of the State under which Article?

1. 317
2. 320
3. 322
4. 323

Q7. According to the Supreme Court, consultation with the SPSC is

1. mandatory and its breach voids the decision
2. directory, not mandatory
3. required only for promotions
4. required only for dismissals

Q8. A Joint State Public Service Commission is

1. a constitutional body
2. a statutory body created by Parliament
3. created by a Governor's order
4. created by the Supreme Court

Q9. The SPSC is NOT consulted on

1. method of recruitment
2. disciplinary matters
3. reservation for any backward class of citizens
4. promotion principles

Q10. Which Article deals with the annual report of a Public Service Commission?

1. 321
2. 322
3. 323
4. 319

Answers: Q1 b, Q2 c, Q3 b, Q4 c, Q5 b, Q6 c, Q7 b, Q8 b, Q9 c, Q10 c

MY NOTES

CHAPTER 33 · HANDOUT: FINANCE COMMISSION (ART. 280), 15TH FINANCE COMMISSION, 16TH FINANCE COMMISSION TOR

33 Finance Commission

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

EXAM LENS

Prelims hooks

- none quoted in the material
- Hooks from the handout: Art. 280, fifth-year constitution, Chairman plus four, FC versus Planning Commission and NITI Aayog, 15th FC share of 41%, 17 states for revenue deficit grants, SDRF corpus.
- Handout stresses: Article 280, constituted every fifth year, Chairman plus four other members (Overview and Composition)
- Handout stresses: Recommendations are not binding; Rajamannar (Fourth FC Chairman) said they should not be rejected except for very compelling reasons (Advisory Role)
- Handout stresses: 15th FC numbers: 41% share, 19.65% grants-in-aid, revenue deficit grants for 17 states reducing to 6, 90:10 and 75:25 disaster funding (15th FC)
- Handout stresses: Chairpersons list with first Chairman K.C. Neogy and the 11th to 16th Chairs (Chairperson)

Mains hooks

- none quoted in the material
- Use the balancing-wheel theme, the Planning Commission overlap and the controversy over the 2011 Census base year.

The Finance Commission is the balancing wheel of fiscal federalism: authoritative and quasi-judicial, but only advisory, which makes its credibility depend on the Union's restraint.

IN SIMPLE WORDS

- The **Finance Commission (FC)** is a **quasi-judicial constitutional body** under **Article 280**. The **President** sets it up **every fifth year** or earlier.

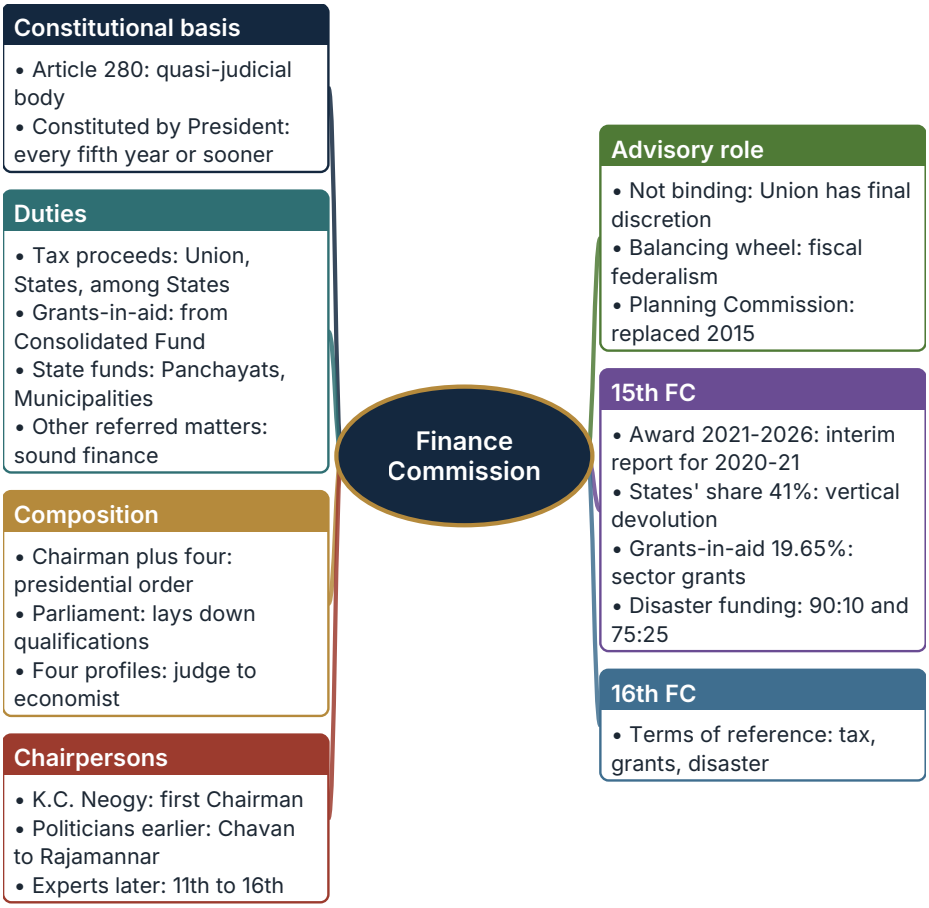
MY NOTES

- It has a **Chairman plus four members**, who may be **reappointed**. Parliament sets their qualifications. The Chairman has **public affairs** experience
- Members are a **High Court judge**, or experts in **government finance, financial administration, or economics**
- It recommends **tax sharing** between the Union and States (and among States), **principles of grants-in-aid**, **measures to boost State funds** for Panchayats and Municipalities, and any matter the President refers.
- Its advice is **not binding** on the Union Government, yet it is authoritative
- The FC is the **balancing wheel** of fiscal federalism. NITI Aayog replaced the **Planning Commission** in **2015**
- The **15th FC** (chair **N.K. Singh**) fixed the **States' share at 41%** of central taxes and covered **2021-26**. The **16th FC** is chaired by **Arvind Panagariya**.

Key term	In plain words
Article 280	Creates the Finance Commission; constituted by the President every fifth year
Vertical devolution	Share of central taxes going to the States as a whole (41% under the 15th FC)
Horizontal distribution	How the States' share is split among individual States
Grants-in-aid	Money from the Consolidated Fund of India to States; FC recommends the principles
Quasi-judicial	Body that decides by fair procedure and may set its own procedure, like a court
Balancing wheel	The FC's role in keeping Centre-State finances in balance
Revenue deficit grants	15th FC gave them to 17 States at first (11 under the 14th FC), reduced to 6 by 2025-26
SDRF	State Disaster Response Fund; corpus of Rs 1.6 lakh crore, with Centre's share Rs 1.2 lakh crore

MY NOTES

MEMORY MAP: FINANCE COMMISSION



MNEMONIC · FOUR DUTIES OF THE FINANCE COMMISSION

Dividing Pie Aids All

- **D** Distribution of net tax proceeds between Union and States, and among States
- **P** Principles for grants-in-aid from the Consolidated Fund of India
- **A** Augment a State's Consolidated Fund for Panchayats and Municipalities
- **A** Any other matter the President refers for sound finance

Dividing the tax pie aids all governments; the four duties follow in order. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · WHO CAN BE A FINANCE COMMISSION MEMBER

F A C E

- **F** Financial administration: substantial experience
- **A** Accounts and government finance: specialised knowledge
- **C** Court: a High Court Judge or someone qualified to be one
- **E** Economics: special knowledge

The four members come from these four profiles (the Chairman needs public affairs experience); picture the FACE of the Commission. The order is rearranged for memory; the handout does not fix an order. (Memory aid, not from the handout.)

MNEMONIC · CHAIRMEN OF THE 11TH TO 16TH FC

Kind Rulers Keep Revenue Shared Properly

- **K** Khusro, 11th
- **R** Rangarajan, 12th
- **K** Kelkar, 13th
- **R** Reddy (Y.V.), 14th
- **S** Singh (N.K.), 15th
- **P** Panagariya, 16th

Initials of the six chairmen in order; fair revenue sharing needs kind, proper rulers. (Memory aid, not from the handout.)

MNEMONIC · 15TH FC SECTOR-SPECIFIC PERFORMANCE GRANTS

C A S H I E R

- **C** Courts: Fast-Track Courts grants (Judiciary)
- **A** Agriculture incentives
- **S** School and higher education
- **H** Health sector
- **I** Incentives for the Aspirational Districts Programme
- **E** Electricity: power sector reforms
- **R** Rural roads (PMGSY) maintenance

Like a CASHIER, the Commission releases grants only when the performance conditions are met; seven areas in all. The order is rearranged for memory; the handout does not fix an order. (Memory aid, not from the handout.)

OVERVIEW AND DUTIES

- **Article 280** establishes the Finance Commission as a **quasi-judicial constitutional body**. The **President** constitutes it **every fifth year, or sooner** if he thinks it necessary. It is the constitutional mechanism to examine and advise on fiscal matters between the Union and the States.

MY NOTES

DUTIES: RECOMMENDATIONS TO THE PRESIDENT

FOUR DUTIES

No.	Recommendation
1	Distribution of net tax proceeds between the Union and the States, and allocation among individual States
2	Principles for grants-in-aid to States from the Consolidated Fund of India
3	Measures to augment State Consolidated Funds so as to support Panchayats and Municipalities, based on State Finance Commission recommendations
4	Any other fiscal matter referred by the President in the interest of sound finance

- The Commission can determine its **own procedure** and exercise powers granted by Parliament.
- **Memory aid (Four duties):** **T**ax proceeds sharing, **G**rants-in-aid principles, **M**easures for State funds (local bodies), **O**ther matters from the President: "**T**en **G**ood **M**en **O**perate".

FISCAL ADVICE CHAIN

- **President constitutes the Commission**: Art. 280, every fifth year or sooner
- **Commission studies and recommends**: tax sharing, grants, support for local bodies, referred matters
- **Union government decides**: recommendations are advisory, not binding

FISCAL ADVICE CHAIN



ALSO IN THE HANDOUT

- Key duties include recommending to the President: 1.

COMPOSITION

- The Commission is a **Chairman plus four other members**, all appointed by **presidential order under Article 280**. Members serve for the period in the order and **may be reappointed**.
- **Parliament** lays down the qualifications and selection procedure
- Statutory rules specify the background
- The **Chairman** is normally a person with experience in **public affairs**.

MY NOTES

PROFILES FOR THE FOUR OTHER MEMBERS (ONE OR MORE)

No.	Profile
1	A Judge of a High Court, or someone qualified for such appointment
2	A person with specialised knowledge of government finance and accounts
3	A person with substantial experience in financial administration
4	An expert with special knowledge of economics

- **Memory aid (Four member profiles):** **J**udge of High Court, **A**ccounts expertise, **F**inancial administration, **E**conomics: "**J**ust **A**sk **F**inance **E**xperts".
- **Why this mix:** The rules combine constitutional legitimacy with the technical expertise needed for balanced recommendations on fiscal federalism.

ALSO IN THE HANDOUT

- The four other members are drawn from expert backgrounds and are selected from among persons who satisfy one or more of the following profiles: 1.

CHAIRPERSONS

CHAIRPERSONS NAMED IN THE HANDOUT

Group	Names
First Chairman	K.C. Neogy
Politicians often appointed	Y.B. Chavan, Brahmanand Reddy, N.P.K. Salwe, K.C. Pant, Rajamannar (spelt "Rajamanar" in this list)
11th Finance Commission	A.M. Khusro
12th Finance Commission	C. Rangarajan
13th Finance Commission	Vijay Kelkar
14th Finance Commission	Y.V. Reddy
15th Finance Commission	N.K. Singh
16th Finance Commission	Arvind Panagariya

- Of late, **experts** have been appointed as Chairpersons rather than politicians.
- **Memory aid (Chairs 11 to 16):** **K**husro, **R**angarajan, **K**elkar, **R**eddy, **S**ingh, **P**anagariya: "**K**ind **R**ulers **K**eep **R**evenues **S**afe, **P**rudently".

MY NOTES

- **Punchi Commission:** It recommends that the Finance Commission division of the Finance Ministry be converted into a separate, full-fledged department.

> **HANDOUT ALERT**
> Handout alert: The Chairperson list spells the name "**Rajamanar**" while the Advisory Role text spells it "**Dr. P. V. Rajamannar**" and calls him Chairman of the **Fourth** Finance Commission. They are the same person; use Rajamannar and the Fourth FC.

ALSO IN THE HANDOUT

- 11 th Finance commission- A.M.Khusro - 12th Finance commission- C.Rangarajan - 13th Finance commission- Vijay Kelkar - 14 th Finance commission- Y.V.Reddy - 15 th Finance commission- N.K.Singh - 16 th Finance commission- Arvind Panagariya [[Note]] Punchi Commission recommends that the Finance Commission division of the Finance Ministry should be converted into a separate full-fledged department.

ADVISORY ROLE AND THE PLANNING COMMISSION

- Although a constitutional body under Article 280, its recommendations **carry no binding legal force**. The Union government keeps the final discretion on whether and how to implement the transfers. The outputs guide fiscal relations but create **no enforceable rights** for beneficiary States.

BINDING OR AUTHORITATIVE?

- **Not binding:**
  - Union keeps final discretion
  - No enforceable rights for States
- **Authoritative:**
  - Quasi-judicial character and expected neutrality
  - Dr. P. V. Rajamannar, Chairman of the Fourth FC, said the Union should not reject recommendations except for very compelling reasons

BALANCING WHEEL

- The Finance Commission is the **"balancing wheel"** of India's fiscal federal structure, ensuring equitable distribution of shared revenues.
- For many decades **up to 2014** its influence was diluted: the **Planning Commission**, a **non-constitutional and non-statutory** entity, overlapped with it in Centre-State fiscal transfers (as noted by Rajamannar).

MY NOTES

- This overlap drew criticism because a body with no constitutional sanction overshadowed the Finance Commission's constitutionally guaranteed role.
- In **2015** the Planning Commission was replaced by **NITI Aayog** (National Institution for Transforming India), meant to restore clarity of roles and reinforce the Finance Commission in cooperative federalism.

OVERLAP AND REPAIR

- **Finance Commission**: constitutional role under Art. 280
- **Planning Commission overlaps**:
  - Non-constitutional, non-statutory
  - Diluted the FC up to 2014
- **NITI Aayog replaces it in 2015**: to restore clarity and strengthen cooperative federalism

OVERLAP AND REPAIR



THE 15TH FINANCE COMMISSION

- It was constituted for the award period **2021-2026**, but because of delays and contentious Terms of Reference (ToR) it first submitted an **interim report for 2020-21**.

WHY THE TOR WAS CONTESTED

- Shift of the **population base year from the 1971 Census to the 2011 Census**. Southern and progressive states opposed it, saying it penalises successful population control.
- It was asked to review continuation of **revenue deficit grants** and to assess the Centre's fiscal situation after higher tax devolution earlier.
- It was asked to integrate **performance-based conditionalities**: tax effort, demographic control, power sector reforms, ease of doing business, Swachh Bharat outcomes.
- These conditions raised fears of **central overreach and micromanagement** of state governance.
- It finally gave a **six-year award period**, unlike the usual five, for stability and to address the fiscal shock of COVID-19.

MY NOTES

HANDOUT ALERT

Handout alert: The handout says the award period is **2021-2026** and also a **six-year** period. Counting the interim report year 2020-21 gives six years. Use: **interim 2020-21, main award 2021-2026, six years in all**.

15TH FC: MAJOR RECOMMENDATIONS

CORE NUMBERS

VERTICAL DEVOLUTION, GRANTS AND DISASTER FUNDING

Head	Recommendation
Vertical devolution	States' share in central taxes fixed at **41%** (excluding J&K's former share after UT status)
Grants-in-aid	Overall share increased to **19.65%**
Revenue deficit grants	**17 states** initially (up from **11** in the 14th FC) due to COVID impact; reduced gradually to **6 states** by 2025-26
Disaster funding pattern	Retained: **90:10** for North-East and Himalayan states; **75:25** for other states
SDRF corpus	Rs 1.6 lakh crore (Rs 1.2 lakh crore by the Centre)
Defence and internal security	Modernisation Fund (MFDIS) of Rs 2.4 lakh crore for 5 years; sources: CFI, defence disinvestment, land monetization

SECTOR-SPECIFIC PERFORMANCE GRANTS

SECTOR GRANTS

Sector	Recommendation
Health	Rs 1,06,606 crore allocated; 8% of state budget for health with two-thirds for primary healthcare; proposal for an All India Medical and Health Service
School education	Rs 4,800 crore, based on the Performance Grading Index
Higher education	Rs 5,078 crore, including online and regional language courses
Agriculture	Incentives for land lease reforms, water-use efficiency, and Atmanirbhar Bharat crops (pulses, oilseeds, wood products)
Rural infrastructure	Rs 23,539 crore for PMGSY road maintenance
Judiciary	Rs 10,245 crore to strengthen Fast-Track Courts, including POCSO cases
Aspirational Districts Programme	Rs 500 crore incentives plus additional grants for best-performing blocks

MY NOTES

Sector	Recommendation
Power sector reforms	Compliance enables 0.5% extra fiscal deficit space for states for four years

- **State-specific grants** focus on unique needs: water resources, heritage, tourism, infrastructure, governance improvements.
- **Shortcut: Number shortcut. 41** (share), **19.65** (grants), **17 to 6** (revenue deficit states), **90:10 and 75:25** (disaster). Fix these four first.
- **Memory aid (Sector grants):** **H**ealth, **E**ducation, **A**griculture, **R**ural roads, **J**udiciary, **A**spirational Districts, **P**ower: "**H**ardworking **E**ngineers **A**lways **R**epair **J**unctions **A**nd **P**ipes".

HANDOUT ALERT

Handout alert: The handout lists "**Horizontal Distribution Criteria**" as a heading with **no content** under it, and the Defence item (Modernisation Fund) is cut after its sources. The source text looks **truncated**, so horizontal criteria are not covered here. Do not invent them from outside.

ALSO IN THE HANDOUT

- 90:10 → NE & Himalayan states - 75:25 → other states - SDRF corpus: ₹1.6 lakh crore (₹1.2 lakh crore by Centre) 7.

16TH FINANCE COMMISSION: TERMS OF REFERENCE

- The Finance Commission advises on tax revenue sharing, grants-in-aid principles, resource support for local bodies and disaster management funding.

16TH FC TERMS OF REFERENCE (LIST NUMBERS 6 TO 9 IN THE HANDOUT ARE STRAY)

Subject	Task
Tax distribution	Recommend how to distribute the net proceeds of taxes between the Union and the States
Grants-in-aid	Recommend principles for grants-in-aid of state revenues
Consolidated Fund	Recommend measures to increase the Consolidated Fund of a state
Disaster management	Review the current arrangements for financing disaster management initiatives

- **Chairman:** The 16th Finance Commission Chairman is Arvind Panagariya.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 46, FINANCE COMMISSION

- Article 281 (in the LK table) deals with the recommendations of the Finance Commission

MY NOTES

- The report goes to the President, who lays it before both Houses of Parliament with an explanatory memorandum on action taken
- Parliament specified member qualifications through the Finance Commission Act, 1951.
- The third function (supplementing State funds for Panchayats and Municipalities) was added by the 73rd and 74th Amendments of 1992.
- Till 1960 the FC also suggested grants to Assam, Bihar, Odisha and West Bengal in place of a share of export duty on jute
- These grants were temporary, for ten years from the Constitution's start
- Fifteen commissions had been formed as per LK. Chairmen in order: Neogy (1st), Santhanam, Chanda, Rajamannar (4th), Mahavir Tyagi, Brahmananda Reddy, Shelat, Chavan, Salve (9th), Pant (10th), then the 11th to 15th.
- Appointed and report years: 1st (1951, 1952), 4th (1964, 1965), 10th (1992, 1994), 12th (2002, 2004), 14th (2013, 2014), 15th (2017; reports 2019 and 2020). The 14th covered 2015-20 and the 15th 2020-26.
- The 15th FC gave two reports: the first on 5 December 2019 for 2020-21, and the second on 9 November 2020 for 2021-22 to 2025-26.
- D.D. Basu is quoted: nowhere does the Constitution say the FC's advice binds the Government of India or creates a legal right for States.
- Lakshmikanth differs:
  - Spelling of the 9th chairman. It writes N.K.P. Salve
  - The handout writes N.P.K. Salwe. Use the handout spelling in class and recognise both

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Which Article establishes the Finance Commission?	Article 280.
How often is it constituted?	Every fifth year, or sooner if the President thinks necessary.
Composition?	A Chairman plus four other members, by presidential order.
Who sets member qualifications?	Parliament.

Four profiles for the four members?	High Court judge or qualified; government finance and accounts; financial administration; economics.
Four duties?	Tax proceeds sharing; grants-in-aid principles; measures for State Consolidated Funds to support local bodies; other matters referred by the President.
Is the FC binding on the Union?	No. The Union has final discretion, though advice is authoritative.
First Chairman?	K.C. Neogy.
Chairs of the 11th to 16th FC?	Khusro, Rangarajan, Kelkar, Y.V. Reddy, N.K. Singh, Arvind Panagariya.
Who called the FC the balancing wheel?	The handout describes the FC as the balancing wheel of fiscal federalism.
What did Rajamannar say about rejecting recommendations?	The Union should not reject them except for very compelling reasons.
Which body overlapped the FC until 2014?	The Planning Commission (non-constitutional, non-statutory).
What replaced the Planning Commission in 2015?	NITI Aayog.
What does the Punchi Commission recommend for the FC division?	Convert it into a separate full-fledged department of the Finance Ministry.
15th FC award period?	2021-2026, with an interim report for 2020-21; a six-year period.
States' share in central taxes under the 15th FC?	41%.
Revenue deficit grants under the 15th FC?	17 states initially (11 in the 14th FC), reduced to 6 by 2025-26.
Overall grants-in-aid share under the 15th FC?	19.65%.
Disaster funding pattern under the 15th FC?	90:10 for NE and Himalayan states; 75:25 for others.
SDRF corpus?	Rs 1.6 lakh crore (Rs 1.2 lakh crore by the Centre).
Defence modernisation fund recommended?	MFDIS of Rs 2.4 lakh crore for 5 years.
15th FC health grant?	Rs 1,06,606 crore; 8% of state budget for health, two-thirds for primary healthcare.

MY NOTES

15th FC power sector incentive?	Compliance enables 0.5% extra fiscal deficit space for states for four years.
15th FC rural infrastructure grant?	Rs 23,539 crore for PMGSY road maintenance.
16th FC terms of reference?	Tax distribution; principles of grants-in-aid; measures to increase a state's Consolidated Fund; review of disaster management financing.

Trap 1 · Advisory but weighty

The Union Government need not accept the FC's recommendations, and States gain no legal right to the money. Yet Dr. Rajamannar said they should not be rejected without very compelling reasons. *Rule: not binding, but authoritative.*

Trap 2 · FC versus Planning Commission

Until 2014 the non-constitutional Planning Commission overlapped with the FC in Centre-State transfers. It was replaced by NITI Aayog in 2015. *Rule: FC = constitutional; Planning Commission = neither constitutional nor statutory.*

Trap 3 · 1971 versus 2011 Census

The 15th FC's Terms of Reference moved the population base from the 1971 Census to the 2011 Census; southern States objected that this penalised population control. *Rule: ToR change = 1971 to 2011; the objection came from States with good population control.*

Trap 4 · Five years or six

FCs are normally for five years, but the 15th FC gave a six-year award (2020-21 interim, then 2021-26) because of the COVID shock. *Rule: 15th FC is the six-year exception.*

QUICK QUIZ

Q1. The Finance Commission is established under which Article?

1. Article 268
2. Article 275
3. Article 280
4. Article 293

Q2. The Finance Commission is constituted by the President

1. every second year
2. every fifth year or sooner
3. every tenth year
4. only when Parliament directs

Q3. The Finance Commission consists of

1. a Chairman and two members
2. a Chairman and four other members
3. a Chairman and six members
4. a Chairman and one member

Q4. Who lays down the qualifications of Finance Commission members?

1. President
2. Supreme Court
3. Parliament
4. Planning Commission

MY NOTES

Q5. Who was the first Chairman of the Finance Commission?

1. K.C. Neogy
2. Y.B. Chavan
3. C. Rangarajan
4. A.M. Khusro

Q6. Which Chairman headed the 15th Finance Commission?

1. Vijay Kelkar
2. Y.V. Reddy
3. N.K. Singh
4. Arvind Panagariya

Q7. Finance Commission recommendations are

1. binding on the Union government
2. binding on States only
3. advisory with authoritative weight
4. enforceable in courts

Q8. The 15th Finance Commission fixed the States' share in central taxes at

1. 32%
2. 41%
3. 42%
4. 50%

Q9. Southern states opposed a shift in the population base year from

1. 1951 Census to 2001 Census
2. 1971 Census to 2011 Census
3. 1981 Census to 2011 Census
4. 1991 Census to 2011 Census

Q10. The disaster funding pattern retained by the 15th FC for North-East and Himalayan states is

1. 75:25
2. 90:10
3. 80:20
4. 50:50

Q11. The Planning Commission, which overlapped with the Finance Commission, was replaced in 2015 by

1. NDC
2. NITI Aayog
3. Punchi Commission
4. GST Council

Answers: Q1 c, Q2 b, Q3 b, Q4 c, Q5 a, Q6 c, Q7 c, Q8 b, Q9 b, Q10 b, Q11 b

MY NOTES

CHAPTER 34 · HANDOUT: GST COUNCIL (ART. 279A), COMPOSITION, WORKING, FUNCTIONS, OTHER RESPONSIBILITIES

34 GST Council

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

EXAM LENS

Prelims hooks

- none quoted in the material
- Hooks from the handout: 101st Amendment 2016, Article 279A, Chairperson, 60 days, weighted votes (1/3 and 2/3, 3/4), quorum, five petroleum products, compensation for five years, GST (Compensation to States) Act 2017.
- Handout stresses: Weighted voting: quorum one-half, decisions by three-fourths of weighted votes, Centre one-third and all States together two-thirds (Working)
- Handout stresses: Art. 279A(1), 279A(2), 279A(4), 279A(5) each covers a different point (Origin, Composition, Functions, Compensation)
- Handout stresses: Petroleum products (five named) can be brought into GST only on the Council's recommended date (Other Responsibilities)
- Handout stresses: Eleven States receive special provisions (Functions)

Mains hooks

- none quoted in the material
- Use cooperative federalism, the weighted voting structure and the dispute resolution mechanism.

The GST Council turns the 101st Amendment into a working forum: the Centre holds one-third of the vote but a three-fourths rule means neither side can decide alone.

IN SIMPLE WORDS

- The **GST Council** is a joint forum of the **Centre and States**, created by **Article 279A**, which the **101st Amendment Act, 2016** inserted. It steers India's single **GST** regime and **cooperative federalism**.

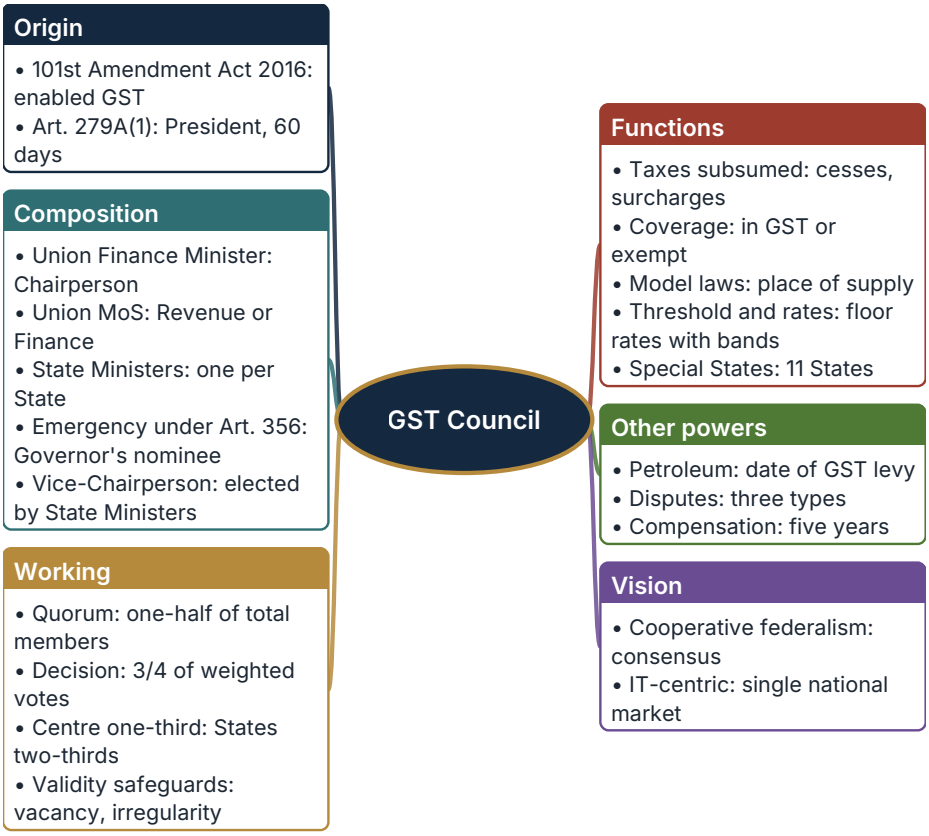
MY NOTES

- It is chaired by the **Union Finance Minister**
- Members include the **Union MoS (Revenue or Finance)** and each **State's Finance or Taxation Minister** (or another nominated Minister). State Ministers elect a **Vice-Chairperson**
- The **CBIC Chairperson** attends as a **non-voting permanent invitee**
- **Quorum** is **half** the members. A decision needs **three-fourths** of the weighted votes present and voting: **Centre one-third, all States together two-thirds**.
- It **recommends**: taxes to be merged into GST, what is taxed or exempt, model GST laws, the turnover threshold, rates (floor rates with bands), disaster rates and special provisions for certain States.
- It also recommends the **date of GST on petroleum products**, sets up a **dispute mechanism**, and recommends **compensation to States for five years**.

Key term	In plain words
Article 279A	Provides for the GST Council; inserted by the 101st Amendment Act, 2016
Weighted votes	Centre's vote counts one-third; all States together count two-thirds of the votes cast
Quorum	One-half of the total members of the Council
Permanent invitee	CBIC Chairperson: present at all proceedings but cannot vote
Floor rates with bands	Minimum GST rates with a permitted range, recommended by the Council
Place of supply	A principle the Council lays down to decide where a supply is taxed
GST Compensation Cess	Levied on specified luxury and sin goods to pay States bi-monthly compensation (Act of 2017)
Special States	Arunachal Pradesh, Assam, Manipur, Meghalaya, Mizoram, Nagaland, Sikkim, Tripura, Himachal Pradesh, Uttarakhand and Jammu and Kashmir

MY NOTES

MEMORY MAP: GST COUNCIL



MNEMONIC · COMPOSITION OF THE GST COUNCIL (ART. 279A(2))

G U S T

- **G** Governor's nominee where Article 356 is in force
- **U** Union Finance Minister, the Chairperson
- **S** Supporting Union Minister: the Minister of State in charge of Revenue or Finance
- **T** Taxation or Finance Minister of each State, or another Minister the State nominates

GUST is GST with a U (Union) inserted: the Council mixes the Union and the States. The order is rearranged for memory; the handout does not fix an order. (Memory aid, not from the handout.)

MNEMONIC · MEETING AND VOTING NUMBERS

C O S T

- **C** Centre's vote: one-third weight
- **O** One-half of total members is the quorum
- **S** States' combined vote: two-thirds weight
- **T** Three-fourths of weighted votes present and voting is needed for a decision

GST is about the COST of goods and services: the four numbers are Centre 1/3, quorum 1/2, States 2/3, decision 3/4. The order is rearranged for memory. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · MAIN FUNCTIONS OF THE COUNCIL

SECTOR

- **S** Special provisions for certain States
- **E** Exemptions and coverage: which goods and services are taxed or exempted
- **C** Collection and levy: model GST laws, principles of levy and place of supply
- **T** Thresholds and tax rates: floor rates with bands, disaster rates
- **O** Other matters related to GST
- **R** Rationalisation: which taxes, cesses and surcharges merge into GST

Six functions that shape how GST treats each SECTOR of the economy. The order is rearranged for memory; the handout does not fix an order. (Memory aid, not from the handout.)

MNEMONIC · OTHER RESPONSIBILITIES

CAP

- **C** Compensation to States for five years of revenue loss
- **A** Adjudication of disputes: Centre versus States, or States against States
- **P** Petroleum: GST date for crude, diesel, petrol, natural gas, ATF

Compensation has a CAP of five years; with adjudication and petroleum these are the three extra tasks. The order is rearranged for memory; the handout does not fix an order. (Memory aid, not from the handout.)

ORIGIN AND PURPOSE

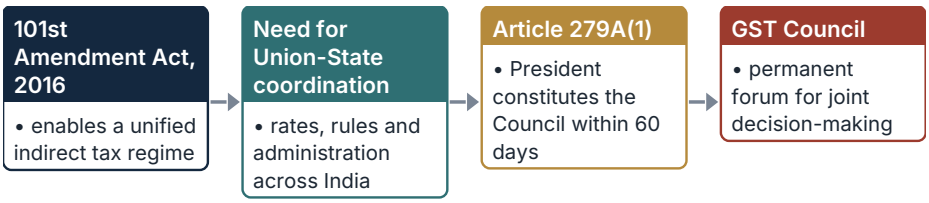
- GST was a major overhaul of India's indirect tax architecture, enabled by the **101st Constitutional Amendment Act, 2016**. A nationwide GST needed continuous coordination between the Union and the States, both to design uniform rates and rules and to manage collection and administration.
- To give that coordination a permanent institution, the Amendment created the **Goods and Services Tax Council**.
- **Article 279A(1)**: the President had to constitute the Council **within 60 days** of the commencement of the Constitution (101st Amendment) Act, 2016.

FROM AMENDMENT TO COUNCIL

- **101st Amendment Act, 2016**: enables a unified indirect tax regime
- **Need for Union-State coordination**: rates, rules and administration across India
- **Article 279A(1)**: President constitutes the Council within 60 days
- **GST Council**: permanent forum for joint decision-making

MY NOTES

FROM AMENDMENT TO COUNCIL



ALSO IN THE HANDOUT

- Other Responsibilities and Powers of the GST Council Apart from its primary mandate of recommending tax structures and rates, the Goods and Services Tax (GST) Council performs several other vital functions that ensure coordination between the Union and States in the smooth implementation of the GST regime.

COMPOSITION (ARTICLE 279A(2))

MEMBERS OF THE GST COUNCIL

Clause	Member
a	The Union Finance Minister (**Chairperson**)
b	The Union Minister of State in charge of Revenue or Finance
c	The Minister in charge of Finance or Taxation, or any other Minister nominated by each State Government
d	Any person nominated by the Governor of the State where there is a proclamation of emergency under Article 356

- The **State Ministers elect among themselves a Vice-Chairperson** from time to time.
- The **Chairperson of the Central Board of Indirect Taxes and Customs (CBIC)** is a **permanent invitee** with **no vote**, present at all proceedings.
- **Memory aid (Members): F**inance Minister (Union, Chairperson), **M**oS Revenue or Finance, **S**tate Ministers, **G**overnor's nominee under emergency: "**F**ine **M**eals **S**erved **G**ladly".

HANDOUT ALERT

Handout alert: In clause (d) the handout says "**any person nominated by the Governor of the State where there is a proclamation of emergency under Article 356**". Use the wording as given and do not add more. The Vice-Chairperson and CBIC lines sit in the handout's Overview before the composition list; they are regrouped here.

WORKING

- Working is governed by **Article 279A** and the procedures the Council follows. Meetings are its decision-making forum.

MY NOTES

QUORUM AND VOTING

Point	Rule
Quorum	One-half of the total members must be present
Decision	Adopted at a meeting by a majority of **not less than three-fourths of the weighted votes** of the members present and voting
Centre's weight	One-third of the total weighted votes
States' weight	All State Governments together carry the remaining two-thirds
Result	A proposal succeeds only when combined weighted support reaches the **75%** threshold

- **Shortcut: Voting sum. 1/3 Centre + 2/3 States = 100. Pass at 3/4 = 75.** The Centre alone cannot pass anything, and the States together cannot pass anything without Centre support, since two-thirds is less than three-fourths.

SAFEGUARDS FOR VALIDITY

- No act or proceeding of the Council is invalid merely because of:
- a vacancy in, or defect in, the constitution of the Council;
- An irregularity in the appointment of a Member
- Or
- a procedural irregularity that does not affect the merits of the case.

PROCEDURE AND SECRETARIAT

- The Council determines its own procedure (agenda-setting, deliberation, follow-up).
- It works through its **Secretariat in New Delhi** to operationalise decisions and follow up with Union and State administrations.
- **Memory aid (Safeguards): V**acancy or defect in constitution, **I**rregular appointment, **P**rocedural irregularity (not affecting merits): "**V**ery **I**mportant **P**roceedings".

INSTITUTIONAL PURPOSE AND VISION

- The Council is the central mechanism steering India's unified indirect tax regime. Its reason for being is a **harmonised GST architecture** and a **single national market** through sustained Union-State cooperation. It is the principal forum where policy choices affecting both levels are negotiated and converted into a common framework (see Article 279-A).

MY NOTES

VISION AND MISSION

- **Vision:**
  - Exemplary cooperative federalism
  - The highest standard-setting federal body for GST
  - Decisions taken collectively
  - Parity of participation, sustained consultation and mutual accommodation
- **Mission:**
  - Evolve a GST structure through wide consultation of experts, administrators and elected representatives
  - Use information technology so processes are digital, transparent and user-friendly
  - Reduce compliance costs and raise efficiency
- Its procedural role institutionalises **predictability**: rate revisions, classification disputes and administrative guidelines go through established, consultative procedures, not ad hoc decisions.

ALSO IN THE HANDOUT

- This vision emphasises parity of participation, sustained consultation and mutual accommodation so that tax rates, exemptions and procedural rules work uniformly across the country while respecting legitimate sub-national concerns. The Council's mission translates this vision into pragmatic institutional goals.
- Functionally, the Council is expected to define procedures for its own operation and for the execution of GST policy.
- This broad discretionary mandate allows it to respond effectively to evolving policy and administrative challenges within the GST regime.

FUNCTIONS (ARTICLE 279A(4))

- Under Article 279A(4) the Council makes recommendations to the Union and the States on GST matters.

FUNCTIONS OF THE GST COUNCIL

Function	What it does
Rationalisation of taxes	Recommends which existing taxes, cesses and surcharges of the Centre, States and local bodies are subsumed into GST; replaces many indirect levies with a single destination-based tax and reduces cascading
Tax coverage	Recommends which goods and services come under GST and which are exempted
Model GST laws and principles	Frames model laws; uniform principles of levy and collection; rules for apportioning tax on inter-state trade or commerce; principles for place of supply

MY NOTES

Function	What it does
Thresholds and rates	Turnover threshold below which small taxpayers are exempt; GST rates including floor rates with bands; special temporary rates during natural calamities or disasters
Special provisions for certain States	Recommendations for specified States (see list below)
Other matters	Any other GST-related matter it deems necessary

- **Memory aid (Functions):** **R**ationalise taxes, **C**overage, **M**odel laws, **T**hresholds and rates, **S**pecial States, **O**ther matters: "**R**ice **C**ooked **M**eans **T**ummy **S**atisfied **O**ften".

SPECIAL PROVISIONS: ELEVEN STATES

STATES NAMED IN THE HANDOUT

Region	States
North-East	Arunachal Pradesh, Assam, Manipur, Meghalaya, Mizoram, Nagaland, Sikkim, Tripura
Hill and border	Himachal Pradesh, Uttarakhand, Jammu & Kashmir

- These provisions recognise geographical, developmental and security challenges.
- **Collective significance:** The Council is the apex body for tax harmonisation: consolidation of taxes, legal coherence, fiscal fairness and cooperative federalism, in the spirit of Article 279-A.

ALSO IN THE HANDOUT

- These safeguards are intended to ensure continuity and legal certainty in GST governance.
- This ensures fiscal flexibility while promoting compliance ease for small businesses.
- This measure reassured States of fiscal stability during the transition and reinforced the spirit of trust and partnership in fiscal governance.

OTHER RESPONSIBILITIES AND POWERS

- Derived from Article 279A, these tasks help the Union and States implement GST smoothly.

1. GST ON PETROLEUM PRODUCTS

- The Council recommends the **date from which GST may be levied** on specified petroleum products: **petroleum crude, high-speed diesel, motor spirit (petrol), natural gas, aviation turbine fuel**.

MY NOTES

- These commodities are currently **kept outside GST** and are brought in when the Centre and States reach consensus, to limit revenue disruption and price instability.

2. DISPUTE RESOLUTION MECHANISM

- The Council sets up an institutional mechanism to adjudicate disputes about its recommendations or their execution.

THREE TYPES OF DISPUTES

Type	Between	Example in handout
(a)	The Centre and one or more States	Disagreement over apportionment of tax revenues
(b)	The Centre (and certain States) on one side and other States on the other	Diverse fiscal interests
(c)	Two or more States	Differences in interpreting place of supply or rate classification

- The aim is to resolve conflicts within the GST framework without judicial delays.

3. COMPENSATION TO STATES

- The Council recommends a compensation framework for States to offset potential revenue loss from GST.
- Under **Article 279A(5)** and **Section 18** of the 101st Amendment Act, 2016, the Council proposed compensation for **five years** from the date of GST rollout.
- Parliament then enacted the **Goods and Services Tax (Compensation to States) Act, 2017**, providing **bi-monthly** compensation from the **GST Compensation Cess** on specified luxury and sin goods.

COMPENSATION CHAIN

- **Council proposes five-year compensation**: Art. 279A(5) and Section 18 of the 101st Amendment Act
- **Parliament enacts the Compensation Act 2017**: GST (Compensation to States) Act, 2017
- **Bi-monthly payment to States**: funded by the GST Compensation Cess on luxury and sin goods

MY NOTES

COMPENSATION CHAIN

Council proposes five-year compensation
- Art. 279A(5) and Section 18 of the 101st Amendment Act

→ **Parliament enacts the Compensation Act 2017**
- GST (Compensation to States) Act, 2017

→ **Bi-monthly payment to States**
- funded by the GST Compensation Cess on luxury and sin goods

- **Memory aid (Other powers):** **P**etroleum levy date, **D**ispute mechanism, **C**ompensation to States: "**P**ay **D**ues **C**orrectly".
- **Article spelling:** The handout writes both "Article 279A" and "Article 279-A". They mean the same Article.

ALSO IN THE HANDOUT

- These recommendations help in striking a balance between revenue mobilisation and socio-economic objectives, influencing how deeply GST reaches into different sectors of the economy.
- This ensures legal uniformity and operational consistency between the Centre and the States, reducing disputes and administrative confusion.
- This provision allows flexibility in integrating these key commodities—currently kept outside GST—into the tax regime when both the Centre and States achieve consensus, ensuring minimal revenue disruption and stable prices.
- Establishment of a Dispute Resolution Mechanism To maintain harmony in the implementation of GST, the Council is tasked with creating an institutional mechanism for adjudication of disputes that may arise concerning its recommendations or their execution.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 47, GOODS AND SERVICES TAX COUNCIL

- The President constituted the Council by an order issued on 15 September 2016.
- The Union Revenue Secretary (Department of Revenue, Ministry of Finance) acts as ex-officio Secretary to the Council
- The Secretariat is in New Delhi
- Vision:
  - To set the highest standard of cooperative federation
  - The Council is the first constitutional federal body with power to take all major GST decisions. Mission: a GST structure evolved by wide consultation that is IT-driven and user friendly
- The State members decide the Vice-Chairperson's term as well as choosing him or her.
- The Union Cabinet decided that the CBIC Chairperson would be a permanent invitee (non-voting).

MY NOTES

- Compensation:
  - The Council recommends it for five years, and Parliament determines the amount
  - Parliament passed the Goods and Services Tax (Compensation to States) Act in 2017
- The Jammu and Kashmir Reorganisation Act, 2019 split the State into the UTs of Jammu and Kashmir and Ladakh
- The special-provision list still names Jammu and Kashmir
- Lakshmikanth differs: composition. It lists three categories (Union Finance Minister, Union MoS, State Ministers) and does not mention the fourth, the Governor's nominee under Article 356. Use the handout's four categories in class.

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Which Amendment enabled GST?	The 101st Constitutional Amendment Act, 2016.
Which Article provides the GST Council?	Article 279A.
Within what time was the Council to be constituted?	60 days of the commencement of the 101st Amendment Act (Art. 279A(1)).
Who chairs the GST Council?	The Union Finance Minister.
Who are the Council members under Art. 279A(2)?	Union Finance Minister; Union MoS Revenue or Finance; one Minister per State; Governor's nominee where Art. 356 emergency applies.
Who elects the Vice-Chairperson?	The State Ministers among themselves.
CBIC Chairperson's role?	Permanent invitee, no vote.
Quorum?	One-half of the total members.
Voting rule?	Not less than three-fourths of weighted votes of members present and voting.
Vote weights?	Centre one-third; all States together two-thirds.
Which Article lists the Council's recommendation topics?	Article 279A(4).
Three validity safeguards?	Vacancy or defect in constitution; irregular appointment; procedural irregularity not affecting merits.
Where is the Council's Secretariat?	New Delhi.

Vision of the Council?	Exemplary cooperative federalism, collective decisions, parity of participation.
Two parts of the Council's mission?	Wide consultation to evolve GST structure; IT-centric digital, transparent, user-friendly processes.
Six core functions?	Rationalise taxes; tax coverage; model laws and place of supply; thresholds and rates; special States; other matters.
Which States get special provisions?	Arunachal Pradesh, Assam, Manipur, Meghalaya, Mizoram, Nagaland, Sikkim, Tripura, Himachal Pradesh, Uttarakhand, Jammu & Kashmir.
Petroleum products awaiting GST?	Crude, high-speed diesel, motor spirit (petrol), natural gas, aviation turbine fuel.
Three types of disputes the Council mechanism covers?	Centre versus States; Centre plus certain States versus other States; between two or more States.
Compensation period proposed?	Five years from GST rollout.
Which Act provides compensation?	GST (Compensation to States) Act, 2017, funded bi-monthly from the GST Compensation Cess on luxury and sin goods.
Which Article and Section cover compensation?	Article 279A(5) and Section 18 of the 101st Amendment Act.

Trap 1 · Quorum is not the decision majority

Quorum is one-half of the total members, but a decision needs three-fourths of the weighted votes of members present and voting. *Rule: half to meet, three-fourths of weighted votes to decide.*

Trap 2 · Weight of the Centre

The Centre's vote is one-third of the total weighted votes and all States together hold two-thirds. A proposal passes only when combined weighted support reaches the 75% threshold. *Rule: 1/3 Centre, 2/3 States, 3/4 to pass.*

Trap 3 · Petroleum is outside GST for now

The Council recommends only the date from which GST may apply to petroleum crude, high-speed diesel, petrol, natural gas and aviation turbine fuel. *Rule: those five petroleum products stay outside GST until the Council recommends a date.*

MY NOTES

Trap 4 · Who votes

The CBIC Chairperson is a permanent invitee without a vote. A person nominated by the Governor sits only where Article 356 emergency is proclaimed. *Rule: the Governor's nominee is a special case of Art. 356 States, not a regular member.*

QUICK QUIZ

Q1. The GST was enabled by which Constitutional Amendment?

1. 100th Amendment Act
2. 101st Amendment Act
3. 102nd Amendment Act
4. 103rd Amendment Act

Q2. The GST Council is provided under which Article?

1. Article 246A
2. Article 268
3. Article 279A
4. Article 280

Q3. The Chairperson of the GST Council is

1. Prime Minister
2. Union Finance Minister
3. Union Minister of State for Finance
4. Governor

Q4. Who elects the Vice-Chairperson of the GST Council?

1. The Union Finance Minister
2. The Chairperson of CBIC
3. The State Ministers among themselves
4. The President

Q5. The CBIC Chairperson at GST Council proceedings is

1. a voting member
2. a permanent invitee without vote
3. the Vice-Chairperson
4. the Secretary

Q6. The quorum for a GST Council meeting is

1. one-third of members
2. one-half of the total members
3. three-fourths of members
4. two-thirds of members

Q7. A GST Council decision needs not less than what share of weighted votes of members present and voting?

1. One-half
2. Two-thirds
3. Three-fourths
4. Four-fifths

Q8. The Centre's vote carries what share of total weighted votes in the GST Council?

1. One-half
2. One-third
3. Two-thirds
4. One-fourth

Q9. Which of the following is NOT among the petroleum products named for GST levy on a date recommended by the Council?

1. Natural gas
2. Aviation turbine fuel
3. High-speed diesel
4. Liquefied petroleum gas

Q10. For how long did the Council propose that States be compensated for GST revenue loss?

1. Three years
2. Five years
3. Ten years
4. Two years

Q11. Compensation under the GST (Compensation to States) Act, 2017 is sourced from

1. Consolidated Fund of India only
2. GST Compensation Cess on luxury and sin goods
3. State Finance Commissions
4. Disaster Response Fund

MY NOTES

Answers: Q1 b, Q2 c, Q3 b, Q4 c, Q5 b, Q6 b, Q7 c, Q8 b, Q9 d, Q10 b, Q11 b

MY NOTES

CHAPTER 35 · HANDOUT: NCSC (ART. 338): HISTORY, VISION AND MISSION, COMPOSITION, FUNCTIONS, WINGS, ACTS, POWERS

35 National Commission for Scheduled Castes

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

EXAM LENS

Prelims hooks

- none quoted in the material
- Hooks from the handout: Art. 338, 65th and 89th Amendments, year of NCSC (2004), three wings, Acts of 1955, 1989 and 2013, 338(8) and 338(9), Art. 338B and the 102nd Amendment.
- Handout stresses: Article 338 and the history ladder: Special Officer (1950), non-statutory (1978), renamed (1987), 65th Amendment (1990), 89th Amendment (2003), NCSC (2004) (History)
- Handout stresses: Composition: Chairperson, Vice-Chairperson and three other Members, all appointed by the President (History and Composition)
- Handout stresses: Art. 338(8) civil court powers and Art. 338(9) consultation (Powers and Authority)
- Handout stresses: 102nd Amendment Act, 2018 moved the OBC role to the NCBC under Art. 338B (Powers and Authority)

Mains hooks

- none quoted in the material
- Use the wings and their complaint types, the demand for binding recommendations, and the quasi-judicial role.

The NCSC grew from one Special Officer into a constitutional watchdog that investigates like a civil court but advises rather than commands, which is why its own 2017-18 report asks for binding recommendations.

MY NOTES

IN SIMPLE WORDS

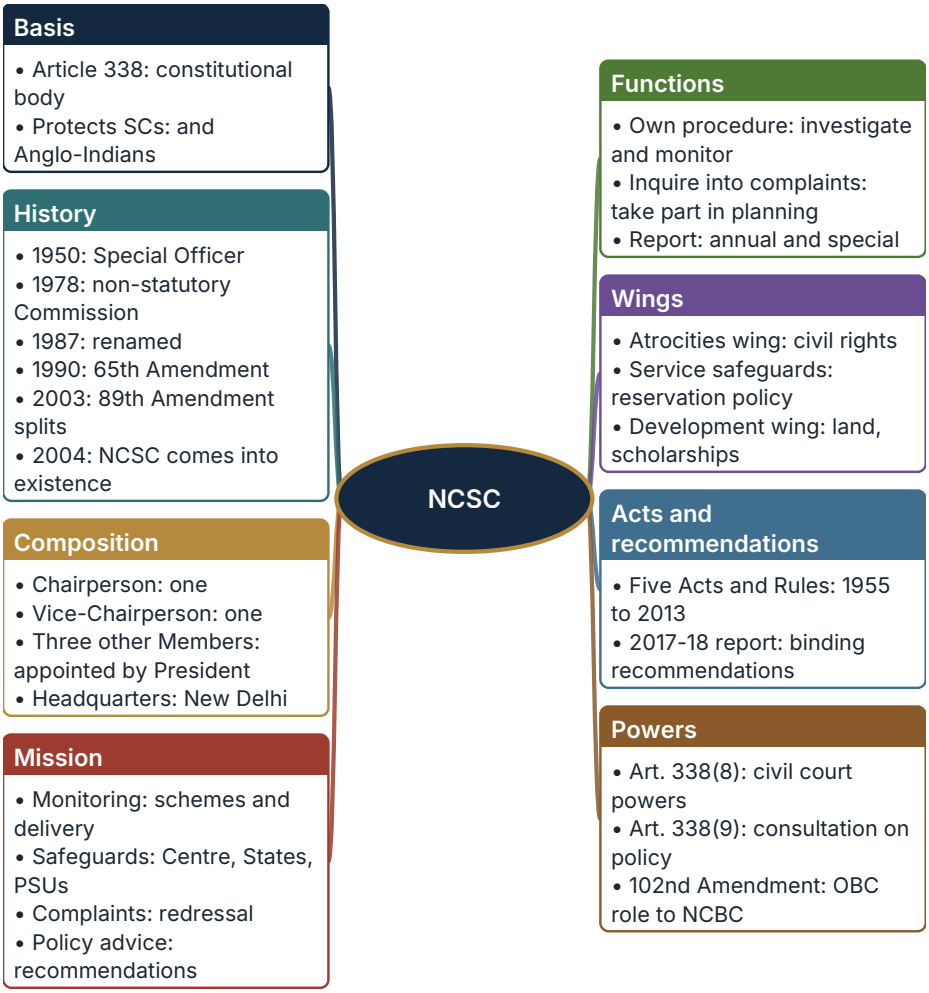
- The **National Commission for Scheduled Castes (NCSC)** is a **constitutional body** under **Article 338**. It protects the rights and interests of **Scheduled Castes** and the **Anglo-Indian community**.
- Its history:
  - **Special Officer (1950)**, non-statutory Commission (**1978**), renamed (**1987**), constitutional status by the **65th Amendment (1990)**, split by the **89th Amendment (2003)**
  - The separate NCSC began in **2004**
- It has a **Chairperson, a Vice-Chairperson and three other Members**, all appointed by the **President**, who also fixes their service conditions and tenure. Headquarters: **New Delhi**.
- It investigates safeguards, inquires into complaints, advises on development planning and recommends measures. While inquiring it has the **powers of a civil court** (**Art. 338(8)**), and Centre and States must **consult** it on major policy (**Art. 338(9)**).
- Reports go to the **President**, who lays them before **Parliament** with an action-taken memorandum (reasons for non-acceptance included). State matters go to the **Governor** and the **State Legislature**.
- It works through three **wings**: Atrocities and Protection of Civil Rights, Service Safeguards and Reservation Policy, and Development and Welfare. Until the **102nd Amendment (2018)** it also looked after **OBCs**.

Key term	In plain words
Article 338	Constitutional basis of the NCSC; the 89th Amendment (2003) split the combined Commission into Art. 338 (SC) and Art. 338A (ST)
Special Officer / Commissioner	The single officer for SCs and STs under Art. 338 in 1950; replaced by the 65th Amendment (1990)
Non-statutory body	Set up by a Government Resolution, not by the Constitution or an Act; the 1978 and 1987 Commissions were of this kind
Civil-court powers	Summon people, demand documents, take affidavits, requisition records, issue summons for witnesses (Art. 338(8))
Art. 338(9) consultation	Central and State Governments must consult the Commission on all major policy matters affecting SCs

MY NOTES

Key term	In plain words
Action-taken memorandum	Note laid with the report in Parliament or the State Legislature, stating action taken and reasons for non-acceptance
Anglo-Indian community	Also covered by the Commission, because references to SCs in the article include them
Wings	Three working divisions: atrocities, service safeguards, development and welfare

MEMORY MAP: NATIONAL COMMISSION FOR SCHEDULED CASTES



MY NOTES

MNEMONIC · HOW THE SC COMMISSION EVOLVED

Social Care Rose After Bifurcation Naturally

- **S** Special Officer under Art. 338 (1950)
- **C** Commission set up by Government Resolution, non-statutory (1978)
- **R** Renamed National Commission for SCs and STs (1987)
- **A** Amendment, the 65th, gives constitutional status (1990)
- **B** Bifurcation by the 89th Amendment (2003)
- **N** NCSC comes into existence (2004)

Care for the Scheduled Castes grew step by step, 1950 to 2004: officer, commission, rename, amendment, split, new body. (Memory aid, not from the handout.)

MNEMONIC · CIVIL-COURT POWERS (ART. 338(8))

C O U R T S

- **C** Compel attendance: summon any person and examine on oath
- **O** Other powers the President may determine
- **U** Unearth documents: discovery and production
- **R** Requisition public records from any court or office
- **T** Testimony on affidavits as evidence
- **S** Summons for examining witnesses and documents

The Commission has the powers of a civil court, so think COURTS. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · SEVEN MISSIONS OF THE NCSC

P R O S P E R

- **P** Policy recommendations to Central and State Governments
- **R** Redressal of complaints: examine and investigate violations
- **O** Outreach and awareness among Scheduled Castes
- **S** Safeguards: oversee constitutional and legal safeguards
- **P** Proactive empowerment: fill gaps, promote education and jobs
- **E** Evaluation: monitor developmental schemes
- **R** Rights and justice: vigilant guardian without fear or favour

The mission is to help Scheduled Castes PROSPER. The order is rearranged for memory; the handout does not fix an order. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · THREE WINGS OF THE NCSC

All Seek Dignity

- **A** Atrocities and Protection of Civil Rights wing
- **S** Service Safeguards and Reservation Policy wing
- **D** Development and Welfare wing

Every wing works so that all SC people can live with dignity: atrocities, service and reservation, development. The order of this list is free, so the sentence is only a memory aid. (Memory aid, not from the handout.)

MY NOTES

OVERVIEW

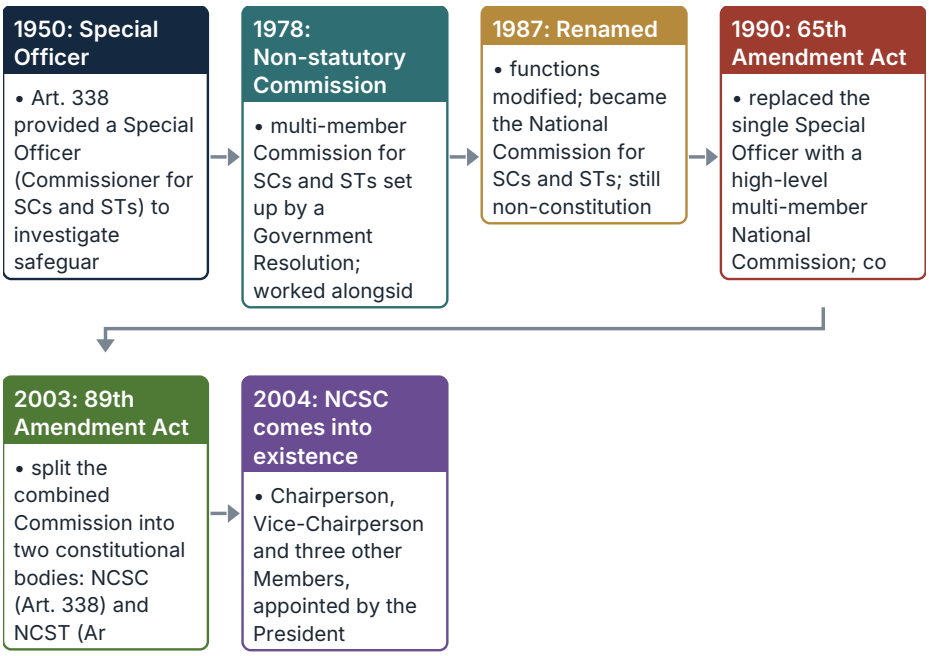
- The **National Commission for Scheduled Castes (NCSC)** is a **constitutional body under Article 338**. Its objective is to safeguard the rights and interests of the **Scheduled Castes and the Anglo-Indian community**. It reflects the framers' commitment to social justice, equality and protection against exploitation or discrimination of these historically marginalised communities.
- **Core idea:** NCSC = Art. 338. Its twin for tribes is the NCST under Art. 338A, and for backward classes the NCBC under Art. 338B.

HISTORY OF THE NCSC

FROM SPECIAL OFFICER TO NCSC

- **1950: Special Officer**: Art. 338 provided a Special Officer (Commissioner for SCs and STs) to investigate safeguards and report to the President
- **1978:**
  - **Non-statutory Commission**: multi-member Commission for SCs and STs set up by a Government Resolution
  - Worked alongside the Commissioner
- **1987:**
  - **Renamed**: functions modified
  - Became the National Commission for SCs and STs
  - Still non-constitutional
- **1990:**
  - **65th Amendment Act**: replaced the single Special Officer with a high-level multi-member National Commission
  - Constitutional status under Art. 338
  - Replaced both Commissioner and the earlier non-statutory Commission
- **2003: 89th Amendment Act**: split the combined Commission into two constitutional bodies: NCSC (Art. 338) and NCST (Art. 338A)
- **2004: NCSC comes into existence**: Chairperson, Vice-Chairperson and three other Members, appointed by the President

FROM SPECIAL OFFICER TO NCSC



THE SIX STEPS IN ONE TABLE

Year	Step	Nature
1950	Special Officer (Commissioner for SCs and STs)	Constitutional office
1978	Commission for SCs and STs	Non-statutory, by Govern-ment Resolution
1987	National Commission for SCs and STs	Still non-constitutional
1990	65th Amendment: multi-member National Commission	Constitutional status, Art. 338
2003	89th Amendment: bifurcation into NCSC and NCST	Two constitutional bodies
2004	NCSC established	Art. 338

- **Memory aid (History ladder):** **O**fficer 1950, **N**on-statutory 1978, **R**enamed 1987, **C**onstitutional 1990, **B**ifurcated 2003, **E**stablished 2004: "**O**ur **N**ation **R**ecognised **C**ommunities, **B**uilding **E**quality".
- **Shortcut: Year shortcut. 50, 78, 87, 90, 03, 04.** Amendments: **65 then 89** (1990 and 2003).

COMPOSITION

- The Commission has **one Chairperson, one Vice-Chairperson and three other Members**.
- All are appointed by the **President of India** (the composition note adds: on the recommendation of the Central Government), for a fixed tenure prescribed by law.

MY NOTES

- The President determines the **service conditions and tenure**, ensuring independence and stability.
- **Headquarters**: New Delhi.
- A **Secretary** and staff drawn from the Union public service assist the Commission.

COMPOSITION AT A GLANCE

Point	Detail
Chairperson	One
Vice-Chairperson	One
Other Members	Three (the handout also says "a number of Members appointed to serve full-time")
Appointing authority	President
Service conditions and tenure	Determined by the President
Headquarters	New Delhi
Support	Secretary and staff from the Union public service

HANDOUT ALERT

Handout alert: The History section gives exactly **three other Members** (five in all), while the Composition section says "a number of Members". Use the history numbers: **one Chairperson, one Vice-Chairperson, three Members**.

VISION AND MISSION

- **Vision**: ensure the holistic development, empowerment and protection of Scheduled Castes, fostering equality, social justice and dignity, in accordance with the Constitution.

SEVEN MISSION AREAS

Area	What it means
1. Monitoring and evaluation	Evaluate planning, execution and outcomes of schemes; ensure benefits reach the intended beneficiaries
2. Enforcement of safeguards	Oversee implementation of constitutional and legal safeguards; ensure compliance by Central and State Governments and Public Sector Undertakings
3. Complaint redressal	Examine and investigate complaints of violations, deprivation of rights or discrimination; take action for timely redressal
4. Policy recommendations	Give informed recommendations to Central and State Governments; strengthen policies and schemes
5. Proactive empowerment	Identify gaps in frameworks and suggest measures; promote education, employment and social upliftment

MY NOTES

Area	What it means
6. Guardianship of justice and rights	Vigilant guardian without fear or favour; keep interventions aligned with the Constitution and the best interests of Scheduled Castes
7. Awareness and outreach	Promote awareness of rights and schemes; encourage participation in governance and development

- **Memory aid (Mission): M**onitoring, **E**nforcement of safeguards, **C**omplaint redressal, **P**olicy recommendations, **P**roactive empowerment, **G**uardianship, **A**wareness: "**M**any **E**ager **C**itizens **P**ush **P**rogress, **G**uarding **A**ll".

ALSO IN THE HANDOUT

- Its principal role is to handle complaints, monitor their redressal, and evaluate preventive and corrective measures adopted by enforcement agencies.

FUNCTIONS

FUNCTIONS OF THE NCSC

Function	What it does
Regulation of its procedure	Regulates its own procedure for effective performance of constitutional duties
Investigation and monitoring	Investigates and monitors safeguards under the Constitution, laws and government orders; evaluates how well authorities apply them
Inquiry into complaints	Inquires into specific complaints on deprivation of rights and safeguards: discrimination, atrocities, denial of entitlements
Participation in development planning	Participates in and advises on socio-economic development planning; assesses progress of Union and State programmes
Recommendation of measures	Recommends measures to the Union and States for implementation of safeguards and for protection, welfare and advancement
Additional functions	Other functions assigned by the President
Powers of a civil court	Can summon witnesses, require documents, receive evidence, requisition public records
Consultation	Union and State Governments must consult it on major policy matters affecting Scheduled Castes

MY NOTES

Function	What it does
Extension of mandate	References to SCs and STs also include other backward classes and the Anglo-Indian community as specified by the President on recommendations under Art. 340

- **Collective significance**: a constitutional watchdog with investigative, advisory and quasi-judicial roles, upholding equality, social justice and inclusive development under Art. 338.
- **Memory aid (Functions): R**egulate procedure, **I**nvestigate safeguards, **I**nquire into complaints, **P**lanning role, **R**ecommend measures, **A**dditional functions, **P**owers of civil court, **C**onsultation, **E**xtension: "**R**eal **I**ssues **I**nspected, **P**roblems **R**eported, **A**ction **P**ushed, **C**ases **E**xamined".

HANDOUT ALERT

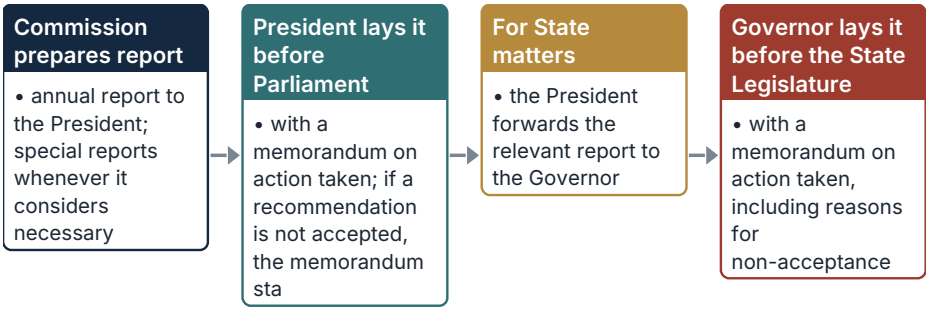
Handout alert: The **Extension of Mandate** line speaks of "SCs and STs" and extends to other backward classes. This reads like text from the older combined commission. The Powers section says that until the **102nd Amendment Act, 2018** the NCSC performed similar functions for **OBCs**, and the role then moved to the **NCBC under Art. 338B**. For current position use the 102nd Amendment statement.

REPORTS

REPORTING CHAIN

- **Commission prepares report**:
  - Annual report to the President
  - Special reports whenever it considers necessary
- **President lays it before Parliament**:
  - With a memorandum on action taken
  - If a recommendation is not accepted, the memorandum states the reasons!good
- **For State matters**: the President forwards the relevant report to the Governor
- **Governor lays it before the State Legislature**: with a memorandum on action taken, including reasons for non-acceptance

REPORTING CHAIN



MY NOTES

ALSO IN THE HANDOUT

- This internal autonomy enables it to structure inquiries, investigations, and administrative processes for greater efficiency and transparency.
- This provision allows flexibility for addressing emerging issues and needs.
- This ensures that the concerns and perspectives of the community are integrated into policy formulation.
- This provides constitutional flexibility to extend the scope of the Commission when required.

WINGS OF THE NCSC

- The NCSC works through **three specialised wings**. Each handles a category of complaints, monitors safeguards and checks compliance.

THREE WINGS

- **1. Atrocities and Protection of Civil Rights Wing:**
  - Atrocity cases and violations of legal safeguards
  - Enforcement of the Protection of Civil Rights Act, the Bonded Labour System (Abolition) Act and the Minimum Wages Act
- **2. Service Safeguards and Reservation Policy Wing:**
  - Protection of SC employees in Central and State Governments and PSUs
  - Adherence to reservation policy and fair service practices
- **3. Development and Welfare Wing:**
  - Socio-economic empowerment
  - Review of Central and State welfare programmes for equitable access and execution
- **Memory aid (Wings):** **A**trocities and civil rights, **S**ervice safeguards and reservation, **D**evelopment and welfare: "**A**ll **S**chemes **D**elivered".

WING 1: ATROCITIES AND PROTECTION OF CIVIL RIGHTS

COMPLAINTS HANDLED

Complaint type	Examples
Heinous crimes	Rape, gang-rape, murder, kidnapping under the SC and ST (Prevention of Atrocities) Act
Failure in FIR registration	Non-registration or delay by police in atrocity complaints
Caste-based abuse and humiliation	Caste slurs, social boycott, acts to publicly insult SC persons
Physical assault and violence	Beating, grievous hurt, attempts to murder

MY NOTES

Complaint type	Examples
Threats and intimidation	Coercion or threats to life and property
Destruction of property	Arson or deliberate damage to SC persons' property
Bonded or forced labour	Violations under the Bonded Labour System (Abolition) Act
Non-payment of wages	Denial or delay in statutory minimum wages
Fraud or cheating	Exploitation or deceit targeting SC members
Crimes against children	Offences involving SC minors under the POCSO Act

WING 2: SERVICE SAFEGUARDS AND RESERVATION POLICY

COMPLAINTS HANDLED

Complaint type	Examples
Service harassment	Workplace bias, discrimination, victimisation
Unjust suspension or termination	Wrongful removal or suspension of SC employees
Non-implementation of reservation	Failure to enforce reservation in recruitment, promotion or rosters
Discriminatory disciplinary actions	Partial or biased punitive action
Denial of promotion or appointment	Refusal to promote or appoint qualified SC candidates
Caste certificate issues	Misuse or verification of certificates; inclusion or exclusion of castes from the SC list

WING 3: DEVELOPMENT AND WELFARE

COMPLAINTS HANDLED

Complaint type	Examples
Land-related disputes	Ownership, possession, delays in land or housing site allotment
Education and scholarships	Non-payment, delay or irregularities in scholarships; educational discrimination
Commercial allotments	Denial or cancellation of dealerships such as petrol pumps and gas agencies
Developmental schemes	Lapses in the Special Component Plan (SCP), welfare programmes, skill development
Financial aid and subsidies	Irregularities in loans, subsidies, financial support

MY NOTES

Complaint type	Examples
Housing and amenities	Denial of housing benefits or basic civic amenities in SC colonies
General welfare complaints	Neglect in public services; exclusion from welfare benefits

IMPORTANT ACTS

ACTS AND RULES RELATED TO THE NCSC

No.	Act or Rules
1	The Scheduled Castes and the Scheduled Tribes (Prevention of Atrocities) Act, 1989
2	The Protection of Civil Rights Act, 1955
3	The Prohibition of Employment as Manual Scavengers and their Rehabilitation Act, 2013
4	The Scheduled Castes and the Scheduled Tribes (Prevention of Atrocities) Rules, 1995 (as amended)
5	The Prohibition of Employment as Manual Scavengers and their Rehabilitation Rules, 2013

- **Memory aid (Years):** **P**CR Act 1955, **A**trocities Act 1989 (Rules 1995), **M**anual Scavengers Act 2013 (Rules 2013): "**P**ay **A**ll **M**en".
- **Source layout:** In the handout the fifth item runs straight into the next heading. Item 5 ends at "Rules, 2013".

KEY RECOMMENDATIONS (ANNUAL REPORT 2017-18 AND OTHER DOCUMENTS)

RECOMMENDATION AREAS

Area	Recommendations
The Commission itself	Make its recommendations **binding**; enhance independence in functions and budget; increase staff strength
Service safeguards	Reservation in promotion; implementation in outsourcing work and projects; stronger action on false caste certificates; more consistent implementation of NCSC recommendations
Economic and social development	Better access to credit (e.g., MUDRA loans); more effective use of the Special Component Plan (SCSP); faster scholarships and educational support; eliminate manual scavenging and deaths in sewer and septic-tank cleaning
Atrocities	Better FIR registration; correct application of sections under the POA Act; training for police and officials; special courts and public prosecutors; online monitoring of relief payments; regular vigilance committee meetings

MY NOTES

HANDOUT ALERT

Handout alert: The handout writes the development plan as the **Special Component Plan (SCP)** in the wings section and **SCSP** in the recommendations. Treat them as the same plan name used loosely, and write it as the handout does in each place.

POWERS AND AUTHORITY

- The Commission has autonomy to **regulate its own procedure**.

CONSTITUTIONAL CLAUSES

Clause	Content
Art. 338(8)	While investigating or inquiring into complaints, the NCSC has **powers of a civil court**
Art. 338(9)	Central and State Governments must **consult the Commission** on all major policy matters affecting Scheduled Castes

CIVIL COURT POWERS UNDER ART. 338(8)

- Summoning and enforcing attendance of any person from any part of India and examining on oath.
- Requiring discovery and production of documents.
- Receiving evidence on affidavits.
- Requisitioning public records from any court or office.
- Issuing summons for examination of witnesses and documents.
- Exercising any other powers determined by the President.
- **Memory aid (Civil court powers): S**ummon and examine on oath, **D**ocuments, **A**ffidavits, **R**ecords of any court or office, **S**ummons for witnesses and documents, **O**ther powers set by the President: "**S**ix **D**uties **A**re **R**eally **S**erious **O**nes".

OBCS MOVED TO THE NCBC

TRANSFER OF THE OBC ROLE

- **Until the 102nd Amendment Act, 2018**: the NCSC also performed similar functions for Other Backward Classes
- **102nd Amendment Act, 2018**: role transferred
- **National Commission for Backward Classes**: Article 338B
- **Essence:** The NCSC is a **quasi-judicial, constitutional authority** that ensures legal and constitutional protections for SCs are implemented, reviewed and strengthened through direct oversight and advisory consultation.

MY NOTES

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 48, NATIONAL COMMISSION FOR SCS

- The NCSC is constitutional because Art. 338 creates it directly. The National Commissions for Women (1992), Minorities (1993), Human Rights (1993) and Protection of Child Rights (2007) are statutory, made by Acts of Parliament.
- Tenure: under the President's Rules (2004) the Chairperson, Vice-Chairperson and Members hold office for three years and cannot be appointed for more than two terms. Appointment is by warrant under the President's hand and seal.
- In 1978 the office of Commissioner for SCs and STs continued to exist alongside the new Commission. The 1987 Commission was made a national-level advisory body on broad policy issues and levels of development of SCs and STs.
- The 65th Amendment Act (1990) came into force on 12 March 1992
- The 89th Amendment Act (2003) came into force on 19 February 2004
- Six statutory functions:
  - Investigate and monitor safeguards
  - Inquire into complaints
  - Advise on planning and evaluate progress
  - Present reports to the President
  - Recommend measures
  - Discharge other functions the President specifies
- Anglo-Indian community: the Commission does the same work for them as for SCs, because Clause 10 of Art. 338 says references to Scheduled Castes include the Anglo-Indian community.
- Reports concerning a state go from the President to the Governor, who places them before the State Legislature with the memorandum on action taken.

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Which Article establishes the NCSC?	Article 338.
Whom does the NCSC safeguard?	Scheduled Castes and the Anglo-Indian community.
What did Art. 338 provide in 1950?	A Special Officer (Commissioner for SCs and STs) reporting to the President.

What happened in 1978?	A non-statutory multi-member Commission for SCs and STs set up by Government Resolution.
What happened in 1987?	The 1978 Commission was renamed the National Commission for SCs and STs, still non-constitutional.
What did the 65th Amendment (1990) do?	Replaced the Special Officer with a multi-member National Commission with constitutional status under Art. 338.
What did the 89th Amendment (2003) do?	Split the Commission into NCSC (Art. 338) and NCST (Art. 338A).
When did the NCSC come into existence?	2004.
Composition of the NCSC?	One Chairperson, one Vice-Chairperson, three other Members, appointed by the President.
Where is NCSC headquartered?	New Delhi.
Who determines members' conditions and tenure?	The President.
Seven mission areas?	Monitoring, safeguards, complaints, policy, empowerment, guardianship, awareness.
Which governments must consult the NCSC on major policy?	Both Central and State Governments (Art. 338(9)).
Which clause gives civil court powers?	Article 338(8).
Civil court powers?	Summon and examine on oath; discovery of documents; evidence on affidavits; requisition public records; summons for witnesses; other powers set by the President.
To whom does the NCSC submit an annual report?	The President, who lays it before Parliament with an action-taken memorandum.
Who lays a State-related report before the State Legislature?	The Governor, after the President forwards it.
Three wings of the NCSC?	Atrocities and Protection of Civil Rights; Service Safeguards and Reservation Policy; Development and Welfare.
Acts under the Atrocities wing?	Protection of Civil Rights Act, Bonded Labour System (Abolition) Act, Minimum Wages Act, and the SC and ST (Prevention of Atrocities) Act.

MY NOTES

Which wing handles caste certificate issues?	Service Safeguards and Reservation Policy wing.
Which wing handles scholarships and land disputes?	Development and Welfare wing.
Years of the five Acts and Rules?	1955 (PCR), 1989 (Atrocities), 1995 (Atrocities Rules), 2013 (Manual Scavengers Act and Rules).
Main demand in the 2017-18 annual report about the NCSC itself?	Make its recommendations binding, enhance independence in functions and budget, and increase staff strength.
Who took over the NCSC's OBC functions?	The National Commission for Backward Classes under Art. 338B, after the 102nd Amendment Act, 2018.

Trap 1 · 1990 or 2004?
The 65th Amendment (1990) made a combined SC and ST Commission constitutional. The separate NCSC exists only from 2004, after the 89th Amendment (2003). *Rule: 1990 = combined Commission under Art. 338; 2003 = the split; 2004 = NCSC and NCST start.*

Trap 2 · Number of members
The history says one Chairperson, one Vice-Chairperson and three other Members. The composition section only says 'a number of Members' who serve full-time. *Rule: for the exam, write 5 in all: Chairperson, Vice-Chairperson and 3 Members.*

Trap 3 · SC is Art. 338, ST is Art. 338A
Both Commissions came from the same 89th Amendment, so the article numbers get mixed up. Art. 338B is the later backward-classes body. *Rule: SC = 338, ST = 338A, BC = 338B.*

Trap 4 · Who looked after OBCs
Until the 102nd Amendment Act, 2018, the NCSC also did similar work for OBCs. That role passed to the NCBC under Art. 338B. *Rule: after 2018 the NCSC handles SCs and the Anglo-Indian community, not OBCs.*

QUICK QUIZ

Q1. The National Commission for Scheduled Castes is established under which Article?

1. Article 338
2. Article 338A
3. Article 338B
4. Article 340

Q2. Which Amendment gave constitutional status to the National Commission for SCs and STs?

1. 65th Amendment, 1990
2. 89th Amendment, 2003
3. 102nd Amendment, 2018
4. 101st Amendment, 2016

MY NOTES

Q3. Which Amendment divided the combined Commission into NCSC and NCST?

1. 65th Amendment
2. 89th Amendment
3. 101st Amendment
4. 102nd Amendment

Q4. In which year did the NCSC come into existence?

1. 1990
2. 2003
3. 2004
4. 2018

Q5. The non-statutory Commission for SCs and STs was set up in

1. 1950
2. 1978
3. 1987
4. 1990

Q6. Per the handout's history, the NCSC consists of

1. Chairperson only
2. Chairperson, Vice-Chairperson and three other Members
3. Chairperson and two Members
4. Chairperson and ten Members

Q7. The powers of a civil court are given to the NCSC under

1. Article 338(8)
2. Article 338(9)
3. Article 338A
4. Article 340

Q8. Which wing handles complaints on non-implementation of reservation in promotion?

1. Atrocities and Protection of Civil Rights Wing
2. Service Safeguards and Reservation Policy Wing
3. Development and Welfare Wing
4. None of these

Q9. Complaints on denied petrol pump dealerships reserved for SCs fall under

1. Atrocities wing
2. Service Safeguards wing
3. Development and Welfare wing
4. None of these

Q10. Which of the following is NOT one of the Acts listed as related to the NCSC?

1. Protection of Civil Rights Act, 1955
2. Atrocities Act, 1989
3. Manual Scavengers Act, 2013
4. Right to Information Act, 2005

Q11. Until the 102nd Amendment Act, 2018 the NCSC also performed similar functions for

1. Anglo-Indians
2. OBCs
3. Linguistic minorities
4. Minority communities

Answers: Q1 a, Q2 a, Q3 b, Q4 c, Q5 b, Q6 b, Q7 a, Q8 b, Q9 c, Q10 d, Q11 b

MY NOTES

CHAPTER 36 · HANDOUT CHAPTER: NATIONAL COMMISSION FOR SCHEDULED TRIBES

36 National Commission for Scheduled Tribes

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

EXAM LENS

Prelims hooks

- none quoted in the material as PYQs
- likely hooks are Art. 338A and the 89th Amendment, Part XVI, ranks and term, the Fifth versus Sixth Schedule states in Art. 244, Art. 164(1) States, Art. 330 versus 332 versus 243D, the Forest Conservation Act 1980 and PESA 1996.
- Handout stresses: The handout carries no PYQ section for this chapter (Whole chapter)
- Handout stresses: Art. 338A, inserted by the 89th Constitutional Amendment Act, 2003, in Part XVI (Opening and Evolution sections)
- Handout stresses: Chairperson = Cabinet Minister rank, Vice-Chairperson = Minister of State rank, Members = Secretary to GoI rank, term three years (Composition)
- Handout stresses: Powers of a civil court under Art. 338A(8), but no injunctions (SC 1996, Indian Overseas Bank case; DoPT circular 1998) (Powers section)
- Handout stresses: Safeguard list by Article (15(4), 46, 350A, 23, 24, 244, 275, 164(1), 330, 332, 243D, 334, 371) (Safeguards section)

Mains hooks

- none quoted in the material as PYQs
- likely themes are the role of NCST in tribal welfare, constitutional safeguards for STs, the Commission's recommendations (land alienation, R&R, FRA, PVTGs) and the limits of its quasi-judicial powers.

MY NOTES

The NCST is a constitutional watchdog for tribal welfare that investigates, advises and reports, with civil-court procedural powers but no power to grant injunctions.

IN SIMPLE WORDS

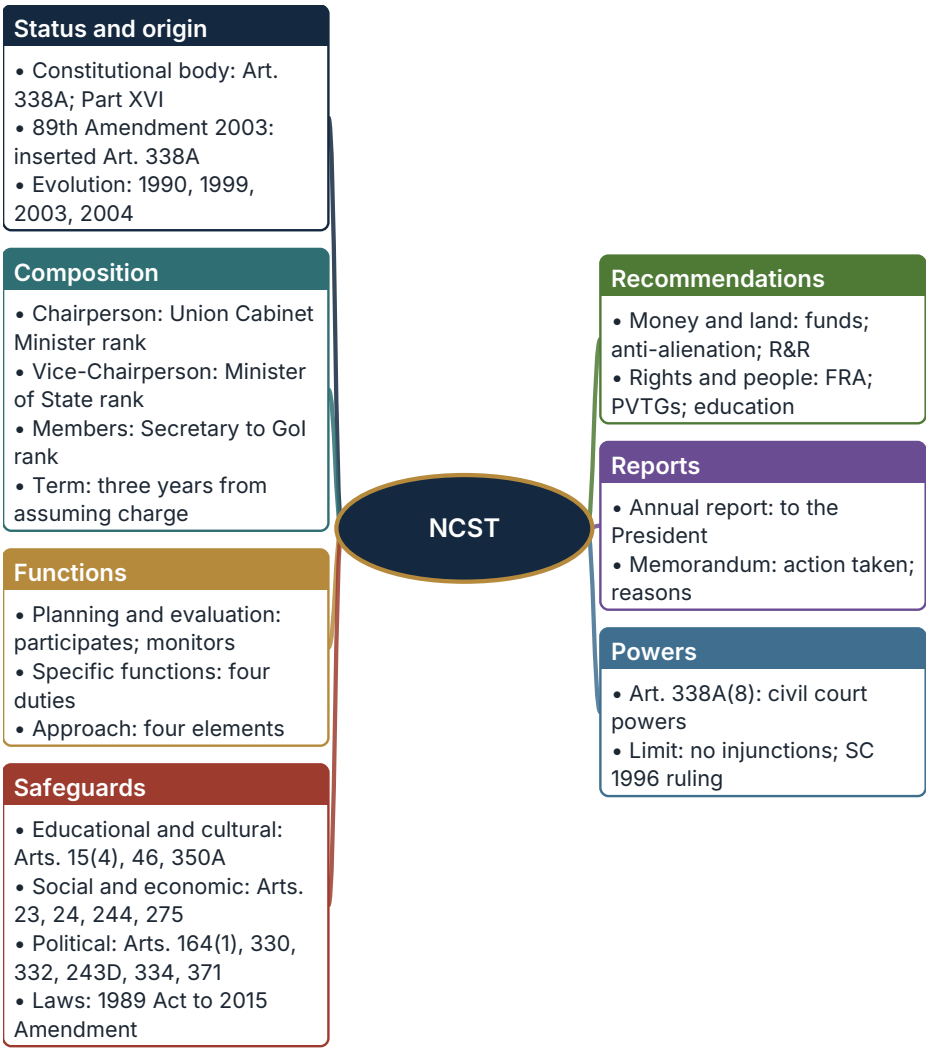
- The **National Commission for Scheduled Tribes (NCST)** is a **constitutional body** under **Article 338-A**, inserted by the **89th Amendment Act, 2003** into **Part XVI** (Special Provisions Relating to Certain Classes).
- Its history: combined SC-ST Commission (**1990**), Ministry of Tribal Affairs (**1999**), 89th Amendment (**2003**), separate NCST formed (**2004**).
- **Chairperson** has the rank of a **Union Cabinet Minister**, the **Vice-Chairperson** of a **Minister of State**, and **Members** of a **Secretary to the Government of India**. Term: **three years**.
- It takes part in planning for ST development, evaluates and monitors safeguards, inquires into complaints, recommends corrective steps and sends an **annual report** to the President.
- Under **Art. 338A(8)** it has civil-court powers for investigation and inquiry, but it is **not a court**: the Supreme Court (**1996**) held it **cannot grant injunctions**.
- The handout also lists ST safeguards (Arts. 15(4), 46, 350A, 23, 24, 244, 275, 330, 332, 334, 371), protective laws and the Commission's main recommendations (funds, land, R&R, Forest Rights Act, certificates).

Key term	In plain words
Article 338-A	Constitutional basis of the NCST; inserted by the 89th Amendment Act, 2003
Part XVI	Special Provisions Relating to Certain Classes, the part holding Art. 338A
Holistic approach	NCST looks at economic, social, cultural and environmental factors of tribal development
Fifth and Sixth Schedule	Art. 244: Fifth Schedule governs Scheduled Areas and STs in most States; Sixth Schedule covers Assam, Meghalaya, Mizoram and Tripura
Art. 275	Grants-in-aid to States with ST and Scheduled Area needs under the Fifth and Sixth Schedules
Injunction	A court order to stop or do something; the NCST cannot grant it (Supreme Court, 1996)
PVTGs	Particularly Vulnerable Tribal Groups; the Commission asks for tailored livelihood, health and habitat measures

MY NOTES

Key term	In plain words
Action-taken memorandum	Government note laid with the report, explaining action and any reason for non-acceptance

MEMORY MAP: NATIONAL COMMISSION FOR SCHEDULED TRIBES



MNEMONIC · ROAD TO A SEPARATE ST COMMISSION

Chiefs Meet At Forests

- **C** Combined Commission for SCs and STs under Art. 338 (1990)
- **M** Ministry of Tribal Affairs created (1999)
- **A** Amendment, the 89th, splits the Commission (2003)
- **F** Formation of the separate NCST (2004)

Tribal chiefs meet at the forests: combined Commission, Ministry, Amendment, Formation, in year order 1990, 1999, 2003, 2004. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · RANK OF NCST OFFICE-HOLDERS

Chief Meets Secretary

- **C** Cabinet Minister rank: the Chairperson
- **M** Minister of State rank: the Vice-Chairperson
- **S** Secretary to the Government of India rank: the Members

The chief meets the secretary: ranks run from Cabinet Minister down through Minister of State to Secretary. (Memory aid, not from the handout.)

MNEMONIC · TYPES OF ST SAFEGUARDS IN THE HANDOUT

C A P E S

- **C** Cultural and educational safeguards
- **A** Acts: safeguards under various laws
- **P** Political safeguards
- **E** Economic safeguards
- **S** Social safeguards

Safeguards are CAPES thrown over the Scheduled Tribes to shield them: five heads in the handout. The order is rearranged for memory; the handout does not fix an order. (Memory aid, not from the handout.)

MNEMONIC · ROLE AND FUNCTIONS OF THE NCST

A P P R I S E

- **A** Advise and investigate matters of ST welfare
- **P** Progress monitoring of ST development, national and state
- **P** Presenting annual reports to the President
- **R** Recommend corrective measures against violations
- **I** Inquire into specific complaints on ST rights and safeguards
- **S** Socio-economic planning: participate in the planning process
- **E** Evaluate the effectiveness of safeguards

The NCST must APPRISE the government of tribal needs. The order is rearranged for memory; the handout does not fix an order. (Memory aid, not from the handout.)

MNEMONIC · SUPREME COURT RULING ON NCST POWERS

Dismissed, Supported, Distributed

- **D** Delhi High Court set aside the order (1993)
- **S** Supreme Court upheld that decision (1996)
- **D** DoPT circulated the ruling to Ministries (1998)

In the Indian Overseas Bank case the order was dismissed in 1993, supported in 1996 and distributed to all Ministries in 1998. (Memory aid, not from the handout.)

MY NOTES

WHAT THE NCST IS AND ITS LEGAL FOUNDATION

- The **National Commission for Scheduled Tribes (NCST)** is a **constitutional institution** set up to safeguard the interests of Scheduled Tribes. It is not an administrative body created by executive order: it is established directly by the Constitution, which gives it a permanent and independent place in India's institutions for social justice.
- Legal foundation: **Article 338A** of the Constitution, which provides for a dedicated national body for the safeguards, welfare and development of STs.
- Location: **Part XVI**, titled "Special Provisions Relating to Certain Classes".
- Inserted by: the **89th Constitutional Amendment Act of 2003**.
- Effect: because it is anchored in the Constitution, Union and State governments must engage with it as part of the formal policy and oversight system for tribal welfare.
- **Key point:** Constitutional status means a **permanent, independent** body, not one created by executive order.
- **Memory aid (Nature of the body): C**onstitutional, **P**ermanent, **I**ndependent: "**C**ommission **P**rotects **I**ndigenous peoples". Pair it with the numbers: Art. 338A, Part XVI, 89th Amendment, 2003.

COMPOSITION

WHO SITS ON THE NCST

Post	Rank
Chairperson	Union Cabinet Minister
Vice-Chairperson	Minister of State
Members	Secretary to the Government of India

- **Term:** The terms of office for these positions are **three years** from the date of assuming charge.
- **Memory aid (Ranks in order): C**abinet Minister, **M**inister of State, **S**ecretary: "**C**hair, **M**inister of State, **S**ecretary" goes down the ladder.
- **Shortcut:**
  - **Rank shortcut. Chair = Cabinet, Vice = MoS, Members = Secretary**
  - **All serve 3 years.**

> **HANDOUT ALERT**
> Handout alert: The handout gives ranks and the three-year term but **does not state the number of members** of the Commission. Do not add a number that is not in these notes.

MY NOTES

ROLE AND MANDATE

- The handout's list of roles begins at item "8" (items 1-7 are not in the text), so only the two roles below are given.

PARTICIPATION IN THE PLANNING PROCESS

- The NCST actively participates in the planning process for the **socio-economic development of STs**.
- It collaborates with **both Union and State governments** so that policies and programmes fit the needs of tribal communities.

EVALUATION AND MONITORING

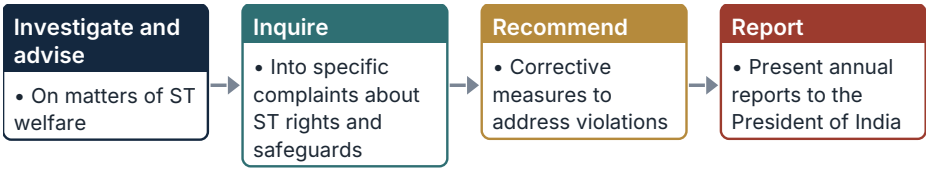
- It **evaluates the effectiveness of safeguards** given to STs by the Constitution, existing laws and government directives.
- It **monitors the progress** of ST development at the national and state levels.

SPECIFIC FUNCTIONS

FOUR SPECIFIC FUNCTIONS

- **Investigate and advise**: On matters of ST welfare
- **Inquire**: Into specific complaints about ST rights and safeguards
- **Recommend**: Corrective measures to address violations
- **Report**: Present annual reports to the President of India

FOUR SPECIFIC FUNCTIONS



- **Memory aid (Four functions):** **I**nvestigate and advise, **I**nquire into complaints, **R**ecommend corrective measures, **R**eport to the President: "**I I R**eally **R**eport".

HANDOUT ALERT

Handout alert: The numbering in the handout's mandate list (it starts at 8, then shows 4, 1, 1 in later lists) is a PDF numbering artefact and the start of the mandate list appears to be missing from the source text. The notes here keep only what the text actually says.

MY NOTES

APPROACH AND METHODOLOGY

FOUR ELEMENTS OF THE APPROACH

Element	What it means
Holistic approach	Not only economic aspects but also social, cultural and environmental factors affecting STs
Community engagement	Engages tribal communities directly; field visits, consultations and interactions with ST representatives inform its recommendations
Research and data analysis	Research on tribal issues; analyses data on ST population, education, health, land rights and livelihoods
Advocacy and policy influence	Advocates for policy changes and legal reforms; influences government decisions to enhance ST welfare

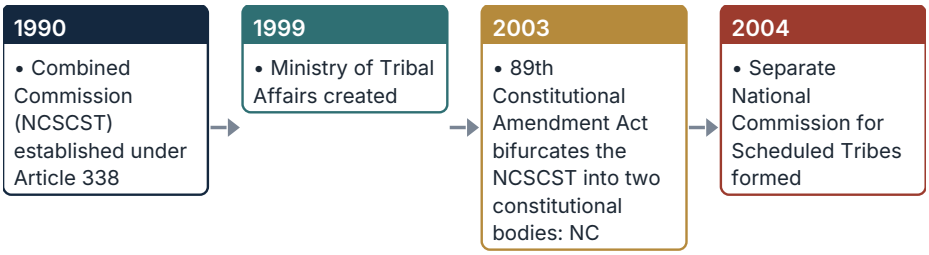
- **Memory aid (Approach): H**olistic, **C**ommunity engagement, **R**esearch, **A**dvocacy: "**H**ear **C**ommunities, **R**esearch, **A**dvocate".
- **Shortcut: Data topics.** The data list is **population, education, health, land rights, livelihoods** (PEHLL in the order the handout gives them).

EVOLUTION OF A SEPARATE COMMISSION

FROM COMBINED COMMISSION TO NCST

- **1990**: Combined Commission (NCSCST) established under **Article 338**
- **1999**: Ministry of Tribal Affairs created
- **2003**:
  - **89th Constitutional Amendment Act** bifurcates the NCSCST into two constitutional bodies: **NCSC** and **NCST**
  - Inserts **Art. 338A** defining the structure, powers and functions of NCST
- **2004**: Separate National Commission for Scheduled Tribes formed

FROM COMBINED COMMISSION TO NCST



- **Reading the flow:**
  - The amendment is **2003**
  - The actual formation of the separate NCST is **2004**
- **Shortcut: Date stair. 90 combined, 99 Ministry, 03 amendment, 04 NCST**: the four years climb in order.

MY NOTES

CONSTITUTIONAL SAFEGUARDS FOR STS

SAFEGUARDS BY CATEGORY

Category	Art-icle	Safeguard
Educa-tional and cultural	**Art. 15(4)**	State may make special provisions for socially and educationally backward classes of citizens and for the SCs and STs
Educa-tional and cultural	**Art. 46**	State to promote with special care the educational and economic interests of weaker sections, SCs and STs, and protect them from social injustice and all forms of exploitation
Educa-tional and cultural	**Art. 350A**	Instruction in mother tongue
Social	**Art. 23**	Prohibition of traffic in human beings and beggar and other similar forms of forced labour
Social	**Art. 24**	Forbidding child labour
Economic	**Art. 244**	Clause (1): Fifth Schedule applies to administration and control of Scheduled Areas and STs in any State other than Assam, Meghalaya, Mizoram and Tripura, which are covered by the Sixth Schedule under Clause (2)
Economic	**Art. 275**	Grants-in-aid to specified States (STs and Scheduled Areas) covered under the Fifth and Sixth Schedules
Political	**Art. 164(1)**	Tribal Affairs Ministers in Bihar, MP and Orissa
Political	**Art. 330**	Reservation of seats for STs in Lok Sabha
Political	**Art. 243D**	Reservation of seats in Panchayats
Political	**Art. 332**	Reservation of seats for STs in State Legislatures
Political	**Art. 334**	10-year period for reservation (amended several times to extend the period)
Political	**Art. 371**	Special provisions in respect of NE States and Sikkim

FIFTH VERSUS SIXTH SCHEDULE (ART. 244)

- **Fifth Schedule (Clause 1):** Scheduled Areas and STs in any State other than the four below
- **Sixth Schedule (Clause 2):**
  - Assam
  - Meghalaya
  - Mizoram
  - Tripura

MY NOTES

- **Memory aid (Four categories):** **E**ducational and cultural, **S**ocial, **E**conomic, **P**olitical: "**E**very **S**tate **E**nsures **P**rotection".
- **Memory aid (Political block):** **M**inisters 164(1), **L**ok Sabha 330, **L**egislatures 332, **P**anchayats 243D, **T**ime limit 334, **N**E States 371: "**M**ost **L**eaders **L**ike **P**ower **T**oo **N**early".
- **Shortcut:**
  - **Article shortcut. Social = 23 and 24 (forced labour, child labour). Seats = 330 (LS), 332 (State), 243D (Panchayat), 334 (time limit).** 15(4) and 46 are education and economic advancement
  - 350A is mother tongue
- **Key point:**
  - Art. 244 is the pivot of the Fifth and Sixth Schedules
  - **Art. 275** pays grants to the States under both

SAFEGUARDS UNDER VARIOUS LAWS

LAWS LISTED IN THE HANDOUT

No.	Law
1	The Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, **1989** and the Rules **1995** framed under it
2	Bonded Labour System (Abolition) Act, **1976** (in respect of STs)
3	The Child Labour (Prohibition and Regulation) Act, **1986**
4	State Acts and Regulations on alienation and restoration of land belonging to STs
5	Forest Conservation Act, **1980**
6	Panchayati Raj (Extension to Scheduled Areas) Act, **1996**
7	Minimum Wages Act, **1948**
8	The SC and ST (Prevention of Atrocities) Amendment Act, **2015** (published on 6th Jan 2016)

- **Shortcut: Law shortcut. Atrocities 1989 (Rules 1995; Amendment 2015, published 6 Jan 2016). Bonded Labour 1976. Child Labour 1986. Forest Conservation 1980. PESA 1996. Minimum Wages 1948.**

MAJOR RECOMMENDATIONS OF THE COMMISSION

- The handout lists ten recommendation themes.

TEN RECOMMENDATION THEMES

Theme	What the Commission recommends
Funds	Ministries to earmark and spend ST-proportionate budget as per ST population share; a mechanism to monitor unspent balances and ensure timely transfer to implementing agencies

MY NOTES

Theme	What the Commission recommends
Anti-alienation laws and land security	Review state anti-alienation statutes; harmonise with PESA or PESA-like protections; enable Gram Sabhas to prevent illegal land transfers; fast-track restitution
Rehabilitation and resettlement	Central legislation or a clear, uniform R&R policy for project-affected tribals; time-bound rehabilitation before project execution (in the context of Sardar Sarovar, Kalinga Nagar, Polavaram)
Forest Rights Act (FRA)	Recognise individual and community forest rights; speed up pending claims; protect forest-dependent livelihoods
ST certificates	Pre-appointment verification (police or administrative checks) to curb fraudulent community certificates that deny opportunities to genuine ST candidates
Education	Expand scholarships, residential schools, mid-day meals and girl-child education drives; rigorous monitoring to reduce dropout rates
Atrocity reporting and legal redress	Streamline reporting; special courts or fast-track hearings where applicable; strengthen conviction mechanisms and victim support
Data, monitoring and accountability	Disaggregated ST-specific data across schemes; targets; periodic action-taken reports from Ministries and States (NCST consistently requests action-taken memoranda)
PVTGs and Primitive Groups	Tailored livelihood, health and habitat protection measures; dedicated funding and monitoring
Institutional reforms and capacity building	Convergence between Centrally Sponsored Schemes, State programmes and NCST recommendations; build capacities of Gram Sabhas and Panchayats for tribal governance

- **Memory aid (Ten themes):** **F**unds, **A**nti-alienation, **R**&R, **F**RA, **C**ertificates, **E**ducation, **A**trocities, **D**ata, **P**VTGs, **I**nstitutions: "**F**armers **A**lways **R**aise **F**ine **C**rops, **E**ven **A**fter **D**ry **P**eriods, **I**rrigating".
- **Shortcut: Project names.** R&R is linked to **Sardar Sarovar, Kalinga Nagar, Polavaram**.

REPORT OF THE COMMISSION

WHERE THE REPORT GOES

- **Commission**:
  - Submits an **annual report** to the President
  - May also present **special reports** whenever it considers necessary
- **President**: Causes all reports to be **laid before Parliament** with a **memorandum of action taken** on its recommendations
- **If not accepted**: The memorandum must state the **reasons for non-acceptance**

MY NOTES

STATE MATTERS

- **President**: Forwards the report on a State matter to the **Governor** of that State
- **Governor**: Places it before the **State Legislature** with a memorandum on action taken, including reasons for non-acceptance
- **Memory aid (Report chain):**
  - **C**ommission, **P**resident, **P**arliament: "**C**ommission **P**asses to **P**resident, who places before **P**arliament"
  - For States the middle link is the Governor

POWERS OF THE NCST AND THE SUPREME COURT'S LIMIT

- The powers derive from **Clause (8) of Article 338A**. While investigating a matter under **Clause (5)(a)** or inquiring into a complaint under **Clause (5)(b)**, the NCST has **all the powers of a civil court trying a suit**. These are procedural powers meant to make investigations and inquiries thorough.

POWERS OF A CIVIL COURT

Power	Meaning
Summoning and enforcing attendance	Summon any person from any part of India and examine on oath
Discovery and production of documents	Demand records or documents needed for an inquiry
Evidence on affidavits	Accept sworn affidavits as evidence
Requisitioning public records	Request any public record or copy from any court or office
Issuing commissions	For examining witnesses and documents
Other matters	Any additional power the President prescribes through rules

- **Nature of the body:** The NCST works as a **quasi-judicial** body in investigations and inquiries. It is **not a court of law**, so it cannot grant **injunctions or interim orders**.

THE SUPREME COURT RULING

HOW THE LIMIT WAS SETTLED

- **Dispute**: The erstwhile NCSCST directed **Indian Overseas Bank** to halt a promotion process pending inquiry
- **1993**: The **Delhi High Court** set the order aside
- **1996**: The **Supreme Court** upheld that decision in *All India Indian Overseas Bank SC & ST Employees' Welfare Association vs. Indian Overseas Bank and Others*

MY NOTES

- **1998**: **DoPT** communicated the judgment's implications to all Ministries and Departments to ensure uniform understanding
- The procedural powers are only for **investigation and inquiry**
- They do not confer the status or powers of a civil court
- No power to grant **injunctions**, temporary or permanent.
- Powers are limited to **summoning, collecting evidence, examining witnesses and requisitioning documents**.
- **Memory aid (Six powers): S**ummon, **D**ocuments, **A**ffidavits, **R**ecords, **I**ssue commissions, **O**ther (by President's rules): "**S**ix **D**ifferent **A**ctions **R**eveal **I**ssues **O**penly".
- **Shortcut: Court shortcut. Civil-court powers to find facts, not to order anything: no injunctions.** Years: **Delhi HC 1993, SC 1996, DoPT 1998.**

HANDOUT ALERT

Handout alert: The handout refers to the powers as **Article 338A(8)** for the NCST but speaks of "Article 338(8)" when describing the Supreme Court case on the old combined NCSCST. For the NCST answer **Art. 338A(8)**; Art. 338 was the old combined commission's provision.

ALSO IN THE HANDOUT

- Specifically, the Court held that: - The Commission does not possess powers to grant injunctions, whether temporary or permanent.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 49, NATIONAL COMMISSION FOR STS

- Tenure under the President's Rules (2004): three years, and not more than two terms. Members are appointed by warrant under the President's hand and seal, and the Commission has a chairperson, a vice-chairperson and three other Members.
- Why a separate body: STs are geographically and culturally different from SCs and their problems differ. The Ministry of Tribal Affairs (1999) was meant to coordinate all ST work, as the Ministry of Social Justice and Empowerment could not do so administratively.
- The 65th Amendment Act (1990) came into force on 12 March 1992
- The 89th Amendment Act (2003) came into force on 19 February 2004
- In 2005 the President specified eight other functions:
  - Ownership of minor forest produce
  - Rights over mineral and water resources
  - Livelihood and development strategies
  - Relief and rehabilitation of those displaced by projects

MY NOTES

    - Preventing land alienation and rehabilitating those already affected
- The 2005 list also includes:
    - Cooperation of tribal communities in protecting forests and social afforestation
    - Full implementation of the PESA Act, 1996
    - And reducing and ending shifting cultivation that disempowers tribals and degrades land
- The ST Commission has the same six statutory functions and six civil-court powers as the SC Commission, and the Centre and States must consult it on major policy matters affecting STs.
- Rules behind the Commission: Conditions of Service and Tenure Rules, 2004, and the Specification of Other Functions Rules, 2005.

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Which Article is the legal foundation of NCST?	Article 338A (Part XVI), inserted by the 89th Amendment Act 2003.
What did the 89th Amendment do?	Bifurcated the combined NCSCST into NCSC and NCST and inserted Art. 338A.
Ranks in the NCST?	Chairperson: Union Cabinet Minister; Vice-Chairperson: Minister of State; Members: Secretary to GoI.
Term of office in NCST?	Three years from the date of assuming charge.
Four specific functions of NCST?	Investigate and advise; inquire into complaints; recommend corrective measures; present annual reports to the President.
Evolution dates of NCST?	1990 combined commission (Art. 338); 1999 Ministry of Tribal Affairs; 2003 amendment; 2004 separate NCST.
Four elements of NCST approach?	Holistic; community engagement; research and data analysis; advocacy and policy influence.
Art. 15(4) for STs?	Special provisions for socially and educationally backward classes, SCs and STs.

Art. 46?	Promote with special care educational and economic interests of weaker sections, SCs, STs; protect from social injustice and exploitation.
Art. 350A?	Instruction in mother tongue.
Arts. 23 and 24?	23: prohibition of traffic in human beings and forced labour; 24: forbidding child labour.
Art. 244 and the Fifth/Sixth Schedules?	Fifth Schedule applies to Scheduled Areas and STs in any State except Assam, Meghalaya, Mizoram, Tripura (Sixth Schedule).
Art. 275?	Grants-in-aid to specified States (STs and Scheduled Areas) under the Fifth and Sixth Schedules.
Art. 164(1)?	Tribal Affairs Ministers in Bihar, MP and Orissa.
Arts. 330, 332, 243D, 334?	Seats for STs in Lok Sabha; in State Legislatures; in Panchayats; 10-year period for reservation (amended several times).
Art. 371?	Special provisions for NE States and Sikkim.
Which laws are listed as safeguards under various laws?	Atrocities Act 1989 (Rules 1995); Bonded Labour 1976; Child Labour 1986; State land acts; Forest Conservation 1980; PESA 1996; Minimum Wages 1948; Atrocities Amendment 2015.
Which projects are linked with the R&R recommendation?	Sardar Sarovar, Kalinga Nagar, Polavaram.
What does the Commission recommend on ST certificates?	Pre-appointment verification (police or administrative checks) to curb fraudulent certificates.
Where does the NCST report go?	Annual and special reports to the President, laid before Parliament with an action-taken memorandum and reasons for non-acceptance; State matters via the Governor to the State Legislature.
Source of NCST powers?	Clause (8) of Article 338A: all powers of a civil court trying a suit during investigation and inquiry.

MY NOTES

List the NCST's civil-court powers.	Summon and examine on oath; discovery and production of documents; evidence on affidavits; requisition public records; issue commissions; other matters the President prescribes.
Which court case limited the commission's powers?	All India Indian Overseas Bank SC & ST Employees' Welfare Association vs. Indian Overseas Bank and Others (SC 1996; Delhi HC 1993 earlier).
What was the DoPT role in 1998?	Communicated the judgment's implications to all Ministries and Departments for uniform understanding.
Can the NCST grant injunctions?	No. It is quasi-judicial, not a court of law; no injunctions or interim orders.

Trap 1 · Ranks of the three offices

The Chairperson is at Union Cabinet Minister rank, the Vice-Chairperson at Minister of State rank, and Members at Secretary to the Government of India rank. *Rule: Cabinet, then MoS, then Secretary: rank falls as the post goes down.*

Trap 2 · Powers of a civil court, but not a court

Art. 338A(8) gives civil-court powers only to investigate and inquire. In the Indian Overseas Bank case (1996) the Supreme Court held the Commission cannot grant temporary or permanent injunctions. *Rule: it can summon, collect evidence, examine and requisition; it cannot stop a promotion or give interim orders.*

Trap 3 · Fifth versus Sixth Schedule

Art. 244(1) applies the Fifth Schedule to Scheduled Areas and STs in all States except Assam, Meghalaya, Mizoram and Tripura, which fall under the Sixth Schedule under Art. 244(2). *Rule: four north-eastern States (Assam, Meghalaya, Mizoram, Tripura) = Sixth; the rest = Fifth.*

Trap 4 · Dates of the split

The combined Commission came in 1990, the Ministry of Tribal Affairs in 1999, the 89th Amendment in 2003, and the separate NCST only in 2004. *Rule: Act year 2003, working body 2004.*

QUICK QUIZ

Q1. The National Commission for Scheduled Tribes derives its legal foundation from which Article?

1. Article 338
2. Article 338A
3. Article 338-B
4. Article 339

MY NOTES

Q2. The 89th Constitutional Amendment Act, 2003 did which of the following?

1. Created the Ministry of Tribal Affairs
2. Bifurcated the combined commission into NCSC and NCST
3. Created the Fifth Schedule
4. Extended reservation in Legislatures

Q3. The Chairperson of the NCST holds the rank of

1. Minister of State
2. Secretary to the Government of India
3. Union Cabinet Minister
4. Attorney General

Q4. The term of office of the NCST Chairperson, Vice-Chairperson and Members is

1. Two years
2. Three years
3. Five years
4. Six years

Q5. Which of the following is NOT a power of the NCST under Article 338A(8)?

1. Summoning any person and examining on oath
2. Receiving evidence on affidavits
3. Granting injunctions
4. Issuing commissions for witnesses

Q6. Which year saw the Ministry of Tribal Affairs created, according to the handout?

1. 1990
2. 1999
3. 2003
4. 2004

Q7. Article 330 provides for

1. Reservation of seats for STs in Lok Sabha
2. Reservation of seats in Panchayats
3. Reservation of seats for STs in State Legislatures
4. Tribal Affairs Ministers

Q8. Article 164(1) provides for Tribal Affairs Ministers in

1. Bihar, MP and Orissa
2. Assam, Meghalaya and Tripura
3. Mizoram and Sikkim
4. Gujarat and Rajasthan

Q9. The Sixth Schedule under Article 244 covers which set of States?

1. Bihar, MP, Orissa, Assam
2. Assam, Meghalaya, Mizoram, Tripura
3. Sikkim, Nagaland, Manipur
4. Gujarat, Rajasthan, Kerala

Q10. The Supreme Court in 1996 held that the commission's procedural powers

1. Make it a civil court
2. Include granting injunctions
3. Are only for investigation and inquiry
4. Include judicial review

Q11. To whom does the NCST submit its annual report?

1. The Prime Minister
2. The President
3. The Supreme Court
4. The Chief Justice

Q12. Which Article of the handout provides grants-in-aid to States covered under the Fifth and Sixth Schedules?

1. Article 275
2. Article 244
3. Article 46
4. Article 334

Answers: Q1 b, Q2 b, Q3 c, Q4 b, Q5 c, Q6 b, Q7 a, Q8 a, Q9 b, Q10 c, Q11 b, Q12 a

MY NOTES

CHAPTER 37 · HANDOUT CHAPTER: NATIONAL COMMISSION FOR BACKWARD CLASSES

37 National Commission for Backward Classes

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

EXAM LENS

Prelims hooks

- none quoted in the material as PYQs
- likely hooks are Art. 338B, the 102nd Amendment, the 1993 Act and 2018 Repeal Act, five members, appointment by warrant, Ministry of Social Justice and Empowerment.
- Handout stresses: The handout carries no PYQ section for this chapter (Whole chapter)
- Handout stresses: 1993 Act repealed by the NCBC (Repeal) Act, 2018; constitutional status by the 102nd Amendment Act, 2018, which inserted Art. 338B (Opening)
- Handout stresses: Composition: Chairperson, Vice-Chairperson and three other Members (five in all) under Art. 338B(2); appointment by warrant under Art. 338B(3) (Composition)
- Handout stresses: Civil-court powers (a) to (f) and the duty of the Centre and every State to consult the Commission on major policy matters (Powers)

Mains hooks

- none quoted in the material as PYQs
- likely themes are why constitutional status matters for the NCBC, its functions, and the accountability loop of reports and action-taken memoranda.

The NCBC is a five-member constitutional commission under Art. 338B that investigates, inquires, advises and reports, with civil-court procedural powers and a consultative role in policy.

IN SIMPLE WORDS

- The **National Commission for Backward Classes (NCBC)** looks after the **socially and educationally backward classes (SEBCs)**. Under the **NCBC Act, 1993** it was only **statutory**

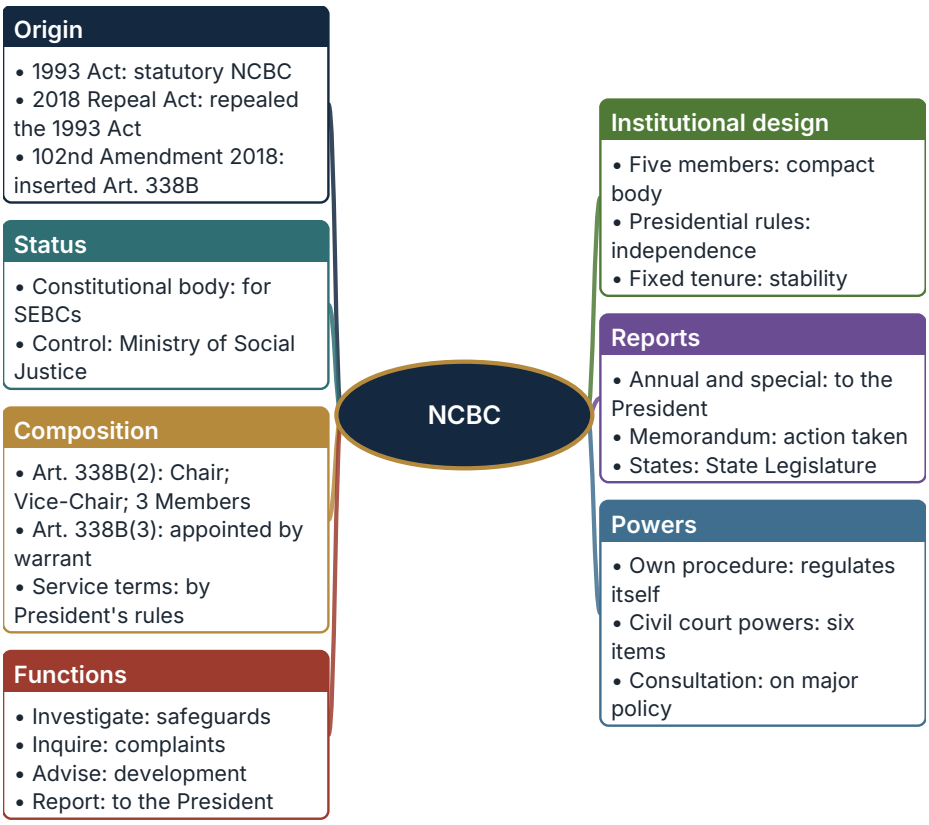
MY NOTES

- It checked inclusion and exclusion in the Central List of OBCs
- The **NCBC (Repeal) Act, 2018** ended the 1993 Act and the **102nd Amendment Act, 2018** made it **constitutional** by inserting **Article 338B**.
- It works under the **Ministry of Social Justice and Empowerment**.
- **Composition (Art. 338B):** a **Chairperson, a Vice-Chairperson and three other Members**, appointed by the **President** by warrant under his hand and seal
- The President fixes their service conditions and tenure by rules
- It investigates and monitors safeguards, inquires into complaints, advises on development, reports to the President and recommends measures. It has **civil-court procedural powers** and must be **consulted** on major policy.
- Its report is laid in **Parliament** with an action-taken memorandum
- For a State matter the report goes to the **State government**, which places it before the State Legislature

Key term	In plain words
SEBCs	Socially and educationally backward classes, the groups the NCBC safeguards
Central List of OBCs	List whose inclusion and exclusion the NCBC (1993 Act) examined and advised on
Statutory body	Created by an ordinary Act of Parliament (the NCBC Act, 1993)
Constitutional body	Created directly by the Constitution; NCBC became one through Art. 338B (102nd Amendment, 2018)
Warrant under hand and seal	Formal way the President appoints the Chairperson, Vice-Chairperson and Members
Action-taken memorandum	Note laid with the report explaining action taken and reasons for any non-acceptance
Issue commissions	Power to have witnesses and documents examined through commissions
Consultation duty	Centre and every State must consult the NCBC on major policy matters affecting SEBCs

MY NOTES

MEMORY MAP: NATIONAL COMMISSION FOR BACKWARD CLASSES



MNEMONIC · PATH OF THE NCBC

Aid Reaches All

- **A** Act of 1993 creates the NCBC as a statutory body
- **R** Repeal Act, 2018 ends the 1993 Act
- **A** Amendment, the 102nd (2018), inserts Art. 338B

Aid reaches all backward classes: Act, Repeal, Amendment, from statutory in 1993 to constitutional in 2018. (Memory aid, not from the handout.)

MNEMONIC · FUNCTIONS OF THE NCBC

A S P I R E

- **A** Additional functions assigned by the President
- **S** Safeguards: investigate and monitor them
- **P** Programmes for development: participate and advise
- **I** Inquire into specific complaints
- **R** Report to the President, annual and special
- **E** Effective implementation: recommend measures

Backward classes ASPIRE to equality, and these six functions help. The order is rearranged for memory; the handout does not fix an order. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · POWERS OF A CIVIL COURT

COURTS

- **C** Compel attendance: summon and enforce attendance, examine on oath
- **O** Other powers the President may specify by rule
- **U** Unearth documents: discovery and production
- **R** Requisition public records from any court or office
- **T** Testimony on affidavits as evidence
- **S** Send out commissions for examining witnesses and documents

The NCBC has civil-court powers, so think COURTS. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · THE THREE SISTER COMMISSIONS

Safeguards Together Bind

- **S** Scheduled Castes: Art. 338
- **T** Tribes (Scheduled): Art. 338A
- **B** Backward Classes: Art. 338B

Safeguards for the three groups are bound together in neighbouring articles: 338, 338A, 338B. (Memory aid, not from the handout.)

ORIGIN AND CONSTITUTIONAL STATUS

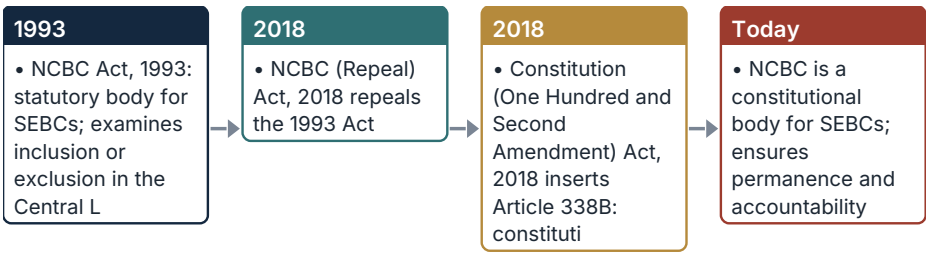
- The **National Commission for Backward Classes (NCBC)** began under the **National Commission for Backward Classes Act, 1993**, a law of the Central Government to address the concerns of **socially and educationally backward classes (SEBCs)**. It was a **statutory** body that examined the inclusion or exclusion of communities in the **Central List of OBCs** and advised the government. It was reconstituted several times to continue its role.

FROM STATUTE TO CONSTITUTION

- **1993**:
  - NCBC Act, 1993: statutory body for SEBCs
  - Examines inclusion or exclusion in the Central List of OBCs
- **2018**: **NCBC (Repeal) Act, 2018** repeals the 1993 Act
- **2018**: **Constitution (One Hundred and Second Amendment) Act, 2018** inserts **Article 338B**: constitutional status
- **Today**:
  - NCBC is a constitutional body for SEBCs
  - Ensures permanence and accountability

MY NOTES

FROM STATUTE TO CONSTITUTION



- The NCBC functions under the administrative control of the **Ministry of Social Justice and Empowerment**.
- It is a key constitutional mechanism for equity, social justice and empowerment of backward classes.
- **Memory aid (From Act to Article):** **A**ct 1993, **R**epeal 2018, **A**rticle 338B (102nd Amendment): "**A** **R**eal **A**dvance".
- **Shortcut: Date shortcut. 1993 Act, then both the Repeal Act and the 102nd Amendment in 2018.** Article = 338B.

COMPOSITION

COMPOSITION AND APPOINTMENT

Point	Provision
Members	Chairperson, Vice-Chairperson and three other Members (Art. 338B(2))
Appointment	By the President by warrant under his hand and seal (Art. 338B(3))
Conditions of service and tenure	Determined by the President through rules (Art. 338B(2))
Term	Under the rules framed for the Commission, a fixed term from the date of assuming office

- **Memory aid (Three clauses):** **C**omposition 338B(2), **A**ppointment 338B(3), **T**erms by rules 338B(2): "**C**hoose **A**nd **T**ime".
- **Shortcut: Count shortcut. 1 Chair + 1 Vice-Chair + 3 Members = 5.**

> **HANDOUT ALERT**
> Handout alert: The handout gives no number of years for the fixed term and does not state the rank or pay of the office-holders in the composition section, although the significance section later says they have rank and pay equivalent to senior government officials. Do not add specifics beyond the handout.

MY NOTES

FUNCTIONS OF THE COMMISSION

SIX FUNCTIONS

Function	What it does
Investigation and monitoring of safeguards	Investigates and monitors all matters on constitutional and other legal safeguards for SEBCs and evaluates their effectiveness
Inquiry into specific complaints	Inquires into complaints of deprivation or violation of rights and safeguards (eg: non-implementation of reservation in government services or educational institutions)
Advisory role in development	Participates in and advises on socio-economic development; evaluates progress of welfare measures under Union and State governments
Reporting to the President	Annual reports and additional reports as it deems necessary, assessing how safeguards and policies are implemented across India
Recommendations	To Union and State governments on measures for better implementation and for overall protection and welfare of SEBCs
Additional functions	Other functions on protection, welfare, development and advancement as specified by the President

- **Memory aid (Six functions):** **I**nvestigate, **I**nquire, **A**dvise on development, **R**eport, **R**ecommend, **A**dditional functions: "**I I A**m **R**eady, **R**eally, **A**lways".
- **Shortcut: Verb shortcut. Investigate, inquire, advise, report, recommend, plus whatever the President assigns.**

SIGNIFICANCE FOR INSTITUTIONAL DESIGN

FOUR DESIGN POINTS

Feature	Why it matters
Compact collegiate body	Five members in total enable focused deliberation and agility in decision-making
Presidential appointment and rule-making	Constitutional independence; strengthens authority and legitimacy
Fixed tenure	Periodic renewal of leadership; avoids open-ended terms; clarity and institutional stability
Rank and pay equivalent to senior government officials	Underscores the importance of the Commission's role for SEBCs

- **Memory aid (Design points):** **C**ompact, **P**residential rules, **F**ixed tenure, **R**ank: "**C**ommissions **P**refer **F**ixed **R**ules".

MY NOTES

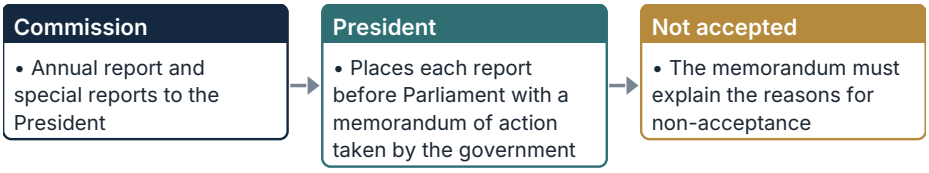
REPORTS OF THE COMMISSION

- The NCBC prepares an **annual report** to the President and may table **special reports** whenever circumstances or inquiries warrant. These consolidate findings from monitoring, investigations and policy reviews, and are the primary written record by which the NCBC tells the executive and legislature about systemic gaps and remedies.

WHERE THE REPORT GOES

- **Commission**: Annual report and special reports to the **President**
- **President**: Places each report before **Parliament** with a **memorandum of action taken** by the government
- **Not accepted**: The memorandum must explain the **reasons for non-acceptance**

WHERE THE REPORT GOES



STATE MATTERS

- **President**: Forwards the report on matters concerning a State to the **state government**
- **State government**: Places it before the **State Legislature** with its own action-taken memorandum and explanations for any non-acceptance
- **Accountability loop:**
  - The NCBC identifies problems and proposes measures
  - The executive records remedial action (or reasons for inaction) in a memorandum
  - Parliament and State Legislatures get material for legislative and public scrutiny

> **HANDOUT ALERT**
>
> Handout alert: For State matters the NCST chapter says the President forwards the report to the **Governor**, while this NCBC text says the **state government**. Use each handout's own wording for its chapter.

ALSO IN THE HANDOUT

- For foundation-level students, understanding this cycle is vital — it shows how the Commission's empirical work is converted into documents that enable oversight, policy correction and public accountability.

MY NOTES

POWERS OF THE NCBC

- The Commission can **frame and regulate its own procedure**: how inquiries are conducted, how evidence is taken and how internal processes run. When investigating or inquiring into a complaint it has the procedural powers of a **civil court**:

CIVIL-COURT POWERS (A) TO (F)

Item	Power
(a)	Summon and enforce attendance of any person from any part of the country and examine on oath
(b)	Require discovery and production of documents
(c)	Receive evidence on affidavit
(d)	Requisition public records or copies from any court or office
(e)	Issue commissions for the examination of witnesses and documents
(f)	Any other procedural power the President may specify by rule

- **Consultation duty:** The **Central Government and every State Government must consult the Commission** on major policy matters affecting socially and educationally backward classes.
- **Memory aid (Six powers): S**ummon, **D**ocuments, **A**ffidavit, **R**ecords, **I**ssue commissions, **O**ther by President's rule: "**S**ix **D**ifferent **A**ctions **R**eveal **I**ssues **O**penly".
- **Shortcut: Power shortcut. Same six civil-court powers as the NCST (a to f), plus own procedure and a consultation duty.**

ALSO IN THE HANDOUT

- The Commission is empowered to frame and regulate its own procedure, allowing it to determine how inquiries are conducted, evidence is taken, and internal processes are organised so as to fulfil its mandate efficiently.
- These powers are specifically intended to equip the body to assemble facts, compel evidence and examine witnesses.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 50, NATIONAL COMMISSION FOR BCS

- Origin: in the Mandal (Indra Sawhney, 1992) judgement the Supreme Court told the Centre to set up a permanent statutory body to examine complaints of under-inclusion, over-inclusion and non-inclusion in the backward-classes list. The NCBC followed in 1993.
- Tenure: under the NCBC Conditions of Service and Tenure Rules, 2018, members hold office for three years and are not eligible for more than two terms.

MY NOTES

- The 102nd Amendment (2018) also inserted Art. 342-A, enabling the President to specify the socially and educationally backward classes. Functions were enlarged to match the NCSC and NCST.
- State reports: the President sends a report concerning a State to the State government (clause 7 of Art. 338B), not to the Governor.
- The 105th Amendment Act (2021) exempted State governments from consulting the Commission when preparing and maintaining their own State list of socially and educationally backward classes.
- Six civil-court powers match those of the SC and ST Commissions: summoning, documents, affidavits, public records, summons for witnesses and documents, and any other matter the President decides.

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

When was the first NCBC created and how?	Under the National Commission for Backward Classes Act, 1993 (statutory).
What repealed the 1993 Act?	The National Commission for Backward Classes (Repeal) Act, 2018.
Which amendment gave the NCBC constitutional status?	The Constitution (102nd Amendment) Act, 2018, inserting Art. 338B.
Which Ministry controls the NCBC administratively?	Ministry of Social Justice and Empowerment.
Composition under Art. 338B(2)?	Chairperson, Vice-Chairperson and three other Members (five).
Who appoints and how?	The President, by warrant under his hand and seal (Art. 338B(3)).
Who decides service conditions and tenure?	The President, through rules (Art. 338B(2)).
Six functions of the NCBC?	Investigate and monitor safeguards; inquire into complaints; advise on development; report to the President; recommend; additional functions assigned by the President.
Example of a complaint inquiry?	Non-implementation of reservation in government services or educational institutions.

Four design points?	Compact five-member body; presidential appointment and rules; fixed tenure; rank and pay equal to senior officials.
Report route for the NCBC?	Annual and special reports to the President, laid before Parliament with action-taken memorandum and reasons for non-acceptance.
How are State matters reported?	President forwards to the state government, which places it before the State Legislature with its own memorandum.
Civil-court powers of the NCBC?	Summon and examine on oath; discovery and production of documents; evidence on affidavit; requisition public records; issue commissions; other powers by President's rule.
Does the NCBC regulate its own procedure?	Yes, it frames and regulates its own procedure.
Who must consult the NCBC?	The Central Government and every State Government, on major policy matters affecting SEBCs.

Trap 1 · Statutory first, constitutional later

The NCBC began in 1993 as a statutory body. It became constitutional only in 2018, when the 1993 Act was repealed and Art. 338B was inserted. *Rule: 1993 Act = statutory; 2018 (102nd Amendment) = constitutional.*

Trap 2 · Three sister Commissions, three articles

The SC, ST and backward-classes Commissions sit in neighbouring articles, and the NCSC once looked after OBCs too, until 2018. *Rule: SC = 338, ST = 338A, BC = 338B; NCBC took over OBC work from the NCSC in 2018.*

Trap 3 · Where State reports go

The handout says the President forwards a State-related report to the State government, not the Governor as for SC and ST Commissions, and it is placed before the State Legislature. *Rule: NCSC and NCST reports go via the Governor; NCBC reports go to the State government (Art. 338B, clause 7).*

QUICK QUIZ

Q1. The NCBC was given constitutional status by

1. The 89th Amendment
2. The 102nd Amendment 2018
3. The 42nd Amendment
4. An executive order

Q2. Which Article gives constitutional status to the NCBC?

1. 338
2. 338A
3. 338B
4. 340

MY NOTES

Q3. The 1993 NCBC Act was

1. Amended in 2018
2. Repealed by the NCBC (Repeal) Act 2018
3. Declared void by the Supreme Court
4. Made a Schedule

Q4. The NCBC consists of

1. Chair and four Members
2. Chair, Vice-Chair and three other Members
3. Chair and Vice-Chair only
4. Chair, two Vice-Chairs and two Members

Q5. Members of the NCBC are appointed by

1. The Prime Minister
2. The Ministry of Social Justice
3. The President by warrant under hand and seal
4. Parliament

Q6. Under which Ministry does the NCBC function administratively?

1. Ministry of Home Affairs
2. Ministry of Social Justice and Empowerment
3. Ministry of Tribal Affairs
4. Ministry of Law

Q7. Which of the following is a power of the NCBC?

1. Granting injunctions
2. Receiving evidence on affidavit
3. Imposing penalties
4. Amending the Central List

Q8. The Central and State Governments must consult the NCBC on

1. Every appointment
2. Major policy matters affecting SEBCs
3. Budget allocations only
4. Court judgements

Q9. Where a recommendation of the NCBC is not accepted, the memorandum must

1. Be kept confidential
2. Be omitted
3. State the reasons for non-acceptance
4. Be sent to the Supreme Court

Q10. The NCBC Act 1993 body examined

1. Inclusion or exclusion of communities in the Central List of OBCs
2. Only the Sixth Schedule
3. Delimitation
4. Finance Commission matters

Answers: Q1 b, Q2 c, Q3 b, Q4 b, Q5 c, Q6 b, Q7 b, Q8 b, Q9 c, Q10 a

MY NOTES

CHAPTER 38 · HANDOUT CHAPTER: SPECIAL OFFICER FOR LINGUISTIC MINORITIES

38 Special Officer for Linguistic Minorities

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

EXAM LENS

Prelims hooks

- none quoted in the material as PYQs
- likely hooks are Art. 350A, 350B and 351, the 7th Amendment 1956, SRC 1956, the CLM 1957, 22 languages in the Eighth Schedule (originally 14), and the 36 million figure (Census 2011).
- Handout stresses: The handout carries no PYQ section for this chapter (Whole chapter)
- Handout stresses: Art. 350B Special Officer, added by the 7th Amendment 1956 after the SRC 1956 (Opening)
- Handout stresses: Art. 350A (mother tongue at primary stage), Art. 350B and Art. 351 (Hindi) are quoted together (Evolution section)
- Handout stresses: Official title Commissioner for Linguistic Minorities (CLM), constituted 1957, shifted Delhi to Allahabad and back to Delhi in 2015; regional offices at Belgaum, Chennai, Kolkata; under Ministry of Minority Affairs (Organisation)

Mains hooks

- none quoted in the material as PYQs
- likely themes are protection of linguistic minorities, the reporting chain from the Special Officer to the President, Parliament and States, and India's linguistic pluralism.

Article 350B gives linguistic minorities a constitutional guardian who investigates safeguards and reports to the President, who lays the reports before Parliament and sends them to the States.

IN SIMPLE WORDS

- The **Special Officer for Linguistic Minorities** is a constitutional authority under **Article 350-B**, added by the **7th**

MY NOTES

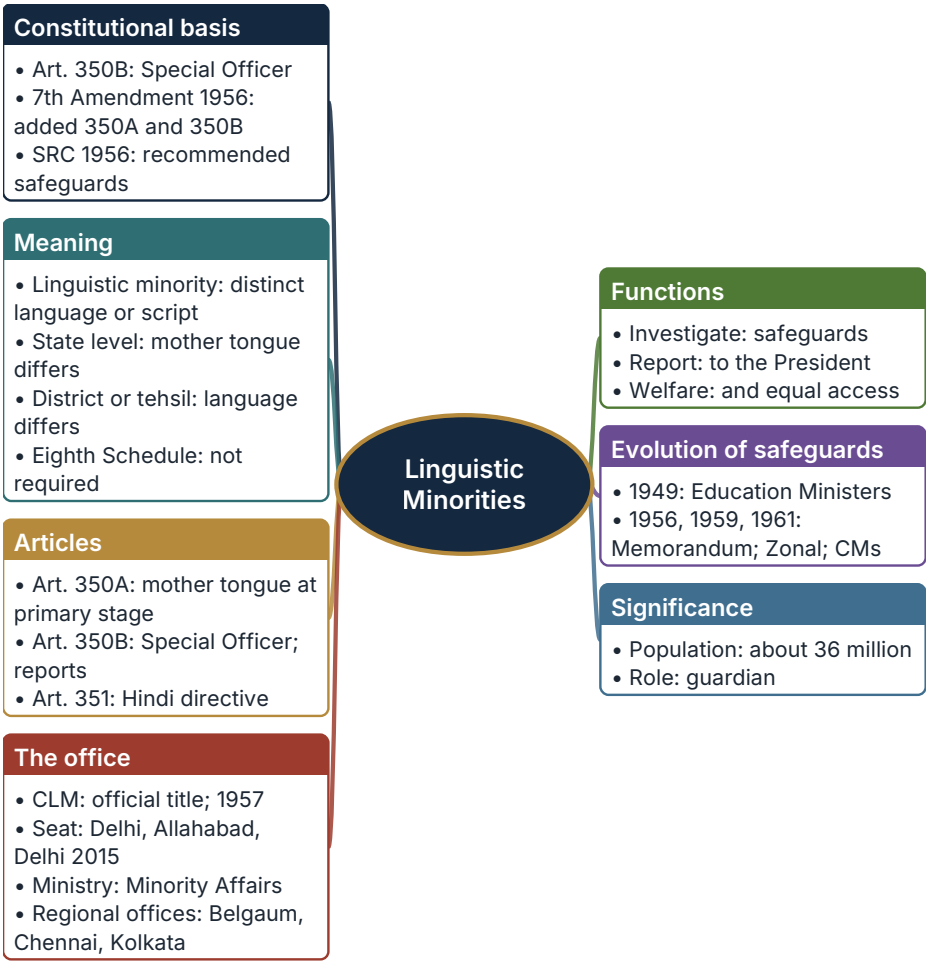
Amendment Act, 1956 on the advice of the **States Reorganisation Commission (SRC)**.

- A **linguistic minority** is a group with its own language or script. The Constitution does not define it
- The minority language need not be in the **Eighth Schedule** (now **22** languages, originally **14**)
- The **President appoints** the Officer. The Officer **investigates** all safeguards for linguistic minorities and **reports to the President**, who lays reports before **both Houses of Parliament** and sends them to the **States** concerned.
- The office was set up in **1957** as the **Commissioner for Linguistic Minorities (CLM)**, in New Delhi, later Allahabad, and back to **New Delhi in 2015**. It works under the **Ministry of Minority Affairs**.
- Regional offices are at **Belgaum, Chennai and Kolkata**, each headed by an **Assistant Commissioner**. About **36 million** people speak minority languages (Census 2011).
- Related: **Art. 350A** (mother-tongue instruction at the primary stage) and **Art. 351** (development of Hindi).

Key term	In plain words
Art. 350-B	Provides for a Special Officer for linguistic minorities, appointed by the President
Art. 350A	State and local authorities should give adequate mother-tongue instruction at the primary stage to linguistic-minority children
Art. 351	Directive for the development of the Hindi language
Linguistic minority	Group whose mother tongue differs from the principal language of the State, or of a district or tehsil
CLM	Commissioner for Linguistic Minorities, the official title of the Special Officer (office set up 1957)
SRC	States Reorganisation Commission that recommended the Special Officer
Eighth Schedule	Lists 22 languages now (14 originally); a minority language need not be in it
Regional offices	Belgaum (Karnataka), Chennai (Tamil Nadu), Kolkata (West Bengal), each under an Assistant Commissioner

MY NOTES

MEMORY MAP: SPECIAL OFFICER FOR LINGUISTIC MINORITIES



MNEMONIC · FORUMS THAT SHAPED THE SAFEGUARDS SCHEME

Every Government Seeks Consensus

- **E** Education Ministers' Conference (1949)
- **G** Government of India Memorandum (1956)
- **S** Southern Zonal Council (1959)
- **C** Chief Ministers' Conference (1961)

Governments seek consensus on minority-language safeguards; the four forums run in year order 1949, 1956, 1959, 1961. (Memory aid, not from the handout.)

MNEMONIC · REGIONAL OFFICES

Big Cities Keep

- **B** Belgaum (Karnataka)
- **C** Chennai (Tamil Nadu)
- **K** Kolkata (West Bengal)

Big cities keep regional offices: Belgaum, Chennai, Kolkata, each headed by an Assistant Commissioner. The order of this list is free, so the sentence is only a memory aid. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · FUNCTIONS OF THE SPECIAL OFFICER

R I P E

- **R** Reporting to the President
- **I** Investigation of issues on rights and safeguards
- **P** Promotion of welfare of linguistic and cultural heritage
- **E** Ensuring equal access to education, jobs and services

The Special Officer makes minority language rights RIPE for enjoyment. The order is rearranged for memory; the handout does not fix an order. (Memory aid, not from the handout.)

ARTICLE 350B AND THE MEANING OF LINGUISTIC MINORITY

- The **Special Officer for Linguistic Minorities** is a constitutional authority under **Article 350B**. The provision was inserted by the **Seventh Amendment Act of 1956** after the recommendations of the **States Reorganisation Commission (SRC), 1956**, which stressed the need to protect linguistic minorities when states were reorganised on linguistic lines. Art. 350B requires the **President to appoint** a Special Officer to investigate all matters relating to the safeguards for linguistic minorities and to **report to the President** periodically.

WHAT COUNTS AS A LINGUISTIC MINORITY

- **Who they are:** groups in any part of India with a distinct language or script of their own
- **State level:** groups whose mother tongue differs from the principal language of the state
- **District or tehsil level:** groups whose language differs from that of the district or tehsil
- **Eighth Schedule:** the minority language need not be one of the 22 listed languages
- **Key point:**
  - The Constitution does **not define** "linguistic minority"
  - The meaning is understood from context as above
- **Memory aid (Origin chain):** **S**RC 1956, **S**eventh Amendment 1956, **A**rticle 350-**B**: "**S**tates **S**tirred, **A**mended, **B**acked minorities".
- **Shortcut: Origin shortcut. SRC 1956 recommends, 7th Amendment 1956 adds 350A and 350B.** Both are 1956.

MY NOTES

CONSTITUTIONAL EVOLUTION: ARTICLES 350A, 350B AND 351

THREE ARTICLES IN THE HANDOUT

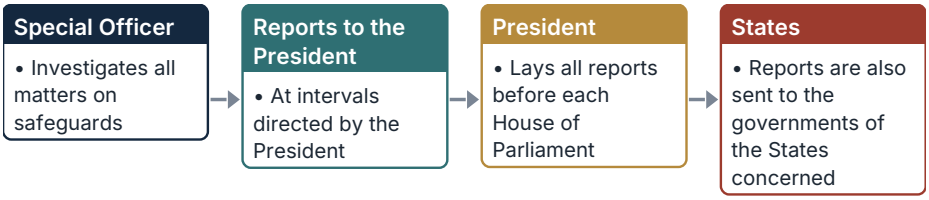
Art-icle	Subject	Provision
Art. 350A	Facilities for instruction in mother tongue at primary stage	Endeavour of every State and every local authority to provide adequate facilities for instruction in the mother tongue at the primary stage to children of linguistic minority groups; the President may issue directions to any State as he considers necessary
Art. 350B	Special Officer for linguistic minorities	Special Officer appointed by the President; duty to investigate all matters on safeguards for linguistic minorities and report to the President at such intervals as the President directs; the President causes all reports to be laid before each House of Parliament and sent to the governments of the States concerned
Art. 351	Directive for development of the Hindi language	Duty of the Union to promote the spread of Hindi and develop it as a medium of expression for all elements of the composite culture of India, assimilating without interfering with its genius the forms, style and expressions used in Hindustani and in the other languages in the Eighth Schedule, and drawing for vocabulary on other languages where necessary or desirable

- **Eighth Schedule:** At present the Eighth Schedule consists of **22 languages** (originally **14**).

REPORTING CHAIN UNDER ART. 350B

- **Special Officer**: Investigates all matters on safeguards
- **Reports to the President**: At intervals directed by the President
- **President**: Lays all reports before **each House of Parliament**
- **States**: Reports are also **sent to the governments of the States concerned**

REPORTING CHAIN UNDER ART. 350B



- **Memory aid (Article trio):** **M**other tongue 350A, **S**pecial Officer 350B, **H**indi 351: "**M**y **S**tate **H**ears".
- **Shortcut: Article shortcut. A = mother tongue, B = Special Officer (boss), 351 = Hindi.** 350A and 350B were added together in 1956.

MY NOTES

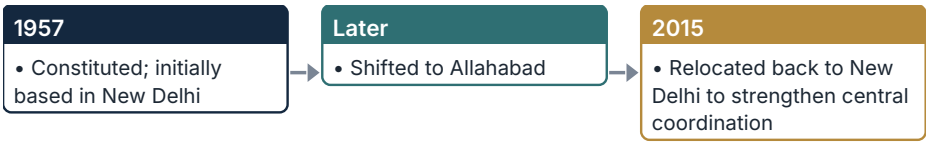
THE COMMISSIONER FOR LINGUISTIC MINORITIES (CLM)

- The **Commissioner for Linguistic Minorities (CLM)** is the official title of the Special Officer. It was constituted in **1957** to monitor and report on implementation of the safeguards.

WHERE THE OFFICE SAT

- **1957**:
  - Constituted
  - Initially based in **New Delhi**
- **Later**: Shifted to **Allahabad**
- **2015**: Relocated back to **New Delhi** to strengthen central coordination

WHERE THE OFFICE SAT



FORUMS THAT SHAPED THE SCHEME OF SAFEGUARDS

Forum	Year
Education Ministers' Conference	1949
Government of India Memorandum	1956
Southern Zonal Council	1959
Chief Ministers' Conference	1961

- The Commissioner's role goes beyond constitutional supervision to fostering cooperative engagement between linguistic groups and state governments.
- **Memory aid (Forums):** **E**ducation Ministers 1949, **G**oI Memorandum 1956, **S**outhern Zonal Council 1959, **C**hief Ministers 1961: "**E**very **G**roup **S**eeks **C**onsensus".
- **Shortcut:**
  - **Year ladder. 49, 56, 59, 61** for the four forums
  - **57** for the CLM
  - **2015** for the shift back to Delhi

FUNCTIONS AND RESPONSIBILITIES

FOUR RESPONSIBILITIES

Function	What it means
Investigation of issues	Examines all matters on rights and safeguards of linguistic minorities provided in the Constitution

MY NOTES

Function	What it means
Reporting to the President	Periodic reports; the President lays them before both Houses of Parliament and the concerned state governments for review and action
Promotion of welfare	Oversees implementation of policies to protect the linguistic and cultural heritage of minority language groups
Ensuring equal access	Equitable access to education, employment and public services, reinforcing India's inclusive and pluralistic ethos

- **Memory aid (Four tasks):** **I**nvestigate, **R**eport, **P**romote welfare, **E**qual access: "**I** **R**eally **P**rotect **E**veryone".

ORGANISATIONAL STRUCTURE

OFFICE STRUCTURE

Item	Detail
Ministry	Office of the Commissioner functions under the Ministry of Minority Affairs
Headquarters	New Delhi
Regional offices	Belgaum (Karnataka), Chennai (Tamil Nadu), Kolkata (West Bengal)
Head of a regional office	Assistant Commissioner

- This multi-tiered setup supports field-level engagement and monitoring of constitutional safeguards.
- **Memory aid (Regional offices):** **B**elgaum, **C**hennai, **K**olkata: "**B**ig **C**ity **K**onnect".
- **Shortcut: Region shortcut. Belgaum (Karnataka), Chennai (Tamil Nadu), Kolkata (West Bengal): south, south, east, each under an Assistant Commissioner.**

SIGNIFICANCE

- Protects the linguistic rights of about **36 million** citizens who speak minority languages (**Census 2011**).
- A vital link between the Union Government, States and linguistic communities, keeping diversity a cornerstone of national unity.
- The Special Officer is the **constitutional guardian of linguistic pluralism**, ensuring minority rights and cultural identities are respected in India's democratic, multilingual society.
- **Key point:** Think of the office as a **link**: Union, States and language communities in one chain.

MY NOTES

RELATED ACTS LISTED IN THE HANDOUT

- The handout ends with a list of Acts that concern minority institutions generally.

RELATED ACTS

Act	What it does
The Waqf (Amendment) Act, 2025	Strengthens digital record management, transparency in Waqf property use and accountability of Waqf Boards
Durgah Khawaja Saheb Act, 1955	Administration of the Durgah Endowment at Ajmer; management of its income and religious affairs
National Commission for Minorities Act, 1992	Establishes the National Commission for Minorities (NCM) to safeguard minority rights under Articles 29 and 30
The Wakf Act, 1995	Regulates Waqf institutions and properties; Waqf Boards supervise their proper use for community welfare
Wakf (Amendment) Act, 2013	Stricter penalties for encroachment; better governance; more financial accountability of Waqf Boards
The Haj Committee Act, 2002	Constitutes the Haj Committee of India to manage and facilitate Haj pilgrimage under a statutory framework

HANDOUT ALERT

Handout alert: This list mixes in material from **another chapter**: religious-minority and Waqf laws, not linguistic minorities (the NCM Act itself refers to Arts. 29 and 30). Note also that the text on Art. 351 (Hindi) is not about minorities. The notes keep it all but the chapter's core is Arts. 350A, 350B and the CLM. Handout spellings "Waqf" and "Wakf" are both kept.

- **Memory aid (Acts by year):** **D**urgah 1955, **N**CM 1992, **W**akf 1995, **W**akf Amendment 2013, **H**aj Committee 2002 (then Waqf Amendment 2025): "**D**o **N**ot **W**aste **W**aqf **H**ours".

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 51, SPECIAL OFFICER FOR LINGUISTIC MINORITIES

- Originally the Constitution had no provision for this Officer. The SRC recommendation led to Art. 350-B, placed in Part XVII, by the Seventh Amendment Act of 1956.
- The Constitution does not specify the Officer's qualifications, tenure, salary and allowances, service conditions or procedure for removal.
- The office was created in 1957. The CLM is assisted at headquarters by a Deputy Commissioner and an Assistant

MY NOTES

Commissioner, and keeps liaison with States and Union Territories through nodal officers they appoint.

- The CLM falls under the Ministry of Minority Affairs, so reports reach the President through the Union Minority Affairs Minister.
- Role: the CLM takes up matters brought by individuals, groups and associations, personally visits minority areas and educational institutions, and holds talks with Chief Ministers, Governors, Lt. Governors, Chief Secretaries and Education Secretaries.
- Three functions:
  - Investigate safeguards
  - Report on the status of implementation
  - Monitor through questionnaires, visits, conferences, seminars, meetings and review. Four objectives include equal opportunities, awareness, effective implementation and handling grievances
- Lakshmikanth differs:
  - The SRC date. It gives the States Reorganisation Commission as 1953-55, whereas the handout says SRC, 1956. Use the handout in class
  - 1956 is the year of the 7th Amendment

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Which Article creates the Special Officer for Linguistic Minorities?	Article 350B.
Which amendment added Arts. 350A and 350B?	The Seventh Amendment Act, 1956, after the SRC 1956 recommendation.
Who is a linguistic minority?	A group in any part of India with a distinct language or script; at state level mother tongue differs from the principal language; at district or tehsil level language differs.
Must the minority language be in the Eighth Schedule?	No.
Is "linguistic minority" defined in the Constitution?	No; it is understood from context.
What does Art. 350A say?	Endeavour of States and local authorities to provide mother-tongue instruction at primary stage; President may issue directions.

What does Art. 350B say?	Special Officer appointed by the President; investigates safeguards; reports to the President; reports laid before each House and sent to the States.
What does Art. 351 say?	Union to promote the spread of Hindi as a medium for the composite culture, drawing from Hindustani and Eighth Schedule languages.
How many languages in the Eighth Schedule?	22 now, originally 14.
Official title of the Special Officer?	Commissioner for Linguistic Minorities (CLM), constituted 1957.
Where has the CLM office been based?	New Delhi, then Allahabad, back to New Delhi in 2015.
Four forums behind the Scheme of Safeguards?	Education Ministers' Conference 1949; GoI Memorandum 1956; Southern Zonal Council 1959; Chief Ministers' Conference 1961.
Four functions of the Special Officer?	Investigation of issues; reporting to the President; promotion of welfare; ensuring equal access.
Regional offices of the CLM?	Belgaum (Karnataka), Chennai (Tamil Nadu), Kolkata (West Bengal), each headed by an Assistant Commissioner.
Which ministry runs the CLM office?	Ministry of Minority Affairs, headquartered in New Delhi.
How many minority-language speakers are protected?	About 36 million (Census 2011).
Which Act set up the National Commission for Minorities?	National Commission for Minorities Act, 1992 (Arts. 29 and 30).
Which Act deals with the Ajmer Durgah?	Durgah Khawaja Saheb Act, 1955.
What does the Haj Committee Act 2002 do?	Constitutes the Haj Committee of India to manage the pilgrimage under a statutory framework.

Trap 1 · 350A versus 350B

Art. 350A is about mother-tongue instruction at the primary stage. Art. 350B is about the Special Officer. Both were added together by the 7th Amendment. *Rule: A = Action in school (mother tongue); B = the Boss, the Special Officer.*

MY NOTES

Trap 2 · 1956 or 1957?
The 7th Amendment Act (1956) added the article, but the office of the Commissioner was created only in 1957. *Rule: article 1956, office 1957.*

Trap 3 · Eighth Schedule is not required
A language need not be among the Eighth Schedule languages for its speakers to be a linguistic minority. *Rule: minority status depends on a different mother tongue from the principal language of the State, district or tehsil.*

Trap 4 · Headquarters moved twice
The office was first in New Delhi, shifted to Allahabad, and returned to New Delhi in 2015. *Rule: today it is New Delhi, with regional offices in Belgaum, Chennai and Kolkata.*

QUICK QUIZ

Q1. The Special Officer for Linguistic Minorities is appointed under which Article?

1. 350A
2. 350B
3. 351
4. 347

Q2. The articles 350A and 350B were added by

1. The 42nd Amendment
2. The Seventh Amendment Act 1956
3. The 44th Amendment
4. The First Amendment

Q3. Art. 350A deals with

1. Special Officer
2. Hindi language
3. Mother tongue instruction at primary stage
4. Eighth Schedule

Q4. Art. 351 relates to

1. Linguistic minorities
2. Directive for development of the Hindi language
3. Official language of States
4. Languages of courts

Q5. The Eighth Schedule at present consists of

1. 14 languages
2. 18 languages
3. 22 languages
4. 24 languages

Q6. The official title of the Special Officer is

1. Chief Commissioner
2. Commissioner for Linguistic Minorities
3. Language Commissioner
4. Inspector General of Languages

Q7. Where are the CLM's regional offices?

1. Belgaum, Chennai, Kolkata
2. Pune, Hyderabad, Patna
3. Delhi, Mumbai, Lucknow
4. Allahabad, Bhopal, Ranchi

Q8. Which Ministry does the CLM office function under?

1. Ministry of Home Affairs
2. Ministry of Minority Affairs
3. Ministry of Education
4. Ministry of Law

Q9. In which year was the CLM office relocated back to New Delhi from Allahabad?

1. 1957
2. 1961
3. 2002
4. 2015

MY NOTES

Q10. The Special Officer's reports are

1. Laid before each House of Parliament and sent to the governments of the States concerned
2. Kept confidential
3. Sent only to the Supreme Court
4. Published by the Ministry only

Answers: Q1 b, Q2 b, Q3 c, Q4 b, Q5 c, Q6 b, Q7 a, Q8 b, Q9 d, Q10 a

MY NOTES

CHAPTER 39 · HANDOUT CHAPTER: COMPTROLLER AND AUDITOR GENERAL OF INDIA

39 Comptroller and Auditor General

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

MY NOTES

EXAM LENS

Prelims hooks

- none quoted in the material as PYQs
- likely hooks are Art. 148 to 151 and 279, the 1971 Act (6 years or 65), removal procedure, post-tenure ineligibility, charged expenditure, Audit Board 1968, audit types, secret service expenditure.
- Handout stresses: The handout carries no PYQ section for this chapter (Whole chapter)
- Handout stresses: Art. 148 CAG; appointed by the President by warrant; 6-year term and 65 years under the CAG (DPC) Act, 1971; removal like a Supreme Court judge (Appointment and Tenure)
- Handout stresses: Seven safeguards of independence (tenure, post-tenure bar, salary by Parliament, no detrimental change, consultation on staff conditions, charged expenditure, no ministerial responsibility) (Independence section)
- Handout stresses: Arts. 148, 149, 150, 151, 279 (Key Articles list and powers)
- Handout stresses: Four types of audit: compliance, financial, performance, propriety; CAG does performance reporting, not performance evaluation (Role section)

Mains hooks

- none quoted in the material as PYQs
- likely themes are independence of the CAG, role of the CAG in parliamentary financial control, Comptroller versus Auditor role and Appleby's critique.

The CAG is the guardian of the public purse: an independent, post-facto auditor who reports to Parliament, protected by seven safeguards, with

limits in secret service expenditure and no prior control over withdrawals.

IN SIMPLE WORDS

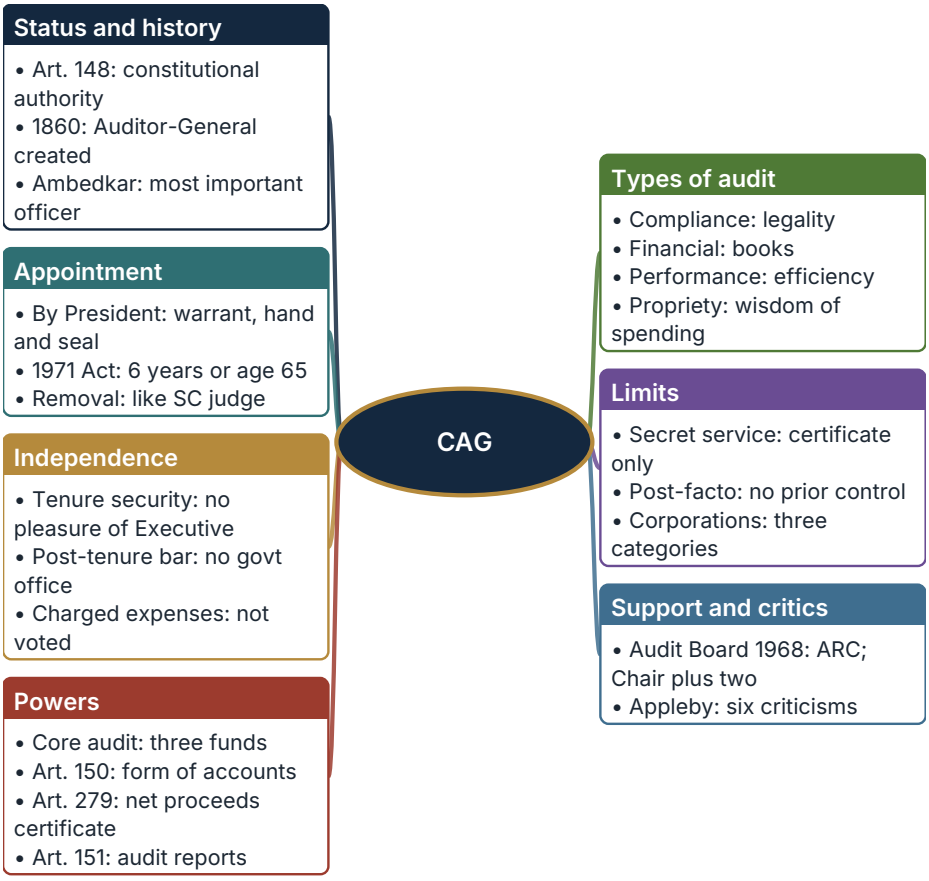
- The **Comptroller and Auditor General (CAG)** is an independent constitutional authority under **Article 148**, head of the **Indian Audit and Accounts Department** and **guardian of the public purse**. Dr. Ambedkar called the CAG the **most important officer under the Constitution**.
- The CAG is appointed by the **President** by warrant under hand and seal and takes an **oath** before the President. The **CAG Act, 1971** gives a **6-year term or age 65**. Removal is like a **Supreme Court judge**.
- Independence rests on **security of tenure**, no later government office, salary fixed by Parliament, no harmful change, staff rules after consulting the CAG, expenses **charged** on the Consolidated Fund and no ministerial shield.
- Duties: audit Consolidated, Contingency and Public Account funds, departmental accounts, receipts, institutions and corporations. Advises on **form of accounts (Art. 150)**, certifies **net proceeds (Art. 279)** and reports under **Art. 151**.
- Four kinds of audit: **compliance, financial, performance and propriety**. The CAG is in practice an **Auditor-General**, not a Comptroller, because audit comes **after** spending.
- **Limits:** no detailed particulars for secret service expenditure (a certificate is accepted). **Appleby** criticised the office as a colonial inheritance.

Key term	In plain words
Guardian of the public purse	Description of the CAG: makes sure public money is raised and spent as the law says
Compliance audit	Also called legality or transactions audit; checks money was spent under the law and Parliament's authority
Financial audit	Checks that books of accounts are proper and entries truly show what happened
Performance audit	Efficiency check, e.g. how many schools were built and their standards; it reports but does not evaluate reasons
Propriety audit	Questions the wisdom and faithfulness of spending; the 2G spectrum audit (loss Rs 1.76 lakh crore) is the handout example
Appropriation Accounts	Compare actual expenditure with Parliament's authorisation

MY NOTES

Key term	In plain words
Finance Accounts	Record the annual receipts and disbursements
Audit Board (1968)	Set up in the CAG's office on the Administrative Reforms Commission's advice; Chairman and two Members appointed by the CAG

MEMORY MAP: COMPTROLLER AND AUDITOR GENERAL



MNEMONIC · ARTICLES ON THE CAG

Careful Detectives Follow Real Numbers

- **C** Comptroller and Auditor General of India: Art. 148
- **D** Duties and powers of the CAG: Art. 149
- **F** Form of accounts of the Union and States: Art. 150
- **R** Reports (audit reports) of the CAG: Art. 151
- **N** Net proceeds of taxes calculation: Art. 279

Careful detectives follow real numbers: 148, 149, 150, 151 in order, then 279 for net proceeds. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · SEVEN SAFEGUARDS OF CAG INDEPENDENCE

SECURED

- **S** Security of tenure
- **E** Expenditure charged: office costs on the Consolidated Fund
- **C** Consultation: staff conditions prescribed by the President after consulting the CAG
- **U** Unalterable to disadvantage: alteration not allowed after appointment
- **R** Remuneration and service conditions fixed by Parliament
- **E** Excluded from ministers: no minister represents or answers for the CAG
- **D** Disqualified from any later Union or State office

The CAG's office is SECURED by seven protections. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · TYPES OF AUDIT

FLAW

- **F** Financial audit: books of accounts are a faithful record
- **L** Legality audit, also called compliance, statutory or transactions audit
- **A** Audit of efficiency: the performance audit
- **W** Wisdom and faithfulness of spending: propriety audit

Audits exist to catch a FLAW. The order is rearranged for memory; the handout does not fix an order. (Memory aid, not from the handout.)

MNEMONIC · APPLEBY'S SIX CRITICISMS

MADCAP

- **M** Misconception of audit's role by Parliament
- **A** Administrative action inhibited by audit
- **D** Deputy secretary knows more than the CAG's staff (comparative knowledge)
- **C** Colonial inheritance
- **A** Auditor's function is not central to good governance
- **P** Pedestrian: a narrow, procedural perspective

Appleby called Indian audit, as practised, a MADCAP arrangement: six criticisms, one letter each. The order is rearranged for memory; the handout does not fix an order. (Memory aid, not from the handout.)

WHO THE CAG IS

- The **Comptroller and Auditor General of India (CAG)** is an **independent constitutional authority** under **Article 148**. He heads the **Indian Audit and Accounts Department (IA&AD)** and is the **guard-**

MY NOTES

ian of the public purse: public funds must be raised and spent in accordance with law.

- Audits the financial transactions of **both the Union and State governments**.
- Primary duty: to uphold the **Constitution and parliamentary laws** in financial administration.
- Audit reports ensure **accountability, transparency and fiscal discipline** in the executive.
- One of the key pillars of the democratic framework, alongside the **Supreme Court, the Election Commission and the UPSC**.
- **Dr. B.R. Ambedkar** called the CAG "the most important officer under the Constitution".
- **Memory aid (Pillars): S**upreme Court, **E**lection Commission, **U**PSC, **C**AG: "**S**ee **E**very **U**nit's **C**ash".
- **Shortcut: Ambedkar line. CAG = Art. 148 = guardian of the public purse = "most important officer under the Constitution".**

HISTORY OF THE IA&AD AND ITS VISION

FOUR STAGES OF THE DEPARTMENT

- **Pre-Independence**: Mid-19th century: separate accounts for the three Presidencies (Bengal, Madras, Bombay). **1860**: office of **Auditor-General of India** created. GoI Acts (1919, then 1935) gave audit statutory recognition and independent status
- **Independence and Constitution**:
  - Auditor-General redesignated **Comptroller and Auditor General** under **Art. 148**
  - IA&AD became the machinery under the CAG for Union and State accounts and other bodies
- **Post-Independence**:
  - Practices, audit standards and field structure expanded
  - **IAAS** formalised as the service cadre
  - A **unitary structure** within the federal setup lets the CAG audit Union and States through one framework
- **Modern era**:
  - Emphasis on **performance audit (value for money)**, compliance audits, accounting reforms and internal controls
  - The CAG's "A Thematic History" volumes cover **1990-2007**

MY NOTES

FOUR STAGES OF THE DEPARTMENT

Pre-Independence
- Mid-19th century: separate accounts for the three Presidencies (Bengal, Madras, Bombay). 1

→

Independence and Constitution
- Auditor-General redesignated Comptroller and Auditor General under Art. 148; IA&AD became

→

Post-Independenc
- Practices, audit standards and field structure expanded; IAAS formalised as the service ca

→

Modern era
- Emphasis on performance audit (value for money), compliance audits, accounting reforms and

VISION, MISSION AND VALUES

Item	Content
Vision	Independent and credible assurance on public resources; be a global leader in public sector auditing
Mission	Mandated by the Constitution, promote accountability, transparency and good governance through high-quality auditing and accounting; independent, timely assurance to the Legislature, the Public and the Executive that public funds are collected and used effectively and efficiently
Institutional values	Professional standards; objective and balanced approach; independence; transparency
People values	Ethical behaviour; integrity; professional competence; fairness; social awareness

- **Memory aid (History steps):** **P**re-Independence, **I**ndependence (Art. 148), **P**ost-Independence (IAAS), **M**odern (performance audit): "**P**ublic **I**ncome **P**rotected **M**ethodically".
- **Shortcut:**
  - **Date shortcut. 1860 Auditor-General**
  - **1919 and 1935 Acts give statutory status**
  - **Art. 148 renames the post CAG**
  - **Thematic history 1990-2007.**

ALSO IN THE HANDOUT

- The Constitution provides a package of safeguards that together secure the institutional autonomy, functional integrity and continuity of the CAG's office. The following headings set out those protections and their practical implications.
- Equivalence of pay with the highest judicial office underscores the status of the CAG and symbolises institutional parity with other constitutional offices.

MY NOTES

APPOINTMENT AND TENURE

APPOINTMENT, TENURE AND REMOVAL

Point	Provision
Appointed by	The President, by warrant under hand and seal
Oath or affirmation	Before the President: faithfulness to the Constitution, uphold sovereignty and integrity, discharge duties faithfully, impartially and to the best of ability, knowledge and judgment, without fear or favour
Conditions of service, tenure, age	Determined by the **CAG (Duties, Powers and Conditions of Service) Act, 1971**: **6-year term and 65 years** retirement age
Amendment	Changing term or age needs a change in the **Act**, not the Constitution
Resignation	At any time, addressed to the President
Removal	Same safeguards as a **Supreme Court judge**: only on proved misbehaviour or incapacity, by a parliamentary resolution passed by a special majority and presented to the President

- **Memory aid (Tenure facts): A**ct 1971, **T**erm 6 years, **S**ixty-five years of age: "**A**ct **T**ells **S**ix and sixty-five", not the Constitution.
- **Shortcut: Tenure shortcut. Warrant by President, 1971 Act: 6 years / 65, resign to the President, removal = SC judge.**
- **Key point:** The term and age are **statutory** (1971 Act), so Parliament can change them by law without a constitutional amendment.

> **HANDOUT ALERT**
> Handout alert: The handout says "6 year term and 65 years of age for retirement" without saying "whichever is earlier". Use the handout wording: 6-year term and age 65.

ALSO IN THE HANDOUT

- (The constitutional parallel with Supreme Court judges is commonly drawn to indicate the exceptional nature of grounds and procedure for removal, thereby protecting the office from arbitrary executive action.) Collectively, these appointment, oath and tenure provisions are designed to preserve the institutional autonomy, impartiality and constitutional responsibility of the CAG in discharging its role as the guardian of public finances.

INDEPENDENCE OF THE OFFICE

- Seven safeguards insulate the CAG from the Executive.

MY NOTES

SEVEN SAFEGUARDS

Safeguard	What it means
Security of tenure	Does not hold office at the pleasure of the Executive; can be removed only by the prescribed procedure, not summarily dismissed by the President
Post-tenure ineligibility	Not eligible for any later office under the Centre or a State after vacating the CAG post, avoiding conflict of interest
Salary and conditions fixed by Parliament	Pay equivalent to the highest judicial office; stops the Executive manipulating service terms
No detrimental alteration	Salary, leave, pension and retirement age cannot be changed to his disadvantage after appointment
Consultative administrative arrangements	Service conditions of IA&AD staff and the CAG's administrative powers are prescribed by the President after consulting the CAG
Charged expenditure	Administrative expenses of the CAG's office (salaries, allowances, pensions of staff) are charged on the Consolidated Fund and not subject to annual parliamentary vote
No ministerial shielding	Ministers do not represent the CAG in Parliament and cannot be held responsible for the CAG's actions

- **Memory aid (Seven safeguards):** **S**ecurity of tenure, **P**ost-tenure bar, **P**arliament fixes pay, **P**rotection from detrimental change, **C**onsultation on staff conditions, **C**harged expenditure, **N**o minister: "**S**afe **P**ublic **P**urse **P**rotects **P**eople, **C**ounting **C**ash **N**ightly".
- **Shortcut: Independence shortcut. Tenure, no later job, Parliament sets pay, no pay cuts, consult CAG on staff, charged on Consolidated Fund, no minister speaks for him.**

PAY LINK VERSUS STAFF LINK

- **Parliament:** fixes the CAG's own salary and service conditions
- **President after consulting CAG:** prescribes IA&AD staff conditions and the CAG's administrative powers

ALSO IN THE HANDOUT

- This formal security of tenure protects the office-holder from arbitrary executive action and supports independent decision-making.

POWERS AND RESPONSIBILITIES

- Under **Article 149** Parliament defines the CAG's duties and powers on the accounts of the Union, States and other authorities. Parliament did this by the statute of 1971. A later amendment **separated accounts from audit at the Centre**.

MY NOTES

CORE AUDIT MANDATE

- **Consolidated Funds**: audit all expenditure charged on the Consolidated Fund of India, each State's Consolidated Fund and the Consolidated Funds of Union Territories with legislatures.
- **Contingency Fund and Public Account**: audit expenditure from both at Union and State levels.
- **Department accounts**: trading, manufacturing, profit and loss accounts, balance sheets and other subsidiary accounts kept by any Central or State department.
- **Revenue administration**: audit receipts and related expenditure to check that systems, rules and procedures effectively control assessment, collection and allocation of revenue.
- **Institutions and corporations**: bodies substantially financed from Centre or State revenues, Government companies and statutory corporations where law requires or the Executive requests.
- **Financial transactions**:
  - Debt, sinking funds, deposits, advances, suspense accounts and remittances
  - With presidential approval other accounts such as receipts and stock accounts
- **Special and requested audits**: audit of any authority when requested by the **President (Union)** or the **Governor (State)**.

ADVISORY AND CERTIFICATION ROLES

ARTICLES 150, 279 AND PARLIAMENT

Role	Detail
Form of accounts (Art. 150)	Advises the President on formats and principles for the accounts of the Union and States
Net proceeds (Art. 279)	Ascertains and certifies the net proceeds of any tax or duty (proceeds less cost of collection); his certificate is **final**
Parliamentary assistance	Expert guide to review bodies, notably the **Public Accounts Committee**, giving technical support and factual evidence

REPORTS AND TABLING (ARTICLE 151)

REPORT ROUTE

- **CAG**: Prepares audit reports and submits them to the **President** (Union) or the **Governor** (State)
- **Laid before the legislature**:
  - President places before **Parliament**
  - Governor places before the **State Legislature**

MY NOTES

- **Public Accounts Committee**: Committees such as the PAC examine findings and present recommendations

STATUTORY SUITE OF REPORTS

Report	What it shows
Appropriation Accounts	Compare actual expenditure with parliamentary authorisation
Finance Accounts	Record annual receipts and disbursements
Reports on Public Undertakings	Audit findings on public undertakings

- **Accounts and audit separation:** A statutory amendment separated accounts compilation from audit at the **Central** level: the CAG kept the independent audit role, departmental accounts went to a separate accounting function. The CAG still **compiles and maintains State accounts** under the IA&AD.
- **Memory aid (Articles): C**AG 148, **D**uties 149, **F**orm of accounts 150, **R**eports 151, **N**et proceeds 279: "**C**ash **D**ues **F**ollow **R**ules **N**eatly".
- **Memory aid (Three reports): A**ppropriation Accounts, **F**inance Accounts, **P**ublic Undertakings: "**A**ll **F**unds **P**ublic".
- **Shortcut: Article shortcut. 148 post, 149 duties, 150 account form, 151 reports, 279 net proceeds (final).** The first four are consecutive.

ALSO IN THE HANDOUT

- The department continues to evolve in response to changing governance demands, technological advances, and the need for more comprehensive audit coverage of government programmes and public sector undertakings.
- This formal undertaking underlines the impartial and public-spirited character expected of the post.
- This rule reduces the risk of decisions being influenced by prospects of future government employment.
- This financial arrangement prevents routine budgetary control from being used to influence or constrain the CAG's activities.
- The principal elements of the mandate are: - Audit of Consolidated and Contingency Funds and Public Accounts: Audit all expenditures charged on the Consolidated Fund of India, the consolidated funds of each State, and the consolidated funds of Union Territories with legislatures.
- The CAG, however, continues to compile and maintain State accounts as part of the IA&AD's responsibilities at the sub-national level.

MY NOTES

ROLE OF THE CAG: ACCOUNTABILITY AND TYPES OF AUDIT

- The CAG's basic duty is to safeguard the Constitution and parliamentary laws in financial administration. He is the instrument through which **Parliament controls the executive**: his reports are the cornerstone of Parliament's oversight of the Council of Ministers. He acts as an **agent of Parliament**, auditing expenditure on its behalf and remaining accountable **solely to it**.
- **Discretion:** The CAG has greater discretion in the scope and method of audit of **expenditure**, but audit of **receipts, stores and stock** must follow procedures and rules approved by the executive government. He checks that funds were **legally available** for the purpose spent and that spending was **strictly in accordance with the governing authority**.

FOUR TYPES OF AUDIT

Type	What it checks
Compliance audit (also legality, statutory or transactions audit)	Whether money was spent according to financial law, was legally available and was spent on the activity authorised by Parliament
Financial audit	Whether proper books of accounts are kept and recorded transactions faithfully represent what actually took place
Performance audit	Includes efficiency audit: eg the number of schools set up under a given amount and their standards and facilities
Propriety audit	Questions the wisdom and faithfulness of spending ('propriety' from 'proper'); eg 2G spectrum allocation on first come first served basis, audited by then CAG Vinod Rai: revenue loss of Rs. 1.76 lakh crore

- The CAG does performance **audit or reporting**, not performance **evaluation**: reasons for inefficiency are outside his domain.
- Propriety audit is needed because it is **taxpayers' money**, not officials' personal money, so officials spending someone else's money cannot be expected to show the caution they would with their own.
- The handout says major financial frauds and scams come to light only through propriety audits.
- **Memory aid (Four audits):** **C**ompliance, **F**inancial, **P**erformance, **P**ropriety: "**C**lean **F**inances **P**revent **P**lunder".

PERFORMANCE AUDIT VERSUS PROPRIETY AUDIT

- **Performance audit:**
  - Efficiency of spending (schools built, standards, facilities)
  - Reporting not evaluation

MY NOTES

- **Propriety audit:** wisdom and faithfulness of spending (2G spectrum loss of Rs. 1.76 lakh crore)
- **Shortcut: Audit shortcut. Compliance = legality, Financial = books, Performance = efficiency, Propriety = wisdom.**

ALSO IN THE HANDOUT

- The word 'propriety' is taken from the word 'proper'.

LIMITATIONS AND THE COMPTROLLER VERSUS AUDITOR ROLE

LIMITATIONS

Limitation	Detail
Secret service expenditure	The CAG cannot demand detailed accounts or particulars; audit relies on a certificate of expenditure by the competent administrative authority
Comptroller versus Auditor	In practice he works primarily as an **Auditor-General**
No prior control	Unlike the British CAG who controls issue of public money, the Indian CAG does not control withdrawals from the Consolidated Fund; departments draw funds by cheque independently
Post-facto role	Role begins after expenditure; audit scrutiny follows completed transactions

- **Key point:** Constitutionally he is **Comptroller and Auditor** but in practice an **Auditor only**: his scrutiny is **post-facto**.
- **Memory aid (Limits): S**ecret service, **A**uditor role, **N**o prior control, **P**ost-facto: "**S**ilence **A**ll **N**ight **P**lease".

ALSO IN THE HANDOUT

- Early Origins (Pre-Independence) - The roots of the Indian Audit & Accounts Department trace back to the British colonial era.
- The principal criticisms he advanced may be summarised as follows: 4.

PUBLIC CORPORATIONS, GOVERNMENT COMPANIES AND THE AUDIT BOARD

- His role in public corporations depends on the statute governing each entity.

THREE CATEGORIES OF CORPORATIONS

Category	Audit
Direct audit by the CAG	Some statutory corporations are audited entirely and directly by the CAG

MY NOTES

Category	Audit
Private auditors with CAG oversight	Professional auditors appointed by the Central Government in consultation with the CAG, who may later do a supplementary audit
Exclusive private audit	A few corporations get only independent professional audits with no CAG involvement, though their reports go directly to Parliament

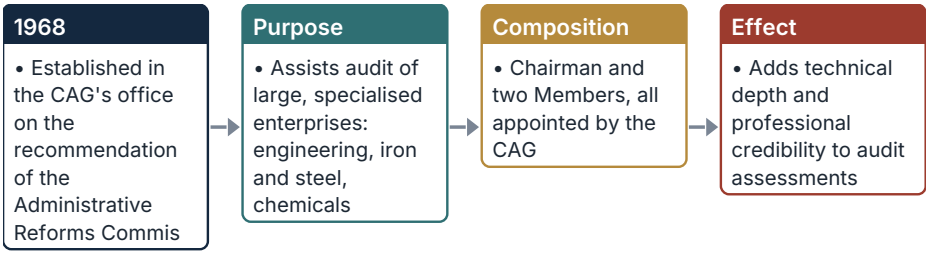
- **Government companies**:
  - Audited by private auditors appointed by the Government on the CAG's advice
  - The CAG can conduct **supplementary or test audits** when necessary

AUDIT BOARD (1968)

AUDIT BOARD

- **1968**: Established in the CAG's office on the recommendation of the **Administrative Reforms Commission**
- **Purpose**: Assists audit of large, specialised enterprises: engineering, iron and steel, chemicals
- **Composition**: **Chairman and two Members**, all appointed by the CAG
- **Effect**: Adds technical depth and professional credibility to audit assessments

AUDIT BOARD



- **Memory aid (Corporations): D**irect, **P**rivate with CAG oversight, **E**xclusive private: "**D**oing **P**roper **E**xams".
- **Shortcut: Board shortcut. Audit Board: 1968, ARC recommendation, three people (Chairman plus two Members), all appointed by the CAG.**
- **Significance:** Through his audit functions the CAG ensures **legality, regularity and prudence** in public spending and gives Parliament objective audit evidence.

MY NOTES

APPLEBY'S CRITIQUE OF THE AUDIT ESTABLISHMENT

- **Paul H. Appleby** criticised the audit establishment in India and questioned the utility and shape of the CAG's office. Six points are listed.

SIX CRITICISMS

Criticism	Argument
Colonial inheritance	The CAG's role is largely a legacy of colonial arrangements, not designed for an independent democracy
Inhibiting administrative action	Audit produced a "paralysing unwillingness to decide and to act": a repressive, negative influence
Parliamentary misconception	Parliament held an exaggerated view of auditing's contribution to legislative responsibility and had not defined the CAG's functions as the Constitution originally envisaged
Centrality questioned	The auditor's role is not as central to good governance as commonly assumed; auditors lack expertise to judge administration comprehensively
Narrow perspective	Auditing is a narrow, procedural, "pedestrian" task: necessary for control but of restricted use for broader administration
Comparative knowledge	Middle-level departmental officials (eg a deputy secretary) often understand departmental problems better than the CAG and his staff

- **Memory aid (Appleby's six):** **C**olonial inheritance, **I**nhibiting action, **P**arliament's misconception, **C**entrality questioned, **N**arrow view, **D**eputy secretary knows more: "**C**ritics **I**nsist **P**arliament **C**ounts **N**o **D**ifference".

ALSO IN THE HANDOUT

- This consultative requirement recognises the CAG's institutional role in shaping the arrangements necessary for effective and independent audit functioning.
- auditors, he argued, lacked the expertise to judge administration comprehensively and hence their assessments carried a limited administrative insight.

KEY ARTICLES

KEY ARTICLES RELATED TO THE CAG

Article	Subject
148	Comptroller and Auditor-General of India
149	Duties and powers of the CAG
150	Form of accounts of the Union and the States

MY NOTES

Article	Subject
151	Audit reports of the CAG
279	Calculation of "net proceeds" of taxes

- **Shortcut: Order shortcut. 148 office, 149 powers, 150 accounts, 151 reports, then jump to 279 (net proceeds).**

HANDOUT ALERT

Handout alert: The handout writes "proprietary audits" in one line where it means **propriety** audits. Use "propriety audit" (wisdom and faithfulness of spending). The list numbering in the PDF (4 to 9, 11 to 13) is a numbering artefact; the content is intact.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 52, COMPTROLLER AND AUDITOR GENERAL OF INDIA

- Oath:
  - Four points. Bear true faith and allegiance to the Constitution
  - Uphold the sovereignty and integrity of India
  - Perform duties faithfully without fear or favour, affection or ill-will
  - And uphold the Constitution and the laws
- Term: six years or up to age 65, whichever is earlier. The CAG's salary equals that of a Supreme Court judge (fixed at Rs 2.50 lakh per month in 2018).
- Extra duties beyond the handout:
  - Audit of bodies receiving grants and loans for specific purposes
  - Audit of stores and stock
  - Audit of Government Companies under the Companies Act
  - Audit of corporations whose statutes require it
- Powers during audit: inspect any office or department, examine transactions and question the person in charge, call for records and documents, and decide the extent and manner of audit.
- Separation of accounts from audit: in 1976 the CAG was relieved of compiling and maintaining the Central Government's accounts. The CAG still compiles and maintains State accounts.
- The CAG submits three audit reports to the President: on appropriation accounts, on finance accounts and on public undertakings. The Public Accounts Committee then examines them, with the CAG as its guide, friend and philosopher.
- Legal and regulatory audit is obligatory

MY NOTES

- Propriety audit (wisdom, faithfulness and economy) is discretionary. A 2006 Finance Ministry Office Memorandum confirmed that performance audit (economy, efficiency, effectiveness) falls within the CAG's scope
- Freedom of the CAG:
  - More freedom to decide scope and codes for expenditure audit
  - For receipts, stores and stock the CAG proceeds with the executive's approval of the rules
- Appleby wrote two reports (1953 and 1956) and even suggested the CAG be relieved of audit. The Second ARC (2005-09) listed challenges: PAC examines only 15-20 of 1000-1500 paras a year, audit is post facto, based on files, and little physical verification.
- Lakshmikanth differs: independence safeguards and the IA&AD date. It lists six safeguards (no separate point on ministers) against the handout's seven, and says the Indian Audit and Accounts Department was created under British rule in 1753, while the handout dates the Auditor-General's office to 1860. Use the handout in class.

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Which Article establishes the CAG?	Article 148.
Who called the CAG the most important officer under the Constitution?	Dr. B.R. Ambedkar.
When was the Auditor-General of India office created?	1860.
Who appoints the CAG and how?	The President by warrant under hand and seal; the CAG takes an oath before the President.
CAG term and retirement age?	6 years and 65 years under the CAG (DPC) Act 1971; amending needs a change in the Act.
How is the CAG removed?	Like a Supreme Court judge: proved misbehaviour or incapacity, by a special-majority parliamentary resolution presented to the President.
Seven safeguards of independence?	Security of tenure; post-tenure ineligibility; salary fixed by Parliament; no detrimental change; consultation on staff conditions; charged expenditure; no ministerial shielding.

How are CAG office expenses met?	Charged upon the Consolidated Fund, not subject to annual vote.
Article 149?	Duties and powers of the CAG defined by Parliament.
Article 150?	Form of accounts of the Union and States on the CAG's advice to the President.
Article 151?	Audit reports of the CAG to the President or Governor, laid before Parliament or the State Legislature.
Article 279?	CAG ascertains and certifies net proceeds of a tax or duty; the certificate is final.
Which body does the CAG assist for review?	The Public Accounts Committee.
Three statutory reports?	Appropriation Accounts; Finance Accounts; Reports on Public Undertakings.
Four types of audit?	Compliance (legality); financial (books); performance (efficiency); propriety (wisdom).
Propriety audit example?	2G spectrum allocation audited by CAG Vinod Rai: revenue loss of Rs. 1.76 lakh crore.
Does the CAG evaluate performance?	No: only performance audit or reporting; reasons for inefficiency are outside his domain.
How does the CAG handle secret service expenditure?	Cannot demand details; relies on the administrative authority's certificate.
Is the CAG a Comptroller in practice?	No; he functions primarily as an Auditor-General with post-facto scrutiny, not controlling withdrawals.
Three categories of corporation audit?	Direct audit by CAG; private auditors with CAG oversight; exclusive private audit with reports directly to Parliament.
Who audits government companies?	Private auditors appointed by the Government on the CAG's advice; CAG may do supplementary or test audits.
Audit Board 1968?	Set up on ARC recommendation; Chairman and two Members appointed by the CAG; helps audit engineering, iron and steel, chemicals.

MY NOTES

Which State function does the CAG still do after accounts-audit separation?	Compiles and maintains State accounts.
Appleby's six criticisms?	Colonial inheritance; inhibiting action; Parliament's misconception; centrality questioned; narrow perspective; deputy secretary knows more.
Whose accounts does the CAG audit?	Union and State governments, including Consolidated, Contingency and Public Account funds and UTs with legislatures.
What does the CAG's audit of receipts, stores and stock follow?	Procedures and rules approved by the executive government.
IAAS?	Indian Audit and Accounts Service: the cadre of IA&AD officers.

Trap 1 · Term is in the Act, not the Constitution

The 6-year term and age-65 limit come from the CAG (Duties, Powers and Conditions of Service) Act, 1971, so changing them needs an amendment to the Act, not to the Constitution. *Rule: term and age = 1971 Act; removal procedure = Constitution (like an SC judge).*

Trap 2 · Comptroller or Auditor?

The Constitution names both roles, but the CAG does not control issue of money from the Consolidated Fund. Departments draw funds by cheque, and the CAG audits after the spending. *Rule: India's CAG = post-facto Auditor-General; the British CAG also controls issues.*

Trap 3 · Performance audit is not evaluation

The CAG reports on performance, for example the number and standard of schools, but the reasons for inefficiency are outside the CAG's domain. *Rule: performance reporting is yes; performance evaluation is no.*

Trap 4 · Contracts and corporations are not all alike

Some corporations are audited directly by the CAG, some by private auditors with CAG oversight, and a few only by private auditors. Government companies get private auditors on the CAG's advice. *Rule: the CAG's role depends on each corporation's own statute.*

QUICK QUIZ

Q1. The Comptroller and Auditor General is established under which Article?

1. 148
2. 149
3. 150
4. 279

Q2. The CAG is appointed by

1. The Prime Minister
2. The President by warrant under hand and seal
3. The Chief Justice
4. Parliament

MY NOTES

Q3. The term and retirement age of the CAG are fixed by

1. The Constitution
2. The CAG (Duties, Powers and Conditions of Service) Act, 1971
3. The Finance Commission
4. A presidential order

Q4. The CAG can be removed

1. At the pleasure of the President
2. By the Prime Minister
3. In the same manner as a Supreme Court judge
4. Only by the Chief Justice

Q5. Which of the following is NOT a safeguard of CAG's independence?

1. Post-tenure ineligibility for government office
2. Salary fixed by Parliament
3. Administrative expenses charged on the Consolidated Fund
4. Ministers represent the CAG in Parliament

Q6. Article 150 deals with

1. Form of accounts of the Union and States
2. Audit reports
3. Duties and powers of the CAG
4. Net proceeds of taxes

Q7. Who certifies the net proceeds of a tax or duty, with a final certificate?

1. Finance Minister
2. CAG
3. Finance Commission
4. Attorney General

Q8. Audit of secret service expenditure by the CAG relies on

1. Detailed accounts demanded by the CAG
2. A certificate of expenditure from the competent administrative authority
3. A parliamentary committee
4. The Supreme Court

Q9. Propriety audit questions

1. Legality of spending
2. Accuracy of books
3. Wisdom and faithfulness of spending
4. Number of staff

Q10. The Audit Board in the CAG's office was set up in

1. 1950
2. 1968
3. 1971
4. 1990

Q11. The Audit Board comprises

1. Chairman and two Members appointed by the CAG
2. Three judges
3. Chairman and four Members appointed by the President
4. Only the CAG

Q12. Which reports are listed as part of the CAG's statutory suite?

1. Appropriation Accounts, Finance Accounts, Reports on Public Undertakings
2. Budget and Economic Survey
3. Plan and Annual Reports
4. Only the Finance Accounts

Q13. The CAG's role is largely post-facto because

1. He controls issue of funds
2. He does not control withdrawals from the Consolidated Fund
3. Parliament forbids prior audit
4. The Constitution bars audit

MY NOTES

Q14. Who criticised the CAG's role as a colonial legacy and "paralysing unwillingness to decide and to act"?

1. Ambedkar
2. Appleby
3. Vinod Rai
4. Montagu

Answers: Q1 a, Q2 b, Q3 b, Q4 c, Q5 d, Q6 a, Q7 b, Q8 b, Q9 c, Q10 b, Q11 a, Q12 a, Q13 b, Q14 b

MY NOTES

CHAPTER 40 · HANDOUT PAGES (ATTORNEY GENERAL OF INDIA; ADVOCATE-GENERAL OF THE STATE)

40 Attorney General and Advocate General

HIGH PRIORITY Mains PYQs quoted: **2004, 2014, 2016, 2017, 2018, 2020, 2022**

Prelims PYQs: **2011, 2017, 2023**

MY NOTES

EXAM LENS

MY NOTES

Prelims hooks

- Article 76 versus Article 165
- who appoints and who fixes pay
- qualifications (SC Judge against HC Judge)
- right to speak but not vote (Arts. 88, 177)
- privileges (Arts. 105, 194(2))
- Solicitor General is not a constitutional post
- The quoted Prelims PYQs in the handout block are about other bodies (mother tongue Art. 350-A, Finance Commission, Election Commission, GST)
- none asks about the AG or Advocate-General.
- Handout stresses: PYQ block is shared: the 5 Prelims and 12 Mains PYQs the handout prints after this chapter belong to the whole run of bodies (Election Commission, PSC, Finance Commission, GST, CAG, NCSC, NCBC) (PYQ section)
- Handout stresses: Article 76 (Attorney General) and Article 165 (Advocate-General) are stated up front; qualifications, pleasure tenure and pay by President or Governor are repeated (Appointment sections and comparison table)
- Handout stresses: Article 88 and Article 177 give a right to speak and take part but not to vote; Article 105 and Article 194(2) give legislators' privileges (Key Articles boxes)
- Handout stresses: The Solicitor General and Additional Solicitors General are not constitutional offices (Solicitor General section)
- Handout stresses: Five limitations on the Attorney General (no adverse brief, no dual brief, criminal defence permission, directorships, referral through the Law Ministry) (Limitations)

Mains hooks

- the role of law officers in the rule of law and in legislative debate
- Attorney General against Advocate-General
- limits that prevent conflict of interest
- The 12 quoted Mains PYQs concern other bodies (Election Commission, PSC, Finance Commission, CAG, NCSC, NCBC, civil services reform)
- none asks about the law officers, so no skeletons are written.

MY NOTES

Two law officers, one pattern: appointed by the executive, serving at its pleasure, heard in the House but never counted in the vote.

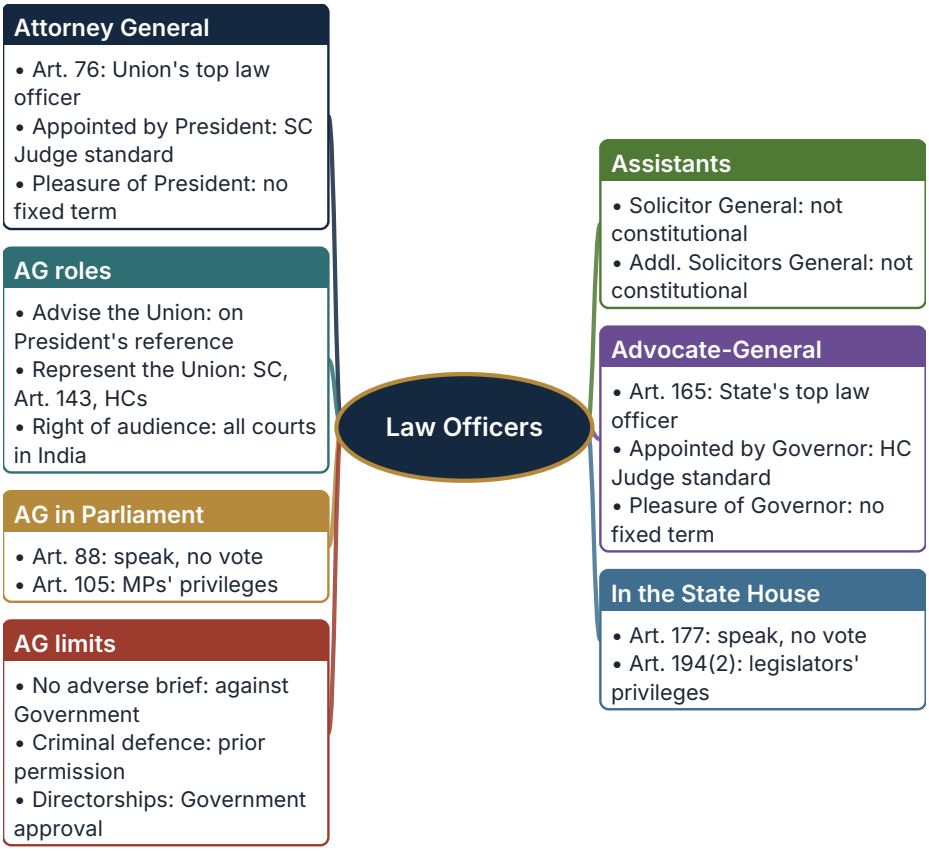
IN SIMPLE WORDS

- **Article 76** creates the **Attorney General (AG)**: the **principal legal adviser** to the Union Government and its highest law officer.
- The **President** appoints the AG, who needs the **Supreme Court Judge** standard: a citizen who was an **HC Judge for 5 years**, or an **HC advocate for 10 years**, or an **eminent jurist**.
- There is **no fixed term, no removal procedure and no fixed pay**: the AG serves **during the pleasure of the President**, and by convention goes when the Council of Ministers goes.
- The AG may speak in both Houses, joint sittings and committees but **cannot vote** (**Art. 88**), has MPs' privileges (**Art. 105**) and a **right of audience in all courts**
- Five limits prevent conflict of interest
- The **Solicitor General** and **Additional Solicitors General** only assist and are **not constitutional** posts. The state twin is the **Advocate-General** (**Art. 165**), appointed by the **Governor** on the **High Court Judge** standard (**Arts. 177 and 194(2)**).

Key term	In plain words
Pleasure of the President	The AG can be removed at any time or resign; no fixed term and no laid-down grounds
Right of audience	Right to appear and plead in all courts across India
Article 143 reference	President's request for the Supreme Court's advisory opinion; the AG represents the Government there
Article 88	Minister and AG may speak and take part in Houses, joint sittings and committees, but not vote
Article 105	Gives the AG the privileges and immunities of Members of Parliament
Solicitor General	A non-constitutional law officer who assists the AG, along with Additional Solicitors General
Advocate-General	State's highest law officer under Art. 165, appointed by the Governor
Article 177	Advocate-General may speak and take part in the State Legislature and its committees, but not vote

MY NOTES

MEMORY MAP: ATTORNEY GENERAL AND ADVOCATE GENERAL



MNEMONIC · UNION LAW OFFICERS

Always Seek Assistance

- **A** Attorney General (Art. 76), the only constitutional law officer
- **S** Solicitor General, not constitutional
- **A** Additional Solicitors General, not constitutional

The Attorney General always seeks assistance from the Solicitor General and the Additional Solicitors General. (Memory aid, not from the handout.)

MNEMONIC · WHERE THE AG APPEARS FOR THE UNION

Silk Pleads Hardest

- **S** Supreme Court: all matters where the Union is concerned
- **P** Presidential references under Article 143 to the Supreme Court
- **H** High Courts, when the Government of India requires

Silk (the senior advocate's gown) pleads hardest for the Union in three places, in the handout's order. Order is as in the handout. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · ADVOCATE-GENERAL: WHO QUALIFIES

Capable Jurists Advocate

- **C** Citizen of India
- **J** Judicial office held for at least 10 years
- **A** Advocate of a High Court for at least 10 years

The state's top law officer is a capable legal person who is a citizen and has been a judge or an advocate for 10 years. The order of this list is free, so the sentence is only a memory aid. (Memory aid, not from the handout.)

MNEMONIC · FUNCTIONS OF THE ADVOCATE-GENERAL

L O C A L

- **L** Legal advice to the state government, as referred by the Governor
- **O** Other legal duties assigned by the Governor
- **C** Constitutional and statutory functions
- **A** Appear in any court in the state
- **L** Legislature: speak and take part in both Houses and committees, no vote

The Advocate-General is the LOCAL (state) counterpart of the Attorney General. The order is rearranged for memory; the handout does not fix an order. (Memory aid, not from the handout.)

ATTORNEY GENERAL OF INDIA: THE OFFICE

- The office is established by **Article 76**. The Attorney General (AG) is the **principal legal adviser** to the Union Government and holds the **highest rank among law officers** in the country.
- The post represents the highest legal authority who **advises and appears for** the Government of India in the courts.
- Constitutional recognition underlines the essential role of a senior legal adviser in the Union's governance.
- **Core idea:** Article 76 = office of the Attorney General: appointment, qualifications, duties and functions.

UNION LAW OFFICERS AT A GLANCE

Officer	Status	Role
Attorney General	Constitutional (Art. 76)	Principal legal adviser; highest law officer
Solicitor General	Not constitutional	Assists the Attorney General
Additional Solicitors General	Not constitutional	Assist the Attorney General

ALSO IN THE HANDOUT

- This role makes the office the foremost legal voice of the Union before the nation's highest court.

MY NOTES

APPOINTMENT, TENURE AND PAY OF THE AG

WHO MAY BE APPOINTED

- The **President** appoints the Attorney General.
- The appointee must have the **same qualifications as a Judge of the Supreme Court**.
- In short: an **Indian citizen** who, in the President's view, is one of three types:

QUALIFICATION ROUTES FOR THE AG

Route	Requirement
1	Served as a **Judge of a High Court for five years**
2	**Advocate of a High Court for ten years**
3	**Eminent jurist** (in the President's view)

- These criteria ensure a person of proven legal standing and competence.

TENURE AND CESSATION

- The Constitution does **not** prescribe a fixed term.
- It does **not** lay down a procedure or specific grounds for removal.
- The AG holds office **during the pleasure of the President**: the President may remove the incumbent at any time.
- The AG may **resign** by tendering resignation to the President.
- **By convention**, the AG offers resignation when the Council of Ministers resigns or is replaced, since the appointment is made on the advice of the government in office.

REMUNERATION

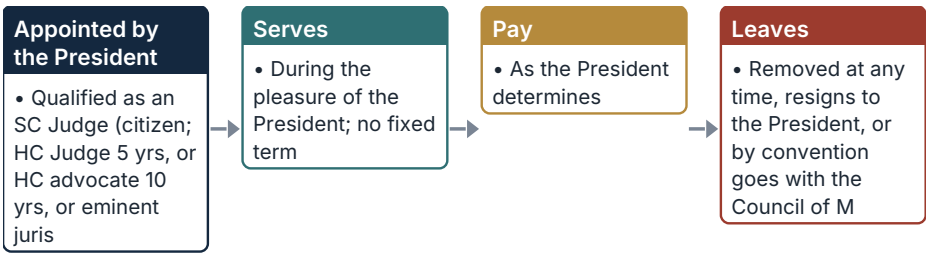
- The Constitution does **not** fix the AG's pay. The AG receives such remuneration **as the President determines**.

LIFE OF THE AG'S OFFICE

- **Appointed by the President**: Qualified as an SC Judge (citizen; HC Judge 5 yrs, or HC advocate 10 yrs, or eminent jurist)
- **Serves**:
  - During the pleasure of the President
  - No fixed term
- **Pay**: As the President determines
- **Leaves**: Removed at any time, resigns to the President, or by convention goes with the Council of Ministers

MY NOTES

LIFE OF THE AG'S OFFICE



- **Memory aid (Qualifications of the AG): C**itizen, **J**udge of a High Court five years, **A**dvocate of a High Court ten years, **E**minent jurist: "**C**ourts **J**udge **A**ll **E**xperts".
- **Shortcut: Pleasure shortcut. No term, no removal procedure, no fixed pay**: tenure and pay both rest with the President (AG) or the Governor (Advocate-General). Both go when the government goes (by convention).

> **HANDOUT ALERT**
> Handout alert: The qualification criteria (HC Judge 5 years, HC advocate 10 years, eminent jurist) are given as the **Supreme Court Judge** standard, so use these three for the AG. The **Advocate-General** instead needs **High Court Judge** qualification (10 years as shown below).

AG AS PRINCIPAL LEGAL ADVISER

CORE ADVISORY RESPONSIBILITIES

- **Legal advice to the Union**: the chief duty is to advise the Government of India on legal questions **referred to the office by the President**. This is the constitutional foundation of the office.
- **Other legal tasks assigned by the President**: duties of a legal character, not an exhaustive list.
- **Constitutional and statutory functions**: those conferred by the Constitution or by any law.

LITIGATION AND REPRESENTATION FOR THE UNION

- **Supreme Court**: appears on behalf of the Government of India in **all matters in the Supreme Court in which the Union is a party or has a stake**.
- **Presidential references (Article 143)**: represents the Government in matters referred by the President to the Supreme Court for its advisory opinion and explains the Union's legal stance.
- **High Courts**: may appear in any High Court in cases where the Union is concerned, **when required by the Government of India**.
- **Memory aid (Three duties of the AG): A**dvise the Union, **O**ther legal tasks from the President, **S**tatutory and constitutional functions: "**A**ll **O**fficial **S**tuff".

MY NOTES

WHERE THE AG APPEARS FOR THE UNION

- **Supreme Court**: All matters where the Union is a party or has a stake
- **Art. 143 reference**: Advances and explains the Union's stance in the advisory opinion
- **High Courts**: Only when the Government of India requires it

ALSO IN THE HANDOUT

- These are not limited by an exhaustive list and may include discrete legal assignments necessary for the Government's functioning.
- This means the office responds both to constitutional prescriptions and to statutory responsibilities where the law expressly contemplates the Attorney General's involvement.

RIGHTS AND PARLIAMENTARY PRIVILEGES

- **Right of audience**: entitled to appear and plead in **all courts across India**.
- **Parliament**: may take part in proceedings of **both Houses, joint sittings, and committees** of Parliament of which he may be named a member (the later section says "invited"), but **cannot vote**.
- **Privileges and immunities** of members of Parliament while performing parliamentary functions: this allows candid advice and free participation.
- **Article 88:** Every Minister and the Attorney-General has the right to **speak in, and otherwise take part in, the proceedings** of either House, any joint sitting, and any committee of Parliament of which he may be named a member, but **shall not by virtue of this article be entitled to vote**.

UNION SIDE: ARTS. 88 AND 105

- **Article 88:**
  - Right to speak and take part in both Houses, joint sittings and committees
  - No vote
- **Article 105:** Same privileges and immunities as MPs while performing duties in Parliament

> **HANDOUT ALERT**
> Handout alert: For committees the handout says both "of which he may be **named a member**" (the Article 88 text) and "to which he may be **invited**". For the exact Article wording use **named a member**.

MY NOTES

LIMITATIONS ON THE AG

- These limits prevent conflicts of interest and keep the office single-client when acting for the Union.

FIVE PROHIBITIONS

Limit	Rule
No adverse representation	Must not advise or act **against the Government of India** in any matter
No dual briefs	Must not advise or hold briefs in cases where he is required to advise or represent the Government
Criminal defence	Must not defend accused persons in criminal proceedings **without prior permission** of the Government of India
Commercial directorships	No directorship in companies or corporations **without Government approval**
Centralised referral	Must not accept instructions directly from ministries, departments, statutory bodies or PSUs; references go **through the Ministry of Law and Justice (Department of Legal Affairs)**

- **Memory aid (The five limits):** **A**dverse (never against the Government), **D**ual briefs, **C**riminal defence needs permission, **C**ompany directorships need approval, **R**outed through the Law Ministry: "**A**ll **D**ocuments **C**ome **C**ountersigned, **R**outed".

STATUS AND PRACTICE

- The AG is **not a government servant** and not a full-time salaried counsel.
- **Private practice is not barred**, subject to the limits above
- This lets eminent practitioners hold the post and gives government matters priority when required
- The AG acts on the **reference of the President or the Government**
- Rights and privileges apply only in that official capacity
- **Balance:** Rights give authoritative representation and candid participation in Parliament. Limits protect public confidence and the integrity of government legal advice.

ALSO IN THE HANDOUT

- Professional and Conflict-avoidance Constraints To prevent conflicts between public duty and private practise, and to ensure the Attorney General's undivided loyalty to the Union when required, a set of prohibitions applies to the office-holder: - No Adverse Representation: The Attorney General must not advise or act against the Government of India in any matter.

MY NOTES

SOLICITOR GENERAL AND KEY ARTICLES FOR THE AG

- To assist the AG there are the **Solicitor General of India** and **Additional Solicitors General**.
- These are **not constitutional offices**
- They support the AG in litigation and advisory work
- Only the **Attorney General** has constitutional recognition under **Article 76**.

KEY ARTICLES FOR THE ATTORNEY GENERAL

Article	Description
Article 76	Office of the AG: appointment, qualifications, duties and functions; highest law officer and principal legal adviser to the Government of India
Article 88	Right to participate in proceedings of both Houses and their committees, **without a right to vote**
Article 105	Same privileges and immunities as Members of Parliament while performing duties in Parliament

- **Memory aid (AG Articles):** **A**ppointment is Art. **76**, **S**peak (no vote) is Art. **88**, **P**rivileges is Art. **105**: "**A**ttorneys **S**peak **P**olitely".

ADVOCATE-GENERAL: APPOINTMENT AND TERMS

- **Article 165** provides for the Advocate-General (AdvG) of each State: the **highest law officer of the State** and legal adviser to the state government. It is the **state counterpart of the Attorney General**.

APPOINTMENT

- The **Governor** appoints the Advocate-General.
- The person must be qualified to be appointed a **Judge of a High Court**: an **Indian citizen**, who has held **judicial office for at least 10 years**, or been an **advocate of a High Court for at least 10 years**.
- The appointment is made on the **advice of the Council of Ministers headed by the Chief Minister**, though formally exercised by the Governor.

TERM OF OFFICE

- The Constitution fixes **no tenure**.
- Holds office **during the pleasure of the Governor**: may be removed at any time, or resign by submitting resignation to the Governor.
- By convention, resigns when the **government resigns or changes**, because the appointment rests on its advice. This keeps the state's legal adviser aligned with the political executive in power.

MY NOTES

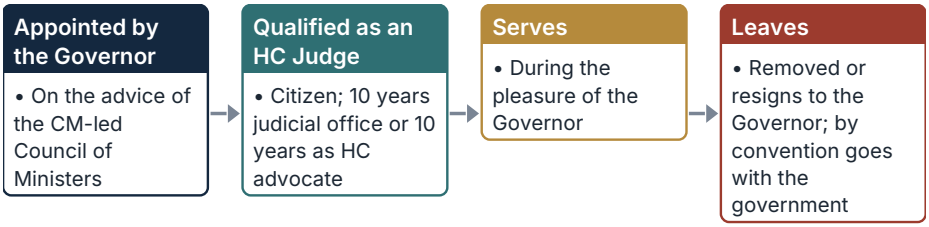
REMUNERATION

- The Constitution does **not** prescribe salary or allowances.
- Pay is **determined by the Governor**, which gives the state flexibility according to administrative arrangements and financial capacity.

LIFE OF THE ADVOCATE-GENERAL'S OFFICE

- **Appointed by the Governor**: On the advice of the CM-led Council of Ministers
- **Qualified as an HC Judge**:
  - Citizen
  - 10 years judicial office or 10 years as HC advocate
- **Serves**: During the pleasure of the Governor
- **Leaves**:
  - Removed or resigns to the Governor
  - By convention goes with the government

LIFE OF THE ADVOCATE-GENERAL'S OFFICE



HANDOUT ALERT

Handout alert: The chapter's text and comparison table both state **10 years** for both routes (judicial office, High Court advocate). Use these for the Advocate-General. The AG (Supreme Court standard) uses **5 years as HC Judge** or 10 years as HC advocate.

DUTIES AND FUNCTIONS OF THE ADVOCATE-GENERAL

- He is the chief legal adviser and representative of the state government.
- **Advisory role**: legal advice to the state government on matters referred by the **Governor**.
- **Assigned duties**: other legal duties assigned by the Governor.
- **Constitutional and statutory functions**: those conferred by the Constitution or any **state law**.
- **Court representation**: entitled to appear in **any court of law within the state**, including High Courts and subordinate courts.

MY NOTES

- **Legislative participation**:
  - Right to speak and take part in the proceedings of **both Houses of the state legislature** (where there are two) and their committees
  - **no right to vote**
  - Enjoys all privileges and immunities of a member of the state legislature
- **Article 177:** Every Minister and the Advocate-General has the right to speak in, and take part in the proceedings of, the **Legislative Assembly** (or **both Houses** where there is a Legislative Council), and any **committee of the Legislature of which he may be named a member**, but **not to vote** by virtue of this article.
- **Memory aid (Functions of the AdvG): A**dvise (on Governor's reference), **A**ssigned duties, **C**onstitutional and statutory functions, **C**ourt representation, **L**egislative participation: "**A**ll **A**dvocates **C**ross-examine **C**ourts, **L**egislators".

POSITION AND SIGNIFICANCE

- The AdvG is the **bridge between law and governance** in the state.
- By advising the government and representing it in courts, he ensures **executive actions are legally sound**.
- His presence in the legislature lets him **clarify legal points** in debate, aiding law-making.
- The office upholds the **rule of law**: governance within the constitutional framework.
- **Why it matters:** Executive action is legally checked at the state level without a separate veto: advice, representation and clarification in the House.

ATTORNEY GENERAL AGAINST ADVOCATE-GENERAL

COMPARISON (THE HANDOUT'S TABLE, REBUILT)

Aspect	Attorney General of India	Advocate General of the State
Article	**76**	**165**
Qualifications	Qualified to be a Judge of the **Supreme Court**: HC Judge 5 years, OR HC advocate 10 years, OR eminent jurist in the President's opinion; Indian citizen	Qualified to be a Judge of a **High Court**: HC advocate at least 10 years, OR judicial office in India at least 10 years; Indian citizen

MY NOTES

Aspect	Attorney General of India	Advocate General of the State
Responsibilities	Legal adviser to the Union Government (advises the President and Union Council of Ministers); represents the Union in the Supreme Court and High Courts; represents the Union in constitutional and international matters including treaties; examines Union bills and ordinances for legal validity (drafting and vetting); guardian of constitutionality, ensuring Union executive actions are legally sustainable	Legal adviser to the State Government (advises the Governor and State Council of Ministers); appears for the State in the High Court, Supreme Court and other forums; represents the state in inter-State and constitutional matters such as water-sharing, boundary disputes and constitutional interpretation; examines draft state bills, ordinances and amendments; guardian of constitutionality, ensuring state executive actions comply with constitutional mandates
Rights	Right of audience in **all courts in India**; participates in Parliament and its committees but **cannot vote**; highest legal authority of the Union, advice carries great weight; private practice permitted with restrictions, cannot advise or appear against the Government of India	Right of audience in **all courts within the state**; participates in the State Legislature and its committees but **cannot vote**; highest legal authority of the state, advice carries great weight; private practice permitted with restrictions, cannot advise or appear against the State Government
Remuneration	Determined by the **President**	Determined by the **Governor**

SAME PATTERN, DIFFERENT LEVEL

- **Attorney General:**
  - Appointed by the President
  - Pleasure of the President
  - Pay by the President
  - Arts. 76, 88, 105
- **Advocate-General:**
  - Appointed by the Governor
  - Pleasure of the Governor
  - Pay by the Governor
  - Arts. 165, 177, 194(2)
- **Shortcut: Mirror shortcut. President to Governor, Parliament to State Legislature, SC Judge to HC Judge, Art. 76 to 165, Art. 88 to 177, Art. 105 to 194(2).** Everything else is the same.

HANDOUT ALERT

Handout alert: The comparison table's "Guardian of Constitutionality" cell is cut off in the PDF; it ends "Union executive actions are legally sustainable". Rebuilt here as the Union's mirror of the State line. Stray list numbers in the PDF (6, 7, 8, 9, 10, 11 and Q1-Q3) are dropped.

MY NOTES

KEY ARTICLES FOR THE ADVOCATE-GENERAL

KEY ARTICLES FOR THE ADVOCATE-GENERAL

Article	Key provisions
Article 165	Office of the Advocate-General for each State; highest law officer of the State; appointed by the Governor; must be qualified to be a High Court judge
Article 177	Right to speak and take part in the proceedings of the State Legislature or any of its committees, **without a right to vote**
Article 194(2)	Same privileges as members of the Legislature on **freedom of speech** in the Legislature and **immunity from court proceedings** for anything said there

- **Memory aid (AdvG Articles):** **A**ppointment is Art. **165**, **S**peak (no vote) is Art. **177**, **P**rivileges is Art. **194(2)**: "**A**dvocates **S**peak **P**ersuasively".

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 53-54

- The AG is not a member of the Central cabinet
- A separate Law Minister in the cabinet looks after legal matters of the government
- The three duties assigned to the AG by the President (Supreme Court cases, Art. 143 references, High Courts when required) were set by a notification dated 26 January 1950.
- Right of audience is stated as 'in all courts in the territory of India'.
- Judicial office, for the Advocate-General, means an office within the judicial service of the state.
- Unlike the Supreme Court, the Constitution makes no provision for appointing an eminent jurist as a High Court judge
- That is why the Advocate-General has no jurist route
- Article 194 is listed for the powers, privileges and immunities of the Advocate-General, next to Art. 165 (office) and Art. 177 (rights in the Houses of the State Legislature and committees).
- Table of Articles on constitutional bodies: 76 AG, 148 CAG, 165 Advocate-General, 243-I State Finance Commission, 243-K State Election Commission, 243ZD District Planning Committee, 243ZE Metropolitan Planning Committee, 263 Inter-State Council, 279A GST Council, 280 Finance Commission, 307 Inter-State Trade and Commerce Commission, 315 UPSC and SPSC, 324 Election Commission.
- Same table, continued: 338 NCSC, 338A NCST, 338B NCBC, 339 Scheduled Areas and Scheduled Tribes Commission, 340 Backward Classes Commission, 344 Official Language Commission

MY NOTES

and Parliamentary Committee, 350B Special Officer for Linguistic Minorities.

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Which Article creates the Attorney General?	Article 76.
Who appoints the AG and on what qualification?	The President; qualified to be an SC Judge (citizen; HC Judge 5 years, or HC advocate 10 years, or eminent jurist).
What is the AG's tenure?	Not fixed; holds office during the pleasure of the President; no procedure or grounds for removal in the Constitution.
Who fixes the AG's remuneration?	The President.
When does the AG normally resign by convention?	When the Council of Ministers resigns or is replaced.
Where does the AG appear for the Union?	The Supreme Court (all matters where Union is a party or has a stake), Art. 143 references, and High Courts when the Government requires.
What is the AG's right of audience?	In all courts across India.
What does Article 88 give the AG?	Right to speak and take part in both Houses, joint sittings and committees of which he may be named a member, but no vote.
What does Article 105 give the AG?	Same privileges and immunities as Members of Parliament while performing duties.
List the five limitations on the AG.	No adverse advice or act against the Government; no dual briefs; criminal defence only with prior permission; directorships only with Government approval; instructions only via the Ministry of Law and Justice (Department of Legal Affairs).
Is the AG a government servant?	No; not a full-time salaried counsel; private practice allowed within the limits.
Are the Solicitor General and Additional Solicitors General constitutional?	No; they assist the AG; only the AG is under Article 76.
Which Article creates the Advocate-General?	Article 165.

MY NOTES

Who appoints the AdvG and on whose advice?	The Governor, on the advice of the Council of Ministers headed by the CM.
What are the AdvG's qualifications?	Qualified as a High Court Judge: Indian citizen; judicial office 10 years or High Court advocate 10 years.
Who fixes the AdvG's pay?	The Governor; the Constitution prescribes none.
When does the AdvG resign by convention?	When the government resigns or changes.
What does Article 177 give the AdvG?	Right to speak and take part in the Legislative Assembly (or both Houses) and committees; no vote.
What does Article 194(2) give the AdvG?	Privileges of legislators: freedom of speech in the Legislature and immunity from court proceedings for what is said there.
What are the AdvG's functions?	Advise the government on Governor's reference; assigned duties; constitutional and statutory functions; appear in any court in the state; take part in the legislature without vote.
Which court qualification for AG against AdvG?	AG: Supreme Court Judge; AdvG: High Court Judge.
Which Article numbers pair up between Union and State officers?	76 to 165; 88 to 177; 105 to 194(2).

Trap 1 · Solicitor General is not constitutional

Only the Attorney General is recognised by Article 76. The Solicitor General and Additional Solicitors General are created to help him. *Rule: Art. 76 names only the AG; the other Union law officers are not in the Constitution.*

Trap 2 · Supreme Court standard versus High Court standard

The AG needs Supreme Court Judge qualifications (HC Judge 5 years, HC advocate 10 years, or eminent jurist). The Advocate-General needs High Court Judge qualifications: 10 years of judicial office or 10 years as HC advocate. *Rule: the jurist route and the 5-year HC judge route belong to the AG only.*

Trap 3 · Speak but never vote

Arts. 88 and 177 let the law officer take part in the House and its committees but not vote. The handout words committees as 'named a member' in the Article text and 'invited' in one later line. *Rule: for exact wording use 'named a member'; the answer on voting is always no.*

MY NOTES

Trap 4 · Not a government servant

The AG is not a full-time salaried counsel and private practice is not barred, but he cannot advise or act against the Government of India. *Rule: private practice allowed, subject to the five limits (adverse brief, dual brief, criminal defence, directorships, referral via Law Ministry).*

QUICK QUIZ

Q1. Which Article establishes the office of the Attorney General of India?

1. Article 74
2. Article 76
3. Article 88
4. Article 165

Q2. The Attorney General must be qualified to be appointed as a Judge of which court?

1. Supreme Court
2. High Court
3. District Court
4. Any court

Q3. Who determines the remuneration of the Attorney General?

1. Parliament
2. The Prime Minister
3. The President
4. The Chief Justice of India

Q4. Which Article gives the Attorney General the right to take part in the proceedings of Parliament without a right to vote?

1. Article 76
2. Article 88
3. Article 105
4. Article 177

Q5. Which of the following is NOT a constitutional office?

1. Attorney General
2. Advocate-General
3. Solicitor General
4. All are constitutional

Q6. The Attorney General may defend an accused in criminal proceedings only

1. with prior permission of the Government of India
2. with the Chief Justice's consent
3. with the Speaker's consent
4. freely, with no condition

Q7. Who appoints the Advocate-General of a State?

1. President
2. Chief Minister
3. Governor
4. Chief Justice of the High Court

Q8. The Advocate-General's right to speak in the State Legislature without voting comes from

1. Article 165
2. Article 177
3. Article 194(2)
4. Article 88

Q9. The Attorney General's term of office is

1. five years
2. two years
3. fixed by Parliament
4. not fixed; he holds office during the pleasure of the President

Q10. By convention, the Advocate-General resigns when

1. the Governor changes
2. the government resigns or changes
3. the High Court Chief Justice changes
4. the legislature is dissolved

MY NOTES

Q11. PYQ Which Article of the Constitution provides that it shall be the endeavour of every state to provide adequate facility for instruction in the mother tongue at the primary stage of education? (2001)

1. Article 349
2. Article 350
3. Article 350-A
4. Article 351

Q12. PYQ 2011: With reference to the Finance Commission of India, which of the following statements is correct? (2011)

1. It encourages the inflow of foreign capital for infrastructure development
2. It facilitates the proper distribution of finances among the Public Sector Undertakings
3. It ensures transparency in financial administration
4. None of the statements (a),

Q13. PYQ 2017: Consider the following statements: (2017)
1. The Election Commission of India is a five-member body.
2. Union Ministry of Home Affairs decides the election schedule for the conduct of both general elections and bye-elections.
3. Election Commission resolves the disputes relating to splits/mergers of recognised political parties. Which of the statements given above is/are correct?

1. 1 and 2 only
2. 2 only
3. 2 and 3 only
4. 3 only

Q14. PYQ 2017: What is/are the most likely advantages of implementing 'Goods and Services Tax (GST)'? (2017)
1. It will replace multiple taxes collected by multiple authorities and will thus create a single market in India.
2. It will drastically reduce the 'Current Account Deficit' of India and will enable it to increase its foreign exchange reserves.
3. It will enormously increase the growth and size of the economy of India and will enable it to overtake China in the near future. Select the correct answer using the code given below:

1. 1 only
2. 2 and 3 only
3. 1 and 3 only
4. 1, 2 and 3

Q15. PYQ 2023: Consider the following: (2023)
1. Demographic performance
2. Forest and ecology
3. Governance reforms
4. Stable government
5. Tax and fiscal efforts For the horizontal tax devolution, the Fifteenth Finance Commission used how many of the above as criteria other than population area and income distance?

1. Only two
2. Only three
3. Only four
4. All five

Answers: Q1 b, Q2 a, Q3 c, Q4 b, Q5 c, Q6 a, Q7 c, Q8 b, Q9 d, Q10 b, Q11 c, Q12 d, Q13 d, Q14 a, Q15 b

MY NOTES

CHAPTER 41 · HANDOUT PAGES (NITI AAYOG; NATIONAL DEVELOPMENT COUNCIL)

41 NITI Aayog and NDC

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **2013**

EXAM LENS

Prelims hooks

- NITI established by Cabinet resolution on 1 Jan 2015
- PM as chairperson
- Governing Council members
- ADP 112 districts (2018)
- Aspirational Blocks 500 (2023)
- NDC versus NITI
- bodies not in the Constitution (2013 PYQ).
- Handout stresses: Handout quotes one Prelims PYQ (2013): which of the National Development Council, Planning Commission and Zonal Councils do not find mention in the Constitution (answer: all three) (PYQ section)
- Handout stresses: NITI Aayog created 1 January 2015 by executive (Cabinet) resolution; replaces the Planning Commission (1950-2014) (Introduction)
- Handout stresses: Composition table: PM chair, Vice-Chair, full-time members, four ex-officio Union Ministers, part-time members (max 2), special invitees, CEO, Governing Council, Regional Councils (Composition)
- Handout stresses: NDC set up August 1952 by executive resolution; announced January 2016 to be subsumed in NITI's Governing Council, but no resolution passed: existing de jure, defunct de facto (NDC legacy)

Mains hooks

- NITI Aayog and cooperative versus competitive federalism
- why Five-Year Plans gave way to outcome-based governance
- NDC and the Planning Commission's legacy
- None quoted in the material.

MY NOTES

NITI Aayog advises and coordinates where the Planning Commission and NDC approved and allocated: a think tank for cooperative and competitive federalism.

IN SIMPLE WORDS

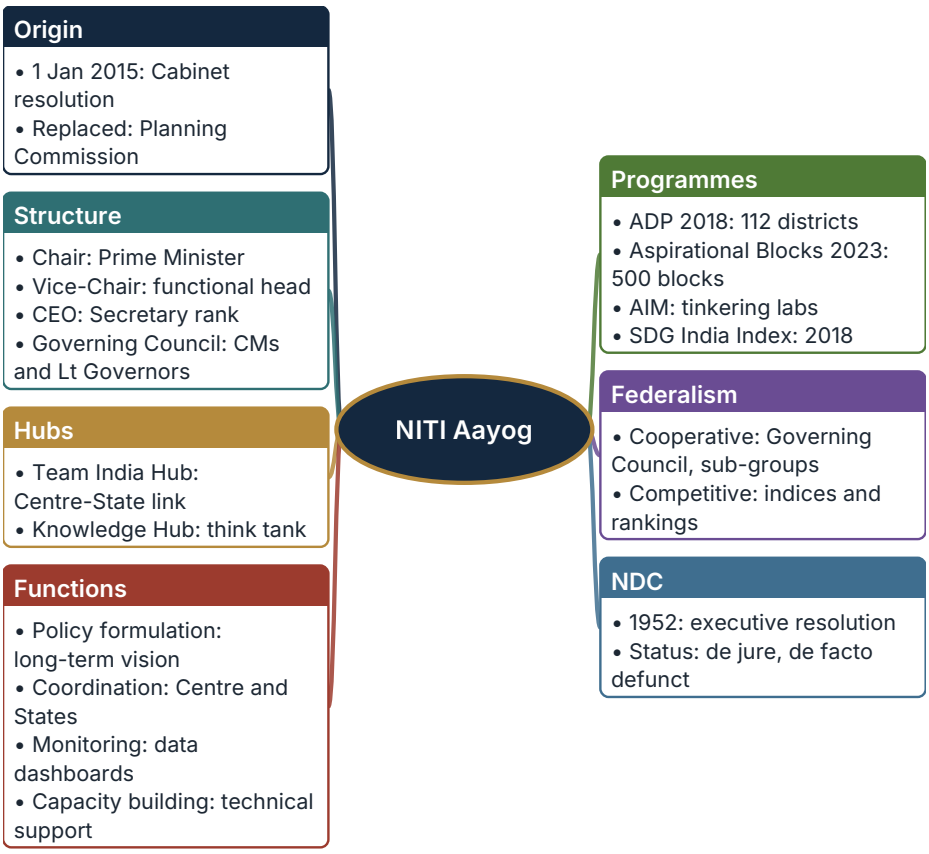
- **NITI Aayog** (National Institution for Transforming India) began on **1 January 2015** by an **executive resolution of the Union Cabinet**, replacing the **Planning Commission** (1950-2014). It is the premier policy **think-tank** and gives advice, not orders.
- The **Prime Minister** is Chairperson
- A **Vice-Chairperson**, full-time members, **four** ex-officio Union Ministers, up to **two** part-time members, special invitees and a **CEO** (rank of Secretary) complete the team. The **Governing Council** brings all Chief Ministers and Lt. Governors under the PM
- Two hubs do the work: **Team India Hub** (Centre-State link) and **Knowledge and Innovation Hub** (think-tank). Core functions: policy formulation, coordination, monitoring and evaluation, capacity building.
- Flagship schemes:
  - **Aspirational Districts Programme (2018, 112 districts)**, **Aspirational Blocks (2023, 500 blocks)**, **Atal Innovation Mission**, **SDG India Index**, **MPI**. Cooperative federalism is built on the Governing Council
  - Competitive federalism on rankings
- The **National Development Council (NDC)**, set up in **August 1952** by executive resolution, once approved Five-Year Plans. It is **de jure alive but de facto defunct**, since no resolution has ended it
- The Governing Council has taken over its role

Key term	In plain words
Executive resolution	How NITI Aayog (2015) and the NDC (1952) were created: by the Union Cabinet or Government, not by the Constitution or an Act
Governing Council	Chief Ministers of all States and Lt. Governors of UTs, chaired by the PM; principal platform for cooperative federalism
Regional Council	Convened by the PM for issues affecting more than one state or region; chaired by the NITI Chairperson or nominee
Team India Hub	Interface between Centre and States; coordinates state inputs

MY NOTES

Key term	In plain words
Knowledge and Innovation Hub	The think-tank arm: research, data analytics and policy design
Aspirational Districts Programme	Launched 2018 for 112 most underdeveloped districts, five themes, monthly rankings, Champions of Change dashboard
Competitive federalism	Healthy rivalry among states through rankings and indices
De jure and de facto (NDC)	NDC still exists in law but does not function in practice

MEMORY MAP: NITI AAYOG AND NDC



MY NOTES

MNEMONIC · WHO SITS IN THE NATIONAL DEVELOPMENT COUNCIL

C H A M P

- **C** Cabinet Ministers: all Union Cabinet Ministers
- **H** Heads of State governments: Chief Ministers of all States and UTs with legislatures
- **A** Administrators or Lt. Governors of UTs without legislatures
- **M** Members of the Planning Commission (now replaced by NITI Aayog)
- **P** Prime Minister (Chairperson)

Members who CHAMPion the national plan: five kinds of members of the NDC, the apex Centre-State planning forum. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · RANKING TOOLS OF COMPETITIVE FEDERALISM

W I S H E D

- **W** Water: Composite Water Management Index
- **I** Innovation: India Innovation Index (with Institute for Competitiveness)
- **S** SDG India Index (2018, ranks States on 17 SDGs)
- **H** Health Index
- **E** Education: School Education Quality Index
- **D** Doing business: Ease of Doing Business rankings (with DPIIT)

Every State WISHED to top the NITI rankings: six ranking tools listed under competitive federalism. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · NITI'S SEVEN GUIDING PRINCIPLES (LAKSHMIKANTH)

All Indians Value Dignity, Participation, Governance, Sustainability

- **A** Antyodaya
- **I** Inclusion
- **V** Village
- **D** Demographic dividend
- **P** People's Participation
- **G** Governance
- **S** Sustainability

Each word hints at one principle: uplift the last person first and keep the whole nation sustainable. Lakshmikanth numbers these seven in this order, so the sentence keeps that order. (Memory aid, not from the handout.)

NITI AAYOG: INTRODUCTION AND BACKGROUND

- **NITI Aayog** (National Institution for Transforming India) was set up on **1 January 2015** by an **executive resolution of the Union Cabinet**, replacing the **Planning Commission (1950-2014)**. It is the premier **policy think-tank** of the Government of India.

MY NOTES

- Aims to promote **cooperative and competitive federalism**, with states taking part in national development through **evidence-based planning** and **performance-driven governance**.
- Governed by a **Governing Council chaired by the Prime Minister**.
- Gives **strategic policy inputs**
- It does **not** exercise executive or financial control
- Marks a shift from centralised planning to decentralised, evidence-based policy formulation.

BACKGROUND AND RATIONALE

- The Planning Commission (1950) led economic planning through **Five-Year Plans**.
- It was criticised for **top-down control**, **limited state participation** and **lack of adaptability** in a globalised, market-oriented economy.
- The **2014 Independence Day address** of PM Narendra Modi outlined the need for an institution suited to cooperative federalism, dynamic policy-making and real-time monitoring.
- On 1 January 2015 the Planning Commission was replaced: from rigid resource allocation to flexible, evidence-based governance and Centre-State coordination.

PLANNING COMMISSION AGAINST NITI AAYOG

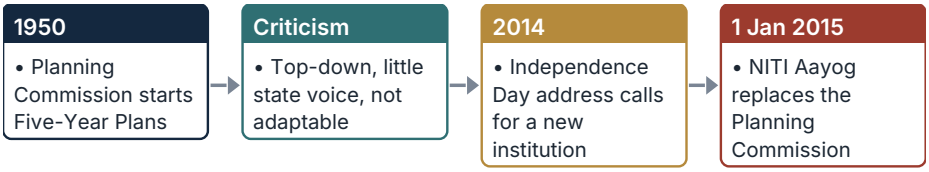
- **Planning Commission:**
  - Set up 1950
  - Five-Year Plans
  - Top-down control
  - Limited state participation
  - Allocation of resources
- **NITI Aayog:**
  - Set up 1 Jan 2015
  - Think tank with Governing Council
  - Evidence-based, flexible
  - Cooperative and competitive federalism
  - No executive or financial control

FROM PLAN TO THINK TANK

- **1950**: Planning Commission starts Five-Year Plans
- **Criticism**: Top-down, little state voice, not adaptable
- **2014**: Independence Day address calls for a new institution
- **1 Jan 2015**: NITI Aayog replaces the Planning Commission

MY NOTES

FROM PLAN TO THINK TANK



COMPOSITION OF NITI AAYOG

- A flexible, **multi-tiered** institution with participation across levels of governance.

COMPOSITION (THE HANDOUT'S TABLE, REBUILT)

Category	Official position	Function
Chairperson	Prime Minister of India	Heads the institution; overall policy direction and vision
Vice-Chair-person	Appointed by the Prime Minister (currently Suman Bery, since July 2022)	Functional head; coordinates agenda implementation
Full-time Members	Appointed by the Prime Minister; eminent experts from various fields	Domain expertise and analytical inputs
Ex-officio Members	Four Union Ministers nominated by the PM, generally from key ministries such as Finance, Home, Agriculture and Railways	Inter-ministerial coordin-ation
Part-time Members	Maximum of 2 from leading uni-versities, research organisations and other relevant institutions; serve in an ex-officio capacity on a rotational basis	Academic and research input
Special Invitees	Experts, academicians or Chief Ministers nominated by the PM	Nominated per agenda needs; specialised and regional perspectives
Chief Exec-utive Officer (CEO)	Appointed by the PM at the rank of **Secretary to the Government of India**	Oversees administration and implementation
Governing Council	Chief Ministers of all States and Lt Governors of UTs; chaired by the PM	Principal platform for cooperative federalism
Regional Council	Convened by the PM; Chief Minis-ters of States and Lt Governors of UTs in the region; chaired by the Chairperson of NITI Aayog or his nominee	Addresses specific issues and contingen-cies affecting more than one state or a region

- **Memory aid (NITI's members):** **C**hairperson, **V**ice-Chair, **F**ull-time members, **E**x-officio members, **P**art-time members, **S**pecial invit-ees, **C**EO: "**C**ats **V**isit **F**ar **E**vening **P**arks, **S**leeping **C**almly."

MY NOTES

- **Shortcut:**
  - **Who appoints. PM chairs**
  - **PM appoints Vice-Chair, full-time members and CEO**
  - **PM nominates the four ministers and special invitees.** Governing Council = **all CMs + Lt Governors** under the PM
- **Sub-Groups:** To focus discussion the Aayog also forms **Sub-Groups of Chief Ministers** on issues such as skill development, centrally sponsored schemes or agriculture reforms, promoting state-led policy design.

> **HANDOUT ALERT**
> Handout alert: The Part-time Members cell and the "ex-officio capacity on rotational basis" line are split across the flattened table in the PDF; rebuilt here as the max-2 institutional members serving on rotation. The sub-group topics also differ by passage: skill development, centrally sponsored schemes, agriculture reforms (here) and Skill Development, Swachh Bharat, Crop Diversification (cooperative federalism section). Learn both lists.

ORGANISATIONAL FRAMEWORK: TWO HUBS

THE TWO HUBS

- **Team India Hub:**
  - Interface between Central and State Governments
  - Facilitates cooperative and competitive federalism
  - Coordinates state policy inputs
  - Knowledge-sharing
  - Aligns state priorities with national objectives
- **Knowledge and Innovation Hub:**
  - Think-tank arm
  - Research, data analytics, policy design
  - New ideas for long-term reforms
  - Innovation-driven growth across sectors
- Together they make the Aayog both a platform for **intergovernmental coordination** and a **policy think tank**.
- **Memory aid (Two hubs):** **T**eam India (Centre-State link), **K**nowledge and Innovation (think tank): "**T**ake **K**nowledge."

OBJECTIVES AND FUNCTIONS

- The vision: an inclusive, sustainable and globally competitive economy.

SEVEN OBJECTIVES AND FUNCTIONS

- **Policy vision and strategic planning**: long-term blueprints such as **Strategy@75** and **Vision@2047**, aligned with the SDGs and global trends.

MY NOTES

- **Cooperative and competitive federalism**: structured Centre-State dialogue through the Governing Council and Sub-Groups of CMs.
- **Evidence-based and decentralised planning**: replaces rigid Five-Year Plans with flexible, data-centric approaches.
- **Monitoring and evaluation**: frameworks such as the **Aspirational Districts Programme, Global Innovation Index and Health Index**, using real-time data and outcome-based metrics.
- **Knowledge and innovation hub**:
  - Repository of best practices
  - Technology-driven service delivery
- **Public-private and global partnerships**: mobilise expertise, finance and technology.
- **Capacity building and technical support**: to states, ministries and departments for design, implementation and impact assessment.

FOUR CORE FUNCTIONS

- **Memory aid (Core functions): P**olicy formulation, **C**oordination, **M**onitoring and evaluation, **C**apacity building: "**P**lease **C**all **M**y **C**ousin."

CORE FUNCTIONS IN DETAIL

Function	What it does
Policy formulation	Drafts medium- and long-term strategic frameworks for inclusive and sustainable development
Coordination	Synergy among ministries, states and stakeholders through cooperative federal mechanisms
Monitoring and evaluation	Tracks policies and schemes through data dashboards and outcome-based metrics
Capacity building	Technical expertise, innovation models and reform blue-prints for institutions

HANDOUT ALERT

Handout alert: Objective 4 names the **Global Innovation Index** among NITI's frameworks, but the initiatives list names the **India Innovation Index** (with the Institute for Competitiveness) as NITI's innovation ranking. For NITI's own index use **India Innovation Index**.

MY NOTES

KEY INITIATIVES AND PROGRAMMES

KEY INITIATIVES (FROM THE NARRATIVE LIST)

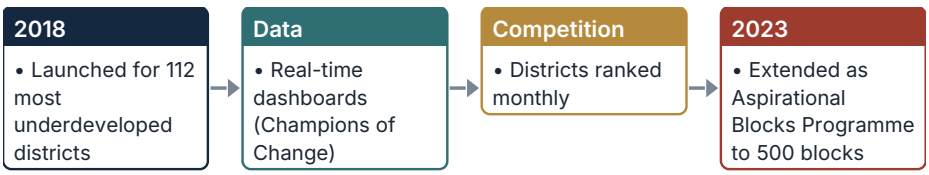
Initiative	What the handout says
Aspirational Districts Programme (ADP)	Launched **2018**; transforms **112** most underdeveloped districts through data-driven governance; five themes; real-time dashboards (**Champions of Change**); districts ranked monthly
Atal Innovation Mission (AIM)	Culture of innovation and entrepreneurship: **Atal Tinkering Labs** in schools and **Atal Incubation Centres** in universities; flagship platform for startup incubation and design thinking
SDG India Index	Introduced **2018**; tracks states' progress on SDGs using **100+ indicators**; promotes competitive federalism; aligned with UN 2030 Agenda
India Innovation Index	Developed jointly with the Institute for Competitiveness; ranks states and UTs on innovation capacity and ecosystem strength
Health, Education and Composite Indices	School Education Quality Index (SEQI), Health Index, Multidimensional Poverty Index (MPI): identify bottlenecks at state and district levels
Gati Shakti	NITI supports the PM Gati Shakti National Master Plan: integrated infrastructure on a unified digital platform, to raise logistics efficiency and reduce delays
National Energy and Climate Agenda	India Energy Dashboard and National Hydrogen Mission support; aligns the energy transition with sustainability and carbon-neutrality goals

- **Memory aid (ADP's five themes):** **H**ealth and nutrition, **E**ducation, **A**griculture and water resources, **F**inancial inclusion, **I**nfrastructure: "**H**appy **E**lephants **A**lways **F**ind **I**ce."

ADP IN A LINE

- **2018**: Launched for 112 most underdeveloped districts
- **Data**: Real-time dashboards (Champions of Change)
- **Competition**: Districts ranked monthly
- **2023**: Extended as Aspirational Blocks Programme to 500 blocks

ADP IN A LINE



MY NOTES

HANDOUT ALERT

Handout alert: ADP's themes are **five** in the narrative (health and nutrition, education, agriculture and water resources, financial inclusion, infrastructure), but the programmes table lists **four** areas (health, education, agriculture, infrastructure). Use the **five** themes.

COOPERATIVE FEDERALISM AND NITI AAYOG

- Cooperative federalism means Union-State collaboration in decision-making, planning and implementation. NITI is its **institutional anchor**: consensus-driven governance by structured dialogue, joint planning and performance-based coordination rather than top-down control.
- **Governing Council as federal forum**: the PM, Chief Ministers and Lt Governors deliberate on priorities like Gati Shakti, Viksit Bharat 2047 and social sector reforms (the "Team India" platform).
- **Sub-Groups of Chief Ministers**:
  - On **Skill Development, Swachh Bharat, Crop Diversification**
  - States co-design central policies
- **Shared developmental goals**:
  - SDG localisation
  - States align **State Development Indicators (SDIs)** with the national SDG India Index
- **Joint monitoring**: the **Aspirational Districts Programme (2018)** monitors 112 backward districts with data-based feedback loops.
- **Policy coordination on reforms**: a bridge on **GST-related issues**, agricultural market reforms and social sector expenditure tracking.
- **Fiscal and administrative convergence**: aligns Finance Commission recommendations with state fiscal performance via sectoral reviews and peer learning workshops.
- **Decentralised capacity building**: through the **Development Monitoring and Evaluation Office (DMEO)**, NITI holds workshops and state reviews.

COMPETITIVE FEDERALISM AND NITI AAYOG

- Competitive federalism fosters healthy rivalry among States and UTs through **rankings, performance indices and outcome-based evaluations**, replacing entitlement-based planning with efficiency-driven governance metrics.
- **Performance ranking frameworks**: Health Index, School Education Quality Index, **Composite Water Management Index**, assessed annually.
- **SDG India Index**:
  - Introduced 2018
  - Ranks states on **17 SDGs**

MY NOTES

- **Kerala and Tamil Nadu** consistently lead

- **Ease of Doing Business (EoDB) rankings**:
  - Prepared **jointly with DPIIT**
  - Incentivise faster approvals, digital clearances and private investment
- **India Innovation Index**: **Karnataka and Maharashtra** are frequent top performers.
- **Aspirational Blocks Programme (2023)**: extends the Aspirational Districts model to **500** underperforming blocks.
- **Data transparency and peer learning**: public dashboards and reports create reputational pressure and inter-state learning.
- **Recognition and incentives**: high performers are acknowledged at NITI forums and considered for greater autonomy in centrally sponsored schemes.

COOPERATIVE AGAINST COMPETITIVE

- **Cooperative federalism:**
  - Governing Council as federal forum
  - Sub-Groups of CMs
  - SDG localisation
  - Joint monitoring (ADP)
  - GST and agriculture reform coordination
  - DMEO workshops
- **Competitive federalism:**
  - Rankings and indices (Health, SEQI, water, SDG, EoDB, innovation)
  - Aspirational Blocks
  - Public dashboards
  - Recognition and greater autonomy for top performers
- **Shortcut:**
  - **Federalism shortcut. Council, groups, goals = cooperative**
  - **Indices, rankings, rewards = competitive.**

NITI AAYOG'S ROLE IN TRANSFORMING GOVERNANCE

SEVEN ROLES (THE HANDOUT'S EVALUATION BOX)

Role	What changed
Data-driven policy design	From expenditure-based targets to measurable outcomes via SDG India Index, Health Index and Export Preparedness Index
Strengthening cooperative federalism	Structured dialogue via the Governing Council and thematic sub-groups of CMs

MY NOTES

Role	What changed
Performance-linked governance	Ranking frameworks (school education, logistics, water management) foster competition among states and UTs
Innovation and start-up ecosystem	AIM supported **10,000+** tinkering labs and incubation centres
Inclusive development focus	Aspirational Districts and Blocks improved health, education and nutrition delivery using real-time dashboards
Long-term strategic visioning	Published **Strategy for New India @75**; leading the **Viksit Bharat 2047** roadmap (productivity, green growth, social inclusion)
International and climate partnerships	National dialogues on SDGs, COP commitments and G20 developmental priorities

NATIONAL DEVELOPMENT COUNCIL (NDC)

- Set up in **August 1952** through an **executive resolution** of the Government of India as the **apex body for policy coordination and economic planning** between the Centre and States. It worked alongside the Planning Commission and was the **final authority for approving Five-Year Plans** and reviewing their implementation.

COMPOSITION

NDC MEMBERS

Member	Detail
Chairperson	Prime Minister of India
Members	All **Union Cabinet Ministers**
Members	Chief Ministers of all **States and Union Territories with legislatures**
Members	Administrators or Lt Governors of **Union Territories without legislatures**
Members	Members of the Planning Commission (now replaced by NITI Aayog)
Secretary	The Secretary of the Planning Commission served as Secretary to the NDC

OBJECTIVES

- **Strengthen Centre-State cooperation** in framing and implementing national plans.
- **Ensure plan approval**: review, approve and guide Five-Year and Annual Plans.
- **Promote balanced development** across regions and sectors.
- **Review plan implementation** and suggest mid-course corrections.

MY NOTES

- **Encourage people's participation**: national consensus and political support.

FUNCTIONS

- **Approval of national plans**: draft Five-Year and Annual Plans from the Planning Commission.
- **Prescribe guidelines**: broad directives for economic and social planning.
- **Coordinate efforts** among Union ministries, state governments and the Planning Commission.
- **Monitor implementation** and recommend remedial measures.
- **Promote decentralisation**: region-specific strategies.
- **Advise on resource allocation** between the Centre and the States.
- **Foster cooperative federalism** as a forum for collective decision-making.
- **Memory aid (NDC functions):** **A**pprove plans, **P**rescribe guidelines, **C**oordinate, **M**onitor, **P**romote decentralisation, **A**dvise on resources, **F**oster cooperative federalism: "**A**ll **P**lanners **C**an **M**eet, **P**lan **A**nd **F**ix."

> **HANDOUT ALERT**
> Handout alert: The NDC lists (composition, objectives) start at 2 and 4 in the PDF because of stray numbering; renumbered here. The handout also gives NDC's origin as "executive resolution" (1952) and, in the comparison table, "Cabinet Resolution"; both mean an executive order, not a Constitution or Act.

ALSO IN THE HANDOUT

- Its objectives and functions extend across the following dimensions: 1.

NDC: ABOLITION, LEGACY AND COMPARISON WITH NITI

- In **January 2016** the Government announced a plan to **subsume the NDC into the Governing Council of NITI Aayog**, but **no official resolution has been passed**.

WHERE THE NDC STANDS

- **1952**:
  - Set up by executive resolution
  - Approves Five-Year Plans
- **Jan 2016**: Government announces plan to subsume it into NITI's Governing Council
- **No resolution**: Never formally abolished

MY NOTES

- **Today**:
  - **De jure** exists
  - **de facto** non-functional
  - Role effectively with NITI's Governing Council

NITI AAYOG AGAINST NDC (THE HANDOUT'S COMPARISON, REBUILT)

Basis	National Development Council	NITI Aayog
Establishment	Formed in **1952** by a Cabinet resolution to strengthen planning coordination between Centre and States	Set up in **2015** by a Cabinet resolution, replacing the Planning Commission (and, per the table, the NDC) as a policy think tank
Composition	PM (Chairperson), Union Ministers, Chief Ministers, Lt Governors and Planning Commission members	PM (Chairperson), Chief Ministers, Lt Governors and NITI Aayog officials through its Governing Council
Objective	Approve Five-Year Plans; Centre-State coordination in planning	Cooperative and competitive federalism; long-term strategy, policy innovation, outcome-based governance
Nature of role	Decision-making and approving authority for Five-Year Plans prepared by the Planning Commission	Advisory and coordinating body: **no approval powers**; policy formulation and performance tracking
Planning function	Approved Five-Year and Annual Plans with resource allocation to States	Abandoned Five-Year Planning; prepares vision documents such as Strategy for New India @75 and Viksit Bharat 2047
Institutional linkage	Depended on the Planning Commission for data and plan drafts	Works independently but coordinates with ministries, the Finance Commission and state governments through sub-groups
Federal role	Cooperative federalism through joint plan approval meetings	Cooperative and competitive federalism via performance-based incentives and shared reforms
Present status	Defunct in practice but not formally abolished	Active apex intergovernmental body for national policy coordination

- **Shortcut: NDC shortcut. NDC approved, NITI advises. NDC = de jure alive, de facto defunct.**

> **HANDOUT ALERT**
>
> Handout alert: The comparison table says NITI Aayog replaced the **Planning Commission and NDC**, but the legacy passage says the NDC was **never formally abolished**. For exam use: Planning Commission replaced (2015); NDC **still exists on paper**, inactive.

MY NOTES

ALSO IN THE HANDOUT

- The NDC, therefore, remains legally in existence (de jure) but is non-functional (de facto).
- Composition PM (Chairperson), Union / Ministers, Chief Ministers, Lt. / Governors, and Planning / Commission members. / PM (Chairperson), Chief Ministers, Lt. / Governors, and NITI Aayog officials / through its Governing Council. / 3.
- Nature of / Role / Decision-making and / approving authority for / Five-Year Plans prepared by / the Planning Commission. / Advisory and coordinating body—no / approval powers
- Focuses on policy / formulation and performance tracking. / 5. Planning / Function / Approved Five-Year and / Annual Plans with resource / allocation to States. / Abandoned Five-Year Planning
- / prepares vision documents like / Strategy for New India @75 and Viksit / Bharat 2047. / 6. Institutional / Linkage / Depended on the Planning / Commission for data and / plan drafts. / Works independently but coordinates / with ministries, Finance Commission, / and State governments through / sub-groups. / 7. Federal Role Promoted cooperative / federalism through joint plan / approval meetings. / Promotes cooperative and competitive / federalism via performance-based / incentives and shared reforms. / 8

MAJOR PROGRAMMES AT A GLANCE

PROGRAMMES AND INITIATIVES (THE HANDOUT'S TABLE, REBUILT)

Programme	Objective and focus
Aspirational Districts Programme (ADP, 2018-)	Transform **112** most backward districts through real-time monitoring in health, education, agriculture and infrastructure
Aspirational Blocks Programme (ABP, 2023-)	Extends ADP to **500** under-performing blocks for saturation of basic public services
Atal Innovation Mission (AIM)	Innovation and entrepreneurship via Atal Tinkering Labs in schools and Atal Incubation Centres for start-ups
National Multidimensional Poverty Index (MPI, 2021-)	Measures poverty beyond income using health, education and living-standards indicators aligned with SDG 1
India@100 / Viksit Bharat 2047	Long-term blueprint for a developed economy by 2047 through productivity and sustainability
Digital Public Infrastructure (DPI) Framework, 2023-24	Interoperable digital ecosystems using UPI, Aadhaar, DigiLocker for inclusive public services

MY NOTES

Programme	Objective and focus
LiFE (Mission Lifestyle for Environment, 2022-)	Behavioural change for sustainable consumption and climate-friendly living, aligned with India's NDCs
Samavesh and SATH-E (Sustainable Action for Transforming Human Capital)	Strengthens state capacity in health, education and nutrition through technical partnerships and knowledge sharing
GatiShakti / PM GatiShakti National Master Plan	Multi-modal infrastructure planning across ministries to cut logistics costs and improve connectivity
Women Entrepreneurship Platform (WEP)	Women-led start-ups: mentorship, funding linkages, capacity building

- **Memory aid (Programme years):** **A**DP 2018, **A**BP 2023, **M**PI 2021, **L**iFE 2022, **D**PI 2023-24: "**A**ll **A**ctive **M**inistries **L**earn **D**ata."

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 56, NITI AAYOG

- The Modi Government announced the scrapping of the 65-year-old Planning Commission on 13 August 2014
- NITI Aayog replaced it on 1 January 2015. LK says it is a non-constitutional and non-statutory body
- Policy flow changes from the old centre-to-state one-way flow to a partnership of states
- Thinking is 'bottom-up', not 'top-down'
- Governing Council in LK also names the Chief Ministers of UTs with legislatures (Delhi, Puducherry, Jammu and Kashmir) and Lt. Governors of the other UTs.
- Ranks:
  - Vice-Chairperson has the rank of a Cabinet Minister
  - Full-time members have the rank of Minister of State
  - The CEO is appointed for a fixed tenure at Secretary rank
  - A Secretariat is added as needed
- LK lists 13 objectives. Examples not in the handout: village-level plans aggregated upward, national security in economic strategy, special attention to sections at risk of missing out on growth.
- Functions are grouped in four heads: policy and programme framework, cooperative and competitive federalism, monitoring and evaluation, think-tank and Knowledge and Innovation Hub. The Aayog works through 25 verticals or cells.
- Seven pillars of effective governance: pro-people, pro-active, participative, empowering women, inclusion (SCs, STs, OBCs, minorities), equality of opportunity for youth, and transparency through technology. Governance focus moves from Outlay to Output to Outcome.

MY NOTES

- Cooperative federalism steps listed by LK include PM and Cabinet meetings with all Chief Ministers, sub-groups of Chief Ministers, model laws for land leasing and agriculture marketing reforms, and area-specific work for North-Eastern and Himalayan states and islands. Models: DSSS and SATH.
- More indices in LK: State Health Index, Export Competitiveness Index and monthly delta rankings of Aspirational Districts.
- Attached bodies: NILERD (autonomous, formerly IAMR set up 1962, renamed 2014, campus at Narela since 2002) and the Development Monitoring and Evaluation Office (DMEO, 2015, merging the Programme Evaluation Organisation of 1952 and the Independent Evaluation Office of 2010). The 15 regional DMEO offices were closed in 2017.
- The Planning Commission was set up in March 1950 by executive resolution, on the recommendation of the Advisory Planning Board (1946, K.C. Neogi)
- It was also neither constitutional nor statutory

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

When and how was NITI Aayog set up?	1 January 2015, by an executive resolution of the Union Cabinet, replacing the Planning Commission.
Expand NITI.	National Institution for Transforming India.
Who chairs NITI Aayog and the Governing Council?	The Prime Minister.
Who is the Vice-Chairperson and who appoints him?	Functional head, appointed by the PM (currently Suman Bery, since July 2022).
How many ex-officio members?	Four Union Ministers nominated by the PM.
How many part-time members?	A maximum of 2, from leading universities and research organisations, on rotation.
Who is the CEO?	Appointed by the PM at the rank of Secretary to the Government of India.
Who sits on the Governing Council?	Chief Ministers of all States and Lt Governors of UTs, chaired by the PM.

What is a Regional Council?	Convened by the PM for issues affecting more than one state or a region; CMs and Lt Governors of the region; chaired by NITI's Chairperson or nominee.
Name the two hubs.	Team India Hub and Knowledge and Innovation Hub.
Four core functions?	Policy formulation, coordination, monitoring and evaluation, capacity building.
What did the Planning Commission lack, per the handout?	Top-down control, limited state participation, no adaptability to a globalised, market-oriented economy.
What is ADP?	Aspirational Districts Programme, 2018: 112 most underdeveloped districts; five themes; Champions of Change dashboard.
Five ADP themes?	Health and nutrition; education; agriculture and water resources; financial inclusion; infrastructure.
What is the Aspirational Blocks Programme?	2023: extends the ADP model to 500 under-performing blocks.
What is AIM?	Atal Innovation Mission: Atal Tinkering Labs in schools and Atal Incubation Centres in universities.
SDG India Index facts?	Introduced 2018; 100+ indicators; 17 SDGs; Kerala and Tamil Nadu consistently lead.
Which agency prepares EoDB rankings with NITI?	DPIIT.
Which states lead the India Innovation Index per the handout?	Karnataka and Maharashtra.
What is DMEO?	Development Monitoring and Evaluation Office, which runs workshops and state reviews.
When was the NDC set up and by what?	August 1952, executive resolution of the Government of India.
Who are NDC members?	PM (chair); Union Cabinet Ministers; CMs of all States and UTs with legislatures; Administrators or Lt Governors of UTs without legislatures; Planning Commission members.
Who was Secretary of the NDC?	The Secretary of the Planning Commission.

MY NOTES

What is the NDC's status today?	De jure exists (no resolution passed after the January 2016 plan), de facto non-functional.
NITI against NDC in nature of role?	NITI is advisory and coordinating (no approval powers); NDC approved Five-Year Plans.
Which 2013 PYQ fact links NDC and the Planning Commission?	Neither (nor Zonal Councils) is mentioned in the Constitution.
What are the Strategy documents of NITI?	Strategy for New India @75 and Viksit Bharat 2047 (India@100).
What is the National MPI and from when?	National Multidimensional Poverty Index, 2021: health, education and living standards, aligned with SDG 1.
What is LiFE?	Mission Lifestyle for Environment, 2022: behavioural change for sustainable consumption.

Trap 1 · Four ex-officio, two part-time

The handout gives four Union Ministers as ex-officio members and a maximum of two part-time members from universities and research bodies (on rotation). *Rule: ex-officio = 4 ministers; part-time = maximum 2 experts; do not swap the numbers.*

Trap 2 · NDC was not abolished

The 2016 plan to merge the NDC into NITI's Governing Council was announced but no resolution was passed. *Rule: NDC is de jure in existence and de facto non-functional; never say it was abolished.*

Trap 3 · Advisory versus approving

The NDC approved Five-Year Plans. NITI Aayog has no approval powers and abandoned Five-Year Planning for vision documents (Strategy for New India @75, Viksit Bharat 2047). *Rule: NDC approves, NITI advises and coordinates.*

Trap 4 · Governing Council versus NDC membership

The Governing Council has the PM, Chief Ministers and Lt. Governors. The NDC also had all Union Cabinet Ministers and Planning Commission members. *Rule: Cabinet Ministers and Planning Commission members sat in the NDC, not in the Governing Council.*

QUICK QUIZ

Q1. NITI Aayog was established on

1. 1 January 2015
2. 15 August 2014
3. 26 January 2015
4. 1 April 2015

Q2. NITI Aayog came into being through

1. an Act of Parliament
2. a constitutional amendment
3. an executive resolution of the Union Cabinet
4. a Supreme Court order

MY NOTES

Q3. Who chairs the Governing Council of NITI Aayog?

1. Vice-Chairperson
2. Prime Minister
3. President
4. Finance Minister

Q4. The Governing Council of NITI Aayog comprises

1. PM and Union Cabinet only
2. PM, Chief Ministers of all States and Lt Governors of UTs
3. PM and Planning Commission members
4. CEO and Vice-Chairperson only

Q5. The CEO of NITI Aayog is appointed at the rank of

1. Cabinet Secretary
2. Secretary to the Government of India
3. Joint Secretary
4. Special Secretary

Q6. The Aspirational Districts Programme was launched in 2018 for how many districts?

1. 112
2. 500
3. 100
4. 75

Q7. Atal Tinkering Labs are set up under

1. SDG India Index
2. Atal Innovation Mission
3. Gati Shakti
4. LiFE

Q8. Which statement about the National Development Council is correct?

1. It was set up in 1952 by an executive resolution
2. It is a constitutional body
3. It was set up in 2015
4. It was formally abolished in 2016

Q9. The NDC today is

1. active and approves plans
2. defunct de facto but not formally abolished
3. abolished by Parliament
4. merged by statute

Q10. Which index is described as ranking States on 17 SDGs from 2018?

1. India Innovation Index
2. SDG India Index
3. Health Index
4. EoDB

Q11. PYQ 2013: Which of the following bodies does not/ do not find mention in the Constitution? (2013)

1. National Development Council
2. Planning Commission
3. Zonal Councils Select the correct answer using the code given below:

1. 1 and 2 only
2. 2 only
3. 1 and 3 only
4. 1, 2 and 3

Answers: Q1 a, Q2 c, Q3 b, Q4 b, Q5 b, Q6 a, Q7 b, Q8 a, Q9 b, Q10 b, Q11 d

MY NOTES

CHAPTER 42 · HANDOUT PAGES (CENTRAL BUREAU OF INVESTIGATION)

42 Central Bureau of Investigation

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

MY NOTES

EXAM LENS

MY NOTES

Prelims hooks

- Santhanam Committee and 1963
- selection committee composition
- tenure of Director
- Section 6, 6A, 17A
- Subramanian Swamy, Vineet Narain, West Bengal v
- CPDR
- CBI as Interpol NCB
- motto
- None quoted in the material as past-year questions.
- Handout stresses: Selection committee: PM (chair), Leader of Opposition in Lok Sabha, CJI or nominee; Director's tenure 2 years extendable to 5 (DSPE Amendment Act 2021); removal only on the same committee's recommendation (Composition table, Recent Reforms)
- Handout stresses: Section 6A (prior sanction for Joint Secretary and above) struck down in 2014 in Dr. Subramanian Swamy v. Director, CBI as violating Article 14; Section 17A (2018) now needs approval for inquiries into official acts (Prior Permission)
- Handout stresses: State consent under Section 6; general consent withdrawn by several states; courts can direct a CBI probe under Articles 32 and 226 without state consent (West Bengal v. CPDR, 2010) (CBI vs State Governments)
- Handout stresses: Dual superintendence: CVC for Prevention of Corruption Act cases, Central Government for others; origin in Vineet Narain (1998); CVC Act 2003 (Superintendence)
- Handout stresses: Not a constitutional body: set up by MHA Resolution of 1 April 1963, resting on the DSPE Act 1946 (Introduction)

Mains hooks

- CBI autonomy and accountability
- state consent against national coordination
- role of courts in directing CBI probes
- dual superintendence
- None quoted in the material.

MY NOTES

The CBI is statutory in basis, executive in origin: its independence rests on a fixed Director's tenure, a three-member selection panel, CVC oversight and the courts.

IN SIMPLE WORDS

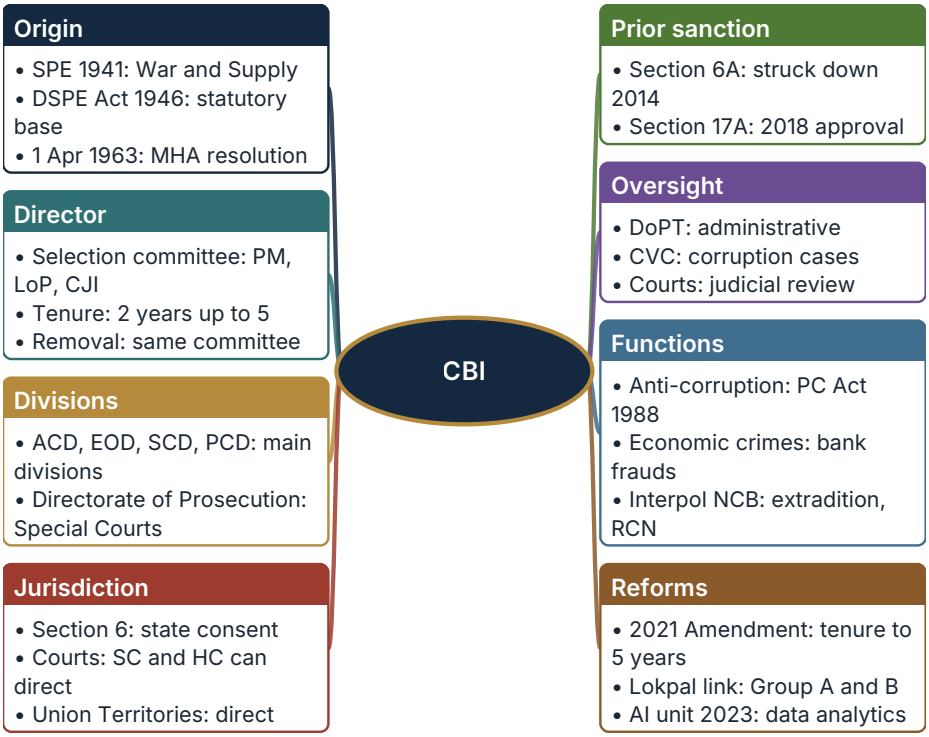
- The **CBI** is India's premier investigating agency for corruption, economic offences and serious crimes. It is **not a constitutional body**: it was set up on **1 April 1963** by a **Ministry of Home Affairs resolution** after the **Santhanam Committee** (1962-64), and it works under the **DSPE Act, 1946**.
- Roots:
  - The **Special Police Establishment (1941)** against wartime corruption, then the **DSPE Act 1946**. It sits under the **DoPT**
  - Motto **Industry, Impartiality, Integrity**
- The **Director** is chosen by a **three-member committee**: **PM, Leader of Opposition, Chief Justice of India** (or nominee). Tenure is **2 years**, extendable one year at a time up to **5** (2021 amendment).
- For **corruption cases (Prevention of Corruption Act, 1988)** the **CVC** superintends the CBI
- For all other cases the **Central Government** does. Within a state the CBI needs **state consent (Section 6)**, but the **Supreme Court and High Courts** can order a CBI probe anyway
- **Section 6A** (prior sanction for Joint Secretary and above) was struck down in **2014** (Subramanian Swamy). Today **Section 17A** (2018) asks for prior approval of the appropriate government for acts done in official duty.

Key term	In plain words
DSPE Act, 1946	Delhi Special Police Establishment Act: the source of the CBI's powers; Section 6 is state consent, Section 5 central notification
General consent	State's blanket permission for CBI to investigate in its territory
Specific consent	Case-by-case approval needed once a state withdraws general consent
Section 6A	Prior sanction rule for Joint Secretary and above; struck down in 2014 for violating Art. 14
Section 17A	2018 rule: prior approval needed to inquire into acts done in official duty; not needed when caught red-handed taking a bribe

MY NOTES

Key term	In plain words
Dual superintendence	CVC over corruption cases; Central Government over all other cases
National Central Bureau	The CBI acts as India's NCB for Interpol
Court-monitored probe	Investigation handed to the CBI by the SC or a High Court, with the court supervising

MEMORY MAP: CENTRAL BUREAU OF INVESTIGATION



MNEMONIC · CASES THAT SHAPED THE CBI, IN YEAR ORDER

Vigilant Courts Shield Reputations

- **V** Vineet Narain (1998): safeguards for CBI independence and dual superintendence
- **C** Committee for Protection of Democratic Rights (West Bengal, 2010): courts can order CBI probes without state consent
- **S** Subramanian Swamy (2014): Section 6A struck down
- **R** Rajasthan case (CBI v. State of Rajasthan, 2020): earlier cases continue after consent is withdrawn

Courts shield the CBI's reputation: each case protects its independence or reach, from 1998 to 2020. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · INVESTIGATIVE FUNCTIONS

CASE

- **C** Court-monitored probes (for example Vyapam, Saradha)
- **A** Anti-corruption investigations
- **S** Special crimes: terrorism, organised crime, trafficking, high-profile murder
- **E** Economic and financial crimes

Every CBI investigation is a CASE: the four kinds of cases it investigates. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · CBI'S POLICE-LIKE POWERS

PASS

- **P** Prosecution in Special CBI Courts
- **A** Arrest and custody of suspects
- **S** Search and seizure
- **S** Summoning and interrogation

Police-style powers: a CBI officer holds a PASS from the CrPC and DSPE Act to search, arrest, summon and prosecute. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · KEY DIVISIONS OF THE CBI

ASPECT

- **A** Anti-Corruption Division (Prevention of Corruption Act cases)
- **S** Special Crimes Division (terrorism, organised crime, trafficking, homicide)
- **P** Prosecution: Directorate of Prosecution (Special CBI Courts)
- **E** Economic Offences Division (bank scams, financial frauds)
- **C** Coordination: Policy and Coordination Division (policy, training, Interpol NCB)
- **T** Technical and Forensic Division (cyber-forensics, fingerprints)

Six ASPECTs of the CBI: the key divisions (a) to (f) in the handout. The order is rearranged for memory. (Memory aid, not from the handout.)

INTRODUCTION AND MANDATE

- The **CBI** is India's premier national investigative agency, often called the "top crime-fighting institution". It is the nodal agency for complex crimes that cross state boundaries and involve **corruption, economic offences or national security**.
- **Established 1963** through a Government of India Resolution
- Draws statutory authority from the **Delhi Special Police Establishment (DSPE) Act, 1946**
- **Not a constitutional body**: combines police powers with national accountability.

MY NOTES

- Began with corruption in central government offices
- Now covers **financial frauds, terrorism, cybercrimes and inter-state offences**
- Works under the **Department of Personnel and Training (DoPT)**, Ministry of Personnel, Public Grievances and Pensions.
- Motto: "**Industry, Impartiality, Integrity**".
- Debates continue on its **autonomy and accountability**.
- **Memory aid (Motto): I**ndustry, **I**mpartiality, **I**ntegrity: "**I**nvestigate, **I**mpartially, with **I**ntegrity."

> **HANDOUT ALERT**
> Handout alert: The introduction says the CBI draws its **statutory authority from the DSPE Act, 1946**, while the Legal Status row says it is "**not a constitutional or statutory body by origin**" but functions under that Act. Use: **created by executive resolution (1963), working under the DSPE Act, not constitutional.**

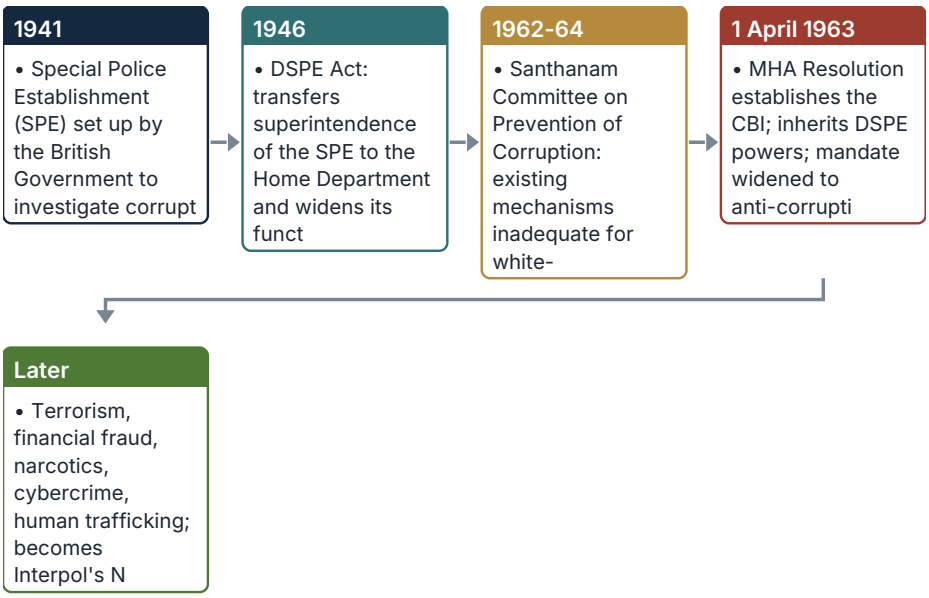
HISTORICAL EVOLUTION

FROM SPE TO CBI

- **1941**: **Special Police Establishment (SPE)** set up by the British Government to investigate corruption in the **War and Supply Department** during World War II
- **1946**: **DSPE Act**: transfers superintendence of the SPE to the **Home Department** and widens its functions to **all departments** of the Government of India
- **1962-64**:
  - **Santhanam Committee on Prevention of Corruption**: existing mechanisms inadequate for white-collar crime
  - Recommends a central agency with wider jurisdiction
- **1 April 1963**:
  - **MHA Resolution** establishes the CBI
  - Inherits DSPE powers
  - Mandate widened to anti-corruption, economic offences and special crimes
- **Later**:
  - Terrorism, financial fraud, narcotics, cybercrime, human trafficking
  - Becomes **Interpol's National Central Bureau (NCB)** for India

MY NOTES

FROM SPE TO CBI



- **Why it grew:** Demand for a professional, credible agency able to investigate crimes across state borders while keeping national integrity and public trust.
- **Memory aid (Dates):** **S**PE 1941, **D**SPE Act 1946, **S**anthanam 1962-64, **C**BI 1963: "**S**ome **D**etectives **S**earch **C**lues."

ALSO IN THE HANDOUT

- Wartime Origins: Special Police Establishment (1941–46) - The roots of the CBI go back to the Special Police Establishment (SPE), set up in 1941 by the British Government to investigate corruption in the War and Supply Department during World War II.
- This digital linkage accelerates identification of repeat offenders and strengthens the forensic base for white-collar and cybercrime investigations.

DIRECTOR: APPOINTMENT, TENURE AND REMOVAL

COMPOSITION, APPOINTMENT, TENURE AND REMOVAL

Parameter	Description
Head	**Director, CBI**; acts as the Inspector General of Police of the DSPE; holds rank of Director General of Police
Appointed by	Central Government on the recommendation of a **3-member committee** under **Section 4A, DSPE Act** (as amended by the Lokpal and Lokayuktas Act, 2013)
Committee	(i) **Prime Minister** (Chairperson); (ii) **Leader of Opposition in Lok Sabha** (or leader of the single largest opposition party); (iii) **Chief Justice of India** or a Supreme Court Judge nominated by the CJI
Tenure	Fixed **2 years**, extendable year by year up to **5 years** in total (DSPE Amendment Act, 2021)

MY NOTES

Parameter	Description
Removal	Only by the Central Government on the recommendation of the **same committee** (per Vineet Narain guidelines and **Section 4B**)
Service conditions	Same as Director General of Police of a State; cannot be varied to his disadvantage
Eligibility	Senior IPS officer (usually DG rank), impeccable record, experience in anti-corruption, vigilance or law enforcement; merit and integrity; recommended by the DoPT Screening Committee
Extension	Not automatic; beyond 2 years needs prior recommendation of the Committee and justification in public interest
Removal or transfer grounds	Misconduct, incapacity or public interest, after prior approval of the committee (PM, LoP, CJI nominee)
Resignation	In writing to the Central Government; vacancy filled by the same selection process
Other senior appointments	Special, Additional and Joint Directors need prior approval of the **Appointments Committee of the Cabinet (ACC)**

- **Memory aid (The panel): P**rime Minister, **L**eader of Opposition, **C**hief Justice of India: "**P**ick **L**eaders **C**arefully."
- **Shortcut:**
  - **Tenure shortcut. 2 + 1 + 1 + 1 = 5 years.** Start with 2
  - Three one-year extensions
  - Each extension on the committee's recommendation and public-interest reasons

HANDOUT ALERT

Handout alert: (1) Rank: the table says the Director "acts as the **Inspector General of Police** of the DSPE", elsewhere he holds the rank of **Director General of Police**. Use **DGP rank**. (2) The committee statute appears as **Section 4A (Lokpal Act 2013 amendment)** in one table and **"DSPE (Amendment) Act, 2003"** in another. Use **Section 4A, as amended in 2013**. (3) Special and Additional Directors: "appointed by DoPT in consultation with ACC" in one place, "prior approval of ACC" in another.

ALSO IN THE HANDOUT

- This reform sought to ensure leadership stability and continuity in long-term investigations, while requiring annual approval of the Appointments Committee of the Cabinet (ACC).
- extended in 2021 amendment.) Reappointmen t / Extension Reappointment is not automatic.

MY NOTES

VISION AND MISSION

- **Vision**:
  - A premier investigative agency of **international repute**, ensuring prompt, fair and impartial investigations in matters of public importance
  - Public confidence through **transparency, technology and accountability**
- **Mission** (updated **2022**):

FIVE MISSION OBJECTIVES

Objective	Meaning
Professionalism	Evidence-based, scientific and timely investigations
Integrity	Moral and legal rectitude in public dealings
Public Trust	Confidence in rule of law and constitutional governance
Innovation	Digital forensics, data analytics and AI
Coordination	Synergy with state police, vigilance bodies and global partners against transnational crime

- **Memory aid (Mission): P**rofessionalism, **I**ntegrity, **P**ublic trust, **I**nnovation, **C**oordination: "**P**olice **I**nvestigate **P**roperly, **I**nnovating **C**onstantly."

ORGANISATIONAL STRUCTURE AND DIVISIONS

- The CBI is a multidisciplinary agency (legal, forensic and administrative expertise) with headquarters in **New Delhi** and regional offices in all major states. Director, Special/Additional Directors, Joint Directors, DIGs, SPs, Inspectors, Sub-Inspectors and technical experts form the ladder.

TOP-LEVEL COMPOSITION

Position	Appointment	Rank	Function
Director	Central Government on recommendation of PM + CJI + LoP committee	Director General of Police	Head; overall administrative and operational control
Special / Additional Directors	DoPT in consultation with ACC	ADGP / DGP rank	Supervise major divisions and zonal offices
Joint Directors	Senior IPS officers	IG rank	Head specialised branches (Anti-Corruption, Economic Offences and so on)

MY NOTES

Position	Appointment	Rank	Function
Deputy Inspectors General (DIGs)	Senior officers from IPS, IRS, IA&AS	DIG rank	Lead investigation units
Superintendents of Police (SPs)	Direct field operations	SP rank	Register FIRs, supervise cases
Inspectors / Sub-Inspectors / Technical experts	Recruited through UPSC or deputation	Field officers and experts	Searches, interrogations, forensic coordination

KEY DIVISIONS

Division	Mandate
Anti-Corruption Division (ACD)	Corruption, bribery and misconduct of public servants under the Prevention of Corruption Act, 1988; Central departments, PSUs, banks, autonomous bodies; under CVC superintendence
Economic Offences Division (EOD)	Large financial frauds, bank scams, money-laundering, corporate crimes; works with ED, SFIO, RBI; recent focus on NPA frauds and shell companies (post-2018 banking reforms)
Special Crimes Division (SCD)	Terrorism, organised crime, cybercrime, trafficking, homicide with inter-state or international ramifications; often takes cases transferred by the SC or HCs; examples: Aarushi-Talwar, Satyam, Vyapam
Policy and Coordination Division (PCD)	Investigation policy, training, budget, liaison; India's **NCB for Interpol**: cross-border cooperation and extradition requests
Directorate of Prosecution (DoP)	Prosecution before Special CBI Courts; supervises Public Prosecutors; headed by a Director of Prosecution appointed by the Central Government in consultation with the CVC
Technical and Forensic Division	Cyber-forensics, fingerprint analysis, digital evidence reconstruction, central forensic database; works with CFSL and NIC

- **Memory aid (Divisions):** **A**nti-corruption, **E**conomic offences, **S**pecial crimes, **P**olicy and coordination, **D**irectorate of prosecution, **T**echnical and forensic: "**A**ll **E**xperts **S**earch **P**roofs, **D**ocument **T**ruth."

MY NOTES

HANDOUT ALERT

Handout alert: The Legal Status table says the CBI has **five main divisions** (Anti-Corruption, Economic Offences, Special Crimes, Policy and Coordination, **Administration**), while the divisions section lists **six** (adding the Directorate of Prosecution and the Technical and Forensic Division, with no Administration Division). For "five main divisions" use ACD, EOD, SCD, PCD and Administration. Case examples also vary: Aarushi-Talwar, Satyam, Vyapam (divisions) against Nirbhaya, 2G Spectrum, Satyam (functions); court-monitored: Vyapam and Saradha chit fund.

JURISDICTION AND POWERS

SCOPE

- The CBI's jurisdiction covers offences with:
- **Inter-State or international** implications;
- **National importance** (integrity, security, economic interests);
- **Central Government employees and PSUs** (corruption, bribery, misuse of office).
- It may investigate:
  - Cases notified under the DSPE Act, 1946
  - Offences under the **Prevention of Corruption Act, 1988**
  - Serious economic offences, bank frauds, cybercrimes and smuggling
  - And any case referred by the **Central Government, Supreme Court or High Courts**

TAKING OVER CASES

THREE ROUTES TO A CBI CASE

- **State request**: A State Government formally asks the Centre to transfer a case to the CBI
- **Judicial direction**: The Supreme Court or a High Court orders a CBI probe in the interest of justice
- **Central notification**: The Centre directs a case of national significance under **Section 5 of the DSPE Act**
- **Memory aid (Takeover routes): S**tate request, **J**udicial direction, **C**entral notification (Sec. 5): "**S**omeone **J**ust **C**alled."

POWERS OF INVESTIGATION

- Powers similar to a police officer under the **CrPC and the DSPE Act**:
- **Search and seizure**: search premises, seize evidence, secure documents.
- **Arrest and custody**: arrest suspects in registered cases.

MY NOTES

- **Summoning and interrogation**: summon witnesses, record statements, interrogate the accused.
- **Prosecution**: after investigation, prosecutes in **Special CBI Courts** under the supervision of the Department of Personnel and the CVC.

TERRITORIAL LIMITS

- Jurisdiction in **Union Territories is direct**.
- Within states it depends on **state consent under Section 6** of the DSPE Act.
- Where a state has withdrawn general consent, the CBI **cannot register new cases** but can **continue cases already registered** before withdrawal (reaffirmed by the Supreme Court in 2020, CBI vs State of Rajasthan).

ALSO IN THE HANDOUT

- Power to Take Over Cases The CBI can assume investigation of a case under three situations: - State Government Request: When a State Government formally requests the Centre to transfer a case to the CBI.
- Territorial Limitations The CBI's powers are not automatically applicable throughout India.

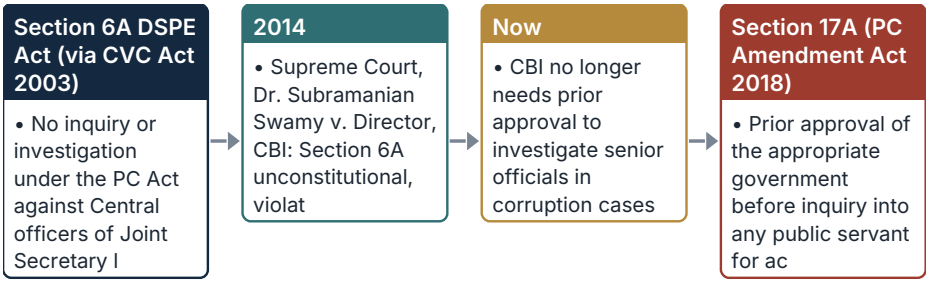
PRIOR PERMISSION: SECTIONS 6A AND 17A

THE PRIOR SANCTION STORY

- **Section 6A DSPE Act (via CVC Act 2003)**:
  - No inquiry or investigation under the PC Act against Central officers of **Joint Secretary level and above** without prior sanction
  - Meant to block "frivolous or motivated" probes
- **2014**: Supreme Court, **Dr. Subramanian Swamy v. Director, CBI**: Section 6A **unconstitutional**, violates **Article 14** by distinguishing officers on rank
- **Now**: CBI no longer needs prior approval to investigate senior officials in corruption cases
- **Section 17A (PC Amendment Act 2018)**: **Prior approval of the appropriate government** before inquiry into any public servant for acts in discharge of official duty

MY NOTES

THE PRIOR SANCTION STORY



SECTION 6A AGAINST SECTION 17A

- **Section 6A (struck down 2014):**
  - Joint Secretary and above
  - DSPE Act
  - Via CVC Act 2003
  - Violated Article 14 by rank-based distinction
- **Section 17A (2018):**
  - Any public servant
  - For acts in official duty
  - Approval of the appropriate government
  - Balances honest decision-making and accountability

EXCEPTIONS TO APPROVAL

- **No prior approval** if the accused is **caught red-handed while accepting a bribe**.
- In cases **referred by courts or constitutional authorities** (for example the CVC or Lokpal) the CBI proceeds **without further sanction**.
- **Shortcut: Sanction shortcut. 6A = rank-based, dead in 2014 (Art. 14). 17A = act-based, alive since 2018. Red-handed and court-referred cases skip approval.**

ALSO IN THE HANDOUT

- This ensures a balance between protecting honest decision-making and enabling accountability in governance.

CBI AGAINST STATE GOVERNMENTS

- Law and order is a **State subject** (**List II, Seventh Schedule**), but the CBI derives authority from the DSPE Act for offences in Central departments or with inter-state implications. State consent (**Section 6**) is the precondition for CBI jurisdiction in a state.

GENERAL AGAINST SPECIFIC CONSENT

- **General consent:** Given by a state to investigate all cases within its borders, no per-case permission needed

MY NOTES

- **Specific consent:** When general consent is withdrawn, the CBI must seek case-by-case approval from the state
- **Withdrawals:** As of **2024**, **West Bengal, Kerala, Telangana, Punjab, Mizoram and Chhattisgarh** have withdrawn general consent, so fresh approval is needed for each investigation.

JUDICIAL INTERPRETATION

- **State of West Bengal v. Committee for Protection of Democratic Rights (2010)**:
- Even **without state consent**, the constitutional courts (**SC and HCs**) can direct the CBI to investigate under **Articles 32 and 226**.
- This flows from the judiciary's duty to enforce **fundamental rights** and the rule of law.
- So CBI powers are statutory, but **judicial directives can override state consent** in exceptional cases.

COORDINATION

- Joint Task Forces for inter-state crimes and corruption in PSUs.
- Periodic **MHA-CBI-State DGP meetings** on procedures and mutual assistance.
- Digital complaint and data-sharing portals for inter-jurisdictional investigations.
- **Memory aid (States that withdrew consent): W**est Bengal, **K**erala, **T**elangana, **P**unjab, **M**izoram, **C**hhattisgarh: "**W**e **K**eep **T**hieves **P**roperly **M**onitored, **C**losely."

ALSO IN THE HANDOUT

- This ensures that the CBI intervenes primarily in cases where neutrality, complexity, or national concern demand central oversight.
- Even without state consent, the constitutional courts (SC/HC) can direct the CBI to investigate any case under Articles 32 and 226.
- Administrative Coordination Despite periodic political friction, coordination frameworks exist: - Joint Task Forces for inter-state crimes and corruption in PSUs.

SUPERINTENDENCE AND OVERSIGHT

THREE-TIER OVERSIGHT

Tier	Authority	Role
Administrative	DoPT, Ministry of Personnel (under the overall charge of the PMO)	Administrative control
Functional	**Central Vigilance Commission**	Superintendence in corruption-related cases

MY NOTES

Tier	Authority	Role
Judicial	Supreme Court and High Courts	Monitor or direct investigations in sensitive cases

DUAL SUPERINTENDENCE

- The **CVC Act, 2003** clarified accountability:
- **Prevention of Corruption Act, 1988 cases**: **CVC** exercises superintendence.
- **All other cases** (economic offences, bank frauds, special crimes): the **Central Government** retains supervisory control.
- The framework followed **Vineet Narain v. Union of India (1998)**, which directed institutional safeguards against political interference.
- **Memory aid (Oversight): A**dministrative (DoPT), **F**unctional (CVC), **J**udicial (courts): "**A**ll **F**ile **J**ustly."
- **Prosecution oversight:** The handout also says prosecution in Special CBI Courts is under the supervision of the Department of Personnel and the CVC.

ALSO IN THE HANDOUT

- Supervision: Under the superintendence of the Central Vigilance Commission (CVC).

FUNCTIONS AND RESPONSIBILITIES

INVESTIGATIVE FUNCTIONS

INVESTIGATIVE FUNCTIONS

Function	What it covers
Anti-corruption	Principal agency under the PC Act, 1988: Central employees and PSUs; MPs, Ministers and senior officials; large-scale procurement, tender and defence corruption; under CVC superintendence
Economic and financial crimes	Complex financial frauds, bank scams, securities manipulation, cyber-offences, money laundering, referred by RBI, Ministry of Finance, ED, SFIO, SEBI; often nodal agency for multi-agency coordination
Special crimes	Terrorism, organised crime, human trafficking, high-profile murders with inter-state or national ramifications; examples Nirbhaya, 2G Spectrum, Satyam
Court-monitored probes	Courts entrust cases when state agencies' impartiality is questioned, supervised by the judiciary; examples Vyapam and Saradha chit fund

MY NOTES

PREVENTIVE AND POLICY FUNCTIONS

- **Vigilance coordination**:
  - Advises the CVC and ministries on systemic reforms, vigilance manuals, corruption-risk mapping
  - Preventive vigilance reviews
- **Capacity building**: **CBI Academy at Ghaziabad** trains CBI officers and state police cadres in digital forensics, interrogation and financial-crime detection.
- **Legal and legislative inputs**: assists MHA and the Law Ministry in drafting criminal and anti-corruption laws, notably the **Prevention of Corruption (Amendment) Act, 2018**.

ADVISORY AND COORDINATING ROLE

- Cooperates with **Interpol (NCB)**, State Police, Income Tax Department, Customs and DRI, Lokpal and CVC.
- Helps frame national crime statistics, best-practice manuals and procedural reforms.

INTERNATIONAL COOPERATION

- Nodal agency for **Interpol India**: extradition requests, **Mutual Legal Assistance Treaties (MLATs)**, **red-corner notices**.
- Represents India at **UNODC, Interpol General Assembly and OECD Working Group on Bribery**.
- Investigates foreign bribery, transnational frauds and cross-jurisdiction cybercrime.

PROSECUTION AND JUDICIAL INTERFACE

- Prosecutes all registered cases through **CBI Special Courts**.
- The **Director of Prosecution** works independently within the CBI and coordinates with the Directorate of Public Prosecution under the Law Ministry.
- Assists in appeals and legal opinions in high-profile corruption cases.

ALSO IN THE HANDOUT

- Subsequent Developments and Diversification - Over the decades, the CBI evolved beyond its initial anti-corruption focus to become a multi-faceted investigative organisation.
- It also participates in preventive vigilance reviews and inter-departmental audits to identify procedural loopholes.
- The system leverages machine learning to identify red flags in tendering, PSU contracts, and procurement patterns.
- This cross-regulatory coordination strengthens financial vigilance and reduces investigation latency.

MY NOTES

RECENT REFORMS AND DEVELOPMENTS

REFORMS BY YEAR

Year	Development
2021	**DSPE (Amendment) Act, 2021** (ordinance first): Director's tenure from two years to up to **five** in three one-year extensions; annual approval of the **ACC**
2021	Revised **coordination guidelines with Lokpal**: CBI as investigating arm for corruption cases against **Group 'A' and 'B' central officers** referred by Lokpal; time-bound reporting to CVC and Lokpal
2022	CBI database integrated with **NAFIS** (National Automated Fingerprint Identification System) with the NCRB: a pan-India biometric repository
2022	**Inter-Agency Coordination Group (ICG)** of CBI, ED, SFIO, NIA and DRI; intelligence on economic offences, terror funding, money laundering
2022	**Revised Manual of Investigation**: first update since 2005; digital evidence, witness protection, inter-agency transfers; e-FIR filing, blockchain documentation, gender-sensitive interrogation
2022	Mission statement updated
2023	**Central Forensic Coordination Centre (CFCC)** under MHA: forensic standardisation; CBI uses digital labs for authentication and chain of custody with AI-based facial and voice analysis
2023	**Project CHAKRAVYUH** to fast-track Red Corner Notice processing; digital evidence exchange for extradition (2020-24 INTERPOL expansion)
2023	**AI and Data Analytics Division**: predicts corruption risk, analyses call data records, automates evidence mapping
2024	**MoUs with RBI, SEBI and ED** for real-time data sharing on bank frauds, insider trading and capital market violations
2025	**Online Case Status Portal**; internal **Ethics and Integrity Unit** to investigate CBI officers' misconduct

- **Memory aid (Recent reforms):** **T**enure (2021), **L**okpal link (2021), **N**AFIS (2022), **I**CG (2022), **M**anual (2022), **A**I unit (2023), **F**orensic CFCC (2023), **P**ortal (2025): "**T**he **L**aw **N**ever **I**gnores **M**odern **A**nalytics, **F**orensics, **P**ortals."

LEGAL STATUS, JURISDICTION AND SUPERINTENDENCE IN BRIEF

QUICK TABLE (THE HANDOUT'S SECOND SUMMARY)

Row	Details
Legal status	Not a constitutional body; works under the DSPE Act 1946; under Ministry of Personnel, Public Grievances and Pensions (DoPT)

MY NOTES

Row	Details
Establishment	SPE 1941 by executive order (War and Supply Department corruption); reconstituted as the CBI in 1963 by an MHA Resolution, after the Santhanam Committee
Head	Director, CBI: Principal Police Officer of the Central Government for DSPE cases
Structure	Director, Special Directors, Additional Directors, Joint Directors, DIGs, SPs and others; five main divisions
Appointment	High-level selection committee under Section 4A (PM, LoP, CJI or nominee)
Jurisdiction	PC Act 1988; Indian Penal Code (economic and special crimes); Central employees and PSUs; states consent under Section 6 (general or case-specific)
Superintendence	CVC for PC Act cases; Central Government for others

HANDOUT ALERT

Handout alert: The handout repeats the Director's appointment, tenure and removal in two tables with slightly different wording (rank, statute, committee description). Stray PDF numbering (3, 4, 5, 10-13, Q1-Q3) is dropped. The last sentence of the prosecution list is cut off in the PDF ("high-profile corruption case").

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 65, CENTRAL BUREAU OF INVESTIGATION

- The Special Police Establishment of 1941 was first under the War and Supply Department
- The 1946 Act moved superintendence to the Home Department and widened it to all departments
- In 1963 the Delhi Special Police Establishment was merged into the CBI as one of its divisions
- The CBI was later moved to the Ministry of Personnel
- NIA versus CBI:
  - The NIA (formed after the 2008 Mumbai attack) investigates terror attacks and terror funding
  - The CBI handles corruption, economic offences and serious organised crime other than terrorism
- Outside the DSPE Act's reach: the CBI cannot exercise powers in a state (other than railway areas) without that state's consent.
- LK lists six functions, adding:
  - Fiscal and economic laws (export-import control, customs, central excise, income tax, foreign exchange), taken up in consultation with or at the request of the department

MY NOTES

    - Coordination of anti-corruption agencies and state police
    - Taking up cases of public importance on a state's request
    - Keeping crime statistics
- Murder, kidnapping and rape are taken up on a state's reference or when the SC or a High Court directs.
- CBI versus state police:
    - The DSPE takes cases mainly about Central Government affairs or employees (even if state employees are involved), plus employees of Central public undertakings and statutory bodies
    - The state police take cases mainly about state affairs
- Lokpal Act, 2013 changes:
    - A Directorate of Prosecution (headed by a Director under the CBI Director, appointed on the CVC's recommendation) for Lokpal cases
    - Officers of SP rank and above are appointed on the recommendation of a committee of the Central Vigilance Commissioner, Vigilance Commissioners, Home Secretary and DoPT Secretary
- The DSPE (Amendment) Act, 2014: if there is no recognised Leader of Opposition, the leader of the single largest opposition party in the Lok Sabha sits on the Director's selection committee.
- Lakshmikanth differs: it states plainly that the CBI is not a statutory body (powers from the DSPE Act, set up by 1963 resolution). Use that line for the exam.
- Lakshmikanth differs: its mission is 'to uphold the Constitution and law through in-depth investigation and successful prosecution, give leadership to police forces and be the nodal agency for inter-state and international cooperation', with a nine-point vision. The handout lists a five-point mission (professionalism, integrity, public trust, innovation, coordination, updated 2022). Use the handout in class.

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Is the CBI constitutional or statutory?	Not constitutional; created by MHA Resolution 1 April 1963; works under the DSPE Act 1946 (handout also says "not statutory by origin").
Under which ministry does the CBI work?	DoPT, Ministry of Personnel, Public Grievances and Pensions.

MY NOTES

CBI motto?	Industry, Impartiality, Integrity.
What was the SPE?	Special Police Establishment, 1941, British; corruption in the War and Supply Department.
What did the DSPE Act 1946 do?	Moved SPE superintendence to the Home Department and widened its functions to all departments.
Which committee led to the CBI?	Santhanam Committee on Prevention of Corruption (1962-64).
Who selects the CBI Director?	Committee of PM (chair), Leader of Opposition in Lok Sabha, and CJI or nominee, under Section 4A DSPE Act.
Tenure of the Director?	Two years, extendable year by year up to five (DSPE Amendment Act 2021).
Who can remove the Director?	Only the Central Government, on the recommendation of the same committee (Section 4B and Vineet Narain).
Director's service conditions?	Same as a State DGP; cannot be varied to his disadvantage.
Which Directors need ACC approval?	Special, Additional and Joint Directors.
Name the main divisions.	Anti-Corruption, Economic Offences, Special Crimes, Policy and Coordination (plus Prosecution and Technical and Forensic in the divisions section; Administration in the legal-status table).
Three routes for the CBI to take over a case?	State request; SC or HC direction; Central notification under Section 5 DSPE Act.
What is general consent?	A state's blanket permission for the CBI to investigate all cases within it; if withdrawn, case-by-case (specific) consent is needed.
Which states withdrew general consent (2024)?	West Bengal, Kerala, Telangana, Punjab, Mizoram, Chhattisgarh.
After withdrawal of consent, can the CBI continue earlier cases?	Yes, cases registered before withdrawal (CBI vs State of Rajasthan, 2020); it cannot register new ones.
What did West Bengal v. CPDR (2010) hold?	Courts (SC and HC) can direct a CBI probe under Articles 32 and 226 even without state consent.

MY NOTES

What was Section 6A?	Prior sanction for probes against Joint Secretary and above, via the CVC Act 2003; struck down in 2014 under Article 14 (Subramanian Swamy).
What is Section 17A?	PC Amendment Act 2018: prior approval of the appropriate government before inquiry into acts in official duty.
Exceptions to prior approval?	Caught red-handed taking a bribe; cases referred by courts or constitutional authorities such as the CVC and Lokpal.
Who supervises the CBI?	DoPT (administrative); CVC (PC Act cases); Central Government (other cases); courts (judicial review).
Which case led to dual superintendence?	Vineet Narain v. Union of India (1998), with the CVC Act 2003.
CBI role with Interpol?	National Central Bureau: extradition, MLATs, red-corner notices.
Where is the CBI Academy?	Ghaziabad.
Which 2021 reform changed the Director's tenure?	DSPE (Amendment) Act 2021: up to 5 years in three one-year extensions, with annual ACC approval.
Name three 2023 developments.	CFCC under MHA; Project CHAKRAVYUH for Red Corner Notices; AI and Data Analytics Division.
What does the Inter-Agency Coordination Group include?	CBI, ED, SFIO, NIA and DRI (formed 2022).

Trap 1 · Statutory or not

The handout says the CBI draws its authority from the DSPE Act, but also that it is not a constitutional or statutory body by origin: it was created by a 1963 resolution. *Rule: not constitutional, and born by executive resolution; its powers come from the DSPE Act.*

Trap 2 · Section 6A, Section 6 and Section 17A

6A was prior sanction for senior officers (struck down in 2014, Art. 14). Section 6 is state consent. Section 17A (2018) needs prior approval for acts done in official duty. *Rule: 6A gone, 6 = state consent, 17A = current approval rule; no approval if caught red-handed.*

Trap 3 · Who supervises the CBI

The CVC superintends only corruption cases under the Prevention of Corruption Act, 1988. Other cases (economic offences, bank frauds, special crimes) stay under the Central Government. *Rule: dual superintendence after Vineet Narain and the CVC Act, 2003.*

MY NOTES

Trap 4 · Withdrawn state consent is not the end

With general consent withdrawn, the CBI cannot register new cases there but continues those already registered (CBI v. State of Rajasthan, 2020). Constitutional courts can still direct a CBI probe under Arts. 32 and 226 (West Bengal v. Committee for Protection of Democratic Rights, 2010). *Rule: consent binds the CBI, not the courts.*

QUICK QUIZ

Q1. The CBI was established in 1963 by

1. an Act of Parliament
2. a constitutional amendment
3. an MHA Resolution
4. a Supreme Court order

Q2. Which committee recommended a central investigative agency?

1. Santhanam Committee
2. Vohra Committee
3. Sarkaria Commission
4. Second ARC

Q3. The Director of the CBI is selected by a committee of

1. PM, Home Minister, CJI
2. PM, Leader of Opposition in Lok Sabha, CJI or nominee
3. President, PM, CJI
4. PM, Speaker, CJI

Q4. The tenure of the CBI Director is

1. fixed 5 years
2. fixed 2 years extendable up to 5 years
3. pleasure of the President
4. till age 65

Q5. Section 6A of the DSPE Act was struck down in 2014 because it violated

1. Article 14
2. Article 19
3. Article 21
4. Article 32

Q6. Section 17A of the Prevention of Corruption (Amendment) Act, 2018 requires

1. no approval for any public servant
2. prior approval of the appropriate government before inquiry into official acts
3. approval of the Lok Sabha Speaker
4. approval of the CJI

Q7. For corruption cases under the PC Act 1988 the CBI is under the superintendence of

1. Ministry of Home Affairs
2. CVC
3. Lokpal
4. Supreme Court

Q8. Which judgment led to the creation of safeguards for the CBI's independence?

1. Vineet Narain (1998)
2. Subramanian Swamy (2014)
3. West Bengal v. CPDR (2010)
4. CBI v. Rajasthan (2020)

Q9. Under which Articles can courts direct the CBI to investigate without state consent?

1. Articles 14 and 19
2. Articles 32 and 226
3. Articles 124 and 214
4. Articles 143 and 145

MY NOTES

Q10. State consent for CBI jurisdiction comes under which section of the DSPE Act?

1. Section 4A
2. Section 5
3. Section 6
4. Section 6A

Q11. The CBI is the National Central Bureau of

1. Europol
2. Interpol
3. UNODC
4. OECD

Answers: Q1 c, Q2 a, Q3 b, Q4 b, Q5 a, Q6 b, Q7 b, Q8 a, Q9 b, Q10 c, Q11 b

MY NOTES

CHAPTER 43 · HANDOUT CHAPTER: CENTRAL VIGILANCE COMMISSION (WITH THE WHISTLE BLOWERS PROTECTION ACT, 2014)

43 Central Vigilance Commission

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

MY NOTES

EXAM LENS

MY NOTES

Prelims hooks

- composition (1 + up to 2)
- who appoints and the committee members
- tenure and age
- reappointment bar
- equivalence of pay with UPSC Chairperson and Members
- Section 6 grounds of removal
- Santhanam Committee and the 1964 Resolution
- CVC Act, 2003
- CBI superintendence
- CVO role
- Whistle Blowers Protection Act, 2014 (competent authority, SPG exclusion, punishment).
- Handout stresses: No PYQ section is quoted for this chapter in the material (priority badge is computed from the handout's own PYQ counts) (Whole chapter)
- Handout stresses: Composition: Central Vigilance Commissioner plus not more than two Vigilance Commissioners; appointment committee PM, Home Minister, LoP (Section 2)
- Handout stresses: Tenure four years or age 65 whichever is earlier; earlier it was five years, changed by the Lokpal and Lokayuktas Act, 2013 (Section 2)
- Handout stresses: Removal: President, six grounds; proved misbehaviour or incapacity only after a Supreme Court inquiry (Section 2)
- Handout stresses: Superintendence over the CBI in Prevention of Corruption Act cases, but the CVC cannot direct the CBI to start prosecution (Sections 3 and 5)
- Handout stresses: Vineet Narain v. Union of India and the Santhanam Committee (Section 1)

Mains hooks

- none quoted in the material
- Likely angles from the notes: statutory status and independence of the CVC, its limited power over the CBI, preventive vigilance and digital reforms, protection of whistle-blowers.

MY NOTES

The CVC is a watchdog that advises, supervises and coordinates; its independence rests on statute, a bipartisan committee, security of tenure and a charge on the Consolidated Fund.

IN SIMPLE WORDS

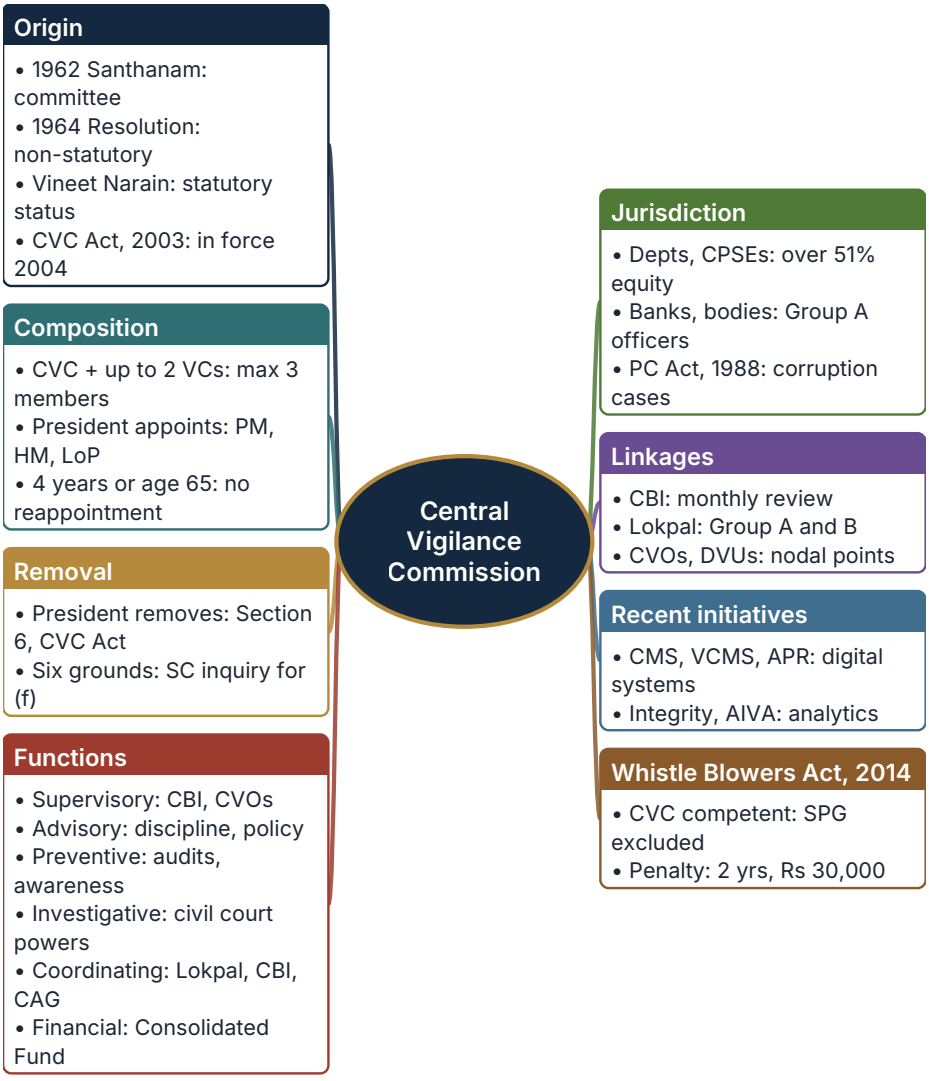
- The **CVC** is the **apex vigilance institution** of the Centre. It began in **1964** by a government **resolution** (Santhanam Committee), was pushed to statutory status by the **Vineet Narain** case (**1998**) and became **statutory** under the **CVC Act, 2003**.
- It has a **Central Vigilance Commissioner** (chair) and **up to two Vigilance Commissioners**. The **President** appoints them on the advice of a committee of the **PM, Home Minister and Leader of Opposition**.
- Tenure is **4 years or age 65**, whichever is earlier
- **no reappointment** (a Vigilance Commissioner may become the Commissioner). Pay equals the **UPSC Chairperson and Members**. Removal for misbehaviour or incapacity needs a **Supreme Court inquiry**
- The CVC **superintends the CBI in corruption cases**, reviews progress, supervises **CVOs** in ministries, PSUs and banks, advises on discipline and promotes preventive vigilance. It assists the **Lokpal** for Group A and B officers.
- Under the **Whistle Blowers Protection Act, 2014** the CVC is the **competent authority**. Disclosures need good faith and documents
- Anonymous ones get no action
- False complaints face **2 years and Rs 30,000**
- The **SPG is excluded**

Key term	In plain words
Vigilance Commissioner	Member of the CVC (not more than two) who assists the Central Vigilance Commissioner
Chief Vigilance Officer (CVO)	Nodal vigilance officer in each Ministry, Department, PSU and bank, working under CVC guidance
Superintendence	CVC's supervisory control over CBI in Prevention of Corruption Act cases
Preventive vigilance	Reviews, audits and awareness (for example Vigilance Awareness Week) to close corruption loopholes
Suo motu inquiry	CVC can start an inquiry on its own when there is prima facie evidence

MY NOTES

Key term	In plain words
PIDPI	Public Interest Disclosure and Protection of Informers framework; the whistle-blower channel run through the CVC
Competent authority	The body that receives and inquires into whistle-blower disclosures; the CVC under the 2014 Act
Integrity Index	Framework developed with IIM-Ahmedabad that ranks over 500 public organisations

MEMORY MAP: CENTRAL VIGILANCE COMMISSION



MY NOTES

MNEMONIC · SUPERVISORY FUNCTIONS OF THE CVC

C O P

- **C** CBI: superintendence over its investigations under the Prevention of Corruption Act
- **O** Oversees the Chief Vigilance Officers (CVOs) in each Ministry, Department and PSU
- **P** Progress of investigations and prosecutions reviewed (CBI, PSUs, central bodies)

The CVC is the corruption COP that supervises the CBI, the CVOs and case progress. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · MAKING A WHISTLE-BLOWER DISCLOSURE

S A F E

- **S** Supporting documents or evidence with full particulars
- **A** Anonymous or false-identity complaints: no action is taken
- **F** Faith: personal declaration that the information is in good faith and substantially true
- **E** Electronic or written mode: in writing or by email

A disclosure must be SAFE: the four requirements in the handout's procedure. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · ORGANS OF THE CVC (LAKSHMIKANTH)

S I T

- **S** Secretariat
- **I** Inquiry: Commissioners for Departmental Inquiries (oral inquiries as Inquiry Officers)
- **T** Technical: Chief Technical Examiners' Wing (engineers, technical audit of construction works)

The CVC's three organs SIT inside the Commission: office, inquiry arm and technical arm. The order is rearranged for memory. (Memory aid, not from the handout.)

INTRODUCTION AND ESTABLISHMENT

- The **Central Vigilance Commission (CVC)** is the **apex vigilance institution** of India. It promotes integrity, transparency and accountability in public administration and works as an **independent statutory body** against corruption in government organisations and public sector undertakings. It acts as a watchdog of the Central Government so that public officials act with honesty and efficiency.
- Set up in **1964** by a **Government of India Resolution**, on the recommendations of the **Committee on Prevention of Corruption (Santhanam Committee)**.

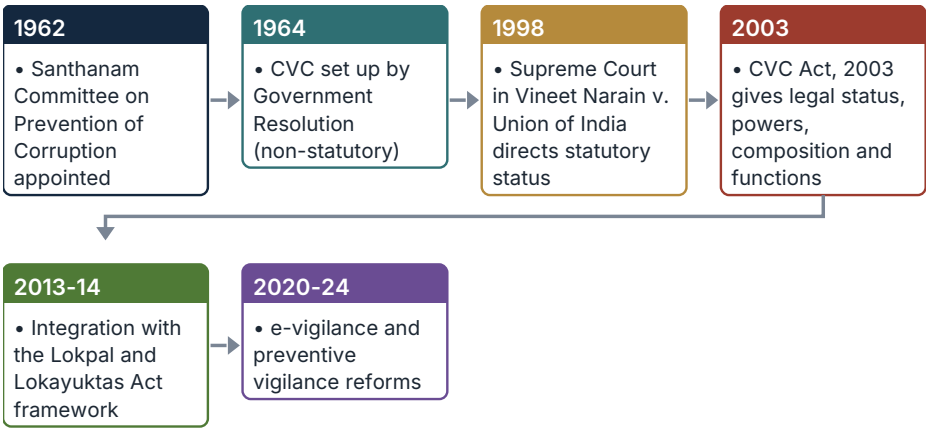
MY NOTES

- With no statutory backing, its effectiveness was limited.
- The **Central Vigilance Commission Act, 2003** gave it **statutory status** and independence from executive control.
- Today it is the **nodal agency for vigilance administration**, coordinating between ministries, the **CBI** and public sector entities.

FROM RESOLUTION TO STATUTE

- **1962**: Santhanam Committee on Prevention of Corruption appointed
- **1964**: CVC set up by Government Resolution (non-statutory)
- **1998**: Supreme Court in Vineet Narain v. Union of India directs statutory status
- **2003**: CVC Act, 2003 gives legal status, powers, composition and functions
- **2013-14**: Integration with the Lokpal and Lokayuktas Act framework
- **2020-24**: e-vigilance and preventive vigilance reforms

FROM RESOLUTION TO STATUTE



EVOLUTION OF THE CVC (THE HANDOUT'S TABLE, REBUILT)

Year or phase	Event	Development and significance
1962	Appointment of the Santhanam Committee on Prevention of Corruption	Recommended creation of an independent vigilance body
1964	Establishment of CVC by Government Resolution (non-statutory)	First institutionalised effort to centralise vigilance oversight
1998	Supreme Court judgement in Vineet Narain v. Union of India	Directed that CVC be given statutory status to ensure autonomy
2003	Enactment of the CVC Act, 2003	Gave legal status; defined powers, composition and functions

MY NOTES

Year or phase	Event	Development and significance
2013-14	Integration with Lokpal and Lokayuktas Act framework	Strengthened its role in assisting Lokpal investigations
2020-24	Adoption of e-vigilance and preventive vigilance reforms	Expanded CVC's digital monitoring and coordination functions

HANDOUT ALERT

Handout alert: The Vineet Narain judgment is dated **1998** in the evolution table but **1997** in the CBI-relationship table of the same chapter. The handout does not reconcile them. Quote the year from the question's own option; if forced, note both and remember the case itself (statutory status, superintendence over the CBI).

- **Memory aid (Origin in four beats):** **S**anthanam Committee, **R**esolution 1964 (non-statutory), **V**ineet Narain (statutory status directed), **A**ct 2003: "**S**mart **R**ules **V**anquish **A**buse."
- **Where it sits:** It functions under the administrative control of the Ministry of Personnel, Public Grievances and Pensions. The CVC Act, 2003 came into force in **2004**.

ALSO IN THE HANDOUT

- Between 2020 and 2025, it launched multiple initiatives aimed at enhancing transparency, procedural accountability, and citizen engagement in vigilance governance.

COMPOSITION, APPOINTMENT, TENURE AND REMOVAL

CVC AT A GLANCE (THE HANDOUT'S PARAMETER TABLE, REBUILT)

Parameter	Details
Legal status	Statutory body under the Central Vigilance Commission Act, 2003 (came into force in 2004); administrative control of the Ministry of Personnel, Public Grievances and Pensions
Composition	(a) Central Vigilance Commissioner as Chairperson and (b) not more than two Vigilance Commissioners as Members; total strength not more than three
Appointing authority	President of India, by a warrant under his hand and seal
Appointment committee	Three members: Prime Minister (Chairperson), Minister of Home Affairs (Member), Leader of Opposition in the Lok Sabha (Member). If there is no recognised LoP, the leader of the single largest opposition party is deemed LoP
Eligibility	Persons of impeccable integrity and eminence in public life, with wide knowledge and experience in administration, vigilance, law, finance or anti-corruption. Cannot be an MP, a member of a Legislature, or hold any office of profit

MY NOTES

Parameter	Details
Tenure	Four years or until age 65, whichever is earlier (earlier five years; amended by the Lokpal and Lokayuktas Act, 2013 for uniformity)
Re-appointment	Not eligible. A Vigilance Commissioner may be appointed Central Vigilance Commissioner, within the same overall four-year limit
Service conditions	CVC: same as Chairperson, UPSC. VCs: same as Members, UPSC. Cannot be varied to their disadvantage during tenure
Removal authority	President of India, on specified grounds

- **Memory aid (Appointment committee): P**M (chair), **H**ome Minister, **L**oP in Lok Sabha: "**P**olice **H**ave **L**ists", a three-person panel with the Home Minister in it.
- **Shortcut: Count shortcut. 1 + 2 = 3**: one Commissioner plus at most two VCs, never more than three. **4 and 65**: four years or age 65, whichever comes first.

APPOINTING THE CVC AGAINST THE CBI DIRECTOR

- **CVC and VCs:** President appoints on a committee of PM, Home Minister, LoP
- **CBI Director:** Selected by a committee of PM, Leader of Opposition and Chief Justice of India (post-Lokpal Act, 2013)

REMOVAL (SECTION 6 OF THE CVC ACT, 2003)

- The President can remove the CVC or any VC on these grounds:
- (a) Insolvency
- (b) Conviction of an offence involving moral turpitude
- (c) Engaging in paid employment during office
- (d) Mental or physical infirmity
- (e) Financial or other interest affecting official duties
- (f) Proved misbehaviour or incapacity, after a **Supreme Court inquiry** and recommendation to the President
- **Memory aid (Six grounds): I**nsolvency, **C**onviction (moral turpitude), **P**aid employment, **M**ental or physical infirmity, **F**inancial interest, **P**roved misbehaviour: "**I C**an't **P**ay **M**y **F**ine **P**romptly."

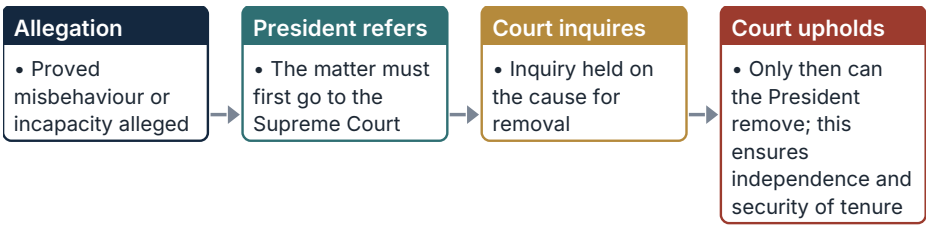
SAFEGUARD AGAINST ARBITRARY REMOVAL

- **Allegation**: Proved misbehaviour or incapacity alleged
- **President refers**: The matter must first go to the Supreme Court
- **Court inquires**: Inquiry held on the cause for removal
- **Court upholds**:
  - Only then can the President remove

MY NOTES

- This ensures independence and security of tenure

SAFEGUARD AGAINST ARBITRARY REMOVAL



- **Pattern:**
  - Grounds (a) to (e) lead straight to removal by the President
  - Only ground (f), misbehaviour or incapacity, needs the Supreme Court inquiry first

ALSO IN THE HANDOUT

- The Act institutionalises citizen participation in anti-corruption efforts by providing legal protection to those who act in the public interest.

FUNCTIONS AND POWERS

- The CVC combines **advisory, supervisory, preventive and coordinating** roles. Its functions derive primarily from **Sections 8 and 11** of the CVC Act, 2003.
- **Memory aid (Six heads of functions):** **S**upervisory, **A**dvisory, **P**reventive and educational, **I**nvestigative and quasi-judicial, **C**oordinating and monitoring, **F**inancial and administrative: "**S**harp **A**uditors **P**revent **I**llegal **C**ash **F**low."

A. SUPERVISORY AND OVERSIGHT FUNCTIONS

- **Superintendence over the CBI**: over CBI investigations in cases under the **Prevention of Corruption Act, 1988**, especially those involving senior public officials. This keeps corruption investigations impartial and free from political or bureaucratic pressure.
- **Review of progress and prosecutions**:
  - Reviews investigations and prosecutions by the CBI, public sector undertakings and other central organisations
  - Monitors pending cases and disciplinary proceedings for time-bound action
- **Supervision of vigilance units**:
  - Oversees **Chief Vigilance Officers (CVOs)** posted in each Ministry, Department and PSU
  - CVOs are the nodal officers for departmental vigilance, under the CVC's technical guidance

MY NOTES

B. ADVISORY FUNCTIONS

- **Advice on disciplinary matters**: advises the Central Government and public sector organisations on disciplinary proceedings against officials under investigation. Advisory in nature, but its recommendations carry high persuasive value and are normally accepted.
- **Policy advice**: formulates and updates vigilance manuals, holds consultations, recommends policy changes for ethical conduct and preventive vigilance.
- **Consultation with other authorities**: consulted on appointment, transfer and posting of CVOs and vigilance staff in major departments and public enterprises.

C. PREVENTIVE AND EDUCATIONAL FUNCTIONS

- **Promotion of integrity**: campaigns such as **Vigilance Awareness Week** and Preventive Vigilance Frameworks.
- **Preventive vigilance audits**: periodic reviews of systems and procedures in corruption-prone areas to find loopholes and recommend reforms.
- **Training and capacity building**: with the Institute of Public Administration (IIPA) and other bodies, orientation programmes for vigilance officers and managers.
- **Public outreach**: the CVC Portal and complaint mechanisms let citizens report corruption and track action taken (participatory vigilance).

D. INVESTIGATIVE AND QUASI-JUDICIAL FUNCTIONS

- **Inquiry into complaints**: can inquire, or cause inquiry, into corruption, favouritism, abuse of position or lack of integrity against public servants.
- **Suo motu action**: can start inquiries in serious irregularities even without a formal complaint, if there is prima facie evidence.
- **Summoning and inspection**: powers **equivalent to a civil court** in inquiries: summoning witnesses, examining them on oath, requisitioning public documents.
- **Recommending action**: recommends departmental proceedings, criminal prosecution or other corrective measures.

E. COORDINATING AND MONITORING FUNCTIONS

- **Coordination with Lokpal**: under the Lokpal and Lokayuktas Act, 2013, assists the Lokpal in preliminary inquiries involving **Group A and B** officers.
- **Inter-agency cooperation**: nodal link among the **CBI, the Comptroller and Auditor General (CAG)** and departmental vigilance units for data sharing and coordinated action.

MY NOTES

- **Annual vigilance report**: compiled and submitted to the **President**, laid before **both Houses of Parliament**.

F. FINANCIAL AND ADMINISTRATIVE POWERS

- Budget is **charged on the Consolidated Fund of India**, ensuring independence from executive control.
- Can appoint, transfer or assign duties to its officers and staff and decide procedures for handling vigilance cases.
- Can **delegate functions** to subordinate authorities for case management and coordination.

ADVISORY VERSUS INVESTIGATIVE

- **Advisory side:**
  - Disciplinary advice normally accepted
  - Vigilance manuals
  - Consulted on CVO postings
- **Investigative side:**
  - Inquiry on complaint or suo motu
  - Civil court powers
  - Recommends prosecution or departmental action
- **Shortcut: Independence shortcut. Independent** because of: statute (2003), bipartisan committee, SC-inquiry removal, UPSC-equal pay that cannot be reduced, and budget **charged on the Consolidated Fund**.

JURISDICTION

- The CVC is the **apex coordinating authority** for vigilance across the Union Government.

JURISDICTION OF THE CVC (THE HANDOUT'S TABLE, REBUILT)

Category	Scope
1. Central Government Departments	All Ministries and Departments of the Union Government, including attached and subordinate offices
2. Central Public Sector Enterprises (CPSEs)	All PSUs where the Central Government holds **more than 51%** equity, including banks, insurance companies and major corporations such as ONGC, BHEL and LIC
3. Autonomous and Statutory Bodies	Organisations substantially financed or controlled by the Union Government (e.g. AIIMS, NHAI, UIDAI)
4. Public Sector Banks and Financial Institutions	Vigilance administration in nationalised banks and financial institutions through nominated CVOs
5. Group A Central Government officers	Officers of All-India and Central Civil Services serving in the Union Government or its undertakings

MY NOTES

Category	Scope
6. Matters under the Prevention of Corruption Act, 1988	All corruption cases involving Central Government officials under this Act, including those investigated by the CBI

- **Memory aid (Six jurisdiction heads):** **D**epartments, **C**PSEs (over 51%), **A**utonomous and statutory bodies, **B**anks, **G**roup A officers, **P**C Act cases: "**D**on't **C**ut **A**ny **B**ig **G**overnment **P**apers."

RELATIONSHIP WITH OTHER AGENCIES

WITH THE CBI

CVC AND CBI (THE HANDOUT'S TABLE, REBUILT)

Aspect	Details
Superintendence role	Superintendence over the CBI in matters under the Prevention of Corruption Act, 1988. Stems from the Vineet Narain v. Union of India (1997) judgment and is codified in the CVC Act, 2003
Approval and review	Reviews progress of CBI corruption cases every month and ensures completion within prescribed timeframes
Independence assurance	CBI Director selected by a committee of the Prime Minister, Leader of Opposition and Chief Justice of India (post-Lokpal Act, 2013), keeping both agencies autonomous
Coordination framework	Joint review mechanism: vigilance data from departments are shared with the CBI through CVOs under CVC guidance
Limitations	The CVC **cannot direct the CBI to initiate prosecution**, but can recommend investigations and monitor progress

WITH THE LOKPAL

CVC AND LOKPAL (THE HANDOUT'S TABLE, REBUILT)

Aspect	Details
Statutory linkage	Under the Lokpal and Lokayuktas Act, 2013, the CVC assists the Lokpal in preliminary inquiries into corruption complaints against Group A and Group B officers of the Central Government
Forwarding of complaints	Lokpal forwards such cases to the CVC, which directs the appropriate vigilance authority or the CBI to investigate
Oversight and reporting	CVC reports progress and final action on referred cases back to the Lokpal within a stipulated time
Complementary role	Lokpal is primarily investigative and prosecutorial; the CVC focuses on prevention, monitoring and coordination, ensuring non-overlap and synergy

MY NOTES

WITH CVOS AND DEPARTMENTAL VIGILANCE UNITS

CVOS AND DVUS (THE HANDOUT'S TABLE, REBUILT)

Entity	Role under CVC supervision
Chief Vigilance Officers (CVOs)	Each Ministry, Department, PSU and Bank has a CVO as nodal point for vigilance. Appointed in consultation with the CVC; conducts preliminary inquiries and reports **quarterly** to the Commission
Departmental Vigilance Units (DVUs)	Maintain case registers, monitor disciplinary proceedings, implement the CVC's preventive vigilance measures
Coordination function	CVC periodically convenes review meetings with CVOs to assess case pendency, quality of inquiry and compliance with the Commission's advice

SUPERINTEND VERSUS DIRECT

- **CVC can:**
  - Superintend CBI corruption cases
  - Review them monthly
  - Recommend investigations
  - Monitor progress
- **CVC cannot:** Direct the CBI to initiate prosecution
- **Memory aid (Three partners):** **C**BI (superintend), **L**okpal (assist on Group A and B), **V**igilance officers (CVOs and DVUs): "**C**ome, **L**et's **V**erify."

> **HANDOUT ALERT**
> Handout alert: Both the CVC and the Lokpal's Inquiry Wing deal with Group A and B officers: the CVC **assists** the Lokpal in preliminary inquiries and reports back to it; the Lokpal sits above on prosecution. For the CVC's own listed jurisdiction, the handout names **Group A** officers only.

RECENT INITIATIVES (2020 TO 2025)

- The CVC has evolved from a case-centric body into a **data-driven, preventive and technology-enabled** institution.

TEN INITIATIVES (THE HANDOUT'S LIST, REBUILT)

No.	Initiative	What it does
1	Complaint Management System (CMS) Portal	Secure online platform to lodge corruption complaints; integrates CVC, CBI and CVO databases to remove duplication and give real-time tracking
2	Vigilance Case Management System (VCMS)	Digitally monitors every stage of vigilance cases from receipt to disposal; data analytics and dashboards

MY NOTES

No.	Initiative	What it does
3	Online Annual Property Return (APR) System	Digital submission and verification of property declarations by senior officers; helps detect disproportionate assets and conflicts of interest
4	e-Vigilance Clearance System	Paperless, time-bound vigilance clearances for promotions, foreign postings and deputations
5	Integrity Index Framework	Developed with IIM-Ahmedabad; ranks over 500 public organisations on transparency, ethical conduct and corruption-risk mitigation
6	AI-based Vigilance Analytics (AIVA) Unit	Established in **2023**; predictive analytics on procurement and financial data to flag red flags early
7	Preventive Vigilance Inspection Model (PVIM)	Structured audit tool for weaknesses in procurement, project management and fund utilisation
8	Whistle-blower Protection Monitoring (PIDPI Portal)	Stronger digital anonymity and encryption for informers under the Public Interest Disclosure framework
9	Vigilance Awareness Week and Integrity Pledge Portal	Annual campaign with e-pledges; over **1.6 crore** participants in **2024**; theme "Say No to Corruption"
10	Integration with Government e-Marketplace (GeM)	CVC gets audit access to procurement data to detect irregularities, vendor collusion and overpricing

- **Memory aid (Ten tools):** **C**MS, **V**CMS, **A**PR, **E**-clearance, **I**ntegrity Index, **A**IVA, **P**VIM, **W**histle-blower (PIDPI), **V**igilance Week pledge, **G**eM: "**C**ats **V**isit **A**ll **E**ager **I**nspectors, **A**sk **P**olice **W**ho **V**isited **G**ardens."
- **Shortcut: Grouping shortcut. Complain** (CMS, PIDPI), **Track** (VCMS, e-clearance), **Declare** (APR), **Predict** (AIVA, PVIM, GeM audit), **Rank and campaign** (Integrity Index, Vigilance Week).

WHISTLE BLOWERS PROTECTION ACT, 2014

- The Act gives a statutory mechanism to protect people who disclose **corruption, abuse of power or wilful misuse of authority** by public servants. It rests on the idea that citizens have a duty to report wrongdoing without fear of retaliation or victimisation.

OBJECTIVES

- **Memory aid (Three objectives):** **P**rotection to whistleblowers, **E**ncouragement of public interest disclosures, **I**nstitutional mechanism for complaints (including against ministers): "**P**ublic **E**yes **I**lluminate."

MY NOTES

- **Protection**: safeguard identity and safety of those who expose corruption or misuse of public office.
- **Encouragement**: promote disclosure of corrupt acts, maladministration or abuse of discretion through a secure channel.
- **Institutional mechanism**: an independent framework to receive and inquire into complaints of corruption or wilful misuse of power by public servants, **including ministers**.

COMPETENT AUTHORITY AND COVERAGE

- The **CVC** is the **competent authority** for receiving and inquiring into disclosures. The Government may, by notification, designate any other body.
- Applies to **all public servants**: employees of Central and State Governments, public sector undertakings and government-aided bodies, **except the Special Protection Group (SPG)**.

PROCEDURE FOR DISCLOSURE

MAKING A DISCLOSURE

- **Mode**: Complaint in writing or by electronic communication (email), as prescribed
- **Evidence**: Full particulars, with documents or material evidence supporting the allegations
- **Declaration**: Personal declaration that the information is in good faith and believed to be substantially true
- **Anonymous**: No action on complaints where the identity of the complainant or the public servant is not indicated or is found to be false

PROTECTION AND SAFEGUARDS

- **Identity protection**: confidentiality of the whistleblower's identity to prevent victimisation, harassment or physical harm.
- **No retaliation**: a person disclosing under the Act cannot be subjected to punitive or disciplinary action by the concerned public authority.
- **False complaints**: punishment of up to **two years' imprisonment** and a fine up to **Rs 30,000** for wilful false or frivolous disclosures.

LIMITATIONS AND EXCEPTIONS

- **SPG personnel** are excluded because of their sensitive security functions.
- Disclosures prejudicial to **national security** or covered by the **Official Secrets Act** may be exempted from inquiry.

MY NOTES

PROTECTED VERSUS PUNISHED

- **Protected:**
  - Good-faith disclosure with identity and evidence
  - Confidentiality
  - No punitive or disciplinary action
- **Punished:** Wilful false or frivolous disclosure: up to 2 years and Rs 30,000
- **Memory aid (Act in numbers):**
  - **C**VC is competent authority, **S**PG excluded, **2** years, Rs **3**0,000: "**C**VC **S**hields
  - **2** years for lies, **3**0,000 fine."

HANDOUT ALERT

Handout alert: The handout says the Act ensures **anonymity and confidentiality** of the whistleblower, yet also that **no action is taken on anonymous complaints** (where identity is not indicated or found false). Read them together: the whistleblower must give a verifiable identity to the authority, and the authority then **keeps that identity confidential**. The PIDPI portal with stronger anonymity and encryption is listed under the CVC's recent initiatives (Section 6).

- **Wider picture:** The handout says the Act complements the CVC, the Lokpal and the CBI as part of India's integrity architecture, aiming to turn fear into civic courage and secrecy into transparency.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 64, CENTRAL VIGILANCE COMMISSION

- After their tenure, the Central Vigilance Commissioner and Vigilance Commissioners are not eligible for further employment under the Central or a State Government.
- Misbehaviour is deemed if a member is interested in any contract with the Central Government or shares in its profit, other than as a member of an incorporated company in common with others.
- The CVC is the designated agency to act on whistle-blower complaints under the PIDPI Resolution, 2004, and the only agency designated to act against motivated or vexatious complainants.
- The CTE wing (Chief Engineers) does technical audit of construction works from a vigilance angle, investigates construction complaints, helps the CBI on technical matters and advises the CVC and CVOs.
- Added functions:
  - Inquire on a Central Government reference into Prevention of Corruption Act offences by its employees

MY NOTES

  - Inquire into complaints against members of All-India Services and Group A officers
  - Give directions to the DSPE on superintendence
  - Review pending applications for sanction of prosecution
  - And be consulted when the Centre makes rules on vigilance and discipline for Central and All-India Services
- Working: the CVC has the powers of a civil court and its proceedings are judicial in character. If the Government does not agree with its advice, it must record its reasons in writing and tell the CVC. Its annual report goes to the President, who places it before each House.
- Whistle Blowers Act: the year was first 2011 and was later changed to 2014.
- Lakshmikanth differs:
  - Jurisdiction is listed by rank, not by the handout's categories: All-India Services members and Group A officers
  - Scale V and above in public sector banks
  - Grade D and above in RBI, NABARD and SIDBI
  - E-8 and above (Schedule A and B PSUs) or E-7 and above (Schedule C and D PSUs)
  - Managers and above in general insurance
  - Senior Divisional Managers and above in LIC. Use the handout's categories for class and these ranks as extra detail

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

What is the CVC?	The apex vigilance institution of India: an independent statutory body promoting integrity, transparency and accountability in public administration.
When and how was the CVC first set up?	In 1964, by a Government of India Resolution on the Santhanam Committee's recommendation; it was non-statutory.
Which Act gave the CVC statutory status?	The Central Vigilance Commission Act, 2003 (in force 2004).
Which case led to a direction for statutory status?	Vineet Narain v. Union of India (the handout says 1998 in one table and 1997 in another).

What is the composition of the CVC?	A Central Vigilance Commissioner (Chairperson) and not more than two Vigilance Commissioners: at most three members.
Who appoints the CVC and on whose recommendation?	The President, by a warrant under hand and seal, on the recommendation of PM (Chairperson), Home Minister and LoP in Lok Sabha.
What if there is no recognised LoP?	The leader of the single largest opposition party is deemed LoP.
What are the eligibility bars?	Cannot be an MP, a member of a Legislature, or hold any office of profit.
What is the tenure of the CVC and VCs?	Four years or until age 65, whichever is earlier (earlier five years).
Can a CVC be reappointed?	No. A Vigilance Commissioner may be appointed CVC within the same overall four-year limit.
To whom is the CVC's pay equal?	CVC: Chairperson of the UPSC. VCs: Members of the UPSC. Not variable to their disadvantage.
Name the six grounds of removal.	Insolvency; conviction involving moral turpitude; paid employment; mental or physical infirmity; financial or other interest affecting duties; proved misbehaviour or incapacity (after SC inquiry).
Under which Sections do the CVC's functions arise?	Sections 8 and 11 of the CVC Act, 2003.
What are the six heads of CVC functions?	Supervisory, advisory, preventive and educational, investigative and quasi-judicial, coordinating and monitoring, financial and administrative.
What powers does the CVC have in inquiries?	Powers equivalent to a civil court: summon witnesses, examine on oath, requisition public documents; suo motu inquiry if prima facie evidence.
How is the CVC financially independent?	Its budget is charged on the Consolidated Fund of India.
What is the CVC's relationship with the CBI?	Superintendence over CBI corruption investigations (PC Act, 1988) and monthly review; cannot direct the CBI to initiate prosecution.

MY NOTES

Who selects the CBI Director (post-Lokpal Act, 2013)?	A committee of the PM, the Leader of Opposition and the Chief Justice of India.
How does the CVC relate to the Lokpal?	It assists in preliminary inquiries on Group A and B officers and reports progress back to the Lokpal.
What is a CVO?	Chief Vigilance Officer in each Ministry, Department, PSU and Bank: nodal point, appointed in consultation with the CVC, reports quarterly.
What is the CVC's equity test for CPSEs?	PSUs where the Central Government holds more than 51% equity.
What is the Integrity Index Framework?	Developed with IIM-Ahmedabad; ranks over 500 public organisations on transparency, ethical conduct and corruption-risk mitigation.
When was the AIVA Unit established?	2023: AI-based Vigilance Analytics for predictive analytics on procurement and financial data.
Who is the competent authority under the Whistle Blowers Protection Act, 2014?	The Central Vigilance Commission (the Government may notify another body).
Who is excluded from the Whistle Blowers Protection Act, 2014?	Personnel of the Special Protection Group (SPG).
What is the punishment for a false or frivolous disclosure?	Up to two years' imprisonment and a fine up to Rs 30,000.
What happens to anonymous whistleblower complaints?	No action where the identity of the complainant or public servant is not indicated or is found to be false.

Trap 1 · Different panels for CBI and CVC

The CVC panel is PM, Home Minister and Leader of Opposition. The CBI Director's panel is PM, Leader of Opposition and Chief Justice of India. *Rule: Home Minister sits for the CVC; the Chief Justice sits for the CBI.*

Trap 2 · Statutory only since 2003

The CVC began as a non-statutory body in 1964. The Vineet Narain judgement directed statutory status; the CVC Act, 2003 gave it. The handout gives the case year as 1998 in the evolution table and 1997 in one later line. *Rule: write Vineet Narain as 1998; the Act is 2003.*

MY NOTES

Trap 3 · Superintendence has limits

The CVC superintends the CBI only in Prevention of Corruption Act, 1988 cases. It cannot direct the CBI to start prosecution; it can recommend inquiries and monitor progress. *Rule: supervision and advice, not command of prosecution.*

Trap 4 · Tenure and reappointment

Tenure is now four years or age 65 (earlier five years). No reappointment, but a Vigilance Commissioner can become the Central Vigilance Commissioner within the same overall limit. *Rule: 4 or 65, whichever earlier; no reappointment.*

QUICK QUIZ

Q1. How many members can the Central Vigilance Commission have at most?

1. Two
2. Three
3. Four
4. Five

Q2. Which of these is a member of the committee that recommends the CVC's appointment to the President?

1. Speaker of the Lok Sabha
2. Chief Justice of India
3. Minister of Home Affairs
4. Vice-President

Q3. The tenure of the Central Vigilance Commissioner is

1. Five years or age 65
2. Four years or age 65
3. Six years or age 62
4. Three years or age 65

Q4. On which ground must the President first refer the matter to the Supreme Court before removing the CVC?

1. Insolvency
2. Conviction involving moral turpitude
3. Paid employment during office
4. Proved misbehaviour or incapacity

Q5. The CVC was first set up in 1964 on the recommendation of the

1. Santhanam Committee
2. First ARC
3. Swaran Singh Committee
4. Vineet Narain Committee

Q6. Which statement about the CVC and the CBI is correct as per the handout?

1. The CVC can direct the CBI to start prosecution
2. The CVC superintends CBI investigations in Prevention of Corruption Act cases but cannot direct prosecution
3. The CVC appoints the CBI Director
4. The CVC has no role over the CBI

Q7. In the Whistle Blowers Protection Act, 2014, the competent authority is the

1. Lokpal
2. Central Vigilance Commission
3. Supreme Court
4. CBI

Q8. Personnel of which force are excluded from the Whistle Blowers Protection Act, 2014?

1. CRPF
2. Special Protection Group
3. BSF
4. NSG

MY NOTES

Q9. The punishment for a wilful false or frivolous disclosure under the Whistle Blowers Protection Act, 2014 is up to

1. One year and Rs 10,000
2. Two years and Rs 30,000
3. Three years and Rs 50,000
4. Five years and Rs 1 lakh

Q10. The CVC's expenses are

1. Voted annually by Parliament only
2. Charged on the Consolidated Fund of India
3. Met by the Ministry of Personnel
4. Met by the CBI

Answers: Q1 b, Q2 c, Q3 b, Q4 d, Q5 a, Q6 b, Q7 b, Q8 b, Q9 b, Q10 b

MY NOTES

CHAPTER 44 · HANDOUT CHAPTER: LOKPAL AND LOKAY-UKTA

44 Lokpal and Lokayukta

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

MY NOTES

EXAM LENS

Prelims hooks

- Ombudsman origin (Sweden 1809, New Zealand 1962, UK 1967)
- ARC 1966-70
- Lokpal and Lokayuktas Act, 2013 and its dates
- composition and selection
- tenure and removal
- coverage of the PM
- Lokayukta composition and appointing authority
- states with notable Lokayuktas.
- Handout stresses: No PYQ section is quoted for this chapter in the material (Whole chapter)
- Handout stresses: Lokpal Chairperson plus up to eight Members; at least 50% judicial; 50% reserved for SCs, STs, OBCs, minorities or women (Section 3)
- Handout stresses: Selection Committee: PM, Speaker, LoP, CJI or SC Judge nominated by him, one eminent jurist (Section 3)
- Handout stresses: Five years or age 70; no reappointment; pay equal to CJI and Judges of the Supreme Court (Section 3)
- Handout stresses: Prime Minister only on national security, foreign relations or public order, with a full Bench (Section 4)
- Handout stresses: Timelines: preliminary inquiry 90 days (up to six months); CBI investigation six months (plus six); sanction 60 days; Special Court trial one year (two for complex cases) (Sections 4 and 5)
- Handout stresses: Lokayukta appointed by the Governor; varies state to state; findings recommendatory (Sections 9 to 12)

Mains hooks

- none quoted in the material
- Likely angles from the notes: challenges before the Lokpal (dependence on CBI, PM exceptions, judiciary outside scope), way forward, and why State Lokayuktas are uneven.

MY NOTES

The Lokpal brings the Prime Minister to the Ministers, MPs and officials under one watchdog, but dependence on the CBI, exemptions and uneven State laws keep it short of the ombudsman ideal.

IN SIMPLE WORDS

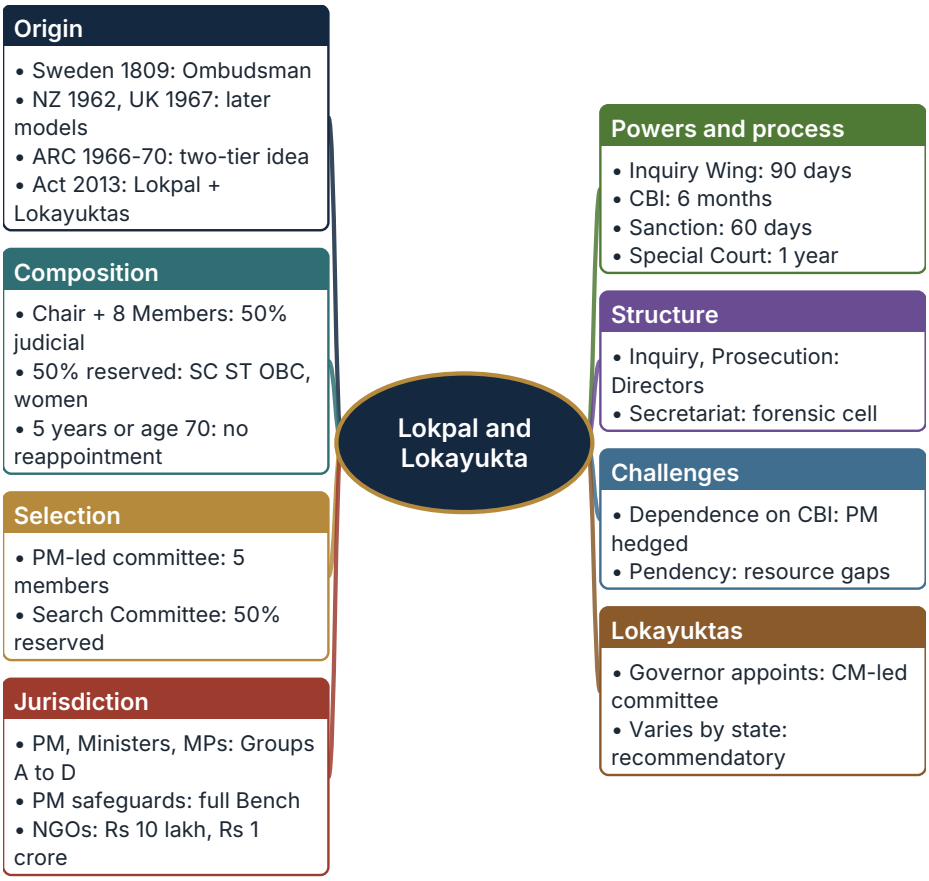
- The **Ombudsman** idea began in **Sweden (1809)**
- New Zealand (1962) and the UK (1967) followed. India's version is the **Lokpal** at the Centre and **Lokayuktas** in the States, first proposed by the **First ARC (1966-70)**
- Ten Lokpal Bills failed between **1968 and 2011**. The **Lokpal and Lokayuktas Act** passed in **December 2013** and became operational on **16 January 2014**.
- The Lokpal has a **Chairperson and up to 8 Members**:
  - **at least 50% judicial** and **50% from SC, ST, OBC, minorities or women**. The **President** appoints them on a **PM-led selection committee**
  - Tenure is **5 years or age 70**, with no reappointment
- It covers the **PM (with safeguards), Union Ministers, MPs and Group A, B, C, D officers**. It works through an **Inquiry Wing** and **Prosecution Wing**, uses the **CBI** to investigate and has civil court powers. Timelines: inquiry **90 days**, sanction **60 days**, trial **1 year**.
- **Lokayuktas** are the State counterpart, appointed by the **Governor**, with structure and powers that differ from state to state. Their findings are **recommendatory**
- The 2013 Act told states to set them up within one year

Key term	In plain words
Ombudsman	'Representative of the people': an independent authority that investigates complaints of maladministration and corruption; began in Sweden in 1809
Selection Committee (Lokpal)	PM (head), Speaker, Leader of Opposition, CJI or SC Judge nominated by him, and an eminent jurist nominated by the President
Search Committee	Formed by the Selection Committee to recommend names; at least 50% from SC, ST, OBC, minorities or women
Inquiry Wing	Headed by a Director of Inquiry; does the preliminary inquiry into complaints
Prosecution Wing	Headed by a Director of Prosecution; files chargesheets in Special Courts
Sanction for prosecution	Lokpal can grant or deny it within 60 days
Lokayukta	State-level ombudsman, appointed by the Governor

MY NOTES

Key term	In plain words
Jan Lokpal movement (2011)	Civil society campaign led by India Against Corruption and Anna Hazare

MEMORY MAP: LOKPAL AND LOKAYUKTA



MNEMONIC · CIVIL COURT POWERS OF THE LOKPAL

C A R D S

- **C** Commissions for examination of witnesses or documents
- **A** Affidavits: evidence received on affidavit
- **R** Requisitioning public records from any authority
- **D** Discovery and production of documents
- **S** Summoning and enforcing attendance of witnesses

The Lokpal puts all the CARDS (evidence) on the table: its five civil court powers. The order is rearranged for memory. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · LOKPAL CASE PATH

Complaints Prompt Inquiry, Prosecution

- **C** Complaint in good faith, with identity and evidence
- **P** Preliminary inquiry: 90 days, extendable to six months
- **I** Investigation by the CBI: six months, extendable by six
- **P** Prosecution: sanction in 60 days; Special Court trial in one year, up to two

A complaint prompts an inquiry, then investigation and prosecution; the numbers in each chip are the time limits. (Memory aid, not from the handout.)

MNEMONIC · WHO THE LOKPAL COVERS

SUMMON

- **S** Societies, trusts, statutory bodies and PSUs funded fully or partly by the Centre
- **U** Union Ministers
- **M** Members of Parliament
- **M** Most senior: the Prime Minister (only under strict conditions and with full-Bench approval)
- **O** Officers of Groups A, B, C and D of the Central Government
- **N** NGOs with foreign contributions above Rs 10 lakh or government grants above Rs 1 crore

The Lokpal can SUMMON all six kinds of public functionaries and bodies in its jurisdiction. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · LOKPAL SELECTION COMMITTEE

SCOPE

- **S** Speaker of the Lok Sabha
- **C** Chief Justice of India (or a Supreme Court Judge nominated by him)
- **O** Opposition leader in the Lok Sabha
- **P** Prime Minister (Chairperson)
- **E** Eminent jurist nominated by the President on the committee's recommendation

The committee decides who comes within the Lokpal's SCOPE: the PM plus four members. The order is rearranged for memory. (Memory aid, not from the handout.)

INTRODUCTION AND GLOBAL SCENARIO

- The Lokpal and Lokayukta draw their idea from the **Ombudsman** system that began in **Sweden in 1809**. *Ombudsman* means "**representative of the people**": an independent authority to investigate complaints of maladministration and corruption against public officials.

MY NOTES

GLOBAL ADAPTATIONS (THE HANDOUT'S LIST)

Country and year	What it did
Sweden (1809)	First country with an Ombudsman, as a parliamentary commissioner to ensure executive accountability
New Zealand (1962)	First Commonwealth nation to adopt the Ombudsman model; focus on administrative fairness
United Kingdom (1967)	Created the Parliamentary Commissioner for Administration for citizens' grievances against departments
Others	Canada, Australia and Denmark later adapted the model to strengthen citizen oversight

- These models inspired India's effort to create an independent watchdog suited to its democratic and administrative structure.
- **Memory aid (Ombudsman order): S**weden 1809, **N**ew Zealand 1962, **U**K 1967: "**S**weet **N**ew **U**ncles."
- **Shortcut:**
  - **Date shortcut.** 1809, then 1962, then 1967. NZ is the **Commonwealth first**
  - Sweden is the **world first**

ALSO IN THE HANDOUT

- Nature and category of public officials involved.

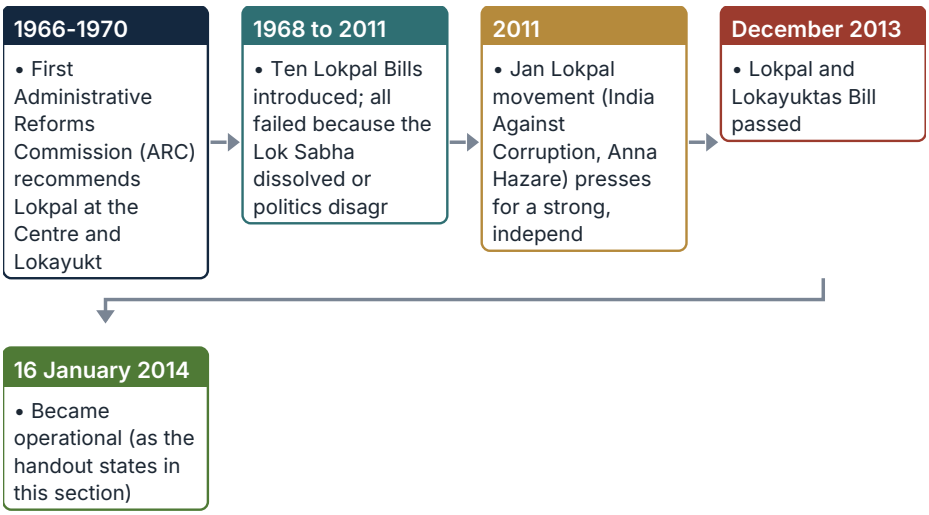
EVOLUTION AND OBJECTIVES OF THE 2013 ACT

ROAD TO THE LOKPAL

- **1966-1970**: First Administrative Reforms Commission (ARC) recommends Lokpal at the Centre and Lokayuktas in the States, including complaints against ministers
- **1968 to 2011**:
  - Ten Lokpal Bills introduced
  - All failed because the Lok Sabha dissolved or politics disagreed
- **2011**: Jan Lokpal movement (India Against Corruption, Anna Hazare) presses for a strong, independent authority
- **December 2013**: Lokpal and Lokayuktas Bill passed
- **16 January 2014**: Became operational (as the handout states in this section)

MY NOTES

ROAD TO THE LOKPAL



- **Ten failed Bills:** The years: **1968, 1971, 1977, 1985, 1989, 1996, 1998, 2001, 2005, 2011**. Hook: the first four are 68, 71, 77, 85, then 89, 96, 98, and the last three are 2001, 2005, 2011.

> **HANDOUT ALERT**
>
> Handout alert: Two dates are given for the Lokpal becoming operational. The Evolution section says the Act became operational on **16 January 2014** (the Bill was passed in December 2013). The Challenges section says the Lokpal was **operationalised in March 2019**. The handout does not reconcile them. Read 16 January 2014 as the Act's commencement and March 2019 as the Lokpal's working start, but quote the date given in the question.

OBJECTIVES OF THE ACT

- **Independent anti-corruption institutions**: a Lokpal at the Centre and Lokayuktas in the States for corruption by public functionaries.
- **Institutional accountability**: political executives, bureaucrats and other public servants under a common scrutiny framework.
- **Speedy and fair investigation**: a time-bound process for inquiry, prosecution and adjudication.
- **Protect whistleblowers and informers**: disclosures in the public interest, with safety and anonymity.
- **Public trust**: transparency, ethics and rule of law, aligned with **Article 14** (equality before law) and **Article 311** (safeguards for civil servants).
- **Harmonise with other vigilance bodies**: coordinate with the CVC, CBI and state vigilance commissions to avoid overlap.
- **Memory aid (Six objectives):** **I**nstitutions, **A**ccountability, **S**peedy probe, **W**histleblowers, **P**ublic trust, **H**armonise with CVC and CBI: "**I A**lways **S**eek **W**ise **P**ublic **H**elp."

MY NOTES

ALSO IN THE HANDOUT

- It represents a legislative culmination of decades of public demand for transparency and accountability in governance.

COMPOSITION, APPOINTMENT, TENURE AND REMOVAL

CENTRAL LOKPAL (THE HANDOUT'S TABLE, REBUILT)

Aspect	Provision
Structure	Chairperson and up to eight Members under the Lokpal and Lokayuktas Act, 2013
Judicial representation	At least 50% of total strength (Chairperson plus Members) must be Judicial Members
Social representation	Minimum 50% reserved for SCs, STs, OBCs, minorities or women
Eligibility	Persons of eminence in public life with expertise in law, public administration, vigilance, finance or anti-corruption policy
Disqualification	Cannot be a sitting MP or MLA, hold any office of profit, or be connected with any political party
Appointing authority	President of India appoints the Chairperson and Members
Selection Committee	Headed by the Prime Minister; includes (i) Speaker of Lok Sabha, (ii) Leader of Opposition in Lok Sabha, (iii) Chief Justice of India or a Supreme Court Judge nominated by him, (iv) one eminent jurist nominated by the President on their recommendation
Search Committee	Formed by the Selection Committee to recommend names; at least 50% of its members from SCs, STs, OBCs, minorities or women
Transparency clause	Proceedings of both committees recorded; shortlisted names published
Tenure	Five years or until age 70, whichever is earlier
Reappointment	Not eligible once the term ends
Service conditions	Salary and conditions equal to the Chief Justice of India (Chairperson) and a Judge of the Supreme Court (Members)
Resignation	By written letter to the President

- **Memory aid (Selection Committee):** **P**M (head), **S**peaker, **L**oP, **C**JI or nominated SC Judge, **J**urist (eminent, nominated by the President): "**P**ut **S**ome **L**aw **C**ourts' **J**udges."
- **Shortcut: Two 50s. 50% judicial** (of the whole Lokpal) and **50% reserved** (SC, ST, OBC, minorities, women): both also hold for the Search Committee's reservation. Five years or **70**: PM-led **five-member** panel.

MY NOTES

GROUNDS FOR REMOVAL

- Insolvency (adjudged insolvent)
- Conviction for an offence involving moral turpitude
- Paid employment outside official duties
- Infirmity: physical or mental incapacity
- Conflict of interest: acquiring interests prejudicial to duties
- Proved misbehaviour or incapacity, after **inquiry by the Supreme Court** on reference from the President

REMOVAL PROCEDURE

- **President refers**: In a case of misbehaviour or incapacity the President sends it to the Supreme Court
- **Supreme Court reports**: Confirms or rejects misbehaviour or incapacity
- **President may remove**: Only on the Court's report confirming it
- **Memory aid (Six grounds): I**nsolvency, **C**onviction, **P**aid job, **I**nfirmity, **C**onflict of interest, **P**roved misbehaviour: "**I C**an **P**ay **I**f **C**ourt **P**ermits."

JURISDICTION AND POWERS OF THE LOKPAL

- The Lokpal is the **apex anti-corruption ombudsman at the central level**.

WHO IS COVERED

- **Public functionaries**: Prime Minister, Union Ministers, MPs, and officers of **Groups A, B, C and D** of the Central Government.
- **Prime Minister, with limits**: inquiry only under strict conditions (matters of **national security, foreign relations or public order**) and only with the approval of a **full Bench**. No inquiry if allegations relate to official acts done in good faith or decisions of the Council of Ministers.
- **PSUs and bodies**: all public sector undertakings, statutory bodies, societies and trusts fully or partly funded by the Central Government.
- **NGOs and societies**: NGOs receiving **foreign contribution above Rs 10 lakh** or **government grants above Rs 1 crore**.
- **Complainants**:
  - Any citizen may complain of corruption, abuse of office or disproportionate assets
  - Whistleblower protection is integrated

MY NOTES

COVERAGE VERSUS LIMITS

- **Covered:** PM (conditions), Ministers, MPs, Group A to D officers, PSUs, aided NGOs
- **Not covered:**
  - MPs' speech or vote inside Parliament (Art. 105)
  - Matters pending before a court
  - Matters under the exclusive jurisdiction of State Lokayuktas
  - PM outside the three listed matters

POWERS OF INQUIRY AND INVESTIGATION

TEN POWERS (THE HANDOUT'S LIST, REBUILT)

Power	What it means
Preliminary inquiry	The Inquiry Wing does initial scrutiny; for Group A and B officers cases may be referred to the CVC
Investigation authority	May direct the CBI to investigate offences under the Prevention of Corruption Act, 1988; the CBI is the principal investigative arm
Supervisory control	Supervises CBI investigations in referred cases and requires periodic progress reports
Search and seizure	Can authorise raids, seize documents and examine witnesses; civil court powers during inquiries
Attachment and confiscation	Can recommend provisional attachment of assets suspected to be from corruption under the PMLA, 2002
Prosecution sanction	Can grant or deny sanction within **60 days**
Disciplinary action	May recommend disciplinary or administrative action against officials found guilty
Civil court powers	Under the Code of Civil Procedure, 1908: summon and enforce attendance; require discovery and production of documents; receive evidence on affidavits; requisition public records; issue commissions to examine witnesses or documents

- **Memory aid (Powers):** **P**reliminary inquiry, **I**nvestigate via CBI, **S**upervise CBI, **S**earch and seizure, **A**ttach property, **P**rosecution sanction (60 days), **D**isciplinary recommendation, **C**ivil court powers: "**P**olice **I**nspect **S**uspects, **S**eize **A**ssets, **P**rosecute, **D**iscipline, **C**ourt-powered."

LIMITATIONS ON JURISDICTION

- Cannot inquire into a statement or vote by an MP inside Parliament (protected under **Article 105**).
- PM complaints restricted to national security, foreign affairs or public order, with stringent safeguards.

MY NOTES

- Cannot intervene in matters pending before a court or under the exclusive jurisdiction of State Lokayuktas.

ALSO IN THE HANDOUT

- Summoning and enforcing attendance of witnesses.

WORKING, PROCEDURE, HEARING AND DECISIONS

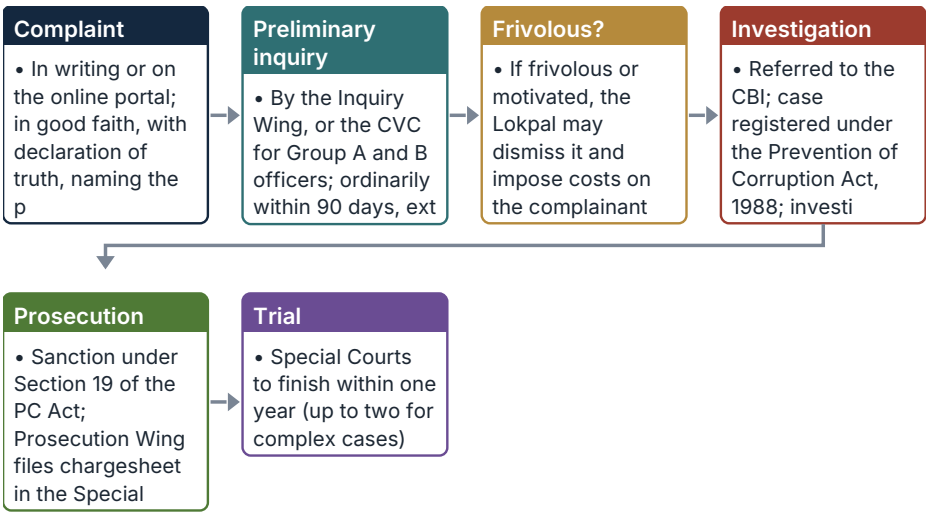
- The Lokpal is a **quasi-judicial** institution combining inquiry, investigation and prosecution.

COMPLAINT TO CONVICTION

- **Complaint**:
  - In writing or on the online portal
  - In good faith, with declaration of truth, naming the public servant and the allegation, with supporting documents if available
- **Preliminary inquiry**:
  - By the Inquiry Wing, or the CVC for Group A and B officers
  - Ordinarily within **90 days**, extendable to **six months** with written reasons
  - Accused gets a fair chance to respond
- **Frivolous?**: If frivolous or motivated, the Lokpal may dismiss it and impose costs on the complainant
- **Investigation**:
  - Referred to the CBI
  - Case registered under the Prevention of Corruption Act, 1988
  - Investigation within **six months**, extendable by **six** with justification
- **Prosecution**:
  - Sanction under **Section 19** of the PC Act
  - Prosecution Wing files chargesheet in the Special Court
  - Or disciplinary action recommended
- **Trial**: Special Courts to finish within **one year** (up to **two** for complex cases)

MY NOTES

COMPLAINT TO CONVICTION



HANDOUT ALERT

Handout alert: The procedure says **anonymous complaints or those without verifiable identity are not entertained**. Elsewhere the handout says the Lokpal portal (PIDPI Rules, 2022) takes **anonymous complaints with end-to-end encryption**. For the Lokpal complaint procedure, use the first rule (verifiable identity needed); the encrypted channel is described as a whistleblower safeguard.

TIMELINES TO REMEMBER

Stage	Time
Preliminary inquiry	90 days, up to six months
CBI investigation	Six months, extendable by another six
Prosecution sanction	Within 60 days
Special Court trial	One year, extendable to two for complex cases

- **Memory aid (Timelines): I**nquiry 90 days (to six months), **C**BI six months (plus six), **S**anction 60 days, **T**rial one year (to two): "**I C**an **S**ee **T**ime."

HEARING AND DECISION-MAKING

- Works in **benches** of the Chairperson and Members.
- Hearings generally **public** unless confidentiality is needed
- Natural justice and civil court procedure followed
- Can summon witnesses, require records and record statements on oath.
- Orders are **binding** on all concerned public authorities.
- **Annual report**:
  - Complaints received, disposed and pending
  - Categories of officials

MY NOTES

- Recommendations and action taken. Submitted to the **President**, laid before **both Houses**. Special reports for urgent or high-profile cases

SAFEGUARDS AND TRANSPARENCY

- **Whistleblower protection** under the Whistle Blowers Protection Act, 2014 (no disclosure of informants' identity).
- **Confidentiality** of proceedings and records until prosecution is sanctioned.
- **Digital workflow** (post-2020): e-filing, case-tracking dashboards, video hearings.
- **Accountability**:
  - Decisions recorded in writing with reasons
  - Officers liable for deliberate delay or manipulation

ALSO IN THE HANDOUT

- Be filed in good faith with a declaration that the contents are true to the best of the complainant's knowledge. - Clearly identify the public servant concerned and the nature of the allegation.
- The aim is to determine whether a prima facie case exists for investigation.
- The CBI is required to register a case under relevant sections of the Prevention of Corruption Act, 1988.

STRUCTURE AND ORGANISATION

SEVEN PARTS OF THE LOKPAL (THE HANDOUT'S TABLE, REBUILT)

Wing or division	Functions and responsibilities
1. Chairperson	Heads the Lokpal; gives strategic direction; allocates cases, approves reports, coordinates wings; rank equal to the Chief Justice of India
2. Members	Up to eight; at least 50% judicial; each oversees specific domains (ministries, PSUs, categories of officials)
3. Inquiry Wing	Headed by a Director of Inquiry; preliminary investigations to decide if a full investigation is warranted
4. Prosecution Wing	Led by a Director of Prosecution; files charge sheets and prosecutes in Special Courts under the PC Act, 1988
5. Secretariat	Administrative and logistical support; coordinates Lokpal, CVC and CBI; manages grievances, human resources, records
6. Technical and Forensic Cell	Set up post-2020 reforms; digital forensics, financial data analytics, blockchain-based tracking

MY NOTES

Wing or division	Functions and responsibilities
7. Legal and Research Division	Drafts advisories, comparative legal research, liaison with legislative committees on reforms

LINKAGES AND COORDINATION

- **CBI**:
  - Primary investigative agency for referred cases
  - Lokpal supervises timelines and quality
- **CVC**:
  - Preliminary inquiries for Group A and B officers
  - Findings go to the Lokpal for further action including prosecution
- **CAG**: audit insights on financial irregularities.
- **Income Tax and Enforcement Directorate**: trace unaccounted assets, freeze accounts and confiscate property under the PMLA, 2002.
- **Whistleblower channel**: secure digital channel as per **PIDPI Rules, 2022**, with end-to-end encryption.

ADMINISTRATIVE OVERSIGHT AND FINANCIAL AUTONOMY

- **Independent** of any ministry
- Coordinates with the **DoPT** for staffing and budget approvals
- **Charged on the Consolidated Fund of India**, like constitutional bodies such as the CAG or Election Commission.
- **Rule-making**: can frame Rules (with Presidential assent) for inquiry, investigation, complaint filing and witness protection.
- **Appoints its own** Director of Inquiry, Director of Prosecution and officers from services including IPS, IRS and IA&AS.
- **Memory aid (Seven parts): C**hairperson, **M**embers, **I**nquiry Wing, **P**rosecution Wing, **S**ecretariat, **T**echnical and Forensic Cell, **L**egal and Research: "**C**ool **M**inds **I**nvestigate, **P**rosecute, **S**ecure **T**ruth, **L**egally."

ROLE AND CHALLENGES

KEY ROLES

- **Independent oversight**: investigates high-ranking officials, including the PM (with safeguards).
- **Integration** with the CBI, CVC and Enforcement Directorate to avoid overlap.
- **Whistleblower protection** under the Whistle Blowers Protection Act, 2014.

MY NOTES

- **Systemic vigilance**: reforms in procurement, appointments and service delivery.
- **Public confidence**: a legal forum for corruption grievances at the highest level.

MAJOR CHALLENGES

FIVE GROUPS OF CHALLENGES (THE HANDOUT'S LIST)

Group	Problems
(a) Institutional and procedural	Delay in a fully functional Secretariat and Inquiry Wing; no exclusive investigation machinery, dependence on CBI and CVC; weak follow-up on recommendations
(b) Legal and jurisdictional	PM hedged by exceptions; judiciary and state-level officials excluded; NGOs and private contractors using public funds covered but enforcement unclear for lack of audit access
(c) Coordination and overlap	Overlapping powers with CVC and Lokayuktas confuse reporting channels; no centralised vigilance database
(d) Resources and capacity	Inadequate manpower and budget; limited expertise in digital forensics, financial intelligence, international cooperation
(e) Political and administrative resistance	Hesitation in referring sensitive cases; ministries and PSUs not cooperating on records

- **Memory aid (Five groups):** **I**nstitutional, **L**egal, **C**oordination, **R**esources, **P**olitical: "**I** **L**ike **C**lean **R**ecords, **P**lease."

RECENT REFORMS

- Since operationalisation in **March 2019**: over **8,000 complaints**, only a small fraction reached the investigation stage because of backlogs.
- **Digital Case Management System** (2022): better tracking and transparency.
- **Joint investigation protocol** with the CVC and CBI (2023): coordination gradually improved.
- **First prosecution sanctions** under the Lokpal issued in **2024**.

ALSO IN THE HANDOUT

- Major Challenges Faced by the Lokpal Despite its statutory strength and promise, the Lokpal's functioning faces several structural and operational hurdles that have limited its impact since inception.
- Weak follow-up mechanism for ensuring implementation of Lokpal's recommendations.

MY NOTES

- Absence of a centralised vigilance database restricts information sharing among agencies.
- (e) Political and Administrative Resistance 9. Governments have shown hesitation in referring to politically sensitive cases.

WAY FORWARD

EIGHT STEPS (THE HANDOUT'S LIST)

Reform	What it means
Institutional consolidation	Dedicated investigative and prosecution wings, autonomous in staffing, to cut dependence on the CBI
Wider jurisdiction	Bring the judiciary and lower bureaucracy in, with safeguards
Stronger coordination	National Anti-Corruption Coordination Framework: data-sharing, case-tracking, joint task forces across Centre and States
Digital vigilance	Expand the 2023 e-Lokpal Portal with AI-based analytics for procurement, recruitment, fund use
Citizen-centric accountability	Public dashboards on case status, pending inquiries and action taken, with confidentiality
Financial and functional autonomy	Independent budget; recruit technical experts from market or academia
Awareness and outreach	Campaigns on the complaint process and whistleblower protection, especially rural and semi-urban areas
Parliamentary oversight	Biennial review by a joint parliamentary committee

- **Shortcut: Way-forward shortcut. Own people, own money, wider reach**: own investigators (consolidation, autonomy), own funds, wider jurisdiction, then **data and public eyes** (portal, dashboards, review).

LOKAYUKTAS: INTRODUCTION, COMPOSITION AND APPOINTMENT

- The **Lokayukta** is the **State-level counterpart** of the Lokpal: an independent ombudsman for corruption, maladministration and abuse of office by State public functionaries. The idea came from the **ARC, 1966**. Most States acted much later, through their own laws. The Lokpal and Lokayuktas Act, 2013 gave a uniform framework and **directed every State to set up a Lokayukta within one year** of its commencement. Structure, powers and effectiveness still vary widely with local laws, political will and capacity.

MY NOTES

STATE LOKAYUKTA (GENERIC FRAMEWORK, REBUILT)

Aspect	Description
Composition	A Lokayukta (Chairperson) and up to three Deputy Lokayuktas, depending on state law
Appointing authority	The Governor of the State
Selection Committee	Usually (i) Chief Minister (Chairperson), (ii) Speaker of the Legislative Assembly, (iii) Leader of Opposition, (iv) Chief Justice or nominee of the High Court
Qualifications	Generally a retired Chief Justice or Judge of a High Court; Deputies are persons of integrity with experience in administration, law or public affairs
Tenure	Normally five years or until 70, whichever is earlier (varies by state)
Removal	Only for misbehaviour or incapacity, by a process like High Court judges: judicial inquiry and Governor's approval

LOKPAL AGAINST LOKAYUKTA

- **Lokpal:**
  - Centre
  - President appoints
  - PM-led committee of five
  - Up to 8 Members
  - Five years or 70
  - Orders binding
  - Report to President
- **Lokayukta:**
  - State
  - Governor appoints
  - CM-led committee
  - Up to 3 Deputies
  - Five years or 70 (varies)
  - Recommendatory
  - Report to Governor
- **Memory aid (State committee):** **C**M (chair), **S**peaker, **L**oP, **H**igh Court Chief Justice or nominee: "**C**an **S**tate **L**ook **H**onest?"

ALSO IN THE HANDOUT

- ## Composition and Appointment Each State's Lokayukta is structured differently, but the general composition follows the broad pattern suggested by the 2013 Act.

MY NOTES

LOKAYUKTAS: JURISDICTION, POWERS AND WORKING

JURISDICTION (SET BY EACH STATE'S LAW)

- **Chief Minister and Ministers**: CM covered in some States (Karnataka, Kerala), excluded in others (Maharashtra).
- **State legislators**: MLAs and MLCs covered in most States.
- **Public servants**: bureaucrats, employees of state PSUs, municipal bodies, universities, cooperative institutions.
- **Local authorities**: Panchayati Raj and municipal functionaries increasingly covered after the **73rd-74th Amendments**.
- **Exclusions**: Judges of High Courts, members of the State Public Service Commissions and the subordinate judiciary, to avoid overlap.

POWERS AND FUNCTIONS

INVESTIGATIVE AND ADVISORY

- **Investigative powers:**
  - Inquire into corruption, abuse of power, maladministration
  - Summon witnesses and demand documents with civil court powers
  - Order preliminary inquiry through the state vigilance or anti-corruption bureau
  - Recommend prosecution or departmental action
- **Advisory and preventive:**
  - Advise the State on reforms
  - Monitor ethical codes and conduct rules
  - Annual and special reports to the Governor, laid before the State Legislature
- **Whistleblowers**: many States (like Karnataka and Kerala) assure confidentiality and protection from retaliation.

HOW A LOKAYUKTA WORKS

- **Complaint**: Any citizen, written or digital, on corruption or maladministration
- **Preliminary scrutiny**: Within jurisdiction and not frivolous?
- **Investigation**: If it has merit, through the State Vigilance Department or special inquiry teams
- **Recommendation**: Prosecution, disciplinary action or systemic reform
- **Follow-up**: State Government to report action taken, usually within **90 days**

MY NOTES

PROMINENT LOKAYUKTAS

STATE RECORDS (THE HANDOUT'S LIST)

State	What the handout notes
Karnataka (established 1986)	One of the earliest and most effective; exposed illegal mining and corruption in public works (Justice Santosh Hegde tenure); known for suo-moto powers
Maharashtra (1971)	Jurisdiction over ministers and government servants, excluding the CM; investigated irregularities in urban development projects
Kerala (1999)	In the news for rulings on ministerial misconduct; widened "maladministration" to include ethical lapses
Madhya Pradesh	Pioneered digital complaint systems and special investigation units; exposed disproportionate assets of senior bureaucrats
Odisha (2019)	Formed under the Lokpal and Lokayuktas Act, 2013, one of the most recent; online complaint registration and time-bound disposal norms

- **Memory aid (Five states):** **K**arnataka 1986, **M**aharashtra 1971, **K**erala 1999, **M**adhya Pradesh, **O**disha 2019: "**K**ind **M**en **K**eep **M**uch **O**rder."
- **Shortcut:**
  - **State shortcut.** Karnataka = **mining and suo-moto**
  - Maharashtra = **CM excluded**
  - Kerala = **ethics in maladministration**
  - MP = **digital and disproportionate assets**
  - Odisha = **newest, online**

LOKAYUKTAS: CHALLENGES AND REFORMS

SIX CHALLENGES (THE HANDOUT'S LIST)

Challenge	Detail
Lack of uniformity	State laws differ in jurisdiction, powers, procedures
Limited enforcement power	Role is recommendatory; government may accept or reject findings
Political resistance	Appointment delays and non-cooperation weaken independence
Resource constraints	Staff shortage, weak investigation machinery, poor digital infrastructure
Overlapping jurisdictions	Coordination issues with State Vigilance Commissions, Anti-Corruption Bureaus and the CVC
Low public awareness	Citizens unaware of complaint mechanisms or fear retaliation

MY NOTES

REFORMS AND WAY FORWARD

- **Uniform Model Law**: a National Model Lokayukta Framework for powers, procedures and accountability.
- **Stronger enforcement**: binding authority to initiate prosecution or recommend disciplinary action in proven cases.
- **Institutional autonomy**: expenses charged to the State's Consolidated Fund.
- **Digital integration**: a National Vigilance Database linking Lokayuktas, Lokpal, CVC and state agencies.
- **Citizen-centric reforms**:
  - Awareness campaigns
  - Online complaints in vernacular languages
- **Periodic performance audit**: annual review by the State Legislature or an independent committee.
- **Memory aid (Six challenges): U**niformity, **E**nforcement, **P**olitics, **R**esources, **O**verlap, **L**ow awareness: "**U**nder **E**very **P**olitician's **R**ule, **O**mbudsmen **L**anguish."

HANDOUT ALERT

Handout alert: The Lokpal challenges list says the Act **excludes the judiciary and state-level officials**, and the Limitations list says the Lokpal cannot touch matters under the **exclusive jurisdiction of State Lokayuktas**. Yet the Lokayukta section says the 2013 Act directs every State to set one up within a year, while powers are set by each **State's own law**. Use: Lokpal for the Centre, Lokayukta for the State, State law decides Lokayukta powers.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 66, LOKPAL AND LOKAYUKTAS

- Ombudsman details:
  - 'ombud' is a Swedish word for a representative
  - Finland adopted it in 1919, Denmark in 1955 and Norway in 1962
  - New Zealand (1962) was the first Commonwealth country. It cannot reverse a decision or punish
  - It reports to higher authorities
- Swedish Ombudsman matters: abuse of discretion, maladministration, administrative corruption, nepotism and discourtesy. Other grievance devices in the world: Administrative Courts (France) and the Procurator System (USSR and China).
- First ARC (1966-70):
  - Lokpal would deal with complaints against ministers and secretaries (Centre and States), and Lokayukta with other higher officials

MY NOTES

- Judiciary kept outside. Lokpal would be appointed by the President after consulting the CJI, the Speaker of Lok Sabha and the Chairman of Rajya Sabha

- Lakshmikanth differs:
  - The ten Bills. LK lists 1968, 1971, 1977, 1985, 1989, 1996, 1998, 2001 and two in 2011 (August and December)
  - It has no 2005 Bill. The handout lists 1968, 1971, 1977, 1985, 1989, 1996, 1998, 2001, 2005 and 2011. For the exam, use the handout
  - Both agree there were ten attempts and the 2011 one was enacted
- Referral rule:
  - For Group A and B officers the CVC sends its preliminary report back to the Lokpal
  - For Groups C and D the CVC proceeds under its own Act, subject to the Lokpal's reporting and review
- The Lokpal has superintendence and direction over any investigating agency, including the CBI, in cases it refers. It can attach property of public servants acquired by corrupt means even while prosecution is pending.
- Punishment under the Prevention of Corruption Act:
  - Maximum raised from 7 to 10 years
  - Minimum 3 years under Sections 7, 8, 9 and 12, and 2 years under Section 15 (attempt)
- Institutions financed fully or partly by Government come under the Lokpal
- Institutions merely aided by Government are excluded. Foreign-source donations above Rs 10 lakh a year under FCRA also bring entities in
- Seven drawbacks:
  - No suo motu action
  - Stress on form of complaint
  - Heavy punishment for false complaints may deter
  - No anonymous complaints
  - Legal help for the accused public servant
  - 7-year limitation period
  - Non-transparent procedure for the PM
- Lakshmikanth differs: Lokayukta history. LK says Maharashtra established the first Lokayukta in 1971 while Odisha had passed its Act in 1970. The handout gives Odisha Lokayukta as 2019. Use the handout, and remember LK's 1970 Odisha Act.
- Lakshmikanth differs:
  - Tenure of Lokayukta. LK says in most states it is 5 years or age 65, whichever is earlier
  - The handout gives 5 years or 70. Handout for class

MY NOTES

- Know that states vary

- Lokayukta facts from LK:
  - Appointed by the Governor
  - Some states have Lokayukta and Upalokayukta, others only Lokayukta
  - Recommendations are advisory, not binding
  - Annual report goes to the Governor, who places it before the State Legislature
  - Some states cover grievances as well as allegations

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

What does Ombudsman mean?	"Representative of the people": an independent authority for complaints of maladministration and corruption against officials.
Which countries led the Ombudsman model?	Sweden (1809); New Zealand (1962, first in the Commonwealth); UK (1967).
What did the First ARC recommend?	Lokpal at the Centre and Lokayuktas in the States (1966-1970).
How many Lokpal Bills failed before 2013?	Ten, between 1968 and 2011.
Which movement pressed for a strong Lokpal in 2011?	The Jan Lokpal movement (India Against Corruption, Anna Hazare).
When was the Lokpal Bill passed and when operational?	Passed December 2013; operational 16 January 2014 (the handout also says March 2019 for working operations).
What is the Lokpal's composition?	Chairperson and up to eight Members; at least 50% judicial.
What reservation does the Lokpal have?	At least 50% for SCs, STs, OBCs, minorities or women.
Who sits on the Selection Committee?	PM (head), Speaker, LoP in Lok Sabha, CJI or SC Judge nominated by him, one eminent jurist.
What is the Search Committee's role and composition?	Formed by the Selection Committee to recommend names; at least 50% from SCs, STs, OBCs, minorities or women.
What is the Lokpal's tenure and pay?	Five years or age 70; pay equal to CJI (Chairperson) and SC Judge (Members); no reappointment.

How is a Lokpal member removed for misbehaviour?	President removes on the Supreme Court's report confirming proved misbehaviour or incapacity.
Who is covered by the Lokpal?	PM (with limits), Union Ministers, MPs, Group A to D Central officers, PSUs, funded bodies, NGOs above the thresholds.
What are the PM safeguards?	Only national security, foreign relations or public order; full Bench approval; no inquiry on good-faith official acts or Council of Ministers decisions.
What can the Lokpal not inquire into?	MPs' statements or votes in Parliament (Art. 105); matters pending before a court; matters under exclusive State Lokayukta jurisdiction.
What is the timeline for a preliminary inquiry?	90 days, extendable to six months with written reasons.
What is the CBI's timeline for investigation?	Six months, extendable by another six with justification.
How fast must Special Courts finish trials?	Within one year, extendable to two for complex cases.
Who leads the Inquiry and Prosecution Wings?	A Director of Inquiry and a Director of Prosecution.
How is the Lokpal financially independent?	Its expenses are charged on the Consolidated Fund of India.
What does the Technical and Forensic Cell do?	Digital forensics, financial data analytics and blockchain-based tracking (post-2020).
Name three Lokpal challenges.	Dependence on the CBI and CVC; PM jurisdiction hedged by exceptions; judiciary and state officials excluded.
What is the Lokpal's 2024 milestone?	First prosecution sanctions issued.
Who appoints the Lokayukta and who sits on the committee?	The Governor; usually CM (Chairperson), Speaker, LoP and Chief Justice or nominee of the High Court.
Who is generally the Lokayukta?	A retired Chief Justice or Judge of a High Court.
How is a Lokayukta removed?	For misbehaviour or incapacity through a process like High Court judges: judicial inquiry and Governor's approval.

MY NOTES

Which State Lokayukta excludes the CM?	Maharashtra (1971); Karnataka and Kerala include the CM.
Which Lokayukta was formed in 2019 under the 2013 Act?	Odisha.
Why are Lokayuktas weak?	Lack of uniformity, only recommendatory findings, political resistance, resource constraints, overlap, low awareness.

Trap 1 · Lokpal panel versus CBI and CVC panels

The Lokpal Selection Committee has five persons: PM, Speaker, Leader of Opposition, CJI (or nominee) and an eminent jurist. The CBI panel has three (PM, LoP, CJI); the CVC panel is PM, Home Minister and LoP. *Rule: the Speaker and the eminent jurist appear only on the Lokpal panel.*

Trap 2 · PM is covered, but with limits

The Lokpal can inquire into the PM only on matters such as national security, foreign relations or public order, with approval of a full Bench; official acts in good faith and Council of Ministers' decisions are barred. *Rule: PM is inside the Act, with strict conditions.*

Trap 3 · Who investigates

The handout notes the Lokpal depends on the CBI and CVC: it directs the CBI, supervises the work, and the CVC does the preliminary inquiry for Group A and B officers. *Rule: Lokpal supervises and sanctions; CBI investigates; CVC helps on Groups A and B.*

Trap 4 · Dates and counts

The Bill was passed in December 2013 and operational on 16 January 2014. The handout names ten failed Bills (1968 to 2011) and elsewhere speaks of March 2019 for operationalisation of the Lokpal body. *Rule: Act 2013, in force 16 January 2014; ten Bills between 1968 and 2011.*

QUICK QUIZ

Q1. Which country first created the Ombudsman office, in 1809?

1. Sweden
2. New Zealand
3. United Kingdom
4. Denmark

Q2. Which body first recommended a Lokpal at the Centre and Lokayuktas in the States?

1. Santhanam Committee
2. First Administrative Reforms Commission
3. Second ARC
4. Law Commission

Q3. The Lokpal consists of a Chairperson and up to how many Members?

1. Four
2. Six
3. Eight
4. Ten

Q4. Which of these is part of the Lokpal Selection Committee?

1. Home Minister
2. Speaker of the Lok Sabha
3. Vice-President
4. Attorney General

MY NOTES

Q5. The tenure of the Lokpal Chairperson and Members is

1. Five years or age 65
2. Four years or age 65
3. Five years or age 70
4. Six years or age 70

Q6. Within how many days can the Lokpal grant or deny prosecution sanction?

1. 30
2. 60
3. 90
4. 180

Q7. An inquiry against the Prime Minister can be ordered by the Lokpal

1. For any corruption allegation
2. Only on national security, foreign relations or public order, with a full Bench
3. Only with the President's consent
4. Never

Q8. Which statement about the Lokayukta is correct per the handout?

1. Appointed by the President
2. Appointed by the Governor
3. Elected by the Legislature
4. Appointed by the Chief Justice

Q9. Which State's Lokayukta, per the handout, has jurisdiction over ministers but excludes the sitting Chief Minister?

1. Karnataka
2. Kerala
3. Maharashtra
4. Odisha

Q10. A key limit on Lokayuktas is that their findings are

1. Binding on the Governor
2. Recommendatory
3. Final and unappealable
4. Decided by the CBI

Q11. NGOs fall under the Lokpal's jurisdiction if they receive foreign contribution above

1. Rs 1 lakh
2. Rs 5 lakh
3. Rs 10 lakh
4. Rs 1 crore

Answers: Q1 a, Q2 b, Q3 c, Q4 b, Q5 c, Q6 b, Q7 b, Q8 b, Q9 c, Q10 b, Q11 c

MY NOTES

CHAPTER 45 · HANDOUT CHAPTER: CENTRAL INFORMATION COMMISSION AND STATE INFORMATION COMMISSION

45 Information Commissions

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

MY NOTES

EXAM LENS

Prelims hooks

- statutory versus constitutional status
- Sections 12, 14, 15, 18, 19(3), 4, 8(1), 25
- composition and appointing committee
- tenure after 2019
- removal grounds
- penalty amount
- what the 2019 Amendment changed
- Article 19(1)(a)
- UDHR and ICCPR Article 19.
- Handout stresses: No PYQ section is quoted for this chapter in the material (Whole chapter)
- Handout stresses: CIC is statutory (RTI Act, 2005, Section 12); SIC under Section 15; the RTI right flows from Article 19(1)(a) through judicial pronouncements (Sections 1 and 5)
- Handout stresses: Composition: CIC plus up to 10 ICs (max 11); committee PM, LoP, Union Cabinet Minister nominated by the PM (Section 2)
- Handout stresses: RTI (Amendment) Act, 2019 removed fixed five-year tenure and parity of pay with Election Commissioners; the Centre now prescribes both (Sections 4 and 7)
- Handout stresses: Section 18 complaints and Section 19(3) second appeals; penalty Rs 250 per day up to Rs 25,000 (Section 3)
- Handout stresses: Writ remedy: orders binding unless challenged before the High Court (Article 226) (Section 3)

Mains hooks

- none quoted in the material
- Likely angles from the notes: the 2019 amendment and independence of Information Commissions, pendency and vacancies, and the way forward.

Information Commissions guard the citizen's right to know with civil court powers and penalties, but executive control over tenure and pay since 2019 is the standing worry about their independence.

MY NOTES

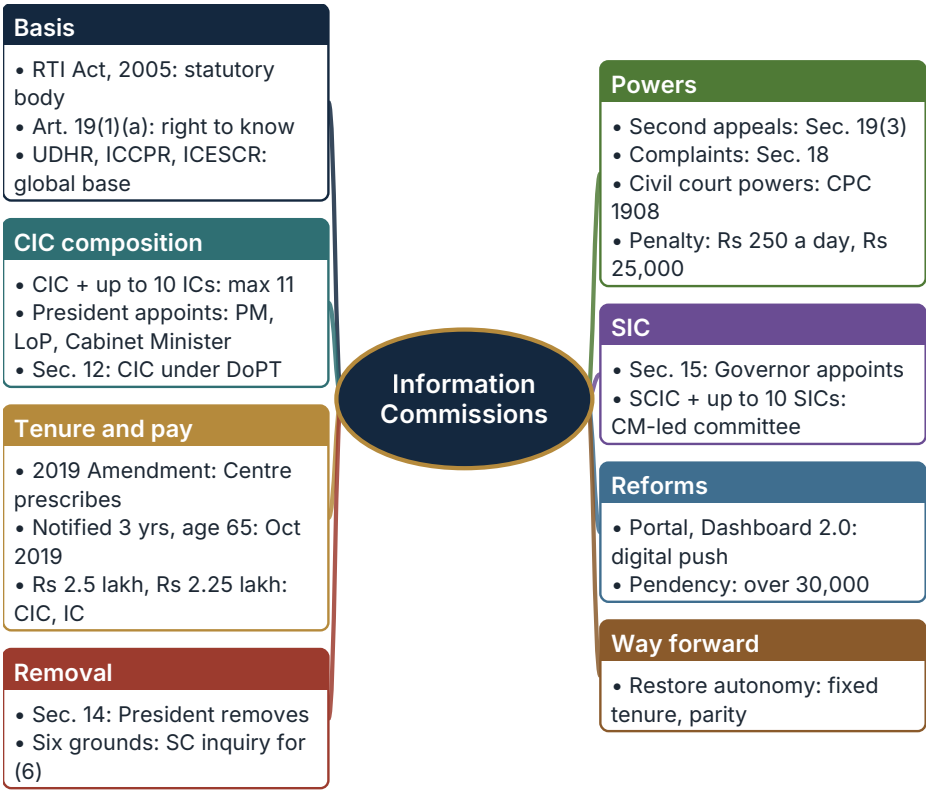
IN SIMPLE WORDS

- The **Central Information Commission (CIC)** is a **statutory body** under **Section 12 of the RTI Act, 2005**. It is the **final appellate authority** on RTI for central bodies, but its orders can be challenged by a **writ in a High Court** (Art. 226).
- It has a **Chief Information Commissioner and up to 10 Information Commissioners** (maximum 11), appointed by the **President** on the advice of the **PM, Leader of Opposition and a Cabinet Minister nominated by the PM**.
- After the **RTI (Amendment) Act, 2019** tenure and pay are set by the **Central Government**
- The handout gives **3 years or age 65** now, instead of a fixed **5 years**, and no longer pay parity with the Election Commission. No reappointment
- The CIC hears **second appeals** (Section 19(3)) and **complaints** (Section 18), may act **suo motu**, has **civil court powers**, can order disclosure, a PIO, compensation and penalties (**Rs 250 a day, up to Rs 25,000**).
- The **State Information Commission (SIC)** (Section 15) mirrors the CIC but is appointed by the **Governor** on a panel of the **Chief Minister, Leader of Opposition in the Assembly and a Cabinet Minister**, and is **not under the CIC**.

Key term	In plain words
RTI Act, 2005	Law creating the CIC (Section 12) and SICs (Section 15); right to information flows from Art. 19(1)(a)
Second appeal	Appeal to the Commission against the First Appellate Authority's order, Section 19(3)
Section 18 complaint	Complaint by anyone denied access, unable to file, overcharged or given false information
PIO	Public Information Officer; officer who must answer RTI requests
Section 4	Proactive publication of information by public bodies; CIC can order it
In camera inspection	Commission may inspect records privately to protect sensitive information
Section 25	Periodic reports from departments reviewed by the CIC
Penalty on PIO	Rs 250 per day, up to Rs 25,000, with disciplinary action recommended

MY NOTES

MEMORY MAP: INFORMATION COMMISSIONS



MNEMONIC · COMPLAINTS THE COMMISSION HEARS (SECTION 18)

I N F O R M

- **I** Information refused (access denied by the authority)
- **N** No PIO appointed, so no RTI application could be filed
- **F** Fee charged is excessive or unreasonable
- **O** Other difficulty in accessing information
- **R** Response not received within the time limit
- **M** Misleading, incomplete or false information given

A citizen who is not properly INFORMed can complain to the Commission: six grounds under Section 18 (State Commission list). The order is rearranged for memory. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · COMPLIANCE ORDERS THE CIC CAN GIVE

Delaying Officers Must Remedy, Compensate, Pay

- **D** Disclosure of information in the specified form
- **O** Order appointment of a PIO where none exists
- **M** Mandate proactive publication under Section 4
- **R** Record management reforms such as digitisation and indexing
- **C** Compensation to the applicant for loss or detriment
- **P** Penalty on the PIO: Rs 250 a day, up to Rs 25,000

Officers who delay information must remedy it, compensate the applicant and pay a penalty. This list is unordered and no good word exists, so the sentence is only a memory aid; the order is free. (Memory aid, not from the handout.)

MNEMONIC · PAY PARITY BEFORE THE 2019 AMENDMENT

Commissioners Earned Equal Cheques

- **C** Chief Information Commissioner: equal to the Chief Election Commissioner
- **E** Election Commissioner's pay for each Information Commissioner
- **E** Election Commissioner's pay for the State Chief Information Commissioner
- **C** Chief Secretary of the state's pay for State Information Commissioners

Commissioners earned equal cheques with the election and state-secretary posts until 2019; now the Centre prescribes pay. (Memory aid, not from the handout.)

INTRODUCTION AND GLOBAL PERSPECTIVE

- The **Central Information Commission (CIC)** is a **statutory body** established under the **Right to Information Act, 2005**. The right to information promotes transparency, accountability and participatory democracy. The judiciary has treated it, through judicial pronouncements, as a **fundamental right under Article 19(1)(a)**.
- The CIC is the **final appellate authority** in RTI matters, but its decision can be challenged by a **writ petition before any High Court**.
- By ensuring **time-bound disclosure** and **penalising delays or denials**, it strengthens participatory democracy and protects the "Right to Know", a derivative of Article 19(1)(a).

MY NOTES

GLOBAL PERSPECTIVE (THE HANDOUT'S TABLE, REBUILT)

Instrument	Context for RTI	Key principle
UDHR: Article 19	Foundational right	Explicitly includes the freedom to "seek, receive and impart information" through any media; access to information is a prerequisite for freedom of opinion
ICCPR: Article 19	Binding obligation	Turns the UDHR "declaration" into a binding treaty; a positive duty on states to give access to information held by public bodies, for government accountability
ICESCR	Enabling right	RTI is not named, but information is an "enabling right": one cannot claim health, education or fair wages (Arts. 6-13) without information on schemes and services

- **Memory aid (Three instruments):** **U**DHR (foundational), **I**CCPR (binding), **I**CESCR (enabling): "**U**nion **I**s **I**nformed."
- **Shortcut: Global shortcut. Declare, Bind, Enable**: UDHR declares, ICCPR binds, ICESCR enables.

CIC: COMPOSITION, APPOINTMENT, TENURE AND REMOVAL

CIC AT A GLANCE (THE HANDOUT'S TABLE, REBUILT)

Parameter	Details (RTI Act, 2005 and RTI Amendment Act, 2019; updated till 2024)
Legal status	Statutory body under **Section 12** of the RTI Act, 2005; functions under the **Department of Personnel and Training (DoPT)**, Ministry of Personnel, Public Grievances and Pensions
Composition	Chief Information Commissioner (head) and up to **10** Information Commissioners; total not more than **11**
Appointing authority	The President of India appoints the CIC and ICs
Appointment committee	Section 12(3): three members: Prime Minister (Chairperson); Leader of Opposition in the Lok Sabha (or leader of the single largest opposition group if there is no recognised LoP); a Union Cabinet Minister nominated by the Prime Minister
Eligibility	Persons of eminence in public life with wide knowledge and experience in law, science and technology, social service, management, journalism, mass media, or administration and governance. Cannot be an MP, a member of a State Legislature, or hold any office of profit or political affiliation
Tenure	Under the 2019 Amendment, as prescribed by the Central Government (not fixed in the Act). Per DoPT notification (October 2019): **3 years or age 65**, whichever is earlier. Earlier: fixed 5 years

MY NOTES

Parameter	Details (RTI Act, 2005 and RTI Amendment Act, 2019; updated till 2024)
Reappointment	Not eligible. An IC may be appointed CIC within the same overall tenure limit
Service conditions (post-2019)	Prescribed by the Central Government by notification. Earlier: CIC pay equal to the Chief Election Commissioner; ICs equal to Election Commissioners. Under 2019 DoPT Rules: **CIC Rs 2,50,000 a month (fixed); IC Rs 2,25,000 a month (fixed)**
Resignation	By writing to the President
Removal authority	President, on specified grounds under **Section 14** of the RTI Act, 2005

- **Memory aid (Appointment committee): P**M (chair), **L**oP in Lok Sabha, **C**abinet Minister nominated by the PM: "**P**ublic **L**ife **C**ounts."
- **Shortcut: Count shortcut. 1 + 10 = 11. 3 and 65**: three years or age 65 (notified, 2019). Old rule: **5 years**, pay equal to **CEC** and **EC**.

BEFORE AND AFTER 2019 (CIC)

- **Before:**
  - Fixed five years or age 65
  - Pay equal to CEC (CIC) and EC (ICs)
  - Fixed by Parliament through the Act
- **After:**
  - Tenure and pay prescribed by the Central Government
  - DoPT notification Oct 2019: 3 years or 65
  - CIC Rs 2,50,000 and IC Rs 2,25,000 a month

> **HANDOUT ALERT**
> Handout alert: The handout says the 2019 Amendment left **no fixed tenure** (the Centre prescribes it), and also quotes the **DoPT notification (October 2019) of 3 years or age 65**. Read them together: the Act no longer fixes tenure; the Centre's current rule is 3 years or 65. For the SIC the handout says "as prescribed by the Central Government or until age 65" and gives no fixed figure.

GROUNDS FOR REMOVAL (SECTION 14)

- Insolvency.
- Conviction for an offence involving moral turpitude (in the President's opinion).
- Paid employment outside official duties.
- Mental or physical infirmity (in the President's opinion).
- Financial or other interests prejudicially affecting official duties.
- Proved misbehaviour or incapacity, after inquiry by the **Supreme Court** and its recommendation for removal.

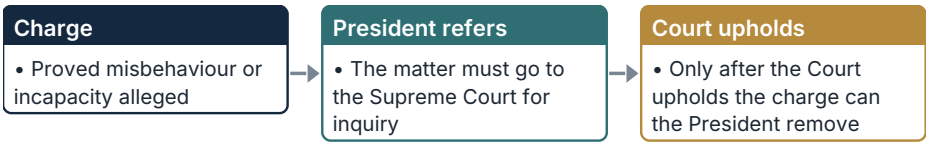
MY NOTES

- **Memory aid (Six grounds):** **I**nsolvency, **C**onviction, **P**aid job, **I**nfirmity, **F**inancial interest, **P**roved misbehaviour: "**I C**an **P**ay **I**f **F**ree, **P**lease."

SAFEGUARD AGAINST ARBITRARY REMOVAL

- **Charge**: Proved misbehaviour or incapacity alleged
- **President refers**: The matter must go to the Supreme Court for inquiry
- **Court upholds**: Only after the Court upholds the charge can the President remove

SAFEGUARD AGAINST ARBITRARY REMOVAL



ALSO IN THE HANDOUT

- Thus, the total strength cannot exceed 11 members.

POWERS AND FUNCTIONS OF THE CIC

- The CIC is the **final appellate authority** for matters concerning **Central Public Authorities** under the RTI Act. It makes sure the right is not curtailed by delay, denial or excessive fees.
- **Memory aid (Six roles):** **A**djudicatory, **I**nvestigative, **C**ompliance and enforcement, **A**dvisory and reporting, **S**upervisory and monitoring, **Q**uasi-judicial: "**A I**nformed **C**itizen **A**sks, **S**ees, **Q**uestions."

1. ADJUDICATORY POWERS

- **Second appeals** against orders of the First Appellate Authority, under **Section 19(3)**.
- **Complaints under Section 18** from any person who:
  - Was denied access to information
  - Could not submit an RTI request because no **PIO** was appointed
  - Was charged unreasonable fees
  - Got incomplete, false or misleading information

2. INVESTIGATIVE AND INQUIRY POWERS

- Can inquire **suo motu** or on a complaint when there are reasonable grounds.
- **Civil court powers** under the Code of Civil Procedure, 1908:
  - Summon and compel attendance and evidence on oath
  - Discovery and inspection of documents
  - Evidence on affidavits

MY NOTES

- Requisition any public record from any court or office
- Issue summons for examination of witnesses or documents
- Inspect records **in camera** if required to protect sensitive information

- **Section 18(3)**: no public authority may withhold any record from the Commission during the inquiry.

3. COMPLIANCE AND ENFORCEMENT POWERS

WHAT THE CIC CAN ORDER

Power	Detail
Disclosure	Direct disclosure in a specified form or language
PIO	Order appointment of a PIO where none exists
Proactive publication	Mandate publication under **Section 4**
Record management	Recommend digitisation, indexing, preservation systems
Compensation	Order compensation to applicants for loss or detriment from denial or delay
Penalty	On errant PIOs: **Rs 250 per day, up to Rs 25,000**; recommend disciplinary action for persistent violation

- **Shortcut: Penalty shortcut. 250 a day, 25,000 cap**: 100 days of delay reach the cap.

4. ADVISORY AND REPORTING FUNCTIONS

- **Annual report** to the Central Government on RTI implementation, laid before **both Houses** of Parliament.
- **Recommendations** to public authorities for conformity with the Act.
- **Awareness and training**: workshops, guides, circulars.
- **Policy consultation**: assists DoPT and ministries in revising RTI rules, digital disclosure and proactive publication norms.

5. SUPERVISORY AND MONITORING ROLE

- Watchdog across all Central Public Authorities, PSUs and UT administrations.
- Reviews periodic reports of departments under **Section 25**.
- Monitors compliance and recommends reforms where delay, secrecy or opacity appear.
- Works with State Information Commissions for uniform interpretation and best practices.

MY NOTES

6. QUASI-JUDICIAL NATURE

- Proceedings are deemed **judicial proceedings** under **Sections 193 and 228 of the IPC**.
- Orders are **binding** unless challenged before the High Court under writ jurisdiction (**Article 226**).
- Keeps case law repositories for consistency and transparency.

SECTION 18 AGAINST SECTION 19(3)

- **Section 18 complaint:**
  - By any person: denied access, no PIO, unreasonable fees, incomplete or false information
  - CIC may inquire and use civil court powers
- **Section 19(3) second appeal:**
  - Against the First Appellate Authority's order
  - CIC decides on merits as final appellate authority

ALSO IN THE HANDOUT

- Summoning and enforcing attendance of persons and compelling them to give oral or written evidence on oath.
- These powers ensure accessibility of the RTI process and protect citizens from bureaucratic denial.
- While conducting inquiries, it enjoys the powers of a civil court, including: 1. Summoning witnesses and compelling attendance;
- Issuing summons for witness examination or document production;
- Penalty on Erring Officers: a.
- These provisions make the SIC an active enforcement agency rather than a mere appellate forum.

RECENT REFORMS, CHALLENGES AND WAY FORWARD (CIC)

KEY REFORMS AND DEVELOPMENTS

FOUR DEVELOPMENTS

Development	What the handout says
RTI (Amendment) Act, 2019	Removed the fixed five-year tenure and pay parity with ECs; the Central Government now decides tenure, salary and service conditions. Government: flexibility and administrative efficiency. Critics: independence compromised by financial and administrative dependence on the executive
Digitalisation	RTI Online Portal expanded to all UTs and major Central PSUs (e-filing, appeals, fee payment); **CIC Dashboard 2.0 (2022)**; video-conferencing hearings institutionalised during COVID-19

MY NOTES

Development	What the handout says
AI-based file tracking (2024)	DoPT and CIC piloted an AI-driven system to predict pendency, track appeals and flag delays
Backlog clearance drives	Special benches (2021-23); pendency crossed **32,000** by late 2023; summary disposal of repetitive cases, digitisation, link with CPGRAMS

EMERGING CHALLENGES

- **Institutional independence**:
  - The 2019 amendment blurs autonomous oversight and executive control
  - Lack of CIC and EC parity weakens stature
- **Pendency and capacity**:
  - Pending appeals consistently above **30,000**, average wait over **10 months**
  - Vacancies, especially of the Chief Information Commissioner, delay decisions
- **Transparency fatigue**:
  - Misuse of **Section 8(1)** exemptions on vague "national interest" grounds
  - Post-COVID opacity and digital red tape

ROLE IN TRANSPARENCY (2019 TO 2025)

- **PSUs**: rulings in ONGC vs RTI Applicant (2022) and the BSNL case (2023): PSUs performing public functions cannot refuse information under commercial secrecy.
- **Public health**: in 2021 the CIC directed the Health Ministry to publish vaccine procurement and pricing data suo motu.
- **Environment**: in CIC v. Ministry of Environment (2022), proactive disclosure of EIA clearances and expert committee minutes.
- **Whistleblowers**:
  - Pressed for anonymity and procedural safeguards for RTI activists
  - Urged DoPT to hasten amendments to the Whistleblower Protection Act, 2014

WAY FORWARD

SIX STEPS

Step	Detail
Restore autonomy	Amend the 2019 Act to bring back fixed tenure and pay parity with ECs

MY NOTES

Step	Detail
Stronger enforcement	Binding compliance directions, or refer persistent violators to Parliament
Digitisation and outreach	Vernacular RTI Portal; integrate with the National Data Governance Framework
Capacity and staffing	Timely appointment of Commissioners; regional benches
Cultural shift	Treat transparency as governance reform, not compliance
Parliamentary review	Annual evaluation of CIC performance

- **Memory aid (Six steps): R**estore autonomy, **E**nforce, **D**igitise, **C**apacity, **C**ulture, **P**arliament review: "**R**ight **E**very **D**ay, **C**itizens **C**an **P**ry."

ALSO IN THE HANDOUT

- Post-COVID administrative opacity and increased digital red-tapism have reduced RTI's deterrence effect.

STATE INFORMATION COMMISSION: STATUS, COMPOSITION AND TENURE

- The **State Information Commission (SIC)** is an independent statutory body under the RTI Act, 2005 for transparency in **state public authorities**. It decides complaints and second appeals for state departments, PSUs, local bodies and institutions under the State Government.
- **Statutory, not constitutional.**
- Constituted by **notification of the State Government** under **Section 15** of the RTI Act, 2005.
- Independent
- **not subordinate to the CIC**

SIC AT A GLANCE (THE HANDOUT'S TABLE, REBUILT)

Aspect	Provision
Composition	One State Chief Information Commissioner (SCIC) plus up to **10** State Information Commissioners (SICs)
Appointing authority	The **Governor**, on the recommendation of a committee: Chief Minister (Chairperson); Leader of Opposition in the Legislative Assembly; one Cabinet Minister nominated by the CM
Eligibility	Persons of eminence in law, science and technology, social service, management, journalism, mass media, or administration and governance

MY NOTES

Aspect	Provision
Disqualifications	Cannot be an MP or MLA or hold an office of profit; cannot be affiliated to a political party or carry on a business or profession
Tenure (post-2019)	As prescribed by the Central Government or until age 65, whichever is earlier. Earlier fixed 5 years
Reappointment	A State Information Commissioner can become State Chief Information Commissioner, provided total service does not extend beyond **5 years**
Removal	By the **Governor** for insolvency, conviction for moral turpitude, paid employment, infirmity or conflict of interest. For proved misbehaviour or incapacity, the Governor must refer the matter to the **Supreme Court** for inquiry
Service conditions (post-2019)	Determined by the Central Government (earlier parity with EC and Chief Secretary). Cannot be varied to their disadvantage

CIC AGAINST SIC

- **CIC:**
  - Section 12
  - President appoints
  - PM, LoP, Union Cabinet Minister
  - Removal by President on Section 14
  - CIC plus up to 10 ICs
- **SIC:**
  - Section 15
  - Governor appoints
  - CM, LoP in Assembly, Cabinet Minister nominated by CM
  - Removal by Governor, SC inquiry for misbehaviour
  - SCIC plus up to 10 SICs
- **Memory aid (State committee): C**M (chair), **L**oP in the Assembly, **C**abinet Minister nominated by CM: "**C**ome, **L**et's **C**ount."

HANDOUT ALERT

Handout alert: The **reappointment** wording differs: for the CIC, an IC may become CIC "subject to the same overall tenure limit"; for the SIC, the limit is stated as "**not beyond 5 years**" total service, which is the old fixed term. The SIC tenure line also says "as prescribed by the Central Government or until 65". Use the 5-year wording only for the SIC reappointment line as the handout states it; note that the 2019 tenure is set by the Centre.

POWERS AND FUNCTIONS OF THE SIC

- The SIC is the **final appellate authority** under the RTI Act at the state level, a quasi-judicial body deciding second appeals and complaints.

MY NOTES

1. ADJUDICATORY POWERS

- **Section 19(3) appeals**:
  - From people unhappy with the departmental appellate authority's decision or inaction
  - Can direct disclosure, modification or rejection on merits
- **Section 18 complaints** from any person who:
  - Could not submit an RTI application because no PIO was appointed
  - Was refused information
  - Got no response in the prescribed time
  - Considers the fee excessive
  - Finds information incomplete, misleading or false
  - Or faces any other difficulty in accessing information

2. INVESTIGATIVE AND SUO MOTU POWERS

- Can start an inquiry **on its own motion** if it believes information was unjustly denied or concealed.
- **Civil court powers**:
  - Summon and compel attendance
  - Production, discovery and inspection of documents
  - Evidence on affidavit
  - Requisition public records from courts or offices
  - Issue summons for witnesses or documents
  - **spot inspections** or verification of records

3. ENFORCEMENT AND COMPLIANCE POWERS

- **Granting access**: disclosure in a specific format or mode.
- **Appointment of PIO**: direct the authority to designate an officer where none exists.
- **Record management**: reforms in record maintenance, cataloguing and disclosure.
- **Compensation** for loss or detriment from delay or denial.
- **Penalty**:
  - Rs 250 per day of delay up to Rs 25,000
  - May recommend disciplinary action under service rules

4. SUPERVISORY AND ADVISORY POWERS

- **Annual report** to the State Government on RTI implementation, tabled before the **State Legislature**.
- **Recommendations** on record-keeping, digital disclosure and officer training.
- **Awareness and training**: advise the government on public awareness campaigns and sensitisation.

MY NOTES

- **Shortcut: Mirror shortcut.** The SIC does what the CIC does, one level down: same **Section 18** and **19(3)**, same **civil court powers**, same **Rs 250 and Rs 25,000**, and the report goes to the **State Legislature**.
- **Memory aid (SIC powers):** **A**djudicate, **I**nvestigate (suo motu), **E**nforce, **S**upervise and advise: "**A**ll **I**nformation **E**nds **S**ecrecy."

RTI (AMENDMENT) ACT, 2019: KEY CHANGES

BEFORE AND AFTER (THE HANDOUT'S TABLE, REBUILT)

Aspect	Before (RTI Act, 2005)	After (RTI Amendment Act, 2019)
1. Tenure of office	Fixed 5-year term or until age 65, whichever earlier	No fixed tenure; term prescribed by the Central Government (for both CIC and SIC)
2. Salary and service conditions	CIC equal to Chief Election Commissioner; ICs equal to Election Commissioners; SCIC equal to EC; SICs equal to Chief Secretary of the State	Salaries, allowances and conditions of CIC, ICs, SCIC and SICs prescribed by the Central Government through executive rules
3. Reappointment	Not eligible after completing tenure	Remains the same: no reappointment
4. Deduction of previous pension benefits	Deductions were made from salary for pension or retirement benefits from previous government service	Such deductions removed; salaries paid in full regardless of earlier government service
5. Authority determining conditions	Fixed by Parliament through the RTI Act, 2005	Delegated to the Central Government via executive rule-making power
6. Applicability	Separate provisions for Central and State Commissions under Sections 12-15	Uniform control by the Central Government over both levels

- **Memory aid (Six changes):** **T**enure, **S**alary, **R**eappointment (same), **D**eduction of pension (removed), **A**uthority (Centre), **U**niform control: "**T**en **S**tudents **R**ead **D**ocuments **A**nd **U**nderstand."
- **Shortcut: Amendment shortcut. Five things moved to the Centre** (tenure, pay, conditions, rule-making, uniform control), **one stayed** (no reappointment), **one was removed** (pension deduction).
- **The critique:** The handout says the Government claimed flexibility and efficiency, while transparency advocates and former commissioners said making the Commissions dependent on the executive compromised their independence.

MY NOTES

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 62-63, INFORMATION COMMISSIONS

- The CIC entertains complaints and appeals about offices, financial institutions and public sector undertakings under the Central Government and the Union Territories
- The SIC does the same for the concerned State Government
- Eligibility in LK adds that members must not carry on any business or pursue any profession, besides not being an MP, legislator, office-holder of profit or party member.
- While inquiring, no record under the control of the public authority may be withheld from the Commission on any grounds.
- Extra compliance powers in LK:
  - Seek an annual compliance report from the public authority
  - Enhance training of officials on RTI
  - Reject the application. It can also recommend steps to authorities that do not follow the Act
- Misbehaviour is deemed if a member is interested in a contract with the Central Government (State Government for the SIC) or shares in its profit, apart from membership of an incorporated company in common with others.
- If the Leader of Opposition is not recognised, the leader of the single largest opposition group is deemed to be the Leader of Opposition for the panel (Lok Sabha for CIC, Assembly for SIC).
- An Information Commissioner can become Chief Information Commissioner but cannot hold office more than five years in total, including the earlier term. The same applies to the State commissions. The number of State Information Commissioners varies from state to state.
- Lakshmikanth differs:
  - Tenure. LK says the term is 'such as prescribed by the Central Government or until age 65', with no 3-year figure
  - The handout gives 3 years or 65 from the DoPT notification of October 2019. Use the handout's 3 years for class
- 2019 Amendment in LK has five features: term set by Centre (earlier 5 years), pay set by Centre (earlier equal to CEC and EC for the central posts), the same for State Commissioners (earlier equal to EC and Chief Secretary), and removal of deductions from salary for pension. The handout's table adds a sixth point on applicability.

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

What is the CIC?	A statutory body established under the RTI Act, 2005; the final appellate authority in RTI matters.
Can the CIC's decision be challenged?	Yes, by a writ petition before a High Court (Article 226).
Under which Article is the right to information a fundamental right?	Article 19(1)(a), by judicial pronouncements.
What do UDHR, ICCPR and ICESCR contribute to RTI?	UDHR Art. 19: foundational; ICCPR Art. 19: binding obligation; ICESCR: enabling right (Arts. 6-13).
What is the composition of the CIC?	Chief Information Commissioner plus up to 10 Information Commissioners: at most 11.
Under which Section is the CIC established?	Section 12 of the RTI Act, 2005.
Who is on the CIC appointment committee?	PM (Chairperson), LoP in Lok Sabha (or leader of the single largest opposition group), Union Cabinet Minister nominated by the PM.
What is the CIC's current tenure?	As prescribed by the Centre: 3 years or age 65 (DoPT Oct 2019). Earlier 5 years.
What are the 2019 pay figures?	CIC Rs 2,50,000 a month and IC Rs 2,25,000 a month (fixed).
Who could the CIC and ICs be compared to before 2019?	Chief Election Commissioner (CIC) and Election Commissioners (ICs).
Is reappointment allowed?	No; an IC may be appointed CIC within the same overall tenure limit.
Under which Section can the President remove the CIC?	Section 14, RTI Act, 2005.
Name the removal grounds.	Insolvency; conviction for moral turpitude; paid employment; infirmity; financial or other interest; proved misbehaviour or incapacity (after SC inquiry).
What are the CIC's adjudicatory powers?	Second appeals under Section 19(3) and complaints under Section 18.

MY NOTES

What civil court powers does the CIC have?	Under the CPC 1908: summon and compel evidence on oath; discover documents; affidavits; requisition records; issue summons; in camera inspection.
What does Section 18(3) say?	No public authority may withhold any record from the Commission during an inquiry.
What is the penalty on PIOs?	Rs 250 per day, up to Rs 25,000, plus recommendation for disciplinary action.
What does Section 25 deal with?	Periodic reports by departments, reviewed by the CIC.
What are CIC proceedings deemed to be?	Judicial proceedings under Sections 193 and 228 of the IPC.
What did the 2019 Amendment do?	Removed fixed tenure and pay parity with ECs; Centre prescribes tenure, pay and conditions; pension deductions removed.
What is the Government's defence of the 2019 Amendment?	Flexibility for administrative efficiency; critics say it compromised independence.
What is CIC Dashboard 2.0?	A 2022 tool integrating real-time tracking of pending cases, hearing schedules and orders.
How big is the pendency?	Above 30,000 appeals, average wait over 10 months; over 32,000 by late 2023.
What is the SIC and under which Section?	An independent statutory body under Section 15 of the RTI Act, 2005; not subordinate to the CIC.
Who is on the SIC appointment committee?	CM (Chairperson), LoP in the Legislative Assembly, one Cabinet Minister nominated by the CM; the Governor appoints.
What is the SIC's strength?	One SCIC plus up to 10 SICs.
Who removes an SIC member?	The Governor; for misbehaviour or incapacity, only after Supreme Court inquiry.
Which Commission report goes to the State Legislature?	The SIC's annual report on RTI implementation, via the State Government.
How were SIC salaries fixed before 2019?	SCIC equal to Election Commissioner; SICs equal to Chief Secretary of the State.

MY NOTES

Trap 1 · What changed in 2019

Before the 2019 Act: fixed 5 years or 65, pay equal to CEC (Chief) and EC (ICs); SCIC equal to EC and SICs equal to the state Chief Secretary. After: tenure and pay set by the Central Government for both Central and State commissions; pension deduction removed. *Rule: the Centre now controls tenure and pay of both CIC and SIC.*

Trap 2 · Final authority, yet writ possible

The CIC is the final appellate authority under the Act, but its orders can be challenged by a writ petition before any High Court. *Rule: final under the RTI Act, not beyond judicial review.*

Trap 3 · SIC is not under the CIC

The SIC is independent, appointed by the Governor and set up by state notification under Section 15. It is not subordinate to the CIC, though the Centre now prescribes its tenure and service conditions. *Rule: separate bodies; Governor appoints SIC, President appoints CIC.*

Trap 4 · The three-member panel

The CIC panel is the PM, Leader of Opposition and a Cabinet Minister nominated by the PM. There is no Chief Justice, unlike the CBI Director's panel. *Rule: RTI panel = PM + LoP + nominated Cabinet Minister; the SIC panel swaps in CM and Assembly LoP.*

QUICK QUIZ

Q1. The Central Information Commission is

1. A constitutional body
2. A statutory body under the RTI Act, 2005
3. An executive department
4. A tribunal under Article 323A

Q2. The maximum strength of the CIC is

1. 7
2. 10
3. 11
4. 12

Q3. Which member is part of the committee that recommends CIC appointments?

1. Speaker of the Lok Sabha
2. Chief Justice of India
3. Union Cabinet Minister nominated by the PM
4. Home Minister by office

Q4. Under the DoPT notification of October 2019, the CIC's tenure is

1. 5 years or age 65
2. 3 years or age 65
3. 4 years or age 62
4. 6 years or age 65

Q5. Under the RTI (Amendment) Act, 2019, tenure and service conditions of Information Commissioners are decided by

1. Parliament through the Act
2. The President alone
3. The Central Government
4. The Supreme Court

Q6. Which Section gives the CIC power to hear complaints?

1. Section 4
2. Section 14
3. Section 18
4. Section 25

MY NOTES

Q7. The penalty the CIC can impose on an errant PIO is

1. Rs 100 a day up to Rs 10,000
2. Rs 250 a day up to Rs 25,000
3. Rs 500 a day up to Rs 50,000
4. Rs 1,000 a day up to Rs 1 lakh

Q8. Who appoints the State Chief Information Commissioner?

1. President
2. Governor
3. Chief Minister
4. Chief Justice of the High Court

Q9. An Information Commissioner can be removed on proved misbehaviour or incapacity only after

1. A resolution of Parliament
2. Inquiry by the Supreme Court
3. A vote of no-confidence
4. Consent of the CIC

Q10. Which of the following was a change made by the RTI (Amendment) Act, 2019?

1. Fixed 10-year tenure
2. Pay parity with Supreme Court judges
3. Removal of deductions for previous pension benefits
4. Reappointment allowed

Q11. The right to information has been held by the judiciary to be a fundamental right under

1. Article 14
2. Article 19(1)(a)
3. Article 21A
4. Article 32

Answers: Q1 b, Q2 c, Q3 c, Q4 b, Q5 c, Q6 c, Q7 b, Q8 b, Q9 b, Q10 c, Q11 b

MY NOTES

46 National Investigation Agency

CHAPTER 46 · HANDOUT: NIA CHAPTER

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

EXAM LENS

Prelims hooks

- NIA Act year and agency year (2008 and 2009)
- Ministry (MHA)
- headed by a Director-General
- Special NIA Courts under Section 11
- appeals lie directly to the High Court
- NIA can take cases suo motu.
- Handout stresses: Handout gives the NIA a full chapter with set-up, 8 functions, vision and mission, jurisdiction, powers and a 2019 Amendment table (Whole chapter)
- Handout stresses: Suo motu power "unlike other central agencies such as the CBI" (Jurisdiction and Powers)
- Handout stresses: 2019 Amendment (extra-territorial reach, expanded Schedule, Special Courts, global cooperation) (Amendment table)

Mains hooks

- federal tension in counter-terrorism (centralised investigation versus State police)
- why a national agency was needed after 26/11
- strengths and limits of extra-territorial powers.

A dedicated federal agency with its own law, suo motu reach, Special Courts and, since 2019, a global mandate.

IN SIMPLE WORDS

- The **National Investigation Agency (NIA)** is India's central **counter-terrorism** investigation agency. It was set up in **2009** under the **NIA Act, 2008**, after the **26/11 Mumbai attacks (2008)**.
- It works under the **Ministry of Home Affairs**, is headquartered in **New Delhi** and is headed by a **Director-General** appointed by the Central Government.
- It investigates and prosecutes **scheduled offences** (UAPA, Atomic Energy Act, Anti-Hijacking Act, Explosive Substances

MY NOTES

Act and others) with **concurrent jurisdiction** across India. It can take up a case **without state consent** once the Centre says it is a scheduled offence.

- The **NIA (Amendment) Act, 2019** let it probe scheduled offences **outside India** when Indian citizens or interests are involved, and added **five new offences** to the Schedule.
- **Special NIA Courts** (Sessions Courts designated by the Centre or States) try these cases fast, and appeals go straight to the **High Court**.

Key term	In plain words
Scheduled offence	An offence under an Act listed in the Schedule of the NIA Act, 2008, which the NIA may investigate
Concurrent jurisdiction	NIA and state police can both act; the NIA can take over a scheduled case from the state
Suo motu	The NIA can start a case on its own once the Centre decides it is a scheduled offence; no state consent needed
Extra-territorial application	2019 Amendment: NIA can probe scheduled offences committed abroad against Indian citizens or interests
TFFC Cell	Terror Funding and Fake Currency Cell; targets hawala, illegal remittances and fake currency
Special NIA Court	A Sessions Court designated to try scheduled offences; appeals go directly to the High Court
MLAT	Mutual Legal Assistance Treaty; lets the NIA share evidence and seek extradition with other countries
NIA Academy	Training wing at Hyderabad for professional development of investigators

MY NOTES

MEMORY MAP: NATIONAL INVESTIGATION AGENCY

Origin
- NIA Act, 2008: agency set up in 2009
- 26/11 Mumbai attacks (2008): gaps in coordination
- Under MHA: HQ New Delhi

Set-up
- Director-General: DGP-equivalent rank
- TFFC Cell: terror funding and fake currency
- Five wings: CTD, TFFC, Cyber, more

Functions
- Investigate and prosecute: Scheduled offences
- Coordinate: states, CBI, IB, RAW
- Intelligence: Terror Database, Crime Linkage Grid
- Speedy trials: Special NIA Courts, Section 11

Jurisdiction
- Concurrent: across India
- Suo motu: no state consent needed
- Post-2019: offences abroad too

NIA

Scheduled laws
- UAPA 1967: Atomic Energy Act 1962
- Anti-Hijacking Act 2016: WMD Act 2005
- Explosive Substances Act 1908: civil aviation Act 1982

2019 Amendment
- Extra-territorial reach: citizens and national interests
- Expanded Schedule: trafficking, FICN, cyber-terrorism
- Special Courts: Sessions Courts designated

Oversight
- Accountable to Parliament: via MHA annual report
- Appeals: straight to High Court
- Global links: Interpol, MLATs, UNCTED

MNEMONIC · FIVE OFFENCES ADDED BY THE 2019 AMENDMENT

C A C H E

C Counterfeit currency or banknotes

A Arms: manufacture or sale of prohibited arms **C** Cyber-terrorism

H Human trafficking **E** Explosive substances offences

The NIA now hunts every hidden CACHE of terror money, arms and explosives: the five offences added to the Schedule in 2019. The order is rearranged for memory. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · INTERNAL DIVISIONS OF THE NIA

TRACE

- **T** Terror Funding and Fake Currency (TFFC) Cell
- **R** Research: Training and Research Wing (NIA Academy, Hyderabad)
- **A** Attacks and bomb blasts: Counter-Terrorism Division
- **C** Charge-sheets: Prosecution Division (with Special NIA Courts)
- **E** Evidence, digital: Cyber and Forensic Division

The NIA exists to TRACE terrorists and their funds: its five divisions. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · NIA (AMENDMENT) ACT, 2019 PROVISIONS

SIEGE

- **S** Special Courts (Sessions Courts designated)
- **I** International jurisdiction (police powers abroad)
- **E** Expanded Schedule
- **G** Global cooperation through treaties and MLATs
- **E** Extra-territorial application

Terror SIEGE: the five 2019 provisions that strengthen the NIA against terrorism. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · LAWS IN THE NIA SCHEDULE

Unit Arrests Attackers, Seizes Weapons, Explosives

- **U** UAPA, 1967
- **A** Atomic Energy Act, 1962
- **A** Anti-Hijacking Act, 2016
- **S** Suppression of Unlawful Acts against Safety of Civil Aviation Act, 1982
- **W** Weapons of Mass Destruction Act, 2005
- **E** Explosive Substances Act, 1908

The NIA unit arrests attackers and seizes weapons and explosives: six main laws in the handout's order. This list is unordered and no good word exists, so the sentence is only a memory aid; the order is free. (Memory aid, not from the handout.)

INTRODUCTION AND RATIONALE

- The NIA is India's central counter-terrorism law enforcement agency. It investigates scheduled offences that threaten the sovereignty, integrity and security of India.

MY NOTES

NIA AT A GLANCE

Aspect	Detail
Established	2009, under the National Investigation Agency Act, 2008
Ministry	Ministry of Home Affairs (MHA)
Headquarters	New Delhi, with regional branches across India
Trigger	The 26/11 Mumbai terror attacks (2008) exposed gaps in coordination among states and the lack of a unified counter-terrorism investigation mechanism
Nature	Federal agency; a shift toward greater centralisation in counter-terror investigation
Key power	Can investigate and prosecute specific scheduled offences even without state consent

WHY IT WAS SET UP (RATIONALE)

- **Rising threat of terrorism**: frequent strikes in metropolitan and border regions, many planned and funded across borders. The 26/11 attacks showed sophisticated coordination by cross-border groups.
- **Complex inter-state and global linkages**: terror crime meets drug smuggling, arms trafficking, fake currency and illegal infiltration, so it needs central oversight.
- **Need for a dedicated federal agency**: with no specialised national body, intelligence coordination and timely prosecution suffered.
- **Expert recommendations**: the Second Administrative Reforms Commission (2008) and security experts recommended a centralised agency able to act across states.
- **Uniform standards**: professional capacity, scientific methods and consistent standards across jurisdictions, for speed and credibility.
- **Memory aid (Five reasons):** **R**ising threat, **C**omplex linkages, **D**edicated agency needed, **E**xpert recommendation (2nd ARC), **U**niform standards: "**R**ed **C**orridors **D**emand **E**ffective **U**nity".
- **Core idea:** The NIA was conceived as a federal response because fragmented state-level investigations could not tackle the scale and complexity of modern terror networks.

ALSO IN THE HANDOUT

- It maintains close coordination with: 1.

MY NOTES

COMPOSITION AND ORGANISATIONAL SETUP

ORGANISATION

Aspect	Details
Legal basis	National Investigation Agency Act, 2008
Administrative ministry	Ministry of Home Affairs (MHA)
Headquarters	New Delhi
Head of agency	Director-General (DG), equivalent to Director General of Police (DGP) rank
Appointing authority	Central Government
Jurisdictional nature	Concurrent jurisdiction, across India. Post-2019 it can also investigate offences committed abroad involving Indian citizens or interests
Specialised unit	TFFC Cell (Terror Funding and Fake Currency)

CONTROL AND COORDINATION

- The NIA works under the overall policy supervision of the MHA but enjoys **functional autonomy in investigation**. It coordinates with: 1. State Police Forces: intelligence sharing and local operational support. 2. Other Central Agencies: IB, RAW, ED and CBI, for cross-domain investigations. 3. International partners: through treaties and the INTERPOL network.

INTERNAL DIVISIONS

FUNCTIONAL WINGS

Division	Work
Counter-Terrorism Division (CTD)	Terror-related offences, bomb blasts, attacks on security forces
Terror Funding and Fake Currency (TFFC) Cell	Cross-border hawala, illegal remittances, fake currency
Cyber and Forensic Division	Digital evidence and technical analysis
Prosecution Division	Prepares charge-sheets, coordinates with Special NIA Courts
Training and Research Wing	Professional development through NIA Academy, Hyderabad, modelled on international best practices

- **Memory aid (Five wings):** **C**ounter-terrorism, **T**FFC, **C**yber and forensic, **P**rosecution, **T**raining and research: "**C**ops **T**rack **C**riminals, **P**ut **T**hem away".

MY NOTES

- **Shortcut: Autonomy line. Policy = MHA, investigation = NIA's own.** Supervision is overall, but functional autonomy sits with the agency.

FUNCTIONS AND MANDATE

- The mandate covers investigation, prosecution and coordination on offences listed in the Schedule of the NIA Act, 2008. Crimes of terrorism, insurgency and organised transnational nature are investigated by scientific methods with uniform standards across states and courts.

EIGHT FUNCTIONS

#	Function	Detail
1	Investigation and prosecution of scheduled offences	The primary function; offences under the Schedule of the Act
2	Coordination with state and central agencies	Concurrent jurisdiction with state police, CBI, IB and RAW. Shares intelligence, conducts joint raids, assists states in multi-jurisdiction cases
3	Intelligence collection and data analysis	Collects, collates and analyses terror intelligence nationwide. Keeps a national **Terror Database and Crime Linkage Grid**. TFFC Cell targets the financial backbone of terror networks
4	Assistance to states and other agencies	Technical, forensic and legal expertise. Standardises methods and trains in forensic and digital evidence
5	International cooperation	2019 Amendment lets it probe offences abroad involving Indian citizens or national interests. Works with INTERPOL, UNODC, CIA, FBI and FATF, and joins joint task forces on transnational crime and terror financing
6	Speedy and effective trials	Special NIA Courts across India under **Section 11** of the NIA Act, often with fast-track procedures
7	Preventive and policy role	Regular risk assessments and legal reviews. Recommends legislative updates on terrorism, cybercrime and organised networks. Capacity building for state police and law officers
8	Public confidence and human rights	Mission includes upholding the Constitution and human dignity. Training stresses proportional use of power, fairness and respect for human rights

- **Memory aid (Eight functions):** **I**nvestigate and prosecute, **C**oordinate, **I**ntelligence, **A**ssist states, **I**nternational cooperation, **S**peedy trials, **P**reventive and policy role, **P**ublic confidence and human rights: "**I**ndia's **C**ops **I**nvestigate **A**ll **I**nternational **S**ecurity **P**lots **P**roperly".

MY NOTES

- **Handout example:** During the 2023 Manipur ethnic violence, NIA teams coordinated with Assam Rifles and state forces to investigate arms smuggling networks.

VISION AND MISSION

VISION AND MISSION TABLE

Aspect	Description
Vision	A highly professional, internationally benchmarked investigation agency; terrorism and national security offences investigated effectively, fairly and without delay
Core focus	National standards of excellence in counter-terror investigation, creating deterrence, coordinating with domestic and international partners
Key institutional goals	Centre of excellence in counter-terror investigation; speedy professional trials through Special NIA Courts; comprehensive intelligence and data network on terrorism and organised crime; federal cooperation by assisting state and central agencies
Mission	In-depth, scientific, impartial investigation of offences affecting sovereignty, integrity and internal security; ensuring convictions while safeguarding constitutional and human rights
Operational ethos	Rule of law and due process; modern technology, forensic science and digital intelligence; coordination with international counter-terror networks; professional workforce through training, ethics and innovation
Guiding values	Integrity, objectivity, efficiency, transparency, national service

MISSION BULLETS

- In-depth investigation of scheduled offences using cutting-edge scientific methods.
- Ensure speedy trials.
- Build a professional, rights-focused workforce through training and modern technology.
- Foster inter-agency collaboration.
- Maintain terrorist databases for sharing.
- Analyse global laws to refine India's framework.
- Earn public trust through selfless service.
- **Memory aid (Guiding values):** **I**ntegrity, **O**bjectivity, **E**fficiency, **T**ransparency, **N**ational service: "**I** **O**nly **E**xpect **T**rue **N**ation-builders".
- **Overall aim:** The agency strives to be a world-class investigative body that deters terrorism and builds a comprehensive repository of terror-related intelligence.

MY NOTES

JURISDICTION AND POWERS

- Authority comes from the NIA Act, 2008, as amended by the NIA (Amendment) Act, 2019. **Unlike other central agencies such as the CBI, the NIA can take up cases suo motu (without state consent)** once the Central Government decides the offence falls under the Schedule.

DOMESTIC AND INTERNATIONAL JURISDICTION

- **Domestic (concurrent, all India):**
  - Offences threatening sovereignty, integrity and security of India
  - Security of the State
  - Friendly relations with foreign States
  - Public order and national integrity
  - Can take over cases registered by state police or other agencies if scheduled
  - Examples: attacks on defence installations, terror financing networks, cross-border smuggling of arms or fake currency
- **International (post-2019):**
  - Offence by an Indian citizen abroad
  - Or it affects interests of India
  - Or it is directed against Indian assets or missions abroad
  - Central Government can direct NIA to register and investigate as if it occurred in India
  - Aligns India with agencies like the FBI (USA) and Scotland Yard (UK)
- **Memory aid (Three abroad triggers): C**itizen abroad, **I**nterests of India affected, **A**ssets or missions abroad targeted: "**C**ase **I**s **A**broad".

POWERS DURING INVESTIGATION

- NIA officers have all powers of a police officer under the **Code of Criminal Procedure (CrPC)**:
- Search and seizure.
- Arrest and interrogation.
- Collection of electronic and forensic evidence.
- Filing of charge-sheets.
- Follow-up investigations and prosecutions.
- It can also summon any person, require production of documents and coordinate joint operations.

COORDINATION AND OVERSIGHT

- All state governments must cooperate fully with NIA investigations.

MY NOTES

- The NIA is accountable to **Parliament through the MHA**, which lays its annual report before both Houses (investigations, convictions, challenges).

INTERNATIONAL COOPERATION

- Coordinates through Interpol and the UN Counter-Terrorism Executive Directorate (UNCTED).
- Mutual Legal Assistance Treaties (MLATs) enable evidence sharing and extradition of accused persons.
- The International Cooperation Division (ICD) liaises with partner agencies in the U.S., U.K., France and Australia, especially in cyber-terrorism and online radicalisation cases.
- **Handout example:** The NIA collaborated with the U.S. FBI and Europol (2022-23) to trace ISIS-linked digital propaganda networks targeting Indian youth.

SCHEDULED OFFENCES

- The Schedule to the Act lists the laws under which the NIA can investigate.

ORIGINAL SCHEDULE LAWS

Act	Year
Unlawful Activities (Prevention) Act (UAPA)	1967
Atomic Energy Act	1962
Anti-Hijacking Act	2016
Suppression of Unlawful Acts against Safety of Civil Aviation Act	1982
Weapons of Mass Destruction (and Delivery Systems) Act	2005
Explosive Substances Act	1908
Prevention of Terrorism Act (POTA) and other related legislations	listed in the handout

- **Memory aid (Scheduled laws):** **U**APA, **A**tomic Energy, **A**nti-Hijacking, **S**uppression of Unlawful Acts (civil aviation), **W**MD Act, **E**xplosive Substances: "**U**nder **A**ny **A**ct, **S**ome **W**eapons **E**xplode".

AFTER THE 2019 AMENDMENT, FIVE ADDITIONAL OFFENCES

- Human trafficking.
- Counterfeit currency or banknotes.
- Manufacture or sale of prohibited arms.
- Cyber-terrorism.
- Explosive substances offences.

MY NOTES

- **Memory aid (Five added in 2019):** **H**uman trafficking, **C**ounterfeit currency, **M**anufacture or sale of prohibited arms, **C**yber-terrorism, **E**xplosive substances: "**H**e **C**ame, **M**ade **C**ash **E**asily".

> **HANDOUT ALERT**
> Handout alert: The text says **five** offences were added in 2019 (human trafficking, counterfeit currency, prohibited arms, cyber-terrorism, explosive substances). The Amendment table lists only **four** (explosive substances, cyber-terrorism, human trafficking, counterfeit currency) and omits prohibited arms. Explosive Substances Act, 1908 also appears in the original Schedule list. For the count, use the handout's own list of **five** and remember the table lists four.

NIA (AMENDMENT) ACT, 2019 AND SPECIAL COURTS

KEY PROVISIONS OF THE 2019 AMENDMENT

Provision	Description
1. Extra-territorial application	NIA can investigate scheduled offences committed outside India if they involve Indian citizens or national interests
2. International jurisdiction	NIA officers have police powers for investigation and prosecution abroad, subject to central approval
3. Expanded Schedule	Added offences under Explosive Substances Act, cyber-terrorism, human trafficking and counterfeit currency
4. Special Courts	Central and State Governments can designate Sessions Courts as NIA Special Courts for trial of scheduled offences
5. Global cooperation	Information exchange and evidence collection through treaties, MLATs and international agencies

- **Memory aid (Five provisions):** **E**xtra-territorial application, **I**nternational jurisdiction, **E**xpanded Schedule, **S**pecial Courts, **G**lobal cooperation: "**E**very **I**ntelligence **E**ffort **S**eeks **G**lobal reach".

SPECIAL NIA COURTS (SECTIONS 11-22)

- Designated by the Central or State Governments in consultation with the Chief Justice of the High Court.
- They try offences under the NIA Act and related scheduled laws.
- Appeals lie **directly with the High Court**, ensuring quick judicial review.

PATH OF A SCHEDULED CASE

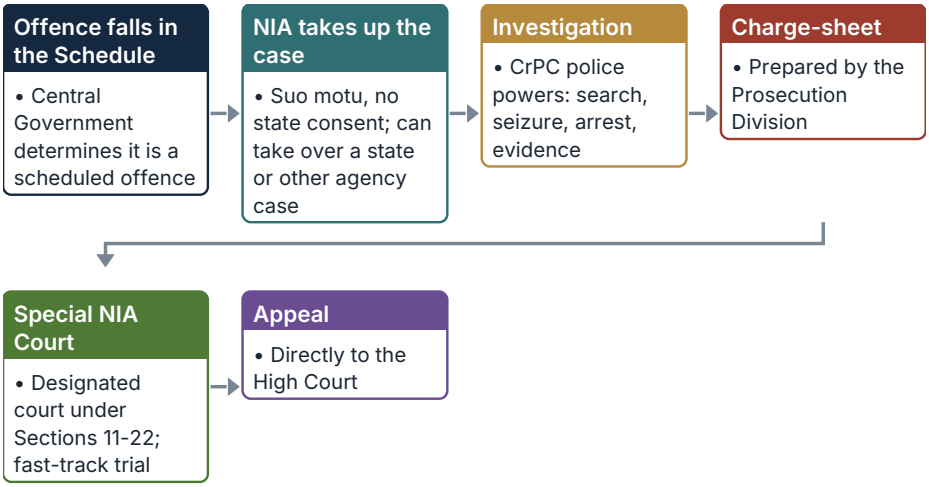
- **Offence falls in the Schedule**: Central Government determines it is a scheduled offence
- **NIA takes up the case**:
  - Suo motu, no state consent

MY NOTES

- Can take over a state or other agency case

- **Investigation**: CrPC police powers: search, seizure, arrest, evidence
- **Charge-sheet**: Prepared by the Prosecution Division
- **Special NIA Court**:
  - Designated court under Sections 11-22
  - Fast-track trial
- **Appeal**: Directly to the High Court

PATH OF A SCHEDULED CASE



- **Shortcut: Jurisdiction shortcut. Home = concurrent + suo motu. Abroad = citizen, interest, asset.** Courts = Sections 11-22, appeal to the High Court.

RECENT INITIATIVES

DEVELOPMENTS LISTED IN THE HANDOUT

Initiative	Year	What it did
Operation Garuda	2022	Coordinated global crackdown on drug trafficking and money laundering
Crackdown on Khalistan-linked cells	2023	Pan-India raids on ISI-backed networks
Terror Funding Free India Campaign	2021-24	Curbing hawala, crypto and FICN channels
Integration with NATGRID	2024	Stronger data access for inter-agency intelligence fusion
Women in NIA	2023	Over 18% of operational staff are women officers

- **Memory aid (Recent five):** **G**aruda, **K**halistan raids, **T**error Funding Free India, **N**ATGRID, **W**omen in NIA: "**G**ood **K**nights **T**ake **N**ight **W**atch".

MY NOTES

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 67, NATIONAL INVESTIGATION AGENCY

- Lakshmikanth calls the NIA the central counter-terrorism law enforcement agency, set up in 2009 under the NIA Act, 2008. The Director-General has powers similar to those of a Director-General of Police in a state.
- The Government gave four reasons while introducing the NIA Bill, 2008:
  - Terrorism sponsored from across the borders
  - Complex inter-state and international links (arms and drug smuggling, fake currency, infiltration)
  - The need for a central agency
  - And expert committee advice
- The Second Administrative Reforms Commission (chairman Veerappa Moily, 2005-09) recommended such an agency in its 2008 report 'Combating Terrorism'.
- Functions as per the NIA (Manner of Constitution) Rules, 2008:
  - Investigate and prosecute scheduled offences
  - Give and seek help from other central and state agencies
  - Take other measures needed for speedy and effective implementation of the Act
- Vision (four points):
  - A thoroughly professional agency matching the best international standards
  - Standards of excellence in counter-terrorism
  - Deterrence against terrorist groups
  - A storehouse of all terrorism-related information
- The Mission has eleven points. Examples not in the handout list: seeing that all cases handed to the NIA are detected, scientific temper and progressive spirit, cordial relations with states and UTs, and winning the confidence of citizens through selfless and fearless work.
- Jurisdiction also covers offences under Acts that implement international treaties, conventions and UN resolutions. The NIA can probe bomb blasts, hijacking of aircraft and ships, attacks on nuclear installations and use of weapons of mass destruction.
- Lakshmikanth differs: explosive substances. It puts explosive substances only in the list of five offences added in 2019 (with human trafficking, counterfeit currency, prohibited arms, cyber-terrorism). The handout also names the Explosive Substances Act, 1908 among the older scheduled laws. Use the handout's list in class, but the five-new-offence list is the same in both.

MY NOTES

- Lakshmikanth adds that every state government extends all assistance and cooperation to the NIA in investigating scheduled offences, and that the NIA works under the administrative control of the MHA.

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

When and under what Act was the NIA set up?	2009, under the National Investigation Agency Act, 2008.
What event led to the NIA?	The 26/11 Mumbai terror attacks (2008), which exposed coordination gaps among states.
Which Ministry supervises the NIA?	Ministry of Home Affairs (MHA); the NIA has functional autonomy in investigation.
Who heads the NIA?	A Director-General, equivalent to DGP rank, appointed by the Central Government.
What is the NIA's jurisdictional nature?	Concurrent jurisdiction across India; post-2019 also offences abroad involving Indian citizens or interests.
Which commission recommended a centralised agency in 2008?	The Second Administrative Reforms Commission (2008).
What does the TFFC Cell do?	Investigates cross-border hawala, illegal remittances and fake currency (Terror Funding and Fake Currency).
Name the five NIA wings.	Counter-Terrorism Division, TFFC Cell, Cyber and Forensic Division, Prosecution Division, Training and Research Wing.
Where is the NIA Academy?	Hyderabad.
Name the national database kept by the NIA.	Terror Database and Crime Linkage Grid.
Under which Section are Special NIA Courts established?	Section 11 of the NIA Act (Sections 11-22 cover the courts).
Who designates Special NIA Courts?	The Central or State Governments, in consultation with the Chief Justice of the High Court.
Where do appeals from Special NIA Courts go?	Directly to the High Court.
How does the NIA differ from the CBI on jurisdiction?	The NIA can take up scheduled cases suo motu without state consent.

MY NOTES

Three conditions for NIA to probe offences abroad?	Act by an Indian citizen abroad; affects India's interests; directed against Indian assets or missions abroad.
List the original scheduled laws.	UAPA 1967, Atomic Energy Act 1962, Anti-Hijacking Act 2016, Civil Aviation Suppression of Unlawful Acts Act 1982, WMD Act 2005, Explosive Substances Act 1908, POTA and related laws.
What five offences were added in 2019?	Human trafficking, counterfeit currency, manufacture or sale of prohibited arms, cyber-terrorism, explosive substances offences.
Who does the NIA answer to?	Parliament, through the MHA, which lays its annual report before both Houses.
What powers do NIA officers have in investigation?	All police powers under the CrPC: search and seizure, arrest, interrogation, evidence collection, charge-sheets.
Which bodies does the NIA work with internationally?	INTERPOL, UNODC, CIA, FBI, FATF; also UNCTED, MLATs and the International Cooperation Division.
What was Operation Garuda (2022)?	A coordinated global crackdown on drug trafficking and money laundering.
What did the 2024 NATGRID integration do?	Strengthened data access for inter-agency intelligence fusion.

Trap 1 · Act year versus agency year

The NIA Act was passed in 2008 (after the 26/11 attacks of 2008), but the NIA itself was constituted in 2009. *Rule: Act = 2008, NIA = 2009, Amendment = 2019.*

Trap 2 · Explosive Substances: old or new?

The handout lists the Explosive Substances Act, 1908 among the original scheduled laws, and also lists explosive substances among the five offences added in 2019. *Rule: for the 2019 list of five, write human trafficking, counterfeit currency, prohibited arms, cyber-terrorism, explosive substances.*

Trap 3 · NIA is not like the CBI on consent

The handout says that, unlike the CBI, the NIA can take up scheduled cases suo motu without state consent. States must still cooperate fully. *Rule: NIA = no state consent needed for scheduled offences; it stays accountable to Parliament through the MHA.*

MY NOTES

Trap 4 · Who designates the Special Courts

The 2019 Amendment says the Central and State Governments can designate Sessions Courts as Special Courts. Appeals go straight to the High Court, not a lower appeal court. *Rule: Sessions Court = Special NIA Court; appeal = High Court.*

QUICK QUIZ

Q1. The NIA was established in 2009 under which Act?

1. NIA Act, 2008
2. UAPA, 1967
3. NIA (Amendment) Act, 2019
4. Anti-Hijacking Act, 2016

Q2. The NIA functions under which Ministry?

1. Ministry of Law and Justice
2. Ministry of Home Affairs
3. Ministry of External Affairs
4. Ministry of Finance

Q3. The head of the NIA is a

1. Commissioner
2. Chairperson
3. Director-General
4. Secretary

Q4. Which feature is said to distinguish the NIA from the CBI?

1. It cannot arrest
2. It can take up cases suo motu without state consent
3. It has no Special Courts
4. It works only abroad

Q5. Special NIA Courts are provided for under

1. Sections 11-22 of the NIA Act
2. Article 32
3. Section 213
4. Sections 3-5

Q6. Appeals from Special NIA Courts lie to

1. Supreme Court
2. Sessions Court
3. High Court
4. NCLAT

Q7. Under the 2019 Amendment, the NIA can investigate offences abroad if

1. the accused is a foreign national in a foreign State
2. the act is by an Indian citizen abroad, affects India's interests, or targets Indian assets or missions
3. the State Government requests it
4. the UN Security Council requests it

Q8. Which unit targets terror funding and fake currency?

1. CTD
2. Prosecution Division
3. TFFC Cell
4. Cyber and Forensic Division

Q9. The NIA Academy is located at

1. New Delhi
2. Hyderabad
3. Mumbai
4. Mangalagiri

Q10. NIA officers exercise police powers under the

1. Advocates Act
2. Competition Act
3. CrPC
4. Delimitation Act

Answers: Q1 a, Q2 b, Q3 c, Q4 b, Q5 a, Q6 c, Q7 b, Q8 c, Q9 b, Q10 c

MY NOTES

CHAPTER 47 · HANDOUT: LAW COMMISSION, BCI, SBCS AND ADVOCATES

47 Law Commission and Bar Council

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **2022**

EXAM LENS

Prelims hooks

- Law Commission is non-statutory and advisory
- first Commission 1955 under M.C
- Setalvad
- 3-year tenure
- BCI statutory under Advocates Act 1961
- BCI chairperson term 2 years
- SBC term 5 years
- AOR needs 4 years practice, 1-year training, AOR exam
- Senior Advocates cannot file or draft directly.
- Handout stresses: Handout gives full tables for the Law Commission reports, BCI and SBC composition, BCI versus SBC, and the three types of advocates (Whole chapter)
- Handout stresses: Law Commission is non-statutory and its recommendations are not binding (Introduction)
- Handout stresses: BCI is statutory under the Advocates Act, 1961, with functions from Section 7 and appeals under Section 38 (BCI sections)

Mains hooks

- role of the Law Commission in legal reform and its limits (non-binding)
- regulation of the legal profession and legal education by the BCI
- reforms in the Bar (foreign lawyers, digital enrolment, AIBE).

One advisory body that proposes law reform and one statutory ladder, BCI over State Bar Councils, that regulates advocates and legal education.

IN SIMPLE WORDS

- The **Law Commission of India** is a **non-statutory, advisory** body set up by a Government notification (Ministry of Law and Justice). It recommends law reform

MY NOTES

- Its reports are **not binding** but carry great persuasive value
- Four commissions worked under British rule (1834-1947). The **First Law Commission of independent India (1955)** was headed by **M.C. Setalvad**. Each commission has a **3-year** term
- The **23rd** started on **1 September 2024**
- Its main jobs: **repeal obsolete laws**, test laws against the Constitution, **codify and simplify** laws, advise the Government, and research **justice delivery** and access to justice. It has submitted **277 reports** up to the 22nd Commission.
- The **Bar Council of India (BCI)** is a **statutory** body under the **Advocates Act, 1961**. It regulates the legal profession and sets standards for **legal education**. **State Bar Councils (SBCs)** enrol and discipline advocates in each state.
- Advocates fall into three types: **Senior Advocates**, **Advocates-on-Record (AORs)**, who alone can file in the Supreme Court, and **other advocates** on the state rolls.

Key term	In plain words
Non-statutory body	Created by a Government order, not by an Act of Parliament; the Law Commission is one
Article 372	Kept pre-independence laws alive until amended or repealed; the reason a Law Commission was needed
Working paper	Draft of a problem and reform ideas that the Commission circulates for public comment
Advocates Act, 1961	Law that created the BCI and the State Bar Councils
AIBE	All India Bar Examination; a mandatory qualifying exam for law graduates to practise in courts
Senior Advocate	Lawyer given special distinction by the SC or a High Court, with consent; cannot file cases directly or draft pleadings
Advocate-on-Record	Advocate authorised under the Supreme Court Rules, 2013 to act and plead for a party in the SC; only an AOR can file there
Section 38, Advocates Act	Appeal to the Supreme Court against BCI disciplinary orders

MY NOTES

MEMORY MAP: LAW COMMISSION AND BAR COUNCIL

Law Commission

- Non-statutory: advisory body
- First Commission 1955: M.C. Setalvad
- Tenure: generally 3 years
- Reports not binding: persuasive value

LC functions

- Repeal obsolete laws: 248th and 251st Reports
- Codify, simplify: IPC, CrPC, Evidence
- Judicial reform research: 230th Report
- Access to justice: 256th Report

Major reports

- 91st (1983): Dowry deaths, Sec 304-B
- 210th (2008): Sec 309 IPC
- 262nd (2015): Death penalty
- 276th (2018): Data protection

Bar Council of India

- Advocates Act, 1961: apex statutory body
- Members: one elected by each SBC plus AG and...
- Chair term: 2 years
- Section 7: functions

Law Commission and Bar Councils

BCI powers

- Disciplinary: appellate over SBCs
- Supervisory: take over a failing SBC
- Regulatory: legal education standards
- Quasi-judicial: civil court powers

State Bar Councils

- Section 3: one per State
- Ex-officio: Advocate-General
- Term: 5 years
- Enrolment Committee: admits to state roll

Types of advocates

- Senior Advocate: designated by SC or HC
- AOR: files in Supreme Court
- Other Advocates: enrolled with SBC

Reforms 2020-25

- AIBE: computer-based testing
- Foreign lawyers 2023: non-litigious
- Enrolment portal: 2021

MNEMONIC · WHO SITS ON THE LAW COMMISSION

C A S E

C Chairperson (usually a retired Supreme Court judge or High Court Chief Justice)

A Advocates, eminent: part-time members (also scholars and professionals)

S Secretary: Member-Secretary (Indian Legal Service, Additional Secretary or Secretary rank)

E Experts: full-time members (legal experts, jurists, law professors)

The Law Commission builds the CASE for legal reform: four kinds of members. The order is rearranged for memory. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · WORKING PROCEDURE OF THE LAW COMMISSION

Inquiring Reformers Write Comments, Finalise, Submit

- **I** Identification of topics (from Government, courts or suo motu)
- **R** Research and data collection
- **W** Working paper circulated for public feedback
- **C** Consultations with stakeholders, judiciary and ministries
- **F** Final report drafting
- **S** Submission to the Ministry of Law and Justice

Reformers inquire, write a working paper, take comments, finalise and submit the report, in the handout's six steps. (Memory aid, not from the handout.)

MNEMONIC · COMMITTEES OF THE BAR COUNCIL OF INDIA

Discipline Leads Every Lawyer Onward

- **D** Disciplinary Committee
- **L** Legal Aid Committee
- **E** Executive Committee
- **L** Legal Education Committee
- **O** Other committees as needed

Discipline guides every lawyer: the BCI has these five committee heads in the handout's order (SBCs have an Enrolment Committee instead of Legal Education). This list is unordered and no good word exists, so the sentence is only a memory aid; the order is free. (Memory aid, not from the handout.)

MNEMONIC · PERMANENT COMMITTEE FOR SENIOR ADVOCATES (2018)

C A S T

- **C** Chief Justice of India (Chairperson)
- **A** Attorney General of India
- **S** Senior advocate (one, nominated by the Committee)
- **T** Two senior-most Supreme Court judges

The Committee decides who is CAST as a Senior Advocate: its four members. The order is rearranged for memory. (Memory aid, not from the handout.)

LAW COMMISSION: NATURE AND EVOLUTION

- The Law Commission of India is a **non-statutory, advisory body** constituted by a notification of the Government of India, Ministry of Law and Justice, Department of Legal Affairs. Its role is to recommend legal reforms, simplify and modernise existing laws and promote justice in line with constitutional ideals.

MY NOTES

- **Binding or not:** Its recommendations are **not binding**, but they carry substantial persuasive value in shaping legislative and judicial policy.
- **Vision:** Reforming the laws for maximizing justice in society and promoting good governance under the rule of law.

HISTORICAL EVOLUTION

Phase	Details
Colonial period (1834-1947)	Four Law Commissions under British rule to codify Indian laws. Their work led to the Indian Penal Code (1860), Civil Procedure Code (1908), Indian Contract Act (1872) and Evidence Act (1872)
Post-Independence (1955 onwards)	First Law Commission (1955) under **M.C. Setalvad**, India's first Attorney-General, to reform outdated colonial laws and align them with the Directive Principles of State Policy (DPSPs). Law Commissions have a 3-year tenure and specific terms of reference
Constitutional relevance	**Article 372** retained pre-independence laws until amended or repealed, so a Law Commission was needed for continuous legal reform

HANDOUT ALERT

Handout alert: The handout says "22 Law Commissions have been constituted" since Independence, yet also says the **23rd Law Commission** was constituted for three years from 1 September 2024. It also refers to "the 22nd Commission, 2023". Use: 22nd Commission (2023), 23rd Commission (from 1 Sept 2024).

- **Memory aid (Colonial codes):** **I**PC 1860, **C**PC 1908, **C**ontract Act 1872, **E**vidence Act 1872: "**I**ndian **C**odes **C**ame, **E**xplained".

ALSO IN THE HANDOUT

- It also undertakes comparative legal studies to align Indian law with global best practices.
- It recommends legislative measures to eliminate discrimination and improve legal aid.

COMPOSITION OF THE LAW COMMISSION

COMPOSITION

Position	Details
Chairperson	Usually a retired Supreme Court Judge or Chief Justice of a High Court
Full-time members	Legal experts, jurists or professors of law with proven academic and judicial competence

MY NOTES

Position	Details
Member-Secretary	Officer from the Indian Legal Service, often of Additional Secretary or Secretary rank
Part-time members	Eminent advocates, scholars or professionals with domain expertise
Administrative setup	Research staff and secretarial support under the Ministry of Law and Justice
Tenure	Generally three years; varies with the terms of reference set by the Government

- **Handout example:** The 23rd Law Commission was constituted for a period of three years, effective 1 September 2024.
- **Memory aid (Composition):** **C**hairperson, **F**ull-time members, **M**ember-Secretary, **P**art-time members: "**C**ourts **F**ollow **M**any **P**roposals".

ROLE AND FUNCTIONS OF THE LAW COMMISSION

- It is the principal advisory body on legal reform, guiding the Government to modernise, simplify and humanise the legal system. Functions flow from the terms of reference notified by the Government.

EIGHT FUNCTIONS

#	Function	Detail and handout example
1	Review and repeal of obsolete laws	Identifies redundant or outdated laws and periodically submits lists for repeal. The 248th and 251st Reports (2014) recommended repeal of nearly 1,824 obsolete laws, many later removed by the Repealing and Amending Acts of 2015-17
2	Examination of laws in light of the Constitution	Checks alignment with Fundamental Rights and DPSPs. Examples: gender justice, personal laws and the Uniform Civil Code
3	Codification and simplification	Consolidates scattered statutes into clear codes. Played a key role in revising the IPC, CrPC and Evidence Act, recently reintroduced as the Bharatiya Nyaya Sanhita (2023), Bharatiya Nagarik Suraksha Sanhita (2023) and Bharatiya Sakshya Adhiniyam (2023)
4	Legal policy and advisory role	Advises the Union Government on drafting new legislation, harmonising Indian laws with international treaties and conventions, and legal implications of reforms. Does comparative legal studies
5	Research and reform in justice delivery	Studies judicial delays, pendency and procedural inefficiency. The 230th Report (2009) proposed fast-track courts, e-judiciary mechanisms and more judicial manpower

MY NOTES

#	Function	Detail and handout example
6	Access to justice for the marginalised	Focus on women, children, SCs, STs and economically weaker sections. The 256th Report (2015) stressed pro bono legal services and technology for rural legal aid
7	International and comparative legal research	Handles legal-cooperation and research requests from foreign governments or institutions. Reviews India's obligations under CEDAW and UNCAC
8	Recommendations on specific legal issues	Specialised studies on contemporary challenges (see list below)

RECENT SUBJECTS (FUNCTION 8)

- Criminalization of politics (244th Report).
- Electoral reforms and simultaneous elections (255th Report).
- Data protection and privacy (276th Report).
- Sedition and free speech (22nd Law Commission, 2023).
- **Memory aid (Eight functions):** **R**epeal obsolete laws, **E**xamine laws against the Constitution, **C**odify and simplify, **L**egal policy advice, **R**esearch on justice delivery, **A**ccess to justice for the marginalised, **I**nternational research, **S**pecific issues: "**R**eform **E**very **C**lause, **L**et **R**ights **A**dvance **I**n **S**ociety".

> **HANDOUT ALERT**
> Handout alert: The 244th Report appears as "Criminalization of politics" in the functions list but as "Electoral Disqualifications" (disqualify legislators on framing of charges for heinous offences) in the reports table. Both describe the same theme; remember 244th = electoral disqualification / criminalization of politics.

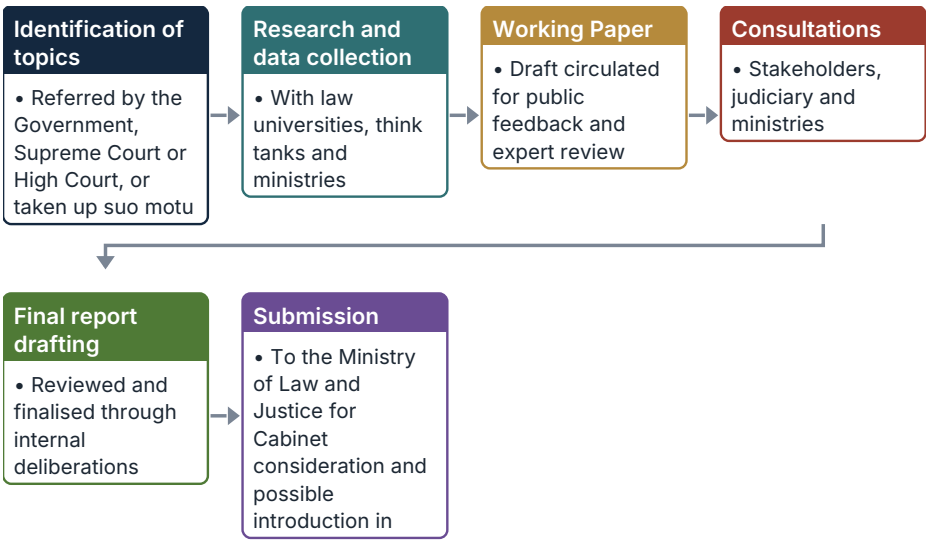
WORKING PROCEDURE

HOW A REPORT IS MADE

- **Identification of topics**: Referred by the Government, Supreme Court or High Court, or taken up suo motu
- **Research and data collection**: With law universities, think tanks and ministries
- **Working Paper**: Draft circulated for public feedback and expert review
- **Consultations**: Stakeholders, judiciary and ministries
- **Final report drafting**: Reviewed and finalised through internal deliberations
- **Submission**: To the Ministry of Law and Justice for Cabinet consideration and possible introduction in Parliament

MY NOTES

HOW A REPORT IS MADE



- **Memory aid (Report steps):** **I**dentify, **R**esearch, **W**orking paper, **C**onsult, **F**inal draft, **S**ubmit: "**I** **R**ead **W**ritten **C**ases, **F**ile **S**ummaries".

ALSO IN THE HANDOUT

- It periodically submits lists of such laws for repeal, ensuring that the statute book remains concise and relevant.
- This reduces ambiguity, duplication, and contradictions in the legal system, facilitating better access to justice.
- Enhancing Access to Justice for the Marginalized: The Commission focuses on laws affecting vulnerable groups—women, children, Scheduled Castes, Scheduled Tribes, and economically weaker sections.
- It also reviews India's obligations under global conventions such as CEDAW (Convention on the Elimination of Discrimination Against Women) and UNCAC (United Nations Convention Against Corruption).

MAJOR REPORTS AND THEIR IMPACT

- As of the 22nd Commission (2023) the Law Commission has submitted **277 reports**. These influenced landmark legislation, judicial reform and socio-legal change.

SELECT MAJOR REPORTS

Report	Subject	Key recommendation	Outcome
1st (1956)	Reform of Judicial Administration	Separation of judiciary from executive, more subordinate courts, better training of judges	Led to judicial separation under Article 50 and district judiciary reforms

MY NOTES

Report	Subject	Key recommendation	Outcome
14th (1958)	Reform of Judicial Administration (updated)	Better court efficiency, fewer arrears, judicial accountability	Foundation for Justice Delivery Reforms; influenced later reports
42nd (1971)	Indian Penal Code revision	Modernise the IPC and add new socio-economic offences	Guided later IPC amendments; influenced Bharatiya Nyaya Sanhita, 2023
91st (1983)	Dowry deaths and law reform	Reverse burden of proof; stricter punishment	Section 304-B (IPC) and 113-B (Evidence Act) through the 1986 Amendment
152nd (1994)	Custodial crimes	Specific CrPC provisions for mandatory registration and investigation of custodial deaths	Reflected in DK Basu v. State of West Bengal (1997) guidelines and NHRC procedures
156th (1997)	IPC revision (comprehensive)	Gender-neutral rape law, redefined offences, proportional punishment	Cited in Justice Verma Committee (2013); influenced 2013 Criminal Law Amendment
172nd (2000)	Review of rape laws	Criminalise marital rape; gender-neutral sexual offences	Basis for Criminal Law (Amendment) Act, 2013, partially accepted
185th (2003)	Review of Code of Civil Procedure, 1908	Streamline civil processes, summary trials, fewer delays	Contributed to Civil Procedure (Amendment) Act, 2002-2003
210th (2008)	Humanisation and decriminalisation of attempt to suicide (Sec. 309 IPC)	Repeal Section 309 IPC as it penalised mental health sufferers	Mental Healthcare Act, 2017 decriminalised suicide attempts
230th (2009)	Reforms in Judiciary	More judicial strength, case management, time-bound trials	Part of National Mission for Justice Delivery and Legal Reforms (2011)
244th (2014)	Electoral disqualifications	Disqualify legislators when charges are framed for heinous offences	Cited in Lily Thomas v. Union of India (2013); shaped electoral reform debate
255th (2015)	Electoral reforms	Transparency in political funding; simultaneous elections	Influenced the One Nation, One Election discussion

MY NOTES

Report	Subject	Key recommendation	Outcome
262nd (2015)	Death penalty	Abolish death penalty for all crimes except terrorism-related	Sparked debate; influenced SC's approach to the "rarest of rare" principle
268th (2017)	Bail reforms	Uniform bail guidelines; safeguards against arbitrary pre-trial detention	Reflected in Supreme Court guidelines (2021) on bail
271st (2017)	Human DNA Profiling Bill	Safeguards against misuse of DNA data and privacy violations	In revised draft DNA Technology (Use and Application) Bill, 2019
276th (2018)	Data protection and privacy	Framework aligned with EU's GDPR, consent-based processing	Precursor to the Digital Personal Data Protection Act, 2023
277th (2018)	Wrongful prosecution (miscarriage of justice)	Compensation and legal safeguards for wrongful imprisonment	Used in drafting of 22nd Law Commission's ongoing criminal justice proposals
22nd Law Commission (2023)	Sedition (Section 124A IPC)	Retain sedition with safeguards; narrow its definition	Basis for current parliamentary debate on amended sedition provisions in Bharatiya Nyaya Sanhita, 2023

- **Shortcut: Report-number shortcut. Judiciary: 1, 14, 230. Penal law: 42, 156, 172. Dowry 91, custody 152. Civil code 185. Suicide 210. Elections 244, 255. Death penalty 262. Bail 268. DNA 271. Data 276. Wrongful prosecution 277.**
- **Memory aid (Five landmark outcomes):** **D**owry (91st), **C**ustodial crimes (152nd), **S**uicide Sec 309 (210th), **M**ental Healthcare Act 2017 outcome, **D**ata protection (276th): "**D**ear **C**ourt, **S**ee **M**y **D**raft".

SIGNIFICANCE OF LAW COMMISSION REPORTS

- **Institutional continuity**: each report builds on earlier efforts, so law evolves with society.
- **Judicial credibility**: Supreme Court and High Courts frequently cite reports as authoritative sources.
- **Legislative efficiency**: ready drafts and model laws save parliamentary committees time.
- **Policy integration**: many recommendations are absorbed into NITI Aayog, the National Judicial Mission or Ease of Doing Business reforms.

MY NOTES

ALSO IN THE HANDOUT

- The Commission suggests reforms to promote justice, equality, and welfare, and may recommend new legislations to fulfill the socio-economic goals envisioned in the Preamble and Part IV of the Constitution.

BAR COUNCIL OF INDIA: INTRODUCTION AND COMPOSITION

- The BCI is the **apex statutory body** established under the **Advocates Act, 1961** on the recommendation of the All-India Bar Committee. It regulates the legal profession and sets standards for legal education. It functions as an autonomous institution under the Ministry of Law and Justice (Department of Legal Affairs). So it has a dual purpose: professional regulation of advocates and academic oversight of legal education.

COMPOSITION OF THE BCI

Aspect	Provision
Statutory basis	Advocates Act, 1961
Total membership	Elected and ex-officio members
Elected members	One representative elected by each State Bar Council (SBC) from among its members
Ex-officio members	Attorney General of India and Solicitor General of India
Chairperson and Vice-Chairperson	Elected by the Council from among its members; tenure of **2 years**
Committees	Disciplinary Committee; Legal Aid Committee; Executive Committee; Legal Education Committee; other committees as needed
Tenure of members	Corresponds with their term in the respective SBC

- **Memory aid (BCI committees): D**isciplinary, **L**egal Aid, **E**xecutive, **L**egal Education: "**D**ear **L**awyers, **E**nrol **L**earners".

FUNCTIONS OF THE BAR COUNCIL OF INDIA

- Functions are derived from **Section 7** of the Advocates Act, 1961.

SEVEN HEADS OF FUNCTIONS

Head	Functions
1. Regulatory and supervisory	Professional standards (conduct and etiquette); disciplinary authority (prescribes procedure for disciplinary committees of itself and SBCs and supervises them); supervision over SBCs; safeguarding rights, privileges and interests of advocates, including welfare and protection of professional independence

MY NOTES

Head	Functions
2. Educational and academic	Legal education oversight (standards in consultation with universities and SBCs); recognition of law universities whose degrees qualify for enrolment; inspection and accreditation (visits itself or directs SBCs); Legal Education Committee frames curriculum, academic policies and guidelines
3. Disciplinary and enforcement	Hears appeals against SBC disciplinary orders; code enforcement (can suspend or remove advocates guilty of misconduct); coordinates with the judiciary on accountability and integrity of the Bar
4. Welfare and legal aid	Legal aid and awareness for the economically weaker; welfare funds for indigent, disabled or distressed advocates; public legal literacy through seminars, publications and drives; encourages advocates to volunteer for public causes
5. Law reform and policy	Promotes law reform; opinions on legislative drafts and judicial reforms; seminars, conferences and journals
6. Financial and administrative	Manages and invests funds for education, welfare and legal aid; may receive grants, donations and benefactions; conducts elections, appoints committees, runs transparent internal administration
7. International and cooperative	May affiliate with international legal bodies such as the International Bar Association (IBA) or International Legal Aid Association (ILAA); can recognise, on a reciprocal basis, law degrees from foreign universities for enrolment

- **Memory aid (Seven heads):** **R**egulatory, **E**ducational, **D**isciplinary, **W**elfare, **L**aw reform, **F**inancial, **I**nternational: "**R**ight **E**ducation **D**evelops **W**ise **L**egal **F**olk, **I**ndia".

ALSO IN THE HANDOUT

- Disciplinary and Enforcement Functions 10.
- Welfare and Legal Aid Functions 10.

POWERS OF THE BAR COUNCIL OF INDIA

- The BCI has wide powers, both regulatory and quasi-judicial, as the apex supervisory body for advocates and law institutions.

SEVEN GROUPS OF POWERS

Group	Powers
1. Disciplinary	Constitute one or more Disciplinary Committees to inquire into misconduct; prescribe procedure for BCI and SBC proceedings; **appellate authority** against SBC decisions (can affirm, reverse or modify); suspend or remove an advocate's name from the roll for serious misconduct

MY NOTES

Group	Powers
2. Supervisory	General supervision and control over SBCs; directions to SBCs on enrolment, discipline and welfare; may **temporarily assume the functions of an SBC** that fails its duties; inspect SBC records and operations
3. Regulatory	Standards of professional conduct and etiquette; minimum academic qualifications and course structure for legal education; recognise or derecognise law colleges and universities; regulate foreign lawyers per the 2023 BCI (Foreign Lawyers and Law Firms) Rules; prescribe conditions for enrolment (qualifications, fees, verification of credentials)
4. Financial and administrative	Funds for welfare, legal aid and law libraries; receive grants, donations, benefactions; regulate elections, membership and tenure of office bearers in BCI and SBCs; appoint committees or sub-committees
5. Quasi-judicial	Civil-court-like powers in disciplinary or investigative proceedings: summon and enforce attendance of witnesses; require production of documents; receive evidence on affidavits; requisition public records from any office or court. Can start suo motu inquiries. Orders are binding, subject to appeal before the Supreme Court under **Section 38** of the Advocates Act, 1961
6. Law reform and advocacy	Propose amendments to legal education rules, professional standards or welfare schemes; consultative role with the Law Commission and Parliamentary Committees; represent India's legal community internationally
7. Emergency and residual	Residual powers where no specific rule exists; interim orders to preserve integrity of the profession during proceedings; may suspend enrolments or revoke recognitions in urgent situations

- **Memory aid (Civil-court powers): S**ummon witnesses, **P**roduction of documents, **A**ffidavit evidence, **R**equisition public records: "**S**ee **P**apers **A**nd **R**ecords".
- **Shortcut: Power-ladder shortcut. BCI = appeals, supervision, recognition.** SBC decides first, BCI hears appeal, and **Section 38** takes it to the Supreme Court.

ALSO IN THE HANDOUT

- AORs play a crucial role in maintaining procedural discipline in the apex court.

STATE BAR COUNCILS

- The SBC is a statutory body under the Advocates Act, 1961 that regulates and represents the profession at State level (enrolment, discipline, welfare and supervision of advocates). It is autonomous but under the general supervision of the BCI to keep uniform standards.

MY NOTES

COMPOSITION OF AN SBC

Aspect	Provision
Legal basis	Advocates Act, 1961, **Section 3**
Establishment	One SBC for each State, or a common SBC for two or more States or UTs (e.g. Punjab and Haryana, Assam, Nagaland and Mizoram)
Ex-officio members	Advocate-General of the State (in a common SBC, all concerned Advocate-Generals). For the Delhi SBC, the Additional Solicitor-General of India is also ex-officio
Chairman and Vice-Chairman	Elected by the Council from among its members; tenure and re-election as per SBC rules
Term of office	**Five years** for elected members (extendable by 6 months by the BCI if elections are delayed)
Committees	Disciplinary, Legal Aid, Executive, Enrolment and other committees as required
Administrative control	Under the overall supervision of the BCI but an independent statutory body

FUNCTIONS OF SBCS

- **Enrolment and regulation**:
  - Admit persons as advocates on the state roll and keep the register
  - Verify qualifications, character and eligibility
  - Ensure compliance with BCI standards of conduct
- **Disciplinary and supervisory**:
  - Decide misconduct cases against advocates on its roll
  - Set up Disciplinary Committees
  - Appeals against its decisions go to the BCI for final adjudication
  - Supervise Bar Associations in the State
- **Welfare and development**:
  - Safeguard rights and interests of advocates
  - Welfare schemes for indigent, disabled and distressed advocates
  - Manage welfare funds
  - Legal aid and awareness for the poor
- **Educational and reform**:
  - Promote state-level law reform
  - Seminars, lectures and workshops
  - Publish journals
  - Visit and inspect universities as directed by the BCI
- **Administrative and financial**:
  - Elect Chairperson, Vice-Chairperson and BCI representatives
  - Manage and invest funds

MY NOTES

- Set up law libraries and give grants to local Bar Associations
- Frame rules, subject to BCI approval

POWERS OF SBCS

SBC POWERS

Category	Nature	Explanation
1. Disciplinary	Inquire into misconduct	Summon witnesses, record evidence, pass suspension or removal orders against erring advocates
2. Supervisory	Over Bar Associations and subordinate bodies	Directions and oversight to ensure legal ethics
3. Regulatory	Enrolment and qualifications	Decides enrolment applications, keeps the official roll; can suspend licences for non-compliance
4. Financial	Administer funds	State welfare and library funds; may receive donations, grants, benefactions for legal aid
5. Quasi-judicial	Inquiry proceedings	Powers of a civil court: summoning, receiving evidence, requisitioning records, enforcing attendance
6. Coordination	With BCI and universities	Implements BCI directions; coordinates with law colleges and universities on standards
7. Residual	Effective governance	Necessary actions for smooth functioning of the State's legal machinery, consistent with the Act

SBC COMMITTEES

- 1. Disciplinary Committee: misconduct cases. 2. Legal Aid Committee: legal assistance to the poor. 3. Executive Committee: administrative and financial affairs. 4. Enrolment Committee: admissions to the state roll. 5. Other committees as required.

BCI VERSUS SBC

Aspect	Bar Council of India	State Bar Councils
Level of operation	National	State or regional
Primary role	Regulates the entire legal profession and legal education in India	Regulates advocates practising within a particular State
Supervisory power	Over all SBCs	Over local Bar Associations
Education role	Prescribes standards and recognises law universities	Inspects law colleges under BCI directions

MY NOTES

Aspect	Bar Council of India	State Bar Councils
Disciplinary role	Appellate authority over SBC decisions	Primary authority to discipline advocates on its roll
Funding and welfare	National-level funds and policies	State-level welfare and library funds
Representation	Represents India at international legal bodies	Represents advocates of the concerned State

- **Memory aid (SBC committees): D**isciplinary, **L**egal Aid, **E**xecutive, **E**nrolment: "**D**ay **L**ong **E**xams **E**nd". Compare BCI: Disciplinary, Legal Aid, Executive and **Legal Education**.

TERM AND CHAIR, BCI AND SBC

- **BCI:**
  - Elected members: one from each SBC
  - Ex-officio: Attorney General and Solicitor General
  - Chair and Vice-Chair term: 2 years
- **SBC:**
  - Ex-officio: Advocate-General of the State
  - Elected members' term: 5 years (6 months extension by BCI)
  - Chair and Vice-Chair term: as per SBC rules

ALSO IN THE HANDOUT

- Organise legal aid and awareness programmes for the poor and underprivileged.
- This classification ensures professional excellence, responsibility, and effective representation at various levels of the judiciary.

TYPES OF ADVOCATES

- The Advocates Act, 1961 recognises only **one class** of legal practitioner, the advocate. For functional clarity (under the Advocates Act, 1961 and Supreme Court Rules, 2013) advocates are grouped into three types.

SENIOR ADVOCATES

- A lawyer given special distinction by the Supreme Court or a High Court for exceptional standing at the Bar, ability or specialised knowledge.
- The Chief Justice of India or a High Court Chief Justice, with a collegium of senior judges, may designate
- Only **with the advocate's consent**, on merit, integrity and contribution
- The Supreme Court's Permanent Committee (2018) headed by the CJI: the CJI (Chairperson), two senior-most SC Judges, the Attorney

MY NOTES

General of India, and one senior advocate nominated by the Committee.

- Restrictions:
  - Cannot file cases directly or appear without being briefed through another advocate (Rule 2, BCI Rules)
  - Cannot draft pleadings or affidavits, but may give legal opinions and argue cases
  - Must keep the highest ethical standards

ADVOCATE-ON-RECORD (AOR)

- Authorised under the Supreme Court Rules, 2013 to act and plead for a party before the Supreme Court.
- Files cases, drafts petitions, communicates with the court registry. **Only an AOR can sign and submit pleadings or file vakalatnamas in the Supreme Court.**
- Eligibility:
  - At least **four years** of legal practice and **one year** of training under an AOR with ten years' standing
  - Must clear the **AOR Examination** conducted by the Supreme Court Registry under a Board of Examiners headed by a Supreme Court Judge
- No advocate other than an AOR can file or act in a case in the Supreme Court unless the Court permits.

OTHER ADVOCATES

- Names entered on the roll of any State Bar Council under the Advocates Act, 1961.
- May practise in all courts, tribunals and authorities across India, except where special qualifications like AOR status are required.
- Can appear in High Courts, District Courts and Subordinate Courts, alone or under Senior Advocates
- Can draft documents, advise and argue before any court or quasi-judicial authority
- Cannot appear in the Supreme Court for a party unless instructed by an AOR. Conduct is governed by BCI Rules of Professional Ethics (Chapter II, Part VI).

COMPARATIVE OVERVIEW

Aspect	Senior Advocate	Advocate-on-Record	Other Advocates
Authority	Designated by SC or HC on merit	Authorised by Supreme Court Rules	Enrolled with State Bar Councils

MY NOTES

Aspect	Senior Advocate	Advocate-on-Record	Other Advocates
Role	Argue cases and advise on complex points of law	File, act and plead before the SC	Appear before all courts except the SC (without an AOR)
Restrictions	Cannot file or draft directly	Cannot delegate filing to others	Must act under an AOR in the SC
Eligibility	Recognised for standing, ability and ethics	4 years' practice + 1-year training + AOR exam	Law degree + enrolment with an SBC
Regulatory authority	Supreme Court or High Court	Supreme Court	State Bar Council and BCI
Ethical standards	Held to highest decorum and conduct	Subject to procedural discipline	Governed by BCI Code of Conduct

- **Memory aid (Three types): S**enior Advocate, **A**dvocate-on-Record, **O**ther advocates: "**S**ome **A**ppear **O**nly with help".
- **Shortcut: Supreme Court shortcut. Senior = argues, AOR = files, Other = needs an AOR in the SC.**

ALSO IN THE HANDOUT

- They are expected to uphold the highest ethical standards, maintaining dignity and decorum in court.

RECENT REFORMS AND DIGITAL INITIATIVES (2020-2025)

REFORMS

Reform	What the handout lists
1. AIBE reforms	AIBE introduced under Rule 9 of the BCI Certificate of Practice Rules (2010) as a mandatory qualification exam to practise. AIBE XVII to XIX (2023-25): Computer-Based Testing replaces OMR; question bank adds cyber law, data protection, environmental law; AIBE database linked to the BCI's centralised enrolment portal; results trigger issue of the Certificate of Practice
2. Digital Enrolment and Verification Portal	BCI Online Enrolment Portal launched 2021; unified digital registry of credentials, academic records and AIBE scores; pan-India verification, less risk of fake degrees or dual enrolments; QR-coded Smart ID Cards piloted in Delhi, Maharashtra and Karnataka
3. Legal education modernisation	Rules on Legal Education revised (2020): Clinical Legal Education, ADR and Legal Ethics mandated; five-year integrated LL.B. specialisations (Tech-Law, AI and Law, Corporate Governance); virtual inspection; over 350 substandard law colleges identified for closure or correction (2021-24); BCITER with NLUs and UGC for uniform benchmarks

MY NOTES

Reform	What the handout lists
4. Foreign lawyers and law firms (2023 Rules)	Permit non-litigious work (international arbitration, corporate transactions, mergers); require reciprocity; annual registration and disclosure; litigation kept exclusively for Indian advocates
5. E-litigation and Bar digitisation	SBCs with NIC and the eCourts Mission Mode Project: e-filing, digital affidavits, State Bar E-Portals, digital notice boards, online cause lists; BCI encourages e-billing and e-contract validation
6. Legal aid and awareness	National Legal Awareness Drive (2021-23) on POCSO, JJ Act, Domestic Violence Act; Advocates for Social Justice Program (2022); BCI Legal Aid Fund (2024)
7. Coordination with judiciary and NITI Aayog	With NITI Aayog's Law and Governance Vertical (2023): "Judicial Infrastructure and Legal Reforms Blueprint 2047"; with the Supreme Court's e-Committee: online AOR exams and virtual court internships
8. Welfare and insurance	BCI Advocates Welfare Scheme (2021-25); State-level insurance partnerships (Tamil Nadu, Delhi, Maharashtra) with LIC and New India Assurance; Central Advocates Welfare Fund (Digital Portal, 2022)
9. Containing abuse of dominant position by MNC law entities	With the Competition Commission of India: ethical guidelines against cartelisation; reciprocity clauses; coordination with CCI's Legal Division (2024) on anti-competitive pricing models; Monitoring Committee under Section 4 of the Competition Act

HANDOUT ALERT

Handout alert: Reform 9 (abuse of dominance by MNC law entities, Section 4 of the Competition Act, coordination with the CCI) borrows competition-law material. The rest of this chapter is Law Commission and Bar Council; read item 9 together with the Competition Commission chapter.

- **Memory aid (AIBE changes):** **C**BT replaces OMR, **Q**uestion bank widened, **L**inked to enrolment portal, **R**esults trigger Certificate of Practice: "**C**an **Q**uick **L**aw **R**esults arrive?".

ALSO IN THE HANDOUT

- Introduced Computer-Based Testing (CBT) to replace manual OMR format.
- Seeks to attract global legal investment while safeguarding the litigation domain exclusively for Indian advocates.
- Launch State Bar E-Portals for case tracking, membership renewal, and grievance redressal.
- BCI Advocates Welfare Scheme (2021–25): Offers health insurance, accidental coverage, and financial aid for advocates affected by pandemics or natural disasters.

MY NOTES

- Issued ethical guidelines to prevent cartelisation or monopoly practices by international law firms.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 69-70, BAR COUNCIL OF INDIA; LAW COMMISSION OF INDIA

- Pre-independence Law Commissions (Lakshmikanth table):
  - 1st in 1834 under Lord Macaulay
  - 2nd in 1853 under Sir John Romilly
  - 3rd in 1861 under Sir John Romilly
  - 4th in 1879 under Dr Whitney Stokes. They gave the IPC, CrPC, CPC, Contract Act, Evidence Act and Transfer of Property Act
- Early independent commissions:
  - 1st (1955-58) M.C. Setalvad
  - 2nd (1958-61) T.V. Venkatarama Aiyar
  - 3rd and 4th J.L. Kapur
  - 6th and 7th P.B. Gajendragadkar
  - 8th H.R. Khanna
  - 15th B.P. Jeevan Reddy
  - 21st (2015-18) B.S. Chauhan
  - 22nd Ritu Raj Awasthi
- The 22nd Law Commission was constituted on 21 February 2020 for three years
- Its chairman and members were appointed only in November 2022. Its term was extended on 22 February 2023 up to 31 August 2024
- Law Commission functions in Lakshmikanth also include:
  - Giving views on any law or judicial administration matter the Government refers
  - Research for foreign countries when referred
  - And using law and the legal process in the service of the poor
- The Law Commission's regular staff is about a dozen research personnel plus a small secretarial group. Reports go to the Ministry of Law and Justice, which consults the ministries concerned and then places them before Parliament.
- Bar Council history: the All India Bar Committee (1951) under Justice S.R. Das reported in 1953 and recommended an All India Bar Council and State Bar Councils. The Law Commission (14th Report, 1958) endorsed this, leading to the Advocates Act, 1961.
- State Bar Council size depends on its electorate: 15 members (electorate of 5,000), 20 members (5,000 to 10,000), 25 members (above 10,000). They are elected by single transferable

MY NOTES

vote, and half must have been advocates for ten years. There are 24 SBCs at present.

- Advocate-on-Record history:
  - In 1954 AORs replaced the old system of 'Agents'
  - In 1959 an AOR examination was introduced. Training must be under an AOR of at least ten years' standing for one continuous year, starting from the end of the fourth year of enrolment
- Lakshmikanth differs:
  - Report 276. Its table of 21st Commission reports gives 276 (2018) as 'Gambling and Sports Betting Including in Cricket in India' and 266 (2017) as the Advocates Act (regulation of the legal profession). The handout gives 276 as data protection and privacy. Use the handout in class
  - For 277 both say wrongful prosecution
- Lakshmikanth differs: classes of advocates. It says the Advocates Act, 1961 provides for two categories, Senior Advocates and other advocates, and that three categories of advocates may practise before the Supreme Court (Senior Advocate, AOR, other advocates). The handout says the Act recognises one class, 'advocates', and then lists the same three types.

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

What is the legal nature of the Law Commission?	Non-statutory, advisory body constituted by a Government notification (Ministry of Law and Justice, Department of Legal Affairs).
Are Law Commission recommendations binding?	No, but they carry substantial persuasive value.
Who headed the first post-Independence Law Commission and when?	M.C. Setalvad, India's first Attorney-General, in 1955.
Tenure of a Law Commission?	Generally three years, as per its terms of reference.
Which Article retained pre-independence laws?	Article 372.
How many reports had the Law Commission submitted by the 22nd Commission (2023)?	277 reports.
Which Reports recommended repeal of about 1,824 obsolete laws?	The 248th and 251st Reports (2014).

Which Report was on dowry deaths and what was the outcome?	The 91st Report (1983); Section 304-B IPC and 113-B Evidence Act via the 1986 Amendment.
Which Report was on custodial crimes?	The 152nd (1994); reflected in DK Basu v. State of West Bengal (1997) guidelines.
Which Report was on the death penalty?	The 262nd (2015): abolish it for all crimes except terrorism-related offences.
What did the 22nd Law Commission (2023) advise on sedition?	Retain Section 124A with safeguards and narrow its definition.
What are the steps in making a Law Commission report?	Identify topics, research, working paper, consultations, final report drafting, submission to the Law Ministry.
Under which Act is the BCI established?	The Advocates Act, 1961, on the recommendation of the All-India Bar Committee.
Who are ex-officio BCI members?	Attorney General of India and Solicitor General of India.
Term of BCI Chairperson and Vice-Chairperson?	2 years.
Which Section lists the BCI's functions?	Section 7 of the Advocates Act, 1961.
Which Section allows appeal to the Supreme Court against BCI disciplinary orders?	Section 38.
What power can the BCI use if an SBC fails its duties?	It may temporarily assume that SBC's functions.
Name BCI committees.	Disciplinary, Legal Aid, Executive and Legal Education Committees, plus others as needed.
Which Section of the Advocates Act governs SBCs?	Section 3.
Term of elected SBC members?	Five years, extendable by 6 months by the BCI if elections are delayed.
Who is the ex-officio member of an SBC?	The Advocate-General of the State; the Delhi SBC also has the Additional Solicitor-General of India.
Which committee is found in SBCs but not listed for the BCI?	The Enrolment Committee.
Who designates Senior Advocates?	The CJI or a High Court Chief Justice with a collegium of senior judges, with the advocate's consent.

MY NOTES

Who sits on the Supreme Court's 2018 Permanent Committee for Senior Advocates?	CJI (Chair), two senior-most SC Judges, Attorney General, and one senior advocate nominated by the Committee.
Eligibility to be an AOR?	Four years of practice, one year of training under an AOR of ten years' standing, and the AOR Examination.
Can a Senior Advocate file or draft directly?	No; cannot file cases directly or draft pleadings or affidavits, but may give opinions and argue.
Who can appear for a party in the Supreme Court?	Only an AOR files and acts; other advocates need an AOR's instructions.
What did the 2023 BCI Foreign Lawyers Rules allow?	Foreign lawyers and firms may do non-litigious work with reciprocity and annual registration; litigation stays with Indian advocates.
When was the BCI Online Enrolment Portal launched?	2021.

Trap 1 · Non-statutory versus statutory

The Law Commission is created by a Government notification and is non-statutory. The BCI and State Bar Councils are created by the Advocates Act, 1961 and are statutory. *Rule: Law Commission = executive order; BCI and SBC = Act of Parliament.*

Trap 2 · Two different terms

The BCI Chairman and Vice-Chairman serve 2 years. Elected members of a State Bar Council serve 5 years (extendable by 6 months by the BCI). *Rule: BCI office-bearers = 2 years; SBC elected members = 5 years.*

Trap 3 · Who may file in the Supreme Court

Senior Advocates cannot file cases directly or appear without being briefed through another advocate. Other advocates also cannot act in the SC unless instructed by an AOR. Only an AOR can file and act. *Rule: file in the SC = AOR only.*

Trap 4 · Number of reports and report subjects

The handout gives 277 reports and ties the 276th to data protection and privacy and the 277th to wrongful prosecution. *Rule: 277 = wrongful prosecution; 276 = data protection (handout version); 262 = death penalty; 210 = attempt to suicide.*

QUICK QUIZ

Q1. The Law Commission of India is

1. a constitutional body
2. a statutory body under the Advocates Act
3. a non-statutory advisory body
4. a quasi-judicial tribunal

MY NOTES

Q2. The First Law Commission of independent India (1955) was headed by

1. M.C. Setalvad
2. Kuldip Singh
3. Ranjana Prakash Desai
4. None of these

Q3. Law Commission recommendations are

1. binding on Parliament
2. binding on the Supreme Court
3. not binding but persuasive
4. binding on the States

Q4. Which Law Commission report led to the decriminalisation of attempt to suicide (Sec. 309 IPC) through the Mental Healthcare Act, 2017?

1. 91st
2. 210th
3. 262nd
4. 276th

Q5. The 276th Law Commission Report is associated with

1. Data protection and privacy
2. Death penalty
3. Bail reforms
4. Dowry deaths

Q6. The Bar Council of India was established under

1. Supreme Court Rules, 2013
2. Advocates Act, 1961
3. Article 372
4. CrPC

Q7. Who are the ex-officio members of the Bar Council of India?

1. Chief Justice of India and Law Minister
2. Attorney General and Solicitor General
3. Advocate-General and Law Secretary
4. Two Supreme Court judges

Q8. The Chairperson of the BCI is elected for a tenure of

1. 1 year
2. 2 years
3. 3 years
4. 5 years

Q9. Appeals against BCI disciplinary orders lie to the Supreme Court under

1. Section 7
2. Section 3
3. Section 38
4. Section 213

Q10. The term of elected members of a State Bar Council is

1. 2 years
2. 3 years
3. 5 years
4. 6 years

Q11. Who can file pleadings and vakalatnamas in the Supreme Court?

1. Any advocate
2. Senior Advocate
3. Advocate-on-Record
4. Law Commission member

Q12. The 2023 BCI Rules permit foreign lawyers and law firms to practise

1. litigation in all courts
2. only non-litigious matters with reciprocity
3. only in the Supreme Court
4. without registration

MY NOTES

Q13. PYQ 2022: With reference to India, consider the following statements: (2022)
1. Government law officers and legal firms are recognised as advocates, but corporate lawyers and patent attorneys are excluded from recognition as advocates.
2. Bar Councils have the power to lay down the rules relating to legal education and recognition of law colleges. Which of the statements given above is/are correct ?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Answers: Q1 c, Q2 a, Q3 c, Q4 b, Q5 a, Q6 b, Q7 b, Q8 b, Q9 c, Q10 c, Q11 c, Q12 b, Q13 b

MY NOTES

48 Delimitation Commission

CHAPTER 48 · HANDOUT: DELIMITATION COMMISSION

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **2012, 2024**

EXAM LENS

Prelims hooks

- Articles 81, 82, 170, 330, 332
- 84th Amendment freeze on seats (1971 Census) till first Census after 2026
- Commission is statutory, not constitutional
- orders are not modifiable by Parliament or courts
- 2002 Commission under Justice Kuldip Singh
- J&K 2022 report: 90 seats, 9 ST seats.
- Handout stresses: Handout gives Articles 81, 82, 170, 330 and 332 and the 84th Amendment freeze on seats (Constitutional Framework)
- Handout stresses: Statutory and non-justiciable: orders have force of law and cannot be challenged in any court (Nature and Legal Status)
- Handout stresses: Table of four Commissions with Acts and Census used (Commissions table)

Mains hooks

- why delimitation matters for equal representation
- challenges of a seat freeze versus population shift
- the J&K exercise and regional balance.

A statutory commission whose final orders cannot be changed gives the vote equal value, one Census at a time.

IN SIMPLE WORDS

- **Delimitation** means redrawing the boundaries of **Lok Sabha and Assembly constituencies** after each Census so that each seat has roughly equal population: **one person, one vote, one value**.
- The **Delimitation Commission** is **statutory, not constitutional**: Parliament passes a Delimitation Act (1952, 1962, 1972,

MY NOTES

2002) and the Commission is formed under it. Four commissions so far.

- Its orders, once notified by the **President**, have the **force of law** and **cannot be challenged in any court**
- They are laid before Parliament only for information
- The **84th Amendment (2001)** froze the number of seats on the **1971 Census** till the first Census after **2026**. The **Fourth Commission (2002, Justice Kuldip Singh)** used the **2001 Census** and its orders took effect in **2008**
- The 2009 elections used them for **499 of 543** seats
- A **2020 Commission** (Justice Ranjana Prakash Desai) finally worked only on **Jammu and Kashmir**, reporting in **May 2022**: **90 Assembly seats**, **9 ST** seats for the first time and **7 SC** seats.

Key term	In plain words
Delimitation	Redrawing constituency boundaries to match Census population
Gerrymandering	Biased boundary drawing; the Commission's independence is meant to prevent it
Article 82	Readjustment of constituencies after each Census through an Act of Parliament
84th Amendment, 2001	Froze Lok Sabha and Assembly seats (1971 Census) till the first Census after 2026
Associate members	Ten per state (5 MPs and 5 MLAs nominated by the Speakers); no vote and no right to sign orders
Non-justiciable	Commission orders cannot be questioned in any court
Delimited Landscape of UT of J&K	Title of the 2022 report on Jammu and Kashmir (Lakshmikanth)
Anantnag-Rajouri seat	New Lok Sabha seat joining Kashmir and Jammu areas, created in the 2022 J&K exercise

MY NOTES

MEMORY MAP: DELIMITATION COMMISSION

Delimitation Commission

Meaning and need
- Redraw boundaries: after Census
- One vote, one value: equal weight
- Prevents gerrymandering: independent, non-partisan

Articles
- Art. 81: Lok Sabha seats
- Art. 82: readjust each Census
- Art. 170: State Assemblies
- Arts. 330 and 332: SC and ST reservation

Legal status
- Statutory body: not constitutional
- Force of law: President notifies
- Non-justiciable: no court challenge
- Under Law Ministry: EC gives support

Four Commissions
- 1952: 1951 Census
- 1963: 1961 Census
- 1973: 1971 Census, seats frozen
- 2002: 2001 Census, Justice Kuldip Singh

Working
- Composition: SC judge, CEC, State EC
- Associate members: 5 MPs and 5 MLAs, no vote
- Procedure: draft, hearings, order

Fourth Commission
- Report 2007: notified 2008
- 499 of 543 seats: five States excluded
- First used: 2009 Lok Sabha polls

2020 Commission and J&K
- Justice Ranjana Prakash Desai: chair
- 90 Assembly seats: 43 Jammu and 47 Kashmir
- 9 ST seats, 7 SC seats: first ST reservation
- 5 Lok Sabha seats: Anantnag-Rajouri

MNEMONIC · FOUR DELIMITATION COMMISSIONS

Fair Seats Taken Fairly

- **F** First: 1952, Delimitation Commission Act 1952, 1951 Census
- **S** Second: 1963, Act of 1962, 1961 Census
- **T** Third: 1973, Delimitation Act 1972, 1971 Census
- **F** Fourth: 2002, Delimitation Act 2002, 2001 Census

Fair seats, taken fairly after each decade's Census: four commissions in order. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · FOURTH COMMISSION (2002) MEMBERSHIP

A C E S

- **A** Associate members: 5 MPs and 5 MLAs, no voting rights
- **C** Chairperson: serving or retired Supreme Court judge (Justice Kuldip Singh)
- **E** Election Commissioner: the Chief Election Commissioner or nominee (ex-officio)
- **S** State Election Commissioner of the State or UT (ex-officio)

An all-ACES team redraws the map: the four kinds of members. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · GUIDING PRINCIPLES OF DELIMITATION

Every Group Asks Proper Public Representation

- **E** Equal representation
- **G** Geographical contiguity
- **A** Administrative convenience
- **P** Physical and natural features
- **P** Public participation
- **R** Reservation parity

Every group asks for proper public representation: six principles in the handout's order. This list is unordered and no good word exists, so the sentence is only a memory aid; the order is free. (Memory aid, not from the handout.)

MNEMONIC · STATES LEFT OUT IN THE 2008 IMPLEMENTATION

Always Awaiting Maps, Never Joined

- **A** Assam
- **A** Arunachal Pradesh
- **M** Manipur
- **N** Nagaland
- **J** Jharkhand

These five states are always awaiting maps, never joined to the new 2008 boundaries (so 499 of 543 seats were redrawn). This list is unordered and no good word exists, so the sentence is only a memory aid; the order is free. (Memory aid, not from the handout.)

MEANING AND RATIONALE

- Delimitation is the act of redrawing boundaries of parliamentary and legislative assembly constituencies so that citizens have fair and equal representation. It keeps constituencies in line with population changes recorded in each Census. The task lies with an independent, high-powered statutory body, the Delimitation Commission, constituted under successive Delimitation Acts of Parliament. Once the President publishes its orders they have the force of law and cannot be challenged in any court.
- **Constitutional ideal: One person, one vote, one value**: each elected representative speaks for an approximately equal number of citizens.

MY NOTES

RATIONALE FOR DELIMITATION

- 1. **Ensures electoral equality**: parity in the value of each citizen's vote by equalising constituency populations. 2. **Reflects demographic shifts**: adjusts for migration, urbanisation and population growth. 3. **Guarantees fair representation**: prevents over- or under-representation of regions. 4. **Strengthens democracy**: periodic revision builds public trust. 5. **Prevents gerrymandering**: independent and non-partisan, so boundary drawing stays neutral.
- **Memory aid (Five reasons):** **E**qual vote, **D**emographic shifts, **F**air representation, **S**trengthens democracy, **P**revents gerrymandering: "**E**very **D**istrict **F**ights **S**ome **P**olitics".

CONSTITUTIONAL FRAMEWORK

- Delimitation is guided by Articles 81, 82, 170, 330 and 332.

ARTICLES

Article	Subject
Article 81	Fixes representation of States in the Lok Sabha based on population
Article 82	Readjustment of constituencies after each Census through a Parliamentary Act
Article 170	Delimitation for State Legislative Assemblies
Article 330	Reservation of seats for SCs and STs (Lok Sabha)
Article 332	Reservation of seats for SCs and STs (State Assemblies)

- **Memory aid (Articles):** 81 = **L**ok Sabha seats, 82 = **R**eadjustment, 170 = **A**ssemblies, 330 and 332 = **S**C/ST reservation: "**L**et **R**eal **A**rticles **S**peak".

84TH AMENDMENT ACT, 2001

- Froze the total number of Lok Sabha and Assembly seats (based on the 1971 Census) till the first Census after 2026.
- The 84th and 87th Amendments froze seat numbers on the 1971 Census but allowed reallocation and redrawing on 2001 data.
- **Shortcut: Article shortcut. 81 = Lok Sabha seats. 82 = readjustment by Act. 170 = Assemblies. 330 and 332 = SC/ST reservation (LS and Assemblies).**

MY NOTES

HANDOUT ALERT

Handout alert: The 3rd Commission table says seat allocation was fixed till the 2001 Census "(later extended till 2026)", while the 84th Amendment text says seats are frozen till the first Census after 2026. Treat both as the same freeze extended by the 84th Amendment.

NATURE AND LEGAL STATUS

STATUS OF THE COMMISSION

Feature	Detail
Nature	**Statutory but independent**. Not a constitutional body. Constituted under Delimitation Acts of Parliament (1952, 1962, 1972, 2002)
Independence	Operates independently of executive and legislature, so neutral in redrawing boundaries
Constitutional backing	Legitimacy from Articles 81, 82, 170, 330 and 332, which empower Parliament to enact delimitation laws and reserve seats for SCs and STs
Finality	Once the President notifies the orders they have the force of law
Placing before legislatures	Laid before Parliament and State Legislatures **for information only**, no modification permitted
Judicial immunity	Decisions are **non-justiciable**: cannot be challenged in any court
Administrative control	Under the Ministry of Law and Justice, but operations are autonomous. The Election Commission gives logistical support and coordination during implementation

- **Memory aid (Legal status): S**tatutory, **I**ndependent, **C**onstitutional backing, **F**inal orders, **J**udicially immune, **A**dministered by Law Ministry: "**S**ome **I**deas **C**annot **F**ace **J**udges, **A**t all".

COMMISSIONS CONSTITUTED SO FAR

FOUR DELIMITATION COMMISSIONS

Commission	Year	Governing Act	Census used	Key features
1st	1952	Delimitation Commission Act, 1952	1951	Drew boundaries for the first general elections
2nd	1963	Delimitation Commission Act, 1962	1961	Adjusted seats after population growth
3rd	1973	Delimitation Act, 1972	1971	Fixed seat allocation till 2001 Census (later extended till 2026)

MY NOTES

Commission	Year	Governing Act	Census used	Key features
4th	2002	Delimitation Act, 2002	2001	Under Justice Kuldip Singh; based on 2001 Census data

- **Pattern:**
  - Census years 1951, 1961, 1971, 2001 all end in 1
  - The Commissions followed in 1952, 1963, 1973 and 2002
- **Shortcut:**
  - **Table shortcut. Act year = 1952, 1962, 1972, 2002**
  - **Census year is the year before the Commission's first work (1951, 1961, 1971, 2001).** The 3rd Commission froze seats

COMPOSITION (FOURTH COMMISSION, 2002)

COMPOSITION

Position	Details
Chairperson	Serving or retired Supreme Court Judge (Justice Kuldip Singh)
Ex-officio member	Chief Election Commissioner or nominee
Ex-officio member	State Election Commissioner of the concerned State/UT
Associate members	10 (5 Lok Sabha MPs plus 5 MLAs nominated by Speakers); no voting rights

- **Memory aid (Composition):** **C**hair (SC judge), **E**lection Commissioner (CEC), **S**tate Election Commissioner, **A**ssociates (10): "**C**an **E**very **S**tate **A**gree".

FUNCTIONS, PRINCIPLES AND PROCEDURE

FUNCTIONS

- 1. **Redraw boundaries**: demarcate parliamentary and assembly constituencies on the latest Census for balanced representation. 2. **Reservation for SCs and STs**: decide reserved constituencies under Articles 330 and 332 in proportion to their population in each State. 3. **Population parity**: nearly equal population across constituencies within a State ("one person, one vote, one value"). 4. **Administrative integrity**: avoid arbitrary division of districts, tehsils or panchayats and keep natural administrative boundaries. 5. **Transparency and consultation**: draft proposals published in the Gazette and local newspapers, inviting objections and suggestions before finalising. 6. **Coordination with the Election Commission** for implementing final orders.

MY NOTES

GUIDING PRINCIPLES

Principle	Explanation
Equal representation	Nearly equal population per constituency, so uniform vote value
Geographical contiguity	Compact and continuous, no disconnected territories
Administrative convenience	District and block boundaries kept intact as far as practicable
Physical and natural features	Terrain, rivers, transport links and population density considered
Public participation	Citizens, local bodies and parties may object and suggest during hearings
Reservation parity	SC and ST seats proportionate to demographic presence per Census

- **Memory aid (Six principles): E**qual representation, **G**eographical contiguity, **A**dministrative convenience, **P**hysical features, **P**ublic participation, **R**eservation parity: "**E**ven **G**ood **A**dvice **P**ushes **P**eople's **R**ights".

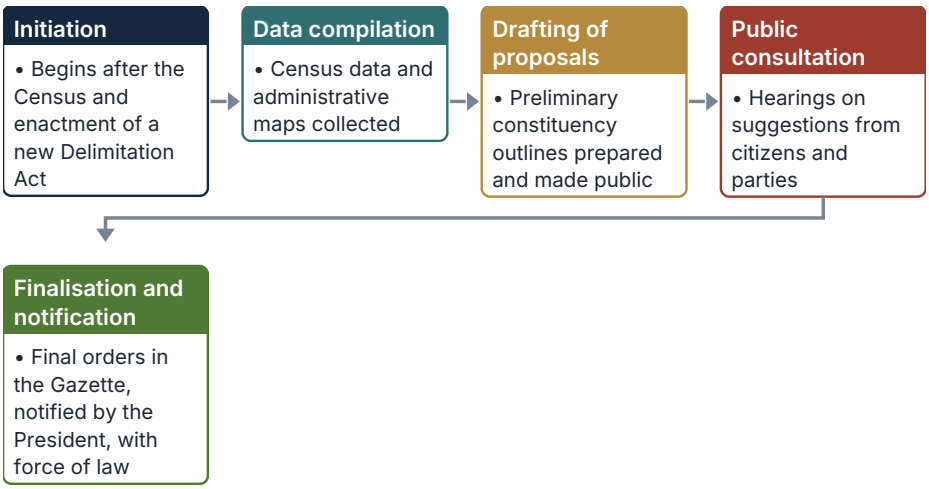
WORKING PROCEDURE

HOW A COMMISSION WORKS

- **Initiation**: Begins after the Census and enactment of a new Delimitation Act
- **Data compilation**: Census data and administrative maps collected
- **Drafting of proposals**: Preliminary constituency outlines prepared and made public
- **Public consultation**: Hearings on suggestions from citizens and parties
- **Finalisation and notification**: Final orders in the Gazette, notified by the President, with force of law

MY NOTES

HOW A COMMISSION WORKS



IMPLEMENTATION AND THE FOURTH COMMISSION (2002)

LEGAL EFFECT

- Once notified by the President the orders have force of law and cannot be modified by Parliament, State Legislatures or any court.
- Under the Delimitation Act the decisions are final and non-justiciable, ensuring independence from political influence.
- Orders are laid before Parliament and State Legislatures for information only, not approval. They take effect from the date in the Presidential Notification.

IMPLEMENTATION OF THE FOURTH COMMISSION

Aspect	Details
Chairperson	Justice Kuldip Singh (Retd.), Supreme Court
Report submitted	2007
Implementation notified	2008
Applied to	499 out of 543 Lok Sabha constituencies
Excluded	Assam, Arunachal Pradesh, Manipur, Nagaland, Jharkhand (security and demographic concerns)
First election on new boundaries	2009 Lok Sabha elections

- **Memory aid (Fourth Commission dates):** **R**eport 2007, **N**otified 2008, **F**irst poll 2009: "**R**un **N**ow, **F**inish".

MAJOR OUTCOMES OF THE 2008 IMPLEMENTATION

- **Equalised representation**: balanced populations, reducing rural-urban variation.

MY NOTES

- **Urban representation enhanced**: rapidly growing regions like Delhi, Maharashtra and Tamil Nadu gained fairer representation.
- **Administrative coherence**: boundaries aligned better with district and tehsil borders.
- **Reservation adjustments**: SC and ST seats re-identified on 2001 Census data.
- **Electoral legitimacy**: uniform vote value upholding political equality.

MONITORING AND COORDINATION

- Election Commission: implements new constituency maps during electoral roll revision and elections.
- State governments: logistical readiness, updating administrative divisions, field support.
- Central oversight: Ministry of Law and Justice oversees the process and notifies clarifications or corrections.

LIMITATIONS AND DEFERRAL

- 1. The 2002 Commission's recommendations were not applied to certain North-Eastern States owing to internal disturbances and demographic sensitivities. 2. The 2020 Commission was set up to address the pending States and Jammu and Kashmir (after the Reorganisation Act, 2019).

> **HANDOUT ALERT**
> Handout alert: Excluded States are five (Assam, Arunachal Pradesh, Manipur, Nagaland, Jharkhand) in the Fourth Commission section, but the 2020 Commission section lists only four North-Eastern States (Jharkhand is not named). Use the five-State list for the 2008 exclusion and the four-State list for the 2020 Commission's original brief.

DELIMITATION COMMISSION (2020) AND J&K EXERCISE (2022)

ESTABLISHMENT AND COMPOSITION (2020)

Aspect	Detail
Formation	March 2020, under the Delimitation Act, 2002 and the Jammu and Kashmir Reorganisation Act, 2019
Purpose	Redraw Parliamentary and Assembly constituencies in four North-Eastern States (Assam, Arunachal Pradesh, Manipur, Nagaland) and the UT of Jammu and Kashmir
Chairperson	Justice (Retd.) Ranjana Prakash Desai, former Supreme Court Judge
Ex-officio members	Sushil Chandra, Election Commissioner of India; State Election Commissioner of the concerned State/UT

MY NOTES

Aspect	Detail
Associate members	Five MPs (Lok Sabha members from J&K) nominated by the Lok Sabha Speaker
Jurisdiction adjustment (2021)	In March 2021 the Centre removed the four North-Eastern States, keeping its mandate only for J&K
Tenure	Extended twice, till May 2022, to complete the J&K exercise

MAJOR RECOMMENDATIONS (2022 REPORT)

Aspect	Provision or outcome
Total Assembly seats	90 elected plus 2 nominated women (if women are under-represented)
Region-wise	43 seats for Jammu region and 47 for Kashmir region
Increase in seats	6 new seats in Jammu and 1 new seat in Kashmir (total +7)
ST reservation (first time)	9 Assembly seats for STs: 6 in Jammu and 3 in Kashmir
SC reservation	7 seats for Scheduled Castes
Parliamentary constituencies	5 Lok Sabha constituencies, each with 18 Assembly segments
Cross-regional constituency	New **Anantnag-Rajouri** parliamentary seat combining parts of Kashmir and Jammu for regional balance
Names updated	Some constituencies renamed for cultural or religious significance (e.g. Shri Mata Vaishno Devi)

- **Memory aid (J&K numbers):**
  - **S**eats 90 (43 Jammu plus 47 Kashmir), **S**even new (6 plus 1), **N**ine ST seats (6 plus 3), **S**even SC seats
  - And 5 LS seats of 18 segments each (5 x 18 = 90): "**S**ome **S**tates **N**eed **S**eats"

RECOMMENDATIONS ON REPRESENTATION

- 1. **Kashmiri migrants**: nomination of at least two members (one woman) from displaced Kashmiri Pandits to the Legislative Assembly, with parity with nominated members of the Puducherry Assembly in rights and privileges. 2. **Displaced persons from PoJK**: special nomination of representatives to the J&K Assembly for political participation.

MY NOTES

HANDOUT ALERT

Handout alert: The table speaks of "2 nominated women (if women are under-represented)", while the representation text recommends at least two nominated Kashmiri migrant members (one woman) and special nomination of PoJK displaced persons. The handout does not reconcile these. Use the table for the "2 nominated women" figure and the text for the migrant and PoJK nomination proposals.

IMPLICATIONS

- **Democratic reconfiguration**: electoral readiness for the first Assembly election in the UT since reorganisation in 2019.
- **Greater representation for Jammu**: addresses regional imbalance between Jammu and Kashmir.
- **Inclusion of ST communities**: first-ever legislative representation for Gujjar-Bakarwal and Pahari tribal groups.
- **Administrative preparedness**: lets the Election Commission begin voter list revision and poll preparations on the new boundaries.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 71, DELIMITATION COMMISSION OF INDIA

- A Delimitation Commission is also called a Boundary Commission. The Supreme Court in R.C. Poudyal v. Union of India (1993) noted that votes in a less populated constituency are worth more than votes in a more populated one.
- The orders come into force on a date fixed by the President and are laid before the Lok Sabha and the State Legislative Assembly concerned, but they cannot be modified.
- Effect of the 84th (2001) and 87th (2003) Amendments:
  - The number of Lok Sabha and Assembly seats stays on the 1971 Census till the first Census after 2026
  - SC and ST seats are reworked on the 2001 Census
  - Each state is redelimited on 2001 data and the new boundaries stay frozen till the first Census after 2026
  - Each constituency should have about the same population within a state
- The Fourth Commission's task covered all states except the erstwhile state of Jammu and Kashmir. The Delimitation Act, 2002 was amended in 2003, 2008 and 2016.
- In 2008 the Government deferred delimitation in four North-Eastern states and cancelled the final order for Jharkhand. In February 2020 the Government rescinded the 2008 deferral notifications after the security situation improved, and set up the 2020 Commission in March 2020.
- Justice Ranjana Prakash Desai was first appointed for one year or till further orders. The term was extended one year (till

MY NOTES

March 2022) and then by two months (till May 2022). The final J&K order is dated 5 May 2022

- The report is called 'Delimited Landscape of Union Territory of Jammu and Kashmir'
- Before 2019, J&K Assembly seats were delimited under the J&K Constitution in 1957, 1966, 1975 and 1995 (the last on the 1981 Census). The old Assembly had 111 seats including 4 in Ladakh, with 24 reserved for Pakistan-occupied J&K.
- The J&K Reorganisation Act, 2019 fixed 114 directly elected seats, 24 of them to remain vacant for Pakistan-occupied J&K, giving 90 usable seats (a gain of 7). It allows the Lieutenant Governor to nominate 2 women if they are under-represented. The 2022 exercise used the 2011 Census.
- Persons displaced from Pakistan-occupied J&K are those who left in 1947-48, 1965 and 1971. The Commission suggested at least two Kashmiri migrant members (one a woman) with powers like those of nominated members in the Puducherry Assembly, and nomination of representatives of PoJK displaced persons.

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

What is delimitation?	Redrawing the boundaries of parliamentary and assembly constituencies to keep representation fair and equal after each Census.
What constitutional ideal does it uphold?	One person, one vote, one value.
Which Article fixes Lok Sabha representation of States?	Article 81.
Which Article requires readjustment after each Census?	Article 82, through a Parliamentary Act.
Which Article governs Assembly delimitation?	Article 170.
Which Articles reserve seats for SCs and STs?	Articles 330 (Lok Sabha) and 332 (Assemblies).
What did the 84th Amendment Act, 2001 do?	Froze total Lok Sabha and Assembly seats (1971 Census) till the first Census after 2026.
Is the Delimitation Commission constitutional?	No, it is a statutory, independent body under Delimitation Acts.

Can its orders be challenged in court?	No, they are final and non-justiciable once notified by the President.
Are orders laid before Parliament for approval?	No, only for information; no modification is permitted.
Which Ministry does it function under?	Ministry of Law and Justice; the Election Commission gives logistical support.
Delimitation Acts of Parliament?	1952, 1962, 1972 and 2002.
Which Commission fixed seats until 2001 (later extended to 2026)?	The 3rd Commission (1973, Delimitation Act, 1972, 1971 Census).
Who chaired the Fourth Commission?	Justice Kuldip Singh (retired Supreme Court Judge).
Composition of the Fourth Commission?	SC judge chair; CEC or nominee; State Election Commissioner; 10 associate members (5 MPs and 5 MLAs, no vote).
Name the six guiding principles.	Equal representation, geographical contiguity, administrative convenience, physical and natural features, public participation, reservation parity.
What are the steps of working procedure?	Initiation, data compilation, drafting of proposals, public consultation, finalisation and notification.
Fourth Commission: report, notification and first use?	Report 2007; notified 2008; first used in the 2009 Lok Sabha elections.
Which States were excluded in 2008?	Assam, Arunachal Pradesh, Manipur, Nagaland and Jharkhand.
Who chaired the 2020 Commission?	Justice (Retd.) Ranjana Prakash Desai.
What changed in March 2021?	The four North-Eastern States were removed, leaving J&K only; tenure was extended twice till May 2022.
J&K seat distribution in the 2022 Report?	90 seats: 43 Jammu and 47 Kashmir (6 new in Jammu, 1 in Kashmir).
How many seats were reserved for STs and SCs in J&K?	9 ST seats (6 Jammu, 3 Kashmir; first time) and 7 SC seats.
How many Lok Sabha seats in J&K and with how many segments?	5 seats, each with 18 Assembly segments.

MY NOTES

What was proposed for Kashmiri migrants?	Nomination of at least two members (one woman) from displaced Kashmiri Pandits, with parity to nominated Puducherry Assembly members.
Which tribal groups gained first-ever legislative representation?	Gujjar-Bakarwal and Pahari groups.

Trap 1 · Statutory, not constitutional
The Commission is formed under Delimitation Acts, not under a constitutional article, although Arts. 81, 82, 170, 330 and 332 guide the process. *Rule: Act of Parliament creates it; Articles only frame the work.*

Trap 2 · Year of Commission versus year of Act
The commissions were set up in 1952, 1963, 1973 and 2002, but the Acts are 1952, 1962, 1972 and 2002. *Rule: second and third commissions come a year after their Acts (1962 Act, 1963 commission; 1972 Act, 1973 commission).*

Trap 3 · Seats frozen, but boundaries redrawn
The 84th and 87th Amendments kept the number of seats on the 1971 Census, yet boundaries and SC/ST reservation were redone on the 2001 Census. *Rule: number of seats = 1971 base; boundaries and reservation = 2001 data.*

Trap 4 · Which states were left out in 2008
The Fourth Commission's orders did not apply to Assam, Arunachal Pradesh, Manipur, Nagaland and Jharkhand; so 499 of 543 Lok Sabha seats were redrawn for 2009. *Rule: five states skipped; 2020 Commission was to cover the four North-Eastern states and J&K, but the four were removed in March 2021.*

QUICK QUIZ

Q1. Which Article provides for readjustment of constituencies after each Census?

1. Article 81
2. Article 82
3. Article 170
4. Article 330

Q2. Which Article deals with delimitation for State Legislative Assemblies?

1. Article 81
2. Article 170
3. Article 332
4. Article 82

Q3. The Delimitation Commission is

1. a constitutional body
2. a statutory body
3. an executive committee of the EC
4. a judicial tribunal

Q4. Orders of the Delimitation Commission, once notified by the President

1. can be modified by Parliament
2. can be challenged in High Courts
3. have the force of law and cannot be challenged in any court
4. need approval of State Legislatures

MY NOTES

Q5. The 84th Amendment Act, 2001 froze seat numbers based on which Census?

1. 1951
2. 1961
3. 1971
4. 2001

Q6. The Fourth Delimitation Commission (2002) was headed by

1. Justice Kuldip Singh
2. Justice Ranjana Prakash Desai
3. Sushil Chandra
4. M.C. Setalvad

Q7. Associate members of the Fourth Commission

1. had full voting rights
2. were 10 with no voting rights
3. were only MPs
4. were nominated by the President

Q8. The Fourth Commission's orders were applied to how many of 543 Lok Sabha constituencies?

1. 543
2. 499
3. 450
4. 400

Q9. The first election on boundaries from the Fourth Commission was

1. 2004
2. 2008
3. 2009
4. 2014

Q10. How many Assembly seats were recommended for J&K in the 2022 Report?

1. 83
2. 90
3. 107
4. 114

Q11. The J&K report reserved Assembly seats for STs

1. 3
2. 6
3. 7
4. 9

Q12. The new cross-regional Parliamentary seat in J&K is

1. Baramulla-Poonch
2. Anantnag-Rajouri
3. Srinagar-Jammu
4. Udhampur-Kathua

Q13. PYQ 2024: How many Delimitation Commissions have been constituted by the Government of India till December 2023. (2024)

1. One
2. Two
3. Three
4. Four

Q14. PYQ 2012: With reference to the Delimitation Commission, consider the following statements: (2012)
1. The orders of the Delimitation Commission cannot be challenged in a Court of Law.
2. When the orders of the Delimitation Commission are laid before the Lok Sabha or State Legislative Assembly, they cannot effect any modifications in the orders. Which of the statements given above is/are correct?

1. 1 only
2. 2 only
3. Both 1 and 2
4. Neither 1 nor 2

Answers: Q1 b, Q2 b, Q3 b, Q4 c, Q5 c, Q6 a, Q7 b, Q8 b, Q9 c, Q10 b, Q11 d, Q12 b, Q13 d, Q14 c

MY NOTES

CHAPTER 49 · HANDOUT: COMPETITION COMMISSION OF INDIA

49 Competition Commission of India

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

EXAM LENS

Prelims hooks

- Competition Act 2002 / CCI under MCA
- Chairperson plus up to six Members
- tenure 5 years or 65
- appeals to NCLAT
- Sections 3, 5, 6 and 28
- penalty up to 10% of average turnover
- cartels up to three times profit or 10% of turnover, whichever higher
- DMDU 2024
- deal value threshold.
- Handout stresses: Handout stresses Competition Act, 2002, the Commission set up through the 2007 amendment (in force 2009), and replacement of the MRTP Act (Introduction)
- Handout stresses: Composition table (Chairperson plus up to six Members, Selection Committee chaired by CJI, 5 years or 65) (Composition)
- Handout stresses: 2023 Amendment (deal value threshold, global turnover penalties, settlement and commitments) and the Google case (Recent Reforms)

Mains hooks

- how competition regulation fits the post-1991 market economy
- regulating big tech and MNCs
- capacity, backlog and overlap with TRAI, SEBI and MeitY
- a Digital Competition Act.

From MRTP's size control to the CCI's conduct regulation, now stretching into digital markets and global turnover.

MY NOTES

IN SIMPLE WORDS

- The **Competition Commission of India (CCI)** guards **fair market practices** and **consumer welfare**. It works under the **Competition Act, 2002** (amended 2007, in force 2009) and replaced the old **MRTP** regime after the **1991** reforms.
- The old **MRTP Act (1969)**, rooted in **Arts. 38 and 39**, tried to stop big business from growing too large. The new law instead regulates **market conduct**.
- The CCI is a **statutory, quasi-judicial** body under the **Ministry of Corporate Affairs**, with a **Chairperson and up to six Members** who serve **5 years or until age 65**.
- It acts against **cartels and anti-competitive agreements**, **abuse of dominance**, and harmful **mergers and acquisitions (combinations)**. Penalty is up to **10% of average turnover**
- Appeals go to the **NCLAT**
- Recent focus (2020-25) is the **digital economy**: Google's Android case (2022, **Rs 1,338 crore**), the **2023 Amendment** (deal value threshold, global-turnover penalty, settlements) and the **Digital Markets and Data Unit (2024)**.

Key term	In plain words
Cartel	Secret agreement among firms (price-fixing, bid-rigging) that distorts competition; looked at under Section 3
Abuse of dominant position	Misusing market power through unfair pricing, discrimination or denying market access
Combination	A merger, amalgamation or takeover; examined under Sections 5 and 6
AAEC	Appreciable adverse effect on competition; the test for harmful agreements and combinations
Director General (DG)	Investigates when the CCI directs; has search, seizure and examination powers like a civil court
NCLAT	National Company Law Appellate Tribunal; hears appeals against CCI orders
Deal value threshold	2023 Amendment idea that brings big acquisitions under CCI scrutiny even if the target's turnover is low
DMDU	Digital Markets and Data Unit (2024); watches data concentration, algorithmic pricing and platform gatekeeping

MY NOTES

MEMORY MAP: COMPETITION COMMISSION OF INDIA

Competition Commission

Background
- MRTP Act, 1969: Arts. 38, 39
- 1991 reforms: size to conduct
- Competition Act 2002: replaced MRTP

Objectives
- Agreements: cartels, bid-rigging
- Abuse of dominance: unfair pricing
- Combinations: mergers, AAEC
- Consumers, trade: efficiency

Composition
- Chair + 6 Members: under MCA
- Selection Committee: CJI chairs
- Tenure: 5 years or 65
- HQ New Delhi: regional offices

Powers
- Regulatory: Section 3
- Adjudicatory: Sec 28, NCLAT
- Investigative: Director General
- Combinations: Sections 5, 6
- Penal: 10% of turnover

Recent reforms
- 2023 Amendment: deal value threshold
- Settlement: commitments
- DMDU 2024: digital markets unit

Major cases
- Google 2022: Rs 1,338 crore
- Apple 2023: 30% commission
- Amazon, Flipkart 2021: preferential listing

Challenges
- Digital complexity: proving dominance
- Backlog: 350+ cases
- Digital Competition Act: DMA-style

MNEMONIC · OBJECTIVES OF THE COMPETITION ACT, PART 1 OF 2: KEEP IT FAIR

F A I R

F Freedom of trade ensured

A Anti-competitive agreements prevented

I Interests of consumers protected

R Regulate combinations (mergers and acquisitions)

Competition law keeps the market FAIR: four of the seven objectives (the other three are in ACE). The order is rearranged for memory. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · OBJECTIVES OF THE COMPETITION ACT, PART 2 OF 2: ACE

A C E

- **A** Abuse of dominant position prohibited
- **C** Competition in the market promoted and sustained
- **E** Efficiency encouraged (productivity, technology, competitiveness)

A fair market is an ACE for consumers: the remaining three objectives. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · POWERS OF THE CCI

Referee Always Inspects, Advises, Checks Courtroom Penalises

- **R** Regulatory powers (agreements and abuse)
- **A** Adjudicatory powers (orders, penalties)
- **I** Investigative powers (Director General)
- **A** Advisory and advocacy functions
- **C** Combinations (Sections 5 and 6)
- **C** Civil court powers
- **P** Penal powers

The CCI acts like a market referee: seven powers in the handout's order. This list is unordered and no good word exists, so the sentence is only a memory aid; the order is free. (Memory aid, not from the handout.)

MNEMONIC · BIG-TECH CASES AGAINST DOMINANT MNCS

Giants Are Accountable

- **G** Google: Android case, 2022, fine Rs 1,338 crore
- **A** Apple: App Store 30% commission probe, 2023
- **A** Amazon and Flipkart: preferential treatment case, 2021

Giant tech firms are held accountable: the three big cases in the handout's order. This list is unordered and no good word exists, so the sentence is only a memory aid; the order is free. (Memory aid, not from the handout.)

MNEMONIC · COMPETITION (AMENDMENT) ACT, 2023

Dealmakers Pay Settlements

- **D** Deal value threshold for big-tech acquisitions
- **P** Penalty guidelines linked to global turnover
- **S** Settlement and commitment mechanisms

Dealmakers now face scrutiny on deal value, pay on global turnover, and can settle early. This list is unordered and no good word exists, so the sentence is only a memory aid; the order is free. (Memory aid, not from the handout.)

MY NOTES

INTRODUCTION AND THE MRTP BACKGROUND

- The CCI is the guardian of fair market practices and consumer welfare in India's liberalised economy. It was established under the provisions of the amendment of the Competition Act, 2002 in 2007 and replaced the outdated MRTP regime, marking the shift from a control-oriented to a market-driven system after the 1991 reforms.
- **Statutory duties:**
  - Eliminate practices having adverse effect on competition
  - Promote and sustain competition
  - Protect consumer interests
  - And ensure freedom of trade carried on by other participants in markets in India
- **Vision:**
  - To promote and sustain an enabling competition culture through engagement and enforcement that would inspire businesses to be fair, competitive and innovative
  - Enhance consumer welfare
  - And support economic growth

MRTP REGIME

MRTP ACT AT A GLANCE

Component	Description
Law	Monopolies and Restrictive Trade Practices (MRTP) Act, 1969, India's first major competition law
Constitutional root	Directive Principles, Articles 38 and 39: prevent "concentration of wealth to the common detriment"
Core objective 1	Prevent monopoly: controlled large industrial houses so they did not dominate the economy
Core objective 2	Regulate trade: targeted restrictive (limiting competition) and unfair (misleading or fraudulent) trade practices
Core objective 3	Public interest: an economic system working for the common good, not just elite corporations
Regulatory body	MRTP Commission (enquiry and investigative power)
Key shift (1991)	Liberalisation moved focus from "restricting company size" to "regulating market conduct"
Current status	Repealed; replaced by the Competition Act, 2002

- **Memory aid (MRTP objectives):** **M**onopoly prevention, **R**egulate trade practices, **P**ublic interest: "**M**ake **R**ules for the **P**ublic".

MY NOTES

MRTP VERSUS COMPETITION REGIME

- **MRTP Act, 1969:**
  - Controls company size
  - Prevents concentration of wealth
  - MRTP Commission
  - Rooted in DPSP Articles 38 and 39
  - Repealed
- **Competition Act, 2002:**
  - Regulates market conduct
  - Promotes competition and consumer welfare
  - Competition Commission of India
  - Post-1991 market-driven approach
  - Current law

ALSO IN THE HANDOUT

- It was rooted in the Directive Principles of State Policy (Articles 38 and 39 of the Indian Constitution) to prevent the "concentration of wealth to the common detriment." Component Description Core Objective 16.

OBJECTIVES OF THE COMPETITION ACT, 2002

- The Act promotes a vibrant, competitive market and replaces the restrictive, outdated provisions of the MRTP Act, 1969. Its objectives balance economic efficiency and consumer welfare.

SEVEN OBJECTIVES

Objective	Meaning
Prevent anti-competitive agreements	Prohibit collusive arrangements such as cartels, price-fixing or bid-rigging
Prohibit abuse of dominant position	No misuse of market power through unfair pricing, discriminatory practices or denial of market access
Regulate combinations (mergers and acquisitions)	Examine mergers, amalgamations or takeovers that may have an "appreciable adverse effect" on competition within India
Promote and sustain market competition	An ecosystem where many players compete freely and fairly, leading to innovation and efficiency
Protect consumer interests	Consumer choice, with quality goods and services at reasonable prices
Ensure freedom of trade	Open market where big and small enterprises operate without unfair barriers or monopolistic restrictions

MY NOTES

Objective	Meaning
Encourage economic efficiency	Better productivity, technological progress and national competitiveness

- **Memory aid (Seven objectives):** **A**greements (anti-competitive), **A**buse of dominance, **C**ombinations, **P**romote competition, **P**rotect consumers, **F**reedom of trade, **E**fficiency: "**A**ll **A**gents **C**ompete, **P**eople **P**rofit **F**airly, **E**verywhere".
- **Shortcut: Three prohibitions. Agreements, Abuse, Combinations**: the three things the Act polices. The other four objectives are promotion and protection goals.

COMPOSITION

COMPOSITION AND SERVICE CONDITIONS

Aspect	Provision
Legal basis	Established under the Competition Act, 2002 amended in 2007 (came into force in 2009)
Nature	Statutory, quasi-judicial body under the Ministry of Corporate Affairs (MCA)
Composition	One Chairperson and up to six Members
Appointment	By the Central Government on the recommendation of a Selection Committee chaired by the Chief Justice of India or a Supreme Court Judge nominated by him
Eligibility	Persons of integrity and outstanding ability with special knowledge in law, economics, commerce, finance, accountancy, management or public affairs
Tenure	Five years or until age 65, whichever is earlier
Reappointment	Eligible
Removal	Central Government may remove the Chairperson or a Member for insolvency, infirmity, misbehaviour, conviction or incapacity after due inquiry
Service conditions	Prescribed by the Central Government; cannot be altered to their disadvantage after appointment
Headquarters	New Delhi, with regional offices in key cities like Mumbai, Kolkata, Chennai and Bengaluru

- **Memory aid (Eligible fields):** **L**aw, **E**conomics, **C**ommerce, **F**inance, **A**ccountancy, **M**anagement, **P**ublic affairs: "**L**et **E**xperts **C**ontrol **F**air **A**ctivity, **M**arket **P**olicy".
- **Memory aid (Removal grounds):** **I**nsolvency, **I**nfirmity, **M**isbehaviour, **C**onviction, **I**ncapacity: "**I** **I**nsist **M**en **C**omply, **I**nstantly".
- **Shortcut: Numbers shortcut. 1 + 6 members. 5 years or 65. CJI chairs selection. MCA ministry. Appeals to NCLAT.**

MY NOTES

POWERS AND FUNCTIONS

- The CCI is both regulator and adjudicator. Its powers come from the Competition Act, 2002 and cover preventive, corrective and advisory roles.

SEVEN GROUPS OF POWERS

Power	What it does
1. Regulatory (preventive)	Examines agreements such as cartels, price-fixing, bid-rigging or exclusive supply under **Section 3**. Prohibits conduct causing or likely to cause "appreciable adverse effect on competition" (AAEC). Example: in 2022 the CCI fined Google for abusing dominance in Android licensing
2. Adjudicatory (corrective)	Quasi-judicial: issues cease-and-desist orders, imposes monetary penalties, directs modification of anti-competitive agreements; can order **division of enterprises** to prevent abuse of dominance (**Section 28**); orders appealable to the **National Company Law Appellate Tribunal (NCLAT)**
3. Investigative	Can direct the Director General (DG) to investigate; the DG has search, seizure and examination powers akin to a civil court; investigations form the evidentiary base for adjudication
4. Advisory and advocacy	Opinions on competition policy when sought by the Centre or States; market studies (telecom, e-commerce, digital advertising); outreach and academic collaboration
5. Combinations (M&A)	Under **Sections 5 and 6** examines mergers and acquisitions; can approve, reject or suggest modifications. Example: in 2023 the CCI approved the Sony-Zee merger with conditional safeguards against content monopolisation
6. Civil court powers	Summon witnesses, require documents, take evidence on oath, conduct inquiries
7. Penal	Up to 10% of the average turnover of the enterprise; in cartel cases, up to three times the profit or 10% of turnover, **whichever is higher**

- **Memory aid (Powers):** **R**egulatory, **A**djudicatory, **I**nvestigative, **A**dvisory, **C**ombinations, **C**ivil court powers, **P**enal: "**R**ight **A**ctions **I**mpose **A**ccountability **C**learly, **C**ourt-**P**roof".
- **Shortcut: Section map. Section 3 = Agreements. Sections 5 and 6 = Combinations (mergers). Section 28 = Division of enterprises.** Remember A-M-D in number order 3, 5-6, 28.

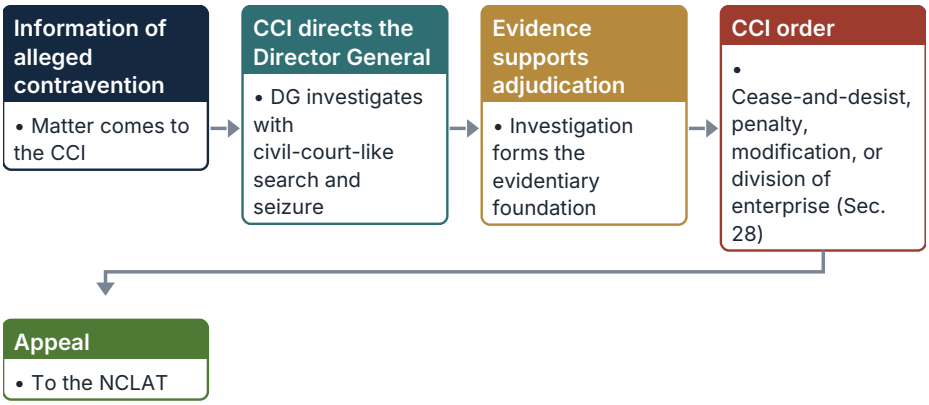
CASE PATH UNDER THE ACT

- **Information of alleged contravention**: Matter comes to the CCI
- **CCI directs the Director General**: DG investigates with civil-court-like search and seizure
- **Evidence supports adjudication**: Investigation forms the evidentiary foundation

MY NOTES

- **CCI order**: Cease-and-desist, penalty, modification, or division of enterprise (Sec. 28)
- **Appeal**: To the NCLAT

CASE PATH UNDER THE ACT



ALSO IN THE HANDOUT

- Civil Court Powers The CCI enjoys powers equivalent to those of a civil court in summoning witnesses, requiring document production, taking evidence on oath, and conducting inquiries.

RECENT REFORMS AND DEVELOPMENTS (2020-2025)

- The CCI has widened its focus from traditional sectors to the digital economy, acting against abuse of dominance by multinationals in digital platforms, e-commerce and technology.

STRENGTHENING THE FRAMEWORK

- **Competition (Amendment) Act, 2023**: new concept of the **deal value threshold**, bringing big-tech acquisitions (for example start-up buyouts by global firms) under CCI scrutiny even if the target has low turnover.
- Empowered the CCI to impose penalty guidelines linked to **global turnover** for deterrence against multinational violators.
- Introduced **settlement and commitment** mechanisms so companies can voluntarily fix anti-competitive behaviour before formal adjudication, speeding up disposal.

DIGITAL MARKET OVERSIGHT

- The CCI launched a **Digital Markets and Data Unit (DMDU)** in 2024 to monitor data concentration, algorithmic pricing and platform gatekeeping.
- Aligns India with the EU's Digital Markets Act (DMA) and the UK's Competition and Markets Authority (CMA).

MY NOTES

MAJOR CASES AGAINST DOMINANT GLOBAL FIRMS

Case	Year	What happened
Google, Android eco-system	2022	Rs 1,338 crore fine for abusing dominance in Android's mobile OS market by restricting app developers and mandating pre-installation of Google services. Behavioural remedies: users may uninstall preloaded apps; third-party app stores permitted. Seen as parallel to the EU's action against Google
Apple, App Store policies	2023	Investigation into the 30% commission on in-app pur-chases, viewed as restrictive and discriminatory toward small developers; echoed US and EU pro-ceedings
Amazon and Flipkart, preferential treatment	2021	Exclusive deals and preferential listings for select sellers distorted price competition. Detailed scrutiny of marketplace algorithms; commitments sought for fair-play compliance

- **Memory aid (Big-tech cases):** **G**oogle (2022, Rs 1,338 crore), **A**pple (2023, 30% commission), **A**mazon-Flipkart (2021, preferential list-ings): "**G**ood **A**ppetite **A**lways".

MARKET STUDIES AND ADVOCACY

- Market studies: telecom (2021), pharmaceuticals (2022), digital advertising (2023).
- Advocated interoperability and data portability against "walled garden" ecosystems of big tech.
- Competition literacy campaign "Fair Competition for a Vibrant Economy" (2024).

INSTITUTIONAL STRENGTHENING AND JUDICIAL DEVELOPMENTS

- Coordination with SEBI, RBI and MeitY on fintech and digital plat-forms.
- AI-based analytics tools for early detection of cartelisation and predatory pricing.
- Regional offices in Bengaluru and Mumbai expanded to decentral-ise enforcement and reach digital start-ups.
- The NCLAT and Supreme Court upheld CCI orders in multiple cases (for example Google v. CCI, 2023), affirming investigative autonomy
- The judiciary also stressed natural justice and procedural safe-guards
- **Memory aid (2023 Amendment):** **D**eal value threshold, **G**lobal-turnover penalty guidelines, **S**ettlement and commitments: "**D**eals **G**et **S**crutinised".

MY NOTES

HANDOUT ALERT

Handout alert: Penalty base: the Powers section says penalties are up to **10% of average turnover**, and the Reforms section says the 2023 Amendment links penalties to **global turnover**. The Challenges and Way Forward sections say the 2023 amendment only "partially addressed" the issue and that global-turnover penalties still need to be "operationalised". Use: the 10% cap applies, and global turnover is the 2023 basis, but implementation is still a stated gap.

HANDOUT ALERT

Handout alert: **DMDU**: the Reforms section says the CCI launched the Digital Markets and Data Unit in 2024, while Way Forward lists "establishment of a DMDU with advanced forensic capabilities". Use: launched 2024; the way forward asks for strengthening it.

ALSO IN THE HANDOUT

- Proactive Market Studies and Policy Advocacy 20.Conducted Market Studies in key sectors — telecom (2021), pharmaceuticals (2022), and digital advertising (2023) — to identify structural barriers and propose reforms. 21.Advocated for interoperability and data portability to counter “walled garden” ecosystems of big tech. 22.Promoted competition literacy through campaigns like “Fair Competition for a Vibrant Economy” (2024).

KEY CHALLENGES

SEVEN CHALLENGES

Challenge	Detail
1. Digital market complexity	Google, Amazon and Meta use algorithmic pricing, data ecosystems and opaque platform models; hard to prove dominance or abuse without proprietary data or algorithmic transparency
2. Limited deterrence for multinationals	10% of turnover cap, but earlier fines were based only on Indian revenue, inadequate to deter global firms; the 2023 amendment partially addressed this, but consistent implementation remains a concern
3. Procedural delays and backlog	Complex probes, shortage of economic experts, lengthy hearings. Over 350 cases pending as of 2024
4. Overlapping jurisdictions	Overlap with TRAI (telecom), SEBI (financial markets) and MeitY (digital data) causes friction and forum shopping
5. Global coordination gaps	No bilateral cooperation with global antitrust regulators limits coordinated enforcement against cross-border MNC practices
6. Resource and expertise deficit	Too few digital economists, data scientists and legal analysts for algorithmic collusion and AI-driven pricing

MY NOTES

Challenge	Detail
7. Compliance and advocacy	Weak compliance among smaller firms; limited competition awareness among consumers and start-ups outside metros

- **Memory aid (Challenges):** **D**igital complexity, **L**imited deterrence, **P**rocedural delays, **O**verlapping jurisdictions, **G**lobal coordination gaps, **R**esource deficit, **C**ompliance and advocacy: "**D**ear **L**eaders, **P**lease **O**pen **G**ood **R**eforms, **C**learly".

ALSO IN THE HANDOUT

- The CCI often faces difficulty in proving dominance or abuse due to lack of access to proprietary data and algorithmic transparency.

WAY FORWARD AND CONCLUSION

SEVEN SUGGESTIONS

Way forward	Detail
1. Digital market law (DMA-style)	A Digital Competition Act as recommended by the 2024 Parliamentary Standing Committee on Finance: regulate gatekeeper platforms, ensure interoperability, prevent self-preferencing
2. Enhanced global cooperation	Partnerships with the European Commission, US FTC and OECD for data exchange and harmonised probes
3. Institutional capacity	Recruit data analysts, digital economists and AI experts; a DMDU with advanced forensic capabilities; continuous staff training
4. Binding penalty framework	Operationalise penalties on global turnover for MNCs, in line with EU and US models
5. Expedited resolution	Robust use of settlement and commitment mechanisms (2023 amendment) to free bandwidth for high-impact digital cases
6. Advocacy and awareness	Wider competition literacy among small businesses, State regulators and consumers through regional outreach and university collaboration
7. Greater autonomy	Financial and functional independence and transparent appointment of Members and DG

- **Memory aid (Way forward):** **D**igital law, **G**lobal cooperation, **I**nstitutional capacity, **B**inding penalties, **E**xpedited resolution, **A**dvocacy, **A**utonomy: "**D**on't **G**ive **I**n, **B**e **E**ver **A**lert, **A**ct".
- **Conclusion:** The CCI must move from a reactive enforcement agency to a forward-looking market regulator, balancing competition with innovation and consumer welfare and placing India alongside leading global antitrust regimes.

MY NOTES

ALSO IN THE HANDOUT

- Forward Outlook The CCI's evolution reflects India's transition from reactive enforcement to proactive market regulation.
- ## Conclusion The CCI's trajectory mirrors India's ambition to build a fair, transparent, and innovation-friendly economy.

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Under which Act was the CCI set up?	The Competition Act, 2002, amended in 2007 (came into force in 2009).
Which law did it replace?	The MRTP Act, 1969 (Monopolies and Restrictive Trade Practices Act).
What were the MRTP Act's constitutional roots?	Directive Principles, Articles 38 and 39: preventing concentration of wealth to the common detriment.
What was the 1991 shift in competition law?	From restricting company size to regulating market conduct.
Nature of the CCI and its ministry?	Statutory, quasi-judicial body under the Ministry of Corporate Affairs.
Composition of the CCI?	One Chairperson and up to six Members.
Who recommends CCI appointments?	A Selection Committee chaired by the CJI or a Supreme Court Judge nominated by him.
Tenure of a CCI Member?	Five years or until age 65, whichever is earlier; eligible for reappointment.
Grounds for removal?	Insolvency, infirmity, misbehaviour, conviction or incapacity, after due inquiry.
What does AAEC stand for?	Appreciable adverse effect on competition.
Which Section covers anti-competitive agreements?	Section 3.
Which Sections cover combinations?	Sections 5 and 6.
Which Section allows division of enterprises?	Section 28.
Where do appeals from CCI go?	National Company Law Appellate Tribunal (NCLAT).

MY NOTES

What is the DG's role?	Director General investigates on the CCI's direction, with search, seizure and examination powers like a civil court.
What is the penalty cap?	Up to 10% of average turnover; cartels up to three times profit or 10% of turnover, whichever is higher.
Example of a merger decision?	In 2023 the CCI approved the Sony-Zee merger with conditional safeguards.
What is the deal value threshold?	Brings big-tech acquisitions under CCI scrutiny even if the target has low turnover (Competition Amendment Act, 2023).
What does the 2023 Amendment add besides it?	Global-turnover penalty guidelines and settlement and commitment mechanisms.
What is the DMDU?	The Digital Markets and Data Unit, launched in 2024 to monitor data concentration, algorithmic pricing and platform gatekeeping.
What was the Google Android case outcome?	Rs 1,338 crore fine (2022), with remedies: uninstall preloaded apps and permit third-party app stores.
What was probed in Apple's case?	The 30% commission on in-app purchases (2023).
What was the Amazon-Flipkart finding?	Exclusive deals and preferential listings for select sellers distorted price competition (2021).
Which market studies did the CCI conduct?	Telecom (2021), pharmaceuticals (2022), digital advertising (2023).
How many cases were pending in 2024?	Over 350.
Which regulators overlap with the CCI?	TRAI (telecom), SEBI (financial markets), MeitY (digital data).
What did the 2024 Standing Committee on Finance recommend?	A Digital Competition Act to regulate gatekeeper platforms, interoperability and self-preferencing.
Name the CCI's campaign of 2024.	"Fair Competition for a Vibrant Economy".

MY NOTES

Trap 1 · Act year versus working year

The Competition Act was passed in 2002; the handout says it was amended in 2007 and the Commission was established and came into force in 2009. The MRTP Act dates from 1969 and is repealed. *Rule: Act 2002, amendment 2007, in force 2009; MRTP 1969 repealed.*

Trap 2 · MRTP versus CCI

MRTP restricted the size of large industrial houses; after 1991 the focus moved to regulating market conduct (cartels, abuse of dominance, combinations). *Rule: MRTP = control size; CCI = protect competition and consumers.*

Trap 3 · Two different penalty rules

A normal penalty is up to 10% of the average turnover of the enterprise. In cartel cases it is up to three times the profit or 10% of turnover, whichever is higher. *Rule: general = 10% of turnover; cartel = 3 x profit or 10% turnover, whichever is higher.*

Trap 4 · Appeal forum and appointing committee

CCI orders are appealed to the NCLAT. Members are appointed by the Centre on the recommendation of a Selection Committee chaired by the Chief Justice of India or a Supreme Court judge nominated by him. *Rule: appeal = NCLAT; Selection Committee head = CJI or his nominee judge.*

QUICK QUIZ

Q1. The CCI was established under

1. MRTP Act, 1969
2. Competition Act, 2002
3. Companies Act
4. SEBI Act

Q2. The CCI functions under the Ministry of

1. Finance
2. Law and Justice
3. Corporate Affairs
4. Commerce

Q3. The CCI consists of

1. one Chairperson and two Members
2. one Chairperson and up to six Members
3. five Members
4. one Chairperson and ten Members

Q4. The Selection Committee for CCI appointments is chaired by

1. Prime Minister
2. Chief Justice of India or a nominated SC Judge
3. Law Minister
4. Chief Election Commissioner

Q5. A CCI Member holds office for

1. 3 years or age 62
2. 5 years or age 65, whichever is earlier
3. 6 years or age 65
4. 5 years only

Q6. Appeals against CCI orders lie to

1. High Court
2. Supreme Court directly
3. NCLAT
4. Consumer Commission

MY NOTES

Q7. Which Section allows division of enterprises to prevent abuse of dominance?

1. Section 3
2. Section 5
3. Section 6
4. Section 28

Q8. In cartel cases the CCI can impose a penalty of up to

1. 5% of turnover
2. 3 times profit or 10% of turnover, whichever is higher
3. 1% of assets
4. Rs 1,338 crore

Q9. The deal value threshold was introduced by

1. Competition Act, 2002
2. MRTP Act, 1969
3. Competition (Amendment) Act, 2023
4. 2007 amendment

Q10. The MRTP Act was rooted in which Directive Principles?

1. Articles 36 and 37
2. Articles 38 and 39
3. Articles 40 and 41
4. Articles 44 and 45

Q11. The CCI's fine on Google for Android in 2022 was

1. Rs 1,338 crore
2. Rs 338 crore
3. Rs 3,100 crore
4. Rs 500 crore

Q12. The DMDU was launched in

1. 2002
2. 2009
3. 2021
4. 2024

Answers: Q1 b, Q2 c, Q3 b, Q4 b, Q5 b, Q6 c, Q7 d, Q8 b, Q9 c, Q10 b, Q11 a, Q12 d

MY NOTES

CHAPTER 50 · HANDOUT (NDMA, SDMA, DDMA)

50 Disaster Management Authorities

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

MY NOTES

EXAM LENS

Prelims hooks

- Chair of NDMA, SDMA, DDMA
- Section 3(2), 8, 14, 25
- who heads the NEC
- status of Vice-Chairperson and members
- which body controls the NDRF
- Sendai Framework (2015-2030)
- Aapda Mitra, FFGS, EWDS, NDMP-2023
- Operation Sagar Bandhu, Dost, Karuna.
- Handout stresses: Handout gives the Section numbers for each tier: 3(2) Chairperson of NDMA, 8 NEC, 12-14 additional functions, 14 SDMA, 25 DDMA (Composition tables)
- Handout stresses: Chairperson of each tier: Prime Minister, Chief Minister, District Collector (NDMA, SDMA, DDMA sections)
- Handout stresses: Large "Recent Initiatives and Reforms (2020-2025)" block with figures: NDMP-2023, Climate Risk Atlas 2022, Landslide Atlas 147 districts, Aapda Mitra 1 lakh volunteers in 350 districts, 98 cities (Section 9 and 10)
- Handout stresses: Two 2016 questions are quoted in the handout's PYQ section, both essay-type (no options): NDMA guidelines and Uttarakhand cloudbursts, and the 2004 tsunami with NDMA (2010) guidelines on preparedness (PYQ section)

Mains hooks

- the handout's PYQs (2016) ask to discuss mitigation measures under NDMA guidelines for cloudbursts, and tsunami preparedness mechanisms under NDMA (2010) guidelines
- the handout gives no model answer
- Likely angle: shift from relief to risk governance, how the three tiers link, and what the 2020-2025 reforms add (multi-hazard, technology, community resilience).

One Act, three tiers: the PM, the CM and the Collector chair them, and every tier plans, coordinates, reports and links up to the next.

MY NOTES

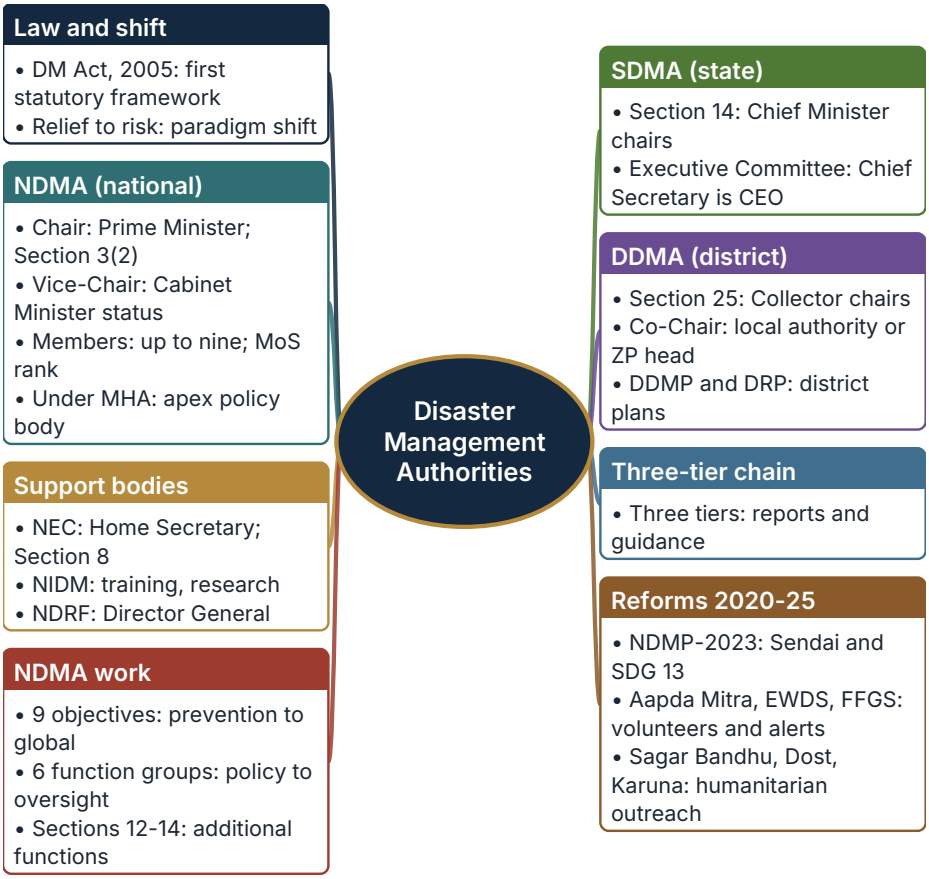
IN SIMPLE WORDS

- The **Disaster Management Act, 2005** created a three-tier system: **NDMA** (national), **SDMA** (state) and **DDMA** (district). It moved India from **relief-centric** to **risk management**.
- The **NDMA** is the apex body, chaired by the **Prime Minister**, with a **Vice-Chairperson** (Cabinet Minister status) and **up to nine members** (Minister of State rank). It works under the **Ministry of Home Affairs**.
- Its job: lay down **policies**, approve the **National Disaster Management Plan**, guide SDMAs, supervise the **NDRF**, set **minimum relief standards** and allow **emergency procurement** without tenders.
- The **SDMA** (Sec 14) is chaired by the **Chief Minister**
- The **DDMA** (Sec 25) by the **District Collector** with an elected representative as Co-Chairperson
- Recent steps (2020-25): **NDMP 2023** aligned to the **Sendai Framework**, **Aapda Mitra**, early-warning and flash-flood systems, and rescue missions abroad: **Sagar Bandhu**, **Dost**, **Karuna**.

Key term	In plain words
NDMA	National Disaster Management Authority; apex body, chaired by the Prime Minister
NEC	National Executive Committee, headed by the Union Home Secretary; implements NDMA's policies
NIDM	National Institute of Disaster Management; training, research and capacity building, autonomous under MHA
NDRF	National Disaster Response Force; specialised rescue force under the general control of NDMA
SDMA	State Disaster Management Authority under Section 14; chaired by the Chief Minister
DDMA	District Disaster Management Authority under Section 25; chaired by the District Collector
Sendai Framework	Global disaster risk reduction plan (2015-2030) that India's strategy follows
Aapda Mitra	NDMA-MHA scheme (Phase II, 2022-27) to train 1 lakh community volunteers in 350 districts

MY NOTES

MEMORY MAP: DISASTER MANAGEMENT AUTHORITIES



MNEMONIC · THREE TIERS AND WHO HEADS THEM

Policies Cascade Correctly

- **P** Prime Minister chairs the NDMA (national)
- **C** Chief Minister chairs the SDMA (state)
- **C** Collector chairs the DDMA (district)

Policies cascade correctly from national to state to district: the head of each tier. (Memory aid, not from the handout.)

MNEMONIC · ADDITIONAL FUNCTIONS OF THE NDMA

R E A C T

- **R** Relief standards and guidelines (minimum relief, loan relief)
- **E** Emergency procurement with normal tenders waived
- **A** Annual report laid before Parliament
- **C** Control and supervision of the NDRF
- **T** Technical and international collaboration

In a disaster the NDMA must REACT: five additional functions. The order is rearranged for memory. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · EX-OFFICIO MEMBERS OF THE DDMA

E M S

E Executive head: Chief Executive Officer of the DDMA

M Medical: Chief Medical Officer of the district **S** Superintendent of Police

Like EMS (emergency medical services) at a disaster scene: the three ex-officio members, plus up to two officers nominated by the State. The order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · INDIA'S RESCUE OPERATIONS ABROAD

Sailors Deliver Kindness

S Sagar Bandhu: Sri Lanka, 2025 **D** Dost: Turkiye and Syria, 2023

K Karuna: Myanmar, 2023

Sailors deliver kindness abroad: three humanitarian operations in the handout's order. (Memory aid, not from the handout.)

WHY THE ACT AND WHAT NDMA IS

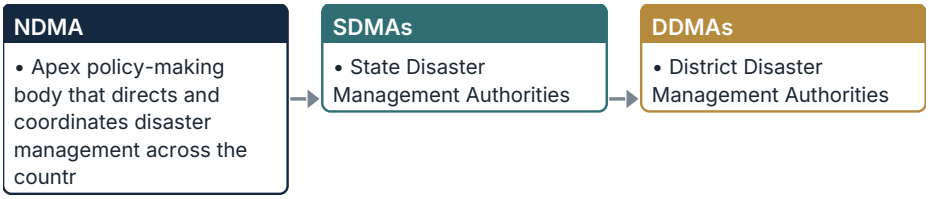
- Disasters, natural or human-made, threaten life, livelihood and infrastructure in India because of its vast geography and climatic diversity. Growing cyclones, floods, landslides and industrial accidents showed the need for a **permanent institutional mechanism** to manage disasters in a scientific and coordinated way.
- **The Act:** The **Disaster Management Act, 2005** gave, for the first time, a **statutory framework** for disaster **preparedness, mitigation, response and recovery**. It marked a paradigm shift **from a relief-centric approach to a comprehensive disaster-risk-management system**.

STATUTORY CHAIN CREATED BY THE ACT

- **NDMA**: **Apex policy-making body** that directs and coordinates disaster management across the country
- **SDMAs**: State Disaster Management Authorities
- **DDMAs**: District Disaster Management Authorities

MY NOTES

STATUTORY CHAIN CREATED BY THE ACT



- The NDMA is **chaired by the Prime Minister** and functions under the **administrative control of the Ministry of Home Affairs**, through the integrated structure of SDMAs and DDMAs.
- **Vision:** "To build a safer and disaster-resilient India through a holistic, proactive, technology-driven, and sustainable development strategy". The NDMA today links disaster risk reduction with sustainable development and climate resilience.

NDMA: COMPOSITION AND STRUCTURE

COMPOSITION OF THE NDMA

Position	Provision	Details
Chairperson	Section 3(2), DM Act 2005	**Prime Minister** of India, ex-officio Chairperson
Vice-Chairperson	Nominated by the Chairperson	Status of a **Cabinet Minister**; assists in overall coordination and supervision
Members	Up to **nine**, nominated by the Chairperson	Each has the rank of a **Minister of State**; may be given charge of thematic areas such as early warning, logistics or training
Administrative control	none stated	Functions under the **Ministry of Home Affairs (MHA), Department of Disaster Management**
Secretariat support	Section 8, DM Act 2005	Provided by the **National Executive Committee (NEC)**, headed by the **Union Home Secretary**, which implements NDMA's policies

ORGANISATIONAL FRAMEWORK

Component	Head or composition	Primary function
NDMA (apex body)	Chaired by the Prime Minister	Policy formulation, national plans and coordination
National Executive Committee (NEC)	Chaired by the Home Secretary	Implementation and coordination of NDMA's policies and plans
National Institute of Disaster Management (NIDM)	Autonomous institute under MHA	Training, research and capacity building in disaster management

MY NOTES

Component	Head or composition	Primary function
National Disaster Response Force (NDRF)	Commanded by a Director General	Specialised response force for rescue and relief operations

- **Memory aid (NDMA ladder): P**M chairs, **V**ice-chair is Cabinet rank, **M**embers are MoS rank: "**P**ower **V**alues **M**inisters": the rank steps down from PM to Cabinet to Minister of State.
- **Memory aid (Support bodies): N**EC (Home Secretary heads it), **N**IDM (training and research), **N**DRF (Director General): "**N**ever **N**eglect **N**DRF" and its two partners.
- **Shortcut: Section numbers for the national tier. 3(2) = Chair (PM), 8 = NEC secretariat**. Remember "3 then 8": the head, then the staff.

OBJECTIVES OF NDMA

- The handout lists nine objectives
- Each pairs a goal with what it means in practice

NINE OBJECTIVES

No.	Objective	Explanation
1	Promote a culture of prevention and preparedness	Shift national focus from post-disaster relief to pre-disaster risk management through education, training and awareness
2	Integrate disaster risk reduction into development planning	All Central and State development projects to include vulnerability assessment and mitigation measures
3	Establish strong institutional and techno-legal frameworks	Strengthen disaster management laws, guidelines and institutions for effective coordination and compliance
4	Improve risk identification and early-warning mechanisms	Scientific forecasting, hazard mapping and information-sharing systems with real-time data
5	Build community and stakeholder capacity	Train local authorities, NGOs and citizens to respond efficiently during disasters
6	Encourage sustainable and eco-friendly mitigation measures	Balance technological innovation with traditional wisdom for environmental sustainability
7	Ensure inclusive disaster response	Prioritise vulnerable groups: women, children, elderly and persons with disabilities in relief and rehabilitation
8	Strengthen media and public communication	Media partnerships for awareness, transparency and timely dissemination of warnings and information

MY NOTES

No.	Objective	Explanation
9	Promote international cooperation	Collaborate with neighbouring countries and global agencies for regional disaster-risk reduction and humanitarian assistance

- **Memory aid (Nine objectives):**
  - **P**revention culture, **I**ntegrate DRR, **E**stablish techno-legal frameworks, **I**mprove early warning, **B**uild community capacity, **E**co-friendly mitigation, **E**nsure inclusive response, **S**trengthen media, **P**romote international cooperation: "**P**lease **I**nclude **E**very **I**ndian
  - **B**uild **E**co-friendly, **E**qual, **S**trong **P**artnerships."

FOCUS VERSUS TOOLS

- **Direction of the shift:**
  - From post-disaster relief to pre-disaster risk management
  - DRR built into development
- **Tools named:**
  - Education and training
  - Vulnerability assessment
  - Hazard mapping
  - Real-time data
  - Media partnerships

FUNCTIONS AND RESPONSIBILITIES OF NDMA

- The handout groups the work into six heads.

1. POLICY FORMULATION AND PLANNING

- Lays down **national policies** on disaster management: the strategic direction for prevention, mitigation, preparedness and rehabilitation.
- Approves the **National Disaster Management Plan (NDMP)**, a blueprint integrating sectoral and inter-state coordination mechanisms.
- Approves plans of **Central Ministries and Departments** prepared in line with the NDMP.
- Guides **SDMAs** through uniform standards and policy alignment.

2. INTEGRATION AND COORDINATION

- Ensures **DRR measures are integrated** into all Central and State development programmes.
- Coordinates implementation of national policies and plans through the **NEC** and concerned ministries.
- Facilitates **inter-ministerial and inter-state coordination** during major disasters for resource mobilisation.

MY NOTES

- Provides **technical and financial guidance** to state and district authorities on preparedness.

3. MITIGATION AND PREPAREDNESS MEASURES

- Lays down guidelines for prevention and mitigation with scientific and research institutions.
- Promotes **capacity building and training** at all administrative levels, including NIDM and state training institutes.
- Encourages **early warning systems, forecasting tools and hazard mapping** using modern technology.
- Mainstreams **climate resilience and eco-friendly practices** into mitigation to minimise long-term risks.

4. EMERGENCY RESPONSE AND RELIEF MANAGEMENT

- Exercises **general supervision and control over the NDRF** for prompt, professional response.
- Recommends **minimum standards of relief** (food, shelter, medical aid).
- Recommends **relief in loan repayments or concessional loans** in large-scale disasters.
- Authorises **emergency procurement** of essential materials for rescue and relief by **waiving normal tender procedures**.

5. INTERNATIONAL AND INTER-GOVERNMENTAL SUPPORT

- Coordinates India's **humanitarian assistance to foreign countries** hit by major disasters.
- Facilitates cooperation with **UN bodies, ASEAN, SAARC and BIMSTEC**.
- Represents India on global platforms like the **Sendai Framework for Disaster Risk Reduction (2015-2030)**.

6. OVERSIGHT, REPORTING AND EVALUATION

- Prepares an **annual report** and submits it to the Central Government for presentation before **Parliament**.
- Periodically reviews disaster-management plans and performance of **SDMAs, DDMAs and NDRF**.
- Evaluates implementation of guidelines under the Act, ensuring **accountability of ministries and states**.
- **Memory aid (Six function heads):** **P**olicy, **I**ntegration, **M**itigation, **E**mergency response, **I**nternational support, **O**versight: "**P**lease **I**nspect **M**y **E**mergency **I**nventory **O**ften."
- **Shortcut: Emergency powers in one line. NDRF control + relief standards + loan relief + procurement without tenders.** Four verbs, all under head 4.

MY NOTES

ADDITIONAL FUNCTIONS (SECTIONS 12-14)

- The handout says these specialised statutory functions are **primarily derived from Sections 12-14 of the DM Act, 2005**.

FIVE ADDITIONAL FUNCTIONS

Head	What NDMA does
1. Standards and guidelines for relief	**Minimum standards of relief**: food, water, shelter, clothing and medical assistance, for uniformity and accountability across states and agencies. **Psychosocial support and mental health services**: post-disaster counselling and rehabilitation, particularly for children, women and the elderly. **Loan and credit relief**: recommends relief in repayment or concessional fresh loans for individuals and enterprises in severe calamities
2. Control and supervision of NDRF	General superintendence, direction and control; ensures swift, strategic deployment of NDRF battalions; the **Director-General of NDRF** works under NDMA's overall supervision **through the Ministry of Home Affairs**
3. Emergency procurement powers	In any threatening disaster situation, authorises emergency procurement of provisions, materials and equipment for rescue and relief; **standard tendering procedures are waived**
4. Annual reporting and accountability	Annual Report on policies, plans and activities; the Central Government **lays it before both Houses of Parliament**; it also forms the basis for policy updates and budget allocations
5. International and technical collaboration	Bilateral and multilateral response such as **Operation Sagar Bandhu** for Sri Lanka (2025); engages with the **Sendai Framework (2015-2030)**; collaborates with **UNDP, WHO and World Bank** for capacity building, data sharing and technical assistance

HANDOUT ALERT

Handout alert: The additional functions are said to come from **Sections 12-14**, while the SDMA is "established under **Section 14**" later in the same handout. Use the numbers as written: **Sections 12-14 for these NDMA functions, Section 14 for SDMA, Section 25 for DDMA**.

ALSO IN THE HANDOUT

- In such cases, the standard tendering procedures are waived, ensuring that immediate response is not delayed by bureaucratic processes.

STATE DISASTER MANAGEMENT AUTHORITY (SDMA)

- **Legal basis:** The SDMA is established under **Section 14** of the DM Act, 2005. It is the **apex disaster-management body at state level** for policy-making, coordination and monitoring of preparedness,

MY NOTES

mitigation and response. **Every state and union territory with a legislature** must set up its own SDMA.

COMPOSITION OF THE SDMA

Position	Role or appointment
Chairperson	**Chief Minister** of the State (ex-officio)
Vice-Chairperson	Nominated by the Chairperson from among the members
Members	Up to **9**, nominated by the Chairperson; include heads of key departments such as Home, Health, Agriculture, Finance and Urban Development
Ex-officio Member	Chairperson of the **State Executive Committee** (usually the Chief Secretary)
Chief Executive Officer	The Chairperson of the State Executive Committee acts as the **ex-officio CEO** of the SDMA

> **HANDOUT ALERT**
> Handout alert: The Chairperson of the State Executive Committee (usually the Chief Secretary) appears in **two rows**: as an ex-officio member and as the ex-officio CEO. Treat it as **one person holding both roles**.

FUNCTIONS

- The SDMA formulates state-specific strategies in line with national guidelines.
- **Policy and planning**:
  - Formulate the State Disaster Management Policy consistent with the National Policy
  - Approve the **State Disaster Management Plan (SDMP)** aligned with the National Plan
  - Approve **Departmental Disaster Management Plans**
  - Integrate DRR into all state development programmes
- **Coordination and implementation**:
  - Coordinate implementation of the SDMP and inter-departmental response
  - Recommend funds for mitigation and preparedness
  - Oversee the **State Executive Committee** for timely execution
- **Monitoring and evaluation**:
  - Review departmental and district-level plans for consistency with state and national priorities
  - Monitor capacity-building and preparedness across districts
  - Issue guidelines to departments for integrating prevention and mitigation

MY NOTES

REPORTING AND IMPORTANCE

- The SDMA prepares an **Annual Report**, submitted to the **State Government**, which lays it before the **State Legislature**: democratic accountability and transparency.
- SDMAs are the **link between NDMA and DDMAs**.
- They contextualise national policy to the state's geography, vulnerability profile and resource base (for example coastal, hilly, drought-prone states).
- By mainstreaming DRR into state planning they turn response from reactive to **preventive and capacity-oriented**.
- **Memory aid (SDMA plans): P**olicy, then SDMP, then **D**epartmental plans: "**P**lans **D**own the line": State policy, State plan, Departmental plans.

DISTRICT DISASTER MANAGEMENT AUTHORITY (DDMA)

- **Legal basis:** The DDMA is constituted under **Section 25** of the DM Act, 2005. It is the **district-level apex body** for planning, coordinating and implementing disaster-management measures in line with NDMA and SDMA guidelines. **Every district in the country** must have a DDMA, for decentralised preparedness and rapid local response.

COMPOSITION OF THE DDMA

Position	Role or designation
Chairperson	**District Collector / District Magistrate / Deputy Commissioner** (ex-officio)
Co-Chairperson	Elected representative of the local authority; in tribal areas, the **Chief Executive Member of the District Council** (Sixth Schedule areas)
In districts with Zilla Parishad	The **Chairperson of the Zilla Parishad** acts as the Co-Chairperson
Members (ex-officio)	Chief Executive Officer of DDMA, **Superintendent of Police**, **Chief Medical Officer** of the district
Other members	Up to **two** district-level officers nominated by the State Government
Chief Executive Officer (CEO)	Appointed by the State Government; **executive head** of the DDMA

FUNCTIONS OF THE DDMA

- **Planning and preparedness**:
  - Prepare the **District Disaster Management Plan (DDMP)** including a detailed **District Response Plan (DRP)**
  - Identify disaster-prone areas and vulnerable groups
  - Ensure risk mapping and resource inventory

MY NOTES

- Promote community-based preparedness through schools, NGOs and local bodies

- **Coordination and implementation**:
  - Coordinate National, State and District Plans at district level
  - Ensure departments and local authorities follow NDMA and SDMA guidelines
  - Oversee **Emergency Operation Centres (EOCs)** and liaise with state level
  - Facilitate training for officers, employees and voluntary rescue workers
- **Mitigation and response**:
  - Set up early-warning systems and quick alerts
  - Coordinate rescue, relief and rehabilitation
  - Manage relief centres and temporary shelters (sanitation, water, food)
  - Ensure medical preparedness, epidemic control and post-disaster psychosocial care
- **Monitoring and review**:
  - Review mitigation and capacity-building by departments and local bodies
  - Evaluate district plans and recommend improvements
  - Keep updated data on resources, personnel and logistics

ACCOUNTABILITY AND SIGNIFICANCE

- The DDMA submits periodic reports to the **SDMA and the State Government**
- The State Government may assign additional responsibilities or direct special measures
- This gives vertical coordination across **NDMA to SDMA to DDMA**.
- It embodies **localised disaster governance** (last-mile preparedness), operationalises "**community-centric disaster resilience**" by integrating panchayats, municipalities and civil-society actors, and turns disaster management from top-down to a **grass-roots participatory framework**.
- **Memory aid (DDMA people): C**ollector chairs, **C**o-chair is the local elected head, **M**embers include SP and CMO, **M**ore: two nominated officers: "**C**ollectors **C**ount **M**any **M**en".

THE THREE TIERS SIDE BY SIDE

NDMA, SDMA, DDMA COMPARED

Point	NDMA	SDMA	DDMA
Section	3(2) for the Chair; 8 for NEC; 12-14 for additional functions	**14**	**25**

MY NOTES

Point	NDMA	SDMA	DDMA
Level	National apex	State apex	District apex
Chair	**Prime Minister**	**Chief Minister**	**Collector / DM / Deputy Commissioner**
Deputy	Vice-Chairperson (Cabinet Minister status)	Vice-Chairperson nominated from members	Co-Chairperson (local authority representative or ZP Chairperson)
Members	Up to nine (MoS rank)	Up to 9	Ex-officio SP, CMO, CEO plus up to two nominated officers
Executive arm	NEC under the Home Secretary	State Executive Committee (Chief Secretary, CEO)	CEO appointed by the State Government
Plan	National Disaster Management Plan (NDMP)	State plan (SDMP) and departmental plans	District plan (DDMP) with District Response Plan
Annual report	Central Government lays before Parliament	State Government lays before State Legislature	Periodic reports to SDMA and State Government

- **Memory aid (Chairs top to bottom): P**rime Minister, **C**hief Minister, **D**istrict Collector: "**P**lans **C**ome **D**own", the national, state and district tiers.
- **Shortcut: Section numbers. 3(2) - 14 - 25**: NDMA chair, SDMA, DDMA. NEC is **8**, extra NDMA functions **12-14**.

REPORTING CHAIN

- **DDMA**: Periodic reports to the SDMA and the State Government
- **SDMA**: Annual Report to the State Government, laid before the State Legislature
- **NDMA**: Annual Report to the Central Government, laid before both Houses of Parliament

REPORTING CHAIN



RECENT INITIATIVES (2020-2025): FRAMEWORKS AND WARNING SYSTEMS

- The architecture has moved to a **multi-hazard, technology-driven, climate-resilient** approach, and from reactive relief to **anticipatory risk governance**, integrating NDMA, SDMA and DDMA efforts.

MY NOTES

1. STRENGTHENING INSTITUTIONAL FRAMEWORKS

- **Revamped NDMP (2023)**:
  - Aligned with the **Sendai Framework (2015-2030)** and **SDG 13 (Climate Action)**
  - A "**whole-of-government and whole-of-society**" approach with multi-stakeholder participation and gender-sensitive response
  - Focus areas are pandemic management, cyber disasters, **CBRN hazards** (chemical, biological, radiological, nuclear) and climate-induced migration
- **Climate change missions**:
  - NDMA and the Ministry of Environment developed a **Climate Risk Atlas (2022)** mapping district-level vulnerability to floods, heatwaves and cyclones
  - It guides adaptive planning for SDMAs and DDMAs under the updated **NAPCC 2.0**

2. EARLY WARNING AND RESPONSE

- **Pan-India Early Warning Dissemination System (EWDS)**:
  - Expanded from coastal to inland flood-prone districts (2021-2024) with **ISRO and IMD**
  - Real-time alerts through the **Common Alerting Protocol (CAP)** linked to DoT's emergency messaging system
- **Landslide Atlas (2022)**: prepared with IMD, IIT Roorkee and NRSC, covering **147 districts**.
- **Flash Flood Guidance System (FFGS)**: operational across **all river basins**, issuing **6-12 hour alerts**.

QUICK FIGURES FOR THE WARNING TOOLS

Tool	Year or span	Key number or partner
Climate Risk Atlas	2022	NDMA with Ministry of Environment
EWDS expansion	2021-2024	ISRO and IMD; CAP with DoT
Landslide Atlas	2022	147 districts; IMD, IIT Roorkee, NRSC
FFGS	all river basins	6-12 hour alerts

- **Memory aid (Warning toolkit): C**limate Risk Atlas, **E**WDS, **L**andslide Atlas, **F**FGS: "**C**ool **E**arly **L**ookouts **F**orewarn".

MY NOTES

RECENT INITIATIVES: PEOPLE, CITIES, TECHNOLOGY, PANDEMIC, WORLD

3. CAPACITY BUILDING AND COMMUNITY RESILIENCE

- **Aapda Mitra Scheme (Phase II, 2022-27)**:
  - Flagship NDMA-MHA initiative to train **1 lakh community volunteers across 350 districts** in first response, crowd control and basic search-and-rescue
  - It institutionalises local preparedness at DDMA level
- **National School Safety Programme (NSSP 2.0)**:
  - With **UNICEF and NCERT**, over **25,000 schools** in disaster-prone regions
  - Mock drills, disaster curriculum, retrofitting of unsafe infrastructure

4. URBAN AND TECHNOLOGICAL INITIATIVES

- **Urban Flood Mitigation Project (2023)**:
  - **98 high-risk cities**, with the Ministry of Housing and Urban Affairs
  - Integrated stormwater management, micro-drainage mapping, green-infrastructure planning
- **Emerging technologies**:
  - **AI and drones** for rapid damage assessment during cyclones (example **Cyclone Biparjoy, 2023**)
  - A **Disaster Management Information System (DMIS)** with **ISRO and NIC**, integrating real-time satellite imagery and crowd-sourced reports

5. PANDEMIC AND BIOLOGICAL DISASTER PREPAREDNESS

- After **COVID-19**, NDMA institutionalised **Health Emergency Management Cells** at national and state levels.
- A new **National Institute for Disaster Resilience and Health Security (NIDRHS)** is being set up for biosecurity preparedness.
- **SDMAs** were tasked with district-level pandemic management plans after 2021 for inter-sectoral coordination.

6. INTERNATIONAL COLLABORATION AND HUMANITARIAN DIPLOMACY

- NDMA has positioned India as a **"first responder" nation in South Asia** under the **Coalition for Disaster Resilient Infrastructure (CDRI)** and the **BIMSTEC Disaster Management Framework (2022)**.
- Operations: **Operation Sagar Bandhu** (Sri Lanka, 2025), **Operation Dost** (Turkiye-Syria, 2023), **Operation Karuna** (Myanmar, 2023).

MY NOTES

- India **co-chairs the G20 Disaster Risk Reduction Working Group (2023-2024)**, focusing on resilient infrastructure and finance for DRR.

OPERATIONS AND MISSIONS

Name	Where or what	Year
Operation Sagar Bandhu	Sri Lanka	2025
Operation Dost	Turkiye-Syria	2023
Operation Karuna	Myanmar	2023
Cyclone Biparjoy	AI and drones for damage assessment	2023
G20 DRR Working Group	India co-chairs	2023-2024

- **Memory aid (Six reform themes):** **I**nstitutional frameworks, **E**arly warning, **C**apacity building, **U**rban and tech, **P**andemic, **W**orld collaboration: "**I**ndia's **E**xperts **C**all **U**s **P**romptly, **W**orldwide."
- **Shortcut: Reform numbers. 2023** NDMP and Urban Flood (98 cities), **2022** Atlas and Aapda Mitra II start (1 lakh, 350 districts), **25,000** schools, **147** districts.

HANDOUT ALERT

Handout alert: The handout's list numbering inside functions jumps (for example items 7 to 10 under emergency response) because of PDF formatting. Facts are complete; read them as one list of four items under head 4.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 68, NATIONAL DISASTER MANAGEMENT AUTHORITY

- Background: a High Powered Committee (1999) and a National Committee (2001, after the Gujarat earthquake) studied disaster plans. After the 2004 Indian Ocean tsunami the Government enacted the Disaster Management Act, 2005.
- The NDMA was first constituted in 2005 by an Executive Order and was notified in 2006 under the Act.
- Lakshmikanth's NDMA vision adds that the approach 'involves all stakeholders and fosters a culture of prevention, preparedness and mitigation'. Objective 8 is to treat reconstruction as an opportunity to build disaster-resilient structures and habitat.
- NDMA functions in the Act also include: approving plans of Central Ministries, laying down guidelines for SDMAs' State Plans and for Ministries to integrate prevention, recommending funds for mitigation, giving support to other countries hit

MY NOTES

by major disasters, and laying down broad policies for the NIDM.

- The NIDM is located in New Delhi.
- SDMA functions in Lakshmikanth also include reviewing the development plans of state departments and the mitigation, capacity-building and preparedness measures they take
- Its annual report goes to the state government, which lays it before the state legislature
- DDMA functions also include identifying buildings and places that can be used as relief centres or camps with water supply and sanitation, and advising and coordinating the district departments, statutory bodies and NGOs engaged in disaster management.
- Lakshmikanth differs:
  - Size of the SDMA. It says the SDMA has a chairperson and other members not exceeding nine, with the chair of the State Executive Committee as ex-officio member and the other members not exceeding eight, nominated by the Chief Minister. The handout says 'Members (up to 9)' plus the ex-officio member. Use the handout in class
  - Remember LK's limit of eight nominated members
- Lakshmikanth differs: the DDMA total. It says a chairperson and other members not exceeding seven. Count: Collector, Co-Chair, CEO, SP, Chief Medical Officer and up to two nominated officers = 7 in total.

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Which Act created the NDMA and what shift did it mark?	The Disaster Management Act, 2005: a shift from a relief-centric approach to a comprehensive disaster-risk-management system.
Who chairs the NDMA and under which Section?	The Prime Minister, ex-officio, under Section 3(2).
Under which ministry does NDMA function?	The Ministry of Home Affairs (Department of Disaster Management).
Rank of the NDMA Vice-Chairperson and members?	Vice-Chairperson: Cabinet Minister status. Members (up to nine): Minister of State rank.
Who heads the NEC and under which Section does it support the NDMA?	The Union Home Secretary; Section 8 (secretariat support).

What is NIDM?	National Institute of Disaster Management: an autonomous institute under MHA for training, research and capacity building.
Who commands the NDRF?	A Director General; NDMA has general superintendence, direction and control over it.
Name the nine objectives in short.	Prevention culture; integrate DRR; techno-legal frameworks; risk identification and early warning; community capacity; sustainable mitigation; inclusive response; media communication; international cooperation.
Name the six function heads of NDMA.	Policy formulation; integration and coordination; mitigation and preparedness; emergency response and relief; international and inter-governmental support; oversight, reporting and evaluation.
From which Sections are NDMA's additional functions derived?	Sections 12-14 of the Disaster Management Act, 2005.
What emergency procurement power does NDMA have?	It can authorise emergency procurement for rescue and relief in a threatening disaster, with standard tendering procedures waived.
To whom does NDMA submit its annual report?	To the Central Government, which lays it before both Houses of Parliament.
Under which Section is the SDMA established and who chairs it?	Section 14; the Chief Minister (ex-officio).
Who is the CEO of the SDMA?	The Chairperson of the State Executive Committee (usually the Chief Secretary), ex-officio.
Which plans does the SDMA approve?	The State Disaster Management Plan (SDMP) and Departmental Disaster Management Plans.
Under which Section is the DDMA constituted and who chairs it?	Section 25; the District Collector, District Magistrate or Deputy Commissioner.
Who is Co-Chairperson of the DDMA?	An elected representative of the local authority; ZP Chairperson in districts with Zilla Parishad; Chief Executive Member of the District Council in Sixth Schedule areas.

MY NOTES

Which plans does the DDMA prepare?	The District Disaster Management Plan (DDMP) including a District Response Plan (DRP).
Which Sendai Framework period does the handout mention?	2015-2030.
What did the revamped NDMP (2023) align with and emphasise?	The Sendai Framework and SDG 13 (Climate Action); whole-of-government and whole-of-society approach; focus on pandemics, cyber disasters, CBRN hazards, climate-induced migration.
What is FFGS?	Flash Flood Guidance System: operational across all river basins, issuing 6-12 hour alerts.
Aapda Mitra Phase II: key numbers?	2022-27; 1 lakh community volunteers; 350 districts.
NSSP 2.0: partners and reach?	UNICEF and NCERT; over 25,000 schools in disaster-prone regions.
Urban Flood Mitigation Project (2023): reach?	98 high-risk cities with the Ministry of Housing and Urban Affairs.
Match the operations to places.	Sagar Bandhu - Sri Lanka (2025); Dost - Turkiye-Syria (2023); Karuna - Myanmar (2023).

Trap 1 · Who chairs which tier

Prime Minister chairs the NDMA, the Chief Minister chairs the SDMA, and the District Collector (Magistrate or Deputy Commissioner) chairs the DDMA. *Rule: P-C-C = Prime Minister, Chief Minister, Collector.*

Trap 2 · Section numbers

The handout places the NDMA chair in Section 3(2), the NEC secretariat in Section 8, the SDMA in Section 14 and the DDMA in Section 25 of the Disaster Management Act, 2005. *Rule: SDMA = 14, DDMA = 25; do not mix them.*

Trap 3 · Who is Co-Chairperson of the DDMA

The Co-Chairperson is an elected representative of the local authority. In Sixth Schedule tribal areas it is the Chief Executive Member of the District Council; where a Zilla Parishad exists its Chairperson is the Co-Chairperson. *Rule: Collector = Chair; elected representative = Co-Chair, never the Collector.*

Trap 4 · NDMA versus NEC

The NDMA is policy-making and chaired by the PM; the National Executive Committee under the Home Secretary implements its plans. *Rule: NDMA decides, NEC executes, NDRF responds, NIDM trains.*

MY NOTES

QUICK QUIZ

Q1. Who is the ex-officio Chairperson of the NDMA under Section 3(2) of the Disaster Management Act, 2005?

1. Union Home Minister
2. Prime Minister
3. President
4. Union Home Secretary

Q2. Which body provides secretariat support to the NDMA and is headed by the Union Home Secretary?

1. NIDM
2. NDRF
3. National Executive Committee
4. Climate Risk Cell

Q3. The members of the NDMA, up to nine, hold which rank?

1. Cabinet Minister
2. Minister of State
3. Secretary to Government
4. Chief Secretary

Q4. The SDMA is established under which Section of the DM Act, 2005?

1. Section 3
2. Section 8
3. Section 14
4. Section 25

Q5. Who chairs the District Disaster Management Authority?

1. Superintendent of Police
2. District Collector, District Magistrate or Deputy Commissioner
3. Chairperson of the Zilla Parishad
4. Chief Medical Officer

Q6. In Sixth Schedule areas, who acts as Co-Chairperson of the DDMA?

1. Chief Executive Member of the District Council
2. Governor
3. Chief Secretary
4. District Judge

Q7. Under which body is the National Disaster Response Force commanded by a Director General placed for general supervision and control?

1. NIDM
2. NDMA
3. NITI Aayog
4. NEC chaired by the Home Secretary

Q8. Which initiative aims to train 1 lakh community volunteers across 350 districts in its Phase II (2022-27)?

1. Aapda Mitra Scheme
2. NSSP 2.0
3. DMIS
4. Urban Flood Mitigation Project

Q9. The Landslide Atlas (2022) prepared by NDMA with IMD, IIT Roorkee and NRSC covers how many districts?

1. 98
2. 147
3. 350
4. 25,000

Q10. Which of the following is the correct pairing of an operation and a country?

1. Operation Dost - Myanmar
2. Operation Karuna - Sri Lanka
3. Operation Sagar Bandhu - Sri Lanka
4. Operation Karuna - Turkiye

Q11. Which statement about NDMA's emergency procurement powers is correct?

1. It needs standard tendering
2. It waives normal tender procedures in a threatening disaster situation
3. It is limited to NDRF only
4. It requires Parliament's approval first

MY NOTES

Answers: Q1 b, Q2 c, Q3 b, Q4 c, Q5 b, Q6 a, Q7 b, Q8 a, Q9 b, Q10 c, Q11 b

MY NOTES

CHAPTER 51 · HANDOUT (ARTICLES 371 TO 371J)

51 Special Provisions for Some States

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

EXAM LENS

Prelims hooks

- Article-state pairs
- Amendment Act and year for each
- Governor's special responsibility (Maharashtra, Gujarat, Nagaland, Arunachal, Sikkim, Karnataka)
- customary law protection (371A, 371G)
- 371D tribunal
- Special Category Status (11 States)
- Articles 239A and 239AA.
- Handout stresses: Core handout table: Article, State, Amendment Act, special features for 371 to 371J (Section 3)
- Handout stresses: 12 states covered under Part XXI; articles 371 to 371J (Section 2)
- Handout stresses: Minimum Assembly strengths: Sikkim 30, Mizoram 40, Arunachal 30, Goa 30; Tuensang regional council 35 members (Section 3)
- Handout stresses: Asymmetric federalism, vertical versus horizontal (Section 2)
- Handout stresses: No PYQ section in this handout (Whole chapter)

Mains hooks

- none quoted in the material
- Likely angle: asymmetric federalism, Article 371 as unity in diversity, regional disparities, tribal protection and recent controversies (Manipur, Nagaland, Karnataka).

Article 371 is not an erosion of the Constitution but an enhancement: it ties regions in through custom, land and local opportunity.

MY NOTES

IN SIMPLE WORDS

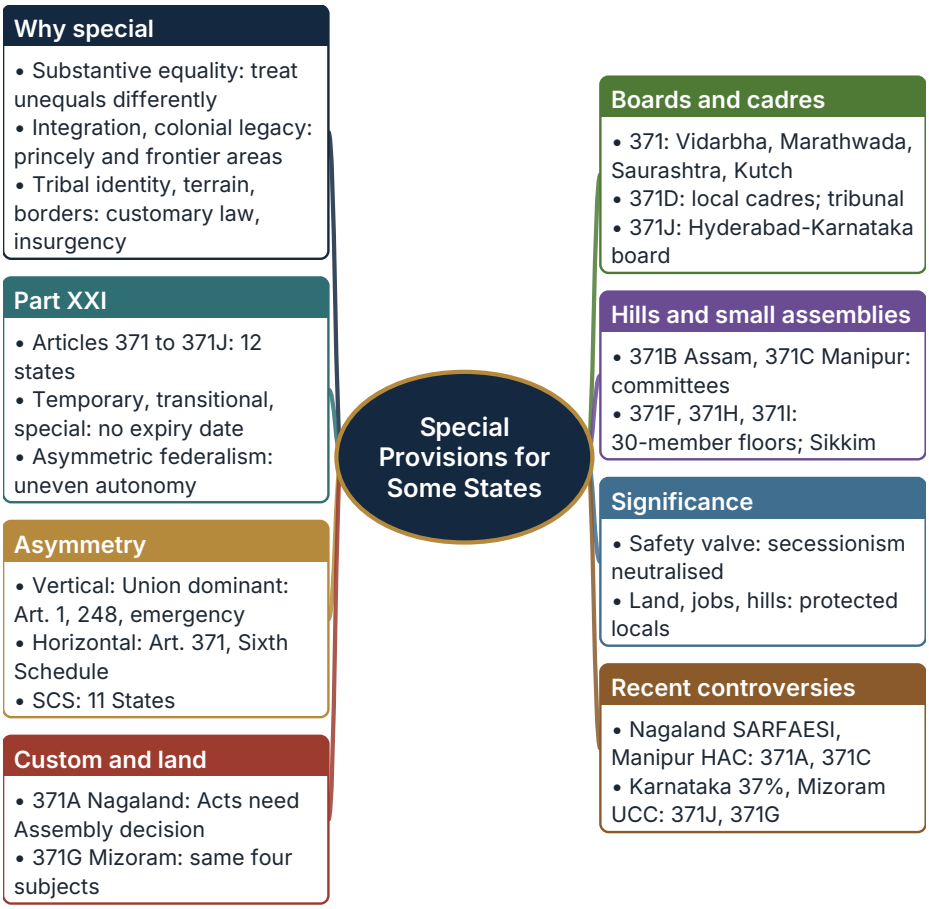
- **Articles 371 to 371-J** (Part XXI, 'Temporary, Transitional and Special Provisions') give special treatment to **12 states**: Maharashtra, Gujarat, Nagaland, Assam, Manipur, Andhra Pradesh, Telangana, Sikkim, Mizoram, Arunachal Pradesh, Goa and Karnataka.
- They were **not in the original Constitution**. They came by **amendments** when states were reorganised or a Union Territory became a state.
- The aims: help **backward regions**, protect **tribal culture and land**, manage **law and order**, and safeguard **local people**. This is **asymmetric federalism**: units get different powers.
- The usual tools are a **Governor's special responsibility**, **development boards**, **committees** of the Assembly, **local reservation** in jobs and education, and a **minimum Assembly size**.
- **Nagaland (371-A)** and **Mizoram (371-G)**: Acts of Parliament on religious or social practices, customary law, customary justice and land do **not apply** unless the **State Assembly decides**.
- For Union Territories, **Art. 239A** gives Puducherry a legislature and **Art. 239AA** lets Delhi NCT legislate on State and Concurrent subjects, except **police, public order and land**.

Key term	In plain words
Asymmetric federalism	Powers and status of units are uneven: vertical (Centre versus states) and horizontal (state versus state)
Special responsibility	A duty the President can give the Governor to act on his own judgment on a named matter, such as law and order in Nagaland (371-A) and Arunachal (371-H)
Development board	A separate board for backward regions (Vidarbha, Marathwada, Saurashtra, Kutch; Hyderabad-Karnataka) with an annual report to the Assembly
Local cadre	Civil posts organised for parts of a state with local preference (Art. 371-D, Andhra Pradesh and Telangana)
Administrative Tribunal (371-D)	Hears service disputes outside the High Court; only the Supreme Court has jurisdiction over its matters
Hill Areas Committee	Assembly committee of members from the Hill Areas of Manipur (371-C); consultative, not legislative like the Sixth Schedule
Sixth Schedule	Gives high autonomy and special administration to tribal areas in four north-eastern states

MY NOTES

Key term	In plain words
Special Category Status	A way to give extra financial help to 11 states at a disadvantage

MEMORY MAP: SPECIAL PROVISIONS FOR SOME STATES



MNEMONIC · ARTICLES 371 TO 371-E IN ORDER

Mountain Nagas Assamese Manipuris Attend Colleges

- **M** Maharashtra and Gujarat (371)
- **N** Nagaland (371-A)
- **A** Assam (371-B)
- **M** Manipur (371-C)
- **A** Andhra Pradesh and Telangana (371-D)
- **C** Central University in Andhra Pradesh (371-E)

Hill and tribal communities and a college campus: the first six special-provision articles, 371 to 371-E, in order. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · ARTICLES 371-F TO 371-J IN ORDER

Snowy Mountains Attract Goa Kayakers

- **S** Sikkim (371-F)
- **M** Mizoram (371-G)
- **A** Arunachal Pradesh (371-H)
- **G** Goa (371-I)
- **K** Karnataka (371-J)

Snowy peaks, mountains and a Goa beach: the last five articles in order. (Memory aid, not from the handout.)

MNEMONIC · MATTERS PARLIAMENT CANNOT TOUCH IN NAGALAND AND MIZORAM

P A C T

- **P** Practices: religious or social
- **A** Administration of justice by customary law
- **C** Customary law
- **T** Transfer and ownership of land

PACT: Nagaland and Mizoram have a pact with the Centre. Under 371-A and 371-G an Act of Parliament on these four matters applies only if the State Assembly decides. Order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · KARNATAKA 371-J: HYDERABAD-KARNATAKA REGION

R E G I O N

- **R** Report: yearly report on the board to the Assembly
- **E** Education seats reserved for students of the region
- **G** Government posts reserved for persons of the region
- **I** Institutional mechanism: human resource enhancement and employment through local cadres
- **O** Outlay: equitable allocation of funds
- **N** New separate development board

371-J is all about one backward REGION (Hyderabad-Karnataka): all six provisions covered. Order is rearranged for memory. (Memory aid, not from the handout.)

WHY STATES GET SPECIAL PROVISIONS

- India is a **"Union of States with diversity"**. Special provisions answer specific regional needs, often prompted by **state reorganisation** or the grant of **statehood to Union Territories**.

RATIONALE BEHIND SPECIAL PROVISIONS

Dimension	Rationale	Explanation
Constitutional	Substantive equality	Equality means treating unequals differently to achieve justice; uniformity can cause injustice

MY NOTES

Dimension	Rationale	Explanation
Historical	Integration of diverse regions	Smooth integration of princely states, tribal and frontier areas after Independence
Colonial legacy	Neglect	Many regions suffered neglect under British rule and princely administration
Socio-cultural	Protection of tribal identity	Safeguards customary laws, social practices, religion and land ownership of tribal communities
Cultural pluralism	Prevents homogenisation	Respects India's diversity
Geographical	Difficult terrain	Hilly, remote regions need flexible governance and administrative arrangements
Strategic / security	Border sensitivity	Many special-provision states share international borders and faced insurgency

- **Memory aid (Seven rationales):** **C**onstitutional equality, **H**istorical integration, **C**olonial legacy, **S**ocio-cultural tribal identity, **C**ultural pluralism, **G**eographical terrain, **S**ecurity borders: "**C**an **H**ill **C**ommunities **S**tay **C**ulturally **G**rounded, **S**afe?"

ALSO IN THE HANDOUT

- ## Rationale behind special provisions Dimension Rationale Explanation Constitutional Substantive Equality Equality means treating unequals differently to achieve justice
- Uniformity can cause injustice Historical Integration of Diverse Regions Smooth integration of princely states, tribal and frontier areas after Independence Colonial Legacy Many regions suffered neglect under British rule and princely administration Socio-Cultural Protection of Tribal Identity Safeguards customary laws, social practices, religion, and land ownership of tribal communities Cultural Pluralism Prevents cultural homogenization and respects India's diversity Geographical Difficult Terrain Hilly, remote regions require flexible governance and administrative arrangements Strategic / Security Border Sensitivity Many special-provision states share international borders and faced insurgency ## Features of the Special Provisions 13

FEATURES OF PART XXI AND ASYMMETRIC FEDERALISM

FEATURES OF THE SPECIAL PROVISIONS

- **Governing provisions**: **Articles 371 to 371J in Part XXI** give tailored governance for **12 states**: Maharashtra, Gujarat, Nagaland, Assam, Manipur, Andhra Pradesh, Telangana, Sikkim, Mizoram, Arunachal Pradesh, Goa and Karnataka.

MY NOTES

- **Added by amendment**: originally absent, they came through amendments during state reorganisations or Union Territory elevations to statehood.
- **Temporary nature**: Part XXI falls under "**Temporary, Transitional and Special Provisions**", suggesting operation until issues like secessionist sentiment or unrest subside, yet **no explicit expiry dates** exist. Parliament can amend as conditions evolve, balancing impermanence with enduring regional needs.
- **Key objectives**: meet aspirations of backward regions, protect tribal cultural and economic interests, manage law-and-order challenges and safeguard local populations.
- **Asymmetric federalism**: varying degrees of autonomy, not applied uniformly across states.
- **Union Territory exceptions**: **Article 239A** enables a local legislature for **Puducherry**. **Article 239AA** empowers **Delhi's NCT** to legislate on State and Concurrent List subjects, **excluding police, public order and land**.
- **Asymmetric federalism:**
  - A structure where **political, administrative and fiscal powers are distributed unevenly** among constituent units
  - Relationships between the federation and its units are not uniform

TWO DIRECTIONS OF ASYMMETRY

- **Vertical asymmetry:** Power balance between the Central Government and the States
- **Horizontal asymmetry:** Variation in powers and status among the different States themselves

EVIDENCE OF ASYMMETRY IN INDIA

WHERE IT SHOWS

Type	Evidence
Vertical: a strong Union	**Indestructible Union** of destructible States (Article 1); **residuary powers** with the Union (Article 248); **Emergency provisions** give overriding authority over State administrations; **power to initiate Constitutional amendments** lies exclusively with the Union; **Governor's office and President's Rule** as supervisory roles
Horizontal: regional and cultural protections	**Article 371** special provisions for states or regions with backwardness, internal security hurdles, difficult geography or tribal identity; **Sixth Schedule** with high autonomy for tribal areas in **four northeastern States**

MY NOTES

Type	Evidence
Representative and fiscal deviations	Seats in Parliament allocated to States **non-uniformly, based on population** (unlike federations with equal representation); **Special Category Status (SCS)** gives enhanced financial assistance to **11 States** disadvantaged by geography or development

- **Memory aid (Vertical five): I**ndestructible (Art. 1), **R**esiduary (Art. 248), **E**mergency, **A**mendment initiation, **S**upervisory (Governor and President's Rule): "**I R**ule **E**very **A**ssembly **S**trongly" is the Union's grip.
- **Shortcut: Vertical versus horizontal. Vertical = Centre over States** (Art. 1, 248, Emergency, Governor). **Horizontal = State versus State** (Art. 371, Sixth Schedule, SCS, seats by population).

ALSO IN THE HANDOUT

- Originally absent, they were added via amendments during state reorganizations or Union Territory elevations to statehood. 14.Temporary Nature: Part XXI falls under "Temporary, Transitional and Special Provisions," suggesting operation until issues like secessionist sentiments or unrest subside, yet no explicit expiry dates exist.
- Key Objectives: Provisions meet aspirations of backward regions, protect tribal cultural and economic interests, manage law-and-order challenges, and safeguard local populations.
- Dimensions of Asymmetry : This arrangement manifests in two distinct directions: - Vertical Asymmetry: Pertains to the power balance between the Central Government and the States.

ARTICLE-BY-ARTICLE TABLE (371 TO 371J)

ARTICLE, STATE, AMENDMENT AND FEATURES

Article	State	Amendment Act	Special provisions and features
371	Maharashtra and Gujarat	7th Amendment Act, 1956	President authorises the Governor to have **special responsibility** for: **separate development boards** for Vidarbha, Marathwada and rest of Maharashtra, and Saurashtra, Kutch and rest of Gujarat; annual report of the boards placed before the **State Legislative Assembly**; equitable allocation of funds for developmental expenditure; equitable arrangement for technical education, vocational training and adequate employment in state services

MY NOTES

Article	State	Amendment Act	Special provisions and features
371-A	Nagaland	13th Amendment Act, 1962	**Acts of Parliament on** religious or social practices of Nagas, **Naga customary law**, administration of civil and criminal justice involving Naga customary law, **ownership and transfer of land** do **not apply unless the Assembly so decides**. Governor has special responsibility for **law and order** during internal disturbances (**individual judgment** after consulting the Council of Ministers). Governor ensures Central funds for specific purposes go in the correct demand for grant. **35-member regional council for Tuensang district**. Special provisions for Tuensang for **10 years (or more)**
371-B	Assam	22nd Amendment Act, 1969	President may provide for a **committee of the Assam Legislative Assembly** with members elected from the **Tribal Areas** and others as specified
371-C	Manipur	27th Amendment Act, 1971	President provides for a **committee of members elected from the Hill Areas**; the Governor may be given special responsibility to secure its proper functioning; Governor submits an **annual report to the President** on Hill Areas administration; Central Government can give **directions to the State** on Hill Areas
371-D and 371-E	Andhra Pradesh and Telangana	32nd Amendment Act, 1973; AP Reorganisation Act, 2014	**371-D**: President ensures **equitable opportunities in public employment and education**; may organise civil posts in **local cadres**; specifies local areas for admission and reservation; **Administrative Tribunal** outside the High Court's purview (only the **Supreme Court** has jurisdiction). **371-E**: Parliament may provide for a **Central University in Andhra Pradesh**
371-F	Sikkim	36th Amendment Act, 1975	Legislative Assembly of **not less than 30 members**; **one Lok Sabha seat** (one Parliamentary constituency); Parliament may provide for **seat reservations and delimitation** to protect different sections; Governor has special responsibility for **peace and equitable social and economic advancement** of sections (acts in discretion, subject to President's directions); President can **extend existing Indian state laws** to Sikkim with modifications

MY NOTES

Article	State	Amendment Act	Special provisions and features
371-G	Mizoram	53rd Amendment Act, 1986	Acts of Parliament do **not apply unless the Assembly decides** on: religious or social practices of Mizos, **Mizo customary law**, administration of justice per Mizo customary law, **ownership and transfer of land**. Assembly of **not less than 40 members**
371-H	Arunachal Pradesh	55th Amendment Act, 1986	Governor has special responsibility for **law and order** (individual judgment after consulting the Council of Ministers; **ceases on the President's direction**). Assembly of **not less than 30 members**
371-I	Goa	56th Amendment Act, 1986	Legislative Assembly of **not less than 30 members**
371-J	Karnataka	98th Amendment Act, 2012	President can empower the Governor with special responsibility for: **separate development board for Hyderabad-Karnataka region**; annual reports to the Assembly and equitable allocation of funds; **reservation in education and vocational training** for students of the region; **reservation in state government posts** for persons of the region; institutional mechanism for human resource enhancement and employment through **local cadres**

HANDOUT ALERT

Handout alert: **Sikkim's Assembly size**: the Article table says "not less than **30** members", while the Recent Events section says Article 371F allows a **32-member** assembly "below the usual 60-member constitutional minimum". Use **30 as the constitutional floor** in 371F and read 32 as the Assembly's actual strength as the handout states. Also, the Significance section says Article 371 lets "the Governor" of Maharashtra and Gujarat set up boards; the Article table says the **President authorises the Governor** to have special responsibility for them. Use the table.

- **Memory aid (Letters and states): M**aharashtra-Gujarat (371), **N**agaland (A), **A**ssam (B), **M**anipur (C), **A**ndhra-Telangana (D-E), **S**ikkim (F), **M**izoram (G), **A**runachal (H), **G**oa (I), **K**arnataka (J): "**M**y **N**eighbour **A**lways **M**akes **A**ppetising **S**oup, **M**ostly **A**s **G**ood **K**hichdi."
- **Shortcut: Alphabet shortcut. A Nagaland, B Assam, C Manipur, D-E AP/Telangana, F Sikkim, G Mizoram, H Arunachal, I Goa, J Karnataka.** Plain 371 is Maharashtra and Gujarat.
- **Memory aid (Amendment numbers): S**even (371), **T**hirteen (A), **T**wenty-two (B), **T**wenty-seven (C), **T**hirty-two (D), **T**hirty-six (F):

MY NOTES

"**S**ly **T**igers **T**ake **T**en **T**asty **T**reats." Then 53, 55, 56 (all 1986) and 98 (2012).

NUMBERS TO MEMORISE

Number	Where
35	Members in Tuensang regional council (371-A)
10 years	Special provisions for Tuensang (371-A)
30	Minimum Assembly: Sikkim (371-F), Arunachal (371-H), Goa (371-I)
40	Minimum Assembly: Mizoram (371-G)
1	Lok Sabha seat for Sikkim

ALSO IN THE HANDOUT

- Equitable arrangement for facilities for technical education, vocational training, and [TABLE CELLS] adequate employment opportunities in state / services. / 371-A Nagaland 13th / Amendment / Act, 1962 / Acts of Parliament regarding: / 13. Religious/social practices of Nagas / 14. Naga customary law 15. Administration of civil/criminal justice involving Naga customary law 16.Ownership/ transfer of land
- Do not apply unless the Assembly so decides
- 371-F Sikkim 36th Amendment Act, 1975 5.
- 371-I Goa 56th Amendment Act, 1986 13.Goa Legislative Assembly to consist of not less than 30 members.
- Separate development board for Hyderabad-Karnataka region 15.

PATTERNS IN THE TABLE

CUSTOMARY LAW AND LAND SHIELD

- **371-A Nagaland:**
  - Acts of Parliament on Naga religious and social practices
  - Naga customary law
  - Justice under customary law
  - Land ownership and transfer
  - None applies unless the Assembly decides
- **371-G Mizoram:**
  - Same pattern for Mizo practices
  - Mizo customary law
  - Justice under it
  - Land ownership and transfer
  - Assembly decides

MY NOTES

GOVERNOR'S SPECIAL RESPONSIBILITY

- **Law and order:** Nagaland (371-A) and Arunachal Pradesh (371-H): individual judgment after consulting the Council of Ministers
- **Development or welfare:**
  - Maharashtra and Gujarat (boards)
  - Sikkim (peace and equitable advancement)
  - Karnataka (Hyderabad-Karnataka board and local reservations)
  - Manipur (hill committee)

JOBS, CADRES AND TRIBUNALS

- **371-D Andhra Pradesh and Telangana:**
  - Equitable public employment and education
  - Local cadres
  - Local areas for admission
  - Administrative Tribunal under the Supreme Court only
  - 371-E Central University in AP
- **371-J Karnataka:**
  - Reservation in education, vocational training and state posts for the region
  - Local-cadre mechanism for human resource enhancement and employment

HILLS AND TRIBAL COMMITTEES

- **371-B Assam:** Committee of the Assembly with members from Tribal Areas
- **371-C Manipur:**
  - Committee of members from Hill Areas
  - Governor's annual report to the President
  - Centre can give directions to the State
- **Memory aid (Governor's law-and-order pair):** **N**agaland and **A**runachal: "**N**o **A**larm": the Governor uses individual judgment for law and order after consulting the Council of Ministers.

SIGNIFICANCE

- The provisions balance national unity and regional diversity.

MY NOTES

FOUR STRANDS OF SIGNIFICANCE

Strand	Point
1. Strengthening national integration	A **"political safety valve"** in the formative years. **Neutralising secessionism**: constitutional guarantees protecting tribal customs and land (Nagaland, Mizoram) brought insurgent groups to the table. **Peaceful integration**: for Sikkim, **371-F** was the cornerstone for the move from "Associate State" to a full member of the Union with its identity protected
2. Protecting cultural and tribal identity	Protects "the way of life" of indigenous communities. **Customary law**: 371-A (Nagaland) and 371-G (Mizoram) bar Parliament from legislating on religious or social practices, customary laws and administration of justice without the state assembly's consent. **Land rights**: prevents alienation of tribal land to outsiders
3. Addressing regional disparities	"Equitable development" for neglected pockets. **Development boards** under Article 371 for Vidarbha, Marathwada, Saurashtra and Kutch ensure a fixed portion of the state budget goes to these regions. **Education and jobs**: 371-D and 371-J allow local-level reservations to prevent "brain drain" and make locals benefit from state growth
4. Administrative and security management	Governor's "Special Responsibility" in border or sensitive states. **Law and order**: Arunachal Pradesh (371-H), strategic location and internal security. **Hill area management**: Manipur (371-C), a special committee of hill-area members so tribal interests are not overshadowed by the dominant valley population

- **Memory aid (Four strands):** **N**ational integration, **C**ultural and tribal identity, **R**egional disparities, **A**dministrative and security: "**N**o **C**ommunity **R**ight **A**bandoned".

RECENT EVENTS AND CONTROVERSIES (2021-25)

ARTICLE BY ARTICLE

Article and state	Event	Takeaway
371A Nagaland, land rights versus Central laws (2021-24)	**SARFAESI Act** conflict: **NEDFi v. L. Doulo Builders**. The court stressed that under 371A **no Act of Parliament on ownership and transfer of land applies without a state assembly resolution**	Reinforces that local "Indigenous" status is a prerequisite for land ownership; national banking laws cannot override tribal land protections

MY NOTES

Article and state	Event	Takeaway
371C Manipur, ethnic violence (2023-25)	The **2023 violence** began after a **High Court order suggesting ST status for Meiteis**, feared by Hill tribes (Kuki/Naga) as opening Hill land to Meiteis. **Nov 2025** discourse: Kuki-Zomi groups demand a **"Separate Budget" or "Separate Administration"** invoking 371C	The **Hill Areas Committee (HAC)** is a **consultative body, not legislative like the Sixth Schedule**; centre of the valley-hill power debate
371D Andhra Pradesh and Telangana, cadre allocation (2024)	After the **2014 bifurcation** thousands of employees were stuck in allocation disputes; 371D manages the **"Zonal System"** for local recruitment. **2024 SC ruling** gave finality to allocation of state-level employees	Respects "Local Cadre" principles so one state's residents do not dominate the other's job market
371J Karnataka, 37% quota and expansion (2022-25)	Applies to **Kalyana-Karnataka** (formerly Hyderabad-Karnataka). **2024**: judiciary and state upheld the **37% reservation** for locals in state-wide education and employment. **2025**: Development Board's scope widened to specialised industrial clusters	371J used for targeted economic growth, not only social reservation
371F Sikkim, ethnic parity (2024)	**2024 Assembly polls**: the **"Sangha" seat** (reserved for monks) and parity between **Bhutia-Lepcha (BL)** and other communities reinforced	371F allows a **32-member assembly** and ethnic reservations hard to justify under standard "secular" representation (as the handout says)

JUDICIAL AND NATIONAL CONTEXT (2023-25)

Item	Point
Governor's discretion (371H and 371A), 2023	SC clarified Governors with "Special Responsibility" for law and order (Arunachal and Nagaland) do **not** have "parallel government" status; they must consult the Council of Ministers except where specifically empowered to use "individual judgment"
2025 Budget "NE Push"	Used the Article 371 framework to channel funds through **Regional Development Councils**, bypassing state-wide red tape for border security and development
Mizoram (371G) and UCC, 2023-24	Mizoram Assembly resolutions: a **Uniform Civil Code cannot apply** without consent, citing Mizo customary law under 371G
Article 370 contrast	After the **2019 abrogation of Article 370**, fears arose in the Northeast that 371 was next; the Centre clarified 371 is a **permanent feature of "Unity in Diversity"** and will not be touched

MY NOTES

Item	Point
2023 J&K verdict	The SC noted special provisions to some states are **essential features of federal structure** and differ fundamentally from the "internal sovereignty" once claimed under Article 370

- **Handout's conclusion:**
  - Article 371 is the **"New Frontier" of Federalism**, strengthened to manage ethnic diversity and regional inequality. Special provisions are **not an "erosion" of the Constitution but an enhancement of it**
  - They uphold "Unity in Diversity" so that regions do not feel "forced" into a monolithic mould
- **Memory aid (Five controversies): S**ARFAESI (Nagaland), **H**ill committee and Meiteis (Manipur), **C**adres (AP-Telangana), **K**arnataka 37%, **S**angha seat (Sikkim): "**S**ome **H**ard **C**ases **K**eep **S**howing up."

ALSO IN THE HANDOUT

- Doulo Builders), the judiciary addressed whether the SARFAESI Act (which allows banks to seize property of defaulters) applies to Nagaland.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 78, SPECIAL PROVISIONS FOR SOME STATES

- Part XXI is titled 'Temporary, Transitional and Special Provisions'. Art. 371 was amended by the 7th Amendment (1956) and the Bombay Reorganisation Act (1960)
- Andhra Pradesh was taken out of it by the 32nd Amendment (1973) and given Arts. 371-D and 371-E
- Amendments that added the articles: 371-A the 13th (1962), 371-B the 22nd (1969), 371-C the 27th (1971), 371-D and 371-E the 32nd (1973), 371-F the 36th (1975), 371-G the 53rd (1986), 371-H the 55th (1986), 371-J the 98th (2012).
- Nagaland, Governor's role: his decision on law and order is final, and the validity of anything he does cannot be questioned on the ground that he ought or ought not to have used individual judgment. Central money for a specific purpose must be put in the demand for grant for that purpose.
- Tuensang district (Nagaland):
  - A 35-member regional council
  - Its Deputy Commissioner is ex-officio Chairman and the Vice-Chairman is elected by its members. For ten years from the formation of Nagaland (or longer, as the Governor specifies) the Governor runs the district, there is a Minister for Tuensang affairs, and its Assembly members are elected by the regional council, not directly

MY NOTES

- Assam (371-B): the committee has members elected from the Tribal Areas, which are North Cachar Hills, Karbi Anglong and Bodoland Territorial Areas. Manipur (371-C): 'Hill Areas' means areas the President declares by order.
- Andhra Pradesh (371-D): the President may also abolish the tribunal when its continued existence is not necessary. The tribunal was set up by the Andhra Pradesh Administrative Tribunal Order, 1975.
- Sikkim (371-F, from the 36th Amendment 1975):
  - Parliament may fix seats for sections of the population and delimit constituencies for them
  - The Governor acts in his discretion for peace and fair social and economic advancement, subject to the President's directions
  - The President can extend any state law to Sikkim with changes
- Karnataka (371-J):
  - The Hyderabad-Karnataka region means six districts: Gulbarga, Bidar, Raichur, Koppal, Yadgir and Bellary. In 2010 the Assembly and the Council passed separate resolutions asking for special provisions
  - The aim is equitable funds, local cadres and reserved education and training seats
- Lakshmikanth differs:
  - The amendment for Art. 371-I (Goa). It says the 56th Amendment Act of 1987
  - The handout table says 1986. Use the handout's 1986 in class
  - Keep LK's 1987 in mind

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

How many states and which Articles does Part XXI cover for special provisions?	12 states; Articles 371 to 371J.
Why is Part XXI called temporary?	It sits under "Temporary, Transitional and Special Provisions", yet there is no explicit expiry date.
What do Articles 239A and 239AA do?	239A: local legislature for Puducherry. 239AA: Delhi NCT can legislate on State and Concurrent List subjects excluding police, public order and land.

Define asymmetric federalism.	Political, administrative and fiscal powers distributed unevenly among constituent units, so relations between the federation and units are not uniform.
Vertical versus horizontal asymmetry?	Vertical: balance between Centre and States. Horizontal: variation among States themselves.
Give the five vertical-asymmetry evidences.	Indestructible Union (Art. 1); residuary powers with Union (Art. 248); Emergency provisions; Union initiates amendments; Governor and President's Rule.
Special Category Status: how many States?	11.
371: state, Amendment and feature?	Maharashtra and Gujarat; 7th Amendment Act, 1956; Governor's special responsibility for development boards (Vidarbha, Marathwada; Saurashtra, Kutch).
371-A: state, Amendment and shields?	Nagaland; 13th Amendment Act, 1962; Naga customary law, religious and social practices, justice and land are shielded unless the Assembly decides; 35-member Tuensang council.
371-B?	Assam; 22nd Amendment Act, 1969; committee of the Assembly with members from Tribal Areas.
371-C?	Manipur; 27th Amendment Act, 1971; Hill Areas committee; Governor's annual report to the President; Centre can give directions.
371-D and 371-E?	AP and Telangana; 32nd Amendment Act, 1973 and AP Reorganisation Act, 2014; local cadres, equitable opportunities, Administrative Tribunal (SC only); 371-E Central University in AP.
371-F?	Sikkim; 36th Amendment Act, 1975; Assembly not less than 30; one Lok Sabha seat; Governor's special responsibility; President can extend state laws.

MY NOTES

371-G?	Mizoram; 53rd Amendment Act, 1986; customary law and land shield; Assembly not less than 40 members.
371-H?	Arunachal Pradesh; 55th Amendment Act, 1986; Governor's law and order responsibility (ceases on President's direction); Assembly not less than 30.
371-I?	Goa; 56th Amendment Act, 1986; Assembly not less than 30 members.
371-J?	Karnataka; 98th Amendment Act, 2012; Hyderabad-Karnataka board, reservation in education and posts, local cadres.
Which two Articles allow local reservations in education and jobs?	371-D (AP and Telangana) and 371-J (Karnataka).
Which states had insurgent groups brought to talks via custom and land guarantees?	Nagaland and Mizoram (371-A and 371-G).
What was the NEDFi v. L. Doulo Builders issue?	Whether the SARFAESI Act applies in Nagaland; the court stressed that under 371A no Act of Parliament on land ownership and transfer applies without a state assembly resolution.
What triggered the 2023 Manipur violence, per the handout?	A High Court order suggesting ST status for Meiteis, feared by Hill tribes as opening Hill land protected by 371C.
Is the Hill Areas Committee legislative?	No: consultative, unlike the Sixth Schedule.
What did the SC clarify about Governors' special responsibility in 2023?	They do not have "parallel government" status and must consult the Council of Ministers except where individual judgment is empowered.
What did Mizoram say about the UCC?	The Assembly passed resolutions that the UCC cannot apply without its consent, citing Mizo customary law under 371G.
What does Karnataka's 371J quota cover?	37% reservation for Kalyana-Karnataka locals in state-wide education and employment (upheld 2024).

MY NOTES

Trap 1 · 371-D versus 371-E

Art. 371-D covers local cadres, education and the tribunal for Andhra Pradesh and (since 2014) Telangana. Art. 371-E only lets Parliament set up a Central University in Andhra Pradesh. *Rule: 371-D = jobs, admissions, tribunal; 371-E = Central University.*

Trap 2 · Sikkim: 30 or 32 members

Art. 371-F says the Sikkim Assembly has not less than 30 members. The recent-events part of the handout speaks of a 32-member Assembly. *Rule: 30 is the constitutional minimum; 32 is the present strength.*

Trap 3 · Minimum Assembly strength

Sikkim (371-F), Arunachal (371-H) and Goa (371-I) need not less than 30 members; Mizoram (371-G) needs not less than 40. *Rule: only Mizoram has 40; the other three have 30.*

Trap 4 · Hill Areas Committee is not a Sixth Schedule council

The Manipur Hill Areas Committee (371-C) is only consultative. The Sixth Schedule gives real autonomy to tribal areas in four north-eastern states. *Rule: 371-C committee advises; Sixth Schedule governs.*

QUICK QUIZ

Q1. How many states are covered by Articles 371 to 371J in Part XXI, according to the handout?

1. 8
2. 10
3. 12
4. 14

Q2. Article 371-A (13th Amendment Act, 1962) relates to which state?

1. Assam
2. Manipur
3. Mizoram
4. Nagaland

Q3. Which pair of Articles protects customary law and land ownership from Acts of Parliament unless the Assembly decides?

1. 371-A and 371-G
2. 371-B and 371-C
3. 371-D and 371-J
4. 371-F and 371-I

Q4. The Tuensang regional council under Article 371-A has how many members?

1. 25
2. 30
3. 35
4. 40

Q5. Article 371-D provides for an Administrative Tribunal whose jurisdiction is vested exclusively, outside the High Court, in which court?

1. Supreme Court
2. High Court of Telangana
3. National Green Tribunal
4. Central Administrative Tribunal

Q6. Which Article provides that the Sikkim Legislative Assembly shall have not less than 30 members and one Lok Sabha seat?

1. 371-E
2. 371-F
3. 371-G
4. 371-H

MY NOTES

Q7. Article 371-J (98th Amendment Act, 2012) relates to the development board for which region?

1. Vidarbha
2. Hyderabad-Karnataka
3. Marathwada
4. Saurashtra

Q8. Article 239AA empowers Delhi NCT to legislate on State and Concurrent List subjects excluding which three?

1. Police, public order, land
2. Police, health, land
3. Public order, education, land
4. Land, trade, police

Q9. Special Category Status provides enhanced financial assistance to how many States, according to the handout?

1. 5
2. 8
3. 11
4. 12

Q10. Which type of asymmetry does Article 371 represent?

1. Vertical asymmetry
2. Horizontal asymmetry
3. Fiscal asymmetry only
4. Judicial asymmetry

Q11. The Hill Areas Committee under Article 371-C is, in the handout's words,

1. A legislative body like the Sixth Schedule councils
2. A consultative body
3. An Administrative Tribunal
4. A regional council of 35 members

Answers: Q1 c, Q2 d, Q3 a, Q4 c, Q5 a, Q6 b, Q7 b, Q8 a, Q9 c, Q10 b, Q11 b

MY NOTES

52 Official Language

CHAPTER 52 · HANDOUT (PART XVII, ARTICLES 343 TO 351)

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

EXAM LENS

Prelims hooks

- no National Language
- Article 343 numerals and 15 years
- 343(3)
- Article 344 Commission
- 345, 346, 347
- 348
- 350A and 350B
- 351
- 22 languages and when each was added
- OLA 1963 sections
- classical language list
- Bhashini.
- Handout stresses: Articles 343 to 351 grouped in four heads A to D (Section 3)
- Handout stresses: Eighth Schedule: 22 languages with the 21st, 71st and 92nd Amendment additions (Section 4)
- Handout stresses: Official Languages Act, 1963: Sections 3, 3(3), 4, 5 and the 1967 amendment giving non-Hindi states a veto (Section 5)
- Handout stresses: Classical languages list and the October 2024 addition (total 11) (Section 6)
- Handout stresses: No PYQ section in this handout (Whole chapter)

Mains hooks

- none quoted in the material
- Likely angle: official versus national language, Munshi-Ayyangar compromise, language as a fault line in federalism, the Three-Language Formula and technology as a bridge.

India chose a bilingual, permanent compromise: Hindi as the Union's official language, English as a safety valve, and every Scheduled language recognised.

MY NOTES

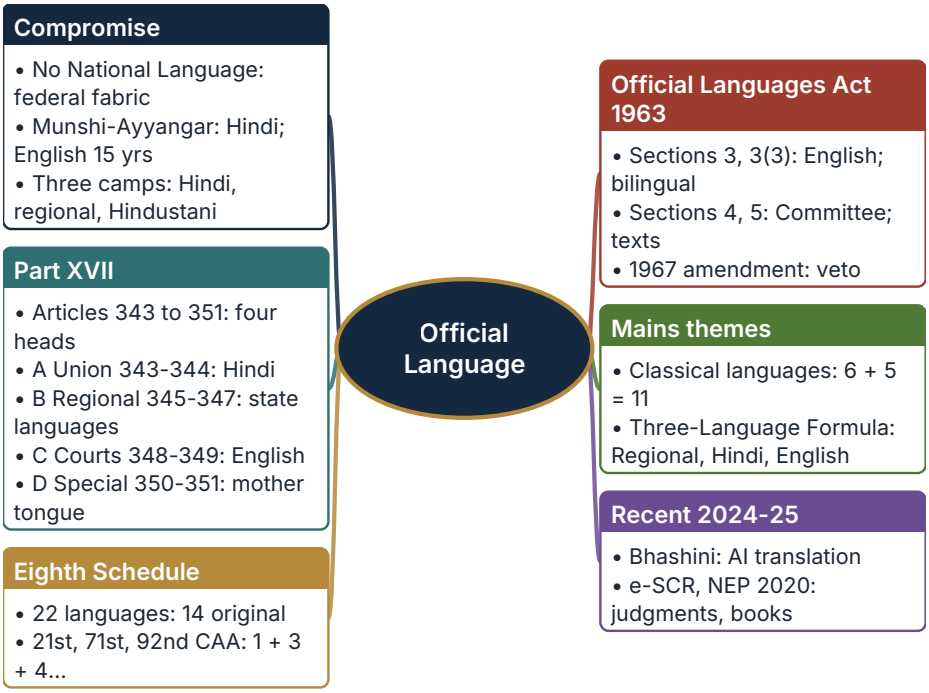
IN SIMPLE WORDS

- India has **no national language**. **Part XVII (Arts. 343-351)** deals with the **Official Language**. The **Munshi-Ayyangar Formula** was the compromise that avoided a 'national' language.
- **Hindi in Devanagari script** is the official language of the Union (**Art. 343**) but **international numerals** are used. **English** continued for **15 years** (till 1965) and Parliament may extend it.
- The **Official Languages Act, 1963** let English continue in addition to Hindi. The **1967 amendment** says English cannot be dropped for Union-state and state-state talks until **all non-Hindi states** pass resolutions: a permanent **veto**.
- The articles fall into four heads: **Union** (343-344), **Regional** (345-347), **Judiciary and texts of laws** (348-349) and **Special directives** (350-351).
- **English** is the language of the **Supreme Court and High Courts** and of authoritative law texts until Parliament decides otherwise. A Governor, with the President's consent, can allow Hindi or the state language in High Court proceedings, but **judgments and decrees stay in English**.
- The **Eighth Schedule** lists **22** languages (14 at first). There are now **11 classical languages** after the October 2024 additions.

Key term	In plain words
Official language	The language of government business; the Constitution names Hindi (Devanagari) for the Union, not a national language
Munshi-Ayyangar Formula	Compromise by K.M. Munshi and N. Gopalaswamy Ayyangar: Hindi official, English for 15 years, international numerals
Associate language	English, kept beside Hindi after 1965 under the Official Languages Act, 1963
Diglot system	The two-language (Hindi and English) way the Central Government works
Link language	English between Union and states or between states that have not adopted Hindi
Eighth Schedule	List of 22 recognised languages; helps representation in the Official Language Commission and use in competitive exams
Three-Language Formula	Regional language, Hindi and English; meant to bridge the language divide
Classical language	A language of high antiquity (1500-2000 years), ancient literature and an original literary tradition

MY NOTES

MEMORY MAP: OFFICIAL LANGUAGE



MNEMONIC · FOUR HEADS OF PART XVII

Unity Requires Joint Speech

- **U** Union language (Arts. 343-344)
- **R** Regional languages (Arts. 345-347)
- **J** Judiciary and texts of laws (Arts. 348-349)
- **S** Special directives (Arts. 350-351)

A united country needs shared speech: the four heads of the language articles in order. (Memory aid, not from the handout.)

MNEMONIC · LANGUAGES ADDED TO THE EIGHTH SCHEDULE AFTER 1967

Kind Mothers Nurture Brave Daughters, Mighty Sons

- **K** Konkani (71st Amendment, 1992)
- **M** Manipuri (71st, 1992)
- **N** Nepali (71st, 1992)
- **B** Bodo (92nd Amendment, 2003)
- **D** Dogri (92nd, 2003)
- **M** Maithili (92nd, 2003)
- **S** Santhali (92nd, 2003)

First three words are the 1992 languages, last four are the 2003 languages; Sindhi (1967) came before these. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · ORIGINAL SIX CLASSICAL LANGUAGES IN YEAR ORDER

Timeless Songs Tell Kings' Magnificent Odysseys

- **T** Tamil (2004)
- **S** Sanskrit (2005)
- **T** Telugu (2008)
- **K** Kannada (2008)
- **M** Malayalam (2013)
- **O** Odia (2014)

Ancient songs and epics, in year order; five more were added in October 2024. (Memory aid, not from the handout.)

MNEMONIC · MUNSHI-AYYANGAR FORMULA: PILLARS OF ARTICLE 343

O P E N

- **O** Official language: Hindi in the Devanagari script
- **P** Parliament may allow English even after 15 years
- **E** English continues for official purposes for 15 years (until 1965)
- **N** Numerals: international form of Indian numerals

OPEN: the formula kept the door OPEN for English. Four pillars of Art 343; order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · RATIONALE OF THE OFFICIAL LANGUAGE POLICY

D E S I

- **D** Diversity preserved (Eighth Schedule, regional literatures)
- **E** Efficiency in administration: one standard language between Union and States
- **S** Stability: English as a safety valve against linguistic sub-nationalism
- **I** Integration: common identity through Hindi (Art 351), English kept as associate

DESI: a policy for a land of many tongues. Four goals; order is rearranged for memory. (Memory aid, not from the handout.)

WHY "OFFICIAL" AND NOT "NATIONAL"

- Language was **one of the most divisive issues after Independence**. The "Munshi-Ayyangar Formula" was the compromise to **avoid a national language** and adopt an "**Official Language**". The Constitution-makers did **not designate any "National Language"** to preserve the federal fabric. **Part XVII (Articles 343 to 351)** deals exclusively with Official Languages.

MY NOTES

RATIONALE AND OBJECTIVES ("PRAGMATIC FEDERALISM")

Goal	What it means
Administrative efficiency	A standard language between Union and States so governance does not stall in a "Babel of tongues"
National integration	A common identity through Hindi (Article 351) while avoiding the "majoritarian trap" by retaining English as an associate language
Preservation of diversity	The Eighth Schedule shows "Indian-ness" is not monolithic; a platform for regional literatures
Socio-political stability	English acts as a "safety valve" against linguistic sub-nationalism in non-Hindi regions, for example the anti-Hindi agitations of the 1960s

- **Memory aid (Four goals):** **A**dministrative efficiency, **N**ational integration, **P**reservation of diversity, **S**tability: "**A**ll **N**eed **P**eaceful **S**peech."

ALSO IN THE HANDOUT

- Named after its principal architects, K.M.

HISTORICAL CONTEXT AND THE MUNSHI-AYYANGAR FORMULA

- During drafting (1947-1949) the Assembly was deeply divided over the "National Language".

THREE CAMPS IN THE ASSEMBLY

- **Pro-Hindi group:** Hindi in Devanagari script as the sole national language immediately
- **Regional or non-Hindi group:**
  - Feared "imposition" of Hindi
  - Preferred English for stability or regional languages
- **Compromise seekers:** Suggested "Hindustani" (a blend of Hindi and Urdu) as middle ground
- To prevent a deadlock, **K.M. Munshi and N. Gopalaswamy Ayyangar** proposed a "political formula". It avoided the term "National Language" and focused on the "**Official Language**"
- Its core pillars became **Article 343**

FEATURES OF THE FORMULA

Feature	Decision
Official Language	Hindi in the Devanagari script, official language of the Union
Transition period	English continues for all official purposes for **15 years (until 1965)**

MY NOTES

Feature	Decision
Numerals	**International form of Indian numerals** (1, 2, 3...) rather than Devanagari numerals
Parliamentary power	After 15 years Parliament could legislate to allow continued use of English (which led to the **Official Languages Act, 1963**)

SIGNIFICANCE AND LEGACY

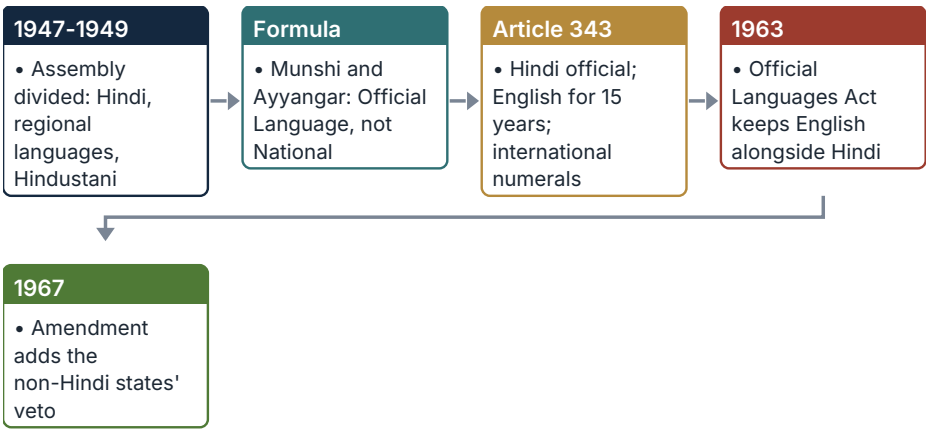
- **Unity in diversity**: a 15-year "cooling-off" period prevented a linguistic split.
- **Linguistic secularism**: "Official" rather than "National" theoretically puts all Indian languages on an equal footing.
- **The 1963 extension**: as the 15-year deadline neared, massive anti-Hindi protests (especially in Tamil Nadu) made the government use the formula's powers so English remained an "associate" official language **indefinitely**.
- **Today**:
  - **Hindi Diwas (14 September)** commemorates the day in **1949** when the Constituent Assembly adopted this formula
  - The reason for a **bilingual (Hindi and English)** system in Central administration

HOW THE COMPROMISE UNFOLDED

- **1947–1949**: Assembly divided: Hindi, regional languages, Hindustani
- **Formula**: Munshi and Ayyangar: Official Language, not National
- **Article 343**:
  - Hindi official
  - English for 15 years
  - International numerals
- **1963**: Official Languages Act keeps English alongside Hindi
- **1967**: Amendment adds the non-Hindi states' veto

MY NOTES

HOW THE COMPROMISE UNFOLDED



- **Memory aid (Formula pillars): O**fficial Hindi, **T**ransition 15 years, **N**umerals international, **P**arliament's power: "**O**ld **T**ricks **N**ever **P**ersist."
- **Shortcut: Formula in a line. Hindi (Devanagari) + English for 15 years + international numerals + Parliament may extend English.**

ALSO IN THE HANDOUT

- Compromise Seekers: Suggested "Hindustani" (a blend of Hindi and Urdu) as a middle ground.

CONSTITUTIONAL PROVISIONS (PART XVII)

- Four heads, A to D.

A. LANGUAGE OF THE UNION (ARTICLES 343-344)

- **Article 343**:
  - Hindi in Devanagari is the official language of the Union
  - Numerals are the **international form of Indian numerals**
- **Initial transition**: English continues for all official purposes for **15 years (until 1965)**.
- **Article 343(3)**: Parliament may provide for continued use of English even after 15 years.
- **Article 344**: appointment of a **Commission and a Committee of Parliament** to recommend progressive use of Hindi and restrictions on English.

B. REGIONAL LANGUAGES (ARTICLES 345-347)

- **Article 345**: a State Legislature may adopt any one or more languages in use in the state, or Hindi, as its official language (example: **Andhra Pradesh chose Telugu**).
- **Article 346**: language for communication **between States and between a State and the Union** is the Union's official language (English or Hindi).

MY NOTES

- **Article 347**: on demand, the **President** may recognise a language spoken by a substantial section of a state's population for official purposes in that state.

C. JUDICIARY AND TEXTS OF LAWS (ARTICLES 348-349)

- **Article 348**: until Parliament provides otherwise, **English** is the language for all proceedings in the **Supreme Court and every High Court**, and for authoritative texts of all **Bills, Acts, Ordinances and Rules**.
- **High Court exception**: with the **President's consent**, a **Governor** can authorise Hindi or the state's official language in High Court proceedings, but **judgments and decrees must still be in English**.

D. SPECIAL DIRECTIVES (ARTICLES 350-351)

- **Article 350**: redress of grievances in any language used in the Union or State.
- **Article 350A**: duty of the State to give facilities for **instruction in mother tongue at the primary stage**.
- **Article 350B**: **Special Officer for Linguistic Minorities**, appointed by the President.
- **Article 351**: directive to the Union to **promote the spread and development of Hindi** so it can serve as a medium for India's composite culture.

ARTICLES AT A GLANCE

Head	Articles	Subject
A Union	343	Hindi (Devanagari), international numerals, English 15 years
A Union	343(3)	Parliament may continue English
A Union	344	Commission and Committee of Parliament
B Regional	345	State official language(s)
B Regional	346	Inter-State and State-Union communication
B Regional	347	President may recognise a language on demand
C Courts	348	English in SC, HCs and law texts; HC exception with President's consent
D Special	350	Grievance redress in any language
D Special	350A	Mother-tongue instruction at primary stage
D Special	350B	Special Officer for Linguistic Minorities

MY NOTES

Head	Art-icles	Subject
D Special	351	Promote Hindi

- **Memory aid (Four heads):** **U**nion (343-344), **R**egional (345-347), **C**ourts (348-349), **S**pecial (350-351): "**U**nited **R**egions **C**hoose **S**peech."
- **Shortcut: Article ladder. 343 Hindi, 344 Commission, 345 State, 346 inter-state link, 347 President recognises, 348 English in courts, 350 grievances, 350A mother tongue, 350B Special Officer, 351 spread Hindi.**

THE EIGHTH SCHEDULE

- The Eighth Schedule lists the languages recognised by the Constitution
- There are **22** today. Its significance: a platform for the **representation of these languages in the Official Language Commission** and for **use in competitive exams**

GROWTH FROM 14 TO 22

Stage	Languages
Original (14)	Assamese, Bengali, Gujarati, Hindi, Kannada, Kashmiri, Malayalam, Marathi, Odia, Punjabi, Sanskrit, Tamil, Telugu, Urdu
21st CAA, 1967	**Sindhi** added
71st CAA, 1992	**Konkani, Manipuri, Nepali** added
92nd CAA, 2003	**Bodo, Dogri, Maithili, Santhali** added

- **Shortcut: The arithmetic. 14 + 1 + 3 + 4 = 22.** Order of additions: Sindhi, the "KMN" trio, the "BDMS" four.
- **Memory aid (Additions in order):** **S**indhi (1967), **K**onkani, **M**anipuri, **N**epali (1992), **B**odo, **D**ogri, **M**aithili, **S**anthali (2003): "**S**ix **K**ind **M**en **N**ever **B**ring **D**ull **M**aps, **S**ir."

ALSO IN THE HANDOUT

- Original (14): Assamese, Bengali, Gujarati, Hindi, Kannada, Kashmiri, Malayalam, Marathi, Odia, Punjabi, Sanskrit, Tamil, Telugu, and Urdu.

OFFICIAL LANGUAGES ACT, 1963

- The Act ensures **continued use of English alongside Hindi** as the 15-year deadline (1965) approached

MY NOTES

- It addressed the anxiety of non-Hindi speaking states, particularly in South India. It fundamentally changed the "sunset clause" of English in the original Constitution

KEY PROVISIONS

Section	Provision
Section 3	English **"may"** continue in addition to Hindi for all official purposes of the Union and for business in Parliament **after 26 January 1965**
Section 3(3)	**Mandatory bilingualism**: both Hindi and English for resolutions, general orders, rules and notifications; administrative and other reports; contracts, agreements, licences, permits and tender forms
Section 4	**Committee on Official Language**: a Parliamentary Committee of **30 members** to review progress of Hindi and report to the President
Section 5	Authorised **Hindi translation** of Central Acts and Ordinances

THE 1967 AMENDMENT: THE "INDEFINITE" EXTENSION

- The 1963 Act used "may", and many feared it was too vague and Hindi could still be imposed. After **violent anti-Hindi protests in 1965**, the Act was amended in **1967**.
- The **"Veto" provision**: use of English for communication between the Union and states (or between states) **cannot be discontinued** until a **resolution is passed by the Legislatures of all the states which have not adopted Hindi** as their official language.
- Effect: a **permanent veto** for non-Hindi speaking states over removing English.

IMPACT ON ADMINISTRATION (THE "DIGLOT" SYSTEM)

Area	Language used
Parliament	Both Hindi and English (with simultaneous translation)
Central Government offices	Files noted in either language; translations where necessary
Inter-State communication	English is the link language for states that have not adopted Hindi
Judiciary	Basis for using Hindi or regional languages in High Courts (with Presidential consent)

- **Shortcut: OLA sections. 3 = English may continue, 3(3) = bilingual documents, 4 = Committee of 30, 5 = Hindi legal texts.** Climb the numbers: permission, papers, committee, translation.

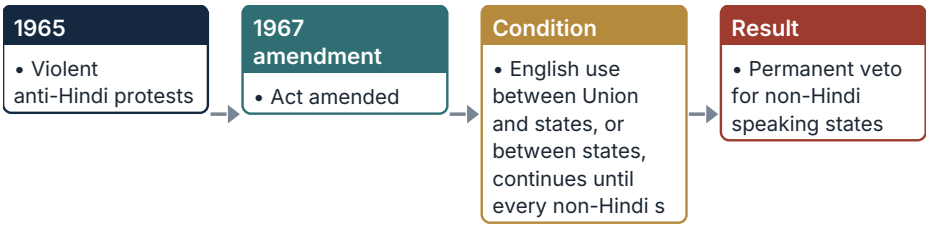
THE VETO

- **1965**: Violent anti-Hindi protests

MY NOTES

- **1967 amendment**: Act amended
- **Condition**: English use between Union and states, or between states, continues until every non-Hindi state's Legislature passes a resolution to end it
- **Result**: Permanent veto for non-Hindi speaking states

THE VETO



HANDOUT ALERT

Handout alert: The handout describes the 1963 extension under the Formula as forced by "massive anti-Hindi protests (especially in Tamil Nadu)" as the deadline approached, while the Act section places the **violent protests in 1965** and the **veto amendment in 1967**. For dates use: **Act 1963, protests 1965, amendment 1967**.

ALSO IN THE HANDOUT

- Section 3: Stated that English "may" continue to be used in addition to Hindi for all official purposes of the Union and for transaction of business in Parliament even after January 26, 1965. 21.Section 3(3) - Mandatory Bilingualism: Compelled the use of both Hindi and English for specific documents, including:
- Section 5 - Legal Texts: Provided for the authorized Hindi translation of Central Acts and Ordinances.

SIGNIFICANCE AND MAINS PERSPECTIVE

- The Official Languages Act is described as the "**statutory soul**" of language policy: it moved India from a "Hindi-only" goal to a **permanent bilingual reality**, so linguistic diversity does not become a barrier to administration or careers for non-Hindi speakers.
- **Official versus national**: India has **no national language**, a deliberate "Status Quo" so no linguistic group feels marginalised.
- **Classical language status**: criteria are **high antiquity (1500-2000 years)**, a body of ancient literature and an original literary tradition.
- **Federalism**:
  - Language is a "**fault line**"
  - The **Three-Language Formula (Regional, Hindi, English)** aims to bridge it but faces implementation challenges

MY NOTES

CLASSICAL LANGUAGES

- **Earlier list in the handout (6):** Tamil, Sanskrit, Telugu, Kannada, Malayalam, Odia
- **Added October 2024 (5):** Marathi, Pali, Prakrit, Assamese, Bengali: total now 11

> **HANDOUT ALERT**
> Handout alert: The Mains Perspective lists **six** current classical languages, but the Recent Trends section says the **October 2024** Cabinet decision brought the total to **11**. Use **11** (the six plus the five added in October 2024) as current.

- **Memory aid (Classical six):** **T**amil, **S**anskrit, **T**elugu, **K**annada, **M**alayalam, **O**dia: "**T**hese **S**cripts **T**ell **K**nowledge, **M**any **O**ld." Five added: **M**arathi, **P**ali, **P**rakrit, **A**ssamese, **B**engali.

RECENT TRENDS (2024-25) AND WAY FORWARD

- Linguistic policy has shifted from **"translation" to "technological empowerment"**.

RECENT DEVELOPMENTS

Item	Detail
Classical languages (Oct 2024)	Union Cabinet added Marathi, Pali, Prakrit, Assamese and Bengali; total **11**; honours heritages beyond Sanskrit and Tamil
Project Bhashini	Under the **National Language Translation Mission**; AI real-time translation in all **22 scheduled languages**; bridges the digital divide
Judiciary in vernacular	Supreme Court (through the **e-SCR portal**) and High Courts translate judgments into regional languages; former CJI DY Chandrachud: "justice must be accessible in the language of the common man"
Educational reform (NEP 2020)	**Bharatiya Bhasha Pustak Scheme (2025)**: textbooks for technical and higher education in Indian languages, challenging the hegemony of English

WAY FORWARD

- **Harmonious implementation**:
  - No "imposing" Hindi
  - Promote Hindi as a link language by enrichment from other Indian languages (Article 351)
- **Technological leverage**: scale AI like Bhashini so language never blocks access to schemes like Direct Benefit Transfers.
- **Strengthen the Three-Language Formula**:
  - Implement in spirit
  - North Indians learn South Indian languages and vice versa

MY NOTES

- **Empower the Eighth Schedule**: substantial funding for scheduled languages to develop modern scientific and legal terminology.
- **Conclusion:** Language policy is a "**delicate social contract**", balancing the functional need for a link language with the constitutional duty to protect linguistic minorities. Success depends on making multilingualism an asset for governance rather than a liability.
- **Memory aid (Way forward four): H**armonious Hindi, **T**echnology (Bhashini), **S**trengthen three-language formula, **E**mpower Eighth Schedule: "**H**elp **T**hem **S**peak **E**asily."

ALSO IN THE HANDOUT

- ## CHAPTER: OFFICIAL LANGUAGE ### Introduction Language is a sensitive issue in a diverse country like India.
- This signifies an effort to honor diverse historical heritages beyond just Sanskrit or Tamil.
- As India moves towards Viksit Bharat, its success will depend on its ability to ensure that no citizen is disenfranchised by their mother tongue, making multilingualism an asset for governance rather than a liability.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 74, OFFICIAL LANGUAGE

- Union language, more detail:
  - In 1955 the President appointed the Official Language Commission under B.G. Kher (report 1956)
  - A Parliament committee under Gobind Ballabh Pant examined it in 1957. A second commission due in 1960 was never appointed
- The Constitution asked for a commission at the end of five years and again at ten years from commencement, with members for the Eighth Schedule languages, and a Parliament committee of 30 (20 Lok Sabha, 10 Rajya Sabha).
- States:
  - Until a state legislature adopts a language, English continues as its official language. A state's choice is not limited to the Eighth Schedule. Two or more states may agree to use Hindi between themselves
  - Hindi sent to a non-Hindi state needs an English translation
- Courts and laws: a state legislature may prescribe another language for its Acts and rules but an English translation must be published. The 1963 Act makes Hindi translations of President-published Acts authoritative, and every Bill in Parliament comes with a Hindi translation.
- Parliament has made no provision for Hindi in the Supreme Court, so it hears only petitions and appeals in English. The

MY NOTES

Authorised Translations (Central Laws) Act, 1973 makes translations in Eighth Schedule languages (other than Hindi) authoritative in that language.

- Arts. 350A and 350B were added by the 7th Amendment (1956) on the States Reorganisation Commission's advice. Art. 350: a representation cannot be rejected because it is not in the official language.
- Art. 351: Hindi should be enriched from Hindustani and Eighth Schedule languages, drawing vocabulary mainly from Sanskrit and then other languages. The Eighth Schedule has two purposes: representation in the Official Language Commission and enriching Hindi. The 96th Amendment (2011) changed 'Oriya' to 'Odia'.
- The Parliament Committee on Official Language (30 members:
  - 20 Lok Sabha, 10 Rajya Sabha) was set up in 1976
  - By convention the Union Home Minister is elected Chairman. Classical status as a category began in 2004
  - Benefits are two international awards, a Centre of Excellence and UGC professional chairs
- Lakshmikanth differs: compulsory English in some cases. It says the 1967 amendment made English compulsory alongside Hindi for listed papers (resolutions, general orders, rules, notifications, reports, contracts, licences and similar), whereas the handout places this under Section 3(3) of the Act. Use the handout's section number in class.
- Lakshmikanth differs:
  - The Committee. It says the Act asked for the Committee to be set up after ten years (it came in 1976)
  - The handout cites Section 4 and gives no date. Also LK counts six classical languages, which is the older list
  - Use 11 (handout, October 2024)

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Does India have a National Language?	No. The Constitution-makers chose "Official Language" to preserve the federal fabric; Part XVII (Articles 343-351).
Who formulated the compromise?	K.M. Munshi and N. Gopalaswamy Ayyangar: the Munshi-Ayyangar Formula.

Three camps in the Constituent Assembly?	Pro-Hindi (Devanagari, sole national language), non-Hindi (feared imposition), compromise seekers (Hindustani).
Core pillars of the Formula (Article 343)?	Hindi in Devanagari official; English for 15 years (until 1965); international numerals; Parliament may allow continued English.
When is Hindi Diwas and what does it mark?	14 September; the 1949 adoption of the formula by the Constituent Assembly.
Article 343(3)?	Parliament may provide for continued use of English after 15 years.
Article 344?	A Commission and a Committee of Parliament to recommend progressive use of Hindi and restrictions on English.
Articles 345, 346, 347?	345 state official language (AP chose Telugu); 346 inter-State and State-Union language; 347 President may recognise a language on demand.
Article 348?	English in SC, all HCs and for Bills, Acts, Ordinances, Rules; Governor may authorise Hindi or state language in HC proceedings with President's consent, but judgments and decrees remain in English.
Articles 350, 350A, 350B?	Grievance redress in any language; mother-tongue instruction at primary stage; Special Officer for Linguistic Minorities.
Article 351?	Union to promote the spread and development of Hindi as a medium for India's composite culture.
How many Eighth Schedule languages and how did the count grow?	22: 14 original plus Sindhi (21st CAA, 1967), Konkani, Manipuri, Nepali (71st, 1992), Bodo, Dogri, Maithili, Santhali (92nd, 2003).
List the 14 original languages.	Assamese, Bengali, Gujarati, Hindi, Kannada, Kashmiri, Malayalam, Marathi, Odia, Punjabi, Sanskrit, Tamil, Telugu, Urdu.
What is Section 3 of OLA 1963?	English may continue in addition to Hindi for Union official purposes and Parliament's business after 26 January 1965.

MY NOTES

What is Section 3(3)?	Mandatory bilingualism: resolutions, general orders, rules, notifications, reports, contracts, agreements, licences, permits, tender forms.
Sections 4 and 5 of OLA?	Section 4: Committee on Official Language (30 members) reporting to the President. Section 5: authorised Hindi translation of Central Acts and Ordinances.
What did the 1967 amendment add?	A veto: English between Union and states, or between states, continues until all non-Hindi-adopting state Legislatures pass resolutions to end it.
What is the link language for states that haven't adopted Hindi?	English, for inter-State communication.
Classical language criteria and list?	Antiquity of 1500-2000 years, ancient literature, original tradition: Tamil, Sanskrit, Telugu, Kannada, Malayalam, Odia, plus (Oct 2024) Marathi, Pali, Prakrit, Assamese, Bengali = 11.
What is the Three-Language Formula?	Regional language, Hindi, English; aims to bridge the language fault line but faces implementation challenges.
What is Project Bhashini?	AI real-time translation in all 22 scheduled languages under the National Language Translation Mission.
What is the Bharatiya Bhasha Pustak Scheme (2025)?	Textbooks for technical and higher education in Indian languages, under NEP 2020.

Trap 1 · Official versus national language

The Constitution-makers deliberately gave no 'National Language' to protect the federal fabric. Hindi is only the Union's official language. *Rule: India has an official language, not a national language.*

Trap 2 · How the Eighth Schedule grew to 22

14 original languages, then Sindhi (21st Amendment, 1967), Konkani, Manipuri and Nepali (71st, 1992), and Bodo, Dogri, Maithili and Santhali (92nd, 2003). *Rule:* 14 + 1 + 3 + 4 = 22.

Trap 3 · High Court language

With the President's consent a Governor can authorise Hindi or the state language for High Court proceedings, but judgments and decrees must still be in English. *Rule: proceedings can change; judgments and decrees stay in English.*

MY NOTES

Trap 4 · Six or eleven classical languages

The original six are Tamil, Sanskrit, Telugu, Kannada, Malayalam and Odia. In October 2024 Marathi, Pali, Prakrit, Assamese and Bengali were added. *Rule*: 6 + 5 = 11 *classical languages.*

QUICK QUIZ

Q1. Which Articles of the Constitution deal with Official Languages in Part XVII?

1. 331 to 337
2. 343 to 351
3. 352 to 360
4. 365 to 372

Q2. Under Article 343, what form of numerals is used for official purposes?

1. Devanagari numerals
2. Roman numerals
3. International form of Indian numerals
4. Regional numerals

Q3. Article 350B provides for

1. Instruction in mother tongue
2. A Special Officer for Linguistic Minorities
3. A Commission on Hindi
4. Recognition of a language by the President

Q4. Under Article 348, the language of all proceedings in the Supreme Court and High Courts, until Parliament provides otherwise, is

1. Hindi
2. The state's official language
3. English
4. Sanskrit

Q5. How many languages are in the Eighth Schedule?

1. 14
2. 18
3. 22
4. 24

Q6. Which Amendment added Konkani, Manipuri and Nepali to the Eighth Schedule?

1. 21st CAA, 1967
2. 71st CAA, 1992
3. 92nd CAA, 2003
4. 42nd CAA, 1976

Q7. Section 4 of the Official Languages Act, 1963 established

1. A Parliamentary Committee of 30 members
2. An Official Language Commission
3. Authorised Hindi texts of Acts
4. Mandatory bilingual contracts

Q8. The 1967 amendment to the Official Languages Act gave non-Hindi states

1. A veto against discontinuing English between the Union and states
2. The right to ban Hindi
3. A fixed 15-year extension
4. Exemption from Eighth Schedule

Q9. After the October 2024 decision, how many languages have classical status per the handout?

1. 6
2. 8
3. 11
4. 22

Q10. Project Bhashini provides real-time AI translation in

1. All 22 scheduled languages
2. Only Hindi and English
3. Classical languages only
4. The 14 original languages

MY NOTES

Q11. Article 346 prescribes the language for communication

1. Within a District
2. Between States, and between a State and the Union
3. In High Courts
4. In Parliament only

Answers: Q1 b, Q2 c, Q3 b, Q4 c, Q5 c, Q6 b, Q7 a, Q8 a, Q9 c, Q10 a, Q11 b

MY NOTES

CHAPTER 53 · HANDOUT (PART IX-B AND THE COOPERATIVE SECTOR)

53 The Cooperative Sector

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

EXAM LENS

Prelims hooks

- Article 19(1)(c)
- Article 43-B
- Part IX-B
- maximum 21 directors
- term 5 years
- co-opted members
- supersession 6 months
- Ministry of Cooperation 2021
- MSCS Act 2002 and 2022 Amendment
- Entry 32 and Entry 44
- BBSSL, NCOL, NCEL
- Tribhuvan Sahkari University.
- Handout stresses: 97th Constitutional Amendment Act, 2011: three changes (19(1)(c), 43-B, Part IX-B) (Section 3)
- Handout stresses: Part IX-B (Articles 243ZH to 243ZT) with an Article-by-Article table: 243ZI to 243ZT (Section 3)
- Handout stresses: State List Entry 32 versus Union List Entry 44 (MSCS) (Section 3)
- Handout stresses: National Cooperative Policy 2025, the 3-3-3 target and the three new societies BBSSL, NCOL, NCEL (Section 6)
- Handout stresses: No PYQ section in this handout (Whole chapter)

Mains hooks

- none quoted in the material
- Likely angle: cooperatives as inclusive growth, the 97th Amendment framework, regional imbalances, PACS and the National Cooperative Policy 2025.

Cooperatives move from a government-aided sector to a market-driven one, with constitutional status, the Ministry of Cooperation and a 2034 target to triple their GDP share.

MY NOTES

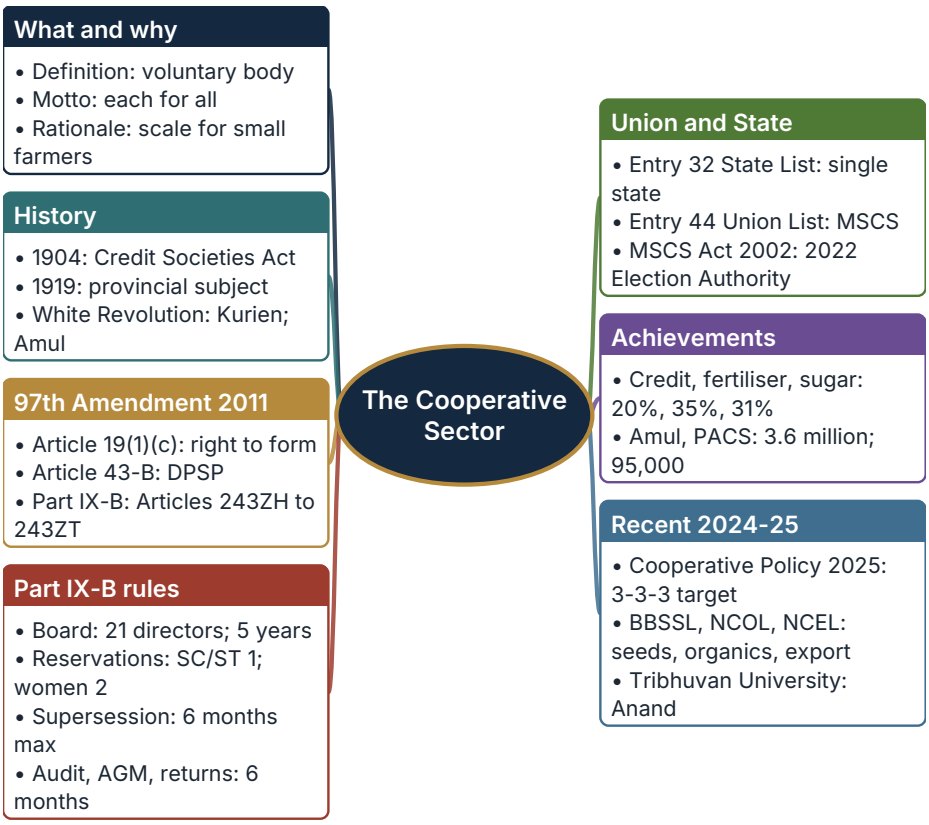
IN SIMPLE WORDS

- A **cooperative** is a voluntary, jointly owned and democratically run group: **'Each for all and all for each'**. The **Ministry of Cooperation** was created in **2021** ('Sahkar se Samriddhi').
- The **97th Amendment (2011)** gave constitutional status: the right to form societies in **Art. 19(1)(c)**, the directive principle **Art. 43-B**, and **Part IX-B (Arts. 243-ZH to 243-ZT)**.
- **State List Entry 32** covers cooperatives in one state (watched by the state **Registrar**). **Union List Entry 44** covers **multi-state** societies, under the **MSCS Act, 2002** (amended 2022: Co-operative Election Authority).
- Board rules: at most **21 directors**, **1 SC/ST** seat and **2 women** seats, a **5-year** term and up to **2 co-opted** experts who cannot vote in elections.
- Supersession can last at most **6 months**
- Audit, the annual general body meeting and returns each fall due within **6 months** of the financial year end
- The **National Cooperative Policy 2025** (replacing the 2002 policy) aims to **triple** the sector's share of GDP by **2034**.

Key term	In plain words
Multi-State Cooperative Society (MSCS)	Works in more than one state; governed by Parliament under Union List Entry 44
PACS	Primary Agricultural Credit Societies; give low-interest loans; over 95,000 serve rural credit
Functional directors	Board members who are not counted in the maximum of 21
Co-opted members	At most 2 experts in banking, management or finance; cannot vote or become office bearers
Supersession	Removing or suspending a board for default, negligence, stalemate or failed elections; at most 6 months
Registrar of Cooperative Societies	The state officer who supervises state cooperatives
Operation Flood	The White Revolution of the 1970s under Verghese Kurien (the Amul model)
BBSSL, NCOL, NCEL	New national cooperatives for seeds, organics and exports

MY NOTES

MEMORY MAP: THE COOPERATIVE SECTOR



MNEMONIC · THREE CHANGES BY THE 97TH AMENDMENT

Farmers Deserve Profit

- **F** Fundamental right: cooperative societies added to Art 19(1)(c)
- **D** Directive principle: new Art 43-B
- **P** Part IX-B (Arts 243-ZH to 243-ZT): new part

Cooperative farmers deserve profit: right, directive, new part, in handout order. (Memory aid, not from the handout.)

MNEMONIC · BOARD OF A COOPERATIVE: THE NUMBERS

S T O R M

- **S** SC or ST: 1 seat
- **T** Term: 5 years from election
- **O** Outside co-opted members: maximum 2, no vote in elections
- **R** Reserved seats for women: 2
- **M** Maximum 21 directors (functional directors not counted)

A board must weather the STORM of five numbers. Order is rearranged for memory. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · SIX-MONTH RULE IN PART IX-B

ARMS

- **A** Audit completed within 6 months of year end (243-ZM)
- **R** Returns filed within 6 months of year end (243-ZP)
- **M** Meeting (AGM) held within 6 months of year end (243-ZN)
- **S** Supersession or suspension: at most 6 months (243-ZL)

ARMS: Part IX-B has four 'arms' (audit, returns, meeting, suspension) and each runs on a 6-month clock. Order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · FEATURES OF COOPERATIVE SOCIETIES

CLOSE

- **C** Control by members: democratic, one member one vote
- **L** Limited liability
- **O** Open and voluntary membership
- **S** Service over profit
- **E** Economic participation: equitable capital, fair return

Members stay CLOSE to their cooperative: five features. Order is rearranged for memory. (Memory aid, not from the handout.)

WHAT A COOPERATIVE IS, AND WHY IT MATTERS

- A **Cooperative** is an **autonomous association of persons united voluntarily** to meet common economic, social and cultural needs through a **jointly owned and democratically controlled enterprise**.
- **Philosophy**: "Each for all and all for each."
- **Identity**: in **2021** the Government created the **Ministry of Cooperation** to realise "**Sahkar se Samriddhi**" (Prosperity through Cooperation).
- As India moves towards a **$5 trillion economy**, cooperatives are meant to keep growth inclusive.

RATIONALE AND OBJECTIVES

Objective	What it means
Credit accessibility	Low-interest loans through **PACS** (Primary Agricultural Credit Societies)
Market linkages	Eliminate middlemen: "fair price" for producers, "affordable price" for consumers
Economic growth	Linkages from local PACS to national level generate employment and strengthen the rural economy
Inclusivity	Empower women, ST/SC and small-scale artisans

MY NOTES

Objective	What it means
Democratic governance	One member, one vote

- In a country of small-holding farmers and fragmented producers, individual bargaining power is low
- Cooperatives give the **economies of scale** to compete with large corporations
- **Memory aid (Five objectives):** **C**redit, **M**arket linkages, **E**conomic growth, **I**nclusivity, **D**emocratic governance: "**C**ooperatives **M**ake **E**veryone's **I**ncome **D**ependable."

FEATURES AND HISTORICAL EVOLUTION

FEATURES OF COOPERATIVE SOCIETIES

Feature	Meaning
Voluntary and open membership	Available to all without discrimination of gender, social, racial, political or religious affiliation
Democratic member control	Controlled by members who set policies; **"One Member, One Vote"**
Economic participation	Members contribute equitably to capital and receive a fair return
Limited liability	Generally restricted to the capital they contributed
Service over profit	Primary objective is services to members, not profit for shareholders

- **Memory aid (Five features):** **V**oluntary membership, **D**emocratic control, **E**conomic participation, **L**imited liability, **S**ervice over profit: "**V**ery **D**emocratic, **E**qually **L**ocal **S**ervice."

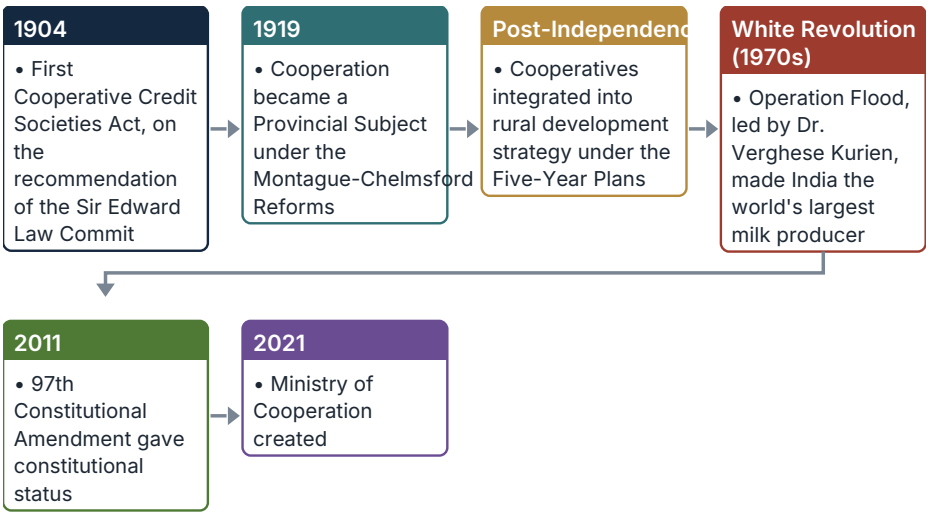
HISTORICAL EVOLUTION (THE HANDOUT SAYS "THREE DISTINCT PHASES")

TIMELINE OF THE MOVEMENT

- **1904**: **First Cooperative Credit Societies Act**, on the recommendation of the **Sir Edward Law Committee**
- **1919**: **Cooperation became a Provincial Subject** under the Montague-Chelmsford Reforms
- **Post-Independence**: Cooperatives integrated into rural development strategy under the **Five-Year Plans**
- **White Revolution (1970s)**: **Operation Flood**, led by **Dr. Verghese Kurien**, made India the world's largest milk producer via the **Amul model**
- **2011**: **97th Constitutional Amendment** gave constitutional status
- **2021**: **Ministry of Cooperation** created

MY NOTES

TIMELINE OF THE MOVEMENT



UNION AND STATE POWER

- **Union:**
  - Parliament governs **Multi-State Cooperative Societies (MSCS)** operating in more than one state
  - **MSCS Act, 2002** is the primary law
  - **Amendment Act, 2022** introduced the **Co-operative Election Authority** to oversee board elections for transparency
- **State:** State legislatures govern other cooperative societies through their own state acts
- The **Ministry of Cooperation (2021)** gives a separate administrative, legal and policy framework, **taking over these duties from the Ministry of Agriculture**.

> **HANDOUT ALERT**
> Handout alert: The handout says the movement evolved through **three distinct phases** but numbers only two (**Pre-Independence** and **Post-Independence**). The items after them (97th Amendment, MSCS Act and 2022 Amendment, Ministry of Cooperation 2021) are the later constitutional and institutional stage; treat them as the third phase when asked.

ALSO IN THE HANDOUT

- Pre-Independence Era- 1904: The first Cooperative Credit Societies Act was passed on the recommendation of the Sir Edward Law Committee.
- Post-Independence (Planned Era)- Five-Year Plans: Cooperatives were integrated into the rural development strategy.
- ## Features of Cooperative Societies Cooperatives are distinct from private companies or charitable organizations due to their unique operational principles: Q26.

MY NOTES

- By bridging the gap between individual effort and collective strength, the cooperative movement remains the most viable model for achieving sustainable development and economic democracy in India.

THE 97TH AMENDMENT AND PART IX-B

- The **97th Constitutional Amendment Act of 2011** is the **"Magna Carta"** of the sector. It made three changes:

THREE CRITICAL CHANGES

Change	Detail
Fundamental Right	Added **"cooperative societies"** to **Article 19(1)(c)** (right to form)
Directive Principle	Inserted **Article 43-B**: State to promote **voluntary formation, autonomous functioning and professional management**
New Part IX-B	**Articles 243-ZH to 243-ZT**, titled "The Co-operative Societies", for democratic and economically sound functioning

SEVENTH SCHEDULE ENTRIES

- **State List Entry 32:**
  - Cooperatives confined to a single state
  - Supervised by the **Registrar of Cooperative Societies (RCS)** of the state
- **Union List Entry 44: Multi-State Cooperative Societies (MSCS)** operating in more than one state

KEY PROVISIONS OF PART IX-B

Article	Subject	Provision
243ZI	Incorporation	State legislatures make laws for incorporation, regulation and winding-up on the basis of voluntary formation, democratic control and autonomous functioning
243ZJ	Board composition	**Maximum 21 directors**; functional directors are board members but excluded from the count of 21. **Reservations**: 1 seat for **SC or ST**; **2 seats for Women** on every board having members from these categories. **Term**: **5 years** from election for elected members and office bearers. **Co-opted members**: max **2** with expertise in banking, management or finance; they cannot vote in elections or be elected office bearers
243ZK	Election control	Superintendence, direction and control of electoral rolls and elections vest in a body provided by the State Legislature; elections must be held **before the current term expires**

MY NOTES

Article	Subject	Provision
243ZL	Supersession or suspension	**Maximum 6 months**; allowed for default, negligence, stalemate or failure to conduct elections. **Restriction**: a board cannot be superseded if there is **no Government shareholding, loan, financial assistance or guarantee**
243ZM	Audit of accounts	Audited **at least once every financial year** by an auditor or firm from a **state-approved panel**; audit completed within **6 months** of year end
243ZN	General body meetings	Annual general body meeting within **6 months** of close of the financial year
243ZO	Member rights	Right to access books, information and accounts; state provides for cooperative education and training
243ZP	Filing of returns	Within **6 months** of year end: annual report, audited accounts, surplus disposal plan, list of by-law amendments
243ZQ	Offences and penalties	False returns, disobeying summons, employers failing to pay deducted amounts, failing to hand over records, corrupt election practices
243ZR	Multi-State societies	Provisions apply, but references to "State Legislature or Government" read as **"Parliament or Central Government"**
243ZS	Union Territories	Provisions apply unless the **President directs otherwise** by notification
243ZT	Continuance of laws	Inconsistent existing laws stayed in force for only **one year** after the 97th Amendment Act (2011) unless amended sooner

- **Memory aid (Three changes): F**undamental Right 19(1)(c), **D**PSP 43-B, **P**art IX-B: "**F**ree **D**emocratic **P**artnerships."
- **Shortcut: Numbers of Part IX-B. 21 directors, 5 years, 2 co-opted, 1 SC/ST seat, 2 women seats, 6 months for supersession, audit, AGM and returns.** The only "one year" is 243ZT.
- **Shortcut: Article ladder. ZI incorporation, ZJ board, ZK election, ZL supersession, ZM audit, ZN general body, ZO member rights, ZP returns, ZQ offences, ZR multi-state, ZS Union Territories, ZT continuance of laws.** The suffix letters run I to T in this order.
- **Memory aid (Six months): S**upersession, **A**udit, **A**GM, **R**eturns: "**S**ix **A**ccounts **A**re **R**eviewed": all four capped at six months.

ALSO IN THE HANDOUT

- Reservations 1 seat for Scheduled Castes (SC) or Scheduled Tribes (ST);

MY NOTES

ACHIEVEMENTS

SIGNIFICANT ACHIEVEMENTS

Area	Detail
Economic contribution	**20%** of agri-credit, **35%** of fertiliser distribution, **31%** of sugar production
Food security	**IFFCO** (Indian Farmers Fertilizer Cooperative Limited) and **KRIBHCO** (Krishak Bharati Cooperative Limited) deliver farm inputs to the last mile
Dairy sector	**Amul** (**GCMMF**, Gujarat Cooperative Milk Marketing Federation Limited) supports **3.6 million milk producers**: a "Producer-led" model
Financial inclusion	Over **95,000 PACS**, the primary point of contact for credit in rural India

- **Shortcut: Numbers. 20-35-31** (credit, fertiliser, sugar), **3.6 million** producers, **95,000** PACS.
- **Memory aid (Contribution): C**redit 20%, **F**ertiliser 35%, **S**ugar 31%: "**C**ooperatives **F**eed **S**ociety."

RECENT DEVELOPMENTS (2024-25)

- **National Cooperative Policy 2025:** Unveiled in **mid-2025**, **replacing the 2002 version**. The **3-3-3 target**: **triple the cooperative sector's GDP contribution by 2034**. Mission pillars: strengthening foundations, tech-adoption and expansion into new sectors (Green Energy, Tourism, Insurance). **Model Cooperative Village**: **5 villages per tehsil** as "Centers of Excellence".

OTHER DEVELOPMENTS

Item	Detail
International Year of Cooperatives (IYC) 2025	UN declared 2025 the IYC; India hosted the **ICA Global Cooperative Conference** to showcase the Indian model
White Revolution 2.0	Empowering **women-led dairy cooperatives**
National Cooperative University	**Tribhuvan Sahkari University**, **Anand, Gujarat**, professional training
PACS as Common Service Centers (CSCs)	Expanding into petrol pumps, Jan Aushadhi Kendras and grain storage hubs

THREE SOCIETIES UNDER "SAHAKAR SE SAMRIDDHI"

Society	Focus	Goal
BBSSL (Bharatiya Beej Sahakari Samiti Limited)	Quality seed production to global standards	Reduce dependence on imported seeds; boost rural income

MY NOTES

Society	Focus	Goal
NCOL (National Cooperative Organics Limited)	Promote and market organic produce	Farmers get maximum value for organic goods
NCEL (National Cooperative Export Limited)	Export of surplus goods and services from the sector	Promote "Make in India" and "Atmanirbhar Bharat"

- **Memory aid (Three societies): B**BSSL (seeds), **N**COL (organics), **N**CEL (export): "**B**eej, **N**atural, **N**ikaas": seed, organic, export.

HANDOUT ALERT

Handout alert: **ICA Global Cooperative Conference** is dated "**Nov 2024/ Jan 2025**" in the handout (ambiguous). Say only that India hosted it around the International Year of Cooperatives. Also the university appears as "**Tribhuvan Sahkari University**" and later "**Tribhuvan Cooperative University**": same institution, use "Tribhuvan Sahkari University, Anand".

ALSO IN THE HANDOUT

- The UN declared 2025 as the International Year of Cooperatives.
- National Cooperative University: 'Tribhuvan Sahkari University' established in Anand, Gujarat, for professional training. 23.PACS as Common Service Centers (CSCs): Expanding PACS into petrol pumps, Jan Aushadhi Kendras, and grain storage hubs.
- NCOL (National Cooperative Organics Limited): - Focus: Promoting and marketing organic produce.
- NCEL (National Cooperative Export Limited): - Focus: Facilitating the export of surplus goods and services from the cooperative sector.

CHALLENGES AND WAY FORWARD

CHALLENGES

Challenge	Detail
Regional imbalances	Gujarat and Maharashtra have robust ecosystems; large agrarian states like Uttar Pradesh and Bihar struggle with dormant or poorly managed societies
Trust and certification hurdles	For NCOL: lack of affordable, widespread district-level testing labs makes it hard for small farmers to prove "organic" status to global buyers
Professional management gap	Many PACS lack expertise for modern supply chains, digital accounting and international trade compliance

MY NOTES

Challenge	Detail
Competition with corporate giants	National cooperatives now compete with private MNCs in seeds and FMCG; price competitiveness versus high farmer margins
Regulatory complexity	Coordination between the **Multi-State Cooperative Act (Union)** and various State Acts is a bureaucratic challenge for nationwide scaling

WAY FORWARD (ROADMAP TO 2030)

- The National Cooperative Policy 2025 addresses these gaps through what the handout calls **six strategic pillars**.
- **"Bharat" branding**: strengthen **Bharat Organics** and **Bharat Beej** brands for uniform identity and trust.
- **Digital integration (the "Cooperative Stack")**:
  - A national digital database for real-time tracking of procurement and payments
  - Integration with **ONDC** so local societies sell directly to consumers globally
- **Expansion to new sectors**: Renewable Energy (solar cooperatives), Health (cooperative pharmacies), Services (**Sahkar Taxi** aggregators).
- **Infrastructure creation**:
  - Organic testing labs in every district
  - A decentralised grain storage network at PACS level to reduce post-harvest losses
- **Educational support**: **Tribhuvan Cooperative University** to train professional managers.

> **HANDOUT ALERT**
> Handout alert: The handout says **six strategic pillars** but lists **five** bullets above. Do not invent a sixth; recall the five listed. Also the roadmap is headed "to **2030**" while the GDP-tripling target is **2034** and the vision is **2047**.

- **Vision:**
  - The evolution is from a "**government-aided**" sector to a "**market-driven**" powerhouse. Aim: **triple the cooperative sector's GDP share by 2034**
  - By **2047**, at least **one professional cooperative in every village**, making the sector the "**second engine**" of the Indian economy, prioritising individual self-respect and equitable profit-sharing over corporate consolidation
- **Memory aid (Challenges five): R**egional imbalance, **T**rust and certification, **P**rofessional management gap, **C**ompetition, **R**egulatory complexity: "**R**ural **T**raders **P**refer **C**lear **R**ules."

MY NOTES

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 73, CO-OPERATIVE SOCIETIES

- Art. 43-B says the State shall endeavour to promote voluntary formation, autonomous functioning, democratic control and professional management of cooperative societies.
- Art. 243-ZI says the law should rest on four principles: voluntary formation, democratic member-control, member-economic participation and autonomous functioning. Art. 243-ZH holds the definitions: 'board' is the governing body and 'office bearer' includes president, vice-president, chairperson, secretary and treasurer.
- Supersession grounds are five: persistent default, negligence, acts prejudicial to the society or members, stalemate in the board, and failure of the election body to hold elections. For cooperative banks other than multi-state ones the limit is one year. The administrator must hold elections within six months.
- Audit: the auditor is appointed by the general body from a panel approved by the State Government, and the audit report of an apex cooperative society is laid before the State Legislature.
- Returns also include a declaration about the date of the general body meeting and conduct of elections. An offence is an employer failing to pay a society the amount deducted from an employee within 14 days.
- Why the amendment: elections were postponed indefinitely, administrators stayed in charge for long, and management was not professional. The 97th Amendment commenced on 15 February 2012 and states were asked to amend their Acts before 14 February 2013. Existing inconsistent laws continued only until amended or one year, whichever is less.
- Rajendra N. Shah v. Union of India (Gujarat High Court, 2013):
  - Part IX-B was held ultra vires because the states had not ratified it under Art. 368
  - The changes to Art. 19(1)(c) and Art. 43-B were not affected
- Union of India v. Rajendra N. Shah (Supreme Court, 2021):
  - It upheld the High Court except that it did not strike down all of Part IX-B
  - Part IX-B is operative only for multi-state cooperative societies, in states and Union Territories
- Lakshmikanth differs:
  - How far Part IX-B applies. The handout presents Part IX-B as general law for all cooperatives

MY NOTES

- Lakshmikanth reports the 2021 ruling limiting it to multi-state societies. For the exam give the handout's provisions and add this ruling

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Define a cooperative.	An autonomous association of persons united voluntarily to meet common economic, social and cultural needs through a jointly owned, democratically controlled enterprise.
Cooperative philosophy and 2021 initiative?	"Each for all and all for each"; Ministry of Cooperation created in 2021 for "Sahkar se Samriddhi".
First Cooperative Credit Societies Act?	1904, on the recommendation of the Sir Edward Law Committee.
What happened in 1919 for cooperatives?	Cooperation became a Provincial Subject under the Montague-Chelmsford Reforms.
Who led Operation Flood and what did it achieve?	Dr. Verghese Kurien; made India the world's largest milk producer through the Amul model.
Five features of cooperative societies?	Voluntary and open membership; democratic member control (one member, one vote); economic participation; limited liability; service over profit.
Three critical changes by the 97th Amendment Act, 2011?	Article 19(1)(c) adds cooperative societies; Article 43-B DPSP; Part IX-B (243ZH to 243ZT).
State List versus Union List entries?	State List Entry 32: single-state cooperatives (RCS supervises). Union List Entry 44: Multi-State Cooperative Societies.
MSCS Act and 2022 change?	MSCS Act, 2002; Amendment Act 2022 introduced the Co-operative Election Authority.
Article 243ZI?	Incorporation: State laws for incorporation, regulation and winding-up.

Board composition under 243ZJ?	Max 21 directors (functional directors excluded); 1 SC/ST seat and 2 women seats; 5-year term; max 2 co-opted experts who cannot vote in elections or be office bearers.
Articles 243ZK and 243ZL?	ZK: election control by a body provided by the State Legislature, before term expires. ZL: supersession max 6 months; not allowed if no government shareholding, loan, assistance or guarantee.
Articles 243ZM, ZN, ZP time limits?	Audit (ZM), AGM (ZN) and returns (ZP): all within 6 months of financial year end.
Articles 243ZO and 243ZQ?	ZO: member rights to books and information; state provides cooperative education. ZQ: offences such as false returns, corrupt election practices.
Articles 243ZR, ZS, ZT?	ZR: multi-state societies read Parliament or Central Government for State bodies. ZS: UTs apply unless President directs otherwise. ZT: inconsistent laws lapse after one year.
Key numbers of cooperatives' contribution?	20% agri-credit; 35% fertiliser distribution; 31% sugar; Amul 3.6 million producers; over 95,000 PACS.
Expand IFFCO, KRIBHCO and GCMMF.	Indian Farmers Fertilizer Cooperative Limited; Krishak Bharati Cooperative Limited; Gujarat Cooperative Milk Marketing Federation Limited (Amul).
National Cooperative Policy 2025: key points?	Replaces the 2002 version; 3-3-3 target (triple GDP contribution by 2034); Model Cooperative Village (5 per tehsil); new sectors Green Energy, Tourism, Insurance.
What are BBSSL, NCOL and NCEL?	Bharatiya Beej Sahakari Samiti Limited (quality seeds); National Cooperative Organics Limited (organic marketing); National Cooperative Export Limited (exports).
What is PACS expansion into CSCs?	PACS expanding into petrol pumps, Jan Aushadhi Kendras and grain storage hubs.

MY NOTES

Name the university and its location.	Tribhuvan Sahkari University, Anand, Gujarat.
Main challenges of the sector?	Regional imbalances; trust and certification hurdles; professional management gap; corporate competition; regulatory complexity.
Way-forward elements in the handout?	Bharat branding; Cooperative Stack (national database, ONDC); new sectors (solar, pharmacies, Sahkar Taxi); infrastructure (organic labs, PACS grain storage); educational support.
2047 vision?	At least one professional cooperative in every village; the "second engine" of the economy.

Trap 1 · Entry 32 versus Entry 44

State List Entry 32 is for cooperatives within one state; Union List Entry 44 is for multi-state societies. *Rule: one state = 32 (State List); many states = 44 (Union List).*

Trap 2 · Counting the 21 directors

The maximum of 21 does not count functional directors, and the co-opted members (at most 2) cannot vote in elections or become office bearers. *Rule: 21 directors excludes functional directors; co-opted members have no vote in elections.*

Trap 3 · Two things from 2002

The MSCS Act is from 2002. The National Cooperative Policy 2025 replaces the 2002 policy, a different document. *Rule: MSCS Act 2002 is a law; the 2002 policy is the one replaced in 2025.*

Trap 4 · When a board cannot be superseded

A board cannot be superseded if there is no Government shareholding, loan, financial help or guarantee. Even otherwise the limit is 6 months. *Rule: no government money = no supersession; at most 6 months.*

QUICK QUIZ

Q1. The 97th Constitutional Amendment Act, 2011 added cooperative societies to which Article as a Fundamental Right?

1. Article 19(1)(a)
2. Article 19(1)(c)
3. Article 21
4. Article 43-B

Q2. Which Directive Principle was inserted by the 97th Amendment?

1. Article 40
2. Article 43
3. Article 43-B
4. Article 47

MY NOTES

Q3. Part IX-B of the Constitution covers which Articles?

1. 243A to 243O
2. 243P to 243ZG
3. 243ZH to 243ZT
4. 244 to 244A

Q4. Maximum number of directors on a cooperative board under Article 243ZJ, excluding functional directors?

1. 15
2. 21
3. 25
4. 30

Q5. The maximum period of supersession or suspension of a cooperative board under Article 243ZL is

1. 3 months
2. 6 months
3. 1 year
4. 5 years

Q6. Which Entry of the Seventh Schedule covers Multi-State Cooperative Societies?

1. State List Entry 32
2. Union List Entry 44
3. Concurrent List Entry 32
4. Union List Entry 32

Q7. The Co-operative Election Authority was introduced by

1. MSCS Act, 2002
2. 97th Amendment, 2011
3. MSCS Amendment Act, 2022
4. National Cooperative Policy 2025

Q8. How many seats are reserved for women on a cooperative board under Article 243ZJ?

1. 1
2. 2
3. 3
4. 5

Q9. What is the 3-3-3 target of the National Cooperative Policy 2025?

1. Triple the sector's GDP contribution by 2034
2. Triple PACS by 2030
3. Three villages per tehsil
4. Three new ministries

Q10. Which of these is NOT one of the three societies of the "Sahakar se Samriddhi" initiative?

1. BBSSL
2. NCOL
3. NCEL
4. IFFCO

Q11. Where is the Tribhuvan Sahkari University located?

1. Anand, Gujarat
2. Pune
3. Bengaluru
4. Mangalagiri

Answers: Q1 b, Q2 c, Q3 c, Q4 b, Q5 b, Q6 b, Q7 c, Q8 b, Q9 a, Q10 d, Q11 a

MY NOTES

54 Making of the Constitution

CHAPTER 54 · HANDOUT: MAKING OF THE CONSTITUTION

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

EXAM LENS

Prelims hooks

- none quoted in the material for this chapter
- Expect matches of committee and chairperson, dates of the timeline, seat numbers, and the Cripps and Cabinet Mission proposals.
- Handout stresses: The handout gives a Key Timeline of the Assembly (9 Dec 1946 to 26 Jan 1950) and a detailed Objectives Resolution (8 points) (Timeline and Objectives Resolution sections)
- Handout stresses: A separate section on Important Facts (Seal, Advisor, Secretary, Chief Draftsman, calligraphy) (Important Facts)
- Handout stresses: Principal committees with chairpersons (Important Committees)

Mains hooks

- none quoted in the material for this chapter
- Constituent Assembly questions are quoted under the Preamble chapter (Ch 1).

A body born of the Cabinet Mission, elected indirectly, which wrote the Constitution in 2 years, 11 months and 17 days and began it on the Purna Swaraj date.

IN SIMPLE WORDS

- The idea of a **Constituent Assembly** began with **M.N. Roy (1934)**
- The **INC** demanded it in **1935** and **Nehru (1938)** asked for adult franchise and no outside interference
- The British moved step by step: the **August Offer (1940)**, the **Cripps Mission (1942)** and finally the **Cabinet Mission (1946)**, whose scheme created the Assembly.
- The Assembly had **389** seats (**296** British India, **93** princely states), indirectly elected by Provincial Assemblies through

MY NOTES

proportional representation (single transferable vote). After Partition it fell to **299**.

- Key dates: **9 Dec 1946** first meeting, **11 Dec** Prasad elected President, **13 Dec** Objectives Resolution moved, **26 Nov 1949** Constitution adopted, **26 Jan 1950** it began.
- Work took **2 years, 11 months, 17 days**. Main committees: **Drafting (Ambedkar)**, **Union Powers and Union Constitution (Nehru)**, **Provincial Constitution and Advisory (Patel)**, **Rules of Procedure and Steering (Prasad)**.
- Critics said the Assembly was **not representative**, **not sovereign**, **slow**, **Congress-dominated**, **lawyer-dominated** and **Hindu-dominated**.

Key term	In plain words
Objectives Resolution	Moved by Nehru on 13 Dec 1946, adopted unanimously on 22 Jan 1947; its modified form is the Preamble
Cabinet Mission Plan (1946)	Rejected two Assemblies; proposed Groups A, B and C; led to the Assembly in November 1946
August Offer (1940)	Britain accepted for the first time that Indians frame their Constitution, but 'mainly', not 'solely'
Cripps Mission (1942)	Offered a post-war elected body and Dominion Status; failed over the opt-out clause for provinces
Indirect election	Members chosen by the Provincial Assemblies, not directly by the people
Drafting Committee	Set up on 29 Aug 1947 under Dr. B.R. Ambedkar; published the first draft in Feb 1948
B.N. Rau	Constitutional (Legal) Advisor to the Assembly
Purna Swaraj (1930)	The declaration whose date was chosen for 26 Jan 1950

MY NOTES

MEMORY MAP: MAKING OF THE CONSTITUTION

Making of the Constitution

Demand (1934-46)
- 1934: M.N. Roy first put the idea
- 1935: INC officially demanded
- 1938: Nehru: franchise, sovereignty
- 1940: August Offer
- 1942: Cripps Mission failed
- 1946: Cabinet Mission Plan

Composition
- 389 seats: 296 British India + 93 States
- After Partition: 299 (229 + 70)
- Indirect election: PR by STV

Timeline
- 9 Dec 1946: first meeting
- 26 Nov 1949: adopted
- 24 Jan 1950: final session
- 26 Jan 1950: commencement

Objectives Resolution
- Moved 13 Dec 1946: by Nehru
- Adopted 22 Jan 1947: unanimously
- 8 points: became the Preamble

Committees
- Drafting: Ambedkar
- Nehru: two Union committees
- Patel: Provincial; FR Advisory
- Prasad: Rules of Procedure, Steering

Criticism
- Not representative: not sovereign
- Time-consuming: Congress-dominated
- Lawyer-politician: Hindu-dominated

Facts
- Elephant seal: Rau, Iyengar, S.N. Mukherjee
- Raizada: calligraphy
- Bose and Sinha: decoration

MNEMONIC · ROAD TO THE CONSTITUENT ASSEMBLY

Real India Needs A Constitution Council

R Roy, M.N.: first idea (1934) **I** INC demands it officially (1935)

N Nehru: adult franchise, no outside interference (1938)

A August Offer (1940) **C** Cripps Mission (1942)

C Cabinet Mission Plan (1946)

The six steps from the first idea in 1934 to the Cabinet Mission in 1946. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · PRINCIPAL COMMITTEES IN HANDOUT ORDER

Drafters Unite Unity, Preserving All Rights Securely

- **D** Drafting Committee (Ambedkar)
- **U** Union Powers Committee (Nehru)
- **U** Union Constitution Committee (Nehru)
- **P** Provincial Constitution Committee (Patel)
- **A** Advisory Committee on Fundamental Rights and Minorities (Patel)
- **R** Rules of Procedure Committee (Prasad)
- **S** Steering Committee (Prasad)

Chairmen in order: Ambedkar, Nehru, Nehru, Patel, Patel, Prasad, Prasad. (Memory aid, not from the handout.)

MNEMONIC · CRITICISM OF THE ASSEMBLY

Naysayers Note: Too Dominant, Lawyerly, Hindu

- **N** Not a representative body
- **N** Not a sovereign body
- **T** Time-consuming
- **D** Dominated by Congress
- **L** Lawyer-politician domination
- **H** Hindu dominated

The six charges against the Assembly. No good word found, so the sentence is only a memory aid and the order is free. (Memory aid, not from the handout.)

MNEMONIC · IMPORTANT FACTS: PERSONNEL AND SYMBOL

C A S E

- **C** Chief Draftsman: S.N. Mukherjee
- **A** Advisor (constitutional or legal): Sir B.N. Rau
- **S** Secretary: H.V.R. Iyengar
- **E** Elephant: the official seal of the Assembly

CASE file of the Assembly: who drafted, advised and kept records, and its seal. Order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · CABINET MISSION 1946: ITS THREE MEMBERS

C A P

- **C** Cripps, Sir Stafford
- **A** Alexander, A.V.
- **P** Pethick Lawrence, Lord (Secretary of State for India)

The Cabinet Mission wore a CAP: three members. Order is rearranged for memory. (Memory aid, not from the handout.)

MY NOTES

INTRODUCTION: THE BIRTH OF A CONSTITUTIONAL NATION

- The making of the Constitution was a revolutionary act of self-determination, not merely a legal exercise. For nearly two centuries India had been governed by laws of the British Parliament, designed to rule subjects, not to empower citizens.
- The **Constituent Assembly** was a body of representatives composed for the specific purpose of drafting the Constitution of India.
- Formed in **November 1946** under the **Cabinet Mission Plan**.
- It served as the **first Parliament of independent India** and facilitated the transfer of sovereign power from British to Indian hands.
- Its task: to stitch a diverse, fragmented subcontinent into a single, unified nation under the "Rule of Law", born amidst the turmoil of partition and the optimism of Independence.
- **Big idea:** The formation of the Assembly in 1946 marked the transition from colonial rule to a sovereign democratic republic.

ALSO IN THE HANDOUT

- 1946: The Cabinet Mission Plan a.

EVOLUTION OF THE DEMAND (1934 TO 1942)

- The idea of a Constituent Assembly was not sudden but the result of a gradual demand.

STEPS OF THE DEMAND

- **1934**: M.N. Roy (pioneer of the Communist movement in India) put the idea forward for the first time
- **1935**: The Indian National Congress officially demanded a Constituent Assembly
- **1938**: Nehru's Declaration on behalf of the INC (sovereignty and democracy)
- **1940**: August Offer by Viceroy Lord Linlithgow
- **1942**: Cripps Mission (failed)
- **1946**:
  - Cabinet Mission Plan
  - Assembly formed in November 1946

MY NOTES

STEPS OF THE DEMAND



1938: NEHRU'S DECLARATION

- Jawaharlal Nehru added two non-negotiable conditions:
- **Adult franchise**: the Assembly must be elected by the people (democratic legitimacy).
- **No outside interference**: the British Parliament would have no say in the drafting (sovereignty).

1940: THE AUGUST OFFER

- Context:
  - World War II had begun (1939) and Britain desperately needed Indian cooperation
  - Viceroy Lord Linlithgow made the offer to win over Indian political parties
- The "principle" accepted: for the first time the British explicitly acknowledged the right of Indians to frame their own Constitution.
- The catch: the new constitution would be framed "**mainly**" (not "solely") by Indians, implying continued British oversight.

1942: THE CRIPPS MISSION

- Proposal: Sir Stafford Cripps (member of the British War Cabinet) proposed an elected body after the war to frame a constitution. It promised **Dominion Status** with the right to secede from the Commonwealth.

WHY THE CRIPPS MISSION FAILED

Who	Objection
Opt-out clause	Provinces could reject the new constitution and form separate unions; the INC saw a blueprint for the Balkanization of India
Mahatma Gandhi	Called it "a post-dated cheque on a crashing bank" (declining power of the British Empire in the war)

MY NOTES

Who	Objection
Muslim League	Rejected it because it did not explicitly grant a sovereign Pakistan with two distinct Constituent Assemblies

- **Memory aid (Six steps of the demand): R**oy 1934, **I**NC 1935, **N**ehru 1938, **A**ugust Offer 1940, **C**ripps 1942, **C**abinet Mission 1946: "**R**eal **I**ndians **N**ever **A**ccept **C**heap **C**heques."
- **Shortcut: Mainly vs solely.** August Offer says "**mainly**" by Indians = British still watching. Cripps = **opt-out** for provinces = the **post-dated cheque**.

ALSO IN THE HANDOUT

- 1935: The Indian National Congress (INC) officially demanded a Constituent Assembly to frame the Constitution of India.

THE CABINET MISSION PLAN, 1946

- The Mission rejected the demand for two assemblies and offered a compromise.
- **Members**: Lord Pethick Lawrence (Secretary of State for India), Sir Stafford Cripps, and A.V. Alexander.
- **Rejection of two assemblies**: the Mission studied the Muslim League's demand for a separate Pakistan and two Constituent Assemblies but rejected it, arguing it would not solve the communal minority problem.
- **The scheme (the compromise)**: to satisfy the Muslim League, a **Grouping System**.

GROUPING SYSTEM

Group	Provinces	Examples
Group A	Hindu-majority provinces	Madras, Bombay, UP
Group B	Muslim-majority provinces in the North-West	Punjab, Sindh
Group C	Muslim-majority provinces in the North-East	Bengal, Assam

- **Outcome**: both the INC and the Muslim League accepted the plan initially, though with different interpretations of the "Grouping" clause.
- This agreement allowed elections in **July to August 1946**, leading to the formation of the Constituent Assembly in **November 1946**.
- **Memory aid (Mission members): P**ethick Lawrence, **C**ripps, **A**lexander: "**P**lease **C**all **A**ll."

MY NOTES

- **Shortcut: Groups. A = Hindu-majority** (Madras, Bombay, UP). **B = Punjab, Sindh** (North-West). **C = Bengal, Assam** (North-East). Letters run A, B, C in that order.

COMPOSITION OF THE ASSEMBLY

- The Assembly was partly elected and partly nominated.
- **Elected members**: indirectly elected by the members of the Provincial Legislative Assemblies, using **Proportional Representation by Single Transferable Vote**.
- **Nominated members**: representatives of Princely States were nominated by their heads.

SEAT ALLOCATION (TOTAL STRENGTH 389)

Component	Before Partition	After Partition
British India	296	229
Princely States	93	70
Total	389	299

- The 296 British India seats were allocated among **Muslims, Sikhs and General** categories in proportion to population: **292 from eleven governors' provinces** and **4 from the four Chief Commissioners' provinces**.
- The strength fell to 299 after Partition and the withdrawal of Muslim League members (from Pakistani territories).
- **Check the sums:** 292 + 4 = 296 and 296 + 93 = 389. After Partition 229 + 70 = 299.

ELECTED VERSUS NOMINATED

- **Elected:**
  - Indirectly, by Provincial Legislative Assemblies
  - PR by STV
  - British India seats
- **Nominated:**
  - Representatives of Princely States
  - Nominated by their heads
  - 93 seats at first
- **Shortcut: Numbers. 389 = 296 + 93**, then **299 = 229 + 70**. British India lost 67, the States lost 23 (as the handout's figures give).

KEY TIMELINE OF THE MAKING

- The process took **2 years, 11 months and 17 days**.

MY NOTES

TIMELINE IN THE HANDOUT'S ORDER

Date	Event
9 Dec 1946	First meeting (boycotted by the Muslim League); Dr. Sachchidananda Sinha temporary President
11 Dec 1946	Dr. Rajendra Prasad elected President; H.C. Mookerjee and V.T. Krishnamachari Vice-Presidents; B.N. Rau appointed Constitutional Legal Advisor
13 Dec 1946	Nehru moved the Objectives Resolution
22 Jan 1947	Objectives Resolution unanimously adopted
22 July 1947	National Flag adopted
Aug 1947	Independence Act: Assembly became fully sovereign and also the Dominion Legislature (first Parliament)
Feb 1948	Drafting Committee (formed 29 Aug 1947) published the first draft
26 Nov 1949	Constitution passed and adopted
24 Jan 1950	Final session
26 Jan 1950	Commencement of the Constitution

AFTER AUGUST 1947: TWO HATS

- As **Constituent body**: chaired by Dr. Rajendra Prasad.
- As **Legislative body** (Dominion Legislature): chaired by **G.V. Mavlankar**.

26 NOV 1949 AND 24 JAN 1950

- **26 Nov 1949**: citizenship, elections and provisional parliament provisions came into force immediately.
- **24 Jan 1950** (final session):
  - The Constitution was signed
  - The National Anthem and National Song were adopted
  - Dr. Rajendra Prasad was elected the first President of India
- **26 Jan 1950**: the date was chosen to commemorate the **Purna Swaraj** declaration of 1930.

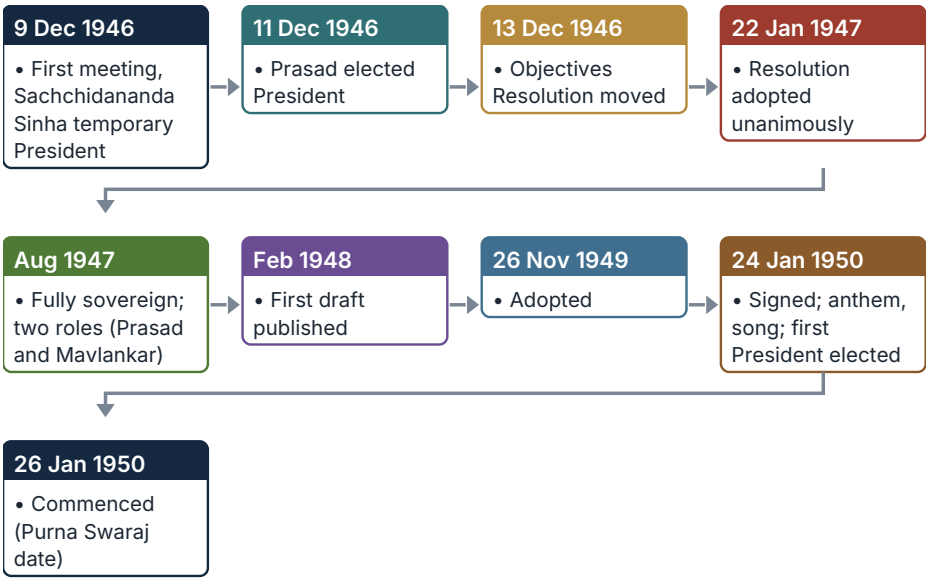
PATH FROM FIRST SITTING TO COMMENCEMENT

- **9 Dec 1946**: First meeting, Sachchidananda Sinha temporary President
- **11 Dec 1946**: Prasad elected President
- **13 Dec 1946**: Objectives Resolution moved

MY NOTES

- **22 Jan 1947**: Resolution adopted unanimously
- **Aug 1947**:
  - Fully sovereign
  - Two roles (Prasad and Mavlankar)
- **Feb 1948**: First draft published
- **26 Nov 1949**: Adopted
- **24 Jan 1950**:
  - Signed
  - Anthem, song
  - First President elected
- **26 Jan 1950**: Commenced (Purna Swaraj date)

PATH FROM FIRST SITTING TO COMMENCEMENT



- **Memory aid (December dates):**
  - **9** first meeting, **11** President elected, **13** Resolution moved
  - Then **22** Jan 1947 it is adopted: "Nine-Eleven-Thirteen, then Twenty-Two."

> **HANDOUT ALERT**
> Handout alert: The Drafting Committee is listed in the Feb 1948 line with the note "formed on Aug 29, 1947". Treat 29 Aug 1947 as the formation date and Feb 1948 as the publication of the first draft. The handout's numbered lists in this chapter carry stray numbers (17 to 25, 30 to 35) that are PDF list-numbering, not facts, and are dropped here. The source text has no PYQ section for this chapter.

THE OBJECTIVES RESOLUTION

- The roadmap and guiding principles for framing the Constitution.

MY NOTES

BASICS

Item	Detail
Moved by	Pt. Jawaharlal Nehru
Introduced	13 December 1946
Adopted	22 January 1947 (unanimously)
Significance	Roadmap and guiding principles; its modified version later became the Preamble

KEY PROVISIONS: THE 8 POINTS

THE EIGHT PRINCIPLES

No.	Point	What it says
1	Sovereignty	Firm and solemn resolve to proclaim India an Independent Sovereign Republic
2	Territorial Union	Territories of British India, the Indian States and other parts willing to join form a Union of India
3	Federalism and residuary powers	Territories keep "retained status" (autonomy); residuary powers (not assigned to the Union) vest in the units, making India federal
4	Source of power	All power and authority of Sovereign Independent India and its Constitution derive from the People
5	Fundamental values	Justice (social, economic, political); Liberty (thought, expression, belief, faith, worship); Equality (status and opportunity)
6	Protection of vulnerable sections	Adequate safeguards for minorities, backward and tribal areas, depressed and other backward classes
7	Territorial integrity	Integrity of the territory of the Republic and its sovereign rights on land, sea and air maintained per justice and the law of civilized nations
8	International peace	Full and willing contribution to world peace and the welfare of mankind

- **Memory aid (Eight points):** **S**overeignty, **T**erritorial Union, **F**ederalism, **S**ource of power, **F**undamental values, **P**rotection of vulnerable sections, **T**erritorial integrity, **I**nternational peace: "**S**ome **T**all **F**olks **S**ang **F**ine **P**oems **T**o **I**mpress."

EVOLUTION INTO THE PREAMBLE

- The Resolution was not a temporary motion but a pledge.
- After Partition and Independence (1947) the word **"Independent"** was retained, but the federal structure was made **stronger (Unitary bias)** because of fears of Balkanization.

MY NOTES

- The core ideals (**Justice, Liberty, Equality, Fraternity**) were enshrined in the Preamble, which serves as the **identity card** of the Constitution.

RESOLUTION VERSUS PREAMBLE

- **Objectives Resolution (1946-47):**
  - Federal, residuary powers with the units
  - "Independent Sovereign Republic"
  - Guaranteed Justice, Liberty, Equality
- **As it evolved:**
  - "Independent" retained
  - Federal structure made stronger (Unitary bias)
  - Justice, Liberty, Equality, Fraternity in the Preamble
- **Shortcut:**
  - **Resolution to Preamble.** Resolution = **pledge**
  - Preamble = **identity card**. Federalism in the Resolution (units keep residuary powers), Unitary bias later

ALSO IN THE HANDOUT

- The Resolution proclaimed the following principles: - Sovereignty: It declared the Assembly's firm and solemn resolve to proclaim India as an Independent Sovereign Republic.

IMPORTANT COMMITTEES

- The Assembly worked through committees for specific tasks.

PRINCIPAL COMMITTEES AND CHAIRPERSONS

Committee	Chairperson
Drafting Committee	Dr. B.R. Ambedkar
Union Powers Committee	Jawaharlal Nehru
Union Constitution Committee	Jawaharlal Nehru
Provincial Constitution Committee	Sardar Vallabhbhai Patel
Advisory Committee on Fundamental Rights and Minorities	Sardar Vallabhbhai Patel
Rules of Procedure Committee	Dr. Rajendra Prasad
Steering Committee	Dr. Rajendra Prasad

- **Memory aid (Chairs):** **A**mbedkar (Drafting), **N**ehru (two Union committees), **P**atel (Provincial and Advisory), **P**rasad (Rules and Steering): "**A** **N**ew **P**en **P**roduces."

MY NOTES

- **Shortcut: Two each.** Nehru = **both Union** committees. Patel = **Provincial + Advisory (FR and Minorities)**. Prasad = **Rules + Steering**. Ambedkar = **Drafting** alone.

CRITICISM OF THE ASSEMBLY

- Scholars and critics raised several objections.

SIX CRITICISMS

Criticism	Point made
Not a representative body	Members not directly elected on universal adult franchise
Not a sovereign body	Created by the proposals of the British Government (Cabinet Mission)
Time-consuming	Took too long compared with the American Constitution (4 months)
Dominated by Congress	Granville Austin: "The Assembly was the Congress, and the Congress was India."
Lawyer-politician domination	Led to the complicated language of the Constitution
Hindu dominated	Winston Churchill: represented "only one major community in India"

- **Memory aid (Six faults):** **R**epresentative (not), **S**overeign (not), **T**ime-consuming, **C**ongress-dominated, **L**awyer-dominated, **H**indu-dominated: "**R**eal **S**tudents **T**ake **C**areful **L**ong **H**ours."
- **Who said what:** Granville Austin made the Congress remark. Winston Churchill made the "one major community" remark.

ALSO IN THE HANDOUT

- Not a Sovereign Body: Created by the proposals of the British Government (Cabinet Mission). 32.Time-Consuming: Critics argued it took too long compared to the American Constitution (which took 4 months). 33.Dominated by Congress: Granville Austin famously remarked, "The Assembly was the Congress, and the Congress was India." 34.Lawyer-Politician Domination: This led to the complicated language of the Constitution.

IMPORTANT FACTS: CONSTITUENT ASSEMBLY

- The handout says these trivia points are often asked in Prelims.

PERSONNEL AND SYMBOL

Item	Answer
Symbol (Seal)	The Elephant
Constitutional Advisor	Sir B.N. Rau (Legal Advisor to the Assembly)

MY NOTES

Item	Answer
Secretary	H.V.R. Iyengar
Chief Draftsman	S.N. Mukherjee

CALLIGRAPHY AND DECORATION

WHO DID WHAT

Task	Person
English calligraphy	Prem Behari Narain Raizada, handwritten in a flowing italic style
Decoration (general)	Artists from Shantiniketan, including Nand Lal Bose and Beohar Rammanohar Sinha
Preamble decoration	Beohar Rammanohar Sinha illuminated and ornamented the original Preamble (calligraphed by Raizada)
Hindi calligraphy	Vasant Krishan Vaidya
Hindi decoration	Nand Lal Bose

- **Memory aid (Four posts):** **S**eal = **E**lephant, **S**ecretary = Iyengar, **C**hief Draftsman = S.N. Mukherjee (Advisor = Rau): "**S**ee **E**lephants **S**ing **C**alypso."
- **Shortcut:**
  - **Art team. Raizada writes English**
  - **Vaidya writes Hindi**
  - **Nand Lal Bose decorates the Hindi**
  - **Sinha illuminates the Preamble.**

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 2, MAKING OF THE CONSTITUTION

- Cabinet Mission (members Pethick-Lawrence, Cripps, A.V. Alexander) arrived on 24 March 1946 and published its plan on 16 May 1946. The Assembly was to give about one seat per million people, divided among Muslims, Sikhs and General in each province.
- Election results (July-August 1946, 296 seats): Congress 208, Muslim League 73, others 15. The 93 princely-state seats were not filled at first, as the states stayed away.
- Only 207 members attended the first meeting. The Assembly had 15 women members and every important leader except Mahatma Gandhi.
- After the Independence Act the Assembly also sat as the Dominion Legislature
- On 17 Nov 1947 it first met so and elected G.V. Mavlankar as speaker. It ratified India's Commonwealth membership in May

MY NOTES

1949 and continued as the provisional Parliament until the first elections of 1951-52

- Totals:
  - 11 sessions
  - About 60 constitutions studied
  - The Draft Constitution was considered for 114 days
  - The Drafting Committee sat 141 days
  - Cost Rs 64 lakh
- Drafting Committee had seven members:
  - Ambedkar (chairman), N. Gopalaswamy Ayyangar, Alladi Krishnaswamy Ayyar, K.M. Munshi, Syed Mohammad Saadullah, N. Madhava Rau (replacing B.L. Mitter) and T.T. Krishnamachari (replacing D.P. Khaitan). The first draft was open to the public for eight months
  - The second draft came in October 1948
- Three readings: first reading from 4 Nov 1948 (five days of talk), second reading from 15 Nov 1948 to 17 Oct 1949 (7653 amendments proposed, 2473 discussed), third reading from 14 Nov 1949. Only 284 of 299 members were present to sign on 26 Nov 1949. The adopted text had a Preamble, 395 Articles and 8 Schedules.
- Other major committees and chairmen:
  - Advisory Committee had sub-committees (Fundamental Rights under J.B. Kripalani, Minorities under H.C. Mukherjee)
  - The States Committee was chaired by Nehru. Congress's Experts Committee of 8 July 1946 under Nehru prepared material before the Assembly met
- Lakshmikanth differs:
  - The length of work. It says 2 years, 11 months and 18 days
  - The handout says 17 days. Use the handout's 17 days in class
  - Keep LK's 18 in mind
- Lakshmikanth differs:
  - Vice-Presidents. It says H.C. Mukherjee was elected Vice-President on 25 Jan 1947 and V.T. Krishnamachari as second Vice-President on 16 July 1947
  - The handout puts both with the 11 Dec 1946 election. Use the handout's grouping for the class. It also names 26 Nov as Constitution Day (decided on 19 Nov 2015)

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Who first proposed a Constituent Assembly, and when?	M.N. Roy, 1934.
When did the INC officially demand a Constituent Assembly?	1935.
Two conditions in Nehru's 1938 Declaration?	Adult franchise (elected by the people) and no outside interference (no say for the British Parliament).
Catch in the August Offer 1940?	The constitution would be framed "mainly", not "solely", by Indians.
Who made the August Offer?	Viceroy Lord Linlithgow.
Why did the INC object to the Cripps Mission?	The opt-out clause let provinces form separate unions: a blueprint for Balkanization.
Gandhi's remark on the Cripps offer?	"A post-dated cheque on a crashing bank."
Members of the Cabinet Mission?	Lord Pethick Lawrence, Sir Stafford Cripps, A.V. Alexander.
What were Groups A, B and C?	A: Hindu-majority provinces (Madras, Bombay, UP). B: Muslim-majority North-West (Punjab, Sindh). C: Muslim-majority North-East (Bengal, Assam).
How were Assembly members elected?	Indirectly, by Provincial Legislative Assemblies, by PR through the single transferable vote.
Seats of the Assembly?	389: British India 296 (292 from governors' provinces, 4 from Chief Commissioners' provinces) and Princely States 93.
Strength after Partition?	299: British India 229, Princely States 70.
Time taken to make the Constitution?	2 years, 11 months and 17 days.
First meeting of the Assembly?	9 Dec 1946, boycotted by the Muslim League; Sachchidananda Sinha temporary President.
Who were the Vice-Presidents elected on 11 Dec 1946?	H.C. Mookerjee and V.T. Krishnamachari (Prasad was President).

MY NOTES

Who chaired as Constituent body versus Legislative body?	Constituent: Rajendra Prasad. Legislative: G.V. Mavlankar.
Objectives Resolution: mover and dates?	Nehru; moved 13 Dec 1946, adopted unanimously 22 Jan 1947.
Which of the 8 points deals with residuary powers?	Federalism: territories have retained status and residuary powers vest in the units.
What did the Objectives Resolution become?	The Preamble, in modified form: the identity card of the Constitution.
Who chaired the Drafting Committee?	Dr. B.R. Ambedkar.
Which committees did Nehru chair?	Union Powers and Union Constitution.
Which committees did Patel chair?	Provincial Constitution; Advisory Committee on Fundamental Rights and Minorities.
Which committees did Prasad chair?	Rules of Procedure and Steering.
What happened on 24 Jan 1950?	Constitution signed; National Anthem and National Song adopted; Prasad elected first President.
Why 26 January 1950?	To commemorate the Purna Swaraj declaration of 1930.
Seal of the Assembly?	The Elephant.
Who were the Legal Advisor, Secretary and Chief Draftsman?	B.N. Rau, H.V.R. Iyengar, S.N. Mukherjee.
Who calligraphed the English original?	Prem Behari Narain Raizada.
Who illuminated the original Preamble?	Beohar Rammanohar Sinha.
Hindi calligraphy and its decoration?	Calligraphed by Vasant Krishan Vaidya, decorated by Nand Lal Bose.
Who said "Hindu dominated" criticism?	Winston Churchill, about "only one major community in India".

Trap 1 · Three days in December 1946

9 Dec was the first meeting (Sinha as temporary President, Muslim League boycott), 11 Dec Prasad was elected President, 13 Dec Nehru moved the Objectives Resolution. *Rule: 9 meet, 11 elect, 13 resolve.*

Trap 2 · Adopted, signed and in force

The Constitution was adopted on 26 Nov 1949, signed and the anthem and song adopted on 24 Jan 1950, and came into force on 26 Jan 1950. Some provisions (citizenship, elections, provisional Parliament) started on 26 Nov 1949. *Rule: 26 Nov passes, 24 Jan signs, 26 Jan commences.*

MY NOTES

Trap 3 · 389 versus 299

The 1946 plan gave 389 seats (296 and 93). After Partition the strength fell to 299 (British India 296 to 229, princely states 93 to 70). *Rule: 389 is the plan, 299 is after Partition.*

Trap 4 · Who was who

Ambedkar chaired the Drafting Committee, B.N. Rau was Legal Advisor, H.V.R. Iyengar was Secretary and S.N. Mukherjee was Chief Draftsman. Prasad chaired the Assembly as constituent body; Mavlankar when it sat as legislature. *Rule: do not mix the chairman, advisor, secretary and chief draftsman.*

QUICK QUIZ

Q1. Who first put forward the idea of a Constituent Assembly in 1934?

1. Jawaharlal Nehru
2. M.N. Roy
3. Mahatma Gandhi
4. Lord Linlithgow

Q2. The August Offer of 1940 stated the new constitution would be framed

1. solely by Indians
2. mainly by Indians
3. by the British Parliament
4. by the Viceroy

Q3. Which was a reason the Muslim League rejected the Cripps proposals?

1. They allowed no Dominion Status
2. They did not explicitly grant a sovereign Pakistan with two Constituent Assemblies
3. They gave provinces no opt-out
4. They demanded adult franchise

Q4. Group B of the Cabinet Mission grouping consisted of

1. Hindu-majority provinces
2. Muslim-majority provinces in the North-West
3. Muslim-majority provinces in the North-East
4. Princely States

Q5. The total strength of the Constituent Assembly as planned was

1. 299
2. 389
3. 296
4. 229

Q6. Who was elected permanent President of the Constituent Assembly on 11 December 1946?

1. Sachchidananda Sinha
2. G.V. Mavlankar
3. Rajendra Prasad
4. B.N. Rau

Q7. Who chaired the Assembly when it met as the Dominion Legislature?

1. Rajendra Prasad
2. G.V. Mavlankar
3. B.R. Ambedkar
4. Jawaharlal Nehru

Q8. The Objectives Resolution was adopted unanimously on

1. 13 December 1946
2. 22 January 1947
3. 26 November 1949
4. 26 January 1950

Q9. Which pair of committees was chaired by Sardar Vallabhbhai Patel?

1. Union Powers and Union Constitution
2. Rules of Procedure and Steering
3. Provincial Constitution and Advisory on Fundamental Rights and Minorities
4. Drafting and Steering

MY NOTES

Q10. Who was the Chief Draftsman of the Constitution in the Assembly?

1. B.N. Rau
2. H.V.R. Iyengar
3. S.N. Mukherjee
4. Prem Behari Narain Raizada

Q11. The date 26 January 1950 was chosen to commemorate

1. the Objectives Resolution
2. the Purna Swaraj declaration of 1930
3. the Cripps Mission
4. the adoption of the National Flag

Q12. Granville Austin's remark "The Assembly was the Congress, and the Congress was India" is cited as a criticism that it was

1. not sovereign
2. dominated by Congress
3. time-consuming
4. Hindu dominated

Answers: Q1 b, Q2 b, Q3 b, Q4 b, Q5 b, Q6 c, Q7 b, Q8 b, Q9 c, Q10 c, Q11 b, Q12 b

MY NOTES

CHAPTER 55 · HANDOUT: HINDI TEXT OF THE CONSTITUTION

55 Hindi Text of the Constitution

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

EXAM LENS

Prelims hooks

- none quoted in the material
- Likely angles: which Amendment, which Article, which Part, who publishes.
- Handout stresses: The handout is a single short note on 394-A inserted by the 58th Amendment Act, 1987 in Part XXII (Whole chapter)

Mains hooks

- none quoted in the material.

58th Amendment, 1987, 394-A, Part XXII: the President publishes an authoritative Hindi text.

IN SIMPLE WORDS

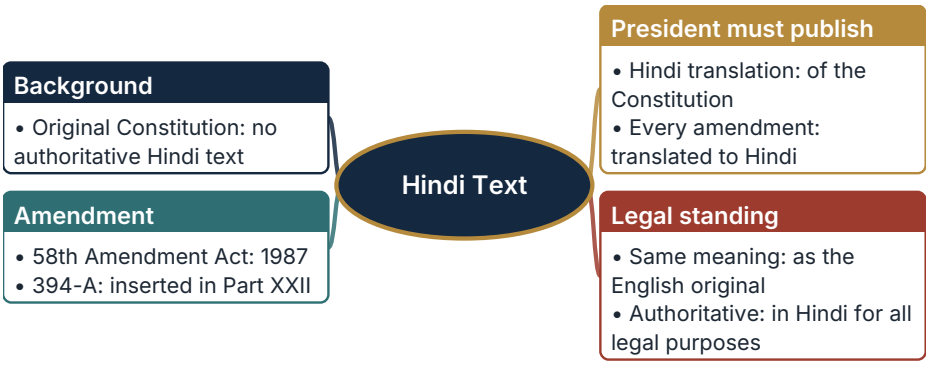
- The original Constitution had **no authoritative Hindi text**. The **58th Constitutional Amendment Act, 1987** fixed this.
- It inserted **Article 394-A** in the last part, **Part XXII**.
- The **President** must publish a **Hindi translation** of the Constitution, matching the language, style and terms of Central Acts in Hindi, with all amendments up to then.
- The President must also publish a **Hindi translation of every later amendment** made in English.
- The Hindi version is read as having the **same meaning** as the English original, and it is the **authoritative Hindi text** for all legal purposes.

Key term	In plain words
58th Amendment Act (1987)	Brought in the provision for an authoritative Hindi text
Article 394-A	The article in Part XXII on the Hindi translation
Authoritative text	Text accepted as the legal text for all purposes; here, the Hindi translation
Same meaning	The Hindi translation is construed to mean what the English original means

MY NOTES

Key term	In plain words
Revision	If a difficulty arises, the President has the Hindi text revised suitably

MEMORY MAP: HINDI TEXT OF THE CONSTITUTION



MNEMONIC · ARTICLE 394-A: WHAT IT PROVIDES

C L E A R

- **C** Constitution translated into Hindi, with all amendments to date
- **L** Legal: authoritative text in Hindi for all legal purposes
- **E** Equivalence: same meaning as the English text
- **A** Amendments: every amendment made in English also translated into Hindi
- **R** Revision by the President if a difficulty arises

CLEAR legal clarity was the aim of Art 394-A: five points. Order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · PART XXII: ARTICLES 393 TO 395

Short Clear Hindi Rendering

- **S** Short title (Art. 393)
- **C** Commencement (Art. 394)
- **H** Hindi authoritative text (Art. 394-A)
- **R** Repeals (Art. 395)

A short, clear Hindi rendering sits inside Part XXII, between commencement and repeals. (Memory aid, not from the handout.)

THE 58TH AMENDMENT AND 394-A

- The Constitution originally had no provision for an authoritative text in Hindi. This was addressed later to ensure legal clarity.

AMENDMENT AT A GLANCE

Item	Detail
Amendment	58th Constitutional Amendment Act, 1987
New Article	394-A (a new Article)

MY NOTES

Item	Detail
Placed in	The last part of the Constitution (Part XXII)
Subject	Authoritative Hindi text

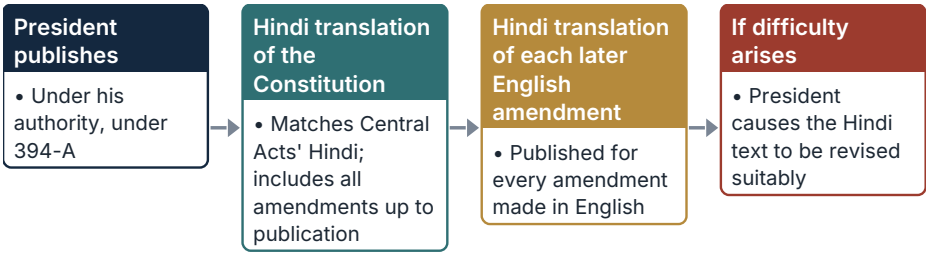
WHAT 394-A REQUIRES

- The President must publish under his authority:
- A **translation of the Constitution in Hindi**.
- – It must conform to the language, style and terminology used in the authoritative texts of Central Acts in Hindi.
- – It must incorporate all amendments made up to the date of publication.
- A **Hindi translation of every amendment** to the Constitution made in English.

HINDI TEXT PROCEDURE

- **President publishes**: Under his authority, under 394-A
- **Hindi translation of the Constitution**:
  - Matches Central Acts' Hindi
  - Includes all amendments up to publication
- **Hindi translation of each later English amendment**: Published for every amendment made in English
- **If difficulty arises**: President causes the Hindi text to be revised suitably

HINDI TEXT PROCEDURE



LEGAL STANDING

- **Equivalence**: the translation is construed to have the same meaning as the original English text.
- **Authoritative text**: the translated version is deemed the authoritative text in Hindi for all legal purposes.
- **Memory aid (394-A facts):** **A**mendment 58th (1987), **P**art XXII, **H**indi translation by the President, **E**quals English in meaning: "**A P**oet **H**as **E**ase."
- **Shortcut: Remember. 58, 394-A, XXII**: 58th Amendment inserted 394-A in Part XXII (last part).

MY NOTES

ORIGINAL VERSUS TRANSLATION

- **English original:**
  - Source text
  - No provision for an authoritative Hindi text at first
- **Hindi text under 394-A:**
  - Same meaning as English
  - Authoritative in Hindi for all legal purposes
  - Revised by the President if difficulty arises
- **Scope of the handout:** The handout is only one page. It names no PYQs, no dates other than 1987, and says nothing about the Hindi calligraphy of the original (that appears in Ch 54).

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 2, MAKING OF THE CONSTITUTION (HINDI TEXT SECTION)

- Part XXII is 'Short title, Commencement, Authoritative Text in Hindi and Repeals' and holds Arts. 393 to 395. Art. 393 is the short title, Art. 394 commencement, Art. 394-A the authoritative text in Hindi and Art. 395 repeals.

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Which Amendment gave an authoritative Hindi text?	58th Constitutional Amendment Act, 1987.
Which new provision was inserted?	394-A, in Part XXII.
What must the President publish?	A Hindi translation of the Constitution (with all amendments to date) and a Hindi translation of every amendment made in English.
What style must the Hindi translation follow?	Language, style and terminology of authoritative Hindi texts of Central Acts.
What is the legal status of the Hindi text?	Same meaning as English; authoritative in Hindi for all legal purposes.
What if difficulty arises with the Hindi text?	The President shall cause it to be revised suitably.

Trap 1 · Who publishes and who revises

Both publishing the Hindi translation and revising it when difficulty arises are done by the President, not Parliament. *Rule: President publishes and revises.*

Trap 2 · Amendment number and year

The provision came from the 58th Amendment (1987), not from the original 1950 text. *Rule: 58 and 1987; the Constitution started with English only.*

QUICK QUIZ

Q1. Which Amendment introduced the provision for an authoritative Hindi text?

1. 42nd
2. 44th
3. 58th
4. 73rd

Q2. 394-A was inserted in

1. Part XXI
2. Part XXII
3. Part XX
4. Part XVIII

Q3. Under 394-A who publishes the Hindi translation?

1. Parliament
2. The Law Ministry
3. The President
4. The Supreme Court

Q4. The Hindi translation must conform to

1. The English text only
2. Language, style and terminology of authoritative texts of Central Acts in Hindi
3. State Acts
4. Any dictionary

Q5. If any difficulty arises with the Hindi text, who causes it to be revised?

1. Parliament
2. The Supreme Court
3. The President
4. The Chief Justice

Q6. The Hindi translation is deemed

1. a mere reference
2. the authoritative text in Hindi for all legal purposes
3. superior to the English
4. invalid until Parliament approves

Answers: Q1 c, Q2 b, Q3 c, Q4 b, Q5 c, Q6 b

MY NOTES

CHAPTER 56 · HANDOUT: RIGHT TO INFORMATION, RTI ACT 2005

56 Right to Information Act

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

EXAM LENS

Prelims hooks

- none quoted in the material for this chapter
- Expect the penalty amounts, time limits, Section 8 and the public authority definition.
- Handout stresses: The handout gives the Section 8 exemption list in full (a to q) and notes copyright as the only absolute exemption (Main Features)
- Handout stresses: Long treatment of who is a public authority: President/Governors, state federations, BCCI, PPP projects, the judiciary and political parties (Issues of Public Authority)
- Handout stresses: RTI Amendment Act, 2019 (tenure, salary, statutory status) (Last section)
- Handout stresses: Numbers: Rs 250 per day, Rs 25000, 120 days, 16 types, 100 days, 5 days, 10 days, 20 years (Features)

Mains hooks

- none quoted in the material for this chapter
- The handout supplies the Amendment Act 2019 "Critical Reflection" as an analytical frame (efficiency versus independence).

A law drafted by the National Advisory Council, retrospective, wide in definition, narrow in exemption, and reshaped in 2019 so that the Centre now controls Information Commissioners' tenure and pay.

IN SIMPLE WORDS

- The **RTI Act, 2005** gives every **citizen** the right to information held by a **public authority**. The bill came from the **National Advisory Council**, not the bureaucrats. Earlier steps were the **H.D. Shourie working group (1997)**, the **Freedom of Information Bill, 2002** (never notified) and **Tamil Nadu's 1997 law**.
- 'Information' is wide: records, memos, e-mails, advice, contracts, samples and electronic data. The right covers **inspect-**

MY NOTES

ing work and records, **notes and certified copies**, **samples** and **electronic copies**.

- A public authority must **catalogue** its records, publish **16 types** of information within **120 days**, appoint **PIOs** within **100 days** and **transfer** misdirected requests within **5 days**.
- **Section 8** lists exemptions such as sovereignty and security, court-forbidden matters, privilege of the legislature, trade secrets, Cabinet papers and private information. The handout calls **copyright** the only absolute exemption. Exempt information opens after **20 years**, with exceptions.
- Citizens complain to the **CIC or SIC**. Penalty on a PIO is **Rs 250 a day up to Rs 25,000**. Fees are waived for **BPL** applicants and when a deadline is missed.
- The **2019 Amendment** lets the Centre fix the **tenure** and **salary** of Information Commissioners, ending the fixed five-year term and the link to the CEC and ECs. Critics fear a loss of independence.

Key term	In plain words
Public authority	A body set up by or under the Constitution, a Parliament or state law, or a government notification, or one owned, controlled or substantially financed by government
Substantially financed	Not defined in the Act; the ARC gave some recommendations
PIO	Public Information Officer; designated in each administrative unit
Suo-moto disclosure	The authority gives out information on its own so that fewer RTI requests are needed
Section 8	The list of information exempt from disclosure
Third party	Their information is released only after notice and a hearing; the notice period is 10 days
Retrospective	The Act covers all information held, even if created before the Act began
CIC and SIC	Central and State Information Commissions that hear complaints; statutory, not constitutional

MY NOTES

MEMORY MAP: RIGHT TO INFORMATION ACT

Background
- 1997: Shourie group; TN first
- FOI Bill 2002: enacted, never notified
- 2005 Act: drafted by National Advisory Council

Sound RTI regime
- Wide access: minimal fee; free for BPL
- Penalty: Rs 250/day up to Rs 25000
- Independent appeal: CIC and SICs
- Max disclosure: minimal exemption

Public authority
- Four sources: plus owned or financed
- Disputed: BCCI, PPPs, judiciary

Proactive duties
- 120 days: 16 types of information
- 100 days: designate PIOs
- 5 days: transfer misdirected request

RTI Act 2005

Section 8
- Exemptions a to q: copyright only absolute
- Second Schedule: CBI and NIA added
- 10 days: third-party notice
- 20 years: release rule

Citizen rights
- No reason needed: choice of medium and language
- BPL: fees waived
- Complaint to CIC/SIC: six grounds

2019 Amendment
- Tenure: Centre decides
- Salary: delinked from CEC/ECs
- CIC statutory: not constitutional

MNEMONIC · CRITERIA OF A SOUND RTI REGIME

W I D E

- **W** Wide access: minimal fees, free for BPL
- **I** Independent appeal: Information Commissions
- **D** Denial penalty: Rs 250 a day up to Rs 25,000
- **E** Exemption minimal, with maximum disclosure

WIDE access and WIDE disclosure: the four pillars. Order is rearranged for memory. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · RTI TIMELINES

T I M E D

- **T** Third-party notice: 10 days
- **I** Information of 16 types published within 120 days
- **M** Misdirected requests transferred within 5 days
- **E** Exempt information released after 20 years (with exceptions)
- **D** Designate PIOs within 100 days

RTI runs on TIMED deadlines: five numbers. Order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · WHO IS A PUBLIC AUTHORITY

Citizens Peek Sarkari Notice Boards

- **C** Constitution: bodies set up by or under it
- **P** Parliament law: bodies set up by it
- **S** State legislature law: bodies set up by it
- **N** Notification or order of the appropriate Government
- **B** Body owned, controlled or substantially financed (including NGOs)

Citizens peeking at government notice boards: the five kinds of public authority. (Memory aid, not from the handout.)

MNEMONIC · CIC SELECTION COMMITTEE (LAKSHMIKANTH)

C O P

- **C** Cabinet Minister (Union), nominated by the Prime Minister
- **O** Opposition Leader in the Lok Sabha
- **P** Prime Minister (Chairperson)

A COP watches the watchdog: the three who advise the President on the CIC. Order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · PHILOSOPHY OF RTI (PREAMBLE)

A C T E D

- **A** Accountability enforced
- **C** Checks on corruption
- **T** Transparency supported
- **E** Empowerment of citizens
- **D** Democracy promoted

The RTI Act ACTED on five aims, while balancing confidentiality and government efficiency. Order is rearranged for memory. (Memory aid, not from the handout.)

MY NOTES

RTI IN INDIA: HOW THE LAW CAME

- In **1997**, for the first time in India, the government set up a **working group under H.D. Shourie** that brought a draft bill, the **Freedom of Information Bill, 2002**. It was enacted but **not implemented or notified**. Most critics called it feeble legislation.
- Several states then enacted their own RTI laws, with **Tamil Nadu the first state in 1997**.
- The **RTI Act, 2005**: this bill was **not prepared by government bureaucrats but by the National Advisory Council**.

BEFORE 2005

Item	Detail
Working group	1997, under H.D. Shourie
Draft bill	Freedom of Information Bill, 2002 (enacted but not notified)
First state law	Tamil Nadu (1997)
Who drafted the 2005 bill	National Advisory Council, not bureaucrats

> **HANDOUT ALERT**
> Handout alert: The handout says the working group was set up in 1997 and brought the Freedom of Information Bill, 2002, in the same sentence. Learn the two facts as written: Shourie working group 1997, FOI Bill 2002 (not notified).

CRITERIA OF A SOUND RTI REGIME AND ITS PHILOSOPHY

FOUR CRITERIA

Criterion	What it means
Wide access	Widely accessible with minimal fees, free for BPL, easily perceivable information
Penalties for denial	Rs 250 per day up to a limit of Rs 25000, with an option of departmental disciplinary action
Independent appeal	Information Commissions (Central Information Commission and State Information Commissions) take up grievances
Maximum disclosure, minimal exemption	Some information cannot be public, but exemptions should be minimal

PHILOSOPHY (THE PREAMBLE TO THE ACT)

- The Act supports **transparency**, checks **corruption**, enforces **accountability**, gives **citizen's empowerment** and promotes **democracy**, balancing these with genuine concerns of government con-

MY NOTES

fidentiality, without seriously compromising the efficiency of government.

- **Memory aid (Four criteria): W**ide access, **P**enalties for denial, **I**ndependent appeal, **M**aximum disclosure: "**W**e **P**ush **I**nformation **M**ore."
- **Memory aid (Philosophy): T**ransparency, **C**orruption checked, **A**ccountability, **C**itizen empowerment, **D**emocracy: "**T**ell **C**itizens **A**ll **C**losed **D**oors."
- **Shortcut: Penalty. 250 a day, 25000 cap**: Rs 250 per day up to Rs 25000, plus possible disciplinary action.

MAIN FEATURES: INFORMATION, RIGHT AND PUBLIC AUTHORITY

- **All citizens** have the right to information.
- **Information** is defined very broadly: any material in any form including records, documents, memos, e-mail, opinions, advice, press releases, circulars, orders, logbooks, contracts, reports, papers, samples, models, data material held in any electronic form, and information relating to any private body which is held by a public authority under any other law for the time being in force.

RIGHT TO INFORMATION

- It is the right to information accessible under the Act, held by or under the control of any public authority, and includes the right to:
- **Inspect** work, documents or records.
- **Take notes, extracts or certified copies** of documents or records.
- **Take certified samples** of material.
- **Obtain information** in the form of diskettes, floppies, tapes, video cassettes or any other electronic mode or printouts where the information is stored in a computer or other device.

PUBLIC AUTHORITY

PUBLIC AUTHORITY MEANS ANY AUTHORITY, BODY OR INSTITUTION OF SELF-GOVERNMENT ESTABLISHED OR CONSTITUTED

By	Source
a	By or under the Constitution
b	By any other law made by Parliament
c	By any other law made by the State legislature
d	By notification issued or order made by the appropriate Government

MY NOTES

By	Source
e	Includes any body owned, controlled or substantially financed (including NGOs substantially financed directly or indirectly by funds provided by the appropriate government)

- **Substantially:** The term "substantially" is not defined in the Act. Some recommendations are given in ARC recommendations (see Ch 57: 50 percent of operating costs for 3 years or at least 1 crore).
- **Shortcut: Four sources + owned. Constitution, Parliament law, State law, Government notification, plus bodies owned, controlled or substantially financed.**

ALSO IN THE HANDOUT

- The act defines information in a very broad manner.

ISSUES OF PUBLIC AUTHORITY

DISPUTED BODIES

Body	What the handout says
President and Governors	A long-term issue was pending whether they are part of the definition of public authority
State federations	Substantially financed by government but argued against being declared public authority; through many judicial pronouncements many came under the definition
BCCI	Law Commission recommended it be declared a public authority; CIC affirmed in 2018
PPP projects	DoPT circular of 2013 directed that information be made public though many PPP projects were substantially financed by private firms; Delhi International Airport Limited (2010): CIC ruled DIAL a public authority as a typical PPP project, but Delhi HC stayed the order
Judiciary	See below
Political parties	See below

THE JUDICIARY

- Subhash Agrawal filed a petition in 2009 on whether judges were adhering to a 1997 resolution declaring their assets. The Apex Court stated that the apex court was **not covered** under the RTI.
- The CIC later ruled against the Supreme Court. The SC (its administrative side) appealed to the Delhi HC, which **sided with the CIC verdict**.
- Eventually, in **2019**, the Apex Court held that the judiciary **by and large is covered** under the RTI Act. Yet some SC observations are problematic:

MY NOTES

- – All information with the RBI about Scheduled Commercial Banks under the RBI Act is subject to disclosure, but in 2019 the courts said the RBI need not disclose banks' **risk evaluation reports and financial inspection reports**, though many banks are mired in financial mess, scams and scandals.
- – The SC said extensive RTI use has created **fear psychosis and paralysis** in the government, and that personal status of civil servants (name, address, physical and mental status) is beyond RTI, privacy to be maintained.
- – Professional records, assets and liabilities are also beyond RTI
- Names of interviewers responsible for recruitment need not be disclosed

> **HANDOUT ALERT**
> Handout alert: The judiciary paragraph gives 2009 (petition) and 2019 (the CIC ruling, the Delhi HC verdict and the Apex Court judgement) loosely, in a single run of sentences. Learn it as a sequence: SC said not covered, CIC ruled against SC, Delhi HC sided with CIC, SC in 2019 said judiciary by and large is covered.

POLITICAL PARTIES

- Money raised through **electoral bonds** is not subject to disclosure
- Money raised over and above, through proper channels, goes to the Election Commission and is in the public domain
- Questions on selection of candidates get the usual answers (winnability)
- Criminal and educational background information is already subject to disclosure
- In **2013** the CIC said **recognized political parties are subject to RTI** because they meet the substantial-financing criteria: IT exemptions, free airtime on state media, land at subsidized prices.

PARTIES' OBJECTIONS TO RTI

- **Arguments against:**
  - Parties are free associations of people
  - They do not use tax money directly
  - They lack infrastructure to implement RTI
  - It will be used by parties against each other
- **Position now:**
  - CIC decision not stayed or nullified by courts
  - Parties still do not implement it, citing that the matter is sub judice, though courts have not nullified the decision

MY NOTES

- **Memory aid (Public authority disputes): P**resident/Governors, **S**tate federations, **B**CCI, **P**PP projects, **J**udiciary, **P**olitical parties: "**P**eople **S**ee **B**ig **P**ublic **J**ustice **P**laces."

ALSO IN THE HANDOUT

- Since it was the administrative side of the SC which was filing petition, it could appeal in HC.

PROACTIVE DISCLOSURE AND DUTIES OF PUBLIC AUTHORITIES

- RTI advocates **proactive disclosure**. Additional obligations of public authorities:

DUTIES AND TIME LIMITS

Duty	Limit
Maintain records catalogued and indexed, and computerized within reasonable time	Reasonable time
Publish information (16 types) and update publication every year	Within 120 days of enactment
Provide as much information suo-moto as possible to reduce RTI requests	Continuing
Designate PIOs in all administrative units as necessary	Within 100 days of enactment
Transfer misdirected requests	Within 5 days of receipt of the application
NGOs substantially financed	Covered (handout lists this item)

- **Shortcut: Numbers. 120 days = 16 types. 100 days = PIOs. 5 days = transfer.**

EXEMPTIONS UNDER SECTION 8

- Section 8 specifies the information exempt from disclosure. The handout lists the points a to q.

SECTION 8 AS THE HANDOUT LISTS IT

Point	Exemption
a	Information that would prejudicially affect sovereignty and integrity of India, security, strategic, scientific or economic interest of the state, relations with a foreign state, or lead to incitement of an offence
b	Information expressly forbidden to be published by any court or tribunal, or that constitutes contempt of court
c	Disclosure that leads to a breach of privilege of Parliament and state legislatures

MY NOTES

Point	Exemption
d	Commercial confidence, trade secrets, intellectual property harming a third party's competitive position, unless a competent authority is satisfied that larger public interest is served
e	Information held in a fiduciary relationship, unless larger public interest warrants disclosure
f	Information received in confidence from a foreign government
g	Disclosure that would endanger the physical safety of any person or identify a confidential source for law enforcement or security
h	Information that would impede investigation, apprehension or prosecution of offenders
i	Cabinet papers including records of deliberations of CoM, Secretaries and other officers
j	Personal information with no relationship to public activity or interest, or causing unwarranted invasion of privacy, unless larger public interest justifies
k	Public interest override: despite the Official Secrets Act 1923 and the Section 8(1) exemptions, a public authority may allow access if disclosure outweighs harm to protected interests
l	Infringement of copyright subsisting in a person other than the state: the only absolute exemption in the Act
m	Information not to be denied to Parliament cannot be denied to citizens (as the handout words it)
n	Intelligence and security agencies in the Second Schedule are outside the Act, but corruption and human rights violation information must be given
o	Third-party information released after notice to and hearing of the third party; notice period 10 days
p	Act prevails over the Official Secrets Act 1923 and any inconsistent law; no court may entertain a suit about an order under the Act except by appeal under the Act
q	Wholly retrospective: applies to information held before the Act came into force, regardless of date

DETAIL ON THE KEY POINTS

- **Cabinet papers (i)**: decisions of the Council of Ministers, the reasons and the material on which decisions were made shall be made public after the decision has been taken and the matter is complete or over. Matters under the other exemptions are not to be disclosed.
- **Intelligence agencies (n)**: human rights violation information is provided only after approval of the concerned Information Commission. The Act did not mention investigating agencies, but **CBI and NIA were added to the Second Schedule list through an executive order**.

MY NOTES

- **Parliament (m)**: the handout says that when denying information to a citizen it should not be disclosed to Parliament, and that what cannot be denied to Parliament cannot be denied to citizens.
- **Retrospective (q)**:
  - A unique aspect
  - It is wholly retrospective

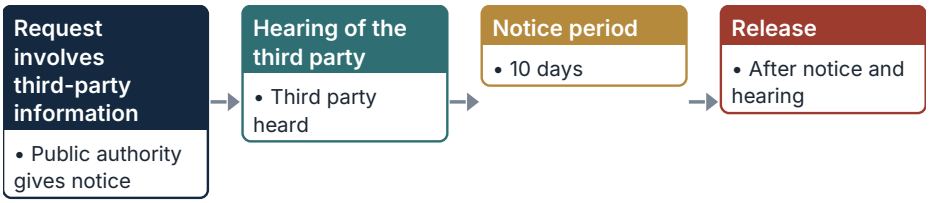
THE 20-YEAR RULE

- Information in exempted categories must be released **20 years after creation**, **except** Cabinet decisions, information relating to breach of legislature privilege, and information prejudicial to sovereignty and integrity, security, strategic and scientific, economic interest of the state, relations with a foreign state, or leading to incitement of an offence.

THIRD-PARTY INFORMATION

- **Request involves third-party information**: Public authority gives notice
- **Hearing of the third party**: Third party heard
- **Notice period**: 10 days
- **Release**: After notice and hearing

THIRD-PARTY INFORMATION



HANDOUT ALERT

Handout alert: The handout uses letters a to q for a list that mixes Section 8 exemptions with other provisions (public-interest override, Second Schedule, third-party notice, retrospectivity). Point m is worded loosely, and point l calls copyright the **only absolute exemption**. Learn both as the handout words them.

- **Shortcut: Absolute vs overridden. Copyright = only absolute exemption.** Points d, e and j carry a larger-public-interest override, and k is the general public-interest override. Cabinet papers go public after the matter is over.

MY NOTES

RIGHTS CONFERRED ON CITIZENS

TEN RIGHTS OF CITIZENS

No.	Right
1	The right to information
2	Choosing the medium of request
3	Choosing the language of request: English, Hindi or local language in which the application is filed
4	Seeking help in writing the request
5	Not stating any reason or personal details except those needed for contact
6	If transferred to another public authority, to be informed immediately
7	Assistance in accessing records if the applicant is disabled
8	All fees waived for Below Poverty Line applicants
9	All fees waived if the public authority fails to supply information within time limits
10	Knowledge of reasons for rejection, the appeal period and particulars of the appellate authority

COMPLAINT TO CIC/SIC WHEN

COMPLAINT GROUNDS

- **Access and response:**
  - Unable to submit request to PIO/APIO
  - Refused access
  - No response within time limit
- **Quality and fee:**
  - Required to pay unreasonable fee
  - Incomplete, misleading or false information
  - Any matter relating to accessing record
- **Memory aid (Waiver of fees):** **B**PL and **T**ime limit failure: "**B**PL and **T**ardy authorities pay no fee."

ALSO IN THE HANDOUT

- Making complaint to CIC/SIC as the case may be if:- a.

RTI AMENDMENT ACT, 2019

- Impact on transparency and autonomy.

KEY AMENDMENTS

Area	Change
Tenure and appointment	Central Government decides tenure of CIC and ICs; five-year term removed

MY NOTES

Area	Change
Salary and service conditions	Government empowered to fix salaries, allowances and service terms; delinked from CEC and ECs
Autonomy concerns	Excessive central control perceived to weaken independence of Information Commissions
Status	CIC is a statutory body, not a constitutional one

IMPACT ON AUTONOMY

- **Negative:**
  - Executive overreach (tenure and salary control reduces independence)
  - Public distrust (citizens may hesitate to file RTIs due to perceived bias)
  - Federal dilution (State Information Commissions lose autonomy under central oversight)
- **Positive:**
  - Administrative flexibility (governance-specific adjustments to tenure and salaries)
  - Fiscal discipline (cost-effective salaries, independent of EC benchmarks)
  - Policy alignment (central oversight may streamline implementation nationwide)
- **Critical reflection:** The amendment balances efficiency with institutional independence, but risks executive overreach. The true impact hinges on how responsibly the government exercises these powers within a framework of democratic accountability.
- **Memory aid (2019 changes):** **T**enure, **S**alary, **S**tatus: "**T**ime, **S**alary, **S**tatus are with the Centre now."

> **HANDOUT ALERT**
> Handout alert: This chapter says the 2019 Amendment removed the five-year term; Ch 57 gives the notified tenure as 3 years or age 65 (whichever is earlier), with a 5-year ceiling on combined IC and CIC tenure. Use Ch 57 for the current tenure; use this chapter for the principle (Centre decides).

ALSO IN THE HANDOUT

- RTI Amendment Act, 2019: Impact on Transparency and Autonomy Key Amendments 19.

> **FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 62-63, CENTRAL AND STATE INFORMATION COMMISSIONS**
> - CIC (2005) is not a constitutional body. It has a Chief Information Commissioner and not more than ten Information Commissioners, appointed by the President on the advice of the PM (chair), the Leader of Opposition in the Lok Sabha and a Union

MY NOTES

Cabinet Minister nominated by the PM. If there is no recognised Leader of Opposition, the leader of the largest opposition group counts.

- Members must be persons of eminence in public life with wide knowledge in law, science and technology, social service, management, journalism, mass media or administration. They cannot be MPs or MLAs, hold an office of profit, belong to a political party, or run a business or profession.
- Term:
  - As the Central Government prescribes or until age 65, whichever is earlier
  - No reappointment. An Information Commissioner can become Chief but the total service cannot exceed five years. Pay and conditions cannot be changed to the member's disadvantage during service
- Removal by the President: insolvency, conviction for an offence involving moral turpitude, paid employment outside office, unfitness through infirmity of mind or body, or an interest likely to harm official functions. For proved misbehaviour or incapacity the matter first goes to the Supreme Court. A member with an interest in a Central Government contract is deemed guilty of misbehaviour.
- Complaints the Commission hears: no PIO appointed, information refused, no reply in time, unreasonable fee, incomplete, misleading or false information, and any other matter. It can order an inquiry on its own (suo-moto) and has civil court powers: summoning, discovery of documents, evidence on affidavit, requisitioning public records, issuing summons for witnesses.
- It can examine any record, and none may be withheld. It can order access in a particular form, direct appointment of a PIO, order publication, change record practices, give more training, seek an annual compliance report, order compensation, impose penalties or reject the application.
- It sends an annual report to the Central Government, which lays it before each House of Parliament. It can also recommend steps to a public authority that does not follow the Act.
- State Information Commission: same pattern. Appointed by the Governor on advice of the Chief Minister (chair), the Leader of Opposition in the Assembly and a state Cabinet Minister nominated by the Chief Minister. The number of State Information Commissioners varies by state, and its annual report goes to the State Legislature.

MY NOTES

- 2019 Amendment, 'before' position: terms were fixed at 5 years. The CIC's pay matched the Chief Election Commissioner and an Information Commissioner's matched an Election Commissioner. State Chief's pay matched an Election Commissioner and a State IC's matched the Chief Secretary. The Amendment also removed the deduction of pension from their salary.

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Who headed the first working group (1997)?	H.D. Shourie.
What happened to the Freedom of Information Bill, 2002?	Enacted but not implemented or notified; critics called it feeble.
First state with an RTI law?	Tamil Nadu (1997).
Who drafted the RTI Act 2005 bill?	The National Advisory Council, not government bureaucrats.
Four criteria of a sound RTI regime?	Wide access; penalties for denial; independent appeal (CIC and SICs); maximum disclosure and minimal exemption.
Penalty under RTI criteria?	Rs 250 per day up to a limit of Rs 25000, plus departmental disciplinary action.
Philosophy of the Act?	Transparency, anti-corruption, accountability, citizen empowerment, democracy, balanced with genuine confidentiality concerns.
What does the right to information include?	Inspect work and records; take notes, extracts and certified copies; take certified samples; obtain information in electronic form or printouts.
Who is a public authority?	Bodies established by the Constitution, Parliament law, State law or government notification, plus bodies owned, controlled or substantially financed.
Is "substantially" defined?	No; ARC recommendations offer guidance.
BCCI under RTI?	Law Commission recommended public authority; CIC affirmed in 2018.
DIAL case?	2010: CIC held DIAL a public authority (typical PPP); Delhi HC stayed the order.

Judiciary under RTI?	2019: Apex Court held judiciary by and large covered, with problematic observations.
Political parties and RTI?	2013: CIC said recognized parties subject to RTI (IT exemptions, free airtime, cheap land); parties still do not implement.
Parties' objections?	Free associations; no direct tax money; lack infrastructure; misuse against each other.
Proactive duties' numbers?	120 days: publish 16 types; 100 days: designate PIOs; 5 days: transfer misdirected request.
Only absolute exemption?	Copyright of a person other than the state.
Third-party notice period?	10 days.
Exempt information release rule?	After 20 years, except Cabinet decisions, legislature privilege and sovereignty-type matters.
Is the RTI Act retrospective?	Yes, wholly; it covers information held before it came into force.
Agencies exempt but must give corruption and human rights information?	Intelligence and security agencies in the Second Schedule; human rights information only after Information Commission approval.
Which investigating agencies were added to the list?	CBI and NIA, by executive order.
Language of an RTI request?	English, Hindi or the local language of the applicant.
Do applicants have to give reasons?	No; only details necessary for contact.
When are fees waived?	For BPL applicants and if the authority misses the time limit.
Grounds for complaint to CIC/SIC?	No submission to PIO/APIO; refused access; no response in time; unreasonable fee; incomplete, misleading or false information; any access matter.
RTI Amendment Act 2019: three changes?	Centre decides tenure; Centre fixes salaries (delinked from CEC and ECs); CIC remains statutory body.
Positives of the 2019 amendment?	Administrative flexibility; fiscal discipline; policy alignment.
Negatives of the 2019 amendment?	Executive overreach; public distrust; federal dilution.

MY NOTES

Trap 1 · Political parties and RTI

In 2013 the CIC said recognised political parties are public authorities because of indirect government support. Parties still refuse, saying the matter is sub judice, though courts have not nullified the order. *Rule: CIC ruling stands; compliance is the problem.*

Trap 2 · The only absolute exemption

The handout names copyright infringement (copyright held by someone other than the State) as the only absolute exemption. Other Section 8 grounds can give way to a larger public interest. *Rule: copyright is absolute; others are weighed against public interest.*

Trap 3 · Intelligence agencies are not fully shut out

Agencies in the Second Schedule are exempt, yet information on corruption and human rights violations must be provided (human rights only with the Commission's approval). CBI and NIA were added by executive order. *Rule: exempt agencies still answer corruption and human rights allegations.*

Trap 4 · After the 2019 Amendment

The Centre now decides the tenure, salary and service terms; the five-year term was removed and pay was delinked from the CEC and ECs. The CIC is a statutory body, not a constitutional one. *Rule: 2019 = Centre-controlled tenure and pay; CIC is statutory.*

QUICK QUIZ

Q1. Which body drafted the RTI Bill of 2005?

1. The Law Commission
2. The National Advisory Council
3. The 2nd ARC
4. The Planning Commission

Q2. The penalty for denial of information under the criteria in the handout is

1. Rs 250 per day up to Rs 25000
2. Rs 500 per day up to Rs 50000
3. Rs 250 per day with no limit
4. Rs 25000 flat

Q3. Which state was the first to enact its own RTI law?

1. Delhi
2. Tamil Nadu
3. Maharashtra
4. Rajasthan

Q4. Public authorities must publish 16 types of information within

1. 100 days
2. 120 days
3. 5 days
4. 20 years

Q5. The only absolute exemption under the Act, per the handout, concerns

1. Cabinet papers
2. Copyright of a person other than the state
3. Foreign relations
4. Privacy

Q6. Third-party information is released after notice of

1. 5 days
2. 10 days
3. 20 days
4. 120 days

MY NOTES

Q7. Exempted information must be released after how many years (with listed exceptions)?

1. 10
2. 15
3. 20
4. 30

Q8. Which agencies were added to the Second Schedule list through an executive order?

1. CBI and NIA
2. CVC and CAG
3. RAW and IB
4. ED and NIA

Q9. Which year did the CIC affirm BCCI a public authority?

1. 2010
2. 2013
3. 2018
4. 2019

Q10. In 2013 the CIC held which bodies subject to RTI?

1. PPP projects
2. Recognized political parties
3. The Supreme Court
4. State federations

Q11. Fees are waived for BPL applicants and also

1. for all students
2. when a public authority fails to supply information in time
3. for disabled applicants only
4. never otherwise

Q12. The RTI Amendment Act, 2019 delinked the salaries of CIC and ICs from

1. the Judges
2. the CEC and ECs
3. the Chief Secretary
4. the Lok Sabha Speaker

Answers: Q1 b, Q2 a, Q3 b, Q4 b, Q5 b, Q6 b, Q7 c, Q8 a, Q9 c, Q10 b, Q11 b, Q12 b

MY NOTES

CHAPTER 57 · HANDOUT: RTI, CIC, ISSUES AND CHALLENGES, IMPACT AND 2ND ARC RECOMMENDATIONS

57 RTI: CIC, Issues and Impact

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

EXAM LENS

Prelims hooks

- none quoted in the material for this chapter
- Expect composition, selection committee, tenure, removal grounds and the ARC's numbers.
- Handout stresses: CIC composition: 1 Chief plus up to 10 ICs; selection committee of PM, Leader of Opposition (Lok Sabha) and a Union Cabinet Minister (Composition)
- Handout stresses: Tenure and salary under the RTI Rules, 2019: 3 years or age 65, Rs 2,50,000 (CIC) and Rs 2,25,000 (IC) (Tenure and Salary)
- Handout stresses: Long list of issues and challenges with figures (12 percent, 26 percent, 13 percent, 33 percent, 95 percent, 2.55 lakh, 40 to 60 lakh) (Issues and Challenges)
- Handout stresses: Second ARC recommendations (OSA repeal, classification, CJI in selection committee, 1 percent funds, substantially financed test) (2nd ARC)

Mains hooks

- none quoted in the material for this chapter
- The issues, impact and 2nd ARC lists supply ready structure for a challenges-and-reforms answer.

A statutory Commission whose tenure and pay are now set by the Centre, working an Act whose implementation lags: pendency, weak penalties, low awareness, and a reform list led by the Second ARC.

IN SIMPLE WORDS

- The **Central Information Commission (CIC)** is the top appeals body under the RTI Act: one **Chief Information Commissioner** and up to **ten** Information Commissioners, appointed by the **President**.

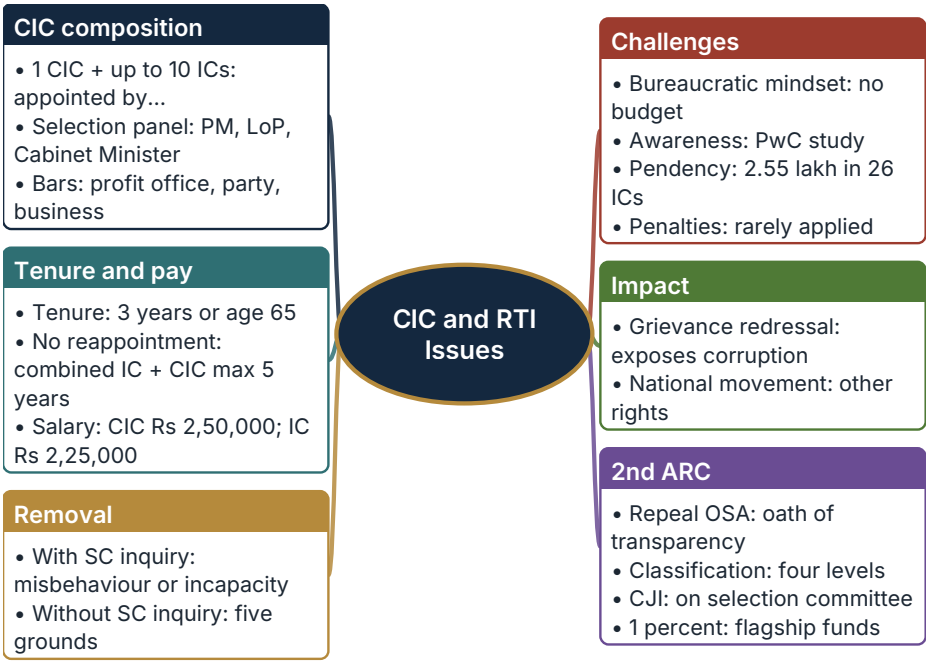
MY NOTES

- The selection panel is the **PM (chair), Leader of Opposition (Lok Sabha) and a Union Cabinet Minister** nominated by the PM. Members cannot hold an office of profit, join a party or run a business.
- After the **RTI Amendment Act, 2019**, tenure and pay are set by the Centre through rules: now **3 years or age 65**, CIC **Rs 2,50,000**, IC **Rs 2,25,000**. Pay is no longer tied to the Election Commission and the CIC stays **statutory**, not constitutional.
- Removal:
  - **misbehaviour or incapacity** only after a **Supreme Court inquiry**
  - Five other grounds (insolvency, moral turpitude, paid job, unfitness, harmful interest) need no inquiry
- Problems: weak awareness, rarely used penalties, huge **pendency**, vacancies, retired bureaucrats as ICs, unimplemented orders and late annual reports. Impact: a **grievance redressal** tool that exposes scams but works best for personal information.
- The **2nd ARC** wanted the Official Secrets Act repealed, an oath of transparency, the **CJI** on the selection panel, a public record office and **1%** of flagship funds for RTI.

Key term	In plain words
Statutory body	Created by an Act (RTI Act, 2005), not by the Constitution, so it has fewer safeguards
Selection committee	PM (chair), Leader of Opposition in Lok Sabha, a Union Cabinet Minister nominated by the PM
PIO	Public Information Officer; often an existing officer with extra duty and no extra incentive
Schedule II	List of bodies exempt from RTI; the handout says it is abused and many bodies were added against the spirit of the law
Suo moto disclosure	Information a body must publish on its own; 2nd ARC wants it in print and free for reference
Classification of documents	Top Secret, Secret, Confidential, Restricted; reviewed every 5 years under the Public Records Act, 1993
Nodal PIO	Officer named where an organisation has more than one PIO, to route each request to the right PIO (2nd ARC)
Substantially financed body	Gets 50% of operating costs for 3 years from government, or at least Rs 1 crore in funding (2nd ARC)

MY NOTES

MEMORY MAP: RTI: CIC, ISSUES AND IMPACT



MNEMONIC · CIC SELECTION COMMITTEE

C O P

- **C** Cabinet Minister (Union) nominated by the PM
- **O** Opposition Leader in Lok Sabha
- **P** Prime Minister (Chairperson)

A COP picks the commissioners: PM, Leader of Opposition, Cabinet Minister. Order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · CIC AND IC REMOVAL WITHOUT SC INQUIRY

D E B I T

- **D** Declared insolvent
- **E** Employment (paid) during tenure
- **B** Body or mind unfit
- **I** Interest, financial or other, harming duties
- **T** Turpitude: conviction for an offence involving moral turpitude

Five grounds DEBIT (cut short) a commissioner's term without a Supreme Court inquiry. Order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · DOCUMENT CLASSIFICATION (2ND ARC)

Top Secrets Cannot Reveal

- **T** Top Secret: exceptionally grave damage
- **S** Secret: serious damage
- **C** Confidential: simple damage
- **R** Restricted: for official use only

The four levels from most to least damaging if the document is exposed. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · 2ND ARC: IMPROVING ACCESS TO INFORMATION

POSTAL

- **P** PIO nodal officer where an organisation has more than one PIO
- **O** Offices: 4 regional offices of the CIC
- **S** Suo moto disclosure available in print, free for reference
- **T** Tools of payment made flexible: stamps or postal orders
- **A** Agency: single window in districts to receive requests
- **L** Level of central secretariat PIOs: at least Deputy Secretary or Director

POSTAL orders are part of the access reforms: six recommendations. Order is rearranged for memory. (Memory aid, not from the handout.)

THE CENTRAL INFORMATION COMMISSION: COMPOSITION

COMPOSITION AND APPOINTMENT

Item	Detail
Members	One Chief Information Commissioner (CIC) and up to ten Central Information Commissioners (ICs)
Appointing authority	President of India
Selection committee	Prime Minister (Chairperson); Leader of Opposition (Lok Sabha); a Union Cabinet Minister nominated by the Prime Minister
Eligibility	Eminent persons with knowledge or experience in law, science, social service, journalism, mass media, public administration, etc.
Bars during tenure	Cannot hold office of profit, be associated with political parties, or pursue any business

- **Memory aid (Selection committee): P**rime Minister, **L**eader of Opposition, **C**abinet Minister: "**P**olitics **L**oves **C**ommittees."
- **Memory aid (Eligibility fields): L**aw, **S**cience, **S**ocial service, **J**ournalism, **M**ass media, **P**ublic administration: "**L**et **S**mart **S**tudents **J**udge **M**any **P**roblems."
- **Shortcut: Three-member panel. PM chairs, LoP (Lok Sabha) sits, one Union Cabinet Minister** (PM's nominee). The 2nd ARC would replace the Cabinet Minister with the CJI.

ALSO IN THE HANDOUT

- RTI - CIC, ISSUES AND CHALLENGES, IMPACT OF RTI AND 2ND ARC RECOMMENDATIONS ## Central Information Commission (CIC) ## Composition 36.

MY NOTES

TENURE AND SALARY (RTI RULES, 2019)

TENURE AND SERVICE CONDITIONS

Item	Detail
Who decides tenure	The Central Government, by official notifications
Notified tenure	3 years or until age 65, whichever is earlier
Reappointment	None after completing the term
IC elevated to CIC	Allowed, but combined tenure as IC and CIC cannot exceed 5 years in total
CIC salary	Rs 2,50,000 per month
IC salary	Rs 2,25,000 per month
Other conditions	Allowances and conditions specified by the Central Government, not embedded in the parent RTI Act

- Salary and service conditions are prescribed via rules and **delinked from CEC/EC pay parity**.

BEFORE AND AFTER 2019

- **Before:**
  - Tenure and conditions codified in the RTI Act
  - Pay linked to the CEC and ECs (as the handout contrasts)
- **After (2019):**
  - Tenure, salary, allowances and service conditions determined by executive rules
  - Salary de-linked from Election Commission norms
  - CIC remains a statutory body (not constitutional)
- **Shortcut: Numbers. 3 yrs or 65, no reappointment, 5 yrs combined. CIC 2.5 lakh, IC 2.25 lakh.**

> **HANDOUT ALERT**
> Handout alert: Ch 56 says the 2019 Amendment removed the five-year term; this chapter gives the notified tenure as 3 years or age 65 (whichever is earlier) and a 5-year ceiling on combined IC and CIC tenure. Use this chapter for the figures; Ch 56 for the principle that the Centre decides.

REMOVAL PROCESS

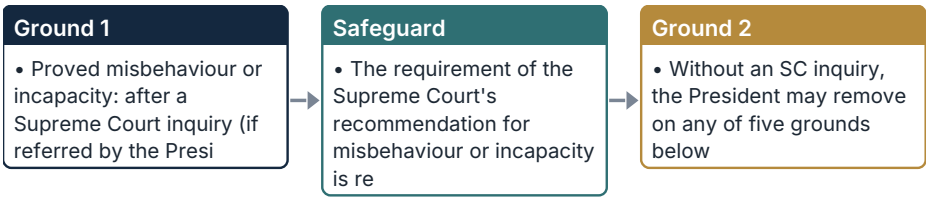
REMOVAL OF CIC OR IC BY THE PRESIDENT

- **Ground 1**: Proved misbehaviour or incapacity: after a Supreme Court inquiry (if referred by the President)
- **Safeguard**: The requirement of the Supreme Court's recommendation for misbehaviour or incapacity is retained

MY NOTES

- **Ground 2**: Without an SC inquiry, the President may remove on any of five grounds below

REMOVAL OF CIC OR IC BY THE PRESIDENT



GROUNDS WITHOUT SC INQUIRY

No.	Ground
1	Declared insolvent
2	Convicted of an offence involving moral turpitude
3	Engaged in paid employment during tenure
4	Physically or mentally unfit to continue
5	Holds any financial or other interest likely to affect duties prejudicially

- **Memory aid (Five grounds):** **I**nsolvent, **C**onvicted (moral turpitude), **P**aid employment, **U**nfit (physical or mental), **F**inancial interest: "**I** **C**an't **P**ay **U**s **F**ully."
- **Shortcut: Two tracks. Misbehaviour or incapacity = SC inquiry. The five other grounds = no SC inquiry.**

KEY CHANGES AFTER THE RTI AMENDMENT ACT, 2019

FOUR CHANGES

No.	Change
1	Tenure and service conditions are no longer codified in the RTI Act; they are determined by executive rules
2	CIC/ICs' salary de-linked from Election Commission norms
3	CIC remains a statutory body (not constitutional), limiting institutional safeguards
4	The Central Government holds greater discretion in determining tenure, salary, allowances and service conditions

- **Memory aid (Four changes):** **R**ules decide tenure, salary **D**elinked from EC, **S**tatutory body only, **D**iscretion of the Centre: "**R**ules **D**ecide **S**tatus **D**aily."

ISSUES AND CHALLENGES

- RTI is a **means** to access to information. There is a gap between the right to information as a means and access to information as an end.

MY NOTES

ATTITUDE AND POLITICAL WILL

- **Bureaucratic mindset**: RTI is an accountability tool, so the bureaucracy resists embracing it fully.
- **Absence of political will**:
  - The bill was well drafted and appreciated across the globe, but hesitancy in bureaucracy and then politicians weakened political will
  - Many scams being exposed harmed the existing government
- **Waning interest**:
  - Media, social activists and civil society must keep generating awareness
  - Of late interest in media and activists is waning

MONEY, AWARENESS AND LAW

- **No specific budgetary allocation**:
  - No separate funds for RTI implementation
  - The 2nd ARC suggested 1 percent of flagship scheme funds for upgrading RTI infrastructure
- **Limited awareness**: a PwC study found only 12 percent of women, 26 percent of men, 13 percent of rural and 33 percent of the urban populace aware of the RTI law.
- **Vague terms and phrases** in the law lead to implementation issues.

COMMISSIONS

- **IC dominated by retired bureaucrats** affects impartiality.
- **Penal provisions rarely applied**:
  - Satark Nagrik Sangathan found a penalty was not imposed in 95 percent of the cases where it should have been
  - Alleged soft corner of retired bureaucrats for the government machinery
- **No organic relationship between CIC and SIC**
- Ideally a national platform for collaboration, but none exists
- **Orders not implemented**: no contempt powers with the ICs.
- **Annual reports delayed**:
  - Every IC must submit an annual report to the legislature
  - 21 out of 29 ICs did not submit a report in 2019-20
  - The SICs of Andhra Pradesh and Telangana have not published reports since 2017 and Odisha since 2015-16

PIOS AND RECORDS

- **Extra burden on PIO without incentives**: a person with existing principal duties takes on the work, causing lack of motivation.
- **Juniors appointed as PIO** to interpret the law
- Officers with sufficient seniority should be appointed

MY NOTES

- **Poor record keeping**:
  - A key reason for delay
  - A specialized record keeping agency to advise and train has been suggested
- **Abuse of Schedule II**: many bodies included against the spirit of the law.

PENDENCY

- An estimated **40 to 60 lakh** RTI requests are filed annually.
- Pendency in **26 ICs is 2.55 lakh** cases
- Vacancies in IC posts add to the delay
- Estimated average time to dispose of a request is **1 year 11 months**
- COVID worsened this
- Delay violates the spirit of the law since RTI requests are filed for contemporary needs.

STATISTICS AT A GLANCE

Item	Number
PwC: aware (women, men)	12 percent, 26 percent
PwC: aware (rural, urban)	13 percent, 33 percent
Penalty not imposed (Satark Nagrik Sangathan)	95 percent of cases where it should have been
RTI requests per year	40 to 60 lakh
Pendency in 26 ICs	2.55 lakh cases
Average disposal time	1 year 11 months
ICs not filing annual report 2019-20	21 out of 29

- **Memory aid (Challenge groups):** **A**ttitude, **M**oney and awareness, **C**ommissions, **P**IOs and records, **R**equests pending: "**A**ll **M**ust **C**lear **P**ending **R**equests."

> **HANDOUT ALERT**
> Handout alert: The PwC line reads "12% women, 26% men, and only 13% of rural and 33% of the urban populace" with an unclear grammar ("only" attached to some groups). Treat all four as awareness figures as the handout states them.

ALSO IN THE HANDOUT

- But hesitancy in bureaucracy and later in politicians led to the weakening of political will to empower the act and its success.
- There is also vacancy in posts of IC leading to additional delay and pendency.
- COVID has further the exacerbated this problem.

MY NOTES

- Media, social activists and civil society has to continually generate awareness among the public regarding the benefits of the act and the empowering nature of the act.

IMPACT OF RTI

- Beyond transparency it has become a tool for **grievance redressal**
- Many citizens benefited
- It has helped expose **corruption, wasteful expenditure, scams, junkets, false narratives, recruitment results, marks** etc.
- **Rural population** has gained access largely because of **NGO help**.
- It became a **national movement** and aided other rights-based movements like the **Right to Food** and **right to education**.
- RTI has been more successful for **personally relevant information**
- Where controversial information of large public interest is involved, the movement has **fallen short**

STRENGTHS AND GAPS

- **Strengths:**
  - Transparency tool
  - Grievance redressal
  - Exposes corruption and waste
  - National movement aiding Right to Food and education
- **Gaps:**
  - Rural access depends on NGOs
  - Falls short on controversial information of large public interest

SECOND ARC RECOMMENDATIONS

RECOMMENDATIONS BY THEME

Theme	Recommendation
Secrecy laws	Repeal the Official Secrets Act; replace the oath of secrecy with an oath of transparency
Second Schedule	Periodic review to prevent inflation of the list; organizations not necessary should be removed
Classification	Top Secret: exceptionally grave damage; Secret: serious damage; Confidential: simple damage; Restricted: for official use only
Appointments	Selection committee to include the CJI instead of a Union Cabinet Minister; at least half of ICs from non-civil service background
Access	4 regional offices of CIC; nodal PIO where an organization has more than 1 PIO; PIOs in the central secretariat of at least Deputy Secretary or Director level; flexible payment via stamps or postal orders; single window agency in districts as a nodal point; suo moto disclosure in print and free for reference

MY NOTES

Theme	Recommendation
Records	Public record office as an independent authority in Centre and States as a repository of technical expertise
Funding	One-time earmark of 1 percent of funds of all flagship programmes for 5 years for infrastructure and RTI manuals
Training	Training for civil servants, not only PIOs
Awareness	Campaigns entrusted to credible NGOs; CIC and SIC to issue ready reckoners for the public
Coordination	National Coordination Committee chaired by the Central Information Commissioner for an organic CIC-SIC relationship
Substantially financed	Bodies funded substantially by government to be brought under RTI: receiving 50 percent of operating costs for 3 years, or at least 1 crore in government funding
Frivolous complaints	Take steps to check them

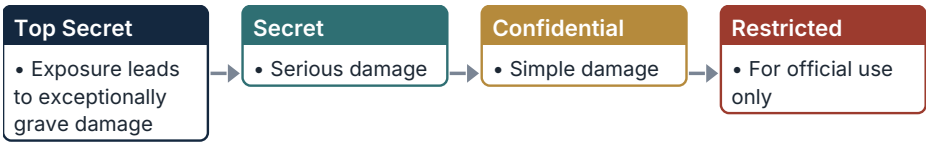
CLASSIFICATION OF CONFIDENTIAL DOCUMENTS

- The norms for classification are laid down by the Ministry of Home and are **not in the public domain**.
- The **Public Records Act, 1993** mandates a **5-year review** of top secret, secret and confidential information for declassification or downgrading.
- Declassification procedure and norms are also not public, so the discretion of the government has to be checked.

FOUR LEVELS OF CLASSIFICATION

- **Top Secret**: Exposure leads to exceptionally grave damage
- **Secret**: Serious damage
- **Confidential**: Simple damage
- **Restricted**: For official use only

FOUR LEVELS OF CLASSIFICATION



- **Memory aid (Classification):** **T**op Secret, **S**ecret, **C**onfidential, **R**estricted: "**T**ell **S**ecrets **C**arefully, **R**eally."
- **Memory aid (ARC themes):** **R**epeal OSA, **S**econd Schedule review, **C**lassification, **A**ppointments, **R**ecords, **F**unding, **T**raining, **A**wareness, **C**oordination, **S**ubstantially financed, **F**rivolous complaints: "**R**eal **S**cholars **C**heck **A**ll **R**ecords, **F**ind **T**ruth, **A**void **C**orruption, **S**erve **F**airly."

MY NOTES

- **Shortcut: Numbers in the ARC list. 1 percent for 5 years. 4 regional offices. Deputy Secretary or Director level PIOs. 50 percent for 3 years or 1 crore. 5-year review under the Public Records Act 1993.**

ALSO IN THE HANDOUT

- Single window agency in districts to receive request on behalf of all PIOs in the district.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 62-63, CIC AND SIC

- The CIC was set up by the Central Government in 2005 under the RTI Act. It hears complaints and appeals about offices, financial institutions and PSUs under the Centre and the Union Territories.
- Eligible persons are of eminence in public life with wide knowledge in law, science and technology, social service, management, journalism, mass media or administration and governance. They must not be an MP or a member of any State or UT legislature.
- If no Leader of Opposition is recognised in the Lok Sabha, the leader of the single largest opposition group is deemed the Leader of Opposition.
- The CIC must inquire into complaints from a person who:
  - Could not file a request because no PIO was appointed
  - Was refused information
  - Got no reply in time
  - Thinks fees are unreasonable
  - Got incomplete, misleading or false information
  - Or has any other matter on obtaining information
- It can order an inquiry on reasonable grounds (suo-moto power) and has civil court powers: summoning witnesses, discovery and inspection of documents, evidence on affidavit, requisitioning public records and issuing summons. No record can be withheld from it on any ground.
- To secure compliance it can order information in a particular form, a PIO where none exists, publication of information, changes in record practices, more RTI training, an annual compliance report, compensation to the applicant, penalties, or rejection of the application.
- Penalty on a PIO: Rs 250 per day up to a maximum of Rs 25,000, plus a recommendation for disciplinary action.
- The annual report goes to the Central Government, which places it before each House of Parliament. The CIC may also recommend steps to a non-conforming authority.

MY NOTES

- State Information Commission: appointed by the Governor on the advice of the Chief Minister (chair), the Leader of Opposition in the Assembly and a State Cabinet Minister. Its members' term and pay are also prescribed by the Central Government, and the number of State ICs differs by state.
- Before the 2019 Amendment the term was fixed at 5 years. CIC pay matched the Chief Election Commissioner and IC pay the Election Commissioner
- The State CIC matched an Election Commissioner and a State IC the Chief Secretary. The Amendment also removed the pension deduction from their salary

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Composition of the CIC?	One Chief Information Commissioner and up to ten ICs, appointed by the President.
Selection committee for CIC and ICs?	PM (Chair), Leader of Opposition (Lok Sabha), a Union Cabinet Minister nominated by the PM.
Bars on Commissioners?	No office of profit, no link with political parties, no business during tenure.
Notified tenure of CIC and ICs?	3 years or age 65, whichever is earlier; no reappointment.
IC elevated to CIC: limit?	Combined tenure as IC and CIC cannot exceed 5 years.
Salaries under RTI Rules, 2019?	CIC Rs 2,50,000 per month; IC Rs 2,25,000.
Who fixes tenure and pay now?	The Central Government by rules, delinked from CEC/EC parity.
Removal on proved misbehaviour or incapacity?	By the President after a Supreme Court inquiry (if referred by the President).
Grounds for removal without SC inquiry?	Insolvency; conviction for moral turpitude; paid employment; physical or mental unfitness; financial or other interest prejudicially affecting duties.
Is the CIC constitutional?	No; it remains a statutory body.
Main gap in RTI implementation?	Gap between right to information as a means and access to information as an end.

Bureaucratic mindset challenge?	RTI is an accountability tool, so the bureaucracy resists embracing it fully.
Budget problem?	No separate funds; 2nd ARC suggested 1 percent of flagship scheme funds.
PwC awareness figures?	12 percent women, 26 percent men, 13 percent rural, 33 percent urban.
Penalty finding?	Satark Nagrik Sangathan: penalty not imposed in 95 percent of cases where it should have been.
Why are orders of Commissions not implemented?	ICs have no contempt powers.
Pendency figures?	40 to 60 lakh requests yearly; 2.55 lakh pending in 26 ICs; average disposal 1 year 11 months.
Annual reports?	21 of 29 ICs did not submit in 2019-20; AP and Telangana SICs not since 2017; Odisha since 2015-16.
Impact of RTI?	Grievance redressal; exposes corruption and waste; national movement aiding Right to Food and education; better for personally relevant information.
2nd ARC on secrecy?	Repeal Official Secrets Act; oath of transparency instead of secrecy.
Four classification levels?	Top Secret (exceptionally grave damage), Secret (serious), Confidential (simple), Restricted (official use only).
Who decides classification norms?	The Ministry of Home; not in the public domain; Public Records Act 1993 mandates a 5-year review.
2nd ARC on selection committee?	CJI instead of a Union Cabinet Minister; at least half the ICs from non-civil service background.
2nd ARC access reforms?	4 regional CIC offices; nodal PIO; PIOs at Deputy Secretary or Director level; stamps or postal orders; single window in districts; suo moto disclosure in print.

MY NOTES

2nd ARC on records and funding?	Independent public record office; 1 percent of flagship funds for 5 years.
2nd ARC on CIC-SIC link?	National Coordination Committee chaired by the Central Information Commissioner.
2nd ARC test of substantial financing?	50 percent of operating costs for 3 years or at least 1 crore in government funding.

Trap 1 · Statutory, not constitutional

The 2019 Amendment moved tenure, salary and service conditions out of the Act into executive rules and delinked pay from the Election Commission. The CIC remains statutory. *Rule: CIC = statutory body; Centre has discretion over tenure and pay.*

Trap 2 · Tenure and the 5-year cap

Notified tenure is 3 years or age 65, whichever is earlier, with no reappointment. An IC may be elevated to CIC, but the combined tenure cannot exceed 5 years. *Rule: 3 years or 65 for one post; 5 years total if elevated.*

Trap 3 · Which removals need the Supreme Court

Only proved misbehaviour or incapacity goes through a Supreme Court inquiry. Insolvency, moral turpitude, paid employment, unfitness and harmful interest do not. *Rule: SC inquiry = misbehaviour or incapacity only.*

Trap 4 · 2nd ARC wish versus current law

The 2nd ARC wants the CJI instead of the Cabinet Minister on the panel and at least half the ICs from non-civil-service backgrounds. These are recommendations, not the present rule. *Rule: today the third member is a Union Cabinet Minister.*

QUICK QUIZ

Q1. How many Information Commissioners (besides the Chief) can the CIC have?

1. Up to five
2. Up to ten
3. Up to fifteen
4. Up to twenty

Q2. Who is on the selection committee for the CIC as per the handout?

1. PM, Leader of Opposition (Lok Sabha), Union Cabinet Minister nominated by PM
2. PM, CJI, Speaker
3. President, VP, PM
4. PM, Home Minister, CJI

Q3. Notified tenure of the CIC and ICs under the 2019 Rules is

1. 5 years or 65 years
2. 3 years or 65 years, whichever is earlier
3. 6 years or 62
4. until age 70

Q4. Salary of the Chief Information Commissioner under the 2019 Rules is

1. Rs 2,25,000 per month
2. Rs 2,50,000 per month
3. Rs 2,80,000 per month
4. Rs 3,00,000

MY NOTES

Q5. CIC or IC can be removed after a Supreme Court inquiry on grounds of

1. insolvency
2. proved misbehaviour or incapacity
3. paid employment
4. moral turpitude

Q6. Which ground allows removal without an SC inquiry?

1. Proved misbehaviour
2. Incapacity
3. Conviction for an offence involving moral turpitude
4. Disagreement with the Government

Q7. The CIC is a

1. constitutional body
2. statutory body
3. a body created by a Constitutional Article
4. executive agency

Q8. The 2nd ARC recommended earmarking what share of flagship scheme funds for RTI?

1. 0.5 percent
2. 1 percent
3. 2 percent
4. 5 percent

Q9. Under the 2nd ARC, a body is 'substantially financed' if it gets

1. 25 percent of costs for 5 years
2. 50 percent of operating costs for 3 years or at least 1 crore
3. 75 percent of costs
4. 10 crore

Q10. Which Act mandates a 5-year review of classified information?

1. Official Secrets Act 1923
2. Public Records Act 1993
3. RTI Act 2005
4. Evidence Act

Q11. The handout says a penalty was NOT imposed in what share of cases where it should have been?

1. 50 percent
2. 75 percent
3. 95 percent
4. 12 percent

Q12. Which is one of the 2nd ARC's four classification levels?

1. Restricted
2. Hidden
3. Public
4. Sealed

Answers: Q1 b, Q2 a, Q3 b, Q4 b, Q5 b, Q6 c, Q7 b, Q8 b, Q9 b, Q10 b, Q11 c, Q12 a

MY NOTES

58 Problem of Corruption

CHAPTER 58 · HANDOUT SECTION 3

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

EXAM LENS

Prelims hooks

- none quoted in the material
- Likely hooks from the handout: TI definition, scale of the CPI, Black/White/Grey corruption, PETS, Global Corruption Barometer, Section 6A of DSPE Act struck down in 2014.
- Handout stresses: Handout gives many named concepts: Elephant Test, Grass/Meat eating, Squirrel Nuts Syndrome, Thymos, Opportunity Theory, Revisionism (Types and Factors sections)
- Handout stresses: Legal factors list Article 311, Section 19 of PCA 1988, Section 197 of CrPC, Section 6A of DSPE Act 1946 and the 2018 PCA amendment (Section 17A) (Legal Factors)
- Handout stresses: Corruption Perception Index: 0 = most corrupt, 100 = least corrupt, released annually since 1995; limits of perception surveys listed (Measuring Corruption)

Mains hooks

- none quoted in the material
- Use the structure: define (TI and Elephant Test), types, consequences (social, economic, political, security, international), causes (five families), then measurement and its limits.

Corruption is not only bribe-taking: it grows from opportunity, weak law and weak will, and it is measured imperfectly, so the cure must reduce opportunity as well as punish.

IN SIMPLE WORDS

- **Corruption** is as old as civilisation: **Kautilya's Arthashastra** lists how civil servants misuse office. It exists everywhere, only the degree differs.
- Defining it is hard. Is a gift a bribe? It depends on **intent, expectation, timing, value, law and social acceptance**. Cultures differ: UK school ties, US lobbying, Russia's **Blat**, China's

MY NOTES

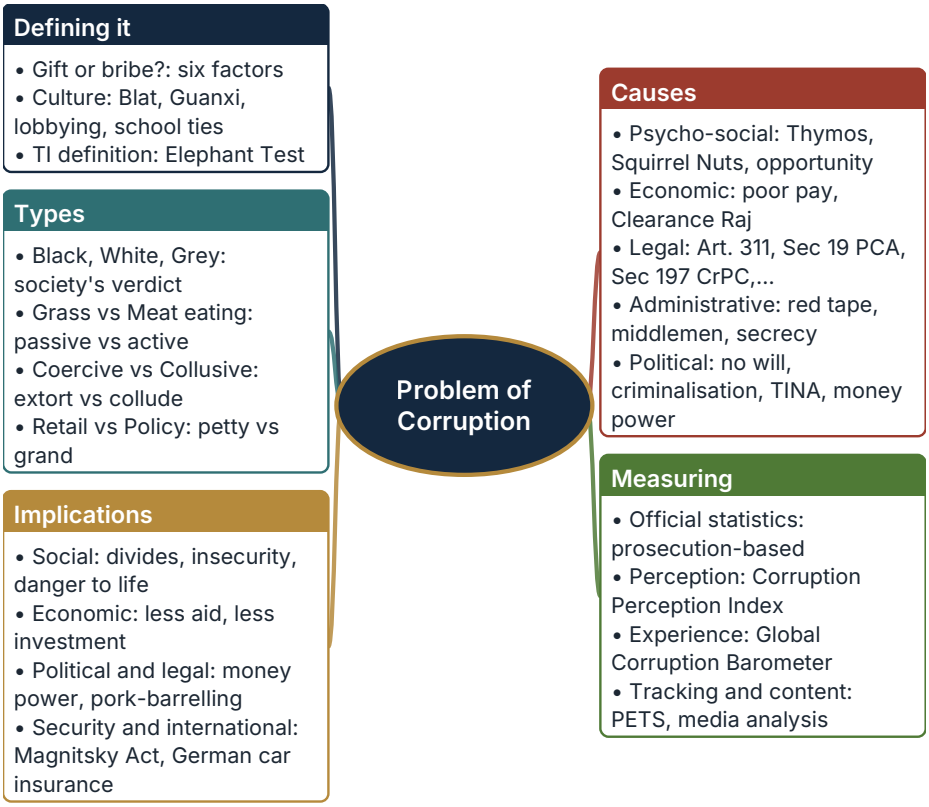
Guanxi. Transparency International says **private abuse of public office** and uses the **Elephant Test**.

- Types:
  - **black, white, grey**
  - **grass-eating vs meat-eating**
  - **coercive vs collusive**
  - **retail (petty) vs policy (grand)**. It also covers any behaviour harming public interest, such as negligence and nepotism
- Effects: **social** (divisions, insecurity), **economic** (less aid and investment, a hidden tax), **political-legal** (money power, pork-barrelling), **security** and **international**.
- Causes: **psycho-social, economic, legal** (Art. 311, PCA Sec 19, CrPC Sec 197, DSPE Sec 6A, then PCA Sec 17A), **administrative** and **political**.
- Measured through official statistics, **perception** surveys (TI's **CPI**, since 1995, 0 = most corrupt, 100 = least), **experiential** surveys, **tracking** surveys (PETS) and **content analysis**.

Key term	In plain words
Elephant Test	Corruption is hard to define but society knows it when it sees it
Grass-eating corruption	A public servant who will not seek bribes but will not refuse one if offered
Meat-eating corruption	A public servant who actively seeks chances to gain by corrupt means
Policy (grand) corruption	Crony capitalism and state capture; business houses shape policy for illegal benefit
Pork-barrelling	A public project shown as useful but really serving private interests
Squirrel Nuts Syndrome	Officers near retirement turn more corrupt to keep the benefits they enjoyed in service
Thymos	Greek for respect or recognition; low self-worth is linked to corruption through materialism
PETS	Public Expenditure Tracking Survey of the World Bank; tracks how donor funds flow through levels

MY NOTES

MEMORY MAP: PROBLEM OF CORRUPTION



MNEMONIC · IS A GIFT A BRIBE? SIX TESTS

T R A G I C

- **T** Timing of the gift
- **R** Recipient's expectation
- **A** Acceptability to society
- **G** Gift's value
- **I** Intent of the donor
- **C** Country's legal framework

A gift turned bribe is TRAGIC: six factors judge it. Order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · BLACK, WHITE AND GREY CORRUPTION

G U T

- **G** Grey: sections of society disagree
- **U** Unanimous condemnation: Black corruption
- **T** Tolerated though seen as corrupt: White corruption (speed money)

Elephant Test: society knows corruption by its GUT feeling. Three types, order is rearranged for memory. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · PRIOR SANCTION CHAIN

Vineet Defeats Shields, Probes

- **V** Vineet Narain (1997) strikes the Single Directive
- **D** DSPE Act gets Sec 6A
- **S** Sec 6A struck down by the SC (2014)
- **P** PCA Sec 17A (2018): permission for preliminary inquiry

The shield for senior officers is defeated and probes are allowed again, with 17A as the new filter. (Memory aid, not from the handout.)

MNEMONIC · WAYS OF MEASURING CORRUPTION

C O A S T

- **C** Content analysis of media
- **O** Official statistics
- **A** Attitudinal and perceptual surveys (CPI)
- **S** Surveys of experience (Global Corruption Barometer)
- **T** Tracking surveys (PETS)

Is the COAST clear of corruption? Five ways to find out. Order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · POLITICAL FACTORS BEHIND CORRUPTION

E N A C T

- **E** Election money power and weak party-funding disclosure
- **N** Neutrality not encouraged in the political system
- **A** Absence of political will (Lokpal bill delays)
- **C** Criminalisation of politics
- **T** TINA: voters re-elect parties for lack of an alternative

Without the political will to ENACT strong laws, corruption persists. Order is rearranged for memory. (Memory aid, not from the handout.)

INTRODUCTION AND THE PROBLEM OF DEFINING CORRUPTION

- Corruption is as old as civilisation. **Kautilya's Arthashastra** lists many ways in which a civil servant can be corrupt and gives specific measures to contain it. It is part of governance everywhere, differing only in degree, and has touched almost every field of human effort (it contributed to the decline of empires and to reforms in religion).

IS A GIFT A BRIBE?

- The handout gives six factors to weigh:
- Intent of the donor.
- Expectation of the recipient.

MY NOTES

- Timing of the gift.
- Value of the gift.
- The country's legal framework.
- Social acceptability of the gift.
- **Memory aid (Gift or bribe):** **I**ntent, **E**xpectation, **T**iming, **V**alue, **L**egal framework, **S**ocial acceptability: "**I**s **E**very **T**oken **V**alued **L**ike a **S**ale?"

CULTURAL DIFFERENCES

- What counts as corruption varies by culture.

SAME FAVOUR, DIFFERENT VERDICT

Place	Practice	How it is seen
UK	Old school ties of universities used to get favours	Culturally accepted
USA	Lobbying and networking	Regulated by law, legal, not seen as corrupt
Russia	**Blat**: system of favours and reciprocal favours, inherited from the Soviet Union	Culturally accepted
China	**Guanxi**: a favour done by a person has to be returned	A practice of reciprocity

ONLY PUBLIC BODIES, OR THE PRIVATE SECTOR TOO?

TWO VIEWS ON THE SCOPE

- **Include both sectors:** Many argue corruption covers public and private sectors, but the counterargument is that if the net is cast too wide the focus is diluted and the definition becomes unmanageable
- **Public sector first:** If the government is incorruptible, private-sector corruption will come down naturally

TRANSPARENCY INTERNATIONAL'S ANSWER

- Because interpretations vary, **Transparency International (TI)** defines corruption as "**private abuse of public office**". It also advocates the **Elephant Test**: corruption may be hard to define or describe, but when a civil servant behaves unethically, society knows it. It is easier to point out than to define.
- **Shortcut: Elephant Test in one line.** You may not be able to define an elephant, but you know one when you see it: society recognises corrupt behaviour on sight.

ALSO IN THE HANDOUT

- Another factor should be the timing of the gift received.

MY NOTES

- It is done to create an opportunity to carry out corrupt activities in an easier manner.

TYPES OF CORRUPTION

- Five pairs or triplets of types appear in the handout.

TYPES AT A GLANCE

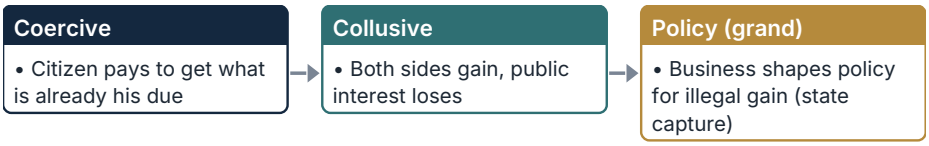
Type	Meaning
Black corruption	Every section of society feels unanimously that the behaviour is corrupt and must not be tolerated
White corruption	Society recognises it as corrupt but tolerates it; common example: speed money
Grey corruption	Wide differences between sections of the population on whether the behaviour is corrupt
Grass-eating	Public servant does not seek bribes but does not refuse one if offered
Meat-eating	Public servant actively seeks opportunities to benefit himself by corrupt means
Coercive (extortive)	Faced widely by the common man: a citizen must bribe an official just to get his due; the official extorts
Collusive (transactive)	Official and bribe-giver collude for illegal gains at the cost of public interest; both parties gain
Retail (petty)	Small corruption at street-level bureaucracy the common man meets regularly; example: speed money
Policy (grand)	Linked with **crony capitalism**: business houses practise **state capture** and influence government to frame policies that benefit them illegally; happens at the highest levels

- **Memory aid (Black White Grey):** **B**lack = all agree it is wrong, **W**hite = wrong but tolerated, **G**rey = people **G**uess differently: "**B**ad, **W**inked at, **G**ot opinions".
- **Shortcut: Pair shortcut. Grass = passive, Meat = active. Coercive = official squeezes you, Collusive = you and the official squeeze the public. Retail = street, Policy = top.**

WHO PAYS WHOM

- **Coercive**: Citizen pays to get what is already his due
- **Collusive**: Both sides gain, public interest loses
- **Policy (grand)**: Business shapes policy for illegal gain (state capture)

WHO PAYS WHOM



MY NOTES

ALSO IN THE HANDOUT

- Here both the parties have colluded together to get illegal gains.
- Retail Corruption: It is small corruption that one normally finds at the street level bureaucracy with which the common man comes in contact on a regular basis.

BEHAVIOUR THAT HARMS THE PUBLIC INTEREST

- Corruption in the wider sense goes beyond giving and receiving bribes. It includes any behaviour that harms public interest:
- Lethargy in discharge of assigned duties.
- Dereliction or negligence of duty.
- Repeated carelessness.
- Non-punctuality.
- Subjective interpretation of public interest.
- Favouritism and nepotism.
- Communalism, casteism, lynching and regional bias.
- **Memory aid (Wider list): L**ethargy, **D**ereliction, **R**epeated carelessness, **N**on-punctuality, **S**ubjective public interest, **F**avouritism, **C**ommunalism etc.: "**L**azy **D**uty **R**uns **N**ever **S**ervices **F**riends' **C**auses".

IMPLICATIONS OF CORRUPTION

SOCIAL

- **Divisions**: vertical (the rich or well-connected get their due, the poor do not) and horizontal (favouritism to one caste or class group, neglect of others).
- **Insecurity**: people do not report crimes or cooperate with police, which boosts criminals and criminalises society.
- **Danger to life**: building collapses and fire disasters from substandard materials, false certificates, through collusive corruption.
- **Erodes the social fabric**: general distrust in society.

ECONOMIC

- **Less aid** to poor countries: in African countries most aid went into the pockets of dictators, warlords, officials and cronies, so donors revised their stance.
- **Less investment**: investors are wary. Economist **Paulo Mauro**: investment differential between a less and a more corrupt country can be as high as **12%**.
- Acts as an **additional tax** on investment (bribe or extortion on businesses).

MY NOTES

- **Lower government revenues** (officials collude or extort while collecting).
- **Public expenditure diverted** to non-priority sectors to ease corrupt activity.
- **Efficiency** of government in development work is compromised.
- **Distorts fair competition** (collusive corruption, crony capitalism).
- **Brain drain and flight of capital**.
- **Trouble joining international clubs**: Eastern European countries, more corrupt than Western Europe, had difficulty getting into the European Union.
- **Environmental damage** through collusion with officials leading to flagrant violations.

POLITICAL AND LEGAL

- **Enhances power of public servants**: in a fair system discretion is reduced, in a corrupt one the official uses discretion against public interest.
- Increases the role of **money power**.
- **Pork-barrelling**: a project is launched as serving public interest, but deeper examination shows it is not needed and serves the private interests of a corporate house, officials and politicians.
- Citizen despair makes **extremist politicians** attractive (xenophobia, radical solutions, radical populism).
- **Mass unrest**, as in the India Against Corruption campaign and unrest worldwide.
- **Radical tendencies** if unabated: the **left extremism** problem and the **insurgency in the North-East** are fuelled by rampant corruption leading to poor development and a vicious cycle of violence.

SECURITY IMPLICATIONS

- Corruption within security forces aids money laundering, drug and human trafficking and arms smuggling.
- Corruption in **defence procurement** compromises the quality of defence contracts.

INTERNATIONAL IMPLICATIONS

TWO EXAMPLES

Example	What happened
Magnitsky Act, 2012	Magnitsky was a Russian lawyer prosecuted for exposing corruption in Russia. The US Congress passed an anti-corruption law naming it the Magnitsky Act, souring ties with Russia

MY NOTES

Example	What happened
Car insurance premiums in Germany (1990s)	Many high-end cars were stolen and smuggled to Central European countries in collusion with corrupt officials. German car insurance premiums skyrocketed, causing a diplomatic row with other European countries

- **Memory aid (Five heads of harm):** **S**ocial, **E**conomic, **P**olitical-legal, **S**ecurity, **I**nternational: "**S**ome **E**lephants **P**refer **S**weet **I**ce".

VERTICAL VERSUS HORIZONTAL DIVISION

- **Vertical:** Rich or well-connected get their due and the poor do not
- **Horizontal:** Favouritism to one caste or class group with neglect of others

ALSO IN THE HANDOUT

- It can lead to pork-barreling.
- The despair of citizens can increase the attractiveness of extremist politicians.
- It can compromise the quality of defense contracts due to the corruption in defense procurement.

REVISIONISM IN CORRUPTION STUDIES

- A school of thought with **few takers**. It says some corruption in civil services is **not bad**. Its hypothesis: civil servants are by and large lethargic, less motivated, prone to red tape and low paid, which lowers efficiency, so the presence of corruption **increases** the bureaucracy's efficiency in doing public work.
- **Exam handle:** Revisionism = "corruption as grease". The handout stresses that it has few takers, so never present it as the accepted view.

FACTORS BEHIND CORRUPTION

- Five families of causes. Memory frame: {{P E L A P}}.
- **Memory aid (Five families):** **P**sycho-social, **E**conomic, **L**egal, **A**dministrative, **P**olitical: "**P**oor **E**lephants **L**ift **A**wkward **P**ots".

PSYCHO-SOCIAL FACTORS

- Human behaviour is the combination of the person's own attitudes or predispositions and the environment around the person.
- **Need for THYMOS** (Greek: respect or recognition): high corruption correlates with low self-worth. People turn to materialism to raise self-worth. Low self-esteem puts the locus of control outside the person, who derives self-worth from how society values him.
- **Societal attitude**: society sees government as highly corrupt. Persistent labelling and shaming of government employees disin-

MY NOTES

centivises even honest employees, who are seen through a corrupt lens.

- **Squirrel Nuts Syndrome**: bureaucrats near retirement become more corrupt to continue the benefits they enjoyed in service.
- **Opportunity Theory**: most civil servants do not seek opportunities, only a few do, but when opportunities come their way they commit corruption. So a major way to curb corruption is to **reduce opportunities**.
- **Religious context**: in European studies, areas with more Protestants had less corruption, since Protestant Christianity was born as a reaction to corruption in the Catholic Church.
- **History**: India has a long history of corruption (lower bureaucracy was corrupt since ancient times, as in Kautilya's works), making society more tolerant.
- **Popular sanction**:
  - There is some degree of societal sanction of corruption and no popular sanction against it
  - Honest people are victimised
- **Social evils**: excessive expenditure on marriages, dowry etc. provoke public servants to be corrupt.

> **HANDOUT ALERT**
> Handout alert: Under "Popular sanction" the handout first says there is "some degree of societal sanction regarding corruption" and then "there is no popular sanction against corruption". The point it makes: society lacks real popular **disapproval** (no popular sanction against corruption) and honest people are victimised. Use that reading.

- **Memory aid (Psycho-social eight): T**hymos, **S**ocietal attitude, **S**quirrel Nuts, **O**pportunity, **R**eligion, **H**istory, **P**opular sanction, **S**ocial evils: "**T**all **S**ailors **S**eldom **O**verlook **R**ough **H**arbours, **P**irates **S**ail".
- **Shortcut: Squirrel Nuts.** A squirrel hoards nuts before winter, and a bureaucrat near retirement hoards benefits before retirement. **Thymos** = hunger for **respect**.

ECONOMIC FACTORS

- **Poor salary** at upper levels of bureaucracy is blamed, but simply raising salaries may not make a significant dent.
- **Culture of consumerism** feeds low self-esteem and so corruption.
- **Licence Permit Quota Raj to Clearance Raj**:
  - Now so many clearances and NOCs are needed to start a venture
  - The red tape gives incentives to be corrupt

MY NOTES

- **Willingness and ability to corrupt**: large MNCs have the financial clout to bribe their way to favourable policy.
- **Lack of cooperation from business houses**: if all refused to pay bribes, corruption would fall significantly, but they try to outbid each other.
- **Memory aid (Economic five): P**oor salary, **C**onsumerism, **C**learance Raj, **W**illingness and ability, **L**ack of business cooperation: "**P**ay **C**an't **C**ure **W**illing **L**ions".

LEGAL FACTORS

- The handout's central claim: there is **excessive legal protection** for public servants against prosecution for corruption.

PROTECTIVE PROVISIONS

Provision	What it says	Effect
Article 311	Reasonable opportunity to the public servant before any action against him	Makes it very difficult to dismiss corrupt servants; excessive protection
Section 19 of PCA, 1988	Sanction of the appointing authority is required before prosecuting a public servant	Protects honest servants from spurious allegations but misused to protect the corrupt
Section 197 of CrPC	For any offence (apart from corruption) related to discharge of public duties, permission of appointing authority is required	Same protective logic and same misuse
Section 6A of DSPE Act, 1946	Prior sanction for investigation of officers of joint secretary rank and above	Struck down (see flow below)

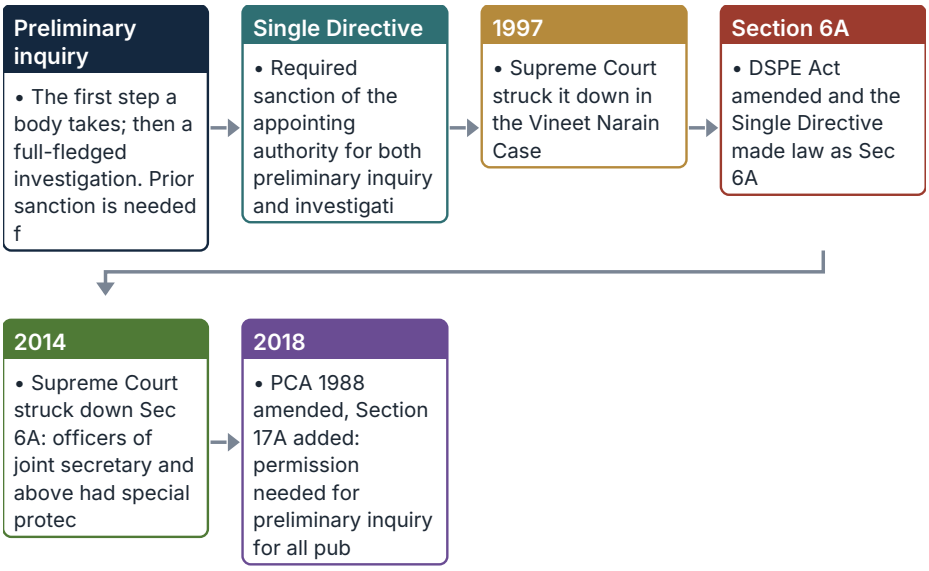
SECTION 6A CHAIN

- **Preliminary inquiry**:
  - The first step a body takes
  - Then a full-fledged investigation. Prior sanction is needed for investigation but not for preliminary inquiry
- **Single Directive**: Required sanction of the appointing authority for both preliminary inquiry and investigation against officers of joint secretary rank and above
- **1997**: Supreme Court struck it down in the **Vineet Narain Case**
- **Section 6A**: DSPE Act amended and the Single Directive made law as Sec 6A
- **2014**: Supreme Court struck down Sec 6A: officers of joint secretary and above had special protection, violating equality

MY NOTES

- **2018**: PCA 1988 amended, **Section 17A** added: permission needed for preliminary inquiry for all public servants, except where the public servant is caught red-handed

SECTION 6A CHAIN



- Other legal factors:
- Inadequacy of the judicial process, with delay in prosecution.
- Absence of effective **whistle-blowers' laws** to protect honest officials.
- Inadequate autonomy of anti-graft bodies such as **CBI and CVC**, which have become politicised.
- **Memory aid (Protective shields): A**rticle 311, **S**ection 19 PCA, **S**ection 197 CrPC, **S**ection 6A DSPE: "**A**ll **S**hields **S**tay **S**trong".

ADMINISTRATIVE FACTORS

- Procedural complexity creates the need for **middlemen**, conduits for corrupt money.
- **Red-tapism**.
- Weak internal **grievance redressal**.
- **Peer pressure and indoctrination** make honest officials afraid to pursue anti-graft action.
- Bureaucratic **resistance to administrative reforms**.
- **Politicisation** of civil service management through transfers, key and plum postings.
- General **culture of secrecy** in administration.

POLITICAL FACTORS

- **Absence of political will**: multiple attempts to pass the Lokpal bill and the delay in appointing the Lokpal.

MY NOTES

- **Criminalisation of politics**: criminals become part of the system and protect themselves.
- **No encouragement of neutrality**: public servants take sides when a particular dispensation is in power.
- **Lack of voter maturity**: voters re-elect parties earlier ousted for misdeeds, because of the **TINA factor** (There Is No Alternative).
- **Money power in elections** incentivises corruption
- Weak disclosure norms on functioning and funding of political parties
- **Memory aid (Political five):** **A**bsent will, **C**riminalisation, **N**eutrality lacking, **V**oter immaturity (TINA), **M**oney power: "**A**ny **C**andidate **N**eeds **V**otes and **M**oney".

ALSO IN THE HANDOUT

- Psycho Social Factors Human behavior is a function and result of something inside the person and something outside the person.
- There are weaknesses in the internal grievance redressal mechanisms and machinery.
- Criminalization of politics leads to criminals becoming a part of the system and perpetuates his ill actions and simultaneously protecting himself.

MEASURING CORRUPTION

- Four methods appear in the handout.

METHODS OF MEASUREMENT

Method	Details	Limits or notes
Official statistics	Based on prosecution and investigation records	If prosecution and investigation are ineffective, the statistics do not give a comprehensive idea
Perceptual and attitudinal surveys	Transparency International's **Corruption Perception Index (CPI)**, annual since **1995**; **0 = most corrupt, 100 = least corrupt**	Based on questionnaires to country experts and business leaders (not the common man); based on perception, not objective assessment; sources change each year; rank comparison over years is not appropriate since the number of countries varies
Experiential surveys	**Global Corruption Barometer** (TI), based on actual experience	Not annual, done regionally. In the Asia region **Japan** was least corrupt and **India** most corrupt among **17** countries surveyed

MY NOTES

Method	Details	Limits or notes
Tracking surveys	World Bank's **PETS: Public Expenditure Tracking Survey**; the World Bank demands transparency in tracking funds and their flow at different levels when donor-agency funds are spent	Tracks the flow of funds
Content analysis	Analyses media content on corruption	A crude technique, but interest-ing

CPI FINDINGS QUOTED IN THE HANDOUT (2020 RANKINGS, RELEASED IN 2021)

RANKS

Country	Rank or position
New Zealand and Denmark	Ranked least corrupt
Somalia and South Sudan	Ranked last
Bhutan	24th
USA	25th
Botswana	35th
China	78th
Pakistan	124th

> **HANDOUT ALERT**
> Handout alert: The sub-heading "**India's rankings and scores**" has no India figure under it: the handout text jumps straight to the other countries (a table or image seems to be missing from the source). Do not quote an India rank from this chapter.

- **Memory aid (Measuring five): O**fficial statistics, **P**erception, **E**xper-ience, **T**racking, **C**ontent: "**O**ld **P**eacocks **E**at **T**asty **C**orn".
- **Shortcut: Scale trap.** CPI **0 = most corrupt, 100 = least corrupt** (higher score is cleaner). The CPI is **perception**, the Barometer is **experience**, PETS is **tracking funds**.

ALSO IN THE HANDOUT

- In South Asia, Bhutan was ranked 24 th - Other interesting rankings include the USA ranked 25'", Botswana an African country ranked 35 th China ranked 78th andPakistan ranked 124th - The survey is based on questionaries issued to country experts, business leaders rather than the common man.

MY NOTES

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 64-66

- Lakshmikanth lists the Indian framework with extras: Public Servants (Enquiries) Act 1850, Indian Penal Code 1860, Commissions of Inquiry Act 1952 (against political leaders and eminent public men) and Benami Transactions (Prohibition) Act 1988 (the handout calls it the Benami Properties Act).
- Conduct and discipline rules in the list:
  - All-India Services (Conduct) Rules 1968 and (Discipline and Appeal) Rules 1969
  - Central Civil Services (Conduct) Rules 1964 and (Classification, Control and Appeal) Rules 1965
  - Railway Services (Conduct) Rules 1966
- More bodies: State Vigilance Commissions (1964), Divisional Vigilance Board, District Vigilance Officer, vigilance units in ministries and PSUs, Directorate of Public Grievances in the Cabinet Secretariat (1988) and the Centralised Public Grievance Redress and Monitoring System (2007).
- Sec 6A of the DSPE Act (protection from even a preliminary CBI inquiry for joint secretary and above) was held by a Constitution Bench in 2014 to violate Art. 14. The CJI said a public servant's status gives no exemption from equal treatment.
- The CVC is the designated agency to receive whistleblower complaints under the Public Interest Disclosure and Protection of Informers Resolution, 2004, and the only agency that can act against motivated or vexatious complaints.

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

What six factors decide whether a gift is a bribe?	Intent of donor, expectation of recipient, timing, value, legal framework, social acceptability.
What are Blat and Guanxi?	Blat: Russian system of favours and reciprocal favours inherited from the Soviet Union. Guanxi: Chinese practice where a favour done must be returned.
How does TI define corruption?	Private abuse of public office.
What is the Elephant Test?	Corruption is hard to define but society knows unethical behaviour by a civil servant when it sees it.

Black, White, Grey corruption?	Black: all agree it is wrong. White: recognised as corrupt but tolerated (speed money). Grey: sections of the population differ.
Grass-eating versus meat-eating corruption?	Grass: does not seek bribes but does not refuse. Meat: actively seeks opportunities.
Coercive versus collusive corruption?	Coercive: citizen must bribe to get his due (extortion). Collusive: official and bribe-giver collude for illegal gains.
Retail versus policy corruption?	Retail: petty, street-level, e.g. speed money. Policy: crony capitalism and state capture at the highest levels.
What is pork-barrelling?	A project shown as serving public interest that is really not needed and serves private interests of a corporate house, officials and politicians.
What did Paulo Mauro say?	The investment differential between a less and a more corrupt country can be as high as 12%.
What is Revisionism in corruption studies?	A school (few takers) saying some corruption raises bureaucratic efficiency.
What is THYMOS?	Greek for respect or recognition; low self-worth correlates with high corruption.
What is Squirrel Nuts Syndrome?	Bureaucrats near retirement become more corrupt to keep the benefits of service.
What is Opportunity Theory?	Most servants do not seek opportunities but corrupt when they come, so reduce opportunities.
Why do Protestant areas show less corruption in the handout?	Protestant Christianity was born as a reaction to corruption in the Catholic Church.
What is the shift from Licence Permit Quota Raj?	To Clearance Raj: many clearances and NOCs, red tape giving incentives to be corrupt.
Which Article is called excessive protection for civil servants?	Article 311: reasonable opportunity before action is taken.
What do Section 19 PCA and Section 197 CrPC require?	Sanction or permission of the appointing authority before prosecution.

MY NOTES

Trace Section 6A of the DSPE Act.	Single Directive struck down in Vineet Narain 1997, made law as Sec 6A, struck down in 2014 (equality), then PCA 2018 added Sec 17A.
What does Sec 17A (2018) require?	Permission for preliminary inquiry for all public servants except those caught red-handed.
What is the TINA factor?	There Is No Alternative: voters re-elect parties earlier ousted for misdeeds.
How is the CPI scored?	0 is most corrupt and 100 least corrupt; annual since 1995.
Name two limits of the CPI.	Perception based on experts and business leaders, and rank comparison over the years is not appropriate since the number of countries varies.
Which countries topped and bottomed the 2020 CPI?	New Zealand and Denmark least corrupt, Somalia and South Sudan last.
What did the Global Corruption Barometer find for Asia?	Japan least corrupt and India most corrupt among 17 countries surveyed.
What is PETS?	Public Expenditure Tracking Survey of the World Bank, tracking funds and their flow when donor funds are spent.
What was the Magnitsky Act, 2012?	US anti-corruption law named after a Russian lawyer prosecuted for exposing corruption, souring ties with Russia.

Trap 1 · CPI scale and ranks

A score of 0 means most corrupt and 100 least corrupt. The index rests on perception of experts and business leaders, its sources change, and the number of countries varies, so ranks across years are not comparable. *Rule: 0 = most corrupt; never compare ranks year to year.*

Trap 2 · Grass-eating versus meat-eating

Grass-eating servants do not ask but do not refuse. Meat-eating servants actively hunt for gain. *Rule: grass = accepts if offered; meat = seeks actively.*

Trap 3 · Coercive, collusive, retail and policy

Coercive: the citizen must bribe to get a due. Collusive: both sides gain at the cost of the public. Retail is street-level speed money; policy corruption is state capture at the top. *Rule: coercive = extorted citizen; collusive = both gain; policy = highest level.*

MY NOTES

Trap 4 · Chain of prior-sanction rules

The Single Directive was struck down in Vineet Narain (1997), then Sec 6A was added to the DSPE Act, struck down in 2014 for breaching equality, and PCA Sec 17A (2018) now needs permission for a preliminary inquiry except for those caught red-handed. *Rule: 1997 Single Directive, 6A law, 2014 strike-down, 2018 Sec 17A.*

QUICK QUIZ

Q1. Transparency International defines corruption as

1. Misuse of public funds
2. Private abuse of public office
3. Bribery by the private sector
4. Abuse of office by politicians only

Q2. A public servant who does not seek bribes but does not refuse one if offered is an example of

1. Meat-eating corruption
2. Grass-eating corruption
3. Coercive corruption
4. Policy corruption

Q3. Corruption recognised by society as corrupt but tolerated, such as speed money, is called

1. Black corruption
2. White corruption
3. Grey corruption
4. Collusive corruption

Q4. Which type is commonly identified with crony capitalism and state capture?

1. Retail corruption
2. Coercive corruption
3. Policy corruption
4. Grass-eating corruption

Q5. Squirrel Nuts Syndrome refers to

1. Bureaucrats hoarding files
2. Bureaucrats becoming more corrupt near retirement
3. Young officers copying seniors
4. Corruption in food schemes

Q6. The Supreme Court struck down Section 6A of the DSPE Act in 2014 because it

1. Gave the CBI too much power
2. Violated equality by giving special protection to officers of joint secretary rank and above
3. Violated federalism
4. Was passed without Parliament

Q7. In the Corruption Perception Index, a score of 0 means

1. Least corrupt
2. Most corrupt
3. No data
4. Average corruption

Q8. The Global Corruption Barometer differs from the CPI because it is based on

1. Expert opinion
2. Actual experience of corruption
3. Media content
4. Official statistics

Q9. PETS of the World Bank stands for

1. Public Expenditure Tracking Survey
2. Public Enterprise Transparency Scheme
3. Perception and Experience Tracking Survey
4. Public Ethics Tracking System

MY NOTES

Q10. Section 17A inserted in PCA 1988 by the 2018 amendment requires permission for

1. Prosecution only
2. Preliminary inquiry against all public servants except those caught red-handed
3. Transfer of officers
4. Asset declaration

Q11. Which statement about the Corruption Perception Index is correct?

1. It is based on questionnaires to the common man
2. Comparing ranks across years is appropriate
3. It is based on perception rather than objective assessment
4. Its sources never change

Answers: Q1 b, Q2 b, Q3 b, Q4 c, Q5 b, Q6 b, Q7 b, Q8 b, Q9 a, Q10 b, Q11 c

MY NOTES

59 Corruption: CBI and CVC

CHAPTER 59 · HANDOUT SECTION 4

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

EXAM LENS

Prelims hooks

- none quoted in the material
- Likely hooks: CVC composition, selection committee, tenure, removal by reference to the Supreme Court, CBI origin years (1941, 1946, 1963), Single Directive, PJ Thomas case.
- Handout stresses: Handout gives a long laws list (BNS, DSPE, RPA Section 123, PCA, Benami, PMLA, CVC Act, RTI, Lokayuktas, Lokpal Act 2013, Whistleblower Act 2014) (Legal Framework)
- Handout stresses: Vineet Narain Case, 1997 gets six directions (CVC supervision, Director's tenure, selection committee, Single Directive, DoPT control, transfer) (CBI section)
- Handout stresses: PJ Thomas Case, 2011: consensus, not majority, in the CVC selection committee (CVC selection)
- Handout stresses: CVC numbers: 4 years or 65 years, up to 2 vigilance commissioners, salary equal to UPSC Chairperson and members (CVC section)

Mains hooks

- none quoted in the material
- Use the CBI issues list and the seven CVC reform suggestions (independent powers, sanction timelines, binding recommendations, manpower, civil society, transparent selection).

The CBI investigates and the CVC supervises, but neither prosecutes on its own and both depend on government sanction, which is why their independence stays the central reform question.

IN SIMPLE WORDS

- The corruption framework: laws such as **Sec 203 and 316 BNS, DSPE Act 1946, PCA 1988, PMLA 2003, RTI 2005, Lokpal Act**

MY NOTES

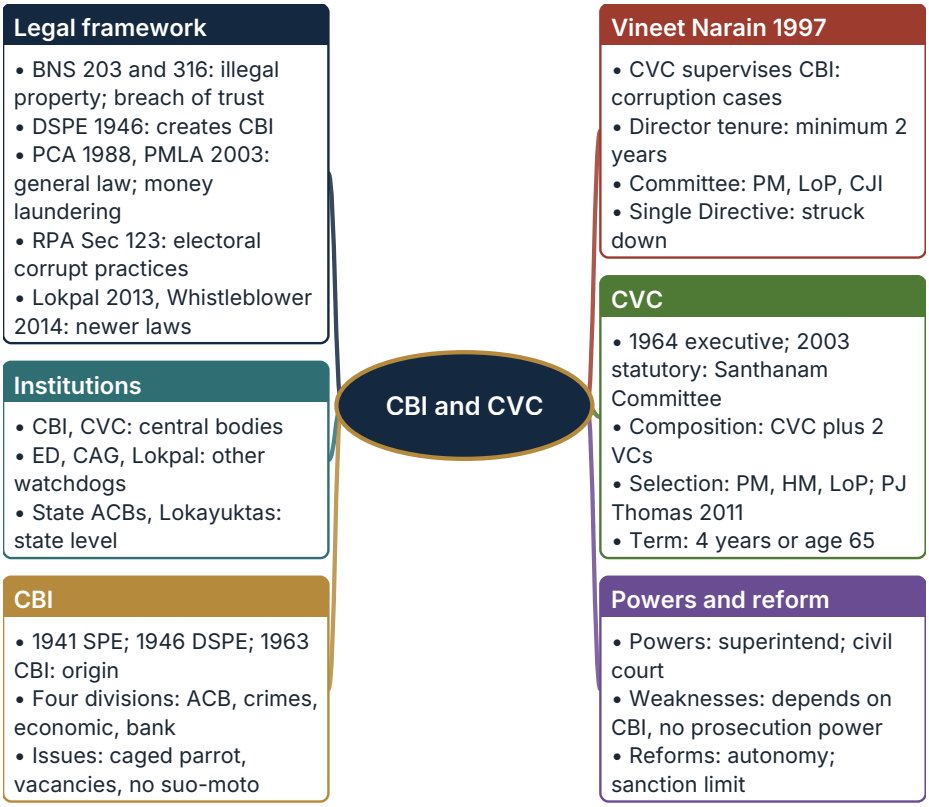
2013, Whistleblower Act 2014 and bodies such as **CBI, CVC, CAG, ED, Lokayuktas and Lokpal**.

- **CBI**: Special Police Establishment (**1941**), DSPE Act (**1946**), named CBI (**1963**). Divisions: anti-corruption, special crimes, economic offences, banking and securities fraud.
- CBI problems: the **'caged parrot'** image, about **one-third posts vacant**, a **67%** conviction rate (but low in high-profile cases), sanction delays and **no suo-moto jurisdiction**.
- **Vineet Narain (1997)**: CVC supervises CBI in corruption cases, Director gets a minimum tenure (2 years), a committee picks and transfers the Director, the **Single Directive** is struck down and DoPT sets only overall policy.
- **CVC**: executive body in **1964** on the **Santhanam Committee** (1962), statutory since **2003**. One Commissioner plus up to two Vigilance Commissioners, chosen by the **PM, Home Minister and Leader of Opposition**, for **4 years or age 65**, with UPSC-level pay.
- CVC issues: depends on the CBI, has no prosecution power, sanctions are delayed and engagement with civil society is poor. Suggested fixes: independent investigation, time-bound sanction (3-6 months), binding recommendations, more staff and a wider selection panel.

Key term	In plain words
DSPE Act, 1946	Law that set up the CBI for anti-corruption investigation
Caged parrot	Remark by a former SC judge that the CBI acts like a parrot in a cage, controlled by the ruling party
Suo-moto jurisdiction	CBI has none; it takes cases transferred to it
Single Directive	Rule requiring sanction for inquiry against joint secretary and above; struck down in 1997
Superintendence	CVC oversees the CBI only in cases under the Prevention of Corruption Act
Santhanam Committee	1962 committee on prevention of corruption that led to the CVC
PJ Thomas case (2011)	SC said the selection of CVC members must rest on consensus, not majority, and only for this appointment
CVC jurisdiction	Complaints against Group A officials, All India Service officers and equivalent officials in Central PSUs

MY NOTES

MEMORY MAP: CORRUPTION: CBI AND CVC



MNEMONIC · CBI DIVISIONS

C A S E

- **C** Crimes: Special Crimes Division
- **A** Anti-Corruption Division
- **S** Security and banking frauds division
- **E** Economic Offences Division

The CBI takes up CASEs: all four principal divisions. Order is rearranged for memory; the handout list has no fixed order. (Memory aid, not from the handout.)

MNEMONIC · BIRTH OF THE CBI

Sleuths Deliver Convictions

- **S** Special Police Establishment (1941)
- **D** Delhi Special Police Establishment Act (1946)
- **C** CBI name (1963)

The three steps in year order: SPE 1941, DSPE Act 1946, CBI 1963. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · VINEET NARAIN DIRECTIONS (1997)

M A S C O T

- **M** Minimum tenure: 2 years for the Director
- **A** Appointment of the Director by a committee (PM, LoP, CJI)
- **S** Single Directive struck down
- **C** CVC superintends CBI in corruption cases
- **O** Only the overall policy is decided by DoPT
- **T** Transfer of the Director by the same committee

The caged parrot is the CBI's unofficial MASCOT; the court's six directions try to free it. Order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · CVC SELECTION COMMITTEE

M O P

- **M** Minister of Home Affairs (Home Minister)
- **O** Opposition Leader (or leader of the largest opposition party)
- **P** Prime Minister

MOP up corruption: the three who pick the CVC; the government holds two of the three seats. Order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · ISSUES IN THE FUNCTIONING OF THE CVC

O P E N

- **O** Overwhelming dependence on the CBI for investigation
- **P** Prosecution powers absent; sanction needs government permission
- **E** Engagement with civil society, citizens and NGOs very poor
- **N** Non-cooperative attitude of the government

A vigilance body should be OPEN, but these four issues hold it back. Order is rearranged for memory. (Memory aid, not from the handout.)

LEGAL AND INSTITUTIONAL FRAMEWORK

LAWS THAT DEAL WITH CORRUPTION

Law	What it does
Section 203 BNS (Sec 169 of IPC)	Makes civil servants acquiring property illegally an offence
Section 316 BNS (Sec 409 of IPC)	Makes criminal breach of trust by a public servant an offence
DSPE Act, 1946	Establishes the CBI for anti-corruption investigation

MY NOTES

Law	What it does
Section 123 of RPA Act, 1951	Deems which practices are corrupt practices in elections
Prevention of Corruption Act, 1988	Law to tackle corruption in general
Benami Properties Act, 1988	Enacted to prosecute benami properties
Prevention of Money Laundering Act, 2003	Nodal law to tackle money laundering
CVC Act	The central vigilance organisation to tackle corruption in the country
Right to Information Act, 2005	Transparency and accountability
Lokayuktas Acts of states	State ombudsman laws
Lokpal Act, 2013	Central ombudsman
Whistleblower Act, 2014	Protects those who disclose corruption
Time Bound Delivery of Services laws	Tackle speed money corruption

INSTITUTIONAL FRAMEWORK

- **Central bodies:**
  - CBI
  - CVC
  - Comptroller and Auditor General
  - Lokpal
  - Enforcement Directorate (principally PMLA and FEMA)
- **State and other:**
  - Anti-corruption bureaus and vigilance wings in states
  - Lokayuktas
  - Banking Sector Ombudsman
  - Consumer Courts
  - The 3-tier judiciary
- **Memory aid (Laws in time order):** **B**NS sections, **D**SPE 1946, **R**PA 1951, **P**CA 1988, **B**enami 1988, **P**MLA 2003, **C**VC Act, **R**TI 2005, **L**okpal 2013, **W**histleblower 2014: "**B**ig **D**ogs **R**un **P**ast **B**ushes, **P**ulling **C**hains, **R**ushing **L**ate **W**ildly".

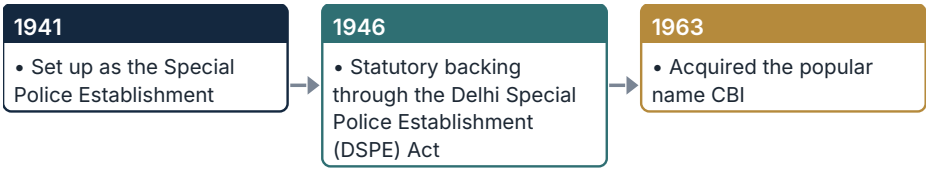
CENTRAL BUREAU OF INVESTIGATION

HOW THE CBI GREW

- **1941**: Set up as the **Special Police Establishment**
- **1946**: Statutory backing through the **Delhi Special Police Establishment (DSPE) Act**
- **1963**: Acquired the popular name **CBI**

MY NOTES

HOW THE CBI GREW



PRINCIPAL DIVISIONS

FOUR DIVISIONS

Division	Covers
Anti-Corruption Division	Corruption cases
Special Crimes Division	Serious, sensational, organised crimes
Economic Offences Division	Cheating, Ponzi schemes, counterfeit currency and other economic offences
Banking and Security Frauds Division	Economic offences related to banking and the securities market

- **Memory aid (Four divisions):** **A**nti-corruption, **S**pecial crimes, **E**conomic offences, **B**anking and securities: "**A**ll **S**leuths **E**xpose **B**ribes".

ISSUES IN FUNCTIONING

- **Politicisation**: a former SC judge called the CBI a **'caged parrot'**. Every ruling party at the Centre has used it against opponents, so it is not impartial or autonomous.
- **Shortage of staff**: around **one-third** of posts are vacant.
- **Conviction rate**: CBI's is **67%**, relatively high against **30-40%** for other agencies, but conviction in **high-profile cases** is low.
- **Sanction for prosecution**: too many delays in disposal, partly due to staff shortage. Prosecution follows investigation, but laws like **Section 19 of PCA** and **Section 197 of CrPC** protect civil servants and sanction to prosecute has to be provided by the state government. Delayed sanction means delayed prosecution.
- **Jurisdiction**:
  - CBI has **no suo-moto jurisdiction**
  - It deals with cases transferred to it
- **Memory aid (CBI problems):** **P**oliticisation, **S**taff shortage, **C**onviction in high-profile cases, **S**anction delays, **J**urisdiction (no suo-moto): "**P**arrots **S**eldom **C**atch **S**lippery **J**ackals".

ALSO IN THE HANDOUT

- Every ruling party at the Centre has used such organizations to target their political opponents and hence doesn't function in an impartial and autonomous manner.

MY NOTES

VINEET NARAIN CASE, 1997

- The Supreme Court gave directions on the functioning of the CBI.

THE DIRECTIONS

Direction	Detail
CVC supervises CBI	CVC deals largely with anti-corruption cases and violations of civil services discipline. Through the CVC Act it exercises general superintendence over CBI for work related to cases under the Prevention of Corruption Act
Minimum tenure	Guaranteed minimum tenure for the Director and other important CBI positions. Under the DSPE Act the minimum tenure of the Director is **2 years**. An ordinance extended this up to **5 years**, after the two years in tranches of **1 year** each
Committee appointment	CBI Director's appointment cannot be left to the government's sole discretion. Committee: **PM, Leader of Opposition in Lok Sabha** (or leader of the largest opposition party if there is no recognised LoP), and the **CJI**
Single Directive struck down	The rule requiring sanction for action against joint secretary rank and above
DoPT control	CBI is under the broad direction and control of the **Department of Personnel and Training**, meaning only the overall policy framework, not day-to-day workings and investigations
Transfer	Transfer of the CBI Director must be done by the **same committee** as for appointment

- **Memory aid (Six directions): C**VC supervision, **T**enure, **C**ommittee, **S**ingle Directive, **D**oPT limits, **T**ransfer: "**C**ourt **T**old **C**BI **S**tand **D**ifferent **T**oday".
- **Reality check:** Even after this judgement the CBI is still marred by allegations of politicisation and the 'caged parrot' label.

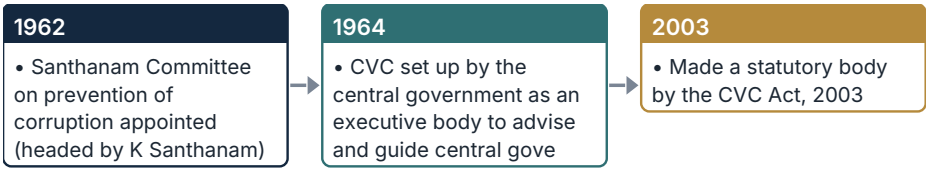
CENTRAL VIGILANCE COMMISSION: STATUS, SELECTION, TERM

HOW THE CVC EVOLVED

- **1962**: **Santhanam Committee** on prevention of corruption appointed (headed by K Santhanam)
- **1964**: CVC set up by the central government as an **executive body** to advise and guide central government agencies on vigilance
- **2003**: Made a **statutory body** by the **CVC Act, 2003**

MY NOTES

HOW THE CVC EVOLVED



- The CVC is conceived as the **apex vigilance institution free from control of any executive authority**, monitoring all vigilance activity under the Central Government and advising authorities in planning, reviewing and reforming vigilance work.

COMPOSITION

- A **Central Vigilance Commissioner** as chairperson and **not more than two Vigilance Commissioners** as members.

SELECTION

- Drawn from two categories: those who are or have been in **All India Services or Central Services**, and officers of **Central Public Sector Undertakings**.
- A selection committee of the **PM, Home Minister and Leader of Opposition** (or leader of the largest opposition party). Two government representatives means the government has the final say.

PJ THOMAS CASE, 2011

- **Problem**: Government's majority in the committee made the Leader of Opposition's membership pointless
- **Ruling**: Selection must be on the principle of **consensus of all members**, not majority
- **Limit**: The judgement applies only to this appointment, not to all other committee appointments

> **HANDOUT ALERT**
> Handout alert: The handout says "from both the categories, not more than two people can be selected, thus ensuring at least one from each category". The simple reading: the CVC and two VCs come from the two categories, so each category gets at least one. Use the rule "1 CVC plus up to 2 VCs".

TERM, CONDITIONS, REMOVAL

TERMS

Point	Rule
Term	**4 years** for both CVC and VC; retirement age **65 years**
Reappointment	None at the same post. Elevation allowed (a VC can become CVC) if total stay in the Commission does not exceed **4 years**

MY NOTES

Point	Rule
Bars after service	Not eligible to be administrators of UTs, diplomatic assignments or any appointment made under the warrant and seal of the President; cannot hold an office of profit under Centre or states
Salary	CVC equals **UPSC Chairperson**; VCs equal **UPSC members**. Cannot be altered to disadvantage after appointment
Source of pay	**Consolidated Fund of India**
Removal	On proven misbehaviour or incapacity through a **reference to the Supreme Court**
Other grounds	Insolvency, moral turpitude, private employment, infirmity of body and mind, prejudicial financial interests

- **Memory aid (CVC terms): F**our years or 65, **S**alary like UPSC, **P**roven misbehaviour via SC, **E**levation allowed but no reappointment: "**F**our **S**ilver **P**ens **E**lected".
- **Shortcut: CVC versus CBI Director. CVC: 4 years or 65, committee of PM, HM, LoP. CBI Director: minimum 2 years (up to 5 by ordinance), committee of PM, LoP, CJI.**

ALSO IN THE HANDOUT

- To counter this, an interesting case came up in 2011 namely the PJ Thomas Case.

FUNCTIONS AND POWERS OF THE CVC

- **Superintend** the CBI in corruption cases under the PCA, 1988, as directed in Vineet Narain (1997).
- **Give directions** to the CBI in those cases.
- **Inquire** (or cause an inquiry or investigation) on a reference by the Central Government.
- **Inquire** into complaints against officials specified in **sub-section 2 of Section 8 of the CVC Act, 2003**: Group A officials, All India Service officials and equivalent officials in Central PSUs.
- **Review progress** of investigations by the DSPE into PCA offences.
- **Review pending sanctions** for prosecution under the PCA.
- **Tender advice** to the Central Government and organisations on matters referred.
- **Superintend vigilance administrations** of Central Government ministries, departments and organisations.
- Has the **powers of a civil court** when inquiring.
- **Mandatory consultation** with the Commission before rules or regulations on vigilance or disciplinary matters for persons in public services of the Union and members of All India Services.

MY NOTES

- **Enforcement Directorate**:
  - The CVC chairs (with VCs as members) the committee whose recommendation leads the Centre to appoint the **Director of Enforcement**
  - The same committee recommends, after consulting the Director, officers of **Deputy Director and above**
- **CBI officers**: the same committee recommends, after consulting the CBI Director, appointment of officers of **SP level and above, except the Director**, and their extension and curtailment.
- **Annual report** to the President, who places it before both Houses of Parliament.
- **Memory aid (Powers): S**uperintend CBI, **G**ive directions, **I**nquire, **R**eview, **T**ender advice, **C**ivil court powers: "**S**mart **G**uards **I**nspect **R**ecords, **T**rack **C**rooks".

ALSO IN THE HANDOUT

- CVC should superintend or supervise CBI.

ISSUES IN FUNCTIONING AND HOW TO STRENGTHEN THE CVC

ISSUES

- **Overwhelming dependence on the CBI** for investigation, which is already politicised and under government control.
- **No independent prosecution power**
- Sanction needs government permission, often delayed
- **Non-cooperative attitude** of the government.
- **Poor engagement** with civil society, citizens and NGOs working in the field.

SEVEN SUGGESTIONS TO STRENGTHEN THE CVC

REFORM SUGGESTIONS

Suggestion	Detail and handout example
Independent investigative and prosecution powers	Direct investigative powers, like the Lokpal's model. The **2nd ARC** (Ethics in Governance) recommended functional autonomy for vigilance agencies
Statutory timelines for sanction	Time-bound framework of **3-6 months**. Vineet Narain (1997) directed fixed timelines but delays persist. TI India: in 2023, over **70%** of sanctions pending beyond 6 months
Binding oversight in disciplinary and vigilance matters	Turn the advisory role into binding oversight across ministries and PSUs. The **Sarkaria Commission** stressed robust independent oversight of central services

MY NOTES

Suggestion	Detail and handout example
Manpower and technology	More sanctioned staff, a dedicated Vigilance Cadre, digital real-time monitoring. CVC Annual Report 2023: less than **50%** of sanctioned staff, overseeing over **1500** organisations
Civil society participation and citizen feedback	Periodic consultations with civil society, whistleblowers, NGOs; a public grievance dashboard. 2nd ARC recommended multi-stakeholder engagement. South Korea's ACRC is the best-practice model
Binding recommendations	Amend the CVC Act so recommendations bind ministries in vigilance-lapse cases. The **Punchhi Commission** stressed statutory backing for vigilance bodies
Transparent selection	Add judiciary members or eminent anti-corruption experts to the selection panel. The **PJ Thomas Case (2011)** showed the flaws and urged consensus

HANDOUT ALERT

Handout alert: The handout numbers these suggestions 26 to 32 (list numbers carried over from a longer list). There are **seven** suggestions; the stray numbers are dropped. Also, the handout lists Sarkaria and Punchhi Commissions (on Centre-State relations) as examples for vigilance oversight; quote them as the handout does.

- **Memory aid (Seven reforms):** **I**ndependent powers, **S**anction timelines, **B**inding oversight, **M**anpower, **C**ivil society, **B**inding recommendations, **T**ransparent selection: "**I**f **S**tate **B**odies **M**eet **C**itizens, **B**ribes **T**ake **T**ime".

ALSO IN THE HANDOUT

- Strengthening CVC's Manpower and Technological Capacity: Increase sanctioned staff strength, create a dedicated Vigilance Cadre, and integrate digital monitoring systems for real-time vigilance tracking. E.g,As per the CVC Annual Report (2023), CVC operates with less than 50% of its sanctioned staff strength, impacting its capacity to oversee over 1500 organizations.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 64-65, CVC AND CBI

- CBI roots: the Special Police Establishment (1941) investigated bribery in transactions with the War and Supply Department during World War II. The DSPE Act (1946) moved it to the Home Department. The CBI was set up by a Home Ministry resolution in 1963 and DSPE became one of its divisions.
- Lakshmikanth differs: it says the CBI is not a statutory body and draws its powers from the DSPE Act, 1946. The handout says the DSPE Act establishes it. Use the handout in class.

MY NOTES

- CBI motto: Industry, Impartiality and Integrity. It is administered under DoPT, and acts as the National Central Bureau of Interpol in India.
- The NIA (formed after the 2008 Mumbai attack) handles terror cases, whereas the CBI handles corruption, economic offences and serious organised crime other than terrorism.
- CBI cannot work in a State (except railway areas) without that State's consent. It takes up conventional crimes like murder only on a State's reference or when the Supreme Court or a High Court directs.
- Lakshmikanth differs:
  - Director's tenure. It says the DSPE (Amendment) Act, 2021 allows extension of the fixed 2-year tenure to a maximum of 5 years, one year at a time (three extensions), for reasons recorded in writing
  - The handout speaks of an ordinance. Use the handout, remember the 2021 Act
- Lokpal Act 2013 changes for the CBI:
  - Director of Prosecution recommended by the CVC
  - Officers of SP rank and above chosen by a committee of the CVC (chair), Vigilance Commissioners, Home Secretary and DoPT Secretary. DSPE (Amendment) Act 2014 lets the leader of the single largest opposition party sit on the Director's committee if there is no recognised LoP
- CBI and state police:
  - DSPE takes cases mainly about Central affairs, employees and Central PSUs
  - State police take cases mainly about state affairs, even if some Central staff are involved
- CVC organisation: its own Secretariat, the Chief Technical Examiners' Wing (technical audit of construction works) and Commissioners for Departmental Inquiries (oral inquiries in departmental proceedings). It has civil court powers, sits at New Delhi and governments must record reasons in writing if they reject its advice.
- CVC jurisdiction also covers Scale V and above in public sector banks, Grade D and above in RBI, NABARD and SIDBI, and senior officers in PSUs, insurance companies and LIC.

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Which sections of BNS deal with illegal property and breach of trust?	Section 203 BNS (Sec 169 IPC) illegal acquisition of property by civil servants. Section 316 BNS (Sec 409 IPC) criminal breach of trust by a public servant.
What is Section 123 of the RPA Act, 1951?	Deems which practices are corrupt practices in elections.
What does PMLA, 2003 do?	Nodal law to tackle money laundering; the Enforcement Directorate implements PMLA and FEMA.
Give the CBI's origin.	SPE 1941, statutory backing by DSPE Act 1946, popular name CBI in 1963.
Name the CBI's four divisions.	Anti-Corruption, Special Crimes, Economic Offences, Banking and Security Frauds.
What does 'caged parrot' refer to?	A former SC judge's description of the CBI as politicised, used by ruling parties against opponents.
What are the CBI's staff and conviction figures in the handout?	About one-third of posts vacant. Conviction rate 67% versus 30-40% for other agencies, but low in high-profile cases.
Does the CBI have suo-moto jurisdiction?	No, it deals with cases transferred to it.
Who supervises the CBI in corruption cases after Vineet Narain?	The CVC, under the CVC Act, for PCA cases.
What is the CBI Director's tenure?	Minimum 2 years under the DSPE Act, extended up to 5 years by an ordinance in tranches of 1 year.
Who selects the CBI Director?	Committee of the PM, Leader of Opposition in Lok Sabha (or largest opposition party leader) and the CJI. The same committee approves transfer.
What is DoPT's role over the CBI?	Only the overall policy framework, not day-to-day workings and investigations.
When was the CVC set up and made statutory?	1964 as an executive body (Santhanam Committee), statutory in 2003 by the CVC Act.

MY NOTES

Composition of the CVC?	A Central Vigilance Commissioner as chairperson and not more than two Vigilance Commissioners.
Who selects the CVC?	Committee of PM, Home Minister and Leader of Opposition (or largest opposition party leader).
What did PJ Thomas (2011) decide?	Selection must be by consensus of all members, not majority; applies to this appointment only.
CVC term and age limit?	4 years, retire at 65, no reappointment at the same post, elevation allowed within 4 years total.
CVC salary?	CVC equals UPSC Chairperson, VCs equal UPSC members, from the Consolidated Fund of India.
How are CVC members removed?	Proven misbehaviour or incapacity through a reference to the Supreme Court, plus grounds like insolvency and moral turpitude.
Which officials fall under CVC inquiry under Section 8(2) of the CVC Act?	Group A officials, All India Service officials and equivalent officials in Central PSUs.
What role does the CVC play for the ED and the CBI?	The CVC chairs the committee recommending the Director of Enforcement and senior officers, and recommends CBI officers of SP level and above except the Director.
Name three issues in CVC functioning.	Dependence on the CBI, no independent prosecution power, non-cooperative government and poor engagement with civil society.
What timeline is suggested for prosecution sanction?	3-6 months, by statute.
Which commission recommended functional autonomy for vigilance agencies?	The 2nd ARC (Ethics in Governance).
Which foreign model is cited for public participation?	South Korea's Anti-Corruption and Civil Rights Commission (ACRC).
Who recommended statutory backing to vigilance bodies in the handout?	The Punchhi Commission.

MY NOTES

Trap 1 · Who controls the CBI

The CVC superintends the CBI only for cases under the Prevention of Corruption Act. DoPT may set only the overall policy and not day-to-day work or investigations. *Rule: CVC = corruption cases; DoPT = broad policy only.*

Trap 2 · Two different tenures

CVC and Vigilance Commissioners serve 4 years or until 65. The CBI Director has a minimum of 2 years, which the handout says an ordinance allows to extend up to 5 years in 1-year steps. *Rule: CVC 4 years; CBI Director minimum 2 years.*

Trap 3 · PJ Thomas ruling is narrow

The consensus-not-majority principle was laid down for that appointment only, not for every selection committee. *Rule: consensus rule applied to the CVC appointment in the PJ Thomas case alone.*

Trap 4 · Date mix-ups

Santhanam Committee 1962, CVC set up by executive resolution in 1964, statutory in 2003. CBI: SPE 1941, Act 1946, CBI name 1963. *Rule: CVC was executive first (1964), statutory later (2003).*

QUICK QUIZ

Q1. The CBI was given statutory backing by

1. CVC Act, 2003
2. DSPE Act, 1946
3. Prevention of Corruption Act, 1988
4. Lokpal Act, 2013

Q2. The CBI acquired its popular name in

1. 1941
2. 1946
3. 1963
4. 1964

Q3. Which division of the CBI covers Ponzi schemes and counterfeit currency?

1. Special Crimes Division
2. Economic Offences Division
3. Anti-Corruption Division
4. Banking and Security Frauds Division

Q4. The Vineet Narain Case, 1997

1. Created the CVC as a statutory body
2. Struck down the Single Directive and gave directions on CBI functioning
3. Struck down Section 6A in 2014
4. Introduced the Lokpal

Q5. Under the DSPE Act, the minimum tenure of the CBI Director is

1. 1 year
2. 2 years
3. 4 years
4. 5 years

Q6. The committee that appoints the CBI Director comprises

1. PM, Home Minister, LoP
2. PM, LoP in Lok Sabha, CJI
3. PM, Speaker, CJI
4. President, PM, CJI

Q7. The CVC was made a statutory body in

1. 1964
2. 1997
3. 2003
4. 2011

MY NOTES

Q8. The CVC was set up on the recommendation of the

1. Santhanam Committee
2. Sarkaria Commission
3. Punchhi Commission
4. First ARC

Q9. In the PJ Thomas Case (2011) the Supreme Court held that CVC selection should be on

1. Majority of the committee
2. Consensus of all committee members
3. The PM's choice
4. A vote by Parliament

Q10. The Central Vigilance Commissioner's salary and conditions of service are equal to those of

1. The CJI
2. The UPSC Chairperson
3. A Supreme Court judge
4. The Cabinet Secretary

Q11. The CVC and Vigilance Commissioners can be removed on proven misbehaviour or incapacity through

1. A resolution of Parliament
2. A reference to the Supreme Court
3. The Prime Minister's order
4. The Selection Committee

Q12. The CVC has jurisdiction over complaints against which officials under Section 8(2) of the CVC Act, 2003?

1. Group A officials, All India Service officials and equivalent officials in Central PSUs
2. Only Group D staff
3. Union Ministers
4. Judges

Answers: Q1 b, Q2 c, Q3 b, Q4 b, Q5 b, Q6 b, Q7 c, Q8 a, Q9 b, Q10 b, Q11 b, Q12 a

MY NOTES

CHAPTER 60 · HANDOUT SECTION 5

60 Tackling Corruption and Social Audit

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

EXAM LENS

Prelims hooks

- none quoted in the material
- Likely hooks: social audit under NREGA, SSAAT, Swaraj Abhiyan (2016), MKSS and RTI 2005, international anti-corruption instruments.
- Handout stresses: Measures are grouped as stick, carrot, administrative and technical, radical, international (Sections 2 to 6)
- Handout stresses: Named country examples: Botswana, China, Sweden, Singapore (CPIB), Hong Kong (ICAC), South Africa, Georgia, Peru, Romania (Stick and radical measures)
- Handout stresses: International instruments with years: FCPA 1977, UK Bribery Act 2010, OECD Convention 1997, UNCAC 2003, FATF 1989 (International Measures)
- Handout stresses: Social audit: Meghalaya 2017 Act, Andhra Pradesh SSAAT, Jharkhand SAU, MKSS jan sunwais, Bengaluru Citizen Report Cards (Social audit sections)

Mains hooks

- none quoted in the material
- Use stick-carrot-administrative-radical-international, then social audit with its features, issues and success stories.

Corruption is a wicked problem that can be controlled but not eliminated, so the answer is a mix of deterrence, incentives, transparency and citizen participation, with social audit pressing from the demand side.

IN SIMPLE WORDS

- Corruption is a **wicked problem**: many laws exist yet it persists, so it can be **controlled but not eliminated**.

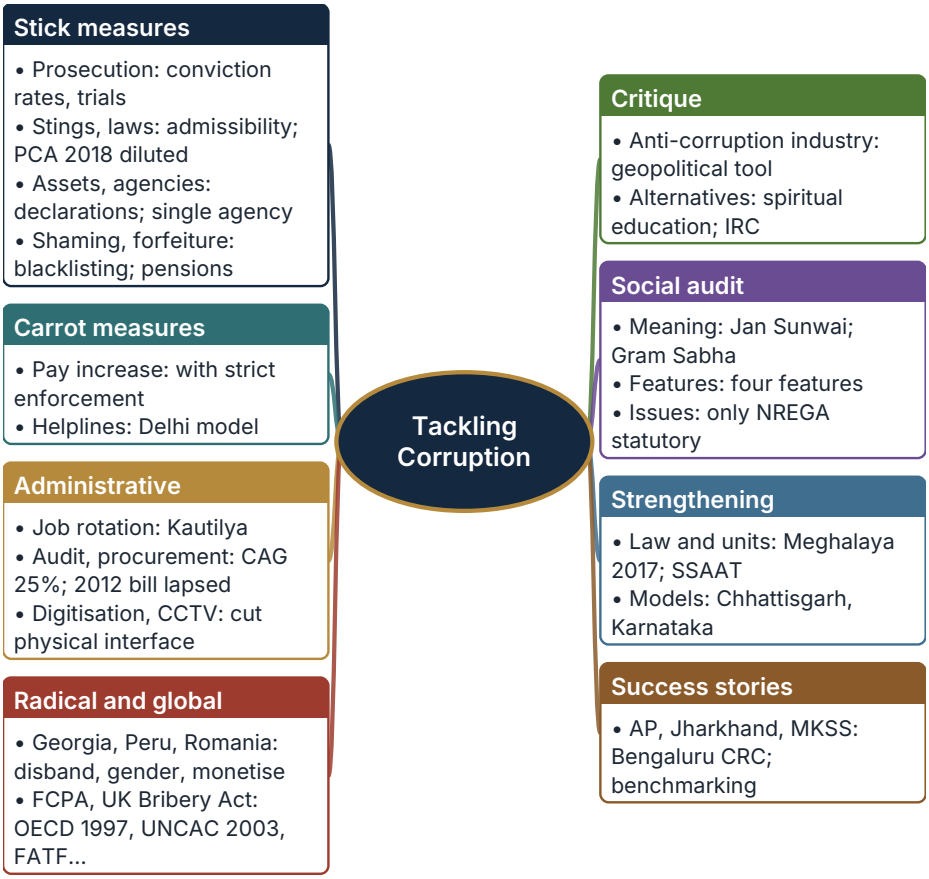
MY NOTES

- **Stick** measures punish: high conviction rates, clear law on stings, tighter laws, asset declaration, one focused agency (Singapore's **CPIB**, Hong Kong's **ICAC**), shaming and blacklisting, and forfeiting pensions. **Carrot** measures reward: better pay with enforcement and citizen helplines.
- Administrative fixes: **job rotation**, stronger **audit** (CAG covers about 25% of units yearly), a public **procurement law** (30% of GDP; 2012 bill lapsed), **digital services** and **CCTV** in risky zones.
- Radical ideas: **Georgia** disbanded its traffic police (2004), **Peru** added women, **Romania** monetised bribes, and an **amnesty** for black money was debated. International tools: FCPA 1977, UK Bribery Act 2010, OECD 1997, UNCAC 2003, FATF 1989.
- **Social audit** shares scheme records with beneficiaries at a **Jan Sunwai** or Gram Sabha. It is **multi-perspective, regular, comparative** and strengthens the demand side. It needs a strong **RTI** regime.
- Issues: statutory under few schemes (**NREGA**), few trained auditors, vested opposition. Fixes: a model law like **Meghalaya 2017**, independent units like **AP's SSAAT**, portals and unified guidelines.

Key term	In plain words
Wicked problem	A problem that can be managed but not fully solved; corruption is called this
Stick measures	Punishing tools: prosecution, stings, tough laws, asset checks, agencies, shaming, pension forfeiture
Carrot measures	Rewarding tools: higher pay with enforcement and helplines for citizens
CPIB and ICAC	Single dedicated anti-corruption agencies of Singapore and Hong Kong
Jan Sunwai	Public hearing where scheme records are shared and officials are questioned
Social audit	Sharing scheme details, financial and non-financial, with beneficiaries through a public platform
SSAAT	Society for Social Audit, Accountability and Transparency; Andhra Pradesh's autonomous audit body for MGNREGA
Citizen Report Card	Bengaluru civil society survey of services; bribery fell and satisfaction rose

MY NOTES

MEMORY MAP: TACKLING CORRUPTION AND SOCIAL AUDIT



MNEMONIC · STICK MEASURES

S C A L P E L

- **S** Shaming and blacklisting of officials and firms
- **C** Corruption agency: effective, focused (CPIB, ICAC)
- **A** Assets declaration with monitoring and audits
- **L** Legal system and prosecution: higher conviction rates
- **P** Penalties on pensions and future benefits
- **E** Entrapment and sting operations
- **L** Laws tightened: anti-corruption laws

A SCALPEL cuts out corruption: seven stick measures. Order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · ADMINISTRATIVE AND TECHNICAL MEASURES

S C R A P

- **S** Services digitised
- **C** CCTV in high-risk zones
- **R** Rotation of jobs
- **A** Auditing mechanisms (CAG)
- **P** Procurement norms and law

SCRAP corruption with five administrative tools. Order is rearranged for memory. (Memory aid, not from the handout.)

MY NOTES

MNEMONIC · RADICAL APPROACHES

D R A G

- **D** Disband non-reformable departments (Georgia traffic police, 2004)
- **R** Romania: monetised bribes (conscription)
- **A** Amnesty, general (disclose black money, 50% surrender)
- **G** Gender balance in the bureaucracy (Peru)

Radical approaches DRAG corruption out of hiding: four ideas. Order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · FEATURES OF A SOCIAL AUDIT

S T E P

- **S** Strengthens demand side
- **T** Time and place comparison (Comparative)
- **E** Every set period (Regular)
- **P** Perspectives of many sides (Multi-perspective)

Jan Sunwai makes people STEP in and check the scheme: four features of a social audit. Order is rearranged for memory. (Memory aid, not from the handout.)

THE 'WICKED PROBLEM' OF CORRUPTION

- Despite many laws (PCA, Lokpal, CVC Act), corruption persists. A **proliferation of laws often signals systemic inefficiency**. Corruption is termed a **'wicked problem'**: it can only be **controlled, not eliminated**.
- **Memory aid (Five toolkits): S**tick, **C**arrot, **A**dministrative and technical, **R**adical, **I**nternational: "**S**ome **C**ats **A**lways **R**un **I**nside".

STICK MEASURES

STICK MEASURES

Measure	Content
Legal system and prosecution	Higher conviction rates deter (e.g. **Botswana**). In India delayed trials and lenient punishments reduce deterrence. Harsh penalties like **China** are unsuitable here because of rule-of-law gaps and risk of victimisation
Sting operations and entrapment	Admissibility of sting evidence is ambiguous. **Natural stings** (citizen recordings) should be admissible. Legal clarity is needed to avoid misuse, as in **Sweden's** restrictive stance
Tightening anti-corruption laws	The **2018 amendments diluted the PCA**. Political will is lacking to plug loopholes in whistleblower laws, the CVC Act, the Lokpal Act etc.
Declaration of assets	Monitor disproportionate lifestyle indicators and conduct rigorous audits

MY NOTES

Measure	Content
Effective anti-corruption agencies	India's fragmented structure (CVC, CBI, Lokpal, ED) lacks focus. **Singapore (CPIB)** and **Hong Kong (ICAC)** succeed with a single dedicated agency
Public shaming and blacklisting	Naming corrupt officials (as in **South Africa**) and blacklisting firms from public contracts are soft deterrents
Penalties targeting financial security	Forfeiture of pensions and future financial benefits creates fear of long-term loss

- **Memory aid (Seven sticks):** **L**egal prosecution, **S**ting, **T**ighter laws, **A**ssets, **E**ffective agency, **P**ublic shaming, **P**ension forfeiture: "**L**ions **S**napped **T**heir **A**ngry **E**nemies, **P**ouncing **P**romptly".

SINGLE AGENCY VERSUS INDIA'S SETUP

- **India:** Fragmented: CVC, CBI, Lokpal, ED lack focus
- **Success models:** Singapore CPIB and Hong Kong ICAC: one dedicated agency

CARROT MEASURES

- **Substantial pay increase**: higher salaries, paired with strict enforcement, can improve integrity at entry level.
- **Citizen-centric anti-corruption helplines**: Delhi's anti-corruption hotline lets citizens report bribe demands without fear. Effective **whistleblower and witness protection laws** are essential to replicate it.

> **HANDOUT ALERT**
> Handout alert: The earlier chapter on the Problem of Corruption says simply raising salaries may not make a significant dent, while this chapter backs pay rises **if paired with strict enforcement**. Use both: pay helps only with enforcement.

ADMINISTRATIVE AND TECHNICAL MEASURES

ADMINISTRATIVE MEASURES

Measure	Content
Job rotation	Frequent transfers in sensitive positions disrupt entrenched networks; Kautilya's Arthashastra supports this
Strengthen auditing	CAG's limited coverage (**25%** of auditable units yearly) hampers oversight. Need manpower, IT tools and random audits

MY NOTES

Measure	Content
Procurement norms and transparency	Internal bid norms and a comprehensive **Public Procurement Law** needed. Public procurement is **30% of GDP** and corruption-prone. The **2012 bill lapsed** and urgent revival is needed
Digitisation of services	Online delivery reduces physical interface and curbs petty corruption
CCTV in high-risk zones	Functional CCTV in police stations, borders and vulnerable departments; prioritise high-risk areas first

- **Memory aid (Five admin tools):** **J**ob rotation, **A**udit, **P**rocurement, **D**igitisation, **C**CTV: "**J**ust **A**sk **P**eople: **D**ial **C**omplaints".

RADICAL APPROACHES

RADICAL APPROACHES

Approach	Example and note
Departmental disbanding (Georgia Model)	Non-reformable departments (e.g. **Traffic Police in Georgia, 2004**) disbanded, fresh recruitment under stricter norms
Gender balance in bureaucracy (Peru)	Greater women representation showed reduced corruption tendencies; can be piloted in India
Monetising bribes (Romania Model)	Allowing official payments to avoid petty bribes (as in Romania's conscription policy); controversial for equity concerns
General amnesty	Amnesty to disclose black money (with **50% surrender**) is debated; stricter enforcement is essential afterwards

- **Memory aid (Radical four):** **D**isband (Georgia), **G**ender (Peru), **M**onetise (Romania), **A**mnesty: "**D**o **G**ood, **M**ake **A**mends".

ALSO IN THE HANDOUT

- Similar reforms can be piloted in India.

INTERNATIONAL MEASURES

GLOBAL INSTRUMENTS

Instrument	Role
Foreign Corrupt Practices Act (1977, USA)	Penalises MNCs' offshore corrupt practices
UK Bribery Act (2010)	Same: penalises MNCs' offshore corrupt practices
OECD Anti-Bribery Convention (1997)	Promotes global anti-corruption norms
UNCAC (2003)	Promotes global anti-corruption norms

MY NOTES

Instrument	Role
FATF (1989)	Combats money laundering
Interpol's IGEC	Sets corruption standards for police forces

- **Gaps the handout names:** WTO's inaction on corruption as a **non-tariff barrier** is a missed opportunity. The push for global financial transparency against **banking havens** remains critical.
- **Memory aid (Years):** **F**CPA 1977, **U**K Bribery 2010, **O**ECD 1997, **U**NCAC 2003, **F**ATF 1989: "**F**ine **U**sual **O**ld **U**niforms **F**it".

CRITIQUE OF THE GLOBAL ANTI-CORRUPTION INDUSTRY AND ALTERNATIVES

- Western countries **ignored corruption until the 1990s**. After globalisation, anti-corruption became a **geopolitical tool**.
- The '**anti-corruption industry**' with vested NGO interests often prioritises data production over ground impact. **Cultural imperialism** concerns persist.

ALTERNATIVE APPROACHES

- **Spiritual education**: ethics and meditation in curricula to foster internal integrity.
- **Integrity Recognition Certificates (IRC)**:
  - Officially recognise honest officers to create peer-pressure networks against corruption
  - Must be insulated from politicisation

SOCIAL AUDIT: MEANING AND FEATURES

WHAT IT IS

- In evaluating schemes, if the local population is involved through **public hearings or Jan Sunwai**, funds, resources, beneficiaries and records are laid bare. People give input and pick loopholes, which checks corruption, increases transparency, fixes accountability and strengthens democracy. The handout traces its origin to **CSR in private companies**. Details of implementation, resources, financial and non-financial, are shared with beneficiaries on a public platform (Jan Sunwai, public hearing). The **Gram Sabha** can be called so people can hold the local bureaucracy and Panchayat leaders accountable and evaluate real impact.
- **Key condition:** Social audit works only with a sound **access to information regime**: public agencies must fully reveal all details of the scheme, or the process is a lost cause.

MY NOTES

FEATURES

FOUR FEATURES

Feature	Meaning
Multi-perspective	Benefits beneficiaries, local leaders and civil servants; they can present their side if loopholes are found; bureaucracy, leaders and people all give perspectives
Regular	Periodic, depending on the scheme, so issues are re-evaluated and addressed continuously
Comparative	Time-based comparison and comparison across villages, showing weaknesses against what other villages did well
Strengthens demand side	Pressure on local bureaucracy to implement honestly is weak; the process strengthens demand side weaknesses and indirectly targets supply side ones

- **Memory aid (Features):** **M**ulti-perspective, **R**egular, **C**omparative, **D**emand side: "**M**y **R**eport **C**ards **D**eliver".

SIGNIFICANCE

- Improves people's **participation** in administration.
- **Benefits reach** targeted persons.
- Builds **social capital** (community building, people coming together for change).
- Identifies **human resource and training needs** of civil servants.
- Highlights **development concerns**.
- Facilitates transparency and **checks corruption**.
- Helps design **improved programmes** in future.

ISSUES

- Not part of **mainstream policy discourse**.
- A statutory requirement under very few programmes
- **NREGA** is one where it must be held
- **Lack of trained social auditors**.
- **Opposition from vested interests**.
- **Symptom-cause relationship**: dealing only with surface symptoms (e.g. awareness drives for plague outbreaks) without root causes (poor sanitation, congested housing) gives minimal impact. A scheme's failure at a remote symptom level should not justify its discontinuation unless all causal layers are examined. Audits must examine multiple cause-effect layers, not in isolation, so **trained auditors** are essential.

ALSO IN THE HANDOUT

- TACKLING CORRUPTION AND SOCIAL AUDIT 1.

MY NOTES

- Comparative: It also brings out time-based comparison regarding how improvements can be made. Without comparison, Social Audit may throw up different results in different villages, then comparative analysis with help in understanding weakness in the implementation of schemes in villages vis-a-vis what was done well in other villages, comparing both temporally and spatially.
- Promote development of social capital - collectively synergizes community building in society, develop a sense of community and increases the potential of people coming together and bringing about changes.
- Helped in the formulation of improved programs in the future.
- Hence, trained auditors are essential to understand these dynamics and provide nuanced, context-sensitive evaluations.

STRENGTHENING SOCIAL AUDIT

STRENGTHENING PLAN

Heading	Steps
Legal and institutional framework	**Model Social Audit Law** (inspired by **Meghalaya's 2017 Act**) for all public service schemes. **Independent audit units** such as Andhra Pradesh's **SSAAT**. Support the **CAG** and build **PRI** technical and human capacity
Empower stakeholders	Public awareness and training of Gram Sabha members and social auditors (standards, ethics). NGO and media partnerships. Recognition schemes for active Gram Sabha participants
Standardise and digitise	Online transparency portals for real-time access to audit reports, expenditure and PRI records. Proactive disclosure of project data. Unified audit guidelines and checklists across sectors
Best practices to scale	**Chhattisgarh Model**: link social audits with grievance redressal and use wall writing for community transparency. **Karnataka Model**: rotate audit teams after every **three audit cycles** to prevent familiarity and collusion

HANDOUT ALERT

Handout alert: The handout numbers the Chhattisgarh and Karnataka models as 26 and 27 (stray list numbers from a longer list); they are just two models. Numbers dropped.

- **Memory aid (Strengthening):** **L**egal and institutional, **E**mpower stakeholders, **S**tandardise and digitise, **A**dopt best practices: "**L**earn, **E**ducate, **S**tandardise, **A**dopt".

MY NOTES

ALSO IN THE HANDOUT

- NGO and Media Engagement: Forge partnerships with NGOs and media outlets to amplify audit findings and foster a culture of transparency.
- Proactive Information Disclosure: Mandate timely release of project data by implementing agencies to enable meaningful audits. - Unified Audit Guidelines: Develop standardized audit protocols and checklists applicable across sectors to ensure uniformity and comparability.

SUCCESS STORIES OF SOCIAL AUDIT IN INDIA

FIVE STORIES

Story	What happened
MGNREGA social audits in Andhra Pradesh	Autonomous **Society for Social Audit, Accountability and Transparency (SSAAT)**. Trained village-level resource persons audited, leading to recovery of crores misappropriated in wage payments. The **World Bank** lauded it as a global best practice
Jharkhand Social Audit Unit (SAU)	Covers MGNREGA, PDS and pensions. Exposed ghost beneficiaries, wage payment delays and ration diversion in PDS. **SC in the Swaraj Abhiyan Case (2016)** appreciated the role of social audits in MGNREGA. Built local capacity and empowered Gram Sabhas
Rajasthan MKSS	**Mazdoor Kisan Shakti Sangathan** jan sunwais in the **1990s** revealed massive leakages. The movement led to the **Right to Information Act, 2005**
Citizen Report Cards, Bengaluru	A civil society organisation pioneered CRCs to evaluate public services. Surveys on water supply, public hospitals and transport led to measurable improvement: bribery rates fell and satisfaction rose. Endorsed in a **2003** study and now globally recognised
Benchmarking in municipal services	Local governments compared service delivery costs (e.g. cost per km of road construction). Public disclosure of the comparisons built citizen pressure on inefficient bodies and reduced corruption in urban local governance

- **Shortcut:**
  - **Story to state. AP = SSAAT, Jharkhand = SAU, Rajasthan = MKSS, Bengaluru = CRC.** MKSS leads to **RTI 2005**
  - Swaraj Abhiyan is **2016**
- **Memory aid (Four places):** **A**ndhra, **J**harkhand, **R**ajasthan, **B**engaluru: "**A**ll **J**ust **R**ight **B**eautiful".

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 66

- Lakshmikanth names three world devices for redressing citizens' grievances: the Ombudsman system, the Administrative

MY NOTES

Courts system (France) and the Procurator system (former USSR and China).

- Indian grievance machinery in its list: Directorate of Public Grievances in the Cabinet Secretariat (1988), the Department of Administrative Reforms and Public Grievances and the Centralised Public Grievance Redress and Monitoring System (2007).
- File to Field: in states like Kerala the administrator goes to the village, hears public grievances and acts at once wherever possible.

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

Why is corruption called a 'wicked problem'?	It can only be controlled, not eliminated, and more laws often signal systemic inefficiency.
Name the seven stick measures.	Prosecution, sting operations, tighter laws, asset declaration, effective agency, public shaming and blacklisting, penalties on financial security (pension forfeiture).
Which countries are cited for conviction, harsh penalties and sting stance?	Botswana (conviction), China (harsh penalties, unsuitable), Sweden (restrictive on stings).
What anti-corruption bodies work as single agencies?	Singapore's CPIB and Hong Kong's ICAC.
Which country is cited for naming corrupt officials?	South Africa.
What are the two carrot measures?	Substantial pay increase with strict enforcement, and citizen-centric helplines like Delhi's with whistleblower protection.
Which administrative measure does Kautilya support?	Job rotation (frequent transfers in sensitive posts).
What is the CAG coverage figure and the procurement figure?	CAG covers 25% of auditable units yearly. Public procurement is 30% of GDP.
What happened to the 2012 procurement bill?	It lapsed and needs urgent revival.
Name the four radical approaches.	Disbanding departments (Georgia), gender balance (Peru), monetising bribes (Romania), general amnesty (50% surrender).

Name six international instruments with years.	FCPA 1977, UK Bribery Act 2010, OECD Convention 1997, UNCAC 2003, FATF 1989, Interpol IGEC.
What does the handout say about WTO?	Its inaction on corruption as a non-tariff barrier is a missed opportunity.
What is the critique of the global anti-corruption industry?	Became a geopolitical tool after globalisation, NGO vested interests, data over impact, cultural imperialism concerns.
What is an Integrity Recognition Certificate?	Official recognition of honest officers to create peer-pressure networks; must be insulated from politicisation.
Define social audit.	Sharing details of scheme implementation and resources with beneficiaries on a public platform (Jan Sunwai, public hearing, Gram Sabha) so people can hold officials accountable.
What is the key to social audit effectiveness?	A sound access to information regime.
Four features of social audit?	Multi-perspective, regular, comparative, strengthens demand side.
Seven benefits of social audit?	Participation, benefits reach target, social capital, training needs of civil servants, highlights development concerns, transparency and checking corruption, better future programmes.
Four issues with social audit?	Not mainstream, statutory in very few programmes (NREGA), lack of trained auditors, vested-interest opposition.
What is the symptom-cause problem?	Treating symptoms (plague awareness drives) without root causes (sanitation, housing) has minimal impact; audit all causal layers.
Which state's Act inspires a Model Social Audit Law?	Meghalaya's 2017 Act.
What is the Chhattisgarh model?	Link social audits with grievance redressal and use wall writing.
What is the Karnataka model?	Rotate audit teams after every three audit cycles.

MY NOTES

What did Andhra Pradesh's SSAAT achieve?	Trained village resource persons audited MGNREGA, crores of wage misappropriation recovered, praised by the World Bank.
What did Jharkhand's SAU expose?	Ghost beneficiaries, wage payment delays, ration diversion in PDS; Swaraj Abhiyan Case (2016) appreciated social audits.
What did Bengaluru's Citizen Report Cards show?	Surveys on water, hospitals and transport led to lower bribery and higher satisfaction; endorsed by a 2003 study.
What is benchmarking in municipal services?	Comparing service delivery costs, such as cost per km of road, with public disclosure pressing inefficient bodies.

Trap 1 · Stick versus carrot

Stick includes prosecution, sting operations, asset declarations, shaming and pension forfeiture. Carrot includes substantial pay increases and helplines such as Delhi's hotline. *Rule: pay and helplines = carrot; the rest of the legal tools = stick.*

Trap 2 · Country models

Botswana: high conviction rates. Sweden: restrictive stance on stings. South Africa: public naming. Singapore and Hong Kong: single agency. Georgia: disbanded traffic police. Peru: women. Romania: monetised bribes. China: harsh penalties, unsuitable for India. *Rule: match each country with its single lesson.*

Trap 3 · Social audit law and models

Social audit is statutory under very few programmes, NREGA being one. Meghalaya 2017 Act is the law to copy, Chhattisgarh links audits to grievance redress and wall writing, and Karnataka rotates audit teams after every three cycles. *Rule: Meghalaya = Act, AP = SSAAT, Chhattisgarh = wall writing, Karnataka = rotate after 3 cycles.*

Trap 4 · Success stories

Rajasthan's MKSS jan sunwais of the 1990s led to the RTI Act 2005; the SC praised Jharkhand's audits in the Swaraj Abhiyan case (2016); Bengaluru's report cards came from a civil society body. *Rule: MKSS gave birth to RTI; Jharkhand won SC praise in 2016.*

QUICK QUIZ

Q1. Which agency model does the handout cite as successful single dedicated anti-corruption agencies?

1. CPIB (Singapore) and ICAC (Hong Kong)
2. FBI and CIA
3. CBI and CVC
4. OECD and FATF

MY NOTES

Q2. The 'Georgia Model' of tackling corruption refers to

1. Allowing official payments
2. Disbanding non-reformable departments such as Traffic Police
3. Gender balance in bureaucracy
4. General amnesty

Q3. Allowing official payments to avoid petty bribes, as in Romania's conscription policy, is called

1. Monetising bribes
2. Penalty targeting financial security
3. Public shaming
4. Job rotation

Q4. The Foreign Corrupt Practices Act was enacted in

1. 1977
2. 1989
3. 1997
4. 2010

Q5. FATF, mentioned in the handout, is aimed at

1. Banking havens
2. Money laundering
3. Police standards
4. Bribery by MNCs

Q6. According to the handout, CAG covers what share of auditable units yearly?

1. 10%
2. 25%
3. 50%
4. 75%

Q7. Which feature of social audit means it brings out time-based and village-to-village comparison?

1. Regular
2. Multi-perspective
3. Comparative
4. Demand side

Q8. Social audit is a statutory requirement under which programme named in the handout?

1. NREGA
2. PDS
3. National Health Mission
4. Pension schemes

Q9. The handout says the key to social audit effectiveness is

1. Funds
2. Sound access to information regime
3. A national law
4. Media coverage

Q10. The autonomous body that conducts social audit of MGNREGA in Andhra Pradesh is

1. SSAAT
2. SAU
3. MKSS
4. CRC

Q11. Which Karnataka practice is recommended by the handout?

1. Wall writing
2. Rotating audit teams after every three audit cycles
3. Linking audits to grievance redressal
4. A national law

Q12. The jan sunwais of MKSS in Rajasthan eventually led to

1. MGNREGA
2. Right to Information Act, 2005
3. Lokpal Act, 2013
4. Meghalaya's social audit law

Answers: Q1 a, Q2 b, Q3 a, Q4 a, Q5 b, Q6 b, Q7 c, Q8 a, Q9 b, Q10 a, Q11 b, Q12 b

MY NOTES

61 Corruption: Lokpal in India

CHAPTER 61 · HANDOUT SECTION 6

LOW PRIORITY Mains PYQs quoted: **none quoted in the material**

Prelims PYQs: **none quoted in the material**

MY NOTES

EXAM LENS

Prelims hooks

- none quoted in the material
- Likely hooks: first ombudsman country, composition and selection committee of Lokpal, PM's partial coverage, years (1968, 1971, 2013, 2019), the Whistleblower Act authority list, PCA public servant definition.
- Handout stresses: Lokpal Act 2013 numbers: 9 members, half judicial, 50% reservation, age 45, tenure 5 years or 70, 7-member search committee, 60 days for preliminary inquiry, 100 MPs for removal reference, 7-year limitation, assets above Rs 10 lakh funding (Lokpal Act section)
- Handout stresses: Prime Minister partially covered: excluded on public order, internal and external security, atomic energy and space; two-thirds of the full bench to start inquiry (PM coverage)
- Handout stresses: PCA 2018 amendment: giving a bribe made an offence, 7-day complaint protection, Section 17A for retired servants, jail from 3 to 7 years, trial in 2 to 4 years (PCA section)
- Handout stresses: Whistleblower Act 2014 (PIDPI): no anonymous complaints, 2-year jail for frivolous complaints, competent authority per category (Whistleblower section)

Mains hooks

- none quoted in the material
- Use: state-level Lokayukta failures, Lokpal Act features, issues (appointment delay, PM cover, limitation), 2nd ARC recommendations, why Lokpal is not a panacea, whistleblower weaknesses.

A Lokpal is only one tool against a hydra-headed problem: independence, quick appointments, working rules and real whistleblower protection decide whether the law bites.

IN SIMPLE WORDS

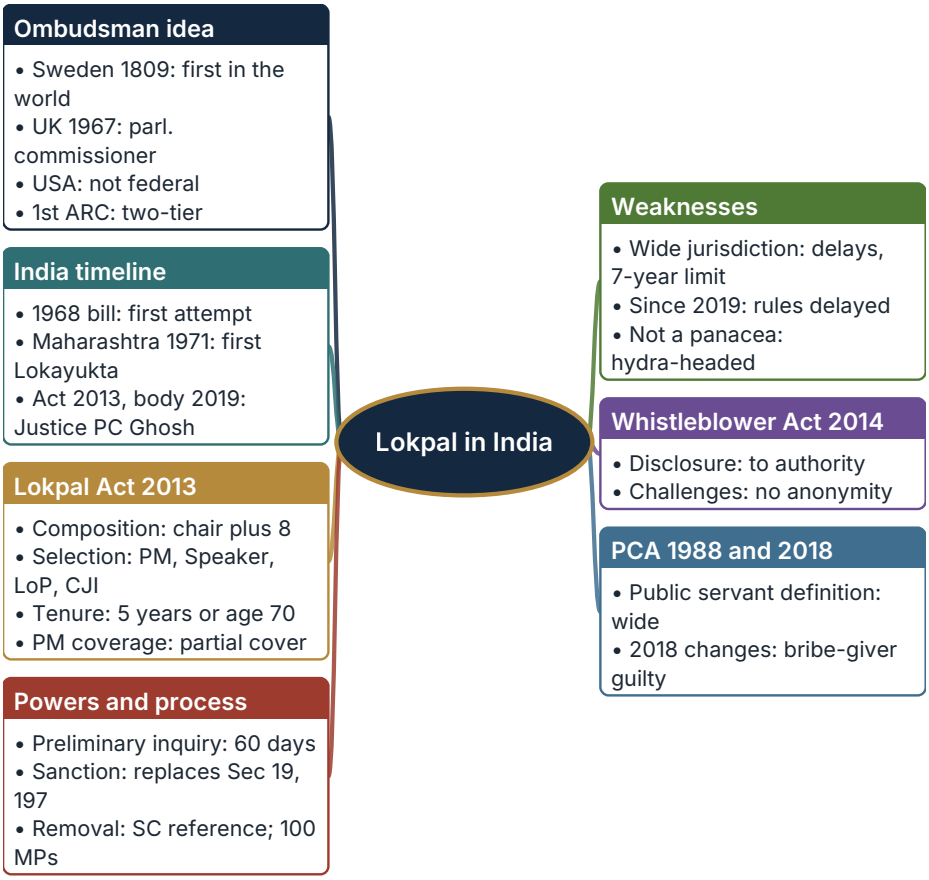
- The **Ombudsman** began in **Sweden (1809)**
- The UK has a Parliamentary Commissioner (1967). The **First ARC** proposed **Lokpal and Lokayuktas**
- The first bill came in **1968**, the **Lokpal Act in 2013** and the Lokpal was constituted in **2019** under **Justice PC Ghosh**. **Maharashtra** was the first state with a Lokayukta (1971). State Lokayuktas have been called **paper tigers**
- **Composition**:
  - A Chairperson plus 8 members (nine in all)
  - Half judicial, and **50%** from SC, ST, OBC, minorities and women. Minimum age **45**
  - Tenure **5 years or age 70**
  - Pay like the **CJI** and SC judges
- **Selection** by the PM, Speaker, Leader of Opposition, CJI (or nominee) and an eminent jurist
- A 7-member search committee helps
- **Powers**:
  - Covers the PM (partly), ministers, MPs and Group A-D staff, plus funded bodies above Rs 10 lakh. Preliminary inquiry within **60 days**
  - It can order investigation, departmental action, closure or action against a false complainant, and it grants **prosecution sanction**
- **Issues**:
  - Wide jurisdiction, a convoluted appointment process, partial PM cover, a **7-year** limit and delayed rules and wings. The **2nd ARC** wants constitutional status
  - A Lokpal alone is not a **panacea**
- The **Whistleblower Act, 2014** forbids anonymous complaints and punishes frivolous ones with 2 years
- The **PCA 1988**, amended in **2018**, makes **giving a bribe** an offence

Key term	In plain words
Ombudsman	Watchdog of administration; started in Sweden in 1809
Lokayukta	State-level ombudsman; Maharashtra was first in 1971; powers vary by state

MY NOTES

Key term	In plain words
Search committee	7 members that shortlist names for the Lokpal; the selection committee may still go beyond its list
Preliminary inquiry	First stage after a complaint; the Lokpal must first seek the public servant's explanation; to finish within 60 days
Limitation period	A complaint can be filed only within 7 years
Paper tigers	Name for State Lokayuktas whose work is mostly recommendatory
PIDPI Act, 2014	Public Interest Disclosure and Protection of Individuals Act, the Whistleblower Protection Act
Section 17A (PCA)	Permission is needed for a preliminary inquiry, even against retired servants, except if caught red-handed

MEMORY MAP: CORRUPTION: LOKPAL IN INDIA



MY NOTES

MNEMONIC · LOKPAL SELECTION COMMITTEE

SCOPE

- **S** Speaker of Lok Sabha
- **C** CJI or an SC judge nominated by him
- **O** Opposition Leader in Lok Sabha
- **P** Prime Minister (Chairperson)
- **E** Eminent jurist chosen by the first four

Only these five can set the SCOPE of who sits on the Lokpal (the PM chairs). Five members; order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · LOKPAL ACTIONS AFTER A PRELIMINARY INQUIRY

ACID

- **A** Action against the complainant if allegations are false
- **C** Close the case
- **I** Investigation in full ordered
- **D** Departmental proceedings initiated

The inquiry is an ACID test for a complaint: four outcomes. Order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · PREVENTION OF CORRUPTION (AMENDMENT) ACT, 2018

COPYCAT

- **C** Clause 13(1)(d) diluted: decision benefiting a firm
- **O** Offence: bribe-giving made an offence (7-day safe window if coerced)
- **P** Property attachment or confiscation
- **Y** Years in jail raised from 3 to 7
- **C** Commercial organisations can be prosecuted
- **A** Act's Sec 17A extended to retired servants
- **T** Trial in 2 years, up to 4

The giver now copies the taker's guilt: a COPYCAT offence. Seven features; order is rearranged for memory. (Memory aid, not from the handout.)

MNEMONIC · WHISTLEBLOWER ACT PROBLEMS

AIRS

- **A** Anonymity lacking
- **I** Inadequate legal safeguards
- **R** Rising complaints show latent potential
- **S** Slack organisational implementation (weak)

A whistleblower AIRS a complaint, but these four problems remain (Satyendra Dubey's murder shows the danger). Order is rearranged for memory. (Memory aid, not from the handout.)

THE OMBUDSMAN IDEA AND THE INDIAN JOURNEY

- Lokpal is an ombudsman, a watchdog of administration.

MY NOTES

WHERE OMBUDSMEN BEGAN

Place	Detail
Sweden	First in the world, **1809**
UK	Parliamentary commissioner, set up **1967**
USA	In some states (Hawaii, Oregon, Nebraska) but not at the federal level

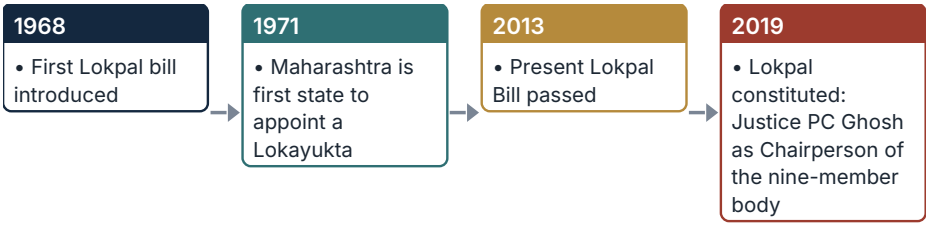
FIRST ARC PROPOSAL

- A **two-tier** set-up: **Lokpal** and **Lokayuktas**.
- **Lokpal**: officials of **Secretary rank and above**, at both Union and State levels.
- **Union Lokayukta**: officials below Secretary rank at the Union level.
- **State Lokayuktas**: similar cases within their states.

THE INDIAN TIMELINE

- **1968**: First Lokpal bill introduced
- **1971**: **Maharashtra** is first state to appoint a Lokayukta
- **2013**: Present Lokpal Bill passed
- **2019**: Lokpal constituted: **Justice PC Ghosh** as Chairperson of the nine-member body

THE INDIAN TIMELINE



ALSO IN THE HANDOUT

- It came into existence for the first time in the world in Sweden in 1809.

EXPERIENCE AT THE STATE LEVEL

- The handout calls the state experience **not satisfactory**:
- **Flooded with complaints**: the apex body's performance depends on how well lower-level departments handle petty complaints.
- **Poor effectiveness**: powers not adequate to investigate and prosecute properly.
- **Inter-state differences** in qualifications, tenure, functions, powers, suo-moto powers
- No separate investigation agency

MY NOTES

- **Survival at the state's will**: created by state governments and sometimes abolished: **Odisha 1992 by ordinance**, **Haryana 1999**.
- **Paper tigers**: mostly recommendatory.
- **Corruption in Lokayuktas**: allegations of extortion.
- **Setup to intimidate political opponents**: powers misused against opponents.
- **Memory aid (State failures): F**looded, **P**oor effectiveness, **I**nter-state differences, **S**urvival at state's will, **P**aper tigers, **C**orruption within, **S**et-up to intimidate: "**F**ive **P**ink **I**guanas **S**ing **P**oor **C**hoir **S**ongs".

ALSO IN THE HANDOUT

- Paper Tigers: In most states, the working of Lokayuktas are majorly recommendatory in nature and hence have been termed as paper tigers.

LOKPAL ACT, 2013: STRUCTURE

COMPOSITION

- A **nine-member** body including the Chairperson.

WHO CAN SIT

Seat	Qualification
Chairperson	Is or has been **CJI or a judge of the SC**, or an eminent person with **25 years** of experience in vigilance, anti-corruption, law, finance, administration and management
8 members	**Half judicial, half non-judicial**
Judicial members	A judge of the SC or a Chief Justice of a High Court
Non-judicial members	Eminent person with 25 years of experience in the same fields
Affirmative action	**50%** for SC, ST, OBC, minorities and women

OTHER CONDITIONS (MEMBERS MUST NOT BE)

- An MP, MLA or MLC.
- A member of any local body.
- Under **45 years** of age.
- Removed or dismissed from government service.
- Holder of any other office of profit, doing business or engaged in a profession.
- Affiliated with any political party.

MY NOTES

- **Memory aid (Disqualifiers):** **M**P/MLA/MLC, **L**ocal body member, **A**ge below 45, **R**emoved from service, **O**ffice of profit or business, **P**olitical party: "**M**y **L**ord, **A**ll **R**ules **O**bey **P**rinciples".

APPOINTMENT

- Made under the name and seal of the President on the recommendation of a selection committee:
- **Prime Minister** (chairperson of the committee).
- **Speaker of Lok Sabha**.
- **Leader of Opposition in Lok Sabha**.
- **CJI or a SC judge nominated by him**.
- An **eminent jurist** selected by the first four.

> **HANDOUT ALERT**
> Handout alert: The handout notes that the Act **does not say who replaces the Leader of Opposition if no LoP is recognised** in Lok Sabha. Treat that as a gap in the law, not as a stated rule. The selection committee may appoint a **7-member search committee** to shortlist candidates (also with **50% affirmative action** for SC, ST, OBC, minorities and women). The selection committee can **go beyond** the names the search committee recommends.

- **Memory aid (Selection committee):** **P**M, **S**peaker, **L**oP, **C**JI or nominee, **E**minent jurist: "**P**eople **S**earch **L**eaders, **C**hoose **E**xperts".

TENURE, SALARY, POST-RETIREMENT

TERMS

Point	Rule
Tenure	**5 years or maximum age 70**
Reappointment	Not allowed, except a member elevated to Chairperson, if the total tenure as member and chairperson does not exceed the statutory limit of **5 years**
Salary	Chairperson equals the **CJI**; other members equal a **SC judge**. Service terms cannot be altered to disadvantage while in office
After retirement	Disabilities similar to the CVC, plus **ineligible to contest any election in India for 5 years**

ORGANISATION

- **Inquiry wing** headed by the **Director of Inquiry**.
- **Prosecution wing** headed by the **Director of Prosecution**.
- A **Secretary of Lokpal**.
- Appointed from a panel of names recommended by the Government of India.

MY NOTES

ALSO IN THE HANDOUT

- This will provide an opportunity for SC, ST, OBC, minorities, and woman - Other Conditions: a.

SHOULD THE PRIME MINISTER BE COVERED?

ARGUMENTS

- **2nd ARC opposed it:**
  - Would cripple administration while investigation goes on
  - Foreign powers may exploit it to malign the PM
  - The PM is already covered under the PCA 1988
- **Arguments against that view:**
  - The CBI works under DoPT and so under the PM's direct control, which hampers investigation
  - The PM should lead by example (some states include the Chief Minister under their Lokayukta)
  - Under Article 361 only the President and Governors are exempt, with no legal or constitutional exemption for the PM

WHAT THE ACT DOES: PARTIAL COVERAGE

- Lokpal shall **not investigate** any PM decision relating to **public order, internal and external security, atomic energy or space**.
- The **full bench** of the Lokpal with a **two-thirds majority** must approve starting an inquiry or investigation against the PM.
- **Shortcut: PM cover. Partly covered: four excluded subjects (order, security, atom, space) plus a two-thirds full-bench vote.** Remember the letters **O S A S**.

ALSO IN THE HANDOUT

- 2 nd ARC opposed it citing the following concerns: a.
- The CBI investigates acts of corruption, and it functions under the Department of Personnel and Training and thus under the prime minister's direct control. Thus, it will hamper the investigation.

JURISDICTION, PROCEDURE AND POWERS

SCOPE

- Lokpal can inquire into allegations against the **Prime Minister, Union Ministers, MPs, Group A to D officials**, and functionaries of **boards, corporations, societies and trusts funded by the government (receiving more than Rs 10 lakh annually)**. **Any individual** can complain about offences under the PCA 1988.

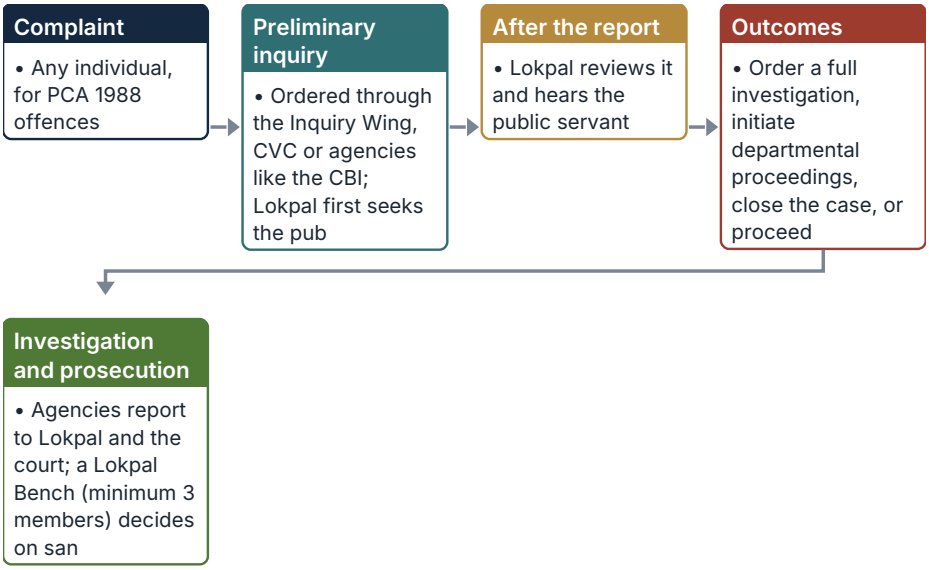
PROCEDURE

- **Complaint**: Any individual, for PCA 1988 offences

MY NOTES

- **Preliminary inquiry**:
  - Ordered through the **Inquiry Wing, CVC or agencies like the CBI**
  - Lokpal first seeks the public servant's explanation to establish a prima facie case
  - Complaints against **Group C and D** officials go to the **CVC**
  - Must finish in **60 days**
- **After the report**: Lokpal reviews it and hears the public servant
- **Outcomes**: Order a **full investigation**, initiate **departmental proceedings**, **close the case**, or **proceed against the complainant** if allegations are false
- **Investigation and prosecution**:
  - Agencies report to Lokpal and the court
  - A **Lokpal Bench (minimum 3 members)** decides on sanction to prosecute, departmental action or closure

PROCEDURE



POWERS

- **Sanction shift**: Lokpal replaces the appointing or dismissing authority in granting sanction under **Section 197 of CrPC** and **Section 19 of PCA**.
- Powers of **search, seizure, asset attachment** and of a civil court (Civil Procedure Code) for inquiries.
- **Superintendence over the CBI** for cases referred by the Lokpal.

OTHER PROVISIONS (THE HANDOUT'S NOTES)

- **Annual declaration** of assets and liabilities of public servants.
- **Annual Report** presented to the President, who tables it in Parliament

MY NOTES

- It must carry a memorandum explaining why Lokpal's recommendations were rejected
- **Limitation period of 7 years** for filing a complaint.
- **Memory aid (Four outcomes): I**nvestigate fully, **D**epartmental proceedings, **C**lose, **P**roceed against false complainant: "**I D**eclare **C**ase **P**roved".

> **HANDOUT ALERT**
> Handout alert: The scope line says Lokpal covers **Group A to D** officials, while the procedure says complaints against **Groups C and D** are **referred to the CVC**. Read it as: Lokpal has jurisdiction on paper, but C and D complaints are sent to the CVC.

ALSO IN THE HANDOUT

- This report must contain a memorandum containing explanations for the rejection of recommendations of the Lokpal.

REMOVAL OF LOKPAL MEMBERS

TWO ROUTES

Ground	Process
Misbehaviour	Reference to the **Supreme Court**, only if signed by at least **100 Members of Parliament**
Other grounds	The **President** can dismiss on the advice of the Council of Ministers for insolvency, private employment, infirmity of body or mind, or acquiring prejudicial financial interest

- **Shortcut: Removal numbers. SC reference + 100 MPs for misbehaviour.** Other grounds: President, on advice of the Council of Ministers.

ISSUES, FUNCTIONING SINCE 2019 AND THE 2ND ARC

ISSUES

- Jurisdiction **too wide**.
- **Convoluted** appointment process.
- PM only **partially** covered.
- **7-year limitation** period.
- Wide scope can lead to **intimidation of NGOs**.
- **Delays in appointments**.

FUNCTIONING SINCE 2019

- Allegations of **emasculating the body** through legislation.
- Government delayed rules prescribing the **form for filing complaints** and rules on **disclosure of assets**.

MY NOTES

- By 2020 the **Prosecution and Investigation Wings** were not set up.
- Rules to be made by Lokpal for preliminary inquiry and investigation also delayed.
- Status: by **September 2019** it disposed of **1000 of 1065** complaints. Complaints kept falling: **1427 in 2019-20**, **110 in 2020-21**, and just **12 till August in 2021-22**.

> **HANDOUT ALERT**
> Handout alert: The figures appear to use different bases: "1000 of 1065" (by September 2019) and "1427 cases in 2019-20" are not reconciled in the handout. Quote them as given and stress the trend: a sharp fall (1427, 110, 12).

2ND ARC RECOMMENDATIONS

- Give Lokpal **constitutional status** (from statutory), for both the **Rashtriya Lokayukta** (Union) and **State Lokayukta**.
- **Rashtriya Lokayukta**: Union Ministers, MPs and State Chief Ministers. **State Lokayukta**: State Ministers and state legislators. **CVC**: civil servants.
- A **Local Bodies Ombudsman** for both political and administrative officials.

LOKPAL IS NOT A PANACEA

- Corruption is a **hydra-headed monster** that needs a multi-pronged strategy.
- The **size of the bureaucracy** is huge, so one body cannot handle all complaints.
- Efficiency in handling **petty complaints** must be looked into, since Lokpal also receives them.
- **Inadequacies in the judicial process**.
- No ombudsman, citizen empowerment or willingness to complain as in developed nations, preventing a multi-pronged strategy.
- **Memory aid (Not a panacea): H**ydra-headed, **S**ize of bureaucracy, **P**etty complaints, **J**udicial inadequacy, **N**o citizen empowerment: "**H**ydras **S**mile, **P**robing **J**ust **N**umbers".

WHISTLEBLOWER PROTECTION ACT, 2014

- Officially the **Public Interest Disclosure and Protection of Individuals making Disclosure (PIDPI) Act, 2014**.

KEY RULES

Point	Rule
Who	Anyone can be a whistleblower about any public body or agency

MY NOTES

Point	Rule
Disclosure to	**PM** for Union Ministers, **Chief Minister** for State Ministers, **Presiding Officer** for legislators, **CVC** for civil servants
Anonymous complaints	Not allowed
Protection	**CVC** can issue directions for whistleblower protection
Frivolous complaints	Penalised with **2 years' jail**
2015 amendment bill	Lapsed later; proposed that the **Official Secrets Act, 1923** override the Whistleblowers' Act

CHALLENGES

- **Lack of anonymity**:
  - Identity must be disclosed, exposing the whistleblower
  - The murder of **Satyendra Dubey** (who reported corruption in the NHAI) shows the danger
- **Weak organisational implementation**: unclear guidelines and awareness make employees reluctant.
- **Inadequate legal safeguards** against victimisation, career setbacks, harassment and physical harm.
- **Rising complaints show latent potential**: in **2018** NSE-listed companies received over **3,500** complaints.

MEASURES NEEDED (2ND ARC AND LAW COMMISSION)

- Stronger law protecting genuine whistleblowers in **public and private** sectors.
- Adopt the **Law Commission's framework**: **confidentiality and anonymity**, protection against victimisation, safeguards against harassment and bodily harm.
- Extend cover to **corporate whistleblowers** exposing fraud or serious harm to public interest.
- **SEBI's Tipping Mechanism** is a progressive step: rewards up to **Rs 1 crore** for actionable information against insider trading, with cooperation and confidentiality protection.
- **Memory aid (Disclosure to whom):** **P**M (Union Ministers), **C**M (State Ministers), **P**residing officer (legislators), **C**VC (civil servants): "**P**ay **C**areful **P**ublic **C**omplaints".

ALSO IN THE HANDOUT

- Anyone can be a whistle blower with respect to any public body, agency, etc.
- Weak Organizational Implementation:Absence of clear guidelines and awareness initiatives within organizations leads to ambiguity

MY NOTES

regarding reporting mechanisms, making employees reluctant to use official channels.

- Inadequate Legal Safeguards:The Act offers limited protection against victimization, leaving whistleblowers vulnerable to career setbacks, harassment, and even physical harm, deterring disclosures.
- Law Commission's Framework must be adopted, focusing on: - Ensuring confidentiality and anonymity of whistleblowers.

PREVENTION OF CORRUPTION ACT, 1988 AND THE 2018 AMENDMENT

WHO IS A PUBLIC SERVANT

- The Act covers all public servants:
- Anyone in the pay or service of the government.
- Public Sector Undertaking employees.
- Local body functionaries.
- Judges.
- Office bearers of the government-funded cooperative sector.
- Members of the Public Service Commission.
- Employees of Central and State Universities.
- Employees of **Deemed Universities** by an Apex Court decision of **2020**.
- Anyone holding an office that requires a public duty, including **MPs and MLAs**.

PREVENTION OF CORRUPTION (AMENDMENT) ACT, 2018

WHAT CHANGED

Change	Detail
Giving a bribe	Categorically an offence. In **coercive corruption**, if the person complains **within 7 days**, he is not guilty
Section 17A	Extended to **retired civil servants**: sanction of the appropriate authority is required to act against them
Section 13(1)(d) diluted	Originally a public servant could be prosecuted for a decision benefiting a commercial organisation and violating public interest; this is diluted
Jail term	Increased from **3 to 7 years**
Trial	Completed in **2 years, up to a maximum of 4 years**
Commercial organisations	Provisions for prosecution of commercial activities

MY NOTES

Change	Detail
Property	Provisions for attachment or confiscation

- **Memory aid (2018 changes):** **B**ribe-giving offence, **S**ec 17A, **D**iluted 13(1)(d), **J**ail 3 to 7, **T**rial 2 to 4 years, **C**ommercial organisations, **P**roperty attachment: "**B**ig **S**tick, **D**ull **J**ust **T**oo **C**omplicated, **P**lease".

HANDOUT ALERT

Handout alert: In the chapter on the Problem of Corruption, Section 17A is described as needing permission for **preliminary inquiry for all public servants** except those caught red-handed. Here the point is that 17A is **extended to retired civil servants**. Both are in the handout: 17A covers serving servants and, by this amendment, retired ones too.

ALSO IN THE HANDOUT

- This would include MP,MLA too owing to their nature of duties Prevention of Corruption AmendmentAct,2018: - The act of giving a bribe is categorically recognized as an offense.
- Section 17 A has also extended to retired civil servants.

FROM LAKSHMIKANTH · INDIAN POLITY, 8TH ED. CH 64 AND 66, LOKPAL AND WHISTLEBLOWER

- Ombudsman:
  - 'ombud' is Swedish for a representative. It handles abuse of discretion, maladministration, corruption, nepotism and discourtesy. It cannot reverse or quash a decision. It spread to Finland (1919), Denmark (1955) and Norway (1962)
  - New Zealand (1962) was the first Commonwealth country
- First ARC (1966-70):
  - Lokpal for complaints against ministers and secretaries, and Lokayuktas for other higher officials. It kept the judiciary outside their purview. Ten bills were tried: 1968, 1971, 1977, 1985, 1989, 1996, 1998, 2001 and two in 2011. The tenth became the 2013 Act
  - The first four lapsed, the fifth was withdrawn, the sixth to eighth lapsed and the ninth was withdrawn
- Lakshmikanth differs: timelines. The Act sets a preliminary enquiry at 3 months extendable by 3 months, investigation at 6 months extendable by 6 months at a time, and trial at one year extendable by one. The handout gives 60 days for the preliminary inquiry. Use the handout's 60 days in class.
- Lakshmikanth differs: punishment. It says the Lokpal Act raised the maximum under the PCA from 7 to 10 years, with a minimum of 3 years under Secs 7, 8, 9 and 12 and 2 years under Sec

MY NOTES

15. The handout gives 3 to 7 years under the 2018 amendment. Use the handout and keep LK in mind.

- Group A and B officers: the CVC sends its preliminary report back to the Lokpal. For Group C and D, the CVC proceeds under its own powers, subject to Lokpal review.
- Entities receiving foreign donations (FCRA) above Rs 10 lakh a year come under the Lokpal. Fully or partly government-financed bodies are covered but merely government-aided bodies are excluded.
- States must create Lokayuktas by law within 365 days of the 2013 Act. Odisha passed its Act in 1970 but Maharashtra established the institution first, in 1971. The Lokayukta is appointed by the Governor, and in most states serves 5 years or until 65. Its recommendations are only advisory.
- LK drawbacks of the Act: no suo moto power, stress on form of complaint, heavy punishment for false complaints, no anonymous complaints, legal help to the accused, 7-year limit and an opaque process for PM complaints.
- Whistleblower Act: a personal declaration of good faith is needed. False or frivolous complaints bring up to 2 years in prison and a fine up to Rs 30,000. It does not apply to the Special Protection Group.
- Lakshmikanth differs: competent authority. It says the competent authority at present is the CVC (the Government may notify others), while the handout lists PM, CM, Presiding Officer and CVC by category. Use the handout list.

MY NOTES

END OF CHAPTER · RECALL AND DRILL

RECALL SHEET: COVER THE RIGHT COLUMN AND ANSWER

When and where did ombudsman begin?	Sweden, 1809. UK parliamentary commissioner in 1967. In the USA only some states (Hawaii, Oregon, Nebraska), not federal.
What did the First ARC recommend?	Two tiers: Lokpal (Secretary rank and above, Union and State) and Lokayuktas (Union Lokayukta below Secretary, State Lokayuktas in states).
Key dates of Lokpal in India?	Bill 1968, Maharashtra Lokayukta 1971, Act 2013, Lokpal constituted 2019 under Justice PC Ghosh.
Why are state Lokayuktas called paper tigers?	Mostly recommendatory in nature.

Which states abolished Lokayuktas?	Odisha in 1992 by ordinance and Haryana in 1999.
Lokpal composition?	Nine members: chairperson plus 8, half judicial and half non-judicial, with 50% affirmative action for SC, ST, OBC, minorities and women.
Who qualifies as chairperson?	A current or former CJI or SC judge, or an eminent person with 25 years of experience in vigilance, anti-corruption, law, finance, administration and management.
Minimum age and other bars for Lokpal members?	Minimum 45 years; not MP, MLA, MLC, local body member, removed servant, office of profit holder or party-affiliated.
Who is on the Lokpal selection committee?	PM (chair), Speaker, LoP in Lok Sabha, CJI or nominated SC judge, eminent jurist chosen by those four.
What is the search committee?	Seven members shortlisting candidates, with 50% affirmative action; the selection committee may go beyond its list.
Lokpal tenure?	5 years or maximum age 70; no reappointment except elevation within 5 years total.
Lokpal salary?	Chairperson like CJI, members like SC judge; terms cannot be altered to disadvantage.
Post-retirement bars?	Like the CVC, plus no contesting any election for 5 years.
Lokpal wings?	Inquiry wing (Director of Inquiry), prosecution wing (Director of Prosecution) and a Secretary.
How does the Lokpal Act cover the PM?	Partly: no inquiry into decisions on public order, security, atomic energy, space; two-thirds of the full bench must approve inquiry.
Why did the 2nd ARC oppose covering the PM?	It would cripple administration, foreign powers might exploit it, and the PM is already under the PCA 1988.
What does Article 361 exempt?	Only the President and Governors; no legal or constitutional exemption for the PM.

MY NOTES

Who can the Lokpal inquire into?	PM, Union Ministers, MPs, Group A to D officials, and bodies funded by government receiving more than Rs 10 lakh annually.
What are the four outcomes after an inquiry?	Full investigation, departmental proceedings, close the case, or proceed against the complainant if allegations are false.
What sanction power does the Lokpal hold?	It replaces the appointing or dismissing authority for sanction under Sec 197 CrPC and Sec 19 PCA; bench of minimum 3 members.
Lokpal's other powers?	Search, seizure, asset attachment, civil court powers, and superintendence over the CBI for referred cases.
How can a Lokpal member be removed?	Misbehaviour: Supreme Court reference signed by 100 MPs. Other grounds: President on advice of the Council of Ministers.
What is the limitation period for complaints?	7 years.
What did the 2nd ARC recommend for Lokpal?	Constitutional status, Rashtriya Lokayukta and State Lokayukta, CVC for civil servants, and a Local Bodies Ombudsman.
Lokpal complaint trend in the handout?	1427 in 2019-20, 110 in 2020-21, 12 till August in 2021-22.
Whistleblower Act 2014 key rules?	No anonymous complaints, CVC can direct protection, 2 years jail for frivolous complaints, disclosure to competent authority.
Who is Satyendra Dubey in the handout?	An NHAI whistleblower who reported corruption and was murdered, showing the danger of no anonymity.
What is SEBI's Tipping Mechanism?	Rewards up to Rs 1 crore for actionable information on insider trading, with confidentiality protection.
What did the PCA 2018 amendment change?	Bribe-giving an offence (7-day complaint safeguard), Sec 17A for retired servants, 13(1)(d) diluted, jail 3 to 7 years, trial 2 to 4 years, commercial organisations and property attachment.

MY NOTES

Trap 1 · Nine members or eight

The Lokpal is a nine-member body including the Chairperson. The 8 members are half judicial and half non-judicial. Minimum age is 45 and tenure is 5 years or age 70. *Rule: 1 Chairperson + 8 members = 9.*

Trap 2 · The PM is only partly covered

The Lokpal cannot probe PM decisions on public order, internal and external security, atomic energy or space. A two-thirds majority of the full bench must approve an inquiry against the PM. *Rule: PM covered, but with subject exclusions and a two-thirds full bench.*

Trap 3 · Two routes of removal

For misbehaviour, a Supreme Court reference signed by at least 100 MPs. For other grounds (insolvency, private job, infirmity, harmful interest) the President acts on the advice of the Council of Ministers. *Rule: misbehaviour = SC reference with 100 MPs.*

Trap 4 · The many sevens

Limitation period 7 years; search committee 7 members; PCA 2018 jail raised from 3 to 7 years; a bribe-giver forced to pay is safe if complaint is made within 7 days. *Rule: attach each seven to its own rule: years, members, jail, days.*

QUICK QUIZ

Q1. Which country created the first ombudsman in the world, in 1809?

1. UK
2. Sweden
3. USA
4. Norway

Q2. Which state was the first in India to appoint a Lokayukta in 1971?

1. Odisha
2. Haryana
3. Maharashtra
4. Karnataka

Q3. The first Lokpal Bill in India was introduced in

1. 1968
2. 1971
3. 2013
4. 2019

Q4. The Lokpal consists of a Chairperson and how many members, with half of them judicial?

1. 6
2. 8
3. 10
4. 12

Q5. Which person is NOT part of the Lokpal selection committee?

1. Speaker of Lok Sabha
2. Leader of Opposition in Lok Sabha
3. Home Minister
4. CJI or a SC judge nominated by him

Q6. The tenure of the Lokpal Chairperson and members is

1. 4 years or age 65
2. 5 years or age 70
3. 6 years or age 65
4. 5 years or age 65

Q7. A Lokpal member removed for misbehaviour requires a Supreme Court reference signed by at least

1. 50 MPs
2. 100 MPs
3. 150 MPs
4. Two-thirds of Parliament

MY NOTES

Q8. The Lokpal Act covers the Prime Minister, but not decisions relating to

1. Taxation
2. Public order, internal and external security, atomic energy and space
3. Foreign trade
4. Appointments

Q9. Preliminary inquiry by Lokpal must conclude within

1. 30 days
2. 60 days
3. 90 days
4. 6 months

Q10. Complaints against Group C and D officials are referred by the Lokpal to the

1. CBI
2. CVC
3. ED
4. State Lokayukta

Q11. Under the Whistleblower Protection Act, 2014, a disclosure about a civil servant is made to the

1. Prime Minister
2. Chief Minister
3. Presiding Officer
4. CVC

Q12. The Prevention of Corruption (Amendment) Act, 2018 raised the jail term from

1. 1 to 3 years
2. 3 to 7 years
3. 5 to 10 years
4. 2 to 5 years

Q13. Under the PCA amendment of 2018, a person coerced into giving a bribe is not guilty if he complains within

1. 7 days
2. 15 days
3. 30 days
4. 60 days

Answers: Q1 b, Q2 c, Q3 a, Q4 b, Q5 c, Q6 b, Q7 b, Q8 b, Q9 b, Q10 b, Q11 d, Q12 b, Q13 a

MY NOTES

Priority and PYQ index

Quick revision order. High: two or more PYQs map; Medium: one or partial; Low: none quoted in the handout.

Ch	Chapter	Priority	Mains PYQs quoted
01	Preamble	MEDIUM	2016
02	Salient Features and Critique of the Constitution	HIGH	2016
03	Sources of the Constitution	LOW	none quoted in the material
04	The Schedules of the Constitution	HIGH	2013
05	Fundamental Rights	HIGH	2013, 2014, 2015, 2017, 2022, 2023, 2024
06	Basic Structure	MEDIUM	2014, 2016, 2019
07	Directive Principles	HIGH	2015
08	Fundamental Duties	MEDIUM	none quoted in the material
09	Amendment of the Constitution	HIGH	2017, 2018, 2019
10	Union Executive	HIGH	none quoted in the material
11	Governor	HIGH	2018, 2022
12	Chief Minister and State Executive	LOW	none quoted in the material
13	Local Self-Govern-ment	HIGH	2013, 2015, 2017, 2018, 2019, 2020, 2022, 2024
14	Judiciary	LOW	none quoted in the material
15	Parliament	HIGH	none quoted in the material
16	Parliamentary Committees	MEDIUM	none quoted in the material
17	State Legislature	MEDIUM	none quoted in the material
18	Parliamentary System	MEDIUM	2023, 2024
19	Federal System	MEDIUM	none quoted in the material
20	Centre-State Rela-tions	LOW	none quoted in the material
21	Inter-State Rela-tions	LOW	none quoted in the material
22	Emergency Provi-sions	MEDIUM	2018, 2023

MY NOTES

Ch	Chapter	Priority	Mains PYQs quoted
23	Political Parties	LOW	none quoted in the material
24	Elections and Electoral Reforms	LOW	none quoted in the material
25	Voting Behaviour	HIGH	2017, 2018, 2019, 2020, 2022, 2024, 2025
26	Union Territories	LOW	none quoted in the material
27	Scheduled and Tribal Areas	HIGH	2013, 2016, 2017
28	Union and its Territory	MEDIUM	none quoted in the material
29	Citizenship	LOW	none quoted in the material
30	Election Commission	LOW	none quoted in the material
31	Union Public Service Commission	LOW	none quoted in the material
32	State Public Service Commission	LOW	none quoted in the material
33	Finance Commission	LOW	none quoted in the material
34	GST Council	LOW	none quoted in the material
35	National Commission for Scheduled Castes	LOW	none quoted in the material
36	National Commission for Scheduled Tribes	LOW	none quoted in the material
37	National Commission for Backward Classes	LOW	none quoted in the material
38	Special Officer for Linguistic Minorities	LOW	none quoted in the material
39	Comptroller and Auditor General	LOW	none quoted in the material
40	Attorney General and Advocate General	HIGH	2004, 2014, 2016, 2017, 2018, 2020, 2022
41	NITI Aayog and NDC	LOW	none quoted in the material
42	Central Bureau of Investigation	LOW	none quoted in the material
43	Central Vigilance Commission	LOW	none quoted in the material
44	Lokpal and Lokayukta	LOW	none quoted in the material
45	Information Commissions	LOW	none quoted in the material

MY NOTES

Ch	Chapter	Priority	Mains PYQs quoted
46	National Investigation Agency	LOW	none quoted in the material
47	Law Commission and Bar Council	LOW	none quoted in the material
48	Delimitation Commission	LOW	none quoted in the material
49	Competition Commission of India	LOW	none quoted in the material
50	Disaster Management Authorities	LOW	none quoted in the material
51	Special Provisions for Some States	LOW	none quoted in the material
52	Official Language	LOW	none quoted in the material
53	The Cooperative Sector	LOW	none quoted in the material
54	Making of the Constitution	LOW	none quoted in the material
55	Hindi Text of the Constitution	LOW	none quoted in the material
56	Right to Information Act	LOW	none quoted in the material
57	RTI: CIC, Issues and Impact	LOW	none quoted in the material
58	Problem of Corruption	LOW	none quoted in the material
59	Corruption: CBI and CVC	LOW	none quoted in the material
60	Tackling Corruption and Social Audit	LOW	none quoted in the material
61	Corruption: Lokpal in India	LOW	none quoted in the material

MY NOTES